CHAPTER 1

PROJECT PLANNING

The parts of the PAH shown in blue and bold should only be updated by Works Branch of Development Bureau.

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SYNOPSIS

This chapter gives a general view of the overall process of planning a project, from identification of the need through various stages of detailed planning to physical implementation. While the actual work involved in planning differs from one project to another, some general patterns and sequence of work are common to all projects. Proper planning saves manpower and financial resources and ensures smooth progression of a project.

This chapter also gives general guidance on the consultation required at various stages of planning, on sources of information that may be needed, and on the standard requirements for keeping essential records and reporting on progress.

A general description of the various stages of a project in the Public Works Programme is given in this Chapter. However, details of the procedures to be followed in processing a project through the Public Works Programme are given in Chapter 2 “Project Approval”.

Reference should also be made to manuals, guidelines and circulars issued by relevant authorities.

Works departments are urged to adopt the Project Management Approach in the delivery of public works projects to ensure clear accountability and allocation of responsibilities. Some measures have been introduced to streamline the delivery of public works projects. These include replacing the Client Project Brief and the Preliminary Project Feasibility Study by the Project Definition Statement and the Technical Feasibility Statement, parallel action between the EIA process and the statutory gazetting of projects, initiating works-related tendering and consultant selection procedures before funding is secured, and shortening the administrative procedures for land resumption.

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I. ABBREVIATION

I.01 The meaning of the abbreviations assigned in this Chapter of the Project Administration Handbook for Civil Engineering Works shall only apply to this Chapter.

I.02 The following list shows the meaning of the abbreviations for the common terms used in this Chapter of the Project Administration Handbook for Civil Engineering Works:

Abbreviation	Term
ACABAS	Advisory Committee on the Appearance of Bridges and Associated Structures
ACE	Advisory Council on the Environment
AFCD	Agriculture, Fisheries and Conservation Department
AMO	Antiquities and Monuments Office
APE	Approved Project Estimate
ArchSD	Architectural Services Department
BIM	Building Information Modelling
C&DM	Construction and Demolition Material
CEDD	Civil Engineering and Development Department
CGE	Chief Geotechnical Engineer
CMP	Cavern Master Plan
CPLD	Committee on Planning and Land Development
DSD	Drainage Services Department
DEVB	Development Bureau
DEVB TCW No.	DEVB Technical Circular (Works) No.
DIA	Drainage Impact Assessment
DLO	District Lands Office
EEB	Environmental and Ecology Bureau
EFS	Engineering Feasibility Studies
EMSD	Electrical and Mechanical Services Department
ENB	Environment Bureau
EPD	Environmental Protection Department
EIA	Environmental Impact Assessment
EIAO	Environmental Impact Assessment Ordinance
ES	Explanatory Statement
ETWB	Environment, Transport and Works Bureau
ETWB TCW No.	ETWB Technical Circular (Works) No.
ExCo	Executive Council

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Abbreviation	Term
FC No.	Financial Circular No.
FSTB	Financial Services and the Treasury Bureau
GAS	Geotechnical Area Study
GASP	Geotechnical Area Studies Programme
GEO	Geotechnical Engineering Office
GPA	Government Property Agency
HAD	Home Affairs Department
HD	Housing Department
HIA	Heritage Impact Assessment
HKIVM	Hong Kong Institute of Value Management
HKPF	Hong Kong Police Force
HKPSG	Hong Kong Planning Standards and Guidelines
HPLB	Housing, Planning and Lands Bureau
HyD	Highways Department
HyD TC No.	Highways Department Technical Circular No.
LandsD	Lands Department
LCSD	Leisure and Cultural Services Department
MD	Marine Department
MOD	money-of-the-day
OVT	Old and Valuable Tree
MTRCL	Mass Transit Railway Corporation Ltd
OZP	Outline Zoning Plan
PAH	Project Administration Handbook for Civil Engineering Works
PDS	Project Definition Statement
PFC	Public Fill Committee
PGA	Preliminary Geotechnical Appraisal
PlanD	Planning Department
PVC	Property Vetting Committee
PWP	Public Works Programme
PWPIS	Public Works Programme Information System
PWSC	Public Works Sub-committee
RAE	Resource Allocation Exercise
RAS	Resource Allocation System
SCCD	Sub-Committee on Cavern Development

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Abbreviation	Term
SCVA	Strategic Cavern Area
SEE	Secretary for the Environment and Ecology
SDEV	Secretary for Development
SFST	Secretary for Financial Services and the Treasury
SMO	Survey and Mapping Office
SoA	Schedule of Accommodation
SPR	Stores and Procurement Regulations
TD	Transport Department
TFS	Technical Feasibility Statement
TGN 1	Technical Guidance Note No. 1
TIA	Traffic Impact Assessment
TLB	Transport and Logistics Bureau
TPB	Town Planning Board
VM	Value Management
WBTC No.	Works Bureau Technical Circular No.
WMCG	Works and Maintenance Committee on Greening
WSD	Water Supplies Department

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II. GLOSSARY OF TERMS

II.01 Words and expressions to which meanings are assigned in this Chapter of the Project Administration Handbook for Civil Engineering Works (PAH) shall only apply to this Chapter.

II.02 In this Chapter of the PAH the following words and expressions shall have the meaning hereby assigned to them except when the context otherwise requires:

"Government" means the Government of the Hong Kong Special Administrative Region.

"project office" means the office responsible for the planning, design and construction of the project.
(Where these functions are performed by different offices at different stages, the project office shall mean the office responsible at each particular stage.)

"Contract", "Contractor", "Drawings", "Employer", "Engineer" and "Engineer's Representative" are as defined in the General Conditions of Contract for Civil Engineering Works (1999 Edition) or the General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition).

"Schedule of Rates" and "Works Order" are as defined in the General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition).

"C&D material" is also termed as "construction waste".

II.03 Words importing the singular only also include the plural and vice versa where the context requires.

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1. OVERVIEW

1.1 GENERAL

This chapter outlines the basic planning requirements for a project. References are made to the latest Manuals, Guidelines, Handbooks, Technical and Financial Memoranda and Circulars, Departmental Instructions.

The need for a project must be established in the first place and it normally starts from an idea - a response to a problem or an opportunity. To gain a formal status in the Public Works Programmes (PWP), the Policy Bureau makes the idea to the subject of a Project Definition Statement (PDS). The appropriate works department then carries out a Technical Feasibility Statement (TFS) to ascertain the viability, identify development constraints, formulate an implementation strategy, and prepare the project estimates. On completion of the TFS, the works director or his delegated Directorate Officer will sign off the TFS and seek the approval of SDEV (See FC No. 4/2012 - Requirements for Project Definition Statement and Technical Feasibility Statement for Capital Works Projects for details).

On approval of the TFS, the project will be in Category C of the PWP. Successful inclusion of the project in the Resource Allocation System (RAS) will entitle it to Category B status. When a project has achieved Category B status, the works department is entitled to carry out further planning and design on it. When the detailed design and working drawings are substantially complete, the director of the works department with the support of the corresponding policy secretary will seek funding for the project from the legislature through the presentation of the Public Works Sub-committee (PWSC) paper (See FC No. 2/2021 - User Guide on the Finance Committee, Establishment Subcommittee and Public Works Subcommittee for details). The Finance Committee's approval upgrades the project to Category A status. When a project has achieved Category A status, the works department can put out the work to tender. After receipt of competitive tenders, the authority to accept a tender shall be given from either the relevant tender board or the Controlling Officer, depending on the value of the contract and whether the contract is awarded to the highest combined price-quality scorer or not (See WBTC No. 24/2001 for details). When the authority has given its approval, the works department can accept the tender and get construction under way. In the interests of expediting the procurement process, parallel tendering may have to be adopted for inviting tenders or initiate consultants selection exercises prior to securing funding in accordance with FC No. 3/2020 – Parallel Tendering for Contracts. Details of the Public Works Programme procedures are given in Chapter 2 - Project Approval.

The works department should monitor the planning, design and construction of the works to ensure that there is adequate consultation among the parties concerned, including the maintenance department(s), on all interface and technical works implementation issues as well as the arrangement for handing over of completed works to the maintenance authority for operation and maintenance. Any unresolved issues should be promptly brought to the attention of higher-ranking directorate officers, or should the situation warrant it, the Directors of the departments concerned for an early resolution of the issues (See WBTC No. 25/2000 for details). The project department should identify and avoid environmental problems, especially in project conceptual stage, by maintaining a close liaison with EPD during the whole project lifecycle.

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When the project is completed, it is handed over to the relevant department and maintenance authority for ongoing operation and maintenance.

For small-scale Category D projects, the preparation of a PDS and TFS is not required under normal circumstances, but may be advisable in certain cases. Discretion to undertake a TFS in such cases rests with the appropriate Policy Bureau.

1.2 NEED FOR A PROJECT

The need for a project may arise:

(a) to meet planning and development requirements,
(b) to improve existing facilities/services,
(c) to complete an existing development programme,
(d) to address issues raised in Policy Address and/or Policy Agenda, or
(e) to enhance the reliability of the existing services

In order to establish the need for a project, general consideration should be given to:

(a) the problem requiring action,
(b) solution options, including an assessment of relative merits and demerits,
(c) reasons for the choice of the preferred option vis-a-vis other possible solutions, and
(d) consequences of doing nothing.

1.3 PROCEDURE FOR IMPLEMENTATION

Once the need for a project is established, the respective Bureau Secretary is required to sign off a PDS for the capital works project. This PDS explains the rationale for the project. Based on the PDS, the works department prepares the TFS to demonstrate the feasibility of the project. Successful projects are upgraded to Category C, and only these can be upgraded to Category B through the annual Resources Allocation Exercise (RAE).

The PDS and TFS are complementary processes to make sure that the projects upgraded to Category B are no longer simply 'good ideas', but are well defined in terms of their description, rationale, scope and implementation.

Sometimes, for expediency, convenience, economy and timing of implementation, the project may warrant entrusting to an outside body. See Chapter 2 (Project Approval) and Chapter 8 (Term Contract Works) for further information.

All Category C, B, and A projects in the Public Works Programme (PWP) must be registered in the Public Works Programme Information System (PWPIS) except subvented projects (See Chapter 2 for more details).

Departments should update their procurement plans (i.e. forecast of consultancies and works tenders to be invited in the forthcoming 12 months) and publish such forecast information on the respective website of their departments on a quarterly basis (i.e. in the 1st week of January, April, July and October) for reference by any interested parties (e.g. consultants and contractors). The website of DEVB will include hyperlinks to the forecast

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information published on websites of individual departments. The link to access the forecast information in DEVB's website is given below:

https://www.devb.gov.hk/en/construction_sector_matters/tender_notices/forecast_of_consultancies_and_tenders/index.html

1.4 GENERAL PLANNING CONSIDERATIONS

1.4.1 At the Commencement of Preliminary Project Planning

At the commencement of preliminary project planning a Project Definition Statement (PDS) and a Technical Feasibility Statement (TFS) together with minor investigations should normally be carried out for all public works projects except for Category D projects or works under Head 708 or projects which themselves are purely studies, prior to funds being earmarked under the Resource Allocation Exercise (RAE).

To commission a TFS, a PDS will need to be drawn up to provide justifications and scope of each proposed capital works project and must be signed off by the Policy Secretary or his delegated Deputy Secretary. The works department acting as a works agent is expected to complete a TFS by using in-house resources within four months and without recourse to consultancy support. However, if the works director is personally satisfied that consultant input through a feasibility study is required for a proposed project before he is in a position to recommend that funding be earmarked and that the project is technically ready for upgrading to Category B in the Capital Works Programme, he can submit the relevant extract of the feasibility study in lieu of a TFS for approval. Under no circumstances should a consultant be engaged exclusively for the sake of completing a TFS.

See FC No. 4/2012 - Requirements for Project Definition Statement and Technical Feasibility Statement for Capital Works Projects for details and ETWB TCW No. 30/2003 for control of client-initiated changes for capital works projects.

1.4.2 Value Management (Subsumed from ETWB TCW No. 35/2002)

In general, whenever it is perceived that there are likely to be net benefits, a Value Management (VM) study should be conducted for every major project with an estimated project cost exceeding $200M. Adequate support from top management must be obtained before commencing any VM study. For a complex project, the VM study should be conducted at the feasibility study stage. For a less complex project, which does not require a feasibility study, the VM study could be deferred to the earlier parts of the preliminary design stage.

The Hong Kong Institute of Value Management (HKIVM) will update from time to time the Value Management Facilitators List on the HKIVM's website (https://hkivm.org/facilitators/). Departments can choose from the Value Management Facilitators List on the HKIVM's website or other sources the most suitable facilitators according to the nature of the project, complexity of the problem and their own budgets. To provide a reference for project teams in selecting facilitators, project teams shall compile a report for each VM study and submit it to the departmental coordinator within 28 days after each VM workshop for the maintenance of a reference system.

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The details and guidelines on the implementation of value management are given at Appendix 1.4.

1.4.3 Geotechnical Control

ETWB TCW Nos. 29/2002 and 29/2002A outline the policy and procedures on geotechnical control for man-made slopes and retaining walls in Government projects undertaken by departments or consultants. The geographical areas of GEO District Divisions are given in Appendix 1.13.

ETWB TCW No. 4/2004 outlines the policy and procedures on geotechnical control for foundation works within the Scheduled Areas of the Northwest New Territories and Ma On Shan, and in the Designated Area of Northshore Lantau in Government projects undertaken by departments or consultants.

ETWB TCW No. 15/2005 outlines the policy and procedures for geotechnical control of planning, design and construction for tunnel works undertaken by departments or consultants.

DEVB TCW No. 3/2018 outlines the policy and procedures to enhance cost effectiveness of geotechnical works of capital works projects.

GEO, CEDD should be approached at an early stage in preparing the TFS.

1.4.4 Systematic Risk Management

ETWB TCW No. 6/2005 sets out the requirements and policy on the application of Systematic Risk Management (SRM) in Public Works Projects. Works departments should start preparing the Risk Management Plan at the early stage of a project once it is identified. The Risk Register should be submitted to the headquarters of the Works departments on an annual basis from the project's inclusion in Cat C until the completion of the project.

1.4.5 Sustainability Evaluation

ENB SA No. 1/2018 sets out the detailed arrangements for the sustainability assessment (SA) system. The department responsible should include a paragraph on sustainability implications in each of its major submission proposals to the Policy Committee and the Executive Council to explain the main findings of its SA. Examples of these proposals include the regional or sub-regional planning studies, comprehensive transport studies, waste management plans, etc.

1.4.6 Handling of Request for Compensatory Works which are claimed to be Fung Shui Related in Implementation of Public Works Projects (Ref.: SDEV's memo ref. () in DEVB(W) 400/70/01 dated 25.5.2011 and 28.7.2011)

With a view to enhancing operation transparency, SDEV's memo ref. () in DEVB(W) 400/70/01 dated 25.5.2011 and 28.7.2011 provide the guidelines and procedures on handling of requests for compensatory works which are claimed to be fung shui related in implementation of public works projects (see Appendix 1.6).

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1.4.7 Rock Cavern Development

DEVB TCW No. 2/2024 Amd No. 6/2025 promulgates the policy and associated measures for Amd No. 6/2025 cavern development in Hong Kong. In brief, all new government Amd No. 6/2025 projects and land disposal/alienation proposals (including those for Amd No. 6/2025 lease modification and land exchange) that wholly or partly fall within Amd No. 6/2025 Strategic Cavern Areas (SCVAs) delineated in the Cavern Master Plan (CMP) shall be submitted for vetting by the Sub-Committee on Cavern Development (SCCD). When project proponents consider the cavern option as one of the options, they are required to first check if (i) there is a lack of suitable surface site; and (ii) there are specific needs or strong merits to relocate existing government facilities or accommodate new suitable government facilities inside caverns. If criteria (i) and (ii) are met, the project proponents should proceed to carry out the preliminary option assessments with an aim at comparing cavern and non-cavern options. If the cavern option is recommended, the option assessments report should be submitted to the SCCD for vetting and endorsement before the preparation of TFS report. In particular, it might be beneficial to consider the strategic benefits and synergy effect of integrating cavern development opportunities with other surface and subsurface developments at early planning stage, such as under planning and land development studies with suitable SCVAs nearby. Relevant study scope should be included in the study brief for these studies where appropriate. Amd No. 6/2025

The CMP and its associated information is available on the website Amd No. 6/2025 below:-

https://www.cedd.gov.hk/eng/our-projects/topics-in-focus/index-id-27.html

Amd No. 6/2025

1.4.8 Building Information Modelling

DEVB TCW Nos. Amd No. 1/2025 8/2021 and 1/2025 Amd No. 1/2025 set out the policy and requirements on the adoption of Building Information Modelling (BIM) technology. The use of BIM uses in different project stages shall be observed and followed.

1.5 CONSULTATION WITHIN GOVERNMENT

During all stages of planning a project, the relevant Government departments and offices should be consulted to obtain comments and agreement to the proposals, and to ensure smooth co-ordination.

The following list, which is not necessarily exhaustive, is given for general guidance:

Advisory Committee on the Appearance of Bridges and Associated Structures (ACABAS)	- on aesthetics, visual and greening of highway bridges and associated structures (See ETWB TCW No. 36/2004).

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Agriculture, Fisheries and Conservation Dept (AFCD)	- if vegetation inside Country Parks and Special Areas under the Country Parks Ordinance, Government woodlands established by Civil Engineering and Development Department around New Towns, vegetation on Systematic Identification of Maintenance Responsibility of Slopes are involved and on matters related to ecological conservation, and details over ecological impact assessment such as ecological important streams/rivers, etc where necessary.
Antiquities and Monuments Office (AMO) of DEVB	- if structures, objects or areas of historical and archaeological interests are affected.
Architectural Services Dept (ArchSD)	- on aesthetics design of ancillary buildings in engineering projects, other than highway bridges and associated structures, and on fixed items which are provided for leisure and amenity or the like purpose (see ETWB TCW No. 8/2005).
Civil Aviation Dept (CAD)	- if Hong Kong International Airport is affected.
Development Bureau, Greening, Landscape and Tree Management Section (GLTM Section)	- on overall greening issues for strategic projects relating to preservation of trees and landscape including greening of bridges, site coverage of greening for building projects, allocation of space for greening on roads etc.
Development Offices, Civil Engineering and Development Dept (CEDD)	- on planning, landscape and project liaison matters, and matters related to infrastructure works for New Towns and major development areas. - on the greening theme and palette of plant species developed under the district-based Greening Master Plans.
District Lands Offices (DLOs), Lands Dept (LandsD)	- on all land and land-related matters.
District Offices (DOs), Home Affairs Dept (HAD)	- on matters which affect the public interest at large and on matter of grave removal.

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Drainage Services Dept (DSD)	-	on matters related to temporary flow diversion and temporary works affecting capacity in stormwater drainage system, matters which involve or affect existing or proposed drainage and sewerage facilities, or which will alter the flow regime of a drainage basin, particularly in flood prone areas and also on matters related to DIA and Blue-Green Drainage Infrastructure (see ETWB TCW No. 5/2005, 2/2006 and DEVB TCW No. 9/2020), Drainage Reserves and flood relief paths.
Electrical and Mechanical Services Dept (EMSD)	-	if major mechanical and electrical installations are involved.
Environmental Protection Dept (EPD)	-	on matters related to environmental and pollution aspects, waste treatment and disposal, existing or proposed sewerage facilities, potentially hazardous installation consultation zones and landfill gas consultation zones and also on matters related to EIA (see Appendices 1.8, 1.9 and 1.10 for details), dredging and disposal of sea mud (see paragraph 4.2.1 of Chapter 4 of the PAH), use of PFA as general filling material for reclamation (see WBTC No. 14/94), establishment of a site crusher (see also Section 9.12 of Chapter 5 and Section 21.25 of Chapter 7), and application of Environmental Legislation to the Government (see GC No. 12/2016), designation of C&D materials disposal sites (see DEVB TCW No. 6/2010), incorporation of information on C&D material management in PWSC papers (see Section 3.3(i) of Chapter 2 and Section 4.13 of Chapter 4) and Environmental Management on Construction Sites (see ETWB TCW No. 19/2005).
Food and Environmental Hygiene Department (FEHD)	-	on street cleaning and litter picking from amenity areas.
Fire Services Dept (FSD)	-	on clearances between highway structures and adjacent buildings and if fire service installations are involved, e.g. fire hydrants, emergency accesses, etc.

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Geotechnical Engineering Office (GEO), Civil Engineering and Development Dept (CEDD)	- if permanent geotechnical works (see ETWB TCW Nos. 29/2002 & 29/2002A), permanent tunnel works and associated temporary works (see ETWB TCW No. 15/2005), rock excavation works that involve blasting, or permanent foundation works in the Scheduled Areas in Northwest New Territories and Ma On Shan and the Designated Area of Northshore Lantau (see ETWB TCW No. 4/2004) are involved. The project office shall agree with the GEO the scope and extent of all necessary geotechnical investigations and studies to be carried out as part of the project and shall secure adequate funding for carrying out such works. The project office shall make due allowance in the project programme for these investigations and studies and for the time required to make submissions to the GEO for consultation and audit. For tunnel works, in particular, the project office or its consultants shall consult Hong Kong Geological Survey through CGE/Planning of the GEO to obtain geological advice, especially on identification of geological features. A maintenance agent should be identified for each geotechnical feature at an early stage. The project office shall seek comments from GEO to enhance the cost-effectiveness of permanent geotechnical works in capital works projects (see DEVB TCW No. 3/2018).
Government Property Agency (GPA)	- on matters related to joint-user offices and quarters, management and use of government properties and sites, optimisation of site utilisation for capital works projects (see FC No. 4/2017).
HyD and LandsD	- if railway reserves or proposals are affected.
Hong Kong Police Force (HKPF)	- on all traffic control aspects.
Hospital Authority (HA)	- if hospital facilities or proposals are affected.
Housing Dept (HD)	- if public housing proposals are affected.

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Landscape Division of Highways Dept (HyD)	- For natural vegetations, tree preservation and landscape works within the boundary of expressway and on SIMAR slopes maintained by HyD.
Leisure and Cultural Services Dept (LCSD)	- on matters related to natural vegetations and landscape works and also on matters related to registration and preservation of trees (See DEVB TCW No. 4/2020 and DEVB TCW No. 5/2020), heritage (See DEVB TCW No. 1/2022), amenity, civic, community and recreational facilities etc.
Lighting Division, HyD	- if street lighting installations are involved.
Marine Dept (MD), and Port Works Division of CEDD	- if marine facilities are affected, and if reclamation works are involved and also on matters relating to Marine Traffic Impact Assessment.
Marine Fill Committee (MFC) and Public Fill Committee (PFC), CEDD	- on matters related to management of construction and demolition material (C&DM), fill management (see WBTC No. 12/2000 & paragraph 4.2 of Chapter 4 of the PAH) and reclamation works requiring dumping grounds and filling by using surplus C&DM or by using borrow areas (see WBTC Nos. 2/93 & 2/93B, DEVB TCW No. 6/2010 & paragraph 4.1.3 of Chapter 4 of the PAH) and also on matters related to the use of public fill in reclamation and earth filling projects (see WBTC Nos. 4/98 and 4/98A), on-site sorting and temporary storage of C&D materials (see ETWB TCW No. 19/2005) and on establishment of a site crusher (see also Section 9.12 of Chapter 5 and Section 21.25 of Chapter 7).
Mines Division, Geotechnical Engineering Office (GEO), Civil Engineering and Development Dept (CEDD)	- if transport, storage and use of explosives are involved; or existing quarries in operation (Anderson Road Quarry and Lam Tei Quarry) may be affected.
Planning Department (PlanD)	- on all major projects of strategic planning importance such as major port facilities, major highway and drainage projects. For projects at the district level, the relevant District Planning Office should be consulted. - Site search for all new land development projects (see DEVB GC No. 1/2016). Amd No. 6/2025
Property Vetting Committee, ArchSD	- on matters of Schedule of Accommodation for specialist/ departmental buildings.

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Railway Development Office, HyD	-	if existing railway projects are affected and on all railway matters.
Regional Office of Highways Dept (HyD)	-	consultation with Regional Office of HyD for the Utility Management System where road openings or closures are proposed.
Regional Offices and Bridges and Structures Division, HyD	-	on matters involving or affecting proposed or existing public roads, tunnels and associated structures.
Research & Development Division, HyD	-	on matters involving design of highway pavement.
Security Bureau, Permanent Secretary for Security	-	if military land/property is affected, or on security measures for Government installations.
Sub-Committee on Cavern Development (SCCD)	-	on matter related to rock cavern development or subject to the vetting mechanism as stipulated in DEVB TCW No. 2/2024 Amd No. 6/2025.
Survey and Mapping Office (SMO) of Lands Dept (LandsD)	-	on provision and collation of land survey and mapping data (see paragraph 5.4.3 of Chapter 3 of PAH), on development of BIM Data Repository (see DEVB TCW No. 2/2021) and on preservation of survey monuments and marks (see DEVB TCW No. 5/2019)
Sustainable Development Division under the Environment Bureau	-	on application of sustainable assessment system on major programmes which may bring about noticeable or persistent implications on the economic, environmental and social conditions of Hong Kong.
Traffic Engineering Divisions, Transport Dept (TD)	-	on traffic matters, traffic aids, road alignment and layout generally and also on matters relating to Land Traffic Impact Assessment and Tramway.
Transport Operations Divisions, TD	-	if public transport is likely to be affected.
Water Supplies Dept (WSD)	-	on matters related to water supply, or if water gathering grounds, waterworks reserves and waterworks installations are affected and also for incorporation of waterworks into roadworks contracts (see Appendices 1.11 and 1.12 for details).

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Other departments, offices and divisions	- if their areas of responsibility are affected by the project, or if they will be responsible for the management and/or maintenance of the works when completed.

1.6 CONSULTATION WITH DISTRICT COUNCILS AND OTHERS

1.6.1 Consultation with District Councils (Ref.: ETWB TCW No. 4/2006 and Financial Circular No. 3/2011)

It is advisable that public works projects are presented to the relevant District Council and / or its committees, e.g. Transport & Traffic Committee, Environmental Improvement Committee etc., when it is considered appropriate by the project office/division and after consultation with the relevant District Office and/or the appropriate Development Office. For projects in rural areas, District Councils quite often require prior consultation with Rural Committee(s) concerned, and consultation with Heung Yee Kuk or major local interested parties may also be required as advised by the District Officer. Such presentations should be made after the proposals have been circulated and agreed within Government departments/offices/divisions. Normally for a works project, consultations will be carried out:

(a) on the completion of the feasibility study,
(b) on completion of EIA, TIA, DIA, HIA and other review studies,
(c) before gazetting projects under the Foreshore and Sea-bed (Reclamations) Ordinance and Roads (Works, Use and Compensation) Ordinance, Water Pollution Control (Sewerage) Regulation and Lands Resumption Ordinance.
(d) before tender invitation on related planting and associated landscape works with an estimated value exceeding $10M, see DEVB TCW No. 5/2017.

However, the project officer/division may seek consultation with District Councils at early planning stage for sensitive project with social impacts.

1.6.2 Consultation with Others

Departments should take into account relevant views collected from various sectors during public consultation on Policy Address and Budget for the works in the coming fiscal year when planning related projects.

It is also advisable to conduct early consultation with the industry stakeholders during the project planning stage to gauge their views on the project, through meetings and/or focused dialogues with contractors /consultants representatives and associations.

Departments may consider conducting market research, as appropriate, at various stages of the project cycle with a view to having a better understanding of the services, technology and potential bidders available in the market. Please refer to Appendix 1.7.

Early consultation with the following bodies, as appropriate, is advisable when planning a project:

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Advisory Council on the Environment (ACE)	-	if the project is environmentally and/or ecologically sensitive.
Airport Authority	-	if Hong Kong International Airport is affected.
Bus companies	-	if bus routes and/or bus stops are affected.
Ferry companies	-	if ferry piers and/or ferry routes are affected.
Harbourfront Commission	-	on planning and development of harbourfront.
Hong Kong Tramways Co. Ltd	-	if tramways are affected.
Mass Transit Railway Corporation Ltd (MTRCL)	-	if any of the railway lines in the Hong Kong Special Administrative Region, including those new railway lines and extension lines are affected (See DEVB TCW No. 1/2019 for details).
Rehabilitation Associations	-	if the project requires to gather and address the user's views on facilities for the Disabled.
Rehabilitation Advisory Committee Sub-Committee on Access	-	(i) the project has implications to the policy of access of disabilities (See LWBC No. 1/2011 for details); and (ii) Road/footbridge projects that will remove the existing access for Persons with Disabilities (PWDs) without reprovisioning or with re-provisioning in other manner, or where some of the facilities for PWDs will be of non-standard design.
Town Planning Board (TPB)	-	if the project will have major planning implications (to be advised by PlanD on the requirement for TPB consultation).
Utility undertakers (including CLP Power Hong Kong Ltd., Hongkong Electric Co., Hong Kong & China Gas Co., Pacific Century Cyber Works – HKT Ltd., Hong Kong Cable Television Ltd., Hutchison Global Communications Ltd., New World Telecommunications Ltd., Hong Kong Broadband Network Ltd. etc.)	-	if major utilities facilities / installations proposals are affected. if utility supply is required to the project or other developments in connection to the project.

The project offices should not commit a third party to performing a task, unless the third party's prior consent had been obtained, in order to avoid creating potential financial

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liabilities for the Government (See S for W's memo WB(CR) 172/59(2002) Pt 1 dated 8.5.2002 for details).

1.7 INTERNAL COMMUNICATION FOR MEGA-SIZE PROJECTS

For a mega-size project, there could be several project teams involved, each handling only part of the project. To guard against any possible breakdown in communication, the officer in charge of the project office, who takes up the overall responsibility for the project, should clearly define the duties and responsibilities of each project team. In addition, he should set up channels, such as regular meetings, to ensure effective communication is achieved amongst the project teams.

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2. POLICIES, STANDARDS AND GUIDELINES

2.1 GENERAL POLICIES

All engineering projects are formulated and approved in accordance with the policies set down by the Government through individual policy committees or on recommendations of the appropriate advisory committee.

The following list, which is not necessarily exhaustive, is given for guidance:

Land development and Reclamation	-	Committee on Planning and Land Development (CPLD) Antiquities Advisory Board Land Acquisition and Clearance Committee (LACC)
Management of Construction and Demolition Materials	-	Public Fill Committee (PFC)
Marine Works	-	Ports Committee Standing Committee on Waterborne Transport (SCWT)
Port development strategy and programming	-	Port Progress Committee (PPC) Hong Kong Port Development Council Port Co-ordination Committee (PCC)
Potentially hazardous installations	-	The Co-ordinating Committee on Land-use Planning and Control relating to Potentially Hazardous Installations (CCPHI)
Preventive or remedial works to existing slopes	-	Landslip Preventive Measures Committee (LPMC)
Reclamation work involving marine fill and disposal	-	Marine Fill Committee (MFC)
Road projects	-	Transport Policy Co-ordinating Committee (TPCC) Transport Advisory Committee (TAC) Standing Conference on Road Use (SCRU) Advisory Committee on the Appearance of Bridges and Associate Structures (ACABAS) Antiquities Advisory Board Works and Maintenance Committee on Greening (WMCG) – for cases that deviate from requirements stipulated in relevant Technical Circulars.
Rock Cavern Development	-	Sub-Committee on Cavern Development (SCCD)

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Sewage Treatment / Disposal and Environmental issues and mitigation measures	-	Advisory Council on the Environment (ACE)

The terms of reference and composition of some of these permanent committees and bodies can be found in "Civil and Miscellaneous Lists" published by the Government of the Hong Kong Special Administrative Region.

2.2 GENERAL STANDARDS

The basic planning standards for development projects are given in the "Hong Kong Planning Standards and Guidelines" (HKPSG) which is mainly concerned with policy guidelines, provision standards, location factors and site requirements. The HKPSG are applicable to the three tiers of land use planning in the Hong Kong Special Administrative Region, namely territorial, sub-regional and district. They are also used in the preparation of development statements and planning briefs. Local variations to the standards and guidelines set forth may be necessary having regard to such factors as:

(a) socio-economic structure of the population,
(b) population density,
(c) location, and
(d) topography.

Wherever modifications to the stipulated standards, dimensions, site areas and location factors are deemed necessary, the relevant planning authority, the Architectural Services Department and the client department should be consulted and agreement sought as appropriate.

For detailed project planning and general design standards, reference should be made to the following:

PWP projects	-	Project Administration Handbook for Civil Engineering Works
Traffic, roads and highway structures	-	Structures Design Manual for Highways and Railways Transport Planning & Design Manual Hong Kong Planning Standards and Guidelines, Chapter 11, Section 7 – Use of Land Beneath Flyovers and Footbridges
Highway projects	-	Highways Department Road Notes Highways Department Guidance Notes Pavement Design Manual Public Lighting Design Manual Highways Department Standard Drawings Highways Department Guidelines Highways Department Technical Circulars Code of Practice for the Lighting, Signing and Guarding of Road Works

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Sewerage, stormwater drainage, sewage treatment and disposal	- DSD Practice Notes, Stormwater Drainage Manual and Sewerage Manual DSD Standard Drawings Guidelines on Aesthetic Design of Pumping Station Buildings
Port works	- Port Works Design Manual CEDD Standard Drawings Control of wave reflection in Victoria Harbour
Geotechnical works	- A list of technical guidance documents used by the GEO, CEDD as defacto geotechnical standards is given in Technical Guidance Note No. 1 (TGN 1) and CEDD Standard Drawings
Waterworks	- WSD Project Management Manual WSD Civil Engineering Design Manual WSD Project Administration Manual Hong Kong Waterworks Standard Requirements WSD Standard Drawings WSD Technical Notes WSD Departmental Instructions A note on Unit Cost Ready Reckoner System WSD Guidance Notes / Manual of Mainlaying Practice
Environmental protection	- Environmental Protection Department (EPD) Technical Memorandum on Environmental Impact Assessment Process EPD Professional Persons Environmental Consultative Committee Practice Notes (ProPECCPNs) EIAO Guidance Notes
Greening	- Hong Kong Planning Standards and Guidelines, Chapter 4, Section 2 – Greening WBTC No. 25/93 – Control of Visual Impact of Slopes WBTC No. 17/2000 – Improvement to the Appearance of Slopes DEVB TCW No. 2/2012 – Allocation of Space for Quality Greening on Roads DEVB TCW No. 3/2012 – Site Coverage of Greenery for Government Building Projects DEVB TCW No. 6/2015 – Maintenance of Vegetation and Hard Landscape Features DEVB TCW No. 5/2017 – Community involvement in Planting Works DEVB TCW No. 1/2018 – Soft Landscape Provisions for Highway Structures DEVB TCW No. 4/2020 – Tree Preservation

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DEVB TCW No. 5/2020 – Registration and Preservation of Old and Valuable Trees
HyD TC No. 10/2001 – Visibility of Directional Signs
GEO Publication No. 1/2011 – Technical Guidelines on Landscape Treatment for Slopes (2011)
Greening Master Plans, CEDD
HQ/GN/15A Guidelines for Greening Works along Highways
DEVB Cyber Manual for Greening
DEVB website of Greening Landscape and Tree Management Section - https://www.greening.gov.hk/en/home/index.html

2.3 REPORTS ON MAJOR STUDIES

Much useful information is contained in major study reports which have been used as a basis for formulating general policy and development guidelines for the Territory as a whole. A comprehensive listing of these reports is available in departmental libraries and in the TLB and DEVB Library.

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3. PRELIMINARY STAGE

3.1 PRELIMINARY PROJECT APPRAISAL

3.1.1 Project Definition Statement (PDS)

In the preparation of a PDS, the following requirements should be observed:

(a) the need for the project has been identified and justified,
(b) the proposed project will meet the need in full or in part,
(c) the proposed project will not duplicate or be in conflict with any other existing or planned projects, and
(d) the proposed project is in line with approved policy and approved plans.

3.1.2 Technical Feasibility Statement (TFS)

The works department will carry out a TFS after an approved PDS is obtained.

A completed TFS will need to be submitted to SDEV for approval.

A TFS should contain the following information:

(a) Project scope and description with preferred development option and outline layout plan.

(b) Land requirements stating the location, present zoning and whether planning permission amendment to the existing zoning is required. Also, the advice from Director of Lands on whether clearance/land resumption is required and the estimated time for site hand-over should be included in the TFS (see ETWB TCW No. 27/2003 for details and DEVB GC No. 1/2016 for new projects that required site search and reservation).

(c) Development constraints. This should include, but not limited to, the following major issues:

(i) Geotechnical aspects

Include a preliminary geotechnical appraisal (PGA) of the site in order to identify geotechnical constraints and risks affecting cost and programme, and man-made slopes and retaining walls which would affect or be affected by the project, and state whether geotechnical studies are required. The project office shall approach the GEO for advice at an early stage of the preparation of the TFS that contains any geotechnical content. This includes advice on the control and use of explosives, when blasting is anticipated, e.g. major site formation or tunnel works with substantial excavation in rock.

The project office shall seek comments from the GEO on the draft Consultancy Brief for Feasibility Study for a new project, which may

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require blasting works. Paragraph 8 of Appendix 1.3 provides guidelines on the preparation of the PGA and TFS for projects involving blasting.

Agreement should be reached with the GEO to define the extent of man-made slopes and natural hillsides to be investigated and studied in the project, and the extent of all necessary geotechnical investigation and studies to be carried out as part of the project. Only a desk study of available information is expected to be carried out for the preliminary geotechnical appraisal. The Hong Kong Geological Survey maps and memoirs, Geoguide 2 and the relevant geotechnical guidance documents listed in GEO Technical Guidance Note No. 1 (TGN 1) provide useful information for planning purposes. Reference should also be made to Appendix 1.4, TGN 1 and GEO Report No. 138 for guidance on dealing with natural terrain hazards.

In preparing the PGA for projects involving tunnel works and in undertaking any supporting engineering feasibility studies (EFS), the project office or its consultants shall consult the Hong Kong Geological Survey through CGE/Planning of the GEO to obtain general geological advice, especially on identification of geological features. The EFS and the PGA of the project should cover geotechnical considerations such as identification of problematic ground, formulation of preliminary ground models, including the hydro-geological models, and preliminary assessment of geotechnical risks (both during construction and in the long-term when the facility is operating).

The project office shall conduct a risk assessment to determine whether the proposed tunnel works under the project would pose a significant risk to public life and property and include in the EFS and PGA the possible scope and extent of site investigations and geotechnical studies required to reduce uncertainties and risks.

The project office shall consult the GEO, take into account GEO's response in finalising these documents and submit a copy of the final versions to the GEO. GEO Technical Guidance Note 25 and Geoguide 2 provide useful information on site investigation for tunnel works and geotechnical risk assessment for tunnel works, respectively, and requirements relating to the geotechnical control for tunnel works are given in ETWB TCW No. 15/2005.

For foundation works within the Scheduled Areas in Northwest New Territories and Ma On Shan, and in the Designated Area of Northshore Lantau, GEO Technical Guidance Notes 12 and 26 provides useful information and guidance, and ETWB TCW No. 4/2004 gives the requirements in relation to geotechnical control (Requests for geotechnical advice/assistance, including that on the engineering feasibility study, if required, should be directed to CGE/Geotechnical Projects of the GEO). The project office shall submit a copy of the risk assessment related to tunnel works under the project to the Deputy Head (Mainland) of the GEO for record.

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(ii) Disposal of dredged marine mud

For projects which involve the marine disposal of dredged/excavated sediment, the management framework for such sediment should be considered at an early stage. It would be beneficial to consult the Marine Fill Committee (MFC) to identify the principles for mud dredging/excavation proposals and the need for disposal sites that are required by the project. See paragraph 4.2.1 of Chapter 4 of the PAH and DEVB's memo ref. () in DEVB(W) 515/83/04 dated 6.10.2010 for details.

(iii) Management of Construction and Demolition (C&D) Material

Early consideration should be given to minimise C&D material generation and to reuse inert material generated including rock as far as possible. For reclamation and earth filling projects, the maximum use of public fill should be identified and advice from the Public Fill Committee (PFC) should be sought if necessary. For projects which involve disposal of public fill, the PFC should also be consulted on the availability of suitable public filling facilities. See WBTC Nos. 2/93, 2/93B, 4/98, 4/98A, ETWB TCW No. 19/2005 and DEVB TCW No. 6/2010, Section 9.12 of Chapter 5, Section 21.25 of Chapter 7, and paragraph 4.1.3 of Chapter 4 of the PAH for details.

(iv) Drainage aspects

Preliminarily assess the likely impacts of the project on existing and planned drainage systems, natural streams and rivers both during the construction phase and in its completed state. Early notification to DSD to determine the necessity of Drainage Impact Assessments may be required. See ETWB TCW No. 2/2006 for details. The project office should avoid any potential impact on natural streams/rivers, particularly the Ecologically Important Streams as advised by AFCD from time to time. If this is unavoidable, the project office should assess the feasibility of appropriate measures to minimize or compensate such impacts. See ETWB TCW No. 5/2005 for details.

(v) Traffic impact

Assess the major traffic impact due to construction of the project. For transport infrastructure projects, a preliminary investigation of the adequacy of the proposal in the Project Definition Statement from traffic and transport view point and any other alternative proposals should be included. Early liaison with TD on Traffic Impact Assessment may be required.

(vi) Air Ventilation

To check the requirements for air ventilation assessment in accordance with HPLB & ETWB TCW No. 1/06.

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(vii) Interface problems

Anticipated major interface problems should be identified as early as possible. This is particularly important for projects which would have significant interface with other existing and/or planned projects, either carried out by Government or by a third party.

(viii) Site utilization

To seek the advice of the Leasing and Commercialization Division of GPA on the site utilization assessment in accordance with FC No. 4/2017. For any doubt on site utilization issues in a works project, subject officer may contact the Assistant Technical Secretary of GPA at tel. 3842 6892 for advice.

(ix) Other considerations

If necessary, include other development or engineering constraints that could be identified at this early stage and that may have significant cost and/or programme implications to the project. These may include project-specific issues or general technical matters, such as major impacts on waterworks installations, future installation of utility services, major utility diversion, substantial tree felling/preservation of trees of significant ecological/cultural value, preservation of survey monuments/marks, control of landscape and visual impact of the proposed works, i.e. slopes, roadside structures, scenic features etc or the use of hand-dug caissons and a summary of all further studies needed to be carried out when the project is upgraded to Cat. B.

(d) Environmental Considerations. The works department, in consultation with DEP where necessary, should categorize the project as to whether it is a designated project or not under the Environmental Impact Assessment Ordinance (EIAO). For designated projects under the EIAO, the works departments are required to either (a) conduct an EIA study in accordance with the Technical Memorandum on EIA Process or (b) seek permission to apply directly for an Environmental Permit (See Appendices 1.8, 1.9 and 1.10 and Paragraph 4.1.3 for details). For non-designated projects, the works department's undertaking should be included to either provide the mitigation measures to implement standard pollution control measures during construction or to carry out a Preliminary Environmental Review of the project, as appropriate. See also WBTC No. 4/97 - Guidelines for Implementing the Policy on Off-site Ecological Mitigation Measures and GC No. 12/2016 - Application of Environmental Legislation to the Government. During the course of project implementation, the works agent should take a proactive role in protecting the environment.

(e) Vetting Mechanism involving Strategic Cavern Areas. Proponents of new government Amd No. 6/2025 projects should take note of the CMP in the early planning stage (e.g. TFS stage) if their development proposals fall wholly or partly within the SCVAs. Possible impact on the cavern development potential

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of the SCVAs, in particular along those potential portal locations, should also be considered and the layout of the development proposals should be adjusted to avoid the encroachment as far as possible. When such encroachment and/or impact on potential portal locations is/are unavoidable, the development proposals should be submitted for vetting by the SCCD as the first stage submission. The SCCD will provide the project proponents with advice on the potential conflicts and, where appropriate, recommendations on suitable provisions that could safeguard the development potential and optimise the use of the SCVAs. The project proponents should review the possibility of minimising or avoiding the conflicts by adjusting the conceptual layout, or incorporating the recommended provisions to enhance the use of the SCVAs, which is still flexible at the early project delivery stage. A summary of the SCCD's advice should be provided in the TFS, with a copy of the SCCD's reply attached as an appendix (see DEVB TCW No. 2/2024 Amd No. 6/2025).

(f) Project Programme. Attach a Gantt chart covering major activities from receipt of the PDS to physical completion, highlighting the critical path. Where an approved Schedule of Accommodation (SoA) is required for the implementation of the project, a key milestone "SoA Submission and Approval" should be included in the Gantt chart. Please refer to paragraph 4.2.6 of Chapter 1 of the PAH for details of the milestone.

(g) Capital Cost Estimates. To prepare a preliminary project estimate at constant prices with rough breakdown into categories of design and related services (including consultancy fees and resident site staff cost), site investigation, construction works, energy efficient features and/ or renewable energy technologies, green government buildings as described in DEVB TC No. 2/2015 and other costs not covered by project main contracts, contract contingencies and project contingencies.

(h) Management of Contaminated Site. The likelihood of encountering contaminated soil on a site should be identified at the outset of the TFS. This can be based on tracing the land-use history of the site. Where contaminated soil is encountered, the appropriate assessment and remediation measures should be considered in accordance with the "Guidance Note for Contaminated Land Assessment and Remediation" issued by EPD. As a general principle, project proponents should minimise the disposal of contaminated soil by maximising its reuse as far as possible. Owing to the limited capacity of landfills, landfill disposal should be considered as a last resort. Where landfill disposal of the contaminated soil is considered unavoidable, project proponents should consult EPD at an early project planning stage and near the time of implementing the project to establish the amount of contaminated soil that can be accepted for disposal at landfills and a tentative disposal programme as far as possible. Contaminated soil should not be disposed of at public fill reception facilities or sorting facilities (See also Paragraph 3.5.4 of Chapter 3).

(i) Heritage Considerations. The works department should confirm to the Antiquities & Monuments Office (AMO) (i) whether there is/are any declared monuments, proposed monuments, sites and buildings graded by the Antiquities Advisory Board, sites of archaeological interest or Government historic sites identified by AMO within or in the vicinity of the project boundary; and (ii)

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whether a Heritage Impact Assessment for the project is required to be conducted. (See DEVB TCW No. 1/2022 for details).

(j) Greening and Landscape Considerations. The consideration of adequate provision of space for quality greening in form of utility free planting zone for roadside and median planting on new at-grade roads (see DEVB TCW No. 2/2012), the site coverage of greening for buildings (see DEVB TCW No. 3/2012), the quality of landscape design in an integrated approach (see Integrated Landscape Design Framework, DEVB) and tree preservation (see DEVB TCW No. 4/2020) should be confirmed at the onset of the TFS. Reference should be made to the Greening Master Plan of each district, as developed by CEDD, as appropriate in plant selection. The project office should check the extent of vegetation to be affected and ascertain the trees to be preserved in situ, felled or transplanted based on the ecological, aesthetic, historical and cultural value, the transplantablity, survival rate and long term health condition of the trees, space for compensatory planting, and cost effectiveness. Special attention should be paid to the registration and preservation of Old and Valuable Trees (OVTs) (see DEVB TCW No. 5/2020) and trees such as stone wall trees (see Appendix 16 - Management Guidelines for Stonewall Trees of Handbook on Tree Management, DEVB). The provision of adequate space for healthy tree growth both above and below should be confirmed based on professional advice on landscape/arboricultural. The technical aspects of tree preservation including the change in level should be assessed with adequate professional advice.

Whenever waterworks are involved in projects that are carried out in association with new town or strategic growth areas (SGA) developments, its placement in the PWP shall follow the model as illustrated in Appendix 1.12 (Annex A). This is to determine how these waterworks projects should be grouped together with the new town or SGA works as a conglomerate PWP item.

3.2 FEASIBILITY STUDY

3.2.1 Need for a Feasibility Study

It is possible that a TFS or other planning process may conclude that a further wider feasibility study be undertaken prior to proceeding to preliminary design. Such feasibility studies may cover various aspects of engineering development, such as land development, transportation and building development.

Major proposals for land development, e.g. reclamation, have to be considered at the planning stage by the Committee on Planning and Land Development (CPLD) before a commitment to undertake a major planning or development study is entered into. A submission to CPLD explaining the purpose and the need for the study is required.

In conducting planning and land development studies for sites with suitable SCVAs nearby, it might be beneficial to consider the strategic benefits and synergy effect of integrating cavern development opportunities with other surface and subsurface developments Amd No. 6/2025 (see DEVB TCW No. 2/2024 Amd No. 6/2025).

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If major transportation planning considerations are also involved, the submission must be considered by the Development Bureau.

The need for a feasibility study may also arise when it is required to study the various options for implementing certain Government policies. As an illustration, it may be that a certain area has been earmarked for various types of future land development in an Outline Development Plan. At a later stage, a change in Government development strategy may require that the development potential for an increased population in this area be examined. A feasibility study will then need to be undertaken to estimate the development potential of the area.

Instead of a clearly defined stage, many feasibility studies form part of an on-going process from the very early stage of planning of a project. The drafting of an Outline Development Plan should always take into account the engineering feasibility of the proposals.

3.2.2 Feasibility Study In-house

Feasibility studies are usually undertaken in-house if the necessary expertise and resources are available. The activities could include the collection of background information such as maps, plans and previous investigation results, planning and design considerations, consultation with other Government departments/offices and/or outside bodies, estimation of costs and revenue, preparation of implementation programmes, etc.

3.2.3 Feasibility Study by Consultants

Consultants may be engaged to undertake a feasibility study on an important or a major development project if:

(a) The necessary expertise cannot be found in-house, and/or
(b) A team of multi-disciplinary professionals are involved, and/or
(c) Sufficient manpower resources are not available in-house to carry out the study.

For projects managed by CEDD, studies are normally carried out by consultants. Reference should also be made to "Handbook on Selection, Appointment and Administration of Engineering and Associated Consultants" (EACSB Handbook), DEVB TCW No. 5/2018 – New Policy on Selection, Appointment and Management of Consultants under the Purview of the EACSB and WBTC Nos. 13/2001 & 13/2001A - Quality Management System Certification of Consultants and Contractors for Public Works Administered by the Works Group of Departments.

Studies undertaken by consultants may be broadly classified into two types:

(a) A feasibility study on a proposal that does not fall within the scope of an existing item in the PWP. Such a study normally includes investigating the feasibility of a development or a project, considering alternatives, and searching for the best method of implementation.

(b) A review study on a project to update the previous feasibility studies, ascertaining data integrity and updating requirements and standards. There is usually little doubt about the feasibility of the project. Such review studies will normally be undertaken to find the best method for implementing the project.

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Consultancies usually begin with a Brief to the consultant stating the purpose and scope of the study, and conclude with a final report. Preliminary, interim or draft reports are normally compiled during the study and circulated to relevant Government departments/offices and outside bodies for comments. Circulation of reports to outside bodies during the study has to be carefully managed in light of the sensitivity of study findings that are still under the Government's consideration. The studies should be co-ordinated through a Steering Group chaired by the project office, and composed of representatives from selected Government departments, other parties concerned and the consultant, which meets periodically to review progress, address problems and offer advice for progressing the study to its conclusion. Methods of funding feasibility studies are described in Chapter 2.

3.2.4 Feasibility Study Report

The Feasibility Study Report should contain the following information:

(a) The scope, purpose and background of the study. In the case where a feasibility study is undertaken by a consultant, such information is normally included in the Brief.

(b) An executive summary of the study (in both English and Chinese).

(c) Planning considerations, such as consideration of different options, public acceptance and problems at construction stage, population predictions, schedule of land use, marine impact, clearance/resumption requirements, land acquisition, re-provision of existing facilities, and any related social or financial implications.

(d) Engineering considerations including consideration of different options.

(e) Traffic and transportation considerations, such as an adequate road network, traffic impact assessment for different stages of the project, effect on external links, public transport requirements and options.

(f) Assessment of drainage impacts of the project, and recommendations of measures to mitigate these impacts and on appropriate land reserve required for drainage facilities and mitigation measures.

(g) Greening and landscape considerations including the provision of adequate utility free planting zone for roadside and median planting, site coverage of greening for buildings, trees for preservation, adequate means and space for tree preservation, sufficient space for compensatory planting, transplantability of trees, layout to cater for tree preservation, etc.

(h) Recommendations for the execution of the project, including programme for implementation.

(i) Estimates of costs and revenues.

(j) Assessment of environmental impact at different stages of project including but not limited to air, noise, water waste, ecological, visual and landscape aspects,

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and recommendations of appropriate mitigation, environmental monitoring and audit measures. Viability of alternatives should also be considered to avoid and minimize impacts.

(k) Sustainability assessment may be required for territory-wide or strategic studies and major projects.

(l) Alternative or contingency plans.

(m) Report drawings.

The draft, preliminary and interim reports produced throughout the study are circulated to relevant Government departments/offices and outside bodies for comments.

3.3 REVIEWS

The implementation of new town developments and major projects are usually in phases and may take more than 10 years from commencement to completion. Different phases of implementation are treated as different projects. Separate PDS and TFS have to be completed before funds can be allocated for detailed design. In the event that there is a long time lapse between the feasibility study and the detailed design, a review on the previous findings and the current situation together with ground investigation, EIA, TIA, HIA and DIA etc. should be carried out before commencing the detailed design of works in subsequent phases.

If the preliminary design of a project was carried out by consultants or entrusted works agents, it should be reviewed before proceeding with the detailed design. See ETWB TCW No. 19/2003 for details.

3.4 CLIENT-INITATED CHANGES FOR CAPITAL WORKS PROJECT

ETWB TCW No. 30/2003 sets out the control of changes in capital works projects initiated by Client Policy Bureaux, Client departments or subvented bodies, which involve a change in the policy, user requirements or timing of the project from those originally stated in the PDS/TFS for Category B and Category C projects, or PWSC submissions not involving an increase in the Approved Project Estimates. It also contains a flow chart to illustrate the necessary procedure for easy reference.

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4. STAGES IN THE PUBLIC WORKS PROGRAMME

4.1 PWP CATEGORY C STAGE

4.1.1 Definition of Project Requirements

A project is included in Category C of the PWP on completion of a TFS which is approved by SDEV. Through the TFS, the requirements of the project are defined and a rough order of cost, together with the technical feasibility of the project, is identified. The extent of works as well as a programme for implementation are also defined.

All Category C projects in the PWP, except subvented projects, must be registered in the PWPIS, which is administrated by the Public Works System Administration Section of DEVB. Works department is responsible for recording and updating of project and contract data in the PWPIS in respect of programme, estimates, expenditure and other important information. Project officers should follow the data administration procedures in PWPIS Data Administration Manual, which is issued by DEVB and posted on PWPIS web page.

4.1.2 Consideration of Resources

Under normal circumstances, the works department and enabling departments should have no works commitment at this stage. Consideration should, however, be given to the availability of resources required to undertake the project prior to the inclusion of the project in the latest six-year Capital Works Reserve Fund Resource Allocation System (CWRF RAS) exercise, i.e. upgrading to Category B. In addition, the recurrent financial and staff implications of the project after completion should also be considered.

In special cases, where justified, SFST may agree to the employment of consultants to undertake a preliminary design for projects in Category C. Expenditure for these purposes should be dealt with either by part upgrading of the project to Category A or by charging the expenditure to the appropriate block allocation as a Category D item, if the expenditure is not more than $50M.

Should there be any change to the scope of a project after its TFS is completed and approved and/or is included in Category B, policy support should be obtained from the relevant Policy Bureau before seeking approval from DEVB.

4.1.3 Notification to EPD

Completion of the TFS will involve EPD and their comments on the project will form part of the documentation. With the EIAO coming into operation on 1 April 1998, it is necessary for a designated project to either (a) obtain an EIA study brief from EPD for the conduct of a EIA study in accordance with the Technical Memorandum on EIA Process followed by application for an Environmental Permit (EP) or (b) seek permission to apply directly for an EP (See Appendices 1.8, 1.9 and 1.10 for details) upon upgrading the project to Category B. Project profiles shall be submitted in both English and Chinese for application for an EIA study brief. For non-designated projects, the project proponents' undertaking should be included to either provide the mitigation measures to implement standard pollution control measures during construction or to carry out a Preliminary Environmental Review of the project as appropriate. The project proponent has an option to gazette a designated project

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in parallel with the EIA process as long as there are sufficient EIA findings to enable the project layout to be sufficiently determined before the full completion of the EIA process, thus shortening the overall pre-construction lead-time. See Appendices 1.8, 1.9 and 1.10 for details of necessary procedures required under the EIAO. During the course of project implementation, the works agent should take a proactive role in protecting the environment.

4.1.4 Preparation for the Resources Allocation Exercise (RAE)

All Capital Works RAE bids must be accompanied by a PDS and a TFS approved by SDEV. The policy bureau concerned will need to submit other information as set out in RAE call circulars, including for instance the recurrent implications arising from the proposed project. The policy bureau, after receiving returns from works departments, will prioritise the projects in the RAE. See FC No. 7/2017 - Capital Works Programme.

Under normal circumstances, the project in Category C will automatically be deleted from PWP if it is not upgraded within three years.

4.2 PWP CATEGORY B STAGE

4.2.1 General

Projects in Category C will compete for resources under the RAS. Successful projects will achieve Category B status. The works department should, in accordance with ETWB TCW No. 4/2006 and the supplementary guidelines "Timeframe for Resolution of Public Objections" issued by the DEVB at Appendix 1.5, carry out the planning and design works. It should be noted that works departments could discuss with the enabling bureaux/departments in respect of exceptional cases to shorten the normal processing time.

This is the stage when ground investigation, detailed planning and design, tender documentation and any necessary statutory procedures are carried out. Acquisition and clearance of the land required for the project, and allocation of the works area should be requested to tie in with the target start date included in the latest CWRF RAS programme.

Consultation with other departments on anticipated problems or requirements during construction should be made. Sufficient time should be allowed for obtaining DEP's approval of an EIA study report under the EIAO. Of particular importance is the timely gazetting and authorisation of Outline Zoning Plan (OZP), reclamations, roadworks and sewerage works under the Town Planning Ordinance, Foreshore and Sea-Bed (Reclamations) Ordinance, Roads (Works, Use and Compensation) Ordinance and Water Pollution Control (Sewerage) Regulation respectively.

A detailed estimate of the cost of the project should be prepared when detailed design is nearing completion. Where re-provisioning works for the existing installations are required, the project fund should cover the cost for the necessary re-provisioning works including any administrative costs, such as fees, expenses, etc. The estimate of recurrent consequences of the project should also be updated at this stage. (Note: agreement on the division of maintenance responsibility should be made at this stage.)

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For WSD projects, detailed planning which commenced upon inclusion of the project in Category C may continue in this stage and planning reports are produced. Ground investigation, detailed design and tender documentation etc., will be implemented in accordance with the programme set out in the planning report. The relevant WSD project vote should cover the cost for any new waterworks and/or improvements to existing waterworks (See Appendix 1.11 for details).

When a project is in Category B and it is planned to call tenders for the project in the next financial year, it will be necessary to include the project in the Draft Estimates for that year and the forecast information on consultancies or works tenders as mentioned in paragraph 1.3, where suitable.

When detailed design and tender documentation are substantially complete, legal procedures are cleared and the project is ready in every respect for tenders to be called, steps should be taken to upgrade the project to Category A.

4.2.2 Public Works Programme Information System (PWPIS)

All the data administration procedures are set out in the Data Administration Manual for the PWPIS. The project manager of every project is responsible for maintaining the updatedness of the data under the project in the PWPIS.

4.2.3 Consideration of Resources for Project Implementation (CEDD, DSD, HyD and WSD Projects)

Consideration should be given to the availability of staff resources to undertake detailed planning, design, and construction management, taking into account the urgency of the project and the proposed programme of implementation.

In cases where the necessary resources or expertise are not available in the works department, the employment of consultants to undertake the work may be considered, provided that the necessary financial resources can be found and the agreement of the head of department is sought. Entrustment of the project to an outside body (such as MTRCL) may also be considered where overall economy, urgency of completion and/or engineering constraints of the project justify this method of implementation. Prior approval from SFST is necessary before entering into any commitment with an outside body (See Chapter 2 for more details). Clear recommendations on proposals for employment of consultants or for entrustment should be made in the TFS.

4.2.4 Partial Upgrading for Consultant's Fees and Ground Investigation Costs (CEDD, DSD, HyD and WSD Projects)

Where the need to employ consultants to carry out detailed design and ground investigation on CEDD, DSD, HyD and WSD projects has been established, funds for these purposes can routinely be obtained from a separate Category D item if the total cost of the pre-construction works of the project is not more than $50M, or by part upgrading to Category A if such cost is more than $50M.

The same procedures apply to undertaking ground investigations for projects carried out in-house.

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4.2.5 Charging of Consultants' Fees for CEDD Projects

Detailed design for infrastructure works for New Towns and major development areas, and associated feasibility studies are normally undertaken by consultants. However, before making a decision to employ consultants, development offices should request relevant works departments to consider undertaking the project in-house in accordance with the planned programme. In the case of existing ongoing agreements with consultants, the fees for detailed design and investigation are charged to either a design and investigation item already in Category A of the PWP or to the relevant Category A project vote as appropriate. Depending on circumstances, a part of the relevant PWP item may be upgraded to Category A in advance of the main works to fund the consultants' fees for detailed design and ground investigation.

4.2.6 Preparation and Submission of the Schedule of Accommodation

For projects that involve the provision of specialist/ departmental buildings to accommodate operational staff, plant installations, storerooms etc., a SoA should be prepared by using the latest standard SoA form available at the SoA website in the Central Cyber Government Office Portal below and submitted to the Property Vetting Committee (PVC) by e-mail to obtain approval of the size of functional parts of the building.

http://gpa.host.ccgo.hksarg/schedule-of-accommodation.html

A specimen e-mail submission by the project Engineer (not the Consultant of the Project) to the Chairman, PVC is given at Appendix 1.1. The preparation of the SoA should normally be made in consultation with the works and maintenance departments, and the schedule should include, where required, the staff it is intended to accommodate in the building.

The draft SoA should be submitted to the PVC for vetting at least (i) nine months before the target tender invitation date of parallel tendering; or (ii) nine months before the target PWSC submission date, whichever is earlier. To allow sufficient time for PVC to vet and approve the SoA before proceeding with parallel tendering or seeking funding from Finance Committee, project proponents should plan in advance and adhere to the above timeframe of submitting SoA. They should ensure adequacy of the information contained in the SoA application and respond promptly to PVC's enquiries with a view to concluding the process as soon as possible within the specified timeframe. Incomplete information provided by project proponents, major/ frequent revisions of submitted SoA, and unduly long response time of project proponents may prolong the vetting timeframe.

In an exceptional case where a project proponent is unable to submit the SoA application by the stipulated timeframe, the project proponent concerned should alert PVC as soon as possible and provide explanations cleared by a directorate officer at D2 level or above, with a copy to the responsible officer of the respective policy bureau. Project proponents should be reminded that a case will not warrant special treatment unless justified.

The standard space entitlement for Government offices is set out on the Central Cyber Government Office Portal under Schedule of Accommodation of the Accommodation Regulations section. The project Engineer should refer to the said SoA website when preparing the draft SoA.

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4.3 PWP CATEGORY A STAGE

Projects in Category A of the PWP are normally funded by corresponding subheads in the Capital Works Reserve Fund and such funds are approved by the Finance Committee. The works department should ensure that all planning and design requirements, including the preparation of working drawings and contract documents, are complete, that the project site and works area (if required) are available, and that the necessary statutory procedures have been complied with. Once upgraded to Category A, the projects should be started and completed as soon as possible with minimum interruptions. It should be noted that only works falling within the scope of the project as set out in the approved PWSC paper may be undertaken.

Apart from projects that have been completed with account finalised, a PWSC paper, addressed to PWSC, copied to the DEVB and other relevant policy bureaux, is required for proposals to change the scope of the project. Works departments of the capital works projects will prepare draft PWSC papers to Client Policy Bureaux for their processing and copy to DEVB for comments. The policy bureaux will comment and revise the draft PWSC paper before submitting to FSTB for further submission to PWSC. Works departments should ensure that all works are completed and there are no outstanding claims/disputes and other financial commitments for a project that is proposed for deletion.

The implementation plan for a Category A project is first baselined when the project is in Category B. When the project is upgraded to Category A, the implementation plan recorded within the PWPIS must match the proposals endorsed by the PWSC and approved by the Finance Committee. If the FC approves the PWSC paper then the date of upgrade to Category A is the date of the FC decision.

It is necessary to control the timing of upgrading the projects to Category A so that it should not coincide with the summer recess of Legislative Council, which normally runs from July to September.

4.4 PWP CATEGORY D PROJECTS

For projects with pre-construction works that cost not more than $50M, the scale and timing of the works usually do not warrant the effort required for routing the projects through the normal public works procedures. Provision has therefore been made for such projects to be listed under a separate Category D of the PWP.

Minor works and investigations costing not more than $50M can be carried out as Category D items.

The works department should ensure that there are available funds and staff resources to allow the Category D project to start within 6 months of it being approved and complete the project as soon as possible. See Chapter 2 and FC No. 7/2017 - Capital Works Programme and SDEV's memo ref. (3) in L/M in DEVB(CR)(W) 1-106/33 (2009) Pt.1 dated 22.04.2009 for more details.

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5. PLANNING OF LAND MATTERS

5.1 LAND REQUIREMENTS IN PROJECT PLANNING

For matters relating to land reservation, allocation, acquisition and clearance, see Chapter 3. This section only sets out the skeleton of the procedures involved and the major considerations required for project planning.

Any project will be associated with land requirements either temporarily or permanently. Even if the project falls within Government Land, allocation of the area from the relevant District Lands Office (DLO) will have to be given. Reclamation projects will have to be gazetted under the Foreshore and Sea-bed (Reclamations) Ordinance. Construction of roads will involve the Roads (Works, Use and Compensation) Ordinance. Construction of sewerage will involve the Water Pollution Control (Sewerage) Regulation and the Sewage Tunnels (Statutory Easements) Ordinance. If private lots are affected, land resumption, re-housing, and clearance will be required. As the lead time required for securing the necessary works site and works areas is usually very long, early preparatory work in this aspect is important. For projects with average size resumption and clearance involvement, the time required for resolving land issues may be up to 560 working days. Reference should also be made to Lands Administration Office TC No. 715.

Reference should also be made to ETWB TCW No. 27/2003 concerning prioritisation of projects that require Lands Department's input in respect of land acquisition, land clearance and compensatory assessments. Reference should be made to DEVB GC No. 1/2016 for site search and site reservation, and FC No. 4/2017 concerning optimisation of site utilisation for capital works projects respectively.

Reference should also be made to the Inter-departmental Guidelines for Land Resumption under the Lands Resumption Ordinance (Cap. 124) published by DEVB, if the project office intends to use Cap. 124 to resume land for road/sewerage/railway works project.

5.2 LAND MATTERS IN DIFFERENT STAGES OF THE PROJECT

In the preparation of the TFS, the preliminary land requirement will have to be sent to the relevant DLO for consideration of their involvement, programme, capital outlay, staff resources required to meet the project requirements etc. The DLO will advise on the land status with regard to any land resumption/clearance requirements and the estimated time for site hand-over from the submission of the final Clearance Application Form. A land requirement plan together with a land requirement report are required for all new projects other than new Landslip Prevention and Mitigation Programme (LPMitP), Rural Planning and Improvement Strategy (RPIS), Private Street Improvement Scheme (PS), Non-development Clearance (NDC) Projects and other projects that involve minimal input from LandsD (see ETWB TCW No. 27/2003). The land requirement report is needed for prioritisation of projects that require Lands Department's input to acquire/clear land.

When the project is in Category C, up-to-date information on the land required for a PWP project must be recorded in the PWPIS.

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When a project is in the Category B stage, a preliminary project plan will have to be prepared containing the finalised site boundaries agreed by departments concerned. This plan together with the Clearance Application Form will have to be sent to DLO for further processing of gazettals, land resumption clearance, and allocation.

The works sites and works areas are handed over to the contractor for construction works. The project office will have to ensure the proper management of the site by the contractor during the period concerned under the terms and conditions of the contract documents.

On completion of works, the contractor will have to vacate the sites and hand them over as required under the contract documents. A joint site inspection is normally required before the handing over.

5.3 EXCAVATION IN UNLEASED LAND OTHER THAN STREETS UNDER LAND (MISCELLANEOUS PROVISIONS) ORDINANCE (LMPO)

The LMPO came into operation on 1 April 2004 on control of excavation in unleased land. LandsD is responsible for control of excavation in unleased land other than streets whilst Highways Department (HyD) is responsible for control of excavation in unleased land which is a street maintained by HyD. The implementation arrangements relating to LandsD are set out in Lands Administration Office TC Nos. 737 and 737A.

For new works project, the project office shall during the planning stage apply to the respective DLOs for simplified temporary land allocation (STLA) of the works site (excluding any public roads or existing GLAs) and /or temporary land allocation (TLA) of the works area. To shorten the processing time of STLA, the project office shall provide plans showing the works limit / scheme boundary for attachment to the allocation memo.

For works involving minor excavation in unleased land other than streets, exemption may be made under Section 10B(2) of LMPO. The authority of exemption has also been delegated to AFCD, ArchSD, CEDD, DSD, EMSD, HAD, HD, HyD, LCSD & WSD.

For cases of special nature which cannot be covered by land allocation or not within the category of exemption under Section 10B(2) of LMPO, government contractors shall apply to the respective DLO for an excavation permit under Section 10A of LMPO. A prescribed fee will be charged under the Ordinance. DSD has been delegated the relevant authorities for issuance and administration of excavation permit in respect of areas of DSD contracts.

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6. FINANCIAL CONSIDERATIONS

6.1 FORECAST OF NON-RECURRENT EXPENDITURE

The process of project planning should include an estimate of the non-recurrent cost of the project and a forecast of the phasing of expenditure in the TFS for inclusion in Category C. Successful bidding of funds in the RAS will enable the project to be upgraded to Category B. Guidance on estimating costs is given in Chapter 4. For details of charging arrangements for services provided to/by the Trading Funds, see FC No. 3/2013.

A forecast of non-recurrent expenditure should be made when the project is in the TFS stage, and updated at appropriate intervals and immediately prior to upgrading to Category A. Initially, the forecast of expenditure should be based on the programme for detailed design, contract documentation, tender procedures and the anticipated rate of expenditure during the construction stage. The forecast should subsequently be updated in the light of actual progress on detailed design and project implementation. This forecast is required in the PWSC paper seeking upgrading to Category A and also in every subsequent submission. If parallel tendering is adopted for contracts, in particular less controversial ones, the forecast in funding applications to FC/LegCo should duly reflect the tender sums, see FC No. 3/2020.

The non-recurrent expenses for projects are met from the Capital Works Reserve Fund which in turn is credited from the General Revenue. In order to limit expenditure to within budgetary provision, a forecast of non-recurrent expenditure for all public works projects, whether on-going or proposed, is required. This usually includes:

(a) forecast of expenditure for on-going projects requiring funding in the next and subsequent financial years,
(b) forecast of expenditure for new projects proposed for a start in the next year, and
(c) forecast of expenditure under block votes.

The forecast is usually co-ordinated by departmental headquarters and forms the basis for preparing the RAE, and for preparing the Draft Estimates for the following year.

6.2 FORECAST OF RECURRENT CONSEQUENCES OF PROJECTS

For most types of engineering projects, the completion of the capital investment usually carries with it an implication of recurrent expenditure. For example, a highway requires maintenance work such as minor resurfacing or repairing movement joints after a certain time, and a sewage treatment plant requires staff to operate and maintain it, plus there are charges for electricity etc. The forecast of the recurrent consequences of a project is an important part of the project planning process. The recurrent consequence for landscape works should also be ascertained by the maintenance party and be duly incorporated in the forecast. It is pointless to implement the project if:

(a) the necessary expertise in operating and/or maintaining the facility cannot be found, or
(b) sufficient manpower or financial resources will not be available for the facility to function properly.

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PWP procedures require an appraisal of the recurrent consequences of a project to be carried out:

(a) while the project is in Category B and when detailed design and cost estimates become available,
(b) when seeking upgrading of the project to Category A, and
(c) when applying for a change in the scope of a project in Category A.

The format of the appraisal and other details are set out in FC No. 2/2005. Any revenue generated should also be assessed.

6.3 LIMITATION ON COMMITMENT

Expenditure on projects in the PWP is met from the Capital Works Reserve Fund and within the resources available in the Fund, expenditure on each project in Category A or D is limited by its approved project estimate. See FC No. 2/2012 Procedures for making changes to the Estimates of the Capital Works Reserve Fund and FC No. 3/2011 Capital Works Reserve Fund Delegated authorities in respect of block allocations.

It is Government's intention that once a project is upgraded to Category A, work should start as soon as possible. While the actual start date is determined having regard to financial implications and to the estimated expenditure for the year, the upgrading of a project to Category A is in effect a commitment to provide funds for it, as required, within the approved project estimate. For Category D projects, it is necessary to note the requirement stated in FC No. 3/2011 that the works department should ensure that staff resources and funds are available to allow the project to start within 6 months.

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7. SOURCES OF INFORMATION

7.1 STRATEGIC STUDIES

The development trend in the Territory is determined by studies at a strategic level. Approved recommendations from these studies will form the framework for development in the years to come. Reference should be made to these studies to gain understanding of the background information, the needs and the justifications/reasons leading to their recommendations. Currently available study reports include:

(a) The Third Comprehensive Transport Study (CTS-3) and Hong Kong Major Transport Infrastructure Development Blueprint (2023),
(b) Port Development Strategy Review (PDSR) 2001 and Action Plan on Maritime and Port Development Strategy (2023),
(c) Railway Development Strategy 2014 (RDS 2014) and Second Railway Development Study (RDS-2),
(d) Harbour Area Treatment Scheme (HATS),
(e) Hong Kong 2030+: Towards a Planning Vision and Strategy Transcending 2030,
(f) Study on Sustainable Development for the 21st Century (SUSDEV 21), and
(g) Northern Metropolis Development Strategy and Northern Metropolis Action Agenda 2023.

It is common that a strategic study would include strategic environmental assessment (SEA) to assist the formulation of the preferred option/framework. EPD's website has included a specific SEA website (under "EA & Planning" and strategic Environmental Assessment") covering much information on SEA, including an SEA Manual, which provides a systematic guidance with examples on the SEA process.

7.2 TOWN PLANS

7.2.1 General

Information regarding the broad or detailed outline land use patterns and road system of particular areas can be obtained from town plans prepared by the Planning Department (PlanD). These plans can be grouped into two main categories, namely:

(a) statutory plans, and
(b) departmental plans.

7.2.2 Statutory Plans

Statutory plans include Outline Zoning Plans (OZP) and Development Permission Area Plans (DPA plans). Statutory plans are prepared by Town Planning Board (TPB) under the directive of the Chief Executive. Under the Town Planning Ordinance, the Chairman of the TPB may require the Director of Planning to prepare the plans.

OZPs are normally prepared within the framework of the Sub-regional Development Strategies which translate territory-wide goals of the Territorial Development Strategy (TDS) into sub-regional objectives. Further details of these are given in the publication "Town

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Planning in Hong Kong" issued by Planning Department. The majority of the OZPs are drawn on a scale of 1:5000 for districts in main urban areas and 1:10000 for New Towns in the New Territories. OZPs for the rural areas (Rural OZPs) are on a scale of 1:7500 while DPA plans are on a scale of 1:5000. All the Notes on the plans are given in both English and Chinese. They show the broad land use pattern and major road systems of the planning areas. In general, areas are zoned for residential, commercial, industrial, Government/ institution/ community, open space, green belt or other specified uses.

Any OZP, once gazetted, has legal effect. According to the Buildings Ordinance, the Building Authority may refuse to give its approval to any building plan which would contravene any approved or draft plan prepared under the Town Planning Ordinance.

DPA plans were introduced with the enactment of the Town Planning (Amendment) Ordinance 1991 for areas (mainly rural areas in the New Territories) which require immediate planning control prior to the preparation of OZPs. Unlike OZPs, DPA plans may contain large areas without any definitive zoning. Any development in these areas, other than a permitted use stated in the Notes, will require permission from the Town Planning Board. It should be noted that DPA plans are to remain effective for three years from the date of first publication and will be replaced by OZPs within the period.

7.2.3 Departmental Plans

(1) General

Departmental plans are used mainly within the Government for administrative purposes as details on these plans may be subject to frequent changes. Although such plans have no statutory effect, they are binding on all Government departments. The major uses of departmental plans are as follows:

(a) As the basis for formulating lease conditions and conditions of grant for new development areas.
(b) As the basis for formulating development programmes.
(c) If no OZP exists for the area, they will provide the basis for any OZP which may subsequently be prepared for the area.

Departmental plans generally comprise Outline Development Plans and Layout Plans.

(2) Outline Development Plan

Outline Development Plans (ODPs) show greater details of development proposals when compared with OZPs such as more specific land use designations, roads and footbridges, density restrictions and disposition of sites. If an OZP exists for the area, the function of the ODP is to supplement the former and to show the land use and road framework in greater detail. In addition, the ODP serves as a guide for land sales and for inter-departmental reservation and allocation of Government sites. These plans are normally drawn to a scale of 1:2500.

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(3) Layout Plan

Layout plans usually indicate detailed land use and development proposals for an area covered by an OZP or an ODP, but in some circumstances they may be prepared independently. They are usually of local significance and are prepared mainly for unformed and newly formed land or for re-development areas that require comprehensive planning. These plans usually show in more detail the planning proposals for the area, including information such as road and formation levels, disposition of land uses and development restrictions on individual lots or buildings. They are also used as a basis for land sales and allocations as well as for the implementation of land formation projects, construction of roads, and other engineering and building works. Such plans are normally drawn to a scale of 1:1000 and 1:500.

7.3 CAVERN MASTER PLAN

The CMP provides Amd No. 6/2025 a broad strategic Amd No. 6/2025 framework to guide and facilitate territory-wide planning on the uses of rock caverns Amd No. 6/2025 in Hong Kong. The CMP delineates SCVAs that are well placed for developing rock caverns to meet the existing or future development needs. The objectives of the CMP are:

(i) Territory-wide planning on the uses of rock caverns – Amd No. 6/2025 to delineate SCVAs that are suitable for developing rock caverns to meet the existing or future development needs Amd No. 6/2025;

(ii) Promulgation of information – to disseminate and publicise information on SCVAs that could enable both government departments and private sector organisations to identify suitable cavern sites for their developments; and

(iii) Optimal utilisation of SCVAs – to enhance Amd No. 6/2025 the use of land resources through a pragmatic vetting mechanism for managing cavern and other subsurface developments in SCVAs, without compromising beneficial surface land use and developments.

The CMP is a non-statutory plan serving as user guidelines for options on uses of rock caverns Amd No. 6/2025, and does not exempt cavern development, no matter within or outside SCVAs, from any relevant statutory requirements. It consists of a territory-wide plan showing the location and boundary of all the SCVAs, an Explanatory Statement (ES) and, for each SCVA, a set of Information Notes (IN). The ES provides the key information on the CMP. It sets out the objectives of the CMP, outlines the rationale and methodology of delineating SCVAs, and highlights key issues for project implementation. A list showing examples of potential uses Amd No. 6/2025 in rock caverns is also appended to the ES.

The CMP enables and facilitates project proponents to search suitable SCVA for potential cavern development. In conducting planning and land development studies for sites with SCVAs nearby, it might be beneficial to consider the strategic benefits and synergy effect of integrating cavern development opportunities with other surface and subsurface developments. Such integrated study approach can facilitate holistic consideration of both above-ground and underground land use options so as to optimise the development potential of available land resources. Amd No. 6/2025 (see DEVB TCW No. 2/2024 Amd No. 6/2025).

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7.4 LAND SURVEY INFORMATION

7.4.1 General

The Survey and Mapping Office (SMO) of the survey, mapping and geospatial data agency of the Government. The survey and mapping products of SMO are available to government departments that need them for their projects. The details of SMO products can be found on Lands Department's website below:

https://www.landsd.gov.hk/en/survey-mapping.html

7.4.2 Main Survey Control

All surveys are related to the Hong Kong 1980 Grid (HK 1980 Grid) which has its origin at the south-west of the Territory so that all the co-ordinates are positive. All engineering surveys must use the HK 1980 Grid to facilitate inter-relationship between surveys and various existing and proposed works.

The major triangulation system was readjusted in 1980, and co-ordinate values subsequent to this readjustment may be recognised in that the first digit of both easting and northing values is 8. The datum of levels for Hong Kong is known as "Hong Kong Principal Datum" (HKPD). This is related, through tide gauges, to mean sea level and is typically used in engineering surveys. Bench Marks related to HKPD have been established throughout the Territory and these should be used as the origin of level surveys. See DEVB TCW 5/2019 - Preservation of Survey Monuments and Marks for details.

[Caution: Horizontal and vertical survey control marks have been established territory-wide based on the HK 1980 Grid and HKPD by SMO. However, these ground control marks (Triangulation Stations, Main and Minor Traverses and Bench Marks) are at the mercy of rapid territory-wide development. Missing control marks may not be replenished immediately. Therefore, engineering offices and consultants may need to establish necessary control for projects in hand, if control marks have been destroyed.]

The following survey data are available from SMO via the link: https://www.geodetic.gov.hk/en/gi/keymaps.htm.

(a) Trigonometrical Station
(b) Traverse Station
(c) Bench Mark Station
(d) GPS Control Station
(e) Satellite Positioning Reference Station

The Steel Band/GNSS/EDM Calibration Baselines information are available from the link:

https://www.geodetic.gov.hk/en/geod_services.htm.

For works in the border areas that would involve cross-border liaison with neighbouring regions such as Shenzhen and Macao, early agreement on the survey control/datum is very important.

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7.4.3 Aerial Photographs

SMO is responsible for taking aerial photographs in the territory which is covered by large format vertical and oblique aerial photographs taken from fixed-wing aircraft and supplemented by small format oblique aerial photographs taken from helicopters. These aerial photographs can be enlarged if required.

Whenever weather permits, large format vertical aerial photography will be carried out according to an Aerial Photography Program. Photographs at 1/6000 scale, 1/16000 scale and 1/40000 scale covering the whole territory are usually produced in the winter annually.

Upon request from government departments, small format oblique aerial photography for reconnaissance, progress reports, project publicity, etc. will be carried out. Government departments can also approach the Government Flying Service for using the helicopters to take small format photographs.

In emergency survey cases for landslide, flooding, aircraft crash, etc. large format vertical aerial photographs or small format oblique aerial photographs for subsequent measurement and investigation can be provided.

The indexes of all aerial photographs are available at the website of Hong Kong Map Service 2.0 (HKMS 2.0) below for easy searching. Large format aerial photographs index can also be found on the HKSAR Geospatial Information Hub.

HKMS 2.0: https://www.hkmapservice.gov.hk/OneStopSystem/home

The Photogrammetric and Aerial Survey Section (PASS) of SMO employs the aerial photographs and photogrammetric survey techniques to supply digital mapping and digital elevation model data to government departments. Those government departments requesting photogrammetric survey may be required to provide the necessary survey control.

7.4.4 Digital Map

The Digital Map covering the whole Territory is being continuously updated and the map details are represented as points, lines, or polygons. The co-ordinates of the Digital Map are in HK 1980 Grid, and heights are in metres above the HKPD. The data, except forimage products can be supplied in Geographic Information System. Major products include:

(a) iB1000 (1:1000 Digital Topographic Map)
(b) iB5000 (1:5000 Digital Topographic Map)
(c) iB10000 (1:10000 Digital Topographic Map)
(d) iB20000 (1:20000 Digital Topographic Map)
(e) iC1000 (1:1000 Digital Land Boundary Map)
(f) iG1000 (Building Name & Address, Site Polygon and Road Centre Line)
(g) Digital Aerial Photo in TIFF
(h) Digital Orthophoto DOP5000 Series in TIFF
(i) GeoCom (Geo-Community Database)
(j) 3D Spatial Data

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[Caution: 1:1000 Digital Topographic Map (iB1000) is the general mapping over the territory prepared to the scale of 1:1000. The ground features shown thereon are surveyed or digitized from old survey sheets with varying positional accuracies. Works departments and/or their consultants should conduct land survey on site for accurate measurement, instead of deducing measurement using iB1000.]

7.4.5 Paper Maps, Aerial Photographs and Survey Information

Major products include:

(a) HP1C (1:1000 Large Scale Basic Maps)
(b) HP5C (1:5000 Medium Scale Derived Map)
(c) HM50CL (1:50000 Topographic Map)
(d) HM100CL (1:100000 Topographic Map)
(e) HM200CL (1:200000 Topographic Map)
(f) Print and enlargement of Aerial Photograph
(g) Orthophoto Map Series (OPM50 and OPM100)
(h) Horizontal and Vertical Control Points
(i) Survey Record Plans
(j) Land Boundary Plans
(k) Lot Index Plans

7.4.6 Request for Survey and Mapping Products

(a) Open Digital Map

Open Digital Maps mentioned in paragraphs 7.4.4(a) – (j) are available for free browsing and downloading at HKMS 2.0 - (www.hkmapservice.gov.hk). Users can download those Open Digital Maps at HKMS 2.0 free of charge for either commercial or non-commercial use.

(b) Digital Map (Excluding Open Digital Map)

Officer of the department with a set of completed standard order forms and undertakings which can be downloaded from https://www.landsd.gov.hk/mapping/en/download/form.htm.

Departments intending to supply the Digital Map, excluding the Open Digital Map, from SMO to their consultants/contractors must give prior notice to Map Publications Centre/Hong Kong, LandsD to ascertain whether the data within the project areas is available. SMO will then supply the required data to the department upon request. See paragraph 5.4.3 of Chapter 3 of PAH for details. Upon completion of project, the consultants/contractors shall erase all the supplied Digital Map to them and return the duly signed undertakings, which can be downloaded from above reference link, to Map Publications Centre/Hong Kong, LandsD via the Project Officer of the department.

Arrangement has been made for Highways Department, CEDD, Water Supplies Department and Drainage Services Department to supply all types of Digital Map directly to the consultants/contractors working for them. Consultants/contractors of these four departments can download Open Digital

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Map from HKMS 2.0 or make direct requests for any types of Digital Map via Project Officers to the Survey Division/Section of the respective departments.

(b) Paper Maps, Aerial Photographs and Survey Information

Requests for paper maps and aerial photographs can be made by memo addressed to Map Publications Centre/Hong Kong. Requests for special aerial survey services can be addressed to Senior Land Surveyor/Photogrammetry of the PASS, LandsD (through the Divisional Land Surveyors, if applicable, in respective departments).

The Hong Kong Map Service 2.0 Government Account Users can also order Paper Map Products free of charge. The application form for the Account can be downloaded from below. They may also contact Map Publications Centre/Hong Kong, LandsD for details.

https://www.hkmapservice.gov.hk/OneStopSystem/form-download

7.4.7 Enquiries

For enquires regarding Lands Department Digital Map, Paper Map and general matters, please contract Map Publication Centre, Hong Kong.

Tel: 2231 3187
Email: smosale@landsd.gov.hk

7.5 MARINE SURVEY INFORMATION

7.5.1 Marine Survey Data

Whilst the CEDD Survey Division is responsible for the in-house engineering works' sounding surveys. The Hydrographic Office of Marine Department (MDHO) is responsible for bathymetric survey and the production of nautical navigational charts covering the Hong Kong waters.

Other marine related data, comprising:

(a) pipelines (as shown on charts kept by MDHO);
(b) cables (as shown on charts kept by MDHO);
(c) aids to navigation lights and buoys (as shown on charts kept by MDHO);
(d) marine borrow areas (kept by GEO, CEDD);
(e) dumping grounds (kept by GEO, CEDD); and
(f) reclamation records (kept by CEO, CEDD).

Hong Kong nautical paper charts and Electronic Navigational Chart covering the entire Hong Kong waters are available and can be purchased at the MD Headquarters' Shroff Office.

Real-time tide information at eleven locations around Hong Kong waters is available on the MDHO web site (https://www.hydro.gov.hk). Past information on tide levels, including records of surge levels during typhoons and current tidal records are also available from the Hong Kong Observatory.

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7.6 GEOLOGICAL AND TERRAIN INFORMATION

7.6.1 Geological Survey

Fifteen first edition 1:20000-scale geological maps covering the entire land and sea area of the Hong Kong Special Administrative Region and the accompanying descriptive memoirs are available. Archival data collected during the geological survey, including rock samples, thin sections and photographs can be inspected in the offices of the Hong Kong Geological Survey, GEO.

The 1:20000-scale geological maps are being progressively updated in digital form. Three updated geological maps (Map Sheet 7 - Sha Tin; Map Sheet 11 - Hong Kong and Kowloon; Map Sheet 15 - Hong Kong South and Lamma Island) and accompanying geological reports are currently available. Geological datasets which have been used for the update are available on request to the CGE/Planning, GEO, CEDD.

Two summary memoirs and a set of 1:100000-scale geological and thematic maps that synthesise current interpretations of the geology of Hong Kong are also available. A list of publications, including geological memoirs, geological map sheets and reports, produced by the Hong Kong Geological Survey can be accessed below:

https://www.cedd.gov.hk/eng/publications/geo/hong-kong-geological-survey/index.html

Geological maps at 1:5000 scale and accompanying reports for key development areas comprise:

(a) Yuen Long area - 20 maps and report
(b) Chek Lap Kok - map and report
(c) Tsing Yi - 2 maps and report
(d) North Lantau and Ma Wan - 6 maps and report
(e) Ma On Shan area - map and report

The geology of the offshore areas was compiled using information from seismic reflection profiling, ground investigation boreholes, geological survey boreholes and seabed grab samples, as well as reports of the offshore surveys. These records, which also include information on the location of offshore sources of sand for reclamation fill, are retained by the offices of the Hong Kong Geological Survey and are available for inspection on request to the CGE/Planning, GEO, CEDD.

7.6.2 Geotechnical Area Studies Programme Reports

The Geotechnical Area Study (GAS) Programme undertaken in the early to mid 1980's by the Planning Division of the GEO provided terrain evaluation and geotechnical information to assist planning, management and engineering feasibility assessment in the Territory on a regional scale.

A series of eleven GAS Reports at 1:20000 scale provides complete coverage of the Territory. A further series of nine GAS District Reports at 1:2500 contains much more

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detailed terrain information for nine selected areas. These reports have been distributed to relevant Government departments.

The eleven GAS Reports were published for sale to the public in edited form as a series of twelve Geotechnical Area Studies Programme (GASP) Reports. GASP Report XII is a summary compilation of all the information contained in the other eleven reports.

All GAS and GASP reports are available in the Civil Engineering Library of CEDD.

Terrain mapping and engineering geology mapping have been carried out at a scale of 1:5000 for Northern Lantau. The maps and engineering geology study reports are available from the Planning Division of GEO.

7.6.3 Other Geotechnical Information

The Geotechnical Information Unit (GIU) is a part of the Civil Engineering Library of CEDD. The GIU holds a comprehensive collection of geotechnical data from ground investigations throughout the Hong Kong SAR. The GIU comprises Public and Government Sections.

The Public Section of GIU contains factual geotechnical information, including the following:

(a) ground investigation reports, including geophysical surveys and some groundwater monitoring data;
(b) reports on laboratory testing of soil and rock and some reports on chemical and biological testing for soils;
(c) landslip record cards;
(d) an inventory of boulder fields;
(e) an inventory of landslides on natural terrain;
(f) location plans for government slopes and hillside catchments which have been upgraded and mitigated or which are included in current Works contracts under the Landslip Prevention and Mitigation Programme (LPMitP); and
(g) AGS data for some ground investigation reports and soil and rock laboratory testing reports.

The Government Section contains interpretative geotechnical documents. These documents are accessible by government staff and consultants or personnel employed on government projects.

In addition, the Civil Engineering Library of CEDD contains a comprehensive collection of periodicals, books, conference proceedings, manuals, standards, codes of practice, geotechnical reports, maps and documents submitted to the GEO in support of private developments, and documents produced by or for government departments.

The Geotechnical Information Infrastructure System (GInfo) is a computerised geographic information system platform indexing the geotechnical information available in the GIU. The system enables users to locate documents and ground investigation field work and laboratory test data quickly. It also contains basic information on geotechnical reports and ground investigation stations.

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Further details of GIU, including address, service hours and facilities can be found in CEDD's library webpage (https://www.cedd.gov.hk/eng/public-services-forms/geotechnical/library/index.html).

The GEO has published a number of reports and publications related to geotechnical engineering in Hong Kong. Copies of these can be obtained from the Publication (Sales) Office of the Information Services Department by individual departments. An updated list of the GEO publications is available from the CEDD's webpage (https://www.cedd.gov.hk/eng/publications/geo/index.html).

Further sources of geotechnical information can be found in CEDD's publication webpage.

7.7 TRAFFIC DATA

Traffic data can be obtained from various reports published by the TD, in particular the Annual Traffic Census Reports and the Monthly Traffic and Transport Digests which are available from TD's website. Various traffic data are also available at the website below:

https://data.gov.hk/en/

7.8 CEDD DEVELOPMENT STUDIES

A Development Study is a comprehensive feasibility study covering planning, engineering, traffic and transport, environmental, drainage and other related aspects. It also forms a preliminary planning framework with an overall budget and implementation programme. It will provide the overall design criteria and parameters. Sometimes, an integrated Planning and Development Study is carried out jointly by PlanD and CEDD to formulate a comprehensive development proposal for a development area.

7.9 MISCELLANEOUS INFORMATION FROM VARIOUS GOVERNMENT DEPARTMENTS

Useful information can be obtained from various Government departments. For example:

(a) Records of roads, except for those within Hong Kong International Airport which comes under the jurisdiction of Airport Authority, and highways structures can be obtained from HyD.

(b) Drainage records, except for those within Airport Area which comes under the jurisdiction of Airport Authority, and plans showing the extents of Drainage Tunnel Protection Areas and Sewerage Tunnel Protection Areas can be obtained from DSD.

(c) Approved plans showing the road widening lines can be obtained from TD.

(d) Watermains records and water gathering grounds plans can be obtained from WSD.

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(e) Population data can be obtained from the reports on population projects and distribution complied and issued annually by the Working Group on Population Distribution Projects headed by Planning Department.

(f) The project proponent can refer to ecological database managed by the AFCD and other approved EIA reports / Study Briefs / Environmental Permits (accessible from the EIAO Register Office at 27/F, Southorn Centre, 130 Hennessy Road, Wan Chai, Hong Kong; and EPD's EIAO webpage at https://www.epd.gov.hk/eia/english/register/index.html) to identify sensitive uses being affected by a proposed project.

(g) The greening theme and palette of plant species developed under the Greening Master Plans should be obtained from CEDD.

7.10 OTHER GOVERNMENT PUBLICATIONS

Much useful information is contained in Government publications, such as the Hong Kong Annual Report and departmental annual reports. Reports published by the Hong Kong Observatory and the Department of Census and Statistics often contain information relevant to engineering projects.

There are also engineering and study reports which are directly related to engineering projects other than those mentioned in Chapter 2, and these can be broadly grouped into the following categories:

(a) Regional - this refers mainly to regional feasibility and development studies, e.g. Tseung Kwan O New Town Study, Ma On Shan Transport Study etc.

(b) Statistical - this refers to statistical and data reports, e.g., Data Report Monitoring of Local Waters and Sewage Characteristics, Traffic and Transport Digest etc.

(c) Technical - this refers to technical reports on special subjects and design guidelines, e.g. Tuen Mun Sea Wall Report on Concrete Facing Blocks (Dec 84), Deep Excavation Design and Construction (GEO Publication No. 1/2023).

7.11 OTHER SOURCES

Other useful information can be obtained from technical and research reports and publications issued through journals, periodicals, research papers, etc. Enquiries should be addressed to the Technical Secretary of the relevant office.

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8. PROGRESS REPORTING & RECORDS

8.1 PROJECT FILE

The project files are designed and used to record the whole of project from conception to its completion/deletion from the PWP. These are official records which should be kept by the office general registry. Where a project is split from a parent item, cross reference should be clearly made in both project files.

8.2 PROJECT HANDBOOK

8.2.1 Purpose

The project handbook is designed to provide a handy reference as to the current status of a project and to the significant events/ procedures that have occurred. With properly updating, the project handbook will serve as:

(a) a record of the essential procedures undertaken in progressing the project to its current status,
(b) a reminder of the outstanding procedures that are necessary to bring the project to completion,
(c) a record of cost estimation and the programme of the works, and
(d) a dossier of essential information for another officer to take up the project.

The project handbook contains copies of important document, and it is an official record similar to other project files. However, it is normally kept by the project engineer instead of the general registry to facilitate periodical updating.

8.2.2 Contents

Project handbooks should contain only essential information, i.e. those considered as milestones in the life of a project, and must not become a duplicate of the project file. In essence, they should contain the kind of information that an officer would need for a quick understanding of the stage that a project has attained, including the procedures completed and those required to bring the project to completion, and relevant background information on major events and decisions. The following list will serve as a guide to the type of material that should be kept in a typical project handbook, but it should be noted that each handbook should be constructed to serve the needs of the particular project:

(a) Project Definition Statement,
(b) Technical Feasibility Statement,
(c) copies of all PWSC submissions,
(d) documents related to policy rulings,
(e) essential information related to land matters (e.g. Chapter 3 para. 5.3),
(f) statutory and technical submissions, e.g. EIA reports required under the EIAO, GEO Checking Certificate for Slopes and Retaining Walls in accordance with ETWB TCW No. 20/2004, tunnel works design under ETWB TCW No. 15/2005, DIA reports under ETWB TCW No. 2/2006 or TIA reports etc.,
(g) basis of cost estimates used in PWSC submissions including record of checking of cost estimates,

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(h) changes in the scope of the project with justifications,
(i) latest programme for the project,
(j) essential checklists (e.g. Chapter 6 para. 1, Chapter 7 paras. 1 & 2),
(k) essential drawings,
(l) review of financial implications for CWRF RAS exercise,
(m) agreement on the division of maintenance responsibility,
(n) forecast of recurrent consequences,
(o) Status of Excavation Permit (XP) and Simplified Temporary Allocation (STLA) applications,
(p) handing over records of various portions of works,
(q) list of files, and
(r) list of contact.

8.2.3 Updating and Checking

A Project handbook should be created when a Project Definition Statement for a project is prepared and should be kept at least until the project is completed and deleted from the PWP.

Project handbooks are normally kept by the project engineer. They should be updated by the project engineer as the need arises, but not less than once every quarter. A project handbook must always be updated whenever the project is transferred from one project engineer to another, or when responsibility for the project is transferred from one office/division to another.

Project handbooks shall be checked quarterly by the relevant chief engineer/senior engineer to ensure that they are properly updated.

8.3 QUARTERLY REPORTS

8.3.1 Quarterly Report on the PWP

Quarterly Report on selected Category A projects of the PWP has been produced using data recorded within the PWPIS. In addition, there is another quarterly report on PWP Projects namely 'Quarterly Report on High Impact Category B PWP Projects'. These reports are presented to works directors, policy secretaries and SFST. The former report will also be routinely distributed to the Financial Secretary and members of LegCo.

An example of Quarterly Report on selected Category A projects of the PWP is shown at Appendix 1.2.

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8.4 PROJECT SURVEILLANCE SYSTEM FOR CAPITAL WORKS PROJECTS

DEVB TCW No. 9/2018 promulgates the Project Surveillance System (PSS) for Category A projects under the Capital Works Programme (CWP). The PSS is established based upon the cashflow data of over 600 projects completed in the past 20 years, and has taken into account all the typical characteristics of the projects under the CWP. It is a powerful tool for monitoring project progress and can provide predictive analysis for forecasting the cost and time performance of on-going projects. The PSS is generally applicable to all capital works projects including projects with multiple works contracts, works contracts using NEC, etc.

The objective of the PSS is for facilitating works departments to foresee challenges or potential problems of on-going projects and providing early warning signals to the senior management for necessary early step-in. (see DEVB TCW No. 9/2018).

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9. REFERENCES

WBTC No. 2/93	Public Dumps
WBTC No. 2/93B	Public Filling Facilities
WBTC No. 25/93	Control of Visual Impact of Slopes
WBTC No. 14/94	Use of PFA as General Fill in Reclamation
WBTC No. 4/97	Guidelines for Implementing the Policy on Off-site Ecological Mitigation Measures (PELBTC No. 1/97)
WBTC No. 4/98	Use of Public Fill in Reclamation and Earth Filling Projects
WBTC No. 4/98A	Use of Public Fill in Reclamation and Earth Filling Projects
WBTC No. 12/2000	Fill Management
WBTC No. 17/2000	Improvement to the Appearance of Slopes
WBTC No. 25/2000	Resolving Interdepartmental Issues in Relation to Implementation of Public Works Projects
WBTC No. 13/2001	Quality Management System Certification of Consultants and Contractors for Public Works Administered by the Works Group of Departments
WBTC No. 13/2001A	Quality Management System Certification of Consultants and Contractors for Public Works Administered by the Works Group of Departments
WBTC No. 24/2001	Simplified Tendering Arrangement for Capital Works
ETWB TCW No. 29/2002	Geotechnical Control for Slopes and Retaining Walls
ETWB TCW No. 29/2002A	Geotechnical Control for Slopes and Retaining Walls
ETWB TCW No. 19/2003	Review of Preliminary Design Before Proceeding with the Detailed Design
ETWB TCW No. 27/2003	Land Acquisition Prioritization Exercise
ETWB TCW No. 30/2003	Control of Client-Initiated Changes for Capital Works Projects
ETWB TCW No. 4/2004	Checking of Foundation Works in the Scheduled Areas of Northwest New Territories and Ma On Shan and the Designated Area of Northshore Lantau
ETWB TCW No. 20/2004	GEO Checking Certificate for Slopes and Retaining Walls
ETWB TCW No. 36/2004	The Advisory Committee on the Appearance of Bridges and Associated Structures (ACABAS)
ETWB TCW No. 5/2005	Protection of natural streams/rivers from adverse impacts arising from construction works
ETWB TCW No. 6/2005	Implementation of Systematic Risk Management in Public Works Projects
ETWB TCW No. 8/2005	Aesthetic Design of Ancillary Buildings in Engineering Projects
ETWB TCW No. 15/2005	Geotechnical Control for Tunnel Works

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ETWB TCW No. 19/2005	Environmental Management on Construction Sites
ETWB TCW No. 2/2006	Drainage Impact Assessment Process for Public Sector Projects
ETWB TCW No. 4/2006	Delivery of Capital Works Projects
DEVB TCW No. 6/2010	Trip Ticket System for Disposal of Construction & Demolition Materials
DEVB TCW No. 2/2012	Allocation of Space for Quality Greening on Roads
DEVB TCW No. 3/2012	Site Coverage of Greenery for Government Building Projects
DEVB TCW No. 2/2015	Green Government Buildings
DEVB TCW No. 6/2015	Maintenance of Vegetation and Hard Landscape Features
DEVB TCW No. 5/2017	Community Involvement in Planting Works
DEVB TCW No. 2/2024 Amd No. 6/2025	Rock Cavern Development
DEVB TCW No. 1/2018	Soft Landscape Provisions for Highway Structures
DEVB TCW No. 3/2018	Enhancing Cost Effectiveness of Geotechnical Works of Capital Works Projects
DEVB TCW No. 5/2018	New Policy on Selection, Appointment and Management of Consultants under the Purview of the Engineering and Associated Consultants Selection Board
DEVB TCW No. 9/2018	Project Surveillance System for Capital Works Projects
DEVB TCW No. 1/2019	Railway Protection
DEVB TCW No. 5/2019	Preservation of Survey Monuments and Marks
DEVB TCW No. 4/2020	Tree Preservation
DEVB TCW No. 5/2020	Registration and Preservation of Old and Valuable Trees
DEVB TCW No. 9/2020	Blue-Green Drainage Infrastructure
DEVB TCW No. 8/2021	Building Information Modelling Harmonization Guidelines for Capital Works Projects in Hong Kong
DEVB TCW No. 1/2022	Heritage Impact Assessment Mechanism for Capital Works Projects
DEVB TCW No. 1/2025	Adoption of Building Information Modelling for Capital Works Projects in Hong Kong Amd No. 1/2025
DEVB GC No. 1/2016	Site Search and Site Reservation
FC No. 2/2005	Recurrent Consequences of Capital Projects
FC No. 3/2011	Capital Works Reserve Fund Delegated authorities in respect of block allocations
FC No. 2/2012	Procedures for making changes to the Estimates of the Capital Works Reserve Fund
FC No. 4/2012	Requirements for Project Definition Statement and Technical Feasibility Statement for Capital Works Projects

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FC No. 3/2013	Charging Arrangements for Trading Funds
FC No. 4/2017	Optimisation of Site Utilisation for Capital Works Projects
FC No. 7/2017	Capital Works Programme
FC No. 3/2020	Parallel tendering for contracts
FC No. 2/2021	User Guide on the Finance Committee, Establishment Subcommittee and Public Works Subcommittee
GC No. 12/2016	Application of Environmental Legislation to the Government
HPLB & ETWB TCW No. 1/06	Air Ventilation Assessments
HyD TC No. 10/2001	Visibility of Directional Signs
LAO TC No. 715	Streamlined Procedures and Time Frame on Land Resumption and Clearance for Public Works Projects in the New Territories
LAO TC No. 737	Excavation in unleased land other than streets under Land (Miscellaneous Provisions) (Amendment) Ordinance 2003 (LMPAO)
LAO TC No. 737A	Excavation in unleased land other than streets under Land (Miscellaneous Provisions) Ordinance (Cap. 28)
LWBC No. 1/2011	Providing a Barrier-free Environment in Government Premises and Facilities for Persons with Disabilities
ArchSD's memo ref. (34) in ASD TA/MEE/4 V dated 21.7.1992	-
S for W's memo ref. () in WB(CR) 172/59(2002) Pt. 1 dated 8.5.2002	Prudent Project Management
SDEV's memo ref. (3) in L/M in DEVB(CR)(W) 1-106/33 (2009) Pt.1 dated 22.4.2009	Minor Works
DEVB's memo ref. () in DEVB(W) 515/83/04 dated 6.10.2010	Control Measures for Management of Dredged/Excavated Contaminated Sediment
SDEV's memo ref. () in DEVB(W) 400/70/01 dated 25.5.2011	Guidelines for 'Handling of request for compensatory works which are claimed to be fung shui related in implementation of public works projects'
SDEV's memo ref. () in DEVB(W) 400/70/01 dated 28.7.2011	Guidelines for 'Handling of request for compensatory works which are claimed to be fung shui related in implementation of public works projects'
DEVB's email dated 14.10.2014	Timeframe for Resolution of Public Objections
GEO Technical Guidance Note No. 1	Technical Guidance Documents

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GEO Technical Guidance Note No. 12	The Designated Area of Northshore Lantau
GEO Technical Guidance Note No. 25	Geotechnical Risk Management for Tunnel Works
GEO Technical Guidance Note No. 26	Supplementary Guidelines for Foundation Design in Areas Underlain by Marble and Marble-bearing Rocks
GEO Publication No. 1/2011	Technical Guidelines on Landscape Treatment for Slopes
GEO Publication No. 1/2023	Deep Excavation Design and Construction
GEO Report No. 138	Guidelines for Natural Terrain Hazard Studies
Geoguide 2	Guide to Site Investigation
ENB SA No. 1/2018	Guidelines on Sustainability Assessment
HyD HQ/GN/015A	Guidelines for Greening Works along Highways
CEDD Publication	https://www.cedd.gov.hk/eng/publications/index.html
DEVB Cyber Manual for Greening	http://devb.host.ccgo.hksarg/en/introduction/index.html
DEVB Greening Guidelines	https://www.greening.gov.hk/en/home/index.html
DEVB Tree Management Guidelines	https://www.greening.gov.hk/en/home/index.html
Handbook on Tree Management	https://www.greening.gov.hk/en/home/index.html
EPD Technical Memorandum on Environmental Impact Assessment Process	https://www.epd.gov.hk/eia/english/legis/index3.html
EPD Professional Persons Environmental Consultative Committee Practice Notes (ProPECCPNs)	https://www.epd.gov.hk/epd/english/resources_pub/publications/pub_propeccpns.html
EPD EIAO Guidance Notes	https://www.epd.gov.hk/eia/english/guid/index.html
EPD Homepage	https://www.epd.gov.hk/epd/
GPA Accommodation Regulations	http://gpa.host.ccgo.hksarg/accommodation-regulations.html
PlanD Hong Kong Planning Standards and Guidelines	https://www.pland.gov.hk/pland_en/tech_doc/hkpsg/index.html
TD Free Publications	https://www.td.gov.hk/en/publications_and_press_releases/publications/free_publications/index.html
Map Publications Centre/Hong Kong, LandsD	https://www.hkmapservice.gov.hk/OneStopSystem/form-download

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APPENDIX 1.1 SPECIMEN EMAIL FOR "SCHEDULE OF ACCOMMODATION" SUBMISSION

From : The subject engineer or an officer of comparable civil service rank
To: Property Vetting Committee (c/o EO/Projects/B, ArchSD) at e-mail address eo.p.b@archsd.gov.hk
c.c. CE/ST, DSD

Subject: SoA application for 4ND – Tsing Yi Sewage Disposal Plant Stage I

Our ref.: ( ) in XXX XXXX

Dear Sir / Madam,

The target tender invitation date/ PWSC submission date for Item 4ND is in [Month Year]. It comprises the construction of a sewage treatment works and a twin submarine sewage pipeline. The plant is designed to provide primary sedimentation treatment to sewage from the Tsing Yi Development.

2. In accordance with Accommodation Regulations, I attach the technical feasibility statement approved by the Development Bureau (including a proforma on site utilisation assessment issued by GPA per the Financial Circular No. 4/2017) and a draft Schedule of Accommodation concerning the provision of buildings for your vetting and approval. CE/ST, DSD, who will eventually take over the plant for operation, has been consulted.

( )
for Chief Engineer/Sewerage Projects
Drainage Services Department

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APPENDIX 1.2 QUARTERLY REPORT ON THE PUBLIC WORKS PROGRAMME (For July – September 2002)

Projects under Secretary for Housing, Planning and Lands' Control

Project No.	Project Title		Project Estimate ($M)	Project Start Date	Project Completion Date	Notes on Progress of Project and variance in project estimate, start date and completion date
7483 CL	Pak Shek Kok reclamation for dumping, stage II	Approved by F.C. Current forecast	246.800 233.183	01/98 02/98	05/01 05/04	The works were 85% completed. The project estimate was reduced due to low tender prices. The start and completion dates were deferred as the priority for the use of public filling material was given to the completion of the adjacent more urgent projects.
7112CL	Peng Chau development, package 3 - design and stage I engineering works	Approved by F.C. Current forecast	135.000 128.191	02/83 02/83	09/02 06/03	Additional reclamation and site formation of land together with the associated roads and drainage works were required. An increase in APE to cover these additional works was approved by FC on 12 May 2000. These additional works are now under construction under Contract No. IS 11/2000 which commenced in September 2000.
7193CL	Peng Chau development, package 4 - engineering works	Approved by F.C. Current forecast	167.300 102.687	02/99 03/99	08/01 02/03	The delay in completion was due to inclement weather and that more time had been taken in the construction of the revetment and utilities diversions. The problem has been resolved. The project estimate was reduced due to lower tender prices.

Secretary for Housing, Planning and Lands (printed by CRS) Page No. (2) printed (16/10/02)

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APPENDIX 1.3 GUIDELINES ON THE PRELIMINARY GEOTECHNICAL APPRAISAL REQUIRED TO BE CARRIED OUT IN THE PREPARATION OF TECHNICAL FEASIBILITY STATEMENTS AND PREPARATION OF OPTIONS UNDER FEASIBILITY STUDIES

1. This Appendix provides guidelines on the preparation of Preliminary Geotechnical Appraisal (PGA) required to be carried out in the preparation of Technical Feasibility Statements (TFSs). It should be read in conjunction with Financial Circular No. 4/2012.

2. In Section 3 of TFS, in addition to the discussion on issues as listed in the Financial Circular, two sets of the latest topographical plans (one of 1:5000 and the other of 1:1000 scale) should normally accompany the PGA. The Hong Kong Metric Grid references and the contours should be clearly shown on the plans. For proposed developments with a few relatively small sites, a set of 1:1000 scale plans showing the areas examined in carrying out the PGA may be sufficient. The boundaries and reference numbers of all existing man-made slope features (i.e. slopes and retaining walls registered in the Slope Catalogue) which could affect or be affected by the proposed project should be marked up on the plans. This will allow the readers to see the slopes/areas to be dealt with in relation to the developments/facilities proposed as part of the project. For proposed developments covering a large area, a key location plan say of 1:5000 scale, with the boundaries of the areas examined in carrying out the PGA and the boundaries of the developments/facilities proposed as part of the project superimposed, should be added.

3. If there is any natural hillside sloping at more than 15 degrees within 100m horizontally upslope of any development/facility proposed as part of the project, the Project Department should indicate the location of such a hillside on the plans. The department should seek GEO's views as to whether a natural terrain landslide and boulder/rock fall hazard study is needed for the hillside under the project. If a study is considered necessary, the GEO will advise the department the area of the natural terrain catchment to be included in the study and to be marked up on the plans.

4. As a conclusion of the PGA, a statement should be included that all existing man-made slope features and natural terrain catchments shown on the plans submitted under Section 3 of the TFS will be studied and necessary slope works and hazard mitigation measures would be carried out as part of the project. A statement should also be given that a geotechnical assessment (GA) will be carried out for the preferred development option at the Study/Investigation/Preliminary Design Stage to define the scope and programme of necessary slope works and hazard mitigation measures to be carried out under the project. The study area for the GA should be indicated on a set of plans submitted under Section 3 of the TFS.

5. In Section 5 of the TFS, adequate allowance should be made in the Project Programme for the GA and any ground investigation and topographical survey works required for slope stability assessment and design of slope works and hazard mitigation measures.

6. In Section 6 of the TFS, adequate funding provision should be allowed for in the Capital Cost Estimates for the GA and any necessary ground investigation and topographical survey works required, as well as for the geotechnical works.

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7. In preparing the PGA for projects involving tunnel works and in undertaking any supporting engineering feasibility studies (EFS), the project office or its consultants shall consult the Hong Kong Geological Survey through CGE/Planning of the GEO to obtain general geological advice, especially on identification of geological features. The EFS and the PGA of the project should cover geotechnical considerations such as identification of problematic ground, formulation of preliminary ground models including the hydrogeological models, and preliminary assessment of geotechnical risks (both during construction and in the long-term when the facility is operating). The project office shall conduct a risk assessment to determine whether the proposed tunnel works under the project would pose a significant risk to public life and property and include in the EFS and PGA the possible scope and extent of site investigations and geotechnical studies required to reduce uncertainties and risks. (Requests for geotechnical advice/assistance, including that on the engineering feasibility study, if required, should be directed to CGE/Geotechnical Projects of the GEO). The project office shall consult the GEO, take into account GEO's response in finalising these documents and submit a copy of the final versions to the GEO. (See ETWB TCW No. 15/2005).

8. Rock excavation by blasting can adversely affect the stability of nearby geotechnical features (such as slopes, retaining walls, boulders, tunnels, caverns, etc.) and the integrity of nearby buildings, structures, railways and utility services in the vicinity through ground vibrations and other effects such as fly rock and air-overpressure. The transport, storage and use of explosives for blasting also pose a safety hazard to the public. The project office shall ensure that adequate and necessary protective and precautionary measures will be provided to prevent the works from causing injury to workers and the public, significant disruption to traffic, undue vibration and movement to existing structures and services, or any other nuisance to the public.

   The PGA should, therefore, assess whether blasting for rock excavation will be required, and if so, identify the key potential hazards and sensitive receivers, and the major constraints relevant to the transport, storage and use of explosives for the proposed blasting works. It should also include the possible scope and extent of investigations and geotechnical studies required to reduce uncertainties and risks, and to demonstrate the practicability of satisfying any constraints identified. The project office should consult the GEO and incorporate their comments in finalising the PGA and the TFS.

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APPENDIX 1.4 INTRODUCTION TO VALUE MANAGEMENT AND GUIDELINES ON IMPLEMENTATION ISSUES (Subsumed from ETWB TCW No. 35/2002)

Purpose

1. This set of guidelines provides guidance to departments in the implementation of value management.

Value management

2. VM is an organized methodology applied to the analysis of functions, components, goods and services, from the point of view of the system as a whole, to satisfy the required functions of the project at the lowest total cost without compromising quality and standard of performance.

3. The most fundamental ingredients to the VM study is the examination of 'function' on a system basis. This characterizes VM and differentiates it from other project management tools.

4. Typically, the VM process involves the holding of VM workshops. A VM workshop is a tool which can be used to improve the definition of capital works projects, such as for the derivation of a Project Definition Statement or the preparation of a feasibility study report. Alternatively it can also be employed in a specific manner, like comparing design options, evaluating construction methods, choosing sites, deciding on access points etc. Contrary to common belief, a VM workshop can often be most useful when it appears that the problem encountered seems insurmountable or when the difference in opinion sounds irreconcilable.

Value management workshop

5. Some of the most well known definitions of VM are:

> ***"Structured and analytical process which seeks to achieve value for money by providing all the necessary functions at the lowest total cost consistent with required levels of quality and performance."***
>
> ***– Australian/New Zealand Standard for Value Management, AS/NZS 4183:1994***

> ***"A structured process of dialogue and debate among a team of designers and decision makers during an intense short-term conference"; and***
>
> ***"The primary objective of value management is to develop a common understanding of the design problem, identify explicitly the design objectives and synthesize a group of consensus about the comparative methods of alternative course of action."***
>
> ***– Dr. S.D.Green University of Reading, U.K.***

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6. Based on the above, the key elements of a VM workshop are:

- **well structured with set goals and objectives;**
- **multi-disciplinary, professional and specialist input;**
- **professionally facilitated;**
- **shared understanding;**
- **group decision and evaluation to create innovative solutions; and**
- **ownership and commitment.**

7. At first sight, a VM workshop might appear to be costly and time consuming, costing some 20-50 professional-days on top of approximately $100,000 fees for the professional facilitator for a two-day workshop. However in the long run, these costs have proven to be well spent in terms of:

- **updating standards, criteria and objectives;**
- **promoting innovation;**
- **optimizing resources;**
- **eliminating unnecessary items and costs;**
- **finding solutions that best fit the project objectives;**
- **breaking dead-lock situations;**
- **saving time; and**
- **ensuring ownership and commitment by all parties.**

8. VM should however be understood as a tool and not a panacea. Therefore, it can co-exist with and supplement other management tools like cost planning, cost engineering, quality assurance, project auditing, process re-engineering, partitioning, risk management etc. It should best be seen as a useful tool in our overall assets management functions (in this case the delivery of PWP items).

Key Success Factors

9. One of the critical factors for a successful VM study is the commitment of those involved. A VM team should comprise a disparate group of representatives from the client (policy bureaux and/or client departments), works agents (works departments and/or consultants), enabling agencies (e.g. PlanD, EPD and/or DLO), specialist consultant and other stakeholders. A typical size of 15 to 20 people should be able to achieve the appropriate multi-stakeholder and multi-disciplinary representation on a major project. Two points need to be noted though. Firstly, it is essential to invite the correct level of representatives who can make both contributions with authority and recommendations with credibility. Secondly, representative of the right bureau/department must be secured. In particular, the participation of the representatives of policy bureaux could bring about a significant benefit in refining or redefining the project objectives. Also, enabling departments like PlanD, LandsD and EPD's representatives usually have an irreplaceable role to play in providing input in respect of their own individual areas.

10. Adequate support from top management must be obtained before commencing any VM study. Otherwise, should the findings and recommendations from a VM study is later to be vetoed by the top management of any individual party, the credibility of future VM workshops will be lost.

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11. Thorough planning, good facilitation and also proper follow up actions are vital to the success of VM studies. These are further elaborated in paragraphs 12 to 27 below.

Criteria of conducting VM workshops

12. Costs and benefits are the prime considerations. With experience gained over the years in applying VM, the departments should by now have a better feel of the costs and benefits of VM workshops. Since the benefits are mostly project specific, the project department is best placed to evaluate whether there would be net benefits and to decide whether a VM workshop should be conducted.

13. In general VM studies shall be conducted whenever it is perceived that there are likely to be net benefits. In view of the commonly accepted fact that there should be net benefits for major projects and the relatively small cost of a VM workshop, departments should consider the suitability of conducting VM workshops for every major and complex project. It should be noted that net benefits (which may be in terms of time, cost or quality of solution) is the key consideration rather than the mere size of a project. For this purpose, a major project means one having an estimated project cost exceeding $200 million.

14. With departments' recognition of the benefits of VM studies and the comparatively small cost of a VM workshop, it is expected that there would be a marked increase in the number of VM studies to be carried out. Departments should plan ahead and draw up yearly plans on the application of VM.

The form and duration of VM workshops

15. The typical duration of a VM workshop from commencement, pre-workshop, workshop to conclusion is about 6 weeks to 4 months. The actual workshop itself varies according to its purpose and could range between one and five days. From the experience in its application to PWP projects, a VM workshop usually lasts between one and two days.

16. There is no single preferred form. Workshops of longer duration allow more time for in-depth studies of the issues. They may, however, tend to discourage senior personnel of the stakeholders from attending. Departments may consider a two-stage approach with officers having in-depth knowledge making recommendations in the first stage and senior officers attending the second stage to ratify the recommendations. The choice of the form of a VM workshop depends on the particular needs of a project. It is up to a project team to select one which best suits its needs.

17. Alternatively, departments may consider applying a shortened VM study to small scale projects. Similarly, a shortened VM study may be employed for the purpose of resolving specific problems or less complex issues.

Timing of conducting VM workshops

18. VM studies can be conducted at any stage during the life cycle of a project. Obviously, there can be more than one study for a project. However, the most benefits would be derived if they are conducted as early as possible in the process.

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19. For a complex project, a feasibility study is likely to be required before preparation of a Technical Feasibility Statement (TFS). The feasibility study stage is the time when issues are to be identified, ideas generated, options selected and priorities set. The most benefits of a VM study will therefore be derived if it is conducted at this stage. In those situations where a project steering group is to be set up for a proposal, it would be useful to turn the first "meeting" into a VM workshop, and logically to task the project steering group to follow up the recommendations and conclusions of the VM study.

20. For a less complex project which does not require a feasibility study before the preparation of a TFS, the four-month period and the no-consultancy support requirements for the TFS make it difficult for a VM study to be conducted within the same period. Since the project requirements for such projects are likely to be more straight forward, VM studies could be deferred to the earlier parts of the subsequent preliminary design stage. A VM study is still useful at this stage as it serves to refine or redefine requirements and to confirm the selected option.

Facilitation of a VM Workshop

21. The job plan for a VM workshop usually comprises five phases:

- **information phase;**
- **analysis phase;**
- **creativity phase;**
- **judgement phase; and**
- **development phase.**

22. A good VM facilitator will ensure the steering of the workshop team effectively through these phases. The choice of the facilitator will therefore be of fundamental importance to a successful study. In terms of practical qualifications, the facilitator should have:

- **group management skills;**
- **communication skills;**
- **analytical skills;**
- **interpretation skills;**
- **questioning skills; and**
- **lateral thinking skills.**

23. The Hong Kong Institute of Value Management (HKIVM) will update from time to time the Value Management Facilitators List on the HKIVM's website (https://hkivm.org/facilitators/). Departments are at their discretion to choose the most suitable facilitators from the Value Management Facilitators List on the HKIVM's website or other sources. The experience and qualification of the candidates should be taken into account in choosing facilitators, particularly for those not included on the Value Management Facilitators List.

24. In general, the employment of a facilitator not from the project department is preferred as a clear signal of independency. A drawback is that these external facilitators may not appreciate the implications of complex technical issues. This can be overcome by a pre-briefing by the project team. The employment of an internal co-

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facilitator can also help discussions under these circumstances and is encouraged for major projects and complex issues. Internal co-facilitation is also useful in providing experience and training to in-house officers toward the goal in becoming future VM manager or facilitators.

25. With more and more in-house officers trained to become facilitators, the employment of "external" facilitators from another department could be considered. Departments should avoid relying solely on internal facilitators for major projects and complex issues.

Follow-up actions after VM workshops

26. Follow-up actions mainly focus on how to ensure the implementation of an action plan which has been concluded in the last phase (i.e. development phase) of the VM workshop. The VM facilitator should prepare a report immediately after the workshop with the following items:

- **study background,**
- **study findings,**
- **refined or redefined project rationale and objectives,**
- **summary outlines of key functions, with implications in terms of project scope, programme and cost,**
- **descriptions of value improvement options with implications,**
- **outline of action plan, and**
- **other information as necessary in relation to the action plan.**

27. Departments should set up their own procedures to monitor the progress of implementing the action plan. This is particularly relevant in order to ensure the realization of the perceived benefits. Departments have so far been unable to quantify the benefits derived from VM studies. It is recognized that some of the benefits are intangible and that it is not easy to put a percentage saving against them. In cases where it is possible to quantify the benefits, such as redefining project objectives through VM studies, it is useful to have a measure of the benefits in terms of percentage saving of the construction cost. In such cases, departments are advised to consider incorporating into the action plan some systems for measuring cost benefits.

Training of officers

28. In formulating their training plans, departments should be aware that there are two levels of training: to run workshops more effectively and also to be facilitators and co-facilitators. As mentioned in paragraph 24, co-facilitation by an in-house officer provides valuable experience and training opportunities. Departments should maintain a list of officers who are qualified to act as a facilitator or co-facilitator.

Report on the use of VM facilitators

29. To provide a reference for project teams in selecting facilitators, project teams shall compile a report for every VM study and departments shall maintain a referencing system. The reporting and referencing system shall work as follows: -

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(i) Each department appoints a coordinator who will handle all reporting matters within the department.

(ii) Each project team submits to the departmental coordinator a report on the use of VM facilitator in a standard format as in Annex A within 28 days after each VM workshop.

(iii) When there is a need to obtain background information on a candidate, a project team can approach the coordinator of its own department to check whether the candidate has acted as a facilitator and, if necessary, ask the departmental coordinator concerned for a copy of the report.

(iv) If required, the project team may approach the relevant departmental coordinator or the contact persons for particular reports for further details about the VM workshops conducted and the facilitators employed.

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Annex A - Report on use of value management facilitator

(1) Department: _____

(2) PWP No. or any other relevant reference no. (e.g. Block vote no. or contract no.): _____

(3) Project Title: _____

_____

(4) Brief description and stage of project: _____

_____

(5) Name of value management facilitator : _____

(6) Qualification and experience of facilitator: _____

_____

(7) Name of co-facilitator (if any) _____

(8) Value management workshop held on: _____

(9) Duration of workshop: _____

(10) Cost of facilitator (including travel and other expenses, if applicable): _____

(11) Cost of venue: _____

(12) Contact details:

Name : _____

Designation: _____

Telephone No.: _____

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APPENDIX 1.5 TIMEFRAME FOR RESOLUTION OF PUBLIC OBJECTIONS (Ref.: ETWB TCW No. 4/2006 and DEVB's email on 14.10.2014)

Purpose

This note promulgates further guidelines in respect of the timeframe for resolution of public objections with a view to expediting project delivery. It should be read in conjunction with paragraphs 16 - 18 of ETWB TCW No. 4/2006.

Guidelines

2. Works Departments (WDs) are required to step up control and monitoring procedures for resolution of public objections. In this connection, the steering group (SG) to be set up, as required in paragraph 18 of the ETWB TCW No. 4/2006, should be chaired by an officer at D2 instead of D1 level.

3. If all the objections cannot be resolved and the ExCo paper cannot be submitted to the Clerk to ExCo within the first 4 months after expiry of the objection period, the SG may extend the objection resolution period to 7 months.

4. Further extension of the objection resolution period from 7 months to the full period of 9 months as allowed in the relevant ordinance is subject to the agreement of the Director. It should only be considered under very special circumstances or in case of exceptional complicated objections.

5. WDs should note that the above 4-month, 7-month and 9-month periods are counted from the expiry date of the objection period to the date of submission of the ExCo paper to the ExCo Clerk. These time periods are inclusive of the time required by the respective enabling bureaux/department (i.e. EEB, TLB and LandsD) to process the draft ExCo paper. The normal processing time is 40 working days for EEB, 8 weeks for both TLB and LandsD (or 5 weeks for LandsD with their prior agreement in respect of exceptional cases).

6. A pragmatic approach with flexibility should be adopted in seeking agreement to extend the time for objection resolution. The SG may determine the most appropriate time to seek the Director's agreement for extending the objection resolution period. Upon receipt of the Director's agreement to the time extension, the SG should forward a copy to DEVB(WB) for information.

DEVB (WB)
October 2014

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APPENDIX 1.6 GUIDELINES FOR HANDLING OF REQUEST FOR COMPENSATORY WORKS WHICH ARE CLAIMED TO BE FUNG SHUI RELATED IN IMPLEMENTATION OF PUBLIC WORKS PROJECTS

1.0 Purpose

1.1 This Note summarises the current situation of the issues involved, sets out policy and proposes guidelines and procedures to handle requests for compensatory works which are claimed to be fung shui related in implementation of public works projects[1].

2.0 Background

2.1 In undertaking public works projects, affected indigenous villages in the New Territories may demand the payment of Tun Fu (蠹符) ex-gratia allowance for the purpose of conducting Tun Fu ceremony to mitigate the adverse impact of fung shui and ex-gratia allowances for clearance of graves, kam taps (金塔) and shrines. There are established procedural guidelines of Lands Department (LandsD) in handling such claims.

2.2 There are also cases where affected local communities (not necessarily limited to indigenous villages of the New Territories) may demand the execution of certain works which they consider would mitigate the negative impact brought by the public works projects. Sometimes such works requested by the local communities are considered by them as related to fung shui. For the purpose of this note, these works are called 'compensatory works' to distinguish them from the two ex-gratia allowances mentioned in para. 2.1 above.

3.0 Policy to handle local concern

3.1 Public consultation to ascertain the local concern

3.1.1 Relevant policy bureau, client department and works department are required to consult the affected local residents on the details of their projects to accommodate different needs and to address local concerns during project planning and conceptualisation.

3.1.2 For large or complicated projects, a well structured and comprehensive public consultation and/or engagement programme is the foundation to consensus building and is critical to the smooth implementation of a project.

[1] Technical advice should be given to subvented projects under Head 708 to follow the principles of this guideline in handling requests for compensatory works which are claimed to be fung shiu related.

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3.2 Ex-gratia allowances related to fung shui claims

3.2.1 There are two types of ex-gratia allowances related to fung shui claims. These are ex-gratia allowance for Tun Fu ceremonial fees and ex-gratia allowances for clearance of graves, kam taps and shrines payable to indigenous villages affected by the public works projects. These are managed under an established system administered by LandsD in accordance with established guidelines for processing and approval of the claims.

3.3 Compensatory works requested by the local communities which are claimed to be fung shui related

3.3.1 In planning public works projects, works departments will seek to protect the local environment, greening as well as culture and history of the communities, so as to minimise impacts on surrounding environment and local communities. The community facilities affected by the works will be reprovided as far as possible. Works departments follow the same principle in implementing public works projects in both urban and rural areas.

3.3.2 However, there may be cases where the works will cause unavoidable adverse impact or inconvenience to the neighbourhood. In such cases, to ensure smooth implementation of the projects as well as to address the concerns of the residents and to maintain a harmonious relationship with them, certain community facilities may be provided or the existing ones to be improved to alleviate the adverse impact of the public works projects.

3.3.3 Sometimes, residents may claim that these compensatory works are related to fung shui. However, fung shui is actually not a consideration of the departments when these requests are being handled.

3.3.4 It must be stressed that each case has to be considered in the light of its particular circumstances. Throughout the process, the client department, closely supported by the works department, LandsD and relevant District Office, shall discuss the details of the proposed compensatory works with the local community to work out a reasonable solution acceptable to all. The District Office concerned would arrange for and facilitate the liaison, consultation and assessment of local sentiments as necessary. And where applicable, relevant District Office would provide supplement on community, cultural and historical issues relating to the compensatory works.

3.3.5 The guidelines and procedures to handle requests for compensatory works which are claimed to be fung shui related are set out in Annex.

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Works Branch
Development Bureau
May 2011

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Annex

Handling of requests for compensatory works which are claimed to be fung shui related in implementation of public works projects

Guidelines and procedures

1.0 General

1.1 This Annex provides guidelines and procedures on the handling of requests for compensatory works in which affected local communities may claim that their fung shui are affected by the public works projects, and demand the execution of certain works which they consider would mitigate the negative impact.

2.0 Addressing requests for compensatory works which are claimed to be fung shui related by the local communities

2.1 Requests from local communities for compensatory works normally relate to a unique location with its own environmental setting, natural terrain, local character, culture or historical background. As these are all intangible elements, each case should be considered on its own merits and would inevitably involve subjective value judgment. There is no quantifiable standard in deciding the intangible benefits of such claims, but in general, due consideration will need to be given to the natural environment, existing traffic/ pedestrian circulation and access pattern, local tradition, social character, and cultural history of the area in which the works are to be carried out, and a judgement will need to be made on whether the works will facilitate smooth implementation of the projects, bring any benefit or improvement to the neighbouring community, and the financial implications are justifiable and reasonable.

2.2 The need to protect the natural environment and promote greening is important. It is also vital to consider the perception of the local community, including any socio-economical activities that may be affected. As the assessment of the compensatory works will inevitably deal with intangible issues and involve subjective judgement, local consultation by the client department, closely supported by the works department, LandsD and relevant District Office, shall be carried out at an early stage to tap the views of the affected local residents. The requirements of any compensatory works identified at the early stage shall be included into the scope of the respective project.

3.0 Assessment procedures

3.1 Currently, for projects involving significant or a large number of compensatory works, LandsD, relevant District Office and works department will on a need basis form a working group to handle requests for the compensatory works.

3.2 To regularise this arrangement, on receiving any request for compensatory works which is claimed to be fung shui related, LandsD, being the convenor, shall co-ordinate with the relevant client department, works department and District Office and decide to

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set up an interdepartmental working group (IWG) to consider, process and make recommendation on the requests for compensatory works in a structured manner as follows : --

(i) Ensure that all claimed items must be originated from local communities being affected by the public works project.

(ii) Require the claimant to give an account on how they think the public works project would affect them.

(iii) Require the claimant to provide information and explanation on how the proposed compensatory works can help minimise the adverse effect brought about by the works and hence give positive results to the affected local community.

(iv) Each claim and the proposed compensatory works will be assessed on its own merit. Before such proposed compensatory works are accepted in principle for further study, ensure that the amount and value of compensatory works are, prima facie, commensurate with the negative impact caused by the particular public works project.

(v) If the proposed compensatory works are accepted in principle for further study, the IWG shall consider whether the proposed works will facilitate implementation of the projects, bring any benefit or improvement to the neighbouring community, and whether the surrounding environment, greening effect as well as the character, culture or tradition of the area can be preserved or enhanced, and whether the financial implications are justifiable and reasonable. The related works will also be passed to works department for further studies including the exploration of technical feasibility of the proposed works, identifying funding source, addressing land issues, programme of the works, procurement strategy, and also maintenance and management of the facilities after completion.

(vi) Notices may be posted in parallel to seek the views of the local residents to facilitate the IWG to assess whether the proposed works will bring any benefit or improvement to the neighbouring community. Other detail arrangement concerning posting of notices and how to collect views from the local residents will be worked out and decided by the IWG depending on the particular circumstances of each individual case.

(vii) Based on the findings of the works department on the technical feasibility and assessment of the compensatory works as detailed in item (v) above, and also taking into account views sought in item (vi), the IWG will decide whether the requests for compensatory works shall be recommended for the approval by the Vote Controller of the funding source for the compensatory works.

(viii) With approval by the Vote Controller or his/her representative, the works department will implement the compensatory works in strict compliance with established administrative rules including funding control and tendering procedures under Stores and Procurement Regulations. If the requested compensatory works is a stand-alone project to be carried out separately from

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the public works project concerned, the funding requirements of such compensatory works will need to be sought in accordance with the established procedures for resources allocation.

3.3 In case consensus cannot be reached, the IWG shall seek the steer of the responsible policy bureau of the public works project concerned.

3.4 The works departments and LandsD shall keep records of all the cases processed by the IWG set up under respective public works projects. The record would serve as internal reference in handling similar cases in the future to ensure consistency in the recommendations made by different IWGs.

3.5 If the claimant only requests for the two ex-gratia allowances as stated in para. 3.2 of the Note, setting up of the IWG is not required as there are already established procedures and guidelines under LandsD to deal with the matter.

3.6 A flowchart for assessment of compensatory works is at Appendix A. An outline of the Terms of Reference for the IWG is at Appendix B.

4.0 Assessment guidelines

4.1 Preserving or restoring the environment in its original state shall be considered as far as practicable to avoid any adverse impact that may be caused.

4.2 However, if owing to site constraints and other factors, preservation or restoration is not feasible and changes to the local environment is unavoidable, this must be fully justified with alternative options or design proposals, to confirm the impracticability of preservation or restoration and to explore other possible solutions to the problem. The alternative options will be presented to the IWG to facilitate consideration of the proposed compensatory works. The alternative options can also be used for local consultation.

4.3 The recommended option endorsed by the IWG should facilitate smooth implementation of the public works project, and balance the interest of preserving the natural environment, local tradition, social character and cultural history of the area. The local sentiment against the compensatory works, if any, the benefit that it may bring to the community, and reasonableness of the financial implications of such works should also be considered as a whole.

4.4 An assessment template containing the information submitted by the claimant together with assessment of the works departments is at Appendix C for easy reference.

4.5 More project specific and detailed assessment criteria can be developed by the working group to suit particular project need before processing the requests received.

5.0 Design and implementation of compensatory works

5.1 Design of the compensatory works, including layout, external treatments, colour, texture and choice of materials shall be worked out with consultation of the affected

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residents to ensure compatibility with the local environment and its being conducive to the style, character, local tradition, social environment, and cultural history of the area.

5.2 A practical programme, funding proposal, procurement strategy, and a maintenance and management plan for the recommended compensatory works shall also be provided by the works department as part of the assessment by the IWG.

5.3 Established financial control, project delivery, contract administration and tendering procedures shall be followed when the compensatory works are implemented. In particular, Government procurement principles of open and fair competition for the best value of money shall be adhered to. Works Department will be responsible for preparing the tender documents and tender assessment. Under no circumstances shall the claimants be involved in the tendering process to avoid the risk of collusion.

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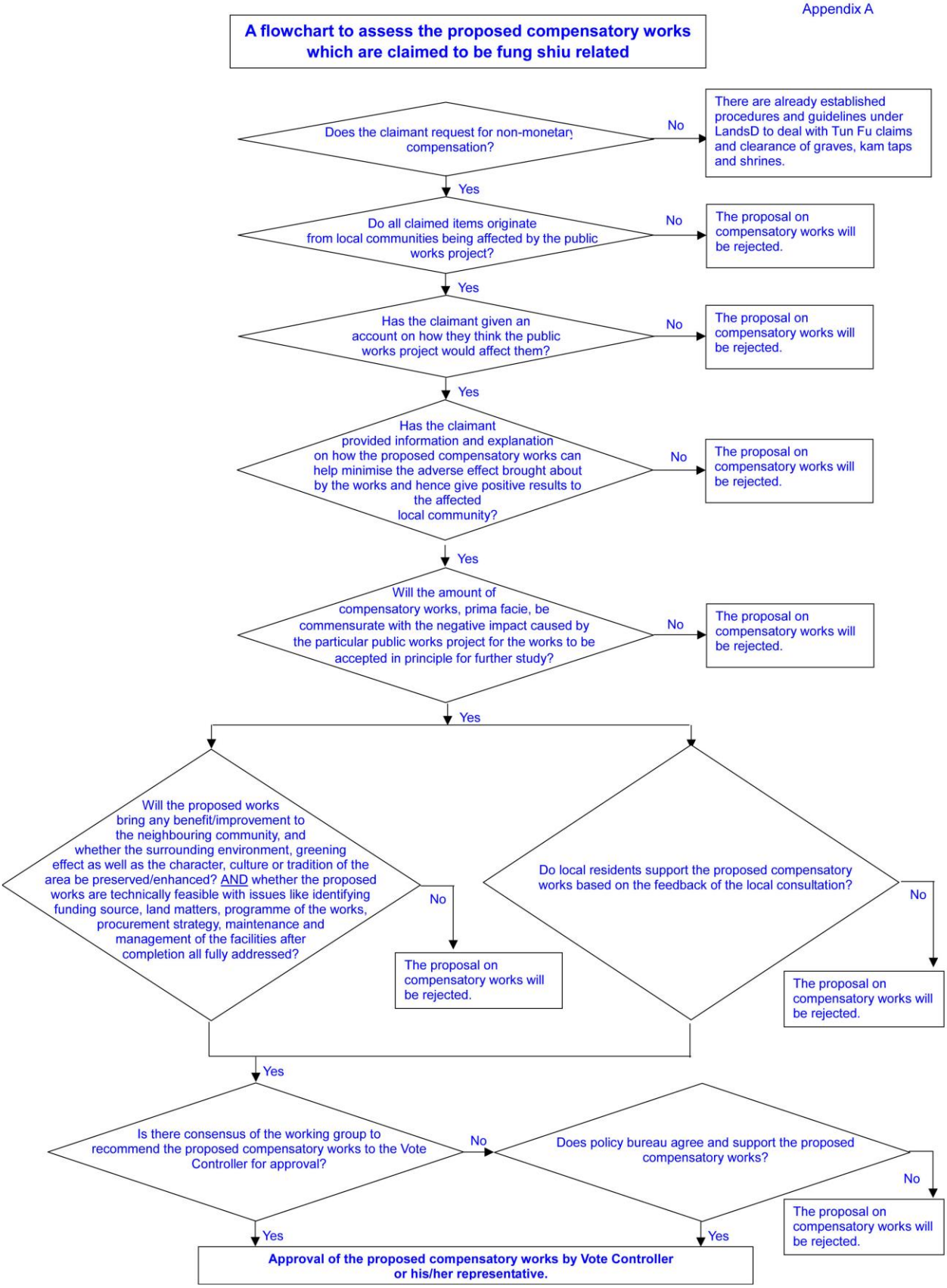
Appendix A



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Appendix B

Inter-departmental Working Group (IWG) to handle requests for compensatory works which are claimed to be fung shui related in implementation of public works projects

Terms of Reference

1. To closely liaise between the departments concerned on the handling of requests for compensatory works which are claimed to be fung shui related in implementation of public works projects.

2. To consider, assess and make a recommendation to the Vote Controller for approval of the proposed compensatory works.

3. To keep records and handle enquiries of all the cases processed by the IWG and make such information available for future reference.

4. To refer unresolved matters to the relevant policy bureau to make a decision on the recommendation for the proposed compensatory works for the Vote Controller's approval.

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Appendix C

To: Vote Controller

via Working Group[1] on [XXXX]

Assessment on proposed compensatory works for
(project title)

As requested by the Working Group on [XXXX], we have completed the assessment on the proposed compensatory works for [project title]. The key findings are set out below --

1. Project scope and description

(*Describe the project scope, and attach the outline layout plan indicating the local community being affected by the project and the location of the proposed compensatory works.*)

2. Compensatory works proposed by the claimant[2]

The claimant proposes the following works to be carried out --

(*Describe the details of the proposed compensatory works with drawings as necessary.*)

3. Benefit of the proposed compensatory works as submitted by the claimant[3]

According to the submission from the claimant, the proposed compensatory works will bring the following benefits --

(*Provide details of the benefit of the proposed compensatory works that may bring to the neighbouring community as submitted by the claimant.*)

Assessment of the information submitted by the claimant is provided in detail in para. 11.

4. Assessment on the proposed compensatory works[4]

(Describe the details of the effect of the proposed compensatory works on the environment based on the assessment criteria (as endorsed by the working group) as follows --

[1] Membership of the working group comprises Lands D as the convenor, together with the relevant works department, client department and District Office.

[2] Details under para 2 is based on the information provided by the claimant.

[3] Details under para 3 is based on the information provided by the claimant. Assessment is provided in para 11.

[4] Details under para 4 are the assessment by works department based on the assessment criteria endorsed by the working group.

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(i) Location and distance between the local community claimed to be affected and the public works project concerned.

(ii) Location, distance and numbers of the proposed compensatory works and their relation with the affected local community, such as proximity with the residential sites, burial grounds or other areas/facilities with local significance.

(iii) Whether the proposed compensatory works can help facilitate smooth implementation of the project.

(iv) Whether and how the proposed compensatory works can enhance the character and distinctiveness of the area.

(v) Whether and how the proposed compensatory works can help to address local sentiment arising out of the change in the natural environment, local tradition, social character and cultural history of the area resulting from the project.

(vi) Effects on any areas with acknowledged special interests/values or with special local significance.

(vii) Whether the proposed compensatory works involve constructing, removing and rebuilding, improving, repairing and refurbishing any special features which may contribute to the significant style, character, existing traffic/ pedestrian circulation and access pattern, local tradition, social environs, and cultural history of the area.

(viii) Whether the cost of the proposed compensatory works are justifiable and reasonable.

Note: More project specific assessment criteria can be included (such as the request of particular groups of residents) to give a comprehensive view to facilitate the assessment.)

5. Alternative options

(*State whether preserving or restoring the environment in its original state is possible. Set out alternative options or design proposals to confirm the impracticability of preservation or restoration and to explore other possible solutions to the problem.)*

6. Land Requirements

(State the implications of the compensatory works from a land perspective, including availability, location, present zoning and whether planning permission/amendment to the existing zoning is required.)

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7. Local consultation

(In consultation with the relevant District Office, state the following -

(i) Describe the local consultation process with dates and state the key points of concern raised by the local community, if any.

(ii) Whether the proposed compensatory works are supported by the local community.)

(iii) Assessment on local reaction if the proposed compensatory works are rejected.

8. Project Programme and procurement strategy

(Attach the implementation programme barchart for the proposed compensatory works.)

(Describe the procurement strategy on how the proposed compensatory works would be implemented.)

9. Capital Cost Estimate

(State a rough order of cost as follows.)

(a) The preliminary cost estimate is $[ ] at September [ ] price level to be funded under [state the source of funding.]

(b) A rough breakdown of the capital cost estimate is as follows –

	$ million (MOD)
Design & Related Services	XXX
Resident Site Staff	XXX
Site Investigation	XXX
Building works	XXX
Contingencies	XXX
Total	XXX

(c) The annual cash flow is as follows –

Financial Year	$ million (MOD)
e.g. 20XX-XX	XXX
20XX-XX	XXX
20XX-XX	XXX
Total	XXX

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10. Maintenance and management responsibilities

(State the detailed arrangement of the maintenance and management responsbilities. State the source/detailed arrangement of funding of recurrent costs, if applicable.)

11. Overall assessment

(State whether on balance, the proposed compensatory works are effective in resolving the negative impact caused by the works project as claimed. And state whether the works are recommended for approval by the Vote Controller.)

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Works Department
[Month Year]

c.c. Policy Bureau

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APPENDIX 1.7 MARKET RESEARCH GUIDELINES FOR PUBLIC WORKS PROCUREMENT (Ref: SPR 350(e) and FAQ for Procurement Matters)

1. Purpose

1.1 In general, the purpose of market search is to provide procuring departments with relevant, accurate, reliable, valid and current information for conducting a procurement exercise.

1.2 Market research and analysis helps procuring departments to better understand the services likely to be available in the market, technology trends, number of potential bidders, etc. to determine project delivery strategy and tendering strategy.

2. Need to conduct market research

2.1 Procuring departments may conduct market research to (i) determine project delivery strategy and (ii) tendering strategy.

2.2 At project planning and design stage, procuring departments may conduct market research to acquire information to determine the mode of procurement. Better understanding of the market allows procuring departments to make informed decision for design options, works implementation programme, cost estimates and procurement method.

2.3 In preparation of the tender specification, procuring departments should ensure an adequate number of potential tenderers satisfying the minimum requirements stipulated in the tender so as to maintain sufficient competition. In particular, market research should be conducted to identify reasons of low response rate of previous tenders of similar nature. An appropriate balance should also be struck against the acquired quality level of the service, the associated cost of the services and the competition.

3. Ways to conduct market research

3.1 There are many ways to obtain information about the market. Departments may decide the appropriate ways of conducting market research to suit specific needs of the project. The following sample avenues are not meant to be exhaustive :

- **Desktop study via internet research**
- **Experience from previous procurement of similar nature**
- **Public works procurement data from Public Works Programme Information System, Contractor Management Information System, Public Works Manpower Estimation System, Public Works Programme Construction Site Safety and Environmental Statistics System, relevant tender boards and consultants selection boards etc.**
- **Market research exercise from relevant stakeholders such as trade associations**

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and professional bodies

3.2 Departments may also make reference to Section V of "Frequently Asked Questions for Procurement Matters" published by GLD in conducting market research exercise from relevant stakeholders. (The document is available at Central Cyber Government Office (CCGO) Portal: http://gld.host.ccgo.hksarg/gld/faq_proc/faq_proc.html)

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APPENDIX 1.8 GUIDELINES AND PROCEDURES FOR ENVIRONMENTAL IMPACT ASSESSMENT OF GOVERNMENT PROJECTS AND PROPOSALS (Subsumed from ETWB TCW No. 13/2003)

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ANNEX H Examples of "Environmental Implications" or "Environmental Considerations" Paragraphs for TFS and PWSC Paper

ANNEX I Checklist for Environmental Appraisal of Policy or Strategy submitted to the Executive Council

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THE ENVIRONMENTAL IMPACT ASSESSMENT ORDINANCE

1.1 Commencement of the Ordinance

1.1.1 The Environmental Impact Assessment Ordinance (Cap. 499) (EIAO) was enacted on 4 February 1997. The Technical Memorandum on Environmental Impact Assessment (EIA) Process (the Technical Memorandum) passed the negative vetting of Legislative Council (LegCo) in June 1997. The EIA (Fees) Regulation and the EIA (Appeal Board) Regulation were also endorsed by the Provisional Legislative Council in November 1997.

1.1.2 EIAO came into operation on 1 April 1998.

1.2 Application of the Ordinance

1.2.1 The purpose of EIAO is to avoid, minimize and control the adverse impact on the environment arising from projects classified as "designated projects" under the Ordinance, which are listed in Schedules 2 and 3 of the Ordinance, through the application of EIA process and environmental permit (EP) system.

1.2.2 Designated projects in Schedules 2 and 3 have to go through EIA process, but only those listed in Schedule 2 require EP. The general guidance to EIAO is provided in the booklet "A Guide to the EIAO" published by Environmental Protection Department (EPD), which can be viewed in EPD's web-site: https://www.epd.gov.hk/eia.

1.2.3 EIAO binds the Government. All government projects or proposals that fall within the description under Schedule 2 or 3 of EIAO shall follow the procedure laid down in the Ordinance when seeking approval of EIA report and/or issue of EP from EPD. No designated project listed in Schedule 2 shall be constructed, operated or decommissioned without a valid EP under EIAO or contrary to the conditions given in the EP unless the designated project has been approved or authorized under those Ordinances and Regulations listed in sections 9(2) and 9(3) of EIAO or has commenced construction or been in operation before 1 April 1998. Notwithstanding, the proponent would still have to comply with the environmental mitigation measures or requirements recommended in earlier studies of the project, and this appendix if appropriate.

1.2.4 The provisions on offences under sections 26 and 27 of EIAO do not apply to government officers. If any government officer acts in contravention of the Ordinance and such action is not terminated immediately to the satisfaction of the Director of Environmental Protection (DEP), DEP shall report such case to the Chief Secretary for Administration. If any person not being a government officer, such as a consultant or an agency, handles the EIA process and/or its implementation for a government project, then he will be liable to the proceedings taken against him for any offence under sections 26 and 27 of EIAO.

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1.3 An Overview of the Statutory Requirements

1.3.1 EIAO provides the framework for assessing environmental impacts of a designated project defined under the Ordinance and for making implementation of prevention and mitigation measures enforceable through the EP system. DEP, in consultation with other relevant authorities, is responsible for regulating and enforcing the EIA process under EIAO.

1.3.2 For a designated project under Schedule 2 of EIAO where EP is required before the construction, operation or decommissioning of the project can commence, the proponent is required (pursuant to section 5(2) of EIAO) to submit a project profile either to:

(a) apply for EIA study brief for conducting EIA studies and seek approval of the EIA report from DEP under EIAO; or
(b) seek permission to apply directly for EP according to the provisions laid down in sections 5(9) to 5(11) of EIAO.

1.3.3 Unless DEP permits the proponent to apply directly for EP for case (b) of paragraph 1.3.2 above, the proponent shall follow the procedure for case (a) above pursuant to section 5(7) of EIAO to apply for a study brief for conducting the EIA study and preparing the EIA report for DEP's approval. If the EIA report is approved by DEP after the public consultation as explained below, it will be placed in the register pursuant to section 8(5) of EIAO and the proponent[1] can apply for EP under section 10(1) of EIAO.

1.3.4 EIAO also requires proponents of engineering feasibility studies of major development that falls within the description set out in Schedule 3 of EIAO to conduct EIA study and submit EIA report for approval by DEP. Proponents have the option of carrying out detailed assessments on individual projects listed under Schedule 2 within the study area to a level sufficient for the issuing of an EP thus obviating the need for carrying out further individual EIAs at a later stage. In that case once the Schedule 3 EIA is approved and placed on the Register, the proponents of the individual projects can apply under section 5(9) of EIAO for permission to apply directly for EP.

1.3.5 The Advisory Council on the Environment (ACE) and the public will be consulted in EIA process. There is an opportunity for ACE and the public to comment on the project profile submitted by a proponent before the EIA study brief is issued by DEP, or before permission is given to the proponent to apply directly for EP. ACE and the public will also have an opportunity to comment on the EIA report before decision is made by DEP on whether the report should be approved or not. The arrangement for these two opportunities is given below:

[1] For the purpose of this Appendix, "proponent" means government department or its consultant, or may be an outside agency who is responsible for the implementation of a particular stage of a project. Proponent can vary at different stages of a project in question.

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(a) Project Profile

On the day following the submission of the project profile to DEP, the proponent is required under EIAO to advertise in two generally circulated newspapers (one in Chinese and the other in English) the availability of the project profile. ACE and the public may comment on the project profile on the environmental issues covered by the Technical Memorandum within 14 days.

(b) EIA Report

When DEP considers that the EIA report meets the requirements of the EIA study brief and the Technical Memorandum, the proponent is required to advertise the availability of the EIA report (with the Executive Summary in English and Chinese as stated in Annex 11 of the Technical Memorandum) once every 10 days during the 30-day public inspection period and make it available at specified locations for the public to comment during this period. At the same time, the proponent will be advised whether a submission to ACE is required. ACE may give its comments on the EIA report to DEP within a period of 60 days in parallel to the 30-day public inspection period.

1.3.6 Comments from ACE and the public will be taken into account by DEP before issuing the EIA study brief, approving the EIA report or permitting the proponent to apply directly for EP. All decisions taken by DEP will be placed on a Register set up under EIAO. The Register is open to the public for inspection during normal office hours and on EPD's web site. As part of the Register, DEP maintains a list of EIA reports approved before EIAO came into operation.

1.4 Material Changes to Exempted Designated Project

1.4.1 Under section 9(4) of EIAO, a material change to an exempted project[1] requires an EP under the Ordinance unless it is subsequently exempted. The application for exemption shall follow the statutory procedures and requirements under EIAO. "Material change" as defined in Schedule 1 of EIAO means a physical addition or alteration to a designated project, which results in an adverse environmental impact as defined in section 6.1 of the Technical Memorandum.

1.4.2 For a material change to an exempted project, the proponent can apply under section 5(10) of EIAO for permission to apply directly for EP if the impact of the material change and the mitigation measures described in the project profile meet the requirements of the Technical Memorandum.

1.5 Seeking Confirmation on Contiguous Government Projects

[1] Material change to a designated project or to an environmental impact is further elaborated in section 6 of the Technical Memorandum.

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1.5.1 An application can be made under section 4(5) of EIAO to seek confirmation from DEP whether certain contiguous government projects are to be treated as a designated project. DEP shall reply within 14 days upon receipt of the application with a copy to SEE. If agreed, a written specification for such contiguous projects for being treated as a designated project will be passed to the relevant proponent in DEP's reply.

1.6 Arrangement for Incorporation of Environmental Permit into Contract

1.6.1 Depending on the nature of the project and the recommendations in the EIA report, proponent may choose to apply for a single EP for a project or separate EPs for various stages of a project, such as construction, operation and decommissioning.

1.6.2 For a complicated project to be implemented in different phases, such as new town development or major trunk road system, it is advisable to have separate EPs for different phases of the project development in order to maintain flexibility. Furthermore, proponent may choose to have separate EPs for different works contracts even under the same phase of the project development.

1.6.3 To maintain overall programme control and continuity, it is recommended that proponent shall apply for the necessary EP(s) before the commencement of project construction and hold the EP(s) throughout the construction period. Such arrangement will ensure the EP is in place immediately after the award of the contract and hence the contractor can rely on the EP issued to the proponent to commence works on the site without the need to apply for a further EP under section 12 of EIAO. The arrangement will also enable the proponent to have direct control of the application for variation of EP conditions when it is necessary to do so. Even though the permit holder is the proponent and not the contractor, the contractor shall remain fully liable under EIAO for compliance with the conditions of the EP provided that the contractor has been notified about the permit conditions.

1.6.4 To ensure that the contractor has the full knowledge of the conditions of the EP, a copy of the EP issued to the proponent shall be included in the Particular Specification to form part of the tender document and hence the contract. As part of the standard conditions of the EP, the contractor shall display the EP at the site throughout the construction period. The proponent shall notify the contractor any subsequent change or variation to the conditions of EP.

1.6.5 To safeguard against any unnecessary claims for extension of time and additional costs from the contractor due to application for a further EP or any subsequent variation to the conditions of EP, the following standard clauses shall be included in the Particular Specification for works contracts where EP has been obtained by the proponent for the works.

> *"The Contractor shall observe and abide by the conditions set out in the environmental permit attached at Annex xx [to be inserted by the Architect/Engineer] when carrying out the Works [or Section yy of the*

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Works where appropriate]. The Contractor shall display the environmental permit (or any revision thereto as may be provided to him by the Employer) at the Site throughout the construction period. The Contractor needs not apply for a further environmental permit for the Works. The Architect/Engineer will coordinate any application for variation of the EP conditions where it is necessary and shall notify the contractor upon any change or variation approved by DEP. If the Contractor chooses to apply for and hold a further environmental permit for the Works for any reasons, he can do so but will be at his own risks and he will not be entitled to an extension of time or to any compensation or cost."

1.6.6 In the event that the contractor applies for a further or a variation to an EP, DEP will notify the holder of the said EP upon receipt of such application.

1.7 Variation of Environmental Permit Conditions

1.7.1 Environmental monitoring and audit programme, if required, will help to identify the need for variation of EP conditions during project implementation, and where necessary consultation can be made with DEP during the environmental monitoring and auditing of the project.

1.7.2 Where there is a need for the variation of EP conditions, the proponent shall apply for such variation of the EP under section 13 of EIAO. For those variations where the environmental performance requirements set out in the EIA report of the project may be exceeded or violated even though the mitigation measures have been in place, DEP may require the proponent to submit an EIA report for the variations sought. In such cases, the proponent shall follow the statutory procedures to apply for a study brief and to prepare the EIA report as set out in sections 5 to 8 of EIAO. For cases where EIA report is not required, DEP will issue an amended EP within 30 days. The proponent shall give a copy of the amended EP to the contractor for compliance and display at the site.

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2. PROGRAMMING CONSIDERATION FOR PUBLIC WORKS PROGRAMME UNDER EIAO

2.1 General

2.1.1 Notwithstanding the document exchange procedures set out herein for the fulfilment of EIA process, proponent must appreciate the importance of making use of every opportunity for early consultation (formally or informally) with EPD, ACE, District Councils (DC), green groups and all interested parties, including those whose livelihoods might be affected by the project (Continuous Public Involvement (CPI) as promoted by DEP). The consultation can start long before the checking on whether the project is a designated project or in the project profile preparation stage etc.. Early consultation is particularly important for large-scale projects where matters such as alignment, choice of site or orientation may be significant in terms of environmental impact. Proponent should treat EIA process as part of the design process for ensuring that a project does not adversely affect the environment, rather than some extra procedures that must be followed. Proponent should provide adequate support to EIA process to avoid, minimize and control the adverse impact on the environment due to the project works. A spirit of concern for the environment on the part of the proponent is essential to the smooth passage through EIA process.

2.1.2 **Annex A** to this Appendix (for simplicity, "annex" hereinafter referred to in this Appendix means the annex to this Appendix) shows how the Public Works Programme (PWP) procedures can dovetail with the requirements of EIAO for a project which is a designated project under the Ordinance and is not exempted from it. It reflects the procedures for submitting a project profile during the Technical Feasibility Statement (TFS) stage or after its completion.

2.1.3 When preparing TFS for a project, proponent shall, in consultation with DEP, state whether the project is a designated project. If the project is a designated project, the proponent shall submit a project profile to DEP who shall, in accordance with the procedures under EIAO, either issue an EIA study brief for the project or grant the permission to apply directly for EP whichever is appropriate. Alternatively, the proponent may submit the project profile to DEP after completion of TFS, which shall contain a statement that the procedures and requirements under EIAO shall be followed.

2.1.4 EIA study for a designated project, if required, shall be carried out and approved before the construction of a project is upgraded to Category A. For a Category D project which is also a designated project under EIAO, EIA study should be carried out and approved before the project is included in Category D. The key conclusions of the approved EIA report or the conditions attached to the permission to apply directly for EP shall be stated in the Environmental Implications (EI) paragraph of the PWSC paper when the project is upgraded to Category A or included in Category D where appropriate. For design and build or build-operate-transfer projects, the outline procedures are laid down in **Annex B**.

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2.1.5 Examples of paragraphs with typical environmental implications that may be incorporated in TFS or PWSC paper for designated projects of government are given in section 5 of this Appendix.

2.2 Parallel Actions on Gazetting and EIA Process

2.2.1 To streamline the public works procedures and bring forward the delivery of public works, it was decided that with effect from 20 December 2001, the statutory gazetting of a project under the relevant Ordinances, i.e. the Foreshore and Seabed (Reclamation) Ordinance, Roads (Works, Use and Compensation) Ordinance, Railways Ordinance and Town Planning Ordinance, can be done in parallel with EIA process. A bar chart demonstrating this concept with a sample project is shown at **Annex C**.

2.2.2 Works director for a designated project under EIAO should consider positively the option of gazetting the project before the full completion of EIA process, as soon as there are adequate EIA findings to enable the project layout to be sufficiently determined for the purpose of gazetting.

2.2.3 The option of parallel gazetting should not however undermine the need to ensure that the finally adopted project scheme is in full compliance with EIAO. The EIA report will continue to be subjected to inspection and consultation with ACE and the public under EIAO. All comments received will be taken into account by DEP in deciding whether the EIA report is to be approved. Where a project is gazetted but subsequent changes are found necessary as a result of EIA process, such changes should be made even if it might necessitate re-gazetting of the project. Hence, in deciding whether or not to gazette a proposed project in parallel with EIA process, works director should exercise his judgment on the benefits of time saving against the risk of having to make subsequent alterations and re-gazette the project should a change be necessary upon the completion of EIA process. It should be handled with great caution if it is envisaged that any environmental issues of the project would arouse public concern.

2.2.4 Despite the availability of the option of parallel gazetting, works director for a designated project should not seek authorization of the proposed project under the respective Ordinances before the EIA report is approved by DEP or permission has been obtained from DEP to apply directly for EP. Proponent should note the stipulated time frame required within which the authorization of the Executive Council (ExCo) should be obtained after gazetting and ensure that the EIA report is approved or permission to obtain from DEP to apply directly for EP is granted within this time frame.

2.3 Consultation with ACE before Completion of EIA Process

2.3.1 For major project or project involving complex or controversial environmental issues, proponent is encouraged to arrange briefings with ACE or its EIA Subcommittee on the initial findings of EIA studies before the full completion of EIA process, whether or not parallel gazetting as mentioned in paragraph 2.2 above is intended. ACE in general welcomes early dialogue with proponent on project involving major or controversial environmental issues. Its

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EIA Subcommittee is also prepared to have informal dialogues with proponent upon request on a non-committal basis.

2.4 Application for Environmental Permit

2.4.1 Upon approval of EIA report, proponent may at any time apply to DEP for EP, which in any case should be obtained prior to the commencement of the construction. The arrangement for incorporation of EP into a contract is given in section 1.6 above. The EP Conditions should be included in the contract documents and/or consultancy briefs if appropriate.

2.5 Consultation with DC and ACE after completion of EIA Report

2.5.1 Under section 7 of EIAO, there are requirements for EIA report to be exhibited to the public for inspection and, if required, submitted to ACE for comments. Proponent will be notified on the need to submit EIA report to ACE at the time when it is advised by DEP that the EIA report is suitable for exhibition to the public for inspection under EIAO.

2.5.2 Although there are no legal requirements under EIAO to consult bodies other than ACE, proponent is advised to liaise with relevant District Officers for arranging consultation with relevant DC and other affected sectors on the findings of EIA study, in parallel with the inspection of EIA report. Where necessary, proponent should also liaise with other relevant advisory bodies on the findings of EIA study during the same period. Proponent should also send copies (of suitable media) of the approved EIA report to the reference libraries of the Hong Kong Public Libraries, the Public Enquiry Service Centre of relevant District Office(s) and the library of the LegCo Secretariat.

2.6 Consent from SEE for Matters under EIAO

2.6.1 Proponent under section 5(11) of EIAO to seek approval for applying directly for EP requires the consent of SEE before DEP can give the permission. If DEP is satisfied that the environmental impact of the designated project is unlikely to be adverse and the mitigation measures meet the requirements of the Technical Memorandum, DEP will submit his recommendation together with the proponent's submissions to the Administrative Assistant to Secretary for the Environment and Ecology (AA/SEE) to seek the consent of SEE at least 15 days before the expiry of the 45 day period under section 5(7) of EIAO. DEP will keep the proponent informed of the progress.

2.6.2 In addition, the consent of SEE is required for cancellation or variation of an EP and cessation order under sections 14(1) and 24 of EIAO respectively. DEP will notify the proponent and other departments involved in these actions.

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3. MANAGEMENT OF EIA PROCESS IN PUBLIC WORKS PROGRAMME FOR DESIGNATED PROJECT

3.1 General

3.1.1 In order to identify potential environmental problems, to work out effective measures to avoid or address the problems at an early stage of a project and to ensure greater efficiency and certainty in project delivery, communication among all parties concerned throughout the EIA process is essential. Any problems that cannot be resolved at the working level should be escalated to the appropriately senior level for resolution in a timely fashion.

3.2 Role of EPD

3.2.1 To facilitate the EIA process of government projects, EPD should, without compromising its statutory functions under EIAO, enhance its advisory role and provide, in a proactive manner, advice to proponents on the procedures and requirements under EIAO, the related Technical Memorandum and any other environmental issues arising from EIA process. This will help identify potential environmental problems and work out effective measures to smooth out EIA process. Currently EPD has set up an EIA Helpdesk direct hotline 2802 3111 for enquiries over EIAO procedures and other general matters including training programmes.

3.2.2 EPD should be as specific as possible in drafting EIA study brief, in giving advice and in requesting further information from proponent so as to enable proponent to have better and clearer picture on how to comply with EIA requirements.

3.3 Role of Proponent

3.3.1 The responsibility for ensuring an efficient and effective EIA process lies not only with EPD but also with proponent. It is therefore essential that the EIA studies should not be on the critical path of the project programme. Apart from integrating environmental concern in project planning and implementation, proponent should take a proactive role and start an early dialogue with EPD, ACE and other relevant authorities under EIAO to identify potential environmental problems and work out effective measures to avoid or minimize environmental impacts at an early stage. Proponent should assume the full ownership of his project throughout the EIA process.

3.4 Environmental Study Management Group

3.4.1 EPD has formed Environmental Study Management Groups (ESMG) and will convene meetings upon request of proponent. Such meeting provides an effective forum for

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examining environmental problems, drawing up proposed mitigation measures and discussing and resolving, where possible, differences between EPD and proponent.

3.4.2 To make use of the system, consideration should be given to form such ESMG on the initiative of either EPD or proponent at the early stage of a project even before the formal EIA process begins. ESMG should comprise EPD's officers and the proponent at an appropriately senior level if the project is strategically important and time-critical. DEP would be the convenor of ESMG meeting and where necessary, representatives from other relevant authorities will also be invited to attend the meeting.

3.4.3 ESMG meetings, if convened before the proponent's formal submission under EIAO, are conducted on administrative and advisory basis to help proponent to comply with the requirements under EIAO. Except for those matters that require specific written approval as set out in the EIA study brief, no detail written responses, except for the meeting notes, shall be produced by relevant authorities to any informal submission from the proponent. The discussion before the formal submission shall not absolve the proponent from his responsibilities under EIAO.

3.4.4 Under section 9.1 of the Technical Memorandum, DEP shall take advice from other relevant authorities on matters prescribed in the Technical Memorandum. Therefore, it will be necessary for DEP and other relevant authorities to give priority to application or report submitted by proponent under EIAO to speed up the EIA process. Except for straightforward cases, DEP would normally convene ESMG meeting among the relevant parties concerned to discuss the EIA report submitted by the proponent.

3.5 Establishment of Early Warning System and Conflict Resolution Mechanism

3.5.1 According to past experience, most conflicts arising from EIA process could be satisfactorily resolved if they are brought to the attention of senior management of EPD and proponent at the earliest possible stage. To avoid deadlocks at working level, DEP and the senior management of proponent at a level of D2 or above must be made aware of these conflicts so that they could come in timely to try to resolve them. In this connection, EPD, proponent and other relevant authorities involved under EIAO should set up an early warning system and the corresponding communication mechanism for the senior management to discuss all contentious EIA-related issues related to the project. In addition, a conflict resolution mechanism should be established so as to resolve contentious issues as early as possible.

3.5.2 Close monitoring and early warning system for proponent and the corresponding conflict resolution mechanism as mentioned in paragraph 3.5.1 above should include the following arrangements:

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(a) Project staff at working level should establish a constant channel of communication with EPD staff at an early stage of a project, which can be as early as before the preparation of TFS, and should maintain the dialogue for the subsequent stage of EIA process. Consideration should be given to make use of ESMG meeting to establish such communication channel with EPD where appropriate.

(b) Regular meetings (say, monthly) should be held amongst project officers and the directorate officer about project implementation and identification of the likely problems that will be encountered in EIA process. Should the problem be serious, the directorate officer should liaise or organise a meeting at a suitable level with EPD to solve the problem at an early stage.

(c) There should also be regular meetings between proponent and EPD at Deputy Director level to discuss problems on EIA studies of projects. Unresolved issues should be referred to DEP and heads of the works department/agency concerned.

(d) Notwithstanding the regular meetings and communication channels mentioned above, any urgent cases on EIA related issues should be resolved at all appropriate levels on ad-hoc basis.

(e) The progress on EIA process of individual projects should be reflected in the Public Works Management System (PWMS) for monitoring and control of works programmes. Works Departments shall ensure to update the information in PWMS sufficiently, frequently and regularly.

(f) There are other regular forums such as EIAO User Liaison Groups to discuss and communicate on EIA issues. Proponent should make use of these forums to communicate and resolve general EIA issues with EPD.

3.5.3 Some issues may involve conflicting policy considerations such that the differences or conflicts may not be able to resolve at departmental level. When such situation arises, any unresolved conflict would be referred to the corresponding Permanent Secretary(ies) in EEB to seek ways for a resolution.

3.6 Attending Meeting of ACE

3.6.1 Proponent may be invited to attend meeting and make presentation to ACE or its EIA Subcommittee for discussion of his EIA report during the consultation process. Before attending the meeting, proponent should make sure that his representatives (including those of consultants and works departments) are well prepared and fully understand all the environmental issues involved and the solutions identified. They should be fully conversant with the content of the EIA report submitted, and be able to respond to the

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concerns/queries raised at the meetings. For project with controversial issues, proponent should organize a pre-meeting amongst the representatives before attending the meeting of ACE or its EIA Subcommittee where appropriate.

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4. ROCEDURES FOR DEALING WITH ENVIRONMENTAL IMPLICATIONS OF GOVERNMENT PROJECTS OR PROPOSALS NOT COVERED BY EIAO

4.1 Non-designated Projects

4.1.1 Projects that do not fall within the requirements of EIAO are classified as non-designated projects, which however may also have a potential to cause adverse impacts to the environment. The community has a high expectation to proponents to be environmentally conscious and responsible for the design, construction and operation of a project, irrespective of whether it is a designated or non-designated project under EIAO. Therefore, proponents, including their consultants and contractors, should give sufficient regards to protecting the environment during design, construction and operation particularly for activities with possible impacts on sensitive areas of the environment. The relevant guidelines issued by EPD should be observed so that all necessary precautionary measures could be made to avoid potential environmental damage and, if avoidance is not practicable, to minimize adverse environmental effects.

4.1.2 Subject to the advice of DEP, site investigation work which is for the purpose of detailed design and is not considered as the first phase of a designated project can be classified as a non-designated project. The streamlined procedures set out in para. 4.2 below for non-designated projects are therefore applicable for site investigation works. Special attention should be given to checking against whether the proposed site investigation work is within the sensitive areas listed in section Q of Schedule 2 of EIAO. If the proposed site investigation work falls within the environmentally sensitive areas, such work may become a designated project and the proponent should follow the statutory procedure to obtain permission for direct application for EP under section 5(1)(b) of EIAO.

4.2 Streamlined Procedures for Non-designated Projects

4.2.1 The streamlined procedures set out below aim to simplify the handling of environmental implications for non-designated projects under PWP, while at the same time meet the environmental requirements laid down by the Finance Committee and the Executive Council.

4.2.2 A summary of the streamlined procedures for non-designated projects is given in the flowchart at **Annex D**. Proponent may adopt one of the following approaches to meet the environmental requirements for a project:

(a) to adopt the standard pollution control measures for projects with limited potential for environmental impacts;

(b) to adopt the class assessment approach based on streamlined procedures to deal with the Preliminary Environmental Review (PER) for a certain class of projects; or

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(c) to conduct PER for individual non-designated project for vetting and agreement by DEP.

4.2.3 **Annex E** lists out the examples of non-designated projects that would generally have limited potential of giving rise to adverse environmental impacts if the proponent implements the standard pollution control measures promulgated by DEP during construction. Proponent needs not prepare PER for projects listed in **Annex E** but has to identify carefully the environmental impacts associated with the project particularly for works carried out in environmentally sensitive areas, and to confirm environmental acceptability if the standard pollution control measures are adopted for the work.

4.2.4 Proponent should refer to the latest version or substitute of the following guidelines in establishing pollution control measures for non-designated projects:

(a) "Environmental Guidance Note for Rural Planning and Improvement Strategy (RPIS) – Minor Projects" which was designed to guide project proponents to avoid and minimize environmental impacts arising from RPIS projects;

(b) "Recommended Pollution Control Clauses for Construction Contracts";

(c) Chapter 9 of the "Hong Kong Planning Standard and Guidelines";

(d) "Examples of Environmentally Friendly Drainage Channel Design Arising from Environmental Impact Assessments";

(e) "Environmental Guidance Note for Sewage Pumping Station which is not a Designated Project";

(f) Professional Persons Environmental Consultative Committee Practice Notes (ProPECC) PN No. 1/94, Construction Site Drainage.

4.2.5 A class assessment approach can be applied to a class of projects that will give rise to or be subject to similar environmental impacts. This approach would enable proponent to work out standard and generic measures for similar projects, without duplicating the effort for the need to go through the same procedure for each and every project. This would save the time and effort on the part of proponent and ensure greater consistency in the application of mitigation measures.

4.2.6 **Annex F** lists out the examples of non-designated projects that can be subject to the class assessment approach. Proponent can standardize and define the mitigation measures for these projects for agreement by DEP. It is considered that the environmental impacts associated with such projects are likely to be mitigated to meet the established criteria if proper mitigation measures are taken during design, construction and operation stages.

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4.2.7 Proponent is encouraged to adopt the class assessment approach and submit a class assessment document by providing the required information set out in **Annex G** for agreement by DEP. The class assessment document can cover many projects of different categories or at different locations provided that they are of a similar class. Once the class assessment document is agreed, proponent can refer to it in preparing TFS. PER for projects that have been covered by the agreed class assessment document is deemed to be agreed by DEP. There is no need to submit the PER for vetting by DEP and the proponent will be responsible for implementing the agreed mitigation measures.

4.2.8 For non-designated projects not covered by **Annex E** or class assessment documents that have been agreed by DEP, they would be subject to the requirement of PER as set out in Financial Circular No. 4/2012 – Requirements for Project Definition Statement and Technical Feasibility Statement for Capital Works Projects. The required PER should be sent to DEP for vetting at the design stage.

4.2.9 The findings of PER, if required, would be used to identify environmental impacts associated with a non-designated project, to confirm environmental acceptability, to determine the necessary mitigation measures for relatively simple cases, and to ascertain the need for whether additional environmental studies are required for complex cases.

4.2.10 For most non-designated projects, proponent is expected to identify the environmental impacts associated with the project and to adopt the necessary mitigation measures during the preparation of PER without the need for additional environmental studies.

4.2.11 Under exceptional cases, DEP may require proponent to carry out additional environmental studies, which may include investigation and calculation, to confirm environmental acceptability and to determine the appropriate mitigation measures. The scope of additional environmental studies would be stated in the comments on the PER given by DEP. The primary aim of the additional environmental studies, if required, is to work out the suitable mitigation measures for addressing the complex environmental impacts listed in the PER, and the findings after the study shall be submitted to DEP for agreement.

4.2.12 Proponent is responsible for the full implementation of the mitigation measures identified in PER or other environmental studies, as well as taking remedial measures against any unacceptable environmental impacts during construction and operation of a project.

4.3 Resolution of Disagreement

4.3.1 The model of early warning and conflict resolution mechanism mentioned in Section 3.5 is also applicable to non-designated projects.

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5. PROCEDURES FOR ENVIRONMENTAL APPRAISAL OF GOVERNMENT PROJECTS OR PROPOSALS SUBMITTED TO THE PUBLIC WORKS SUBCOMMITTEE OF LEGISLATIVE COUNCIL OR THE EXECUTIVE COUNCIL

5.1 General

5.1.1 Article 119 of the Basic Law states that "The Government of the Hong Kong Special Administrative Region shall formulate appropriate policies to promote and co-ordinate the development of various trades, such as manufacturing, commerce, tourism, real estate, transport, public utilities..., and pay regard to the protection of the environment."

5.2 Consideration of Environmental Implications in Project Management for PWSC Submission

~~5.2.1 Financial Circular No. 9/2000 requires government departments to provide an "Environmental Implications" (EI) section in their submission to the Public Works Subcommittee (PWSC). The Users' Guide to the PWSC provides that:~~

> ~~*" ... [EI] section should set out in concise fashion whether or not the proposal has environmental implications and if so, what the proposed mitigation measures are. It should cover whether and when the Environmental Protection Department or others had carried out either an environmental review or an environmental impact assessment and what the findings or recommendations were ... "*~~

~~SETW has delegated the authority to DEP to clear the issue for the contents of EI section of PWSC papers.~~

5.2.1 Under the current PWP procedures, a project entering into Category C of PWP requires proponent to complete TFS in which the "Environmental Considerations" section should be prepared in consultation with EPD. In the event that the project is entrusted to private developer, proponent shall be responsible for ensuring that all the environmental considerations associated with the project are fully addressed.

5.2.2 Examples of paragraphs with typical environmental implications that may be incorporated into TFS or PWSC paper for designated projects of government are given in **Annex H**. That for TFS is reproduced from Financial Circular No. 4/2012.

5.2.3 When submission is made to PWSC for upgrading a project to Category A or to other major decision making bodies, proponent shall make reference to the environmental implications of a project and the agreed mitigation measures according to the environmental information generated under this Appendix, state the funding arrangement for the mitigation measures, and include a commitment to implement those measures. The

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Financial Circular on clearance of "Environmental Implications" section of PWSC papers shall apply.

5.3 Procedures for Environmental Appraisal of Proposal Submitted to the Executive Council

5.3.1 The Executive Council (ExCo) Procedures Manual requires the incorporation of "EI" section in all ExCo memoranda where there are likely to be environmental issues or impacts, including benefits, involved. The procedures set out below aim to assist policy bureaux in identifying environmental impacts and paying regard to the protection of the environment when formulating policies, so that requirements in the Basic Law and ExCo Procedures Manual can be met.

5.3.2 Annex L of ExCo Procedures Manual specifies that a section on environmental implications is required in all memoranda concerning:

(a) proposal for new policy or strategy, or amendment to existing policy or strategy;
(b) specific matters involving environmental issues;
(c) proposals or projects for which EIA has been carried out; and
(d) environmental policies, strategies or proposals.

5.3.3 For proposal that is likely to cause environmental impacts, EI section should include the following information:

(a) the likely impact of the proposal on the environment;
(b) major elements of surrounding environment which may have impact on the proposal;
(c) elements of surrounding environment which may be affected; and
(d) environmental protection measures incorporated in the proposal.

5.3.4 Where EIA has been carried out because the proposal involved is a designated project under EIAO, the EI section should describe briefly the main issues and findings, and indicate whether the final report has been presented to ACE and endorsed by DEP and, whether the recommended measures for protecting the environment will be implemented, and whether funds are available. If the proposal mainly deals with environmental issues and environmental implications have been fully addressed in the main text of the submission, then the EI section would only require a short statement saying that environmental implications have been reported in the main text. For proposal that is unlikely to contain any significant environmental implications, this must be stated clearly.

5.4 Applying Environmental Checklist when preparing EI Section

5.4.1 An environmental checklist is given in **Annex I** to help those drafting ExCo memoranda to identify environmental concerns in a structured and systematic manner. Going through the environmental checklist as well as paying due regard to the associated environmental concerns will aid Bureaux and departments to identify the need for early

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consultation with EPD and expedite the subsequent drafting and clearance of EI sections in ExCo Memoranda.

5.4.2 The environmental checklist is intended to assist policy bureau in establishing the connection between policy or strategy proposal and environmental implications. For proposal on new policy or strategy, or amendment to existing policy or strategy, the policy bureau concerned should complete a list of questions and/or checklist, if applicable, at the earliest possible stage of policy or strategy formulation. Policy bureau or department concerned is strongly encouraged to consult DEP on issues or concerns arising from the environmental checklist.

5.5 Coverage of EI Section

5.5.1 The first draft of EI section should be prepared by the responsible policy bureau or department. EI section should report the findings of the environmental appraisal set out in the environmental checklist as well as EPD's advice.

5.5.2 For project related matters and environmental policies, EI section should specify the outcome of the consultation with ACE, if applicable.

5.6 Clearance of EI Section

5.6.1 According to the ExCo Procedures Manual, EI section of the draft final submission to ExCo has to be cleared by SEE. The draft ExCo Memorandum should be addressed to AA/SEE. Under normal circumstances, the proponents should allow a minimum of ***eight working days*** for the clearance of EI section as the Bureau will normally wish to consult DEP before giving advice.

5.6.2 All draft ExCo Memoranda with EI sections for clearance by SEE should be copied to DEP, marked for the attention of the Assistant Director (Environmental Assessment). At the same time, policy bureau or department concerned is recommended to forward to SEE and copy to DEP the completed checklist mentioned in paragraph 5.4.1 above to facilitate early clearance of the ExCo Memorandum.

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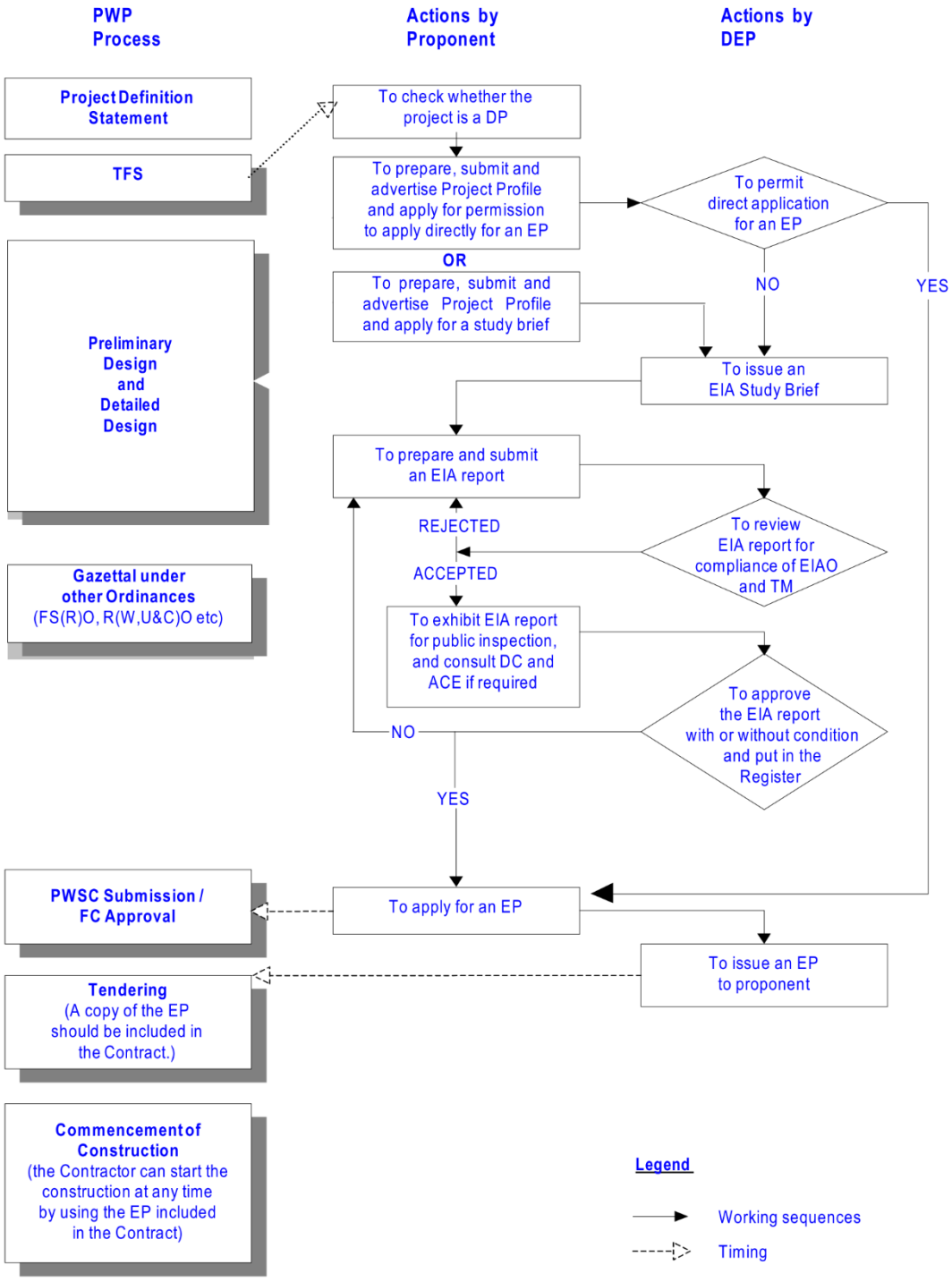
Annex A

Relationships between EIAO and PWP Procedure



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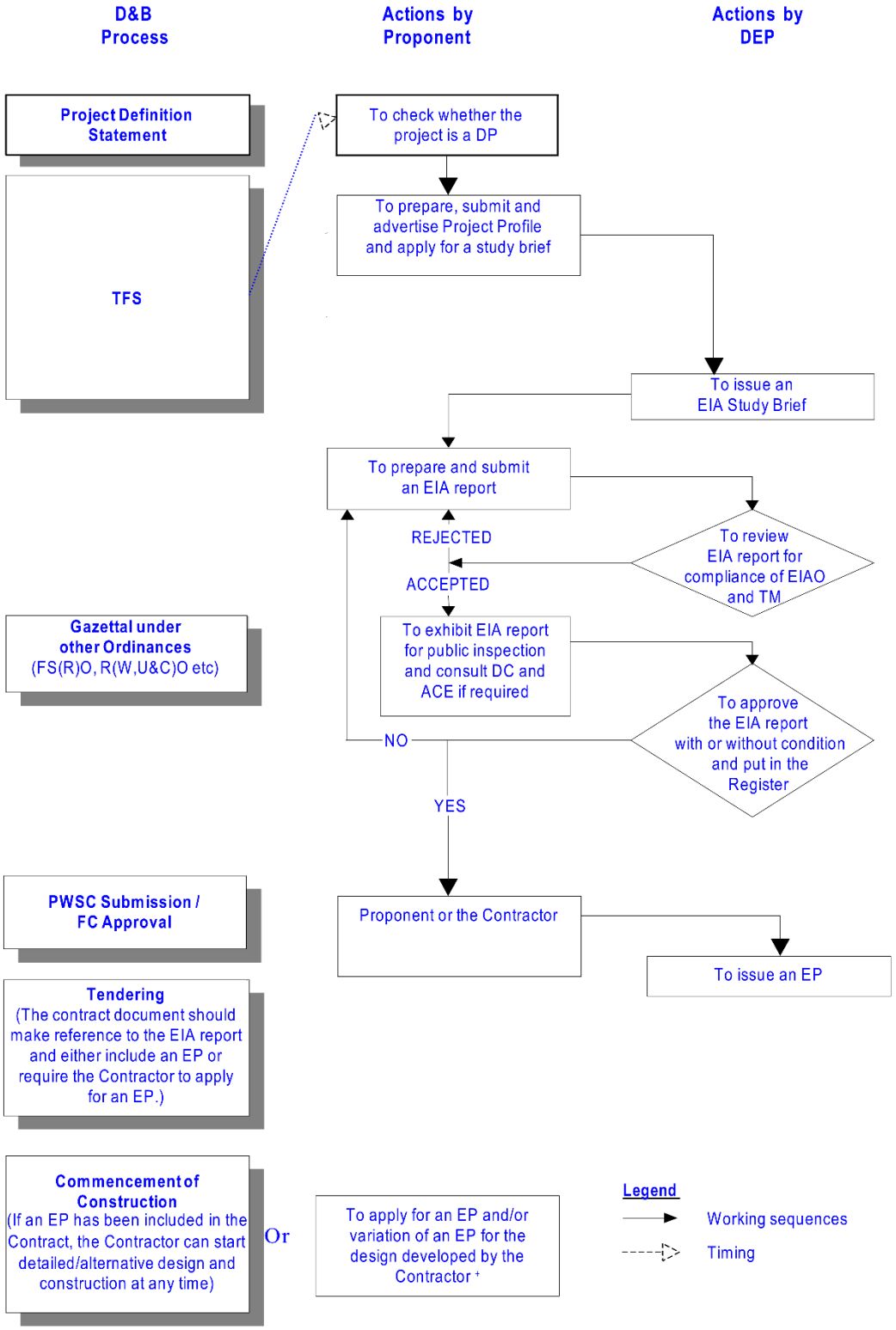
Annex B

Relationship between EIAO and Design & Build (D&B) Procedure



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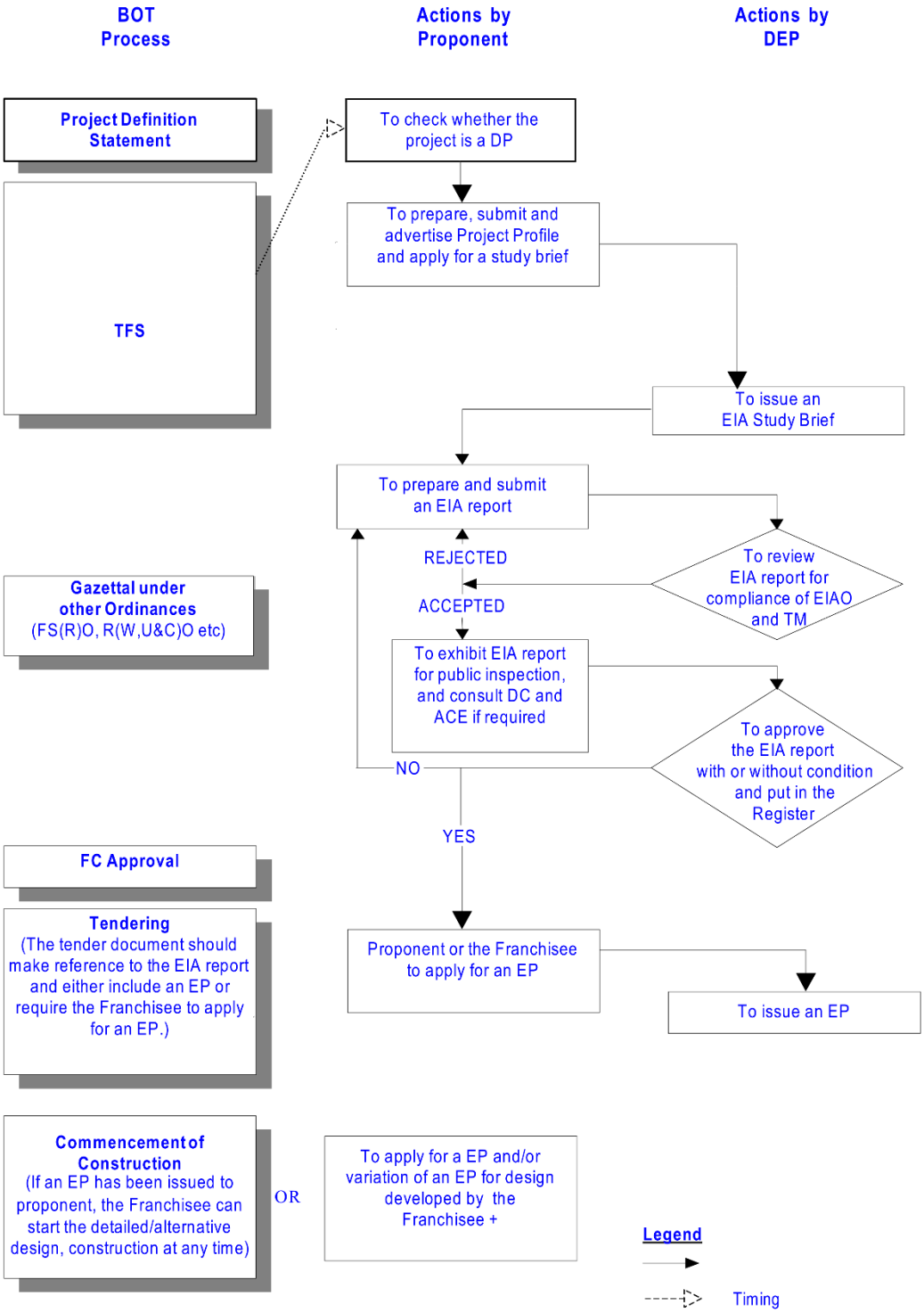
Relationship between EIAO and Build-Operate-Transfer (BOT) Procedure



+ In the event that the design developed by the proponent changes, the proponent should instruct the contractor/franchisee by way of appropriate contractual arrangement, such as supplemental agreement, to incorporate such design change into the design developed by the contractor/franchisee and to initiate necessary action as required under EIAO for obtaining approval of related variation to the environmental permit in force.

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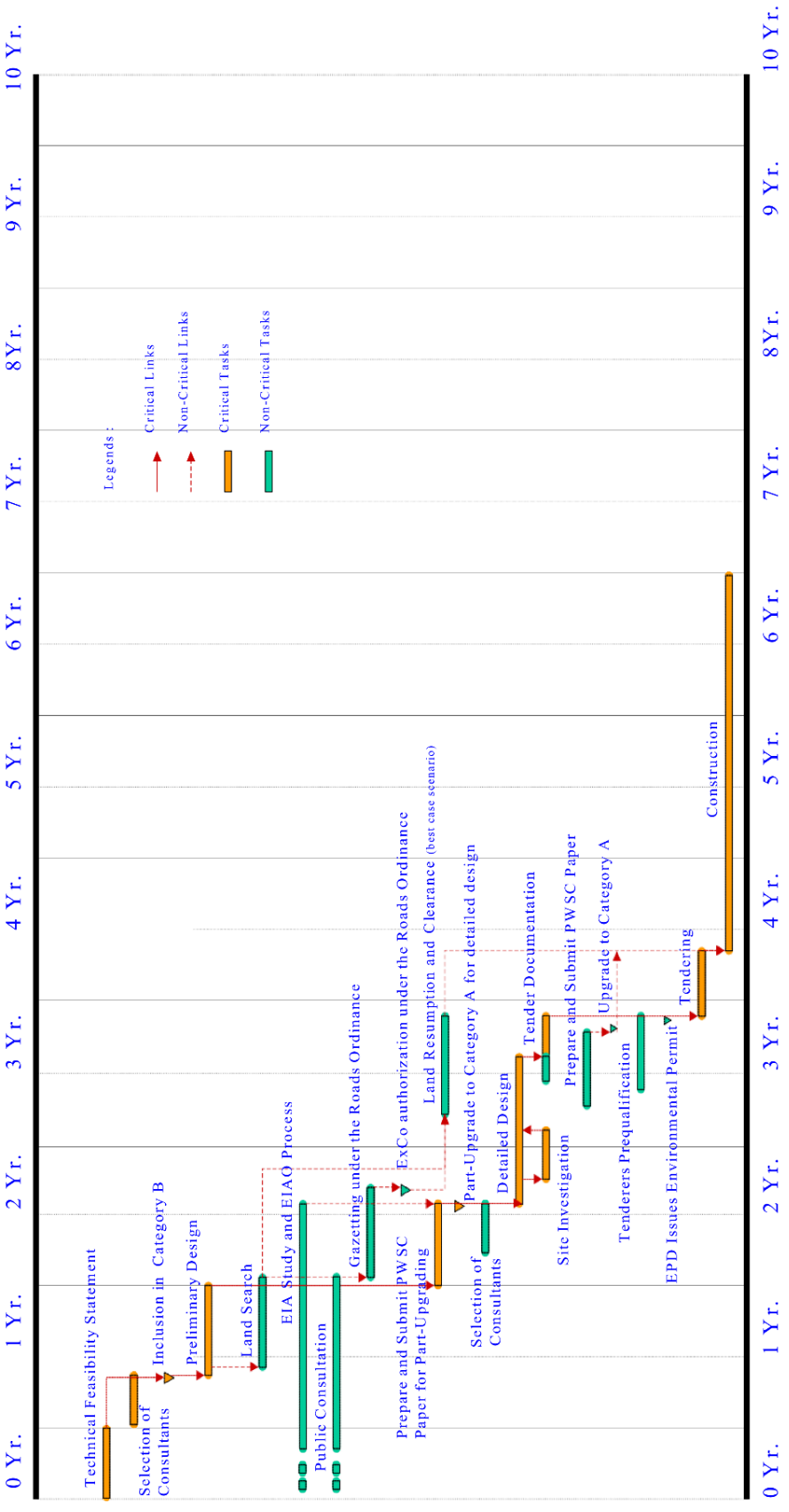
Annex C



Expedited Programme for a Typical Medium Size Project

EIAO activities should not be on the critical path. To expedite the process, consult DEP early.

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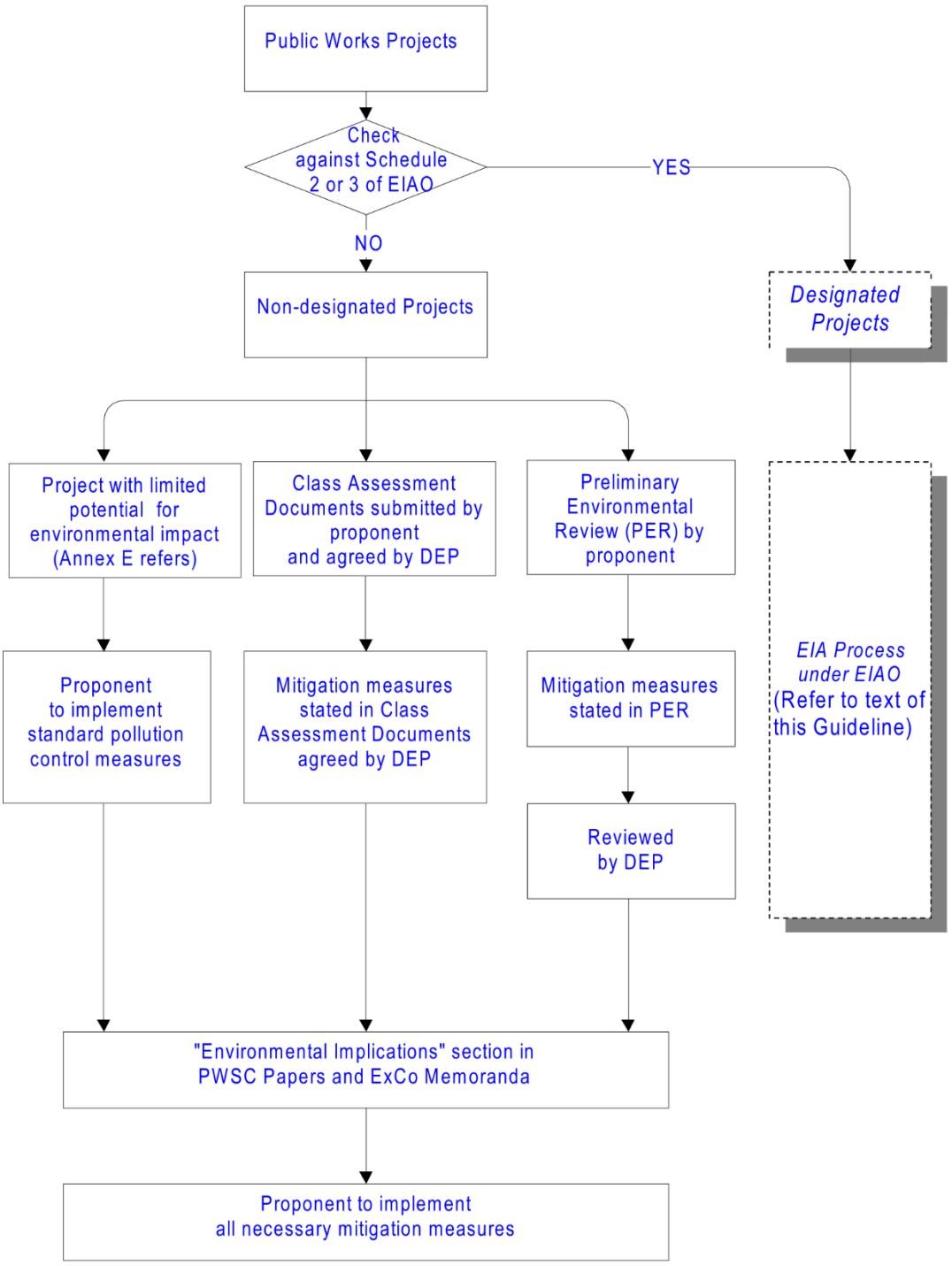
Annex D

Flow Chart for Streamlined Procedures for Non-designated Projects



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Annex E

List of Non-designated Projects where Standard Pollution Control Measures would suffice

The following non-designated projects would generally have limited potential for environmental impacts provided that proponent implements the standard pollution control measures during work:

i. libraries, government offices, tertiary teaching institutes;

ii. game halls and community halls;

iii. museums, theatres and courts of law;

iv. slope maintenance works;

v. major renovation of buildings, repairing works and installation of building utilities;

vi. footbridges, footpaths and amenities;

vii. water pipes, sewers and stormwater pipes under 1200mm in diameter and outside environmentally sensitive areas;

viii. major traffic signs and surveillance equipment;

ix. at-grade local roads not involving turning cul-de-sac into a link road; or

x. open space projects.

The above list is not exhaustive. Proponents are encouraged to agree with DEP over additional items.

Typical "Environmental Implications" Paragraph in PWSC Paper:

"*The project will not cause long term environmental impact. We have included in the project estimates the cost to implement suitable mitigation measures to control short term environmental impacts.*"

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Annex F

List of Non-designated Projects that might be amenable to Class Assessment Approval

Proponent can consider submitting a class assessment document for agreement by DEP regarding a class of similar non-designated projects for which mitigation measures can be standardized or readily defined:

The type of non-designated projects might include, but is not limited to:

xi. maintenance depots, fire and ambulance stations;

xii. clinics and medical centres;

xiii. small sewage pumping stations;

xiv. primary and secondary schools (subject to rail and road traffic noise);

The above list is not exhaustive. Proponent is encouraged to consult DEP regarding the types of projects that might be amenable to class assessment approach.

Typical "Environmental Implications" Paragraph in PWSC Paper:

"*The xxxx Department (or the consultants employed by xxxx Department) has completed and the Environmental Protection Department has agreed to a class assessment document which sets out the mitigation measures necessary for this class of projects. With such mitigation measures in place, the project would not have long term environmental impacts. We have included in the project estimates the cost to implement all necessary measures to mitigate the environmental impacts.*"

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Annex G

Outline of Information in Class Assessment Document for Non-designated Projects

For similar non-designated projects that have limited potential to give rise to unacceptable environmental impacts, a proponent can consider submitting a class assessment document for the agreement of DEP for a class of projects. A class assessment document should include at least the following information:

Type and Nature of the Class of Projects:

(a) the identity of project proponents;

(b) the type, scope and category of non-designated projects covered by the class assessment document. The possible variations among different categories of projects within the same class;

(c) the typical planning, construction and operational procedures for the class of projects covered by the document;

Likely Environmental Issues and Proposed Mitigation Measures:

(d) different categories of environmental issues for the class of projects;

(e) descriptions of environmental impacts associated with the class of projects;

(f) the environmental criteria to be complied with;

(g) the type of mitigation measures to be provided including:
- generic measures to be adopted;
- mitigation measures for different categories of projects or activities;
- mitigation measures to deal with special circumstances;

Justification of the Adequacy of Proposed Mitigation Measures:

(h) previous agreements or justifications of the adequacy of the proposed mitigation measures to meet relevant criteria, with calculations or substantiation by way of examples wherever necessary, or by reference to any relevant studies conducted previously;

Implementation of Mitigation Measures:

(i) the commitment from a proponent to implement those mitigation measures in the class assessment document; and

(j) the arrangement for the implementation of the proposed mitigation measures.

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Annex H

Examples of "Environmental Implications" or "Environmental Considerations" Paragraphs for TFS and PWSC Paper

Typical "Environmental Considerations" Paragraphs for Submission of TFS:

[In consultation with DEP, the proponent should categorize the project along one of the following lines –

**This is a designated project under the Environmental Impact Assessment (EIA) Ordinance (Cap. 499). We undertake to prepare an EIA report to meet the requirements under EIAO.*

**This is not a designated project under the Environmental Impact Assessment (EIA) Ordinance (Cap. 499) and is covered by a Class Assessment Document approved by the Director of Environmental Protection. We undertake to provide the mitigation measures set out in the Class Assessment Document as part of the project.*

**This is not a designated project under the Environmental Impact Assessment (EIA) Ordinance (Cap. 499). It belongs to one of the categories listed in Annex E of Appendix 1.8 of Chapter 1, Project Administration Handbook for Civil Engineering Works, that have very little potential for giving rise to adverse environmental impacts. We undertake to implement the standard pollution control measures during construction, as promulgated by the Director of Environmental Protection.*

**This is not a designated project under the Environmental Impact Assessment (EIA) Ordinance (Cap. 499). We undertake to carry out a Preliminary Environmental Review for the project at the design stage and agree the findings with the Director of Environmental Protection.]*

Typical "Environmental Implications" Paragraphs in Public Works Subcommittee (PWSC) Paper for Designated Projects:

Proponent may wish to submit PWSC paper before or after applying for the environmental permit. A typical "Environmental Implications" paragraph may be as follows:

(a) For case that requires environmental permit, except for applications under section 5(1)(b) of EIAO:

The project is a designated project under Schedule 2 of the Environmental Impact Assessment (EIA) Ordinance (Cap. 499) and an environmental permit is required for the construction and operation (or decommissioning) of the project. In xx 20xx, the EIA report for the project was approved (or approved with conditions) under EIAO. The EIA report concluded that the environmental impact of the project can be controlled to within the criteria under EIAO and the Technical Memorandum on EIA Process. We shall implement the measures recommended in the approved EIA report. The key measures include..... We estimate the cost of implementing the

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environmental mitigation measures to be $xx million. We have included this cost in the overall project estimate.

(b) For case that requires environmental permit, but meets the requirements under sections 5(1)(b) and 5(9) of EIAO:

The project is a designated project under Schedule 2 of the Environmental Impact Assessment (EIA) Ordinance (Cap.499) and an environmental permit is required for the construction and operation (or decommissioning) of the project. The environmental impact of the project has been adequately assessed in an approved EIA report in the Register established under EIAO, and the findings are relevant. We shall implement the measures recommended for the project in the approved EIA report. We estimate the cost of implementing the environmental mitigation measures to be $xx million. We have included this cost in the overall project estimate.

(c) For case that requires environmental permit, but meets the requirements under sections 5(1)(b) and 5(10) of EIAO:

The project requires an environmental permit under the Environmental Impact Assessment (EIA) Ordinance (Cap. 499) for the construction and operation (or decommissioning) of the project. Having regard to the project profile, the Director of Environmental Protection is satisfied that the impact of the project and the mitigation measures meet the requirements of the Technical Memorandum on EIA Process. The permission to apply directly for an environmental permit was granted in xx 20xx with (or without) conditions. We shall implement the mitigation measures set out in the project profile and as required by the Director of Environmental Protection. We estimate the cost of implementing the environmental mitigation measures to be $xx million. We have included this cost in the overall project estimate.

(d) For case that requires environmental permit, but meets the requirements under sections 5(1)(b), 5(9) and 5(11) of EIAO:

The project is a designated project under Schedule 2 of the Environmental Impact Assessment (EIA) Ordinance (Cap. 499). Having regard to the project profile, the Director of Environmental Protection is satisfied that the environmental impact of the project can meet the requirements of the Technical Memorandum on EIA Process. With the consent of the SEE, the permission to apply directly for an environmental permit was granted in xx 20xx. We shall implement the mitigation measures set out in the project profile and as required by the Director of Environmental Protection. We estimate the cost of implementing the environmental mitigation measures to be $xx million. We have included this cost in the overall project estimate.

Reference should also be made to other information to be included in the "Environmental Implications" Paragraph in PWSC Paper such as that required in Paragraph 4.1.3 of Chapter 4, *Project Administration Handbook for Civil Engineering Works*, about management of construction and demolition materials.

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Annex I

Checklist for Environmental Appraisal of Policy or Strategy submitted to the Executive Council

Policy Bureau:	Policy Title:
Scope of Policy or Strategy:	

Screening of Policy Scope	Previous Environmental Issues Raised by the Public, LegCo or ACE	Linkage with Environmental Initiative in CE's Address and Environmental White Paper and the HKSAR's International Environmental Commitments	Previous Environmental Studies or Consultation	Changes associated with the Policy	Interaction with the Environment	Environmental Management
1. Is the policy or strategy ☐ a new one? ☐ an amendment to an existing policy? 2. Will the policy eventually involve physical infrastructure development? ☐ no ☐ yes What are they? _____ 3. Is it possible that the policy or strategy may lead to changes in environmental policies or initiatives ? ☐ yes ☐ no ☐ not sure at the stage	4. Has there been any complaints from the public or the Ombudsman on the environmental issues associated with the policy or strategy? ☐ yes ☐ no If yes, what are the environmental concerns? _____ 5. Has the policy matter been the subject of discussion in the Environmental Affairs Panel of the Legislative Council or ACE? ☐ yes ☐ no If yes, what are the environmental concerns? _____ 6. Has the policy matter or the strategy been the subject of the discussion at the District Councils in respect of the previous matter cases? ☐ yes ☐ no If yes, what are the environmental concerns? _____	7. Does the subject matter of the policy or strategy relate to any environmental goals set out in the Chief Executive's Policy Address? ☐ yes ☐ no If yes, would the policy or strategy enhance or contradict the environ-mental goals and initiative and in what ways? Please describe. _____ 8. Does the subject matter of the policy or strategy relate to any environmental initiative or actions set out in the White Paper on pollution and its subsequent review? ☐ yes ☐ no If yes, what are they? _____ 9. Would the policy or strategy relate to any environmental commitments made by HKSAR under the Hong Kong Guangdong Environmental Protection Liaison Group, APEC and other international agreements? ☐ yes ☐ no If yes, what are they? _____	10. Has the subject matter been the subject of any previous studies? ☐ yes ☐ no If yes, when was the study undertaken? What are the key environ-mental concerns or solution identified? _____ 11. Has the policy or strategy been the subject of consultation with ACE? ☐ yes ☐ no 12. Have any other studies covered the environmental aspects of the policy or strategy in question? ☐ yes ☐ no If yes, please state the environmental conclusions or findings. _____ 13. Has ExCo previously stipulated any environmental issues that need to be studied or any environmental conditions for the policy or strategy? ☐ yes ☐ no If yes, what are they? _____	14. The Policy may lead to changes in: ☐ land uses/housing supply/ redevelopment ☐ industrial structure (size, type, location, changes in technology) ☐ the planning of infrastructures such as roads, railways & reclamation ☐ choice of transport modes and routes for passengers, or goods vehicles or containers ☐ the loss of or impairment to ecologically sensitive areas or fishery resources ☐ sewage collection, treatment and disposal facilities ☐ wastes & refuse collected (e.g. domestic, chemical, livestock, construction, clinical and radioactive wastes) ☐ waste collection & disposal facilities (e.g. landfills, marine dumping & incineration) ☐ *production / import / export of chemical & refuse or other wastes ☐ power supply and fuel options (e.g. gas Vs coal fired) ☐ energy consumption or demand side management ☐ potentially hazardous installations ☐ none of the above, please describe : _____	15. Changes initiated from the policy may result in: ☐ incompatible land uses (housing estates/schools next to polluting uses, such as factories & highways) resulting from land use changes ☐ change in the transport pattern (e.g. traffic volume / composition / routes) due to land use and transport planning that lead to environmental impacts ☐ change in the quality of marine waters, inland and potable waters resulting from discharge or reclamation ☐ change in the population exposed to *traffic / railway / aircraft noise from transport routes ☐ change in the population exposed to aerial emissions from vehicles and other industrial sources ☐ change in the waste disposal facilities such as landfills, public dumps and incinerators ☐ disturbance of ecologically sensitive areas or causing a loss of flora and fauna, wildlife, aquatic & marine environment ☐ degradation / improvement in energy efficiency ☐ global climate & atmospheric changes due to emissions of greenhouse gases such as carbon dioxide ☐ environmental impacts outside of Hong Kong or in a regional context ☐ none of the above, please describe :	16. The Policy has included or will include: ☐ strategic environmental assessment or EIA or other environment study nature & likely timing of the study _____ ☐ inclusion of environmental initiative in the policy . They are: _____ ☐ provision of environmental infrastructure ☐ provision of measures to mitigate adverse environmental impacts during the detailed planning and design ☐ monitoring and audit programme ☐ corporate environmental management programme ☐ funding for environmental studies or measures ☐ matters regulated by EIAO ☐ none of the above ☐ not applicable 17. Checklist completed by Name : _____ Post : _____ Tel. No. : _____ Fax No. : _____

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APPENDIX 1.9 MITIGATION OF RESIDUAL TRAFFIC NOISE IMPACTS FROM NEW ROADS ON PLANNED USES (Subsumed from ETWB TCW No. 13/2003)

This section sets out the requirements for relevant departments to incorporate the off-site mitigation measures agreed during the EIA process into the land use plan and/or the land sale mechanisms to address the residual traffic noise impact of a new road, after the road proponents implement all practicable traffic noise mitigation measures on roads as identified in an EIA study.

2. Proponents of road projects are required to assess, among other things, noise impacts on both the existing and planned noise sensitive uses, identify suitable alignments, consider options to prevent and mitigate traffic noise impacts, and propose the best practicable package of noise mitigation measures to protect both existing and planned sensitive uses.

3. As a general principle, equitable redress in the form of direct mitigation measures will be provided wherever practicable to protect existing and planned sensitive uses which would otherwise be exposed to traffic noise exceeding the planning guidelines. Indirect mitigation measures such as acoustic insulation and air conditioning will be provided to existing sensitive receivers to protect them from residual noise impacts after adoption of direct mitigation measures on the roads and subject to ExCo's approval on the merits of the case. If additional measures include setback and/or building disposition, even after the adoption of all practicable mitigation measures at source, the EIA process would evaluate and confirm their practicality. The agreed environmental requirements on future adjacent sensitive uses and any development constraints identified during the EIA process should be taken into account when assessing the development potential of the sensitive uses and be made known to potential developers.

4. The following step-by-step procedures shall apply:

(a) the proponent of a new road is required to implement all practicable direct mitigation measures at source to abate the traffic noise impacts;

(b) if, after the implementation of all practicable measures at source, the residual noise impacts are envisaged to exceed the established criteria, the proponent of the new road should define the environmental constraints and the mitigation measures at planned sensitive receivers, and assess the practicality and feasibility for implementation by developers;

(c) as future developers have to implement mitigation measures at receivers, the Planning Department and Lands Department will agree with the road proponents, during the EIA process, to the site constraints and/or the findings about the feasibility and the practicability for developers to implement the measures at planned sensitive uses.

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This agreement, which will be recorded during the EIA process, is particularly important when the layout designs might affect development parameters of the affected sites. During the EIA study, the road proponents should ensure, to their best endeavour, that the development potential of a site would not be affected;

(d) once agreed, Planning Department will incorporate the constraints into the land uses plans and, where applicable, submit the necessary amendment plan to the Town Planning Board for approval. Lands Department will also incorporate the constraints and mitigation measures agreed during the EIA process into the realistic calculation of the development potential;

(e) Lands Department shall make known of the agreed constraints and measures to the developers before the sale or grant of lands. Lands Department should incorporate appropriate clauses in the lease or grant conditions such that the agreed measures will be implemented by the developers.

5. If there is a conflict about the measures at planned sensitive uses that cannot be resolved, the conflict shall be referred by DEP to SEE to resolve the matter with other Policy Secretaries.

[NB. The procedures mentioned above are subject to review at the time promulgation of this Appendix to consider wider options in designs of noise mitigation measures for new roads apart from tackling at source. This Appendix will be subject to revision if there is any change to the procedure after the review.]

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APPENDIX 1.10 GUIDELINES AND PROCEDURES FOR ENVIRONMENTAL IMPACT ASSESSMENT OF GOVERNMENT PROJECTS AND PROPOSALS PLANNING FOR PROVISION OF NOISE BARRIERS (Subsumed from ETWB TCW No. 13/2003A)

Purpose

1. This appendix sets out additional guidelines on the planning for provision of noise barriers in project programmes.

Background

2. In relation to the construction of noise barriers, Director of Audit (D of A) highlighted the following cases of which some led to heavy financial loss by government:

a) Case 1 – Due to the change of the development proposal, noise barriers for a road widening project were no longer required and had to be deleted from the contract. As a result, government had to pay hefty compensation to the contractor. D of A considered that the compensation could have been avoided if an incremental approach had been adopted in the design and procurement process to cater for the possible planning and development changes.

b) Case 2 - Application for a variation of Environmental Permit (EP) to defer provision of noise barrier due to delay of the development would require conduction of a separate EIA study and public consultation. In view that the noise barriers would ultimately be required, the project proponent chose to construct the noise barriers as scheduled but was subsequently requested to remove them due to aesthetics reasons. D of A considered that the removal of the noise barriers could be avoided if the application for a variation of EP was put up promptly upon noticing the possible delay of the planned development.

c) Case 3 - Noise barriers were built despite a delay in the associated development resulting in the noise barrier standing useless for several years. D of A suggested that flexible terms should be incorporated in future works contracts for the provision of noise barriers for planned developments, such as providing the footing or foundation for the noise barriers only and the panels as provisional items.

d) Case 4 - The obligation on a developer to build noise barriers for a development to abate the noise impact from the planned road in future was stipulated in the land grant condition prior to land sale. With the EIAO coming into operation in April 1998, the provision of the noise barriers was included in the roadwork project. As a result, the developer was relieved of his obligations, but government was unable to recover the cost of the noise barriers under the project from the developer. D of

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A considered that the obligation under the land grant condition should not be released without an agreement with the developer for the compensation of the noise mitigation works under the project.

Policy

3. On 23 January 2003, the Administration informed the Transport Panel of the Legislative Council of the following five guiding principles for implementation of the policies on installation of noise barriers (Paper No. CB(1)755/02-03(01)) -

Principle 1:	**Compliance with existing statutory requirements**
Principle 2:	**Timely implementation of mitigation measures**
Principle 3:	**Setting priority for existing roads in the retrofit programme according to excessive noise levels**
Principle 4:	**For existing roads, cost effectiveness of noise barriers**
Principle 5:	**Paying due attention to aesthetic design of noise barriers**

In particular cases where the implementation of noise barriers is related to future developments, works departments shall give due consideration of the above Principles 1 and 2 and observe the following guidelines:

Incremental Approach

a) Where appropriate, project proponent should adopt an incremental approach in the design and procurement for the provision of noise barriers to dovetail with the actual occupation of the planned sensitive uses.

b) If possible, the work shall be designed to be modular and suitable for excision from the provision to any extent where necessary. As a general rule, only the minimum (such as foundation, or just the space, if possible) shall be provided to meet the uncertain developments.

Contractual Mechanisms for the Avoidance of Claims

c) In addition, contractual provisions should be included to enable the Architect/Engineer to omit or excise the work in any manner without allowing the contractor to lodge a claim. Where the noise barriers are related to some developments which are highly uncertain, they shall be included in the contract as provisional items and be ordered only when the development is ascertained.

Beware of Change in Development Programmes

d) Project proponents should closely liaise with LandsD and PlanD about

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government's future land sales programme and any proposed changes in land use or development parameters etc. to determine if the installation of noise barriers should be proceeded any further in a contract.

Time for Variation to EP

e) When drawing up implementation plans for works contracts involving EP, allowance should be made for the time necessary for the compliance with the statutory requirements and procedures (including public consultation) should a variation of EP conditions be necessary due to the change of the planned environmentally sensitive uses. Where the need for such variation is uncertain, foresight should be exercised to have the need ascertained at the earliest possible moment with close liaison for action with the relevant authority(ies). Directorate officers should always be involved if there is programming implication.

f) Once a decision for a variation of EP is made, the project proponent should act promptly and closely liaise with DEP at directorate level to expedite the approval of variation to the EP so as to minimize the impact to the work programme. If a variation of EP sought for involves a reduction of mitigation works, the affected work if it has already commenced should be stopped in order to avoid the possible request for subsequent removal after construction.

Avoidance of Duplication of Environmental Noise Barriers with Private Developments

g) On receipt of an EIA report about the installation of any noise barriers, project proponents should ascertain, with assistance from LandsD and EPD as necessary, whether such measures would have an effect of relieving a third party's contractual obligation to government embodied in a legally enforceable instrument, such as a clause in the land grant/land sale conditions in the nearby private developments. Where such situation occurs, the project proponent should liaise with LandsD and EPD for the purpose to decide if the measures in the EIA report are still necessary, and decide which party is the most appropriate to provide noise mitigation measures (not limited to noise barriers).

h) In principle, if it is decided that the noise barriers shall be provided under the works project, the project proponent should assist the relevant authorities concerned to negotiate with the third party for an agreement to compensate government of the cost of such provision to the extent he is relieved of such duty under the legal instrument, by providing the necessary project cost

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information. Under circumstances where the use of public funds is justified for the noise barriers without appropriate compensation from the third party, the project proponent should provide the information in the funding proposal.

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APPENDIX 1.11 PROCEDURE FOR INCORPORATION OF WATERWORKS INTO OTHER CAPITAL WORKS CONTRACTS (Subsumed from WBTC No. 29/93)

Purpose

When roadworks and related waterworks have been undertaken together, past practice was usually for two contractors, to be employed under different contracts and supervised by different works departments, working on the same site. This resulted in conflicts, contractual disputes and delays.

2. Experience has shown that where the use of two contractors on the same site is avoided by incorporating the installation of waterworks into the roadwork contracts, contractual claims have diminished.

Options at the Planning and Design Stage

3. At the planning or design stage, the project office responsible for any contract having associated waterworks should consider the significance of the waterworks involved and the consequences of delay. The project office shall agree with WSD whether the waterworks are to be undertaken :-

(a) as advance work by WSD, prior to the start of the main contract; or
(b) as part of the main contract; or
(c) concurrently under a separate WSD contract, under arrangements to be agreed between the project office and WSD (such as dates for stage possession of Portions of the Site or early completion of Sections of the Works) which shall be included in the documents for both contracts.

Procedures and Guidelines

4. Option 3(c) shall only be used when options 3(a) & 3(b) are impractical. If option 3(c) is used, care shall be taken to ensure that the risk of delay is minimised, taking into account available lead time, scope of the waterworks, previous experience on similar works, workload and performance of the WSD contractor etc.

5. If option 3(b) is used, the following conditions shall apply:-

(a) The Contract shall require the Contractor to supply the waterworks materials. Under very special circumstances, where the materials are not readily available locally, or where a lengthy delivery time is envisaged and the lead time could not reasonably be accommodated within the Contractor's programme, the project office shall either procure the waterworks materials in advance of the contract or approach WSD to do so, or in liaison with WSD, decide whether the Contractor is to supply the waterworks materials in whole or in part.

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(b) The cost of diverting existing waterworks, including any administrative costs, such as fees, expenses etc, shall be borne by the project office. Where new waterworks and/or improvements to existing waterworks are involved the cost of the work (including related diversions of existing waterworks) shall be charged to the relevant WSD project vote, including any administration costs, unless otherwise agreed by the project office.

(c) The Contractor shall either be on the List of Approved Contractors for Public Works in the Waterworks category and in the appropriate Group or if not, shall be required to enter into a written sub-contract with a contractor who is so listed.

(d) The Contract shall include the provision for carrying out the waterworks to WSD's satisfaction. (Standard special conditions of contract and specifications for waterworks to be provided by WSD.)

(e) The project office shall provide facilities to WSD for checking, examining and testing the waterworks to WSD's requirements.

(f) For Works that are to be administered 'in-house' by the project office, WSD shall carry out the design, preparation of drawings and tender documents for the mainlaying part of the Works and forward them to the project office for incorporation into the Contract. WSD shall second staff (usually on a part time basis) to assist in site supervision and site measurements, but the ultimate responsibility of the work must rest on the project office. Suitable contractual arrangements, if considered necessary, may be made to delegate appropriate powers to the WSD staff to enable site supervision to be properly carried out.

(g) If the project office employs a consultant to administer the Works, the consultant's Brief should require the consultant to prepare and submit to WSD for comment all the design calculations, drawings and specifications for the waterworks part of the Works. The consultant should also be required by the Brief to employ an engineer with suitable experience in designing waterworks and shall submit the name and curriculum vitae of the engineer for prior agreement by WSD. Depending on the scale of the waterworks involved, the resident site staff employed by the consultant for the waterworks shall include appropriate number of engineers, inspectors and works supervisors, who are experienced in supervising waterworks, unless prior arrangements have been made with WSD for them to provide site supervisory staff. WSD shall be consulted with regard to the establishment of the site staff as well as their suitability prior to appointment. The project office or its consultants shall also maintain close liaison with WSD and shall endeavor to facilitate WSD in the monitoring of the quality of waterworks. The project office or its consultants shall

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arrange regular coordination meetings with WSD, at intervals to be agreed with WSD, for timely handling of site issues.

6. WSD will nominate a Project Coordinator, with the assistance from a Liaison Engineer, for each contract who will give assistance if required by the project engineer or the resident engineer.

7. All connections to the existing distribution system (live mains) are to be carried out by WSD.

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APPENDIX 1.12 MODEL FOR PLACING WATERWORKS PROJECTS IN THE PWP WHEN CARRIED OUT IN ASSOCIATION WITH NEW TOWN OR STRATEGIC GROWTH AREA DEVELOPMENTS (Subsumed from WBTC No. 4/2001)

Purpose

There are often close interfaces between a new town or Strategic Growth Area (SGA) development and new waterworks proposals which are to be carried out in the same locality whether for the purpose of serving the new town or SGA development or not. There is thus a need to promulgate a standard model to guide whether and how these waterworks projects should be grouped together with the new town or SGA works as a conglomerate PWP item.

Procedures and Guidelines

2. Where a new waterworks project is proposed in an area of new town or SGA development or in association with such development, its placement in the PWP shall follow the model as illustrated in Annex A.

Reporting of expenditure on waterworks facilities which are embraced within the scope of new town or SGA works projects

3. Where waterworks facilities are embraced within the scope of a new town or SGA works project, i.e. case (b)(i) in Annex A, the expenditure on such facilities shall be reported by the relevant directors to DWS so as to facilitate the preparation of the Water Authority Operating Accounts and the Five Year Projections of the Operating Accounts. In this connection, DWS shall call the necessary returns from the relevant directors in around May of each year setting out the types and format of the information required.

PWSC Submission

4. Also for case b(i) in Annex A, a paragraph on the financial implication on water charges, similar to the one currently required for waterworks projects, shall be included in the PWSC submission when seeking to upgrade the project to Category A. Details for inclusion in that paragraph shall be provided by DWS.

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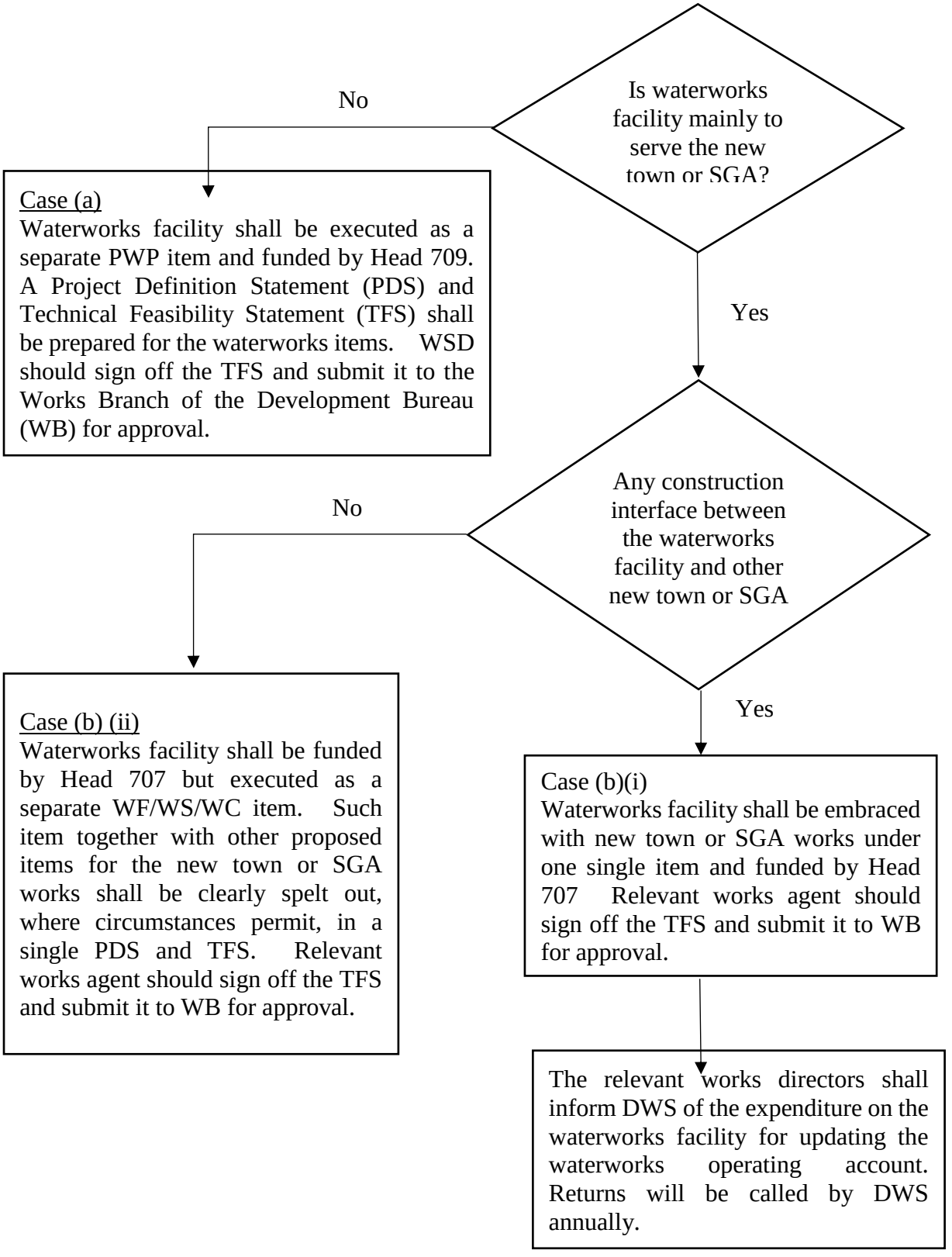
Annex A

Model for Placing Waterworks Projects in the PWP when carried out in association with new town or SGA developments



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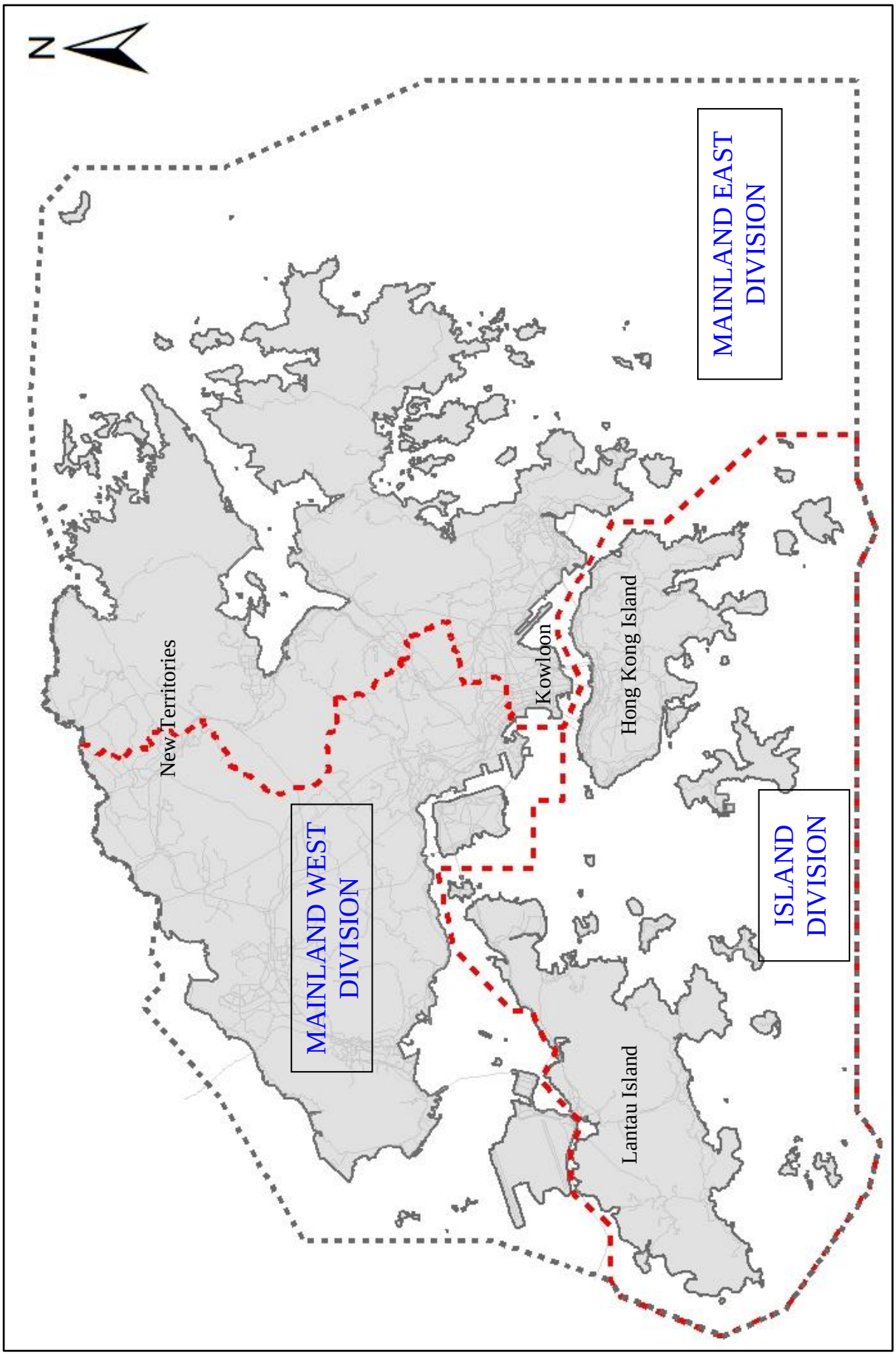
APPENDIX 1.13 GEOGRAPHICAL AREAS OF GEO DISTRICT DIVISIONS

Amd No. 2/2025

GEOGRAPHICAL AREAS OF GEO DISTRICT DIVISIONS



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CHAPTER 2

PROJECT APPROVAL

The parts of the PAH shown in blue and bold should only be updated by Works Branch of Development Bureau.

Rev	Issue Date	Amendment Incorporated
First Issue	December 2024	NA
1	17 March 2025	Amd No. 1/2025
2	18 November 2025	Amd No. 6/2025

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SYNOPSIS

Government controls the scope and timing of new construction through the Public Works Programme and through the resources planning provision mechanism of the Capital Works Reserve Fund Resource Allocation System (CWRF RAS).

The various stages of a public works project, from its conception to its implementation, are assigned various categories in the Public Works Programme. Each category constitutes the authority to proceed with a specific stage of work.

This chapter sets out the administrative procedures, as well as the format and presentation of submissions, required for obtaining the necessary authority to undertake the various stages of a public works project through the Public Works Programme. It should however be noted that these procedures are changed from time to time, usually by the FSTB, to cope with new requirements of the public works funding system. Therefore, the procedures given in this chapter should only be regarded as a guide to the existing system, which may be subject to change at short notices.

This chapter takes into account the measures introduced to streamline the delivery of public works projects. These measures include replacing the **Client Project Brief (CPB)** and the **PPFS** with the **Project Definition Statement (PDS)** and the **Technical Feasibility Statement (TFS)** requirements, parallel action between the EIA processes and gazetting, allowing tendering and consultant selection before funding is secured, and shortening the land resumption procedures.

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I. ABBREVIATION

I.01 The meaning of the abbreviations assigned in this Chapter of the Project Administration Handbook for Civil Engineering Works shall only apply to this Chapter.

I.02 The following list shows the meaning of the abbreviations for the common terms used in this Chapter of the Project Administration Handbook for Civil Engineering Works:

Abbreviation	Term
APE	approved project estimate
CEDD	Civil Engineering and Development Department
CMP	Cavern Master Plan
CoRA	Committee on Resources Allocation
CPB	Client Project Brief
CPLD	Committee on Planning and Land Development
CWRF	Capital Works Reserve Fund
CWRF RAS	Capital Works Reserve Fund Resource Allocation System
DEVB	Development Bureau
DEVB TCW No.	DEVB Technical Circular (Works) No.
DoBs	Directors of Bureaux
DSD	Drainage Services Department
EIAO	Environmental Impact Assessment Ordinance
ETWB	Environment, Transport and Works Bureau
ETWB TCW No.	ETWB Technical Circular (Works) No.
FC No.	Financial Circular No.
FSTB	Financial Services and the Treasury Bureau
GCC	General Conditions of Contract for Civil Engineering Works (1999 Edition)
GLTMS	Greening, Landscape and Tree Management Section of DEVB
GMP	Greening Master Plan
HyD	Highways Department
OVT	Old and Valuable Trees
PAH	Project Administration Handbook for Civil Engineering Works
PE	project engineer

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Abbreviation	Term
PDS	Project Definition Statement
PPFS	Preliminary Project Feasibility Study
PW_MS	Public Works Management System
PWP	Public Works Programme
SCCD	Sub-Committee on Cavern Development
SCVA	Strategic Cavern Area
TFS	Technical Feasibility Statement
TRA	Tree Risk Assessment
WB	Works Bureau/Works Branch
WBTC No.	Works Bureau Technical Circular No. or Works Branch Technical Circular No.
WSD	Water Supplies Department

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II. GLOSSARY OF TERMS

II.01 Words and expressions to which meanings are assigned in this Chapter of the Project Administration Handbook for Civil Engineering Works (PAH) shall only apply to this Chapter.

II.02 In this Chapter of the PAH the following words and expressions shall have the meaning hereby assigned to them except when the context otherwise requires:

"Government" means the Government of the Hong Kong Special Administrative Region.

"project office" means the office responsible for the planning, design and construction of the project.
(Where these functions are performed by different offices at different stages, the project office shall mean the office responsible at each particular stage.)

"Contract", "Contractor", "Drawings", "Employer", "Engineer", "Engineer's Representative" and "Works" are as defined in the General Conditions of Contract for Civil Engineering Works (1999 Edition) or the General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition).

II.03 Words importing the singular only also include the plural and vice versa where the context requires.

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1. CHECK-LIST FOR PROCEDURES AND SUBMISSIONS UNDER THE PUBLIC WORKS PROGRAMME

Parties involved in the action column are defined as below: -

Action Party	Definition
Client	The office which has the authority over the final products of the PWP item
Project Manager (P_M)	The office (or a group of officers) which plays the role of project management under the Project Management Stream (P_M is used to avoid confusion with the post of Project Managers in some Departments)
Functional Manager (F_M)	The office (or a group of officers) which plays the role of functional management under the Project Management Stream
Consultant	The firm appointed by the Government for the purpose of delivering study/project/investigation.

Item No.	Action	Action by	File Ref. and Date	Remarks
1.	**Prior to inclusion in the Public Works Programme**			
1.1	Identify/establish need for the project (For CEDD other than its regional Development Offices, DSD, HyD and WSD projects)	Client		See Chapter 1
1.2	Identify/establish need for project (or engineering package) at the initial updating of the current edition of the development programme (For projects under regional Development Offices of CEDD)	Client/P_M		
1.3	Obtain CPLD/Policy Bureau/ExCo approval as necessary	Client/P_M		
1.4	Prepare PDS	Client/P_M		See para. 18 Amd No. 6/2025 of DEVB TCW No. 2/2024 Amd No. 6/2025, if relevant.
1.5	Signing off PDS	Policy Secretary		See signing-off in Para. 2.11.1 and the contents of PDS in Para. 3.2

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Item No.	Action	Action by	File Ref. and Date	Remarks
1.6	Prepare TFS	P_M		The contents of TFS in Para. 3.2 For projects that may involve rock blasting, the project office should consult GEO, CEDD at the early stage of TFS preparation.
				For tunnel works, in particular, the project office shall consult the Hong Kong Geological Survey through CGE/P to obtain general geological advice, especially on the identification of geological features
				See para. 18 Amd No. 6/2025 of DEVB TCW No. 2/2024 Amd No. 6/2025, if relevant.
		F_M		The works agent should check if a Heritage Impact Assessment is required in accordance with DEVB TCW No. 1/2022
1.7	For new road projects, allow adequate space provision for greening			DEVB TCW No. 3/2024
1.8	Check whether the signing-off procedure has been completed for TFS and secure Works Branch's approval	P_M		See signing-off procedure in Para. 2.11.2
2.	**When in Category C (i.e. TFS approved)**			

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Item No.	Action	Action by	File Ref. and Date	Remarks
2.1	Review the scope of works, update the estimated capital cost and the recurrent consequences, check the estimated cost of land acquisition from Lands Department, and check updated situation of staff resources to undertake detailed planning and design against the contents of TFS and, if necessary, prepare, sign-off and submit for approval of a revised TFS	P_M		See Para. 2.8 (please also see ETWB TCW No. 30/2003 which may also be applied when the project is in Cat. B)
2.2	Ensure inclusion of the project in CWRF RAS with reference to the timetable announced by the SFST each year	P_M		See Para. 2.5
2.3	Prepare programme for pre-construction activities including site investigation, feasibility studies, design and preparation of tender documents [to tally with the wordings in FC No. 7/2017] and seek necessary funding under block allocation or through part-upgrading the project to Cat. A.	P_M		See Chapter 1
2.4	Initiate works-related tendering and consultant selection procedures before funding under block allocation is secured to expedite project progress.	P_M		See FC No. 3/2020
2.5	Appoint consultant/instruct F_M or consultant to commence pre-construction activities [to tally with the wordings in FC No. 7/2017]	P_M		Seek approval of EACSB for appointment of consultants where necessary

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Item No.	Action	Action by	File Ref. and Date	Remarks
2.6	Carry out pre-construction activities [to tally with the wordings in FC No. 7/2017] and consult the relevant Works Department or other authorities, such as Marine Department and Civil Aviation Department as necessary	F_M/ Consultants		For tunnel works, in particular, the project office shall consult the Hong Kong Geological Survey through CGE/P, GEO, CEDD on the identification of geological features. They may contact CEG/P for advice/ assistance on planning and interpretation of site investigation. See para. 19 Amd No. 6/2025 of DEVB TCW No. 2/2024 Amd No. 6/2025, if relevant.
2.7	Carry out EIA as required under the Environmental Impact Assessment Ordinance (EIAO) or the ETWB TCW No. 13/2003 and consult Country and Marine Park Board and the Advisory Council on the Environment if necessary	P_M/F_M/ Consultant		P_M may be involved in appointment of EIA consultant if necessary
2.8	Carry out Heritage Impact Assessment if required under DEVB TCW No. 1/2022 and consult the Antiquities and Monuments Office of Leisure and Cultural Services Department if necessary	F_M		See DEVB TCW No. 1/2022
2.9	Circulate general layout plan to relevant departments, agencies and utility companies for comments and for information, and check the need for any utility works to be carried out in advance or in conjunction with the project works and liaise on the works programme	F_M/ Consultants		

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Item No.	Action	Action by	File Ref. and Date	Remarks
2.10	Seek agreement from ACABAS on the appearance of bridges and associated structures and seek advice from the Architectural Services Department on the aesthetic design of ancillary building in engineering projects	F_M/ Consultants		For highway structures involved in the project See ETWB TCW Nos. 36/2004 and 8/2005
2.11	Consult Rural Committee, Heung Yee Kuk and/or District Council(s) or other bodies as appropriate on layout and date of commencement of the Works/Works programme	P_M		
2.12	Obtain approval from SFST if ramps and/or covers are omitted from footbridges	P_M/F_M		For highway structures involved in the project
2.13	Complete legal procedures such as Roads (Works, Use and Compensation) Ordinance, Water Pollution Control (Sewerage) Regulations, Foreshore, Sea-bed (Reclamations) Ordinance and Town Planning Ordinance, etc.	P_M		See Chapter 3
2.14	Request acquisition and clearance of land	P_M		See Chapter 3
2.15	Request allocation of Works site, Works area, borrow areas and/or dump site areas	P_M/F_M		See Chapter 3
2.16	Prepare a Schedule of Accommodation in consultation with the Client Department and submit to the Property Vetting Committee for approval	F_M/ Consultants		See Chapter 1
2.17	Submit tree removal proposals to District Lands Conference/DLO/ LCSD/AFCD as appropriate	F_M/ Consultants		See Chapter 3
2.18	Consult Transport Department/ Police on traffic arrangement proposals, if necessary, carry out TIA study	P_M/F_M/ Consultants		
2.19	Check with the Public Fill Committee and Marine Fill Committee on source of fill & borrow areas and for allocation of dumping site and any special requirement for issuance of dumping license	F_M/ Consultants		See Para. 4.2.1 of Chapter 4 of the PAH and Para. 4.1.3 of Chapter 4 of the PAH

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Item No.	Action	Action by	File Ref. and Date	Remarks
2.20	Check with the Office responsible for future maintenance for any special requirements Check if the detailed design takes into account of the Greening Master Plans (GMPs) developed by CEDD. Agreement from WMCG for cases not complying with DEVB TCW No. 2/2012 and DEVB TCW No. 1/2018. Agreement from GLTMS for cases not complying with DEVB TCW No. 3/2012. Agreement from the maintenance party on taking up the maintenance including the maintenance cost and design. Add the consideration of Tree Preservation under TFS	F_M/ Consultants		
2.21	Complete final layout and circulate to other departments, maintenance authorities and railway/tramway operators for information as appropriate	F_M/ Consultants		
2.22	Complete pre-construction activities [to tally with the wordings in FC No. 7/2017] including site investigation, feasibility studies, design and preparation of tender documents	F_M/ Consultants		
2.23	Check legal procedures completed	P_M		See Chapter 3

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Item No.	Action	Action by	File Ref. and Date	Remarks
2.24	Submit geotechnical design of permanent slopes and retaining walls including natural terrain mitigation works, ground investigation proposals and design of foundation works in Scheduled Area Nos. 2 and 4, and the Designated Area of Northshore Lantau, and geotechnical design of tunnel works, including associated temporary works, to GEO, CEDD for consultation/checking/auditing/record, as appropriate	F_M/ Consultants		See ETWB TCW Nos. 29/2002, 29/2002A, 4/2004, 20/2004 and 15/2005
2.25	Check land allocation procedures completed	P_M		See Chapter 3
2.26	Check tree removal proposals approved by District Lands Conference/DLO/LCSD/AFCD/Tree Works Vetting Panel of project department (if applicable)	F_M/ Consultants		See Chapter 3
2.27	Check traffic arrangements agreed by Transport Department/Police	F_M/ Consultants		
2.28	Check approval of the Schedule of Accommodation by the Property Vetting Committee	F_M/ Consultants		
2.29	Prepare detailed project estimate	F_M/ Consultants		
2.30	Check project estimate	P_M		
2.31	Update estimate on recurrent costs	F_M/ Consultants		
3.	**When in Category B (i.e. after included in the Capital Works RAE)**			
3.1	Complete tender documents (submit documents to LAD, DEVB for vetting if the Contract is estimated to cost more than $300 M)	F_M/ Consultants		See Chapter 5
3.2	Initiate works-related tendering and consultant selection procedures before funding is secured to expedite project progress if necessary unless exemption from the relevant authority is sought	P_M F_M Consultants		See FC No. 3/2020 See Chapter 6

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Item No.	Action	Action by	File Ref. and Date	Remarks
3.3	Proceed to invite tenders via Electronic Tendering System (e-TS) unless exemption from the relevant authority is sought	P_M F_M Consultants		See FC No. 3/2020 See Chapter 6 See DEVB's memo ref. ( ) in DEVB (W) 546/94/02 dated 29 December 2023 and 10 May 2024 Amd No. 1/2025 See DEVB's memo ref. ( ) in DEVB (W) 546/94/03 dated 29 December 2023
3.4	Prepare draft PWSC paper for upgrading to Category A in good time, taking account of the meeting dates of FC and PWSC meetings, and submit to Departmental Headquarters (AD/NW for WSD projects) for onward transmission to the appropriate Policy Secretary (with copy to DEVB (Attn: CAS(W)1)) and the Financial Services and the Treasury Bureau (FSTB) (If considered necessary, the relevant LegCo Panel should be consulted before the PWSC submission and the draft Panel paper should be submitted to the Policy Secretary, copied to DEVB (Attn: CAS(W)1), in due course)	P_M		Normally, there are no PWSC meetings in the summer recess between mid July and end October
3.5	Consult LegCo Panels as necessary	P_M		
3.6	Ensure works have been authorized under the appropriate Ordinances	P_M		
3.7	Check upgrading to Category A approved by Finance Committee	P_M		
4.	**When in Category A**			
4.1	Monitor the expenditure of the project regularly and initiate action for any change to the scope/ estimate, if necessary	P_M		See Para. 2.8

For Category D items, reference should be made to Para. 2.7.5.

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2. PUBLIC WORKS PROGRAMME

2.1 INTRODUCTION

The Public Works Programme (PWP) is a list of all public works projects of a non-recurrent nature. The projects are listed under nine main headings below:

(a) Head 701 - Land Acquisition,
(b) Head 702 - Port and Airport Development,
(c) Head 703 - Buildings,
(d) Head 704 - Drainage,
(e) Head 705 - Civil Engineering,
(f) Head 706 - Highways,
(g) Head 707 - New Towns and Urban Area Development,
(h) Head 709 - Waterworks and
(i) Head 711 - Housing.

The list does not include, however, Housing Authority and capital subventions building projects or Defence Costs Agreement items, which are dealt with separately and are outside the scope of this Handbook.

To ensure effective resources planning, the CWRF RAS was introduced for non-New Town projects in 1987, and extended to cover New Town projects in 1988. The system is to provide for the planning of capital works expenditure on a six-year basis (including the current year) having regard to the resources likely to be available, the claim made on these resources, and the relative priority of these claims. Projects have to progress through the PWP within the framework of the RAS.

The procedures governing the PWP are set out in the FC No. 3/2011, FC No. 7/2017 and ETWB TCW No. 4/2006. The procedures to be followed in the annual resource allocation exercises (RAE) are set out each year in a Circular Memorandum issued by the SFST. The requirements of preparation of PDS and TFS for Capital Works Projects under FC No. 4/2012 are essential for project inclusion into the PWP. For block allocations, reference should be made to FC No. 3/2011. The introduction by the former S for W of the Project Management Stream has demonstrated commitment to the systematic control of and accountability for project delivery.

The principles underlying the procedures and systems governing PWP are:

(a) To ensure that proposals for the advancement of projects through the planning, design and implementation stages are properly supported by well defined scope of works and reasonable forecasts of expenditure and programme, with proper regard taken to the optimal utilisation of the staff resources in the Works Departments.

(b) To impose an equitable system whereby projects can be assessed in a manner consistent with the priority and resource position accorded in the annual RAE, and to ensure that no projects are allowed to slip through the normal vetting procedures except in cases of exceptional urgency.

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(c) To ensure that a project is executed in accordance with undertakings given to the Finance Committee of LegCo when funding was approved.

(d) To reinforce the accountability for ensuring project delivery on time and within the budget constraints.

The PWP is financed from the CWRF. Within the resources available in the CWRF, expenditure on each Category A project is limited by its approved project estimate and administrative cap; and expenditure on a block allocation is limited to the approved provision and ambit of the block allocation as laid down in the annual Estimates approved by the Finance Committee.

2.2 CATEGORIES IN THE PUBLIC WORKS PROGRAMME

The list of projects in the PWP is arranged according to a system of categories, namely Category C, Category B, Category A and Category D. Each category constitutes the authority to proceed with a specific stage or value of work. All new projects should enter the PWP as Category C or Category D items, as appropriate. Only under very exceptional circumstances will a project be considered for direct inclusion in the PWP as a Category A item.

The definitions of the various categories in the PWP are as follows:

(a) Category C: project that has a PDS signed off by DoBs and a TFS approved by the Works Branch (WB) of DEVB.

(b) Category B: projects which have had resources earmarked and made ready for them in the latest RAE, but they are not yet in Category A and therefore the proposals have not yet been presented to Finance Committee of LegCo for approval.

(c) Category A: projects which are ready in all respects for tenders to be invited and construction works to proceed, and have been granted an APE by Finance Committee.

(d) Category D: smaller projects/consultancies estimated to cost not more than the prevailing financial ceiling for Category D projects (which is currently set at $50M, $75M for **Subhead 6101TX** and without limit of **Subhead 5001BX**) on which work/consultancy may proceed and expenditure may be incurred, subject to the availability of funds in the block allocations provided for the purpose.

The system of categories is designed to integrate the PWP with the RAS. Thus, the following points have to be noted:

(a) For Category C projects, works director(s) with the support of DoBs may undertake the necessary pre-construction activities so as to render the project ready for upgrading to Category B. Funding arrangement shall refer to paragraph 2.4.3.

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(b) For Category B projects, Controlling Officer must not award a contract unless and until funding has been secured, even though they may invite tenders or initiate consultants selection exercises for Category B works contracts before funding is secured in accordance with FC No. 3/2020.

2.3 AUTHORITIES FOR APPROVAL

The progress of a project from conception to implementation is governed by the following authorities:

Type of Approval	Authorities	Characteristics
Approval of entry to Category C	Satisfactory completion of PDS and TFS with the approval of WB of DEVB	- PDS and TFS to be completed - agreed by FSTB and DEVB for entry into PWP - allocated a PWP number
Approval of upgrading to Category B	Committee on Resource Allocation in the context of the annual RAE	- resources allocated in the latest or an earlier Capital Works RAE or an in-year RAE bid
Approval of upgrading to Category A	Finance Committee on the recommendation of PWSC	- resources allocated in the latest or an earlier Capital Works RAE or a direct injection
Approval of deletion from Category A	Financial Services and the Treasury Bureau	- all works complete - account finalized and all outstanding balances settled
Approval of deletion from Category B	CoRA in the context of the annual RAE	- removed from RAE and no provision in the estimates for the current financial year or in the latest RAE
Approval of deletion from Category C	Financial Services and the Treasury Bureau	- deleted automatically if the item remains in the category for more than three years without being included into RAE - removed from PWP
Approval of entry to and deletion from Category D	See Para. 2.7.5	

(Note: certain delegated powers exist for the revision of scope for projects in categories A and D. The SFST will decide whether the proposed changes are of such importance as to require reference to the appropriate authority.)

The Finance Committee has delegated to the Secretary for Financial Services and the Treasury powers to:

(a) approve an increase to the approved project estimate for items and block allocations under Heads 702 to 707, 709 and 711 projects, provided that the increase so approved does not result in a total more than $15 M, and that the scope of the project remains basically unchanged, and

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(b) approve a reduction in the approved project estimate for items and block allocations under Heads 702 to 707, 709 and 711 projects without financial limit, provided that the scope of the project remains basically unchanged.

The membership and terms of reference of the various authorities can be found in the latest edition of "Civil and Miscellaneous Lists" published by the Government of the Hong Kong Special Administrative Region.

2.4 FINANCING OF THE PUBLIC WORKS PROGRAMME

2.4.1 Capital Works Reserve Fund

The CWRF was established on 20 January 1982 by Resolution of the Legislative Council for the purpose of financing the PWP and acquisition of land. On 15 May 1985, a third Resolution was passed by the Legislative Council as a consequence of the Land Annex to the Joint Declaration. The 1985 Resolution, which was subsequently amended and the latest amendment was on 6 January 1995, in relation to the funding of the PWP, sets out that:

(a) there be credited to the Fund such appropriations from the general revenue as may be approved by the Legislative Council,

(b) the Financial Secretary may expend from the Fund for the purposes of the PWP and for the acquisition of land, in accordance with such conditions, exceptions and limitations as may be specified by the Finance Committee,

(c) the Director of Accounting Services shall, under the authority of the funds warrant issued by the Financial Secretary, pay from the Fund such sums as may be required to meet the expenditure from the Fund,

(d) the Financial Secretary at his discretion may authorize investment in such a manner as he may determine, of any unexpended balance held in the Fund at any time, and

(e) the Financial Secretary may from time to time transfer from the Fund to general revenue any balance in the Fund which is not required for the purposes of the Fund.

2.4.2 Method of Funding

There are nine Heads of expenditure for the PWP, within the CWRF, namely:

(a) Head 701 – Land Acquisition,
(b) Head 702 – Port and Airport Development,
(c) Head 703 - Buildings,
(d) Head 704 – Drainage,
(e) Head 705 - Civil Engineering,
(f) Head 706 - Highways,
(g) Head 707 - New Towns and Urban Area Development,
(h) Head 709 - Waterworks, and
(i) Head 711 – Housing

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Subheads are entered each year in the CWRF Estimates for projects in Category A of the PWP as well as those in Category B (allocations under such subheads will be reserved until that upgrading is approved).

Where a project has an approved estimate, the Secretary for Financial Services and the Treasury may authorize a supplementary allocation for the project as and when necessary, provided that the total project commitment approved by Finance Committee and administrative cap are not exceeded.

Block allocations are generally used for public works or related expenditure, which are of an on-going nature and for which it is not possible to adhere to a fixed scope. Some examples of such items are:

(a) District based urban environmental improvements,
(b) Landslip preventive measures (controlled by CEDD),
(c) Refurbishment of government buildings,
(d) Minor building works, and
(e) Category D projects in the PWP for studies and investigations (separate allocations for CEDD, DSD, HyD, WSD and Housing projects).

Block allocation for Category D and other items may be over-committed in accordance with the details announced by the SFST each year. Finance Committee has delegated to the Secretary for Financial Services and the Treasury powers to approve funding of the minor projects, which fall within the limit of a Category D item in the PWP. Some delegations have also been provided to Permanent Secretaries and vote controllers as set out in FC No. 3/2011. The annual limit of expenditure for all block allocations, however, is separately approved by Finance Committee each year.

2.4.3 Policy on Fund Provision and Expenditure

(a) No subheads may be created and no expenditure may be incurred in respect of projects in Category C. (See paragraph 2.2 and (d) & (e) below).

(b) A subhead may be created for a project in Category B but no expenditure may be incurred until the project has been upgraded to Category A. (See paragraph 2.2).

(c) A subhead may be created for a project in Category A but no expenditure may be incurred until such a subhead has been created.

(d) For CEDD, DSD, HyD and WSD projects in Category B or Category C, a separate block vote item can be created for pre-construction activities [to tally with the wordings in FC No. 7/2017] including site investigation, feasibility studies, design and preparation of tender documents. If funding for a pre-construction activity is estimated to exceed the delegated financial limit of a Category D item and cannot therefore be charged to the relevant CWRF block allocation, the relevant works director(s) would need to upgrade the pre-construction activity to Category B and subsequently to Category A for funding the pre-construction activity.

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(e) Projects approved by the Finance Committee should be completed as soon as possible and without interruption. Where the original allocation in the annual Printed Estimates is likely to be exceeded, supplementary funds should be sought in good time so that contractual commitments can be met without delay. Procedures for making changes to the approved estimates of expenditure are set out in the FC No. 2/2012, FC No. 7/2017 and FC No. 3/2016.

2.5 ANNUAL RESOURCE ALLOCATION EXERCISE

The procedures to be followed in the annual RAE are set out each year in a Circular Memorandum issued by the SFST. Bids for new projects to be started in the six-year RAS period are put forward by DoBs, who have authority to set relative priorities between bids from Departments under their purview. Once DoBs' works programmes for the relevant resource allocation period have been accepted, DoBs have authority to alter the timing or priority of projects in their programmes, provided that the estimated overall expenditure over the six-year forecast period is not exceeded, and subject to the ability of the Works Departments to accommodate the design and supervision requirements.

The normal procedure involved is as follows:

Timing*	**Event**
June/July	- FSTB to issue call circular for the year's RAE - Policy Bureaux to submit new bids for capital works projects including existing Cat B projects and new projects
September	- DEVB to advise on the capacity of the Works Departments to implement the projects under the RAE bids - CoRA to decide on allocation provisions
October	- FSTB to inform Policy Bureaux/departments of final results of the RAE

* The timing is for reference only. For detailed schedules for each financial year, reference should be made to the relevant Circular Memorandum of the year.

2.6 NUMBERING OF PROJECTS IN THE PUBLIC WORKS PROGRAMME

The numbering of projects in the PWP is in the form of subhead codes. A subhead code comprises basically four digits followed by two letters, for example:

5008DR

The first digit is either 1, 2, 3, 4, 5, 6, 7, 9 or B for projects corresponding to, respectively, Head 701, 702, 703, 704, 705, 706, 707, 709 or 711 in the PWP. The remaining three digits are serial numbers. The two letters at the end of the code give basic information on the nature of the project. The first letter denotes the Programme Area to which the project relates and the second letter denotes the Sub-programme under the corresponding Programme Area denoted by the first letter.

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Programme and Sub-programme descriptions, with effect from April 1992, are listed in Appendix 2.1.

2.7 PROCEDURES FOR PROJECT INCLUSION AND UPGRADING

2.7.1 Introduction

The procedures for project inclusion in the PWP and upgrading are set out in FC No. 4/2012 and FC No. 7/2017. Details of the block allocation system are given in FC No. 3/2011.

For a new capital works project to be included in Category C or directly into Category B, FSTB requires Policy Bureau to justify and define the scope of the project by way of completion of a PDS and the responsible Works Department to confirm the technical feasibility on a prima facie basis in the form of a TFS approved by the WB of DEVB. All Capital Works RAE bids must be accompanied by a PDS and a WB of DEVB approved TFS. Upgrade of projects to Categories B and A depends upon the inclusion of the project into the RAE and approval of funding by Finance Committee respectively. Projects should be planned, as far as possible, to tie in with the annual RAE and the Finance Committee/ PWSC meetings.

The Capital Works RAE arrangements have been streamlined by combining the "Category B+" and "Category B-" into one "Category B" in accordance with FC No. 7/2017. The Policy Bureaux and Works Departments which have completed the TFS for their works projects as approved by WB of DEVB may proceed with the pre-construction activities [to tally with the wordings in FC No. 7/2017]. When the relevant pre-construction activities have been completed, the Policy Bureaux and Works Departments may then bid for Category B for the works projects that are ready for seeking funding from the Finance Committee or proceed with parallel tendering in accordance with FC No. 3/2020.

2.7.2 New projects

All new projects proposed for inclusion in Category C of the PWP must be well defined in respect of project scope and properly justified. Generally, new projects enter the PWP at Category C or directly to Category B, or Category D as appropriate, except for those projects directly injected into Category A.

Under the requirement of FC No. 4/2012, for a proposed new capital works project, the Policy Bureau concerned is required to sign off a PDS. Before this signing off, the Works Department should scrutinize the draft PDS and conduct initial assessments so as to help its client to determine the best development option and alert the client to any potential problems that might arise in the delivery or the public consultation stage of a project. Upon receipt of the PDS, the Works Department concerned is required to complete a TFS and secure WB of DEVB's approval. The TFS should be completed in four months without recourse to consultancy support; unless the works director is personally satisfied that consultancy input through a feasibility study is necessary. The TFS may be signed off by the works director or his delegates (authority to delegate is given in paragraph 6 of FC No. 4/2012). Upon the approval of TFS by WB of DEVB, the project will gain a Category C status subject to approval of FSTB. The Works Department may undertake the necessary pre-construction activities [to tally with the wordings in FC No. 7/2017] including consultancies and/or ground investigation works, so as to render the project ready for upgrading to Category B. The

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funding for pre-construction activities may be sought from the CWRF block allocations where the total accumulative spending on such pre-construction activities does not exceed $50 million, or through part-upgrading the project to Category B and subsequently to Category A for pre-construction cost exceeding $50 million. Entry into Category C will give no certainty that a project will be earmarked funds at a subsequent RAE. The decision on the latter will rest with the CoRA. Under normal circumstances, a project in Category C will automatically be deleted from PWP if it is not upgraded within three years. Where there is a great urgency or other overriding considerations to incur any CWRF expenditure on any pre-construction activities associated with a Category C project, the project proponent should in consultation with the Works Department seek exceptional approval of the SFST in accordance with FC No. 7/2017.

The Policy Bureaux and Works Departments should keep a close watch on Category C projects which have not been upgraded to Category B within three years from the date of entry into Category C, and should provide justification in writing to FSTB for the retention of Category C status prior to the expiry of the three-year validity period. In the absence of initiation by the relevant Policy Bureaux and Works Departments for retention of Category C status of the project (mainly by revisiting / updating the relevant TFS and submission to Works Branch of DEVB for approval), it will be followed up with a view to deletion of such project from CWP after three years.

In case the scope of works and/or project estimate of a Category C project is revised and becomes substantially different from that in the approved TFS, a replacement TFS for consideration by Works Branch of DEVB and re-confirmation of the Category C status of the project by FSTB is required.

2.7.3 Upgrading to Category B

The Policy Bureaux and Works Departments may seek to upgrade a Category C project to Category B by submitting bids in the annual Capital Works RAE. Once a project is allocated resources in the latest RAE, it is automatically upgraded to Category B. Normally, bids for upgrading to Category B must be supported by a TFS which has been approved by WB of DEVB before SFST's calling for RAE bids that year (usually in August). For TFS completed three or more years ago, the information contained therein should be updated as appropriate. Notwithstanding the above, FSTB will facilitate upgrading of projects in between two RAE cycles if there are urgent, exceptional and/or unforeseen circumstances. It has been a usual practice since the 2002 Capital Works RAE that prior to submitting a RAE bid, project proponents are required by FSTB to resolve with the maintenance departments to absorb the recurrent consequences incurred by the proposed project before making requests for funding for the Capital Works. It is only under exceptional circumstances this requirement would be waived. Nonetheless, for new major projects approved in the 2005 Capital Works RAE and/or thereafter, the Centre would fund in-principle the recurrent consequences arising from new works projects, capped by the amount of recurrent consequences in the RAE result and subject to detailed vetting by FSTB in accordance with FC No. 2/2005. FSTB will scrutinize the details of each recurrent funding request before the submission of the project to the Finance Committee/PWSC. The detailed arrangements in each Capital Works RAE will be set out in FSTB's call circular.

Once a project is upgraded to Category B, there would be earmarked funding and the Policy Bureaux and Works Departments may proceed with upgrading to Category A, parallel tendering before upgrading of the project to Category A in accordance with FC No. 3/2020 or

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land acquisition before upgrading to Category A. The Works Departments must not award a contract unless and until funding has been secured, even though they may invite tenders or initiate consultants selection exercises for Category B projects before funding is secured in accordance with FC No. 3/2020.

2.7.4 Upgrading to Category A

Upgrading of a project from Category B to Category A may only be proposed by the appropriate Works Department with support of the Policy Bureau concerned when all necessary pre-construction activities have been completed or substantially completed. Statutory procedures and public consultation required for a project should have been completed before putting forth the funding proposal to PWSC and FC.

The FC has requested the Administration to consult the relevant LegCo Panels on funding proposals before seeking FC approval. Prior discussion at Panel meetings enable the Administration to gauge LegCo Members' concerns and to provide clarification and supporting information as needed in the FC submission. This will facilitate subsequent discussion at the FC and enhance the efficiency of the meetings. As the number of slots of each panel meeting is limited, the Works Department should be in consultation with the Policy Bureau concerned as early as at the beginning of each LegCo session, to decide the appropriate timing for panel consultation for a project.

Submission of a funding proposal, including a draft PWSC paper and an appraisal of the recurrent consequences arising from the project in accordance with FC No. 2/2005, should be addressed to the Policy Bureau concerned for clearance and for onward submission to the FSTB.

Following clearance by FSTB, the funding proposal will be sent to the Secretary, PWSC who will arrange for the item to be put to PWSC for a recommendation to be made to Finance Committee. During the intervening period between the submission of a PWSC paper and the date of PWSC meeting or between the PWSC meeting and FC meeting as appropriate, the Policy Bureau/Works Department concerned should inform PWSC/FC through information note, letter, or report of objections received, if any.

2.7.5 Inclusion in Category D

Matters relating to the creation of Category D and other block vote items are laid down in FC No. 3/2011.

2.8 PROCEDURE FOR CHANGES TO PROJECTS

2.8.1 Change in Scope

If a Works Department identifies that a project in Category C or Category B requires significant changes to be made to the original project scope as stated in the TFS, it is the responsibility of the P_M in the Works Department to propose the change, assess the cost and programme implications and seek agreement of the Client Department and the Policy Bureau concerned. Clear statements should be made in the proposal as to what changes are necessary and why they are required. If the proposed changes are so significant that the P_M would consider necessary to re-assess the technical feasibility of the project by preparation of a new TFS, a revised PDS should be requested if appropriate, and the preparation, signing off and

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approval procedure of a TFS should be followed.

In case where a change in scope of a project in Category B or Category C is necessary due to changes initiated by the Policy Bureau, Client Department or subvented bodies concerned which involve a change in the policy, user requirements or timing of the project from those originally stated in the PDS/TFS, the following procedures shall be followed. Upon receipt of a change request via a routing sheet in Appendix 2.4, a Works Department officer at appropriate level shall complete Section II of the routing sheet to advise the Policy Bureau for their consideration the time and cost implications of the proposed changes and whether a revised TFS is required to re-assess the technical feasibility of the project. Unless the proposed changes would not cause any delay or additional cost to the project (including any problem with additional recurrent consequences or extra staff for project delivery), the Works Department must await the Policy Bureau's response before proceeding further with the proposed changes. If DEVB does not provide its comments, if any, within seven working days after receipt of the completed Section II, the Works Department can assume that DEVB has no objection to the proposed changes.

At any time of a Category B project prior to upgrading to Category A, the Policy Bureaux and Works Departments who intend to substantially vary the scope, project estimate or programme of a Category B project should consult FSTB as early as possible, irrespective of whether there will be consequential capital and recurrent cost implications. Star Chamber may need to be consulted depending on the degree of variation, particularly when the change involves an increase in the project estimate and raises the issue of whether it is justifiable to pursue the project. If additional resources are required, the Policy Bureaux and Works Departments concerned are expected to first meet them from within the total resources allocated for Category A projects under their policy portfolio. Failing that, a RAE bid should be submitted to seek additional resources.

Works Departments shall not input the time and cost implications of any proposed client-initiated changes when updating the cost and programme data for the project in the PWPIS before Policy Bureau's confirmation to accept the same via the routing sheet.

The above procedures are illustrated in the flow-chart at Appendix 2.5 for ease of reference.

Where the approved scope of a project in Category A requires substantial changes, the P_M should obtain the relevant information from the Client and the Maintenance Office, such as the justification for the revision and recurrent consequences, and forward the proposal in the form of a draft PWSC paper to Policy Bureau for onward transmission to the FSTB following the general procedure described in the paragraph 2.7.4. Where the P_M is not the Vote Controller, the Works Department should submit the PWSC paper through the Vote Controller to the Policy Bureau. Finance Committee's approval is required for a substantial change in scope to a Category A item.

In case of a change in scope of a Category D project, the form of submission for revising the scope can be referred to FC No. 3/2011.

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2.8.2 Change in APE

The project engineer (PE) shall from time to time review the project estimate and expenditure in the light of progress and other conditions of the project. For a Category A project, the PE shall regularly review the financial position to ensure that the estimated project cost does not exceed the APE. After the review, the PE shall prepare a financial statement, which should be kept in the project file and vetted by his/her senior. In the event that the estimated project cost is more than the APE, the PE shall immediately inform the office head of the exceedance and propose the time-table for requesting for an increase in APE for the office head's agreement. Approval to increase APE must be obtained before making any further commitments under the project.

When reviewing the financial position of a Category A project, the PE should take into account, but not limited to, the following -

(a) Higher/Lower tender prices and/or price fluctuation;

(b) changes in the scope of the project;

(c) significant changes in quantities due to unforeseen ground conditions, and error or omissions in the Bills of Quantities;

(d) the value of all issued and proposed variation orders;

(e) additional payments arising from contractual claims;

(f) the financial implications of extensions of time such as prolongation costs and resident site staff costs; and

(g) the financial implications on contract expenditure where the performance of the Contractor is variable, where the Contractor is in financial difficulties or where re-entry and/or novation of contract are being considered.

Where the APE of a Category A project requires an increase, without a change in scope, a submission in the form of a PWSC paper should be made by the P_M in the Works Department to the DoB for onward transmission to FSTB. The P_M in the Works Department should submit a prior application for upward adjustment of Administrative Cap of the project under the annual Capital Works RAE or submit an offsetting saving proposal in between two RAE cycles if there are urgent and/or unforeseen circumstances. A detailed analysis of the change required, a cost comparison, and an indication of any exceptional urgency (such as outstanding tenders) must be given. Any increase in APE exceeding $15.0M must be submitted to Finance Committee for approval. All submissions for increase in APE to Finance Committee should first be discussed by relevant LegCo Panel(s).

According to the then S for Tsy's memo ref. (31) in FIN P6/9 VIII dated 9.2.93, where there is no change of scope, requests for reductions in APE may be made by memorandum addressed to SFST, for the attention of PAS(Tsy)(Works), and copied to the DEVB. The memorandum should contain subhead, project title, a brief description of the project scope, the original and proposed (reduced) APE, a concise explanation as to why the reduction is proposed and a final statement to confirm that the reduction does not involve any change of scope.

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According to the then SETW's memo ref. ETWB(CR)(W)1-150/4 Pt. 2 dated 27.4.2004, the following actions should be taken:

(a) Suitably adjust the APE and the RAE estimates of projects when a tender price is significantly lower than the estimated contract sum in the APE and there will likely be surplus funds under the project; and

(b) State clearly in the submissions to the PWSC and Finance Committee of LegCo seeking an increase in the APE for works projects:

(i) the total cost increase and the reasons for the increase; and

(ii) whether any surplus funds in the APE have been used to meet the cost increase.

2.8.3 Regrading of Existing PWP Items

In case that the revised project estimate of a Category A item falls within the limit for a Category D item, it is not necessary to regrade a project from Category A to Category D. The creation of a Category D item in place of a Category B or Category C item can be dealt with in the contents of the Category D paper. A Category D project with a revised estimated cost greater than $50M can be regraded to Category A (i.e. direct injection into Category A) by submitting a PWSC paper for endorsement by the PWSC, provided that savings from the relevant programme area of the Policy Bureau can be identified. Should there be a substantial change in scope of the project, consideration should be given to undertaking a PDS and TFS and going through the normal PWP process.

2.9 PROCEDURES FOR ENTRUSTED PROJECTS

Public works projects are sometimes entrusted to outside agencies (such as MTRCL, KCRC, the Housing Authority (HA) or a private developer). The same procedures for progressing through the PWP mentioned earlier apply.

Prior approval from FSTB is necessary before entering into any commitment/ agreement with an outside agency. The project may be included directly into Category A or the PWP in urgent case. The Client Department proposing the work should forward a submission in the form of a draft PWSC paper to the DoB for onward transmission to FSTB. This may be done at any time. The requirements for any necessary policy approvals also apply to entrusted projects.

Where the proposed entrusted project requires expenditure under the PWP, every effort should be made by the Client Department to plan sufficiently ahead to have such items included in Category A in time (after RAS/Annual Review). Necessary assistance may be sought from other government offices, if any, which involve in the management of/liaison with the outside agency to which entrustment is being considered.

2.10 PROCEDURES FOR FEASIBILITY STUDIES

In accordance with FC No. 4/2012, engagement of consultants to undertake a feasibility study (FS) of a project to facilitate the completion of the TFS can proceed only if the works director is personally satisfied that it is necessary to do so before he can

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recommend upgrading of the project to Category B. Funding for a FS would be via the creation of a block vote item if the value of the item does not exceed a predetermined ceiling as set out in FC No. 3/2011 (currently $50M). If the value of the item or the total accumulative spending on pre-construction activities including any further FS is estimated to be exceeding the ceiling, a Category A item should be created.

2.11 PROCEDURES FOR TECHNICAL FEASIBILITY STATEMENT

A new project undertaken by a Works Department may be initiated by the Policy Bureau, Client Department, or Works Department itself. The Works Department proposed for undertaking the project shall review its resources available, programme and nature of the project before determining whether or not to undertake the project. For a project to be included into the PWP, a TFS needs to be completed. TFS is not required for projects that are themselves studies, non-works items or renovation works. The requirements, formats and procedures of preparation of a PDS and a TFS are set out in FC No. 4/2012 and the requirements for TFS to include the need or the otherwise for HIA in DEVB TCW No. 1/2022.

2.11.1 Project Definition Statement

To commission the preparation of a TFS, DoB or Deputy Secretaries delegated with the authority are required to sign off a PDS for each proposed capital works project. The PDS should justify and define the scope of the proposed project.

2.11.2 Technical Feasibility Statement

Based on the PDS, the TFS is then prepared and submitted for WB of DEVB's approval. If the works director concerned is personally satisfied that consultant input through a feasibility study is required, the relevant extract of the feasibility study can be submitted in lieu of a TFS. The purpose of the TFS is to confirm the technical feasibility of each proposed project on a prima facie basis before:

(a) the project may be included in Category C of the PWP,

(b) Policy Bureau seek upgrade to Category B,and

(c) Works Departments initiate the more comprehensive design and planning required for upgrade to Category A.

The P_M of the Works Department is responsible for the co-ordination and preparation of the TFS.

The following points are important to note in the preparation of the TFS:

(a) The TFS should preferably be completed within four months from receipt of the PDS,

(b) TFS should not be prepared with consultancy support under normal circumstances,

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(c) a TFS should normally be completed before RAE bid (normally in July/August). SFST would only facilitate bids in between RAE cycles if there are urgent, exceptional and/or unforeseen circumstances, and

(d) if during the preparation of the TFS it is established that the original envisaged project is not feasible, in which case it may be necessary for the Policy Bureau to reconsider a new PDS.

The authorities for signing off the TFS are as follows:-

Project Estimate	Signing-off Authorities
	Works Dept. (P_M & F_M)
Less than $300 M	D2 (if delegated) or Head of Dept.
Less than $700 M	D3 (if delegated) or Head of Dept.
$700 M or more	Head of Dept.

The completed TFS signed off by the appropriate Directorate Officers should be submitted to DEVB for approval.

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3. SUBMISSIONS FOR APPROVAL UNDER THE PUBLIC WORKS PROGRAMME

3.1 TIMETABLE FOR ACTION

(a) Submission of new projects to enter Category C:

Satisfactory completion of PDS and TFS should be in time such that programme for inclusion into the RAE of the year in which expenditure has to be incurred could be met. Sufficient lead-time should be allowed in this process for D of L to check the land requirements.

(b) Upgrading of projects from Category B to Category A, or downgrading/ deletion of projects from Category A:

Regular meetings of the PWSC are held as advised from time to time by the Clerk to the PWSC. Submissions can be made at any time by the Works Departments having regard to the timetable for PWSC meetings, i.e. submissions must be drafted sufficiently in advance to ensure that adequate time is available for:

(i) Completing the detailed design and tender documents to meet the scheduled date of commencement of construction, and

(ii) The vetting of submissions by departmental headquarters, or AD/NW for WSD projects, and the Policy Bureau prior to submission to FSTB (The lead time required for the first draft submitted by the Policy Secretary to reach the FSTB is about 2 months in advance of the specified PWSC meeting for discussing the paper. The lead time for the finalised PWSC paper to arrive at the FSTB is about 1 month in advance of the PWSC meeting.)

(c) CWRF RAS and the Annual Resource Allocation Exercise:

Around June/July each year, FSTB will issue circular to call for returns for the year's RAE. In September, the Star Chamber will consider submission from Director of Bureaux and decide the allocation of resources to each Director of Bureau. An indication of the timing for the process of the annual RAE can be found in paragraph 2.5.

(d) Submission of projects for direct inclusion in Category A:

Submissions may be made at any time for consideration at PWSC meetings.

(e) Submissions for the revision of the scope of a project:

Submissions in the form of PWSC Paper may be made at any time to FSTB for Category A projects, or in the form of a TFS routing through the relevant signing-off and approval authorities for Category B and Category C projects.

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(f) Submissions for an increase in the approved project estimate by over $15M, with or without a corresponding change in the scope of the project:

Submissions may be made at any time for consideration at PWSC meetings. Project Offices should submit the draft papers sufficiently in advance to allow adequate time for vetting by the departmental headquarters, or AD/NW for WSD projects, while meeting the deadlines set for submissions by FSTB.

(g) Submissions for an increase in the approved project estimate not exceeding $15M in total or a reduction in approved project estimates (without limit), without a change in scope:

Submissions may be made at any time to FSTB.

(h) Submission for Category D projects:

Submissions may be made at any time in accordance with para. 2.7.5

3.2 PROJECT DEFINITION STATEMENT AND TECHNICAL FEASIBILITY STATEMENT

A PDS and a WB of DEVB approved TFS are required for inclusion of a project into Category C or Category B.

For every new project that is proposed for inclusion in Category C of the PWP, a TFS must be prepared for signing off by the works director or his delegates for approval by WB of DEVB. A TFS should normally be completed before RAE bid (normally in August). SFST would only facilitate bids in between RAE cycles if there are urgent, exceptional and/or unforeseen circumstances.

The general format for the PDS and TFS are shown in Annex A and Annex B of FC No. 4/2012 respectively.

3.3 PWSC PAPERS

PWSC paper is required for upgrading projects from Category B to Category A, making substantial changes (which is outside the delegated authority of the SFST) to an existing Category A project, and for direct injection into Category A.

The submission should be in the form of a draft PWSC paper, the detailed requirements on contents & formats, an example, an aide-memoire checklist for issue of PWSC papers can be found in FC No. 2/2021 - User Guide on the Finance Committee, Establishment Subcommittee and Public Works Subcommittee. The drafter of the paper should always remember that the contents of the paper must be concise and capable of being fully understood by the layman in both English and Chinese. The draft PWSC paper should be broadly divided into the following sections:

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(a) Heading

The relevant head, programme and sub-programme areas, project code and title should be shown and be identical to the printed Estimates.

(b) Preamble

An inset preamble should state precisely what PWSC is being asked to recommend to Finance Committee.

(c) Problem

The problem should be set out as succinctly as possible. It should identify the problem clearly and should not confuse the problem with the proposal in item (d) below.

(d) Proposal

This section should set out the precise funding proposal for Members' consideration.

(e) Project Scope and Nature

This section should define clearly the scope and nature of the public works project. It is intended to be binding upon the Administration and should not be left vague or open to interpretation. This should correspond to the cost breakdown given in either the "Justification" section or the "Financial Implications" section as much as possible.

(f) Justification

This section should set out the justification for the proposal and state clearly the consequences of the proposal not proceeding. This section should also state the benefits arising from the proposal. It is often useful to state the non-government sources of support or initiation of the paper. While being precise, drafters should argue the pros and cons fully and persuasively to their logical conclusion.

If the proposal involves a revision in the approved project estimate, this section should summarize the reasons for the revision using the standard format. A comparison of the cost breakdowns of the approved and revised project estimates (in MOD prices), with detailed explanations should be given in the form of enclosure to the paper. For example, if the cost increase is due to inflation, the section should quote the percentage change in the relevant cost index. For cost increases due to additional works, the section should explain why those responsible for the project were not able to plan for these works when preparing the original project estimate.

In respect of a transport infrastructure project for funding submission and reporting to LegCo, the project office should, in collaboration with TD, take due account of the usage of heavy vehicles in the estimation of design traffic

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capacity of a road and for roads with a high percentage of usage by heavy vehicles in terms of passengers car units (PCU), in addition to vehicle units. (Audit Report No. 53 Ch. 10)

If the proposal involves footbridges and subways, this section should also provide the estimated pedestrian flow information for the facilities. (Audit Report No. 49 Ch. 11)

(g) Financial Implications

Financial implications must be stated. All Panel/PWSC/FC papers on CWP projects should provide estimates in money-of-the-day (MOD) prices[1]. For the avoidance of doubt, PWSC submissions should no longer present project estimates in constant prices. Once approved by FC, the project estimate in MOD prices will form the APE of the project. TsyB will announce price adjustment factors to be used for converting constant prices into MOD prices regularly.

For projects to be upgraded to Category A, it is necessary to give the capital cost in MOD prices and additional annually recurrent cost. This section should state the proposed form of tender (e.g. remeasurement, fixed price, etc.). In particular, if the capital cost includes consultancy fees, the paper should identify these separately and provide breakdown of the consultancy fees in an enclosure. The section should also identify separately costs attributable to overseas duty visits in connection with the project such as acceptance tests and training for new equipment, explaining the need for such visits and the basis of the estimated cost. For projects where furniture and equipment will be required, their estimated cost must be included in the section as a separate cost item. For papers involving part-upgrading of projects, drafters should indicate what the remaining cost items may involve.

For seeking revisions in the approved project estimate, it is normally sufficient to state the phasing of expenditure with details of how the estimates in MOD prices are derived and any additional annually recurrent cost arising from the revision in the approved project estimate.

Where the contingency sum allowed against a project estimate exceeds 10% of the other costs, drafters must include a special paragraph explaining the reasons for requiring a larger contingency.

If the funding proposal has any implications on the relevant fees and charges, a statement on the impact on the fees and charges should be included.

(h) Public Consultation

This section should contain a clear statement on consultation with various bodies such as District Councils, the Advisory Council on Environment and Legislative Council Panels, when the consultation took place, and any advice or comments made by such bodies. In the absence of public consultation, the

[1] The same requirement applies to funding proposals submitted to TsyB for approval under delegated authority.

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paper should explain why this is not necessary. Where the project has resulted in objections or agreement with reservations, the paper should state clearly the grounds for the objections or reservations together with any remedial proposals. The District Officer/ Secretary for Home and Youth Affairs should give his clearance to the final wording of this section if objections are still outstanding.

This section should also provide details for any gazetting under ordinances, state whether objections have been received, and if so, the details of the objections and what has been done to resolve the objections. The date of authorizing the project under the relevant ordinance should be given.

(i) Environmental Implications (Subsumed from WBTC Nos. 25/99, 25/99A & 25/99C)

This section should set out in concise fashion whether the proposal has environmental implications. Where there are environmental implications, this section should set out proposed mitigation measures. In this connection it is useful to state whether and when the Environmental Protection Department or others have carried out either an environmental review or an environmental impact assessment and what were the findings or recommendations. This section should be cleared by the Director of Environmental Protection. Whenever possible, this section should include an estimate of the cost of implementing the environmental mitigation measures and the source of funding.

This section should also include information relating to the management of construction waste (termed as "Construction and Demolition Materials" in Chapter 4). The standard paragraphs are at Appendix 2.2. The project office should consult the Public Fill Committee on the part of the environmental implications section concerning the management of construction waste and incorporate their comments into the draft PWSC paper before it is circulated to the Director of Environmental Protection for comments and endorsement. The project office should indicate the Public Fill Committee's advice clearly in the circulation memo to the Director of Environmental Protection. However, the project office should note that such arrangement would not pre-empt the Director of Environmental Protection's decision in clearing the environmental implications section. A flow chart for vetting this part is at Appendix 2.3.

(j) Heritage Implications

In the submission for funding construction works, this section should state clearly whether the project will affect any heritage site and if so, what mitigation measures will be taken and whether the public were in support of the proposed measures in the public engagement process. This section should be cleared by the Antiquities & Monuments Office of the Leisure & Cultural Services Department. Please refer to DEVB TCW No. 1/2022.

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(k) Greening and Landscape Implications

This section should make reference to paragraph 48 of DEVB TCW No. 4/2020 and should be cleared by the Greening, Landscape and Tree Management Section (GLTMS), DEVB.

(l) Land Acquisition

This section should state whether there is a need for land acquisition and clearance. If there is a need, the paper should state the estimated cost and the Head (Subhead if necessary) to be charged. Other essential information should include the type and area of land involved, approximate number of people affected, and whether there will be rehousing arrangements for these people. Where land acquisition or clearance is likely to involve difficult clearances problems or requires non-standard payment, the paper should state the nature of the problem and the associated costs.

(m) Background Information

This section should state when the project was first included in the Public Works Programme, and when it was upgraded to Category B. For existing Category A projects, drafters should state the time of inclusion in Category A, when PWSC/FC previously approved any revision to the project estimate, and the reasons.

Drafters should provide further concise background information as though the subject is being introduced for the first time. This applies particularly to explanations of policy. If the Legislative Council has previously discussed the subject at forums such as panel meetings or Finance Committee meetings, this section should contain this information. Drafters should not refer to any committees or working groups within the Administration unless there are very strong reasons for doing so.

The section should also provide details of all related consultancy studies in connection with the project as well as the current status of the project and in particular the scheduled start and completion dates of the project.

This section should provide detailed information on tree removal and planting/replanting proposals. This section should also provide a breakdown of estimated job opportunities to be created by a project.

If the paper proposes a revision to an approved project estimate, this section should provide the original start and completion dates of the project as indicated in the previous PWSC submission on the same project. If there is any slippage in the start and/or completion dates, the paper should provide reasons for the slippage. Where appropriate, the paper should give a summary of the factors contributing to the slippage.

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(n) Urgency

Where, on grounds of urgency, a paper must be issued late or require a decision by circulation or need to go to a FC meeting earlier than officially scheduled, the paper must include an urgency paragraph. The paragraph must state clearly the grounds for urgency and the consequences of not obtaining a decision in the time required. As the PWSC only recommends items for the approval of Finance Committee, it is sometimes necessary to issue a parallel "presumption" paper to Finance Committee. In such circumstances the urgency paragraph should bring this to the attention of PWSC Members.

(o) Site Plan

Drafters should attach a clear coloured site plan to the paper, showing both the location of the project site and site details. Where the project requires noise mitigation measures, the plan should indicate clearly the location of such measures. The descriptions on the plans should be in both Chinese and English.

To help PWSC members to visualize the key design features and its visual impact, an assortment of drawings, sectional plans, maps and perspective renderings of the proposed facilities should be provided as far as possible.

A schedule of "Recurrent Consequences" of Capital Projects according to FC No. 2/2005 should also accompany the draft paper.

Most up-to-date samples of PWSC papers can be found in the LegCo web site.

3.4 SUBMISSION PAPERS FOR CATEGORY D PROJECTS

Types of submission papers for Category D items should be referred to FC No. 3/2011. Submission for Category D items includes memos/minutes, Category D papers.

3.5 REVISED ADMINISTRATIVE ARRANGEMENTS FOR RECLAMATION WORKS

See WBTC No. 13/97, WBTC No. 13/97A and HPLB & ETWB Joint Technical Circular No. 1/04 for details. The Harbourfront Commission should be consulted for reclamation works in harbour.

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4. OTHER APPROVALS

In addition to the procedures and approvals required for progressing a project through the PWP given in paragraph 2.3, it is sometimes necessary to seek and obtain other approvals, as necessary, such as obtaining Environmental Permit and Tree felling approval. The essential items that are relating to funding approval and the content of the PWSC are given in the checklist in Section 1, in order to comply with laid-down administrative policies or to comply with statutory requirements.

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5. REFERENCES

WBTC No. 13/97	Revised Administrative Arrangements for Reclamation Works (PELBTC No. 3/97)
WBTC No. 13/97A	Revised Administrative Arrangements for Reclamation Works
ETWB TCW No. 29/2002	Geotechnical Control for Slopes and Retaining Walls
ETWB TCW No. 29/2002A	Geotechnical Control for Slopes and Retaining Walls
ETWB TCW No. 13/2003	Guidelines and Procedures for Environmental Impact Assessment of Government Projects and Proposals
ETWB TCW No. 13/2003A	Guidelines and Procedures for Environmental Impact Assessment of Government Projects and Proposals - Planning for Provision of Noise Barriers
ETWB TCW No. 30/2003	Control of Client-Initiated Changes for Capital Works Projects
ETWB TCW No. 4/2004	Checking of Foundation Works in the Scheduled Areas of Northwest New Territories and Ma On Shan and the Designated Area of Northshore Lantau
ETWB TCW No. 20/2004	GEO Checking Certificate for Slopes and Retaining Walls
ETWB TCW No. 36/2004	The Advisory Committee on the Appearance of Bridges and Associated Structures (ACABAS)
ETWB TCW No. 8/2005	Aesthetic Design of Ancillary Buildings in Engineering Projects
ETWB TCW No. 15/2005	Geotechnical Control for Tunnel Works
ETWB TCW No. 4/2006	Delivery of Capital Works Projects
DEVB TCW No. 2/2012	Allocation of Space for Quality Greening on Roads
DEVB TCW No. 3/2012	Site Coverage of Greenery for Government Building Projects
DEVB TCW No. 2/2024 Amd No. 6/2025	Rock Cavern Development
DEVB TCW No. 1/2018	Soft Landscape Provisions for Highway Structures
DEVB TCW No. 4/2020	Tree Preservation
DEVB TCW No. 1/2022	Heritage Impact Assessment Mechanism for Capital Works Projects
DEVB TCW No. 3/2024	Allocation of Space for Quality Greening along Roads
FC No. 2/2005	Recurrent Consequences of Capital Projects
FC No. 3/2011	Capital Works Reserve Fund Delegated authorities in respect of block allocations
FC No. 2/2012	Procedures for making changes to the Estimates of the Capital Works Reserve Fund
FC No. 4/2012	Requirements for Project Definition Statement and Technical Feasibility Statement for Capital Works Projects

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FC No. 3/2016	Furniture and Equipment for Capital Works Projects Funded under the Capital Works Reserve Fund
FC No. 7/2017	Capital Works Programme
FC No. 3/2020	Parallel tendering for contracts
FC No. 2/2021	User Guide on the Finance Committee, Establishment Subcommittee and Public Works Subcommittee
HPLB & ETWB Joint Technical Circular No. 1/04	Protection of the Harbour Ordinance
S for Tsy's memo ref. (31) in FIN P6/9 VIII dated 9.2.1993	-
SETW's memo ref. () in ETWB(CR)(W) 1-150/4 Pt. 2 dated 27.4.2004	Audit Review on Harbour Area Treatment Scheme Stage I Project and Contract Management
Audit Report No. 49 Ch. 11 - Provision of footbridges and subways	http://www.aud.gov.hk/pdf_e/e49ch11.pdf
Audit Report No. 53 Ch. 10 - Provision of a bypass in Tuen Mun West	http://www.aud.gov.hk/pdf_e/e53ch10.pdf
Handbook on Selection, Appointment and Administration of Engineering and Associated Consultants (EACSB Handbook)	https://www.cedd.gov.hk/eng/publications/eacsb-handbook/index.html
HKSAR Civil and Miscellaneous Lists	http://www.info.gov.hk/cml/index.htm
LegCo Homepage	http://www.legco.gov.hk
Report and information note of Public Works Sub-committee	http://www.legco.gov.hk/archive/english/archive.htm

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APPENDICES

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APPENDIX 2.1 PROGRAMME AND SUB-PROGRAMME DESCRIPTIONS IN THE PUBLIC WORKS PROGRAMME

(revised w.e.f. 1.4.92)

Programme	Sub-programme
A - air and sea communications (formerly "aviation and shipping")	A - airport P - port works G - support
B - public safety	A - ambulance services F - fire service L - landslip prevention
C - civil engineering	A - land acquisition D - drainage and erosion protection G - multi-purpose L - land development
D - environmental protection	P - pollution control R - refuse disposal S - sewerage and sewage treatment
E - education	P - primary S - secondary T - tertiary/other
F - food supply	S - abattoirs, wholesale markets and other territory-wide food supply facilities
G - support	A - trade and industry B - border facilities (other than road works) C - revenue collection and financial control D - immigration control E - employment I - intra-Governmental services K - others
H - housing	H - rural housing improvement S - squatter area improvement

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Programme		Sub-programme	
		T -	temporary housing
I -	fitting out	A -	trade and industry
		B -	employment
		C -	internal security
		D -	immigration control
		E -	education
		F -	district and community relations
		G -	revenue collection and financial control
		I -	intra-Governmental services
		M -	health
		P -	posts, telecommunications and power
		S -	social welfare
		O -	others
J -	quarters	A -	internal security
		B -	intra-Governmental services
		O -	others
K	Government offices	A -	intra-Governmental services
		O -	others
L -	law and order	C -	correctional services
		J -	judiciary
		P -	police
M -	health (formerly "medical and health")	C -	clinics
		H -	hospitals
		T -	teaching
P -	posts, telecommunications and power (formerly "posts and telecommunications)	P -	post office
		T -	telecommunications
R -	recreation, culture and amenities	B -	burial grounds, columbaria and crematoria
		E -	cultural facilities
		G -	mixed amenity packages
		M -	retail markets and cooked food centres
		O -	open spaces

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Programme		Sub-programme	
		R -	refuse collection points and cleaning depots
		S -	sports facilities
		T -	toilets and bathhouses
S -	social welfare and community building	C -	community centres and halls
		R -	rehabilitation facilities
T -	transport	B -	footbridges and pedestrian tunnels
		C -	traffic control
		F -	ferry piers
		H -	roads
		I -	interchanges and bus termini
		P -	car parks
		R -	railways
		S -	studies
		T -	bridges and tunnels
W -	water supplies	C -	combined fresh/salt water supply projects
		F -	fresh water supplies
		S -	salt water supplies

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APPENDIX 2.2 INFORMATION TO BE INCLUDED IN PWSC PAPERS RELATING TO THE CONSTRUCTION WASTE MANAGEMENT MEASURES AND GENERATION AND DISPOSAL OF CONSTRUCTION WASTE (Subsumed from WBTC Nos. 25/99, 25/99A and 25/99C)

A. For construction projects generating construction waste -

"We have considered '*details to be inserted*' in the planning and design stages to reduce the generation of construction waste where possible. In addition, we will require the contractor to reuse inert construction waste (e.g. '*details to be inserted, e.g. excavated soil*') on site or in other suitable construction sites as far as possible, in order to minimise the disposal of inert construction waste to public fill reception facilities. We will encourage the contractor to maximize the use of recycled or recyclable inert construction waste, as well as the use of non-timber formworks to further minimize the generation of construction waste.

We will also require the contractor to submit for approval a plan setting out the waste management measures, which will include appropriate mitigation means to avoid, reduce, reuse and recycle inert construction waste. We will ensure that the day-to-day operations on site comply with the approved plan. We will require the contractor **whenever practicable* to separate the inert portion from non-inert construction waste on site for disposal at appropriate facilities. We will control the disposal of inert construction waste, **mixed inert and non-inert construction waste* and non-inert construction waste to public fill reception facilities, **sorting facilities* and landfills respectively through a trip-ticket system.

We estimate that the project will generate in total about ___ tonnes of construction waste. Of these, we will *#reuse about ____ tonnes (___%) of inert construction waste on site and ____ tonnes (___%) of inert construction waste on other construction site(s),* deliver ____ tonnes (___%) of inert construction waste to public fill reception facilities[1] for subsequent reuse, **and ___ tonnes (___%) of mixed inert and non-inert construction waste to sorting facilities to separate the inert from the non-inert portion.* In addition, we will dispose of ____ tonnes (___%) of non-inert construction waste at landfills. The total cost for accommodating construction waste at public fill reception facilities and landfill sites, **together with the cost for handling mixed inert and non-inert construction waste at sorting facilities* is estimated to be $___ for this project (based on a unit cost of $27/tonne for disposal at public fill reception facilities, **$100/tonne at sorting facilities* and $125/tonne[2] at landfills)."

Footnote -

1. ****Sorting facilities and* public fill reception facilities are specified in **Schedule 3 and* Schedule 4 **respectively* of the Waste Disposal (Charges for Disposal of Construction Waste) Regulation. Disposal of inert construction waste in public fill reception facilities requires a licence issued by the Director of Civil Engineering and Development.**

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2. This estimate has taken into account the cost for developing, operating and restoring the landfills after they are filled and the aftercare required. It does not include the land opportunity cost for existing landfill sites (which is estimated at $90/m3), nor the cost to provide new landfills, (which is likely to be more expensive) when the existing ones are filled.

B. For non-construction projects, such as site investigation/design consultancy/feasibility study -

"The proposed *#site investigation works/design consultancy/feasibility study* will *#only generate very little/not generate any* construction waste. We will require the consultant to fully consider measures to minimize the generation of construction waste and to reuse/recycle construction waste as much as possible in the future implementation of the construction projects."

***delete/amend the phrases (shown in *italic & bold*) if use of sorting facilities operated by Civil Engineering and Development Department (CEDD) is not expected. As on-site sorting should be implemented as far as practicable to separate the inert and non-inert construction waste, the use of CEDD's sorting facilities should be kept to a minimum.**

#delete/amend the phrases (shown in *italic*) as appropriate

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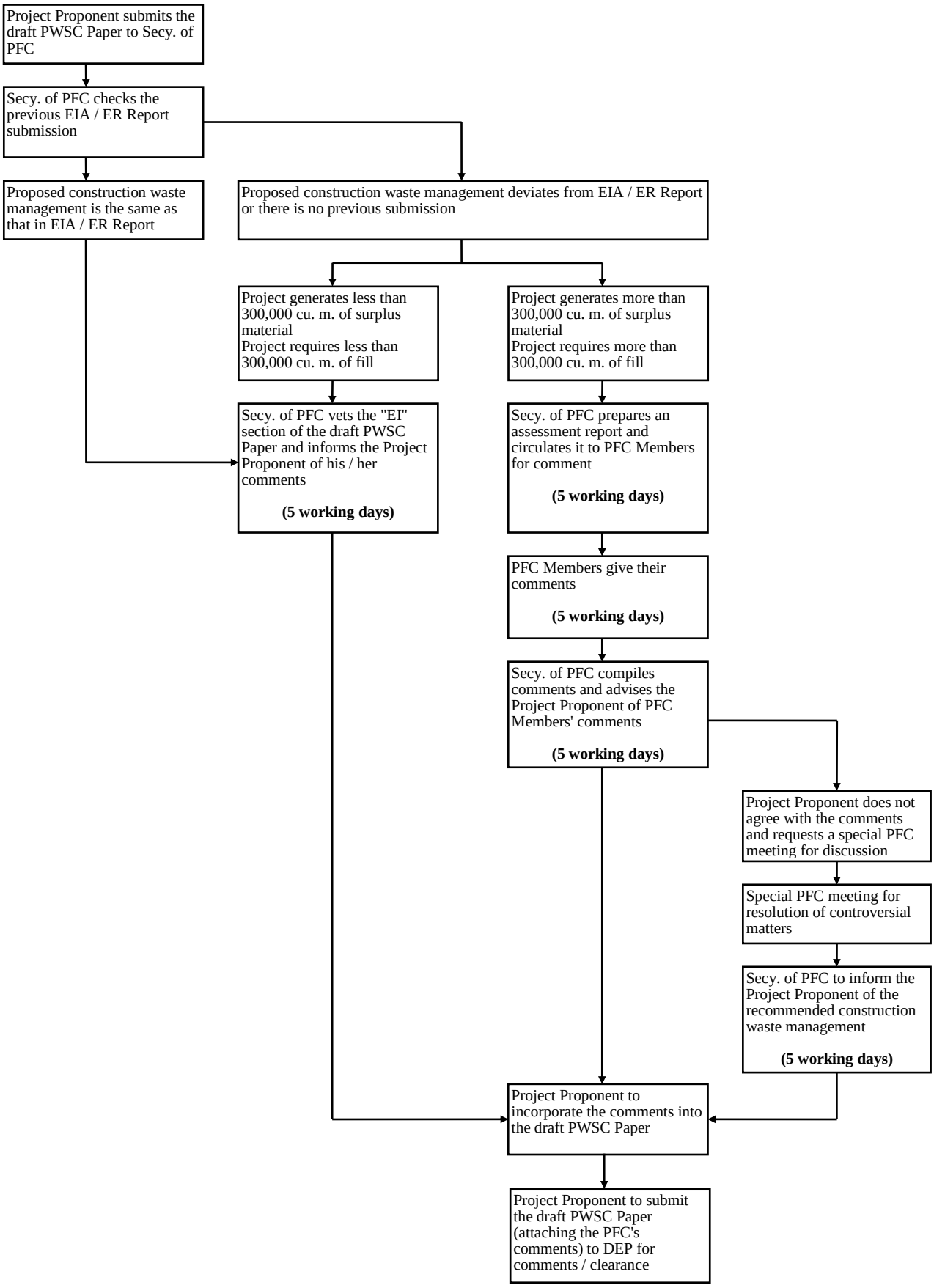
APPENDIX 2.3 FLOW CHART FOR VETTING OF "ENVIRONMENTAL IMPLICATIONS" PARAGRAPH OF PWSC PAPER



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APPENDIX 2.4 CLIENT-INITIATED CHANGES TO PUBLIC WORKS PROJECTS ROUTING SHEET FOR CHANGE PROPOSAL AND APPROVAL

Project no. & title

Section I – Change Proposal

To: Director of [ ] (Attn:)

I am considering the following proposed changes to the user and programme requirements of the project –

_____

_____

_____

2. The justification for the proposed changes is – _____

_____

_____

3. Please assess and advise me of the associated time and cost implications for me to decide whether to proceed with the proposed changes. However, you may proceed directly with the changes if there are no time and cost implications.

[Client Policy Bureau officer at D3 level or above]
[Date]

c.c. SDEV (Attn: CAS(W)2 & CAS(W)5)

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Section II – Advice on Time and Cost Implications (to be given within 10 working days after receipt of Section I)

To: Secretary for [ ] (Attn:)

The current project start date is _____ with completion in _____ , at an estimated project cost of _____ . We propose the following mitigation measures to minimize the time and cost implications of the proposed changes –

_____

_____

* (a) Notwithstanding these measures, the proposed changes will delay the start date by months to , completion date by months to , and require an increase of $ M in the estimated project cost. We do not/will* require extra staff (give details) for project delivery and additional recurrent consequences of $ M per year after completion of the works. We await your further directive whether to proceed with the proposed changes.

* (b) By adopting these measures, the proposed changes will not cause any delay or additional cost to the project. There is also no problem of additional recurrent consequences or extra staff for delivery of the project. I confirm that we will proceed with the proposed changes subject to (c) below.

(c) The technical feasibility as previously confirmed in the TFS has not changed/will need to be re-assessed*. (for Category C and Category B projects only)

[Works Department officer at D3 level or above
(D2 for project not exceeding $200 million)]
[Date]

c.c. SDEV (Attn: CAS(W)2 & CAS(W)5)

* Delete as appropriate

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Section III – Change Confirmation (to be given within 10# working days after receipt of Section II)

To: Director of [ ] (Attn:)

* (a) Having regard to your advice on cost and time implications in Section II above, I have decided not to proceed with the proposed changes.

* (b) I confirm my acceptance of the time and cost implications in Section II above [and agree to allocate the required additional recurrent consequences from my Operating Envelope or other means]†. Please proceed with the proposed changes subject to the normal procedures for funding approval and contractual arrangements [and re-confirmation of the technical feasibility of the project by a revised TFS]*.

[Client Policy Bureau officer at D3 level or above]
[Date]

c.c. SDEV (Attn: CAS(W)2 & CAS(W)5)
SFST (Attn: PAS(Tsy)W) (in the case a revised TFS is required)

* Delete as appropriate
† Delete if Works Department does not require additional recurrent consequences from Bureau for the proposed changes.
\# The Works Branch of DEVB will give its comments on the proposed changes, if any, within 7 working days after receipt of Section II.

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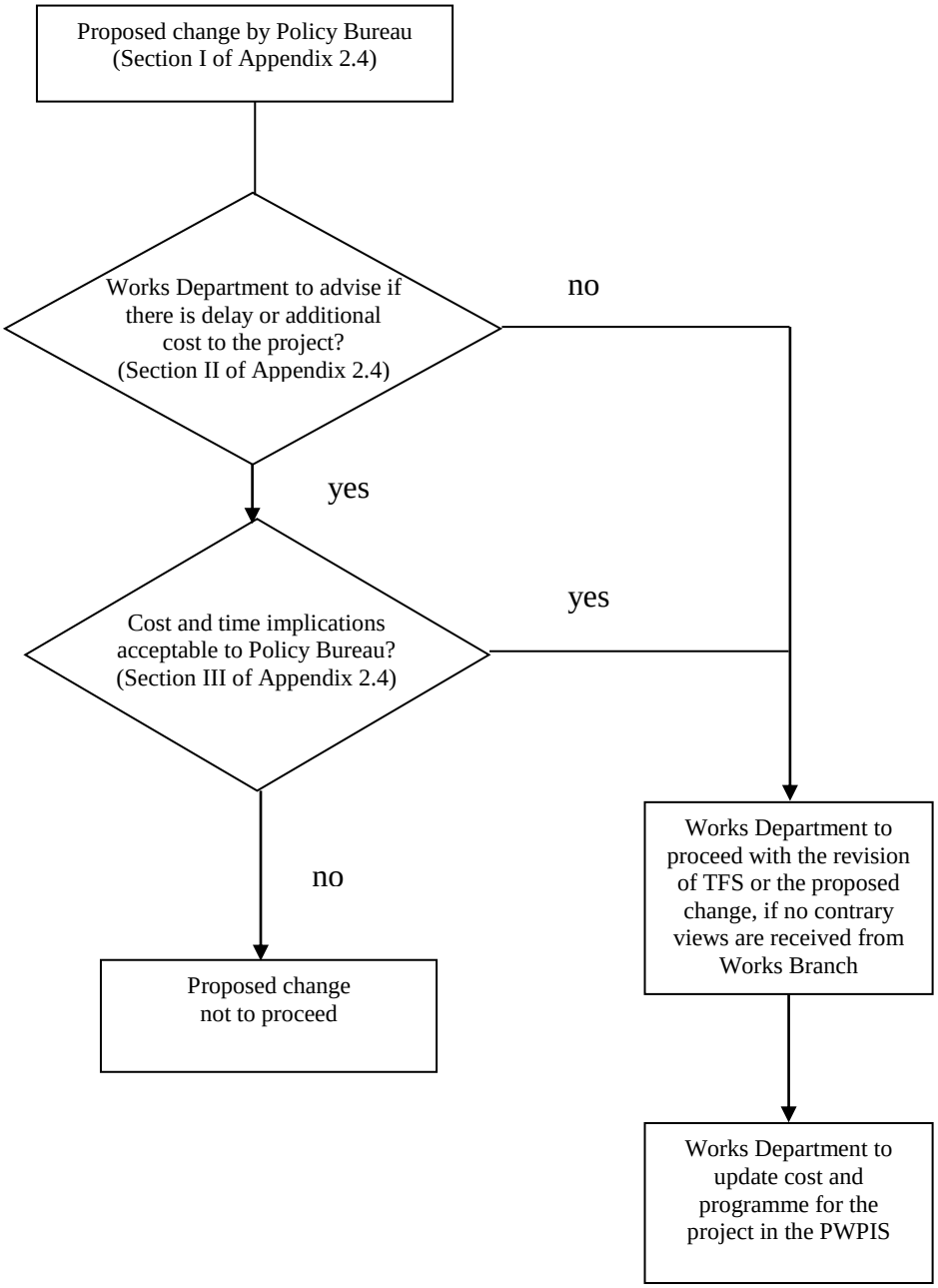
APPENDIX 2.5 CLIENT-INITIATED CHANGES TO WORKS PROJECTS OTHER THAN THOSE IMPLEMENTED BY SUBVENTED BODIES

Flow-chart



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CHAPTER 3

LAND MATTERS

The parts of the PAH shown in blue and bold should only be updated by Works Branch of Development Bureau.

Rev	Issue Date	Amendment Incorporated
First Issue	December 2024	NA
1	17 March 2025	Amd No. 1/2025
2	15 July 2025	Amd No. 3/2025
3	20 October 2025	Amd No. 5/2025
4	18 November 2025	Amd No. 6/2025

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SYNOPSIS

This chapter sets out the procedures for the acquisition and control of land required for projects managed by CEDD, DSD, HyD and WSD. It does not cover the land requirements of quasi-government bodies such as the MTR Corporation Limited (MTRCL), but it describes the procedures necessary to avoid any possible interference with these land requirements.

The authority for land matters is the Director of Lands (D of L) who exercises his duties through the respective District Lands Offices (DLOs). The role of CEDD, DSD, HyD and WSD in land matters is either as a works department requiring the temporary use of the site and associated areas, or in some instances as the operation department requiring the permanent use of the land. Because of the large number of departments that have a pertinent interest in land matters, it is necessary for formal procedures for the reservation, allocation, acquisition and clearance of land to be followed before any land can be made available for works to proceed. This chapter does not give details of procedures to be followed by the Lands Department (LandsD), which are covered by Land Instructions (LIs). However, reflections have been made to concur with the procedures laid down in the LIs. It describes certain legislative procedures related to land matters, such as the Roads (Works, Use and Compensation) Ordinance, Land Drainage Ordinance, Foreshore and Seabed (Reclamations) Ordinance, Town Planning Ordinance, Sewage Tunnels (Statutory Easements) Ordinance, Water Pollution Control (Sewerage) Regulation and the Road Traffic Ordinance under which formal consultation with the public is mandatory. The need for timely commencement of the various stages of land procedures is emphasized. Nevertheless, the readers are reminded that the latest updates of the reference documents should always be referred to.

When the land is available for works to proceed, usually a third party, e.g. a contractor, takes possession of the site. It is necessary that the land is properly managed during the course of the works and that all or part of it is handed back to the Land Authority in a prescribed manner in due course. Guidance on these aspects of project administration is given, including the need for suitable contractual arrangements where contractors are involved.

Some measures have been introduced to streamline the delivery of public works projects, including an expedited procedure implemented by the LandsD. For a project which is of average size, LandsD shall deliver the site to Works Departments within eight months after the Executive Council (ExCo) authorization of the road scheme under the Roads (Works, Use and Compensation) Ordinance, Cap. 370 or ExCo decision on the public purpose of the project under Cap. 124, whichever is the later. In addition, simplified procedures have also been promulgated for submission of Land Requirement Report and Land Requirement Plan.

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I. ABBREVIATION

I.01 The meaning of the abbreviations assigned in this Chapter of the Project Administration Handbook for Civil Engineering Works shall only apply to this Chapter.

I.02 The following list shows the meaning of the abbreviations for the common terms used in this Chapter of the Project Administration Handbook for Civil Engineering Works:

Abbreviation	Term
AFCD	Agriculture, Fisheries and Conservation Department
ArchSD	Architectural Services Department
CAF	Clearance Application Form
CEDD	Civil Engineering and Development Department
CE in C	Chief Executive in Council
CES/A	Chief Estate Surveyor/Acquistion
C for T	Commissioner for Transport
CMP	Cavern Master Plan
CPLD	Committee on Planning and Land Development
CSTB	Culture, Sports and Tourism Bureau
CWC	Capital Works Committee
CWP	Capital Works Programme
DAFC	Director of Agriculture, Fisheries and Conservation
DCED	Director of Civil Engineering and Development
DEP	Director of Environmental Protection
DLCS	Director of Leisure and Cultural Services
DPO	District Planning Office
DSD	Drainage Services Department
DEVB	Development Bureau
DEVB TCW No.	DEVB Technical Circular (Works) No.
D of L	Director of Lands
DHA	Director of Home Affairs
DHy	Director of Highways
DLC	District Lands Conference
DLO	District Lands Office
DO	District Office
DoJ	Department of Justice
DSO	District Survey Office
EIA	Environmental Impact Assessment
EIAO	Environmental Impact Assessment Ordinance
EMSD	Electrical and Mechanical Services Department
EPD	Environmental Protection Department
ETWB	Environment, Transport and Works Bureau

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Abbreviation	Term
ETWB TCW No.	ETWB Technical Circular (Works) No.
ExCo	Executive Council
EXP	Emergency excavation permit
FSD	Fire Services Department
FS(R)O	Foreshore and Sea-bed (Reclamations) Ordinance
GEO	Geotechnical Engineering Office
HAD	Home Affairs Department
HD	Housing Department
HKPF	Hong Kong Police Force
HKPSG	Hong Kong Planning Standard and Guidelines
HKSAR	Hong Kong Special Administrative Region
HPLB GC No.	Housing, Planning and Lands Bureau General Circular No.
HyD	Highways Department
HyD TC No.	Highways Department Technical Circular No.
KCRC	Kowloon-Canton Railway Corporation
KCRCO	Kowloon-Canton Railway Corporation Ordinance
LACC	Land Acquisition and Clearance Committee
LACM	Land Acquisition Coordination Meeting
LACO	Legal Advisory and Conveyancing Office
LandsD	Lands Department
LAPE	Land Acquisition Prioritization Exercise
LegCo	Legislative Council
LIs	Land Instructions
LR	Light Rail
LRP	Land Requirement Plan
LRR	Land Requirement Report
LCSD	Leisure and Cultural Services Department
LPM	Landslip Preventive Measures
LWBTC No.	Lands and Works Branch Technical Circular No.
MD	Marine Department
MFC	Marine Fill Committee
MTR	The Mass Transit Railway
MTRCL	MTR Corporation Limited
MTRO	Mass Transit Railway Ordinance
OZP	Outline Zoning Plans
PAH	Project Administration Handbook for Civil Engineering Works
PFC	Public Fill Committee
PlanD	Planning Department
PSTL	Permanent Secretary for Transport and Logistics
PWP	Public Works Programme
RAE	Resource Allocation Exercise

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Abbreviation	Term
RDS2000	Railway Development Strategy 2000
RDS2014	Railway Development Strategy 2014
RDS-2U	Review and Update of the Railway Development Strategy 2000
SDEV	Secretary for Development
S for J	Secretary for Justice
SHD	Anticipated Site Handover Date
SM/C	Senior Manager/ Clearance
SSHD	Schedule of Anticipated Site Handover Date
STH	Secretary for Transport and Housing
STL	Secretary for Transport and Logistics
STT	Short Term Tenancy
TBTC No.	Transport Branch Technical Circular No.
TPB	Town Planning Board
TD	Transport Department
TFS	Technical Feasibility Statement
THB	Transport and Housing Bureau
TLB	Transport and Logistics Bureau
TPO	Town Planning Ordinance
TPRP	Tree Preservation and Removal Proposal
WBTC No.	Works Bureau Technical Circular No.
WSD	Water Supplies Department
XP	Excavation permit

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II. GLOSSARY OF TERMS

II.01 Words and expressions to which meanings are assigned in this Chapter of the Project Administration Handbook for Civil Engineering Works (PAH) shall only apply to this Chapter.

II.02 In this Chapter of the PAH the following words and expressions shall have the meaning hereby assigned to them except when the context otherwise requires:

Words/Expressions		Meaning
allocation plan	-	The finalized version of the preliminary allocation plan showing up-to-date details of the allocation, final area and confirmed boundaries. Allocation plans are normally fully dimensioned.
borrow area	-	An area of land or seabed from which the removal of earth, sand or stone is permitted for construction of the project.
client department	-	The department for whom the project is being constructed.
District Lands Conference	-	The District Lands Conference for the area where the project is located. It is the forum held by LandsD in the district level for discussion and approval of land matters including the allocation of land for projects of the Government of the HKSAR.
Clearance Unit of Acquisition Section	-	The office in LandsD responsible for land clearance in the area where the project is located.
District Lands Office	-	The office in LandsD responsible for the administration of land in the district where the project is located.
District Office	-	The office in the Home Affairs Department responsible for the administration of the district in which the project is located.
District Planning Office	-	The office in PlanD responsible for district planning of the area where the project is located.
Squatter Control Unit of Estate Management Section	-	The office in LandsD responsible for squatter control in the area where the project is located.
District Survey Office	-	The Office in LandsD responsible for land survey, land records and maps covering the area required for the project.

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Words/Expressions		Meaning
Land Acquisition and Clearance Committee (LACC)	-	The committee, chaired by the DPM of CEDD's Development Office for the area in which the project is located, is responsible for the drawing up of and to agree on a five year land acquisition and clearance programme for all Capital Works Projects and Landslip Preventive Measures Projects to review, monitor, discuss, resolve problems of individual land resumption and clearance cases, to submit exception reports on unresolved land related activities and to make recommendation for reprioritisation as appropriate to Land Acquisition Co-ordination Meeting chaired by the Deputy Secretary (Works)1 of DEVB.
Land Acquisition Coordination Meeting (LACM)	-	To review progress on land resumption and clearance for the PWP, review workload, deployment of resources across District Lands Offices and to identify re-prioritisation issues.
Committee on Planning and Land Development (CPLD)	-	The committee, chaired by the Permanent Secretary for Development (Planning and Lands) or the Deputy Secretary for Development (Planning and Lands)1 is responsible for: • Monitoring the formulation and reviewing of development strategies, including the identification and assessment of options; • Considering the adequacy of development plans and programmes; • Considering and reviewing policies on production, acquisition, use and disposal of land; • Considering major proposals for land development in both the public and private sectors before they proceed beyond outline planning; • Overseeing the initiation, evaluation and coordination of sub-regional and sectoral planning studies of strategic significance; • Considering and approving land use planning standards and guidelines; • Considering the need for the preparation or replacement of statutory plans; • Considering and approving outline development and layout plans;

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Words/Expressions		Meaning
		• Considering recommendations on land-use planning and control relating to potentially hazardous installations; • Ensuring the implementation and coordination of policies in respect of physical developments; • Considering population distribution projections for assessing development needs and planning of provision of facilities; and • Reporting to the Lands and Works Policy Group of the Chief Secretary for Administration's Committee.
land allocation	-	A parcel of the Government of the HKSAR land allocated either temporarily or permanently for specific works or use to a department of the Government of theHKSAR.
office clearance co-ordinator	-	The officer responsible for ensuring that all relevant information on his office's clearances is passed to all concerned at the appropriate time. He will also act as liaison officer generally.
Preliminary allocation plan	-	The plan showing up-to-date details, approximate area and proposed boundaries of the project site based on the project plan or preliminary project plan and on agreed conditions.
Preliminary project plan	-	The plan illustrating the layout and general nature of the project, with site boundaries indicated (normally 1:1,000 scale).
project	-	The public works project or other Government of the HKSAR use project for which land is required.
project office	-	The office responsible for the planning, design and construction of the project. (Where these functions are performed by different offices at different stages, the project office shall mean the office responsible at each particular stage.)
project plan	-	The finalized version of the preliminary project plan.
project site plan	-	The plan showing the extent and location of the land required for the project. (Normally 1 : 2 000 scale)

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Words/Expressions		Meaning
site	-	The area of land on which the work associated with the project is to be carried out. The site includes the working space contiguous to the work, but excludes all works areas, borrow areas etc. outside the site to be used or formed during the course of the project but not required permanently for it. (Note: Under the General Conditions of Contract, 'Site' has a different definition.)
works area	-	A piece of land required for a limited period of time to facilitate or permit construction of the project. (Note: Under the Roads (Works, Use and Compensation) Ordinance, 'Works Area' has a different definition.)

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1. NOT USED

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2. AUTHORITIES AND POLICY BODIES

2.1 GENERAL

The authority for land matters throughout the territory is the D of L. His authority to approve permanent and temporary land allocations has been delegated to DLOs. DLOs refer land matters to DLC where necessary. Normal day-to-day land administration matters are dealt with by the appropriate DLO.

District planning matters are dealt with by the DPOs, PlanD. Preparation of statutory plans and departmental plans at the district levels are the responsibilities of DPO while sub-regional planning matters are dealt with by the Sub-Regional Planning Section of PlanD.

The land required for a project, including works and borrow areas must be made available before works can commence. Before a piece of the Government of the HKSAR land required for a project can be made available, any people dwelling on it must be cleared, together with their goods and chattels, and arrangements made for their resettlement. It may also be necessary to invoke the relevant ordinances to extinguish any existing rights or easements that certain individuals or the public in general may have on the required land.

Private land (including that held under adverse possession) may be resumed if it is required for a public purpose. If private land is required for a project, action must be taken to resume it under lease conditions or under an appropriate ordinance containing resumption provisions. Private land normally becomes the Government of the HKSAR land on the date given in the resumption notice made under the ordinance. Clearance of the land must also be arranged before it becomes available for works to commence. Funding for clearance and acquisition will be provided from a central block vote under the control of LandsD.

If the land required for a project is likely in any way to affect military land or property, consultation with the People's Liberation Army in the HKSAR and/or the Secretary for Security must take place when such project is first mooted.

2.2 DISTRICT LANDS CONFERENCE

2.2.1 Membership

Chairman: Assistant Director of Lands (District concerned)

Members :
- District Lands Officer
- Senior Solicitor, LACO (District concerned), LandsD
- Chief Building Surveyor, Buildings Department
- Chief Land Executive, (District concerned)
- Senior Divisional Fire Officer
- District Land Surveyor)
- District Officer)
- Chief Highway Engineer, Regions of HyD)
- Chief Engineer, DSD) or
- Chief Engineer, TE Division of TD) representatives
- District Planning Officer)

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Project Manager of the area, CEDD)
Chief Architect, ArchSD (in Urban Areas)
Representative from other departments or offices as appropriate,
(e.g. GEO, EPD, AFCD, LCSD, FEHD, WSD)

Secretary : Senior Estate Surveyor (district concerned)

2.2.2 Terms of Reference

To consider in the light of overall land policy and Land Instructions:

(a) The terms and conditions for the disposal of land, both permanent and temporary, including the Government of the HKSAR land allocations, STT and licences,

(b) The terms and conditions for exchanges, extensions, modifications, easements and wayleaves,

(c) Prospecting and mining licences and leases, and

(d) Applications for felling of trees arising from development proposals.

2.2.3 Frequency

Normally monthly, but varies for each DLC.

2.3 POLICY COMMITTEE

2.3.1 Membership

Chairman: Chief Secretary and Financial Secretary

Members : Secretary for Justice
Secretary for Constitutional and Mainland Affairs
Secretary for Education
Secretary for Transport and Logistics
Secretary for Environment and Ecology
Secretary for Health
Secretary for the Civil Service
Secretary for Home and Youth Affairs
Secretary for Development
Secretary for Security
Secretary for Commerce and Economic Development
Secretary for Labour and Welfare
Secretary for Financial Services and the Treasury

Secretary : Administrative Assistant to Chief Secretary
Administrative Assistant to Financial Secretary

2.3.2 Terms of Reference

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(a) To consider policy proposals before they are submitted to the Executive Council;

(b) To coordinate and harmonise policy proposals which cut across different policy areas or have "read across" implications; and

(c) To coordinate the timetable for the public announcement of major policy proposals.

2.3.3 Frequency

Every Thursday morning.

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3. MAIN PROCEDURES FOR PROVISION OF LAND

3.1 GENERAL

The following procedures cover the reservation, acquisition, clearance and allocation of land and are initially adopted from LWBTC No. 26/85.

3.2 RESERVATION OF SITE

A search of the land records would be prudent at this stage since the location and extent of leased land could well determine/change the extent of a project. Initial surveys on graves, Fung Shui and trees would also be important at this stage as they may have implications on the extent of a project.

3.2.1 Request

After establishing the need for a project, the client department or project office should indicate the general locality and approximate area required for the project and forward a request to reserve a site to DPO in cases of permanent development or to DLO in cases of temporary use. Amd No. 6/2025 For highways projects, site reservations are deemed to have been made when long-term road proposals, street-widening plans or project plans are circulated, agreed by relevant departments, and approved by the appropriate authority.

Particular attention should be paid to the permitted land use shown on OZP or Development Permission Areas Plans. In cases where the project requires actions under the Foreshore and Seabed (Reclamations) Ordinance, works should not be carried out until the land use involving such works has already been approved under the relevant OZP. In cases where the project requires planning permission from the TPB, the client department should submit an application to the Secretary/TPB. The submission of the application should preferably be made before DLO approval has been obtained. However, in more urgent cases, submissions to DLO and applications to TPB can be undertaken concurrently but DLO will not consider the case until the Section 16 Application to TPB for changing the permitted land use is approved. There is a statutory period of two months within which applications have to be considered by the Board.

3.2.2 Selection

DPO or DLO will select the site in consultation with the client department or project office, the relevant project manager in CEDD and other relevant Government departments.

3.2.3 Project Site Plan Preparation

The project site plan will be prepared by DPO using an extract of the town plans or survey sheets, whichever is appropriate.

3.2.4 Follow-up Action

If acquisition of private land is required to make the site available, DLO will inform the client department, project office and DO for their information and action. It should be

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noted that at this stage, site definition is tentative until the detailed design is completed. Therefore, all matters concerning adjacent land must be referred to DPO or DLO with copies to the project office and the client department. The client department and the project office should consider whether the site requirement can be adjusted to avoid land resumption as far as possible or feasible when advised by DLO.

3.3 PROJECT PLANNING

This part of the procedure is to be followed for roads, sewerage, site formation, landslip preventive works, landfill sites, reclamation, drainage, pipeline, pier projects etc. where the sites are not confined within allocated land compounds. These projects, where formal allocation of the site as a whole is not necessary but specifically defined land such as borrow areas or works areas are required for construction, are subject to temporary land allocation in accordance with Paragraph 3.4.

ETWB TCW No. 27/2003 promulgates a "Land Acquisition Prioritization Exercise (LAPE)" in which it introduced streamlined procedure to be followed during the planning stage for projects that require LandsD's input in respect of land acquisition, land clearance and compensation assessments under relevant ordinances. The purpose of this exercise is to ensure that sufficient staff resources could be allocated within LandsD well in advance, so as to enhance the effective and efficient delivery of important projects. The LAPE is an on-going exercise to be tied in with the Annual Resource Allocation Exercises. It applies to all existing and proposed government projects under the Capital Works Programme, quasi-government projects, and private projects that require LandsD's input; but does not apply to very large scale projects for which separate teams have been set up within LandsD or the proponent office to carry out the land acquisition work.

In essence, the LAPE requires DEVB to compile a list of all projects that will necessitate significant amounts of input from LandsD, and to divide them into two types of items, namely:

(a) Major Items
  (i) Capital Works Projects (including those projects funded by Cat D items)
  (ii) LandsD's items for land sale clearance and a number of other miscellaneous items
  (iii) Quasi-government projects
  (iv) Certain private projects

(b) Minor Items
  (i) Non-development Clearance items
  (ii) Rural Planning and Improvement Strategy items
  (iii) Landslip Preventive Measures (LPM) items
  (iv) Private Street Improvement Scheme items

3.3.1 Preliminary Project Plan

(a) Preparation

The preliminary project plan will be prepared by the project office when the project is in Category B of the Public Works Programme, or accepted as a charge to another vote. The plan will show the site and nature of the project together

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with, where possible, the anticipated works area(s), borrow area(s) and the boundaries of permanently allocated land. Amenity areas, which cannot be used as public pleasure grounds after completion of the project, should be identified on the plan.

(b) Distribution

The plan will be circulated for comments by the project office. The distribution should include the client department (who in turn will notify the appropriate maintenance department e.g. LCSD, DO, AFCD, ArchSD or HyD in respect of amenity areas, where applicable), DPO, DLO, DSO, Clearance Unit of Acquisition Section in LandsD, DO, HyD, DSD, Port Works Division of CEDD, (where maritime structures or marine frontages are involved), GEO, WSD, relevant CEDD development office, TD, FEHD, ArchSD, HKPF, FSD etc., as appropriate.

The project office will state when the land is likely to be required, identify the works division/office and will request DLO and Clearance Unit of Acquisition Section in LandsD to give an estimate of the time required for resumption and clearance. Upon receipt of the preliminary project plan, DLO and DO should advise the project office if public consultation is required.

3.3.2 Project Plan

The project plan will be prepared by the project office in the light of comments received on the preliminary project plan and any necessary consultation. The finalized site boundaries should be circulated again to the respective DLO for agreement. The plan should be issued to those listed in paragraph 3.3.1.

3.3.3 Approval

Endorsement by LACC is required for project plans. As a result of the circulation procedure described above, where major issues cannot be resolved among departments, the case should be referred to DEVB, CPLD or LACM for a decision.

3.3.4 Follow-up Action

Where the proposed timing requires the use of funds for resumption, compensation and/or clearance before funds will become available for construction, the respective DLO should be consulted to ensure that adequate funds are available to meet the estimated cost when the project is at detailed design stage in Category B. The project office should consult DLO, Clearance Unit of Acquisition Section in LandsD, DO and the LACC if changes in project programme and layout are contemplated. See also paragraph 3.5.1(e) regarding office clearance coordinators.

3.4 LAND ALLOCATION

This part of the procedure is to be followed for buildings, treatment works, pumping stations, service reservoirs, depots (including depots underneath highway structures), works areas, borrow areas etc. which involve formal permanent or temporary allocations of specifically defined land. Access roads and slopes or retaining structures adjoining the

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project site may be included.

The LAPE as referred to in paragraph 3.3 also applies under this Section except for works areas and borrow areas as these should form part and parcel of the main project.

3.4.1 Request for Allocation

(Ref.: LandsD's memo ref. (3) in LD TI 10/04/03 dated 16.6.2004, Provision of Lands for Works Areas)

When the project is in Category B of the Public Works Programme or accepted as a charge to another vote, the client department or the project office will inform DLO of the date when the land is likely to be required and will request that allocation conditions and the preliminary allocation plan be prepared, copying the request to DO, relevant CEDD development office, Clearance Unit of Acquisition Section in LandsD, and the LACC. Clearance Unit of Acquisition Section in LandsD, upon receipt of the request, should advise DLO whether clearance for the proposed land allocation is required and whether the proposed time schedule can be met. Requests for works areas and borrow areas should be made separately by the project office to DLO with an indication of timing and duration. The project office should accompany the request for the works area with a statement that there is a provision in the contract agreement specifying that the works area (with site plan) is available. As approval to extension of time for occupation of works areas is subject to the discretion of DLO, the project office should as far as possible make a good estimate on the duration of occupation to avoid the situation that the extension is not given.

When no suitable works areas could be made available for the project after consultation with the respective DLO, the project office should consider including provisions such as requiring the contractor to make available suitable space for storage and to accommodate the site supervisory staff as well as the contractor's staff in the works contract.

3.4.2 Preliminary Allocation Plan

On receipt of a request, DLO will prepare a preliminary allocation plan. Identifying precise boundaries will not be possible at this stage. These will only be determined after architectural/engineering investigation is completed. However, any land requirements for diversions of major facilities such as roads, water mains, drainage channels should be incorporated in the preliminary allocation plan as far as possible.

3.4.3 Allocation Conditions

DLO will prepare draft allocation conditions and will circulate them for comments, with the preliminary allocation plan, in duplicate, to interested parties. The circulation list should include the client department, DO, DPO, FSD, EPD, HyD, WSD, GEO, DSD, relevant works divisions (e.g. Port Works Division of CEDD where maritime structures or marine frontages are involved), TD, HKPF, LCSD, FEHD and Clearance Unit of Acquisition Section in LandsD, with copies to the relevant CEDD development office and project office. The identity of the project office will be stated in the circulation memo.

3.4.4 Approval

All allocations are to be approved by the relevant DLO, who may refer them to DLC for contentious cases.

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Unless different arrangements are agreed by the client department, land subject to permanent allocation should be allocated to the end-user/operation department and land requiring temporary allocation (usually for the purpose of construction) should be allocated to the project office.

3.4.5 Allocation of Amenity, Sitting-out Areas and Quality Roadside Greening

Minor roadside amenity areas and sitting out areas, which do not involve buildings and are situated outside the limits of a public road, may be handed over by DLO, temporarily or permanently as appropriate, to LCSD, ArchSD, or AFCD for future maintenance and management without formal allocation conditions. Amenity areas and quality greening at roadside and road median (see DEVB TCW No. 2/2012) within the limits of a public road do not require formal allocation to LCSD or HyD and may be dealt with by the issue of a "no objection" letter by DLO. But in all cases the management and maintenance responsibilities should be agreed prior to any works on these areas being carried out. It should be noted that the management and maintenance of landscape works should be in accordance with guidelines set out in DEVB TCW No. 6/2015 and DEVB TCW No. 4/2020.

3.4.6 Notification of Allocation

After approval by DLO, DSO will, at the request of DLO, prepare an allocation plan. The allocation plan will be chopped by DLO:

"Site allocation approved by ..... on ...../...../.....".

DLO will distribute the allocation plan and conditions of allocation as follows:

Client department	-	2 copies each of the plan and the conditions
Project office	-	2 copies of the plan and 1 copy of the conditions
Clearance Unit of Acquisition Section in LandsD	)	
Geotechnical Engineering Office	)	
District Planning Office	)	
HK Police Force	)	
Water Supplies Department	)	
Transport Department	)	1 copy of
Relevant Highways Region	)	the plan
Drainage Services Department	)	and
Relevant CEDD's development office	)	1 copy of
Relevant works division	)	the conditions
District Office	)	
Leisure and Cultural Services Department	)	
Fire Services Department	)	
Agriculture, Fisheries and Conservation Department	)	
Environmental Protection Department	)	

DLO and Clearance Unit of Acquisition Section in LandsD will advise the project office and the client department of the order of cost and the time required for resumption, compensation and clearance. (Note: For PWP projects, the cost of compensation will be met from Head 701, Subheads 1010CA to 1020CA, Land Acquisition, Compensation and Ex-gratia Allowances.)

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The relevant DO should be kept informed. (Note: procedures for the possession and handing over of the site are given separately under paragraphs 3.5.3 and 5.4.1.).

3.4.7 Follow-up Action

Same as paragraph 3.3.4.

3.5 ACQUISITION AND CLEARANCE

Land required for a "public purpose" may be resumed by the Lands Resumption Ordinance (Cap. 124). With effect from 1 September 2023, a Notice of Proposed Resumpion is required to be gazetted according to section 2A of Cap. 124 for objections to be lodged and handled prior to the submission of the land resumption proposal to the Chief Executive-in-Council for authorisation. In particular, as stated in section 2A(4) of Cap. 124, where the "public purpose" is a land use pending approval under the Town Planning Ordinance (Cap. 131), the Notice of Proposed Resumption may be gazetted on or after the date on which the relevant draft plan/amendment under Cap. 131 is exhibited or made available for public inspection, so that objections towards land resumption can be handled in parallel with the statutory planning procedures.

Project offices and client departments should plan their projects holistically to ensure good coordination and interface between the gazettal procedures for the land resumption proposal and the proposals under other regimes. In general, the Notice of Proposed Resumption should be gazetted at a similar time as, or shortly after, the gazettal of the relevant draft plan/amendment under Cap. 131, if applicable. Where a project involves gazettal of plan and scheme for roads, sewerage or railway works under Cap. 370, Cap. 370 as applied by Cap. 358AL or Cap. 519, the Notice of Proposed Resumption should also be gazetted at the same time as the gazettal of the proposed plan and scheme under those other ordinances. Project offices and client departments may take these requirements into account when they plan their projects, for instance, they may consider requesting preparation of land requirement plan and suitably engaging land surveying professionals for this task in the relevant feasibility/consultancy studies.

Moreover, as stated in section 19A of Cap. 124, the fact that funding approval for works for delivering the relevant public purpose has not been obtained does not prevent the commencement of land resumption and provision of compensation and rehousing (C&R) to affected persons. To respond to the aspirations of affected persons to receive C&R early, LandsD will proceed to resume land and provide C&R to eligible affected persons after the land resumption is authorised. Project Offices and client departments should make sure that they are ready to take possession of the vacated/cleared land soon after the estimated date of authorization of land resumption.

For further details, please refer to the "Inter-departmental Guidelines for Land Resumption under the Lands Resumption Ordinance (Cap. 124)" given by DEVB.

3.5.1 Clearance Programme

(a) Five-year programmes

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The project office is responsible for informing the appropriate LACC to include the project in the LACC clearance programme together with the necessary programming information. Five-year programmes will be prepared in accordance with arrangements agreed by the LACC members.

(b) Re-clearance

The client departments are responsible for taking all necessary precautions to prevent illegal dumping on, and unauthorized occupation of, land under their control. If any department is unable to provide adequate protection with its own staff resources, assistance may be sought from LandsD for arranging security guard service or fencing, as appropriate, provided that the necessary funds are made available by the client department.

If, after allocation, a site is illegally occupied and has to be cleared again, the project office should request DLO, with a copy to Clearance Unit of Acquisition Section in LandsD, to take action to re-clear the site (for marine sites, the Principal Marine Officer/Local Services, MD, should be contacted for assistance). The cost of re-clearance should be met from the client department's project vote but in exceptional circumstances, may be met from the Land Acquisition Vote under the control of the CES/A of LandsD. In the latter case, funds may not be immediately available for unscheduled re-clearances, and there is no guarantee that project/contract deadlines will be met.

(c) Programme reviews

Offices may inform Clearance Unit of Acquisition Section in LandsD, with copies to DLO, of clearances which have not been foreseen for inclusion in the five-year programme and Clearance Unit of Acquisition Section in LandsD will endeavour to fit them in at one of their programme reviews. LACC directives should be sought if there are disagreements between departments.

(d) Priorities

If at any stage LandsD finds that the forecast development clearances in a clearance district cannot be accommodated, they will inform the LACC. The latter will consider and propose reprioritization of clearances based on the district requirements and arrange for submissions to LACM for final consideration and approval. LandsD will carry out the clearances according to their priorities and the resources available.

(e) Office co-ordination

Whilst office clearance coordinators will be concerned with all procedures in paragraphs 3.2 to 3.5, they should pay particular attention to paragraph 3.5.1. Changes in office holders should be notified to those involved.

3.5.2 Clearance Application

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(a) Pre-Clearance Survey (PCS)

Insofar as clearance of land is required for the implementation of government development projects, LandsD as the agent of the project bureau/ department has, as a standard and established procedure, been conducting a PCS (commonly known as "freezing survey") to capture the occupation and status of the occupiers within the project area. The information so obtained will serve as a basis for assessment of eligibility for government's ex-gratia compensation and rehousing (C&R) arrangements for those residing/operating in the locality and are genuinely affected/to be cleared by the project. As a minimum requirement, an occupier is required to be registered in the PCS as a pre-requisite to be considered for C&R provisions (whether he/she is eligible ultimately will depend on his/her fulfillment of various other eligibility criteria).

Once a government project is confirmed to proceed and so made known to the public, it would be advisable to conduct the PCS to capture the occupation and status of the occupiers at the earliest possible juncture so as to prevent abusive acts to take advantage of the C&R provisions (e.g. to guard against those moving into the project area after they learned of the prospective development in order to benefit from C&R). Previously, each project bureau/ department or LandsD will decide the timing for conducting PCS for the project. Upon review, the Government sees room for improvement by promulgating a general guideline for standardizing the timing, as detailed in paragraphs below, to better achieve the objective of the PCS in taking a snapshot of the ground situation as soon as the development plan is confirmed and announced in public.

With effect from 1 April 2021, in line with the policy intent for PCS to be conducted as and when the planned land use, development boundary and implementation programme of the project are confirmed and so announced in public, the PCS should be conducted in accordance with the following timing as a general practice:

(i) where statutory town planning procedures are involved (e.g. rezoning of sites for public housing, New Development Areas, land sale), the PCS should be conducted at the date of gazettal of the draft OZP/ OZP amendment or the date of publishing a planning application for public inspection, whichever is the earliest. If the supporting infrastructure for a project is not shown as part of the draft OZP/ OZP amendment/ planning application (e.g. road works, sewerage works), project bureau/ department should decide and notify LandsD whether the PCS to be conducted at the date of gazettal of the draft OZP/ OZP amendment/ publishing of planning application should cover the area of supporting infrastructure, if so, the boundary of such area;

(ii) where statutory town planning procedures are not involved but gazettal of a scheme for the project in question is required under other ordinances (e.g. road/sewerage works under Cap. 370 or railway works under Cap. 519), the PCS should be conducted at the date of gazettal of the plan and scheme; and

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(iii) for projects requiring clearance in due course but not covered by the scenarios in paragraphs 3.5.2 (a)(i) and 3.5.2 (a)(ii) above (e.g. drainage works not required to go through gazettal of plan and scheme under Cap. 370), the PCS date should be determined by the project bureau/ department in consultation with DEVB and LandsD, in accordance with the policy intent stated at the beginning of this paragraph.

If any project bureau/ department considers it not appropriate to conduct PCS for individual project according to the above guidelines due to overriding concerns, the project bureau/ department should justify and defend their decision after consultation with DEVB and LandsD. For land sale site not captured by paragraph 3.5.2 (a)(i) above, the District Lands Office concerned should liaise with the DEVB to determine the timing for the PCS.

Under the prevailing practice, the lead bureau/ department of a works project involving land resumption should submit a completed CAF to request for LandsD's preparation for land resumption and clearance. The CAF would enclose a finalized land requirement plan delineating the resumption/clearance limit of the development project with breakdown by respective ordinance(s) involved, along with the development programme. When formulating the project boundary, the general principle is to have regard to the requirements of the project and not to resume and clear more land than required. This notwithstanding, it is also important that the project boundary is sensibly drawn (e.g. to avoid cutting across a structure or an occupation or leaving behind a portion of a land lot which cannot be put to beneficial use by the landowner). Where there is any reasonable suggestion on incorporating more land into the project boundary to reduce hardship of affected persons and such land can be reasonably used on the project, project offices and client departments should consider favourably in the interest of smoothening resumption and clearance for timely implementation of the project.

Noting that the standardized timing in paragraph 3.5.2 (a)(i) above may pose difficulties to the project bureau/ department in providing detailed delineation of land by the respective ordinance(s) to be invoked for resumption, the Government has promulgated a simplified CAF namely the 'Advance CAF' for project bureau/ department to provide the necessary information for LandsD to kick start the PCS1 at Appendix 3.1. The Advance CAF should be submitted together with a draft land requirement plan to LandsD at least 3 months before the intended date of PCS (e.g. the date of gazettal of the draft OZP/OZP amendment or the date of publishing a planning application for public inspection, whichever is the earliest, for a project caught by paragraph 3.5.2 (a)(i) above). The draft land requirement plan has to show the outer clearance boundary of the land involved for LandsD to carry out the PCS in one go. Unlike in the usual CAF, the project bureau/ department will not be required to delineate the land by different ordinances to be invoked for resumption at the stage of Advance CAF because the manner of conducting the PCS would be the same. The usual CAF with the finalized land requirement plan under respective ordinances following the prevailing practice as mentioned in the paragraph above is still required from the project bureau/ department at later stage for committing land resumption (if applicable), actual land clearance and site handover date.

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Having said that, if the PCS is conducted at the same time as the gazettal of the Notice of Proposed Resumption under section 2A of Cap. 124, the usual CAF should be submitted according to the timeframe under the section "CAF" in (b) below. The Advance CAF would be inapplicable in this case.

If the resumption/clearance limit of a project is enlarged and more landowners/ occupiers are affected, a supplementary PCS will be conducted to cover the enlarged project boundaries.

When the resumption/ clearance limit of a project is confirmed to be reduced by project bureau/ department after PCS, both the affected landowners/ occupiers and their structures previously covered by PCS but then fall outside the reduced resumption/clearance limit will be de-screened (at a time to be agreed by directorate level in LandsD).

(b) CAF

The project office should submit to DLO seven copies of the CAF, in the format shown at Appendix 3.1A, with a copy to Clearance Unit of Acquisition Section in LandsD etc., at least 9 months before gazettal of the Notice of Proposed Resumption under section 2A of Cap. 124 (for projects where clearance is to be done under Cap. 124) or 24 months (for projects where clearance is to be done under the Roads (Works, Use and Compensation) Ordinance and the 'Sewerage Regulation') before work is expected to start. In practice, the time required for clearance may be longer depending on the workload of the respective DLO and the complexity of the clearance work required for individual projects. The respective DLO should better be consulted of the time required for clearance of individual project when the clearance programme is prepared. In addition, the project office should liaise closely with DLO to facilitate DLO to prepare "cut-off" date letter if building land is affected. For normal clearance, the application should be signed by an officer of D1 rank, and for clearances to be treated as urgent, by an officer of D2 rank. The plan, normally in 1:1,000 scale, should show by thick black pecked lines all the land required, including that for formation areas, works areas and borrow areas. It should also show the area in square metres of each parcel of land. Occupation should be phased whenever possible to avoid clearance sooner than necessary. A revised CAF should be submitted in cases of substantial change in the clearance requirements. Project offices should clarify early with relevant DLO the time implication on site delivery due to submission of a revised CAF and minor revision to the project boundary.

If necessary, a separate application can be made for the advance clearance of part of a site or borrow area for ground investigation or a topographical survey, but this should be avoided as far as possible by limiting such surveys to what can be achieved with temporary access arranged by DLO. Advance clearance should only be carried out if DLO agrees to make special arrangements for control of the cleared area until the permanent work starts.

3.5.3 Processing

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On receipt of a clearance application form from a project office, DLO will:

(a) Complete the application form and forward 4 copies to Clearance Unit of Acquisition Section in LandsD with copies as noted at Appendix 3.1A,

(b) Advise the project office on whether the CAF is accepted or not by return of the standard feed-back memo. If the CAF is accepted, DLO will:

(i) Prepare for licence and tenancy cancellation and resumption procedures (CES/A to deal with resumption in Urban Area cases);

(ii) Confirm with the project office any change of timing of the project before gazetting the resumption notice;

(iii) Check if sufficient provision has been made in the Land Acquisition vote for compensation and ex-gratia allowances (Head 701, Subhead 1010CA to 1020CA, for PWP projects);

(iv) Alert the project office well in advance to take up the demolition and clearance works of all structures, in particular those substantial ones;

(v) Arrange for pre-clearance work, assessment and payment of various ex-gratia allowances; and

(vi) Take action to ensure clearance by the date required, and if delays appear likely, immediately advise SM/C and the project office.

The Clearance Unit of Acquisition Section in LandsD will:

(a) Plan the clearance operation and confirm details of the date and estimate to DLO, CES/A for the Urban Area, and the project office,

(b) Advise DLO if demolition of substantial structures is required, and

(c) If delays appear likely, immediately inform DLO, the project office and DO concerned.

It should be noted that for marine sites involving clearance of vessels and moorings, MD is responsible for taking appropriate action (if the clearance exercise involves clearance of dwelling vessels, LandsD is responsible for arranging registration of boat dwellers prior to the clearance of the vessels). It will:

(a) Plan the clearance operation and confirm details of the date and the estimated costs to the project office,

(b) Arrange for the serving of the removal notice, and

(c) If delays appear likely, immediately inform the project office.

The project office should:

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(a) If a change of programme or resumption/clearance arises, immediately advise DLO, SM/C (or MD for marine sites) and LACC.

(b) Arrange for the contractor to take possession, or in the case of direct-labour jobs, take possession of the site on the date agreed with SM/C and DLO. Clearance should not normally be carried out until work can commence but where, for some reasons, it has to be earlier, alternative arrangements for taking possession of the site and preventing illegal occupation should be made in conjunction with SM/C and DLO. Where contractors are involved, sites should be made available to them on the dates specified in the contract, failing which may result in claims for late possession of sites.

(c) Inform DLO and SM/C at the earliest stage if the structures to be demolished are suspected of containing asbestos materials, which must be removed in accordance with the Air Pollution Control Ordinance before demolition is carried out.

3.5.4 Acquisition and Clearance of Potentially Contaminated Industrial Sites

Prior to taking over leased industrial sites or sites susceptible to contamination by the Government, the project office should give priority to carrying out detailed site investigation to assess the contamination of the sites, especially for those which are more prone to serious contamination (e.g. shipyard sites). The assistance from relevant departments (e.g. EPD and LandsD) should be sought if necessary. Reference should be made to the "Practice Guide for Investigation and Remediation of Contaminated Land", and the “Guidance Note for Contaminated Land Assessment and Remediation” should be adopted where appropriate. The documents can be viewed on the website of EPD. The assessment methodology is based on the risk-based remediation goals.

Relevant departments, such as LandsD, should be informed of the extent of contamination so that appropriate and immediate action can be taken to protect the Government's interest before the sites are resumed.

3.5.5 Land Acquisition Prioritization Exercise (LAPE)

To improve the delivery of the Capital Works Programme and to ensure that important projects will not be hindered by the staff resources constraints in LandsD, the CWC endorsed in 1997 the introduction of the LAPE as an annual exercise to be tied in with the RAE. The LAPE aims to prioritize capital works projects requiring LandsD’s input in land resumption, land clearance and compensation assessment under relevant ordinances (referred hereinafter collectively as Land Acquisition) so that LandsD can plan and allocate the required resources accordingly.

Under the context of LAPE, projects are divided into two categories, viz. Major Items and Minor Items. Major Items are those capital works projects, other than Minor Items, that require LandsD’s input on Land Acquisition. They may be works projects under the CWP, quasi-government projects, private projects or LandsD’s items for land sale clearance. Minor Items are those for which LandsD’s staff resources for carrying out Land Acquisition is comparatively small. This category includes Non-development Clearance items, Rural Planning and Improvement Strategy items, LPM items, Private Street Improvement Scheme items and other projects that involve minimal input from LandsD.

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Normally, LandsD will not deploy any staff resources on Land Acquisition for a project unless and until it is included in the LAPE. The relevant Works Departments should programme a project such that it is timely included in the LAPE if such project needs LandsD's input for Land Acquisition.

For Major Items, DEVB will, upon receipt of their applications for inclusion, assign to each item a priority ranking based on the criteria endorsed by the CWC and include them in the SSHD. Based on the assigned priority ranking and the staff resources available, LandsD will work out their SHD.

Under the current rules, the highest priority will be accorded to housing related items, items significantly affecting public safety, and items with very high political, economical or social impact (the relevant Policy Secretary will need to provide detailed justifications for this type of items). Items with an uncertain programme and a high chance of not being able to commence works in time even with the completion of Land Acquisition will be accorded the lowest priority. Within the same priority category, projects requiring smaller amount of LandsD's resources to deliver larger amount of works will normally be accorded with higher priority than the others. DEVB is responsible for keeping under review rules for assigning the priorities.

To avoid unnecessary administrative efforts, DEVB will not assign priority rankings to Minor Items and these items will not be included in the SSHD. Instead, a quota approach is adopted. DEVB and LandsD will agree a certain percentage of LandsD's land acquisition staff resources to be set aside for these items. Among the various types of Minor Items, LPM items will have priority over the others since they are safety related.

LAPE does not apply to very large scale projects for which approval has been obtained for setting up separate teams within LandsD or the proponent office to carry out Land Acquisition.

At the end of each year, DEVB will conduct an LAPE Annual Review of Major Items (the Annual Review). The Annual Review comprises two parts, viz. inclusion of new items and review of existing items.

To ensure that resources will not otherwise be used in processing items that have not been given a priority to proceed in terms of funding position, application for inclusion of a new Major Item in the LAPE should only be submitted after its successful inclusion in the RAE. For projects that do not need to earmark funds under the RAE, the relevant Works Departments should confirm in the application that funds have been earmarked, or will be available, in the appropriate funding sources.

To include a new Major Item in the LAPE, application should be made to DEVB when the Annual Review is conducted. The relevant Works Departments should fill out the application form at the Appendix 3.29 for each new item, providing the following information amongst others –

(a) confirmation that

(i) the project has been included in the latest RAE or funds will be available from appropriate sources;

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(ii) TFS for the project has been submitted and approved;
(iii) construction can commence shortly after the required lands are made available by LandsD;

(b) the estimated construction cost of the project;

(c) the required site handover date;

(d) the target date for submitting Clearance Application Form (CAF);

(e) the relevant ordinances involved; and

(f) the consequence in case the project is delayed.

In addition to the above, a rough site boundary overlaid on a land status plan at a suitable scale (preferably 1:1000) should also be submitted with the application form.

In the event that a Major Item needs to be urgently included in the LAPE in between Annual Reviews, the Works Departments should include in the application a statement of justifications for the urgency provided by the relevant Policy Secretary. Each application will be considered on its own merits by DEVB in consultation with LandsD. If considered necessary, the relevant Policy Secretary may be required to review and adjust the SHD of other Major Items under his own policy areas in order to meet the required additional staff resources.

Based on the information provided above, DEVB will assign priorities to the new Major Items, include them accordingly in the SSHD and pass on such information to LandsD. LandsD will roughly assess the level of resource requirements for Land Acquisition for each new item with the help of Project Management and Staff Resources Model system. The priority rankings, the site handover requirements and the resource requirements of the new items will be reviewed when their LRR and LRP are available later.

During the Annual Review, the site handover requirements of all existing Major Items on the SSHD will be updated and their priority rankings and SHD will be re-examined, taking account of the latest circumstances and progress. If necessary, the assigned priority of the items will be adjusted and the SHD revised.

If considered necessary, DEVB would advise the relevant Works Departments of the preliminary result of the assigned priority ranking and the latter should then consult their Policy Secretaries to determine if the assigned priorities of their projects are acceptable. Policy Secretaries may propose to swap the ranking of items under their own policy areas, provided that there will not be significant difference in LandsD's staff resources requirements and that this involves little abortive work of LandsD. After considering the comments from Policy Secretaries and Works Departments, DEVB will finalize the priority ranking for LandsD to work out the SHD. Based on LandsD's assessment of the SHD and taking into account discussions with Works Departments and LandsD on any unsatisfied site handover requirements, DEVB would issue the final SSHD.

DEVB may, under very special circumstances, consider waiving some of the requirements as set out above for projects that warrant an urgent delivery. In such circumstance, the relevant Policy Secretaries will need to provide full justifications for the urgency.

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As land resources in Hong Kong are limited, project teams have a duty to minimize, as far as practicable, the total area of land that the project will take up or sterilize. Works Departments are therefore required to submit an LRR for each Major Item to DEVB for endorsement. The main purpose of an LRR is to ensure that the relevant Works Departments have given such due consideration in the project planning. In addition, the report should also demonstrate that efforts have been made to minimize the amount of Land Acquisition required by the projects.

An LRR should comprise two parts. The first part should list out the options that have been considered for minimizing the land taken up or sterilized by the project. The second part should list out the options that have been considered for minimizing the amount of Land Acquisition required by the project. In both parts, an explanation should be provided for the option finally adopted.

For each Major Item, Works Departments are also required to submit an LRP to the relevant DLO, with copies to DEVB and LandsD HQ, to provide the basic information for LandsD to assess the amount of staff resources required for Land Acquisition. The LRP should show the site boundary, overlaid on a land status plan to be obtained from LandsD, at a suitable scale (preferably 1:1000). For items requiring LandsD to assess compensations to nearby affected parties, the LRP should also show the locations of the affected parties. Where necessary, additional explanatory notes may be added to facilitate the communication.

Upon receipt of the LRP and the associated details, the relevant DLO would consider whether such information is sufficient and accurate enough for them to assess the Land Acquisition cost and the associated staff resources required. If considered necessary, DLO will arrange a joint site inspection with the relevant Works Departments.

Under the existing TFS system, Works Departments are only required to establish the technical feasibility of projects on a prima facie basis before they are proposed for inclusion in the RAE. Works Departments may therefore not have conducted detailed study on various development options for identifying the optimal project layout in respect of land requirements at the time when making the first LAPE submission for the project. To avoid additional efforts for preparing LRR and LRP at this early stage of a project, Works Departments are no longer required to include these documents in the first LAPE submission for a new Major Item. Instead, these documents should be prepared and submitted after the optimal layout is identified at the design stage, but not later than the next Annual Review after inclusion of the new item in the LAPE.

For Minor Items, Works Departments will need to liaise directly with the relevant DLO as regards the detailed arrangements for adding new Minor Items and the basic information required for working out the SHD. Upon receipt of applications from Works Departments, the DLO will, with the assistance of LACC if necessary, work out a schedule of the SHD for Minor Items and keep DEVB and LandsD HQ informed.

The SHD prepared by DLOs will need to be reviewed from time to time taking account of the actual progress made by the Works Departments and LandsD. The percentage of LandsD's land acquisition staff resources to be set aside for minor items will be reviewed regularly. Such a review may trigger a corresponding review for Major Items.

If there are substantial changes to the site boundary (or alignment) after the submission

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of the LRR and the LRP for Major Items, the relevant Works Departments should notify DEVB, which may require the relevant Works Departments to resubmit the report and the plan. The priority of the item on the SSHD will be reviewed based on the revised details. Similarly for Minor Items, the Works Departments should submit the revised details to the relevant DLO, with copies to LandsD HQ, for a review of the SHD, should there be substantial changes to an item after its inclusion in the schedule maintained by the DLO.

3.6 CHANGE OF USE

3.6.1 Circumstances Involved

Action under this section should be taken if on any piece of land (for which planning approval or allocation has already been granted) any of the following proposals are initiated:

(a) A substantial change of use,

(b) Complete redevelopment,

(c) Use of the land for an additional project, or

(d) A substantial extension or alteration to an existing facility (e.g. additional floors for a building).

3.6.2 Planning Request

A planning request should be made by the client department or the project office at the earliest stage with a plan showing the site and nature of the proposal to DPO or DLO, as appropriate (see paragraph 3.2.1), for comment, which will consider the necessity for a special application to the Town Planning Board or other authority.

3.6.3 Allocation Check

If DPO agrees in principle to the proposed changes and when the project is in Category B or D of PWP, or accepted as a charge to another vote, the client department or project office should request DLO to consider the need to revise any existing allocation conditions.

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4. SUBSIDIARY PROCEDURES FOR PROVISION OF LAND

Note: The following paragraphs contain relevant abstracts of major ordinances relating to the provision of land necessary for the execution of works only. The descriptions should not be treated as legal interpretations of the ordinances and in case of doubt, legal advice should be sought.

4.1 ROADS (WORKS, USE AND COMPENSATION) ORDINANCE, CHAPTER 370 ("the Ordinance")

The Development (Town Planning, Lands and Works) (Miscellaneous Amendments) Ordinance 2023 amends various development-related statutory procedures including Cap. 370, in order to compress development timetables and speed up the production of land and housing. Relevant prevailing circulars, including Transport and Logistic Bureau Technical Circular (TLBT C) Nos. 1/94, 2/96, 1/98 and 1/2022, have been superseded and replaced by TLB TC No. 1/2023. The following provides Works Departments with guidelines in relation to procedures under the Ordinance.

4.1.1 Purpose and Definitions

The Ordinance provides for the publication of proposals as to works in relation to roads, objections to the proposals, authority to carry out the works and for the use of roads, powers in relation to the works on and the use of roads, compensation and connected matters. Under the Ordinance, road works, except those minor works executed and authorized under Section 4, shall be gazetted so as to give the public a chance to object to such proposals.

If the proposed roads and proposed sewers of a project are required to be gazetted, separate gazettal for the proposed roads under the Ordinance and for the proposed sewers under the Ordinance as applied by Section 26 of the Water Pollution Control (Sewerage) Regulation (Chapter 358 AL) shall be gazetted on the same day. For details, please refer to paragraph 4.16.

The Ordinance does not define "roads" but relies upon the definition contained in Section 3 of the Interpretation and General Clauses Ordinance, Chapter 1, which reads as follows:

"street" and "road" mean:

(a) any highway, street, road, bridge, thoroughfare, parade, square, court, alley, lane, bridle-way, footway, passage, tunnel, and

(b) any open place, whether or not situate on land the subject of a Government lease, used or frequented by the public or to which the public have or are permitted to have access.

The Ordinance defines "works" as "the construction, renovation, alteration, closure, maintenance or repair of any road and any operations ancillary thereto".

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4.1.2 Authority and Delegation

The authority for the execution of works or for proposing to execute works is STL, who has delegated this statutory power to SDEV, Project Director (Sports Park) of CSTB and various officers of rank D1 or above in CEDD, HyD, WSD, DSD, ArchSD, HAD, HD and LandsD to act on his behalf.

A detailed schedule of persons to whom STL has delegated statutory powers is given in TLB TC No. 1/2023.

4.1.3 Minor Works

With the expansion of the scope of the minor works mechanism, under Section 4 of the Ordinance, STL may execute any works -

(a) that, in his opinion –

(i) Only involve minor physical or structural operations,: or

(ii) Only create minimal adverse effect on the road users and other people in the neighbourhood; and

(b) in respect of which the only powers required by him are any one or more of the following:

(i) to close a road which in his opinion does not serve any useful or lawful purpose;

(ii) to close a road to use for a period not exceeding 14 days in any period of 3 months; and

(iii) to close part of the width of a road to use, but not to such an extent which will interfere unreasonably with the normal flow of traffic on that road and for no longer than is reasonably necessary to execute the works.

Examples of minor works include installation of utility services, traffic aids and street furniture, street lighting, hard landscaping and planting, etc.

This power of STL is delegated to some senior officers of ArchSD, LandsD, CEDD, DSD, HyD, HAD and WSD, subject to the condition that no resumption of land, creation of easements or other rights are involved.

A detailed schedule of persons to whom STL has delegated powers under Section 4 of the Ordinance is given in Annex A of TLB TC No. 1/2023.

Under the expanded minor works mechanism, STL and delegated officers may take forward a works without going through the statutory gazettal process if the works would create only minimal adverse effect on road users and other people in the neighbourhood, subject to the condition that the only power to be exercised for the execution of works does not extend beyond section (4)(1)(b).

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In assessing whether the proposed works would create adverse effect on road users and other people in the neighbourhood, the initiating office may take into account the following factors –

(i) the nature and the scope of the works;

(ii) whether road users' travel pattern would be unreasonably affected, such as causing long detours

(iii) whether it would bring about negative visual impacts; and

(iv) other relevant factors.

Initiating office or department is encouraged to consider informing the affected local community of the concerned district in advance before carrying out the minor works.

If a delegated officer is unsure as to whether the works he proposes to carry out fall within the definition of minor works described above, or for one who does not have delegated powers under Section 4 of the Ordinance, he should consult STL before a decision is made.

4.1.4 Major Works, the Plan and the Scheme

Where it is intended to carry out works other than those defined in paragraph 4.1.3 above, the initiating office or department will prepare a plan and a scheme and submit these to STL for the signature of PSTL, following which the plan and the scheme shall be deposited in the Land Registry and at other Government display offices for public inspection. A notice calling attention to the proposals and to the availability of the plan and the scheme for inspection will then be published in the Gazette. Any person may then, by notice in writing delivered to STL not later than 60 days after first publication of the notice, object to the works or the use, or both.

4.1.5 Public Consultation

As stipulated in ETWB TCW No. 4/2006, the consultation with District Council(s), major residential groups and other interested bodies should normally take place at least three months before the date of gazettal to allow the public adequate time to understand the project scheme. Wherever practicable, the initiating office or department concerned should publicise the plan and the scheme on local notice boards before their formal gazettal to heighten the public awareness.

A statement of the extent to which the appropriate District Council(s) has been consulted should be included in the covering memorandum (Appendix 3.2A) to any plan and scheme submitted for the signature of PSTL. Please refer to Appendix 3.2A as set out in TLB TC No. 1/2023.

4.1.6 Preparation of the Plan for the Scheme

(a) Contents

The plan shall delineate the "Works Area" which is defined as "that area within which land may be resumed, easements or other rights in, under or over land

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may be created or rights affected for the purposes of or incidental to the works or the use". This should not be confused with the Contractor's Works Area.

The Works Area shown on the plan must encompass all the land that may be resumed, easements or other rights in, under or over land may be created or rights affected for the purposes of or incidental to the works or the use and the limit of works area must be sensibly drawn. Where, for example, when a limit of works area would cut through an existing building, the line should normally be diverted around the building so as to exclude it completely or so as to include it completely, since it is obviously often impracticable to resume land on which part of a building stands. Investigation on site as to what the effect of the limit of works area would be will often be essential.

(b) Liaison with LandsD

Close liaison with District Lands Officers ("DLO") or Chief Estate Surveyor/ Special Sections ("CES/SS") [1] or Chief Estate Surveyor/ Acquisition ("CES/A") (for urban area) is necessary in order that all the lands that require resumption or creation of easement or other permanent or temporary rights are correctly described in the scheme and delineated on the plan. Particular care should be taken when limits of works area are very close to existing lot boundaries, because any minor modification of the limits of works area, at a later stage, may result in encroachment into a lot which has not been gazetted for resumption or creation of easement or other permanent or temporary rights. In order to avoid such a situation, the following arrangements have been agreed with LandsD:

(i) The preliminary layout should be circulated to both DLO, CES/SS or CES/A (for urban area) and DSO. DSO will identify any problematic leased lot boundaries on the layout plan and advise the project office or department.

(ii) When such plans showing the problematic leased lot boundaries are prepared for gazetting, the initiating office or department will send an advance copy of the plan to DLO, CES/SS or CES/A (for urban area) and District Survey Offices ("DSO") at least one week before it is submitted to STL.

(iii) The initiating office or department must ensure that the land use identified at detailed design stage is not in conflict with that delineated in the gazetted plans. The final layout plans should be sent to DLO and DSO for checking as soon as they are available.

(c) Preparation

The plan shall be properly prepared and approved by an officer of at least D1 level of the office or department concerned. It should also contain a signature box bearing the words "Permanent Secretary for Transport and Logistics" and "Date". If the plan contains two sheets, a box should be provided on each sheet

1 As to which section should be contacted, it would be determined on a case by case basis.

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for the PSTL to sign. If the plan contains more than two sheets, they should be bound together with a covering sheet which should contain the heading, plan numbers and titles, together with the approving officer's signature and a box for the PSTL to endorse.

4.1.7 Preparation of the Scheme

(a) Contents

The scheme, which is to be annexed to the plan, is required by Section 5(b) of the Ordinance to describe the following:

(i) the general nature of the proposed works and the use to which it is intended the road will be put (for roads and flyovers the inclusion of a layout plan will be necessary unless the layout is already shown on the plan described in paragraph 4.1.6 above);

(ii) the land that is to be resumed under Section 13 of the Ordinance (which should include, for example, lot particulars, the area affected and the location of the land);

(iii) the land in, under or over which an easement or other permanent or temporary right may be created under Section 15 of the Ordinance, and the nature of such easement or right;

(iv) any road, Government foreshore or sea-bed in respect of which, may be affected under Section 17 of the Ordinance and the manner in which the road, foreshore or sea-bed will be affected (for example, closure of roads or reclamation of Government foreshore or sea-bed or the extinguishment, modification or restriction of any public or private right);

(v) any land or building in respect of which operations may be carried out under Section 19 of the Ordinance and the general nature of that operations (which may cover inspection, valuation, site investigation, surveying and setting out in connection with the works, and the carrying out of preventive or remedial works) ;

(vi) the nature of any apparatus in respect of which the course or position may be altered or repositioned under Section 20 of the Ordinance (for example, any gas, electricity, water or telecommunications service apparatus in respect of which it is intended that STL shall exercise his powers under Section 20 of the Ordinance requiring the owner, at his own expense, to alter the course or position of such apparatus);

(vii) any land or building in respect of which the removal of obstructions may be required under Section 21 of the Ordinance (i.e. it is intended that STL shall exercise his powers under Section 21 of the Ordinance requiring the removal of obstructions where such removal is necessary for the purposes of or incidental to the works or the use); and

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(viii) any land or building in respect of which it is proposed that the Building Authority may exercise its powers under Section 22 of the Ordinance (which permits the Building Authority to refuse to give his approval to plans, or to refuse consent to the commencement of building works, to require the amendment of plans, to impose conditions on the giving of approval of plans or on the consent to commence works, or, where no consent to commence works has been given, to withdraw approval, if he is of the opinion that the building works would be incompatible with the roadworks or use).

Clearly, not every road works and use will require the exercise of all the powers listed above and those not required should not be described in the scheme.

(b) Resuming land for the works under Lands Resumption Ordinance, Chapter 124

"Resumption for a public purpose" under section 2(2) of Cap. 124 and "acquisition for a public purpose" under section 2(2) of the Land Acquisition (Possessory Title) Ordinance (Cap. 130) has been expanded to include resumption/acquisition of land required for the purposes of, or incidental to, any works, or any use, proposed or to be proposed under the Ordinance.

In the past, a "public purpose" project requiring resumption of land for the main development (e.g. an New Development Area ("NDA") project or a public housing project) using Cap. 124 or Cap. 130 and resumption of land for the associated road works using Cap. 370 will be required to delineate and apportion the areas required to be resumed under the respective ordinances. To streamline and to make the preparation work more efficient, the arrangement under section 2(2) of Cap. 124 and Cap. 130 now allows using Cap. 124 or Cap. 130 to resume the land required for the main development as well as the land required for the proposed road works.

Given the above intent, the pre-requisite for adopting the aforementioned approach, if requested by the Initiating Office include –

(i) the land required to be resumed for the road works must be associated with a main development requiring resumption of land under Cap. 124 or Cap. 130 (e.g. an NDA project or a public housing project), meaning that a project which is purely a roads work project is not entitled to use section 2(2) of Cap.124 or Cap.130 for resumption of land;

(ii) the land to be resumed for the proposed road works must fall within the main development boundary and the land therein would be required either for the development works of the main development or the proposed road works, meaning that land required for a road (or a section of it) which is external to the main development (hence cannot be used for the main development) should not be entitled to use section 2(2) or Cap.124 or Cap.130 for resumption of land; and

(iii) the land to be resumed for the proposed road works does not involve creation of easements or other permanent rights (Easements) and rights of

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temporary occupation of land (TOA), because the creation of Easements and TOA should be made under the relevant ordinance such as Cap. 370.

For the avoidance of doubt, the Initiating Office is still required to gazette the proposed scheme of the road works under Cap. 370 notwithstanding the land required being resumed under to Cap. 124 or Cap. 130. As and when the plan and scheme for works have been drawn up (both within the main development boundary which has been authorized for resumption and the works lying outside such boundary yet to be resumed), gazettal and objection-handling for the plan, together with resumption of land outside the main development boundary for the purpose of the proposed works, will be taken forward and ordered (if approved) under s.13 of the Ordinance.

For details on resuming land for the road works under the Ordinance, please refer to the "Inter-departmental Guidelines for Land Resumption under the Statutory Gazettal and Objection-handling Mechanism Introduced under the Lands Resumption Ordinance (Cap. 124)" separately promulgated.

Except for the above and as provided in the Ordinance, Cap.124 shall not apply to the resumption of any land to be resumed for the purposes of or incidental to the works or the use ordered under s.13 of the Ordinance. Any claim or determination, award of payment of compensation for the resumption of land shall follow the ordinances under which the resumption is being ordered. District Lands Officers will nevertheless need to liaise with the Initiating Office in compiling a schedule of land to be resumed. LandsD will carry out all its resumption functions other than preparing the ExCo Memorandum, which would have been required under the Cap. 124.

(c) Inspection and survey

For the purpose of preparing the plan and scheme, every attempt should be made to obtain the agreement of the owner of any land or building, which it is proposed to enter to make inspection, site investigation or test, or to survey or to set out any line of works. If, however, agreement cannot be reached, STL or any person authorized by him, may enter the land or building for these purposes on giving 28 days' notice in writing to the owner and occupier.

4.1.8 Gazetting the Plan and the Scheme

(a) Submission to STL

The plan and the scheme are to be prepared by the office or department which initiates the proposal for the roadworks. Close liaison with DLO, CES/SS and CES/A (for urban area) is necessary to ensure that all the land required to be resumed or easement is correctly described in the scheme and delineated in the plan. After preparing the plan and scheme, the initiating office or department should forward them to STL under cover of the standard memorandum at Appendix 3.2A for comments, as set out in TLB TC No. 1/2023.

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(b) Press release and notice

The plan and the scheme are to be accompanied by a draft press release and a draft notice in both English and Chinese, giving a description of the general nature of the works and particulars of offices at which copies of the plan and the scheme may be inspected by the public. These should normally include:

(i) Central & Western Home Affairs Enquiry Centre, G/F, Harbour Building, 38 Pier Road, Central, Hong Kong;

(ii) the DLO(s) for the district(s) in which it is proposed to carry out the works; and

(iii) the Home Affair Enquiry Centre(s)/ DO(s) concerned for the district(s) in which it is proposed to carry out the works.

The notice should also state the address of drop-in box, fax number and email address of TLB to which objections are to be sent and the time limit (60 days from the date of first publication of the notice) for the submission of objections. A sample notice is at Appendix 3.3A, as set out in TLB TC No. 1/2023.

After signature by PSTL, the appropriate number of copies of the plan and the scheme will be returned to the initiating office or department for distribution to the display offices at which the plans are to be available public inspection.

(c) Publication

After incorporating comments received, the initiating office or department is to forward the finalized plan and the scheme, resumption plan, plan for creation of easement or other permanent rights and plan for creation of temporary occupation of land (in cases where resumption and creation of easement or other permanent or temporary rights are required), draft press release and notice to STL requesting publication in the Gazette.

To enhance consultation and publicity, the relevant gazette notices of Public Works Projects shown in the Government Logistics Department's e-Gazette are required to be displayed centrally on the website of DEVB. Works Departments are additionally required to send a computer file containing a location plan of the project to the Project Management Section of Works Branch (PMS/WB) of DEVB, which should be in jpg format and of file size smaller than 500K bytes. Please refer to SETW's memo ref. ( ) in ETWB(CR)(W)/65/39 Pt. 7 dated 22.5.2003 for details.

TLB will be responsible for arranging the publication of the notice in two successive issues of the Gazette, for depositing the plan and scheme with the Land Registry, for arranging the publication of the notice on TLB's website, as well as two issues of a Chinese newspaper and two issues of an English newspaper, and for notifying the appropriate District Council(s), which will also be sent a copy of the plan and the scheme. In case the copyright subsisting in some of the gazettal documents is owned by a third party other than the Government, the initiating office or department shall have obtained the

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necessary licenses from the relevant copyright owner authorizing it to do the acts restricted by copyright set out in Sections 22 to 29 of the Copyright Ordinance (Cap. 528). Please refer to STH's memo ref. ( ) in THB(T) L5/1/1 dated 14.11.2016 for details.

The initiating office or department will be responsible for affixing copies of the Gazette Notice, in both English and Chinese, a table showing the land lot numbers affected and a location plan showing the limit of works area in prominent positions within the works area for the information of the public.

4.1.9 Amendments and Objections

(a) Amendment of the plan and the scheme

If it is necessary to amend a plan and scheme already deposited in the Land Registry, a new notice calling attention to the amendment must be published and all copies of the plan and scheme already issued or displayed must be amended or replaced by the initiating office or department. Initiating office or department should consider consulting the relevant District Council(s) which was previously consulted as described in paragraph 4.1.5. The whole procedure described in paragraph 4.1.8 must be repeated.

(b) Decision not to execute works

If it is decided not to execute works in respect of which the plan and the scheme have already been deposited in the Land Registry, a Gazette Notice to that effect is to be published and the initiating office or department will be responsible for preparing such a notice in both English and Chinese, and for informing and inviting comments from the relevant District Council(s) which was previously consulted and from the DO concerned. The draft notice shall be forwarded to STL for gazetting and publication, as described in paragraph 4.1.8 above. Copies of the notice shall be fixed in a prominent position in the works area by the project initiating office or department.

(c) Receipt of objections

Any person may object to the works or the use or both, and such objections must be made by notice in writing delivered to STL not later than 60 days after the first publication of the notice calling attention to the proposals or, where the deposited plan and scheme have been amended, not later than 60 days after the first publication of the notice calling attention to the amendment. TLB will inform the initiating office or department of any objections received in the Bureau.

Although the Ordinance stipulates that objections must be delivered to STL, it is not uncommon that some objectors might deliver their objections at one of the offices in which the plan and the scheme are available for public inspection. It is the responsibility of the initiating office or department, on expiry of the period set for the receipt of objections, to enquire of those offices where the plan and the scheme have been displayed and to report the result to TLB.

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Confirmation as regards whether objection has been received should be obtained from the display offices.

When an objection with no or invalid or unclear correspondence address/email address is received, the initiating office or department should contact the objector via the phone number provided in the objection letter with a view to obtaining his/her correspondence address or email address for the purpose of serving written reply. It may happen that the same objector issues two or more identical objection letters, or the same objector issues more than one objection letters with different content. In the former case, duplicated objection(s) should be consolidated; whereas in the latter case, any subsequent objection letter may be treated as supplement to the first objection letter issued by the same objector. In either case, it should only be counted as one objection made by the same objector.

An objection lodged after the statutory deadline for lodging objections (i.e. 60 days after the first publication of the gazette notice) should be regarded as late objections.

4.1.10 Authorization

(a) Procedure where there have been no objections.

If there have been no objections, the Initiating Office or department shall seek STL's approval to execute the works and in anticipation of such approval shall attach a draft notice in English and Chinese for the purpose of publishing STL's intention. A sample notice under Section.11 (9)(a) of the Ordinance are attached at Appendix 3.4A, as set out in TLB TC No. 1/2023.

(b) Procedure where objections are received

When an objection is received, the Initiating Office should contact the objector in order to clarify any misunderstanding that may exist over the proposed scheme and to ascertain whether the objector is willing to withdraw his objection, either unconditionally or conditionally. Discussion may include proposals for modification of the scheme and imposition of conditions to ameliorate or avoid the effects of the works or use.

Where an objector is unwilling to withdraw his objection, or is only willing to withdraw it on condition(s), then the objection will be treated as unwithdrawn and must be submitted to the Chief Executive in Council ("CE in C") for consideration and decision. In such circumstances, it is important that the Administration presents the objector's case fairly to ExCo. For this reason, the following points to note should be observed in handling unwithdrawn objections –

(i) the initiating office or department should ensure that each objector is fully informed in writing of the way it intends to submit his objection to ExCo. Specifically, the objector should be advised that all correspondence relating to his objection, including correspondence between the objector and the Government, together with the records of any related objection

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resolution meeting(s) will be submitted to ExCo for Members' consideration;

(ii) the objector should have available to him any relevant information that was taken account of by the initiating office or department in the formulation of its proposals. To enable the objector to formulate his objection, the initiating office or department should, as far as possible, meet any reasonable request for such information;

(iii) if an objector submits any revised proposal, even if it is only minor variation to the original proposal, it must be annexed to the ExCo Memorandum so that the ExCo Members have a complete dossier of all objections and the initiating office or department's comments thereon. The objector should be given the opportunity to have the last word;

(iv) where it appears that an objector is attempting to delay the matter by producing further alternatives, or is attempting to enter into protracted negotiations on a particular issue, the initiating office or department should, by allowing a reasonable time frame, advise the objector of a cut-off date for him to finalize his submission. The submission will then be presented to the ExCo in order that account may be taken of it in the final decision process;

(v) a summary listing out the final stance of objectors after receiving the initiating office or department's written replies would be annexed to the ExCo Memorandum. If no/ invalid/ unclear correspondence address/ email address is provided in the objection letter, the initiating office or department should contact the objector via the phone number provided in the objection letter (if any) with a view to obtaining his/her correspondence address or email address for the purpose of serving written reply. If the objector refuses to provide correspondence address or email address or provides invalid correspondence address or email address, no written reply will be served and the respective objection will be regarded as unwithdrawn case and categorized under "no response". If the objector cannot be reached via the phone, no written reply will be served and the respective objection will be treated as unresolved case/categorized as "unable to contact";

(Points (vi) to (x) below are solely applicable to handling of objections in respect of road works where a copy of the relevant plan and scheme has been deposited in the Land Registry under Section 8(1) of the Ordinance on or after 1 September 2023)

(vi) when an objection is lodged on a ground relating to any compensation (whether monetary or non-monetary) or any financial or other assistance (compensation or assistance) in connection with the works or the use, the objection is, to the extent that it is lodged on that ground, invalid and treated as not having been lodged for the purposes of Section 11 of the Ordinance. The reference to a ground relating to any compensation or assistance includes –

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- a ground relating to whether any compensation or assistance is to be provided, whether or not under an enactment; and

- a ground relating to the amount, extent or form of the compensation or assistance, or the time for its provision.

The purpose of the objection-handling process is to consider whether to proceed with the works and the established practice is to handle compensation or assistance matters under separate mechanisms after a decision on the works proposal is made. The initiating office or department should, upon receipt of objection on such ground, inform the objector accordingly;

(vii) under Section 10(5) of the Ordinance, if the initiating office or department gives a written reply to an objection, the objector may give a response to the reply (including any comment on, or any request in connection with, the reply) within the period of 14 days after the day on which the reply is given. According to Section 10(7) of the Ordinance, a response that is given after the 14-day period is treated as not having been given. In such case, or in case the objector does not provide response at all, the original objection may be deemed to be maintained and unwithdrawn. The submission will then be presented to Members in order that account may be taken of it in the final decision process;

(viii) in case the objector gives a response to the initiating office or department's reply within 14 days (including any comment on, or any request in connection with the initiating office or department's reply), the initiating office or department should provide further written reply as appropriate together with the supplementary information requested to the objector. In case the objector attempts to repeat his objection to which the initiating office or department had already replied, or enter into protracted negotiations on a particular issue to which the project office or department considers no further reply is required, the initiating office or department should notify the objector that the his objection had already been sufficiently addressed in previous replies, the objection is treated as unwithdrawn and will be submitted to the CE in C for consideration. The submission will then be presented to Members in order that account may be taken of it in the final decision process;

(ix) under Section 10(6) of the Ordinance, the mere notification by the initiating office or department to the objector that the objection is treated as unwithdrawn and will be submitted to the CE in C does not constitute a reply; and

(x) an objector, under section 10(8) of the Ordinance, may by writing to STL-

(a) amend an objection lodged by the objector within the 60 days period for lodging objections; or

(b) withdraw the objection in whole or in part before the plan and scheme are submitted under Section 11(1A) of the Ordinance.

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(c) Statutory Time Limit of Submission of ExCo Memorandum

Under normal circumstances, all unwithdrawn objections, notes of any related objection resolution meeting(s) and correspondence between the Government and the objector(s) together with the relevant road scheme and plan(s), should be submitted to the CE in C for consideration –

(i) subject to any amendment to the plan and scheme (paragraph 4.1.10 (c)(iii) below) and extension of time (see paragraph (d)(i) under Extension of Time), within nine months counting from the expiration of the period for lodging objections for road works of which a copy of the plan and scheme has been deposited in the Land Registry under Section 8(1) of the Ordinance before 1 September 2023; or

(ii) subject to any amendment to the plan and scheme (paragraph (c)(iii) below) and extension of time (see paragraph (d)(ii) under Extension of Time), within five months counting from the expiration of the period for lodging objections for road works of which a copy of the plan and scheme has been deposited in the Land Registry under Section 8(1) of the Ordinance on or after 1 September 2023; or

(iii) subject to extension of time (see paragraphs 4.1.10 (d)(i) and (d)(ii) under Extension of Time), where there is any amendment to the plan and scheme, within three months after the expiration of the period for lodging objections in respect of any such amendment or where there is more than one amendment, the last of any such amendments if the said 3-month period ends later than the period mentioned in paragraphs 4.1.10 (c)(i) and (c)(ii) above.

(d) Extension of Time

Having regard to the circumstances of the case, the initiating office or department may seek extension of the time period(s) mentioned above as necessary. The initiating office or department should explain the reason why more time is required for handling objections in the case concerned to STL for the Secretary to apply for the time extension to the Chief Executive (for road works of which a copy of the plan and scheme has been deposited in the Land Registry under Section 8(1) of the Ordinance before 1 September 2023) or to the Financial Secretary (for road works of which a copy of the plan and scheme has been deposited in the Land Registry under Section 8(1) of the Ordinance on or after 1 September 2023). Upon application by STL –

(i) the Chief Executive may allow a further period of not more than six months after the expiration of the period referred in paragraphs (c)(i) or (c)(iii) under Statutory Time Limit of Submission of ExCo Memorandum (as the case may be) for road works of which a copy of the plan and scheme has been deposited in the Land Registry under Section 8(1) of the Ordinance before 1 September 2023; or

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(ii) the Financial Secretary may extend the period mentioned in paragraphs (c)(ii) or (c)(iii) under Statutory Time Limit of Submission of ExCo Memorandum (as the case may be) for two months for road works of which a copy of the plan and scheme has been deposited in the Land Registry under Section 8(1) of the Ordinance on or after 1 September 2023 if he considers it appropriate to do so; and further extend the period on not more than two occasions and for two months for each extension if he is satisfied that exceptional circumstances exist in that particular case. As to what constitutes "exceptional circumstances", it will be considered case by case. Extension may be granted if -

(a) The case involves enormous objections;
(b) The case is considered complex;
(c) Special work arrangements due to unforeseen reasons; and
(d) Any other reasons as raised by the initiating office that STL considers appropriate.

(e) Mechanism for Objection Resolution

In handling unresolved objections, it is important that the Administration presents fairly to ExCo the objector's case. For this reason, the following procedures should be followed:

(i) The initiating office or department should provide a written reply ("the Reply") to each of the objectors to respond to the objector; provide information as requested; and ask the objector to indicate his final stance – "last word" by completing/returning the reply slip and give all his further comments/requests in connection with Government's reply, if any, within 14 days.

(ii) If the objector does not respond or responds after the 14 days expired, the original objection will be deemed to be maintained and be treated as unwithdrawn, and the objections will then be presented to Members in order that account may be taken of it in the final decision process. The objector's response after the 14-day period is treated as not having been given. A sample of written reply with the reply slip for the objector to fill in his/her final stance is at Appendix 3.11A.

(iii) If the objector provides response to the Reply within 14 days, giving any comment on, or any request in connection with, the Reply, the initiating office or department should provide further written response to the objector as appropriate together with the information requested.

The initiating office or department should observe the computation of time under Sections 8 and 71(1) of the Interpretation and General Clauses Ordinance (Cap. 1) as appropriate.

(f) ExCo Memorandum

The initiating office or department should exercise their judgment on whether the appropriate District Council(s) should be consulted again before preparing

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the draft ExCo Memorandum in cases in which public reaction to the scheme is strong or if the proposed modification to the scheme is significant. It is the responsibility of the initiating office or department to prepare a draft ExCo Memorandum and to submit it to TLB TLB circulate the draft ExCo Memorandum to all offices concerned for comments and will submit the final draft to the Clerk to the Executive Councils for consideration by CE in C. The initiating office or department shall be responsible for preparing all copies of Annexes (normally 50 copies of Chinese and 50 copies of English version properly bound and for forwarding them to the Clerk to the Executive Councils along with TLB's submission of ExCo Memorandum. A sample ExCo Memorandum is at Appendix 3.5A. TLB TC No. 1/2023 provides the level of clearance of the ExCo submission.

To meet the requirement on making the ExCo submission within 5 months counting from the expiry date of the statutory objection period (in case of no gazettal of amendment scheme required), initiating office or department should target to complete the handling of objections and preparation of the ExCo Memorandum in the first 3 months upon expiry of the statutory objection lodging period, allowing the remaining 2 months for subsequent vetting/circulation/clearance of the ExCo Memorandum by TLB.

TLB will arrange the gazettal of the decision of CE in C and inform the decision to the objector(s). In case where there are modifications, the initiating office or department is responsible for supplying copies of any modification plan on which should be marked 'Authorised by Chief Executive in Council 經行政長官會同行政會議授權進行' and any other information required to the TLB for arranging gazettal. The initiating office or department shall also display copies of the gazette notice under s.11 in prominent positions within the works area, and distribute the modified plan, if any, to the display offices for public inspection when notified by the TLB.

A LegCo brief will also be prepared, if necessary, by TLB after CE in C has rendered his decision. The initiating office or department is required to supply 85 copies in English and 75 copies in Chinese of Annexes to TLB for inclusion in the LegCo Brief.

(g) Exercise of powers

When STL gives approval to proceed with the works as described in paragraph (a) above, or CE in C authorizes the works under Section 11 of the Ordinance, the powers referred to in paragraph 4.1.7(a)(ii) to (viii) may be exercised, together with STL's power of entry under Section 11(7) of the Ordinance, having regard to any ameliorating conditions which may have been imposed by CE in C. At this stage, the necessary orders regarding resumption, the creation of easements, closure of roads, reclamation and the like will be sought (unless delegated authority has already been obtained), in order to permit the works to proceed. Attention is drawn to Section 2(2) of the Ordinance, which prescribes the manner in which notice is to be served on any named person when exercising the above powers.

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4.1.11 Resumption and the Creation of Easement or Other Rights

(a) Authority and delegation

Where the roadworks necessitate the resumption of land, or the creation of an easement or other permanent or temporary right of occupation in, under or over land, it will be necessary for staff of DLO, CES/SS or CES/A (for urban area) to liaise closely with the initiating office or department in order that the land concerned may be correctly described in the scheme prepared under Section 5 of the Ordinance. In the majority of such cases, it will be necessary for DLO, CES/SS or CES/A (for urban area) to prepare plans and schedules of lots to be resumed in the same way as for resumption under the Lands Resumption Ordinance and/or preparation of plan for creation of easement or other permanent rights or plan for creation of temporary occupation of land and schedule of lots to be created of such easement or other permanent or temporary rights.

Upon STL giving approval to proceed with the works under Section 11(1) of the Roads (Works, Use and Compensation) Ordinance in the absence of objections, or upon CE in C authorising the works and the use, with or without modification or conditions, under Section 11(2), the following powers of the Chief Executive may be exercised:

(i) under Section 13(1), by order to direct that any land proposed for resumption in the scheme shall be resumed for the purposes of, or incidental to, the works or the use;

(ii) under Section 13(3), to revoke an order for resumption previously made under Section 13(1);

(iii) under Section 15(1), by order to direct that easements or other permanent rights in, under or over land, and rights of temporary occupation of land in the works area, which easements and rights were mentioned in the scheme, shall be created in favour of the Government of the HKSAR for the purposes of, or incidental to, the works or the use;

(iv) under Section 15(3), to include in the order made under Section 15(1) such consequential and incidental provisions as appear to the Chief Executive to be necessary or expedient; and

(v) under Section 15(4), to revoke an order previously made under Section 15(1).

The Chief Executive has delegated his power under Section 13 and Section 15 to, inter alia, the Director of Lands (D of L), Principle Government Land Agents (PGLA, and equivalent to Deputy Directors (DD) of Lands), Government Land Agents (GLA, and equivalent to Assistant Directors (AD) of Lands), DLOs and CESs.

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(b) Order for resumption

It is the responsibility of the initiating office or department when seeking STL's authority to proceed under Section 11(1), or on being notified that CE in C has authorized the works and the use under Section 11(2), to request LandsD to prepare an order under Section 13(1) and a corresponding notice under Section 14(2).

The order for resumption made under Section 13(1) shall specify the period of notice, which shall run from the day on which notice of resumption is affixed on or near the land and which shall not be less than 28 days from that day. The actual period to be specified is to be agreed between LandsD and the initiating office or department and should take account of the timing of the works. In practice, three months' notice of resumption should usually be given. A specimen form of the order is at Appendix 3.6A, as set out in TLB TC No. 1/2023. The order must be signed by one of the officers with delegated authority mentioned in paragraph 4.1.11(a) above, normally D of L or PGLA.

(c) Notice of resumption

The notice of resumption, under Section 14, shall:

(i) describe the land to be resumed and state that an order in respect thereof has been made under Section 13(1);

(ii) state where and at what times a copy of the order and, where appropriate, a plan of the land, may be inspected by the public (this will normally be at those offices of the Government of the HKSAR at which the plan and scheme were originally available for inspection);

(iii) state the day on which the notice was affixed on or near the land (this will normally be the day before the date of gazetting of the notice and it is the responsibility of LandsD to ensure that the notice is so affixed);

(iv) state the period of notice specified in the order and declare that upon the expiry of that period the land described in the notice shall by virtue of Section 13(3) of the Ordinance revert to the Government of the HKSAR or be vested in The Financial Secretary Incorporated, as the case may require, for the purposes of or incidental to the works or the use (Note: it must be clearly stated which portions of the land will be reverted to the Government of the HKSAR and which will be vested in the FSI); and

(v) state that any persons entitled to compensation under the Ordinance may serve a written claim upon STL.

A specimen form of notice is at Appendix 3.7A, as set out in TLB TC No. 1/2023.

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(d) Action by LandsD

LandsD must

(i) serve the notice on every person known to have any estate, right, share or interest in the land mentioned in the order, arrange for the publication of the notice in one issue of the Gazette, one issue of an English language newspaper and one issue of a Chinese language newspaper and on LandsD's website;

(ii) provide copies of the order and notice to TLB and advise any other offices concerned of the date of reversion;

(iii) distribute copies of the order and notice to offices at which the plan and the scheme for the works were originally made available for public inspection (Note: if any plan of the land to be resumed has been amended to meet objections or for any other reason since the plan and scheme were originally gazetted, new plans must be provided);

(iv) affix copies of the notice on or near the land on the date stated in the notice; and

(v) arrange delivery of the published notice and resumption plan to the Land Registry for registration.

(e) Creation of easements or rights in favour of the Government of the HKSAR

The same procedures as set out in paragraphs (b), (c) and (d) above are to be followed in connection with the making of an order for the creation of easements or rights under Section 15 and for the serving and publication of a notice under Section 16, except that the order may, under Section 15(3), contain such consequential and incidental provisions as appear to be necessary or expedient for the purposes of the order including, in particular, provisions for authorising persons to enter upon land or buildings for the purpose of carrying out any operations or installing, maintaining or removing any structures or apparatus.

Specimen forms of the order under Section 15(1) and notice under Section 16 are at Appendices 3.8A and 3.9A respectively, as set out in TLB TC No. 1/2023.

Upon the expiry of the specified period of notice, the easement or right shall be created in favour of the Government of the HKSAR and the benefits and obligations thereof, and of all consequential and incidental provisions made under Section 15(3), shall be of full force against all persons having any estate, right, share or interest in the land without any consent, grant or conveyance.

(f) Notice of entry

It is to be noted, however, that unless in the opinion of a person delegated by STL to form such an opinion an emergency exists necessitating immediate entry, a person who has been authorized to enter upon land for the purposes of

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Section 15(3) must first give at least 28 days' notice, served upon both the owner and occupier of the land, of his intention to do so.

(g) Streamlined Procedures and Time Frame on Land Resumption and Clearance

In order to speed up the resumption and clearance of land for public works projects, the initiating office or department should confirm to DLO, CES/SS or CES/A (for urban area) that there is no change to the gazetted plan and road scheme one month in advance of the date of anticipated authorization if no objection is received at the expiry of the objection period. If objections are received and not resolved, the initiating office or department should supply DLO, CES/SS or CES/A (for urban area) the 'final' road scheme they intend to submit to the ExCo at least two months before the anticipated date of ExCo meeting.

DLO, CES/SS or CES/A (for urban area) shall start the preparation of a resumption submission to LandsD (Headquarters Section ("HQ")) before the anticipated date of authorization of the road scheme. Once the road scheme is authorized and the authorization gazetted, DLO, CES/SS or CES/A (for urban area) will finalize the resumption submission and forward it to LandsD (HQ) within one week from the date of the gazettal.

It is aimed that land for the entire project could be delivered within eight months from gazettal of authorization of the road scheme under Cap 370 or ExCo decision under Lands Resumption Ordinance (Cap 124), whichever is the later.

The above streamlined procedures and time frame for land resumption is applied to projects of an average size i.e. not more than 50 private lots to be resumed and not more than 50 families and no large business/industrial undertakings are affected and non-controversial in nature i.e. with few clearance problems anticipated. (See LAO TC No. 715 of LandsD for further details.)

Apart from the above, ETWB TCW No. 13/2003 promulgates streamline procedures to bring forward the delivery of public works projects by allowing the project proponents to gazette a project in parallel with the Environmental Impact Assessment (EIA) process, thus shortening the overall pre-construction lead-time. The Circular also sets out the guidelines and procedures for EIA of Government projects and proposals, including those not covered by the EIAO. See ETWB TCW No. 13/2003 for details.

4.1.12 Closure of Roads etc. and Restriction of Public or Private Rights under Section 17

(a) Authority and delegation

The powers of the Chief Executive have been delegated to STL and PSTL:

(i) to close any road or part thereof;

(ii) to reclaim any foreshore or sea-bed of the Government of the HKSAR, for the purposes of, or incidental to, the works or their use; and

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(iii) to declare the extent to which any public or private right in respect of the road, foreshore or sea-bed of the Government of the HKSAR shall be extinguished, modified or restricted over a specified time period.

Where the proposed works necessitate the closure of roads under Section 17(1)(a), reclamation of the Government of the HKSAR foreshore or sea-bed under Section 17(1)(b), and/or extinguishment, modification or restriction of public or private rights under Section 17(1)(c), an order to execute the powers under Section 17 has to be signed by PSTL. The standard draft form of order is shown at Appendix 3.10A, as set out in TLB TC No. 1/2023.

(b) Publicity

The order signed under Section 17 is publicized by means of a notice under Section 18. The standard form of notice is at Appendix 3.11E, as set out in TLB TC No. 1/2023. The notice must be:

(i) Published

- in one issue of the Gazette in both English and Chinese,
- in one issue of an English language newspaper,
- in one issue of a Chinese language newspaper,
- on TLB's website for road closure, foreshore or sea-bed reclamation works, restriction of public/private rights;
- by affixing a copy in both English and Chinese in prominent positions on or near the land mentioned in the order; and

(ii) made available for inspection by the public free of charge at such offices of the Government of the HKSAR as PSTL may direct.

(c) Procedure

It is the responsibility of the project office or department to prepare the draft order under Section 17 and draft notice under Section 18. The draft notice and order are to be submitted to PSTL at least one month before the order is effective. The respective responsibilities are:

By Transport and Logistics Bureau

(i) process the draft order and have it signed by the PSTL;

(ii) process the draft notice and have it signed by the PSTL;

(iii) arrange for the publishing of the notice in one issue of the Gazette and in one issue of an English language newspaper and one issue of a Chinese newspaper; and on TLB's website; and

(iv) send the initiating office or department copies of the order and notice for affixing in prominent locations on or near the affected areas; and

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(v) send the display offices copies of the order and notice for deposit in their offices for public inspection.

By Initiating Office or Department

(i) send copies of the order to offices at which the plan and scheme prepared under Section 5 were originally made available for inspection by the public (see also paragraph 4.1.8); and

(ii) affix copies of the notice in both English and Chinese on or near the land mentioned in the order.

(Note: The date on which the notice was so affixed is required to be stated in the notice. It should normally be the gazettal day before that on which the notice is published in the Gazette and the initiating office or department is to ensure that it is so affixed on that date.)

Where the plan of the affected roads, foreshore or sea-bed has been altered from that originally made available for inspection by the public, it will be necessary for the initiating office or department to provide revised plans to offices at which the public may inspect them. In all other cases, it will be sufficient merely to remind those offices that the plans are already in their possession.

4.2 FORESHORE AND SEA-BED (RECLAMATIONS) ORDINANCE, CHAPTER 127

(See ETWB TCW Nos. 4/2006 and 13/2003)

4.2.1 Introduction

The FS(R)O applies to all reclamation works within the HKSAR including those to be undertaken by Government or its agents, unless the works are gazetted under the Railways Ordinance or the Roads (Works, Use and Compensation) Ordinance.

The term "reclamation" has a wide meaning. In general, it refers to all works of permanent nature over or upon the shore and bed of the sea and of any tidal water within Hong Kong below the line of the high water mark. For example, dredging with a view to reclaiming land or construction of a permanent structure is covered by the FS(R)O but routine maintenance dredging is excluded. In case of doubt as to whether a particular kind of works falls within the ambit of the FS(R)O, technical advice from Development Bureau (Works Branch) (DEVB(WB)) [Attention to Chief Assistant Secretary (Works) 3] and legal advice from the Department of Justice (DoJ) should be sought.

Before reclamation is started, gazetting under section 5 or authorization as minor works under section 16A of the FS(R)O must be taken by the Director of Lands (D of L). In the event of queries, the contact officer in the LandsD is the Executive Officer/Lands Administration Office (2)/(EO/LAO(2)).

With a view to expediting land production to meet society's needs for housing and other development, section 16C of FS(R)O explicitly provides that the preparation and publication of a plan for proposed reclamation, the receipt and handling of objection as well as

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the authorization of the reclamation over and upon the foreshore and sea-bed under FS(R)O do not require any statutory plan (commonly known as outline zoning plan (OZP)) prepared under the Town Planning Ordinance (TPO) to be in place.

Allowing the gazettal of reclamation proposal under FS(R)O and relevant procedures to run without having to wait for the completion of statutory town planning process would accelerate the commencement of reclamation projects thus land production. The rationale is that for any reclamation project to proceed, it has always been the Government's practice to establish the need for reclamation first, and to confirm the technical feasibility and environmental acceptability of the location and extent of reclamation, through detailed planning and engineering (P&E) studies and public engagement. Draft land use proposals showing residential, commercial and other zonings for the reclaimed land will also be formulated under relevant P&E studies. These land use proposals then form the basis for preparing the OZP under TPO. As the P&E studies and the draft land use proposals formulated thereunder are already detailed enough to help justify the need for as well as extent of reclamation, the statutory processes of reclamation should commence while the statutory OZP process under TPO runs in parallel.

In order to streamline the delivery of public works projects, ETWB TCW No. 13/2003 promulgates parallel action between the EIA process and statutory gazetting of projects.

4.2.2 Minor Works

(a) A minor works mechanism is introduced under FS(R)O so that works of a minor nature may be carried out in an expeditious way for early enjoyment of the public.

(b) Section 16A of FS(R)O empowers D of L (or his delegated officers as referred to in paragraph 4.2.2 (d)) to authorize any works as specified in the Schedule to FS(R)O with total area of foreshore and seabed affected by which is not more than 0.5 hectare over and upon any foreshore and sea-bed. Currently the Schedule contains 11 types of works –

(i) pier;
(ii) landing steps;
(iii) harbour steps;
(iv) slipway;
(v) mooring dolphin;
(vi) beacon;
(vii) floating pontoon;
(viii) submarine pipeline or outfall;
(ix) diffuser for open sea discharge;
(x) seawater intake; or
(xi) peripheral structure or feature associated with a marine structure

The authority to amend the Schedule rests with the Secretary for Development2. To ensure transparency and allow public scrutiny, Government will consult the

2 As stipulated under the Schedule to FS(R)O, the Secretary for Development may amend the Schedule by publishing a notice in the Gazette, which is then laid on the table of the Legislative Council at the next sitting. The Council may amend the notice by a resolution passed at a Council meeting held not later than 28 days after the meeting at which it was so laid.

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Legislative Council Panel on Development before publishing notice in the Gazette for any amendments to the Schedule.

We have provided in Appendix 3.11B examples of the specified works for departments' reference. If a delegated officer is uncertain whether the proposed works fall within the definition of minor works under section 16A, he may consult DEVB(WB) and DoJ.

(c) Sections 3 to 16 of FS(R)O do not apply in relation to any works authorized as minor works under section 16A. In other words, requirements and procedures concerning statutory gazettal, objection-handling and statutory compensation do not apply to minor works. This notwithstanding, the Lands Department will continue to consider offering ex-gratia allowances to eligible fishermen and mariculturists affected.

(d) Under powers granted to D of L under section 2A of FS(R)O, D of L has delegated his powers under section 16A to some senior officers of ArchSD, CEDD, DSD, EMSD, EPD, HyD, HD, LCSD, MD and WSD. A detailed schedule of persons to whom D of L has delegated powers under section 16A of FS(R)O is given at LandsD's memo ref (11) in LD LAD/LAR/1-145/2 Pt. 6 dated 27.11.2023 which is attached in Appendix 3.11C. As "minor works" authorized under FS(R)O are not subject to statutory compensation, delegated officers should ensure that the proposed works will not unreasonably affect private rights prior to authorizing or executing the relevant minor works.

(e) For minor works authorized under Section 16A, the delegated officer should notify LandsD (for the attention of EO/LAO (2) as referred to in paragraph 3 4.2.1 of this handbook and Chief Land Executive/ Fishermen Claims Assessment Unit) for record purpose under the logsheet in excel format as attached at Appendix 3.11D.

(f) While the undertaking of minor works under section 16A does not require gazettal and objection handling processes, departments are encouraged to maintain liaisons with the local community as appropriate before the commencement of works. In particular, people who will be affected by the works such as the nearby mariculturists and the concerned fishermen associations for the areas should be given early notification, unless in emergency circumstances.

4.2.3 Major Works - Gazette Notice

When reclamation is proposed in relation to any foreshore and/or sea-bed under section 3 of FS(R)O, the project department is responsible for initiating the gazette notice of the proposal (the Notice). The Notice should follow the standard format as shown in Appendix 3.12. It must describe the location of the foreshore and sea-bed affected, the manner in which it will be affected, the purpose of the undertaking and the area involved. The Notice must also state where and at what times the gazette plan may be inspected, and must specify the time for the making of objections (the Objection Period). Under the FS(R)O, the public must be given a period of not less than two months, from the date when the Notice is first published, to lodge with D of L any written objections to the proposed undertaking.

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4.2.4 Major Works - Consultation and Time Required

When a department initiates a Notice under Section 5 of the FS(R)O, it should, before submitting a request to D of L for gazetting, ensure that:

(a) The project is in accordance with approved policies.

(b) The reclamation limit and scope of works are well defined.

(c) The relevant District Council(s) has/have been consulted about the reclamation proposal.

(d) Unless otherwise agreed by the Secretary for Environment and Ecology, the approval of the EIA report or the permission to apply directly for environmental permit has been obtained from the Director of Environmental Protection under the Environmental Impact Assessment Ordinance (Chapter 499) if the proposed reclamation is a designated project under FS(R)O.

(e) The principle stated in the Protection of the Harbour Ordinance (Chapter 531) is observed.

(f) Relevant government departments/parties have been consulted and no objection has been received. The consultation shall be made by sending each of them a background note on the proposal, a sufficiently detailed plan showing the location of the reclamation, a draft Notice and a draft press release (in the standard format as shown in Appendix 3.13). These departments/parties shall include, but not be limited to, the following –

(i) in every case

- AFCD
- CEDD (2 sets for the attention of CE/HQ)
- DSD
- DLO of the LandsD for the area
- DO of the Home Affairs Department for the area
  - seeking specific agreement to the draft press release
  - seeking advice on whether strong objection from the public is anticipated.
- District Planning Office of the Plan D for the area
- EPD
- MD
- Marine Fill Committee
- Public Fill Committee
- WSD

(ii) Where appropriate

- Development Office of CEDD for the area
- HyD
  - where roads are involved
- Hong Kong Police Force

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- where traffic flows or law and order may be affected

➢ Clearance Unit of Acquisition Section in LandsD
- where relocation and payment of ex-gratia allowance to boat dwellers, squatters, boatyards, factories or other people are required.

➢ Transport Department
- where road access, ferry services or transport implications are involved.

Section 16B of the updated FS(R)O provides that the fact that the expenditure for any works to be executed for a reclamation has not been approved or authorised under the Public Finance Ordinance (Cap. 2) or any other enactment does not prevent the authorization of the reclamation or the provision of any compensation (whether monetary or non-monetary) or any financial or other assistance in connection with the reclamation or the works. The project department may consider the appropriate timing for initiating the Notice, taking intoaccount the readiness of a scheme, the progress of earmarking funds for its implementation, and the overall project timetable.

In the consultation with AFCD, the initiating department should also take the opportunity to seek their advice on the estimated ex-gratia allowance payable to fishermen and/or mariculturists, where appropriate, affected by gazettal under the FS(R)O or minor works to be authorized. LandsD will process any such claims for ex-gratia allowance in collaboration with other relevant bureaux/departments.

For marine borrow areas and marine disposal areas, since these proposals are for general purposes and not for specific projects, the Marine Fill Committee will be the agency for initiating the Notice and paragraph 4.2.4 (b) does not apply.

4.2.5 Major Works - Documents for Gazetting

Where the requirements mentioned in paragraph 4.2.4 above have been met, the initiating department should request the DLO for the area to prepare 3 copies of the draft gazette plan and a draft location plan. The DLO should be asked to send the completed plans direct to EO/LAO(2) of the LandsD, with copies to the initiating department for facilitating subsequent communications on the details of the plans. The draft gazette plan should be in A3 or A4 size depending on the details to be included while the draft location plan should be at reduced scale for incorporation in the Notice. DLO will normally take 3 weeks to complete the first draft of the plans.

The initiating department should also send a request to D of L (for the attention of EO/LAO(2)) for gazetting the reclamation scheme and copy the same to the relevant government departments/parties for information. The request must be accompanied by:

(a) A copy of the draft Notice (in both English and Chinese) as shown at Appendix 3.12;

(b) A copy of the draft press release (in both English and Chinese) as shown at Appendix 3.13;

(c) A background note on the proposal, giving brief information on the scope of the project or undertaking and possible related works in the area and any likely implications;

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(d) A sufficiently detailed plan showing the location of the proposed reclamation;

(e) Confirmation that no objection is received from all government departments/parties that have been consulted;

(f) A copy of the agreement to the draft press release from the DO for the area; and

(g) Confirmations that the scope of works and reclamation limit are well defined.

Upon receipt of the documents mentioned above, D of L will arrange for their clearance with the Department of Justice. If everything is in order, the initiating department should request the DLO for the area to submit to D of L 35 copies of the finalized gazette plan and 4 copies of the finalised location plan. D of L will then arrange publication and display of the Notice and plan, and publication of the press release in accordance with FS(R)O.

Provided that the documents listed above are fully provided and reference to the initiating department or other interested government departments/parties is not necessary, D of L will require about four weeks to arrange for the publication of the Notice in the Government Gazette.

4.2.6 Major Works - Dealing with Objections and Authorization

Section 8(1A) of FS(R)O stipulates a statutory time limit of 5 months for dealing with objections lodged, unless an extension is granted. In this connection, the initiating department should make their best endeavours to complete the objection handling process as soon as practicable without deviating from the objective of allowing a reasonable period of time for both the Government and objectors to resolve objections.

(a) Scheme without objection(s) received

If no objection is received during the Objection Period, D of L will consult the interested parties on the timing for gazetting the Notice of Authorization under Section 9 of the FS(R)O. Unless advised otherwise, D of L will arrange gazetting of the Notice of Authorization in about four weeks.

(b) Scheme with objection(s) received

If objections are received during the Objection Period, D of L will refer the objections to the initiating. The latter should consider the following –

(i) whether the objection is made on a ground relating to compensation (whether monetary or non-monetary) or any financial or other assistance (compensation or assistance) in connection with the proposed reclamation. If affirmative, the objection, to the extent that it is made on that ground, will be considered invalid and be treated as not having been made. The purpose of the objection-handling process is to consider whether to proceed with the works and the established practice is to handle compensation or assistance matters under separate mechanisms after a decision on the works proposal is made. The initiating office should, upon receipt of objection on such ground, inform the objector accordingly.

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(ii) if the objection is considered valid, the initiating office should consult the government departments concerned including the DoJ where necessary, and formulate means of overcoming the objections, which may include modification of the scheme.

(iii) if the modification of scheme is considered not necessary, the initiating office, depending on the content of the objection, may contact the objector as appropriate in order to clarify any misunderstandings that may exist over the proposed scheme.

(c) The initiating office, after giving due consideration of the above, should offer an official written reply ("the Reply") as soon as possible to each objector. The Reply should provide –

(i) a substantive reply against the argument points raised by the objector;

(ii) any relevant information (in the formulation of the works proposal) as requested by the objector;

(iii) a reply slip that asking the objector to indicate his stance amongst four options -
Option (a): withdraw objection to the proposal unconditionally;
Option (b): withdraw objection to the proposal with conditions;
Option (c): maintain objection; and
Option (d): provide supplementary comments; and

(iv) a reminder that –
(a) the reply slip (with all comments) should be returned within 14 calendar days (with date specified) or otherwise the objection would be deemed as unwithdrawn;
(b) if the objector (1) does not withdraw his objection, or (2) withdraws with conditions; or (3) provides supplementary comment, all the correspondence relating to his objection, together with the records of any related meetings, will be submitted to Chief Executive in Council (CE in C) for consideration.

A sample of the Reply and reply slip is attached at Appendix 3.13A.

(d) The initiating office should check as to whether the reply slip is received on or before the 14-calendar day deadline. The initiating office should also observe the service by post and computation of time under Sections 8 and 71(1) of the Interpretation and General Clauses Ordinance (Cap. 1), as appropriate.

(e) If an objection is withdrawn unconditionally, it shall be treated as not having been made for the purpose of proceeding with the authorization procedure under FS(R)O.

(f) Where an objector (i) does not withdraw his objection, or (ii) withdraws it with conditions, or (iii) provides supplementary comments, then the objection remains unresolved and must be submitted to CE in C for consideration and

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decision. Under such circumstances, it is important that the Administration presents fairly the objector's case to CE in C. For this reason, the following procedures should be followed in handling unresolved objections to ensure:

(i) that each objector is fully informed in writing that it intends to make a submission to CE in C for consideration of the proposed reclamation and the objection. Specifically, the objector should be advised that correspondence relating to his objection, together with the records of any related meetings, will be submitted to CE in C for consideration as mentioned in paragraph 4.2.6(c)(iv) above;

(ii) that any relevant information available to the Administration in the formulation of its own proposalsare made available to the objector to assist him to formulate his objection as far as possible as mentioned in paragraph 4.2.6(c)(ii) above;

(iii) Any revised proposal submitted by an objector, even if it is only a minor variation to the original proposal, it must be annexed to the ExCo Memorandum so that CE in C could have a complete dossier of all objections and the Administration's comments thereon and

(iv) the objector must always be given the opportunity to have the last word within the allowed timeframe in accordance with the requirements in the reply slip and the Reply as stated in paragraph 4.2.6(c)(iii) and (iv) above.

(g) It is the responsibility of the initiating department to prepare a draft ExCo Memorandum with a full set of the Annexes and pass it to D of L when objections remain unresolved. D of L will circulate the draft Memorandum to all government departments/parties concerned and coordinate the preparation of the finalized Memorandum. D of L will submit the Memorandum to CE in C for consideration within a period of 5 months after the expiry of the Objection Period. The Secretary for Development (SDEV) may extend the 5-month time limit for for not more than 3 occasions and for 2 months each upon application of D of L, as SDEV considers it appropriate for the first 2-month extension or under exceptional circumstances for the remaining two 2-month extensions. As to appropriateness of the extension, for those projects handled by the delegated officers, the application of D of L to SDEV will be based on the recommendation of the delegated officers. As to what constitutes "exceptional circumstances", it will be considered case by case. Extension may be granted if –

(i) the case involves enormous objections;
(ii) the case is considered complex;
(iii) special work arrangements due unforeseen reasons; and
(iv) any other reasons as raised by the initiating office that D of L considers appropriate.

(h) It is reminded that, under the updated procedures in 2023 as set out in paragraph 4.2.6(c) above, statutory procedures on publication of a reclamation plan under FS(R)O may commence without having to wait for completion of relevant process under the TPO. In order to work out the timing for the parallel processing procedures, there should be close liaison and consultation between

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PlanD, LandsD and the relevant works department. A flowchart showing the procedures for gazetting under FS(R)O is given at the Appendix 3.14.

(i) Appropriate administrative steps should be taken to resolve objections as soon as practicable after the statutory objection period (with a possible extension as mentioned in paragraph 4.2.6(h) above. Also, in order to speed up the resumption and clearance of land, the streamline procedures as stipulated in ETWB TCW No. 13/2003 should be followed.

(j) If the proposed reclamation is a marine borrow area or a marine disposal area, MFC should request the Authority under the Dumping at Sea Ordinance, when the Objection Period lapses, to make all necessary statutory arrangements to enable the Authority to issue permits and exercise regulatory controls on marine dumping activities within the affected foreshore and seabed.

4.2.7 Major Works - Action after Authorization

When a proposed project is authorized to proceed, D of L will arrange gazetting and display of the Notice of Authorization.

If the initiating office considers it necessary, the initiating office shall prepare a draft press release and submit to D of L for consideration to arrange a press release of the authorized reclamation.

4.2.8 Other Works - Claims for Compensation

D of L will process all claims for compensation made under the FS(R)O and funding will be from votes under his control.

Prior to the gazetting of relevant works, it is necessary to sign and submit an undertaking to the Government in order to ensure that the private party (e.g. developer) can be reimbursed the relevant compensation for private projects in accordance with section 2A(2) of FS(R)O.

4.3 RAIL RESERVES

4.3.1 Hong Kong Railways

Before the appointment day of the Rail Merger on 2 Dec 2007, with the Rail Merger Bill enacted by LegCo, the Hong Kong railways were operated under 2 railway operators, the MTR Corporation Limited (MTRCL) and the Kowloon-Canton Railway Corporation (KCRC).

The MTRCL is a limited company created in 2000 under the Mass Transit Railway Ordinance (MTRO), Chapter 556 by privatization of the former Mass Transit Railway Corporation.

The KCRC was established on 24 December 1982 by the Kowloon-Canton Railway Corporation Ordinance (KCRCO), Chapter 372, to take over the operation of the KCR East Rail running between Hung Hom and Lo Wu. On 1 February 1983, the East Rail operational assets and railway land were vested in the KCRC. All matters concerning railway land vested

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in the KCRC are substantially covered by the Second Schedule of the Agreement executed on 24 January 1983. The categories and limits of the land between Hung Hom and Lo Wu vested in the KCRC are shown on LandsD Drawing No. KM 2477 Sheet 1 to 12.

Merger of the 2 railway operators was proposed in Feb 2004 and the Rail Merger Bill was passed by LegCo on 8 June 2007. Upon the merger, the KCRC entered into a service concession agreement (SCA) with the MTRCL to grant MTRCL the right to use its assets (Concession Assets) to operate the existing KCR railway lines, including the new KCR railway lines currently under construction and its other transport-related businesses, e.g. the Light Rail (LR). Besides, the MTRO and the KCRCO were amended to suit the merger.

4.3.2 The Mass Transit Railway (MTR) Network

The following lines formed the MTR network before the merger:

(a) Kwun Tong Line (between Yau Ma Tei and Tiu Keng Leng);
(b) Tsuen Wan Line (between Tsuen Wan and Central);
(c) Island Line (between Sheung Wan and Chai Wan);
(d) Tung Chung Line (between Tung Chung and Hong Kong);
(e) Airport Express Line (between the Airport and Hong Kong);
(f) Tseung Kwan O Line (between Po Lam and North Point);
(g) Disneyland Resort Line (between Sunny Bay and Disneyland Resort).

The following railway lines were merged into the MTR network after 2 Dec 2007:

(a) East Rail Line (between Lo Wu and East Tsim Sha Tsui);
(b) Ma On Shan Line (between Wu Kai Sha and Tai Wai);
(c) West Rail Line (between Nam Cheong and Tuen Mun);
(d) Lok Ma Chau Spur Line (extension of the East Rail Line from Sheung Shui to Lok Ma Chau).

The following railway lines were added to the MTR network after Rail Merger on 2 Dec 2007:

(a) Tseung Kwan O South Line (between Tseung Kwan O and LOHAS Park);
(b) Kowloon Southern Link (between Nam Cheong and East Tsim Sha Tsui).

In order to protect the completed MTR tunnels, structures and other facilities against damage, which might be caused by development or redevelopment of sites in the vicinity of the MTR, it is necessary to stipulate restrictions on, or requirements for, such work. The guidelines for planning and undertaking public works and maintenance works within the Railway Protection Area ("the Area") are stipulated in DEVB TCW No. 1/2019. As a general guide, the boundary of the Area is about 30 m outside the outer surface of the railway structures or the railway fence/wall, or from the nearest rail if there is no railway fence/wall, but it encompasses the whole of any lot where any part thereof lies within the 30 m distance. At railway stations, the boundary of the Area is more extensive.

No capital works or maintenance works (e.g. construction works, ground investigation, utility works), including tree planting works, shall take place within the Area unless the works proposals have been forwarded to MTRCL for comment and stipulation of any measures necessary to protect the railways. Works Departments shall check whether any

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part of their capital works or maintenance works, including tree planting works, falls within the Area. In case of any doubt as to whether the proposed works will have an effect on the railway, Works Departments should liaise with MTRCL. For any proposed works within the Area, Works Departments shall liaise with MTRCL to minimise any potential/possible interference of the proposed works to railway operation. Where necessary, Works Departments shall consult MTRCL on various issues such as details of works proposals, protective measures, construction methods, monitoring mechanisms and maintenance requirements. In designing any structure spanning over a railway, Works Departments shall take account of the relevant requirements in the "Structures Design Manual for Highways and Railways" issued by the Highways Department.

When planning projects or works in close proximity to railway vent shafts and for tree planting works within the Area, the specific requirements are stipulated in DEVB TC(W) No. 1/2019. In particular, trees should not be planted at a distance less than 2 m away from the nearest rail of the unfenced railway section.

The requirements in DEVB TC(W) No. 1/2019 could be exempted for those works involving only ground breaking and excavation not exceeding 1 m deep within the Area under the following conditions, provided that MTRCL has been advised of the works in advance:

(a) outside an area not less than 6 m from at-grade railway tracks and station entrances; or
(b) outside the areas bounded by railway fence/wall.

The provisions in DEVB TC(W) No. 1/2019 also do not apply to emergency works, which include urgent repair works to existing utility services, water mains, stormwater drains, sewers, roads, slopes, street furniture and highway structures or emergency tree maintenance/clearance works, if these works fall outside the railway premises but within the Area. However, MTRCL should be advised of these works including the location and depth of excavation as soon as possible.

4.3.3 Other Rail Reserves

Forming part of the MTR network after the Rail Merger, the Light Rail (LR) is a special transport system included in the Tuen Mun, Tin Shui Wai and Yuen Long New Town development. Within the Government of the HKSAR, LandsD is responsible for all land aspects of the LR project. The land requirement for its operation has been generally defined and shown on the town plans.

Besides the completed MTR lines which have been put to operation, there are other railway projects being implemented or under planning. As at October 2018, the new railway projects being implemented are:

(a) Shatin-to-Central Link (between Tai Wai and Admiralty).

Land for these new railway projects is acquired under the Railways Ordinance, Chapter 519. Also, other land outside gazette schemes can be allocated by means of short term tenancies or land grants. The Ordinance includes provisions to exercise statutory control of building works which fall within or adjacent to the boundaries of gazette schemes. For public works within or adjacent to the boundaries of gazette schemes or allocated land, the department concerned should liaise with the MTRCL in early stage to avoid any

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incompatibility.

For the proposed railway projects under planning, the routes are not protected by legislation. In order to ensure that the proposed railway projects will not be frustrated or complicated by other departments, their recommended route alignments would require to be protected by administrative means. The procedures to be followed for administrative protection are set out in HyD TC No. 3/2015. In accordance with the HyD TC, administrative route protection plans are prepared by Railway Development Office, HyD and circulated to relevant Government Departments to alert them of the likely locations of the proposed railway routes recommended in the Railway Development Strategy 2014 (RDS2014).

The recommended Railway Network upon completion will feature seven new railway projects as listed below:

(a) Northern Link (between Kam Sheung Road Station and Kwu Tung);
(b) Hung Shui Kiu Station (new station on the West Rail Line between Tin Shui Wai Station and Siu Hong Station);
(c) Tung Chung West Extension (between Tung Chung Station and Tung Chung West);
(d) Tuen Mun South Extension (between Tuen Mun Station and Tuen Mun South);
(e) East Kowloon Line (between Diamond Hill Station and the Po Lam Station);
(f) South Island Line (West) (between HKU Station and Wong Chuk Hang Station); and
(g) North Island Line (between Hong Kong Station and North Point Station).

As a general guide, uses within 30m of the nearside of the administrative route protection boundary should be referred to Railway Development Office, HyD for consideration. For noise sensitive uses in the vicinity of above ground railway sections, the distance should be increased to 150m. It is necessary that relevant departments are well aware of the railway projects under planning to ensure that all their alignments are adequately protected. Departments concerned should check whether new works, land disposal, reserves and planning proposals will affect/be affected by the railway routes and to refer any such possible instances for consideration. Reference should be made to HyD TC No. 3/2015 for further details.

The boundary of the Railway Protection Area for completed railway facilities can be viewed and downloaded from the website of MTRCL (http://www.mtr.com.hk/en/corporate/operations/protection_boundary_map.html). For railway projects under construction, the details can be found at the website of Highways Department (https://www.hyd.gov.hk/en/road_and_railway/index.html).

4.3.4 Communication and Announcement Mechanism on Public Works within Railway Protection Area

There have been overwhelming public concerns on railway safety, particularly incidents involving settlements of railway facilities due to nearby developments. Addressing the community's concerns, the Buildings Department and the EMSD have established and announced to the public a communication and announcement mechanism for public works within railway protection area at Appendix 3.14A. Amd No. 5/2025 The mechanism sets out guidelines/procedures for notifying the public of such incidents in a timely manner. Amd No. 5/2025 For the avoidance of doubt, where a project is to be implemented under entrustment

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agreement, the client department or the project office proposing the entrustment should liaise with the proposed agency to confirm the relevant roles and responsiblities under the mechanism.

4.4 DRAINAGE RESERVES

Drainage reserves are shown on various statutory or town plans for the purpose of making land available for future installation of sewerage or stormwater drainage facilities and to ensure that adequate space and access are available for maintenance of these facilities. As a general rule, erection of permanent structures over drainage reserves, which will affect maintenance of drainage facilities, is not permitted.

When projects affect or involve encroachment into a drainage reserve, or when work is proposed at the upstream or downstream ends of a drainage reserve, the Chief Engineers of the respective operation and maintenance divisions in DSD should be consulted. Where the drainage reserve lies within the gazetted airport boundary, the Airport Authority should be consulted.

Regarding projects which might affect the deep sewage tunnel system under the Harbour Area Treatment Scheme, see paragraph 4.18 for further details.

4.5 WATER GATHERING GROUNDS AND WATERWORKS RESERVES

Waterworks Ordinance, Chapter 102 defines 'gathering ground' as any surface of land:

(a) in or by which rain or other water is collected and from which water is, or is intended to be, drawn for the purposes of a supply; and
(b) which is 'mapped as a gathering ground under Section 23'.

Section 23(6) of the same Ordinance states that such a map shall be published in the Gazette.

There are also various waterworks reserves indicated on the various statutory or town plans, intended for existing and future waterworks installations.

When projects affect or involve encroachment into these gathering grounds or waterworks reserves, WSD should be consulted for agreement, with initial contact through the regional Chief Engineer of WSD.

When projects involved are related to land matters associated with waterworks installations, the project engineer should refer to the latest version of the WSD Civil Engineering Design Manual for details.

4.6 GAZETTED OPEN SPACES, PARKS AND PLAYGROUNDS

Sections 106(1) and 107(1) of the Public Health and Municipal Services Ordinance, Chapter 132 state that the authority for the provision and arrangement of the gazetted Public Pleasure Grounds listed in the Fourth Schedule shall be the DLCS.

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When a project involves encroachment into an open space, park or playground, DLCS shall be consulted, and attention should be drawn to areas that will be created by the project, such as roadside plots, quality greening at roadside and road median or amenity areas within the limits of a public road.

When DLCS indicates that the area affected by the works is a gazetted Public Pleasure Ground under the Ordinance, or if DLCS intends to gazette any new area so created under the Ordinance, the following procedures would be relevant:

(a) The project office should, during the preliminary design stage when the project is in Category B, obtain the formal agreement of DLCS on the alienation of areas affected as well as the eventual taking over of the management of any new area created by the works. This should include details of site boundaries, works arrangement, access for public during construction, temporary reprovisioning etc. Consultation with Property Services Branch, ArchSD, may be necessary in respect of the maintenance of hard furniture within these areas.

(b) DLO should be informed of the final agreement reached. It will arrange for revised or additional gazette plans to be prepared and agreed by interested parties.

(c) After the project has been upgraded to Category A and before the contractor takes possession of the site, DLCS should be requested to arrange for the gazetting of the revised plan, thereby completing the formal procedure of the alienation of the area affected.

(d) For a new area to be gazetted as a Public Pleasure Ground, the gazetting procedure by DLCS should be undertaken when the works have been completed and handed over to DLCS.

4.7 AREAS UNDER COUNTRY PARKS ORDINANCE, CHAPTER 208

Where CE in C has approved a draft map under Section 13 of the Ordinance and it has been deposited in the Land Registry, the Chief Executive will, by order in the Gazette, designate the area shown in the approved map to be a country park.

After the publication of a notice by the authority (i.e. DAFC) under Section 9(1) of the Ordinance, no new development may be carried out within the area of the proposed country park shown in the draft map without the prior approval of the authority. The granting of approval by the Authority shall be in addition to any other approval, which may be required in respect of the new development.

'Development' means the carrying out of building, engineering, mining or other similar operations in, on, over or under land.

'New development' means any development other than development in respect of which all necessary approvals and permissions have been obtained prior to the date of publication in the Gazette of a notice under Section 9(1) of the Ordinance.

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To obtain approval to carry out works in a country park as required under the Ordinance, the project office should submit a plan to DAFC showing the location and extent of the site area within which all works and operations are to be carried out. When work commences, a copy of the approved plan together with the approval conditions should be kept on site for inspection by country park staff. The project office should also notify DAFC of the dates of commencement and completion of works, and ensure that the contractor complies with all conditions laid down in DAFC's approval.

4.8 BORROW AREAS

4.8.1 Land Borrow Areas

The temporary allocation of land for contractors' works areas and borrow areas is dealt with under paragraph 3.4. In essence, it requires consultation with and the agreement of the departments concerned, and approval of the appropriate DLO. Due consideration is to be given to the following aspects before making request for the temporary allocation:

(a) The geotechnical and landscaping requirements for the design of the borrow area (see Chapter 4 for details).

(b) The future land use and disposal of the site after use or borrowing, as it will then determine the degree and extent of any slope stabilization measures and the maintenance responsibility. This is particularly important when the site will be left vacant for some time before another project office can take it over, or when the permanent use of the site cannot be determined. In such circumstances, DLO must be made aware that it will be responsible for these matters in the intervening period.

(c) The development of land borrow areas (i.e. excavation solely to provide fill) must be approved by the Public Fill Committee (PFC) (see WBTC No. 12/2000 and DEVB TCW No. 9/2011). However, excavations required for the purpose of forming land do not have to be approved by the PFC. In cases where large quantities of fill have to be either imported to or exported from a site, the Secretary of the PFC shall be informed.

4.8.2 Marine Borrow Areas

The use of marine borrow areas must be approved by the Marine Fill Committee (MFC) which has the authority to allocate these for specific uses (see WBTC No. 12/2000 and paragraph 4.2.1 of Chapter 4 of the PAH). The allocation of marine borrow areas is based on development priorities, geographical considerations and the need to use the limited marine fill resources to the maximum benefit.

4.9 INSTALLATION OF GROUND ANCHORS IN LAND OF THE GOVERNMENT OF THE HONG KONG SPECIAL ADMINISTRATIVE REGION

Ground anchors, whether permanent or temporary, are not desirable as the use of land in which they are installed will be severely restricted or even sterilized. Applications for

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permission to install ground anchors must fully justify the need for their use as against alternative methods available.

Permanent anchors that sterilize future use of land of the Government of the HKSAR will only be considered in exceptional circumstances such as essential slope stabilization works where no alternative means of supporting the slope exists. Where permanent ground anchors are exceptionally permitted in connection with a structure, it should be made as a condition of approval that the performance of the anchors is capable of being monitored and will be regularly monitored throughout the life of the structure.

Temporary anchors, although not permanently sterilizing land, are similarly undesirable and in particular can give rise to problems when detensioned.

Ground anchors (permanent or temporary) under existing or future road reserves will only be considered in very exceptional circumstances.

The procedure for obtaining approval for installation of ground anchors is as follows:

(a) After the technical design of the ground anchors has been agreed by GEO (See Chapter 4 for details), the project office/division will apply to the relevant DLO for approval to install ground anchors in the Government of the HKSAR land outside the allocated site boundaries, with full detail.

(b) DLO will circulate the proposal to the relevant engineering offices.

(c) On receipt of comments, and if the application is considered reasonable, DLO will, if appropriate, submit the case to the relevant DLC. If approved, the area enveloping the anchors will be temporarily or permanently allocated to the project office/department concerned.

The project office or the office responsible for maintenance of the completed project will be required to maintain and monitor these anchors. Those responsible for such maintenance and monitoring should be informed when the proposal to use ground anchors is finalized so that they can make the arrangements for funding and carrying out the work well in advance of the handing over of the project. "As-built" drawings shall be forwarded to DLO for record purposes. See Chapters 4 and 7 for provision of "as-built" records to the offices concerned.

4.10 TREE PRESERVATION AND FELLING

DEVB TC(W) No. 4/2020 and DEVB TC(W) No. 5/2020 stipulate requirements for preservation of trees and Old and Valuable Trees (OVTs) at different stages of government projects as well as those under arboricultural maintenance. Priority protection shall be provided to the OVTs in the Register of Old and Valuable Trees.

For preservation of healthy trees in government projects, the tree(s) shall be retained at its/their existing location(s). If it is not practicable, the affected tree(s) shall be transplanted to other permanent locations within the project site or the maintenance area to minimise the loss of vegetation in the local environs. Otherwise, they shall be transplanted to other permanent location(s), which should preferably be in adjacent areas in order to maintain

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its/their amenity value to the neighbourhood.

Nevertheless, if the trees concerned are of (a) low amenity value, (b) poor health, structure or form, (c) irrecoverable form after transplanting (e.g. transplanting requires substantial crown and root pruning), (d) low chance of survival upon transplanting, (e) undesirable species (e.g. Leucaena leucocephala which is an invasive, exoticand self-seeding tree), or (f) trees grown under poor conditions which have limited the formation of proper root ball necessary for transplanting, there is no need to transplant those trees.

Tree removal arising from government projects shall only be considered when (a) preservation or transplanting is unsuitable or impracticable, (b) the tree has been irreparably damaged by inclement weather, (c) dead tree(s), or (d) any other justifications or circumstances. Under these circumstances, a Tree Preservation and Removal Proposal shall be prepared and approved by the Tree Works Vetting Panel.

Emergency tree removal may become imminently necessary if the tree shows immediate and obvious signs of danger and there are no practicable mitigation measures to remove the risks of tree failure. The government department shall decide on the emergency tree removal and arrange to remove the trees if justified as soon as practicable. Full photographic records of the tree(s) before removal should be taken where possible and a tree failure report/tree assessment report (where applicable) should be prepared and submitted to Greening, Landscape and Tree Management Section of the DEVB within 21 calendar days from the date of completion of the emergency tree removal.

4.11 HISTORICAL AND ARCHAEOLOGICAL SITES

Historical sites are protected by the Antiquities and Monuments Ordinance, Chapter 53. The procedures and requirements for assessing heritage impact arising from the implementation of capital works projects are stipulated in DEVB TCW No. 1/2022.

Before the commencement of any work within a gazetted historical site, a permit issued by the Secretary for Home Affairs is required. It is advisable to consult the list prepared by the Antiquities and Monuments Office of the DEVB before submitting the application for a permit. This consultation is also necessary for historical sites which are not gazetted although a permit is not required.

During construction works, any discovery of antiquities or objects suspected of being an antiquity should be reported immediately to the Antiquities and Monuments Office.

4.12 AIRPORT AUTHORITY ORDINANCE (CHAPTER 483)

The Airport Authority Ordinance and the subsidiary regulations empower the Airport Authority to provide, operate, develop and maintain an airport for civil aviation in the vicinity of Chek Lap Kok and otherwise to define its functions, to make provision for the safe, secure and efficient operation of such airport and for connected purposes.

The Airport Area shall comprise the area of the land at and in the vicinity of Chek Lap Kok; and the area of the land at and in the vicinity of Sha Chau, delineated and shown in the map titled “Airport Authority Ordinance (Cap 483) Map of the Airport Area” signed by the

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Director.

The Ordinance and its subsidiary regulations stipulate the various detailed restrictions to be imposed by the Airport Authority on persons, vehicles etc. It also enables the Airport Authority to issue permits to persons and vehicles to gain access to the various restricted areas. Where a project will affect any part of the airport land or will require the access or use of any part therein, as a work site or works areas, the agreement of the Airport Authority should be sought.

4.13 HONG KONG AIRPORT (CONTROL OF OBSTRUCTIONS) ORDINANCE, CHAPTER 301

The Hong Kong Airport (Control of Obstructions) Ordinance was enacted to control the height of any structures, including cranes and hoists, in the Territory for the safe operation of aircrafts. The height restrictions are prescribed under the Hong Kong Airport (Control of Obstructions) (Consolidation) Order. Details of these height restrictions are described on a set of plans obtainable from the Map Sales Offices of LandsD. In the event that any construction equipment is needed to exceed the airport height restrictions, DCA should be consulted and agreement sought.

4.14 USE OF LAND BENEATH FLYOVERS AND FOOTBRIDGES

Given the scarcity of land in Hong Kong, land beneath flyovers can provide alternative solution space for uses where there are no other suitable sites. However, it should be borne in mind that flyovers/footbridges are primarily designed and built as transport corridors/pedestrian links to facilitate transport/pedestrian movements. They may not be suitably located and the traffic/environmental conditions may not be conducive to accommodate all land use activities. Hence, flyover/footbridges sites should only be considered as alternative solution space for uses upon exhausting all other suitable sites, provided that such uses are acceptable in terms of land use, structural, fire safety, traffic, environmental, visual and all other relevant considerations as detailed in Section 7 of Chapter 12 of HKPSG. Some guidance on the types of usage that are acceptable, conditionally acceptable and unacceptable is given in Appendix 3.15.

While sites beneath flyovers/footbridges could be made use of for certain uses, opportunity should be taken to introduce more greening and landscaping works beneath flyovers/footbridges. This would help improve the visual appearance of the space and building/structure beneath the flyovers/footbridges which, given their massiveness, could have a bearing on the townscape.

For more proactive integration and co-ordination, the possibility of including appropriate potential uses beneath major flyovers/footbridges should be given early consideration. In planning for new flyovers/footbridges, reference should be made to the future planning intentions and land use zonings on Outline Zoning Plans to avoid severance of land use parcels located beneath the proposed flyovers/footbridges.

Relevant works department should also include the requirements for identification of possible land uses beneath flyovers/footbridges in the Investigation Stage of new major flyover/footbridge projects after inclusion into Category B of the Public Works Programme.

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The project office should, if possible during the preliminary or detailed design stage but definitely before the construction works are completed, draw the specific attention of DLO or DPO to any land surplus to requirements, after making provisions for maintenance depots, stores, etc. in consultation with the office responsible for the maintenance, (usually CHE/B&S and regional CHEs). It will be the responsibility of DLO and DPO in consultation with other relevant offices/departments to plan and determine the usage to which the various parcels of land could be put.

For all permanent and temporary uses proposed underneath flyovers, compliance with statutory planning restrictions is required. Unless otherwise permitted by the respective Outline Zoning Plans, planning permissions from TPB may be required for both permanent and temporary uses beneath flyovers.

For uses that have already obtained approval from TPB, the relevant District Lands Officer can proceed with the land allocation without prior submission to District Lands Conferences or District Planning Conferences.

For uses which do not require approval from TPB, endorsement from the District Lands Officer concerned and District Planning Conferences would be required respectively for temporary uses and permanent uses.

Before an application for use of sites beneath flyovers is considered by the District Lands Officer concerned and District Planning Conferences, relevant DOs should be consulted to determine the need and extent of public consultation that might be required for the applications subject to the nature, scale, duration of the applications as well as the local circumstances. Upon completion of the project, all land beneath highway structures should be handed back to DLO, which will hand it to the designated users or departments responsible for the control and development.

Any unallocated land beneath highway structures will be under the administrative responsibility of DLO, which may require appropriate fencing and enclosure of the land to be provided by the project office before taking over the land. HyD will retain responsibility for the maintenance (but not administrative control) of all footpaths, carriageway, abutments, piers, columns etc. forming part of the highway system.

4.15 PROTECTION OF LAND UNDER DEPARTMENTAL CONTROL

Client departments are responsible for all necessary precautions to prevent illegal dumping on and unauthorized occupation of land under their control. Responsibility for the control of land and the management of security guards, if any, will rest with the department concerned. If the allocated site is too big geographically for introduction of protection measures like guard servicing or fencing, the client department should seek LandsD's assistance to take on the responsibility for squatter control.

Client departments must exercise care over the land under their control and take all necessary steps to prevent illegal dumping on and unauthorized occupation of the site after clearance and taking possession of the land. For allocated areas outside the fenced boundary, the allocatee should employ the patrol guard tactics to ensure no illegal occupation of or dumping on the allocated area and to seek assistance from DLO when such activity is spotted.

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4.16 ROADS (WORKS, USE AND COMPENSATION) ORDINANCE (CHAPTER 370) AS APPLIED BY SECTION 26 OF WATER POLLUTION CONTROL (SEWERAGE) REGULATION (CHAPTER 358 Subsidiary Legislation AL)

EPD procedural guidelines No. 01/16 (which will be superseded and replaced by 01/23) gives the guidance to the application of the Roads (Works, Use and Compensation) Ordinance ("the Roads Ordinance") as applied by Section 26 of the Water Pollution Control (Sewerage) Regulation ("Cap. 358AL" or "the Sewerage Regulation"]. The Development (Town Planning, Lands and Works) (Miscellaneous Amendments) Ordinance 2023 amends various development-related statutory procedures including Cap. 370, in order to compress development timetables and speed up the production of land and housing. The following provides Works Departments with guidelines in relation to procedures under the Sewerage Regulation.

4.16.1 Purpose and Definitions

The Sewerage Regulation provides for the publication of proposals as to works in relation to sewerage, objections to the proposals, authority to carry out the works and for the use of sewerage, powers in relation to the works on and the use of sewerage, compensation and connected matters. The Roads Ordinance as applied by Section 26 of the Water Pollution Control (Sewerage) Regulation requires gazetting of works, other than those under Section 4 so as to give the public a chance to comment or object to such works proposals.

The following terms are defined in Section 2 of the Roads Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation:

"Authority"	has the same meaning as in the Water Pollution Control Ordinance (Cap 358) i.e. the Director of Environmental Protection;
"Director"	means the Director of Environmental Protection;
"use"	means the use of any sewerage, whether before or after the completion of any works and includes the existence of any sewerage whether or not in relation to any use to which it is put;
"works"	means any thing which may be done by the Authority or may be required by the Authority to be done under or pursuant to Part II, III or IV of the Water Pollution Control (Sewerage) Regulation (L.N. 323 of 1994).

4.16.2 Authority and Delegation

The Authority for the execution of works or for proposing to execute works etc. under the Roads Ordinance is the Director of Environmental Protection (DEP), who may authorize any named person to exercise any of the powers, functions and duties conferred or imposed upon him under the Roads Ordinance. A schedule of the powers, functions and duties delegated by the DEP for the above purpose can be found in Appendix A1 of EPD procedural guidelines No. 01/16 or 01/23.

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4.16.3 Sewerage Works which require Limited Road Closures

Section 4 of the Roads Ordinance empowers the Authority to execute any works which require limited road closures as in the following cases:

(i) to close a road which, in his/her opinion does not serve any useful or lawful purposes;

(ii) to close a road to use for a period not exceeding 14 days in any period of 3 months;

(iii) to close part of the width of a road to use but not to such an extent as will interfere unreasonably with the normal flow of traffic on that road and for no longer than is reasonably necessary to execute the works.

Again DEP has also authorized some officers of departments concerned to exercise the above powers and the list of persons authorized is set out in Appendix A1 of EPD procedural guidelines No. 01/16 or 01/23. The authorized officer should make use of the existing channels (e.g. District Council, Area Committee, Owners Incorporation, District Office, District Land Office) to inform members of the public of the proposed road closure when necessary.

If an authorized officer is unsure as to whether works he/she proposes to carry out fall within the definition of paragraph 4.16.3(i) & (iii), he/she should consult the Transport Department or the Hong Kong Police Force if necessary.

4.16.4 Major Works - the Plan and the Scheme

Similar to paragraph 4.1.4 except that submission is made to DEP for signature.

4.16.5 Public Consultation

Similar to paragraph 4.1.5 except that the plan, the scheme and the notice are submitted to DEP for signature. A sample covering memo to DEP enclosing the plan and the scheme is in Appendix 3.16.

4.16.6 **Preparation of the Plan** for the Scheme

(a) Contents

Similar to paragraph 4.1.6 (a) except that the power is with DEP.

(b) Liaison with LandsD

Similar to paragraph 4.1.6 (b).

(c) Preparation

Similar to paragraph 4.1.6 (c) except that the power is with DEP and the signature box of the plan shall bear the words "Senior Environmental Protection Officer".

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4.16.7 Preparation of the Scheme

(a) Contents

Similar to paragraph 4.1.7 (a).

(b) Resuming of Lands under Lands Resumption Ordinance, Chapter 124

Similar to paragraph 4.1.7 (b).

(c) Inspection and survey

Similar to paragraph 4.1.7 (c).

4.16.8 Gazetting the Plan and the Scheme

(a) Submission to DEP

Similar to paragraph 4.1.8(a). A sample cover memo to DEP enclosing the plan and the scheme is in Appendix 3.16, which is under review by EPD. Please check with EPD for latest version.

(b) Notice

Similar to paragraph 4.1.8(b) except that the display offices shall also include the Lands Registry at Queensway Government Office, District Land Registry(s) concerned, EPD Revenue Tower Office and Local Control Office(s) concerned of EPD. A sample notice is in Appendix 3.17.

(c) Publication

Similar to paragraph 4.1.8 (c) except that submission is made to DEP for signature and for arranging the publication. A sample covering memo to the initiating and department (with copies to other offices concerned) is at Appendix 3.16A and the reply slip for confirmation of the deposition and making available the gazette documents for public inspection is at Appendix 3.16B. Both appendices are under review by EPD. Please check with EPD for latest version.

4.16.9 Amendments and Objections

(a) Amendment of the plan and the scheme

Similar to paragraph 4.1.9 (a). A sample notice is at Appendix 3.18, which is under review by EPD. Please check with EPD for latest version.

(b) Cancellation of proposal

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Similar to paragraph 4.1.9 (b) except that the draft notice should be forwarded to DEP for gazetting and publication. A sample notice is at Appendix 3.19, which is under review by EPD. Please check with EPD for latest version.

(c) Receipt of objections

Similar to paragraph 4.1.9 (c) except that the objection is to deliver to DEP.

4.16.10 Authorization

(a) Procedure where there have been no objections.

Similar to paragraph 4.1.10(a). A sample notice for authorization by DEP is at Appendix 3.20, which is under review by EPD. Please check with EPD for latest version.

(b) Procedure where objections are received

Similar to paragraph 4.1.10(b).

(c) Statutory Time Limit of Submission of ExCo Memorandum

Similar to paragraph 4.1.10(c).

(d) Extension of Time

Similar to paragraph 4.1.10(d) except that the exercise of power is with SEE.

(e) Mechanism for Objection Resolution

Similar to paragraph 4.1.10(e).

(f) ExCo Memorandum

Similar to paragraph 4.1.10(f); .A sample ExCo Memorandum is at Appendix 3.21.

(g) Exercise of powers

Similar to paragraph 4.1.10(g) except that the exercise of power is with DEP.

4.16.11 Resumption and the Creation of Easement or Other Rights

(a) Authority and delegation

Similar to paragraph 4.1.11 (a) except that DEP instead of STL is the authority to give approval to proceed the works.

(b) Order for resumption

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Similar to paragraph 4.1.11 (b) except that DEP instead of STL is the authority to give approval to proceed the works. A specimen form of the order is at Appendix 3.22, which is under review by EPD. Please check with EPD for latest version.

(c) Notice of resumption

Similar to paragraph 4.1.11 (c) except any persons entitled to compensation may serve a written claim upon SEE. A specimen notice is at Appendix 3.23, which is under review by EPD. Please check with EPD for latest version.

(d) Action by LandsD

Similar to paragraph 4.1.11 (d).

(e) Creation of easements or rights in favour of the Government of the HKSAR

Similar to paragraph 4.1.11 (e). Specimen forms of order and notice is at Appendix 3.24 and 3.25 respectively, which is under review by EPD. Please check with EPD for latest version.

(f) Notice of entry

Similar to paragraph 4.1.11 (f) except that submission to DEP for signature and for arranging the publication.

(g) Streamlined procedures and Time Frame on Land Resumption

Similar to paragraph 4.1.11(g)

4.16.12 Closure of Roads etc. and Restriction of Public or Private Rights under Section 17

(a) Authority and delegation

Similar to paragraph 4.1.12 (a) except that the power is delegated to DEP. Specimen order is shown at Appendix 3.26, which is under review by EPD. Please check with EPD for latest version.

(b) Publicity

Similar to paragraph 4.1.12 (b) except that the power and responsibility are with DEP. A specimen notice is at Appendix 3.27, which is under review by EPD. Please check with EPD for latest version.

(c) Procedure

Similar to paragraph 4.1.12 (c) except that the power and responsibility are with DEP, which is under review by EPD. Please check with EPD for latest version.

4.17 PROJECTS REQUIRING THE USE OF A COMBINATION OF

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ORDINANCES FOR LAND RESUMPTION

Some projects, for example, (a) river training projects involving the construction of ancillary roads on top of river embankments with simultaneous installation of drainage improvement works may require (i) resumption of land for the ancillary roads works invoking Cap. 370; and (ii) resumption of land for the drainage improvement works invoking Cap. 124; (b) road upgrading works with concurrent installation of trunk sewerage, etc., may require (i) resumption of land for the road upgrading works invoking Cap. 370; and (ii) resumption of land for the sewerage works under Cap. 370 as applied by s.26 of Cap. 358AL. Initiating offices and departments should prepare schematic arrangement of the proposed project and explain in detail the engineering reasons why the scheme be devised as such and be carried out within a certain time frame for advance information of the Department of Justice.

"Resumption for a public purpose" under section 2(2) of Land Resumption Ordinance (Cap. 124) and "acquisition for a public purpose" under section 2(2) of the Land Acquisition (Possessory Title) Ordinance (Cap. 130) has been expanded to include resumption/acquisition of land required for the purposes of, or incidental to, any works, or any use, proposed or to be proposed under the Road Ordinance as applied by Cap. 358AL.

In the past, a "public purpose" project requiring resumption of land for the main development (e.g. an New Development Area ("NDA") project or a public housing project) using Cap. 124 or Cap. 130 and resumption of land for the associated sewerage works using Cap. 370 as applied by Cap. 358AL will be required to delineate and apportion the areas required to be resumed under the respective ordinances. To streamline and to make the preparation work more efficient, the arrangement under section 2(2) of Cap. 124 and Cap. 130 now allows using Cap. 124 or Cap. 130 to resume the land required for the main development as well as the land required for the proposed sewerage works.

Given the above intent, the pre-requisite for adopting the aforementioned approach, if requested by the initiating offices and departments include –

(i) the land required to be resumed for the sewerage works must be associated with a main development requiring resumption of land under Cap. 124 or Cap. 130 (e.g. an NDA project or a public housing project), meaning that a project which is purely a sewerage work project is not entitled to use section 2(2) of Cap.124 or Cap.130 for resumption of land;

(ii) the land to be resumed for the proposed sewerage works must fall within the main development boundary and the land therein would be required either for the development works of the main development or the proposed sewerage works, meaning that land required for the works (or a section of it) which is external to the main development (hence cannot be used for the main development) should not be entitled to use section 2(2) or Cap.124 or Cap.130 for resumption of land; and

(iii) the land to be resumed for the proposed sewerage works does not involve creation of easements or other permanent rights (Easements) and rights of temporary occupation of land (TOA), because the creation of Easements and TOA should be made under the relevant ordinance such as Cap. 370 as applied by Cap. 358AL.

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For the avoidance of doubt, the initiating office or department is still required to gazette the proposed scheme of the works under Cap. 370 as applied by Cap. 358AL notwithstanding the land required being resumed under to Cap. 124 or Cap. 130. As and when the plan and scheme for works have been drawn up (both within the main development boundary which has been authorized for resumption and the works lying outside such boundary yet to be resumed), gazettal and objection-handling for the plan, together with resumption of land outside the main development boundary for the purpose of the proposed works, will be taken forward and ordered (if approved) under s.13 of the Road Ordinance.

For details on resuming land for the sewerage works under Cap. 358AL, please refer to the "Inter-departmental Guidelines for Land Resumption under the Statutory Gazettal and Objection-handling Mechanism Introduced under the Lands Resumption Ordinance (Cap. 124)" separately promulgated.

Except for the above and as provided in the Ordinance, Cap. 124 shall not apply to the resumption of any land to be resumed for the purposes of or incidental to the works or the use ordered under s.13 of the Road Ordinance. Any claim or determination, award of payment of compensation for the resumption of land shall follow the ordinances under which the resumption is being ordered. District Lands Officers will nevertheless need to liaise with the initiating office or department in compiling a schedule of land to be resumed. LandsD will carry out all its resumption functions other than preparing the ExCo Memorandum, which would have been required under the Cap. 124.

The project information will assist the Department of Justice to depict the predominant purpose of the project with a view to identify which Ordinance(s) are most suitable to be invoked to provide land for the project.

4.18 PROTECTION OF SEWAGE TUNNELS

A deep sewage tunnel system has been constructed under the Harbour Area Treatment Scheme (formerly known as "Strategic Sewage Disposal Scheme") – Stage 1 and Stage 2A. The alignment and profile of the sewage tunnel is shown on Map No. 1 (see Appendix 4.31 of Chapter 4) (Subsumed with amendments from ETWB TCW No. 28/2003). The sewage tunnels and associated structures have to be protected against damage which might be caused by construction works and site investigation works in the vicinity of the sewage tunnels. Details refer to Appendix 4.31 of Chapter 4.

Proposals for all construction works within 100m and all site investigation works within 50m on each side from the centerline of the sewage tunnels shall first be circulated to both DSD and GEO for agreement prior to the commencement of works. Detailed plans showing the alignment and profile of the sewage tunnels are available for inspection at the Hong Kong and Islands Division and the Mainland South Division of DSD. For public works or housing projects proposed by Works Departments or the Housing Department, it is the responsibility of the project proponent to check whether any part of the project falls within the protection areas of the sewage tunnels and if so, to forward the relevant proposals to DSD and GEO for comments/agreement.

Submissions to DSD and GEO shall include all relevant drawings together with an explanatory memorandum explaining the scope and programme of the proposed works in the sewage tunnel protection areas and any further information as may be required by DSD and

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GEO. Submission to GEO shall, in addition, include ground investigation reports together with an assessment report to assess the effects of the proposed works on the sewage tunnels.

Submissions to DSD shall be submitted to the Chief Engineer of the District Division of DSD in which the works lie. The geographical areas covered by these Divisions, designated as Hong Kong and Islands, and Mainland South Divisions, are shown on Map No. 2 (see Appendix 4.31 of Chapter 4). Submissions to GEO shall be submitted to the Chief Geotechnical Engineer of the District Division of GEO in which the works lie. The geographical areas covered by these Divisions, designated as Island, Mainland East and Mainland West Divisions, are shown on the Map No. 3 (see Appendix 4.31 of Chapter 4).

4.19 GAZETTING OF PUBLIC WORKS PROJECTS IN PARALLEL WITH THE ENVIRNMENTAL IMPACT ASSESSMENT PROCESS

In order to streamline the delivery of public works projects, ETWB TCW No. 13/2003 promulgates parallel action between the EIA process and statutory gazetting of projects. According to the existing procedures, where a project is a "designated project" under the EIAO, its gazetting under the relevant enabling ordinances, such as the Roads (Works, Use and Compensation) Ordinance, the Railways Ordinance, the Foreshore and Seabed (Reclamations) Ordinance or the Town Planning Ordinance, shall normally be made after its EIA report is approved by DEP under EIAO.

As a measure to streamline the public works procedures and bring forward the delivery of public works, the DEVB has reviewed the timing of gazetting projects in relation to the EIA process. The review showed that there would be major benefits to de-link the two processes and allow project proponents an option of gazetting a project in parallel with the EIA process thus shortening the overall pre-construction lead-time.

In the de-linked arrangement, the works director for a "designated project" under the EIAO should consider positively the option of gazetting the project as soon as there are adequate EIA findings, before the full completion of the EIA process, to enable the project layout be sufficiently determined for the purpose of gazetting.

The option of parallel gazetting must however not undermine the need to ensure that the finally adopted project scheme is in full compliance with EIAO. Where a project is gazetted but subsequent changes are found necessary as a result of the EIA, such changes should be made even if it might necessitate re-gazetting the project. Hence, in deciding whether or not to gazette a proposed project in parallel with the EIA, the works director should consider the benefits of saving time against the risk of having to make subsequent alterations and re-gazette the project should changes be necessary upon completion of the EIA.

Despite the availability of the option of parallel gazetting, the works director for a "designated project" should not seek authorization of the proposed project under the respective ordinance before the EIA report is approved by DEP or a permission has been obtained to apply directly for an environmental permit.

4.20 PROTECTION OF DEEP BAY AREA

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The Deep Bay, Mai Po Marshes and its adjacent area, including Hoo Hok Wai (collectively known as the Deep Bay Area) is recognised as a wetland of international importance. To conserve the ecological value of fish ponds, and to maintain the ecological integrity of the wetland ecosystem of the Deep Bay Area as a whole, TPB has adopted a "precautionary approach" with the principle of "no-net-loss in wetland" in both area and function when considering applications for development within the Deep Bay Area. The land use planning control is exercised through the designation of Wetland Conservation Area (WCA) for all existing continuous and adjoining active/abandoned fish pond, and the designation of Wetland Buffer Area (WBA) to protect the ecological integrity of the WCA. Planning permission from TPB would be required for developments/redevelopments within WCA and WBA.

Essential infrastructure projects within WCA needed for public purpose, such as rail, emergency vehicular access and footpath, road, drainage and flood protection, and public utility projects, for which no suitable alternative locations outside WCA could be identified, would be considered by TPB. The proposals of such projects should include a practical wetland compensation scheme for TPB's consideration. See TPB PG No. 12C for further details on developments within WCA and WBA.

4.21 PROTECTION OF DRAINAGE TUNNELS

The Hong Kong West Drainage Tunnel (HKWDT), Lai Chi Kok Drainage Tunnel (LCKDT), Tsuen Wan Drainage Tunnel (TWDT) and their associated works (hereafter abbreviated to "the Drainage Tunnels") were constructed to divert rain water from upland areas for discharge direct to the sea. The Drainage Tunnels have to be protected against damage which might be caused by construction works and site investigation works in the vicinity of the Drainage Tunnels.

Proposals for all construction works and all site investigation works within the tunnel protection zones of the Drainage Tunnels shall first be circulated to DSD for agreement prior to the commencement of works. Detailed plans showing the alignment and profile of the Drainage Tunnels are available for inspection at the Hong Kong and Islands Division and the Mainland South Division of DSD. For public works or housing projects proposed by Works Departments or the Housing Department, it is the responsibility of the project proponent to check whether any part of the project falls within the tunnel protection zones of the Drainage Tunnels and if so, to forward the relevant proposals to DSD for comments/agreement.

Submissions to DSD shall include all relevant drawings together with an explanatory memorandum explaining the scope and programme of the proposed works in the tunnel protection zones and any further information as may be required by DSD.

Submissions for works affecting HKWDT shall be submitted to the Chief Engineer of the Hong Kong and Islands Division of DSD. Submissions for works affecting LCKDT and TWDT shall be submitted to the Chief Engineer of the Mainland South Division of DSD.

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5. MANAGEMENT OF SITES

5.1 CONTRACT DOCUMENTS

If the site is to be handed over to a contractor for a certain period for construction work, the following points should be noted in the preparation of contract documents:

(a) The exact location, boundary and ingress/egress point(s) of the site, works areas and borrow areas should be shown clearly on the contract drawings.

(b) The Period for which each part of the site and works area, if any, will be made available to the contractor should be clearly stated in the contract documents.

(Note: Only part of the works area may be needed for the contract during the maintenance period).

(c) There should be stipulations in the contract requiring the contractor to keep all areas under his control clean, clear of illegal occupation and free from contamination. The need for fencing, hoarding, guarding etc. should be considered and suitable provisions made in the contract documents. Where appropriate, the contract should require the contractor to confine his temporary site accommodation to one or two defined areas to assist recognition of illegal structures by DLO.

(d) Any special condition of land allocation requiring the contractor's compliance should also be included in the contract.

(e) The programme for taking back the land should be checked and clearly stated in the contract documents to ensure consistency with the Government's obligations in the subsequent handover of land to other parties, if any.

Particular attention should be paid to the above issues in mega-size projects or projects that involve interfacing with organizations outside the Government.

5.2 SETTING-OUT AND TAKING POSSESSION

For those sites which are acquired through land allocation, the setting-out of site boundary should be carried out by DSO. If it is to be done by DSO, the project office should make the request in writing at least 30 days in advance. DSO will in turn inform the project office when setting-out will be carried out so that the project office may arrange inspection and necessary protection of survey marks on site. Where the setting out is to be done by the project office in urgent cases, it should be in accordance with the allocation plan produced by DSO from the proposal plan after it has been approved by the DLO.

For other sites which are acquired through resumption and clearance, setting-out of the boundary of the site should be carried out by the project office. In case of land disputes arising from the exact location of the site boundary, DSO may be requested to set out the portion concerned of the resumption limit.

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The site and any relevant works/borrow areas should be handed over to the contractor on dates in compliance with contract requirements. Whenever possible, the project office should arrange to take over a site from DLO or the existing occupier via DLO on the same date as handing over the site to the contractor so that continuous control may be exercised to prevent illegal occupation or dumping. Handing over and taking possession of sites should be formally recorded in writing.

5.3 MANAGEMENT DURING CONSTRUCTION

At the commencement of a contract, the project office should send to DLO and District Squatter Control Office plans showing all areas allocated to the contractor with a statement of the period for which the areas are allocated.

The project office should constantly monitor the conditions of the site, e.g. monitoring of the water quality at marine borrow areas, and ensure that the Contractor fulfils his contractual responsibility to keep all areas under his control clean and clear of illegal occupation and dumping, provide safe working conditions, and locate temporary structures within specified/agreed areas etc. Where the site is not a well defined area, e.g. in a maintenance contract, the project office should, if necessary, issue a "Consent to Erect Temporary Structures on Works Site" form (see Appendix 7.1 of Chapter 7) for temporary structures required by the contractor. When selecting locations for such temporary structures, DLO must be consulted.

DLO may grant right of way for pedestrian/vehicular access through the site to others. The project office should ensure the Contractor to coordinate and to provide and maintain safe and unobstructed access for the authoritied parties.

There are situations where the contractor may find it impossible to prevent illegal occupation or to expel squatters. The project office should, as soon as any illegal occupation takes place, seek the assistance of DLO, the Police and the Clearance Unit of Acquisition Section in LandsD to evict illegal squatters and clear illegal structures etc. Means of preventing recurrence of illegal occupation should also be devised in consultation with DLO, the Police, DO and the Clearance Unit of Acquisition Section in LandsD as appropriate.

For mega-size projects or projects that involve interfacing with organizations outside the Government, once the need for handover of land to other parties is identified in the planning or design stage, a monitoring table for handover of land (an example of the monitoring table is given at Appendix 3.28) shall be kept in the relevant project handbook and updated every six months until completion of the handover of land. The co-ordination work concerned for these projects should be closely monitored by a D1 officer, or a D2 officer for cases with major implications involving an organization outside the Government.

5.4 PROCEDURES ON COMPLETION OF WORKS

5.4.1 Handing-over of Site

Prior to the contractor vacating the whole or any part of the site, works area or borrow area, the project office should arrange for a joint inspection with the party which is going to take over the site etc. for any necessary survey work to define areas concerned and to fix a date for formal handing-over.

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To ensure continuous control, the area being vacated should be formally handed over to the appropriate party, as described below:

(a) For completed projects, the site should be handed over to the end-user/ operation/control/maintenance department unless different arrangements exist and agreed by the client department. Where alteration, improvement or construction works to slopes or retaining walls are involved, the project office should provide the necessary stability assessment reports and maintenance manuals as stipulated in the "Guide to Slope Maintenance" (Geoguide 5) published by GEO and the GEO checking certificate to the department to be responsible for maintenance of the slopes. Where amenity areas are involved, the subsequent management and maintenance responsibilities should be discussed and agreed amongst the client department, LandsD and the department to be responsible for maintenance (which may be LCSD/FHD, DO, AFCD or LandsD) (See paragraph 3.4.5).

(b) For cases with immediate further works to be carried out under the same project, the site should be handed over to the follow-up contractor.

(c) For cases with immediate further works to be carried out under another project, the site should be handed over to the follow-up contractor through the relevant project office, which should already have taken necessary action in accordance with the procedures set out in this chapter.

(d) For all other cases, the site should be handed over to DLO, which will keep the area clear of illegal occupation and dumping.

In cases (a), (b) and (c) above, the project office must inform DLO and the District Squatter Control Office of the arrangement made and, at the time of handing over, remind the department/office taking over the area of its responsibility to prevent illegal occupation and dumping. It should be noted that on completion of the works, land surplus to the requirements of the project office/client department should be taken over by DLO.

As advised by LandsD, it is essential that at least 3 months' notice of an imminent handover is given to DLO where any part of the site, works area, borrow area, etc. is to be handed over to DLO. This may need to be more than 3 months depending on the size of the works project and the amount of land involved. For Case (b), DLO need not be involved if the site is still under the custody of the project office. For Case (c), DLO should be invited to attend the handover meeting and the project office taking over the site (even though it may be the same office) should sign the site acceptance certificate. For sites granted under the Simplified Temporary Land Allocation procedures, the handover arrangement as outlined in (a) to (d) above should be followed. It should be noted that where the work site is to be occupied by a permanent building with an identified end user, the end user department should obtain a separate permanent land allocation from LandsD before the handover.

5.4.2 As-constructed Plans

The project office should forward 2 copies of as-built plans showing the layout and the location of the completed works to each of the following:

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(a) The District Planning Office; and
(b) The Client Department.

The project office should also forward all as-built plans in graphical or digital form to the Survey and Mapping Office of LandsD for the updating the centralized land survey and mapping information. The project office should ensure its consultants to do the same.

See also Chapter 7 about provision of as-constructed plans to the office responsible for subsequent maintenance of works.

5.4.3 Collation of Survey, Mapping and Geospatial Data

For enhancing the effectiveness of Geospatial Data sharing with the Survey and Mapping Office (SMO) of Lands Department (LandsD), Works Departments should follow the following requirements and arrangement for collation of survey, mapping and geospatial data from capital works projects.

The requirements and arrangement will take effect on 24 August 2024. For capital works projects tendered or commenced before the effective date, Works Departments are encouraged to follow the new requirements as far as practicable.

Works Departments should also make reference to DEVB TC(W) No. 1/2025 Amd No. 1/2025 "Adoption of Building Information Modelling for Works Projects in Hong Kong" or their latest versions in data sharing.

During the course of delivering capital works projects, Geospatial Data generated at different stages will be useful for the updating work of digital map of SMO. If such data can be collated timely and in the suitable format, it will greatly enhance the efficiency of the digital map updating work.

Class of Geospatial Data

Geospatial Data from capital works projects ("Geospatial Data") covers the following classes of data -

(a) Geographic Information System (GIS) data;
(b) Building Information Modelling (BIM) model;
(c) drawing in Computer-Aided Drafting (CAD) format; and
(d) associated georeferenced photo image and point cloud data collected from land based or airborne platforms (e.g. vehicle mobile mapping system, unmanned aerial vehicle, etc.), and models so derived.

For the avoidance of doubt, geospatial data includes topographic features (e.g. slope) and infrastructures above and below ground.

Requirements and Arrangement of Geospatial Data Submission

Works Departments shall submit geospatial data of approved design and as-built surveys to SMO according to the format and requirements as set out in Appendix 3.30. SMO will oversee the submission process and carry out compliance checking. The general workflow is illustrated at Appendix 3.31.

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For works entrusted to organisations outside the Government (e.g. Housing Authority, Hospital Authority, Airport Authority, MTR Corporation Limited, private developers, etc.), subvented capital works projects and works undertaken by private parties to be handed over to the Government for maintenance, Works Departments shall encourage these organisations to follow the requirements in this Chapter to submit Geospatial Data.

Should there be genuine difficulties in compliance with the new requirements, Works Departments may obtain approval for exemption from the D2 or above Officers and the justifications should be properly documented. SMO should be duly informed of any such exemption.

Works Departments should incorporate the Geospatial Data sharing requirements as set out in Appendix 3.32 into consultancy brief or works contract.

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6. OTHER ORDINANCES RELATING TO CONTROL OF LAND

Note: The following sections contain relevant abstracts of ordinances relating to the control or use of land necessary to execution of works. These only serve as a brief summary of the relevant contents of the ordinances and should NOT be treated as legal interpretations of the ordinances concerned. Reference should be made to the full contents of the ordinances where there are any doubts about their application and, if necessary, advice should be sought from the Secretary for Justice (S for J).

6.1 ROAD TRAFFIC ORDINANCE, CHAPTER 374

Under the Road Traffic Ordinance the definition of "Road" is similar to, though not the same as, that of street and road given in the Interpretation and General Clauses Ordinance.

"Road" includes every highway, thoroughfare, street, lane, alley, court, square, car park, passage, path, way and place to which the public have access either continuously or intermittently, whether or not the same is the property of the Government, and includes the carriageway of the North-west Railway, but does not include any private road, or any part of the carriageway of the North-west Railway designated by the Commissioner for Transport (C for T) for the purposes of this definition by notice in the Gazette.

6.1.1 Abstracts of Relevant Regulations

Road Traffic (Traffic Control) Regulations:

Regulation 27 authorizes C for T to close roads and requires C for T to publish the notice of closing the road in the Gazette or in newspapers.

Regulation 28 authorizes C for T and C of P to close roads temporarily without publication of a notice for any period not exceeding 72 hours.

6.1.2 Delegation of Power

C for T has authorized D of Hy and DCED to act on his behalf in all matters arising from Regulation 27. C for T has also authorized D of Hy, DD of Hy, RHEs, CHEs of HyD, and DCED, DDCED, PMs, DPMs, ADs, CEs, H(GEO), DHs(CEO), DHs(GEO) of CEDD to act on his behalf in all matters arising from Regulation 28.

6.1.3 Procedure for Road Closure under Road Traffic Ordinance, Chapter 374

TD would like to have advance notice of at least 14 working days of all road closures. The following procedures should be followed:

(a) Full closure (permanent or temporary)

The relevant office should:

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(i) Agree alternative routings and diversions with the respective Regional Traffic Engineering (TE) Division of TD and the Deputy Director of Traffic, HKPF (CP(DD/T)).

(ii) Arrange suspension of parking in liaison with the respective Transport Operations (TO) Division of TD.

(iii) Arrange with the relevant TE Division of TD for alterations to road markings, traffic signs, traffic signals and other traffic aids. The TE Divisions will liaise with EMSD for alterations to traffic signals and will issue the necessary written confirmation for the works to be carried out.

(iv) Request the relevant TO Division of TD to arrange for any re-routing and the re-siting or suspension of stops with the bus, tram and PLB (scheduled service) operators.

(v) Request the relevant TO Division of TD to prepare and issue the necessary gazetting or press release.

(b) Permanent or temporary alterations or temporary partial closure

The relevant office should:

(i) Take action as in paragraph 6.1.3(a) above;

(ii) If re-routing of traffic is required, request the relevant TO Division of TD to prepare and issue a Traffic Advisory Note; and

(iii) If no re-routing of traffic is required, but if significant inconvenience will be caused to the public, request TO Division of TD to prepare and issue a Traffic Advisory Note.

(c) Emergency Works

Roads may be closed by C of P or C for T (see paragraph 6.1.2) for 72 hours without giving notice. If closure is required in excess of 72 hours, the relevant office should take action as in paragraph 6.1.3(a) above.

(d) The above procedures for road closures should be followed during the construction stage even if the project has been gazetted under the Roads (Works, Use and Compensation) Ordinance in the planning and design stage.

6.2 NOISE CONTROL ORDINANCE, CHAPTER 400

6.2.1 Abstracts of Relevant Sections

Section 3 Appoints a Noise Control Authority (i.e. Director of Environmental Protection).

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Section 4 Prohibits any person from making a noise between the hours of 11 p.m. and 7 a.m. or on any general holiday (including Sunday) likely to cause annoyance to others.

Section 6 Prohibits any person from using any powered mechanical equipment for the purpose of carrying out any construction work between the hours of 7 p.m. and 7 a.m. or on any general holiday (including Sunday) unless a valid construction noise permit is in force. Also prohibits any person from carrying out percussive piling between the hours of 7 p.m. and 7 a.m.

Section 8 Enables the Noise Control Authority to issue and cancel construction noise permits. See Chapter 7, See paragraphs12.1.2 to 12.1.4 for further details.

Section 9 Specifies Secretary for the Environment to issue Technical Memoranda setting out principles, procedures, guidelines, standards and limits that should generally be adopted by the Noise Control Authority for:

(a) the prediction, measurement and assessment of noise emanating from a construction site;

(b) the issuing of construction noise permits;

(c) the imposition and variation of conditions in relation to construction noise permits; and

(d) the determination of whether or not the conditions of a construction noise permit are being complied with

Section 35 Enables the Chief Executive in Council to exempt any area, place, premises or activity from all or any of the provisions of the Ordinance.

6.3 TOWN PLANNING ORDINANCE, CHAPTER 131

6.3.1 Abstracts of Relevant Sections

Section 2 Appoints a Town Planning Board.

Section 3 Specifies the Board to undertake the systematic preparation of draft plans and draft development permission area plans.

Section 4(1) Specifies the content of draft plans showing or making provision for:

(a) streets, railways and other main communications;

(b) zones or districts set apart for use for residential, commercial, industrial or other specified uses;

(c) reserves for the Government of the HKSAR, institution or community purposes;

(d) parks, recreation grounds and similar open spaces;

(e) zones or districts set apart for undetermined uses;

(f) comprehensive development plans;

(g) country parks, coastal protection areas, sites of special scientific interest, green belts or other specified uses that promote conservation or protection of the environment,

(h) zones or districts set apart for use for village type development, agriculture or other specified rural uses, and

(i) zones or districts set apart for use for open storage.

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Section 4(2) Section 4(3)	Specifies the way the Board may act in resumption and compensation.
Section 5	Specifies that the draft plan which is deemed suitable for publication, shall be exhibited for public inspection for a period of two months.
Section 6 and 6A to 6H	Specifies that any person may make representation to the Board within the specified period of two months, and the Board shall publish all representations for three weeks for public comments. The Board will then hear the representations and comments and decide whether to propose amendments to meet the representations. Any proposed amendment will be published for three weeks for further representations. The Board will hear any adverse further representation and decide whether to make any amendments to the draft plan.
Section 7	Specifies that the Board may make amendments to the draft plan before its approval by the CE in C and any amendments made shall be exhibited for public inspection for a period of two months.
Section 8	Specifies that the Board, after consideration of all representations/further representations, shall submit the draft plan, with or without amendments, to the Chief Executive in Council for approval.
Section 9	Specifies the powers of the Chief Executive in Council upon the Board's submission.
Section 10	Specifies that the refusal to approve a draft plan shall be notified in the Gazette.
Section 11	Specifies that the approved plan, certified by the Chairman of the Board, shall be deposited in the Land Registry and shall be available for inspection without payment of any fee.
Section 12	Specifies the Chief Executive in Council's power in revocation, replacement and amendment of approved plans
Section 12A	Specifies that any person may make an application to the Board for amendment of an approved plan and be heard by the Board. If the Board accepts the application in whole or in part, the accepted amendments will be incorporated into a draft plan for exhibition for public inspection under section 5 or 7.
Section 13A	Specifies any works or use authorized under the Roads (Works, Use and Compensation) Ordinance or any scheme authorized under the Railways Ordinance shall be deemed to be approved under the Town Planning Ordinance.
Section 16	Authorizes the Board to grant permission for certain uses in different land use zones with or without conditions on application to the Board.
Section 16A	Specifies that there is no need to apply for Class A amendments to a planning permission and an application may be submitted by the original applicant for Class B amendments. Both Class A and Class B amendments are specified by the Board by notice in the Gazette.
Section 17	Specifies the right of review of and appeal against the Town Planning Board's decision on planning applications.
Section 20	Authorizes the Board to designate development permission area.
Section 21	Specifies that no person shall undertake or continue development in the development permission area unless: (a) the development is an existing use; (b) the development is permitted under the plan of the development permission area; or (c) permission to do so has been granted under Section 16.

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Section 23 Specifies the enforcement on land use control within the development permission area.

Section 26 Authorizes the Director of Planning to designate and prepare plans for interim development permission areas.

6.4 LAND (MISCELLANEOUS PROVISIONS) ORDINANCE, CHAPTER 28

6.4.1 Abstracts of Relevant Sections

Section 2A Define the scope of application of the Ordinance to the Government. This Section makes Part III of the Ordinance binding on government in so far as excavations on 'streets' maintained by D of Hy is concerned, but provide for a reporting mechanism in case of contravention by public officers instead of imposing criminal liability on government.

Section 4 Unleased land shall not be occupied except under a licence or a deed or memorandum of appropriation.

Section 5 The authority may, on payment of the appropriate prescribed fee, issue a licence to occupy unleased land.

Section 6 Persons unlawfully occupying land of the Government of the HKSAR may be removed and the authority may take possession of any property or structure on the land.

Section 7 No person shall remove earth, turf or stone from unleased land except with a removal permit.

Section 9 Seeks to restrict the application of certain sections – some only to 'streets' maintained by D of Hy, and some to unleased lands controlled by LandsD.

Section 10 Covers mainly:

(a) Imposing a fine of level 5 for excavating without a permit and contravening permit conditions. Illegal excavation will in addition be subject to imprisonment;

(b) Defining the respective liability of the permittee and nominated permittee about abiding permit conditions;

(c) Exempt from obtaining excavation permit under certain circumstances including if control can be effected through other land documents. No exemption is however available for 'streets' excavation.

Section 10A Mainly provides for:

(a) The collection of fees and economic cost on issue of an excavation permit (the level of fees and economic cost is dealt with by the amended Regulations).

(b) Granting an automatic extension in case the permittee cannot exercise his right to excavate under a permit due to some unforeseeable circumstances. It further refines this point by distinguishing cases between excavations on 'streets' and 'non-streets'. For the case of 'non-streets', the permittee can get an automatic extension for not able to start an excavation and continue an excavation but for 'streets', only the case of not able to start is allowed. For not able to continue in case of street excavation, it is handled by section 10L.

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Section 10B — Mainly provides for exempting minor works on a case-by-case basis on LandsD's unleased land from having to obtain an excavation permit. This is proposed by LandsD, in recognition of their existing practice. This provision is not available for 'streets' excavation so that every 'streets' excavation will have to be scrutinized and coordinated by HyD.

Section 10C and 10D — Mainly provides for the issue of emergency excavation permits. This is to and 10D cover an existing practice and is applicable to 'streets' only. Basically, for major UU's, HyD issue them with an emergency excavation permit which is valid for period of 6 months, free of charge. For each emergency incident, the UU can work for 7 days after reporting the incident to the Authority without having to apply for an excavation permit. However, to ensure fairness and to avoid abuse of the emergency permit system, they still have to pay for the equivalent permit fees as it an excavation permit is issued. If the works lasts for more than 7 days, an excavation permit will have to be applied for.

Section 10E — Allow the Authority to refuse issuing permits to persons unlikely to be able to supervise or complete an excavation properly. The Authority may refuse issuing a permit if the application is unreasonable or inappropriate for the circumstances (such as asking for a permit which covers the whole of Kowloon or during some festival), or where the area is a newly constructed street. HyD is also allowed under this section to refuse issuing a permit if it is not submitted before a minimum processing time.

Section 10F — To deal with cases that sometimes excavation promoters may not be able to foresee when will an extension to a permit be required until very late, and the minimum processing time specified by HyD may not be satisfied and they would be left in the middle of an excavation without an excavation permit. To resolve this, applicants are allowed to submit their applications for extension with the corresponding fees in such circumstances, and their permits are deemed to have been extended even if the Authority cannot issue the extension fast enough. Furthermore, if the Authority does not grant the extension in full, then the appropriate amount of fees will be refunded.

Section 10G, H, I and J — For setting up the administrative mechanism for nominating the contractor by the permittee to be the nominated permittee. The permit will be issued to the permittee who will be held responsible for overall control but the permittee may transfer some of the responsibilities to his/her contractor by the nomination process. The basic principles of the nomination system are that:

(a) the contractor is required to show his willingness to be nominated, and to comply with the permit conditions;

(b) the nomination must have the Authority's approval;

(c) the Authority may withdraw the approval of a nomination if the contractor performs badly.

Section 10K — Provides the Authority with power to terminate a permit where there is a breach of permit conditions (not normally exercised).

Section 10L — Provides for situations under which fees and economic cost may be considered for refund. The decision is subject to a review and appeal mechanism.

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Section 10M	Provides for review of assessment of initial permit periods (i.e. the period during which no economic cost is charged: and whether economic cost for subsequent extension (if any) is refundable. The review is initially by the 'Chief Engineer', and then by a Review Board chaired by D of Hy.
Section 10N, 10O and 10P	Deal with the Review Board formed by SDEV to review assessments made by the Chief Engineer, and the Review Panel appointed by SDEV to serve as members of the Review Board.
Section 10Q	Provides for recovery of cost from the permittee by the Authority in case he fails to make good the land.
Section 10R	Caters for the additional situation particular to LandsD's unleased lands where the excavation is authorized under some land document for which no excavation permit is necessary.
Section 10S	The authority has power to carry out reinstatement of excavation on behalf of the permittee and to cover costs if the permittee fails to make good the land before the expiry of the permit or as required by any conditions of the permit.
Section 10T	Requires the permittee to adopt necessary safety precautions to protect the public and to provide adequate support to structures near the excavation. The penalty is a fine of $200,000. It also provides for certain non-exclusive statutory defences.
Section 10U	Empowers D of Hy, by notice published in the Gazette, to designate any streets or part of a street as a strategic street, a sensitive street or a remaining street for the purpose of charging economic cost.
Section 14	The authority may declare a private street, or such part thereof, to be a public street by way of Gazette Notice if the Government lease contains a provision that the lessee shall, when required, hand back any private street to the Government of the HKSAR with no compensation.
Section 16C	To enable records from the Authority's computer system be admitted as evidence without having first to prove their authenticity.

6.4.2 Delegation of Power

D of Hy has authorized DDHy, PMs PGEs, ADs, and RHEs of HyD to carry out his functions under Sections 2A(3) in respect of streets (including slopes) maintained by HyD.

D of Hy has authorized RHEs, CHEs*, CEs*, SEs*, Es* and CTOs* of HyD to carry out his functions under Sections 10(8), 10A, 10C, 10D, 10E, 10F, 10H, 10I, 10J, 10L, 10M(17), 10Q, 10S and 16C in respect of streets (including slopes) maintained by HyD. (* Only officers who are responsible for the processing of excavation permits and enforcement actions.)

D of L has authorized D of Hy, DDHy, PMs, PGEs, DPMs, ADs, GEs, RHEs, CHEs, CEs, SEs and SLAs of HyD, D of DS, DD, ADs, CEs and SEs of DSD, ADs, CGEs, DPM and CEs of CEDD, DWS, DD, ADs, CEs and SEs of WSD and certain officers of AFCD, ArchSD, EMSD, HAD, HD and LCSD to carry out his functions under section 10B in respect of areas of their contracts.

D of L has authorized D of DS, DD, ADs, CEs and SEs to issue excavation permit under Section 10A (including 10A(1), 10A(3) and 10A(4) and to carry out functions under Sections 10B, 10E(1), 10E(3), 10K(1), 10Q(2), 10Q(3) and 10S in respect of areas of Drainage Services Department contracts.

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D of L has authorized CEs, SEs and Es of Fill Management Division, CEDD, under Section 5 to sign and issue licences to occupy unleased land in Hong Kong by dumping, and to sign and issue duplicate licences for the same purpose under Regulation 4 of the Ordinance.

D of L has authorized DCED, PMs, DPMs, CEs, SEs and Es of CEDD, to sign and issue licences to occupy unleased land in the New Towns and other development areas of the New Territories under the jurisdiction of CEDD by dumping, and to sign and issue duplicate licences for the same purpose under Regulation 4 of the same Ordinance.

6.4.3 Excavation Works

The Land (Miscellaneous Provisions) Ordinance (Cap. 28), as amended by the Land (Miscellaneous Provisions)(Amendment) Ordinance (2003), commences on 1.4.2004.

Under the amended Ordinance, a person shall not make or maintain any excavation in unleased land unless:

- He is the holder of an excavation permit (XP); or
- He is the contractor of the holder of an XP; and
- He makes and maintains the excavation in accordance with the permit.

An applicant is required to pay the prescribed fees before an XP or an extension of an XP is issued.

XPs and emergency excavation permits (EXP) are issued with permit conditions for controlling the performance and standard of excavation works.

The permittee is responsible for complying with the permit conditions. The permittee may nominate his contractor to become the nominated permittee, subject to the consent of the contractor and the approval by the Authority. The nominated permittee becomes responsible for complying with some of the permit conditions otherwise to be complied with by the permittee.

Director of Highways (DHy) is the Authority for issuing XPs in streets maintained by Highways Department (HyD) and Director of Lands is the Authority for issuing XPs in unleased land other than streets.

For excavation works in association with government projects in unleased land other than streets, the Director of Lands (or his delegates) may exempt the works from having to obtain XPs –

(i) if the works fall within the category under Section 10B(2);

(ii) by allocating the site, if appropriate, to departments by way of simplified temporary land allocation under Section 10.

The Excavation Permit Processing Manual of HyD and the LAO TC Nos. 737 and 737A of LandsD provide guidance on and procedures for application and administration of XP in relation to excavation works in streets maintained by HyD and in unleased land other than streets controlled by LandsD.

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6.5 SAND ORDINANCE, CHAPTER 147

6.5.1 Abstracts of Relevant Sections

Section 2	Requires a removal permit from DCED for the removal of sand from unleased land, foreshore or sea bed, of the Government of the HKSAR.
Section 3	Requires a permit from DCED for the importation or transportation of sand in excess of 100 kg.

6.5.2 Delegation of Powers

DCED has delegated to CE/FM, SEs and Es of the Fill Management Division of CEO:

(a) to sign and issue removal permits, or sale and removal permits, applicable to sand, from unleased land, foreshore or sea-bed of the Government of the HKSAR; and

(b) to sign and issue permits for the importation or transportation of sand in excess of 100 kg.

DCED has also delegated to DLOs and SLEs of LandsD to sign and issue removal permits, or sale and removal permits, applicable to sand, for local village purposes or community work.

6.6 HOUSING ORDINANCE, CHAPTER 283

6.6.1 Abstracts of relevant sections

Section 4(2)(g)	Authorizes the Housing Authority to develop land and to lay out streets and open spaces for the purpose of providing housing or in connection therewith.
Section 25A	Permits the Housing Authority, with the approval of C for T and D of Hy, to designate restricted roads in housing estates. It also specifies the powers vested in the Housing Authority on these restricted roads.

6.7 WASTE DISPOSAL ORDINANCE, CHAPTER 354

The Waste Disposal Ordinance defines the following:

"waste" means any substance or article which is abandoned and includes animals waste, chemical waste, household waste, livestock waste, street waste and trade waste, and

"waste disposal authority" means the Director of Environmental Protection.

Section 3 of the Ordinance states that the Secretary for the Environment, after consultation with the Advisory Council on the Environment, shall draft plans showing the arrangements made, or proposed to be made, for the collection and disposal of waste, and the existing and proposed waste disposal sites, and the methods of waste disposal used, or to be used, at each site. Such draft waste disposal plans shall be published in the Government of the HKSAR Gazette and shall be subject to the approval of the Chief Executive in Council.

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When projects affect or involve encroachment into waste disposal sites, EPD should be consulted.

6.8 LAND ACQUISITION (POSSESSORY TITLE) ORDINANCE (CAP. 130)

Section 3(1) - Whenever the Chief Executive in Council decides that the acquisition of any land is required for a public purpose, the Director may make an acquisition order for the acquisition of it under this Ordinance if it appears to the Director that any person claims, or may claim, that the land is held under a possessory title.

6.9 PUBLIC HEALTH AND MUNICIPAL SERVICES ORDINANCE (CAP. 132)

Section 118(4) - This section enables the Authority (Director of Food and Environmental Hygiene) to remove any human remains buried outside a cemetery and to deposit such remains inside a cemetery or otherwise disposed of in such decent manner as the Authority may think fit, provided that the consent of the Secretary for Home Affairs shall be obtained before such remains are removed.

6.10 PROTECTION OF THE HARBOUR ORDINANCE (PHO)

The Government is committed to protecting and preserving the harbour and enhancing it for public enjoyment.

Section 3 of the PHO provides that:

(a) "The harbour is to be protected and preserved as a special public asset and a natural heritage of Hong Kong people, and for that purpose there shall be a presumption against reclamation in the harbour." [section 3(1)]

(b) "All public officers and public bodies shall have regard to the principle stated in subsection (1) for guidance in the exercise of any powers vested in them." [section 3(2)]

Section 3(1) of the PHO establishes a statutory principle recognizing the harbour as a special public asset and a natural heritage of Hong Kong people and prescribing it to be protected and preserved.

Section 3(2) imposes a special legal duty on public officers and public bodies to abide by the legal principle and stated in section 3(1) in the exercise of any powers vested in them. The legal burden to rebut the presumption is a heavy one. To overcome the presumption, all public officers and public bodies must follow the principles prescribed in the PHO and the Court of Final Appeal judgment conscientiously and decide whether it is complied with before coming to a decision.

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7. REFERENCES

LWBTC No. 26/85	Provision of Land for Government Projects or use
WBTC No. 13/97	Revised Administrative Arrangements for Reclamation Works (PELBTC No. 3/97)
WBTC No. 13/97A	Revised Administrative Arrangements for Reclamation Works
WBTC No. 12/2000	Fill Management
WBTC No. 9/2001	Procedures for Gazetting under the Foreshore and Sea-bed (Reclamations) Ordinance (Chapter 127)
WBTC No. 9/2001A	Procedures for Gazetting under the Foreshore and Sea-bed (Reclamations) Ordinance (Chapter 127)
ETWB TCW No. 13/2003	Guidelines and Procedures for Environmental Impact Assessment of Government Projects and Proposals
ETWB TCW No. 27/2003	Land Acquisition Prioritization Exercise
ETWB TCW No. 28/2003	Protection of Harbour Area Treatment Scheme Stage I Sewage Tunnels
ETWB TCW No. 4/2006	Delivery of Capital Works Projects
DEVB TCW No. 9/2011	Enhanced Control Measures for Management of Public Fill
DEVB TCW No. 2/2012	Allocation of Space for Quality Greening on Roads
DEVB TCW No. 3/2012	Site Coverage of Greenery for Government Building Projects
DEVB TCW No. 6/2015	Maintenance of Vegetation and Hard Landscape Features
DEVB TCW No. 2/2024 Amd No. 6/2025	Rock Cavern Development
DEVB TCW No. 1/2019	Railway Protection
DEVB TCW No. 4/2020	Tree Preservation
DEVB TCW No. 5/2020	Registration and Preservation of Old and Valuable Trees
DEVB TCW No. 1/2022	Heritage Impact Assessment Mechanism for Capital Works Projects
HPLB GC No. 1/2004	Site Search
HyD TC No. 3/2015	Administrative Protection for Proposed Railway Routes
LAO TC No. 715	Streamlined Procedures and Time Frame on Land Resumption and Clearance for Public Works Projects in the New Territories
LAO TC No. 737	Excavation in unleased land other than streets under Land (Miscellaneous Provisions) (Amendment) Ordinance 2003 (LMPAO)
LAO TC No. 737A	Excavation in unleased land other than streets under Land (Miscellaneous Provisions) Ordinance (Cap. 28)
TLB TC No. 1/2023	Roads (Works, Use and Compensation) Ordinance (Chapter 370)

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SDEV's memo dated 7.8.2018	Communication and Announcement Mechanism on Public Works within Railway Protection Area
SDEV's memo dated 1.9.2023	Inter-departmental Guidelines for Land Resumption under the Lands Resumption Ordinance (Cap. 124)
SETW's memo ref. (8) in ETWB(CR)(W) 65/39 Pt. 7 dated 30.4.2003	Foreshore, Sea-bed and Roads (Amendment) Bill 2003 - Updated Situation and Follow-up Action
SETW's memo ref. () in ETWB(CR)(W) 65/39 Pt. 7 dated 22.5.2003	Foreshore, Sea-bed and Roads (Amendment) Bill 2003 - Notification of Public Works Projects under statutory gazettal on ETWB's web site
STH's memo ref. () in THB(T) L5/1/1 dated 14.11.2016	Roads (Works, Use and Compensation) Ordinance (Chapter 370) - Uploading of Gazettal Documents to the TLB Website
HyD's memo ref. (OU70) in HMW 731TH/4/1 dated 13.9.2004	-
LandsD's memo ref. (3) in LD TI 10/04/03 dated 16.6.2004	Provision of land for works areas
GEO Geoguide 5	Guide to Slope Maintenance
EPD Procedural Guidelines No. 01/16	Roads (Works, Use and Compensation) Ordinance (Chapter 370) as applied by section 26 of WPC (Sewerage) Regulation (Chapter 358)
TPB PG No. 12C	Town Planning Board Guidelines for Application for Developments within Deep Bay Area under Section 16 of the Town Planning Ordinance
DSD Technical Notes for Guidance in Assessing the Effects of Civil Engineering Works/Construction Developments on the Hong Kong West Drainage Tunnel, Lai Chi Kok Drainage Tunnel, Tsuen Wan Drainage Tunnel and their Associated Works	
EPD Guidance Note for Contaminated Land Assessment and Remediation	https://www.epd.gov.hk/epd/sites/default/files/epd/english/environmentinhk/waste/guide_ref/files/GN_for_land_contamination_e.pdf
EPD Practice Guide for Investigation and Remediation of Contaminated Land	https://www.epd.gov.hk/epd/sites/default/files/epd/gn_pdf/GN2014P244-2011c-e.pdf

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PlanD HKPSG Chp 12 Section 2 - Rock Cavern Development	https://www.pland.gov.hk/file/tech_doc/hkpsg/full/pdf/ch12.pdf Amd No. 6/2025
PlanD HKPSG Chp 12 Section 7 - Use of Land Beneath Flyovers and Footbridges	https://www.pland.gov.hk/file/tech_doc/hkpsg/full/pdf/ch12.pdf Amd No. 6/2025
WSD Civil Engineering Design Manual Volumes I and II	-

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APPENDICES

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APPENDIX 3.1 ADVANCE CLEARANCE APPLICATION FORM FOR ADVANCING PRE-CLEARANCE SURVEY

RESTRICTED

M E M O

From Project Office/Works Department	*To* DLO( )or relevant office / section of Lands Department
Ref. _____ *in* _____	*(Attn.:* _____ *)*
Tel. No. _____	*Your Ref.* _____ *in* _____
Fax. No. _____	*dated* _____ *Fax. No.* _____
Date _____	*Total Pages* _____

Note: To prevent leakage of information in connection with land resumption and/or clearance which might lead to fraudulent claims for compensation or ex-gratia allowances or rehousing, access to the information relating to acquisition projects should be confined on a need-to-know basis (particularly the information showing the land resumption/clearance boundary, DC consultation dates, and the plan and scheme gazette / survey dates of the projects).

Project Title : _____

_____

Annex A Attached herewith is an Advance Clearance Application Form (Advance CAF) for the above together with the draft Land Requirement Plan(s).

Annex B Please advise Advance CAF status and further action on the attached return memo.

(_____)
Post Title
Project Office/Works Department

c.c. Manager/Clearance(##), Clearance Unit, Lands Department (LandsD) [with draft Land Requirement Plan(s)]
DO (.....)

*Delete whichever not applicable
#According to Chapter 3 paragraph 3.5.2 of the Project Administration Handbook for Civil Engineering Works issued by CEDD, for normal clearance, the application submitted by the project office should be signed by an officer of D1 rank, and for clearance to be treated as urgent, by an officer of D2 rank.
##Insert appropriate office of Clearance Unit of LandsD

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Annex A

RESTRICTED

ADVANCE CLEARANCE APPLICATION FORM

Note 1: To prevent leakage of information in connection with land resumption and/or clearance which might lead to fraudulent claims for compensation or ex-gratia allowances or rehousing, access to the information relating to acquisition projects should be confined on a need-to-know basis (particularly the information showing the land resumption/clearance boundary, DC consultation dates, and the plan and scheme gazette / survey dates of the projects).

Note 2: The Advance CAF should be accompanied with seven copies of draft land requirement plan(s) showing the outer clearance boundary of all land affected by the development together with standard covering memo.

Part I

To be completed by project office / works department requiring clearance to be carried out

Project Title : _____

_____

1. Proposed outer clearance boundary of all land affected by the development (including site formation works, construction of supporting facilities/infrastructures, road works, sewerage works, etc.) is shown on the draft Land Requirement Plan(s)* No.....(*on attached list) *Mr./Miss/Ms.....of..... (Tel. .....) will be able to give further information or discuss boundary adjustments.

2. *(a) This project is item ..... in Category ..... of the Public Works Programme.

   *(b) Application for upgrading to Category ..... will be made on ..... and you will be informed when this is approved.

   *(c) This project is to be carried out under the Public Housing Development Programme to be approved by the Building Committee of the Hong Kong Housing Authority.

   *(d) This project is under the Land Sale Programme .....

3. *(a) Funds are available under Head ..... subhead .....

   *(b) Funds under Head ..... subhead ..... will be applied for on ..... and you will be informed when they are available.

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*(c) Funds under Head ..... should be available in ..... and this will be confirmed to you then.

*(d) Funds are available under the Block Vote Head …… subhead…....

4. Funding will be provided for the following expenditures arising from the land resumption/clearance, namely (i) cost of employing compensation and rehousing service team; (ii) payment to the Land Registry charges (such as reports-on-title, lot history and land search, etc.); (iii) fees arising from the outsourcing of valuation services for compensation matters; and (iv) fees arising from publishing notices relevant to land acquisition/resumption in newspapers. The above expenditures shall be paid to the Lands Department through allocation warrants.

Amd No. 3/2025

5. Gazettal of *draft OZP/OZP amendment or planning applications available for public inspection will be made on .....

Part II

To be completed by DLO or relevant office / section of LandsD if Advance CAF is accepted

Clearance No. ..... *(if Advance CAF accepted)*

Revision No. ..... *(if Revision of boundary by project office/works departments)*

6. *(a) The private lots affected shown on the attached draft Land Requirement Plan(s) may be resumed by the Government of the Hong Kong Special Administrative Region and the date of reversion is subject to confirmation. Amd No. 3/2025

*(b) There is no private lot involved :

*(i) no ex-gratia payment and / or compensation is required.

*(ii) ex-gratia payment and / or compensation may be required and charged under :

*(1) Head 701 subhead 1100CA
(Compensation and ex-gratia allowances in respect of projects in the Public Works Programme)

* (2) Head 701 subhead 1004CA
(Compensation and ex-gratia allowances in respect of public housing projects to be undertaken by HKHA and HKHS (i.e. the project proponent is HKHA or HKHS))

*(3) Head 91 subhead 121 Item 719T

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(*Clearance of land sale sites/Contingency requirements)*

*(4) Head 91 subhead 121 Item 719X
(Other clearance & demolition work on government land)

*(5) Head 91 subhead 221 Item 888
(Clearance of government land - ex-gratia allowances)

* Delete whichever not applicable

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Annex B

RESTRICTED

M E M O

From DLO( ) or relevant office / section of Lands Department	*To* Project Office/Works Department
Ref. _____ *in* _____	*(Attn.:* _____ *)*
Tel. No. _____	*Your Ref.* _____ *in* _____
Fax. No. _____	*dated* _____ *Fax. No.* _____
Date _____	*Total Pages* _____

Note: To prevent leakage of information in connection with land resumption and/or clearance which might lead to fraudulent claims for compensation or ex-gratia allowances or rehousing, access to the information relating to acquisition projects should be confined on a need-to-know basis (particularly the information showing the land resumption/clearance boundary, DC consultation dates, and the plan and scheme gazette / survey dates of the projects).

Project Title : _____

_____

Clearance No. : _____

The Advance Clearance Application Form (Advance CAF) submitted vide your memo dated _____ is accepted for the purpose of conducting pre-clearance survey.

However, please note that the site handover date can only be committed when a further final Amd No. 3/2025 Clearance Application Form (Final CAF) Amd No. 3/2025 for works under the applicable Ordinance(s) Amd No. 3/2025 with the finalized Land Requirement Plan(s) are submitted and accepted. When submitting the Final CAF, your confirmation/clarification/provision on the following items are required as part of your submission: Amd No. 3/2025

(a) If the project requires land use approval under the Town Planning Ordinance (Cap. 131), please confirm the date on which the relevant Cap. 131 Plan begins to be exhibited or made available for public inspection under Cap. 131.

(b) Finalized land requirement plan(s) confirming the land resumption/clearance limit of the project and a grave/urn survey report (if grave/urn are affected) should be submitted. Section 2(2) of Cap. 124 allows land required for road/sewerage/railway works (which have been proposed or to be proposed under Cap. 370, Cap. 358AL or Cap. 519, as the case may be) to be regarded as a "public purpose" for resumption under Cap. 124. Under such a situation, WD is not required to delineate and apportion the areas required to be resumed under Cap.124 (for the main development) and the respective ordinances such as Cap. 370, Cap. 358AL or Cap. 519 (for the associated road/sewerage/railway works) in the Final CAF and the land requirement plan (i.e. the Final CAF shall only require to provide one set of land requirement plan under Cap. 124 to LandsD for preparation of resumption plan). If the above situation cannot be applicable following the Inter-departmental Guidelines for Land Resumption under Cap. 124 issued by DEVB

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on 1.9.2023, please provide land requirement plans with delineation of land by separate ordinance(s) to Lands Department for preparation of resumption plans under separate ordinance(s).

(c) Please advise the Ordinance(s) to be invoked for land resumption/acquisition. If applicable, according to paragraphs 4 to 8 of the "Inter-departmental Guidelines for Land Resumption under the Lands Resumption Ordinance (Cap. 124)" issued by the Development Bureau on 1.9.2023, please confirm that the proposed resumption is not for temporary use or creation of easements/other permanent rights or stratum resumption.

(d) If the project involves land resumption/acquisition, please provide DoJ's confirmation that (i) the proposed resumption/acquisition is for a public purpose and (ii) your proposed description on "the public purpose for which the land is proposed to be resumed" under s.2A(2)(a) of Cap. 124 is in order.

(e) Please provide confirmation on start taking up the land (be it only a structure, an individual lot or a portion of the whole project site) as and when it is vacated/cleared upon commencement of compensation and rehousing disbursement to the affected persons.

(f) Funding will be provided for the following expenditures arising from the land resumption/clearance exercise, namely (i) cost of employing compensation and rehousing service team; (ii) payment to the Land Registry charges (such as reports-on-title, lot history and land search, etc.); (iii) fees arising from the outsourcing of valuation services for compensation matters; and (iv) fees arising from publishing notices relevant to land acquisition/resumption in newspapers. The above expenditures shall be paid to the Lands Department through allocation warrants.

(g) Please allow additional time for handling significant Fung Shui or grave problem, if any, in your project planning.

(h) Please advise if there is any issue of the project that warrants the particular attention of Lands Department.

Amd No. 3/2025

By copy of this memo would Manager/Clearance(##), Clearance Unit of LandsD, please examine the clearance of land per detail listed in the Advance CAF (**Annex A**) herewith attached for conducting pre-clearance survey on -

*(a) the date of the gazettal of draft OZP or

*(b) the date of the gazettal of OZP amendment or

*(c) the date of publishing the planning application for public inspection or

*(d) the date of gazettal of the plan and scheme *under (please specify, e.g. Roads (Works, Use and Compensation) Ordinance (Cap. 370))* or

*(e) the date of gazettal of Notice of Proposed Resumption or Amd No. 3/2025

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*(f) the date specified by project bureau/department.

Signed _____###
for DLO or relevant office /
section of LandsD

c.c. M/Clearance(##), Clearance Unit
SM/Clearance, LandsD
CES/A, LandsD
DO( )
*CLE/(####)Amd No. 3/2025, DLO( )
Amd No. 3/2025
@ PLE/TF1, LandsD
* Marine Dept. (if marine culture or structure is involved).
*LCSD / FEHD / AFCD
(To add relevant departments / offices where appropriate)

##	Insert appropriate office of Clearance Unit of LandsD
###	signed by CLE, SES or above.
####	Insert the post title(s) of CLE supervising LDE team in corresponding NTDLO(s) Amd No. 3/2025
@	For non-PWP project affecting Government land only with acquisition cost charged under Head 91 Lands Department. Delete if the project is a PWP item.
*	Delete whichever is not applicable.

Amd No. 3/2025

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EXPLANATORY STATEMENTS :

(a) THE PURPOSE OF A PRE-CLEARANCE SURVEY (PCS)

- Insofar as clearance of land is required for the implementation of government development projects, the Lands Department (LandsD) Amd No. 3/2025 as the agent of the project bureau/department or works department (collectively referred to as "WD") Amd No. 3/2025 has, as a standard and established procedure, been conducting a PCS (commonly known as "freezing survey") to capture the occupation and status of the occupiers within the project area. The information so obtained will serve as a basis for assessment of eligibility for Government's ex-gratia compensation and rehousing (C&R) arrangements for those residing/operating in the locality and are genuinely affected/to be cleared by the project. As a minimum requirement, an occupier is required to be registered in the PCS as a pre-requisite to be considered for C&R provisions (whether he/she is eligible ultimately will depend on his/her fulfilment of various other eligibility criteria).

- Once a government project is confirmed to proceed and so made known to the public, it would be advisable to conduct the PCS to capture the occupation and status of the occupiers at the earliest possible juncture so as to prevent abusive acts to take advantage of the C&R provisions (e.g. to guard against those moving into the project area after they learned of the prospective development in order to benefit from C&R).

(b) THE PURPOSE OF ADVANCE CAF

- To standardize the timing of conducting the PCS with a view to better achieve the objective of the PCS in taking a snapshot of the ground situation as soon as the development plan is confirmed and so announced in public, a simplified CAF, namely the Advance CAF is promulgated for WD Amd No. 3/2025 to provide the necessary information for LandsD to kick start the PCS.

- Unlike in the usual CAF, the WD Amd No. 3/2025 will not be required to delineate the land by different ordinances to be invoked for resumption at the stage of Advance CAF because the manner of conducting the PCS would be the same.

(c) ACTIONS REQUIRED ON THE PROJECT BUREAU / DEPARTMENT

- The WD Amd No. 3/2025 should submit an Advance CAF together with a **draft** land requirement plan to LandsD **at least 3 months** before the intended date of PCS (e.g. the date of gazettal of the draft OZP/OZP amendment or the date of publishing a planning application for public inspection, whichever is the earliest). The draft land requirement plan has to show the outer clearance boundary of the land involved for LandsD to carry out the PCS in one go.

- If a WD Amd No. 3/2025 is ready to provide the level of details as requested in the usual CAF at the time when PCS should be conducted (e.g. where the project **does not involve** statutory planning procedures and detailed delineation of land to be resumed is available at the time when its PCS should be conducted), the WD Amd No. 3/2025 may follow the established practice in submitting to

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LandsD the usual or final Amd No. 3/2025 CAF for the purpose of the PCS, as well as requesting for LandsD's preparation for land resumption and clearance.

- WD Amd No. 3/2025 may consider whether to submit the Advance CAF before the usual or final Amd No. 3/2025 CAF, or whether to follow the prevailing practice of submitting only the usual or final Amd No. 3/2025 CAF along with the finalized land requirement plan, taking into account the readiness in providing detailed delineation of the land required by different ordinance(s) to be invoked, the time gap between PCS and actual resumption/clearance, among others.

- If WD requests for gazettal of Notice of Proposed Resumption (NOP) under s.2A of the Lands Resumption Ordinance (Cap. 124) at the same time as the gazettal of an Outline Zoning Plan (OZP), amendment of OZP or publication of the planning application in relation to the project, WD should submit the usual or final CAF directly 9 months prior to the gazette of NOP (the Advance CAF would be inapplicable in this case). Amd No. 3/2025

- The usual CAF with the finalized land requirement plan under appropriate ordinance(s) Amd No. 3/2025 is still required from the project bureau/department at later stage of the project for the purpose of committing land resumption (if applicable), actual land clearance and site handover date.

(d) UPON RECEIPT OF THE ADVANCE CAF

DLO or Special Section of LandsD will :

- check any uncleared issues plus information according to Clearance Unit's advice and

- fill out and return **Annex B** of the Advance CAF submitted by the WD Amd No. 3/2025 and copy to the appropriate addressees.

- check the land status and 'A' Book to ascertain any affected building land. If building land is affected, peg the "cut-off" date to PCS date and issue the "cut-off" date letter accordingly.

Clearance Unit will :

- liaise with DLO or Special Section of LandsD as soon as possible to provide an estimate of the number of structures/occupiers to be cleared by conducting an unobtrusive survey.

(e) UPON ACCEPTANCE OF THE ADVANCE CAF

DLO or Special Section of LandsD will :

- complete the application form, enter the Clearance No. and Date on the Advance CAF and office register and forward one copy of the completed Advance CAF to Clearance Unit.

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- keep in view and consider the usual or final Amd No. 3/2025 CAF with the finalized land requirement plan under appropriate ordinance(s) Amd No. 3/2025 is required from the WD Amd No. 3/2025 at later stage of the project for the purpose of committing land resumption (if applicable), actual land clearance and site handover date.

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APPENDIX 3.1A APPLICATION FOR ACQUISITION AND CLEARANCE OF LAND FOR THE USE OF THE GOVERNMENT OF THE HONG KONG SPECIAL ADMINISTRATIVE REGION

RESTRICTED

M E M O

From Project Office/Works Department	*To* DLO( )or relevant office / section of Lands Department
Ref. _____ *in* _____	*(Attn.:* _____ *)*
Tel. No. _____	*Your Ref.* _____ *in* _____
Fax. No. _____	*dated* _____ *Fax. No.* _____
Date _____	*Total Pages* _____

Note: To prevent leakage of information in connection with land acquisition and clearance which might lead to fraudulent claims for compensation or ex-gratia allowances or rehousing, access to the information relating to acquisition projects should be confined on a need-to-know basis (particularly the information showing the land resumption boundary, DC consultation dates, and the plan and scheme gazette/ survey dates of the projects).

Project Title : _____

Description/Contract No. & Title : _____

_____

Annex A

Attached herewith is an Application for Acquisition and Clearance of Land for the above together with our confirmation or provision on the following items *(*to delete particular item(s) if it is not applicable)*. Amd No. 3/2025 *This is an urgent application where normal timing is not possible.

(a) The project requires land use approval under the Town Planning Ordinance (Cap. 131). This is to confirm that the date on which the relevant Cap. 131 Plan begins to be exhibited or made available for public inspection under Cap. 131 is (*please specify the date*).

(b) Finalized land requirement plan(s) confirming the land resumption/clearance limit of the project is hereby submitted.

(c) A grave/urn survey report *has been submitted on *(please specify the date)*/*is hereby submitted.

(d) As the proposed resumption under the Lands Resumption Ordinance (Cap. 124) include land resumption for road/sewerage/railway works associated with and within the main development, a land requirement plan under Cap. 124 for Lands Department to prepare resumption plan for the project is hereby submitted. [i.e. Section 2(2) of Cap. 124 allows land required for road/sewerage/railway works (which have been proposed or to be proposed under Cap. 370, Cap. 358AL or Cap. 519, as the case may be) to be regarded as

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a "public purpose" for resumption under Cap. 124 is applicable to this project following the Inter-departmental Guidelines for Land Resumption under Cap. 124 issued by DEVB on 1.9.2023]

(e) The Ordinance(s) to be invoked for land resumption/acquisition according to paragraphs 4 to 8 of the "Inter-departmental Guidelines for Land Resumption under the Lands Resumption Ordinance (Cap. 124)" issued by the Development Bureau on 1.9.2023 is/are as follows: *(please specify the applicable Ordinance(s))* [If Section 2(2) of Cap. 124 cannot be applicable following the Inter-departmental Guidelines for Land Resumption under Cap. 124 issued by DEVB on 1.9.2023, land requirement plans with delineation of land by separate ordinance(s) to Lands Department for preparation of resumption plans under separate ordinance(s) is required]

(f) This is to confirm that the proposed resumption is not for temporary use or creation of easements/other permanent rights or stratum resumption.

(g) I would enclose DoJ's confirmation that (i) the proposed resumption/acquisition is for a public purpose and (ii) the proposed description on "the public purpose for which the land is proposed to be resumed" under s.2A(2)(a) of Cap. 124 is in order.

(h) This is to confirm that this office/department is ready to start taking possession of the land (be it only a structure, an individual lot or a portion of the whole project site) as and when it is vacated/cleared upon commencement of compensation and rehousing disbursement to the affected persons.^

(i) This is to confirm that funding will be provided for the following expenditures arising from the land resumption/clearance, namely (i) cost of employing compensation and rehousing service team; (ii) payment to the Land Registry charges (such as reports-on-title, lot history and land search, etc.); (iii) fees arising from the outsourcing of valuation services for compensation matters; and (iv) fees arising from publishing notices relevant to land acquisition/resumption in newspapers. The above expenditures shall be paid to the Lands Department through allocation warrants.

(j) Additional time for handling significant Fung Shui or grave problem has already been allowed in our project planning.

(k) I would advise the following issues of the project that warrant the particular attention of Lands Department: *(please specify)*

Amd No. 3/2025

Annex B Please advise CAF status and further action on the attached return memo.

(_____)

Post Title _____

Project Office/Works Department _____

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c.c. Manager /Clearance(#), Clearance Unit, LandsD (with drawing) (for preliminary information only)
*DO (.....)

*Delete whichever not applicable

According to Chapter 3 paragraph 3.5.2 of the Project Administration Handbook for Civil Engineering Works issued by CEDD, for normal clearance, the application submitted by the project office should be signed by an officer of D1 rank, and for clearance to be treated as urgent, by an officer of D2 rank.

^ According paragraph 9(c) of the Inter-departmental Guidelines for Land Resumption under the Lands Resumption Ordinance (Cap. 124) issued by DEVB on 1.9.2023, the project proponent should confirm, at the time of submitting the Final CAF to LandsD, that it is ready to start taking possession of the land (be it only a structure, an individual lot or a portion of the whole project site) as and when it is vacated/cleared upon commencement of compensation & rehousing disbursement to the affected persons which is around one year after gazettal of the Notice of Proposed Resumption under s.2A of Cap. 124, with a view to implementing the project in a timely manner afterwards. If the project proponent foresees that the works contractor is not yet on board by then, it should make necessary arrangements in advance to allow it to take over the vacated/cleared land (e.g. tasking its existing consultant, engaging term contractor, arranging with any works contractor in other projects).

Amd No. 3/2025

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Annex A

RESTRICTED

APPLICATION FOR ACQUISITION & CLEARANCE OF LAND FOR THE USE OF THE GOVERNMENT OF THE HONG KONG SPECIAL ADMINISTRATIVE REGION

Note 1: To prevent leakage of information in connection with land acquisition and clearance which might lead to fraudulent claims for compensation or ex-gratia allowances or rehousing, access to the information relating to acquisition projects should be confined on a need-to-know basis (particularly the information showing the land resumption boundary, DC consultation dates, and the plan and scheme gazette/ survey dates of the projects).

Note 2 : According to paragraph 9 of the Inter-departmental Guidelines for Land Resumption under the Lands Resumption Ordinance (Cap. 124) issued by DEVB on 1.9.2023 Amd No. 3/2025 *and Chapter 3 (paragraph 3.5.2)* Amd No. 3/2025 *of the Project Administration Handbook for Civil Engineering Works issued by CEDD, the project office / works department should submit CAF at least 9 months before gazettal of the Notice of Proposed Resumption under section 2A of the Lands Resumption Ordinance (Cap. 124) or at least 9 months before gazettal of the plan and scheme for projects involving e.g. the Roads (Works, Use and Compensation) Ordinance (Cap. 370)* Amd No. 3/2025. *For urgent or large scale or controversial projects, project office / works department is required to liaise with concerned DLO(s) / office(s) / section(s) and Clearance Unit of Lands Department regarding site handing over date. The CAF should be accompanied with seven copies of land requirement plan(s) showing the limit of clearance to be carried out together with standard covering memo.*

Part I

To be completed by project office/works department requiring clearance to be carried out

Project Title: _____

Descrption/Contract No. & Title: _____

_____

1. Exact boundary of area to be cleared for project (including site formation and working space) is shown on Drawing(s)* No .....(*on attached list) Mr. ..... of ..... (Tel .....) will be able to give further information or discuss phased occupation and minor boundary adjustments.

2. *(a) This project is item ..... in Category ..... of the Public Works Programme.

   *(b) Application for upgrading to Category ..... will be made ..... and you will be informed when this is approved.

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*(c) This project is under the Landslip Preventive Measures Programme.

3. *(a) It is hoped to call for tenders on or about ..... and to start work on the site on or about ..... As such, site is requested to be handed over on or about .....

*(b) It is hoped to call for tenders for contracts requiring clearance in accordance with the attached programme which also shows proposed dates for commencement of works. Site is requested to be handed over on or before .....

4. *(a) Funds are available under Head ..... subhead .....

*(b) Funds under Head ..... subhead ..... will be applied for on .....and you will be informed when they are available.

*(c) Funds under Head ..... should be available in ..... and this will be confirmed to you then.

*(d) Funds are available under the Block Vote Head …… subhead …… Amd No. 3/2025.

5. Funding will be provided for the following expenditures arising from the land resumption/clearance exercise, namely (i) cost of employing compensation and rehousing service team; (ii) payment to the Land Registry charges (such as reports-on-title, lot history and land search, etc.); (iii) fees arising from the outsourcing of valuation services for compensation matters; and (iv) fees arising from publishing notices relevant to land acquisition/resumption in newspapers. The above expenditures shall be paid to the Lands Department through allocation warrants. Amd No. 3/2025

*6. Date of last CAF submission .....

Part II

To be completed by DLO or relevant office / section of Lands Department if CAF is accepted

Clearance No. ..... *(if CAF accepted)* **Revision No.** ..... *(if Revision of boundary after ExCo's decision)*

7. *(a) The private lots affected shown on the Drawing(s) will revert to the Government of the Hong Kong Special Administrative Region on ..... tentatively subject to confirmation. Amd No. 3/2025

*(b) There is no private lot involved.

*(i) no ex-gratia payment and / or compensation is required.

*(ii) ex-gratia payment and / or compensation are required, funds under Head ..... subhead ..... will be charged.

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8. *(a) The Tenancies/Licences listed in the attached schedule and shown with areas on the Drawing(s) will be cancelled accordingly.

*(b) There is no Tenancy/Licence involved.

*delete whichever not applicable

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Annex B

RESTRICTED

M E M O

From DLO( ) or relevant office / section of Lands Department / Amd No. 3/2025	*To* Project Office/Works Department*
Ref. _____ *in* _____	*(Attn.:* _____)
Tel. No. _____	*Your Ref.* _____ *in* _____
Fax. No. _____	*dated* _____ *Fax. No.* _____
Date _____	*Total Pages* _____

Note: To prevent leakage of information in connection with land acquisition and clearance which might lead to fraudulent claims for compensation or ex-gratia allowances or rehousing, access to the information relating to acquisition projects should be confined on a need-to-know basis (particularly the information showing the land resumption boundary, DC consultation dates, and the plan and scheme gazette/ survey dates of the projects).

Project Title : _____

Description/Contract No. & Title : _____

_____

Clearance No. : _____

The CAF submitted vide your memo dated _____ is :

*(a) Accepted. The target land handover date will be as requested (i.e. on or about _____)

No material change to boundary will be allowed.

By copy of this memo would Manager/Clearance(#), Clearance Unit of LandsD, please arrange for clearance of land per detail listed in the CAF herewith attached, confirm clearance-cost estimate and that clearance can be effected on or about the date(s) given in para. 3 therein. Please advise subsequently once delays arise.

☐ Processing is subject to no significant Fung Shui or grave problem

*(b) Accepted subject to your confirmation or provision of the following items *(*to delete particular item(s) if it is not applicable)* which are still outstanding: Amd No. 3/2025

*(i) As you have advised that the project requires land use approval under the Town Planning Ordinance (Cap. 131), please confirm the date on which the relevant Cap. 131 Plan begins to be exhibited or made available for public inspection under Cap. 131.

*(ii) Confirmation that the proposed resumption is not for temporary use or creation of easements/other permanent rights or stratum resumption should be provided.

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*(iii) DoJ's confirmation that (i) the proposed resumption/acquisition is for a public purpose and (ii) the proposed description on "the public purpose for which the land is proposed to be resumed" under s.2A(2)(a) of Cap. 124 being in order should be provided.

*(iv) Confirmation that additional time for handling significant Fung Shui or grave problem has already been allowed in your project planning should be provided.

*(v) Interfacing issues (with brief description) have been resolved.

*(vi) Funding will be provided for the following expenditures arising from the land resumption/clearance exercise, namely (i) cost of employing compensation and rehousing service team; (ii) payment to the Land Registry charges (such as reports-on-title, lot history and land search, etc.); (iii) fees arising from the outsourcing of valuation services for compensation matters; and (iv) fees arising from publishing notices relevant to land acquisition/resumption in newspapers. The above expenditures shall be paid to the Lands Department through allocation warrants.

Amd No. 3/2025

*(c) Not accepted owing to following reason(s) (please select the applicable items carefully and delete the inapplicable items) Amd No. 3/2025:

*(i) The project has not been included in Land Acquisition Prioritization Exercise (LAPE)

*(ii) Marine culturist involved, but you have not requested for AFCD's appropriate actions e.g. cancellation of fish culture licences/permits, degazettal of fish culture zone under the provisions of the Marine Fish Culture Ordinance, Cap. 353 etc.

*(iii) As the project requires land use approval under the Town Planning Ordinance (Cap. 131), you have not yet confirmed the date on which the relevant Cap. 131 Plan begins to be exhibited or made available for public inspection under Cap. 131.

*(iv) Finalized land requirement plan(s) confirming the land resumption/clearance limit of the project has not yet been submitted.

*(v) A grave/urn survey report has not yet been submitted.

*(vi) You have not yet provided confirmation on the Ordinance(s) to be invoked for land resumption/acquisition according to paragraphs 4 to 8 of the "Inter-departmental Guidelines for Land Resumption under the Lands Resumption Ordinance (Cap. 124)" issued by the Development Bureau on 1.9.2023.

*(vii) You have not yet provided confirmation that your office/department is ready to start taking possession of the land (be it only a structure, an individual lot or a portion of the whole project site) as and when it is vacated/cleared upon commencement of compensation and rehousing disbursement to the affected persons.

Amd No. 3/2025

Upon resolution of the above item(s), submission of fresh CAF is required.

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Signed _____###
for DLO or relevant office / section of Lands Department

c.c. M/Clearance(#), Clearance Unit
SM/Clearance, LandsD
CES/A, LandsD
AFCD
DO( )
*CLE/(####), DLO( )
@ PLE/TF1, LandsD Amd No. 3/2025
* Marine Dept. (if marine culture or structure is involved).
*LCSD / FEHD
(To add relevant departments / offices where appropriate)

#	Insert appropriate office of Clearance Unit of LandsD
##	based on existing resource level, processing for this project will be programmed outside the 5-year time frame.
###	signed by CLE, SES or above.
####	Insert the post title(s) of CLE supervising LDE team in corresponding NTDLO(s). Amd No. 3/2025
@	For non-PWP project affecting Government land only with acquisition cost charged under Head 91 Lands Department. Delete if the project is a PWP item.
*	Delete whichever is not applicable.
☐	Tick whichever is relevant.

EXPLANATORY STATEMENT :

(a) UPON RECEIPT OF A CAF

DLO or relevant office / section of Lands Department will :

- base on data obtained during finalisation of boundary stage, check any outstanding uncleared issues plus information on rehousing arrangement based on Clearance Unit's advice and fill out and return Annex B of the CAF submitted by the project office / works department (collectively referred to as "WD") Amd No. 3/2025 and copy to the appropriate addressees; and Amd No. 3/2025

- check whether the graves/urns survey report has been submitted by WD if clearance of graves/urns is required. Amd No. 3/2025

Clearance Unit will :

- liaise with DLO or relevant office / section of Lands Department a.s.a.p. on the lead time required to complete the clearance of occupiers and rehousing arrangement (i.e. when rehousing can take place)

(b) SHOULD THE CAF BE UNDER 'ACCEPTED' STATUS

DLO or relevant office / section of Lands Department will :

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- complete the application form, enter the Clearance No. & Date on the CAF and office register and forward 1 copy of the completed CAF to Clearance Unit; (a revision no. will also be assigned for purpose of identification to any CAF which has previously been accepted and processed to a very substantially final stage but on account of any ExCo decision requiring boundary revision and hence causing extension of the normal process time); liaise with Clearance Unit to conduct Pre-clearance Survey (PCS); Amd No. 3/2025

- post graves/urns notice where appropriate; and

- prepare the land resumption plans for gazettal of the notice of proposed resumption (NOP) / the Plan and Scheme. Amd No. 3/2025

Clearance Unit will :

- conduct the PCS according to the office guidelines and in consultation with DLO or relevant office / section of Lands Department and WD. Amd No. 3/2025

(c) AND IF NO OBJECTIONS OR OBJECTIONS OVER-RULED BY EXCO

DLO or relevant office / section of Lands Department will :

- arrange the gazettal of the resumption notices and cancellation of all affected licences/tenancies/waivers, etc.; and

- arrange site clearance and site handover to WD. Amd No. 3/2025

Clearance Unit will: Amd No. 3/2025

- conduct detailed screening and arrange rehousing; and

- raise up clearance / rehousing problems and arrange site handover to WD once the structure is vacated / cleared.

Amd No. 3/2025

(d) IF CAF IS NOT ACCEPTED OR ACCEPTED SUBJECT TO QUALIFICATION

WD Amd No. 3/2025 will :

- if CAF status is accepted subject to qualifications, resolve the issues listed under the particular qualification and advise DLO or relevant office / section of Lands Department the outcome, date of final CAF be amended to date when all qualifications are resolved;

- if CAF status is not accepted, a fresh final CAF date should be submitted to supersede the previous one Amd No. 3/2025;

- if OBJECTIONS under FSRO or R(WU&C) are not resolved or amendments to final boundary is instructed by ExCo, final CAF date be revised to date when such issues are resolved and revised CAF data submitted.

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APPENDIX 3.2 NOT USED

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APPENDIX 3.2A SAMPLE COVERING MEMO FOR CIRCULATION OF THE DRAFT GAZETTAL DOCUMENTS

By Email

M E M O

From		*To*	Secretary for Transport and Logistics
Ref	( ) in	*(Attn.:*	SEO(TL)RO *)*
Tel. No.		*Your Ref.*	
Fax. No.		*dated*	*Fax. No.* 2136 8017
Date		*Total Pages*	(no. of pages) + enclosures

Roads (Works, Use and Compensation) Ordinance (Chapter 370)

Project Title

I attach a full set of draft documents for your comments and arrangement of gazettal under section 5 of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) ("the Ordinance") of the above-mentioned works –

- Plan(s) No(s). .....
- Resumption Plan No. …… (Sheet 1 to X)*
- Plan for Creation of Easements and Other Permanent Rights No. …… (Sheet 1 to X)*
- Plan for Creation of Rights of Temporary Occupation of Land No. …… (Sheet 1 to X)*
- Location Plan No. ……
- Notice under Section 8(2) of the Ordinance (Chinese and English)
- Scheme under Section 5 of the Ordinance (Chinese and English)
- Press Release (Chinese and English)

*[*Please delete as appropriate]*

2. The …… District Council(s) has/have been consulted regarding the proposed works (*State the date of meeting(s) and results*). The proposed works are targeted for commencement in *QX 202X* and completion by *QX 202X*.

3. The above documents have been cleared by (*an officer of D2 level for LandsD/ an officer of D3 level for other B/Ds*) of (*Initiating Office*), and comments from other bureaux/departments have been duly incorporated. The corresponding response-to-comment table is also attached for your reference.

4. The target gazettal date is (…… *202X*). Notwithstanding this, I understand that the actual date of gazettal is subject to the readiness of the gazettal documents.

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5. Subject to any comments that you may have, we will arrange the printing, signature and submission of the gazettal documents.

(……)
for *Head of Project Office or Department*

c.c. (for information)
CES/A, LandsD
CLS/U, LandsD (Attn : SLS/K) - for projects in Kowloon region
DLO(XXX), LandsD
DO(XXX), HAD
D of Buildings
DCED
DHA
D of Hy
Land Registry

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APPENDIX 3.3 NOT USED

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APPENDIX 3.3A SAMPLE SCHEME AND NOTICE UNDER S.8

Roads (Works, Use and Compensation) Ordinance (Chapter 370)

(Notice under section 8(2))

Project Title

Notice is hereby given that under powers delegated by the Secretary for Transport and Logistics under section 3(3) of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) ("the Ordinance"), the Permanent Secretary for Transport and Logistics proposes to execute the road works within the limit of works area as shown on Plan[s] No[s]. [XXXX] ("the Plan[s]") and described in the scheme annexed thereto. The Plan[s] and scheme have been deposited in the Land Registry.

The general nature of the proposed works is as follows:–

(i) [XXXX];
(ii) [XXXX]; and
(iii) [XXXX].

The lot[s] to be resumed as shown on Resumption Plan No. [XXXX] (Sheet 1 to X) ("the Resumption Plan") annexed to the scheme [is/are] listed below:–

Lot[s] where land is to be resumed	
D.D. No.	Lot No.
[XXXX]	[XXXX]

The area[s] where easements and other permanent rights are to be created as shown on Plan for Creation of Easements and Other Permanent Rights No. [XXXX] ("the Plan for Creation of Easements and Other Permanent Rights") annexed to the scheme [is/are] listed below:–

Reference No.	Area[s] of the Land on which easements and other permanent rights are to be created
1	[XXXX]

The area[s] where rights of temporary occupation of land are to be created as shown on Plan for Creation of Rights of Temporary Occupation of Land No. [XXXX] ("the Plan for Creation of Rights of Temporary Occupation of Land") annexed to the scheme [is/are] listed below:–

Reference No.	Area[s] of the Land on which rights of temporary occupation are to be created
1	[XXXX]

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The Plan[s] and scheme may be inspected by members of the public free of charge at the following offices and during the following hours when those offices are normally open to the public:–

Offices	Opening Hours (except public holidays)
Central and Western Home Affairs Enquiry Centre, Ground Floor, Harbour Building, 38 Pier Road, Central, Hong Kong	Monday to Friday 9:00 a.m. – 7:00 p.m.
[Home Affairs Enquiry Centre / District Office concerned] [Address]	
[District Lands Office concerned] [Address]	Monday to Friday 8:45 a.m. – 12:30 p.m. and 1:30 p.m. – 5:30 p.m.

The electronic version of the Plan[s], scheme, the Resumption Plan, the Plan for Creation of Easements and Other Permanent Rights and the Plan for Creation of Rights of Temporary Occupation of Land are viewable on the Transport and Logistics Bureau's website:–

http://www.tlb.gov.hk/eng/publications/transport/gazette/gazette.html

Further enquiries regarding the proposed works can be addressed to the [project office] and at telephone number [XXXX XXXX].

Any person who wishes to object to the works or the use, or both, is required to address to the Secretary for Transport and Logistics an objection in writing, which can be submitted via one of the following means:–

(1) By post or by hand to the Transport and Logistics Bureau's Drop-in Box No. 6 located at the 2nd Floor Entrance, East Wing, Central Government Offices, 2 Tim Mei Avenue, Tamar, Hong Kong. The box is available for use between 8:00 a.m. and 7:00 p.m. from Monday to Friday (except public holidays);
(2) By fax to (852) 2868 4643; or
(3) By email to gazettetlb@tlb.gov.hk.

The objector should describe his interest and the manner in which he alleges that he will be affected by the works or the use in his notice of objection. Any objection lodged on a ground relating to any compensation (whether monetary or non-monetary) or any financial or other assistance in connection with the works or the use is, to the extent that it is lodged on that ground, invalid and treated as not having been lodged for the purposes of section 11 of the Ordinance. Objectors are requested to provide contact details to facilitate communication. A notice of objection should be delivered to the Secretary for Transport and Logistics not later than the [dd] day of [mmmm YYYY].

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Personal Information Collection Statement

Any information, including the personal data, submitted to the Secretary for Transport and Logistics in connection with any written objections/comments will be used for the processing of the objections/comments and other related purposes. The provision of any information, including the personal data, other than the information as required under section 10(2) of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) is voluntary. However, it may not be possible to further process the objections/comments if such information, including the personal data, is not sufficiently provided. Any information, including the personal data, so submitted may be disclosed to the relevant government departments and other persons, organizations or agencies which are required to handle the objections/comments and related matters. Persons who have so submitted their personal data have the rights to request access to and correction of their personal data held by us. Request for access to or correction of the personal data should be made in writing to the Personal Data Privacy Officer of the Transport and Logistics Bureau at 20th Floor, East Wing, Central Government Offices, 2 Tim Mei Avenue, Tamar, Hong Kong.

( )
Permanent Secretary for Transport and Logistics

Date:

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道路(工程、使用及補償)條例(第370章)

(根據第8(2)條規定所發的公告)

[工程名稱]

現公布運輸及物流局常任秘書長根據運輸及物流局局長按《道路(工程、使用及補償)條例》(第370章)(下稱"該條例")第3(3)條所授權力，擬在圖則第[XXXX]號(下稱"該[等]圖則")所示施工區界限內進行道路工程，工程內容在附連的計劃內說明。該[等]圖則及計劃現存放於土地註冊處。

建議工程的一般性質如下：

(i) [XXXX]；

(ii) [XXXX]；以及

(iii) [XXXX]。

在附連於計劃的收地圖則第[XXXX]號(第1至X張)](下稱"該收地圖則")所示將予收回的地段如下：

將予收回的土地地段	
丈量約份編號	地段編號
[XXXX]	[XXXX]

在附連於計劃的設定地役權及其他永久權利圖則第[XXXX]號(下稱"該設定地役權及其他永久權利圖則")所示將予設定地役權及其他永久權利的範圍如下：

參考編號	將予設定地役權及其他永久權利的土地範圍
1	[XXXX]

在附連於計劃的設定暫時佔用土地權利圖則第[XXXX]號(下稱"該設定暫時佔用土地權利圖則")所示將予設定暫時佔用土地權利的範圍如下：

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參考編號	將予設定暫時佔用土地權利的土地範圍
1	[XXXX]

下列辦事處備有該[等]圖則及計劃，供公眾於辦事處下述一般開放時間內免費查閱：

辦事處	開放時間 (公眾假期除外)
香港中環統一碼頭道38號 海港政府大樓地下 中西區民政諮詢中心	星期一至星期五 上午9時至 晚上7時
[地址] [當區民政諮詢中心/民政事務處]	
[地址] [當區地政處]	星期一至星期五 上午8時45分至 下午12時30分 以及 下午1時30分至 下午5時30分

該[等]圖則、計劃、該收地圖則、該設定地役權及其他永久權利圖則和該設定暫時佔用土地權利圖則的電子版本已上載運輸及物流局的網頁，供市民瀏覽，網址如下：

http://www.tlb.gov.hk/tc/publications/transport/gazette/gazette.html

如欲查詢建議工程的其他資料，可聯絡[工務部門]，亦可致電[XXXX XXXX]提出。

任何人士擬反對該項工程或使用，或同時反對兩者，必須以書面向運輸及物流局局長提出。反對通知書可經下列其中一個方式遞交：

(1) 以郵遞或專人送達方式，把反對通知書投入設於香港添馬添美道2號政府總部東翼2樓入口處的運輸及物流局

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第6號投遞箱。投遞箱的收件時間為星期一至星期五(公眾假期除外)上午8時至晚上7時；

(2) 傳真至(852)2868 4643；或

(3) 電郵至gazettetlb@tlb.gov.hk。

反對人士須在反對通知書內說明其權益及聲稱受該項工程或使用影響的情況。凡有反對基於某理由遞交，而該理由關乎任何補償(不論屬金錢補償或非金錢補償)或任何財政援助或其他援助，且該等補償或援助與有關工程或使用相關，則該反對在它基於該理由而遞交的範圍內屬無效，並須就該條例第11條而言視為不曾遞交。反對人士須提供聯絡資料，方便聯絡。反對通知書須不遲於[yyyy]年[m]月[dd]日送達運輸及物流局局長。

收集個人資料聲明

凡與任何反對書/書面意見有關而提交予運輸及物流局局長的資料(包括個人資料)，將用於處理該等反對書/書面意見及其他相關用途。除《道路(工程、使用及補償)條例》(第370章)第10(2)條所規定必須提供的資料外，提供任何其他資料(包括個人資料)均屬自願性質。然而，如果提供的資料(包括個人資料)不足，本局或許未能進一步處理該等反對書/書面意見。所有已提交的資料(包括個人資料)，皆或會向須處理該等反對書/書面意見及相關事宜的有關政府部門及其他人士、組織或機構披露。上述提交個人資料的人士有權要求查閱和改正本局所持有其本人的個人資料。查閱或改正個人資料的要求須以書面向運輸及物流局保障個人資料(私隱)主任提出，聯絡地址為香港添馬添美道2號政府總部東翼20樓。

20XX年XX月XX日 運輸及物流局常任秘書長XXX

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Roads (Works, Use and Compensation) Ordinance (Chapter 370)

Scheme annexed to Plan[s] No[s]. [XXXX]
under section 5 describing

[Project Title]

General Description of the Works

Under powers delegated by the Secretary for Transport and Logistics under section 3(3) of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) ("the Ordinance"), the Permanent Secretary for Transport and Logistics proposes to execute the road works within the limit of works area as shown on Plan[s] No[s]. [XXXX] ("the Plan[s]") annexed hereto and described hereunder. The proposed road works are required to [XXXX].

2. The general nature of the proposed works is as follows:–
(i) [XXXX];
(ii) [XXXX]; and
(iii) [XXXX].

Land to be Resumed

3. For the purposes of or incidental to the works or the use, the Permanent Secretary for Transport and Logistics proposes that powers under section 13 of the Ordinance may be exercised to resume the land as shown on Resumption Plan No. [XXXX] (Sheet 1 to X) annexed hereto and detailed in the table set out thereon. Further notice, setting out the manner in which the land is to be resumed, will be issued under section 14 of the Ordinance as and when required.

Creation of Easements and Other Permanent Rights

4. For the purposes of or incidental to the works or the use, the Permanent Secretary for Transport and Logistics proposes that powers under section 15 of the Ordinance may be exercised to create in, under or over the land as shown on the Plan for Creation of Easements and Other Permanent Rights No. [XXXX] annexed hereto and described in the table set out thereon the following easements and other permanent rights in favour of the Government:–
(i) [XXXX];
(ii) [XXXX]; and
(iii) [XXXX].

Further notice, setting out the manner in which easements and other permanent rights are to be created, will be issued under section 16 of the Ordinance as and when required.

Creation of Rights of Temporary Occupation of Land

5. For the purposes of or incidental to the works or the use, the Permanent Secretary for Transport and Logistics proposes that powers under section 15 of the Ordinance may be

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exercised to create, in favour of the Government, rights of temporary occupation of land as shown on the Plan for Creation of Rights of Temporary Occupation of Land No. [XXXX] annexed hereto and detailed in the table set out thereon. By the creation of such rights, the Government, its contractors, employees, servants, agents, licensees and any other persons authorized or permitted by the Government are given full rights and liberty to enter into, occupy or remain on that portions of land and to use such portions of land as works areas and for other uses for the purposes of or incidental to the works described in paragraph 2 above or the use. Further notice, setting out the manner in which the land is to be temporarily occupied, will be issued under section 16 of the Ordinance as and when required.

Roads to be Closed *[and Government Foreshore and/or Sea-bed to be Reclaimed/Affected]

6. For the purposes of or incidental to the works or the use, the Permanent Secretary for Transport and Logistics proposes that powers under section 17 of the Ordinance may be exercised to close permanently sections of the existing [XXXX]; and to close temporarily sections of the existing [XXXX] *[; and to reclaim/affect the Government foreshore and/or sea-bed] within the limit of works area as shown on the Plan[s]. Temporary alternative access will be provided and temporary diversions will be carried out during the construction period as and when required. Further notice, setting out the manner in which such [XXXX] are to be closed, *[and such Government foreshore and sea-bed are to be reclaimed/affected] will be issued under section 18 of the Ordinance as and when required.

Inspection and Preventive and Remedial Work on Land and Buildings

7. For the purposes of or incidental to the works or the use, the Permanent Secretary for Transport and Logistics proposes that powers under section 19 of the Ordinance may be exercised to enter any land or building described in para. 2 above and situated wholly or partly within the limit of works area as shown on the Plan[s], or wholly or partly within 70 metres thereof for the purpose of:–

(i) making any inspection, valuation, site investigation or test, including drilling, excavating or the installation or removal of instruments;
(ii) surveying or taking levels; and
(iii) setting out any line of works

in connection with the works, the use, an assessment of the value of any land, building or other property or in order to ascertain the condition of the land or building; and carry out all reasonably necessary operations of a preventive or remedial nature. Further notice, setting out the purpose of the entry and the nature of any operations to be carried out, will be issued under section 19 of the Ordinance as and when required.

Apparatus whose Course or Position to be Altered

8. For the purposes of or incidental to the works or the use, the Permanent Secretary for Transport and Logistics proposes that powers under section 20 of the Ordinance may be exercised to require alteration of the course or position of any gas, electricity, water or telecommunications service apparatus, such as [XXXX] and any other apparatus lying within the limit of works area and to require repairing of any road surface thereby disturbed. Further notice, setting out the manner in which the course or position of such apparatus is to be altered

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and such road surface is to be repaired, will be issued under section 20 of the Ordinance as and when required.

( )
Permanent Secretary for Transport and Logistics

Date:

* To be deleted if the Government foreshore and/or sea-bed is not required to be reclaimed or affected.

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道路(工程、使用及補償)條例(第370章)

根據第5條的規定
附連於圖則第[XXXX]號的計劃
說明
[工程名稱]

工程的一般說明

運輸及物流局常任秘書長根據運輸及物流局局長按《道路(工程、使用及補償)條例》(第 370 章)(下稱"該條例")第 3(3) 條所授權力，擬在附連的圖則第[XXXX]號(下稱"該[等]圖則") 所示施工區界限內進行道路工程，工程內容在下文說明。建議的道路工程旨在[XXXX]。

2. 建議工程的一般性質如下：

(i) [XXXX]；

(ii) [XXXX]；以及

(iii) [XXXX]。

收回土地

3. 運輸及物流局常任秘書長建議行使該條例第 13 條賦予的權力，為工程或使用或附帶事宜的目的，收回在附連的收地圖則第 [XXXX] 號[(第 1至X 張)]所示，並在其上列表中詳細說明的土地。如有需要，當局會根據該條例第 14 條的規定另行發出公告，說明收回上述土地的情況。

設定地役權及其他永久權利

4. 運輸及物流局常任秘書長建議行使該條例第 15 條賦予的權力，為工程或使用或附帶事宜的目的，在附連的設定地役權及其他永久權利圖則第 [XXXX] 號所示，並在其上列表中說明的土地或土地之下或之上，為政府設定下列地役權及其他永久權利：

(i) [XXXX]；

(ii) [XXXX]；以及

(iii) [XXXX]。

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如有需要，當局會根據該條例第 16 條的規定另行發出公告，說明設定地役權及其他永久權利的情況。

設定暫時佔用土地的權利

5. 運輸及物流局常任秘書長建議行使該條例第 15 條賦予的權力，為工程或使用或附帶事宜的目的，在附連的設定暫時佔用土地權利圖則第 [XXXX] 號所示，並在其上列表中詳細說明的土地，為政府設定暫時佔用土地的權利。該等權利設定後，為上文第 2 段所述工程或使用或附帶事宜的目的，政府及其承建商、僱員、受僱人、代理人、許可證持有人和其他獲政府授權或准許的人士獲賦予全權自由進入、佔用或逗留在該部分土地，以及把該部分土地用作施工區和其他用途。如有需要，當局會根據該條例第 16 條的規定另行發出公告，說明暫時佔用土地的情況。

封閉道路*[和將予填平 / 受影響的政府前濱及 / 或海床]

6. 運輸及物流局常任秘書長建議行使該條例第 17 條賦予的權力，為工程或使用或附帶事宜的目的，永久封閉該[等]圖則所示施工區界限內的部分現有[XXXX]，以及暫時封閉該[等]圖則所示施工區界限內的部分現有[XXXX] *[，以及填平 / 影響該等圖則所示施工區界限內的政府前濱及 / 或海床]。在施工期間，當局會視乎情況另行提供臨時通道和實施臨時改道安排。如有需要，當局會根據該條例第 18 條的規定另行發出公告，說明封閉該等[XXXX] *[，以及該等政府前濱及 / 或海床將予填平 / 受影響]的情況。

視察以及土地與建築物的預防及補救工程

7. 運輸及物流局常任秘書長建議行使該條例第 19 條賦予的權力，為工程或使用或附帶事宜的目的，進入上文第 2 段所描述、且全部或部分位於該[等]圖則所示的施工區界限內或全部或部分位於施工

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區界限70米內的任何土地或建築物，以便就工程、使用、任何土地或建築物或其他財產的估價，或為了確定該土地或建築物的狀況，而：

(i) 進行任何視察、估價、現場勘測或測試，包括鑽探、挖掘或安裝或拆除儀器；

(ii) 進行測量或量度水平位；以及

(iii) 劃定工程界線，

並進行一切合理地必需的屬預防或補救性質的作業。如有需要，當局會根據該條例第19條的規定另行發出公告，說明進入上述土地或建築物的目的及將予進行的作業的性質。

改動器具的路線或位置

8. 運輸及物流局常任秘書長建議行使該條例第20條賦予的權力，為工程或使用或附帶事宜的目的，規定有關方面改動施工區界限內任何氣體、電力、水或電訊服務器具的路線或位置，例如[XXXX]，以及任何其他器具的路線或位置，並修補任何因此而受騷擾的道路路面。如有需要，當局會根據該條例第20條的規定另行發出公告，說明改動該等器具的路線或位置及修補該等道路路面的情況。

20XX年XX月XX日 運輸及物流局常任秘書長XXX

* 如無須填平/影響政府前濱及/或海床，刪去此句。

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APPENDIX 3.4 NOT USED

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APPENDIX 3.4A SAMPLE NOTICE UNDER S.11(9)(a)

Roads (Works, Use and Compensation) Ordinance (Chapter 370)

(Notice under section 11(9)(a))

Project Title

Notice is hereby given that under powers delegated by the Secretary for Transport and Logistics under section 3(3) of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) ("the Ordinance"), the Permanent Secretary for Transport and Logistics proposes to execute the works as described in G.N. [XXXX] published on [dd mmmm YYYY] and [dd mmmm YYYY] under section 11(1) of the Ordinance.

( )
Permanent Secretary for Transport and Logistics

Date:

==========

道路(工程、使用及補償)條例(第370章)
(根據第11(9)(a)條規定所發的公告)

[工程名稱]

現公布運輸及物流局常任秘書長根據運輸及物流局局長按《道路(工程、使用及補償)條例》(第370章)(下稱"該條例")第3(3)條所授權力，按照該條例第11(1)條的規定，建議進行[yyyy]年[m]月[dd]日及[yyyy]年[m]月[dd]日刊登的第[XXXX]政府公告所說明的工程。

20XX年XX月XX日

運輸及物流局常任秘書長XXX

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APPENDIX 3.5 NOT USED

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APPENDIX 3.5A GENERAL GUIDELINES FOR PREPARATION OF ExCo MEMORANDUM UNDER CAP. 370 AND SAMPLE ExCo MEMO

General Guidelines for Preparation of ExCo Papers under the Roads (Works, Use and Compensation) Ordinance (Chapter 370)

Handling of Objections

1. Ensure factual accuracy of all letters/emails of response to the objectors, minutes of meetings and sketches/drawings.

2. Copies of the objection letters, notes of any related objection resolution meeting and correspondence between the Government and the objectors will be deposited at the ExCo Secretariat for Members' inspection. Be mindful in the wording to be used in the correspondence as it will have significant impact on the wording in the main text of the ExCo paper. The best practice is to think backwards, i.e. choose accurate, precise and concise wordings as if you were drafting the main text of the ExCo paper, then use the exact wordings in the correspondence with the objectors.

3. Properly document any modification/undertaking agreed by the Government and the objectors. Without proper documentation, the concerned department would not have support for putting the modification/undertaking in the main text of the ExCo paper and it would not be possible to seek ExCo's authorization/endorsement on such modification/undertaking.

4. Ensure the objectors' understanding is correct if they use technical terms.

5. Properly file and bind the correspondence between the Government and the objectors into a folder with a cover page and content page(s). Initiating Office is required to send a confirmation memo, signed by a directorate officer to TLB to confirm that the deposit was checked before submission.

Drafting of ExCo Memorandum

Accuracy

6. For the annex of "assessment of objection(s)", summarize the major concerns of the objectors and Government's responses from the deposit of list of correspondence (the Deposit). Do not add any points that have not been mentioned in the Deposit. Use wordings which reflect the same meaning if not the same wording. In case translation of content is required (e.g. translating objectors' Chinese responses to English), check and ensure accurate interpretation in order not to take anything out of context in discussion. Then, provide a gist of the summary of assessment in the "assessment of objection(s)" section in the main text of ExCo Memo.

7. For the "public consultation" section in the main text, ensure the public views are accurately reflected with supporting documents. "Support" should only be used when explicit support is obtained in the consultation. "No objection" is usually used when explicit support has not been obtained, questions/concerns are raised by members and they do not object to the

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project. "No objection" is also used when consultation is done by circulation of papers which members neither indicate explicit support nor objection.

8. Check and ensure accuracy of all figures (dates, costs, number of objections) and facts.

Handling of Objections

9. Ensure objection handling process is completed prior to submission of draft ExCo paper.

10. Ensure "Caltex Procedures" are complied with, including that the objector is given the opportunity to have the last word. Upon submission of draft ExCo paper to TLB, Initiating Office is required to confirm that "Caltex Procedure" has been complied with during the objection-handling process.

11. Ensure the objectors have duly signed the reply slips or conveyed their final stance in writing. If an objection is raised in a personal capacity, check the signature to ensure the person who signed the reply slips or other correspondence is the same person who signed the objection in the first place or by a person whom the objector has authorized as representative (e.g. a reply slip signed by another person living in the same residential flat as the objector should not be considered as a valid reply slip unless the objector has in writing authorized such person as his representative).

Consistency

12. Ensure consistency throughout the ExCo paper, including annexes. The information should not be contradictory (e.g. the target commencement and completion date, the figures relating to resumption, capital or recurrent cost, etc.).

13. Use standard wording to describe similar concerns of objections as far as practicable (e.g. different objectors who request resumption of residual portion of their lots or request for land exchange).

14. Stick to the same line-to-take if you are responding to the same or similar concerns.

15. Avoid using different terms if you are referring to the same items (e.g. if you mention provision of "a footpath" to the objector, do not use "a track" in the ExCo paper).

General

16. Summarize the major concerns of the objectors. To avoid lengthy content, do not simply cut and paste from objection letters in English nor translate word to word from objection letters in Chinese.

17. Group and reorganize the content in point form as far as practicable in particular road works with large number of objections. No need to list the objector's concerns raised in different letters in chronological order.

18. Make cross-reference to earlier paragraph(s) if the objector(s) raise the same concern(s).

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19. Circulate the complete draft ExCo paper including the modification plan, if any, to concerned B/Ds for comment and clear the draft by a D3 officer of the concerned works department (or a D2 officer for LandsD), as well as subject DS of the concerned policy bureau before submission to TLB. The clearing officer is responsible to check the whole set of draft ExCo paper, including annexes, and ensure compliance with this guideline. TLB shall be informed of the titles of the clearing officers.

20. Observe drafting conventions in preparing the ExCo Paper. The list below is not exhaustive but is provided for B/Ds' general reference –

(a) Use font type "Bookman Old Style" for body of the English memorandum and 華康細明體 for Chinese;

(b) dates should be written as – "20 March 2020";

(c) paragraphs, sub-paragraphs, etc. should be numbered in the sequence 1(a)(i) – the sequence should not progress beyond sub-sub paragraphs;

(d) enacted legislation should be referred in full only in the heading. The correct way of referring to an ordinance is as follows – "Lands Resumption Ordinance (Chapter 124)";

(e) surnames, or family names, should be in block capitals (e.g. CHAN Tai-man) except only when surname is quoted, e.g. "Mr Chan" not "Mr CHAN";

(f) numbers should be given in letters from one to ten and in figures from 11 onwards;

(g) metric measurements should be accompanied by their imperial equivalents, in parenthesis;

(h) sums of money less than $1 million should be set out in full figures, e.g. "56,000" not "0.056 million";

(i) notwithstanding (f) above, always write numbers (whatever the number) in words at the beginning of a sentence or preferably, avoid beginning a sentence with a number;

(j) group of three digits should be separated by spaces except that after "$", they should be separated by commas (e.g. 11 000 passengers, $11,000);

(k) lead into sub-paragraphs with a dash (–) rather than a colon (:) or colon-dash (;-)

(l) long titles should be given in full in the first place that they occur with an abbreviated form following in brackets. The abbreviated form may be used subsequently. For example –
"The Society for the Aid and Rehabilitation of Drug Abusers (SARDA)";

(m) avoid impersonal expressions such as "It is considered that…", "It is submitted that…..", etc. "We think that …..", "We propose that ….." etc. is more

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preferable. (Exceptions to this general rule are permitted in the Recommendation and Advice Sought section);

(n) short sentences are better than long and lengthy ones;

(o) prune all unnecessary word. "Therefore" and "However" are frequent offenders; so is "the preparation of" instead of "preparing"; and so are "Members are aware that …", "Members wil lwish to note that", "it should be noted (or seen) that …";

(p) foreign expressions should be avoided;

(q) the use of jargon and buzz-words should be avoided where possible; and

(r) avoid using italics and underlining headings, words, sentences or sections. Where emphasis is required, for example a heading or a block of text, it is preferable to use bold face type.

Annexes

21. Provide cover page(s) and number all pages for each annex. For bilingual documents, such as plans, use bilingual pages number, e.g. "Annex A - Page 1 of 2" and "附件 A - 第一頁，共二頁".

22. Provide 50 hard copies of the English and Chinese versions of the annexes respectively to the ExCo Secretariat, with two extra hard copies for TLB's retention. Print the annexes on double side and insert "This is a blank page" or "空白頁" for blank pages as appropriate.

23. For plans, print them in the appropriate size such that ExCo members could observe them in detail and ensure no rotating image. Print content and cover page(s) on pink A4 paper. All documents should be well-labelled and sealed properly under confidential cover.

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For discussion by the
Executive Council
Lands and Works Sub-Committee
on xx xxx 202x

LWS(202x) ___
XCR(202x) ___
Copy No. ___

MEMORANDUM FOR EXECUTIVE COUNCIL

Roads (Works, Use and Compensation) Ordinance
(Chapter 370)

PWP ITEM NO. xxxx
xxxxxx

AUTHORISATION OF WORKS AND USE FOLLOWING RECEIPT OF OBJECTIONS

THE PROBLEM

Following receipt of objections, authorisation of the works and the use of the xxx Project (the Project) as described in Plans Nos. xxx to xxx (the Plans) and the Scheme at **Annex A** is required. Resumption Plan No. XXXXXX (Sheet 1 to X) (the Resumption Plan) for the Scheme is at **Annex B**.

A
B

ADVICE SOUGHT

2. Members are asked to advise whether the Chief Executive in Council (CE in C), under section 11 of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) (the Ordinance), should –

(a) authorise the works and the use as described in the Plans and the Scheme; or

(b) authorise the works and the use as described in the Plans and the Scheme, subject to any modifications or conditions as the CE in C thinks fit; or

(c) refer the Plans, the Scheme and the objections to the Town Planning Board; or

(d) decline to authorise the works and the use as described in the Plans and the Scheme.

THE SCHEME

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3. The proposed road works are required to XXX. The Scheme involves –

(a) xxx;

(b) xxx; and

(c) xxx.

THE OBJECTIONS

4. The Plans and the Scheme were gazetted on xxx 202X and xxx 202X and were made available for public inspection. XXX [3] objections were received during the statutory objection period. To ensure that the objectors' views would be duly considered, a total of xx objection resolution meetings were held from XXX 202X to XXX 202X. After receiving responses from the XX Department (XXD), XXX objections were withdrawn unconditionally and considered resolved. For the remaining xx objections, xx objections were withdrawn on conditions; xx objections were maintained and the objectors of xx objections did not respond. These xx objections are regarded as maintained and considered unwithdrawn. The objections may be categorized as follows –

(a) Group 1 – Residents in XX

XX objections were lodged by the residents living in XXX. Out of the xx objections, xx of them were registered in the form of individual letters while the remaining xx objections were made in proforma objection letters. After receiving XXD's responses, the objectors of XX objections had replied. Among them, xx objections were withdrawn unconditionally; xx objections were withdrawn conditionally; and xx objections were maintained. XX objections are regarded as maintained.

(b) Group 2 – Companies in XX

XX objections were lodged by the business companies at XXX along the proposed roads. All of the xx objections were made in the form of individual letters. After receiving XXD's responses, the objectors of xx objections had replied. Among them, xx objection was withdrawn unconditionally; and xx objections were maintained. XX objections are regarded as maintained.

(c) Group 3 – Others

A total of xx objections were lodged by others including xx land owners, a member of the XX District Council (XXDC) and the Chairman of XXX District Resident Association. All objections

3 XX objections were proforma objection letters.

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were made in the form of individual letters. After receiving XXD's responses, the objectors of xx objections had replied. Among them, xx objections were withdrawn unconditionally; xx objections were withdrawn conditionally; and xx objections were maintained. XX objections are regarded as maintained.

5. Copies of the objection letters, notes of meetings and correspondence between XXD and the objectors have been deposited at the Executive Council Secretariat for Members' inspection. The objectors have been informed that their correspondence with XXD would be submitted to the CE in C for consideration under the Ordinance. Plans Nos. xxx and xxx showing the C locations to which the objections relate are at **Annex C**. The list of objections D and the final stance of the objectors is at **Annex D**.

CRITERIA FOR MEETING AN OBJECTION

6. As a general rule, where an objection is considered valid, an attempt will be made to ameliorate or avoid the effect of the works and the use by modifying the Scheme, provided that such modification(s) –

(a) would unlikely generate further objection(s);

(b) would not be against the public interest; and

(c) would not result in disproportionate additional cost.

ASSESSMENT OF OBJECTIONS

7. The assessment of objections, including the objectors' major concerns and requests, XXD's responses and objectors' final stance, are tabulated at E **Annex E**. The gist of objections is set out in paragraph X below.

8. The objections relate to three major issues, including issue A, issue B and issue C. The objectors' major concerns and requests, together with XXD's responses, are summarised as follows -

Issue A – XXX

(a) the objectors expressed concerns about xxx. In response, XXD pointed out that xxx;

Issue B – XXX

(b) the objectors expressed concerns about xxx. In response, XXD pointed out that xxx; and

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Issue C – XXX

(c) the objectors expressed concerns about xxx. In response, XXD pointed out that xxx.

LAND RESUMPTION AND CLEARANCE

9. No land resumption will be required for the Scheme. The Scheme would involve clearance of about XX hectares of Government land.

IMPLICATION OF NOT AUTHORISING THE WORKS AND THE USE

10 If the works and the use are not authorised, xxx.

IMPLICATIONS OF THE PROPOSAL

11 The Scheme has no civil service or gender implications [if you consider there is no such implications after assessment]. The financial, economic, environmental, sustainability and family implications of the Scheme are set out at **Annex F**. [Please refer to Section 3.8 Part (h) of the ExCo manual for the implications to be assessed.]

PUBLIC CONSULTATION

12. xxx.....

PUBLIC REACTION

13. xxx.....

PUBLICITY

14. If the works and the use are authorised to proceed, a notice of authorisation will be published in the Gazette according to the Ordinance. A press release will be issued on the same day. We do not consider it necessary to issue a Legislative Council brief [if you consider there is no such necessity after assessment].

CHINESE MAINLAND RELATIONS AND RELATED PUBLIC RELATIONS MEASURES

15. The Scheme has no implications on Chinese Mainland relations. No related public relations measure is considered necessary.

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BACKGROUND

16. xxx.....

17. A separate Memorandum for Executive Council on the sewerage works and the use under the Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation (Chapter 358AL) is submitted for Members' consideration at the same meeting.

G 18. A list of abbreviations used in this memorandum is at **Annex G**.

ATTENDANCE

Mr xxx	Deputy Manager XXX Office XXX Department
Mr xxx	Chief Engineer XXX Office XXX Department

Transport and Logistics Bureau
xxx 202x **COUNCIL CHAMBER**
TLB(TL) 5/x/x

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APPENDIX 3.6 NOT USED

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APPENDIX 3.6A SAMPLE ORDER UNDER s.13

ROADS (WORKS, USE AND COMPENSATION) ORDINANCE
(Chapter 370)

(Order under section 13(1))

RESUMPTION OF LAND FOR
Project Title

In exercise of powers delegated by the Chief Executive of the Hong Kong Special Administrative Region, I hereby direct under section 13(1) of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) (hereinafter referred to as "the Ordinance") that all that piece or parcel of land/all those pieces or parcels of land in Hong Kong/Kowloon/the New Territories more particularly described below:-

(Insert description of the land to be resumed.)

[e.g. Lots Nos. ... Demarcation District Nos. ... (Address where appropriate)]

and shown coloured orange on the Resumption Plan No. [XXXX] annexed hereto, which land was described in the scheme referred to in Government Notice No. [XXXX] published on [dd mm yyyy] and [dd mm yyyy], shall be resumed for the purposes of or incidental to the works or use described in the said scheme and I specify the period of notice to be stated under section 13(2) of the Ordinance to be THREE MONTHS from the date upon which a notice under section 14 of the Ordinance is affixed on or near the said land.

Dated this [d] day of [mm yyyy].

( )
Deputy Director of Lands/Specialist

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道路(工程、使用及補償)條例(第370章)

(根據第13(1)條發出的命令)

[工程名稱]

收回土地

本人現行使香港特別行政區行政長官所授予的權力，根據《道路(工程、使用及補償)條例》(第370章)(下稱「該條例」)第13(1)條，為下述計劃所描述的工程或使用或附帶事宜的目的，指令收回位於港島/九龍/新界詳述如下的一塊或一幅土地/各塊或各幅土地：

(填上將予收回土地的描述。)

[例如：丈量約份第……約地段第……號(地址，如適用)。]

上述土地的範圍，已在本命令附連的第[XXXX]號收地圖則上以橙色標示。有關土地詳情，已於[yyyy]年[m]月[d]日及[yyyy]年[m]月[d]日刊登的第[XXXX]號政府公告所提述的計劃內描述。本人並指明根據該條例第13(2)條須述明的通知期為三個月，由根據該條例第14條所發出的通知書張貼於上述土地或其附近的日期起計。

[yyyy]年[m]月[d]日

地政總署副署長/專業事務XXX

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APPENDIX 3.7 NOT USED

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APPENDIX 3.7A SAMPLE NOTICE UNDER s.14

LANDS DEPARTMENT

ROADS (WORKS, USE AND COMPENSATION) ORDINANCE
(Chapter 370)

(Notice under section 14)

RESUMPTION OF LAND FOR
Project Title

TAKE NOTICE that under powers delegated by the Chief Executive of the Hong Kong Special Administrative Region, the Deputy Director/Specialist, Lands Department has made an order under section 13(1) of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) (hereinafter referred to as "the Ordinance") directing that all that piece or parcel of land/all those pieces or parcels of land in Hong Kong/Kowloon/the New Territories more particularly described below:–

(Insert description of the land to be resumed.)

[e.g. Lots Nos. ... Demarcation District Nos. ... (*Address where appropriate*)*]*

and shown coloured orange on the Resumption Plan No. [XXXX] annexed to the said order, which land was described in the scheme referred to in Government Notice No. [XXXX] published on [dd mm yyyy] and [dd mm yyyy] shall be resumed.

The electronic version of this notice and the aforesaid Resumption Plan may be viewed on the Lands Department website (https://www.landsd.gov.hk/en/resources/gov-notices/acq.html) under Government Notices after this notice is published in the Gazette. A copy of the said order, a copy of this notice, and the aforesaid Resumption Plan may be inspected by members of the public, free of charge, at the following offices during the following hours when those offices are normally open to the public:–

Offices	Opening Hours (except public holidays)
Central and Western Home Affairs Enquiry Centre, Ground Floor, Harbour Building, 38 Pier Road, Central, Hong Kong	Monday to Friday 9:00 a.m. – 7:00 p.m.
[Home Affairs Enquiry Centre / District Office concerned] [Address]	
[District Lands Office concerned] [Address]	Monday to Friday 8:45 a.m. – 12:30 p.m. and 1:30 p.m. – 5:30 p.m.

This notice was affixed on or near the said land on [date].

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The Deputy Director/Specialist, Lands Department has under section 13(2) of the Ordinance specified a period of notice of THREE MONTHS from the date upon which this notice was affixed on or near the said land.

It is hereby declared that upon expiry of that period at midnight on [dd mm yyyy], the land described above shall by virtue of section 13(3) of the Ordinance revert to the Government of the Hong Kong Special Administrative Region/vest in The Financial Secretary Incorporated for the purposes of or incidental to the works or use described in the said scheme. The date of reversion/vesting shall be [dd mm yyyy].

Any person entitled to compensation under the Ordinance may serve upon upon the Secretary for Transport and Logistics a written claim, which can be submitted via one of the following means, before the expiration of one year from the date of resumption:–

(1) By post or by hand to the Transport and Logistics Bureau's Drop-in Box No. 6 located at the 2nd Floor Entrance, East Wing, Central Government Offices, 2 Tim Mei Avenue, Tamar, Hong Kong. The box is available for use between 8:00 a.m. and 7:00 p.m. from Monday to Friday (except public holidays);
(2) By fax to (852) 2868 4643; or
(3) By email to gazettetlb@tlb.gov.hk.

Personal Information Collection Statement

Any information, including the personal data, submitted to the Secretary for Transport and Logistics in connection with any written claims served under section 29 of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) will be used for the processing of the claims and other related purposes. The provision of any information, including the personal data, other than the information as required under section 29 of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) is obligatory. If such information, including the personal data, as required under section 29 of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) is not provided as requested, the claims may be rejected. Any information, including the personal data, so submitted may be disclosed to the relevant government departments and other organizations or agencies which are required to handle the claims and related matters. Persons who have so submitted their personal data have the rights to request access to and correction of their personal data in relation to their claims. Request for access to or correction of the personal data should be made in writing to the Personal Data Privacy Officer of the Transport and Logistics Bureau at 20th Floor, East Wing, Central Government Offices, 2 Tim Mei Avenue, Tamar, Hong Kong.

( )
District Lands Officer

Date:

地政總署

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道路(工程、使用及補償)條例(第370章)

(根據第14條規定所發的通知書)

[工程名稱]

現公布地政總署副署長(專業事務)已根據香港特別行政區行政長官所授予的權力，根據《道路(工程、使用及補償)條例》(第370章) (下稱「該條例」)第 13(1) 條發出命令，指令收回位於港島 / 九龍 / 新界詳述如下的一塊或一幅土地 / 各塊或各幅土地：

(填上將予收回土地的描述。)

[例如：丈量約份第……約地段第……號(地址，如適用)。]

上述土地的範圍，已在上述命令附連的第[XXXX]號收地圖則上以橙色標示。有關土地詳情，已於[yyyy]年[m]月[d]日及[yyyy]年[m]月[d]日刊登的第[XXXX]號政府公告所提述的計劃內描述。

公眾人士可在本通知書刊登《憲報》之後，於地政總署網頁(https://www.landsd.gov.hk/tc/resources/gov-notices/acq.html)政府公告一欄內，瀏覽本通知書及上述收地圖則的電子版本。下列辦事處備有上述命令和本通知書的副本，以及上述收地圖則，公眾人士可於辦事處下述一般開放時間內免費查閱：

辦事處	開放時間 (公眾假期除外)
香港中環統一碼頭道38號 海港政府大樓地下 中西區民政諮詢中心	星期一至星期五 上午9時至 晚上7時
[當區民政諮詢中心 / 民政事務處] [地址]	
[當區地政處] [地址]	星期一至星期五 上午8時45分至 下午12時30分 以及 下午1時30分至 下午5時30分

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本通知書已於[yyyy]年[m]月[d]日張貼於上述土地或其附近。

地政總署副署長(專業事務)已根據該條例第 13(2) 條，指明通知期為三個月，由本通知書張貼於上述土地或其附近的日期起計。

謹此聲明，在該通知期屆滿時，即於[yyyy]年[m]月[d]日*(通知期到期日)*午夜，上述土地即憑藉該條例第13(3)條，為上述計劃所描述的工程或使用或附帶事宜的目的，而歸還香港特別行政區政府所有 / 歸屬財政司司長法團所有。土地歸還／歸屬日期為[yyyy]年[m]月[d]。

根據該條例有權獲得補償的人士可以書面向運輸及物流局局長提出申索。書面申索須於政府收地日期起計一年內，經下列其中一個方式遞交：

(1) 以郵遞或專人送達方式，把書面申索投入設於香港添馬添美道2號政府總部東翼2樓入口處的運輸及物 流 局第6號投遞箱。投遞箱的收件時間為星期一至星期五(公眾假期除外)上午8時至晚上7時；

(2) 傳真至(852)2868 4643；或

(3) 電郵至gazettetlb@tlb.gov.hk。

收集個人資料聲明

凡與任何根據《道路(工程、使用及補償)條例》(第370章)第29條提出的書面申索有關而提交予運輸及物流局局長的資料(包括個人資料)，將用於處理該等申索及其他相關用途。申索人必須提供《道路(工程、使用及補償)條例》(第370章) 第29條所要求的資料(包括個人資料)。如果沒有按照《道路(工程、使用及補償)條例》(第370章)第29條的規定提供所需資料(包括個人資料)，申索或會被駁回。所有已提交的資料(包括個人資料)，皆或會向須處理該等申索及相關事宜的有關政府部門及其他組織或機構披露。上述提交個人資料的人士有權要求查閱和改正與他們的申索有關的個人資料。查閱或改正個人資料的要求須以書面向運輸及物流局保障個人資料(私隱)主任提出，聯絡地址為香港添馬添美道2號政府總部東翼20樓。

[yyyy]年[m]月[d]日

地政專員XXX

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APPENDIX 3.8 NOT USED

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APPENDIX 3.8A SAMPLE ORDER UNDER s.15

ROADS (WORKS, USE AND COMPENSATION) ORDINANCE
(Chapter 370)

(Order under section 15(1))

CREATION OF EASEMENTS/PERMANENT RIGHTS/
RIGHTS OF TEMPORARY OCCUPATION OF LAND FOR
Project Title

In exercise of powers delegated by the Chief Executive of the Hong Kong Special Administrative Region, I hereby direct under section 15(1) of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) (hereinafter referred to as "the Ordinance") that:-

(a) easements/permanent rights in/under/over all that piece or parcel of land/all those pieces or parcels of land in Hong Kong/Kowloon/the New Territories more particularly described below and shown coloured purple on the Plan for Creation of Easements/Permanent Rights No. [XXXX] annexed hereto:—

(Insert description of the land.)

[e.g. Lots Nos. ... Demarcation District Nos. ... (Address where appropriate)]

which land was described in the scheme referred to in Government Notice No. [XXXX] published on [dd mm yyyy] and [dd mm yyyy] ; and

(b) rights of temporary occupation for a period from [dd mm yyyy] to [dd mm yyyy] over all that piece or parcel of land/all those pieces or parcels of land in Hong Kong/Kowloon/the New Territories more particularly described below and shown coloured purple on the Plan for Creation of Rights of Temporary Occupation of Land No. [XXXX] annexed hereto:—

(Insert description of the land.)

[e.g. Lots Nos. ... Demarcation District Nos. ... (Address where appropriate)]

which land was described in the said scheme/scheme referred to in Government Notice No. [XXXX] published on [dd mm yyyy] and [dd mm yyyy],

be created in favour of the Government of the Hong Kong Special Administrative Region for the purposes of or incidental to the works or use described in the said scheme and I specify the period of notice to be stated under section 15(2) of the Ordinance to be THREE MONTHS from the date upon which a notice under section 16 of the Ordinance is affixed on or near the said land/the land described in (a) and (b) above.

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*Under section 15(3) of the Ordinance that subject to the serving of any notice required to be given under section 15(5) of the Ordinance, I further direct that the Government, its contractors, employees, servants, agents, licensees and any other persons authorized or permitted by the Government shall be authorized to enter upon the said land for the purposes of carrying out any operations or installing, maintaining or removing any structures or apparatus in connection with the said scheme.

Dated this [d] day of [mm yyyy].

( )
Deputy Director of Lands/Specialist

Date:

* To be deleted if provisions under section 15(3) are not required.

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道路(工程、使用及補償)條例(第370章)

(根據第15(1) 條規定所發的命令)

[工程名稱]

設定地役權／永久權利／暫時佔用土地權利

本人現行使香港特別行政區行政長官所授予的權力，根據《道路(工程、使用及補償)條例》(第370章)(下稱「該條例」)第 15(1) 條，為下述計劃所描述的工程或使用或附帶事宜的目的，指令為香港特別行政區政府：

(a) 在位於港島 / 九龍 / 新界詳述如下的一塊或一幅土地 / 各塊或各幅土地之內 / 之下 / 之上，設定地役權 / 永久權利。上述土地的範圍，已在本命令附連的第[XXXX]號設定地役權 / 永久權利圖則上以紫色標示：

(填上土地的描述。)

[例如：丈量約份第……約地段第……號(地址，如適用)。]

有關土地詳情，已於[yyyy]年[mm]月[dd]日和[yyyy]年[mm]月[dd]____日刊登的第[XXXX]號政府公告所提述的計劃內描述；以及

(b) 由[yyyy]年[mm]月[dd]日至[yyyy]年[mm]月[dd]日期間，在位於港島 / 九龍 / 新界詳述如下的一塊或一幅土地 / 各塊或各幅土地之上，設定暫時佔用土地權利。上述土地的範圍，已在本命令附連的第[XXXX]號設定暫時佔用土地權利圖則上以紫色標示：

(填上土地的描述。)

[例如：丈量約份第……約地段第……號(地址，如適用)。]

有關土地詳情，已於上述計劃 / [yyyy]年[mm]月[dd]日和[yyyy]年[mm]月[dd]日刊登的第[XXXX]號政府公告所提述的計劃內描述。

本人並指明根據該條例第15(2)條須述明的通知期為三個月，由根據該條例第16條所發出的通知書張貼於上述土地 / 上文(a)段和(b)段描述的土地或其附近的日期起計。

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*本人現根據該條例第15(3)條，進一步指令只須根據該條例第15(5)條送達任何所需通知書，政府、其承建商、僱員、受僱人、代理人、許可證持有人和任何獲政府授權或准許的其他人士，均獲授權進入上述土地，就該計劃進行任何作業，或裝設、保養或拆除任何構築物或器具。

[yyyy]年[mm]月[dd]日

地政總署副署長/專業事務___

* 如不需加入第 15(3) 條的規定，刪去此段。

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APPENDIX 3.9 NOT USED

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APPENDIX 3.9A SAMPLE NOTICE UNDER s.16

LANDS DEPARTMENT

ROADS (WORKS, USE AND COMPENSATION) ORDINANCE
(Chapter 370)

(Notice under section 16)

CREATION OF EASEMENTS/PERMANENT RIGHTS/
RIGHTS OF TEMPORARY OCCUPATION OF LAND FOR

Project Title

TAKE NOTICE that under powers delegated by the Chief Executive of the Hong Kong Special Administrative Region, the Deputy Director/Specialist, Lands Department has made an order under section 15(1) of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) (hereinafter referred to as "the Ordinance") directing that:-

(a) easements/permanent rights in/under/over all that piece or parcel of land/all those pieces or parcels of land in Hong Kong/Kowloon/the New Territories more particularly described below and shown coloured purple on the Plan for Creation of Easements/Permanent Rights No. [XXXX] annexed to the said order:—

(Insert description of the land.)

[e.g. Lots Nos. ... Demarcation District Nos. ... (Address where appropriate)]

which land was described in the scheme referred to in Government Notice No. [XXXX] published on [dd mm yyyy] and [dd mm yyyy] ; and

(b) rights of temporary occupation for a period from [dd mm yyyy] to [dd mm yyyy] over all that piece or parcel of land/all those pieces or parcels of land in Hong Kong/Kowloon/the New Territories more particularly described below and shown coloured purple on the Plan for Creation of Rights of Temporary Occupation of Land No. [XXXX] annexed to the said order:—

(Insert description of the land.)

[e.g. Lots Nos. ... Demarcation District Nos. ... (Address where appropriate)]

be created in favour of the Government of the Hong Kong Special Administrative Region for the purposes of or incidental to the works or the use described in the said scheme.

The Deputy Director/Specialist, Lands Department has under section 15(3) of the Ordinance further directed that subject to the serving of any notice required to be given under section 15(5) of the Ordinance, the Government, its contractors, employees, servants, agents, licensees and any other persons authorized or permitted by the Government shall be authorized

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to enter upon the said land for the purposes of carrying out any operations or installing, maintaining or removing any structures or apparatus in connection with the said scheme.

The electronic version of this notice and the aforesaid Plan No. [XXXX] and Plan No. [XXXX] may be viewed on the Lands Department website (https://www.landsd.gov.hk/en/resources/gov-notices/acq.html) under Government Notices after this notice is published in the Gazette. A copy of the said order, a copy of this notice, and the aforesaid Plan/Plans may be inspected by members of the public, free of charge, at the following offices during the following hours when those offices are normally open to the public:—

Offices	Opening Hours (except public holidays)
Central and Western Home Affairs Enquiry Centre, Ground Floor, Harbour Building, 38 Pier Road, Central, Hong Kong	Monday to Friday 9:00 a.m. – 7:00 p.m.
[Home Affairs Enquiry Centre / District Office concerned] [Address]	
[District Lands Office concerned] [Address]	Monday to Friday 8:45 a.m. – 12:30 p.m. and 1:30 p.m. – 5:30 p.m.

This notice was affixed on or near the said land/the land described in (a) and (b) of the first paragraph above on [dd mm yyyy].

The Deputy Director/Specialist, Lands Department has under section 15(2) of the Ordinance specified a period of notice of THREE MONTHS from the date upon which this notice was affixed on or near the said land/the land described in (a) and (b) of the first paragraph above.

It is hereby declared that upon expiry of that period at midnight on [dd mm yyyy], the easements/rights described in this notice shall by virtue of section 15(4) of the Ordinance be created in favour of the Government of the Hong Kong Special Administrative Region for the purposes of or incidental to the works or the use described in the said scheme. The date of creation of the easements/rights described in this notice shall be [dd mm yyyy].

Any person having a compensatable interest under the Ordinance may serve upon the Secretary for Transport and Logistics a written claim, which can be submitted via one of the following means, before the expiration of one year from the date on which the easements/rights are created:—

(1) By post or by hand to the Transport and Logistics Bureau's Drop-in Box No. 6 located at the 2nd Floor Entrance, East Wing, Central Government Offices, 2 Tim Mei Avenue, Tamar, Hong Kong. The box is available for use between 8:00 a.m. and 7:00 p.m. from Monday to Friday (except public holidays);
(2) By fax to (852) 2868 4643; or
(3) By email to gazettetlb@tlb.gov.hk.

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Personal Information Collection Statement

Any information, including the personal data, submitted to the Secretary for Transport and Logistics in connection with any written claims served under section 29 of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) will be used for the processing of the claims and other related purposes. The provision of any information, including the personal data, other than the information as required under section 29 of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) is obligatory. If such information, including the personal data, as required under section 29 of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) is not provided as requested, the claims may be rejected. Any information, including the personal data, so submitted may be disclosed to the relevant government departments and other organizations or agencies which are required to handle the claims and related matters. Persons who have so submitted their personal data have the rights to request access to and correction of their personal data in relation to their claims. Request for access to or correction of the personal data should be made in writing to the Personal Data Privacy Officer of the Transport and Logistics Bureau at 20th Floor, East Wing, Central Government Offices, 2 Tim Mei Avenue, Tamar, Hong Kong.

( )
District Lands Officer

Date:

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地政總署

道路(工程、使用及補償)條例(第370章)

(根據第16條規定所發的通知書)

[工程名稱]

設定地役權／永久權利／暫時佔用土地權利

現公布地政總署副署長(專業事務)已根據香港特別行政區行政長官所授予的權力，根據《道路(工程、使用及補償)條例》(第370章)(下稱「該條例」)第15(1)條發出命令，為下述計劃所描述的工程或使用或附帶事宜的目的，指令為香港特別行政區政府：

(a) 在位於港島／九龍／新界詳述如下的一塊或一幅土地／各塊或各幅土地之內／之下／之上，設定地役權／永久權利。上述土地的範圍，已在本命令附連的第[XXXX]號設定地役權／永久權利圖則上以紫色標示：

(填上土地的描述。)

[例如：丈量約份第……約地段第……號(地址，如適用)。]

有關土地詳情，已於[yyyy]年[mm]月[dd]日和[yyyy]年[mm]月[dd]_____日刊登的第[XXXX]號政府公告所提述的計劃內描述；以及

(b) 由[yyyy]年[mm]月[dd]日至[yyyy]年[mm]月[dd]日期間，在位於港島／九龍／新界詳述如下的一塊或一幅土地／各塊或各幅土地之上，設定暫時佔用土地權利。上述土地的範圍，已在本命令附連的第[XXXX]號設定暫時佔用土地權利圖則上以紫色標示：

(填上土地的描述。)

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[例如：丈量約份第……約地段第……號(地址，如適用)。]

有關土地詳情，已於上述計劃 / [yyyy]年[mm]月[dd]日和[yyyy]年[mm]月[dd]日刊登的第[XXXX]號政府公告所提述的計劃內描述。

*地政總署副署長(專業事務)已根據該條例第15(3)條，進一步指令只須根據該條例第15(5)條送達任何所需通知書，政府、其承建商、僱員、受僱人、代理人、許可證持有人和任何獲政府授權或准許的其他人士，均獲授權進入上述土地，就該計劃進行任何作業，或裝設、保養或拆除任何構築物或器具。

公眾人士可在本通知書刊登《憲報》之後，於地政總署網頁(https://www.landsd.gov.hk/tc/resources/gov-notices/acq.html)政府公告一欄內，瀏覽本通知書及上述第[XXXX]號及第[XXXX]號圖則的電子版本。下列辦事處備有上述命令和本通知書的副本，以及上述圖則 / 各份圖則，公眾人士可於辦事處下述一般開放時間內免費查閱：

辦事處	開放時間 (公眾假期除外)
香港中環統一碼頭道38號 海港政府大樓地下 中西區民政諮詢中心	星期一至星期五 上午9時至 晚上7時
[地址] [當區民政諮詢中心 / 民政事務處]	
[地址] [當區地政處]	星期一至星期五 上午8時45分至 下午12時30分 以及 下午1時30分至 下午5時30分

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本通知書已於[yyyy]年[mm]月[dd]日張貼於上述土地/上文第一段(a)段和(b)段描述的土地或其附近。

地政總署副署長(專業事務)已根據該條例第15(2)條，指明通知期為三個月，由本通知書張貼於上述土地/上文第一段(a)段和(b)段描述的土地或其附近的日期起計。

謹此聲明，在該通知期屆滿時，即於[yyyy]年[mm]月[dd]日午夜，本通知書所描述的地役權/權利即憑藉該條例第15(4)條，為上述計劃所描述的工程或使用或附帶事宜的目的，為香港特別行政區政府而設定。設定本通知書所描述的地役權/權利的日期為[yyyy]年[mm]月[dd]日。

根據該條例有權獲得補償的人士可以書面向運輸及物流局局長提出申索。書面申索須於設定上述[地役權/權利]的日期起計一年內，經下列其中一個方式遞交：

(1) 以郵遞或專人送達方式，把書面申索投入設於香港添馬添美道2號政府總部東翼2樓入口處的運輸及物流局第6號投遞箱。投遞箱的收件時間為星期一至星期五(公眾假期除外)上午8時至晚上7時；

(2) 傳真至(852)2868 4643；或

(3) 電郵至gazettetlb@tlb.gov.hk。

收集個人資料聲明

凡與任何根據《道路(工程、使用及補償)條例》(第370章)第29條提出的書面申索有關，而提交予運輸及物流局局長的資料(包括個人資料)，將用於處理該等申索及其他相關用途。申索人必須提供《道路(工程、使用及補償)條例》(第370章) 第29條所要求的資料(包括個人資料)。如果沒有按照《道路(工程、使用及補償)條例》(第370章)第29條的規定提供所需資料(包括個人資料)，申索或會被駁回。所有已提交的資料(包括個人資料)，皆或會向須處理該等申索及相關事宜的有關政府部門及其他組織或機構披露。上述提交個人資料的人士有權要求查閱和改正與他們的申索有關的個人資料。查閱或改正

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個人資料的要求須以書面向運輸及物流局保障個人資料(私隱)主任提出，聯絡地址為香港添馬添美道2號政府總部東翼20樓。

[yyyy]年[mm]月[dd]日

地政專員XXX

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APPENDIX 3.10 NOT USED

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APPENDIX 3.10A SAMPLE ORDER UNDER s.17

Roads (Works, Use and Compensation) Ordinance (Chapter 370)

(Order under section 17)

Project Title

In exercise of powers delegated by the Chief Executive, I hereby direct under section 17(1)(a) *[and 17(1)(b)] of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) ("the Ordinance") that sections of the existing [XXXX] within the limit of works area as shown on Plan[s] No[s]. [XXXX] ("the Plan[s]") and described in the scheme annexed thereto be permanently closed; and that sections of the existing [XXXX] within the limit of works area be temporarily closed. *[; and that the Government foreshore and/ or sea-bed within the limit of works area as shown on the Plan[s]be reclaimed/affected.] The Plan[s] and scheme were referred to in G.N. [XXXX] published on [d mmmm yyyy] and [d mmmm yyyy]. I further declare under section 17(1)(c) of the Ordinance that as from [d mmmm yyyy], all public or private rights in, upon, under or over the sections of the existing [XXXX] to be permanently closed, shall be extinguished; and from [d mmmm yyyy] to [d mmmm yyyy], all public or private rights in, upon, under or over the sections of the existing [XXXX] to be temporarily closed, shall be extinguished, modified or restricted, as the case may be, during that period. *[; and as from [d mmmm yyyy], all public or private rights in, upon, under or over the Government foreshore and/or sea-bed to be reclaimed, shall be extinguished. / and from [d mmmm yyyy] to [d mmmm yyyy], all public or private rights in, upon, under or over the Government foreshore and/or sea-bed to be affected, shall be extinguished, modified or restricted, as the case may be, during that period.]

( )
Permanent Secretary for Transport and Logistics

Date:

* To be deleted if the Government foreshore and/or sea-bed is not required to be reclaimed or affected

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道路(工程、使用及補償)條例(第370章)

(根據第17條規定所發的命令)

[工程名稱]

本人現行使行政長官授予的權力，根據《道路(工程、使用及補償)條例》(第 370 章)(下稱"該條例")第 17(1)(a) *[和17(1)(b)] 條的規定發出指示，永久封閉施工區界限內部分現有[XXXX]，[以及]暫時封閉施工區界限內部分現有[XXXX]。*[，以及填平／影響施工區界限內的政府前濱及／或海床。] 施工區界限在圖則第 [XXXX] 號(下稱"該[等]圖則")顯示，並在附連的計劃內說明。該[等]圖則及計劃已在[yyyy] 年[m] 月[d] 日及[yyyy] 年[m] 月[d] 日刊登的第 [XXXX] 號政府公告提述。本人並根據該條例第 17(1)(c) 條的規定聲明，由[yyyy] 年[m] 月[d] 日起，上述須永久封閉的部分現有[XXXX]的一切公有權利或私人權利，或須永久封閉的部分現有[XXXX]上、之下或之上的一切公有權利或私人權利，須予終絕；[以及]由[yyyy] 年[m] 月[d] 日起至[yyyy] 年[m] 月[d] 日止，上述須暫時封閉的部分現有[XXXX]的一切公有權利或私人權利，或須暫時封閉的部分現有[XXXX]上、之下或之上的一切公有權利或私人權利，視乎個別情況在上述期間須予終絕、修改或限制。*[；以及由[yyyy] 年[m] 月[d] 日起，上述須填平的政府前濱及／或海床的一切公有權利或私人權利，或須填平的政府前濱及／或海床上、之下或之上的一切公有權利或私人權利，須予終絕。／；以及由[yyyy] 年[m] 月[d] 日起至[yyyy] 年[m] 月[d] 日止，上述受影響的政府前濱及／或海床的一切公有權利或私人權利，或受影響的政府前濱及／或海床上、之下或之上的一切公有權利或私人權利，視乎個別情況在上述期間須予終絕、修改或限制。]

20XX年XX月XX日

運輸及物流局常任秘書長XXX

* 如無須填平／影響政府前濱及／或海床，刪去此句。

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APPENDIX 3.11 NOT USED

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APPENDIX 3.11A SAMPLE REPLY AND REPLY SLIP FOR OBJECTION HANDLING UNDER SECTION 10 OF ROADS (WORKS, USE AND COMPENSATION) ORDINANCE

SAMPLE REPLY TO OBJECTION (WITH OBJECTOR'S REPLY SLIP)

ROADS (WORKS, USE AND COMPENSATION) ORDINANCE
(CHAPTER 370)
[insert the gazette number]
***[insert the title of the works]*(“the Project”)**
[insert the reference number of the objection[4]]

Your objection dated *[state the date of the objection received]* to the Project has been forwarded by the Transport and Logistics Bureau to this office for follow up.

2. A case number (Objection Case Number:) is assigned to your objection to the Project. Please quote this case number in future correspondence for identification.

3. Regarding your objection, please find our reply as follows

[state the substantive reply and provide the relevant information required by the objector, if appropriate, the reply can be provided in an Annex to this covering letter.]

4.
We hope our reply can address your concerns. According to subsection (5) of Section 10 of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) (“the Ordinance”), you may give a response to this reply on or before *[14-day period to be specified[5]]* by filling in the attached reply slip (including any comment on, or any request in connection with, this reply); and returning the reply slip to this office vide facsimile, post or electronic mail. If you choose to send your response by post, please send it as early as possible so that it can reach this office on or before the above specified date. Therefore, you may also consider sending it by facsimile or electronic mail.

5. Please be reminded that according to subsection (7) of Section 10 of the Ordinance, any response given after the date specified in paragraph 4 above will be treated as not having been given. Your previous stance *[state the date of the objection]* will be deemed as your position on the works and your objection will be deemed as unwithdrawn.

6. If your objection has not been withdrawn unconditionally, your objection and all related correspondence, including correspondence between you and the Government, will be submitted to the Chief Executive in Council for consideration under the Ordinance.

7. Thank you for your comments on the Project. Should you have any enquiries, please contact *[state the undersigned or other relevant officer(s)]* at *[state the telephone number/email of the relevant officer(s)]*.

4 [For administrative convenience, the initiating department/ office should assign a serial number for the objection]
5 [You may refer to DEVB's email dated 7 December 2023 for how 14 days should be counted]

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REPLY SLIP

To: *[State the department]* Fax. No. *[State the number]*
[State the address] Email: *[State the email]*

ROADS (WORKS, USE AND COMPENSATION) ORDINANCE
(CHAPTER 370)
[insert the gazette number]
***[insert the title of the works]*(“the Project”)**
[insert the reference number of the objection]

I acknowledge receipt of the letter ref. *[reference number]* from *[the department]* dated *[reply date]* in accordance with subsection (5) of Section 10 of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) (“the Ordinance”). I hereby, provide my response below and acknowledge that this response, if given on or before *[14-day period to be specified[6]]*, and my past comment will be submitted to the Chief Executive in Council for consideration under the Ordinance if I do not withdraw my objection unconditionally.

Having considered the reply from the Government, my current stance towards the works is:

* ☐ I withdraw objection to the proposal unconditionally
☐ I withdraw objection to the proposal with conditions:
_____
(you may attach extra pages when necessary)
☐ I maintain objection
☐ I provide supplementary comments:
_____
(you may attach extra pages when necessary)

* Please insert “✓” in the ☐ as appropriate.

Name: _____ Signature: _____
Date: _____ Telephone Number: _____
Correspondence address/ email address: _____
Remarks[7]:

6 [You may refer to DEVB’s email dated 7 December 2023 for how 14 days should be counted]
7 [Please insert any remarks, including clause related to confidentiality and personal data.]

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[中文譯本]

道路(工程、使用及補償)條例
(第370章)
[相關公告號]
***[相關工程名稱]*("本工程")**
[反對書號碼[8]]

就閣下於*[反對書日期]*的反對書，運輸及物流局已轉交本署跟進。

2. 你的來信現登記為第*[反對書號碼]*號反對書，日後來信請引用此編號。

3. 有關 閣下就本工程項目提出的反對書，本署現謹提供書面答覆如下：

[提供詳細答覆或提供反對者需要的資訊。如覺得合適，可以以附件答覆]

4. 希望我們的答覆能釋除 閣下的疑慮。根據道路(工程、使用及補償)條例("條例")第10(5)條， 閣下可在*[14日限期期滿之日[9]]*或之前填妥隨函附上的回條(包括對本答覆的評論或相關要求)並以傳真、郵遞或電郵方式送交本署。 如使用郵遞方式，請及早寄出以使回覆能在上述限期內送交到本署，故此 閣下亦可考慮以傳真或電郵方式送交。

5. 請 閣下留意，根據條例的第10(7)條，如 閣下未能在上述第4段所指的限期內給予回覆，有關回覆會被視為不曾給予。本署會視 閣下未有撤回對本工程的意見及維持於*[反對書日期]*所述的反對立場。

8 [為行政需要，請標明獨立反對書編號。]
9 [就14日限期的計算方法，可參照發展局於2023年12月7日的電郵。]

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6. 如 閣下未有無條件撤回反對，我們將會把你的反對書及所有相關信件/電郵(包括與本署的往來信件/電郵)連同回條呈交行政長官會同行政會議以供考慮。

7. 本署謹此多謝 閣下就本工程項目提出的意見。若有任何查詢，歡迎致電*[電話號碼]*或電郵至*[電郵地址]*與*[有關官員名字]*聯絡。

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回條

提交: *[部門名稱]* 傳真號碼: *[傳真號碼]*

[地址] 電郵: *[電郵地址]*

道路(工程、使用及補償)條例
(第370章)
[相關公告號]
***[相關工程名稱]*("本工程")**
[反對書號碼]

根據道路(工程、使用及補償)條例(第370章)("條例")第10(5)條，本人確認已收到由*[部門]*於*[答覆日期]*發出的信件(信件參考編號為:*[檔號]*)。本人在此回條提供回覆，並得悉如本人不選擇無條件撤回反對，本人的反對書及其後的意見，包括此回覆(如在[*14日限期期滿之日*[10]]或之前提交)，將會呈交行政長官會同行政會議以供考慮。

2. 經考慮政府的答覆，本人現在對本工程的立場為:

* ☐ 本人無條件撤回反對

☐ 本人有條件撤回反對

_____

(如有需要，可以附加額外頁面)

☐ 本人維持反對

☐ 本人提交補充意見

_____

(如有需要，可以附加額外頁面)

* 請在☐ 方格內填上 "✓"

姓名: _____ 簽名: _____

日期: _____ 電話號碼: _____

通信地址: _____

備註[11]:

10 [就14日限期的計算方法，可參照發展局於2023年12月7日的電郵。]

11 [請按實際需要填上備註，包括收集個人資料聲明]

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APPENDIX 3.11B EXAMPLES OF THE SPECIFIED MINOR WORKS UNDER SECTION 16A OF FORESHORE AND SEA-BED (RECLAMATIONS) ORDINANCE

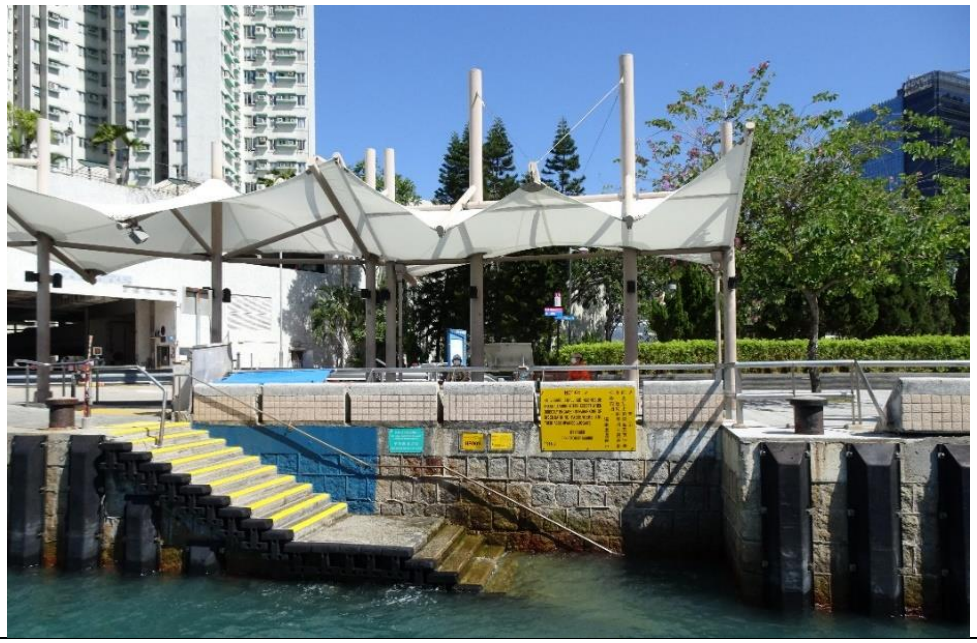
Descriptions of proposed types of works under minor works mechanism in Cap. 127

(a) "**Pier**" includes every quay, wharf or jetty of whatever description connected to and having direct access to the shore and used or intended to be used for the purposes of a pier, quay, wharf or jetty

Example: Suk Kwu Wan Pier No. 2

(b) "**landing steps**" is a landing place with steps for embarkation or disembarkation of passengers and their accompanied luggage on or from a vessel.

Example: Aberdeen Praya Road Landing No. 6



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(c) "**harbour steps**" is a fence-free stepped down water edge designed at the seawall to bring people closer to the water and facilitate public enjoyment of the waterfront.

Example: Harbour Step at Wan Chai

(d) "**slipway**" is a sloping structure at the seawall used for the movement of vessels to and from the sea.

Example: Wong Shek Slipway

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(e) "**mooring dolphin**" is an isolated structure used as a mooring.

Example: Mooring Dolphin in Hei Ling Chau Typhoon Shelter

(f) "**beacon**" means any light, mark or sign established as an aid to navigation.

Example: Beacon at Aberdeen

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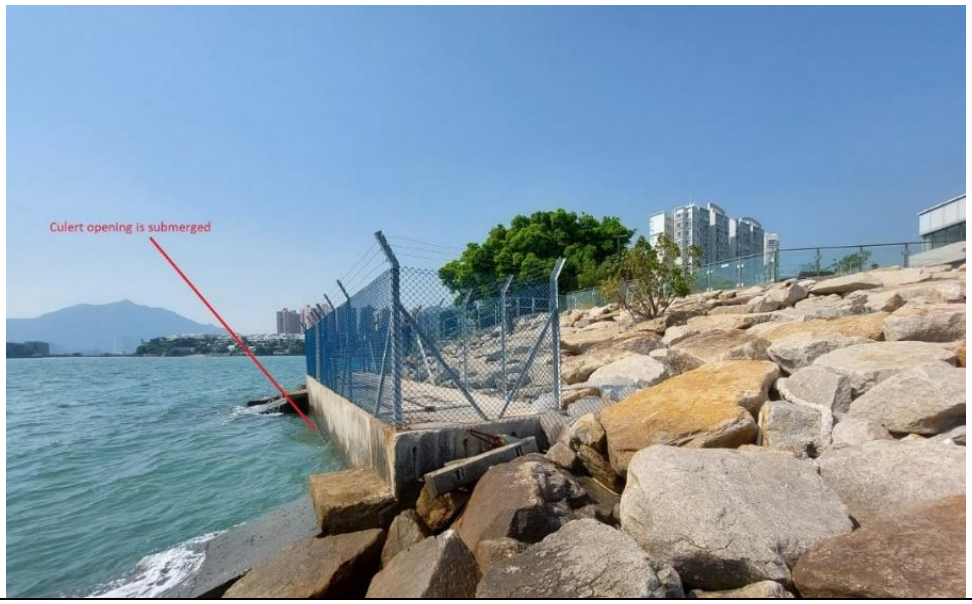
(g) "**floating pontoon**" is a floating pier usually consisting of a pontoon, an anchorage system and an access bridge connected to a seawall or an abutment at the shore.

Example: Floating pontoon at Tuen Mun Area 27

(h) "**seawater intake**" is a structure that draws seawater into pumping station. It is usually in box culvert form.

Example: Seawater intake



(i) "**submarine pipeline/outfall**" is a pipe laid from the shore to sea for discharging treated effluent to open sea or supplying water from one place to another or a structure at the shore, seawall or seabed from which stormwater or treated effluent is discharged. "Optical fibre or cable" is not regarded as a submarine pipeline/outfall.

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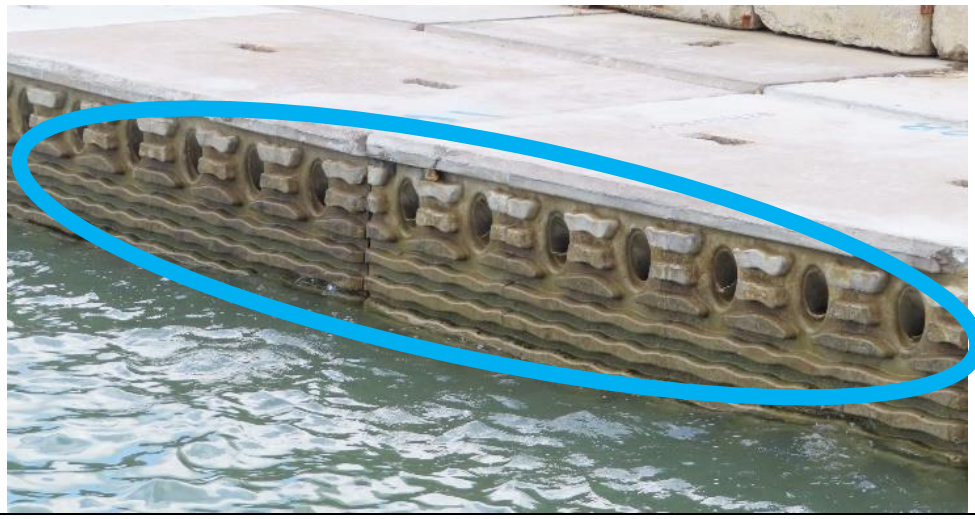
(j) "**diffuser for open sea discharge**" are water pipe(s) connected to the end of submarine outfall and laid under the seabed. It consists of a number of upstand pipes extended to above seabed with nozzles installed to enhance the dispersal of effluent to sea. Marine dredging works is normally required to install the diffuser pipes.

(k) "**peripheral structure or feature associated with a marine structure**" include eco-shoreline, fenders, ladders, water gauge, minor wave defense structures, precast wave breaking units, and any other features of similar nature. "Marine structure" means a platform or other man-made structure over and upon foreshore other than a pipeline, while "peripheral structure or feature" should be items that are affixed to the marine structure.

Example: Eco-shoreline at Tung Chung (bio-blocks)

Example: Vertical Eco-shoreline at Tung Chung (eco-tiles)



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Example: Fender

Example: Ladder

Example: Mooring facility

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Example: Minor wave defense structure

Example: Precast wave breaking units

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APPENDIX 3.11C MEMO FROM LANDSD – DELEGATION OF STATUTORY POWERS UNDER FORESHORE AND SEA-BED (RECLAMATIONS) ORDINANCE (CAP. 127) AS AMENDED BY DEVELOPMENT (TOWN PLANNING, LANDS AND WORKS) (MISCELLANEOUS AMENDMENTS) ORDINANCE 2023 (ORD. NO. 25 OF 2023)

MEMO

From	Director of Lands	To	Distribution
Ref.	(11) in LD LAO/LAR/1-145/2 Pt.6	(Attn.:	)
Tel. No.	2231 3000	Your Ref.	( ) in
Fax. No.	2868 4707	dated	Fax. No.
Date	27 November 2023	Total Pages	1 + 3

Delegation of Statutory Powers
under Foreshore and Sea-bed (Reclamations) Ordinance (Cap. 127)
as amended by Development (Town Planning, Lands and Works)
(Miscellaneous Amendments) Ordinance 2023 (Ord. No. 25 of 2023)

By virtue of section 43(1) of the Interpretation and General Clauses Ordinance (Cap. 1), I hereby delegate my statutory powers and functions under the Foreshore and Sea-bed (Reclamations) Ordinance (Cap. 127) as amended by the Development (Town Planning, Lands and Works) (Miscellaneous Amendments) Ordinance 2023 (Ord. No. 25 of 2023) to the public officers in departments specified in the attached schedule with immediate effect.

(Andrew LAI)
Director of Lands

Distribution

Director of Architectural Services (Attn: Ms CHAN Kwan-fong, Florence)	Fax No.: 2524 7948
Director of Civil Engineering and Development (Attn: Ms TONG Yee-mei, Angela)	Fax No.: 2760 9401
Director of Drainage Services (Attn: Mr CHENG Kin-ming, Stanley)	Fax No.: 3103 0060
Director of Electrical and Mechanical Services (Attn: Mr SIU Hiu-fai, Stanley)	Fax No.: 2882 5132
Director of Environmental Protection (Attn: Mr MAK Kwan-hon, Alvin)	Fax No.: 3528 0492
Director of Highways (Attn: Mr TANG Wing-keung, Ivan)	Fax No.: 2714 5216
Director of Leisure and Cultural Services (Attn: Ms WONG Kwan-yee, Jenny)	Fax No.: 2602 1480
Director of Marine (Attn: Mr LAW Lap-keung)	Fax No.: 3101 0914
Director of Water Supplies (Attn: Mr CHAN Chi-yuen, Stanley)	Fax No.: 2824 0578
cc: PAS(PL)1, PLB, DEVB	Fax No.: 2845 3489
CAS(W)3, WB, DEVB	Fax No.: 2810 8502
CEO/LAO, LandsD	Fax No.: 2116 0765

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Annex

SCHEDULE

Delegation of Statutory Powers from the Director of Lands to Officers of Other Departments
Foreshore and Sea-bed (Reclamations) Ordinance (Cap. 127)

Enactment	New provision		*To whom the power is delegated*
Foreshore and Sea-bed (Reclamations) Ordinance (Chapter 127)	s. 16A(1)	To authorize minor works over and upon foreshore and sea-bed, with the total area of the affected foreshore and sea-bed not exceeding 0.5 hectare, to construct any one or more of the items specified in the Schedule	**Architectural Services Department** Director of Architectural Services Deputy Director of Architectural Services Assistant Director (Architectural) Assistant Director (Property Services) Project Directors **Civil Engineering and Development Department** Director of Civil Engineering and Development Deputy Director of Civil Engineering and Development Heads Deputy Heads Project Managers Assistant Directors Deputy Project Managers Chief Engineers Chief Geotechnical Engineers Chief Town Planners **Drainage Services Department** Director of Drainage Services Deputy Director of Drainage Services Assistant Directors Chief Engineers

1

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Enactment	New provision	To whom the power is delegated
		Electrical and Mechanical Services Department Chief Engineer/Energy Efficiency C **Environmental Protection Department** Director of Environmental Protection Deputy Directors of Environmental Protection Assistant Directors Principal Environmental Protection Officers **Highways Department** Director of Highways Deputy Director of Highways Commissioner for Northern Metropolis Railways Assistant Directors Principal Government Engineer Project Manager Deputy Project Managers Regional Highway Engineers Government Engineers Chief Highway Engineers Chief Engineers **Leisure and Cultural Services Department** Director of Leisure and Cultural Services **Marine Department** (for mooring dolphin and beacon) Director of Marine Deputy Directors of Marine Assistant Directors of Marine Principal Marine Officers

2

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Enactment	New provision		To whom the power is delegated
			Water Supplies Department Director of Water Supplies Deputy Director of Water Supplies Assistant Directors Chief Engineers

3

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APPENDIX 3.11D LOGSHEET FOR MINOR WORKS UNDER SECTION 16A OF FORESHORE AND SEA-BED (RECLAMATIONS) ORDINANCE

Minor Works projects (section 16A) under the Foreshore and Sea-bed (Reclamations) Ordinance (Cap. 127)

Year	Project Title	Areas affected (m^2)	Description of works	Minor Works [Y/N]	Types of Minor Works (a) pier (b) landing steps; (c) harbour steps; (d) slipway; (e) mooring dolphin; (f) beacon; (g) floating pontoon; (h) submarine pipeline or outfall; (i) diffuser for open sea discharge; (j) seawater intake; or (k) peripheral features associated with a marine structure (such as eco-shoreline, fenders, ladders, water gauge and minor wave defence structures	Approving authority [Please record post title, rank and department]	Date of approval
2015	Public Works Programme Item No. 7754CL (Part) Infrastructure works for West Kowloon Cultural District, Phase 1 (Part) Reconstruction of existing seawall in West Kowloon	1,450	(i) The undertaking mainly involves reconstruction of 3three sections of the existing seawall in West Kowloon for the purposes of upgrading an existing drainage outfall and constructing two drainage outfalls. (ii) Reconstruction of the section of existing seawall of about 30 metres in length at Location 'A' is for the purpose of upgrading an existing drainage outfall to internal diameter of about 2.4 metres at an invert level of about 0.3 metre below Principal Datum. (iii) Reconstruction of the section of existing seawall of about 30 metres in length at Location 'B' is for the purpose of constructing a drainage outfall with internal size of about 2.5 metres wide by 2.5 metres high at an invert level of about 0.3 metre below Principal Datum. (iv) Reconstruction of the section of existing seawall of about 25 metres in length at Location 'C' is for the purpose of constructing a drainage outfall with internal size of about 2.5 metres wide by 1.1 metres below Principal Datum.	Y	(h)	xxx AD(xxx) D2 xxx Department	30.4.2015

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APPENDIX 3.11E SAMPLE NOTICE UNDER s.18

Roads (Works, Use and Compensation) Ordinance (Chapter 370)

(Notice under section 18)

[Project Title]

TAKE NOTICE that under powers delegated by the Chief Executive, the Permanent Secretary for Transport and Logistics has ordered under section 17(1)(a) *[and 17(1)(b)] of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) ("the Ordinance") to close permanently sections of the existing [XXXX]; and to close temporarily sections of the existing [XXXX]. *[; and to reclaim/affect the Government foreshore and/ or sea-bed] within the limit of works area as shown on Plan[s] No[s]. [XXXX] ("the Plan[s]") and described in the scheme annexed thereto. The Plan[s] and scheme were referred to in G.N. [XXXX] published on [d mmmm yyyy] and [d mmmm yyyy]. The Permanent Secretary for Transport and Logistics has further declared under section 17(1)(c) of the Ordinance that as from [d mmmm yyyy], all public or private rights in, upon, under or over the sections of the existing [XXXX] to be permanently closed, shall be extinguished; [and] from [d mmmm yyyy] to [d mmmm yyyy], all public or private rights in, upon, under or over the sections of the existing [XXXX] to be temporarily closed, shall be extinguished, modified or restricted, as the case may be, during that period. *[; and as from [d mmmm yyyy], all public or private rights in, upon, under or over the Government foreshore and/ or sea-bed to be reclaimed, shall be extinguished. / and as from [d mmmm yyyy] to [d mmmm yyyy], all public or private rights in, upon, under or over the Government foreshore and/or sea-bed to be affected, shall be extinguished, modified or restricted, as the case may be, during that period.]

The works to be carried out in association with this closure *[and reclamation] mainly involve [XXXX].

A copy of the order and the Plan[s] may be inspected by members of the public free of charge at the following offices and during the following hours when those offices are normally open to the public:–

Offices	Opening Hours (except public holidays)
Central and Western Home Affairs Enquiry Centre, Ground Floor, Harbour Building, 38 Pier Road, Central, Hong Kong	Monday to Friday 9:00 a.m. – 7:00 p.m.
[Home Affairs Enquiry Centre / District Office concerned] [Address]	
[District Lands Office concerned] [Address]	Monday to Friday 8:45 a.m. – 12:30 p.m. and 1:30 p.m. – 5:30 p.m.

This notice will be affixed on or near the affected [XXXX] on [d mmmm yyyy].

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Any person having a compensatable interest under the Ordinance may serve upon the Secretary for Transport and Logistics a written claim, which can be submitted via one of the following means, before the expiration of one year from the date of closure, extinction, modification or restriction:–

(1) By post or by hand to the Transport and Logistics Bureau's Drop-in Box No. 6 located at the 2nd Floor Entrance, East Wing, Central Government Offices, 2 Tim Mei Avenue, Tamar, Hong Kong. The box is available for use between 8:00 a.m. and 7:00 p.m. from Monday to Friday (except public holidays);
(2) By fax to (852) 2868 4643; or
(3) By email to gazettetlb@tlb.gov.hk.

Personal Information Collection Statement

Any information, including the personal data, submitted to the Secretary for Transport and Logistics in connection with any written claims served under section 29 of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) will be used for the processing of the claims and other related purposes. The provision of the information, including the personal data, as required under section 29 of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) is obligatory. If such information, including the personal data, as required under section 29 of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) is not provided as requested, the claims may be rejected. Any information, including the personal data, so submitted may be disclosed to the relevant government departments and other organizations or agencies which are required to handle the claims and related matters. Persons who have so submitted their personal data have the rights to request access to and correction of their personal data held by us. Request for access to or correction of the personal data should be made in writing to the Personal Data Privacy Officer of the Transport and Logistics Bureau at 20th Floor, East Wing, Central Government Offices, 2 Tim Mei Avenue, Tamar, Hong Kong.

( )
Permanent Secretary for Transport and Logistics

Date:

* To be deleted if the Government foreshore and/ or sea-bed is not required to be reclaimed or affected.

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道路(工程、使用及補償)條例(第370章)

(根據第18條規定所發的公告)

[工程名稱]

現公布運輸及物流局常任秘書長已依據行政長官授予的權力，根據《道路(工程、使用及補償)條例》(第 370 章)(下稱"該條例")第 17(1)(a) *[和17(1)(b)] 條的規定發出命令，永久封閉施工區界限內部分現有[XXXX]，[以及]暫時封閉施工區界限內部分現有[XXXX]。*[，以及填平施工區界限內的政府前濱及／或海床。]施工區界限在圖則第 [XXXX] 號(下稱"該[等]圖則")顯示，並在附連的計劃內說明。該[等]圖則及計劃已在[yyyy] 年[m] 月[d] 日及[yyyy] 年[m] 月[d] 日刊登的第 [XXXX] 號政府公告提述。運輸及物流局常任秘書長並根據該條例第 17(1)(c) 條的規定聲明，由[yyyy] 年[m] 月[d] 日起，上述須永久封閉的部分現有[XXXX]的一切公有權利或私人權利，或須永久封閉的部分現有[XXXX]上、之下或之上的一切公有權利或私人權利，須予終絕；[以及]由[yyyy] 年[m] 月[d] 日起至[yyyy] 年[m] 月[d] 日止，上述須暫時封閉的部分現有[XXXX]的一切公有權利或私人權利，或須暫時封閉的部分現有[XXXX]上、之下或之上的一切公有權利或私人權利，視乎個別情況在上述期間須予終絕、修改或限制。*[；以及由[yyyy] 年[m] 月[d] 日起，上述須填平的政府前濱及／或海床的一切公有權利或私人權利，或須填平的政府前濱及／或海床上、之下或之上的一切公有權利或私人權利，須予終絕。／；以及由[yyyy] 年[m] 月[d] 日起至[yyyy] 年[m] 月[d] 日止，上述受影響的政府前濱及／或海床的一切公有權利或私人權利，或受影響的政府前濱及／或海床上、之下或之上的一切公有權利或私人權利，視乎個別情況在上述期間須予終絕、修改或限制。]

與封閉道路*[及填海]有關的工程，主要包括[XXXX]。

下列辦事處備有該命令的副本及該[等]圖則，供公眾於辦事處下述一般開放時間內免費查閱：

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辦事處	開放時間 (公眾假期除外)
香港中環統一碼頭道38號 海港政府大樓地下 中西區民政諮詢中心	星期一至星期五 上午9時至 晚上7時
[地址] [當區民政諮詢中心 / 民政事務處]	
[地址] [當區地政處]	星期一至星期五 上午8時45分至 下午12時30分 以及 下午1時30分至 下午5時30分

本公告將於[yyyy] 年 [m] 月 [d] 日 張貼於受影響的[XXXX]，或其附近地方。

根據該條例享有可獲補償權益的人士可以書面向運輸及物流局局長提出申索。書面申索須於道路封閉或有關權利終絕、修改或限制當日起計一年內，經下列其中一個方式遞交：

(1) 以郵遞或專人送達方式，把書面申索投入設於香港添馬添美道2 號政府總部東翼2 樓入口處的運輸及物流局第 6 號投遞箱。投遞箱的收件時間為星期一至星期五(公眾假期除外)上午 8 時至晚上 7 時；

(2) 傳真至(852)2868 4643；或

(3) 電郵至gazettetlb@tlb.gov.hk。

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收集個人資料聲明

凡與任何根據《道路(工程、使用及補償)條例》(第 370 章)第 29 條提出的書面申索有關而提交予運輸及物流局局長的資料(包括個人資料)，將用於處理該等申索及其他相關用途。申索人必須提供《道路(工程、使用及補償)條例》(第 370 章)第 29 條所要求的資料(包括個人資料)。如果沒有按照《道路(工程、使用及補償)條例》(第 370 章)第 29 條的規定提供所需資料(包括個人資料)，申索或會被駁回。所有已提交的資料(包括個人資料)，皆或會向須處理該等申索及相關事宜的有關政府部門及其他組織或機構披露。上述提交個人資料的人士有權要求查閱和改正本局所持有其本人的個人資料。查閱或改正個人資料的要求須以書面向運輸及物流局保障個人資料(私隱)主任提出，聯絡地址為香港添馬添美道2 號政府總部東翼20 樓。

20XX年XX月XX日

運輸及物流局常任秘書長XXX

* 如無須填平政府前濱及 / 或海床，刪去此句。

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APPENDIX 3.12 SAMPLE NOTICE UNDER SECTION 5 OF FORESHORE AND SEA-BED (RECLAMATIONS) ORDINANCE

Draft Gazette Notice

LANDS DEPARTMENT

FORESHORE AND SEA-BED (RECLAMATIONS) ORDINANCE (CHAPTER 127)
(NOTIFICATION UNDER SECTION 5)

PUBLIC WORKS PROGRAMME NO. [*insert the PWP No.*]
[*insert the title of the proposed undertaking*]

Notice is hereby given that the undertaking described in the Schedule below is proposed. A copy of the plan delineating and describing the proposed undertaking and the foreshore and sea-bed to be affected thereby has been prepared and may be inspected by the public free of charge on the Lands Department website (www.landsd.gov.hk) under Government Notices, at the Lands Department Survey and Mapping Office, 23rd Floor, North Point Government Offices, 333 Java Road, North Point, Hong Kong (where copies can be purchased on order) and at the [*insert the name and address of the District Office for the area*] during the following hours :

Lands Department Survey and Mapping Office	
Monday to Friday	8:45 a.m. to 5:30 p.m.
Saturdays, Sundays and Public Holidays	closed
District Office Concerned	(Opening hours)
(Day)	

Further queries regarding the proposed works can be addressed to [insert the name, address and enquiry telephone number of the initiating department].

Any person who considers that he has an interest, right or easement in or over the foreshore and sea-bed so described may, by notice in writing delivered to the Director of Lands, 20th Floor, North Point Government Offices, 333 Java Road, North Point, Hong Kong before the expiration of two months* from the date of this notice, object to the proposed undertaking. The notice of objection shall describe the interest, right or easement of the objector and the manner in which he alleges he will be affected.

SCHEDULE

Foreshore and sea-bed affected	*Description of the undertaking and the manner in which the foreshore and sea-bed will be affected by the proposed undertaking*
Approximately [*insert the area in hectares or square metres*] of foreshore and sea-bed situated at [*insert the location*] as delineated	[*insert the required details*]

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and shown edged black on a plan deposited in the Land Registry and numbered [*insert the plan no.*]

The area of foreshore and sea-bed affected is shown on the plan on the next page for identification purposes only. The area is more particularly shown on the plan numbered [*insert the plan no.*] above referred to.

Personal Information Collection Statement

Any information, including the personal data, submitted to the Director of Land in connection with any written objections/comments will be used for the processing of the objections/comments and other related purposes. The provision of any information, including the personal data, other than the information as required under section 6(2) of the Foreshore and Sea-bed (Reclamations) Ordinance (Chapter 127) is voluntary. However, it may not be possible to process the objections/comments if such information, including the personal data, is not sufficiently provided. Any information, including the personal data, so submitted may be disclosed to the relevant government departments and other persons, organizations or agencies which are required to handle the objections/comments and related matters. Persons who have so submitted their personal data have the rights to request access to and correction of their personal data held by us. Request for access to or correction of the personal data should be made in writing to the Departmental Personal Data Controlling Officer of Lands Department at 21st Floor, North Point Government Offices, 333 Java Road, North Point, Hong Kong.

.....……..
Deputy Director/Specialist, Lands Department

Date: .....

* If the initiating department would like to provide an objection period of more than two months, it should raise the special request to D of L when the request for gazetting is submitted.

(With Chinese translation)

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SAMPLE NOTICE UNDER SECTION 5
FORESHORE AND SEA-BED (RECLAMATIONS) ORDINANCE

前濱及海床（填海工程）條例（第127章）
（根據第5條規定所發的公告）

工務計劃項目第[*加插工務計劃項目編號*]號
[*加插擬建工程的名稱*]

現公布政府擬進行下面附表所描述的工程，並已製備圖則，劃定及描述該項工程的範圍和受工程影響的前濱及海床。公眾人士可於地政總署網頁(www.landsd.gov.hk)政府公告一欄內免費查閱該圖則，亦可於下列時間在香港北角渣華道333號北角政府合署23樓地政總署測繪處（可於該處訂購圖則）及[*加插有關分區民政事務處的名稱及地址*]，免費查閱該圖則：

地政總署測繪處	
星期一至星期五	上午8時45分至下午5時30分
星期日及公眾假期	休息
有關分區民政事務處	(開放時間)

如欲進一步查詢擬議工程的詳情，請與[*加插負責部門的名稱、地址及查詢電話號碼*]聯絡。

任何人士如認為他擁有在該前濱及海床或其上的權益、權利或地役權，可在本公告的日期起計兩個月*的期限屆滿前，向地政總署署長交付書面通知，反對該項建議工程。地政總署署長的地址為香港北角渣華道333號北角政府合署20樓。反對通知書須描述反對人的權益、權利或地役權，以及他聲稱他會受到影響的方式。

附　表

受影響的前濱及海床	*工程說明及該項工程對有關前濱及海床的影響*
位於[*加插地點*]約[*加插以公頃或平方米計算的面積*]的前濱及海床，範圍在第[*加插圖則編號*]號圖則上以黑邊線標明。該圖則現存於土地註冊處。	[*加插必需的詳情*]

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下一頁的圖則示明受影響的前濱及海床。該圖則只作識別用，欲知較詳細資料，請參閱上述第[*加插圖則編號*]號圖則。

收集個人資料聲明

提交予地政總署署長並且與任何反對書／書面意見有關的任何資料(包括個人資料)，將會用於處理該等反對書／書面意見及其他相關用途。除《前濱及海床（填海工程）條例》(第 127 章)第 6(2)條所規定必須提供的資料外，提供任何其他資料(包括個人資料)均屬自願性質。然而，如果提供的資料(包括個人資料)不足，本署或許未能處理該等反對書／書面意見。上述提交的任何資料(包括個人資料)，或會向須處理該等反對書／書面意見及相關事宜的有關政府部門及其他人士、組織或機構披露。上述提交個人資料的人士，有權要求查閱和改正本局所持有其本人的個人資料。查閱或改正個人資料的要求須以書面向地政總署部門個人資料管制主任提出，聯絡地址為香港北角渣華道 333 號北角政府合署 21 樓。

地政總署副署長（專業事務）

年　　月　　日

* 倘負責部門擬給予超過兩個月的反對期，應在要求刊憲時，向地政總署署長提出此特別要求。

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(LOCATION PLAN)

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APPENDIX 3.13 SAMPLE PRESS RELEASE UNDER FORESHORE AND SEA-BED (RECLAMATIONS) ORDINANCE

Draft Press Release

FORESHORE AND SEA-BED (RECLAMATIONS) ORDINANCE (Chapter 127)

(insert the title of the proposed undertaking)

Government intends to [state the activity] within an area of approximately [insert the area in hectares or square metres] of foreshore and sea-bed at [insert the location]. This is to provide land/for the purpose of [state the end use of the formed land or the undertaking].

The work is scheduled to commence in [insert the date of commencement] and to be completed by [insert the date of completion].

The extent of the area affected is described in a notice published in the Government Gazette on [insert the date of first gazetting]. Any person who considers that he has an interest, right or easement in or over the foreshore and sea-bed involved may submit a written objection to the Director of Lands, 20th Floor, North Point Government Offices, 333 Java Road, North Point, Hong Kong within two months* from that date, i.e. on or before [insert the date of expiry of the period for the making of objections]. The notice of such objection shall describe the interest, right or easement of the objector and the manner in which he alleges he will be affected.

The notice (in both English and Chinese) together with its related plan No. [insert the plan no.] can be seen on notice boards posted near the site. The plan can also be seen at the Lands Department Survey and Mapping Office, 23rd Floor, North Point Government Offices, 333 Java Road, North Point, Hong Kong (where copies can be purchased on order) and at the [insert the name and address of the District Office for the area].

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* If the initiating department would like to provide an objection period of more than two months, it should raise the special request to D of L when the request for gazetting is submitted.

(With Chinese translation)

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SAMPLE PRESS RELEASE UNDER FORESHORE AND SEA-BED (RECLAMATIONS) ORDINANCE

新聞擬稿

前濱及海床（填海工程）條例（第127章）
[加插擬建工程的名稱]

政府擬於[加插地點]約[加插以公頃或平方米計算的面積]的前濱及海床範圍內，[說明有關活動]。有關工程旨在[說明經平整土地或工程的最終用途]。

工程定於[加插開始施工日期]展開，約於[加插完工日期]完成。

受工程影響的範圍在[加插首次刊憲日期]憲報發布的政府公告中已載明。任何人士如認為他擁有在該前濱及海床或其上的權益、權利或地役權，可在上述日期起計的兩個月*內，即[加插提出反對期的屆滿日期]或該日前，向地政總署署長遞交書面反對。反對通知書必須描述反對人的權益、權利或地役權，以及他聲稱他會受到影響的方式。

該公告的中英文版及有關的第[加插圖則編號]號圖則已張貼在該處附近的告示板上。查閱有關圖則亦可到香港北角渣華道333號北角政府合署23樓地政總署測繪處及[加插有關分區民政事務處的名稱及地址]。北角政府合署地政總署測繪處並同時接受訂購該圖則。

---

*倘負責部門擬給予超過兩個月的反對期，應在要求刊憲時，向地政總署署長提出此特別要求。

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APPENDIX 3.13A SAMPLE REPLY AND REPLY SLIP FOR OBJECTION HANDLING UNDER SECTION 6 OF FORESHORE AND SEA-BED (RECLAMATIONS) ORDINANCE

SAMPLE REPLY TO OBJECTION (WITH OBJECTOR'S REPLY SLIP)

FORESHORE AND SEA-BED (RECLAMATIONS) ORDINANCE
(CHAPTER 127)
[insert the gazette number]
***[insert the title of the works]*(“the Project”)**
[insert the reference number of the objection[12]]

Your objection dated *[state the date of the objection received]* to the Project has been forwarded by Lands Department to this office for follow up.

2. A case number (Objection Case Number: [1]) is assigned to your objection to the Project. Please quote this case number in future correspondence for identification.

3. Regarding your objection, please find our reply as follows

[state the substantive reply and provide the relevant information required by the objector, if appropriate, the reply can be provided in an Annex to this covering letter.]

4. We hope our reply can address your concerns. According to subsection (5) of Section 6 of the Foreshore and Sea-bed (Reclamations) Ordinance (Chapter 127) (“the Ordinance”), you may give a response to this reply on or before *[14-day period to be specified[13]]* by filling in the attached reply slip (including any comment on, or any request in connection with, this reply); and returning the reply slip to this office vide facsimile, post or electronic mail. If you choose to send your response by post, please send it as early as possible so that it can reach this office on or before the above specified date. Therefore, you may also consider sending it by facsimile or electronic mail.

5. Please be reminded that according to subsection (7) of Section 6 of the Ordinance, any response given after the date specified in paragraph 4 above will be treated as not having been given. Your previous stance *[state the date of the objection]* will be deemed as your position on the works and your objection will be deemed as unwithdrawn.

6. If your objection has not been withdrawn unconditionally, your objection and all related correspondence, including correspondence between you and the Government, will be submitted to the Chief Executive in Council for consideration under the Ordinance.

7. Thank you for your comments on the Project. Should you have any enquiries, please contact *[state the undersigned or other relevant officer(s)]* at *[state the telephone number of the relevant officer(s)]*.

12 [For administrative convenience, the initiating department/ office should assign a serial number for the objection]
13 [You may refer to DEVB's email dated 7 December 2023 for how 14 days should be counted]

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REPLY SLIP

To: *[State the department]* Fax. No. *[State the number]*
[State the address] Email: *[State the email]*

FORESHORE AND SEA-BED (RECLAMATIONS) ORDINANCE
(CHAPTER 127)
[insert the gazette number]
***[insert the title of the works]*(“the Project”)**
[insert the reference number of the objection]

I acknowledge receipt of the letter ref. *[reference number]* from *[the department]* dated *[reply date]* in accordance with subsection (5) of Section 6 of the Foreshore and Sea-bed (Reclamations) Ordinance (Chapter 127) (“the Ordinance”). I hereby, provide my response below and acknowledge that this response, if given on or before *[14-day period to be specified[14]]*, and my past comment will be submitted to the Chief Executive in Council for consideration under the Ordinance if I do not withdraw my objection unconditionally.

2. Having considered the reply from the Government, my current stance towards the works is:

* ☐ I withdraw objection to the proposal unconditionally
☐ I withdraw objection to the proposal with conditions:
_____
(you may attach extra pages when necessary)
☐ I maintain objection
☐ I provide supplementary comments:
_____
(you may attach extra pages when necessary)

* Please insert “✓” in the ☐ as appropriate.

Name: _____ Signature: _____
Date: _____ Telephone Number: _____
Correspondence address/ email address: _____

Remarks[15]:

14[You may refer to DEVB’s email dated 7 December 2023 for how 14 days should be counted]
15[Please insert any remarks, including clause related to confidentiality and personal data.]

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[中文譯本]

前濱及海床(填海工程)條例
(第127章)
[相關公告號]
***[相關工程名稱]*("本工程")**
[反對書號碼[16]]

就閣下於*[反對書日期]*的反對書，地政總署已轉交本署跟進。

2. 你的來信現登記為第*[反對書號碼]*號反對書，日後來信請引用此編號。

3. 有關 閣下就本工程項目提出的反對書，本署現謹提供書面答覆如下：

[提供詳細答覆或提供反對者需要的資訊。如覺得合適，可以以附件答覆]

4. 希望我們的答覆能釋除 閣下的疑慮。根據前濱及海床(填海工程)條例("條例")第6(5)條， 閣下可在*[14日限期期滿之日[17]]*或之前填妥隨函附上的回條(包括對本答覆的評論或相關要求)並以傳真、郵遞或電郵方式送交本署。如使用郵遞方式，請及早寄出以使回覆能在上述限期內送交到本署，故此 閣下亦可考慮以傳真或電郵方式送交。

5. 請 閣下留意，根據條例的第6(7)條，如 閣下未能在上述第4段所指的限期內給予回覆，有關回覆會被視為不曾給予。本署會視 閣下未有撤回對本工程的意見及維持於*[反對書日期]*所述的反對立場。

16[為行政需要，請標明獨立反對書編號。]
17[就14日限期的計算方法，可參照發展局於2023年12月7日的電郵。]

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6. 如閣下未有無條件撤回反對，我們將會把你的反對書及所有相關信件/電郵(包括與本署的往來信件/電郵)連同回條呈交行政長官會同行政會議以供考慮。

7. 本署謹此多謝 閣下就本工程項目提出的意見。若有任何查詢，歡迎致電*[電話號碼]*或電郵至*[電郵地址]*與*[有關官員名字]*聯絡。

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回條

提交： *[部門名稱]* 傳真號碼： *[傳真號碼]*

[地址] 電郵： *[電郵地址]*

前濱及海床(填海工程)條例

(第127章)

[相關公告號]

***[相關工程名稱]*("本工程")**

[反對書號碼]

根據前濱及海床(填海工程)條例(第127章)("條例")第6(5)條，本人確認已收到由*[部門]*於*[答覆日期]*發出的信件(信件參考編號為:*[檔號]*)。本人在此回條提供回覆，並得悉如本人不選擇無條件撤回反對，本人的反對書及其後的意見，包括此回覆(如在[*14日限期期滿之日*[18]]或之前提交)，將會呈交行政長官會同行政會議以供考慮。

2. 經考慮政府的答覆，本人現在對本工程的立場為:

* ☐ 本人無條件撤回反對

☐ 本人有條件撤回反對

_____

(如有需要，可以附加額外頁面)

☐ 本人維持反對

☐ 本人提交補充意見

_____

(如有需要，可以附加額外頁面)

* 請在☐ 方格內填上 "✓"

姓名: _____ 簽名: _____

日期： _____ 電話號碼: _____

通信地址: _____

備註[19]:

18[就14日限期的計算方法，可參照發展局於2023年12月7日的電郵。]

19[請按實際需要填上備註，包括收集個人資料聲明]

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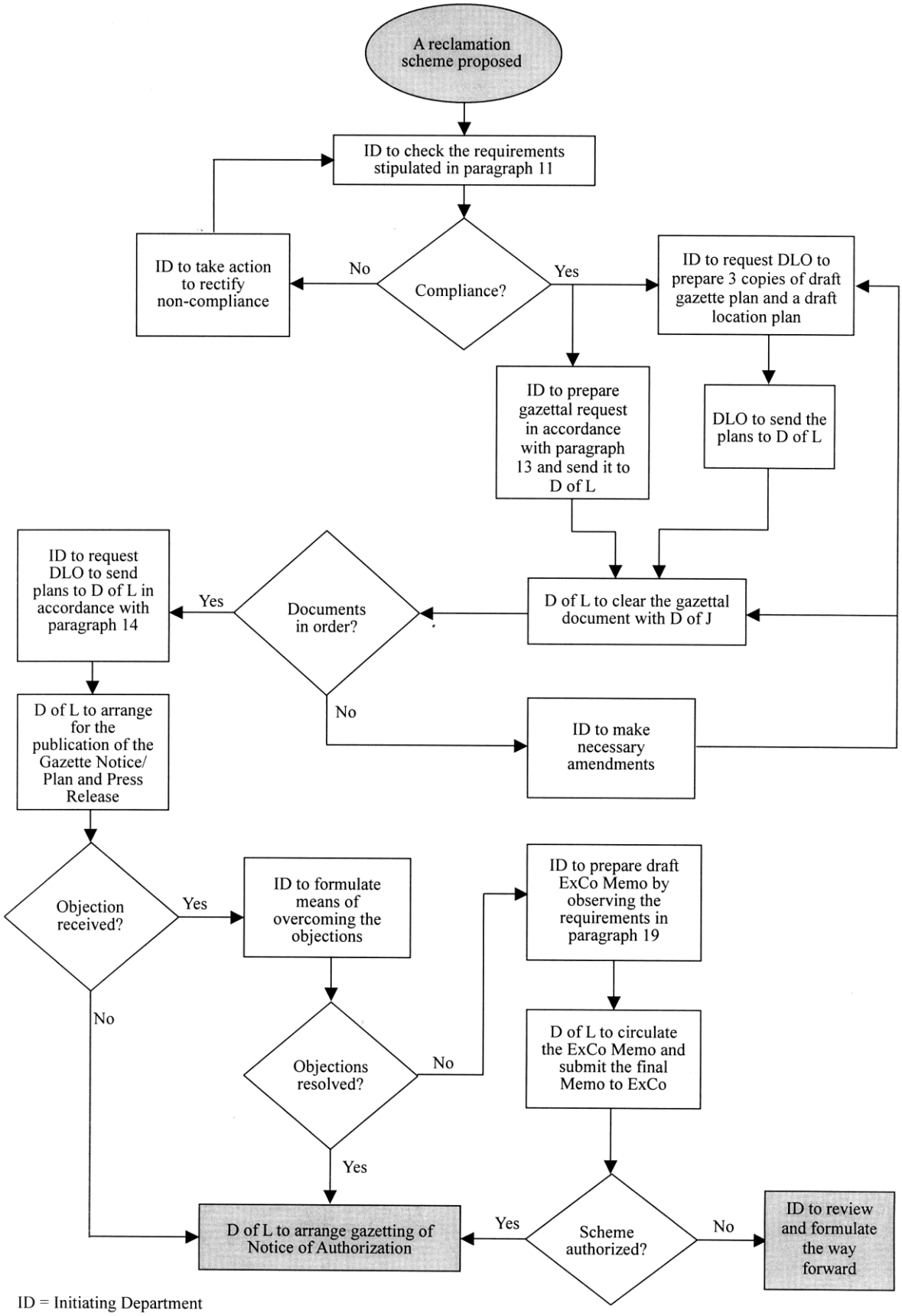
APPENDIX 3.14 FLOWCHART SHOWING THE PROCEDURES FOR GAZETTING UNDER THE FS(R)O



ID = Initiating Department

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APPENDIX 3.14A COMMUNICATION AND ANNOUNCEMENT MECHANISM FOR Amd No. 5/2025 PUBLIC WORKS WITHIN RAILWAY PROTECTION AREA

Scope

This Communication and Announcement (C&A) Mechanism applies to public works construction sites within railway protection areas[20] with works that may constitute ground movement affecting the adjacent railway structures / facilities.

Communication among Works Department [21] (WD), Buildings Department (BD), Electrical and Mechanical Services Department (EMSD), and MTR Corporation Limited (MTRCL)

2. **WD** will send a copy of the letter[22] of commencement of public works[23] within railway protection areas to BD, EMSD and MTRCL.

3. **MTRCL** will maintain and provide WD, BD, EMSD, Transport and Logistics Bureau (TLB) and Development Bureau (DEVB) with a monthly update of all public sites within railway protection areas which are currently under monitoring for railway structures / facilities. **WD and MTRCL** will share the monitoring data submitted by the Consultants / Contractor with each other during the course of the construction works and suspension of works, if any.

4. **WD**, **BD, EMSD and MTRCL** will notify each other **immediately** if-

(a) the adjoining railway structures / facilities are in imminent danger;

(b) the reading of any monitoring checkpoint[24] for railway structures / facilities reaches the following levels of the three-tier "Alert-Alarm-Action" mechanism: -

20 The railway protection areas can be viewed and downloaded from MTRCL's website (https://www.mtr.com.hk/en/corporate/operations/protection_boundary_map.html). Some of which are designated as Area Number 3 of the scheduled areas in Schedule 5 to the Buildings Ordinance (Cap. 123), and are available for viewing in BD's website (https://www.bd.gov.hk/en/resources/codes-and-references/scheduled-areas/index.html).

21 Works Department (WD) refers to Architectural Services Department, Civil Engineering and Development Department, Drainage Services Department, Electrical and Mechanical Services Department, Highways Department and Water Services Department which is responsible for the administration and supervision of public works contracts.

22 The copy of letter should be addressed to BD (Attn: CSE/Kowloon & Rail), EMSD (Attn: SE/Railways 15) and MTRCL (Attn: Chief Railway Protection & Land Survey Manager (Operations)).

23 These works include ground investigation, site formation, foundation, demolition, excavation and lateral support, retaining wall and sub-structural works, etc., that may constitute ground movement likely to affect railway structures / facilities.

24 This refers to checkpoints installed for measuring ground/structure settlement, vibration, tilting of railway structures / facilities, ground water drawdown, etc., according to the plans accepted by WD / Consultants of the site and MTRCL.

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(i) "Alarm Level"[25]; or
(ii) "Action Level"[26].

(c) the structural safety of railway structures / facilities or safety of railway operation have been so affected by the construction works concerned requiring suspension of works[27]; or

(d) WD has received application for resumption of the suspended works from the Consultants / Contractor of the site.

5. For cases reaching "Alarm Level", **WD** may inquire MTRCL as necessary with a view to closely monitoring the readings of the checkpoints concerned and may consult BD in ascertaining whether the structural safety of railway structures / facilities would be affected. **EMSD** may inquire MTRCL as necessary with a view to strengthening monitoring measures to ensure safety of railway operation. **WD and MTRCL** will liaise with each other to review the construction method(s) and consider necessary mitigation measures.

6. Once the situation stipulated in paragraph 4(a), 4(b)(ii) or 4(c) above happens and requires suspension of the works, **WD** will arrange immediately a joint site inspection among all concerned parties and deploy its project team / Consultants / Contractor to inspect the affected railway structures / facilities and assess their structural safety. **BD** will then inspect and ascertain the structural safety of the affected railway structures / facilities with MTRCL. **EMSD** will also inspect the affected railway facilities and confirm the safety of railway operation.

7. Upon request from the Consultants / Contractor of the site, and agreement with WD and MTRCL reached to cease the monitoring for railway structures / facilities after relevant public works are completed, **MTRCL** will notify BD, EMSD, TLB and DEVB through the monthly update as mentioned in paragraph 3 above.

Announcement

Joint Press Release on Suspension of Works[28]

8. Upon **suspension of the works** concerned due to situations mentioned in paragraph 4(a), 4(b)(ii) or 4(c) above, a **WD-BD-EMSD** joint press release will be prepared and issued as early as practicable, preferrably within 48 hours, in which -.

25 If the reading reaches the "Alarm Level", **WD** should review the construction method(s) and consider mitigation measures but not necessarily suspending the works concerned.

26 If the reading reaches the "Action Level", the works concerned should be suspended immediately**.** The extent of works to be suspended should be agreed with WD / Consultants of the site, BD, EMSD and MTRCL prior to WD's acceptance.

27 Suspension of works may be requested by WD, EMSD, MTRCL or the Consultants / Contractor of the site.

28 Unless it is demonstrated that the structural safety of railway structures / facilities or safety of railway operation have been affected by the building works, no announcement shall be made to the public on any such of this voluntary suspension of works before the triggering action level has been reached.

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(a) **WD** should ascertain the structural safety of the affected railway structures and facilities with BD's re-assurance; and

(b) **EMSD** should ascertain the safety of railway operation.

9. **WD** should discuss with MTRCL to align the wordings to be used in the press release, especially the description of the railway structures / facilities concerned.

10. **WD**, with input from **BD and EMSD**, will prepare and submit the draft joint press release (sample at **Appendix A**) to DEVB and TLB separately for clearance[29]. Upon clearances from both bureaux, **WD** will arrange to issue the joint press release, with a copy to DEVB, TLB and MTRCL for information. For the avoidance of doubt, the joint press release may be issued before or after **MTRCL**'s own announcement of the concerned case, subject to the circumstance of each individual case. Should the joint press release be issued after MTRCL's announcement, **WD (with BD's re-assurance)** and **EMSD** should likewise ascertain the structural safety of the affected railway structures / facilities, and safety of railway operation respectively, and state so in the joint press release.

Joint Press Release on Resumption of Works

11. Upon receipt of request from the Consultants / Contractor's request for resumption of the suspended works –

(a) **WD**, with the assistance of **MTRCL**, will arrange a joint site inspection among all concerned parties and seek written agreement from BD, EMSD and MTRCL for the resumption of works;

(b) **WD** will confirm that the necessary remedial, mitigation and precautionary measures have been approved by **MTRCL** and the resumption of suspended works would not adversely affect the structural safety of the railway structures / facilities and the safety of railway operation;

(c) **BD** will inspect and ascertain the structural safety of the affected railway structures / facilities concerned and the resumption of suspended works would not adversely affect the structural safety of the railway structures / facilities on top of the assessment by WD or Consultants / Contractor of the site;

(d) **EMSD** will inspect and confirm the safe operation of the railway, and ensure that MTRCL has put in place a strengthened monitoring system to keep close monitoring of the safety of railway operation. **EMSD** will give a written reply to WD to confirm agreement / disagreement on resumption of works; and

(e) **MTRCL** will inspect and ensure the resumption of the suspended works would not affect the structural safety of the railway structures / facilities and the safe operation of the railway. **MTRCL** will give a written reply to WD to confirm agreement / disagreement on resumption of works.

29 For DEVB, the draft joint press release should be sent to Buildings Unit (Attn.: AS(B)1) and Work Policies 2 Section (Attn.: AS(WP2)1). For TLB, the draft joint press release should be sent to Railway Operation & Services Section (Attn.: AS(TL)4B).

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12. A **WD-BD-EMSD** joint press release (sample at **Appendix B**) will be prepared and issued as early as practicable, preferably within 48 hours after the resumption of suspended works has been agreed. Similar arrangement in paragraphs 9 and 10 will be followed.

Works Department
Buildings Department
Electrical and Mechanical Services Department
18 July 2023 Amd No. 5/2025

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Annex A

[Note: The sample attached herein is for reference only. Officers should refer to past press releases issued and prepare the press release on a case-by-case basis. Past press releases issued may be searched via the government website (**https://www.info.gov.hk/gia/ISD_public_Calendar_en.html**).]

Communication and Announcement Mechanism for Public Works within Railway Protection Areas

Sample Press Release for

Announcement of Suspension of Works

港鐵<鐵路綫><站><鐵路隧道>/<結構/設施>沉降事宜

政府發言人今日(<新聞公告日期>)表示，<工務工程項目及位置>在進行<工程類別:例如打樁工程>期間，港鐵<鐵路綫><站><鐵路隧道內>/<結構/設施>的其中<數目>個監測點的沉降記錄於<日期>達到<沉降數值>毫米，超逾 20 毫米/<其他預設停工指標數值>毫米的預設停工指標。應香港鐵路有限公司(港鐵公司)／機電工程署/<管理該工程工務部門>的要求／按有關工程承建商的建議，在該項目範圍內/鐵路保護區內的相關工程/<工程類別>已於<停工日期>／同日暫停。

有關監測點是港鐵公司按照鐵路保護區的既定程序，要求有關工程承建商設置，以便港鐵公司監察沉降數據，確保鐵路隧道/<結構/設施>結構和運作安全不受有關工程影響。

<管理該工程工務部門>和屋宇署已派員視察有關鐵路隧道/ <結構/設施>，確認其結構安全。[有關鐵路隧道/<結構/設施>沉降亦沒有影響其他周邊設施的結構安全。]機電工程署已檢視港鐵公司所提交有關鐵路運作安全的監測記錄，確定鐵路狀況符合安全運作要求。上述工程沒有影響鐵路設施結構和鐵路運作安全。

<管理該工程工務部門>和港鐵公司會繼續密切監察有關情況，並與屋宇署和機電工程署保持緊密溝通，確保鐵路隧道/<結構/設施>結構和鐵路運作安全不受影響。

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雖然有關工程現已停工，<管理該工程工務部門>會聯同港鐵公司要求負責該工程的承建商制訂緩解措施，並在制訂合適及可減少對鐵路設施影響的施工方法後，才可復工。

在接獲該工程承建商的緩解措施方案及復工要求後，<管理該工程工務部門>會以確保鐵路設施結構安全的原則嚴格審批有關申請，包括諮詢港鐵公司及其他相關政府部門。機電工程署亦會確定港鐵公司有嚴謹的監測措施繼續確保鐵路運作安全。此外，若工程承建商同時建議調整暫停相關工程的監測指標，<管理該工程工務部門>亦會在諮詢港鐵公司及其他相關政府部門的意見後，按情況考慮工程承建商提出的建議。當復工要求獲得接納後，<管理該工程工務部門>及機電工程署會向公眾公布有關決定。

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Settlement of Railway Tunnel / <Structures / Facilities> of MTR <Line> / <Station>

A Government spokesman said today (<date of press release>) that, in the course of <type of works> under the project <name of the project and location>, the reading(s) recorded in <number> settlement monitoring checkpoints installed inside the <railway tunnel> / at the <railway structures / facilities> of <Line> / <Station> had reached <settlement value> millimetres on <date>, exceeding the pre-set trigger level for works suspension (20mm / <other value of Alarm Level>). Upon the request of MTR Corporation Limited (MTRCL) / the Electrical and Mechanical Services Department (EMSD) / <Works Department (WD)>/ upon the advice of the contractor of the site, the relevant construction works / <types of works> of the construction site / within the railway protection areas were suspended on <date> / the same day.

The above-mentioned monitoring checkpoints were set up by the relevant contractor in meeting the MTRCL's requirement in accordance with the established procedures for railway protection areas in order to facilitate monitoring of settlement data by the MTRCL to ensure that the structural safety of the <railway tunnel> / <structures / facilities> and safe operation of the railway would not be affected by the works concerned.

The <WD> and the Buildings Department (BD) have deployed staff to inspect the <railway tunnel> / <structures / facilities> and confirmed that it is/they are structurally safe. <The settlement did not affect the structural safety of other adjacent facilities.> The Electrical and Mechanical Services Department (EMSD) has reviewed the monitoring data submitted by the MTRCL in relation to safe operation of the railway and confirmed that the condition of the railway fulfils the operational safety requirements. The construction works concerned have not affected the structural safety of the railway facilities and safe operation of the railway.

<WD> and the MTRCL will continue to closely monitor the situation and maintain close communication with the BD and the EMSD to ensure the structural safety of the <railway tunnel> / <structures / facilities> and safe operation of the railway.

While the relevant works have been suspended, <WD> and the MTRCL will request the contractor responsible for the construction works to formulate mitigation measures and adopt suitable construction methods that would alleviate the effects on the railway facilities before relevant construction works can be resumed.

Upon receipt of the proposals on mitigation measures and application for resumption of construction works from the contractor, <WD> will scrutinise the application, including consulting the MTRCL and other relevant government departments, so as to ensure safe operation of the railway and the safety of railway tunnel / <structures / facilities>. The EMSD will also confirm that the MTRCL has put in place stringent monitoring measures to ensure the safety of railway operation. Moreover, if the contractor proposes to revise the pre-set trigger level(s) for suspension of works, <WD> will consider the proposal having regard to the circumstances after consulting the MTRCL and other relevant government departments. When the application for resumption of suspended works has been agreed, <WD> and the EMSD will announce the decision to the public. Amd No. 5/2025

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Annex B

[Note: The sample attached herein is for reference only. Officers should refer to past press releases issued and prepare the press release on a case-by-case basis. Past press releases issued may be searched via the government website (**https://www.info.gov.hk/gia/ISD_public_Calendar_en.html).]**

Communication and Announcement Mechanism for Public Works within Railway Protection Areas

Sample Press Release for

Announcement of Resumption of Works

港鐵<鐵路綫><站>/上蓋/附近的<工務工程項目>獲准復工

政府發言人今日（<新聞公告日期>）表示，港鐵<鐵路綫><站>/上蓋/附近的<工務工程項目>範圍內的<工程類別>/在鐵路保護區內的<工程類別>已獲准恢復進行。

發言人表示，由於安裝於<鐵路綫><站><鐵路隧道內/<結構/設施>的<數目>個監測點的沉降記錄於<日期>超逾預設停工指標，該項目範圍內/在鐵路保護範圍內的有關工程/<工程類別>已於<日期>暫停。政府於<日期>公布有關情況，並由<管理該工程工務部門>、屋宇署及港鐵公司視察和確認鐵路隧道/<結構/設施>安全，而機電工程署及港鐵公司亦已視察和確認鐵路運作安全。

負責上述工程項目的承建商已向<管理該工程工務部門>提交調查報告，並建議適當的緩解措施方案，以減低有關工程復工後對附近鐵路設施結構安全的影響。有關工程承建商並要求復工。

<管理該工務工程部門>、屋宇署及港鐵公司已再視察和確認現時有關鐵路隧道/<結構/設施>結構安全。港鐵公司已獲徵詢並確認復工不會對有關鐵路隧道/<結構/設施>結構及運作安全構成影響。機電工程署及港鐵公司亦已再視察和確定鐵路狀況符合安全運作要求。機電工程署就復工事宜確認港鐵公司有嚴謹的監測措施繼續確保鐵路運作安全。

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經考慮上述意見及有關工程承建商建議的緩解措施方案後，有關復工要求已於<接納日期>獲接納，而暫停的相關工程已於/將於<復工日期>復工/分階段復工。承建商會在完成建議的緩解措施後，包括<*例如：進行地下預灌漿*>，才繼續餘下的<停工工程>。承建商提交詳細的工程學分析，依<*例如：實際地盤環境和相關資料*>估算有關鐵路設施的沉降幅度在<更新預設停工監測指標>毫米內，而此沉降幅度對相關鐵路隧道/<結構/設施>結構安全不會造成影響。<管理該工務工程部門>及港鐵公司遂接納將有關鐵路隧道/<結構/設施>的預設暫時停工的監測指標調整為<更新預設停工監測指標>毫米。港鐵公司並表示，經修訂的監測指標不會影響鐵路運作安全。

發言人表示，<管理該工程工務部門>、機電工程署及港鐵公司會繼續密切監察有關情況，確保鐵路隧道/<結構/設施>結構和鐵路運作安全。

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Consent given to resume <Type of works>
for public works project at / near MTR <Line><Station>

A Government spokesman said today (<date of press release>) that consent was given to resume the <type of works> of the <public works project> at / near MTR <Line> <Station> .

The spokesman said that since the reading(s) recorded in <number> settlement monitoring checkpoint(s) installed at the railway tunnel / <structures / facilities> of <Line> <Station> had exceeded the pre-set trigger level for works suspension, the <type of works> within the project site/ within the railway protection boundary were suspended on <date of works suspension>. The Government announced the situation on <date of press release for announcement of works suspension >, and the <Works Department (WD)>, Buildings Department (BD) and the MTR Corporation Limited (MTRCL) had inspected and confirmed the structural safety of the relevant <railway tunnel> / <structures / facilities>, while the Electrical and Mechanical Services Department (EMSD) and the MTRCL had inspected and confirmed the safe operation of the railway.

The contractor responsible for the said construction works subsequently submitted to the <WD> an investigation report and a proposal of mitigation measures to alleviate the effects of the resumption of works on the structural safety of the nearby railway facilities, and requested resumption of the suspended works.

<WD>, the BD and the MTRCL have inspected again and confirmed that the railway tunnel / <structures / facilities> concerned are structurally safe. The MTRCL has also been consulted and confirmed the resumption of works will not cause an adverse effect to the relevant railway tunnel / <structures / facilities> and operation of the railway. The EMSD and the MTRCL have inspected again and confirmed that the condition of the railway fulfilled the operational safety requirements. The EMSD also verified that stringent monitoring measures have been implemented by the MTRCL regarding the resumption of works to ensure the safety of railway operation.

Having considered the above advice and the proposal of mitigation measures from the contractor, the request for resumption of works was accepted on <date of acceptance>, and the relevant suspended <Type of works> have resumed/ will resume on <date of resumption> / in phases. The contractor will complete the proposed mitigation measures, including <e.g. carrying out underground pre-grouting works> prior to the commencement of the remaining <Type of works>. The detailed engineering assessment submitted by the contractor estimated that, based on <e.g. actual site condition and relevant data>, the settlement at the railway facility concerned would be within <revised value of Alarm Level>mm, and the structural safety of the railway facility concerned will not be affected by such an extent of settlement. <WD> and the MTRCL have therefore accepted that the pre-set trigger monitoring level for works suspension be revised to <revised value of Alarm Level>mm. The MTRCL has also indicated that the revised trigger monitoring level will not affect the safety of railway operation.

<WD>, the EMSD and the MTRCL will continue to closely monitor the situation to ensure structural safety of the railway tunnel / <structures / facilities> and the safe operation of the railway, the spokesman said.

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APPENDIX 3.15 LIST OF ACCEPTABLE, CONDITIONALLY ACCEPTABLE AND UNACCEPTABLE USES OF LAND BENEATH FLYOVERS/FOOTBRIDGES

The three categories of uses are broadly defined as follows:

Acceptable Uses
Uses that are compatible with the broad land use pattern of the surrounding area and would not generate undesirable impacts based on structural, fire safety, traffic, environmental and visual considerations, would be acceptable beneath flyovers/footbridges.

Conditionally Acceptable Uses
Uses that may generate some degree of impacts based on all relevant considerations but such impacts could be easily and effectively mitigated through imposition of conditions in the land documents, may be acceptable on a case-by-case basis.

Unacceptable Uses
Uses which may generate undesirable impacts based on all relevant considerations and such impacts could not be easily or effectively mitigated, are considered not suitable for being sited beneath flyovers/footbridges.

(A) Acceptable Uses

1. Amenity areas (e.g. landscaped areas, plant nurseries)

2. Parking :

   a. Car parks to include :

      (i) Designated public car parks (metered or unmetered)
      (ii) Car parks leased for the use of private bodies
      (iii) Car parks used exclusively and specifically by Government Departments

   b. Motor cycle/bicycle parking spaces

   c. Lorry parking spaces (excluding container vehicles parking)

   d. Taxi/Public Light Bus stands

   e. Tram/bus/coach stations/termini and concourses (excluding depot) and overnight bus parking

3. Government depots :

   a. Maintenance depots

   b. Vehicle detention pounds

   c. Vehicle depots

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4. Arts/commercial advertisement display

5. Government facilities :

   a. Police reporting centres (mobile/fixed)

   b. Police, ambulance or fire stations (preferably one storey)

   c. Public latrines

   d. Public bathhouses

   e. Government Offices

6. Offices of non-government organizations and associations providing convenient public service e.g. charity centres, offices of voluntary organizations, tourism information offices

7. Pedestrian ways/footways

8. Public Information booths/vendors

9. Transport operators' ancillary offices and other facilities e.g. MTR/KCR vent shaft, MTR/KCR station entrances

10. Storage of non-inflammable/non-volatile/non-dangerous goods

11. Rescue and emergency centres

12. Automation service booths

13. Newspaper and magazine stands

14. Open florists

15. Recycling products collection points

(B) Conditionally Acceptable Uses

1. Indoor recreational facilities (e.g. games halls, gymnasia, squash courts)

2. Passive open space (excluding formal/informal games and recreation but including sitting-out-area with adequate buffer or shield from adjacent roads)

3. Community/children/youth/elderly centres without residential/day care services

4. Libraries (mobile/fixed)

5. Arts studios/film studios

6. Tram/rail depots

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7. Tractor and trailer parking areas

8. Sewage screening plants/sewage treatment works

9. Purpose-built refuse collection points

10. Public utility installations e.g. electric sub-stations/transformer houses/pump houses

11. Open showrooms

12. Temporary markets

13. Temporary licensed hawker bazaars without seats (excluding cooked food stalls)

14. Temporary works areas

15. Petrol filling stations except for Liquefied Petroleum Gas (LPG) filling facilities

16. Construction training grounds/centres involving no heavy machinery (for Government/non-government organizations)

17. Vehicle cleansing services

18. Mobile inoculation centres

19. Recycling facilities involving simple and non-mechanical process

20. Mailbox activities for container vehicles

21. Container storage

(C) Unacceptable Uses

1. Active outdoor recreation/playgrounds and children's playgrounds (including tennis/football/basketball courts, soccer pitches, skating grounds)

2. Uses involving a potential fire hazard, including :

   a. Cooked foot stalls

   b. Bus depots

   c. Restaurants

   d. Industrial undertakings of any kind, and godowns

   e. LPG filling stations

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f. Vehicle repair/servicing stations

g. Storage of dangerous or inflammable goods (e.g. oil drums, builder's materials, refuse)

3. Environmentally sensitive uses which may generate users' exposure for a prolonged period to unacceptable environmental conditions of the adjacent roads, including :

a. Clinics

b. Hospitals

c. Kindergartens/ nurseries

d. Schools

e. Community/ children/ youth/ elderly centres providing residential/ day care services

f. Residential uses

4. Uses generating an unacceptably high vehicular/pedestrian activity and/or conflict with through traffic, including :

a. Supermarkets/retail shops

b. Wholesale markets

c. Off-course betting centres

d. Ticket selling booths

5. Any other uses which might give rise to accidental impact to the flyover structure

6. Any other uses which pose unacceptable fire or environmental hazard

Note : The uses listed are for general guidance only and by no means exhaustive.

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APPENDIX 3.16 SAMPLE COVERING MEMO FOR CIRCULATION OF THE DRAFT GAZETTAL DOCUMENTS UNDER SEWERAGE REGULATION

From : Initiating Office **To : Director of Environmental Protection**

Roads (Works, Use and Compensation) Ordinance (Chapter 370)
as applied by section 26 of the
Water Pollution Control (Sewerage) Regulation (Chapter 358, sub. leg.)

(Project Title)

I attach, for your action, 15 copies of the Plan no. _____ duly approved by this Department and a draft scheme as required by s.5 of the above Ordinance in respect of the above-mentioned works, together with a draft Notice for your publication in the HKSAR gazette under s.8(2) of the Ordinance all in English and Chinese.

2. Please note that all the comments received from DO(*concerned*), DLO(*concerned*), and other departments concerned (e.g., DCED, DHA, DoJ (on legal matters), CES/Acquisition, Lands Department depending on the proposed sewerage works) have been incorporated into the above documents.

*3. The _____ District Board(s) has/have been consulted on _____ regarding the proposed works and _____ (state the result).

4. I should be grateful if you could sign the plans, the scheme and the Notice and arrange for the gazette of the proposed sewerage works and undertake the related procedures as stipulated in paragraphs 20-22 in your Procedural Guidelines (No. 1/2003).

( )
for Head of Initiating Office

c.c. - with copy of approved plan, draft scheme and draft notice

DO/____
DLO/____
Other departments concerned in respect of the proposed sewerage works
PMS/WB, DEVB – with a copy of draft notice and a computer file of the location plan of project site

* Delete if inapplicable

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APPENDIX 3.16A SAMPLE MEMO FROM DIRECTOR OF ENVIRONMENTAL PROTECTION FOR GAZETTAL OF SEWERAGE WORKS AND DEPOSITION OF GAZETTE DOCUMENTS FOR PUBLIC INSPECTION

From : Director of Environmental Protection **To : Initiating Office**

Roads (Works, Use and Compensation) Ordinance (Chapter 370)
as applied by section 26 of the
Water Pollution Control (Sewerage) Regulation (Chapter 358, sub. leg.)

(Project Item No. and Project Title)

Gazette Documents

The attached Notice for the above referenced sewerage works under section 8(2) of the Road (Works, Use and Compensation) Ordinance (Chapter 370) as applied by section 26 of the Water Pollution Control (Sewerage) Regulation (Chapter 358) will be published in **2 successive** issues of the Government Gazette commencing ***(date of first Gazette)*****.**

2. Please ensure that copies of the Notice, in both English and Chinese languages, are affixed in prominent positions within the works area for the information of the public. Please also promptly despatch a copy of this memo together with the enclosure to the DO(*Concerned*), Home Affairs Enquiry Centre (Concerned), DLO(*Concerned*) and *(Concerned) District Council* urgently.

3. By copy of this memo, the concerned parties are requested to undertake the following actions:

(a) DO(*Concerned*), Home Affairs Enquiry Centre (Concerned), DLO(*Concerned*) are requested to deposit the signed Plan No. (*Plan No.*) ("the Plan") and the scheme annexed thereto in their offices for public inspection, for 60 calendar days starting ***(Start date of Gazette)***. Please also complete the attached reply slip and return to EPD for record.

(b) Land Registry is requested to deposit the Plan and the Scheme in the Land Registry under section 8(1) of the Ordinance, for 60 calendar days starting ***(Start date of Gazette)***. Please also complete the attached reply slip and return to EPD for record.

(c) DS/EPD is requested to deposit the Plan and the Scheme in the EPD Revenue Tower Office for public inspection, for 60 calendar days starting ***(Start date of Gazette)***. Please also complete the attached reply slip and return to EPD for record.

(d) PEPO(*Concerned*)/EPD is requested to deposit the Plan and the Scheme in the EPD Regional Office (*Concerned*) for public inspection, for 60 calendar days, starting ***(Start date of Gazette)***. Please also complete the attached reply slip and return to EPD for record.

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(e) DIS is requested to arrange for publication of an advertisement of the Notice in 2 issues of one Chinese newspaper and one English newspaper on the dates of gazetting, i.e. ***(Start date of Gazette)*** **and** ***(Date of next issue of Gazette)***.

(f) Assistant Clerk to the Executive Council via COLO(T)3, Unit 3, OLD is requested to publish the Notice in the Government of the HKSAR Gazette on ***(Start date of Gazette)*** **and** ***(Date of next issue of Gazette)***.

(g) Secretary of *(Concerned) District Council* is requested to advise the District Council members of the deposit of the Plan and the Scheme in the Land Registry and to retain the attached copy for members' reference in accordance with section 8(4) of the Ordinance.

( )

for Director of Environmental Protection

Enclosure - with copy of the Plan, Scheme & Notice.

c.c.

DO(*Concerned*) Home Affairs Enquiry Centre *(All Concerned)* DLO*(Concerned)*	] **via**] ***Initiating***] ***Office***	] with the Plan,] Scheme & Notice] and Reply Slip] **(Urgent by Hand)**
Secretariat, *(Concerned)*District Council	] **via**] ***Initiating***] ***Office***	] with the Plan,] Scheme & Notice] **(Urgent by Hand)**

Land Registry DS/EPD (Attn: EO(G)) PEPO*(Concerned)*/EPD)	] with the Plan, Scheme & Notice] and Reply Slip] (**Urgent by Hand**)
DIS (Attn: *Concerned Officer*)	] with the Notice (By Fax: 2511 5338 and by Email *(Officer Email Address)*
Assistant Clerk to the Executive Council (via COLO(T)3, Unit 3, OLD)	] with the Notice (By Fax: 2868 4955)
PMS/WB (DEVB)	] with the Notice (By Fax: 2537 1961 and by Email pms@devb.gov.hk)
Director of Government Logistics	] with the Notice (By Fax: 2579 1156 and by Email pd-gazette@gld.gov.hk)
DPO	] with the Plan, Scheme & Notice

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APPENDIX 3.16B SAMPLE REPLY SLIP FROM DISPLAY OFFICE TO DIRECTOR OF ENVIRONMENTAL PROTECTION FOR CONFIRMATION OF DEPOSITION AND MAKING AVAILABLE GAZETTE DOCUMENTS FOR PUBLIC INSPECTION

Reply Slip

To: SIG, EPD
Fax: 3121 2756
Ref.: ( ) in EP *(File Reference)*

Roads (Works, Use and Compensation) Ordinance (Chapter 370)
as applied by section 26 of the
Water Pollution Control (Sewerage) Regulation (Chapter 358, sub. leg.)

(Project Item No. and Project Title)

Deposition of Gazette Documents for Public Inspection

We hereby acknowledge receipt of the EPD gazette documents.

As per request, we will arrange for the Plan *(Plan No.*)* and the scheme annexed thereto available for public inspection in our office, for 60 calendar days starting ***(Start Date of Gazette)***.

* Insert the Plan No.

Signature: _____

Name (Block letter): _____

Post: _____

Department: _____

Tel. No.: _____

Fax. No.: _____

Date: _____

File Reference: _____

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APPENDIX 3.17 SAMPLE NOTICE UNDER S.8 OF ROADS (WORKS, USE AND COMPENSATION) ORDINANCE

Roads (Works, Use and Compensation) Ordinance (Chapter 370)
as applied by section 26 of the
Water Pollution Control (Sewerage) Regulation (Chapter 358, sub. leg.)

(Project Title)

(Notice under section 8(2) of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation)

Notice is hereby given that the Director of Environmental Protection proposes to execute the sewerage works within the limit of works area as shown on Plan(s) No._____ ("the Plan(s)") and described in the scheme annexed thereto, which Plan(s) and scheme have been deposited in the Land Registry.

The general nature of the proposed sewerage works is as follows:

(i) *construction of about ____ metres of rising main and associated manholes within the limit of works area as shown on the Plan(s);
(ii) *construction of about ____ metres of gravity sewer and associated manholes within the limit of works area as shown on the Plan(s);
(iii) *construction of sewage pumping station/sewage treatment plant at _____ within the limit of works area as shown on the Plan(s);
(iv) *any other proposed sewerage works; and
(v) *ancillary works including reinstatement of carriageways, footpaths and open space.

*The lots where land are to be resumed are listed below:

Lots where land are to be resumed	
D.D. No	Lot No

*The lots where rights of temporary occupation of land may be created are shown below:

Lots where rights of temporary occupation of land may be created	
D.D. No	Lot No

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The Plan(s) and the scheme may be inspected by members of the public, free of charge, at the following locations during the following hours when those offices are normally open to the public:

Places	*Opening hours (except on public holiday)*
Central & Western Home Affairs Enquiry Centre, G/F, Harbour Building, 38 Pier Road, Central, Hong Kong;	Monday to Friday 9:00 a.m. to 7:00 p.m.
District Lands Offices (concerned) (address)	(Opening hours)
District Office (concerned) (address)	(Opening hours)
Environmental Protection Department, Revenue Tower Office, 33/F, Revenue Tower, 5 Gloucester Road, Wan Chai, Hong Kong	(Opening hours)
Local Control Office of Environmental Protection Department (address to be filled in by EPD)	(Opening hours)
(Local concerned) Land Registry (address)	(Opening hours)
Land Registry 19th Floor, Queensway Government Office, 66 Queensway, Hong Kong	Monday to Friday 9:00 a.m. to 12:30 p.m. and 2:00 p.m. to 5:00 p.m.

*There are road works to be constructed at _____ (address), in connection with the above proposed sewerage works. A separate Notice in respect of the proposed road works at _____ (address), is gazetted concurrently with this Notice.

Further enquiries regarding the proposed sewerage works can be addressed to _____ (*Initiating Office*) at _____ (*address & telephone number*).

Any person who wishes to object to the works or the use, or both, is required to address his objection in writing to the Director of Environmental Protection, Environmental Protection Department, Revenue Tower Office, 33/F, Revenue Tower, 5 Gloucester Road, Wan Chai, Hong Kong, so as to reach the office of the Director not later than _____ describing his interest and the manner in which he alleges he will be affected by the works or the use. Objectors are required to provide contact details to the Director to facilitate communication.

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Personal Data Collection Statement

Any information, including the personal data, submitted to the Director of Environmental Protection in connection with any written objections/comments will be used for the processing of the objections/comments and other related purposes. The provision of any information, including the personal data, other than the information as required under section 10(2) of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) as applied by section 26 of the Water Pollution Control (Sewerage) Regulation (Chapter 358AL) is voluntary. However, it may not be possible to process the objections/comments if such information as required under section 10(2) of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) as applied by section 26 of the Water Pollution Control (Sewerage) Regulation (Chapter 358AL) is not sufficiently provided. Any information, including the personal data, so submitted may be disclosed to the relevant government departments and other persons, organizations or agencies which are required to handle the objections/comments and related matters. Persons who have so submitted their personal data have the rights to request access to and correction of their personal data held by us. Request for access to or correction of the personal data should be made in writing to the Senior Environmental Protection Officer (Knowledge Management) of Environmental Protection Department at Suite 1201, Guardian House, 32 Oi Kwan Road, Wan Chai, Hong Kong.

_____

( )

Senior Environmental Protection Officer

Date _____

(With Chinese Translation)

* Delete if inapplicable

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SAMPLE NOTICE UNDER S.8

（根據第8條規定所發的公告樣本）

水污染管制(排污設備)規例(第358章附屬法例)
第26條引用
道路(工程、使用及補償)條例(第370章)

(工程項目名稱)

(根據《水污染管制(排污設備)規例》第26條引用
《道路(工程 、使用及補償)條例》第8(2)條規定所發的公告)

現公布環境保護署署長擬進行上述排污設備工程的計劃，工程施工區範圍載於圖則第_____號(下稱"該(等)圖則")，並在附連的計劃內說明。該(等)圖則及計劃現存放於土地註冊處。

建議排污設備工程的一般性質如下：

(i) *如該(等)圖則所示，位於施工區範圍，建造約_____米的壓力污水幹渠及相關的沙井;
(ii) *如該(等)圖則所示，位於施工區範圍，建造約_____米的無壓力污水管道及相關的沙井;
(iii) *如該(等)圖則所示，位於_____施工區範圍，建造污水泵房/污水處理廠；
(iv) *其他建議排污設備工程；以及
(v) *其他附屬工程包括將行車道、行人路及休憩用地恢復原貌。

*下列將予收回土地的地段：

將予收回土地的地段	
丈量約份編號	地段編號

*下列可予設定暫時佔用土地權的地段：

可予設定暫時佔用土地權的地段	
丈量約份編號	地段編號

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下列辦事處備有該(等)圖則及計劃，供公眾免費查閱。各辦事處一般開放時間如下：

辦事處地址	*開放時間* *（公眾假期除外）*
香港中環統一碼頭道38號 海港政府大樓地下 中西區民政諮詢中心	星期一至星期五 上午9時至晚上7時
有關　　地政處 (地址);	(開放時間)
有關　　民政事務處 (地址)	(開放時間)
香港灣仔告士打道5號 稅務大樓33樓 環境保護署稅務大樓辦事處	(開放時間)
環境保護署污染管制辦事處 (地址由環境保護署填寫)	(開放時間)
有關地區土地註冊處 (地址)	(開放時間)
土地註冊處 香港金鐘道66號金鐘道政府合署19樓	星期一至星期五 上午9時至下午12時30分 及下午2時至下午5時

*在建議的排污設備工程進行期間，會有關連的道路工程同時進行。一份有關　　道路工程的獨立公告，現正與本公告同時刊登憲報。

如對建議排污設備工程有進一步查詢，可向　　(所屬辦事處，地址)或致電　　(電話　　)查詢。

任何人士如欲反對該項工程或使用，或同時反對兩者，必須以書面向環境保護署署長提出。反對書須說明其本人的權益及聲稱受該項工程或使用影響的情形，最遲於　　年　　月　　日送達香港灣仔告士打道5號稅務大樓33樓環境保護署稅務大樓辦事處。反對人士請向署長提供聯絡資料，方便聯絡。

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收集個人資料聲明

任何向環境保護署署長提交的書面反對書/意見書中有關的資料，包括個人資料，將用於處理有關反對/意見及其他相關的事宜上。除了《水污染管制(排污設備)規例》(第358AL章) 第26條所引用《道路(工程、使用及補償)條例》(第370章) 第10(2)條要求的資料外，其他任何資料，包括個人資料，是自願提供的。如未能提供《水污染管制(排污設備)規例》(第358AL章) 第26條所引用《道路(工程、使用及補償)條例》(第370章) 第10(2)條要求的資料，則反對/意見可能不會被處理。任何提交的資料，包括個人資料，可能會向負責處理有關反對/意見及相關事宜的有關政府部門及其他人士、組織或機構披露。任何人有權要求查閱或更改已提交本署的有關其本人的個人資料。如欲查閱或更改有關的個人資料，請以書面向環境保護署高級環境保護主任(知識管理) 提出 (地址：香港灣仔愛羣道32號愛羣商業大廈1201室)。

高級環境保護主任

年 月 日

*將不適用者刪去

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SAMPLE SCHEME UNDER S.8

Roads (Works, Use and Compensation) Ordinance (Chapter 370)
as applied by section 26 of the
Water Pollution Control (Sewerage) Regulation (Chapter 358, sub. leg.)

Scheme annexed to Plan(s) No. _____ and Proposed Resumption Plan(s) No. ___
describing (Project Title)

General Description of Works

The Director of Environmental Protection proposes to execute the sewerage works within the limit of works area as shown on Plan(s) No._____ and Proposed Resumption Plan(s) No._____("the Plan(s)") annexed hereto and described hereunder. _____(Describe briefly the purposes of the proposed works).

The general nature of the proposed sewerage works is as follows:

(i) *construction of about metres of rising main and associated manholes within the limit of works area as shown on the Plan(s);
(ii) *construction of about metres of gravity sewer and associated manholes within the limit of works area as shown on the Plan(s);
(iii) *construction of sewage pumping station/sewage treatment plant at within the limit of works area as shown on the Plan(s);
(iv) *any other proposed sewerage works; and
(v) *ancillary works including reinstatement of carriageways, footpaths and open space.

*Land to be Resumed

For the purposes of or incidental to the works or the use, the Director of Environmental Protection proposes that powers under section 13 of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation may be exercised to resume the land as shown on Proposed Resumption Plan(s) No._____ annexed hereto and detailed on the resumption table set out thereon. Further notice, setting out the manner in which the land is to be resumed, will be issued under section 14 of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation as and when required.

*Roads to be Closed

For the purposes of or incidental to the works or the use, the Director of Environmental Protection proposes that powers under section 17 of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation may be exercised to close *temporarily or permanently the existing carriageway, footpaths and open space or parts thereof within the limit of works area as shown on the Plan(s). *Temporary alternative access will be provided during the construction period where required. Further notice, setting out the manner in which the roads is to be closed, will be issued under section

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18 of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation as and when required.

Apparatus whose Course or Position to be Altered

For the purposes of or incidental to the works or the use, the Director of Environmental Protection proposes that powers under section 20 of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation may be exercised to require alteration of the course or position of the existing services and utilities, such as electricity cables, telecommunication cables, water-mains, gas pipes and other service apparatus lying within the limit of works area and to require repair of any road surface thereby disturbed. Further notice, setting out the manner in which the course or position of such services and utilities is to be altered and the repair of any road surface, will be issued under section 20 of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation as and when required.

_____

( )
Senior Environmental Protection Officer
Date _____

(With Chinese Translation)

* Delete whichever is inapplicable

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SAMPLE SCHEME UNDER S.8

（根據第8條的計劃摘要樣本）

水污染管制(排污設備)規例(第358章附屬法例)
第26條引用
道路（工程、使用及補償）條例(第370章)

附連於圖則第_____號及建議收地圖則第_____號的計劃
說明 _____（工程項目名稱）

工程的一般說明

環境保護署署長現擬進行排污設備工程，其施工區範圍載於附連的圖則第 號及建議收地圖則第 號(下稱"該(等)圖則")，並在下文說明。 （略述建議工程的目的）。

建議排污設備工程的一般性質如下：

(i) *如該(等)圖則所示，位於施工區範圍，建造約_____米的壓力污水幹渠及相關的沙井;
(ii) *如該(等)圖則所示，位於施工區範圍，建造約_____米的無壓力污水管道及相關的沙井;
(iii) *如該(等)圖則所示，位於 施工區範圍，建造污水泵房/污水處理廠；
(iv) *其他建議排污設備工程；以及
(v) *其他附屬工程包括將行車道、行人路及休憩用地恢復原貌。

*收回土地

為工程或使用或附帶事宜的目的，環境保護署署長建議行使《水污染管制(排污設備)規例》第26條所引用《道路(工程、使用及補償)條例》第13條所賦予的權力，收回附連該(等)圖則的建議收地圖則編號_____詳列的土地。如有需要，當局會根據《水污染管制(排污設備)規例》第26條所引用《道路(工程、使用及補償)條例》第14條的規定另行發出公告，說明收回上述土地的情形。

*封閉道路

為工程或使用或附帶事宜的目的，環境保護署署長建議行使《水污染管制(排污設備)規例》第26條所引用《道路(工程、使用及補償)條例》第17條所賦予的權力，封閉在該(等)圖則所示*施工區範圍內任何現有的行車道、行人路及空地或以上其中一部分。*在施工期間，當局會因應需要另行提供臨時通道。如有需要，當局會根據《水污染管制(排污設備)規例》第26條所引用《道路(工程、使用及補償)條例》第18條的規定另行發出公告，說明封閉該等道路的情形。

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*改動器具的路線或位置

為工程或使用或附帶事宜的目的，環境保護署署長建議行使《水污染管制（排污設備）規例》第26條所引用《道路（工程、使用及補償）條例》第20條所賦予的權力，規定有關方面改動施工區範圍內的現有公用服務器具的路線或位置，例如電線、電話線、供水管、煤氣管，以及任何其他器具的路線或位置，並需將受影響的地面修補。如有需要，當局會根據《水污染管制（排污設備）規例》第26條所引用《道路（工程、使用及補償）條例》第20條的規定另行發出公告，說明改動該等器具的路線或位置及修補任何道路路面的情形。

高級環境保護主任

年 月 日

*將不適用者刪去

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APPENDIX 3.18 SAMPLE NOTICE UNDER S.7 OF ROADS (WORKS, USE AND COMPENSATION) ORDINANCE

Roads (Works, Use and Compensation) Ordinance (Chapter 370)
as applied by section 26 of the
Water Pollution Control (Sewerage) Regulation (Chapter 358, sub. leg.)

(Project Title)

(Amendment to Plan and /or Scheme under section 7)

(Notice under section 8(2) of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation)

Notice is hereby given that the Director of Environmental Protection proposes to amend the sewerage works originally described in the scheme and plan_____referred to in G.N. _____ published under section 8(2) of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation on_____and_____.

The proposed amendments are shown on Plan No._____ and Amended Resumption Plan No._____ ("the Plan(s)") annexed to and described in the Amendment Scheme. The Plans and Amendment Scheme have been deposited in the Land Registry.

The general nature of the amendment sewerage works is as follows:

(i) *revisions of the limit of works areas as shown on the Amendment Plans;
(ii) *resumption of certain areas of land for the sewerage works as shown on the Amendment Plans;
(iii) *deletion of proposed land resumption of certain areas as shown on the Amendment Plans; and
(iv) *(any other amendments).

*The lots where land are to be resumed are listed below:

Lots where land are to be resumed	
D.D. No	Lot No

*The lots where rights of temporary occupation of land may be created are shown below:

Lots where rights of temporary occupation of land may be created	
D.D. No	Lot No

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The Plan(s) and Amendment Scheme may be inspected by members of the public, free of charge, at the following locations during the following hours when those offices are normally open to the public:

Places	*Opening hours (except on public holiday)*
Central & Western Home Affairs Enquiry Centre, G/F, Harbour Building, 38 Pier Road, Central, Hong Kong;	Monday to Friday 9:00 a.m. to 7:00 p.m.
District Lands Offices (concerned) (address)	(Opening hours)
District Office (concerned) (address)	(Opening hours)
Environmental Protection Department, Revenue Tower Office, 33/F, Revenue Tower, 5 Gloucester Road, Wan Chai, Hong Kong	(Opening hours)
Local Control Office of Environmental Protection Department (address to be filled in by EPD)	(Opening hours)
(Local concerned) Land Registry (address)	(Opening hours)
Land Registry 19th Floor, Queensway Government Office, 66 Queensway, Hong Kong	Monday to Friday 9:00 am to 12:30 pm and 2:00 pm to 5:00 pm

Further enquiries regarding the proposed amendments can be addressed to _____ (initiating officer) at (address and telephone number).

Any person who wishes to object to the proposed amendments, is required to address his objection in writing to the Director of Environmental Protection, Environmental Protection Department, Revenue Tower Office, 33/F, Revenue Tower, 5 Gloucester Road, Wan Chai, Hong Kong, so as to reach the office of the Director not later than _____ describing his interest and the manner in which he alleges he will be affected by the proposed amendments. Objectors are required to provide contact details to the Director to facilitate communication.

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Personal Data Collection Statement

Any information, including the personal data, submitted to the Director of Environmental Protection in connection with any written objections/comments will be used for the processing of the objections/comments and other related purposes. The provision of any information, including the personal data, other than the information as required under section 10(2) of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) as applied by section 26 of the Water Pollution Control (Sewerage) Regulation (Chapter 358AL) is voluntary. However, it may not be possible to process the objections/comments if such information as required under section 10(2) of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) as applied by section 26 of the Water Pollution Control (Sewerage) Regulation (Chapter 358AL) is not sufficiently provided. Any information, including the personal data, so submitted may be disclosed to the relevant government departments and other persons, organizations or agencies which are required to handle the objections/comments and related matters. Persons who have so submitted their personal data have the rights to request access to and correction of their personal data held by us. Request for access to or correction of the personal data should be made in writing to the Senior Environmental Protection Officer (Knowledge Management) of Environmental Protection Department at Suite 1201, Guardian House, 32 Oi Kwan Road, Wan Chai, Hong Kong.

_____

( )

Senior Environmental Protection Officer

Date _____

(With Chinese Translation)

* Delete whichever is inapplicable

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SAMPLE NOTICE UNDER S.7

（根據第7條規定所發的公告樣本）

水污染管制（排污設備）規例(第358章附屬法例)
第26條引用
道路（工程、使用及補償）條例（第370章）

(工程項目名稱)
根據第7條規定修訂圖則*及/或計劃

(根據《水污染管制(排污設備)規例》第26條引用
《道路(工程、使用及補償)條例》第8(2) 條規定所發的公告)

現公布環境保護署署長擬修訂上述排污設備工程的計劃，工程施工區範圍原載於圖則第_____號*至/和_____號，並在附連的計劃內說明。該(等)圖則及計劃在_____年_____月_____日及_____年_____月_____日根據《水污染管制(排污設備)規例》第26條引用《道路(工程、使用及補償)條例》第8(2)條規定所發的第_____號政府公告已有提及。

建議修訂工程在修訂計劃內說明，並載於附連的圖則第_____號和經修訂的收地圖則第_____號（下稱"該(等)圖則"）。該(等)圖則及修訂計劃現存放於土地註冊處。

建議修訂排污設備工程的一般性質如下：

(i) *如該(等)修訂圖則所示，更改施工區範圍；
(ii) *如該(等)修訂圖則所示，位於施工區範圍，收回部份土地進行污水渠工程；
(iii) *如該(等)修訂圖則所示，位於施工區範圍，刪除部份原先用擬收回的土地；以及
(iv) *(其他修訂)。

*下列將予收回土地的地段：

將予收回土地的地段	
丈量約份編號	地段編號

*下列可予設定暫時佔用土地權的地段：

可予設定暫時佔用土地權的地段	
丈量約份編號	地段編號

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下列辦事處備有該(等)圖則及計劃，供公眾免費查閱。各辦事處一般開放時間如下：

辦事處地址	*開放時間* *（公眾假期除外）*
香港中環統一碼頭道38號 海港政府大樓地下 中西區民政諮詢中心	星期一至星期五 上午9時至晚上7時
有關 地政處 (地址);	(開放時間)
有關 民政事務處 (地址)	(開放時間)
香港灣仔告士打道5號 稅務大樓33樓 環境保護署稅務大樓辦事處	(開放時間)
環境保護署污染管制辦事處 (地址由環境保護署填寫)	(開放時間)
有關地區土地註冊處 (地址)	(開放時間)
土地註冊處 香港金鐘道66號金鐘道政府合署19樓	星期一至星期五 上午9時至下午12時30分 及下午2時至下午5時

如需要建議修訂工程的其他資料，可向 (所屬辦事處，地址)或致電(電話)提出。

任何人士如欲反對該項建議修訂工程，必須以書面向環境保護署署長提出。反對書須說明其本人的權益及聲稱受該建議項修訂工程影響的情形，最遲於 年 月 日送達香港灣仔告士打道5號稅務大樓33樓環境保護署稅務大樓辦事處。反對人士請向署長提供聯絡資料，方便聯絡。

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收集個人資料聲明

任何向環境保護署署長提交的書面反對書/意見書中有關的資料，包括個人資料，將用於處理有關反對/意見及其他相關的事宜上。除了《水污染管制(排污設備)規例》(第358AL章) 第26條所引用《道路(工程、使用及補償)條例》(第370章) 第10(2)條要求的資料外，其他任何資料，包括個人資料，是自願提供的。如未能提供《水污染管制(排污設備)規例》(第358AL章) 第26條所引用《道路(工程、使用及補償)條例》(第370章) 第10(2)條要求的資料，則反對/意見可能不會被處理。任何提交的資料，包括個人資料，可能會向負責處理有關反對/意見及相關事宜的有關政府部門及其他人士、組織或機構披露。任何人有權要求查閱或更改已提交本署的有關其本人的個人資料。如欲查閱或更改有關的個人資料，請以書面向環境保護署高級環境保護主任(知識管理) 提出 (地址：香港灣仔愛羣道32號愛羣商業大廈1201室)。

高級環境保護主任

年 月 日

*將不適用者刪去

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APPENDIX 3.19 SAMPLE NOTICE UNDER S.9 OF ROADS (WORKS, USE AND COMPENSATION) ORDINANCE

Roads (Works, Use and Compensation) Ordinance (Chapter 370)
as applied by section 26 of the
Water Pollution Control (Sewerage) Regulation (Chapter 358, sub. leg.)

(Project Title)

(Notice under section 9 of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation)

Notice is hereby given that under section 9 of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation, the Director of Environmental Protection has decided not to execute the sewerage works described in G.N. _____published on _____and _____.

_____
( )
Senior Environmental Protection Officer
Date _____

(With Chinese Translation)

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SAMPLE NOTICE UNDER S.9

（根據第9條規定所發的公告樣本）

水污染管制(排污設備)規例（第358章附屬法例）
第26條引用
道路（工程、使用及補償）條例（第370章）

(工程項目名稱)

（根據《水污染管制(排污設備)規例》第26條引用
《道路(工程、使用及補償)條例》第 9 條規定所發的公告）

現公布環境保護署署長根據《水污染管制(排污設備)規例》第26條引用《道路(工程、使用及補償)條例》第9條的規定，決定不進行＿＿年＿＿月＿＿日及＿＿年＿＿月＿＿日第＿＿號政府公告所說明的排污設備工程。

高級環境保護主任

＿＿年＿＿月＿＿日

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APPENDIX 3.20 SAMPLE NOTICE UNDER S.11(9)(a) OF ROADS (WORKS, USE AND COMPENSATION) ORDINANCE

Roads (Works, Use and Compensation) Ordinance (Chapter 370)
as applied by section 26 of the
Water Pollution Control (Sewerage) Regulation (Chapter 358, sub. leg.)

(Project Title)

(Notice under section 11(9)(a) of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation)

Notice is hereby given that under section 11(1) of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation, the Director of Environmental Protection proposes to execute the sewerage works described in G.N. _____published on _____and _____.

_____
( )
Senior Environmental Protection Officer
Date _____

(With Chinese Translation)

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SAMPLE NOTICE UNDER S.11(9)(a)

（根據第11（9）（a）條規定所發的公告樣本）

水污染管制(排污設備)規例(第358章附屬法例)
第26條引用
道路(工程、使用及補償)條例(第370章)

(工程項目名稱)

（根據《水污染管制(排污設備)規例》第26條引用
《道路(工程、使用及補償)條例》第 11(9)(a)條規定所發的公告）

現公布環境保護署署長根據《水污染管制(排污設備)規例》第26條引用《道路(工程、使用及補償)條例》第11(1)條的規定，建議進行　　年　　月　　日及　　年　　月　　日第　　號政府公告所說明的排污設備工程。

高級環境保護主任

　　年　　月　　日

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APPENDIX 3.21 FORMAT OF DRAFT EXCO PAPER FOR AUTHORIZATION OF WORKS AND USE FOLLOWING RECEIPT OF OBJECTIONS UNDER ROADS (WORKS, USE AND COMPENSATION) ORDINANCE AS APPLIED BY SECTION 26 OF THE WATER POLLUTION CONTROL (SEWERAGE) REGULATION (CHAPTER 358, SUB. LEG.)

RESTRICTED

MEMORANDUM FOR EXECUTIVE COUNCIL

ROADS (WORKS, USE AND COMPENSATION) ORDINANCE (CHAPTER 370)
AS APPLIED BY SECTION 26 OF THE
WATER POLLUTION CONTROL (SEWERAGE) REGULATION
(CHAPTER 358, SUB. LEG.)

(Project Title)

AUTHORIZATION OF WORKS AND USE
FOLLOWING RECEIPT OF OBJECTIONS

THE PROBLEM

Following receipt of objection(s), authorization of the works and the use as described in the plan and scheme at Annex A is required.

RECOMMENDATION AND ADVICE SOUGHT

2. Members are asked to advise, whether the Chief Executive in Council, under section 11 of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) ("the Ordinance"), should –

(a) authorize the works and the use as described at Annex A; or

(b) refer the plan, scheme and objection(s) to the Town Planning Board for a report and advice; or

(c) authorize the works and the use as described at Annex A, subject to any modifications or conditions as the Chief Executive in Council thinks fit, and if so, the nature of such modifications and conditions; or

(d) decline to authorize the works and the use as described at Annex A.

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BACKGROUND AND ARGUMENT

General Background

3. [Give a brief history of the project.]

The Sewerage Scheme

4. The scheme involves [briefly describe the project in a manner similar to the original gazetted scheme. The gazetted plan and scheme should be included in the Annex A.]

5. The plan and scheme at Annex A were gazetted on _____and _____and made available for public inspection.

The objections

6. _____objection(s) were received of which _____remain unresolved. Copies of the objection letters and replies from Government are attached at Annex B.

Criteria for Meeting Objection

7. As a general rule, where an objection is considered valid, an attempt will be made to ameliorate or avoid the effect of the works and the use by modifying the scheme, provided that such modifications –

(a) would be unlikely to generate further objections;

(b) would not be against the public interest; and

(c) would not result in disproportionate additional cost.

Assessment of Objections

8. [Based on the above, each objection or each group of objections has to be separately assessed.]

Compensation and Clearance

9. [Give details of land, structures and families affected by the Scheme and compensation to be offered.]

Implication of Not Authorizing the Works and the Use

10. [State the implications and consequences of not authorizing the Scheme.]

FINANCIAL AND STAFFING IMPLICATIONS

11. The estimated cost of the proposed road works is _____million and funds will be made available under Head _____.

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ENVIRONMENTAL IMPLICATIONS

12. [State the implications.]

SUBSTANABILITY IMPLICATIONS

13. [State the implications.]

PUBLIC CONSULTATION

14. The_____District Council was consulted on_____and raised (state the result)_____.

PUBLIC REACTION

15. [State what public reaction is expected if the works are authorized.]

PUBLICITY

16. If the scheme is authorized to proceed, notice of authorization will be published in accordance with the provisions of the Ordinance and a press release emphasizing the benefits of the proposed scheme will be issued on _____. [Please consult EPD whether a press release should be published. In cases where a press release is not considered necessary, a statement to this effect with justification should be included in this section. Reference should also be made to whether or not a LegCo brief is to be issued and justification should be given if not.]

ATTENDANCE

17. [The titles and names of persons in attendance.]

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APPENDIX 3.22 SAMPLE ORDER UNDER S. 13(1) OF ROADS (WORKS, USE AND COMPENSATION) ORDINANCE

Roads (Works, Use and Compensation) Ordinance (Chapter 370)
as applied by section 26 of the
Water Pollution Control (Sewerage) Regulation (Chapter 358, sub. leg.)

(Project Title)

(Order under section 13(1) of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation)

In exercise of powers delegated by the Chief Executive of the Hong Kong Special Administrative Region, I hereby direct under section 13(1) of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation that the land _____(insert description of the land, including reference to any plan), which land was described in the scheme referred to in G.N. _____ published on _____and _____shall be resumed for the purposes of or incidental to the sewerage works or use described above and I specify the period of notice to be stated under section 13(2) of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation to be _____ days from the day upon which a notice under section 14 of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation is affixed on or near the land.

BY ORDER

_____
( )
* Director of Lands / Deputy Director of Lands
Date _____

(With Chinese translation)

* delete whichever is inapplicable

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SAMPLE ORDER UNDER S. 13

（根據第13條規定所發的命令樣本）

水污染管制（排污設備）規例（第358章附屬法例）
第26條引用
道路（工程、使用及補償）條例（第370章）

（工程項目名稱）

（根據《水污染管制(排污設備)規例》第26條引用
《道路(工程、使用及補償)條例》第13(1)條規定所發的命令）

本人現行使香港特別行政區行政長官所授予的權力，根據《水污染管制(排污設備)規例》第26條引用《道路(工程、使用及補償)條例》第13(1)條的規定發出指示，為上述排污設備工程或其使用或附帶事宜的目的，收回 _____(填上土地說明，包括圖則編號)的土地。有關土地的詳情，已載於____年____月____日及____年____月____日第____號政府公告所提述的計劃內。本人並根據《水污染管制(排污設備)規例》第26條引用《道路(工程、使用及補償)條例》第13(2)條的規定，指明通知期為____天，由根據《水污染管制(排污設備)規例》第26條引用《道路(工程、使用及補償)條例》第14條的規定在上述土地之上或其附近張貼通知書的日期起計。

*地政總署署長 / 地政總署副署長

____年____月____日

*將不適用者刪去

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APPENDIX 3.23 SAMPLE NOTICE UNDER S.14 OF ROADS (WORKS, USE AND COMPENSATION) ORDINANCE

Roads (Works, Use and Compensation) Ordinance (Chapter 370)
as applied by section 26 of the
Water Pollution Control (Sewerage) Regulation (Chapter 358, sub. leg.)

(Notice under section 14)

(Project Title)

TAKE NOTICE that under powers delegated by the Chief Executive of the Hong Kong Special Administrative Region, the Deputy Director/Specialist, Lands Department has made an order under section 13(1) of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) (interpreted in accordance with the provisions of the Hong Kong Reunification Ordinance No. 110 of 1997 and hereinafter referred to as "the Ordinance") as applied by section 26 of the Water Pollution Control (Sewerage) Regulation, directing that the land _____(insert description of the land, including reference to any plan), which land was described in the scheme referred to in G. N_____published _____(date) and _____(date) shall be resumed.

A copy of the said order and a copy of the aforesaid Resumption Plan No ____ may be inspected by members of the public, free of charge, at the following locations during the following hours when those offices are normally open to the public:

Places	*Opening hours (except on public holiday)*
Central & Western Home Affairs Enquiry Centre, G/F, Harbour Building, 38 Pier Road, Central, Hong Kong;	Monday to Friday 9:00 a.m. to 7:00 p.m.
District Lands Offices (concerned) (address)	(Opening hours)
District Office (concerned) (address)	(Opening hours)
Environmental Protection Department, Revenue Tower Office, 33/F, Revenue Tower, 5 Gloucester Road, Wan Chai, Hong Kong	(Opening hours)

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Local Control Office of Environmental Protection Department (address to be filled in by EPD)	(Opening hours)
(Local concerned) Land Registry (address)	(Opening hours)
Land Registry 19th Floor, Queensway Government Office, 66 Queensway, Hong Kong	Monday to Friday 9:00 am to 12:30 pm and 2:00 pm to 5:00 pm

This notice was affixed on or near the land on _____ (date - normally the day before the date of gazetting the notice).

The Deputy Director/Specialist, Lands Department has under section 13(2) of the Ordinance specified a period of notice of _____ days from the date upon which this notice was affixed on or near the land and upon expiry of that period the land described above shall by virtue of section 13(3) of the Ordinance, as regards (describe land which will revert to the Government of the Hong Kong Special Administrative Region) shall revert to the Government of the Hong Kong Special Administrative Region** and as regards (describe land which will be vested in the FSI) shall vest in the Financial Secretary Incorporated** for the purposes of or incidental to the works or use described in the said scheme.

Any person entitled to compensation under Part V of the Water Pollution Control (Sewerage) Regulation may serve a written claim upon the Secretary for the Environment, 16/F, East Wing, Central Government Offices, 2 Tim Mei Avenue, Tamar, Hong Kong, before the expiration of one year from the date of resumption

Personal Data Collection Statement

Any information, including the personal data, submitted to the Secretary for the Environment in connection with any written claims served under Part VI of the Water Pollution Control (Sewerage) Regulation (Chapter 358AL) will be used for the processing of the claims and other related purposes. The provision of any information, including the personal data, as required under Part VI of the Water Pollution Control (Sewerage) Regulation (Chapter 358AL) is obligatory. If such information, including the personal data, as required under Part VI of the Water Pollution Control (Sewerage) Regulation (Chapter 358AL) is not provided as requested, the claims may be rejected. Any information, including the personal data, so submitted may be disclosed to the relevant government departments and other persons, organizations or agencies which are required to handle the claims and related matters. Persons who have so submitted their personal data have the rights to request access to and correction of their personal data held by the Secretary for the Environment. Request for access to or correction of the personal data should be made in writing to the Senior Environmental Protection Officer (Knowledge Management) of Environmental Protection Department at Suite 1201, Guardian House, 32 Oi Kwan Road, Wan Chai, Hong Kong.

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_____
( )
* Chief Estate Surveyor (Acquisition)
/ District Lands Officer
Date _____

(With Chinese translation)

* delete whichever is inapplicable
** if only reversion or only vesting is involved, delete as appropriate

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SAMPLE NOTICE UNDER S.14

（根據第14條規定所發的公告樣本）

水污染管制 (排污設備) 規例 (第358章附屬法例)
第26條引用
道路 (工程、使用及補償) 條例 (第370章)
（根據第14條規定所發的通知書）

(工程項目名稱)

現公布地政總署副署長（專業事務）已根據香港特別行政區行政長官所授予的權力，根據《水污染管制(排污設備)規例》第26條引用《道路(工程、使用及補償)條例》（第370章）（按照《香港回歸條例》（1997年第110號）的條文詮釋）（下稱"該條例"）第13(1)條發出命令，指令收回在 （填上土地的說明，包括參照圖則）的土地。有關土地的詳情，已載於 年 月 日發布的第 號政府公告所提述的計劃內。

該命令的副本及上述第 號收地圖則，現存於下列地點，在其開放時間下，供公眾免費查閱：

辦事處地址	*開放時間* *（公眾假期除外）*
香港中環統一碼頭道38號 海港政府大樓地下 中西區民政諮詢中心	星期一至星期五 上午9時至晚上7時
有關 地政處 (地址);	(開放時間)
有關 民政事務處 (地址)	(開放時間)
香港灣仔告士打道5號 稅務大樓33樓 環境保護署稅務大樓辦事處	(開放時間)
環境保護署污染管制辦事處 (地址由環境保護署填寫)	(開放時間)

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有關地區土地註冊處 (地址)	(開放時間)
土地註冊處 香港金鐘道66號金鐘道政府合署19樓	星期一至星期五 上午9時至下午12時30分 及下午2時至下午5時

本通知書於 年 月 日（通常是刊登憲報日期的前一日）張貼在上述土地之上或其附近。

地政總署副署長（專業事務）業已根據該條例第13(2)條規定，指明通知期為 天，由本通知書張貼於該土地或其附近的日期起計。憑藉該條例描述的第13(3)條，上述土地於通知期屆滿時，如土地為 （描述須歸還香港特別行政區政府的土地），將復歸香港特別行政區政府所有**，如土地為 （描述歸屬財政司司長法團的土地），將復歸財政司司長法團所有**，以便進行上述計劃所描述的工程或附帶事宜。

根據《水污染管制(排污設備)規例》第V部有權獲補償的任何人士，可在收地日期起計一年內，向香港添馬添美道2號政府總部東翼16樓環境局局長送達申索書。

收集個人資料聲明

任何根據《水污染管制(排污設備)規例》(第358AL章)第VI部向環境局局長提交的書面申索中有關的資料，包括個人資料，將用於處理有關申索及其他相關的事宜上。《水污染管制(排污設備)規例》(第358AL章)第VI部要求的資料，包括個人資料，是必須提供的。如未能提供《水污染管制(排污設備)規例》(第358AL章)第VI部要求的資料，包括個人資料，則申索可能遭駁回。任何提交的資料，包括個人資料，可能會向負責處理有關申索及相關事宜的有關政府部門及其他人士、組織或機構披露。任何人有權要求查閱或更改已提交環境局局長的有關其本人的個人資料。如欲查閱或更改有關的個人資料，請以書面向環境保護署高級環境保護主任(知識管理) 提出(地址：香港灣仔愛羣道32號愛羣商業大廈1201室)。

*總產業測量師（土地徵用）/地政專員

年 月 日

* 將不適用者刪去

** 如土地只歸還政府或只歸入財政司法團，請將不適用者刪去。

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APPENDIX 3.24 SAMPLE ORDER UNDER S. 15(1) OF ROADS (WORKS, USE AND COMPENSATION) ORDINANCE

Roads (Works, Use and Compensation) Ordinance (Chapter 370)
as applied by section 26 of the
Water Pollution Control (Sewerage) Regulation (Chapter 358, sub. leg.)

(Project Title)

(Order under section 15(1) of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation)

In exercise of powers delegated by the Chief Executive of the Hong Kong Special Administrative Region, I hereby direct under section 15(1) of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) (hereinafter referred to as "the Ordinance") as applied by section 26 of the Water Pollution Control (Sewerage) Regulation that _____(describe the nature of the easement, permanent right or temporary right of occupation) over the land _____ (describe the land including reference to any plan) which land was described in the scheme referred to in G.N. _____published on _____(date) and _____(date) shall be created in favour of the Government of the Hong Kong Special Administrative Region for the purposes of or incidental to the sewerage works or use described in the above and I specify the period of notice to be stated under section 15(2) of the Ordinance to be _____days from the day upon which a notice under section 16 of the Ordinance is affixed on or near the land.

**AND I further direct under Section 15(3) of the Ordinance that subject to the serving of any notice required to be given under Section 15(5) of the Ordinance [describe any consequential or incidental provisions which appear to be necessary, including powers for persons (named or described) to enter upon the land for the purposes of section 15(3)].

BY ORDER

_____
( )
* Director of Lands / Deputy Director of Lands
Date _____

(With Chinese translation)

* Delete whichever is inapplicable
** Delete if provisions under section 15(3) are not required.

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SAMPLE ORDER UNDER S. 15(1)

（根據第15條規定所發的命令樣本）

水污染管制（排污設備）規例（第358章附屬法例）
第26條引用
道路（工程、使用及補償）條例（第370章）

(工程項目名稱)

（根據《水污染管制(排污設備)規例》第26條引用
《道路(工程、使用及補償)條例》第15(1)條規定所發的命令）

本人現行使香港特別行政區行政長官所授予的權力，根據《水污染管制(排污設備)規例》第26條引用《道路(工程、使用及補償)條例》（下稱"該條例"）第15(1)條的規定發出指示，為＿＿年＿＿月＿＿日第＿＿號政府公告所提述的計劃內說明的工程或使用或附帶事宜的目的，須為香港特別行政區政府在＿＿（說明有關土地，包括參照圖則）內的土地之上，設定＿＿（說明地役權、永久權利或暫時佔用權利的性質）。本人並根據該規例第15(2)條的規定，指明通知期為＿＿天，由根據該條例第16條的規定在上述土地上或其附近張貼通知書的日期起計。

**本人並根據該條例第15(1)條及第15(3)條的規定，在發出該條例第15(5)條規定給予的通知的條件下，＿＿（列出任何需要的相應條件或附帶條件，包括為施行第15(3)條而有權進入該地的人士[姓名或有關說明]）。

* 地政總署署長/地政總署副署長

＿＿年＿＿月＿＿日

* 將不適用者刪去
** 若不需用第15(3) 條則請刪去

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APPENDIX 3.25 SAMPLE NOTICE UNDER S. 16 OF ROADS (WORKS, USE AND COMPENSATION) ORDINANCE

Roads (Works, Use and Compensation) Ordinance (Chapter 370)
as applied by section 26 of the
Water Pollution Control (Sewerage) Regulation (Chapter 358, sub. leg.)

(Notice under section 16)

PWP Item No (insert project title)

TAKE NOTICE that under powers delegated by the Chief Executive of the Hong Kong Special Administrative Region, the Deputy Director/Specialist, Lands Department has made an order under section 15(1) of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) (interpreted in accordance with the provisions of the Hong Kong Reunification Ordinance No. 110 of 1997 and hereinafter referred to as "the Ordinance") directing that (describe the nature of the easement, permanent right or temporary right) for a period of _____ months be created over the land known and registered in the _____Land Registry as :-

(Insert lot numbers)

as shown coloured _____on Plan No. _____annexed to the said order, which land was described in the scheme referred to in Government Notice No. _____published on _____and _____.

The Deputy Director/Specialist, Lands Department has under section 15(3) of the Ordinance further directed that subject to the serving of any notice required to be given under section 15(5) of the Ordinance, the Director of _____, his officers, workmen, servants and contractors are hereby authorized to enter upon the said land for the purpose of carrying out any operations or installing, maintaining or removing any structures or apparatus.

A copy of the said order and a copy of the aforesaid Plan No. _____indicating the land affected by the *easement/rights may be inspected by members of the public, free of charge, at the following locations during the following hours when those offices are normally open to the public:

Places	*Opening hours (except on public holiday)*
Central & Western Home Affairs Enquiry Centre, G/F, Harbour Building, 38 Pier Road, Central Hong Kong;	Monday to Friday 9:00 a.m. to 7:00 p.m.
District Lands Offices (concerned) (address)	(Opening hours)

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District Office (concerned) (address)	(Opening hours)
Environmental Protection Department, Revenue Tower Office, 33/F, Revenue Tower, 5 Gloucester Road, Wan Chai, Hong Kong	(Opening hours)
Local Control Office of Environmental Protection Department (address to be filled in by EPD)	(Opening hours)
(Local concerned) Land Registry (address)	(Opening hours)
Land Registry 19th Floor, Queensway Government Office, 66 Queensway, Hong Kong	Monday to Friday 9:00 am to 12:30 pm and 2:00 pm to 5:00 pm

This notice was affixed on or near the land on _____(date).

The Deputy Director/Specialist, Lands Department has under section 15(2) of the Ordinance specified a period of notice of _____MONTHS from the date upon which this notice was affixed on or near the said land and it is hereby declared upon expiry of that period, the *easement/right shall by virtue of section 15(4) of the Ordinance be created in favour of the Government of the Hong Kong Special Administrative Region for the purposes of or incidental to the works or use described in the said scheme and the benefits and obligations thereof **and of all consequential and incidental provisions made under section 15(3) of the Ordinance shall be of full force and effect against all persons having any estate, right, share or interest in the land without any consent, grant or conveyance.

Any person having a compensatable interest under the Part V of the Water Pollution Control (Sewerage) Regulation may serve a written claim upon the Secretary for the Environment, 16/F, East Wing, Central Government Offices, 2 Tim Mei Avenue, Tamar, Hong Kong, before the expiration of 1 year from the date on which the *easement/right is created.

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Personal Data Collection Statement

Any information, including the personal data, submitted to the Secretary for the Environment in connection with any written claims served under Part VI of the Water Pollution Control (Sewerage) Regulation (Chapter 358AL) will be used for the processing of the claims and other related purposes. The provision of any information, including the personal data, as required under Part VI of the Water Pollution Control (Sewerage) Regulation (Chapter 358AL) is obligatory. If such information, including the personal data, as required under Part VI of the Water Pollution Control (Sewerage) Regulation (Chapter 358AL) is not provided as requested, the claims may be rejected. Any information, including the personal data, so submitted may be disclosed to the relevant government departments and other persons, organizations or agencies which are required to handle the claims and related matters. Persons who have so submitted their personal data have the rights to request access to and correction of their personal data held by the Secretary for the Environment. Request for access to or correction of the personal data should be made in writing to the Senior Environmental Protection Officer (Knowledge Management) of Environmental Protection Department at Suite 1201, Guardian House, 32 Oi Kwan Road, Wan Chai, Hong Kong.

_____
( )
* Chief Estate Surveyor (Acquisition)
/ District Lands Officer
Date _____

(With Chinese translation)

* delete whichever is inapplicable
** delete if provisions under section 15(3) are not required.

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SAMPLE NOTICE UNDER S. 16

（根據第16條所發公告的樣本）

水污染管制（排污設備）規例 (第358章附屬法例)
第26條引用
道路（工程、使用及補償）條例（第370章）

（根據第16條所發的通知書）

(工務計劃項目名稱)

現公布地政總署副署長（專業事務）已根據香港特別行政區行政長官所授予的權力，根據《道路(工程、使用及補償)條例》（第370章）（按照《香港回歸條例》（1997年第110號）的條文詮釋）（下稱"該條例" ）第15(1)條發出命令，指令在_____土地註冊處註冊為：

（詳列地段）

的土地上，設定（說明地役權、永久權利或暫時佔用權的性質），為期_____個月。有關土地範圍已在上述命令夾附的第_____號圖則上以_____色標示。有關土地詳情，已載於_____年_____月_____日及_____年_____月_____日發布的第_____號政府公告所提述的計劃內。

地政總署副署長（專業事務）並已根據該條例第15（3）條，進一步指令只須根據該條例第15（5）條送達任何所需的通知，_____署長、其屬下人員、工人、僱員及承建商，可為進行任何作業或為安裝、保養或拆除任何構築物或器具，進入上述土地。

上述命令的副本及顯示受（地役權/權利）影響的土地第_____圖則，現存於下列地點，在其開放時間下，供公眾免費查閱。

辦事處地址	*開放時間（公眾假期除外）*
香港中環統一碼頭道38號 海港政府大樓地下中西區民政諮詢中心	星期一至星期五 上午9時至晚上7時
有關　　地政處 (地址);	(開放時間)
有關　　民政事務處 (地址)	(開放時間)
香港灣仔告士打道5號 稅務大樓33樓環境保護署稅務大樓辦事處	(開放時間)

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環境保護署污染管制辦事處 (開放時間)
(地址由環境保護署填寫)

有關地區土地註冊處 (開放時間)
(地址)

土地註冊處 星期一至星期五
香港金鐘道66號金鐘道政府合署19樓 上午9時至下午12時30分
及下午2時至下午5時

本通知書已於 年 月 日張貼在上述土地或其附近。

地政總署副署長（專業事務）業已根據該條例第15(2)條指明通知期為 個月，由本通知書張貼於上述土地或其附近的日期起計。現謹公布憑藉該條例第15(4)條，通知期屆滿時，上述（地役權/權利）即為香港特別行政區政府而設定，以便進行上述計劃所描述的工程或使用或附帶事宜。而其利益及義務，**以及根據該條例第15(3)條而作出的所有相應及附帶規定的利益及義務，針對所有享有該土地任何產業權、權利、份數或權益的人而言，均無須任何同意、批予或轉易而具有十足效力及作用。

根據《水污染管制(排污設備)規例》第V部有權獲補償的任何人士，可以書面向環境局局長提出申索。書面申索須於*地役權/權利日期起計一年內，送達香港添馬添美道2號政府總部東翼16樓環境局局長辦事處。

收集個人資料聲明

任何根據《水污染管制(排污設備)規例》(第358AL章)第VI部向環境局局長提交的書面申索中有關的資料，包括個人資料，將用於處理有關申索及其他相關的事宜上。《水污染管制(排污設備)規例》(第358AL章)第VI部要求的資料，包括個人資料，是必須提供的。如未能提供《水污染管制(排污設備)規例》(第358AL章)第VI部要求的資料，包括個人資料，則申索可能遭駁回。任何提交的資料，包括個人資料，可能會向負責處理有關申索及相關事宜的有關政府部門及其他人士、組織或機構披露。任何人有權要求查閱或更改已提交環境局局長的有關其本人的個人資料。如欲查閱或更改有關的個人資料，請以書面向環境保護署高級環境保護主任(知識管理) 提出(地址：香港灣仔愛羣道32號愛羣商業大廈1201室)。

*總產業測量師（土地徵用）/地政專員

年 月 日

*將不適用者刪去
**若不需用第15(3)條則請刪去

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APPENDIX 3.26 SAMPLE ORDER UNDER S.17 OF ROADS (WORKS, USE AND COMPENSATION) ORDINANCE

Roads (Works, Use and Compensation) Ordinance (Chapter 370)
as applied by section 26 of the
Water Pollution Control (Sewerage) Regulation (Chapter 358, sub. leg.)

(Project Title)

(Order under section 17 of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation)

In exercise of the powers delegated by the Chief Executive of the Hong Kong Special Administrative Region, I hereby direct under section *17(1)(a)/17(1)(b) of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) (hereinafter referred to as "the Ordinance") as applied by section 26 of the Water Pollution Control (Sewerage) Regulation that _____ (describe the *road(s)/Government foreshore/sea-bed, including reference to any Plan) as shown on Plan No. _____ ("the Plan") and described in the scheme annexed thereto, be *permanently closed/temporarily closed/modified/reclaimed. The Plan and scheme were referred to in G.N. _____ published on _____and _____. I further declare under section 17(1)(c) of the Ordinance that as from_____(date), all public or private rights in, upon, under or over *this road/these roads/this foreshore/sea-bed shall be *extinguished/modified/restricted (describe extent).

BY ORDER

_____
( )
Senior Environmental Protection Officer
Date _____

(With Chinese translation)

* Delete whichever is inapplicable

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SAMPLE ORDER UNDER S.17

（根據第17條規定所發的命令樣本）

水污染管制（排污設備）規例 (第358章附屬法例)
第26條引用
道路（工程、使用及補償）條例（第370章）

(工程項目名稱)

（根據《水污染管制(排污設備)規例》第26條引用
《道路(工程、使用及補償)條例》第17條規定所發的命令）

本人現行使香港特別行政區行政長官所授予的權力，根據《水污染管制(排污設備)規例》第26條引用《道路(工程、使用及補償)條例》(下稱"該條例")第*17(1)(a)/17(1)(b)條的規定發出指令，*永久封閉/臨時封閉/修改/填平_____（說明*道路/政府前濱/海床，包括參照圖則）。其範圍載於圖則第_____號（下稱"該圖則"）並在附連的計劃內說明。該圖則及計劃在____年____月____日及____年____月____日第_____號香港特別行政區政府公告已有提及。本人並根據該條例第17(1)(c)條的規定聲明，由____年____月____日起，所有上述*道路/前濱/海床上、之下或之上的公有權利或私人權利，須予*終絕/修改/限制（說明範圍）。

高級環境保護主任

____年____月____日

*將不適用者刪去

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APPENDIX 3.27 SAMPLE NOTICE UNDER S. 18 OF ROADS (WORKS, USE AND COMPENSATION) ORDINANCE

Roads (Works, Use and Compensation) Ordinance (Chapter 370)
as applied by section 26 of the
Water Pollution Control (Sewerage) Regulation (Chapter 358, sub. leg.)

(Project Title)

(Notice under section 18 of the Roads (Works, Use and Compensation) Ordinance as applied by section 26 of the Water Pollution Control (Sewerage) Regulation)

TAKE NOTICE that under powers delegated by the Chief Executive of the Hong Kong Special Administrative Region, I have made an order under section *17(1)(a)/17(1)(b) of the Roads (Works, Use and Compensation) Ordinance (Chapter 370) (hereinafter referred to as "the Ordinance") as applied by section 26 of the Water Pollution Control (Sewerage) Regulation that the *roads/foreshore/sea-bed (described the roads/foreshore/sea-bed including reference to any plan) as shown on Plan No._____ ("the Plan") and described in the scheme annexed thereto, be *permanently closed/temporarily closed/modified/reclaimed. The Plan and scheme were referred to in G.N._____published on_____and_____. I have further declared under section 17(1)(c) of the Ordinance that as from _____(date), all public or private rights in, upon, under or over the affected *roads/foreshore/sea-bed shall be *extinguished/modified/restricted.

The sewerage works to be carried out on the *road(s)/foreshore/sea-bed involve _____ (brief description of the works).

(i) _____;
(ii) _____; and
(iii) _____.

A copy of the order and a plan(s) showing the affected *road(s)/foreshore/sea-bed may be inspected by members of the public, free of charge, at the following locations during the following hours when those offices are normally open to the public:

Places	*Opening hours (except on public holiday)*
Central & Western Home Affairs Enquiry Centre, G/F, Harbour Building, 38 Pier Road, Central, Hong Kong;	Monday to Friday 9:00 a.m. to 7:00 p.m.
District Lands Offices (concerned) (address)	(Opening hours)
District Office (concerned) (address)	(Opening hours)

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Environmental Protection Department, Revenue Tower Office, 33/F, Revenue Tower, 5 Gloucester Road, Wan Chai, Hong Kong	(Opening hours)
Local Control Office of Environmental Protection Department (address to be filled in by EPD)	(Opening hours)
Land Registry, 19/F, Queensway Government Offices, 66 Queensway, Hong Kong	Monday to Friday 9:00 am to 12:30 pm and 2:00 pm to 5:00 pm

This notice was affixed on or near the *road(s)/foreshore/sea-bed affected on (normally the day before the date of gazetting the notice).

Any person having a compensatable interest under Part V of the Water Pollution Control (Sewerage) Regulation may serve a written claim upon the Secretary for the Environment, 16/F, East Wing, Central Government Offices, 2 Tim Mei Avenue, Tamar, Hong Kong, before the expiration of 1 year from the date of *closure /extinction /modification /reclamation.

Personal Data Collection Statement

Any information, including the personal data, submitted to the Secretary for the Environment in connection with any written claims served under Part VI of the Water Pollution Control (Sewerage) Regulation (Chapter 358AL) will be used for the processing of the claims and other related purposes. The provision of any information, including the personal data, as required under Part VI of the Water Pollution Control (Sewerage) Regulation (Chapter 358AL) is obligatory. If such information, including the personal data, as required under Part VI of the Water Pollution Control (Sewerage) Regulation (Chapter 358AL) is not provided as requested, the claims may be rejected. Any information, including the personal data, so submitted may be disclosed to the relevant government departments and other persons, organizations or agencies which are required to handle the claims and related matters. Persons who have so submitted their personal data have the rights to request access to and correction of their personal data held by us. Request for access to or correction of the personal data should be made in writing to the Senior Environmental Protection Officer (Knowledge Management) of Environmental Protection Department at Suite 1201, Guardian House, 32 Oi Kwan Road, Wan Chai, Hong Kong.

_____

( )

Senior Environmental Protection Officer

Date _____

(With Chinese Translation)

* Delete whichever is inapplicable

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SAMPLE NOTICE UNDER S. 18

（根據第18條規定所發的公告樣本）

水污染管制（排污設備）規例 (第358章附屬法例)
第26條引用
道路（工程、使用及補償）條例（第370章）

(工程項目名稱)

（根據《水污染管制(排污設備)規例》第26條引用
《道路(工程、使用及補償)條例》第18條規定所發的公告）

現公布本人已依據香港特別行政區行政長官授予的權力，根據《水污染管制(排污設備)規例》第26條引用《道路(工程、使用及補償)條例》（第370章）（下稱"該條例"）第*17(1)(a)/17(1)(b)條發出一項命令，*永久封閉/臨時封閉/修改/填平 *道路/前濱/海床（說明道路/前濱/海床，包括參照圖則）。其範圍載於圖則第_____號（下稱"該圖則"），並在附連的計劃內說明。該圖則及計劃在_____年_____月_____日及_____年_____月_____日第_____號政府公告已有提及。本人並根據該條例第17(1)(c)條聲明，由_____年_____月_____日起，上述受影響的*道路/前濱/海床上、之下或之上的公有權利或私人權利，須予*終絕/修改/限制。

在上述*道路/前濱/海床進行有關的排污設備工程包括_____(摘要說明工程)

(i) _____；
(ii) _____；以及
(iii) _____。

下列辦事處備有該命令的副本及載明受影響 *道路/前濱/海床的圖則，在其開放時間下，供公眾免費查閱：

辦事處地址	*開放時間（公眾假期除外）*
香港中環統一碼頭道38號 海港政府大樓地下 中西區民政諮詢中心	星期一至星期五 上午9時至晚上7時
有關_____地政處 (地址);	(開放時間)
有關_____民政事務處 (地址)	(開放時間)

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香港灣仔告士打道5號 稅務大樓33樓 環境保護署稅務大樓辦事處	(開放時間)
環境保護署污染管制辦事處 (地址由環境保護署填寫)	(開放時間)
土地註冊處 香港金鐘道66號金鐘道政府合署19樓	星期一至星期五 上午9時至下午12時30分 及下午2時至下午5時

本公告將於 年 月 日(通常為刊登憲報日期的前一天)張貼在受影響*道路/前濱/海床之上或其附近。

根據《水污染管制(排污設備)規例》第V部有權獲得補償的人士，可以書面向環境局局長提出申索。書面申索須於*封閉/權利終絕/修改/填平當日起計一年內，送達香港添馬添美道2號政府總部東翼16樓環境局局長辦事處。

收集個人資料聲明

任何根據《水污染管制(排污設備)規例》(第358AL章)第VI部向環境局局長提交的書面申索中有關的資料，包括個人資料，將用於處理有關申索及其他相關的事宜上。《水污染管制(排污設備)規例》(第358AL章)第VI部要求的資料，包括個人資料，是必須提供的。如未能提供《水污染管制(排污設備)規例》(第358AL章)第VI部要求的資料，包括個人資料，則申索可能遭駁回。任何提交的資料，包括個人資料，可能會向負責處理有關申索及相關事宜的有關政府部門及其他人士、組織或機構披露。任何人有權要求查閱或更改已提交本局的有關其本人的個人資料。如欲查閱或更改有關的個人資料，請以書面向環境保護署高級環境保護主任(知識管理) 提出(地址：香港灣仔愛羣道32號愛羣商業大廈1201室)。

高級環境保護主任

年 月 日

*將不適用者刪去

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APPENDIX 3.28 EXAMPLE OF MONITORING TABLE FOR HANDOVER OF LAND DURING THE CONTRACT PERIOD

Date of Revision: _____

PWP Item / Contract No.: _____

Reference Drawing(s) No. : _____

Site Portion ID (e.g. Portion B, Works Area E)	Target Handover Date	Latest Handover Date	Actual Handover Date	Party to Take Back the Site Portion	Remarks

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APPENDIX 3.29 LAND ACQUISITION AND PRIORITIZATION EXERCISE – APPLICATION FORM FOR INCLUSION OF A NEW MAJOR ITEM

Item Title	*(Please enter the title of the item. If necessary, more than one item may be created for one single project)*
PWP No.	*(Please enter the PWP No., if applicable)*
Works Department	*(Please enter the Works Department of the project)*
Policy Secretary	*(Please enter the Policy Secretary of the project)*
TFS	*(Please enter the date of approval for the Technical Feasibility Statement of the project)*
DLO	*(Please enter the relevant District Lands Office)*
LACC	*(Please enter the relevant Land Acquisition and Clearance Committee)*
Funding Status	*(For CWP projects, confirm that the related project has been included in the RAE. For block vote items, confirm that funds are available from the relevant block vote. For other projects, confirm that funds have been earmarked in the appropriate funding sources)*
Cost	*(Please enter the rough order of construction cost for the item. Please specify the price level used)*
Anticipated Works Start Date	*(Please enter the anticipated commencement of construction, assuming all land related work can be completed in time)*
Required Site Handover Date	*(Please enter the required site handover date)*
Target Date for Submitting CAF	*(Please enter the target date for submitting CAF, if applicable)*
Relevant Ordinances	*(Please enter the ordinances involved, if applicable)*
Consequence if Delayed	*(Please enter the consequences in case the project is delayed.)*

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APPENDIX 3.30 REQUIREMENT OF SUBMISSION OF GEOSPATIAL DATA

Submission Requirements with respect to Project Estimates

1. Geospatial Data originated from both approved design and as-built surveys should be sent to Survey and Mapping Office (SMO). Requirements of submitting Geospatial Data with different project estimates are summarised in the following table –

Form of Geospatial Data / **Works Project Estimates**	**GIS data**	**BIM model**	**Drawing in CAD format**	**Photo, image, point cloud and derived model**
above $30 million	✓	✓	not applicable	✓ (if available)
not more than $30 million	not applicable	✓ (submit either BIM model or drawing in CAD format)		✓ (if available)

2. If the scope of a works project does not involve any change of the position or alignment of features as shown on the LandsD's 1:1000 Basic Map, submission of Geospatial Data is not required.

Specifications of Geospatial Data

3. Geospatial Data shall be prepared according to the specifications summarised in the following table –

Form of Geospatial Data	**Specifications**
GIS data	1:1000 Basic Mapping Specifications promulgated by LandsD
BIM model	BIM data standard under DEVB's policy on BIM adoption[30]
CAD drawing	CAD Standards for Works Projects (CSWP)
Photo, image, point cloud and derived model	The specifications of these miscellaneous Geospatial Data are in LandsD website

4. Geospatial Data originated from both approved design and as-built surveys should be submitted to SMO according to the following timeline –

30 Details refer to DEVB TC(W) No. 1/2025 Amd No. 1/2025 "Adoption of Building Information Modelling for Capital Works Projects in Hong Kong" or its latest version.

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Geospatial Data	**Submission timeline**
Geospatial Data originated from approved design	Before commencement of construction works of each works contract under a project
Geospatial Data originated from as-built surveys	Upon completion of construction works of each works contract[31] under a project or not later than the corresponding infrastructure / area is open for use whichever is earlier

5. Works departments can refer to LandsD website below for detailed procedures of Geospatial Data submission.

https://www.landsd.gov.hk/en/survey-mapping/collation-of-geospatial-data.html

31 If the works are carried out in different sections, Geospatial Data should be submitted upon each sectional completion.

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APPENDIX 3.31 WORKFLOW FOR COLLATION OF SURVEY, MAPPING AND GEOSPATIAL DATA

Subject Officer[32] from Works Department or its consultant/ contractor to submit and **certify** the submitted Geospatial Data are in compliance with the requirements in Section 5.4.3 of this Project Administration Handbook.

SMO to compile register and conduct spot checking on the submitted Geospatial Data against the requirements in Section 5.4.3 of this Project Administration Handbook.

SMO to request the Works Department or its consultant/ contractor to correct the submitted Geospatial Data, if required, to ensure their compliance with the requirements in Section 5.4.3 of this Project Administration Handbook.

SMO to acknowledge receipt of Geospatial Data which conform to the requirements in Section 5.4.3 of this Project Administration Handbook.

32 The subject officer from WD or its consultant/ contractor, who is responsible for certifying the submitted Geospatial Data of the project, should be professional staff.

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APPENDIX 3.32 SAMPLE CLAUSE FOR CONSULTANCY BRIEF OR WORKS CONTRACTFOR COLLATION OF SURVEY, MAPPING AND GEOSPATIAL DATA FROM CAPITAL WORKS PROJECTS IN CAPITAL WORKS PROGRAMME

The following provision to be included in the Deliverable clause of the consultancy brief or works contract:

With a view to facilitating efficient digital map updating by the Survey and Mapping Office (SMO) of the Lands Department, the Consultant/ Contractor shall follow Section 5.4.3 of Chapter 3 of the Project Administration Handbook to submit the required Geospatial Data to SMO.

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CHAPTER 4

PROJECT DESIGN AND ESTIMATES

The parts of the PAH shown in blue and bold should only be updated by Works Branch of Development Bureau.

Rev	Issue Date	Amendment Incorporated
First Issue	December 2024	NA
1	17 March 2025	Amd No. 1/2025
2	16 April 2025	Amd No. 2/2025
3	18 November 2025	Amd No. 6/2025

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SYNOPSIS

This Chapter describes the criteria to be adopted, the procedures to be followed and the documentation that is required in the design process of civil engineering works. Emphasis is placed on the need to adopt a systematic approach, from the initial stage of conceptual design to the final stage of checking and certification, to ensure that designs are performed and recorded properly. Requirements for cost estimates and general guidance on their preparation are also described.

The procedures and documentation requirements set out in the Chapter are generally applicable to all public works projects involving civil engineering construction. However, for emergency works where there is a serious time constraint and for minor works where standard designs are used, the procedures may be applied selectively if this is necessary to avoid unnecessary delays to the Works or the production of over-elaborate documentation.

Detailed guidance on the standards and methods to be adopted for the design of works is not given in this Chapter and reference should be made to standard textbooks, codes of practices and other manuals quoted in the text.

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I. ABBREVIATION

I.01 The meaning of the abbreviations assigned in this Chapter of the Project Administration Handbook for Civil Engineering Works shall only apply to this Chapter.

I.02 The following list shows the meaning of the abbreviations for the common terms used in this Chapter of the Project Administration Handbook for Civil Engineering Works:

Abbreviation	Term
ACABAS	Advisory Committee on the Appearance of Bridges and Associated Structures
ACSA	Anchor Certification System for Permanent Prestressed Ground Anchors
AFCD	Agriculture, Fisheries and Conservation Department
AGS	Association of Geotechnical and Geoenvironmental Specialist format
APE	Approved Project Estimate
ArchSD	Architectural Services Department
BD	Buildings Department
BIM	Building Information Modelling
C of P	Commissioner of Police
C&D	Construction and Demolition
C&DMMP	Construction and Demolition Material Management Plan
CAD	Computer-Aided-Drafting
CCGO	Central Cyber Government Office
CE	Chief Engineer
CE/Design	Chief Engineer/Design
CE/PW	Chief Engineer/Port Works
CE/RSS	Chief Engineer/Road Safety and Standards
CEDD	Civil Engineering and Development Department
CEO	Civil Engineering Office
CGE	Chief Geotechnical Engineer
CGE/GP	Chief Geotechnical Engineer/Geotechnical Projects
CGE/Mines	Chief Geotechnical Engineer/Mines
CGE/P&D	Chief Geotechnical Engineer/Planning & Development
CGE/M&T	Chief Geotechnical Engineer/ Materials & Testing
CHE/Bridges & Structures	Chief Highways Engineer/Bridges & Structures
CHE/R&D	Chief Highways Engineer/Research and Development
CSD	Correctional Services Department
CSWP	Computer-Aided-Drafting Standard for Works Projects
CTE	Chief Transport Engineer
D of Arch S	Director of Architectural Services
D of L	Director of Lands
D&B	Design and Build

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Abbreviation	Term
D1	Directorate pay scale point 1
D2	Directorate pay scale point 2
DC Certificate	Certificate of Design and Completion of slopes and Retaining Walls
DCED	Director of Civil Engineering and Development
DD/SM	Deputy Director/Survey and Mapping
DEMS	Director of Electrical and Mechanical Services
DEP	Director of Environmental Protection
DEVB	Development Bureau
DEVB TCW	DEVB Technical Circular (Works)
DIA	Drainage Impact Assessment
DLO	District Lands Officer
DPO	Digital Policy Office
DSD	Drainage Services Department
E&M	Electrical & Mechanical
EACSB	Engineering and Associated Consultants Selection Board
EIA	Environmental Impact Assessment
EIAO	Environmental Impact Assessment Ordinance
ELPs	Electronic Layout Plans
EMSD	Electrical and Mechanical Services Department
EPD	Environmental Protection Department
ERA	Estimating using Risk Analysis
ETW Departments	Environment, Transport and Works Departments
ETWB	Environment, Transport and Works Bureau
ETWB TCW	ETWB Technical Circular (Works)
FB	Finance Branch
FC	Financial Circular
FSTB	Financial Services and the Treasury Bureau
GEO	Geotechnical Engineering Office
GI	Ground Investigation
GIU	Geotechnical Information Unit
GLTMS	The Greening, Landscape and Tree Management Section under the Works Branch of Development Bureau
GR	General Registry
HAD	Home Affairs Department
HATS	Harbour Area Treatment Scheme
HKPF	Hong Kong Police Force
HKSARG	Government of the Hong Kong Special Administrative Region
HyD	Highways Department
HyD TC	Highways Department Technical Circular
LAO	Lands Administration Office

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Abbreviation	Term
LCSD	Leisure and Cultural Services Department
LPM	Landslip Preventive Measures
LPMit	Landslip Prevention and Mitigation
MFC	Marine Fill Committee
MOD	Money of the Day
MTR	The Mass Transit Railway
MTRCL	MTR Corporation Limited
DPO	Digital Policy Office
PAH	Project Administration Handbook for Civil Engineering Works
PDF	Portable Document Format
PDS	Project Definition Statement
PEPO(FM)	Principal Environmental Officer (Fill Management)
PFA	Pulverised Fuel Ash
PFC	Public Fill Committee
PGLS	Principal Government Land Surveyor
PLP	Public Lighting Programme
PWP	Public Works Programme
PWPIS	Public Works Programme Information System
PWSC	Public Works Sub-Committee
RAE	Resources Allocation Exercise
RC	Recurrent Consequence
SA Certificate	Certificate of Stability Assessment of Slopes and Retaining Walls
SE/Computer Services	Senior Engineer/Computer Services
SETW	Secretary for the Environment, Transport and Works
SFST	Secretary for Financial Services and the Treasury
SGE/GI	Senior Geotechnical Engineer/Ground Investigation
SGE/Lab	Senior Geotechnical Engineer/Laboratory
SLA/LA	Senior Landscape Architect/Landscape Architect
TB TC	Transport Bureau Technical Circular
TD	Transport Department
TPDM	Transport Planning and Design Manual
TFS	Technical Feasibility Statement
UU	Utility Undertakers
WBTC	Works Bureau Technical Circular. or Works Branch Technical Circular
WMCG	Works and Maintenance Committee on Greening
WSD	Water Supplies Department

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II. GLOSSARY OF TERMS

II.01 Words and expressions to which meanings are assigned in this Chapter of the Project Administration Handbook for Civil Engineering Works (PAH) shall only apply to this Chapter.

II.02 In this Chapter of the PAH the following words and expressions shall have the meaning hereby assigned to them except when the context otherwise requires:

"Government" means the Government of the Hong Kong Special Administrative Region.

"project office" means the office responsible for the planning, design and construction of the project and "project engineer" means the officer in the project office responsible for the planning, design and construction of the project.

(Where these functions are performed by different offices at different stages, the project office shall mean the office responsible at each particular stage.)

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1. GENERAL CONSIDERATIONS FOR DESIGN

1.1 AUTHORITY

Preliminary and detailed design of capital works projects should commence in accordance with the project status indicated in FC No. 7/2017.

1.2 RESOURCES

The design should be undertaken either:

(a) By in-house staff, or

(b) By consultants, or staff of other departments/offices/divisions in cases where capacity to undertake the design does not exist in-house, or where there is a lack of in-house expertise, or

(c) By quasi-government organisations or private parties in cases where the design and construction of the Works are entrusted to them.

Reference should be made to Chapter 1 (Project Planning) and the Handbook on the Selection, Appointment and Administration of Engineering and Associated Consultants (EACSB Handbook) on the resources planning and the procedures for the employment of consultants for design of projects respectively. Reference should also be made to Chapter 8 (Term Contract Works) regarding situations mentioned in sub-paragraph (c).

1.3 DESIGN OBJECTIVES

The basic aim of the design process is to produce a design that is:

(a) Capable of performing the intended functions throughout the design life,

(b) Environmentally acceptable, both during construction and in the long term,

(c) Within the scope as defined in the PDS, TFS or as approved by Finance Committee,

(d) Economical in terms of both capital and recurrent costs, and

(e) Free of potential hazards and risks to the clients, frontline workers, users and maintenance parties as far as possible.

In connection with (d) above, the project engineer should exercise the best control of the project cost and the following aspects should be considered critically (DEVB's memo ref. () in DEVB(W) 505/83/04 dated 3.8.2015):

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(i) Fit-for-purpose designs are designs with appropriate optimality criterion and robustness. Such designs should be adopted and over-redundancies, such as temporary provisions and standby equipment which are not fully justified, should be cut down. In addition, the adoption of standard or precast designs for cost saving and/or better work efficiency purposes should be explored,

(ii) Consideration on optimum contract packaging should be made from a cost saving perspective. There is no hard-and-fast rule on the sizing of contracts, but there is strong tendency that works contracts exceeding $1 billion may exceed the capability of many Group C contractors. Splitting into contracts below this value will help upkeep tender competition,

(iii) Where substantial electrical and mechanical (E&M) works are involved in the main building/civil engineering works contracts, consideration should be more favourably made to the direct letting of E&M works contracts or the use of nominated E&M sub-contracts as the lumping of substantial E&M works into the main building/civil engineering works contracts might lead to a higher management overhead and project risk at the E&M sub-contractors' front and hence a higher tender price, and

(iv) Discretion should be made to look into the merits of the standardised requirements (including those in prevailing circulars, planning manuals or handbooks) which have been developed in the past for their respective justifications and may lead to additional cost in the project, and to review whether the additional cost arising from such requirements is justified. In case substantial cost can be saved without seriously affecting the original intent of the policy associated with such requirements, exemption from relevant authority (such as the Works Branch of DEVB) in complying with these requirements should be sought.

The project engineer should give due consideration to the following:

(a) Safety, both during construction and in service,

(b) Appearance, and compatibility with other adjacent private and public projects,

(c) Construction methods and imposed constraints,

(d) Possible future expansion and development,

(e) The effect on utilities,

(f) Future inspection, maintenance and operation,

(g) Prevention of accidental damage requiring repair beyond the scope of routine maintenance, e.g. serious damages to bridges by vehicles/ships with illegally high loads/masts,

(h) Adoption of energy efficient features and renewable energy technologies in government projects and installations,

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(i) Adoption of a strategic and holistic approach to greening and landscape and urban design in order to blend in with the adjacent developments and projects, and

(j) Adoption of a flexible and balanced approach for tree planting.

The following considerations should also be borne in mind by the project engineer:

(a) Administrative procedures, particularly that required for land and legal matters, must progress in parallel with the design. Project engineers should note that Land (Miscellaneous Provisions) Ordinance has been put into force. The administrative procedures relating to this Ordinance should be taken into account when excavation is required in the project.

(b) The need to obtain specialist advice (architectural, structural, geotechnical, environmental, landscape, traffic, water supply, drainage, electrical and mechanical and marine works, etc.) should be identified as early as possible and sufficient lead time should be allowed,

(c) The social, legal, economic, technological, natural and political environment should be borne in mind when selecting a preferred design option,

(d) Government policies and traditional practice should also be considered when determining a preferred design option, and

(e) The need to clear technical vetting requirements by the relevant Authority should be identified as early as possible and sufficient lead time allowed. A list of some common authorities is set out at Appendix 4.5. Project engineers, however, should note that the list might not be exhaustive.

With regard to safety in design, for new capital works projects (excluding Design & Build projects) with estimated construction cost equal to or exceeding $500M, the project engineer should follow the "Design for Safety" (DfS) process to avoid introducing a hazard to the workplace by eliminating it in the first place at the planning or early design stage. The project engineer should refer to " Guidance Notes of Design for Safety" and "Worked Examples of Design for Safety" via the following link:

http://www.devb.gov.hk/en/publications_and_press_releases/publications/index.html.

For public works projects where Systematic Risk Management (SRM) under ETWB TCW No. 6/2005 is adopted, the project engineer is recommended to expand the SRM to include DfS in order to achieve the best project outcomes more efficiently.

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1.4 METHODOLOGY

The design of a project is generally an iterative process, involving the following basic steps:

(a) The formulation of a conceptual design,

(b) The identification of suitable alternatives, and the selection of a preferred basic scheme,

(c) The detailed design calculations and analysis, and

(d) The drawings.

It is vital to carry out the design by going through these steps in sequential order and in a thorough, careful and systematic manner in order to ensure the integrity of the design, and to avoid any abortive work in the advanced stages of the design process.

All stages of the design should be covered by proper documentation for ease of future reference, revision and checking.

1.5 DRAWINGS

1.5.1 Organisation

Drawings for projects should normally comprise: -

(a) A general layout plan that also shows the location of the project,

(b) A setting out plan,

(c) General arrangement of the major elements of the projects (e.g. structures), and

(d) Detailed drawings including reinforcement details, drainage details, utilities, etc.

1.5.2 Standards

Standards of drawings for projects should conform to the requirements of the Computer-Aided-Drafting (CAD) Standard for Works Projects (CSWP) stipulated in ETWB TCW Nos. 38/2002 and 38/2002A. Divisions/offices should also stipulate departmental requirements on drawings for works projects to suit.

Drawings should normally be in A1 or B1 size.

The desirable scales for the drawings depend on the nature and complexity of the Works. Divisions/offices should have standardised scales, which should be chosen for the particular types of drawings to communicate information clearly and accurately.

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1.5.3 Numbering

The naming of CAD drawing files should conform to CSWP requirements. In addition, divisions/offices should also standardise the numbering system for the drawings.

1.5.4 Preparation

The project engineer should ensure that the design has been correctly translated onto drawings, i.e. the details correspond with design assumptions, philosophies and calculations. (Appendix 4.1 on design checklist and delegation of design).

1.5.5 Circulation

Drawings should be circulated to all relevant parties for comments and agreement where appropriate. The general layout plan should be circulated in accordance with Section 2.5.2. General arrangement drawings, and where necessary detailed drawings, should be circulated for agreement to departments responsible for future maintenance and operation.

1.5.6 Checking and Approval

All drawings must be checked, approved and accordingly signed before issue unless they are issued as 'advance', 'provisional' or 'preliminary' copies. In general, the project engineer should sign for 'design', the checking officer should sign for 'checked' and the Chief Engineer/Regional Office Head should sign for 'approved', for each drawing, or to suit the signing arrangement considered appropriate by project offices. In some cases where other departments are involved, such as structures required by E&M installation work, e.g. pumping stations for WSD projects, the drawings should also be checked and signed by an appropriate officer in that department to ensure that the design objectives (Section 1.3) have been met and all their requirements have been incorporated (Ref.: Appendix 4.1).

1.6 SITE INVESTIGATION

A properly planned site investigation (including adequate supervision of the ground investigation and laboratory testing) is essential to identify the geotechnical problems of a site and provide sufficient data for safe and economic design and construction. A ground investigation should therefore be planned by a suitably qualified and experienced person who is thoroughly familiar with the project requirements, and it should not be delegated to junior or inexperienced members of staff.

At least four months lead time should be planned for major ground investigations. Otherwise, it may not be possible to complete the field work and laboratory testing according to the required schedule.

1.6.1 Relevant Guidelines, Standards and Sources of Information

Chapter 7 of the latest Geoguide 2: Guide to Site Investigation gives guidance on the planning of a ground investigation, and Chapter 15 of the latest Geoguide 2 advises on suitable personnel on this.

DEVB TCW No. 1/2019 gives procedures to be followed for ground investigation in the vicinity of the MTR.

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Guidelines and requirements relating to tunnel works are given in the latest Geoguide 2: Guide to Site Investigation and ETWB TCW No. 15/2005.

Guidelines and requirements relating to foundation works in areas underlain by marble and marble-bearing rocks are given in GEO Technical Guidance Note No. 12, GEO Technical Guidance Note No. 26, and ETWB TCW No. 4/2004.

Guidelines on planning and implementation of ground investigation projects in ecologically sensitive areas are given in Appendix 4.20.

The Geotechnical Information Unit (GIU) of the Civil Engineering Library (CEL), Civil Engineering and Development Department should be consulted in all cases during the planning of a ground investigation. The GIU contains comprehensive records of ground investigation throughout Hong Kong, as well as laboratory test results on soil and rock samples. The operations of the GIU are described in Section 7.6.3 of Chapter 1 of PAH.

1.6.2 Procurement of Ground Investigation

The methods available to Government departments for procuring ground investigation and laboratory testing are as follows:

(a) Ground investigation fieldwork – This shall be carried out under GEO's term contracts or under individual ground investigation contracts let by the project office or its consultants. Requests to GEO for investigations estimated to cost in excess of the financial limits stated in GEO Ground Investigation Note (available on CEDD website) will in general be considered for execution through individual contracts, depending on the nature and scope of the investigation and the current commitments of the GEO term contractors.

(b) Laboratory testing – This shall normally be carried out at the Public Works Central Laboratories or under a soil and rock testing service contract administered by GEO. However, where an individual contract is let for the ground investigation field work, the laboratory testing should normally be included in the contract.

The Materials and Testing Division of GEO provides a service to other departments with the Government by letting and administering term contracts for land and marine ground investigations including geophysical survey. Chief Geotechnical Engineer/ Materials and Testing (CGE/M&T) is the Service Manager of the term contracts. Requests of land-GI, marine-GI and geophysical survey should be addressed to CGE/M&T (Attn: SGE/GI1 or SGE/GI2).

Soil and rock testing service contracts are managed by the Materials and Testing Division of GEO, and the Government Representative for these contracts is Chief Geotechnical Engineer/Standards & Testing (CGE/S&T). Requests for soil and rock testing should be addressed to CGE/S&T (Attn.: SGE/Lab) with submission of a detailed laboratory testing schedule.

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Funds for site investigation (including ground investigation and laboratory testing) are provided as follows:

(a) For projects in Category A, from the project vote,

(b) For projects in Category B either,
  (i) From block allocation, if the amount does not exceed $50 million, or
  (ii) By part upgrading to Category A if the amount exceeds $50 million

(c) For projects in Category C, or projects not included in the PWP, the procedures in (b) above, and in accordance with the FC No.7/2017,

(d) For projects in Category D, from the block allocation, and

(e) For LPMit works, from the LPM Block Allocation.

1.6.3 Procurement through Individual GI Contracts or Included in Works Contracts

Where provisions for ground investigations are included in contract documents for works contracts, Government departments shall ensure that these documents stipulate that only contractors on DEVB's List of Approved Suppliers of Materials and Specialist Contractors for Public Works, Category of Ground Investigation Field Work and for Category of Soil and Rock Testing shall be employed for such works, and the Materials and Testing Division shall be advised of the works.

Before the project office or its consultants calls tenders for a ground investigation contract, a copy of the proposed tender documents shall be submitted to CGE/M&T in order that they may advise on the technical aspects of the tender documents. This advice shall be obtained **prior** to sending documents to contractors on DEVB's List of Approved Specialist Contractors for Ground Investigation Field Work.

Where the project office or its consultants administers a ground investigation contract, soft copies of the priced contract documents shall be submitted to CGE/M&T. Meanwhile, all quarterly reports on the performance of the contractor shall be sent to the Materials and Testing Division.

For ground investigation works included in capital works contracts, there is no need to submit the proposed tender documents to the CGE/M&T for advice on technical aspects. Nor is there a need to submit quarterly reports on the performance of the contractor to the Materials and Testing Division.

1.6.4 Procurement through GEO's Term Contracts

GEO Ground Investigation Note describes the arrangements in which ground investigation, including laboratory testing, is to be procured through the term contracts/service contracts administered by the Materials and Testing Division of GEO. It also details the responsibilities of the parties involved. The client departments should follow the guidelines given in GEO Ground Investigation Note in order for them to obtain a satisfactory ground investigation service through the Materials and Testing Division.

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Funding for the procured services, in the form of separate Allocation Warrants or Works Expenditure Authorisations, should be directed to CGE/M&T for ground investigation field work and laboratory testing, respectively.

To obtain a preliminary estimate of the cost of ground investigation works and the associated laboratory testing, and to determine the need or otherwise for an individual contract, an initial request for work, including all details of the planned land or marine investigation and the types of tests required, may be forwarded to CGE/M&T of GEO, as appropriate. CGE/M&T can also give advice on the method of procurement to be adopted and the programming aspect.

The client department or its consultants is responsible for liaising with all parties concerned before and during the ground investigation period, including resolving all matters arising from the ground investigation field work such as complaints, concerns and enquiries.

The GEO's ground investigation term contractors will not undertake excavation works that are solely for the purpose of locating public utilities. Ground investigation in close proximity to known underground utilities should not be carried out in order not to damage such utilities. However, inspection pits will be sunk by a term contractor prior to the commencement of drilling and probing works to avoid any unknown underground utilities being damaged.

All untested soil and rock samples (i.e. not delivered for laboratory testing) obtained from the GI works shall be returned to the initiating department/office/division for storage or disposed of according to their instruction. If no instruction on either storage or disposal of the untested samples is received by GEO within one month after completion of the GI Task Orders, it will be taken as that they can be disposed of by the term contractor. As for the soil and rock samples that are selected for testing, the tested and untested samples shall be returned to the project office for storage if instructed (within two weeks following the issue of the final laboratory testing report) or disposed of at the discretion of the testing laboratory if no instruction is received.

1.6.5 Supervision

The Materials and Testing Division of GEO is only responsible for the administration of the term contracts/service contracts, and the level of technical supervision appropriate to the investigation must be provided by the project office or its consultants. This is essential if a cost effective investigation of adequate quality is to be carried out. Where a consultant is to be responsible for the investigation, the project office should ensure that the costs of site supervision are allowed when obtaining funds for the project.

Guidance on appropriate levels of supervision of ground investigation can be obtained from Section 4.3 in Chapter 7 of the Project Administration Handbook, and further guidance may be obtained from the Materials and Testing Division.

Details of the site supervision proposed for a ground investigation and/or laboratory testing should be provided to CGE/M&T respectively prior to the commencement of the investigation and laboratory testing. The project office will be advised if the proposed level of supervision is considered to be inadequate and any changes needed to increase the effectiveness of the investigation will be recommended.

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Requirements for the provision of adequate qualified personnel for the supervision of the GI works on site and of the laboratory testing should be written into consultancy agreements, or such provision should be provided by the project officer if consultants are not involved.

Where an individual contract is let and administered by either the project office or its consultants, the contract documents shall include requirements for the provision by the contractor of sufficient properly experienced technical staff to ensure that the works are carried out according to specification.

Project Office should also provide an appropriate level of supervision for laboratory testing. The involvement of a professional at the laboratory is essential at an early stage of the programme of laboratory testing if the maximum benefits are to be gained from the programme. The personnel responsible for specifying laboratory testing and interpreting the results should be experienced in this aspects of ground investigation. They should make periodic visits to the laboratory during routing testing, and the more complex tests should be supervised full-time.

1.6.6 Specialist Advice

It may be necessary for the project office to seek the advice of a specialist on particular aspects of a ground investigation. Guidance on this is given in Chapter 15 of the latest Geoguide 2. In certain cases, it may be advisable to involve the specialist at the planning stage of the ground investigation. For example, geological information to assist the planning of ground investigations can be sought from the Hong Kong Geological Survey, Planning and Development Division of GEO.

1.7 TREE PRESERVATION

Guidelines and requirements relating to tree preservation at the design stage are given in DEVB TCW No. 4/2020. Reference should also be made to the "Management Guidelines for Stonewall Trees", "Guidelines on Tree Transplanting", "Management Guidelines for Mature Trees" and "Guidelines on Tree Preservation during Development" promulgated by DEVB.

1.8 DESIGN FOR ENHANCING CONSTRUCTION PRODUCTIVITY

In order to rationalise the demand for skilled workers in trades with projected shortage, the design practices given in the "Guidelines for Enhancement of Productivity of Skilled Workers in Public Works Projects" attached to DEVB's memo ref. (38) in DEVB(Trg) 133/8 dated 17.4.2013 should be followed. The guidelines are available on DEVB's website via the following link:

http://www.devb.gov.hk/filemanager/en/content_29/Guidelines_Enhancement_of_Productivity_(Mar_2013)_English.pdf

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1.9 ADOPTION OF BUILDING INFORMATION MODELLING

Capital works projects with project estimates more than $30 Million shall use BIM technology. The policy is applicable to projects in the investigation, feasibility, planning, design or construction stages in the Capital Works Programme. This policy also applies to projects entrusted to organisations outside the Government (Airport Authority, MTR Corporation Limited, private developers, etc.), sub-vented projects and private projects to be handed over to the Government. Refer to DEVB TC(W) No. 1/2025 for details. Amd No. 2/2025

Amd No. 2/2025

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2. PRELIMINARY STAGE OF DESIGN

2.1 PRELIMINARY DESIGN

The preliminary design of a project to meet the design objectives (Section 1.3) should be formulated by the project engineer after a comprehensive appraisal of the project by site visits and desktop study with reference to codes of practice, design manuals, etc.

Information contained in the project handbook (Chapter 1- Section 7.2), sketches or photographs of the site, and notes of observations made on site (e.g. location of stream courses, noise sensitive areas, surrounding landscape and ground form and general character of the area) may be useful at this preliminary design stage.

The client department, maintenance and operation authorities should also be consulted regarding their particular requirements, normally by circulation of an outline layout plan as described in Section 2.5.2.

2.2 SELECTION OF BASIC SCHEME & LIFE-CYCLE COSTING CONSIDERATION

Based on the selected preliminary design, the project office should identify the possible alternatives for the project, weigh the alternatives against the design objectives and select the optimum basic scheme. When necessary, the possible alternatives should be fully discussed and evaluated.

It may be necessary to draw up preliminary concept drawings of the available alternatives, so as to quantify and to record the conceptual considerations on paper in order to identify any constraints on, and any requirements of, the project, which may have been overlooked.

At this stage, the project office should conduct comparisons of the order of costs for alternative schemes to select the most suitable scheme. Such comparisons should be made by including use of the concept of "life cycle costing". "Life-cycle costs" refer to the total sum of the initial capital costs and an estimate of the future maintenance, operation and disposal (where appropriate) costs discounted to a net present value. The concept takes into account the design lifetimes of alternative schemes and requires determination of an appropriate period for the life-cycle costing assessment. The estimate of future maintenance, operation and disposal costs shall include the major components only in order to avoid unnecessarily tedious and lengthy calculations. When applying this methodology, the project office should pay particular attention to those features that require extensive maintenance efforts (such as horizontal drains in slope works), and/or high-energy costs (such as mechanical and electrical plant with lighting and pumping facilities), etc. When necessary, the project office may also contact the specialist departments for assistance in preparing the cost comparisons. For example, the project office may contact CEDD for advice on typical maintenance costs for slopes and/or geotechnical works, HyD for roadworks, DSD for drainage works, and WSD for waterworks, etc. Works departments should also collect life-cycle costing data as a long-term exercise, and a feedback mechanism should be established so that maintenance, operation and disposal data are collected and made available to the designer in a useful form.

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It is required to carry out a review of the preliminary design completed by consultants or entrusted works agents before proceeding with the detailed design as described in Section 3.1.

Works departments shall seek comments from Geotechnical Projects Division of GEO in accordance with DEVB TCW No. 3/2018 on the schematic design of major geotechnical works if the estimated cost of:

(i) piling or foundation works exceeds $500 million; or
(ii) geotechnical works (excluding piling and foundation works) exceeds $500 million.

GEO will provide early comments to works departments on the schematic design taking into consideration of aspects, such as types of suitable geotechnical works, general layout, building configuration, road alignment etc., with a view to enhancing the cost-effectiveness.

2.3 COMPILATION OF DESIGN MEMORANDUM

It is a good practice to document the design criteria in a design memorandum for future reference. The project engineer should prepare the design memorandum detailing the project constraints, the project requirements, the design concept and criteria and their justification (including appendices showing key design data and the key elements of work), and the selected basic scheme plus the possible alternative schemes, together with a brief account of why the basic scheme was selected. Others involved in the project design, such as operation and maintenance authorities, (e.g. EMSD) should also be consulted when preparing the design memorandum. A copy of the design memorandum should be kept in the project file. An example of a design memorandum is at Appendix 4.6 for illustration.

2.4 CHECKING AND APPROVAL OF DESIGN MEMORANDUM

The design memorandum should be submitted, after scrutiny and agreement by the relevant Senior Engineer, to the Chief Engineer/Regional Office Head for approval.

Any subsequent major alterations or deviations from the approved design memorandum should be submitted for approval.

Where appropriate, a copy of the design memorandum should be sent to the client department, and the maintenance and the operation authorities, for agreement before it is finalised and adopted.

Where the design memorandum is compiled by a consultant, it should be submitted to the Chief Engineer/Regional Office Head of the project for approval.

2.5 GENERAL LAYOUT PLAN

2.5.1 Preparation

The general layout plan of a project should contain sufficient details of the Works such as dimensions, levels and sections of the main items of the project, works sites, works areas, borrow areas, major traffic diversion schemes during construction, and a key plan showing the geographical location of the Works.

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The scale of the general layout plan should be appropriate to the nature and size of the Works but generally 1:200, 1:500 or 1:1000 are preferred.

The project engineer should check to ensure that all comments received during the circulation of the outline layout plan (Section 2.5.2), if any, have been properly taken care of in the preparation of the general layout plan.

2.5.2 Circulation

The general layout plan together with an explanatory memorandum should be sent to all interested parties, including utility and public transport companies, if appropriate, who should be asked for:

(a) Their agreement to or comments on the proposals,

(b) Details of their existing facilities/services in the area, and

(c) Details of any work they propose to carry out in conjunction with the project or which will be required as a result of the project (including approximate costs if this is to be borne by the project vote).

It is not normally necessary to request utility undertakers to comment on/agree the proposals. However, it is important that details of existing utilities and services be made known early, and whenever possible before commencement of ground investigation, and for information to be updated regularly on the general layout plan, where appropriate.

Each division/regional office should prepare its own explanatory memoranda for the types of project usually handled by them, and a checklist for the circulation of the general layout plan. Examples of the memorandum/letter used by WSD are shown at Appendix 4.2 for illustration. These require amendments, as necessary, to suit the needs of individual departments/offices/divisions and each particular project. In accordance with ETWB TCW Nos. 7/2003 and 7/2003A, ETW Departments should use Electronic Layout Plans (ELPs) in the circulation to utility undertakers (UU) and send hard copies of Layout Plans to UU only if there are special reasons but the number of copies should be reduced to a minimum.

Gazetting procedures and consultation with Advisory Committee on the Appearance of Bridges and Associated Structures (ACABAS) in accordance with ETWB TCW No. 36/2004 should be initiated at this stage, where appropriate.

2.5.3 Checking and Approval

The general layout plan should be checked, approved and signed in accordance with Section 1.5.6. Any major alteration to the layout plan should be submitted for approval, and re-circulated as outlined above, if necessary.

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3. DETAILED DESIGN AND ASSOCIATED ADMINISTRATION

3.1 CHECK LIST FOR DETAILED DESIGN

In accordance with ETWB TCW No. 19/2003, the preliminary design of a project completed by consultants or entrusted works agents should be reviewed by the Review Committee of the project office before proceeding with the detailed design to avoid abortive work and delay to the project due to changes in site conditions, design requirements or other circumstances after completion of the preliminary design.

To ensure that the detailed design is being carried out properly, the checklist in Appendix 4.1 should be attached to the current part of the design file. The relevant officer should initial the checklist to signify the completion of his part of the process and hand over the checklist with relevant files, documents, etc., to the next officer on the list.

3.2 DESIGN CALCULATION FILE

Prior to the preparation of the design calculations, the project engineer should instruct the general registry of the office/division to open a design calculation file, which should be a sub-file of the project file. Calculations may also be kept in the form of a bound document and placed in the library for reference.

All design calculations should be properly filed sheet by sheet as soon as they are completed.

3.3 DESIGN CALCULATIONS

3.3.1 Format

All design calculations should be carried out on standard calculation sheets (Form GF 515) using a soft dark coloured pencil or pen suitable for photocopying and scanning, spreadsheets or other electronic file format.

3.3.2 Presentation

Design calculations should be properly presented to facilitate future reference, revision and checking. The following points should be noted:

(a) Calculation sheets should be numbered and an index/table of contents be provided,

(b) The purpose of each calculation should be made clear by appropriate headings or descriptive sentences,

(c) The source of each formula should be given when first used,

(d) Each symbol should be defined when first used, and

(e) The same symbol should be used consistently for the same parameter throughout a set of calculations.

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3.3.3 Contents

The design calculations should include the following, where appropriate:

(a) An outline of the design objectives,

(b) Any specific requirements considered, including loadings, flow capacities, clearances, exposure conditions, etc.,

(c) Any special factors considered, such as durability requirements, access to the Site, effects of or on adjacent structures,

(d) The design assumptions and parameters, including materials properties, soil properties (with reference to the ground investigation reports and laboratory testing),

(e) An outline of the design philosophy and method, with justification in case non-standard design is adopted, and with references to codes and other publications,

(f) A list of computer programs used, and

(g) Calculations, including for example, contour plans for catchment areas, manufacturer's literature for specialist products, such as bridge bearings, etc.

3.3.4 Standard Designs

Standard designs included in standard drawings, manuals, etc., should be used where appropriate, with adequate cross-references to them given in the calculations.

3.3.5 Designs Similar to Previous Projects

Where a design, or a part thereof, is the same as a previous design, the calculations need not be repeated, but full reference must be made in the design calculations.

3.3.6 Computer Analysis

Where a computer analysis is used as part of the calculations, the programs used must be listed in the design concept record (Section 3.3.3 (f)) with a statement describing the analytical theory of the programs. Only programs independently checked and validated may be used. Approximate calculations should also be made to verify the computer program output.

The GEO maintains a system of approved computer programs for designing and analysing the behaviour of geotechnical features, including slopes, retaining walls, excavations, foundations, embankments and tunnel works. It is advisable to seek early agreement to the use of any geotechnical computer program from the Planning and Development Division of GEO.

If a new computer program is employed, a documentation of the program is required and a copy of the documentation should be filed in the design calculation file. For documentation and use of computer programs and interpretation of results of computation, personnel who are competent to practice in the particular engineering discipline, and have a

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good understanding of the theory of the mathematical modelling and experience in the use of computer programs should be engaged. This requirement is particularly important for programs, which are based on numerical modelling techniques such as finite element and finite difference, as considerable experience and familiarity are needed for successful application of the models.

The computer input, output and program manuals should comprise part of the design calculations. They may, however, be filed separately provided that full cross-reference is made in the design calculations.

3.3.7 Survey Data and Computation Files

Survey data and computations may be filed separately in accordance with survey procedures. The calculation file should, however, contain full cross reference to these survey data and computations at relevant points of the design calculations.

Survey and Mapping Office, LandsD provides various types of survey and mapping products for use by government departments and their contractors/consultants. Detailed arrangement can be found in Section 7.4.6 of Chapter 1. Works departments should also provide all geospatial data of their projects to Survey Mapping Office for updating the centralised land survey and mapping information (see Section 5.4.3 of Chapter 3 of PAH).

3.3.8 Drawing List

A list showing the numbers and titles of all drawings related to the design calculations should be kept in the calculation file. This list should be updated accordingly whenever revisions are made.

3.3.9 Signing of Design Calculations

All design calculations should be signed and dated by the project engineer as they are prepared. (see notes in Appendix 4.1 on delegation of design).

3.3.10 Arithmetical Checks of Design Calculations

When the design calculations are completed, or at convenient intermediate stages, they should be passed to an officer (such as an assistant engineer, a civil engineering graduate, or a quantity surveying officer as appropriate) to carry out an arithmetical check. Every page of the calculations should be included in this check and should then be signed and dated by the officer, or a summary of these page numbers shown and signed. The purpose of this check is to ensure arithmetical mistakes are not made in the design calculations and it should not be confused with the design certification and checking in Section 3.5.

3.4 DESIGN RECORDS

3.4.1 Permanent Design Records

Permanent design records normally comprise the following:

(a) The complete set of design calculations (including all design calculation files) (Section 3.3),

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(b) The complete set of drawings (Section 1.5),

(c) The computer input, output and program manuals (Section 3.3.6),

(d) The survey data and computation files (Section 3.3.7), and

(e) Digital copies of the records, where appropriate.

Permanent design records should be maintained by the drawing office of the division/regional office. The officer in charge of the drawing office should compile, and submit to the project engineer for checking, an index for the permanent design records classified according to the types of design, e.g. bridges, piers, drainage structures, run-off calculations, geotechnical works, etc. The drawing office head shall maintain and update the index, and a copy of the updated index should be forwarded to the departmental library for reference by other departments/offices/divisions. For ease of reference and storage, it is recommended that drawing office/departmental library should keep additional electronic copies of the design calculations (in PDF format as recommended in the HKSARG Interoperability Framework published by DPO).

3.4.2 Design Notes

In dealing with problems arising from the design of particular projects, information is often acquired or design methods are evolved which may be of relevance to other cases. Information acquired and design methods evolved in this manner should be recorded as "design notes" and should be filed in the design calculation file for the project.

3.4.3 Checking of Design Records

When the permanent design records and design notes are compiled, they should be checked by the project engineer.

3.4.4 Submission of Site-specific Geotechnical Reports to the Geotechnical Information Unit (GIU)

Geotechnical reports should be compiled with the factual data (usually contractor's ground investigation and laboratory testing reports) and the interpretative information contained in separate volumes.

When any ground investigation (including land or marine geophysical survey) is carried out for a Government project, a soft copy (in pdf format) of the contractor’s final ground investigation field work report(s) and any associated laboratory testing report(s) should be submitted directly to the GIU by the project office, together with any associated digital data (which should be in AGS or other recognised format) within three months upon the finalisation of the report(s). Each report should be accompanied by a completed Document Submittal Form (available from the CEL) stating that the data in the report are factual data and the report does not contain any interpretative information. If a report comprises multiple volumes, these should be listed on the Document Submittal Form. These factual reports are kept in the Public Section of the GIU. For those ground investigations carried out under either a term contract or an individual contract administered by the GEO, the necessary submissions will be undertaken directly within the GEO, and therefore no action by the project office is necessary.

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Geotechnical reports which contain interpretative information and are submitted to the GEO in support of Government developments are passed to the GIU via the GEO District Divisions and are kept in the Government Section of the GIU.

The GIU does not contain any documents which are classified as Restricted, Confidential or a higher category, and such documents should not be submitted.

3.5 CERTIFICATION AND CHECKING AND AUDITING OF DESIGN PROCESSES

3.5.1 General

This Section sets out the guidelines for carrying out independent checking on new works and associated modification of existing works designed in-house and by consultants or contractors employed by the Government. These guidelines do not modify the contractual or legal responsibilities of any party for the work carried out, including without limitation the Designer as defined in Section 3.5.2 and the Checking Engineer as defined in Section 3.5.3.

The objective of the independent checking is to ensure:

(a) compliance of the design with the project office's requirements, relevant design standards and statutory requirements;

(b) validity of design concepts, methods and assumptions;

(c) applicability, accuracy and validity of the computer programs and models used in the design;

(d) accurate translation of the design into drawings and specifications; and

(e) practicality and adequacy of key details.

3.5.2 Designer

For projects designed in-house, the Designer is generally the project engineer. For projects designed by consultants or contractors employed by the Government, the Designer is the professional, the team of professionals, the company or the organization being responsible for the design.

3.5.3 Checking Engineer

For projects designed in-house, the Checking Engineer is generally the checking officer, separate from the project engineer, responsible for the independent check of the design. The Chief Engineer/Regional Office Head is responsible for appointing a suitable checking officer.

For projects designed by consultants or contractors employed by the Government, the Checking Engineer is the professional, the team of professionals, the company or the organization separate from the Designer, except for the case (a) in Section 3.5.4, and being responsible for the independent check of the design. The project office shall arrange with the Designer the checking of the works by a Checking Engineer. The Checking Engineer proposed

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to be appointed by the Designer shall be approved by the project office in advance. If the Checking Engineer is not in the same organization as the Designer, the Designer should submit to the project office documentary evidence on the engagement of the Checking Engineer, such as employment letter, for the checking by the project office. Should the project office be dissatisfied with the performance of the Checking Engineer at any time, the project office may, having given reasonable notice of dissatisfaction, order the dismissal and replacement of the Checking Engineer.

In all cases, the Checking Engineer should be a professional engineer suitably experienced in the type of Works being checked.

3.5.4 Design Checking Approach

The design should be checked as a whole using one of the following approaches corresponding to the risk and complexity of the Works:

(a) For simple and straightforward designs, the designs should be checked by a Checking Engineer, generally for correctness of assumptions and concepts, the method of working, practicality of construction and order of size, plus some detailed checking of critical members or sections. The Checking Engineer is given the design memorandum, design calculations and drawings of the Works as designed. The Checking Engineer need not be an officer from outside the design team, although it is always desirable to have a Checking Engineer who is not associated with the design.

(b) For complicated or unusual Works, or for Works, which could result in serious consequences if they fail, complete and thorough checking by a Checking Engineer independent of the design team should be executed. Under this approach, the Checking Engineer is given drawings of the Works as designed, the design memorandum, other information on functional/performance requirements and applicable design standards of the Works, but without the design calculations. The Checking Engineer then verifies the design as shown on drawings by executing an independent set of calculations.

(c) For complicated Works or Works of a nature that there is limited local experience, such as a very long-span bridge, tunnelling works or major underground structures, the project office shall consider if a Checking Engineer from an independent organisation which is separate from that of the Designer should be employed to vet the structural or geotechnical design of the whole or part of the Works.

The Chief Engineer/ Regional Office Head should decide which checking approach is to be adopted for each individual project.

3.5.5 Design Checking Report

For projects designed by consultants or contractors employed by the Government, to which the design checking approach in Section 3.5.4(b) or (c) is applicable, the Checking Engineer should prepare a design checking report providing details of the design checking and submit directly to the project office, not via the Designer, for comments.

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3.5.6 Design and Check Certificate

For projects designed in-house, the project engineer should certify the correct completion of the design process and the checking officer should certify the completion of the checking process in a standard certificate (Appendix 4.3) and tenders should not be invited without this certificate.

For projects designed by either consultants or contractors employed by the Government, when the design checking has been completed and all necessary amendments to the design calculations, specifications and drawings have been made and checked by the Checking Engineer, the Designer and the Checking Engineer shall sign the "Design and Check Certificate" (Appendix 4.22), or other form as agreed with the Chief Engineer/ Regional Office Head. The original copy of the "Design and Check Certificate" shall be submitted by the Checking Engineer directly to the project office, not via the Designer, for record purpose. The project office must exercise caution to examine the "Design and Check Certificates" submitted. Unless there are justifiable reasons acceptable to the project office, the Designer shall exercise every effort to ensure that no drawings shall be issued for tendering or construction until the "Design and Check Certificate" (Appendix 4.22) has been accepted by the project office.

3.5.7 Auditing of Geotechnical Aspects by GEO

The District Divisions of the GEO, CEDD exercise geotechnical control over public developments by auditing the geotechnical aspects of the designs of permanent works and, in the case of tunnel works, the associated temporary works, and the adequacy and standards of site supervision. Geotechnical submissions, as defined in Section 4.6.2, are required to be submitted to the GEO for auditing and design vetting (ETWB TCW Nos. 29/2002, 29/2002A, 4/2004 and 15/2005, and DEVB TCW No. 3/2018). For slopes and retaining walls, foundation works within the Scheduled Areas of the Northwest New Territories and Ma On Shan and the Designated Area of Northshore Lantau, tenders should not be invited for any part of the geotechnical works until the geotechnical design has been accepted by the GEO. For tunnel works, where the GEO raises major geotechnical concerns on the public safety aspects of the geotechnical design (or the related Particular Specification or the Employer's Requirements (for Design and Build (D&B) contracts)), the project office must resolve such concerns with the GEO before tenders are invited. For projects that involve rock blasting, the project office should submit a Blasting Assessment as part of the geotechnical submissions to the GEO for comment and agreement. Tenders should not be invited for any part of the geotechnical works until the Blasting Assessment has been accepted by the GEO.

3.6 REVISION OF DESIGN CALCULATIONS, RECORDS AND DRAWINGS

Design calculations, records and drawings should be revised and updated as the need arises. Major design revisions should be checked in the same manner as the original design.

For the compilation of as-constructed design calculations, records and drawings, reference should be made to Chapter 7 (Contract Management).

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3.7 DESIGNS BY CONSULTING ENGINEERS

For projects employing consultants for planning and design, the consultants shall report in the monthly progress meetings the status of design checking to enable the project office to be informed of the progress of the design checking.

The consultants should be requested to submit the complete set of design calculations, records and drawings to the client office/division at the end of the design stage, together with a certification (Appendix 4.7 of EACSB Handbook) for the proper completion of the design process and checking of the design. The consultants should be requested to undertake and warrant to the client office/division that the client office/division will become the absolute and exclusive owner of the complete set of design calculations, records, drawings and documents and all intellectual property rights subsisting therein free from all encumbrances save those intellectual property rights belonging to a third party.

3.8 DESIGNS BY AND FOR OTHERS

The agreement of the Chief Engineer/Regional Office Head should be sought for the design of projects by and for other divisions/offices. A record of such should be kept in the project file.

At the end of the design stage, the design division/office should forward the complete set of design calculations and drawings to the divisions/offices on whose behalf they have undertaken the design, together with a standard certificate (Appendix 4.3) for the proper completion of the design processes and checking of the design.

3.9 THE REASSIGNMENT OF ACTIVE PROJECTS

Projects should preferably not be reassigned between divisions/offices/departments while action is continuing in any particular phase (design, tendering, construction as the case may be). Where, however, there are compelling reasons for effecting such a transfer, the division/office/department handling the project must provide the division/office/department taking-over with handover notes highlighting the action required to complete that phase, and drawing attention to any unusual circumstances or peculiarities.

3.10 DESIGN REVIEW AND IMPLEMENTATION OF BUILDABILITY EVALUATION SYSTEM
(Ref.: DEVB TCW No. 6/2018 & DEVB TCW No. 6/2020)

The 2016 Policy Address announced that the Government should strengthen cost control on public works projects, and to reduce unnecessary design and contractual requirements. DEVB has developed a buildability evaluation system for public engineering works projects contracts funded under Public Works Programme (BES(E)) to enhance project time and cost management and increase construction productivity.

The BES(E) is developed based on the "3S+ Principle". Apart from "Standardisation", "Simplification" and "Single Integrated Elements", the BES(E) has incorporated project life cycle management and coordination in order to achieve the objectives set. The BES(E) comprises 5 Modules covering

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"Management and Coordination", "Site Planning and Usage", "Details of Design", "Maintenance Requirements" and "Innovation and Creativity". Further down the hierarchy, each Module is subdivided into Items and Aspects. Relative weightings are assigned to each Module / Item / Aspect of the BES(E) to reflect their relative significance in achieving productivity gain as well as time and cost saving. The weightings are mainly determined by professional judgement and will be reviewed and suitably adjusted in the course of implementation when more data are collected from completed pubic engineering works projects in order to make the BES(E) more robust.

BES(E) is implemented in stages and applies to works contracts funded under Public Works Programme, except Design and Build projects and projects entrusted to organisation outside Government. The first stage of implementation was completed on 31 Oct 2021 in which the BES(E) involved only data collection from completed public engineering works projects to refine the system.

The second stage of implementation started on 1 November 2021. In the second stage, BES(E) assessment and design review (without passing score) shall be conducted prior to invitation of tender for works contracts (except Design and Build projects and projects entrusted to organisation outside Government) with estimated contract values exceeding $100 Million. Also, BES(E) assessment shall be conducted for such substantially completed works contracts with anticipated final contract values exceeding $100M and without conducting any previous BSE(E) assessment. These BES(E) assessment results of substantially completed works contracts are not required to be submitted to the Design Review Committee for review. The role of the Design Review Committee set up under the ETWB TC(W) No. 19/2003 shall be expanded to include review of detailed designs, including the BES(E) assessments, prior to invitation of tender for works contracts with estimated contract value exceeding $100 Million. The project teams, and the consultants if engaged, shall follow paragraph 8 of ETWB TC(W) No. 19/2003 and the BES(E) Guidelines to attend the review meeting(s) and present their detailed designs and the BES(E) assessment to facilitate the vetting.

In the third stage of implementation that starts on 1 Mar 2023, BES(E) assessments and design review are conducted with passing score. The timeframe for implementation of the BES(E) is detailed in Section 2 of the BES(E) Guidelines.

A dedicated team in the DEVB has been set up for maintaining and refining the BES(E) and the BES(S) Guidelines. To facilitate the collection of buildability data, all BES(E) assessment results and the associated documents shall be submitted to the DEVB in accordance with the BES(E) Guidelines.

The BES(E) Guidelines, together with BES(E) assessment tool and user manual, are posted on the DEVB's website and will be updated from time to time. Prior approval of the DEVB shall be obtained for any deviation from the requirements specified in the BES(E) Guidelines to suit specific needs of individual projects.

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4. GUIDELINES AND POLICIES RELATED TO DESIGN

4.1 SITE FORMATION AND RECLAMATION

4.1.1 Fill Matters

The use of marine borrow areas must be approved by the Marine Fill Committee (MFC) as stipulated in WBTC No. 12/2000. If marine sand is imported for land formation or reclamation, the project office must ascertain that it is genuinely of marine origin because river sand imported from Chinese Mainland shall not be used in site formation and reclamation. It is important that suitable Construction and Demolition (C&D) materials are used in reclamation and land formation projects so that land can be formed cheaply and disposal of C&D materials in landfill can be minimised with a view to conserving the valuable landfill space (WBTC Nos. 2/93 and 2/93B). For reclamation and earth filling projects requiring the importation of more than 300,000 m^3 of fill (including the fill demand for surcharge mounds and utility zones), it is a policy requirement to consider using public fill for the Works (WBTC Nos. 4/98 and 4/98A). Subject to availability, PFA may also be used as filling materials in reclamation projects. Some guidelines explaining the procedure for using PFA as general fill in reclamations can be found in WBTC No. 14/94 and its subsequent revisions. Guidelines on the design of reclamation are contained in the Port Works Design Manual Part 3 – "Guide to Design of Reclamation".

The importance of adequate compaction of new fill slopes cannot be stressed too often. The consequences of a flowslide of loosely placed fill can be disastrous. There is no excuse for allowing fill to be placed in a loose state where its failure could endanger life or property.

The Department responsible for a contract (its consultant where one is employed) must make adequate provision well before the start of a contract for site supervision and compaction control testing, to ensure that the requirement as stipulated in the "General Specification for Civil Engineering Works (2020 Edition)" is achieved.

When tender documents are issued, the Particular Specification must draw the contractor's attention to the compaction clauses. Any excuse that tender rates did not allow for proper compaction will not be accepted.

The architect or engineer for the project will be held personally responsible for ensuring compliance with the specification.

(Subsumed from PWD TC No. 13/78)

4.1.2 Submission to GEO

All proposals for borrow areas should be submitted to GEO, CEDD for auditing the design of the proposed slopes. Particular attention should be given to the maintenance requirements of the slope, including the maintenance of the services both on the surface and underground (DEVB TCW No. 6/2011).

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4.1.3 Construction and Demolition Materials (termed as "construction waste" in Chapter 2)
(Subsumed from WBTC Nos. 25/99, 25/99A, 25/99C and ETWB TCW No. 33/2002)

The requirements stipulated in the following circulars are relevant:

WBTC No. 2/93	-	**Public Dumps**
WBTC No. 2/93B	-	**Public Filling Facilities**
WBTC No. 16/96	-	**Wet Soil in Public Dumps**
WBTC No. 4/98, 4/98A	-	**Use of Public Fill in Reclamation and Earth Filling Projects**
WBTC No. 12/2000	-	**Fill Management**
WBTC No. 12/2002	-	**Specifications Facilitating the Use of Recycled Aggregates**
ETWB TCW No. 19/2005	-	**Environmental Management on Construction Sites**
DEVB TCW No. 6/2010	-	**Trip Ticket System for Disposal of Construction & Demolition Materials**
DEVB TCW No. 2/2011	-	**Encouraging the Use of Recycled and other Green Materials in Public Works Projects**
DEVB TCW No. 9/2011	-	**Enhanced Control Measures for Management of Public Fill**

Project offices in the planning and design of projects should actively seek to minimise generation of Construction and Demolition (C&D) Materials and to reuse inert materials generated, including rock, as far as possible. To achieve this, the project office is required to draw up a Construction and Demolition Material Management Plan (C&DMMP) at the feasibility study or preliminary design stage for each project, which generates more than 50,000 m^3 of C&D materials including rock or which requires imported fill in excess of 50,000 m^3. The C&DMMP shall be signed off by a D1 officer. Guidelines for preparing the C&DMMP are appended in Appendix 4.9.

Trip Ticket System should be adopted for proper control of C&D materials disposal in public works contracts in accordance with DEVB TCW No. 6/2010. Project officers should refer to DEVB TCW No. 6/2010 to prepare the submission(s) to Public Fill Committee (PFC) through the Secretary of PFC for inert C&D materials and/or to the Director of Environmental Protection (for the attention of PEPO(FM)) for non-inert C&D materials, as appropriate. Project officers should also refer to DEVB TCW No. 2/2011 and EPD's waste reduction website for the updated list of recognised recyclers for C&D materials in case a private recycling facility is proposed as an alternative disposal ground for the C&D materials.

The project department should set up a departmental Vetting Committee on C&D material management. The responsibilities of the Vetting Committee include: (a) scrutinising and endorsing the C&DMMP to ensure that appropriate measures have been incorporated to minimise C&D material generation; (b) ensuring the project office has made every endeavour to identify outlets for beneficial reuse and/or recycling of any surplus excavated material including rock; and (c) monitoring the implementation of the

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C&DMMP and its revisions. The project office should prepare and submit the revised C&DMMP for endorsement by the Vetting Committee. In the course of project delivery, the project office should also monitor the implementation of the C&DMMP and submit regular reports to the Vetting Committee.

The suggested composition and terms of reference of the Vetting Committee are appended in Appendix 4.10. Guidelines for minimising the generation of C&D material and maximising its reuse are also appended in Appendix 4.11.

Projects generating C&D materials less than 50,000 m^3 or importing fill material less than 50,000 m^3 are exempted from the C&DMMP. However, the project office should establish a system similar to the C&DMMP in order to minimise C&D material generation.

The Vetting Committee should monitor and check that the actual amount of materials generated does not exceed the estimates that justify the exemption. Should the estimated or actual quantities of C&D materials exceed 50,000 m^3 in the course of project delivery, appropriate control measures should be implemented and the situation should be highlighted in the half-yearly status report to be submitted to the Public Fill Committee (PFC) as stated in the ensuing paragraph.

The Vetting Committee should provide PFC with detailed explanation if the latest quarterly return on any of the yearly forecast quantity of the C&D materials (with surplus public fill generation or demand in excess of 300,000 m^3) for the coming three-year period differs from that of the previous return by 100,000 tonnes or more. The endorsement authority for the detailed explanation shall follow that stipulated in DEVB TCW No. 9/2011.

The project office managing the project should monitor the C&DMMP and prepare a half-yearly status report. The Vetting Committee should scrutinise the report before submitting it to the PFC in June and December. The report should include the following :

(a) a checklist for the C&DMMP endorsed by the Vetting Committee or the PFC,

(b) any changes to the plan with detailed justifications,

(c) the previous and latest estimates of the total amount of surplus C&D materials including rock that is expected to be generated by the project, and a breakdown of the nature (e.g. inert C&D materials (public fill), rock, C&D waste, etc) and corresponding quantities.

(d) the amount of surplus C&D materials including rock that has been generated during the reporting period,

(e) the total accumulative amount of surplus C&D materials including rock that has been generated since the project's inception; and

(f) the programme for disposal of surplus C&D materials including rock and disposal outlets.

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For projects classified as "designated" projects under Schedule 2 of the Environmental Impact Assessment Ordinance (EIAO), the C&DMMP where required under this paragraph should be submitted together with the environmental impact assessment (EIA) report to PFC for approval. The flow chart for vetting the construction waste management section of the EIA report or the environmental review report is at Appendix 4.12. It is advisable that the management of C&D materials in the EIA report adopts a similar approach as the C&DMMP, where appropriate, for consistency.

For projects which are not classified as "designated" projects under Schedule 2 of the EIAO but generating surplus C&D materials in excess of 300,000 m^3 or requiring imported fill exceeding 300,000 m^3, the C&DMMP should be submitted to PFC for in-principle approval prior to commencement of the detailed design. The C&DMMP should be vetted and endorsed by the departmental Vetting Committee before submitting it to PFC for approval.

4.2 MARINE WORKS

Guidelines on the design of marine works are contained in the Port Works Design Manual. For proposals on dredged/excavated sediment, the rationale for sediment removal and applications for approval of dredging/ excavation proposals and allocation of marine disposal space should be submitted to the Marine Fill Committee (MFC) in accordance with Section 4.2.1 of this Chapter and WBTC No. 12/2000. In addition to the requirements in Section 4.2.1 of this Chapter, additional control measures given in Appendix 4.21 should be taken for the management of dredged/excavated contaminated sediment.

4.2.1 Management of Dredged/Excavated Sediment (Subsumed from ETWB TCW No. 34/2002)

The requirements stipulated in WBTC No. 12/2000 "Fill Management" are relevant.

Effective Date

All projects or portions of projects which involve the marine disposal of dredged/excavated sediment and the Sediment Sampling and Testing Plan (SSTP) has not been approved by the Director of Environmental Protection (DEP) shall follow Section 4.2.1 of this Chapter.

Rationale for Dredging

The allocation of sediment disposal space at sea will not be considered until the need for removal of the sediment has first been satisfactorily demonstrated. The rationale for sediment removal must therefore be provided to the Secretary of MFC for agreement, as early as possible, preferably at the Environmental Impact Assessment Stage, if one is conducted. Volumes of Category L sediment (see Appendix 4.28) below 50,000 m^3 are exempted from this requirement.

Dredging of sediment will be allowed without justification in the following cases:

(a) emergency dredging for safety reasons or averting environmental hazards;
(b) maintenance/deepening of the harbour fairways, berths, anchorages, navigation channels or approaches; and

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(c) maintenance (but not construction) of watercourses, rivers, stream courses, drainage channels or outfalls.

In all other cases, project proponents shall plan their projects on the assumption of keeping the mud in place. Time for consolidation of mud, with treatment if necessary, and consequential programme constraints shall be allowed for in programming. Additional time required for consolidation of mud left in place will not be accepted as justification for mud dredging. MFC will scrutinise applications for exemption taking into account factors including the practicality of performance specifications, completeness of risk management strategies, and comprehensiveness of option assessments including consideration of new technology. Where cost is considered, the estimation must include a fair and complete estimate of all cost components, including the actual cost of mud disposal (obtainable from MFC Secretariat) and necessary dredging and transportation, disposal management, monitoring and other associated activities.

Classification of Sediment

DEP, as the Authority under the Dumping at Sea Ordinance Cap. 466 (DASO), will classify sediments based on their contaminant levels with reference to the Chemical Exceedance Levels (CEL) laid down in Appendix 4.28.

Determination of Sediment Quality

Guidelines on the initial data assessment, the sampling and testing procedures, the biological test criteria, and the submission requirements are set out in Appendix 4.29. DEP may waive the sediment sampling and testing requirements in cases of:

(a) emergency dredging for reasons of safety or averting environmental hazards; and
(b) for small scale dredging works of maintenance nature and involving dredging volumes of less than 5,000 m^3 in situ.

Previously obtained data or known history of the sediment in the vicinity should be submitted to DEP for consideration of the most appropriate arrangements for handling these materials.

Upon agreement of the rationale for sediment removal by the Secretary of MFC, the project proponent (government department or office) or its consultant shall, in consultation with DEP, assess whether the existing data can conclusively demonstrate that the sediment[1] is suitable for open sea disposal. If no such conclusion can be drawn, the project proponent must submit proposals for Sediment Sampling and Testing Plan to DEP for approval. The proposals shall be copied to the Secretary of MFC, together with details of the anticipated disposal requirements.

Upon completion of the sampling and chemical testing, the project proponent shall submit a Preliminary Sediment Quality Report (PSQR) to DEP with a copy to the Secretary of MFC. This report shall include the sampling details, the chemical testing results, quality control records, proposed classification and delineation of sediment according to Appendix

[1] "The sediment" in this paragraph and subsequent paragraphs refers to the dredged/excavated sediment for disposal under a project/contract as proposed by the project proponent.

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4.28, and the information and/or records as specified by DEP in his approval of Sediment Sampling and Testing Plan.

If certain Category H sediment are found in the sediment, the project proponent will be required to carry out a biological screening[2] in accordance with Section 3 of Appendix 4.29, and submit a formal Sediment Quality Report (SQR) to DEP for approval. This must be done at least 3 months prior to the dredging contract being tendered or at least 2 months prior to the works order for maintenance dredging being issued. In cases where biological screening is not required, subject to the approval of DEP, the PSQR will be deemed to be the formal SQR.

At the time of approval of the SQR, DEP will specify the period beyond which the reliability of the SQR data must be reviewed. This period starts on the actual date of commencement of sampling and will be not less than three years. The project proponent shall obtain DEP's prior agreement to the review methodology and sampling locations. Depending on the review finding, further sampling and testing to update the data of the SQR may be required.

The project proponent must schedule the preparation of the SQR or its subsequent review in such a way that the SQR will still be reliable for a reasonable period of time after the award of the contract, to allow the contractor to apply for a dumping permit. The project proponent should also include a particular specification clause in the contract to draw the contractor's attention to the requirement that the SQR must still be reliable at the time of applying for a dumping permit under the DASO. The clause should also state the expiry date of the reliability period of the current SQR and that it is the contractor's responsibility to carry out, at his own expense, any work required to extend the reliability period of the SQR should he fail to apply for a dumping permit before the expiry date.

Allocation of Sediment Disposal Site

MFC will determine the most appropriate open sea or confined marine disposal site on the basis of the chemical and biological test results and formally allocate disposal space in accordance with the flow chart in Appendix 4.30. For projects with disposal requirements of less than 50,000 m^3 Category L sediment, the allocation of disposal space has been delegated to DEP. The project proponent may request the Secretariat of MFC to provisionally indicate an appropriate marine disposal site or sites after the rationale for sediment removal has been agreed. An estimate of the volume and quality of sediment to be dredged, supported by available ground investigation and testing data, should be provided to the Secretary of MFC at the time of submission of the request. The contract document should include the disposal requirements from MFC & DEP, and relevant guidelines given under Notes (1) to (5) in Appendix 4.30.

Application for Marine Dumping Permit

DEP controls dumping at sea by means of DASO permits which are issued to contractors or other parties responsible for the disposal of dredged/excavated sediment. The contractor who will be undertaking the works must make a formal application to DEP for a dumping permit, and if the permit is granted, it will be the contractor's responsibility to ensure that the permit conditions are met to DEP's satisfaction.

[2] For Category M sediment which requires cross-boundary disposal, the project proponent should refer to the requirements set out in DEVB memo ref. DEVB(W) 515/83/04 dated 6 October 2010.

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It should be noted that all new marine structures in the Victoria Harbour must be designed to be of low wave-energy reflection and that project departments should obtain agreement from CE/PW, CEO of CEDD that the structures will not cause a deterioration in the wave conditions in the Harbour. CE/PW should also be consulted for advice on the design of new marine facilities or of works, which would affect adjoining marine facilities in the close vicinity. Standard details of some marine works may be found in the CEDD Standard Drawings, but they should only be adopted after detailed checking to ensure that they are in full compliance with the Port Works Design Manual. On completion of design and before calling for tenders, the general arrangement drawings of the new marine facilities should be submitted to CE/PW for comments from a maintenance viewpoint if the works are to be maintained by CE/PW upon completion.

4.3 HIGHWAYS AND ASSOCIATED STRUCTURES

4.3.1 Road Pavements, Exclusive Highway Drainage, Railings, Barrier Fences and Parapets

The design of road pavements, exclusive highway drainage, railings, barrier fences and parapets are covered by the Guidance Notes on Pavement Design for Carriageway Construction (RD/GN/042), Guidance Notes on Road Pavement Drainage Design (RD/GN/035), Guidelines for the Provision and Design of Pedestrian Railings (Transport Department Departmental Circular No. 3/2017 / Highways Department Technical Circular No. 2/2017), Guidelines for Design of End-details of Thrie-beam Barrier Fence (RD/GN/040), Supplementary Guidelines for Design of End-details of W-beam and Concrete Profile Barriers, TPDM Volume 2 Chapter 3 Section 3.9, and a series of Road Notes, Guidance Notes and Guidelines issued by HyD. Standard details of these works may also be found in the HyD Standard Drawings. It should be noted that railings should be provided where necessary; multiple railings at the same section of the road should be avoided.

Consultations regarding the design of road pavements, etc., should be addressed to CHE/R&D, HyD.

4.3.2 Structures

The design of highway structures is covered by the Structures Design Manual for Highways and Railways. CHE/Bridges & Structures, HyD may be consulted for advice on the design of highway structures, preferably at the conceptual stage of design. On completion of design, and before calling for tenders, the general arrangement drawings should be submitted to CHE/Bridges & Structures for comments.

For projects undertaken by HyD in-house, the design of highway structures are to be under the direct control of CHE/Bridges & Structures. Therefore, CHE/Bridges & Structures should be consulted as early as possible to agree on the programme of the design work. With regard to the appearance of bridges and associated structures, ACABAS should be consulted in accordance with ETWB TCW No. 36/2004.

For capital works projects, the project office should circulate the design proposal to the Sub-committee on Access under the Rehabilitation Advisory Committee for consultation purpose if the projects fall within one of the following categories:

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(a) the project has implications to the policy of access of disabilities; and

(b) Road/footbridge projects that will remove the existing access for Persons with Disabilities (PWDs) without re-provisioning or with re-provisioning in other manners, or where some of the facilities for PWDs will be of non-standard design.

Requirements and standards in respect of installing fire mains and hydrants on new trunk roads and elevated highway structures are given in HyD TC No. 4/2010. The criteria for the provision of covers, ramps and escalators to grade separated pedestrian facilities (such as footbridge, subway, etc.) are stated in TB TC No. 2/00. The design of lift ventilation system is covered by the Guidelines on Lift Designs with Mechanical Ventilation (HQ/GN/19).

4.3.3 Highway Alignment and Traffic Management

Guidelines for highway alignment and traffic management design are contained in the TD's Transport Planning and Design Manual. SE/Standards, Road Safety and Standards Division of TD should also be consulted on the design.

In planning a transport infrastructure project, if there is a likelihood of changes to planned developments that might significantly alter the design traffic volume or vehicle mix, the designer should, in collaboration with TD, consider different possible design scenarios to cater for likely changes and to obtain the most up-to-date planning information and parameters available at the time, particularly those which may lead to different forecasts on the proportion of heavy vehicles using the road. (Ref.: Audit Report No. 53 Chapter 10)

If the design of highways projects is undertaken in-house, the design of traffic management work (including traffic aids, directional signs and traffic signals) will be undertaken by the relevant Traffic Engineering Division of TD. If the project is undertaken by a Consultant, the traffic management design should be prepared by the Consultant and forwarded to the appropriate CTE, TD and C of P for agreement.

Traffic and directional signs should normally be ordered from CSD by the project office. It is the project engineer's responsibility to ensure that the various street furniture items erected do not obscure each other thereby jeopardising road safety. Reference should be made to HyD TC No. 10/2001 on visibility of directional signs.

4.3.4 Road Lighting and Other Illuminated Traffic Aids

Guidelines on the design of road lighting and other illuminated traffic aids are contained in the Public Lighting Design Manual. HyD should be consulted as early as possible to offer advice on the design, lighting & control equipment to be adopted, power supply distribution arrangement and the specification for the lighting installations.

For details of design responsibility, installation, wiring and electricity supply for road lighting and other illuminated traffic aids, also see the Public Lighting Design Manual.

The project office needs to submit the project as an item in the PLP and to resolve the RC issue.

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4.3.5 Road Safety

CE/RSS, TD should be consulted about matters related to road safety design.

The project office should liaise closely with TD in the selection of the types of road junctions and in the design for their transport infrastructure projects, having regard to the need to comply with road safety standards and taking into account the specific site and traffic conditions which may have implications on drivers' behaviour and driving discipline.

Before commissioning a new road, the project office should liaise with TD to carry out road safety checks and work inspections. If any potential hazards are identified, the project office should implement such appropriate measures in consultation with TD to ensure road safety. (Ref.: Audit Report No. 53 Chapter 10)

4.3.6 Tactile Guide Path

Tactile guide path should be designed to contrast visually with the adjoining surfaces in order to provide clear indication of the routes to the people with low vision. Tactile tiles/blocks should be made of durable and non-slippery materials. Organisations concerned should be consulted on the visual contrast. Reference should be made to TPDM Volume 6 Chapter 8 Section 8.3.2.9.

4.3.7 Street Name Plates

For naming new roads and the associated gazetting requirements, the project office should liaise with the District Survey Office of Lands Department. The project office should be responsible for the erection of the street name plates on the new roads before the new roads are opened to public. If the completed new roads have been opened to public and handed over to the Regional Offices of Highways Department for maintenance before the names of the new roads are gazetted, the Regional Offices should take up the erection of the street nameplates upon receipt of a request from the project office. However, arranging for gazetting the names of the new roads should still be the responsibility of the project office.

4.3.8 Innovative Designs or New Construction Materials

In respect of innovative designs or new construction materials, the project office should vigilantly check the tender documents and contract specifications to avoid ambiguities in them. If there are fire risks associated with the innovative design or new construction materials, the fire-services requirements should be critically assessed and the relevant departments (such as the Fire Services Department) should be consulted before incorporating the requirements into the tender documents. (Ref.: Audit Report No. 53 Chapter 10)

The project office should ensure that market research is conducted to ascertain the supply and availability of proprietary products or new construction materials before incorporating them in the tender documents. (Ref.: Audit Report No. 53 Chapter 10)

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4.4 SEWERAGE AND DRAINAGE

Sewerage Manual and Stormwater Drainage Manual provide guidelines for the design of:

(a) Stormwater drainage systems,

(b) Sewerage systems,

(c) Pumping Stations and Rising Mains

(d) Sewage treatment works,

(e) Submarine sewer outfalls, and

(f) Village flood protection scheme.

DSD may be consulted for advice on the design of such works.

Standard details of some common drainage and sewerage installations may be found in the DSD Standard Drawings.

ETWB TCW No. 2/2006 is promulgated to stipulate the policy on the application of the Drainage Impact Assessment (DIA) process to public sector projects. The process comprises two principal elements, a project profile and, if necessary, a DIA study. If a project is likely to have an impact on drainage system, the project office should notify the relevant regional office of DSD by submitting a project profile at an early stage of the project planning and development. Nevertheless, for project with obvious and significant drainage impact, DSD may waive the requirement for project profile and require the project office to proceed directly to DIA study. DSD should be consulted if the project office is in doubt about the need to notify. The project office should refer to this Circular for detailed procedures. Any agreed mitigation measures identified should be taken into account in the detailed design, and incorporated into the contract documents.

A deep sewage tunnel system has been constructed under the Harbour Area Treatment Scheme (formerly known as "Strategic Sewage Disposal Scheme") Stage 1 and Stage 2A. The alignment and profile of the sewage tunnel are shown on Map No. 1in Appendix 4.31 (subsumed with amendments from ETWB TCW No. 28/2003). The sewage tunnels and associated structures have to be protected against damage, which might be caused by construction works, and site investigation works in the vicinity of the sewage tunnels. If any part of the project falls within the 'Protection Area' defined Appendix 4.31, submissions to DSD and GEO of CEDD for comment/agreement are required in accordance with Appendix 4.31.

The detailed plans of drainage facilities should be circulated to the relevant DSD divisions for comments as early as possible and before finalization or calling for tenders. Detailed consultation is required for non-standard drainage items such that the operation and maintenance requirements can be incorporated into the design. Access for plant, equipment and personnel for the maintenance of the drainage installation must be adequately provided.

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4.5 WATERWORKS

WSD Civil Engineering Design Manual Volume II provide guidelines for the design of:

(a) Mainlaying,

(b) Service reservoirs,

(c) Pumping stations, and

(d) Treatment works.

In addition, current practices for mainlaying work can be found in the latest version of the Manual of Mainlaying Practice. For the design of thrust blocks, reference can be made to "Guidance Note on the Design of Thrust Blocks for Buried Pipelines" published by Design Division of WSD.

CE/Design, WSD may be consulted for advice on the design of such works.

Standard details of waterworks may be found in the WSD Standard Drawings.

When a metered water supply is required for a permanent structure/building to be constructed or when an existing WSD installation will be affected by the proposed construction work, the CE of the appropriate region should be consulted for advice and comments.

4.6 GEOTECHNICAL WORKS

4.6.1 Technical References

The following documents are for the guidance of engineers undertaking the design or construction of geotechnical works:

(a) Geotechnical Manual for Slopes,
(see also Appendix 4.25 on guidance on interpretation)

(b) Highway Slope Manual,

(c) Not used

(d) Geoguide 1 - Guide to Retaining Wall Design,

(e) Geoguide 2 - Guide to Site Investigation,

(f) Geoguide 3 - Guide to Rock & Soil Descriptions,

(g) Geoguide 4 - Guide to Cavern Engineering,

(h) Geoguide 5 - Guide to Slope Maintenance,

(i) Geoguide 6 - Guide to Reinforced Fill Structure and Slope Design,

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(j) Geoguide 7 - Guide to Soil Nail Design and Construction,

(k) Geospec 1 - Model Specification for Prestressed Ground Anchors,

(l) Geospec 3 - Model Specification for Soil Testing,

(m) GEO Publication No. 1/93 - Review of Granular and Geotextile Filters,

(n) GEO Publication No. 1/2006 - Foundation Design and Construction,

(o) GEO Publication No. 1/2007 - Engineering Geological Practice in Hong Kong,

(p) GEO Publication No. 1/2009 - Prescriptive Measures for Man-made Slopes and Retaining Walls,

(q) GEO Publication No. 1/2011 - Technical Guidelines on Landscape Treatment for Slopes,

(r) GEO Publication No. 1/2023 – Deep Excavation Design and Construction ,

(s) GEO Report No. 15 - Assessment of Stability of Slopes Subjected to Blasting Vibration,

(t) GEO Report No. 29 - Classification and Zoning of Marble Sites,

(u) GEO Report No. 75 - Landslides and Boulder Falls from Natural Terrain: Interim Risk Guidelines,

(v) GEO Report No. 104 - Review of Natural Landslide Debris – Resisting Barrier Design,

(w) GEO Report No. 136 - Guidelines on Safe Access for Slope Maintenance,

(x) GEO Report No. 138 - Guidelines for Natural Terrain Hazard Studies,

(y) GEO Report No. 182 - Use of Standardised Debris-resisting Barriers for Mitigation of Natural Terrain Landslide Hazards,

(z) GEO Report No. 227 - Guidelines for Soil Bioengineering Applications on Natural Terrain Landslide Scars,

(aa) GEO Report No. 249 - Ground Control for Slurry TBM Tunnelling,

(ab) GEO Report No. 298 - Ground Control for EPB TBM Tunnelling,

(ac) ETWB TCW No. 4/2004 - Checking of Foundation Works in the Scheduled Areas of Northwest New Territories and Ma On Shan and the Designated Area of Northshore Lantau,

(ad) ETWB TCW No. 15/2005 - Geotechnical Control for Tunnel Works, and

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(ae) Requirements for Handover of Vegetation to Highways Department (available through the website of Highways Department).

A more comprehensive and updated list of technical guidance documents which are used by the GEO as the de facto geotechnical standards in Hong Kong is given in the GEO Technical Guidance Note No. 1, which can be downloaded from the CEDD website. Some geotechnical design data are available in the Geotechnical Information Unit of CEDD for reference (DEVB TCW No.4/2016).

Standard details of geotechnical works may be found in the CEDD Standard Drawings.

4.6.2 Geotechnical Submissions to GEO

The project office shall submit to the relevant District CGE of the GEO, CEDD for auditing the details of all permanent geotechnical works relating to slopes and retaining walls, together with the findings of geotechnical investigations and studies on existing slopes and retaining walls which could affect or be affected by development or re-development under the project, or if their failure could affect lives and property within or outside the site under the project (ETWB TCW No. 29/2002). There are additional requirements on special geotechnical control for public developments including slope upgrading/improvement works located in the Mid-levels Scheduled Area (ETWB TCW No. 29/2002A). For the purpose of strengthening cost-effectiveness, GEO will convene a Design Vetting Panel (DVP) chaired by the Deputy Head of relevant district to examine works departments' submissions on major geotechnical works pursuant to ETWB TCW No. 29/2002 based on a holistic approach with due considerations on the cost-effectiveness of the project (DEVB TCW No. 3/2018). The list of constituents of a submission on geotechnical works is given in Appendix 4.8. Tenders shall not be invited for any part of the geotechnical works until the geotechnical design including any acceptance limits and investigation, survey and monitoring requirements to be included in the contract (including those based on a Blasting Assessment, if any blasting is specified or permitted) has been agreed by the GEO, except for Design & Build contracts or when the GEO gives its written consent based on conditions to be mutually agreed. For a Design & Build contract where an Independent Design Checker is appointed by the project office, the GEO may consider waiving the auditing requirement provided that the criteria set out in Appendix A of the ETWB TCW No. 29/2002 can be satisfied.

A submission covering the investigation and studies of existing slopes and retaining walls within or in the vicinity of the site is required to be submitted to GEO, even when no geotechnical works are envisaged, if such slopes or retaining walls could affect or be affected by the development or redevelopment under the project or if their failure could affect lives and property within or outside the site. Where the proposed development or redevelopment could be affected by natural terrain landslide or boulder/rock fall hazard, the project office shall submit to the GEO a natural terrain hazard study and the design of any necessary mitigation measures to be carried out under the project. Such submissions should be made to and accepted by the GEO before inviting tenders for any part of the geotechnical works for the project. Reference shall also be made to 'Guidelines for Natural Terrain Hazard Studies' (GEO Report No. 138) issued by the GEO for guidance on the requirements of a natural terrain hazard study.

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For geotechnical works relating to slopes and retaining walls involving designs to be carried out by the Contractor, and where the designs are required to be submitted to the GEO for auditing, the project office shall agree with the GEO the associated GEO submission requirements to be specified in the contract prior to tendering.

For the use of prescriptive measures for stabilisation and improvement of man-made slopes and retaining walls and standardised debris-resisting barriers for mitigation of natural terrain landslide hazards, guidance on the geotechnical submission requirements is given in Section 4.6.12 of this Chapter.

For permanent foundation works in the Scheduled Areas in the Northwest New Territories and Ma On Shan and in the Designated Area of Northshore Lantau, guidance on the geotechnical submission requirements is given in ETWB TCW No. 4/2004.

For projects involving tunnel works, the project office should submit to the GEO for audit the geotechnical design documentation for all tunnel works and any associated temporary works, where such works would pose a significant risk to public life or property. Details of the information to be included in the geotechnical design submission are given in Appendix A of ETWB TCW No. 15/2005. Except for Design & Build contracts and for temporary works, where the geotechnical design is to be undertaken by the Contractor, the project office must resolve any major concerns raised by GEO on the public safety aspects of the geotechnical design before tenders are invited. The project office is advised to identify clearly the scope of works that will be designed in-house or by its consultants, including temporary works, and to engage/employ professional geotechnical engineers with relevant qualification and experience to carry out the geotechnical design and risk assessment.

4.6.3 Foundation Works in the Designated Areas/Scheduled Areas

Marble containing cavities has been found to exist under areas in the Northwest New Territories, and Ma On Shan, Shatin, which have been termed "Scheduled Areas". In addition, complex geology giving rise to difficult ground conditions has been identified beneath the reclamation for Tung Chung New Town and along the North Lantau coast where the affected area is referred to as “the Designated Area of Northshore Lantau”. For public works within the Scheduled Area or Designated Area, all design details of permanent foundation works shall be submitted to GEO for checking in accordance with ETWB TCW No. 4/2004.

4.6.4 Projects Incorporating Ground Anchors

Approval is required for the installation of ground anchors, whether permanent or temporary, in Government Land, and the general principles and procedures are given in PWD TC No. 7/80 and ETWB TCW No. 16/2004. All applications to install ground anchors in Government Land should be directed to the relevant DLO of Lands Department. Temporary anchors are defined as those with a service life of less than 2 years.

Where permanent prestressed ground anchor systems are proposed in Government projects, prior approval of DCED is required under the Anchor Certification System for Permanent Prestressed Ground Anchors (ACSA). Details of the ACSA are given in ETWB TCW No. 16/2004.

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The use of permanent prestressed ground anchors in a project imposes a long-term monitoring commitment on the maintenance department, which usually involves appreciable recurrent cost. Also, should deficiencies be revealed, remedial works may be difficult and expensive. For these reasons, permanent ground anchors should be used in a Government project only when other methods of providing the required support are not practicable, and when the department responsible for subsequent maintenance has been consulted and its agreement obtained (DEVB TCW No. 6/2011).

4.6.5 Projects Incorporating Permanent Reinforced Fill Structures/Slopes (Subsumed from ETWB TCW No. 24/2003)

The project department shall make a submission on the proposed works to the GEO for checking in accordance with the requirements of ETWB TCW No. 29/2002 in two stages. In the first stage, external and internal stability shall be demonstrated and the reinforcing products could be specified generically. In the second stage, when the details of reinforcing product (polymeric product accepted by CEDD or metallic product) are known, another submission shall be made to demonstrate compliance with the design requirements. Approval of the submission for both stages shall be obtained from the GEO before works on the reinforced fill commence.

In the design, consideration should be given to ways of ensuring that the reinforcing products are not disrupted by future installation of drains or utilities. The department responsible for maintenance should be consulted at an early stage where the reinforced fill structure/ slope is proposed. On completion of the works, the project department should also highlight in the slope maintenance manual any specific requirements to protect the reinforcing products, and alert the maintenance department of such requirements accordingly.

Polymeric reinforcing products have temperature- and time-dependent long-term strength and stress-strain characteristics These products require extensive and long-term testing well in advance of the normal design phase of a project and are required to be assessed and accepted by CEDD before they are used in permanent reinforced fill structures / slopes in Government projects.

The assessment process for prior acceptance examines polymeric reinforcing products with respect to the effects of material variability, construction damage, environmental effects on material durability, and other special factors including hydrolysis, creep and stress rupture. Design data sheets of accepted polymeric reinforcing products are issued by CEDD, specifying individual products' long-term design strengths, requirements for compliance testing and the conditions for use in Hong Kong. A product register which contains design data sheets of accepted polymeric reinforcing products can be found on CEDD Website. Metallic reinforcing products, of which the long-term strength and stress-strain characteristics are well established, do not require prior acceptance for use in Government projects.

When polymeric reinforcing products are adopted in permanent reinforced fill design, the contract document should require the use of polymeric reinforcing products accepted by CEDD. The model specification for reinforcing elements as recommended in Appendix A of Geoguide 6 can be used as a reference for the preparation of particular specification. The design submission of reinforced fill structure / slope to GEO should include a copy of the design data sheets of the accepted polymeric reinforcing products together with justifications that the design complies with the conditions stipulated in the design data sheets.

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4.6.6 Projects Incorporating Horizontal Drains (Subsumed from WBTC No. 10/91)

Horizontal drains are installed in both rock and soil slopes in Hong Kong. The drains installed in rock slopes are typically short and are used mainly to drain individual rock joints or local areas of groundwater seepage. Longer drains tend to be installed in soil and mixed rock/soil slopes, usually with the aim of achieving an overall reduction in groundwater pressures within the slope. This paragraph is mainly concerned with the latter type of drains.

A horizontal drain system can be an effective slope stabilisation measure provided that due care is given to design requirements and construction methods. Even where such care has been exercised, it is important to ensure that the system will perform satisfactorily in the long term by carrying our appropriate monitoring and maintenance schemes. The cost of monitoring and a commitment to long-term maintenance should be considered at the preliminary design stage in comparison with other stabilisation measures before deciding whether to adopt a horizontal drain system. Before finalising the design, the designer should also obtain an agreement for monitoring of the horizontal drain system from the maintenance authority. Where the designer is a consultant, provision should be included in the consultancy agreement to ensure that this is done. The maintenance authority shall be the department responsible for maintenance of the stability of the land concerned (see Development Bureau Technical Circular (Works) No. 6/2011: Maintenance of Man-made Slopes and Emergency Works to Deal with Landslides).

The procedures described here are intended to cover horizontal drain systems that are designed to lower groundwater pressures so that the required factor of safety of a slope can be achieved (Geotechnical Manual for Slopes, Second Edition, Tables 5.1 & 5.4, which are replaced by Tables 1 and 2 in Appendix 4.25). These procedures need not be followed for other drain systems, but regular inspection and maintenance should still be carried out.

To ensure satisfactory performance of a horizontal drain system, the designer of the system should be closely involved with the monitoring and should prepare a suitable maintenance manual with monitoring criteria acceptable and understandable to the maintenance authority. The maintenance authority should appoint a suitably-experienced maintenance officer to be responsible for compiling and interpreting the maintenance inspection records. If the maintenance authority has any reason to believe that the system is not performing effectively, this should be brought to the attention of the project office without delay. This approach is consistent with the more general guidance on slope maintenance given in Chapter 2 and 3 of the Geoguide 5 : Guide to Slope Maintenance.

Special requirements concerning the monitoring and maintenance of horizontal drains are given in Appendix 4.24.

4.6.7 Restrictions on the Use of Hand-dug Caissons (Subsumed from WBTC No. 9/94)

Hand-dug caissons have been used extensively in both foundation and other geotechnical works for many years. There are technical and financial benefits associated

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with this method of construction compared with other methods. However, the disturbingly high accident rate in hand-dug caisson operations and health hazards such as noise, dust, poisonous gas, collapse of caisson linings posed to workers, as reflected in findings by the Labour Department, have given cause for considerable concern.

The practicability of a total ban on hand-dug caissons is being considered by the Government. Works Branch will be in close liaison with the Labour Department and the construction industry concerning this issue. The mitigating measures for safety and health hazards, particularly in respect of improvement in air quality within a hand-dug caisson, are also being reviewed. Whilst a total ban on hand-dug caissons is deemed impracticable at this stage, works departments are urged to give the matter extremely careful consideration before hand-dug caisson construction is permitted (see Appendix 4.13).

Works departments are permitted to include the use of hand-dug caissons in future contracts only where :

(a) the use of hand-dug caissons is the only practicable solution or there is no safe engineered alternative, and

(b) all necessary precautionary measures are taken to safeguard workers against accidents and health hazards.

Before opting for hand-dug caissons, an assessment should be carried out covering general safety, the cost of damage arising from dewatering and the possibility of unforeseen ground conditions. The design of caisson linings must also be examined for suitability as for any other structural temporary works.

In cases where hand-dug caissons are used, the minimum clear working space inside each caisson (i.e. excluding the lining) shall be 1.8 metres in diameter.

Any use of hand-dug caissons must receive the prior approval of the Head of Department, who may consult the Labour Department to satisfy himself that all necessary precautionary measures are taken to safeguard workers against accidents and health hazards before giving consent.

One of the most important elements in the prevention of accidents in hand-dug caisson works is the engagement of suitably qualified and experienced professionals in the assessment and investigation of the site to identify potentially unfavourable conditions that may give rise to engineering problems, and to implement the necessary precautionary and preventive measures. Likewise, the employment of suitably trained and experienced construction workers, supervised by a sufficient number of competent supervisors to ensure strict adherence to stringent safety and health requirements, is also a pre-requisite.

Works departments shall keep Works Branch (attention PAS/CCC) informed in January and June of each year of the total number of hand-dug caissons sanctioned for construction, appropriately categorised into 'difficult' or 'straightforward' sites.

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4.6.8 Projects Involving Man-made Slopes and Retaining Walls

The project office should ensure that a Maintenance Manual for each slope/retaining wall formed/modified is prepared by the project engineer in accordance with Geoguide 5.

The project office needs to regularly maintain slopes/retaining walls formed/modified until these slopes/retaining walls are handed over to another maintenance party.

The project office should provide GEO with updated information on the slopes and retaining walls studied, formed, modified or removed, including plans showing the boundaries of the slope features by survey. DEVB TCW No. 2/2018 sets out the procedures for the registration and updating of the Catalogue of Slopes to be followed by the project office.

It is the government's policy to landscape every newly formed government slope. Technical guidelines on landscape treatment for new man-made slopes are given in the Integrated Landscape Design Framework – Slopes, Cyber Manual for Greening (http://devb.host.ccgo.hksarg/en/landscape_design/index.html) and GEO Publication No. 1/2011. Other guidance documents as may become available from time to time as a result of continuous research and experience gained, which are used by the GEO as de facto geotechnical standards and given in GEO Technical Guidance Note No. 1, should also be adopted.

Guidance on the use of shotcrete surfacing in maintenance works given in Appendix 4.26 should be followed.

4.6.9 GEO Checking Certificate for Geotechnical Features

(Ref.: ETWB TCW No. 20/2004)

The following paragraphs promulgate the issue of GEO Checking Certificate for Geotechnical Features (hereafter referred to as GEO Checking Certificate) where the designs or stability assessments have been checked by GEO and found to be satisfactory. The Director of Agriculture, Fisheries & Conservation, Director of Buildings, Director of Housing, Director of Home Affairs and Director of Lands have also agreed to the contents of the following paragraphs relating to GEO Checking Certificate. The project office should read them in conjunction with Section 4.6.12 of this Chapter and ETWB TCW No. 29/2002.

The policy and procedure for obtaining a GEO Checking Certificate are described in the following paragraphs, which apply to all public works projects involving public geotechnical works, including those public geotechnical works entrusted to a non-government body. The project office, which arranges the entrusted geotechnical works should, before finalizing the entrustment agreement, consult the GEO for the conditions that must be included in the agreement and complied with before a GEO Checking Certificate can be issued.

For projects with the construction contract commencing after 30 September 2001, the project office shall obtain a GEO Checking Certificate for all permanent slopes, retaining walls and natural terrain hazard mitigation measures that have been constructed, modified or upgraded, or that have been subjected to a stability assessment in a project and found to meet the current geotechnical standards. When applying for a GEO Checking Certificate, the project office should submit a Certificate of Design and Completion of Geotechnical Features (DC Certificate) or a Certificate of Stability Assessment of Geotechnical Features (SA Certificate)

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together with the necessary supporting documents to GEO.

(Ref.: ETWB TCW No. 20/2004)

A quality system shall be instituted to ensure that all stability assessments, designs and amendments of design with geotechnical significance are properly checked internally by the Designer (i.e. the project office or consultant firm responsible for the stability assessment or design) and are submitted to GEO for checking and that all conditions imposed by GEO are complied with. Proper records shall be kept throughout the design and construction stages.

For submitting the DC Certificate or the SA Certificate, the project office should in general adopt the standard forms (Forms GCDIST 105b to 105d), which are available for downloading from the HKSS Website (https://hkss.cedd.gov.hk/hkss/en/facts-and-figures/slope-information-system/index.html) for the design and stability assessment carried out by the project office or its consultants (Form GCDIST 105b), those carried out by the Contractor in a D&B Contract (Form GCDIST 105c), and the design or alternative design by the Contractor in a non-D&B Contract (Form GCDIST 105d) respectively. For other cases such as those involving mixed government/private responsibility and those involving partially stability assessed/upgraded, the project office shall agree with the GEO the arrangement and the form of DC Certificate or SA Certificate to be used prior to tendering.

The Engineer/Architect of the Contract shall work in co-ordination with the project office to obtain a GEO Checking Certificate as early as practicable and shall not withhold the issue of the Certificate of Completion for the Works on the ground that the GEO Checking Certificate is not available.

A copy of the Maintenance Manual should be sent to GEO for comment, together with the GEO Checking Certificate application. A set of as-built survey plans and/or record drawings for the permanent slopes, retaining walls and natural terrain hazard mitigation measures formed/modified under the project should be sent to the relevant District Division of GEO for record.

(Ref.: ETWB TCW No. 20/2004)

The GEO will attach the DC Certificate/SA Certificate to a completed GEO Checking Certificate (Form GCDIST 105a), for return to the project office or a written response will be given stating the reasons why the GEO Checking Certificate cannot be issued. The GEO will normally issue the GEO Checking Certificate or give the written response within 18 working days of receipt of application. If the GEO declines the issue of the GEO Checking Certificate, the project office shall take immediate steps to resolve the matters raised by the GEO and resubmit a fresh application with an appropriately amended DC or SA Certificate as soon as possible.

Checking of the design of prescriptive measures and standardized debris-resisting barriers by the GEO for slope upgrading and natural terrain hazard mitigation works can be waived under certain conditions, as given in Section 4.6.12 of this Chapter. Notwithstanding this, GEO will issue a GEO Checking Certificate for the geotechnical features involved. The project office shall submit the application in accordance with the procedures given in the preceding paragraphs after completion of the slope upgrading and natural terrain hazard mitigation works in order to obtain the GEO Checking Certificate.

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For those geotechnical features constructed, upgraded or studied under projects where the construction contract commenced before 30 September 2001, the project or maintenance office is strongly encouraged to follow the above normal procedures where practicable, in order to obtain the GEO Checking Certificate. However, the arrangement described in the ultimate and penultimate paragraphs can also be adopted if the geotechnical features fall into one or more of the following special categories:

(a) The previous design or stability assessment was checked by GEO with comments/issues yet to be followed up (e.g. submission of compaction test records, submission of groundwater monitoring records and assessment report to verify design assumptions).

(b) The previous design or stability assessment was not submitted to GEO for checking.

(c) The Designer and/or the Engineer for the Contract are no longer available to certify the previous design (or stability assessment) and/or the quality of construction respectively (e.g. the works have already been completed by the project office and handed over to the maintenance office).

For the aforementioned cases, the project or maintenance office should arrange to carry out a stability assessment by reviewing the previous design or stability assessment if available, taking into account any records available that had not previously been submitted to the GEO. The review should be based on as-built drawings and present-day site conditions, especially where the geotechnical feature or its surroundings have undergone significant modifications or changes subsequent to the previous design or stability assessment. The aim of the review is to assess whether the previous design is up to current safety standards and whether the performance of the geotechnical feature is satisfactory. Where key construction records (e.g. as-built drawings) cannot be located, an appropriate qualifying statement should be included in the application for the GEO Checking Certificate to indicate that these construction records are not available and the review is based on the information as contained in the design reports and drawings as well as site inspections.

If GEO is satisfied with the results of the review referred to the paragraph above, the project or maintenance office shall apply for a GEO Checking Certificate by completing a SA Certificate (Form GCDIST 105b), which is available for downloading from the HKSS Website (https://hkss.cedd.gov.hk/hkss/en/facts-and-figures/slope-information-system/index.html), in which case the same procedures as given in the preceding paragraphs shall be followed.

4.6.10 Projects Involving Natural Slopes

The strongly preferred technical approach is not to carry out stabilisation works to large areas of natural terrain, which would be both impractical and environmentally damaging, but to mitigate risks through adjustments to the layout of new developments and provision of buffer zones and defence measures.

For new public housing development sites formed by Works Departments, the natural terrain hazard study and any necessary mitigation works should be carried out as part of the site formation works. In cases where the layout of the housing development is not certain, and

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hence the required mitigation measures cannot be determined at site formation stage, the project office should consult the Housing Department. This should be done at an early stage of planning for the site formation project to arrange the necessary mitigation measures as part of the housing development.

Natural hillsides do not require maintenance. However, the project office should ensure that maintenance requirements are included in a maintenance manual prepared by the project engineer for any natural terrain landslide hazard mitigation measure formed. A maintenance agent should be identified at an early stage. The project office shall maintain any mitigation measure formed until these features are handed over to the maintenance agent. Further guidance on maintenance requirements can be found in Geoguide 5 – Guide to Slope Maintenance. With regard to the preservation and removal of existing trees and/or old and valuable trees, Development Bureau Technical Circular (Works) Nos. 4/2020 and 5/2020 respectively, should be referred.

In general, the following criteria should be considered, in order of priority, in the determination of maintenance responsibility:

(a) The prime objective of constructing the mitigation measures,

(b) The primary beneficiary, and

(c) The need for maintenance of adjoining features as an integral part of the maintenance programme.

Each case would have to be considered on its own merits. The Subcommittee on Unallocated Government Land set up under the Standing Committee on Slope Safety should be informed of the results of the slope maintenance responsibility determined by the Systematic Identification of Maintenance Responsibility of Slopes (SIMAR) Unit of Lands Department with reference to the mitigation measures and should be requested to give a ruling on dispute cases.

Technical guidelines on landscape treatment for natural terrain mitigation works are given in GEO Publication No. 1/2011. Other guidance documents as may become available from time to time as a result of continuous research and experience gained, which are used by the GEO as de facto geotechnical standards and given in GEO Technical Guidance Note No. 1, should also be adopted.

The project office shall obtain registration numbers from the Slope Safety Division of GEO and arrange registration of the mitigation measure. Registration criteria for natural terrain landslide hazard mitigation measures are given in DEVB TCW No. 2/2018.

On completion of the project, a set of as-built survey plans for the mitigation measures should be sent to the relevant District Division of GEO for record.

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4.6.11 Water-carrying Services Affecting Slopes

For monitoring and maintenance of water carrying services affecting slopes, the Code of Practice on Monitoring and Maintenance of Water-Carrying Services Affecting Slopes issued by the ETWB should be followed.

4.6.12 Prescriptive Measures for Stabilization and Improvement of Man-made Slopes and Standardized Debris-resisting Barriers for Mitigation of Natural Terrain Landslide Hazards
(Subsumed from ETWB TCW No. 13/2005)

Prescriptive measures are pre-determined, experience-based and suitably conservative modules of works prescribed to a man-made feature to improve its stability or reduce the risk of failure, without the need for detailed ground investigation and design analyses. Standardized debris-resisting barriers are pre-determined and suitably conservative modules of barriers formulated by applying and extending the methodology developed by the GEO for mitigation of natural terrain landslide hazards.

Using prescriptive measures and standardized debris-resisting barriers in slope works would save time and human resources, and may be more economical in some circumstances. All project and maintenance departments should employ prescriptive measures for the following types of slope works as far as possible:

(a) Preventive maintenance of slopes,

(b) Repair works to landslides; and

(c) Upgrading of substandard slopes.

The terms 'preventive maintenance' and 'upgrading' are as defined in Geoguide 5 – Guide to Slope Maintenance.

In arranging the Engineer Inspections by consultants, the consultants should be required to recommend, where necessary and applicable, prescriptive measures as a means for upgrading or preventive maintenance of the slopes. This is to bring about maximum improvement to the large number of existing old slopes in a relatively short time under the constraint of available resources.

All project and maintenance departments may apply standardized debris-resisting barriers to the following circumstances where considered appropriate:

(a) As urgent protective works following natural terrain landslides, and

(b) As design provisions or contingency measures in new or existing developments.

The personnel for design and construction review of prescriptive measures and standardized debris-resisting barriers is specified in Appendix 4.23.

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Design of upgrading works for the whole or part of a man-made slope feature using prescriptive measures should be submitted to the GEO for checking. The design of permanent natural terrain landslide mitigation works involving standardized debris-resisting barriers should also be subject to GEO checking. GEO checking on the design of the prescriptive measures and standardized debris-resisting barriers will be waived if :

(a) an adequate quality system is in place to ensure that the personnel requirements stipulated in the above paragraphs and the technical guidance given by the GEO are followed, and

(b) satisfactory documentary evidence (including proof of quality system and professional details of personnel for design and construction) is submitted to the GEO prior to commencement of the works to indicate that condition (a) will be satisfied.

Submission to the GEO is not required for prescriptive measures used in urgent repair and preventive maintenance, and for standardized debris-resisting barriers used in urgent protective works. Notwithstanding this, the project and maintenance departments are encouraged to consult the GEO on the scope of urgent repair/urgent protective works required to remove any immediate threat to life or property following the occurrence of landslides.

Submission to the GEO for checking or agreement is, however, still required for the following:

(a) for rock cut slopes, the assessment of the potential for global instability and the rock mass failure mechanisms not treated by prescriptive measures (the waiving of GEO checking, if given, covers only the modes of failure of rock cut slopes to be treated by prescriptive measures following GEO's technical guidance),

(b) for standardized debris-resisting barriers, the assessment of the design volume and the detailing of the barriers to suit the site conditions (the waiving of GEO checking, if given, covers only the assessment of the dimensions and locations of the barriers), and

(c) geotechnical supervision personnel to supervise the works (the requirements for geotechnical supervision are to be imposed by the GEO with due regard to the type and complexity of the works).

Application for waiving of GEO checking, if intended, should be submitted to the relevant GEO District Divisions prior to the commencement of the works.

In all cases of application of prescriptive measures, record sheets should be completed on certification of satisfactory completion of the prescriptive works by the responsible professional engineer. Sample record sheets are given in GEO Publication No. 1/2009. There is no need to submit the record sheets, the Engineer Inspection Report and the associated desk study and site inspection records to the GEO, although copies should be made available upon request to assist the GEO in review of the technical guidance promulgated.

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The Maintenance Manual for an existing man-made slope should be updated within six months of completion of the prescriptive works. Also, for natural terrain landslide hazard mitigation measures that require maintenance, a Maintenance Manual should be prepared within six months of completion of a standardized debris-resisting barrier. There is no need to submit the new/updated Maintenance Manuals to the GEO, although copies should be made available upon request.

Departments should set up their own system to maintain traceable records on prescriptive measures and standardized debris-resisting barriers certified by the responsible professional engineers.

Further details and technical guidance on application of prescriptive measures and standardized debris-resisting barriers are given in Geoguide 7 – Guide to Soil Nail Design and Construction, GEO Publication No. 1/2009, GEO Report Nos. 138 and 182 as well as any other relevant guidance documents promulgated by the GEO from time to time. For slope enhancement works and improvement works, reference should be made to GEO Publication No. 1/2011. This paragraph of PAH should be read in conjunction with ETWB TCW Nos. 29/2002 and 20/2004, and DEVB TCW No. 6/2011.

4.6.13 Projects Involving Blasting

Where designs involve substantial rock excavation, the designer should consider whether blasting would be required for the project. Rock excavation by blasting can adversely affect the stability and integrity of slopes, retaining walls, roads, railways, structures, buildings, services and utilities through ground vibrations and other effects such as fly rock and air-overpressure. The transport, storage and use of explosives for blasting may also pose a safety hazard to the public and disruption of traffic.

If blasting is specified or permitted in the construction works, a Blasting Assessment should be undertaken at the design stage to assess such adverse effects and potential hazards, and to propose adequate and necessary protective, preventive, precautionary and other mitigation measures to demonstrate the practicality of carrying out blasting works and to prevent the works from causing injury to workers and the public, significant disruption to traffic, undue vibration and movement to existing structures and services, or undue nuisance to the public.

The Blasting Assessment should be prepared by a competent person with at least four years relevant experience in blast design and supervision of blasting works, and should be submitted with the curricula vitae of its author to the GEO for agreement prior to tendering of the contract. For complex projects, such as those involving blasting in densely populated or sensitive area, a competent person with more experience would be required. The necessary content of a Blasting Assessment is given at Appendix 4.7. The project office should also consult CGE/Mines of the GEO as early as possible regarding the issues related to the transport, storage and use of explosives. These issues should be properly addressed prior to tendering for the contract and suitable contract requirements should be included.

The project office should ensure that all critical requirements and constraints identified in the Blasting Assessment are properly addressed and a realistic programme for the blasting works is included in the tender documents. The project office should also submit the curricula vitae of the key personnel of the resident site supervision team to the GEO for acceptance, prior to the commencement of the works.

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In order to obtain a permission to carry out blasting under the Cap 295 Dangerous Goods Ordinance, the Contractors should demonstrate that all necessary measures have been in place to prevent the blasting works from causing damage or adverse effects to adjacent facilities and structures, significant disruption to traffic or undue nuisance to the public, or any risk of injury to the public and the people working on site. For opencast blasting, such measures should be in place for each blast before the explosives would be provided for loading into blast holes. The project office shall allow sufficient time in the contract for the application of the blasting permits and licences. Detailed information on the use of explosives and the procedures for applying the blasting permits and licences are given in Section 21 of Chapter 7.

4.7 LANDSCAPE AND GREENING WORKS

It is the government's policy to enhance the quality of our living environment through active planting, and proper maintenance and preservation of trees and other vegetation. To promote greening, greening provisions, including site coverage of greenery, roadside and median utility free planting zone (DEVB TCW No. 3/2024), soft landscape provisions for highway structures (DEVB TCW No. 1/2018), greening of slopes and retaining walls, skyrise greenery, and trees for preservation or removal (DEVB TCW No. 4/2020, "Guidelines on Tree Transplanting", "Management Guidelines for Stonewall Trees", "Management Guidelines for Mature Trees" and "Guidelines on Tree Preservation during Development" promulgated by DEVB), should be ascertained in the planning and design of public works projects. In addition, the requirements on site coverage of greenery for new Government building projects are given in DEVB TCW No. 3/2012.

It is important that a consistent planting standard is applied in public works projects. A Cyber Manual for Greening consolidating all documents on the subject of greening is available at DEVB webpage. DEVB TCW No. 3/2024 also provides some standard requirements specifically on the allocation of space for quality greening on public roads. Specialist landscape design input should be incorporated in the initial planning and design stage, through documentation and implementation to achieve the quality landscape as planned. This may include input to the alignment/layout in relation to landform, existing vegetation and potential visual impact, measures to minimise detriment to the existing landscape including measures to retain as many trees as possible, etc., advice on the configuration and finishes of hard landscape elements (paving, walks, subways, etc.), and soft landscape input. More guidelines for design on greening are covered in the Chapter 4 of the Hong Kong Planning Standards and Guidelines and Integrated Landscape Design Framework developed by the Greening and Landscape Office of DEVB. For greening of noise barriers, reference should be made to "Guidelines on Greening of Noise Barriers" promulgated by DEVB.

Advice on aspects of landscape design should be sought from in-house landscape architects. The provision of landscape works should also take note of the mitigation measures recommended for the environmental, landscape and visual impact in EIA Reports.

The management and maintenance responsibilities for public landscape works constructed throughout the Territory are given in DEVB TCW Nos. 6/2015 and 4/2020, and specialist design work should be sent to the authorities concerned for notification and agreement. A project office that finds a need for tree felling should follow the procedures laid down in DEVB TCW No. 4/2020. With regard to registration of old and valuable trees, and guidelines for their preservation, DEVB TCW No. 5/2020 should be referred.

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The project office should make reference to existing greenery in the neighbourhood as well as adjacent developments and projects in order to achieve a coherent and integrated landscape design with the aim to bringing out and amplifying the character of the locality, and to avoid a cluttered streetscape with uncoordinated greenery. A more thematic approach with dominant species with special character for avenue planting should be adopted for the greening and landscape design. Reference should also be made to the planting theme and the plant palette designated for each Greening Master Plan in drawing up landscape designs for greening works. The project office may make reference to the Integrated Landscape Design Framework developed by the Greening and Landscape Office of DEVB, which provides practical guidelines on the landscape treatment for key types of public works such as open space, waterfront, roads and ancillary structures, slopes, etc.

Due to the significant biomass and environmental/ecological benefits, subject to space availability and the greening objective, trees should be given priority. Annuals are generally less cost-effective, requiring frequent replacement and maintenance. Therefore, they should only be used after a critical examination of relevant factors, in particular the maintenance implications in terms of cost-effectiveness, sustainability and the life cycle of plants. Attention should be paid to reduce yard waste, and also reuse and recycle (Guidelines on Yard Waste Reduction and Treatment, DEVB).

In selecting tree species, the "right tree for the right place" principle should be adopted for matching the opportunities as well as constraints of the planting site with the characteristics of different plant species, and balancing the design intention and maintenance concern. For instance, in the selection of trees, those with buttress roots or roots that will cause upheaving of paving should be avoided in tree pits or areas with limited space, and those with brittle branches/trunks are unsuitable for roadside planting.

A holistic and sustainable approach to landscape design that takes account not only of the aesthetic dimension, but also the life cycle maintenance issue should be promoted. The project office should make reference to the technical standards and guidelines on Proper Planting Practices formulated by DEVB, including those on appropriate planting density and depth, provision of sufficient space for future growth of canopy, selection of good nursery stock, staking and guying, greening on noise barriers, etc. These guidelines and best practices on greening and landscape have been uploaded to the internal 'Cyber Manual on Greening' as well as the dedicated greening website (http://www.greening.gov.hk). The project office should make reference to these guidelines in carrying out landscape planting designs. The project office should also refer to the Guiding Principles on Use of Native Plant Species in Public Works Projects which is also available for downloading in the dedicated greening website (http://www.greening.gov.hk).

The project office should prepare a landscape management and maintenance plan for their greening projects so that the design intent would be clearly articulated and upheld through appropriate maintenance upon project completion. Close coordination of the design and maintenance teams during the project planning and design stage is necessary and timely agreement on the maintenance arrangement should be confirmed in the design stage and before construction. A robust maintenance schedule and close monitoring of plant performance will considerably improve the situation.

The project office should engage qualified/properly trained personnel at the frontline/supervising/management levels for carrying out the planning, design, implementation and maintenance of greening works. Proper site supervision is required to ensure the quality

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of greening projects. The project office should also engage qualified/properly trained personnel at the frontline/supervising/management levels for carrying out the construction works, including tree preservation in construction, tree transplanting, tree risk assessment and remedial mitigation measures on tree management. Reference should be made to "Guidelines on Pavement Renovation Works and Tree Stability", "Management Guidelines for Stonewall Trees", "Guidelines on Tree Transplanting", and "Guidelines for Tree Risk Assessment and Management Arrangement on an Area Basis and on a Tree Basis" promulgated by DEVB, etc.

4.8 BUILDINGS

The D of Arch S should be consulted as early as possible and arrangements made for either:

(a) ArchSD to design and construct buildings complete with all installations, except for plant to be maintained by EMSD or others, or

(b) The division responsible for the project to design and construct buildings with ArchSD advising on the layout, aesthetics and finishes.

In all cases, the D of Arch S's assistance should be sought at an early stage in preparing sketch schemes, estimates and the Schedule of Accommodation (Chapter 1, Section 4.2.6). For aesthetic design of buildings, Section 4.12 should be referred.

The Fire Services Department should be consulted at an early stage on the adequacy of fire escape routes, and for dangerous goods licences for the storage of dangerous goods and chemicals. A schedule of equipment and the proposed layout of fire extinguishers should be submitted for comments and approval.

Requirements relating to green government buildings are given in DEVB TCW No. 2/2015.

4.9 ELECTRICAL AND MECHANICAL WORKS

For in-house projects (other than DSD or WSD projects), DEMS should be requested at an early stage to assist in the design, the preparation of cost estimates and the specification for the electrical and mechanical installations.

For projects employing consultants, the design work, etc., should normally be carried out by the consultants.

4.10 COMPUTER SYSTEMS

Computer systems may form part of the permanent works, such as control systems in road tunnels and sewage treatment plants. For the design of such computer systems, SE/Computer Services of the project department should be consulted in the first instance, who will give advice on the preparation of designs submissions to DPO or EMSD or any other appropriate authority for approval.

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4.11 GREENHOUSE EFFECT

The policy on the approach to be adopted in designs to allow for changes in sea-level due to the Greenhouse Effect is stated in WBTC No. 6/90.

4.12 AESTHETICS/STREETSCAPE

Government projects should be planned to produce a visually pleasing appearance, taking account of all other features, which are considered necessary in the planning of a project. Aesthetics should be considered as an intrinsic part of a project, taking account of the aesthetics requirement, site planning, design, costing, documentation, implementation and subsequent maintenance. Reference should be made to DEVB's Integrated Landscape Design Framework on the aesthetic aspect of the design. Large retaining structures or impermeable slope surfaces (such as shotcreted surfaces), in particular at prominent locations with no effective planting, should be avoided as far as practicable and practicable means of reducing the scale and impact should be considered in planning stage since means of camouflaging massive unsightly retaining structures/surfaces at a late construction are usually not practicable nor effective. Where large retaining structures or impermeable slope surfaces are inevitable at the planning stage, suitable and effective landscape design such as stepped planting at appropriate levels should be considered and more land should be allowed (i.e. increase the slope boundary or land claimed for the new slope work or slope improvement work as far as applicable) to accommodate at-grade screening vegetation. Both engineering and aesthetics/landscape issues should be addressed in a holistic manner and the cost implication should also be considered in an integrated manner. A proposal to significantly increase the cost of a project simply in order to improve its appearance should be specifically drawn to the attention of the Chief Engineer/Regional Office Head when he is asked to approve the scheme.

In preparing the general layout plan of a project, an assessment of the visual impact of new developments on their surroundings should be made together with input from landscape architects for achieving a balanced and sustainable greening effect.

The architectural designs of building structures, including those prepared by consultants, or contractors in case of Design and Build contract, from all Works Departments other than those of ArchSD and those associated with bridges and highway structures that fall within the ambit of the ACABAS should be forwarded to ArchSD for advice as a mandatory requirement. The requirement shall be applicable to all projects irrespective of project value. Works Departments should earnestly consider the incorporation of ArchSD's advice in their designs. For any deviation from ArchSD's advice, the project officer concerned should justify and seek the endorsement of a D2 or above officer about the deviation.

All submissions to ArchSD shall be vetted by a D1 or above officer responsible for the project to ensure that the submission is of adequate quality prior to issue under his name to the Secretary of the Design Advisory Panel, ArchSD for advice. Reference should be made to ETWB TCW No. 8/2005.

For highway structures, ACABAS advises on the aesthetic acceptability of the design of bridges and associated structures. Submissions to ACABAS should generally be made at the preliminary design stage. The scope, terms of reference, submission and vetting procedures of ACABAS are set out in detail in ETWB TCW No. 36/2004.

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The Government is firmly committed to improve the living environment through quality greening and landscape work. Landscape work should not only be confined to permanent planters with irrigation systems on footbridges and flyovers. To accomplish a coherent and integrated landscape design with greening initiatives, greening on footbridges and flyovers should be able to blend in with the existing greenery in the neighbourhood and adjacent developments. Every practicable opportunity should also be explored for greening of bridge decks, columns, abutments, roofs and noise barriers on various components of structures of footbridges and flyovers. In general, ACABAS will not consider any proposal on footbridges and flyovers without greening and associated irrigation system unless prior exemption by the WMCG has been obtained. The policy guidance is contained in DEVB TCW No. 1/2018 and should be referred when preparing submission to ACABAS.

The technical guidelines on landscape treatment for slopes contained in GEO Publication No. 1/2011 and other relevant guidance documents used by the GEO as de facto geotechnical standards, where appropriate, should be adopted for all types of slope works including new slope formation, major slope upgrading, minor slope improvement/repair/maintenance works and engineering works on natural hillsides. With regard to aesthetic aspect of slope work, guidelines can be found in the Cyber Manual for Greening at DEVB webpage (http://devb.host.ccgo.hksarg/en/contactus/index.html). Each department with responsibility for upgrading and maintaining slopes should set up a Slope Appearance Vetting Committee to control the use of shotcrete or other hard surfacing in slope works (but excluding emergency repairs after landslips, minor local slope repairs and temporary slopes formed during construction activities). The suggested chairman and terms of reference of the Vetting Committee are appended in Appendix 4.27. When the use of shotcrete cover is unavoidable, measures such as toe wall planters, planter boxes, tree pits, creeper holes on slope surface, and application of colour/pigments should be introduced to improve the visual appearance of the slope.

The aesthetics/streetscape design should be considered in the planning, design and implementation stages, taking account of different styles and harmony of the street furniture (such as signage, lighting, railings, paving, utility covers, pillar boxes, water meters, etc.). Relevant streetscape components should be laid out to avoid conflict and cluttering of features and, where practicable, to combine or reduce signage and screen obstructive features such as water points and pillar boxes by planting in order to achieve a pleasant quality landscape. Advice from landscape architects should be sought.

Various standard hoarding designs are being used by Works Departments to meet the functional needs of fencing off and securing sites. To enhance the aesthetic appearance of site hoarding, and to improve the image of construction sites and public's perception, an alternative hoarding design is to be considered for all capital works contracts including design and build contracts and term contracts if the situation is appropriate. Guidelines for and examples of alternative hoarding design are given in DEVB's memo ref. (0289W-01-3) in DEVB(W) 516/95/02 dated 16.8.2010.

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4.13 ENVIRONMENTAL PROTECTION

All plans for engineering projects and other development must pay full regard to environmental factors including noise or other nuisance, pollution of ground, water or air, effects on fauna and flora, and landscape and visual effects (all both during and after construction), with a view to ensuring maximum mitigation of unavoidable harm, and securing significant improvements in the environment where possible and affordable.

These considerations, which should have already been made at the initial planning stage of the projects, should be reassessed at the detailed design stage as the various elements of the projects are quantified in sufficient detail.

If an EIA has been carried out at the project planning stage (refer to Chapter 1-Paragraph 4.1.3, WBTC No. 4/97 and ETWB TCW Nos. 13/2003 & 13/2003A for further details), the mitigation measures identified, both on-site and off-site, should be taken into account in the detailed design.

The following special requirements should also be noted:

(a) Hardwood for site hoardings, falsework and the shoring of trenches and pits shall be specified as not to be used on all contracts. Contractors must propose alternatives to hardwoods in their tenders or be directed to use specified acceptable alternatives. The various uses of hardwood on construction sites together with some suggestions for alternatives are listed in Appendix 4.14. (Subsumed from WBTC No. 32/92)

(b) For facilitating implementation of Environmental Management Plan, the space requirement for the environmental provisions, e.g. on-site sorting and temporary storage of C&D materials, automatic wheel washing machine, wastewater treatment facilities etc should be taken into consideration. Reference should be made to ETWB TCW No. 19/2005.

(c) For site hoardings and signboards, all components should be specified in metal (using bolt and nut jointing method wherever possible) to reduce generation of C&D waste from construction sites. Reference should be made to WBTC No. 19/2001,

(d) During the planning and design of a project, the project officer may wish to use recycled aggregates in lieu of virgin aggregates as environmental protection measures. If there are opportunities to generate recycled aggregates from construction and demolition materials found on that project, the project officer should consider these opportunities. However if there are no such opportunities and if there is no local supply of suitable recycled aggregates, the project officer needs to consider the use of virgin aggregates.

(e) For tree preservation, transplanting and felling, reference should be made to DEVB TCW Nos. 6/2015 and 4/2020, DEVB's "Guideline on Pavement Renovation Works and Tree Stability", "Management Guidelines for Stonewall Trees" and "Guidelines on Tree Transplanting".

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(f) For public works projects requiring tree surveys to be carried out, potentially registrable trees in the surveys should be identified and relevant details should be submitted to LCSD or AFCD accordingly. Reference should be made to DEVB TCW Nos. 4/2020 and 5/2020.

(g) To facilitate the sharing of information, improve understanding, enhance cooperation, and promote uniform standards across all government departments on greening, a web based manual called the "Cyber Manual for Greening" (http://devb.host.ccgo.hksarg/en/contactus/index.html) has been established. It is posted on the government intranet, the "Central Cyber Government Office" (CCGO) portal under the heading "Government Policy – Green Management" which is accessible by ALL government departments, and

(h) Adoption of energy efficient features and renewable energy technologies in government projects and installations should be ascertained. Reference should be made to DEVB TCW No. 2/2015.

Reference should be made to the Structures Design Manual for Highways and Railways for noise mitigation measures on highway structures, and ETWB TCW No. 13/2003A for planning for provision of noise barriers.

For protection of natural streams/rivers from adverse impacts arising from construction works, the project officer should adopt environmentally friendly design to maintain the naturalness, landscape as well as ecological value of natural streams/rivers during the detailed design stage. Reference should be made to ETWB TCW No. 5/2005.

A project office should, in consultation with DEP if necessary, determine whether a project is a designated project under the EIA O. The procedures for completion and approval of EIA study and report for designated projects should be in accordance with the EIAO.

Before designers decide to specify use of natural boulders/cobbles/pebbles in the design of future public works, they should consider if the extraction or production of these materials at the supply end would pose unacceptable impact to the environment. It is particularly important for those mega projects that may usually involve large quantities of boulders/cobbles/pebbles. Care should also be taken when the natural boulders/cobbles/pebbles specified are not commonly available in the local market as environmental mitigation measures for the supply of these materials may not have been well developed.

Designers should assess if artificial or non-natural boulders/cobbles/pebbles could be an acceptable alternative to natural boulders/cobbles/pebbles when large quantity is involved. Whilst taking into account other project constraints such as programme and cost, they should always strike a very careful balance in the choice of construction materials in order to avoid improving our environment at the expense of other environment sectors.

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4.14 WORKS BY OTHER GOVERNMENT DEPARTMENTS/ORGANISATIONS

There may be some circumstances where it would be beneficial from the project management and co-ordination points of view to have some works of a government department entrusted to other government departments. A typical example is waterworks incorporated into other capital works contracts. The procedure for such entrustment is given in WBTC No. 29/93.

Works carried out by other Government departments or offices to facilitate, or for the service of, the project, including reprovisioning works and mitigation measures, should be charged to the project, e.g. diversion of watermains.

Project offices should note that approval from SFST is required prior to entering into entrustment agreements with a private sector and a public corporation including Housing Authority and MTRCL as stated in S for Tsy's memo ref. (19) in FT 112/115 dated 21.11. 2000.

4.15 ADJACENT PROPERTY

If adjacent private property is likely to be endangered by the Works, BD should be consulted regarding safety measures necessary for the protection of the property.

Any alterations required to an adjacent private property will be arranged by LAO, Lands Department. Details of the work, the method of carrying out the work and the apportionment of costs and maintenance responsibility between Government and the owner will be agreed for each individual lot in the light of practical problems involved and the conditions of lease.

4.16 UTILITIES

Private utility companies and the appropriate Government authorities should be consulted regarding the effect of the project on their existing and proposed services and regarding any facilities required for the project. Lands Department should also be consulted as to the presence of private service lines (e.g. private seawater cooling mains laid under way-leave agreements) which might be affected by the project.

The minimum depth requirement for services underneath public roads stipulated in HyD Standard Drawing Nos. H6168, H6169 and H6170 should be observed for both new and existing services affected by the project. The basic reasons for specifying a minimum depth for underground services are to:

(a) avoid any adverse effects on the structural integrity of the road pavement;

(b) afford protection to the buried services from damage due to traffic loadings;

(c) afford protection to the buried services from damage due to subsequent road opening works;

(d) afford protection to personnel carrying out road opening works from cutting into energized services located at an unexpected shallow depth; and

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(e) maximize the use of underground space for the accommodation of services while ensuring that sufficient space is reserved for the installation of surface drainage system which is essential for the proper operation of a highway.

If the project would cause the depth of some existing services to be less than the required minimum, the utility operators concerned should be requested to lower or to divert the existing services.

Minor modifications to the design may be made to avoid disturbance to utility services but any modifications, which will materially increase the cost of the project, should not be considered without the authority of the Chief Engineer/Regional Office Head.

In general, all diversion works carried out to accommodate the project should be at the cost of the utility companies. Block Licences are issued by Lands Department to the utility companies for locating utility installations on unleased Government land. Normally there is a condition in the Block License, which requires the licensee to remove or divert the utility installations at his own cost when required by the Director of Lands (D of L).

Where diversions are made at the cost of the project, the utility companies concerned should be consulted about the cost of the diversions and provision made in the project estimate.

In view of the rapid development in the past decades, which caused continual expansion of the underground utility network, designers shall consider the limitation in space underneath public roads before making commitment for further underground installations. In addition, use of updated technology and sharing of cable network by different operators should also be explored to minimise the need for underground installations.

Construction drawings for roadworks relating to vertical and horizontal alignments should be provided to UU preferably in CAD format. UU should take these construction drawings as reference for preparing and updating their as-built records until the as-built drawings are available or the relevant digital maps are updated.

With respect to physical and legal impossibilities, unforeseen ground conditions and interference by utility work, guidelines on risk management given in ETWB TCW No. 17/2004 should be observed in carrying out the design.

4.17 PUBLIC TRANSPORT

The public transport companies should be consulted as early as possible if their facilities are likely to be affected by the project works. The costs for the diversion of tramways, the relocation of bus stops etc., to facilitate the project, are normally borne by the project.

There are special requirements for works in the vicinity of the MTRCL railways given in DEVB TCW No. 1/2019. Though there is no circular specifically covering works in the vicinity of the Light Rail, those quoted for the MTRCL railways may provide a useful reference. In any case, PM (NTN&W), CEDD and MTRCL should be consulted as early as possible. Section 4.3 of Chapter 3 should be referred for further details on rail reserves.

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4.18 SURVEY MONUMENTS AND MARKS

Construction projects should be designed in such a way that survey monuments are not disturbed. Agreement from DD/SM (previous PGLS) of Lands Department must be obtained where the potential destruction of a survey monument is unavoidable. (DEVB TCW No. 5/2019).

4.19 INFRASTRUCTURE ON NEW RECLAMATION

When carrying out design for infrastructure on a new reclamation, the project office should take account of the nature of the materials used for the reclamation to cater for any potential risks.

Some of the reclamation sites might have been formed with sand extracted from local marine borrow areas, which could be littered with some unexploded ordnance in the past outside the knowledge of the relevant parties during the reclamation works. Whilst precautionary measures should have been taken under the reclamation contracts to deal with any ordnance found, residual risks posed to the subsequent infrastructure works or the future land use could not be totally eliminated. When the project office carries out planning of the infrastructure on reclamations where large numbers of unexploded ordnances were discovered during the reclamation works, it should, after consulting the future land users (such as works departments responsible for subsequent provision of infrastructure works on the reclamation) where practicable, consider specifying in the infrastructure contract safety precautionary measures that may be required, such as scanning the soils for unexploded ordnance to facilitate removal under the infrastructure contract or later development projects as appropriate.

4.20 HERITAGE IMPACT

Heritage impact assessment should be conducted if the project will affect the heritage value of the heritage sites within or in the vicinity of the project boundary. Consultation with the Antiquities & Monuments Office of LCSD is necessary.

If heritage sites are affected by the works, it is necessary to avoid or minimise adverse impact on these sites. In case adverse impact is unavoidable, public consultation engaging the relevant parties at the earliest opportunity is required. (See DEVB TCW No.1/2022 for details).

4.21 TRAFFIC IMPACT AND ROAD SAFETY AUDIT

Traffic impact assessment should be conducted in accordance with the guidelines and requirements promulgated in Transport Department's Departmental Circular No. 1/2011.

Road safety audit should be conducted in accordance with the guidelines and requirements promulgated in the Transport Planning and Design Manual Volume 5 Chapter 7.

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4.22 ROCK CAVERN DEVELOPMENT

DEVB TCW No. 2/2024 Amd No. 6/2025 promulgates the policy and associated measures for Amd No. 6/2025 cavern development in Hong Kong. In brief, all new government Amd No. 6/2025 projects and land disposal/alienation proposals (including those for Amd No. 6/2025 lease modification and land exchange) that wholly or partly fall within Amd No. 6/2025 Strategic Cavern Areas (SCVAs) delineated in the Cavern Master Plan (CMP) shall be submitted for vetting by the Sub-Committee on Cavern Development (SCCD) . When project proponents consider the cavern option as one of the options, they are required to first check if (i) there is a lack of suitable surface site; and (ii) there are specific needs or strong merits to relocate existing government facilities or accommodate new suitable government facilities inside caverns. If criteria (i) and (ii) are met, the project proponents should proceed to carry out the preliminary option assessments with an aim at comparing cavern and non-cavern options. If the cavern option is recommended, the option assessments report should be submitted to the SCCD for vetting and endorsement before the preparation of TFS report. Amd No. 6/2025

4.23 SAFETY AND HEALTH OF HAND-DUG TUNNELLING WORK

The Labour Department is highly concerned about the occupational safety and health of employees/workers engaged in the hand-dug tunneling work. In this regard, the Labour Department, in collaboration with relevant industry stakeholders and upon a round of comprehensive consultation, has formulated a set of "Guidance Notes on Safety and Health of Hand-Dug Tunnelling Works" for compliance by the industry.

The "Guidance Notes on Safety and Health of Hand-Dug Tunnelling Works", among others, requires that the "heading" hand-dug tunneling method could only be adopted under exceptional conditions and where environment permits, and specifically sets out the stringent measures to be taken by the relevant duty-holders when such hand-dug tunneling work is unavoidable.

Works departments shall take the guiding principles of the "Guidance Notes on Safety and Health of Hand-Dug Tunnelling Works" into consideration when planning any trenchless/tunneling work before awarding works contracts to contractors, and remind contractors to strictly follow the occupational safety and health measures as set out in the guidance notes.

For effective monitoring the occupational safety and health performance, works departments are required to notify the Labour Department once it is intended to employ "heading" hand-dug tunneling method in works projects. In this connection, information of the works, such as site location, construction period and name of the consultant (if any), principal contractor to be involved and respective contact persons shall be provided via letter or email to Senior Divisional Occupational Safety Officer (Operations Division) (Headquarters)1, Labour Department.

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5. ESTIMATES

5.1 INTRODUCTION

Project engineers are responsible for keeping the works within the approved scope and estimate. They must ensure that estimates are carefully prepared and given the same attention to detail as other aspect of project preparation.

Any estimate must be as accurate as possible as it affects the management of public funds and it has a direct effect on fund allocation.

The relevant Financial Circulars (FCs) and Note for Public Works Subcommittee of Finance Committee are :

FC No. 2/2005	-	Recurrent Consequences of Capital Projects
FC No. 2/2021	-	User Guide on the Finance Committee, Establishment Subcommittee and Public Works Subcommittee
FC No. 7/2017	-	Capital Works Programme
FC No. 4/2012	-	Requirements for Project Definition Statement and Technical Feasibility Statement for Capital Works Projects
FC No. 5/2014	-	Consultants' Fees and Resident Site Staff Costs for Works Projects
PWSCI (2002-03) 31	-	Estimates of Consultants' Costs for Capital Works Projects

The standard approach for estimating and assessing contingency items is termed "Estimating using Risk Analysis" (ERA). ERA procedures and format shall be used for all Cat C, B and A estimates and whenever an estimate review is required by the resource allocation process. Any difficulty in the use of ERA or its effect on any other established procedure shall be reported promptly to the departmental representative on the Project Estimates and Cost Control Committee. If the issue raised is of general concern, it will be resolved at the Project Estimates and Cost Control Committee. A Practice Note for the use of ERA is in Appendix 4.15. (Subsumed from WBTC No. 22/93)

ETWB TCW Nos. 6/2005 and 7/2005 are promulgated to introduce the implementation of Systematic Risk Management in Public Works Projects and to provide guidelines for the procurement of Construction Related Insurance respectively. These two TCs shall be referred when preparing the estimates.

5.2 DESCRIPTION

Project scope is the approved extent of the work described in the Project Definition Statement (PDS), Technical Feasibility Statement (TFS) and PWSC paper and shall not be

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changed without the approval of the appropriate authority set out in the FCs above (Section 5.1) and ETWB TCW No. 30/2003. When a scope change occurs it must be reported along with the cost (and programming) implications for approval.

Design development is any change, which occurs but remains within the scope. It can include variations and changes in quantities.

Project estimate is the overall total estimated cost for the project, and is the sum of the estimated cost of all its works packages plus the estimated cost on project scope contingency. These components shall be grouped in Category-of-Cost on the estimate spreadsheet.

Estimate description is the concise description of the limitations, assumptions and important features of an estimate, such as inclusions, exclusions, accuracy of measurement, and estimating method. It should take the form of a standard report as shown at Appendix 4.4.

5.3 TIMING

The project estimate is usually first prepared in the TFS for the project's inclusion in Cat C and thereafter shall be formally reviewed and revised as described in the following table:

ESTIMATING SCHEDULE	
FUNDING STAGE	**ESTIMATING REQUIREMENT**
Cat C	The project estimate should be revised whenever information affecting costs becomes available (e.g. sub-surface investigation or feasibility reports).
For entry to Cat B	The project estimate should include up-to-date quantities, current prices and re-assessment of risk elements and contingency items.
Cat B	The project estimate should include further significant information affecting costs (e.g. contingency items are settled and/or eliminated, probability of occurrence and extent of risks elements are changed). Annually for the RAE, and once selected to start, this estimate is then the baseline against which cost and scope changes are compared and justified.
Upgrading to Cat A	An up-to-date project estimate is prepared by pricing the tender document Bills of Quantities including re-assessment of risk elements and remaining contingency items.

Details of preparation of estimates are shown in Section 5.4 and 5.5. A project estimate shall also be prepared or updated when seeking:

(a) Inclusion of a project in Cat D,

(b) An increase or decrease in the APE of a Cat A or Cat D project, or

(c) Approval for a change in scope.

In addition, any estimate may require:

(a) Further revision/reporting to meet works department requirements, or

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(b) Further review to meet requirements from FSTB and DEVB during the annual RAE and Annual Estimates exercise.

(c) To be revised to reflect current knowledge of work progress, changed planning and expenditure patterns.

5.4 PREPARATION

The project engineer should prepare a project estimate in accordance with the extent of work described in the PDS and TFS. This provides a clear basis for the estimate and a baseline to control changes in scope.

Estimates shall be in two parts:

(a) The estimates description, and

(b) The itemised estimate of cost including forecast-of-expenditure (cash flow).

The estimate description shall include all available information on the scope and the special circumstances (e.g. short construction period, particularly difficult site), explanations about assumptions made for the contingency items, and any other relevant information. It should also reconcile changes in successive estimates.

There shall be an estimate and estimate description for each works package (i.e. for each site investigation, laboratory testing, agreement, contract and so forth) at its relevant Category of Cost of the project. Each estimate shall be comprehensive and cover all costs including consultant's fees, site investigations, laboratory testing, resident site staff, supervision, construction works and contingency. Adequate resources should be allowed for the provision of a structured site supervision system for different stages of construction. Each shall be cross-referenced to PWP details for identification purposes.

Estimates shall be as fully detailed as the available information permits, and shall use the most recent relevant prices updated in line with the Civil Engineering Works Tender Price Index (DEVB TCW No.6/2017) and other appropriate Cost Index or Tender Price Index for the month or quarter in which the estimate is done. These should be adjusted if necessary to ensure they are valid prices, which reflects current market conditions.

Estimates shall be compiled to a constant price level and then converted to a Money-of-the-day (MOD) value by applying some adjustment factors (to be advised by SFST from time to time) to the cash flow. The difference in value of the MOD estimate from the constant price estimate reflects the forecast of expenditure due to price adjustment on its own and shall be recorded in the "Other" Category-of-Cost.

For Cat D projects, the estimate shall be made at a price level current at the time of the estimation together with its MOD equivalent. Particular attention should be given to avoid the actual expenditure exceeding the approved project estimate because of inflation. This is particularly important for projects with estimates close to $50 million, the current financial ceiling of a Cat D item (Ref.: PAH Chapter 2, Section 2.2).

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Cat A estimates shall not include an allowance anticipating the effect of market conditions on the tender levels.

The project estimate should include, if appropriate to the project, the following items:

(a) Works contracts under the project,

(b) Site investigations and laboratory testing (WBTC Nos. 14/2000 and 15/2000, PAH Chapter 5 Section 9.7), or any other special investigations,

(c) Works for/by other divisions,

(d) Works for/by other offices,

(e) Works for/by other departments and authorities (e.g. entrustment to MTRCL) including any on-costs,

(f) Resumption, clearance and compensation costs (although these costs are normally charged to the Land Acquisition Vote controlled by Lands Department),

(g) Repositioning costs (e.g. cost of reconstruction of a replacement survey monument destroyed because of the construction project, see DEVB TCW No. 5/2019),

(h) Diversion of utilities,

(i) Consultants' fees and expenses with resident site staff costs for the construction phase shown separately,

(j) Landscaping and amenities,

(k) Site safety and welfare facilities for workers at construction sites (WBTC No. 30/2000, ETWB TCW No. 19/2005 and Chapter 3 of Construction Site Safety Manual),

(l) Stores and equipment,

(m) Cost of diversion of facilities of public transport companies,

(n) Environmental measures and management (ETWB TCW No. 19/2005),

(o) Site cleanliness and tidiness (DEVB TCW No. 8/2010),

(p) Resources (other than in-house resources) for the geotechnical supervision personnel. (It is often necessary for the designers of geotechnical works to be involved in the supervision of the works to verify the design assumptions by observing the actual ground conditions. Guidance on the requirements for geotechnical supervision is given in Appendix 7.47 of Chapter 7), and

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(q) Resources for environmental personnel to supervise environmental monitoring and auditing under the EIAO.

(r) Controversial or unconventional items, such as archaeological works.

(s) The cost for Community Planting Activities in accordance with DEVB TCW No.5/2017.

It is only necessary to include works by other divisions/offices/departments which are needed for the project and not otherwise financed, e.g. Landslip Preventive and Mitigation Measures should not be included because they are usually financed from an annual block vote.

Any estimate should, in order of preference, be based on:

(a) The most recent averaged tendered prices for work of a similar nature,

(b) The current prices in maintenance or term contracts for work of a similar nature, and

(c) The breakdown of the cost of labour/plant/materials.

To arrive at a realistic estimate, all risks having a significant effect on the cost of the work must be taken into account. Such factors may include:

(a) Degree of difficulty of the work,

(b) Site location, access and transport mode,

(c) Need for expensive plant or unusual technique, and

(d) Sub-surface conditions.

When reviewing any estimate, for the purposes of reconciliation, identify separately changes in scope and other contingency items and also check:

(a) The updating for inflation since the previous estimate, and

(b) The correction of any assumption.

Estimating needs to be structured, logical, accountable and easy to explain and trace. Estimating using Risk Analysis (ERA) requires identification of project related risks in a formal manner and provides a realistic estimated cost for each risk. ERA is required for Cat A, B and C projects in accordance with the procedures and requirements stipulated in Section 5.1.

In addition, the requirements laid down by the respective project office for submission of cost estimate to their Project Estimate Control Committee for vetting and endorsement shall also be followed.

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5.5 RECURRENT COST ESTIMATES

FC No. 2/2005 is the relevant authority for the presentation, information and assessment of recurrent cost estimates.

Recurrent cost estimates shall be prepared prior to seeking upgrading of a project to Cat A, or inclusion of a project in Cat D. A rough indication of recurrent consequences is, however, required in the submission for inclusion of a project in Cat C, or for inclusion of a project in the RAE programme (i.e. upgrading to Cat B).

The estimate shall be prepared in sufficient detail and manner to allow assessment of the full financial implication of the project in the immediate and the long term. This information is useful in forecasting resource requirements.

The client department must liaise with those departments responsible for operation and maintenance, so as to include costs affecting the latter's own head of expenditure and maintenance and other costs generated for other heads.

The client department and departments responsible for operation and maintenance shall include estimates of repair and maintenance work to be undertaken by their respective works department.

The recurrent cost estimate shall be reviewed when detailed drawings and estimates for the project become available, as well as in each application for a change to a project estimate. The updated estimate shall be attached as an appendix to the PWSC submission.

5.6 REPORTING

5.6.1 Capital Works

Projects must be registered in the PWPIS, which is administered by the Public Works System Administration Section of DEVB. Works department is responsible for the recording and updating of project and contract data in the PWPIS in respect of programme, estimates, expenditure and other important information. Project officers should follow the data administration procedures in PWPIS Data Administration Manual, which is issued by DEVB and posted on PWPIS web page.

The relevant senior engineer shall advise the Chief Engineer/Regional Office Head of all significant changes in the project estimate so that the Chief Engineer/Regional Office Head can advise the Department Head of the changes. For consultant-administered projects, consultants should advise the relevant project office.

The project estimate shall be checked for correctness by the relevant senior engineer, and agreed by his Chief Engineer/Regional Office Head. The project office shall check any estimate prepared by consultants.

The calculations for any checked/agreed estimate shall be kept in the Project Handbook (or other departmental equivalent).

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5.6.2 Recurrent Costs

The project engineer shall advise the Chief Engineer/Regional Office Head, through the senior engineer, of all significant changes in the estimate so that the Chief Engineer/Regional Office Head can advise the Department Head of the changes.

The calculations for any checked/agreed estimate shall be kept in the Project Handbook (or other departmental equivalent).

5.7 PRELIMINARY COST ESTIMATE

The cost estimate changes as the project develops to cater for design development, programme, forecast trend of price adjustment and tender prices, etc. To safeguard the credibility of project estimates, project office shall refrain from divulging the cost estimates to the public in planning and design stages to avoid misinterpretation by the public.

When disclosure of cost estimate to the public prior to submission to the Legislative Council for funding approval is required in exceptional circumstances, the standardised terminology "Forecast Cost per Provisional Design (暫定設計預測造價)" in MOD prices together with the following riders shall be adopted in full on every occasion to ensure proper understanding by the public:-

> ***The Forecast Cost per Provisional Design (FCPD) of the project is $XXX million in MOD prices. The Project Estimate will be substantially higher or lower than the FCPD as a result of design development, programme change, construction price level changes, etc.***
>
> ***按付款當日價格計算，暫定設計預測造價約港幣 XXX 百萬元。此項目的預算費用會因應隨後的設計改動及/或深化，推展日期的更改，建造價格水平變動等，而較暫定設計預測造價大幅增加或減少。***

Moreover, the project office shall seek to proactively reconcile the latest cost estimates with those already in the public domain as appropriate.

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6. REFERENCES

PWD TC No. 7/80	The processing of applications for permission to install ground anchors in Crown Land
WBTC No. 6/90	Greenhouse Effect - Allowance in Design
WBTC No. 2/93	Public Dumps
WBTC No. 2/93B	Public Filling Facilities
WBTC No. 29/93	Procedure for Incorporation of Waterworks into other Capital Works Contracts
WBTC No. 14/94	Use of PFA as General Fill in Reclamation
WBTC No. 16/96	Wet Soil in Public Dumps
WBTC No. 4/97	Guidelines for Implementing the Policy on Off-site Ecological Mitigation Measures (PELBTC No. 1/97)
WBTC No. 4/98	Use of Public Fill in Reclamation and Earth Filling Projects
WBTC No. 4/98A	Use of Public Fill in Reclamation and Earth Filling Projects
WBTC No. 12/2000	Fill Management
WBTC No. 14/2000	Usage of Public Works Laboratories in Public Works Projects
WBTC No. 15/2000	Funding Arrangement for Public Works Regional Laboratories Operating, Monitoring and Accounting Procedures
WBTC No. 30/2000	Construction Site Safety Manual Second Updating of Chapters 3 and 12
WBTC No. 19/2001	Metallic Site Hoardings and Signboards
WBTC No. 12/2002	Specifications Facilitating the Use of Recycled Aggregates
ETWB TCW No. 29/2002	Geotechnical Control for Slopes and Retaining Walls
ETWB TCW No. 29/2002A	Geotechnical Control for Slopes and Retaining Walls
ETWB TCW No. 38/2002	Computer-Aided-Drafting Standard for Works Projects
ETWB TCW No. 38/2002A	Computer-Aided-Drafting Standard for Works Projects
ETWB TCW No. 7/2003	Provision of Electronic Version of Layout Plans to Utility Undertakings
ETWB TCW No. 7/2003A	Provision of Electronic Version of Layout Plans to Utility Undertakings
ETWB TCW No. 13/2003	Guidelines and Procedures for Environmental Impact Assessment of Government Projects and Proposals
ETWB TCW No. 13/2003A	Guidelines and Procedures for Environmental Impact Assessment of Government Projects and Proposals - Planning for Provision of Noise Barriers
ETWB TCW No. 19/2003	Review of Preliminary Design Before Proceeding with the Detailed Design

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ETWB TCW No. 28/2003	Protection of Harbour Area Treatment Scheme Stage I Sewage Tunnels
ETWB TCW No. 30/2003	Control of Client-Initiated Changes for Capital Works Projects
ETWB TCW No. 4/2004	Checking of Foundation Works in the Scheduled Areas of Northwest New Territories and Ma On Shan and the Designated Area of Northshore Lantau
ETWB TCW No. 16/2004	The Use of Permanent Prestressed Ground Anchors in Government Projects
ETWB TCW No. 17/2004	Impossibility / Unforeseen Ground Conditions / Utility Interference
ETWB TCW No. 20/2004	GEO Checking Certificate for Slopes and Retaining Walls
ETWB TCW No. 36/2004	The Advisory Committee on the Appearance of Bridges and Associated Structures (ACABAS)
ETWB TCW No. 5/2005	Protection of natural streams/rivers from adverse impacts arising from construction works
ETWB TCW No. 6/2005	Implementation of Systematic Risk Management in Public Works Projects
ETWB TCW No. 7/2005	Procurement of Construction Related Insurance
ETWB TCW No. 8/2005	Aesthetic Design of Ancillary Buildings in Engineering Projects
ETWB TCW No. 15/2005	Geotechnical Control for Tunnel Works
ETWB TCW No. 19/2005	Environmental Management on Construction Sites
ETWB TCW No. 2/2006	Drainage Impact Assessment Process for Public Sector Projects
ETWB TCW No. 4/2006	Delivery of Capital Works Projects
DEVB TCW No. 6/2010	Trip Ticket System for Disposal of Construction & Demolition Materials
DEVB TCW No. 8/2010	Enhanced Specification for Site Cleanliness and Tidiness
DEVB TCW No. 2/2011	Encouraging the Use of Recycled and other Green Materials in Public Works Projects
DEVB TCW No. 6/2011	Maintenance of Man-made Slopes and Emergency Works to Deal with Landslides
DEVB TCW No. 9/2011	Enhanced Control Measures for Management of Public Fill
DEVB TCW No. 3/2012	Site Coverage of Greenery for Government Building Projects
DEVB TCW No. 3/2014	Contractors' Designs and Alternative Designs
DEVB TCW No. 2/2015	Green Government Buildings
DEVB TCW No. 6/2015	Maintenance of Vegetation and Hard Landscape Features
DEVB TCW No. 4/2016	Geotechnical Information Unit
DEVB TCW No. 5/2017	Community Involvement in Planting Works
DEVB TCW No. 6/2017	Civil Engineering Works Tender Price Index

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DEVB TCW No. 2/2024 Amd No. 6/2025	Rock Cavern Development
DEVB TCW No. 1/2018	Soft Landscape Provisions for Highway Structures
DEVB TCW No. 2/2018	Registration and Updating of the Catalogue of Slopes
DEVB TCW No. 3/2018	Enhancing Cost Effectiveness of Geotechnical Works of Capital Works Projects
DEVB TCW No. 6/2018	Implementation of Buildability Evaluation System
DEVB TCW No. 1/2019	Railway Protection
DEVB TCW No. 4/2020	Tree Preservation
DEVB TCW No. 5/2020	Registration and Preservation of Old and Valuable Trees
DEVB TCW No. 6/2020	Design Review and Implementation of Buildability Evaluation System for Public Engineering Works Projects
DEVB TCW No. 8/2021	Building Information Modelling Harmonisation Guidelines for Capital Works Projects in Hong Kong
DEVB TCW No. 1/2022	Heritage Impact Assessment Mechanism for Capital Works Projects
DEVB TCW No. 3/2024	Allocation of Space for Quality Greening on Roads
DEVB TCW No. 1/2025	Adoption of Building Information Modelling for Capital Works Projects in Hong Kong Amd No. 1/2025
FC No. 2/2005	Recurrent Consequences of Capital Projects
FC No. 4/2012	Requirements for Project Definition Statement and Technical Feasibility Statement for Capital Works Projects
FC No. 5/2014	Consultants' Fees and Resident Site Staff Costs for Works Projects
FC No. 7/2017	Capital Works Programme
FC No. 2/2021	User Guide on the Finance Committee, Establishment Subcommittee and Public Works Subcommittee
PWSCI (2002-03) 31	Estimates of Consultants' Costs for Capital Works Projects
HyD TC No. 10/2001	Visibility of Directional Signs
HyD TC No. 4/2010	Fire Mains and Hydrants on New Trunk Roads and Elevated Highway Structures
TD Departmental Circular No. 1/2011	Guidelines and Requirements of TIA Studies
TD Departmental Circular No. 3/2017 and HyD Technical Circular No. 2/2017	Guidelines for the Provision and Design of Pedestrian Railings
TB TC No. 2/00	Provision of Covers, Ramps and Escalators to Grade Separated Pedestrian Facilities

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S for Tsy's memo ref. (19) in FT 112/115 dated 21.11.2000	Authority for Entrustment of works projects
DEVB's memo ref. (0289W-01-3) in DEVB(W) 516/95/02 dated 16.08.2010	Guidelines on Enhancement of Site Outlook at Construction Sites
DEVB's memo ref. (38) in DEVB(Trg) 133/8 dated 17.04.2013	Guidelines for Enhancement of Productivity of Skilled Workers in Public Works Projects
DEVB's memo ref. () in DEVB(W) 505/83/04 dated 3.8.2015	Reducing Construction Cost and Stepping Up Cost Control for Capital Works Projects
SDEV's memo ref. (02U5N-01-1) in DEVB(W) 517/17/01 dated 8.6.2016	Design for Safety (DfS)
GEO Ground Investigation Note	Handling of Land/ Marine Ground Investigation, Geophysical Survey and Laboratory Testing Requests
GEO Publication No. 1/93	Review of Granular and Geotextile Filters
GEO Publication No. 1/2006	Foundation Design and Construction
GEO Publication No. 1/2007	Engineering Geological Practice in Hong Kong
GEO Publication No. 1/2009	Prescriptive Measures for Man-made Slopes and Retaining Walls
GEO Publication No. 1/2011	Technical Guidelines on Landscape Treatment for Slopes
GEO Publication No. 1/2023	Deep Excavation Design and Construction
GEO Geoguide 1	Guide to Retaining Wall Design
GEO Geoguide 2	Guide to Site Investigation
GEO Geoguide 3	Guide to Rock & Soil Descriptions
GEO Geoguide 4	Guide to Cavern Engineering
GEO Geoguide 5	Guide to Slope Maintenance
GEO Geoguide 6	Guide to Reinforced Fill Structure and Slope Design
GEO Geoguide 7	Guide to Soil Nail Design and Construction
GEO Geospec 1	Model Specification for Prestressed Ground Anchors
GEO Geospec 3	Model Specification for Soil Testing
GEO Report No. 15	Assessment of Stability of Slopes Subjected to Blasting Vibration
GEO Report No. 29	Classification and Zoning of Marble Sites

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GEO Report No. 75	Landslides and Boulder Falls from Natural Terrain: Interim Risk Guidelines
GEO Report No. 104	Review of Natural Landslide Debris – Resisting Barrier Design
GEO Report No. 136	Guidelines on Safe Access for Slope Maintenance
GEO Report No. 138	Guidelines for Natural Terrain Hazard Studies
GEO Report No. 182	Use of standardised Debris-resisting Barrier for Mitigation of Natural Terrain Landslide Hazards
GEO Report No. 227	Guidelines for Soil Bioengineering Applications on Natural Terrain Landslide Scars
GEO Report No. 249	Ground Control for Slurry TBM Tunnelling
GEO Report No. 298	Ground Control for EPB TBM Tunnelling
GEO Technical Guidance Note No. 1	Technical Guidance Documents
GEO Technical Guidance Note No. 12	The Designated Area of Northshore Lantau
GEO Technical Guidance Note No. 24	Site Investigation for Tunnel Works
GEO Technical Guidance Note No. 26	Supplementary Guidelines for Foundation Design in Areas Underlain by Marble and Marble-bearing Rocks
GEO Technical Guidance Note No. 40	Guidelines on Temporary Drainage Provisions and Precautionary Measures against Severe Rainfall during Site Formation Works and Construction of Reinforced Fill Structures
HyD HQ/GN/19	Guidelines on Lift Designs with Mechanical Ventilation
HyD RD/GN/035	Road Pavement Drainage Design
HyD RD/GN/040	Guidelines for Design of End-details of Thrie-beam Barrier Fence
HyD RD/GN/040 Supp	Supplementary Guidelines for Design of End-details of W-beam and Concrete Profile Barriers
HyD RD/GN/042	Guidance Notes on Pavement Design for Carriageway Construction
Audit Report No. 53 Ch. 10 - Provision of a bypass in Tuen Mun West	http://www.aud.gov.hk/pdf_e/e53ch10.pdf
CEDD Handbook on Selection, Appointment and Administration of Engineering and Associated Consultants (EACSB Handbook)	https://www.cedd.gov.hk/eng/publications/eacsb-handbook/index.html
CEDD Port Works Design Manual	-

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DEVB Cyber Manual for Greening	http://devb.host.ccgo.hksarg/en/contactus/index.html
DEVB Design for Safety Guidelines	http://www.devb.gov.hk/en/publications_and_press_releases/publications/index.html Guidance Notes of Design for Safety Worked Examples of Design for Safety
DEVB Greening Guidelines	https://www.greening.gov.hk/en/resource-centre/technical-circulars-practice-notes-and-guidelines/index.html Guidelines on Greening of Noise Barriers Guiding Principles on Use of Native Plant Species in Public Works Project Proper Planting Practices
DEVB PWPIS Data Administration Manual, Version 4.1, May 2009	-
DEVB The Code of Practice on Monitoring and Maintenance of Water-carrying Services Affecting Slopes	http://www.devb.gov.hk/filemanager/en/content_29/CoP_MMW.pdf
DEVB Construction Site Safety Manual	http://www.devb.gov.hk/en/publications_and_press_releases/publications/construction_site_safety_manual/index.html
DEVB BIM Harmonisation Guidelines for Works Departments	https://www.devb.gov.hk/en/publications_and_press_releases/publications/devb-harmonisation-guideline/index.html
DEVB Guidelines for Design Review and Implementation of Buildability Evaluation System for public engineering works projects (BSE(E) Guidelines)	https://www.devb.gov.hk/en/publications_and_press_releases/publications/BESE/index.html

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DEVB Tree Management Guidelines	https://www.greening.gov.hk/en/tree-care/tree-care-practices/index.html https://www.greening.gov.hk/en/tree_care/tra_arrangements.html Guideline on Pavement Renovation Works and Tree Stability Guidelines on Tree Transplanting Guidelines on Yard Waste Reduction and Treatment Guidelines for Tree Risk Assessment and Management Arrangement on an Area Basis and on a Tree Basis Management Guidelines for Stonewall Trees Management Guidelines for Mature Trees Guidelines on Tree Preservation during Development
GEO Geotechnical Manual for Slopes	https://www.cedd.gov.hk/eng/publications/geo/geo-gms/index.html
GEO Highway Slope Manual	https://www.cedd.gov.hk/eng/publications/geo/geo-hsm/index.html
HyD Structures Design Manual for Highways and Railways	https://www.hyd.gov.hk/en/technical_references/technical_document/structures_design_manual_2013/index.html
HyD Requirements for Handover of Vegetation to Highways Department	https://www.hyd.gov.hk/en/technical_references/technical_document/handover_of_vegetation/index.html
HyD Public Lighting Design Manual	https://www.hyd.gov.hk/en/technical_references/technical_document/public_lighting_design_manual/index.html
PlanD Hong Kong Planning Standards and Guidelines	http://www.pland.gov.hk/pland_en/tech_doc/hkpsg/full/index.htm
TD Transport Planning and Design Manual	-
WSD Civil Engineering Design Manual Volumes I and II	-
WSD Manual of Mainlaying Practice (2012 Edition)	https://www.wsd.gov.hk/en/publications-and-statistics/guidelines-reports-drawings-specifications/mainlaying-practice/index.html
Labour Department Guidance Notes on Safety and Health of Hand-dug Tunnelling Work	http://www.labour.gov.hk/eng/news/pdf/GN_on_S&H_of_Hand-dug_Tunnelling_Work_Eng.pdf

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APPENDICES

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APPENDIX 4.1 CHECK LIST FOR DETAILED DESIGN

PWP No. _____

Project Title _____

Project File _____

Contract No. _____

Contract Title _____

Contract File _____

PREPARATION OF DESIGN CALCULATIONS AND DRAWINGS

	Activities	Initial	Designation	Date
1.	Instruct GR to open a design calculation file		(project engineer)	
2.	Pass design calculation file to project engineer		(G.R.)	
3.	Prepare design calculations; signed and dated		(project engineer/AE /CEG	
4.	Pass completed design calculations in file to an officer referred to in Section 3.3.10 for engineer/ arithmetical checks		(project engineer/AE /CEG	
5.	Carry out arithmetical checks on design calculations, signed and dated		(project engineer/AE /CEG	
6.	Return design calculations in file engineer/ to project engineer		(project engineer/AE /CEG	

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CERTIFICATION AND CHECKING

	Activities	Initial	Designation	Date
7.	Prepare drawings and sign for 'design' of drawings		(project engineer/AE/ CEG	
8.	Certify the completion of design calculations and drawings in standard certificate (Appendix 4.3 or Appendix 4.22)		(project engineer)	
9.	Pass certification, design memorandum, design calculations and drawings to SE		(project engineer)	
10.	Pass documents in activity 9 to CE/Regional Office Head		(SE)	
11.	Decide on checking approach to be adopted, appoint Checking Engineer and pass documents in activity 9 to Checking Engineer		(CE/Regional Office Head)	
12.	Check design and drawings, certify for completion of checking process in standard certificate (Appendix 4.3 or Appendix 4.22)		(Checking Engineer)	
13.	Check drawings, if other departments are involved in the Works, for proper incorporation of their requirements		(other department's checking officer)	
14.	Return documents in activity 9 and check certification to project engineer		(Checking Engineer)	
15.	Submit documents in activity 9 and check certification to CE/Regional Office Head		(project engineer)	

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COMPILATION OF DESIGN RECORDS

	Activities	Initial	Designation	Date
16.	Signify approval of drawings and return documents in activity 9 and check certificate to project engineer		(CE/Regional Office Head)	
17.	Instruct drawing office to compile permanent design records and index		(project engineer)	
18.	Compile permanent design records and index and pass to project engineer		(drawing office)	
19.	Check permanent design records and index		(project engineer)	
20.	Where applicable, complete design notes		(project engineer)	
21.	Where applicable, send design notes (project to GR for filing		(project engineer)	
22.	File design notes		(GR)	
23.	Send permanent design records and index to drawing office		(project engineer)	
24.	Maintain permanent design records (drawing and index		(drawing office)	
25.	Where applicable, send index to departmental library		(drawing office)	

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Notes

1. The project engineer should be an officer of professional engineer status. Notwithstanding that the project engineer can delegate parts of the design work to assistant engineers or civil engineering graduates, he should still remain responsible for the whole design.

2. For projects designed in-house, the Checking Engineer is generally the checking officer, separate from the project engineer, responsible for the independent check of the design.

3. For projects designed by consultants or contractors employed by the Government, the Checking Engineer is the professional, the team of professionals, the company or the organization separate from the Designer and being responsible for the independent check of the design.

4. The checking officer should be an officer of professional engineer status or above and suitably experienced in the type of design to be checked.

5. In the case of a simple and straightforward design where the professional engineer has delegated the design work to his assistant engineer or civil engineering graduate and he in turn checks the design, the professional engineer should sign for the relevant items in the check list for both the project engineer and the checking officer. However, it is always desirable to avoid such an arrangement, by having a checking officer outside the design team.

6. The checking procedures may be modified to suit the practice of project office as directed by the CE/Regional Office Head.

7. Geotechnical design of all new slopes and retaining walls, together with the findings of geotechnical investigations and studies on existing man-made slopes and retaining walls which may affect or be affected by the proposed project, are required to be submitted to GEO for checking in accordance with ETWB TCW No. 29/2002.

8. Ground investigation works, demolition works and any necessary stabilisation works for adjoining ground, slopes and retaining walls, site formation and foundation works with clear information on the envelope of all bulk excavation works, excavation and lateral support works, groundwater drainage works, and natural terrain hazard studies and mitigation measures, within the Mid-levels Scheduled Area, shall be submitted to GEO for checking in accordance with ETWB TCW No. 29/2002A.

9. Geotechnical design of all permanent foundation works, together with the findings of geotechnical investigations, within the Scheduled Areas of Northwest New Territories and Ma On Shan, and in the Designated Area of Northshore Lantau, shall be submitted to GEO for checking. Details of the information to be included in the geotechnical design submission are given in Appendix B of ETWB TCW No. 4/2004.

10. Geotechnical design of all tunnel works and any associated temporary works, where such works would pose a significant risk to public life or property, are required to be submitted to GEO for audit. Details of the information to be

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included in the geotechnical design submission including risk assessments are given in Appendix A of ETWB TCW No. 15/2005.

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APPENDIX 4.2 EXAMPLES OF EXPLANATORY MEMORANDUM/LETTER USED FOR THE CIRCULATION OF THE GENERAL LAYOUT PLAN

便箋 MEMO

發文人 From	Chief Engineer/ Water Supplies Department	受文人 To	Distribution
檔號 Ref	( ) in WSD	(經辦人 Attn.	
電話 Tel. No.		來文檔號 Your Ref.	
傳真 Fax. No.		日期 dated	傳真 Fax No.
日期 Date		總頁數 Total Pages	

(Project Title)

Please find enclosed for your information and comment the hard copy and electronic version of the following Layout Plans showing the Works scheduled to be carried out during the period.....

Drawing No.	Title
(a)	Alignment Plan(Sheet of)
(b)	Alignment Plan(Sheet of)

2. In particular, the following information is requested :

(a) HKPF and TD to advise on :

(i) Any special road opening conditions to be imposed from the traffic point of view.

(ii) Any location which, on particular days, will require the trench work to be completely stopped and the open trench to be backfilled temporarily for traffic reasons.

(b) DSD to return to me one copy of each drawing marked up with their services that may be affected.

(c) FSD to indicate the location of the fire hydrant tees required.

3. Trees located within the site as marked on Drawing No. ..... will need to be felled to make way for the Works. AFCD/LCSD * is requested to give their consent to the tree felling.

4. Your reply, within one month from the date of this memo, will be appreciated.

for Chief Engineer/
Water Supplies Department

Distribution
AFCD) DSD) w/ two sets

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ArchSD)
DO/HAD)
GEO, CEDD)
HKPF) w/one set
HyD) of drawings.
LCSD)
PM( ), CEDD)
TD)
FSD) of drawings.

* delete where inappropriate (DEVB TCW Nos. 6/2015 and 4/2020)

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CIRCULATION TO UTILITY UNDERTAKINGS

Dear Sirs,

Contract No. .....….....
(Title)
.....

I enclose ….. hard copy(ies)*, an electronic version each of the following Layout Plans (and ELP-Readme.rtf) showing the proposed mainlaying work in .....

Drawing No. Title

It is expected that works will be carried out during the period ..... I should be grateful if you would return to me …..hard copy(ies)* and electronic version of each drawing marked up showing your services that may be affected.

Your reply, within one month from the date of this letter, will be appreciated.

Yours faithfully,

for Chief Engineer

Addressees :

For Works on H.K. Island	**For Works in Kowloon and New Territories**
Hong Kong Tramways Co. Ltd.	
The Hongkong Electric Co. Ltd.	CLP Power Hong Kong Ltd.
Hong Kong & China Gas Co. Ltd.	Hong Kong & China Gas Co. Ltd.
Towngas Telecommunication Fixed Network Ltd.	Towngas Telecommunication Fixed Network Ltd.
MTR Corporation Limited	MTR Corporation Limited
The Kowloon Motor Bus Co., (1933) Ltd.	The Kowloon Motor Bus Co., (1933) Ltd.
City Bus Co. Ltd.	City Bus Co. Ltd.
New World First Bus Services Ltd.	New World First Bus Services Ltd.
Wharf T & T Ltd.	Wharf T & T Ltd.
Hutchison Global Communications Ltd.	Hutchison Global Communications Ltd.
New World Telecommunications Ltd.	New World Telecommunications Ltd.
New T&T Hong Kong Ltd.	New T&T Hong Kong Ltd.
SmartTone Communications Limited	SmartTone Communications Limited
Hong Kong Broadband Network Ltd.	Hong Kong Broadband Network Ltd.
Hong Kong Cable Television Ltd.	Hong Kong Cable Television Ltd.

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For Works on H.K. Island	**For Works in Kowloon and New Territories**
PCCW-HKT Telephone Ltd.	PCCW-HKT Telephone Ltd.
TraxComm Limited	TraxComm Limited
HKC Network Ltd.	HKC Network Ltd.
Transport Department	Transport Department
EMSD	EMSD
HyD, Lighting Division	HyD, Lighting Division
DSD	DSD

Note : Add/delete utilities as appropriate.
( )* : Hard copies of layout plan should only be sent if there are special reasons. Refer to ETWB TCW No. 7/2003A.

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ELP-Readme.rtf (Sample)

ELP Drawing File Name: ELP-W20071-0 (created on 10/02/2003)

Project No. : 9257 WF
Contract Title : Siu Ho Wan Water Treatment Works Extension
Pui O Raw Water Pumping Station and associated Mainlaying
Department : Water Supplies Department

Instructions for Use

1. Please read the Conditions to Use in the layer of layer name arc018_C of the ELP drawing(s) before reading, inspecting, using it/them. You are deemed to have accepted the Conditions of Use if you use whether wholly or in part the ELP drawing(s) or the layout information contained therein.

2. Please check the drawing files containing in this ELP's against the list as shown at below. Please report to WSD if there is any discrepancy.

Drawing files	W20071Cali1.dwg	
	W20071Cali2.dwg	
Model files	WDC-W20071-P-10SW21C-E.dwg	WDC-W20071-P-10SW21D-E.dwg
	WDC-W20071-P-CKEYPLAN-N.dwg	WDC-W20071-P-CMAIN1-N.dwg
	WDC-W20071-P-CMAIN2-N.dwg	

3. The following softwares are required to read or print the ELP:
MS Word 97 or above - all text document
AutoCAD 2000 or above - Drawings
Adobe Acrobat Reader 4 or above - all "image" files
Crypto Tools v2.4 or above - all "signed" files

4. All Layout Plans are prepared in compliance with the CAD Standard for Works Projects as stipulated at ETWB TCW No. 38/2002 and 38/2002A. All documents should be printed on A4 paper from a laser printer. For Drawings, A3 size or larger is recommended for best reading comfort.

5. All Document Files and Drawing Files are Digitally Signed. Digital Signatures are neither intended to certify that ELP's are true copies of the hard copy versions of the corresponding Layout Plans nor to validate the identities of the persons approving the Layout Plans.

6. If the Utility Undertaking (UU) wishes to obtain further information about the ELP's, the UU may contact E/Des( ), Water Supplies Department at telephone no. 2829 xxxx.

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APPENDIX 4.3 CERTIFICATION BY PROJECT ENGINEER AND CHECKING ENGINEER

Project Title : _____

Contract No. : _____

Contract Title : _____

Design Checking Approach:

.....

We certify that :

(a) the design has been prepared in compliance with the standards set out in :

(i) the design memorandum of the contract (copy attached).

Civil Engineering/Technical Manuals listed below:

.....

(iii) Technical Circulars and Practice Notes listed below :

.....
.....
.....

(iv) Other relevant codes of practices, standards, etc. listed below :

.....
.....

(b) the design has been accurately translated into Contract Drawings.

(c) the geotechnical design has been agreed by GEO. (Copy of GEO's memo attached)

Project Engineer	(Signature	: .....
	(Name	: .....
	(Designation	: .....
	(Date	: .....
Checking Engineer	(Signature	: .....
	(Name	: .....
	(Designation	: .....
	(Date	: .....

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APPENDIX 4.4 ESTIMATE DESCRIPTION

ESTIMATE DESCRIPTION	
	• Works Package
	• PWP Number, PWP Category
	• Agreement/Contract Number
	• Estimate Date
	• Date of previous estimate
Scope	• Precise description of the scope of work covered by this estimate
	• Precise description of any approved Trends included in the scope since previous estimate and their reference.
Type of Contract	• State type of works contract - remeasurement, cost-centre, lump-sum and so forth. • State any likely departure from GCCs.
Type of Estimate	• Stage of design • Type of Estimate • Basis for measurement • Basis for pricing
Assumptions	List any assumptions made
Special Features	List any special features stating inclusion or exclusion in the estimate (e.g. pre-production of special steel formwork - INC fabrication yard at Junk Bay - EXC temporary rail diversion)
Programme Assumptions	Bar chart programme and list of milestone, timing or programme considerations (e.g. shiftwork required for E&M activities handover of site areas for adjacent project)
Project Interfaces	• list interfaces with other project, illustrated with a project sketch if needed.
Price Change	• Assumptions and calculation of price change from previous estimate to current baseline date. • For awarded lump sum contracts reconcile the awarded value in terms of price change assumptions. • For awarded contracts with provision for price fluctuations, the price fluctuations shall be reported as separate items.
ERA	• Calculations of project contingency
	• Calculations of contract contingency
Design Development Allowance	• Basis of the calculation of allowance for increased costs due to minor changes as a result of uncertain design development at time of estimate, but not covered by project contingency.
Entrustments and Assigned Embedded Work	• Scope description, priced itemisation and details of the basis for cost apportionment of the portions of projects entrusted, or embedded in this element of work and included in this estimate.

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Special Qualifications	Itemise other special considerations and data (e.g. - contractual inhibitions such as environmental requirements - shiftwork on reclamation - remote source of marine fill - long haul for dumping of marine mud - ground stabilisation required)
Reconciliation with previous Estimate	Priced itemisation and why the difference in current to previous estimate.

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APPENDIX 4.5 LIST OF SOME RELEVANT AUTHORITIES

AUTHORITY	DESCRIPTION	REMARKS
ACABAS	- Appearance of bridges and associated structures	- for advice and agreement
ArchSD, Design Advisory Panel	- Aesthetics of building structures	- for advice
GEO	- Geotechnical Computer programs - Design of borrow areas - Use of explosives (site storage, delivery and use) - Blasting assessment - Permanent geotechnical works (slopes and retaining walls, including natural terrain hazards mitigation works) - Permanent foundation works in Scheduled Area Nos. 2 and 4 and Designated Area in the North Shore of Lantau Island - Permanent tunnel works and associated temporary works - The following works within the Mid-levels Scheduled Area (unless with exemption by GEO): (i) ground investigation works; (ii) demolition works and any necessary stabilisation works for adjoining ground, slopes and retaining walls; (iii) site formation and foundation works with clear information on the envelope of all bulk excavation works; (iv) excavation and lateral support works; (v) groundwater drainage works; and (vi) natural terrain hazard studies and mitigation measures.	- for advice/acceptance - for advice/agreement - for advice/agreement - for advice and audit - for advice/agreement - for advice/agreement in accordance with ETWB TCW No. 4/2004 - for advice and audit - for advice/agreement in accordance with ETWB TCW No. 29/2002A
Marine Fill Committee	- Marine borrow areas - Disposal of dredged mud	- for approval - for advice and approval
Public Fill Committee	- Disposal of inert C&D materials	- for advice and approval
EPD	- Disposal of C&D waste - Sewerage Impact Assessments	- for advice and approval - for advice and approval
CEO, CE/TS	- Maintenance of marine works - Design of marine works	- for comments - for advice
DCED	- Permanent prestressed ground anchor	- for approval - Proprietary products for permanent reinforced fill

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AUTHORITY	DESCRIPTION	REMARKS
DSD	- Operation and maintenance of public drainage/sewerage facilities - Design of drainage / sewerage works - Sewerage Impact Assessments - Drainage Impact Assessments	- for comments - for comments - for comments - for advice and approval
HyD, CHE/Regional Office HyD, SLA/LA HyD, CE/Lighting	- Maintenance of highways structures - Landscape design for projects under HyD - Operation & Maintenance of lighting installation - Lighting Design	- for comments - for advice - for comments - for advice
FSD	- Fire escape routes, dangerous goods licences - Schedule and layout of fire fighting equipment	- for advice - for approval
TD, CE/RSS TD, SE/Std	- Road Safety Design - Highways alignment and traffic management design	- for advice - for advice
LCSD	- Street names	- for comments
LandsD, DLO	- Ground anchor	- for approval
CEDD, SLA/LA	- Landscape design for projects under CEDD	- for advice
DSD, LA	- Landscape design for projects under DSD	- for advice
WSD, LA	- Landscape design for projects under WSD	- for advice
LandsD, DD/SM	- Destruction of survey monument	- for agreement
EMSD	- Operation and maintenance of E&M works - Review on the potential application of energy efficient features and renewable energy technologies as listed in para. 10(c) and (e), and Appendix A of DEVB TCW No. 2/2015	- for advice- for comments
DPO	- Computer system	- for approval
AFCD	- Works within Country Parks	- for approval
GLTMS	- Non-conforming cases on site coverage of greenery for new Government building projects, which have been endorsed by departments	- for comments
WMCG	- Exemption of planting on footbridges and flyovers	- for approval

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APPENDIX 4.6 EXAMPLES OF DESIGN MEMORANDUM

A. A Design Memorandum of A Floodwater Pumping Station of DSD

1 Introduction

1.1 The proposed village polder scheme comprises a protective embankment, a dry type floodwater storage pond and a floodwater pumping station.

1.2 The approximate 1,160 m long protective embankment protects the village (approx. 37,000 m^2) from inundation.

1.3 During a rainstorm, surface runoff is collected by peripheral surface channels along the embankment and conveyed to the floodwater pond.

1.4 As the pond water rises to preset levels, pump(s) is/are triggered to operate and the pond water is lifted over the embankment and discharged into nearby Sha Po channel.

2. Design Criteria

	Criteria
Hydraulic capacity of duty pump	Capable of handling runoff arising from rainstorms of 10 years return period
Hydraulic capacity of both duty pump and standby pump in operation	Capable of handling runoff arising from rainstorms of 50 years return period

3. Floodwater Pumping Station

3.1 The station comprises one duty and one standby screw pumps. During a rainstorm, water collected in the floodwater pond passes through a bar screen at the inlet of the pumping station into the screw pump trough chambers where it is pumped over the protective bund and discharged to Sha Po channel outside the polder.

3.2 One duty and one standby screw pump each of capacity 1.1 m^3/s at inclination of 30° are selected. The screws are to be started with their maximum capacities.

3.3 The pumping operation is automatic. The ON/OFF of pumps is triggered when water level at the inlet chamber reaches predetermined levels at level electrode sensors, which in turn initiates different modes of pumping operation.

3.4 A video surveillance system is used to save manpower in monitoring and inspection of the pumping process. Video signals are transmitted to a control centre set up at San Tin pumping station where remote monitoring and control of crucial components of the pumping station can be carried out.

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3.5 A single storey structure is built to accommodate electrical and mechanical compliance like driving motors, control panel and other E&M appliances. Separate compartments are provided for a standby generator, fuel storage tank and CLP transformer.

3.6 The logic diagram for pumping operation is shown in Appendix I and the schematic diagram in Appendix II.

3.7 The requirement of each functional components of the pumping station is as follows:

(i) Inlet Screen

Type	Manually raked bar screen
Number	1
Gap Width between Bars	l00 - l50 mm (exact dimensions to be determined by E&MP and ST Divisions)
Thickness of Bar	25 mm (exact dimensions to be determined by E&MP and ST Divisions)
Dimension of Inlet Opening	3,400 mm wide x 2,060 mm high

(ii) Pumps

Type	Archimedean Screw
Number	2 (1 duty + 1 standby)
Capacity (each)	1.10 m^3/s
Level of Filling Point of Screws	1.80 mPD
Level of Chute Point	6.00 mPD
Mode of Control	Automatic ON/OFF Control by Electrodes and Remote Control
Dangerous Level Alarm ON	2.50 mPD
High Level Alarm ON	2.40 mPD
Duty Pump ON	1.50 mPD
Duty Pump OFF	1.20 mPD
Standby Pump ON	2.40 mPD
Standby Pump OFF	1.50 mPD

(iii) Standby Power Generator

Type	To be determined by E&MP Div.
Number	1

The power of the generator can drive both the duty and standby pumps to run at the same time.

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(iv) Fuel Tank

Minimum storage of fuel to meet the need of 36-hour of operation of the generator in running both the duty and standby pumps at the same time.

(v) Penstocks

Penstock Number	Location	Size of Opening (mm)	Operating Invert Level (mPD)	Platform Level (mPD)	Remark
P1	Inlet Chamber	1000 x 1000	0.44	3.10	always OPEN
P2	Inlet Chamber	1000 x 1000	0.44	3.10	always OPEN
P3	Emergency Outlet (see Note)	600 x 600	2.00	3.70	always CLOSE (see Note)
P4	Flow Control Chamber	250 x 250	1.70	3.49	OPEN as water level $\leq$ 1.95mPD CLOSE as water level $\geq$ 2.10 mPD

The penstocks P1, P2, P3 and P4 can be both electrically and manually operated but P4 is also automatically controlled by level electrode sensors.

Note: Emergency opening is always closed by penstock P3. Under extreme situation such as failure of both duty and standby pumps, the emergency opening is used to release floodwater accumulated within the poldered area to the nearby channelled watercourse in a shortest possible time when the water level at the watercourse is low enough to discourage channel water from backflowing into the polder area.

(vi) Telemetry Control/Alarm System

Type Determined by E&MP Div.

Telemetry system for monitoring and remote control of the plan operation are provided in aspect of the following operations:

- Switch ON/OFF of screw pumps;
- Operation of penstock P3;
- Transmission of signals of high water alarm and dangerous level alarm to control centre at San Tin pumping station;
- Transmission of video signals received from video surveillance system

(vii) Video Surveillance System

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Type Determined by E&MP Div.

Video surveillance system for visual monitoring of crucial E&M and civil works components and phenomenon as listed below:

- Water level at flood pond;
- Handraked bar screen at screw pump inlet chamber;
- Screw pumps;
- Penstock P3 at emergency outlet;
- Control panel.

(viii) Flow Measurement Device

Type Determined by E&MP Div.

This devise is used to measure the pumped outflow rate. The monitoring electronic signals can be sent to the control centre.

(ix) Low Flow Pumps

Low flow pumps am used to keep the floodwater pond dry or unrainy days.

Location	at screw pump sump
Type	Centrifugal (submersible)
Number	2 (1 duty + 1 standby)
Capacity (each)	approx. 10 l/s
Duty pump IN level	1.0 mPD
Duty pump OFF level	not above 0.5 mPD

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B. A Design Memorandum of Water Supply to West Kowloon reclamation, stage 2 – remaining works, mainlaying along road NR9

1. INTRODUCTION

[Give information and description of project.]

2. MAINLAYING

2.1 DESIGN REFERENCE

Vertical profiles, horizontal alignments, associated fittings and thrust blocks are designed in accordance with the recommendations given in the Civil Engineering Design Manual Vol. II, the WSD's Guidance Note on the Design of Thrust Blocks for Buried Pipelines, and Manual of Mainlaying Practice, WSD.

[Stipulate the standards/references used in the corresponding structures or non-structural elements]

2.2 MATERIALS

Pipes

Ductile Iron (DI) pipe shall be used.

Concrete

Grade 20/20D for thrust blocks and concrete surround.

[State the materials for different structures or under different design criteria.]

2.3 ALIGNMENT

All the pipes will be buried.

[General description of the alignment.]

2.4 COVER

Nominal cover for pipes laying under carriageway : min. 1000 mm

Nominal cover for pipes laying under footpath : min. 1000 mm

[Give details of the cover requirement.]

2.5 DESIGN PARAMETERS

Allowable vertical bearing pressure	=	150 kN/m^2
Unit weight of concrete	=	23.6 kN/m^3

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Unit weight of water	=	9.81 kN/m^3
Unit weight of soil	=	19.0 kN/m^3
Earth cover at testing condition	=	0.5 m
Coefficient of dynamic friction between soil and concrete	=	0.5
Coefficient of passive earth pressure	=	3
Fraction of earth pressure mobilised	=	1/6

[Give design parameters.]

2.6 PRESSURE

i. DN300 F.W. Mains

Top water level of Shek Kip Mei No. 2 & 3 F.W. Service Reservoir : 81.00 mAPD (refer P/R No. 20/95)

Invert level of proposed fresh water mains : 3 mAPD (approx.)

Working Pressure	Testing Pressure
0.8 MPa	1.2 MPa

ii. DN200 S.W. Mains

Maximum pumping head at Cheung Sha Wan S.W. pumping station: 133 m (refer to P/N No. 5/91)

Invert level of proposed salt water mains : 3 mAPD (approx.)

Working Pressure	Testing Pressure
1.4 MPa	2.1 MPa

[State the testing pressures.]

2.7 COMPUTER SOFTWARE

Computer spreadsheet verified by hand calculation is used for the design of thrust blocks.

3. DESIGN CODES AND REFERENCES

The following design codes and references are relevant:

1. BS8110 : Part 1 : 1985
   Structural Use of Concrete : Part 1 Code of Practice for Design and Construction

2. Geoguide 1 – Guide to Retaining Wall Design, Second Edition by Geotechnical Engineering Office, Civil Engineering Department, Hong Kong (1993)

3. Water Supplies Department Standard Drawings Volume I to III (1992)

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4. Civil Engineering Design Manual Vol, II, Water Supplies Department

5. Manual of Mainlaying Practice (1997), Water Supplies Department

6. Guidance Note on the Design of Thrust Blocks for Buried Pipelines, Design Division, Water Supplies Department

7. Planning Report No. 20/95 "Water Supply to West Kowloon Reclamation – Stage II"

8. Planning Note No. 5/91 "Water Supply to West Kowloon Reclamation, Reprovisioning of Cheung Sha Wan Salt Water Pumping Station"

[List the design codes and references to be used in the design.]

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APPENDIX 4.7 CONTENTS OF A BLASTING ASSESSMENT

A Blasting Assessment shall consist of the following:

(a) Site plans clearly indicating the proposed areas of blasting and locations of all sensitive receivers including streets, structures, foundations, railways, public utilities, water mains, drains, sewers, gas mains and other services, geotechnical features such as slopes, retaining walls, boulders, tunnels, caverns, etc. that may be damaged or destabilised by the proposed blasting works.

(b) A report containing the results of a study, including the site topography, geology, ground, groundwater and surface water conditions, and the physical site constraints, sensitive receivers and site history.

(c) A report containing examination of the conditions of the sensitive receivers on and adjacent to the site.

(d) A report containing an assessment of the effects of blasting works to demonstrate that the proposed blasting would not cause any injury to persons or damage to property and sensitive receivers.

(e) Proposals of preventive measures to be carried out for sensitive receivers, if considered necessary.

(f) A list of the action limits to be specified for the implementation of blasting works, including blasting vibration limits and air-overpressure limits, etc. to ensure that the blasting works to be carried out would not cause any injury to persons, damage to sensitive receivers, significant disruption to traffic or undue nuisance to the public. The limits proposed shall take into account the existing conditions of all sensitive receivers. The source of the limits and documentary evidence of consultation and agreement, where appropriate, with the key stakeholders (e.g. owners or maintenance agents) of the sensitive receivers shall be provided.

(g) An outline of the blast design to demonstrate that the blasting works could be safely carried out and the proposed limits and any other constraints could be satisfied.

(h) A document setting out the safety management system to be employed, and the working procedures and sequences, where appropriate, for all blasting works.

(i) Particulars of the site inspections, surveys and monitoring to be carried out to check and measure the effects of blasting, including plans showing the locations of the monitoring stations, the performance criteria and the action limits.

(j) Proposals of protective and precautionary measures to be taken, including any evacuation and closure of public areas (such as roads and other facilities) and warnings needed to protect the sensitive receivers and the safety of the public and workers.

(k) Proposals of the arrangement for delivery of explosives to the site to demonstrate the practicability of completing the blasting works and the rock excavation needed within the construction period.

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(l) If an on-site explosive store is considered necessary, a report containing an assessment of its feasibility and proposed arrangement.

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APPENDIX 4.8 LIST OF CONSTITUENTS OF SUBMISSION ON GEOTECHNICAL WORKS

Submissions on geotechnical works should include drawings showing the following as appropriate:

(i) All permanent geotechnical works for slopes, retaining walls and natural terrain, as well as the associated surface water and groundwater drainage works incorporating the requirements of the report required in para. (F) below;

(ii) The existing nature of the site and the surrounds (including accurate survey plan with ground level contours, geological conditions, groundwater conditions and surface water conditions) and particulars of structures, foundations, public utilities, drains and sewers and other services on and adjacent to the site and within the area influenced by the proposed works;

(iii) Precautions to be taken to protect public safety whilst carrying out the works;

(iv) A schedule of the geotechnical design assumptions;

(v) The sequence of the construction and methods to be employed including any restrictions to be imposed on blasting;

(vi) The particulars of the monitoring to be carried out for structures, services and ground movements, variations of piezometric levels, blasting vibration, air-overpressure from blasting, etc;

(vii) The supervision to be provided on site; and

(viii) Specifications and any other relevant particulars.

The submissions should be accompanied by supporting documentation including:

(A) An explanatory guide to the submission,

(B) A report containing the results of a study including topography, geology, groundwater, surface water, site history, past landslides in the vicinity of the site, adjacent buildings, structures, streets and land, public utilities, drains and sewers, planned and existing pipelines, tunnels, water reservoirs, etc. and other services, and local geotechnical records. Particular emphasis should be given to all relevant geological factors,

(C) A report containing the results of ground investigation field work and laboratory testing including comprehensive details of equipment and procedures used,

(D) A statement of the independent supervision of the ground investigation field work and laboratory testing actually undertaken, including the names and qualifications of the supervisory staff employed,

(E) A report containing the results of site monitoring of groundwater conditions,

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(F) A report containing critical examination and interpretation of information in paras. (B), (C), (D) and (E) above, a schedule of the geotechnical design assumptions, discussion of anticipated geotechnical problems and an outline of variations of the works which should be adopted if, during the carrying out of the works, a geotechnical design assumption is revealed to be erroneous so that the stability of the proposed works cannot be adequately maintained either during construction or in the long term, or damage due to settlement. The report should also include requirements for the design and construction of the proposed works including testing, inspecting, monitoring and maintenance requirements,

(G) A Blasting Assessment with the contents as given in Appendix 4.7 as appropriate, and

(H) Analysis sufficient to demonstrate that the geotechnical works will be stable both during construction and in the long term, design calculations for all permanent geotechnical works for slopes, retaining walls and natural terrain, assessment of the effects of the works and their construction on the groundwater conditions, the site and any structure, utility, geotechnical feature and members of the public, and calculations for and consideration of all other relevant geotechnical matters. All such analyses, calculations and assessments should be paginated and prefaced by a comprehensive index.

For geotechnical submission requirements for foundation works in the Scheduled Areas in the Northwest New Territories and Ma On Shan, and in the Designated Area of Northshore Lantau, see Appendix B of ETWB TCW No. 4/2004.

For geotechnical submission requirements relating to tunnel works, see Appendix A of ETWB TCW No. 15/2005.

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APPENDIX 4.9 GUIDELINES FOR PREPARATION OF CONSTRUCTION AND DEMOLITION MATERIAL MANAGEMENT PLAN (Subsumed from ETWB TCW No. 33/2002)

A Construction and Demolition Material Management Plan (C&DMMP) shall include the following information:

Purpose

- **Spell out the purpose of the C&DMMP**

Background

- **Highlight some background information of the project including policy commitment or pledge**

Scope of Project

- **Spell out the scope of project (with layout plans)**

Implementation Programme

- **Supply an implementation programme (with critical paths shown)**

Development Constraints

- **Highlight the development constraints and assess whether these could be overcome**

Development Options

- **Spell out the preferred development option**
- **Give full justifications for adopting the preferred option**
- **Spell out other development options considered**
- **For each development option, estimate the quantity of C&D materials produced or imported fill required and the associated technical, financial and programming implications**

Management of C&D Materials

- **Give an overview of:**
  - **Total quantity of C&D materials generated with breakdown of different types of materials (e.g. inert soft C&D materials, Grade II or above rock (granitic or volcanic or others), Grade III or below rock, C&D waste, etc.)**
  - **Ways to minimise the generation of C&D materials**
  - **Ways to maximise the use of inert C&D materials**

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- **Ways to maximise the reuse of C&D materials and/or rock on site**
- **Ways to maximise the use of recycled C&D materials**

- **Disposal programme for each type of surplus C&D materials (i.e. inert soft portions, rock and non-inert portions, etc.)**

Conclusions

- **Sum up the C&DMMP**

Recommendations

- **Give recommendations on the way forward**

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APPENDIX 4.10 DEPARTMENTAL CONSTRUCTION AND DEMOLITION MATERIAL VETTING COMMITTEE SUGGESTED COMPOSITION AND TERMS OF REFERENCE COMPOSITION (Subsumed from ETWB TCW No. 33/2002)

Chairman : D2 or above level
Secretary : senior professional rank or above
Members : at least one D1 officer and one senior professional (both of whom are not involved in the project being examined)

Terms of Reference

(a) To scrutinise and endorse construction and demolition material management plan (C&DMMP) and its revisions prepared by project proponent;

(b) To monitor the implementation of the C&DMMP;

(c) To submit a half-yearly status report on the implementation of C&DMMP in June and December to the Public Fill Committee (PFC) for consideration; and

(d) To review those projects exempted from the C&DMMP and check if the actual quantities of materials generated exceed the estimates that justify the exemption. If so, take appropriate control measures and highlight the situation in the half-yearly report for submission to PFC.

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APPENDIX 4.11 GUIDELINES FOR MINIMISING THE GENERATION AND MAXIMISING THE USE OF CONSTRUCTION AND DEMOLITION MATERIALS (Subsumed from ETWB TCW No. 33/2002)

(a) **For reclamation or earth-filling projects, maximise the use of inert C&D materials (known as public fill) in lieu of imported sand or fill from other sources. Consideration should also be given wherever possible to raise the formation level of the project to increase the receiving capacity for public fill.**

(b) **For large-scale site formation projects, considerations should be given wherever possible to adopt a terracing design for the platform, and/or raise the platform level with a view to maximising filling or minimising cutting with retaining structures and other slope stabilisation techniques.**

(c) **For large-scale site formation projects involving disposal of large amount of surplus rock, consideration should be given at feasibility study or preliminary design stage :**

(i) **to introduce an advance quarry contract or on-site crushing facilities to process the surplus rock for on-site or off-site use; and**

(ii) **if (i) is not practicable, arrangements should be made to process the good quality rock at existing quarries.**

Where necessary, project officers should consult the Chief Geotechnical Engineer of the Mines Division, GEO for advice on the appropriate arrangement to put to full use the good quality rock.

(d) **Maximise the reuse of inert C&D materials on site.**

(e) **Maximise the use of recycled inert C&D materials or products with recycled aggregates such as concrete or paving blocks.**

(f) **Maximise the use of steel or aluminum formworks and falseworks.**

(g) **Identify and make provisions for on-site sorting as far as practicable.**

(h) **Project departments should monitor the annual amount of surplus C&D materials generated from all their projects, with a view to limiting the annual surplus to less than 0.3 million m3 for each project wherever possible.**

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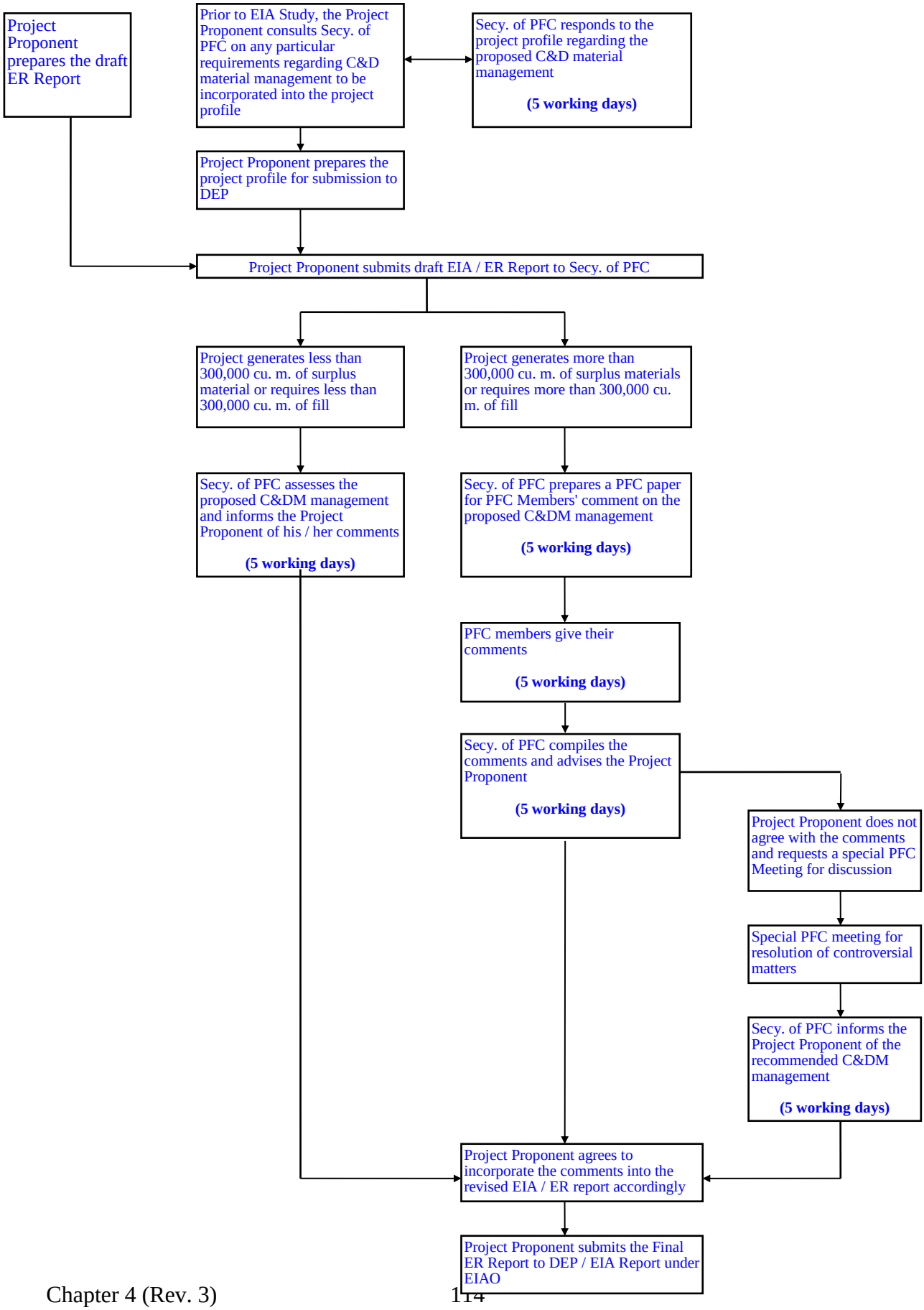
APPENDIX 4.12 FLOW CHART FOR VETTING OF EIA / ER REPORT (Subsumed from ETWB TCW No. 33/2002)



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APPENDIX 4.13 TECHNICAL GUIDANCE ON USE OF HAND-DUG CAISSONS (Subsumed from WBTC No. 9/94)

1. Examples of situations where the use of hand-dug caissons should not normally be permitted include :-

(a) coastal reclamation sites with high groundwater table,

(b) sites underlain by cavernous marble,

(c) deep foundation works (e.g. in excess of say 50 metres),

(d) landfill or chemically-contaminated sites,

(e) sites with a history of deep-seated ground movement,

(f) sites in close proximity to water or sewage tunnels,

(g) sites in close proximity to shallow foundations, and

(h) sites with loose fill having depths in excess of say 10 metres.

2. Examples of situations where the use of hand-dug caissons could be permitted provided there are no further unfavourable factors include :

(a) steeply-sloping sites with hand-dug caissons of less than 25 metres in depth in soil, and

(b) sites with difficult access or insufficient working room where it may be impractical or unsafe to use mechanical plant.

3. Where hand-dug caissons are permitted, consideration should be given to the following precautionary measures and preventive works, as appropriate :

(a) pre-grouting around each hand-dug caisson to increase the shear strength and reduce the permeability of the ground,

(b) installation of cut-off walls or curtain grouting around the site boundary to limit inflow of water,

(c) installation of dewatering wells within the site, possibly supplemented by recharge wells around the periphery of the site to limit the groundwater drawdown in adjacent ground,

(d) construction of the caissons in a suitable sequence,

(e) reduction in depth of each caisson digging stage,

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(f) provision of immediate temporary support for the excavated face prior to the casting of the concrete liner,

(g) provision of reinforcement to the concrete liner,

(h) provision of a drainage or relief well at the position of each caisson in advance of manual excavation,

(i) avoidance of the introduction of new caisson gangs into partly-completed excavations,

(j) completion of proper grouting of ground investigation boreholes and old wells in the vicinity of hand-dug caissons,

(k) provision for good ventilation,

(l) use of well maintained and checked equipment,

(m) safety inspections,

(n) provision of safety equipment,

(o) making an assessment of the risks by a safety professional to the health and safety of the workers whilst at work in caissons and implementing, monitoring and reviewing the measures to comply with the requirements under all existing safety legislation,

(p) monitoring and control of the potential health hazards e.g. poisonous gases, oxygen deficiency, radon radiation and silica dust, and

(q) monitoring the ground water table and possibly the ground and sub-soil movement by installing piezometers and inclinometers around the site boundary when carrying out the foundations works.

References

- **Hong Kong Institution of Engineers (1987). *Guidance Notes on Hand-dug Caissons*. Hong Kong Institution of Engineers, Hong Kong, 15 p.**

- **Occupational Safety & Health Council (1993). *Code of Safe Working Practices for Hand-dug Caissons*. Occupational Safety & Health Council, Hong Kong, 42 p.**

- **(GEO, 2006). Foundation Design and Construction (GEO Publication No. 1/2006). Geotechnical Engineering Office, Hong Kong, 376 p.**

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APPENDIX 4.14 VARIOUS USES OF HARDWOOD ON CONSTRUCTION SITES AND SOME SUGGESTIONS FOR ALTERNATIVES (Subsumed from Appendix A of WBTC No. 32/92)

Possible Uses of Hardwood

1. Hardwood is being used for the following purposes :-

(a)	**Site Hoardings**	**-**	**in both the framing and the panelling.**
(b)	**Formwork**	**-**	**defined as the mould against which concrete is cast and which gives the shape and finish to the concrete surface and which may be permanent or temporary.**
(c)	**Falsework**	**-**	**defined as a temporary structure used to support formwork and a permanent structure until the permanent structure is self-supporting.**
(d)	**Trench support**	**-**	**defined as the shoring, strutting and propping used to support temporary openings below surface ground level.**
(e)	**Primary fix**	**-**	**for example as framework for non load bearing walls.**
(f)	**Secondary fix**	**-**	**for example as doors, door frames, architraves, skirtings, dado rails, cornices and trims.**
(g)	**Fitted furniture**	**-**	**for example, as framing, worktops, and clashing strips.**
(h)	**Building maintenance**	**-**	**to replace existing, for example at refurbishment, wooden block and strip floors.**

2. All of these areas of construction work can be carried out using alternatives to hardwood.

Site Hoardings

3. Site hoardings were traditionally built of hardwood. Some alternatives to hardwood had been recommended by ArchSD. These alternatives include metal frames and metal sheet coverings, softwood framing and softwood veneered plywood and composite boards. These or other alternatives or combinations have already been in use since 1 March 1993.

Formwork/Falsework and Trench Support

4. Temporary formwork/falsework is a major consumer of hardwood.

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5. There are alternative materials for formwork :-

(a) plain or profiled steel sheeting as formwork to support in-situ concrete

(b) precast concrete

(c) structural steel sections

(d) softwood based plywood/medium density fibreboard

6. There are alternatives to falsework and trench support :-

(a) softwood

(b) metal props

(c) propriety steel systems.

7. Each alternative should be considered during the design stage and where benefits can be gained in using one over another, this is to be encouraged. The requirements for the use of materials other than hardwood for temporary formwork/falsework and trench support should be stated in the contract.

Primary and Secondary Fix and Fitted Furniture

8. The use of hardwood for primary, secondary fix and fitted furniture should be carefully considered at the design stage, and alternatives should be explored.

9. The question that needs to be addressed is whether or not hardwood should be used to execute a piece of work. It is arguable that any piece of unseen carpentry or joinery work should not be in hardwood and that only exposed items of carpentry or joinery work should be considered for a hardwood finish.

10. Designers are encouraged to pay more attention to their detailing and where the use of hardwood is unnecessary because it can be replaced by an alternative finish which meets the design criteria, then the alternative should be given preference.

Building Maintenance

11. It is a fact of life that if hardwood is used in the original construction it will be replaced at maintenance by similar when worn out. The designer should recognise this fact.

12. It is equally important that perpetuation of the use of hardwood to replace hardwood should be reconsidered by all involved in the maintenance of buildings and refurbishment work, and where its incorporation in the works is unnecessary an alternative material should be considered as the replacement.

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Conclusion

13. With the proliferation of building materials available more thought is required at the pre-tender stage to consider alternatives to hardwood. Further action on the reduction in the use of hardwood on construction sites is being investigated and reductions in the use of hardwood will be extended to other areas of construction.

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APPENDIX 4.15 ESTIMATING USING RISK ANALYSIS (ERA) PRACTICE NOTE (Subsumed from WBTC No. 22/93)

ESTIMATING USING RISK ANALYSIS

(ERA)

PRACTICE NOTE

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1.0 WHAT IS FINANCIAL RISK?

2.0 WHY ESTIMATING USING RISK ANALYSIS?

3.0 DEFINITIONS

4.0 ESTIMATING USING RISK ANALYSIS

5.0 IDENTIFYING SIGNIFICANT RISKS

6.0 ASSESSING PROBABILITY AND RISK ALLOWANCES

7.0 RECORDING RISK DATA

8.0 QUESTIONS AND ANSWERS SHEET

Annex A - Typical Risk in Construction Projects

Annex B - Probability Graph

Annex C - Format and Worked Example

Annex D - Questions and Answers Sheet

Annex E - Calculation Proforma Sheets

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1.0 WHAT IS FINANCIAL RISK ?

1.1 Financial risk comes from the uncertainty about the cost consequences of incomplete information. It means both uncertainty about the feature in question (its scope) and the result of that uncertainty (its value).

1.2 Risks can arise from planning decisions, where the outcome cannot be adequately costed. The majority of risks however, arise from matters yet to be decided (e.g. incomplete brief or no site investigation). Risk assessment of the cost of uncertain features will be present at all stages of a project. The number of risks will normally decrease as a project progresses through the stages of the Public Works Programme and as the design and planning develop, but new risks may appear after planning is complete and even during construction.

1.3 Risk can be referred to as a "contingency", or a "significant risk allowance" or a "risk feature" or similar. The terms mean the same thing i.e. the probable cost of uncertainty.

2.0 WHY ESTIMATING USING RISK ANALYSIS?

2.1 All too often risk is either ignored or dealt with in an arbitrary way by simply adding (about) 10% "contingency".

2.2 The traditional manner of preparing a project estimate allows little scope for provision against risks. Any allowance made for $ value of risk is included on a once and for all basis with no formal method of updating it other than for inflation. Risks are not separately identified for methodical evaluation and the allowances are often set too high or double accounted in an item and again in a general contingency sum.

2.3 Risk analysis should be one of the most creative but also exacting tasks of project management. It should generate realism by encouraging problem solving.

2.4 Estimating needs to be structured, logical, accountable and easy to explain and trace. Estimating using Risk Analysis (ERA) does this.

2.5 ERA is a procedure to identify project (or contract) related risks in a formal manner and then to give a realistic estimated cost for each risk which makes the relevant importance of each risk immediately apparent.

2.6 As the project is developed towards the tender stage(s) the object is to resolve as much of the uncertainty as possible, concentrating on the major risks.

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3.0 DEFINITIONS

3.1 There are two types of estimate viz :

(a) Base Estimate The "risk free" part i.e. the certain features, the work that is unlikely to change, prepared by pricing the known features using current rates and prices and standard techniques appropriate to the stage of the project.

(b) Average Risk Estimate The total of all Average Risk Allowances (see 3.3) plus the Base Estimate. It is the figure reported as the estimate in PWSC/FC papers and the like.

3.2 There are two types of Risk Assessment viz :

(a) Fixed Risk Assessment A risk which will be incurred as a whole or not at all. Although an "all or nothing" allowance, the likelihood of it occurring can vary and this likelihood or probability also needs to be assessed.

e.g. A secondary access road can be required in total or not at all. The need or probability may be assessed as "likely", therefore the probability might be decided as a 65% chance of being required (see Annex B).

(b) Variable Risk Assessment A (usually certain) risk relating to an event or feature which can occur in varying degrees, with correspondingly varying probabilities.

e.g. Piling, where the design and cost vary depending on the sub-strata. Both the probability of using a particular piling solution as well as the probable length of the piles have to be assessed to estimate the allowance.

3.3 There are two types of Risk Allowance viz :

(a) Maximum Risk Allowance The estimated sum of money required if a risk were to occur to its full extent. It is only used as the basis of comparison with the Average Risk Allowance, and is not added into the estimate build-up.

(b) Average Risk Allowance

(i) For a Fixed Risk, it is the product of the Maximum Risk Allowance and the assessed probability of the risk occurring – i.e. paras 3.2(a) x 3.3(a).

(ii) For a Variable Risk, it is the estimated sum of money which is assessed as having a fifty/fifty chance (i.e. 50% probability) of being exceeded. This may be anywhere on the probability chart (Annex B).

In each case the project team is using their experience and judgment

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to decide the probability.

4.0 ESTIMATING USING RISK ANALYSIS

4.1 ERA is not limited to projects (or contracts) of any particular type or value. It is essentially a brain-storming process of compiling realistic forecasts and answers to "what happens if?"

4.2 The main activities in ERA are :

(a) identifying significant risks,

(b) assessing the probability and extent of those risks occurring, and

(c) establishing appropriate $ values for the risks.

4.3 Any estimate is made up of two separate parts -

(a) the work, and

(b) the pricing.

ERA concentrates on (a), though if the accuracy of the prices is suspect, it might be treated as a significant risk.

4.4 ERA is most useful when the unknowns are greatest i.e. Cat C and B. At Cat A the work should be almost "risk free", but the estimate presentation should not change.

4.5 The benefit of ERA will only be realised where risks are considered by the project team (and when appropriate the client department) who should initiate enquiries, obtain information and evaluate the risks together. Identifying risks and assessing probabilities is a collective responsibility which avoids the risk of incomplete commitment and inconsistent decisions.

4.6 Each significant risk is estimated separately. Only those risks which are considered significant are included in the risk analysis. What constitutes a significant risk will vary between projects.

4.7 The extent or scope of the work included in any estimate shall be set down in a concise description of key features, referred to as the Estimate Description.

4.8 As the project is developed the uncertainties are resolved. This continuing process can identify cost reductions.

4.9 At each stage of re-estimating, each resolved risk becomes a known requirement and its cost allowance is then added to the Base Estimate. If the re-estimated cost of the resolved risk differs from its previous cost allowance, this difference is -

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if greater **added as part of the re-estimated cost to the Base Estimate (i.e. the total re-estimated cost is included and the increase funded from the contingencies);**

or if less **held in the general contingencies to cover the cost of unresolved risks that on review exceed the previous anticipated cost, or used to compensate for any additional cost of other resolved risks transferred to the Base Estimate, or for entirely new risks.**

i.e. **As a general rule surplus money from identified savings is held in the general contingencies, not "lost" by reducing the Average Risk Estimate. This is very important when the total value of unresolved risk is relatively high (e.g. when the works will have to be remeasured). Where there is a relatively low total unresolved risk value (e.g. lump sum contracts) it may be possible for the Cat A estimate to be reduced by the value of savings made on resolved risks, particularly if the resolved risk savings are from Fixed Risks. Judgment needs to be used.**

4.10 The terms "general contingencies" and "contract contingencies" are used in the example (at Annex C) to separate these contingencies from the term "project contingencies". Whilst they are in effect the same thing, project contingencies have a special meaning in ACP cost control procedures.

5.0 IDENTIFYING SIGNIFICANT RISKS

5.1 ERA requires the identification of those features of a project (or contract) that are at risk of changing. The project team (and client department when appropriate) should meet to analyse the risks at the feasibility stage and thereafter when necessary to achieve the degree of information necessary to identify all significant risks and reduce or eliminate them.

5.2 The risks included in any previous analysis shall be reviewed and identified new risks included.

5.3 The approach to risk analysis is not based upon any established risk classification. Risks identified as relevant and significant should be arranged in the most appropriate groupings and order at each estimating stage. The inclusion of a risk under a particular heading does not exclude it from another (i.e. separating the Fixed Risk and the Variable Risk elements).

5.4 The project team should keep sufficient notes on file to ensure that the reason(s) for the inclusion or exclusion of a risk is sufficiently documented to enable the origin to be easily identified at each review.

5.5 As each risk is identified its significance, whether it is a `fixed' or a `variable' risk and its probability must be agreed.

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5.6 Having identified and placed a value on each risk, the object is to concentrate on resolving those with the highest cost

5.7 Preparing the Base Estimate and calculating Average Risk Allowances to arrive at the Average Risk Estimate should be carried out by the officer (in consultation, see para 4.5) responsible for compiling the overall project estimate at each estimating stage.

5.8 A list of circumstances giving rise to risk in construction projects is at Annex A. The list is not exhaustive.

6.0 ASSESSING PROBABILITY AND RISK ALLOWANCES

6.1 The process of assessing probability is the most unfamiliar aspect of ERA. A scale of probability from 0% (chances are nil) to 100% (certain) is used. In the former case the circumstance is not a risk and would not be considered in the estimate. In the latter case the circumstance is also not a risk but would be considered in the calculation of the Base Estimate. Anything between the two extremes would be considered in the Risk Analysis calculation if the risk was considered significant.

6.2 Assessment of probability is not an exact science, therefore it is appropriate to use familiar language, which can be translated into a probability percentage, as set out in Annex B. Examples from this are -

Statement	Meaning	Probability Suggested for ERA
Highly unlikely	Very little chance	10-20%
"Little chance"	Not more than slight probability - of occurrence (fixed risks) - of exceeding ..... (variable risks)	31-40%
"Unlikely"	-	41-50%
"Better than even"	Average likelihood - of occurrence (fixed risks) - of exceeding ..... (variable risks)	51-60%
"Likely"	-	61-70%
"Highly likely"	-	81-90%

6.3 The technique for assessing probability differs for Fixed Risks and Variable Risks.

For Fixed Risks the probability is assessed against the Maximum Risk Allowance and the Average Risk Allowance is

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calculated from it (see para 3.3). The cost consequences are assessed as in para 6.2 i.e. "little chance" through to "highly likely" to be exceeded.

For Variable Risks **the probability of "Average" is pre-determined (see para 3.3(b)). The "Average" allowance has no constant relationship to the Maximum Risk Allowance i.e. the probability of a fifty/fifty chance that the estimated cost will be exceeded does not automatically equate to 50% of the Maximum Risk Allowance. However, the cost consequences must be assessed as for a Fixed Risk i.e. using Annex B.**

6.4 Risk can also be interdependent (e.g. design solutions can affect the tenderer's pricing, the contractor's operations and the client's cash flow). Interdependent risks that are not individually significant should be listed and treated as a single group. If the group is considered to be significant, the combined risk allowance for it will equal the sum of the separate figures for each feature in the group. But, any risk considered to be significant must be assessed and allowed for separately.

7.0 RECORDING RISK DATA

7.1 The record that should be kept at each estimating stage is indicated in the Worked Example at Annex C. ERA calculations should be to a standard format varied to meet special needs. The proforma is at Annex E.

8.0 QUESTIONS AND ANSWERS SHEET

8.1 A number of questions have been asked during ERA workshops. They are set out, with answers at Annex D.

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Annex A

Typical Risk in Construction Project

The list indicates the estimating stages at which the itemised risks are likely to have significant cost consequences.

	Feasibility	Cat C	Cat B	Cat A
CLIENT				
Schedule of Accommodation/Engineering Conditions/Specification				
- Additional buildings/facilities	*	*		
- Access roads	*	*		
- Special facilities	*	*	*	
- Air conditioning/ventilation	*	*	*	
- Design development	*	*	*	
Timing				
- Early/phased hand-over	*	*	*	*
- Delayed start on site	*	*	*	*
- Availability of funds	*	*	*	*
Financial/Contractual				
- Unconventional tender action	*	*	*	*
- Special contract arrangements	*	*	*	*
- Availability of funds	*	*	*	*
Statutory Requirements				
- Delay due to meeting requirements	*	*	*	*
- Fire service requirements	*	*	*	*
Quality Assurance/Standards				
- Client department requirements	*	*	*	*
Site/Physical				
- Difficulty of access	*	*	*	*
- Sub-strata type and variability	*	*	*	
- Ground water conditions	*	*	*	
Site/Environmental/Legal/Planning				
- Planning requirements	*	*	*	
- Sewerage/waste treatment	*	*	*	
- Noise abatement	*	*	*	
- Availability of services	*	*	*	
- Occupied site	*	*	*	*
DESIGN				
Suitability	*	*	*	*
Site Constraints				
- Structural/foundation requirement	*	*	*	

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Unfamiliarity				
- **Pioneer design**	*	*	*	*
- **Experience of design team**	*	*	*	*
- **Continuity of team**	*	*	*	*
ESTIMATING/PRICING				
Quality of pricing data				
- **Improvement in quality from the Feasibility Stage**	*	*	*	*
Accuracy of Pricing				
- **Changes of labour/materials/plant costs**	*	*	*	*
Market Conditions				
- **Tenderers response to anticipated market situation at time of tendering**	*	*	*	*
- **location**	*	*	*	*
Pricing data for Tenderers	*	*	*	*
CONSTRUCTION				
Bankruptcy/Insolvency of Contractor(s)	*	*	*	*
Variations				
- **Effect on contract duration and price**	*	*	*	*
- **Effect of number of orders**				
Construction Delays				
- **Availability of labour/materials/plant**	*	*	*	*
- **Likelihood of claims**	*	*	*	*
Number of Sub-Contractors	*	*	*	*
Site Management/Supervision	*	*	*	*

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Annex B

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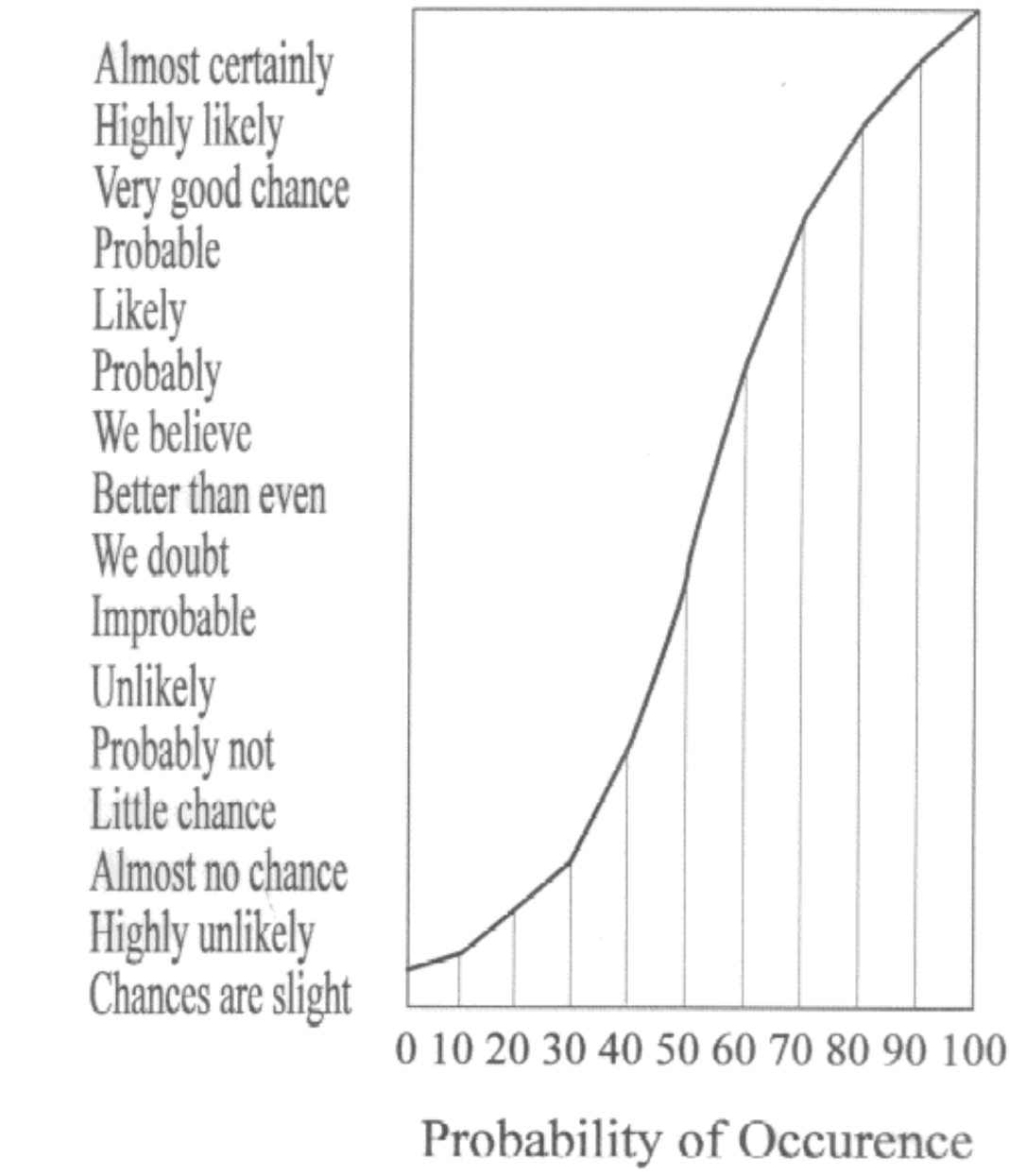
Probability Graph



Architectural Services Department
January 1993

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Annex C

Example of ERA Calculation

PROJECT DETAILS

1.0 Estimating Stage

1.1 Outline Sketch Design Stage (Jan 91)

1.2 Inclusion in Category C

2.0 Information Known

2.1 The project is a new fifteen storey Multi-user Government Office Building at Tuen Mun.

2.2 Client brief given at inception was in outline form with only basic space standards stated. The brief contains a requirement for a functional area of 18 260 m^2 but there is a good chance that a further 10% will be needed. Ancillary and circulation adds 15% to area.

2.3 No site survey or site investigation has been undertaken but the area is known for difficult ground conditions and piling is needed in most cases.

2.4 Crisis in the Middle East is threatening the price of oil, interest rates and availability of credit.

2.5 Air-cooled A/C fan coil units is proposed but this may have to change to seawater cooled which would incur increased mains water costs.

2.6 The plot ratio is 1:15 and the position of the building has not been decided on the site.

2.7 ASD are acting as Project Managers and QS's but all other disciplines are different consultants.

2.8 Base Estimate 18 260m^2 + 15% = 20999m^2
say 21 000m^2 x \$8,000.00/m^2 = \$168,000,000.00

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Assessment of Risk

			$
Design Development	: overall cost 21 000m² x $8,000	=	168,000,000
V	*maximum likely* say 7.5%	=	12,600,000
	average risk say 5%	=	8,400,000
Additional Space	: *maximum likely* say 2 100m² x $8,000	=	16,800,000
F	*average risk* : probably say 70%	=	11,760,000
Site Conditions	: substructure 21 000m² x $375	=	7,875,000
V	*maximum likely* additional Piling Cost	=	1,000,000
	average risk say another $25 per m²	=	525,000
Market Conditions	: indices based on TPI average		
V	Available : 3rd Qtr 90 = 582		
	Projection : 1st Qtr 91		
	say 610 + 5% location = say 640		
	: this is the TPI level of the OSD estimate.		
	maximum likely = (670 - 640)/640 x $168m		
	= $7,875,000 say $8,000,000		
	but is this enough in today conditions		
	i.e. Middle East crisis?		
	Suggest we use $8,500,000	=	8,500,000
	average risk is based on the current conditions and we feel that it's as likely as not that the average of the TPI will not be enough : use say 655		
	average risk (655 - 640)/640 x $168m		
	= $3,937,500 say	=	4,000,000
A/C Cooling Source	: *maximum likely* :		
V	extra cost incl. mains supply say	=	1,250,000
	average risk :		
	extra cost of sea-water pipework say	=	250,000
Access Road	: cost of long access road		
F	*maximum likely* say	=	500,000
	average risk :		
	better than even say .50 probability	=	250,000
Additional	: *maximum likely* say 2.5%	=	4,200,000
Client Requirements	*average risk* say 1%	=	1,680,000
Contract Variations	: *maximum likely* say 7.5%	=	12,600,000
V	*average risk* say 5%	=	8,400,000
Project Co-ordination	: *maximum likely* say	=	1,500,000
V	*average risk* say	=	500,000
Maintaining Contract Period	: Completing additional requirement in original anticipated Contract Period of 18 months		
F	*maximum likely* say	=	1,750,000
	average risk : likely say .60 probability	=	1,000,000

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Note : For maximum likely risk a probability factor of 1 in 10 of being exceeded has been assumed.
V = variable risk
F = fixed risk

ERA Calculation

(1)	(2) Type	(3) Probability of Occurrence (Fixed Risks Only)	(4) Average Risk Allowance $	(5) Max. Risk Allowance $	(6) Spread (5) - (4)$ $ x 10^{-5}	(7) Spread Square $
Design Development	V		8,400,000	12,600,000	42	1764
Additional Space	F	.70	11,760,000	16,800,000	50.4	2540.16
Site Conditions	V		525,000	1,000,000	4.75	22.56
Market Conditions	V		4,000,000	8,500,000	45	2025
A/C Cooling Source	V		250,000	1,250,000	10	100
Access Road	F	.50	250,000	500,000	2.5	6.25
*Additional Client Requirements	V		1,680,000	4,200,000	25.2	635.04
*Contract Variations	V		8,400,000	12,600,000	42	1764
*Project Co-ordination	V		500,000	1,500,000	10	100
Contract Period	F	.60	1,000,000	1,750,000	7.5	56.25
	Subtotal :		$36,765,000			√ 9013.26

Sq root = 94.94

Maximum Likely Addition=$9,494,000

Average Risk Estimate = Base Estimate + Average Risk Allowance = $204,765,000 (21.88% on base)
Maximum Likely Estimate = Base Estimate + Average Risk Allowance + Maximum Likely Addition
= $214,259,000 (27.54% on base)

The Project Estimate :		Base Estimate	$ 168,000,000	
Average Risk Allowances	*	Contract Contingencies	$ 10,580,000	Sub total at (4) split decided by project team
		General Contingencies	$ 26,185,000	
		The Average Risk Estimate	$ 204,765,000	

Note : Significant risk should be resolved as soon as possible because of high probability/high impact.
V = variable risk
F = fixed risk

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Example of ERA Calculation

PROJECT DETAILS

1.0 Estimating Stage

1.1 Final Sketch Design Stage (Jan 92)

1.2 Inclusion in Category B

2.0 Information Known

2.1 The project is a new fifteen storey Multi-user Government Office in Tuen Mun.

2.2 Client brief now firmed up and space standards know. Actual gross floor area is 22 250m^2.

2.3 Site investigation and site survey undertaken. Indication is that piling over 30m will not be required but the ground bearing capacity will dictate the number of piles and their bearing strengths. Site now found to be on partially filled land with many obstructions hidden in ground.

2.4 Crisis in Middle East resolved, oil price stabilises, interest rates drop as inflation comes under control.

2.5 Decision made to provide sea-water cooling for fan coil units, new mains required.

2.6 Building positioned at rear of site with long access road.

2.7 End users identified for office block. We believe there is a possibility that the external cladding will need to be enhanced. We may be restricted to front elevation but we feel there is little chance that his will happen and all elevations will be involved.

2.8 So far the interaction of the design disciplines has been very good.

2.9 Base Estimate 22,250m^2 x $8,080.00/m^2 say = $180,000,000.00

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Assessment of Risk

			$
	: overall cost 22 250m^2 x $8,080	=	180,000,000
Design Development	*maximum likely* say 5%	=	9,000,000
V	*average risk* say 3%	=	5,400,000
Additional Space	: no longer a risk, in base estimate		
Site Conditions	: obstructions in ground		
V	*maximum likely* say	=	750,000
	average risk say	=	250,000
Market Conditions	: indices based on TPI average		
V	Available : 3rd Qtr91 = 573		
	Projection : 1st Qtr 91		
	say 610 + 5% location = 640		
	: market recession		
	maximum likely = (655 - 640)/640 x $180m		
	=$4,218,750 say	=	4,250,000
	average risk : market recession		
	chances are slight say 0%	=	0
A/C Cooling Source	: all cost included in base estimate		
Access Road	: all cost included in base estimate		
External Cladding	: concern over external cladding, public access		
V	and building location : likely to cost extra		
	maximum likely		
	say $500 per m^2 cladding = 9 000m^2 x $500	=	4,500,000
	average risk		
	say $350/m^2 cladding = 9,000m^2 x $ 350	=	3,150,000
Redesign	: redesign increases ground floor area by 25%		
F	other changes balance out because of better		
	wall/floor ratio's etc		
	maximum likely = 1,500m^2 x 25% x $8,080	=	3,030,000
	average risk : probable : 75% probability say	=	2,275,000
Additional			
Client Requirements	: *maximum likely* now reduced to 2%	=	3,600,000
V	*average risk* say 1%	=	1,800,000
Contract Variations	: *maximum likely* say 7.5%	=	13,500,000
V	*average risk* say 5%	=	9,000,000
Project Co-ordination	: *maximum likely* a nominal $500,00	=	500,000
V	no *average risk* as management is so good	=	0
Maintaining	: Completing additional requirement in original		
Contract Period	anticipated Contract Period of 18 months		
F	*maximum likely* say	=	2,000,000
	average risk : highly likely : .90 probability	=	1,800,000

V = variable risk
F = fixed risk

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ERA Calculation

(1)	(2) Type	(3) Probability of Occurrence (Fixed Risks Only)	(4) Average Risk Allowance $	(5) Max. Risk Allowance $	(6) Spread (5) - (4)$ $ x 10^{-5}	(7) Sprea Squar $
Design Development	V		5,400,000	9,000,000	36	1296
Additional Space	F	no longer a RISK				
Site Conditions	V		250,000	750,000	5	25
Market Conditions	V		0	4,250,000	42.5	1806.25
A/C Cooling Source	V	no longer a RISK				
Access Road	F	no longer a RISK				
External Cladding	V		3,150,000	4,500,000	13.5	182.25
Redesign	F		2,275,000	3,030,000	7.55	57
*Additional Client Requirements	V		1,800,000	3,600,000	18	324
*Contract Variations	V		9,000,000	13,500,000	45	2025
*Project Co-ordination	V		0	500,000	5	25
Maintaining Contract Period	F		1,800,000	2,000,000	2	4
	Subtotal :		23,675,000			5744.50

Sq root = 75.792
Maximum Likely Addition =$7,579,20

Average Risk Estimate = Base Estimate + Average Risk Allowance = 203,675,000 (13.15% on base)
Maximum Likely Estimate = Base Estimate + Average Risk Allowance + Maximum Likely Addition
= $211,254,200 (17.36% on base)

The Project Estimate :		Base Estimate	$ 180,000,000	
Average Risk)	*	Contract Contingencies	$ 10,800,000	) Sub total at (4)
)				) split decided
Allowances)		General Contingencies	$ 12,875,000	) by project team
		The Average Risk Estimate	$ 203,675,000	

Note : Significant risk should be resolved as soon as possible because of high probability/high impact.
V = variable risk
F = fixed risk

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Annex D

ERA - Questions and Answers

	Question	Answer
1.	In the example, why use the square/square root?	The full effect of all the significant risks occurring is unlikely. This calculation produces a more accurate Maximum Likely Addition. When added to produce the Maximum Likely Estimate, the latter can be used as a benchmark to assess the overall reliability of the Average Risk Estimate.
2.	The Variable Risk 50/50 chance of being exceeded concept is hard to understand.	There is no easy explanation. One way of looking at it is by reference to the probability chart (Annex B). Alternatively, gauge the sum of money that your experience tells you that the "level" is about right, the sum of money that reflects the average likely price for the risk and to go any lower would mean that the chance of being exceeded is higher than 50/50.
3.	Given the way the probability chart if used, the word "average" does not seem correct.	Strictly speaking that is right. "Average" implies "in the middle" when assessing a risk allowance. We use the word in the context of estimating the general price-level of the risk.
4.	Market conditions are a major risk. How do we deal with it?	Whatever else we do, FB rules say we don't forecast the market. The estimate is always done at current prices i.e. the pricing data is up-dated to reflect the prevailing market conditions and ignores any obvious trend i.e. the expected overall tender response to the project should be allowed for by adjusting the pricing data used in preparing the estimate. Are the tenders likely to price higher/lower than the pricing data?
5.	If we cannot include an inflation forecast in the estimate, how do we arrange for and pay fluctuations?	This appears to be an anomaly between the FB rules and what has to be done in practice. When asked, FB will refund money paid against fluctuations. We initially deal with it by using the contingency sum, which strictly speaking should only be used for design development and for the wholly unexpected (within the original scope of the works) and only ask FB if we run out of money. This point has been raised with FB.

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	Question	Answer
6.	How do we present the estimate in PWSC/FC paper?	It will look the same i.e. a list of the main scope of work items, plus a contingency sum. The price of each outstanding risk is added to the appropriate work item, with the contingency sum reflecting the design development allowance plus the amount of "general" contingencies held (see below).
7.	What is the difference between "contract" and "general" contingencies?	At each stage in the PWP the project estimate may represent more than one contract. Each contract will include a design development contingency. As the uncertainties are removed and if savings are identified, they are "held" in a general contingency until the team is happy that other existing risks will not turn out to be much higher than expected, or that some new risks won't occur. In which case the savings can be reflected by reducing the general contingency and the estimate, usually when all or part of the project is to be up-graded to Cat A.
8.	The rates are a major risk. If they are wrong, the whole exercise is a waste of time. What is being done?	ERA focuses on exposing uncertainty so that the major uncertainties affecting the estimate can be answered. The estimate still needs to be realistically priced. For engineering projects we are working on a schedule of standard descriptions, and standard basic elements, to be computerised so that pricing information can be quickly up-dated. A computerised data base is already available in ArchSD. If you feel that the pricing data is not appropriate, do a further risk assessment on the pricing data.
9.	What if there is a fixed risk that if it occurs, is a variable risk (e.g. in access road in a cutting where soil/rock conditions are not known)?	The estimated price for the road is included in the Base Estimate. All other significant risks associated with it are categorised as fixed or variable risks and included in the Average Risk Estimate.

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ANNEX E

ERA CALCULATION

Project (Title):

Programme No/Item No *(or other identifier)*:
Client:
Project Status: *(eg Cat C, B, A)*

Design Stage *(eg Outline, Sketch, Detailed)*
Description of Works:

Layout Drawing No(s):

Scope Approval
Agreed by Client *(Name & Post)*: Dated
Agreed by Department *(Name & Post/Committee)*: Dated

Base Estimate *(Latest measured Estimate and Estimate Description is attached)* **YES/NO**
Prepared By: Post: Date:
Checked By: Post: Date:

Description of works	Quantity	Unit Rate*	Total	Remark
(use continuation sheets if needed)				

* based on current prices for similar work

ERA pro-forma calculation sheet Page 1 of 4

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ANNEX E

Description of Potential Risks and Uncertainties:

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ANNEX E

Assessment of Risk

Risk *(state if V/F where V = variable risk & F = fixed risk)*	Cost of Risk *(calculation)*	$

ERA pro-forma calculation sheet Page 3 of 4

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ANNEX E

ERA - CALCULATION

(1) Item of Risk (construction risk items to be marked thus *)	(2) Type V/F	(3) Probability of Occurence (Fixed Risks Only)	(4) Average Risk Allowance $	(5) Max.Risk Allowance $	(6) Spread (5)-(4) $	(7) Square of the Spread $(6)^2$ $

Sub total (4): ____ Σ (7) = ____

√(Σ(7)) = Max Likely Addition ($) = ____

Average Risk Estimate = Base Estimate + Σ Average Risk Allowances = $ (% *on Base Estimate*)

Maximum Likely Estimate = Base Estimate + Σ Average Risk Allowances + Maximum Likely Addition = $ (% *on Base Estimate*)

The Project Estimate at date:

Base Estimate $

Average Risk Allowances {* Contract Contingencies $
(split of sub total at (4) decided by ERA estimator) { General Contingencies $

The Average Risk Estimate $

Prepared by: Post Date:

Approved by: Post Date:

File Ref:

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APPENDIX 4.16 NOT USED

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APPENDIX 4.17 NOT USED

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APPENDIX 4.18 NOT USED

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APPENDIX 4.19 NOT USED

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APPENDIX 4.20 GUIDELINE ON PLANNING AND IMPLEMENTATION OF GROUND INVESTIGATION PROJECTS IN ECOLOGICALLY SENSITIVE AREAS

Purpose

1. Ground investigation (GI) projects are often carried out to support studies and public works projects. The purpose of this guideline is to provide guidance to project officers/consultants on the planning and implementation of GI projects in ecologically sensitive areas. The aim is to provide guidance on implementation of GI projects (especially on the associated access route/haul road) under the Environmental Impact Assessment Ordinance (EIAO) (Cap. 499).

2. In this document, "ecologically sensitive areas" refer to those land-based areas, including country parks or special areas, conservation areas, and sites of special scientific interest, listed in Item Q.1 of Schedule 2 of the EIAO. This guideline will not cover sites of cultural heritage[3] or other non-land based ecologically sensitive areas (including marine parks or marine reserves)[4].

Introduction

3. Under ETWB Technical Circular (Works) No. 13/2003, "Guidelines and Procedures for Environmental Impact Assessment of Government Projects and Proposals", subject to the advice of Director of Environmental Protection (DEP), ground investigation which is for the purpose of detailed design and is not considered as the first phase of a designated project can be classified as a non-designated project. Special attention should be given to checking against whether the proposed GI works are within the sensitive areas listed in Item Q.1 of Schedule 2 of the EIAO. If the proposed GI investigation works fall within the ecologically sensitive areas and the works involved are not minor in respect of environment impact, such works may become a designated project and if required by the DEP the project proponent should follow the statutory EIAO procedure.

General Principles

4. GI projects commonly comprise GI works such as boreholes, trial pits, slope surface stripping, etc. These works involve a very small amount of excavation and require a small working area. However, where access routes or haul roads to the GI stations are required to be formed, they may involve site clearance, excavation and removal of massive quantities of soil, rock or trees, and disturbance to adjacent flora and fauna. These works might result in significant and irrevocable damage to the environment.

5. The project office/consultants planning and managing a GI project in an ecologically sensitive area should make a submission to EPD for their confirmation on whether the project can be classified as a Non-Designated Project under the EIAO. EPD will consider each GI project on a case-by-case basis. EPD will normally respond within 21 days upon

[3] For GI projects within or affecting sites of cultural heritage, they should be conducted following the procedures and requirements given in Development Bureau Technical Circular (Works) No. 1/2022 "Heritage Impact Assessment Mechanism for Capital Works Projects".

[4] For GI projects within or affecting other non-land based ecologically sensitive areas, they should be considered case by case. Proponents are encouraged to liaise with DEP about the implementation procedures and requirements.

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receipt of a finalised GI project proposal and the Director of Agriculture, Fisheries and Conservation's confirmation of no in-principle objection to the proposed GI works from the project office/consultants. The GI project proposal should include a plan showing the locations of proposed GI stations and access routes or haul roads, and contain explanatory statements on the purpose, nature, scale and scope of the GI project. The project office/consultants should confirm the compliance with this guideline. Relevant information should also be provided by the project office/consultants to address the issues mentioned in para. 11 and 12 of this guideline.

Planning of Ground Investigation Works

6. The general principles of mitigating ecological impacts, in order of priority, are avoidance, minimisation and compensation. In planning the GI projects, project offices/consultants must avoid potential impacts to the maximum extent practicable such as adopting suitable alternatives. Unavoidable impacts shall be minimised by taking appropriate and practicable measures. The loss of important species and habitats may be provided elsewhere as compensation. For details of guidelines for ecological assessment, project officers/consultants may refer to the Technical Memorandum on Environmental Impact Assessment Process.

7. Some GI projects may be contiguous projects to designated projects under the EIAO. Project officers/consultants are advised to seek EPD's confirmation in accordance with para. 3 of this guideline.

8. Although the volume of excavated soil/rock from individual GI stations is very small, the project office/consultants planning the GI project should pay attention to their aggregate effect on the environment. In this regard, they should keep the scale of the GI works, in terms of areal extent and excavation volume, to the minimum possible, taking into account the project requirements and the site conditions.

9. The project office/consultants should carry out a joint site reconnaissance with the GI contractor, the land owner/maintenance agent and other concerned parties, to identify suitable locations for GI stations and access routes which would involve the minimum excavation and disturbance to existing vegetation and natural habitats. In an ecologically sensitive area, appropriate authorities including AFCD, WSD (for GI works within water gathering grounds) and EPD should be consulted, to give advice on areas within their jurisdiction and on the conditions to be followed in the planning and carrying out of the GI project.

10. If at the investigation stage an individual GI contract is to be let (and hence the GI contractor is not yet on board), the project office/consultants should still carry out the joint site reconnaissance with the land owner/maintenance agent and other concerned parties, and consult the relevant authorities as described in para. 9 of this guideline. The agreed locations of the GI stations and access routes or haul roads, together with the conditions laid down by the relevant authorities, should be stated in the tender documents for compliance by the GI contractor.

11. Where trees of particular value (e.g. Old and Valuable Trees) and/or vegetation of protected/endangered/rare/precious species are found, the project office/consultants should ensure that the GI stations and access routes or haul roads are set at a sufficient distance away or otherwise protected to avoid adverse impacts. The project

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office/consultants should consider positioning some of the GI stations near the edge of the sensitive area for easy access from immediately outside the area.

12. The access routes should be planned in advance and carefully constructed to avoid adverse impacts on the sensitive receivers such as water courses, wildlife habitats and places of high visual value. In an ecologically sensitive area, the GI contractor should not be allowed to carry out earthworks involving excavation of massive quantities of soil or rock or clearance of a large number of trees to form an access route or a haul road. The existing paths/tracks should be used as far as possible. In all areas, prior agreement/approval should be obtained from land owners and relevant authorities before commencement of works.

13. The project office/consultants should instruct the GI contractor to erect temporary scaffolding platform and/or ladders for the purpose of providing access across sloping ground and/or densely vegetated areas. The size of the scaffolding platforms should be kept to the minimum necessary and the associated works for erecting the platforms should avoid felling/trimming of trees as far as possible.

14. Where necessary, e.g. road access to the GI stations would require earthworks involving excavation of massive quantities of soil or rock or clearance of a large number of trees, the project office/consultants should instruct the GI contractor to deploy helicopters for transport of plant and equipment to the GI stations instead of using road access.

15. The GI contractor should be required to ensure that the working area for each GI station is kept to the minimum necessary (e.g. normally 8m x 2m for boreholes and 4m x 2m for trial pits).

16. Where suitable flat working space is not available for drilling rigs, the project office/consultants should instruct the GI contractor to erect temporary scaffolding platforms and not to carry out earthworks involving excavation of massive quantities of soil or rock or clearance of a large number of trees.

17. The Director of Agriculture, Fisheries and Conservation is the Country and Marine Parks Authority under the Country Parks Ordinance (Cap. 208). For GI works that fall within Country Parks or Special Areas, prior written consent from the Country and Marine Parks Authority must be obtained before commencement of any works. The Country and Marine Parks Authority will lay down conditions in giving consent to proposals on GI to be carried out in country parks or special areas (see para. 20).

18. Where it is necessary to fell trees, the project office/consultants should obtain advice/approval of land owners and relevant authorities. Relevant Government circulars and guidelines on this are available at the Cyber Manual for Greening (http://devb.host.ccgo.hksarg/en/contactus/index.html). Reference should also be made to para. 4.10 of PAH Chapter 3, and DEVB TCW Nos. 4/2020 and 5/2020.

Implementation of Ground Investigation Works

19. The project office/consultants should provide site supervision to ensure that the GI contractor complies with the conditions laid down by AFCD and EPD (EPD's recommended pollution control clauses for construction contracts are shown in **Annex A**) and other authorities (e.g. by WSD for GI works in water gathering grounds) to protect

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the environment, and that he will not carry out works in such a manner that would cause undue adverse impacts on the sensitive receivers.

20. Upon completion of sampling, logging and insitu testing, the GI contractor should be required to backfill all the GI stations, remove carefully all the temporary works and surplus construction and excavation materials, and reinstate the site to its original condition as far as practicable, in accordance with the specification.

21. The project office/consultants should take date-stamped photographs before, during and after the works for record.

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Annex A

Recommended Pollution Control Clauses for Construction Contracts

1. General

1.1 The Contractor shall undertake environmental protection measures to reduce the environmental impacts arising from the execution of the Works. In particular, he shall arrange his method of working to minimise the effects on the air, noise, water quality as well as nuisance of waste within and outside the Site, on transport routes and at the loading, dredging and dumping areas.

1.2 The Contractor shall observe and comply with relevant environmental protection and pollution control ordinances. He shall maintain on site, and provide one copy for the Engineer, with copies of the relevant enacted ordinances and their regulations, which shall include, but not be limited to, the following:

a. Air Pollution Control Ordinance (Cap 311);

b. Waste Disposal Ordinance (Cap 354);

c. Water Pollution Control Ordinance (Cap 358);

d. Noise Control Ordinance (Cap 400);

e. Dumping at Sea Ordinance (Cap 446);

f. Environmental Impact Assessment Ordinance (Cap 499);

g. Factories and Industrial Undertakings Ordinance (Cap 59);

h. Buildings Ordinance (Cap 123);

i. Buildings Ordinance (Application to New Territories) Ordinance (Cap 123);

j. Public Health and Municipal Services Ordinance (Cap 132);

k. Public Cleansing and Prevention of Nuisances (Regional Council) By-Laws (Cap 132);

l. Public Cleansing and Prevention of Nuisances (Urban Council) By-Laws (Cap 132);

m. Summary Offences Ordinance (Cap 228);

n. Merchant Shipping (Oil Pollution) (Hong Kong) Order;

o. Waste Disposal (Chemical Waste) (General) Regulation;

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p. Air Pollution Control (Open Burning) Regulation;

q. Air Pollution Control (Construction Dust) Regulation;

r. Air Pollution Control (Furnaces Ovens and Chimneys) Installation and Alteration Regulation.

1.3 The Contractor shall design, construct, operate and maintain pollution control measures to ensure compliance with the contract provisions as well as the environmental ordinances and their regulations. The Contractor shall also conduct compliance monitoring following a programme as agreed with the Engineer, and submit the monitoring results to the Engineer.

1.4 General mitigation measures shall include, but not be limited to, the following:

a. The Contractor shall take every precaution to prevent earth, rock or debris from depositing on public or private rights of way as a result of his operations including any deposits arising from the movement of plant or vehicles. In the event of any earth, rock or debris from construction works being deposited on public or private rights of way, all such earth, rock or debris shall be immediately removed and the affected rights of way restored to their original state by the Contractor to the satisfaction of the Engineer.

b. In the event of any spoil or debris from construction works being deposited on adjacent land or seabed or any silt washed down to any area, all such spoil, debris or material and silt shall be immediately removed and the affected land or seabed and areas restored to their natural state by the Contractor to the satisfaction of the Engineer.

1.5 The Contractor shall make due allowance in his rates and in his programme for the carrying out of the Works in compliance with the environmental protection control requirements under the Contract.

2. Water Pollution Control

2.1 Water pollution control - general requirements

2.1.1 The Contractor shall observe and comply with the Water Pollution Control Ordinance and its subsidiary regulation.

2.1.2 The Contractor shall carry out the Works in such a manner as to minimise adverse impacts on the water quality during execution of the works. In particular he shall arrange his method of working to minimise the effects on the water quality within and outside the Site, on the transport routes and at the loading, dredging and dumping areas.

2.1.3 The Contractor shall follow the practices, and be responsible for the design, construction, operation and maintenance of all the mitigation

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measures as specified in the Professional Persons Environmental Consultative Committee Practice Note (ProPECC PN) 1/94 "Construction Site Drainage" issued by the Director of Environmental Protection. The design of the mitigation measures shall be submitted by the Contractor to the Engineer for approval.

2.2 Marine Plant and Equipment

2.2.1 Two weeks before commencement of any marine works, the Contractor shall submit to the Engineer for approval the proposed methods of working and the marine plant and equipment to be used.

2.2.2 The marine plant and equipment to be used on the Works shall meet the requirement in Clauses 2.3.1 and 2.3.3 and shall be operated to achieve the water quality requirements. The Contractor shall provide all necessary facilities to the Engineer for inspecting or checking such plant and equipment and shall not use such plant and equipment for the execution of the Works without the agreement of the Engineer. The Engineer may require the Contractor to carry out trials of any plant and equipment to prove their suitability.

2.2.3 After commencement of the Works, if the plant and equipment or work methods are in the opinion of the Engineer causing unacceptable adverse impacts which can be checked against the Technical Memorandum on Effluent Standards issued under the Water Pollution Control Ordinance, then the Engineer may notify the Contractor in writing and the Contractor shall immediately initiate remedial measures so as to halt such deterioration. If the contractor fails to initiate remedial measures, the Engineer may stop the Works. Where such remedial measures include the use of additional or alternative plant and equipment, such plant and equipment shall not be used on the Works until agreed by the Engineer. Where remedial measures include maintenance or modification of previously approved plant and equipment, such plant and equipment shall not be used on the Works until such maintenance or modification is completed and the adequacy of the maintenance or modification is demonstrated to the satisfaction of the Engineer.

2.2.4 The Contractor shall comply with the conditions of dumping permits obtained from the Director of Environmental Protection. The permits shall be prominently displayed in the Chinese and English language on site and also on the dredgers and barges.

2.3 Avoidance of pollution during dredging, transporting and dumping of marine mud

2.3.1 Pollution avoidance measures shall include, but not be limited to, the following:

a. All equipment shall be designed and maintained to minimise the risk of silt and other contaminants being released into the water column or deposited in locations other than designated location;

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b. Mechanical grabs shall be designed and maintained to avoid spillage and shall seal tightly while being lifted;

c. Where trailing suction hopper dredgers for dredging of marine mud are in use, overflow from the dredger and the operation of lean mixture overboard systems shall not be permitted unless expressly approved by the Engineer in consultation with the Director of Environmental Protection;

d. Cutterheads of suction dredgers shall be suitable for the material being excavated and shall be designed to minimise overbreak and sedimentation around the cutter;

e. All vessels shall be sized such that adequate clearance is maintained between vessels and the sea bed at all states of the tide to ensure that undue turbidity is not generated by turbulence from vessel movement or propeller wash;

f. All pipe leakages shall be repaired promptly and plant shall not be operated with leaking pipes and all pipe leakages shall be repaired promptly;

g. Before moving the vessels which are used for transporting dredged materials, excess material shall be cleaned from the decks and exposed fittings of vessels and the excess materials shall never be dumped into the sea except at the approved locations;

h. Adequate freeboard shall be maintained on barges to ensure that decks are not washed by wave action;

i. The Contractor shall monitor all vessels transporting material to ensure that no dumping outside the approved location takes place. The Contractor shall keep and produce logs and other records to demonstrate compliance and that journey times are consistent with designated locations and copies of such records shall be submitted to the Engineer;

j. All bottom dumping vessels shall be fitted with tight fitting seals to their bottom openings to prevent leakage of material;

k. Loading of barges and hoppers shall be controlled to prevent splashing of dredged material to the surrounding water, and vessels shall not be filled to a level which will cause overflowing of material or polluted water during loading or transportation; and

l. The Engineer may monitor any or all vessels transporting material to check that no dumping outside the approved location nor loss of material during transportation takes place. The Contractor shall provide all reasonable assistance to the Engineer for this purpose.

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2.3.2 The Contractor shall be responsible for obtaining all necessary dumping permits as stipulated in Section 4.2.1 of Chapter 4 of the PAH – Management of Dredged/Excavated Sediment. The dredged marine mud shall be deposed of at a disposal site as designated in the dumping permit.

2.3.3 When dredging, transporting and disposing of contaminated marine mud, the Contractor shall implement adequate measures for the avoidance of pollution which shall include, but not be limited to, the following:

a. Dredging of contaminated marine mud shall be undertaken by a suitable grab dredger using closed watertight grab;

b. Transport of contaminated marine mud shall be by split barge of not less than 750 m3 capacity, well maintained and capable of rapid opening and discharge at the disposal site;

c. The material shall be placed into the disposal pit by bottom dumping;

d. Discharge from split barges shall take place within a radius of 100 metres of centre of the area allocated for the disposal of contaminated marine mud;

e. Discharge shall be undertaken rapidly and the hoppers shall then immediately be closed, material adhering to the sides of the hopper shall not be washed out of the hopper and the hopper shall remain closed until the barge next returns to the disposal site; and

f. The dumping vessel shall be anchored throughout the dumping operation.

2.3.4 The Contractor shall ensure that all marine mud is disposed of at the approved locations. He shall be required to ensure accurate positioning of vessels before discharge and shall be required to submit proposals for accurate position control at disposal sites to the Engineer for approval before commencing dredging and dumping.

2.3.5 The Contractor shall ensure that all unsuitable material is disposed of at the approved landfill or other designated location.

2.3.6 The Contractor shall only employ vessels equipped with automatic self-monitoring devices as specified by the Director of Environmental Protection for disposal operation, and shall co-operate with and facilitate the Director of Environmental Protection to inspect the device and retrieve the record stored in the device on a regular basis.

2.3.7 The Contractor shall provide experienced full time personnel on board all dumping vessels to ensure that appropriate methods to minimise pollution are implemented.

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2.4 Protection of Water Quality at Water Intakes

2.4.1 When dredging mud or placing fill in the vicinity of water intakes, the Contractor shall protect the water intake by surrounding it with a suitable silt screen to prevent excessive suspended solids from entering the intake. The silt screen shall be designed to ensure that the concentration of suspended solids entering the intake meets intake user requirements.

2.5 Silt Curtains

2.5.1 If silt curtains shall be used to contain sediment losses during dredging and placing fill, the Contractor shall be responsible for the design, installation and maintenance of the silt curtains to minimise the impacts on the water quality and the protection of water quality at water intakes as described in Clause 2.4.1. The design and specification of the silt curtains shall be submitted by the Contractor to the Engineer for approval.

2.5.2 Silt curtains shall be formed from tough, abrasion resistant, permeable membranes, suitable for the purpose, supported on floating booms in such a way as to ensure that the sediment plume shall be restricted to within the limit of the works area.

2.5.3 The silt curtain shall be formed and installed in such a way that tidal rise and fall are accommodated, with the silt curtains always extending from the surface to the bottom of the water column. The removal and reinstallation of such curtains during typhoon conditions shall be as agreed with the Director of Marine.

2.5.4 The Contractor shall regularly inspect the silt curtains and check that they are moored and marked to avoid danger to marine traffic. Any damage to the silt curtain shall be repaired by the Contractor promptly and the works shall be stopped until the repair is effected to the satisfaction of the Engineer.

2.6 Refuse containment booms and floating refuse

2.6.1 The Contractor shall provide and install refuse containment booms before commencing public dumping to confine the floating debris arising within the site as a result of public dumping. Details of the refuse containment booms shall be submitted to the Engineer for approval before their use on site.

2.6.2 It is expected that public dump material may contain refuse, timber debris, or oil contamination and these shall be removed by the Contractor. The Contractor shall segregate all inert construction waste material suitable for reclamation. All non-inert construction waste material shall be disposed of at a public landfill.

2.6.3 Plastic buoys for the refuse booms will be provided by the Employer. The plastic buoys shall be collected from and returned to the Civil Engineering and Development Department Technical Services Division's Store at

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North Point after use and cleaning.

2.6.4 The Contractor shall provide adequate sinker blocks and lit marker buoys to ensure that the booms are visible above the water line and securely anchored. The lights on the marker buoys shall be quick flashing yellow light visible all round the horizon at a distance of at least 2 km and details shall be submitted to the Engineer for approval. The maximum spacing between the flashing yellow lights shall be 30 metres. The Contractor shall properly maintain and operate the booms to the satisfaction of the Engineer throughout the progress of public dumping of the Site and shall replace the same if necessary when they are under repair or beyond repair.

2.6.5 The Contractor shall deploy sufficient sampans and labour for collecting floating refuse and preventing floating refuse within the Site from drifting into public waters. The frequency of collecting floating refuse shall be as agreed by the Engineer. Floating refuse collected shall be disposed of off Site by the Contractor.

2.6.6 The Contractor shall make due allowance in programming the public dumping for the provision, installation, operation and maintenance of the refuse booms and the regular collection of the floating refuse throughout the progress of the reclamation work.

2.6.7 The Contractor's attention is drawn to the SCC Clause No. ( ) on the Employer's power to carry out the work by person other than the Contractor if the Contractor shall fail to carry out any work required under this Particular Specification Clause.

2.7 Surface Runoff

2.7.1 The Contractor shall contain within the Site all surface runoff generated from foundation works, dust control and vehicle washing, etc.

2.8 Discharge into sewers and drains

2.8.1 The Contractor shall not discharge directly or indirectly or cause or permit or suffer to be discharged into any public sewer, stormwater drain, channel, stream-course or sea any trade effluent or foul or contaminated water or cooling or hot water without the prior written consent of the Engineer in consultation with the Director of Environmental Protection and Director of Water Supplies, who may as a condition of granting his consent require the Contractor to provide, operate and maintain at the Contractor's own expense to the satisfaction of the Engineer suitable works for the treatment and disposal of such trade effluent or foul or contaminated or cooling or hot water. [The design of such treatment works shall be submitted to the Engineer for approval not less than one month before the commencement of the relevant works.]

2.8.2 If any office, site canteen or toilet facilities is erected, foul water effluent shall be directed to a foul sewer or to a sewage treatment and disposal facility either directly or indirectly by means of pumping or other means

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approved by the Engineer.

3. Noise Control

3.1 Noise control - general requirements

3.1.1 The Contractor shall observe and comply with the Noise Control Ordinance and its subsidiary regulations.

3.1.2 The Contractor shall ensure that all plant and equipment to be used on the Site are properly maintained in good operating condition and noisy construction activities shall be effectively sound-reduced by means of silencers, mufflers, acoustic linings or shields, acoustic sheds or screens or other means, to avoid disturbance to any nearby noise sensitive receivers.

3.1.3 For carrying out any construction work other than percussive piling during the time period from 07:00 hr to 19:00 hr on any day not being a general holiday (including Sundays), the Contractor shall comply with the following requirements

a The noise level measured at 1 m from the most affected external facade of the nearby noise sensitive receivers from the construction works alone during any 30 minute period shall not exceed an equivalent sound level (Leq) of 75 dB(A).

b. The noise level measured at 1 m from the most affected external facade of the nearby schools from the construction works alone during any 30 minute period shall not exceed an equivalent sound level (Leq) of 70 dB(A) [65 dB(A) during school examination periods]. The Contractor shall liaise with the schools and/or the Examination Authority to ascertain the exact dates and times of all examination periods during the course of the contract.

c. Should the limits stated in the above sub-clauses (a) and (b) be exceeded, the construction shall stop and shall not re-commence until appropriate measures acceptable to the Engineer that are necessary for compliance have been implemented.

d. The Contractor shall adopt, where necessary, the use of quiet construction equipment (QCE) and/or shall employ the quietest practicable working methods when carrying out demolition works, and/or road opening works during restricted hours.

e. Diesel hammers are not to be used for percussive piling works.

f. Blasting should not be carried out during 7 p.m. to 7 a.m. and any time on a general holiday, including Sunday, to avoid noise impact at sensitive hours.

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3.1.4 Before the commencement of any work, the Engineer may require the methods of working, plant equipment and sound-reducing measures to be used on the Site to be made available for trial demonstration inspection and approval to ensure that they are suitable for the project.

3.1.5 The Contractor shall devise, arrange methods of working and carry out the Works in such a manner so as to minimise noise impacts on the surrounding environment, and shall provide experienced personnel with suitable training to ensure that these methods are implemented.

3.1.6 Notwithstanding the requirements and limitations set out in Clause 3.1.3 above and subject to compliance with Clauses 3.1.2 and 3.1.5 above, the Engineer may upon application in writing by the Contractor, allow the use of equipment and the carrying out of any construction activities for any duration provided that he is satisfied with the application which, in his opinion, is considered to be of absolute necessity and adequate noise insulation has been provided to the schools to be affected, or of emergency nature, and not in contravention with the Noise Control Ordinance in any respect.

3.1.7 The Contractor shall, when necessary, apply for a construction noise permit in accordance with the Noise Control (General) Regulations prior to the commencement of the relevant part(s) of the works, display the permit as required and provide a copy to the Engineer.

3.1.8 Measures that are to be taken to protect adjacent schools and other adjacent noise sensitive receivers, if necessary, shall include, but not be limited to, adequate noise barriers, The barriers shall be of substantial construction and designed to reduce transmission of noise (simple plywood hoarding will not be sufficient). The barriers shall be surmounted with baffle boxes designed to reduce transmission of noise. The barriers shall be designed to BS 5228:1997. The location and details of the barriers shall be submitted to the Engineer for approval before works commence adjacent to schools and other noise sensitive receivers.

4. Air Pollution Control

4.1 Air pollution control - general requirements

4.1.1 The Contractor shall observe and comply with the Air Pollution Control Ordinance and its subsidiary regulations, particularly the Air Pollution Control (Open Burning) Regulation and Air Pollution Control (Construction Dust) Regulation and Air Pollution Control (Smoke) Regulation.

4.1.2 The Contractor shall undertake at all times to prevent dust nuisance and smoke as a result of his activities.

4.1.3 The Contractor shall ensure that there will be adequate water supply/storage for dust suppression.

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4.1.4 The Contractor shall devise, arrange methods of working and carrying out the works in such a manner so as to minimise dust impacts on the surrounding environment, and shall provide experienced personnel with suitable training to ensure that these methods are implemented.

4.1.5 For better smoke control, the Contractor shall not use diesel hammer for percussive piling.

4.1.6 Before the commencement of any work, the Engineer may require the methods of working, plant, equipment and air pollution control system to be used on the site to be made available for inspection and approval to ensure that they are suitable for the project.

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APPENDIX 4.21 ADDITIONAL CONTROL MEASURES FOR MANAGEMENT OF DREDGED/EXCAVATED CONTAMINATED SEDIMENT

(The volume mentioned in this Appendix refers to bulk volume)

To ensure that maximum effort is made by the project proponent to reduce the consumption of the very limited mud pit capacity, it is necessary to tighten the control on management of dredged/excavated contaminated sediment, including the stepping up of sampling requirement at early stage of project planning, the exhaustive examination of options to reduce sediment generation and disposal, the requirement for cross-boundary disposal of Category M sediment and the enhancement of accountability of sediment disposal proposal. The control measures below are to tighten up the control on management of dredged/excavated contaminated sediment as stipulated in Section 4.2.1 of Chapter 4 of the PAH – Management of Dredged/Excavated Sediment:

(a) To enable a more accurate estimate of mud disposal volume to be made available for consideration when provisional agreement for sediment disposal allocation is sought for projects involving dredging and excavation in areas where the expected contamination level is Category M/H, Marine Fill Committee (MFC) requires that the project proponent should take sediment samples at a 200 m x 200 m grid. The samples should be continuous and with a vertical profile. The top level of the sub-samples should be at seabed, 0.9 m down, 1.9 m down, 2.9 m down and then every 3 m to the bottom of the dredged layers. The project proponent should as early as practicable submit the proposed sampling plan to the Dumping At Sea Ordinance (DASO) Team of the Environmental Protection Department (EPD) for comment.

(b) The project proponent is required to carry out an assessment on sediment management as outlined on the "Flow Chart for Management of Contaminated Sediment" at **Annex A**. This requirement ensures that the project proponent has exhausted all management options to keep the sediment in place and explored in detail all possible ex-situ treatment, disposal and beneficial reuse options before a decision is made to remove the sediment off site. Reference should be made to the consultancy study – FM01/2007 by the Civil Engineering and Development Department (CEDD) on various management options. A copy of the report is available on CEDD's website via the following link: https://www.cedd.gov.hk/filemanager/eng/content_662/Final_Report_on_Assessment_of_Management_Options_Rev_A.pdf

(c) Project proponents should apply for cross-boundary disposal of Category M sediment generated from their projects in accordance with the Agreement on Cross-boundary Marine Dumping and the Implementation Scheme on the Management of Cross-boundary Marine Dumping unless the genuinely estimated quantity of Category M sediment is less than 100,000 m^3. Other non-mud pit options for Category M sediment should also be examined. In case the application is not successful and there is no other feasible non-mud pit options, the project proponent should liaise with the Secretary of MFC about fall-back options.

(d) To enhance the accountability of the sediment disposal proposal, endorsement by the appropriate directorate officer of the works departments or the Authorised Person (AP) of the private project as indicated on the attached Flow Chart at **Annex A** is required to be obtained prior to submission of the disposal option to the Secretary of MFC. Project proponents may seek advice from the Secretary of MFC, if necessary.

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(e) Project proponents are required to exhaust all management options, work out the estimated quantities of contaminated sediments to be disposed of, based on the results of the sampling carried out, as early as practicable according to (a) above and seek provisional agreement from MFC on allocation of disposal space at mud pit. Such allocation will have to be re-confirmed after the sediment quality report (SQR) is completed and approved by DASO team of EPD during the detailed design stage. During construction, a project proponent should review from time to time the estimated final quantity of contaminated sediment disposal and advise MFC of any changes in advance before the actual disposed quantity has reached 80% of the approved quantity. If the latest estimated final quantity **exceeds** the approved quantity by 5,000 m^3 (or 5% of the approved quantity, whichever is more), the project proponent should seek further approval from MFC as a new application with appropriate endorsement as follows:

Scenario		Endorsement
(I) Public Works Projects		
(i)	The estimated final quantity **does not exceed** the approved quantity by 100,000 m^3 (or 5% of the approved quantity, whichever is more)	By a D2 officer for MFC's approval
(ii)	The estimated final quantity **exceeds** the approved quantity by 100,000 m^3 (or 5% of the approved quantity, whichever is more)	By a D3 officer for MFC's approval
(II) Private Projects		Endorsement by the AP for MFC's approval

Examples illustrating how the threshold quantities are determined and how the requirements of new applications and endorsements apply are shown in **Annex B**.

(f) If a public project proponent disposes of a quantity of 5,000 m^3 (or 5% of the approved quantity, whichever is more) more than the approved quantity without the prior approval of MFC, or a quantity less than the approved quantity by more than 5,000 m^3 (or 5% of the approved quantity, whichever is more) without prior notification to MFC, the respective Director should personally provide an explanation to MFC and copy it to the Permanent Secretary for Development (Works).

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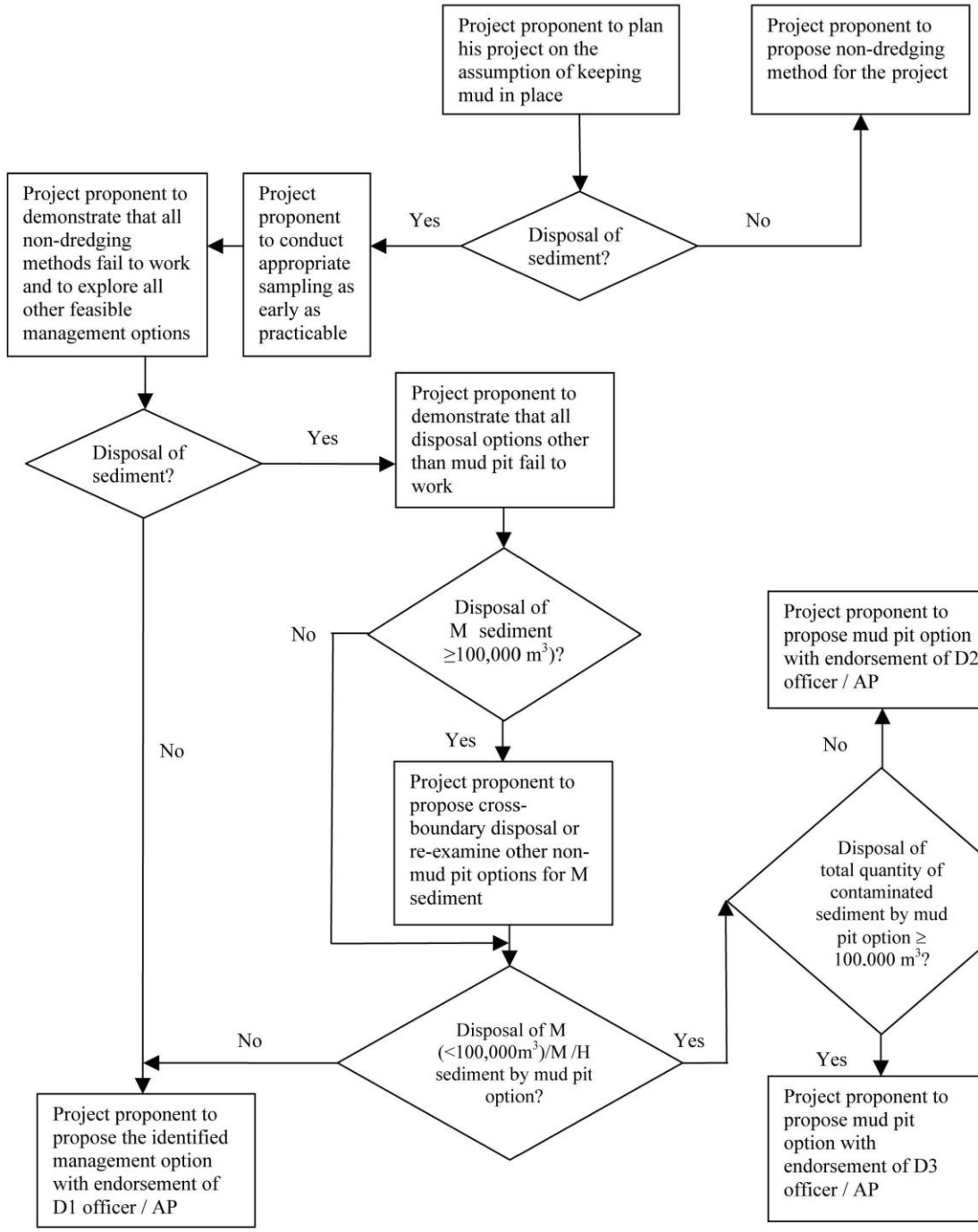
Annex A

Flow Chart for Management of Contaminated Sediment#



This flow chart shall be read in conjunction with Appendix 4.30 of Chapter 4 of the PAH.

Note: The volume refers to bulk volume.

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Annex B

Examples to illustrate how the threshold quantities are determined and how the requirements of new applications and endorsement apply

	Example	Threshold quantity for requirement of new application	Threshold quantity for requirement of endorsement by a D2/D3 Officer
		5,000 m^3 or 5% of the approved quantity, whichever is more	**100,000 m^3** or 5% of the approved quantity, whichever is more
(a)	Project with **large** quantity of contaminated sediment Approved Quantity: 2,500,000 m^3 Estimated Quantity: 2,750,000 m^3 (i.e. increase by 250,000 m^3)	**125,000 m^3** because 5% of approved quantity, i.e. 125,000 m^3, is more than 5,000 m^3. A new application is required because the increase in quantity, i.e. 250,000 m^3, exceeds 125,000 m^3.	**125,000 m^3** because 5% of the approved quantity, i.e. 125,000 m^3, is more than 100,000 m^3. The new application shall be endorsed by a D3 officer because the increase in quantity exceeds 125,000 m^3.
(b)	Project with **medium** quantity of contaminated sediment Approved Quantity: 120,000 m^3 Estimated Quantity: 132,00 m^3 (i.e. increase by 12,000 m^3)	**6,000 m^3** because 5% of approved quantity, i.e. 6,000 m^3 is more than 5,000 m^3. A new application is required because the increase in quantity, i.e. 12,000 m^3, exceeds 6,000 m^3.	**100,000 m^3** because 100,000 m^3 is more than 5% of the approved quantity, i.e. 6,000 m^3. The new application shall be endorsed by a D2 officer because the increase in quantity does not exceed 100,000 m^3.
(c)	Project with **small** quantity of contaminated sediment Approved Quantity: 10,000 m^3 Estimated Quantity: 11,000 m^3 (i.e. increase by 1,000 m^3)	**5,000m^3** because 5,000 m^3 is more than 5% of approved quantity, i.e. 500 m^3. A new application is <u>not</u> required because the increase in quantity, i.e. 1,000 m^3, does not exceed 5,000 m^3.	NA

* The threshold quantities determined for the respective example cases are shown in bold.

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APPENDIX 4.22 DESIGN AND CHECK CERTIFICATE

Agreement No.: _____ **(if appropriate)**

Project Title: _____

Project Office: _____

Design Checking Approach:

_____

1. This Design and Check Certificate refers to submission No.
which comprise
   (a) Works covered by this Certificate
   (nature and description of the submission)

   _____

   _____

   in respect of:
   (description of the works to which the submission refers)

   _____

   _____

   _____

   _____

   (b) Contents of this submission are listed in Schedule A below.

2. Designer's certification

   I/ We certify that

   (a) the design of the works, as illustrated and described in the documents listed in Schedule A below, complies with the standards set out in the Agreement or _____ (any form of agreement as appropriate) and with amendments agreed to by the Director's Representative or _____ (any relevant authorities as appropriate);

   (b) all reasonable and professional skill, care and diligence have been exercised in designing the works, as illustrated and described in the documents listed in Schedule A below; and

   (c) a self-check has been undertaken and completed to confirm the completeness, adequacy and validity of the design of the works as illustrated and described in documents listed in Schedule A below.

Signed: _____

_____ (Name)

_____ (Position)

_____ (Organization)

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_____
_____ (Date)

3. Checking Engineer's certification

(a) I/ We certify that the design has been independently checked in accordance with the agreed design criteria using all reasonable skill and care and that I/we am/are satisfied that the design checked complies in all respects with the agreed design criteria.

(b) I/ We further certify that I/ We am/are satisfied that the checking of the above design is completed.

Signed: _____
_____ (Name)
_____ (Position)
_____ (Organization)
_____ (Date)

Schedule A

Submission No._____ comprises the followings:

Documents: (Title, reference number and revision)

_____
_____
_____
_____
_____
_____

Drawings: (Title, reference number and revision)

_____
_____
_____
_____
_____
_____
_____
_____

Others: (Please Specify)

_____
_____
_____
_____
_____
_____

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APPENDIX 4.23 PERSONNEL FOR DESIGN AND CONSTRUCTION REVIEW OF PRESCRIPTIVE MEASURES FOR STABILIZATION AND IMPROVEMENT OF MAN-MADE SLOPES AND STANDARDIZED DEBRIS-RESISTING BARRIERS FOR MITIGATION OF NATURAL TERRAIN LANDSLIDE HAZARDS (Subsumed from ETWB TCW No. 13/2005)

Prescriptive Measures for Stabilisation and Improvement of Man-made Slope Features

1. The prescriptive measures items should be specified by a geotechnical engineer professionally qualified and experienced in Hong Kong, as should the construction review. A suitable qualification is Registered Professional Engineer (Geotechnical). For preventive maintenance works which involve only surface protection and surface drainage prescriptive measures, the prescriptive design and construction review may also be carried out by a professionally qualified civil engineer competent in site formation and drainage works.

2. For preventive maintenance works, it is often more cost-effective to ask the same professional engineer who undertakes the Engineer Inspection for the slope to also specify the items of prescriptive measures required as part of the preventive maintenance recommendations. This should be arranged wherever possible.

3. Construction review includes a review of the suitability and adequacy of the specified prescriptive measures items during construction and giving recommendations on any design modifications necessary to take into account the actual site and ground conditions revealed. It should always be carried out for prescriptive measures specified as upgrading and preventive maintenance works. It should also be undertaken for prescriptive measures specified as urgent repair where practicable. The professional engineer undertaking this work should be familiar with all available information collected in the desk study and site reconnaissance. Where it is possible to arrange for the same professional engineer who has specified the prescriptive measures items to carry out the construction review, this should be done.

Standardised Debris-resisting Barriers for Mitigation of Natural Terrain Landslide Hazards

4. A team of geotechnical engineers and engineering geologists working together is normally required to assess the natural terrain landslide hazards and design the necessary mitigation works. The location and sizing of a standardised debris-resisting barrier, together with the necessary local site formation works for the construction of the landslide mitigation measures, should be specified by a geotechnical engineer professionally qualified and experienced in Hong Kong. A suitable qualification is Registered Professional Engineer (Geotechnical). Engineering geological expertise is needed for certain elements of the assessment of natural terrain landslide hazards. Assistance from an experienced engineering geologist should therefore be sought by the responsible geotechnical professional, as necessary.

5. For continuity, it would be preferable if the personnel responsible for the assessment

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of natural terrain landslide hazards could also be made responsible for applying the standardised debris-resisting barrier framework.

6. Regular reviews should be carried out during construction. These should include an inspection of the site and an assessment of the geology, groundwater conditions and the environmental effect of works during the various stages of construction. The suitability of the layout of the barriers and drainage provisions should also be reviewed, taking due account of the actual site conditions. The professional engineer undertaking the review should be conversant with the design assumptions.

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APPENDIX 4.24 MONITORING AND MAINTENANCE OF HORIZONTAL DRAINS (Subsumed from WBTC No. 10/91)

Monitoring Requirements

1. As part of the initial design stage, the designer should devise an instrumentation scheme which is suitable for the project, including the type, number and location of piezometers for groundwater monitoring and the techniques to be used for drain flow measurement. Allowance should be made in the contract for the maintenance and replacement of defective instruments and for any subsequent period when instrument monitoring is likely to be required. The piezometers should be installed at an early stage, preferably at the same time as the ground investigation for the design of the horizontal drain system is carried out. Open hydraulic piezometers are commonly used for long-term observation (Geoguide 2 : Guide to Site Investigation, Section 20.2.3). Automatic groundwater measuring devices are often installed in the piezometer tubing to capture and store data of groundwater levels at regular time intervals. For a large drain installation, the water from individual drains may be conducted to a single point through a system of pipes and channels to facilitate drain flow measurement.

2. The monitoring of piezometric levels and drain flow rates should be carried out at least once every two months during the dry season and weekly during the wet season. The latter should be carried out within two days of any heavy rainstorm (e.g. rainfall > 100 mm in 24 hours). All drains and piezometers on the site should be monitored. The need for frequent site visits and manual monitoring can be avoided by using computerised automatic recording systems, but before adopting such a system the designer should consider carefully his requirements in relation to the cost and necessary support services.

3. The monitoring of piezometric levels should start at the earliest stage and should preferably cover two wet seasons before the design is finalised. If this is not possible, then the results from continuing monitoring during the period of design and preparation of tender documents should be used to make a final review of the design. The data should be used to establish the "base groundwater levels" in the wet and dry seasons prior to drain installation. The monitoring of both piezometric levels and drain flow rates should be carried out both during and after the installation of the system. Monitoring should be terminated in accordance with the procedures described in paragraph 8. The data obtained during construction may be used in an "observational approach" to design, whereby the design parameters, such as the spacing of the drains, are modified during construction in accordance with the monitoring results. This approach is particularly helpful for horizontal drain installation because the performance of individual drains is sensitive to the heterogeneous nature of the ground conditions commonly encountered in Hong Kong.

4. Particular attention should be given in monitoring programmes to cases where the existing groundwater regime may be modified significantly by adjacent development or pumping works.

Evaluation of Drain Performance

5. The effectiveness of a horizontal drain system should be gauged by considering, in descending order of significance, the following aspects of overall groundwater response

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at the site :

(i) the piezometric levels after drain installation should not rise above the design level in heavy rainstorms,

(ii) the "base groundwater level" after drain installation should be lower than the preinstallation value,

(iii) the range of groundwater fluctuations (storm response) should be lower than the preinstallation values, and

(iv) the rate of drop of piezometric level after a rainstorm should be faster than the preinstallation rate, with the level returning to normal within a few days after the rainstorm.

6. In addition to the above, drain flow rates due to similar rainfalls measured shortly after installation and subsequently after a long period of time should also provide an indication of the long-term performance of the drains.

7. Other factors which the designer should consider in the evaluation of drain performance include the adequacy of the acquired data, reliability of the design data (including the assumed groundwater conditions), the number of heavy rainstorms during the monitoring period, and the degree of contribution of the drains to the calculated factor of safety.

Termination of Monitoring

8. The designer should plan groundwater monitoring with the object of assessing the effectiveness of a horizontal drain system before the end of the Contract Maintenance Period. However, monitoring should be continued beyond this period if the designer considers it necessary on the basis of the criteria given above. Once the effectiveness of the system has been fully assessed, the designer should then decide either to terminate the monitoring if he is satisfied with the performance, or to recommend remedial measures if he considers that the system is not performing effectively. If remedial works are to be carried out, monitoring of piezometers and drain flows should continue in order to gauge the effectiveness of the improved new system. Further remedial works may be necessary. This process should be continued until the designer is satisfied that the system is performing effectively.

9. Subsequently, if there is evidence of possible substantial changes in existing groundwater conditions (e.g. large variation in drain flows, signs of new surface seepage), this should be brought to the attention of the project office by the maintenance authority. The designer can then assess whether the monitoring should be reactivated.

Maintenance Requirements

10. Regular maintenance of horizontal drains is required to ensure that they function properly and do not become clogged. Materials likely to clog drains are organic elements (plant roots, fungi or algae), fines washed out the surrounding soils, and precipitates of calcium, magnesium, iron and other compounds. In most cases, flushing with a clean

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water jet should be adequate to restore the drain function. The pressure of the water jet should be controlled so as to avoid causing any adverse effect on the stability of the slope. If soil deposits have dried up in the drain, then it is necessary to brush the drain during the flushing. Cleaning of the drain should commence from the deep end and proceed toward its outlet. This process should be repeated until the water flowing out of the drain appears clean.

11. The programme of maintenance, details of the maintenance procedures including flushing arrangements, and the "as built" details of the drain system should be prepared by the designer and handed over to the maintenance authority. Maintenance of the drains should be carried out at least once within 6 months after the installation of the drains and then once annually thereafter. The designer should allow such specific requirements and appropriate payments in the contract. The maintenance work should include inspection of the drains and surroundings, removal of weeds, clearing of outlets and flushing the drains with a water jet (as described above). Site trials may be required at the contract stage to establish the effectiveness of the designed flushing system. In addition, if the drains contain removable inner liners, these should be replaced where considered necessary on the basis of the site inspection, the flushing operations and previous observations (e.g. where the drains are found to be blocked or where drain flows are substantially reduced). All the drains at the site should be examined and maintained. A record of the observations made in the maintenance inspections and details of the work done should be kept for future reference in the maintenance inspection record. A note should also be made in the maintenance inspection record if any significant changes in drain flows or new areas of surface seepage are observed (see paragraph 9). If large increases in flow are recorded, the discharge should be tested and the surrounding area inspected to assess whether the water originates from leaking services. If this appear to be the case, the appropriate department should be notified and requested to trace and repair the leak.

12. In some special cases (e.g. an extensive drain system in a natural hillslope where access to the outlet locations is difficult), a more cost-effective maintenance plan may consist of monitoring the effectiveness of the system using permanently-installed piezometers, and carrying out the cleaning and flushing of drains only if shown to be necessary by the monitoring. Routine inspections and clearing of the drain outlets should still be carried out regularly.

13. In all cases, it is necessary for a suitably-experienced maintenance officer to examine the system when the annual maintenance is being carried out. This will enable problems to be identified and corrected at an early stage.

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APPENDIX 4.25 GEOTECHNICAL MANUAL FOR SLOPES - GUIDANCE ON INTERPRETATION (Subsumed from WBTC No. 13/99)

1. This Appendix provides guidance on, and clarification of, the interpretation of some aspects of the Geotechnical Manual for Slopes (2nd Edition).

2. Terminology

2.1 The use of the term "risk" in the Geotechnical Manual for Slopes (Manual) to mean "consequence in the event of failure" has led to some misunderstanding. For this reason, the term "risk" shall be replaced by "consequence". This is consistent with international usage. The two types of consequence classification of slope failure given in Tables 5.2 and 5.3 of the Manual shall be referred to as "consequence-to-life" and "economic consequence" respectively.

2.2 The descriptive terms "high", "low" and "negligible" are intended to reflect the likely relative severity of the failure consequence, but these have also resulted in misconceptions. To avoid possible confusion, the three categories of consequence-to-life shall be denoted as Categories 1, 2 and 3 respectively instead of "high", "low" and "negligible". For the same reason, a new system is also adopted to denote the different categories of economic consequence. The three categories of economic consequence shall be denoted as Categories "A", "B" and "C" respectively instead of "high", "low" and "negligible".

2.3 A combined notation shall now be used to indicate both the consequence-to-life and the economic consequence of a feature. For example, a Category 2A feature refers to one having the second highest consequence-to-life and the highest economic consequence in the new three-tier classification system.

3 Consequence-to-life Categories

3.1 The recommended minimum safety factors for slopes given in Tables 5.1 and 5.4 of the Manual are related to assessed consequence-to-life categories. Because of the change in terminologies (see section 2), these Tables shall be replaced by Tables 1 and 2 in this Appendix respectively. The consequence-to-life category reflects the severity in terms of loss of life in the event of failure. Table 5.2 of the Manual, which gives typical examples of each consequence-to-life category, shall be replaced by Table 3 in this Appendix.

3.2 In determining the consequence-to-life category of a slope, the designer should use his own professional judgement in assessing the "severity in terms of loss of life in the event of failure" in each particular case, giving due consideration to the types of buildings and facilities that may be threatened, and how the buildings and facilities would be affected in the event of slope failure. In assessing the effects of a slope failure on buildings and facilities, account should be taken of such factors as possible mechanisms and scale of failure, site conditions, proximity of the buildings and facilities to the slope and their likely density of occupation and frequency of usage in the event of failure, travel distance of the landslip debris, resistance of the buildings and facilities to debris impact and vulnerability of occupants and users.

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3.3 Examples (1) and (2) of Table 3 refer to situations where the buildings or facilities lie within the expected travel distance of the landslip debris, and hence the severity in terms of loss of life is high, and the consequence-to-life category is "1". No examples are given in the Table on situations where the buildings or facilities are located further away from the slopes. Following the consequence-to-life definition given in the Manual, where the buildings or facilities lie beyond the expected travel distance of the debris and the severity in terms of loss of life in the event of failure is less, the consequence-to-life category may be downgraded to "2". Where the buildings or facilities lie beyond the possible extreme limit of landslip debris, the consequence-to-life category may be taken as "3". Similar considerations apply to buildings and facilities located behind the slope crest with respect to the expected and the possible extreme limits of the area affected by the landslip.

3.4 In consequence-to-life classification for the purposes of slope design and stability assessment, bus shelters or similar sheltered public waiting areas shall be regarded as occupied buildings (example 1 in Table 3).

3.5 Further technical guidelines for the classification of the consequence-to-life category for slopes and retaining walls are given in GEO Technical Guidance Note No. 15, which can be downloaded from the CEDD website.

4 Economic Consequence Categories

4.1 Table 5.3 of the Manual, which gives typical examples of each economic consequence category, shall be replaced by Table 4 in this Appendix.

4.2 Although Table 1 recommends the minimum safety factors for slopes for different economic consequences, the choice of safety factors against economic loss is a decision which must be made by the owner upon the advice of the designer. In advising the owners, the designer should decide for himself the degree of economic consequence and should balance the potential economic consequence in the event of a failure against the increased construction costs required to achieve a higher factor of safety.

5 Safety Factors for Existing Slopes

5.1 The minimum safety factors recommended in Table 2 may be used for the stability assessment of and design of modifications to any existing slope which is associated with new works, as long as rigorous geological and geotechnical investigations are conducted (which should include a thorough examination of slope maintenance history, groundwater records, rainfall records and any slope monitoring records) and there is sufficient knowledge of the geology, groundwater and performance history of the slope. Under these conditions, Table 2 can be used for stability assessment for known changes in imposed loadings, and for the design of remedial or preventive works, including slope flattening, improvements to surface and subsurface drainage, and the installation of support measures.

5.2 As Section 5.2.2 of the Manual indicates, the designer is able to adopt with confidence a lower factor of safety for an existing slope because he has the benefit of the performance history and other information that is not available for the design of a new slope. This does not imply that the standards of safety deemed to be acceptable for existing slopes are lower than those recommended for new slopes. Reference should be

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made on discussion of the philosophy of this approach by Malone (1985). There will often be instances, however, where particular circumstances (such as lack of adequate groundwater and rainfall records) will lead the designer to adopt, for remedial and preventive works, the standards specified for new slopes.

6 Safety Factors for Temporary Works

6.1 Section 5.2.4 of the Manual shall be replaced by the following.

> **The safety factors required for the design of temporary works (i.e. works undertaken during construction which are not part of the permanent works) shall be the same as those for permanent new works (Table 1), but with due regard for the conditions which are likely to exist during the life of the temporary works. In some cases, for example, the consequence-to-life category during construction may be classified as "2" or "3", compared with consequence-to-life category "1" once the buildings are completed and occupied.**

7 Reliability of Slope Design

7.1 The reliability of slope design is discussed in Section 5.3.6 of the Manual and should be considered in deciding on the minimum safety factor to be adopted.

7.2 Different design solutions, e.g. open-cuttings and cuttings with structural support, have different levels of uncertainties associated with the various components of investigation, design and construction. They will have different reliability indices (hence different levels of safety) even if the assessed factor of safety is the same. In order to have a meaningful comparison of options, a higher minimum safety factor needs to be adopted for the solution with a lower reliability index than the solution with a higher index.

8 Compaction of New Fill Slopes

8.1 The design and construction of new fill slopes are governed by Sections 5.5.1 and 9.5 of the Manual respectively. It should be noted that in some exceptional cases, such as fill forming a large platform that will not support structures, the requirement for a compacted density of 95% of maximum dry density (GEO, 2017d) can be relaxed to 90% for the interior of the platform. This may be done provided that the fill at formation level and the fill forming the peripheral slopes is compacted to 95% of maximum dry density for a vertical thickness of at least 1.5 metres and 3 metres respectively. Please note that Figure 9.1 of the Manual illustrates only one of many configurations which can be adopted. In any case, it is good engineering practice to provide adequate subsurface drainage to avoid build-up of groundwater pressure at the rear of the less permeable peripheral slopes.

8.2 Fill in reclamations, or behind retaining structures and in other small areas of flat land, does not generally need to meet compaction requirements for slope stability reasons. It is therefore for the designer to determine the compaction requirements based on other criteria.

9 Treatment of Existing Fill Slopes

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9.1 Section 5.5.2 of the Manual defines the standard treatment of existing loose fill slopes by recompaction of the surface fill to a vertical depth of 3 metres. This treatment does not need to be prescribed, however, if:

(a) a fill slope is of consequence-to-life category "3",

(b) the fill slope is judged to be too small to pose a significant hazard, or,

(Note: The size of a fill slope which may be regarded as "too small to pose a significant hazard" would depend on the distance to and the type of the facilities being affected, the topography of the ground below the slope, the liquefaction potential of the fill body, etc. Professional judgement should be exercised in individual cases in determining the size of a fill slope which could be considered as such.)

(c) the fill slope has a cover of mature vegetation which is beneficial to the stability of the slope, and where there is a reasonable alternative engineering solution.

9.2 Reference should be made to the Report on the Slope Failures at Sau Mau Ping (Government of Hong Kong, 1977) for background on the standard treatment of existing fill slopes as recommended in the Manual.

10 Superseded Chapters/Sections and Other Relevant Technical Guidance

10.1 The following Chapters/Sections of the Manual are no longer applicable, having been superseded by later publications:

(a) Chapter 1 and Section 2.3.3 are superseded by the Geological Survey Maps and Memoirs and Geoguide 3 (GEO, 2017c).

(b) Chapter 2 (except Section 2.3.3), Section 3.5 and 10.2 are superseded by Geoguide 2 (GEO, 2017b).

(c) Section 4.6 is superseded by GEO Publication No. 1/93 (GEO, 1993).

(d) Chapter 7 (except the parts relevant to the design of remedial or preventive works to existing gravity retaining walls as given in Section 7.3.3) is superseded by Geoguide 1 (GEO, 2017a), GEO Publication No. 1/2023 (GEO, 2023) and GEO Circular No. 33 (GEO, 2018a).

(e) Chapter 11 is superseded by Geoguide 5 (GEO, 2018b).

(f) References to BS 1377:1975 concerning Phase 1 tests described in Works Branch Technical Circular 6/94 are replaced by Geospec 3 (GEO, 2017d).

(g) "The Hong Kong Bibliography" referred to in the Manual is the Bibliography on Geology and Geotechnical Engineering of Hong Kong (Brand, 1984). Please refer to the updated bibliography online at the Hong Kong Slope Safety website.

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10.2 Please also read the latest updates promulgated in the following GEO Technical Guidance Notes:

(a) GEO Technical Guidance Note No. 30.
(b) GEO Technical Guidance Note No. 39.
(c) GEO Technical Guidance Note No. 40.
(d) GEO Technical Guidance Note No. 41.
(e) GEO Technical Guidance Note No. 43.

11 Related Documents

The following is the list of related documents.

(a) Brand, E.W. (1984). Bibliography on Geology and Geotechnical Engineering of Hong Kong to December 1984, 79 p.

(b) GEO (2023). Deep Excavation Design and Construction (GEO Publication No. 1/2023). Geotechnical Engineering Office, Civil Engineering and Development Department, HKSARG Government, 146p.

(c) GEO (1993). Review of Granular and Geotextile Filters (GEO Publication No. 1/93). Geotechnical Engineering Office, Hong Kong, 131 p.

(d) GEO (2017a). Guide to Retaining Wall Design (Geoguide 1) (Continuously Updated E-Version released on 29 August 2017). Geotechnical Engineering Office, Civil Engineering and Development Department, HKSAR Government, 245 p.

(e) GEO (2017b). Guide to Site Investigation (Geoguide 2) (Continuously Updated E-Version released on 18 December 2017). Geotechnical Engineering Office, Civil Engineering and Development Department, HKSAR Government, 349 p.

(f) GEO (2017c). Guide to Rock and Soil Descriptions (Geoguide 3) (Continuously Updated E-Version released on 29 August 2017). Geotechnical Engineering Office, Civil Engineering and Development Department, HKSAR Government, 171 p.

(g) GEO (2017d). Model Specification for Soil Testing (Geospec 3) (Continuously Updated E-Version released on 29 August 2017). Geotechnical Engineering Office, Civil Engineering and Development Department, HKSAR Government, 324 p

(h) GEO (2018a). Guidelines for Assessment of Old Masonry Retaining Walls in Geotechnical Studies and for Action to be Taken on Private Walls (GEO Circular No. 33). Geotechnical Engineering Office, Hong Kong, 16 p.

(i) GEO (2018b). Guide to Slope Maintenance (Geoguide 5, 3rd Edition) (Continuously updated e-version released on 20 November 2018). Geotechnical Engineering Office, Civil Engineering and Development Department, HKSAR Government, 116 p.

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(j) Government of Hong Kong (1977). Government of Hong Kong (1977). Report on the Slope Failures at Sau Mau Ping, August 1976. Hong Kong Government Printer, 104 p. plus 8 drgs.

(k) Malone, A.W. (1985). Factor of Safety and Reliability of Design of Cuttings in Hong Kong (Oral Discussion). Proceedings of the Eleventh International Conference on Soil Mechanics and Foundation Engineering, San Francisco, vol. 5, pp 2647.

Table 1 - Recommended Minimum Factors of Safety for New Slopes for a Ten-year Return Period Rainfall

CONSEQUENCE-TO-LIFE / ECONOMIC CONSEQUENCE	Category 1	Category 2	Category 3
Category A	1.4	1.4	1.4
Category B	1.4	1.2	1.2
Category C	1.4	1.2	>1.0

Notes :

(1) In addition to a minimum factor of safety of 1.4 for a ten-year return period rainfall, a slope in the consequence-to-life category 1 should have a factor of safety of at least 1.1 for the predicted worst groundwater conditions.

(2) The factors of safety given in this Table are recommended minimum values. Higher factors of safety might be warranted in particular situations in respect of loss of life and economic loss.

Table 2 - Recommended Minimum Factors of Safety for the Stability Assessment of Existing Slopes and for Design of Remedial or Preventive Works to Slopes for a Ten-year Return Period Rainfall

Consequence-to-life	Category 1	Category 2	Category 3
Recommended Minimum Factor of Safety Against Loss of Life for a Ten-year Return Period Rainfall	1.2	1.1	>1.0

Notes :

(1) These factors of safety are appropriate only where rigorous geological and geotechnical studies have been carried out, where the slope has been standing for a considerable time, and where the loading conditions, the groundwater regime

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and the basic form of the modified slope remain substantially the same as those of the existing slope.

(2) The factors of safety given in this Table are recommended minimum values. Higher factors of safety might be warranted in particular situations in respect of loss of life and economic loss.

(3) Should the back-analysis approach be adopted for the design of remedial or preventive works, it may be assumed that the existing slope had a minimum factor of safety of 1.0 for the worst known loading and groundwater conditions.

(4) For a failed or distressed slope, the causes of the failure or distress must be specifically identified and taken into account in the design of the remedial works.

Table 3 - Typical Examples of Slope Failures in Each Consequence-to-life Category

EXAMPLES	CONSEQUENCE-TO-LIFE+		
	Category 1*	Category 2*	Category 3*
(1) Failures affecting occupied buildings (e.g. residential, educational, commercial or industrial buildings, bus shelters×#, railway platforms).	✓		
(2) Failures affecting buildings storing dangerous goods.	✓		
(3) Failures affecting heavily used open spaces and recreational facilities (e.g. sitting-out areas, playgrounds, car parks).		✓	
(4) Failures affecting roads with high vehicular or pedestrian traffic density.		✓	
(5) Failures affecting public waiting areas (e.g. bus stops#, petrol stations).		✓	
(6) Failures affecting country parks and lightly used open-air recreation areas.			✓
(7) Failures affecting roads with low traffic density.			✓
(8) Failures affecting storage compounds (non-dangerous goods).			✓

× **Item added in 1995 to clarify the intention of the consequence categories.**

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+ **Prior to March 1996, "Consequence-to-life" was referred to as "Risk-to-life".**
* **Prior to March 1996, "Category 1", "Category 2" and "Category 3" were referred to as "High", "Low" and "Negligible" respectively.**
# **In the context of this Table, bus shelters are those with a cover that shelters people waiting there from direct sunlight or rainfall, while bus stops are those without such a cover.**

Table 4 - Typical Examples of Slope Failures in Each Economic Consequence Category

EXAMPLES	ECONOMIC CONSEQUENCE+		
	Category A*	Category B*	Category C*
(1) Failures affecting buildings, which could cause excessive structural damage.	✓		
(2) Failures affecting essential services# which could cause loss of that service for an extended period.	✓		
(3) Failures affecting rural or urban trunk roads or roads of strategic importance.	✓		
(4) Failures affecting essential services# which could cause loss of that service for a short period.		✓	
(5) Failures affecting rural (A) or primary distributor roads which are not sole accesses.		✓	
(6) Failures affecting open-air car parks.			✓
(7) Failures affecting rural (B), feeder, district distributor and local distributor roads which are not sole accesses.			✓
(8) Failures affecting country parks.			✓

+ **Prior to March 1996, "Economic Consequence" was referred to as "Economic Risk".**
* **Prior to March 1996, "Category A", "Category B" and "Category C" were referred to as "High", "Low" and "Negligible" respectively.**
# **Essential services are those that serve a district and are with no or very inferior alternatives. Examples are mass transit facilities and trunk utility services.**

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APPENDIX 4.26 GUIDANCE ON THE USE OF SHOTCRETE SURFACING IN MAINTENANCE WORKS (Subsumed from WBTC No. 17/2000)

1) **In general shotcrete surfacing should not be used, whether as routine or preventive maintenance, on slopes of consequence-to-life Category 3 as defined in Appendix 4.25. As part of future maintenance programmes departments should progressively replace any existing shotcreted (partially or fully) surface covers on Category 3 slopes, if geotechnically acceptable and practicable, with a vegetated surface cover. Failing this, other forms of hard surface cover should be considered with a view to blending the slopes with their surroundings.**

2) **Generally shotcrete should not be used as part of maintenance works to cover hard, fresh to moderately decomposed (grade I – III) rock where the joints are tight and with average spacing wider than 60mm. Application of shotcrete may be warranted on more closely-jointed (i.e. joint spacing <60mm) rock, rock containing joints with open apertures or rock deteriorating quickly when exposed to weather, but the need should be confirmed by a suitably-experienced geotechnical engineer. Weepholes should be provided at appropriate locations based on a site assessment of the locations of discontinuities and seepage in the rock mass (see guidance in Figure 5.4 of the Geotechnical Manual for Slopes (GEO, 1984)).**

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APPENDIX 4.27 DEPARTMENTAL SLOPE APPEARANCE VETTING COMMITTEE SUGGESTED CHAIRMAN AND TERMS OF REFERENCE (Subsumed from WBTC No. 17/2000)

	Chairman
For departments the slope works of which carry significant visual impacts (viz. the Highways Department, Lands Department, Water Supplies Department and Civil Engineering and Development Department)	D1 or above level
For other concerned departments (viz. Agricultural, Fisheries and Conservation Department, Architectural Services Department, Drainage Services Department and Housing Department)	Senior professional officer or above

Terms of Reference

To review and, where satisfied, endorse the need for and details of shotcreting or any other hard surfacing to be carried out as part of maintenance or upgrading works to existing slopes or new slopes formed in public works projects (but excluding emergency repairs after landslips, minor local slope repairs and temporary slopes formed during construction activities).

The scope of review shall cover the following:

(a) first-time shotcreting or application of any other hard surfacing to an existing or new slope, and;

(b) renewal/retention of an existing hard surface on a slope as part of the proposed works.

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APPENDIX 4.28 SEDIMENT QUALITY CRITERIA FOR THE CLASSIFICATION OF SEDIMENT

Contaminants	Lower Chemical Exceedance Level (LCEL)	Upper Chemical Exceedance Level (UCEL)
Metals ***(mg/kg dry wt.)***		
Cadmium (Cd)	0.8	4
Chromium (Cr)	80	160
Copper (Cu)	65	110
Mercury (Hg)	0.3	1
Nickel (Ni)*	40	40
Lead (Pb)	75	110
Silver (Ag)	1	2
Zinc (Zn)	200	270
Metalloid ***(mg/kg dry wt.)***		
Arsenic (As)	20	42
Organic-PAHs ***(μg/kg dry wt.)***		
Low Molecular Weight PAHs	550	3160
High Molecular Weight PAHs	1700	9600
Organic-non-PAHs ***(μg/kg dry wt.)***		
Total PCBs	23	180
Organometallics ***(μg TBT/L in Interstitial water)***		
Tributyltin*	0.15	0.15

**** The contaminant level is considered to have exceeded the UCEL if it is greater than the value shown.***

The sediment is classified into 3 categories based on its contaminant levels:

Category L: Sediment with all contaminant levels not exceeding the Lower Chemical Exceedance Level (LCEL). The material must be dredged, transported and disposed of in a manner which minimizes the loss of contaminants either into solution or by resuspension.

Category M: Sediment with any one or more contaminant levels exceeding the Lower Chemical Exceedance Level (LCEL) and none exceeding the Upper Chemical Exceedance Level (UCEL). The material must be dredged and transported with care, and must be effectively isolated from the environment upon final disposal unless appropriate biological tests demonstrate that the material will not adversely affect the marine environment.

Category H: Sediment with any one or more contaminant levels exceeding the Upper Chemical Exceedance Level (UCEL). The material must be dredged and transported with great care, and must be effectively isolated from the environment upon final disposal.

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APPENDIX 4.29 GUIDELINES FOR SEDIMENT ASSESSMENT

The purpose of these guidelines is to set out the requirements for assessing, sampling, testing and categorising the sediment. The sampling and testing procedures are critical to the accurate evaluation of the sediment contamination, and close supervision by the project proponent is therefore necessary. All project departments/offices, consultants, developers or contractors (hereinafter called the "project proponent") must comply with these requirements when notifying Director of Environmental Protection (DEP) and Marine Fill Committee (MFC) of an intention to dredge/excavate and dispose of the sediment.

The sampling and testing procedures and the subsequent submission of a Sediment Quality Report normally require 8 months to complete.

A list of accredited laboratories capable of carrying out biological testing stipulated under these guidelines is kept and updated by DEP.

1. TIER 1 - Review of Existing Information for Site Contamination Assessment

The purpose of Tier I screening is to review available information to determine whether the sediment belongs to Category L material suitable for open sea disposal. If the project proponent considers that there is insufficient information to arrive at such a conclusion, the project proponent may proceed directly to Tier II screening.

(a) Submission requirements

The project proponent shall submit a formal proposal to DEP and copy to the Secretary of MFC in the Civil Engineering Department. The proposal should contain the following information:

(i) project name;

(ii) plan showing detailed location and boundary of the dredging/excavation site;

(iii) estimated volume of dredged/excavated sediment requiring disposal;

(iv) timetable for dredging/excavation operation and the corresponding disposal space required;

(v) previous dredging/excavation history of the site;

(vi) previous use of the site; and

(vii) other available site specific information (e.g. sediment grain size, total organic carbon (TOC), geotechnical data and previous testing results).

(b) Necessity to proceed to Tier II - chemical screening

DEP will examine the submission and advise whether:

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(i) the information is sufficient to conclude that the sediment is suitable for open sea disposal and the submission can be accepted as a formal Sediment Quality Report; or

(ii) Tier II - chemical screening is required.

2. TIER II - Chemical Screening

Tier II screening is designed to categorise the sediment based on its chemical contaminant levels, and to determine whether the sediment is suitable for open sea disposal without further testing.

(a) Submission requirements

The project proponent shall submit for approval a test proposal to DEP and copy to the Secretary of MFC. The proposal should contain the following information:

(i) project name;

(ii) plan showing detailed location and boundary of the dredging/excavation site;

(iii) estimated volume of dredged/excavated sediment requiring disposal;

(iv) the anticipated timetable for taking the sample, carrying out the tests, and producing the Sediment Quality Report for chemical & biological screening;

(v) a plan showing the area to be dredged, the locations to be sampled and their Hong Kong metric grid coordinates;

In general, the following sampling arrangement should be adopted:

Sampling Arrangement

The purpose of the sampling arrangement is to collect representative samples for characterisation of the sediments of the dredging site. The sampling locations should be representative and reflecting the actual situation of the dredged materials as accurately as possible.

Minimum Sampling Station Requirement

A volume-based approach is recommended for determining the minimum sampling station as illustrated in the Table below:

Estimated Total Volume of Dredged Materials (10,000 m^3)	Number of Sampling Station
<2.5	3
2.5 to <10	8
10 to <50	12
50 to <200	20
100k to <100k +100	(16+4k)
k is an integer which is larger than or equal to 2	

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Sampling Design

Appropriate sampling design should be proposed by the project proponent, taking into consideration the sampling programme and site-specific conditions.

If the dredged materials are homogenous in nature and there is no identifiable source of anthropogenic contamination, the sampling stations should be evenly distributed across the entire dredging area using a grid pattern.

If the source of contamination is identified or the contamination gradient is known (e.g. near outfalls, or nullahs), the sampling stations should be placed from dense to sparse along the gradient from highly contaminated to less or unlikely contaminated. Vertical samples should be taken to identify the contamination extent when contaminated sediments are identified.

Sample of Reference Sediment

When biological screening is anticipated, samples of reference sediment should also be taken. Reference sediment required for the test may be collected from reference sites in Hong Kong waters designated by DEP from time to time. Alternative reference sites may be used. However, these alternative sites should be outside the influence of previous disposal operations but close enough to reflect similar natural environmental characteristics (e.g. grain size and TOC) of potential disposal sites. The project proponent should furnish information on these alternative sites to show that their sediments are clean and are of similar natural characteristics to that of the disposal sites.

(vi) a schedule of the types of samples to be taken (e.g. grab samples, gravity coring, piston samples, vibrocores, etc.) with their locations and depths;

Where vertical profiles of samples are to be taken, samples should be continuous, and the top level of the sub-samples should be the seabed, 0.9m down, 1.9m down, 2.9m down, and then every 3m to the bottom of the dredged layers.

The size of samples collected should be adequate for this tier of chemical testing as well as the next tier of biological testing described in subsequent sections.

Parameters to be tested	**Sample size***
Metals and metalloid	0.5 litre
Organic	0.5 litre
Biological response	6 litres

* Quantity to be confirmed by testing laboratory. The quantity of reference sediment to be collected needs to be separately worked out for each case, especially if biological dilution tests are anticipated.

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(vii) a schedule of tests to be carried out on the samples.

Unless otherwise specified, all samples shall be tested for all the contaminants (except Tributytin (TBT)) stated in Table 1 - Analytical Methodology at the end of this Appendix. Analysis for other contaminants, such as TBT, Dichloro-diphenyl-trichloroethane (DDT), other organo-chlorine compounds, and other hazardous chemicals which arise from specific industrial discharge or spillage, may also be required by DEP in areas where contamination by such compounds is suspected. The composite samples for biological testing should also be tested for moisture content, grain size (% <63μm), TOC and ammonia (as mgN/L) and salinity in porewater.

(b) Sampling and testing requirements

(i) Sampling practice and sample storage

All sampling bottles should be labelled with the station number, sample length, diameter and depth, sampling date and time, together with a full description of the sample.

The recommended types of sampling bottle and pretreatment methods are:

Parameters to be tested	**Sampling bottle**	**Pretreatment Procedure#**
Metals and metalloid	High density polyethylene bottles*	USEPA SW-846+ Chapter 3
Organic	Wide mouth Borosilicate glass bottles with Teflon lined lid	USEPA SW-846 Chapter 4
Biological response	Wide mouth Borosilicate glass bottles with Teflon lined lid or high density polyethylene bottles *	USEPA SW-846 Chapter 3 or Chapter 4 as appropriate.

* Heavy duty plastic bags may be used for the storage of sediment sample for testing metals, metalloid and biological response.

\# Other equivalent methods such as "The specification for marine monitoring – Part 3: Sample collection, storage and transportation" (GB17378.3-2007) may be used subject to the approval of DEP.

\+ Test methods for evaluating solid waste: physical/chemical methods, SW-846, 3rd edition, United States Environmental Protection Agency.

The samples should be kept at 4°C in the dark and should not be frozen. All samples should be promptly analysed. If this is impractical, the recommended maximum holding time is:

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Sample type	Maximum holding time
Chemical test	2 weeks
Biological test	8 weeks

(ii) Analytical methodologies for chemical screening

The analytical method used for detecting each contaminant should be in accordance with the methodology described in Table 1 - Analytical Methodology at the end of this Appendix.

(c) Quality assurance/quality control (QA/QC) requirements

All tests must be conducted by laboratories accredited by Hong Kong Laboratory Accreditation Scheme (HOKLAS) or, in case of overseas laboratories, by equivalent national accreditation for these tests.

(d) Necessity to proceed to Tier III - biological screening

There is no need to proceed to Tier III for Category L and M sediments. However, the project proponent must proceed to Tier III for further analysis of certain Category H sediment. Tier III screening is only required if one or more contaminant levels exceed 10 times the Lower Chemical Exceedance Level (LCEL).

3. TIER III - Biological Screening

The purpose of Tier III screening is to identify the most appropriate disposal option for certain Category H sediments.

(a) Submission requirements

The project proponent shall submit for approval a test proposal to DEP and copy to the Secretary of MFC. The proposal should contain the following information:

(i) the number of biological tests;

(ii) the arrangement for preparing the composite samples; and

(iii) the test species and test conditions.

In general, all biological tests should be conducted on composite samples. Composite sample is prepared by mixing up to 5 samples of the same category which are continuous in vertical or horizontal profile.

Sediment classified as Category H and with one or more contaminant levels exceeding 10 times LCEL shall be subjected to the following two toxicity tests in a diluted manner (dilution test).:

a 10-day amphipod toxicity test; or

a 20-day polychaete toxicity test.

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and

a 48-96 hour larvae (bivalve or echinoderm) toxicity test.

The samples shall be prepared prior to toxicity testing as follows:

Sediment characteristics	**Preparation method**
Category H sediment (> 10 x LCEL)	Sample to be mixed with 9 portions of reference sediment
Category H sediment (> 10 x LCEL) suspected of ammonia contamination	Additional set of sample (after dilution for Cat. H sediment) to be purged# for ammonia removal (for amphipod test only).

If the ammonia concentration in the overlying water of the test system is ≥ 20 mg/L, purging of sediment is required. This is performed by replacing the overlying water at a rate of 6 volume replacements/24 h for 24 hours, and repeated once only if the ammonia level still exceeds 20 mg/L.

(b) Testing requirements

The test endpoints and decision criteria are summarized in Table 2 at the end of this Appendix. The sediment is deemed to have failed the biological test if it fails in any one of the two selected toxicity tests.

Only ecologically relevant species should be used for carrying out the biological screening tests. The species to be used for each type of test are as following:

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Test Types	Species	Reference Test Conditions*
10-day amphipod toxicity test	*Ampelisca abdita*	U.S.EPA(1994)/PSEP(1995)
	Leptocheirus plumulosus	U.S.EPA(1994)
	Eohaustorius estuarius	U.S.EPA(1994)/PSEP(1995)
	Grandidierella japonica	GB 30980-2014
	Ampelisca bocki	GB 30980-2014
	Ampelisca brevicornis	GB 30980-2014
20-day polychaete toxicity test	*Neanthes arenaceodentata*	PSEP(1995)
	Neanthes japonica	GB 30980-2014
	Glycera chirori	GB 30980-2014
	Neohtys californiensis	GB 30980-2014
48-96 hour larvae (bivalve or echinoderm) toxicity test	Bivalve*:* *Mytilus* spp.	PSEP(1995)
	Crassostrea gigas	PSEP(1995)
	Acrassostrea rivularis	GB 30980-2014
	Echinoderm : *Dendraster excentricus*	PSEP(1995)
	Strongylocentrotus spp.	PSEP(1995)
	Anthocidaris crassipina	GB 30980-2014

*U.S.EPA (U.S. Environmental Protection Agency) 1994. Methods for assessing the toxicity of sediment-associated contaminants with estuarine and marine amphipods. Office of Research and Development. U.S. Environmental Protection Agency, Cincinnati, OH. EPA/600/R94/025.

PSEP (Puget Sound Estuary Program) 1995. Recommended guidelines for conducting laboratory bioassays on Puget Sound sediments.

GB 30980-2014. The assessment procedure for marine dumping of dredged material.

(c) Quality assurance/quality control (QA/QC) requirements

All biological tests must be conducted by laboratories with appropriate accreditation.

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The biological test shall include appropriate quality assurance/quality control such as:

(i) Negative Control

(ii) Positive Control

4. Reporting Requirement after Completion of Chemical & Biological Screening

Submission requirements

Upon completion of each stage of screening (chemical and biological), the project proponent shall submit to DEP and copy to the Secretary of MFC a report on the results covering all tests conducted so far. The report should include the following information where appropriate:

(i) plans showing the delineation of each of the 3 categories of dredged/excavated material and the corresponding types of disposal required based on the chemical and biological screening results, and

(ii) the following information:

- Name and location of the testing laboratory
- Location of samples and source of reference sediments, method of collection, handling, preservation and storage, dates and times of sample collection and receipt at the testing laboratory

(For chemical screening)

- Dates of analysis
- Analytical methods and detection limits
- Tabulated sample results with units, including reporting basis (e.g., wet, dry, TOC normalized)
- QA/QC results
- Explanations for all departures from the standard protocols and discussion of possible effects on the data

(For biological screening)

- Test species information such as the source, size, history and age of test organisms
- Source of control seawater and control sediment used, including any pretreatment
- Preparation procedures for test sediment sample and test organisms
- Test conditions for each test including any deviation from standard procedures and discussion of possible effects on the data
- Water quality measurement during testing
- QA/QC results
- Effect measurements, end point results and their statistical significance

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Table 1 - Analytical Methodology

Parameters	Preparation Method *US EPA Method*	Determination Method *US EPA Method*	Reporting Limit
Metals ***(mg/kg dry wt.)***			
Cadmium (Cd)	3050B	6020A or 7000A or 7131A	0.2
Chromium (Cr)	3050B	6010C or 7000A or 7190	8
Copper (Cu)	3050B	6010C or 7000A or 7210	7
Mercury (Hg)	7471A	7471A	0.05
Nickel (Ni)	3050B	6010C or 7000A or 7520	4
Lead (Pb)	3050B	6010C or 7000A or 7420	8
Silver (Ag)	3050B	6020A or 7000A or 7761	0.1
Zinc (Zn)	3050B	6010C or 7000A or 7950	20
Metalloid ***(mg/kg dry wt.)***			
Arsenic (As)	3050B	6020A or 7000A or 7061A	1
Organic-PAHs ***(µg/kg dry wt.)***			
Low Molecular Weight PAHs+	3550B or 3540C and 3630C	8260B or 8270C	55
High Molecular Weight PAHs++	3550B or 3540C and 3630C	8260B or 8270C	170
Organic-non-PAHs ***(µg/kg dry wt.)***			
Total PCBs+++	3550B or 3540C and 3665A	8082	3
Organometallics ***(µg TBT/L in interstitial water)***			
Tributyltin	Krone et al. (1989)* - GC/MS UNEP/IOC/IAEA**	Krone et al. (1989)* - GC/MS UNEP/IOC/IAEA**	0.015

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Footnotes: (i) The reporting limits shown in this table are the most stringent limits which will be specified by DEP. Project proponents should consult DEP on the required limits in the preparation of proposals for sampling and chemical testing of the sediment.

(ii) Other equivalent methods such as "The Specification for Marine Monitoring – Part 5: Sediment Analysis" (GB17378.5-2007) may be used subject to the approval of DEP.

\+ Low molecular weight PAHs include acenaphthene, acenaphthylene, anthracene, fluorene, naphthalene, and phenanthrene

++ High molecular weight PAHs include benzo[a]anthracene, benzo[a]pyrene, chrysene, dibenzo[a,h]anthracene, fluoranthene, pyrene, benzo[b]fluoranthene, benzo[k]fluoranthene, indeno[1,2,3-c,d]pyrene and benzo[g,h,i]perylene

+++ The reporting limit is for individual PCB congeners. Total PCBs include 2,4' diCB, 2,2',5 triCB, 2,4,4' triCB, 2,2',3,5' tetraCB, 2,2',5,5' tetraCB, 2,3',4,4' tetraCB, 3,3',4,4' tetraCB, 2,2',4,5,5' pentaCB, 2,3,3',4,4' pentaCB, 2,3',4,4',5 pentaCB, 3,3',4,4',5 pentaCB, 2,2',3,3',4,4' hexaCB, 2,2',3,4,4',5' hexaCB, 2,2',4,4',5,5' hexaCB, 3,3',4,4',5,5' hexaCB, 2,2',3,3',4,4',5 heptaCB, 2,2',3,4,4',5,5' heptaCB, 2,2',3,4',5,5',6 heptaCB (ref: the "summation" column of Table 9.3 of *Evaluation of Dredged Material Proposed for Discharge in Waters of the U.S. - Testing Manual (The Inland Testing Manual)* published by USEPA).

* Krone et al. (1989), A method for analysis of butyltin species and measurement of butyltins in sediment and English Sole livers from Puget Sound, Marine Environmental Research 27 (1989) 1-18. Interstitial water to be obtained by centrifuging the sediment and collecting the overlying water.

** UNEP/ICO/IAEA refers to IAEA's Marine Environment Laboratory reference methods. These methods are available free of charge from UNEP/Water or Marine Environmental Studies Laboratory at IAEA's Marine Environment Laboratory. Interstitial water to be obtained by centrifuging the sediment and collecting the overlying water.

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Table 2 - Test Endpoints and Decision Criteria for Tier III Biological Screening

Toxicity test	Endpoints measured	Failure criteria
10-day amphipod	Survival	Mean survival in test sediment is significantly different ($p \leq 0.05$)[1] from mean survival in reference sediment **and** mean survival in test sediment < 80% of mean survival in reference sediment.
20-day polychaete worm	Dry Weight[2]	Mean dry weight in test sediment is significantly different ($p \leq 0.05$)[1] from mean dry weight in reference sediment **and** mean dry weight in test sediment < 90% of mean dry weight in reference sediment.
48-96 hour larvae (bivalve or echinoderm)	Normality Survival[3]	Mean normality survival in test sediment is significantly different ($p \leq 0.05$)[1] from mean normality survival in reference sediment **and** mean normality survival in test sediment < 80% of mean normality survival in reference sediment.

1 Statistically significant difference should be determined using appropriate two-sample comparisons (e.g., *t-tests*) at a probability of $p \leq 0.05$.

2 Dry weight means total dry weight after deducting dead and missing worms.

3 Normality survival integrates the normality and survival end points, and measures survival of only the normal larvae relative to the starting number.

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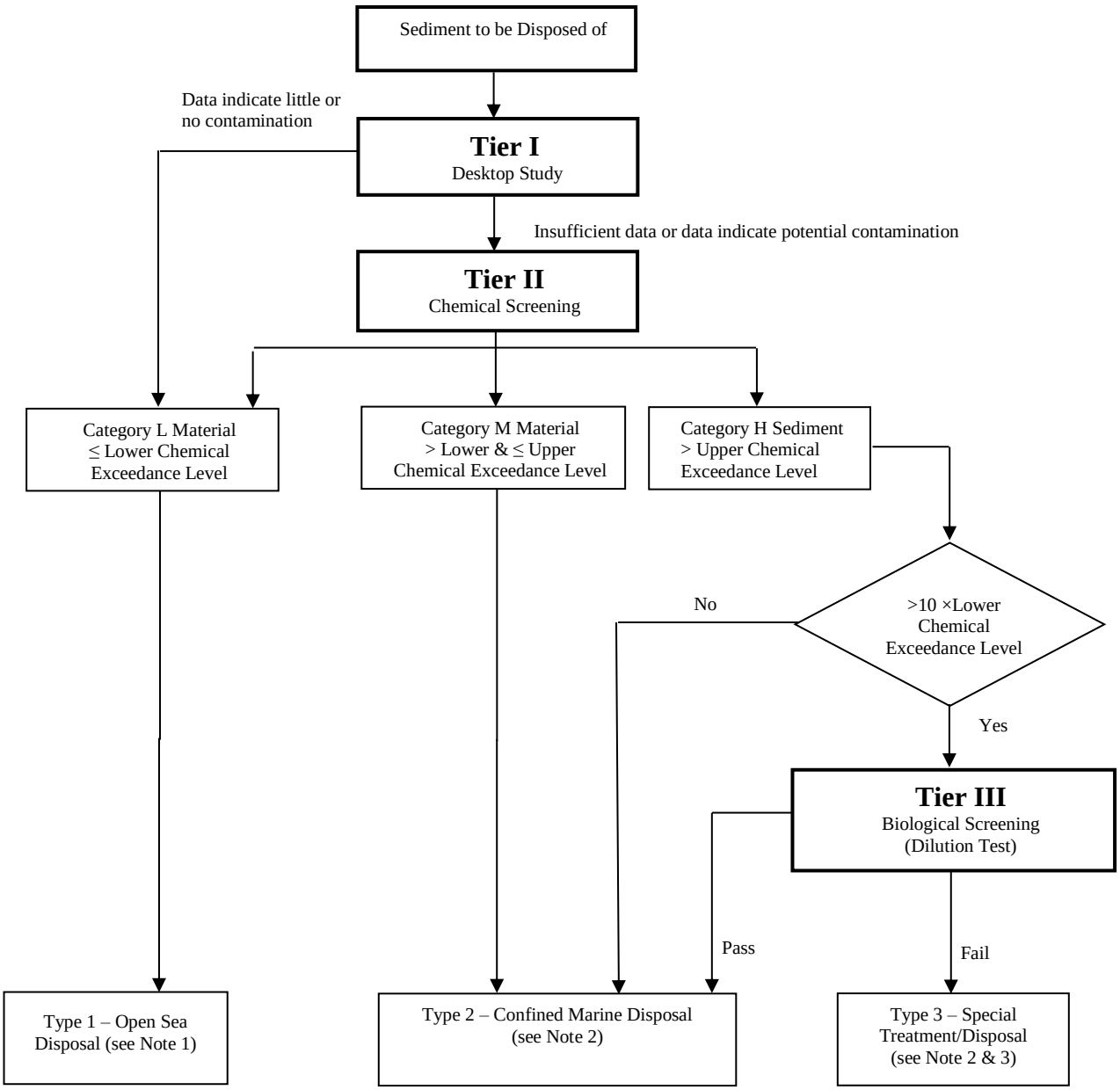
APPENDIX 4.30 MANAGEMENT FRAMEWORK FOR DREDGED/EXCAVATED SEDIMENT



Notes

(1) Most open sea disposal sites are multi-user facilities and as a consequence their management involves a flexibility to accommodate varying and unpredictable circumstances. Contract documents should include provisions to allow the same degree of flexibility should it be necessary to divert from one disposal site to another during the construction period of a contract.

(2) For sediment requiring Type 2 or Type 3 disposal, contract documents should state the allocation conditions of MFC and DEP. At present, East Sha Chau mud pits are designated for confined marine disposal.

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(3) If any sediment suitable for Type 3 disposal (Category H sediment failing the biological dilution test) is identified, it is the responsibility of the project proponent, in consultation with DEP, to identify and agree with him/her, the most appropriate treatment and/or disposal arrangement. Such a proposal is likely to be very site and project specific and therefore cannot be prescribed. This will not preclude treatment of this sediment to render it suitable for confined marine disposal.

(4) The allocation of disposal space may carry a requirement for the project proponent to arrange for chemical analysis of the sediment sampled from 5% of the vessels en-route to the disposal site. For certain Category H sediment, the chemical tests will be augmented by biological tests. Vessel sampling will normally entail mixing five samples to form a composite sample from the vessel and undertaking laboratory tests on this composite sample. All marine disposal sites will be monitored under the general direction of the Civil Engineering Department. However, exceptionally large allocations might require some additional disposal site monitoring. These will be stipulated at the time of allocation.

(5) Trailer suction hopper dredgers disposing of sediment at East Sha Chau must use a down-a-pipe disposal method, the design of which must be approved in advance by DCE. The dredging contractor must provide equipment for such disposal.

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APPENDIX 4.31 PROTECTION OF HARBOUR AREA TREATMENT SCHEME STAGE 1 AND STAGE 2A SEWAGE TUNNELS (Subsumed with amendments from ETWB TCW No. 28/2003)

Background

1. A key component of the Harbour Area Treatment Scheme or HATS (formerly known as the Strategic Sewage Disposal Scheme or SSDS) Stage 1 and Stage 2A is the construction and operation of a deep tunnel system to convey the sewage from fifteen existing preliminary treatment works in Kowloon and Hong Kong Island to the Stonecutters Island for further treatment. The project was implemented by DSD and the sewage tunnels are now being operated and maintained by DSD. The treated effluent is discharged through a sewage outfall tunnel at the Western Dangerous Goods Anchorage. The Stage 1 sewage tunnels are about 25 kilometres in length with diameters ranging from 1.2m to 5m and the Stage 2A sewage tunnels are about 21 kilometres in length with equivalent diameters[1] ranging from 0.9m to 3m. All the sewage tunnels are, in general, located at a depth more than 70m below the ground surface. The Stage 1 and Stage 2A sewage tunnels were completed and commissioned in December 2001 and December 2015 respectively. A sketch showing the alignment and profile of the sewage tunnels is attached as Map No. 1. The subsequent paragraphs lay down the procedure to be followed by all Works Departments for the circulation of proposals for construction works and ground investigation works in the vicinity of the sewage tunnels.

Sewage Tunnel Outer Protection Area for Construction Works other than Ground Investigation Works

2. A "construction protection boundary" for Stage 1 and Stage 2A sewage tunnel facilities is demarcated on plans numbered KCE/S/G/774A, 775A, 776A, 777A, 778A, 779A, 780A and 90806/STPA/2001B, 2002A, 2003A, 2004A. The "construction protection boundary" is generally 100m each side from the centreline of the sewage tunnels. The area within this boundary is called the "Sewage Tunnel Outer Protection Area". A complete set of these plans has been deposited with all Works Departments and also with the Buildings Department and the Housing Department.

3. Other than the exceptions allowed in Paragraph 13 below, no construction work is to take place within the Sewage Tunnel Outer Protection Area unless the proposals have first been forwarded to DSD and GEO for agreement and the departments proposing the construction works have confirmed to DSD that any measures necessary to protect the sewage tunnels as may be stipulated by DSD have been or will be complied with.

Sewage Tunnel Protection Area for Ground Investigation Works

4. The "ground investigation protection boundary" for sewage tunnel facilities is generally 50m each side from the centreline of the sewage tunnels. The area within this boundary has been officially designated as the "Sewage Tunnel Protection Area" (STPA) and is shown on plans numbered KCE/S/G/765C, 766C, 767C, 768C, 769C, 770C, 771C and 90806/STPA/1001B, 1002B, 1003B, 1004B for Stage 1 and Stage 2A sewage tunnel

[1] The sewage tunnels from North Point to Sai Ying Pun and from Aberdeen to Sai Ying Pun consist of twin oval pipes. The sewage tunnel from Ap Lei Chau to Aberdeen consist of twin circular pipes. The largest sewage tunnel from Sai Ying Pun to Stonecutters Island consist of single circular pipe of 3m in diameter.

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facilities. A complete set of these plans has been deposited with all Works Departments and also with the Buildings Department and the Housing Department.

5. Other than the exceptions allowed in Paragraph 13 below, no ground investigation works is to take place within the Sewage Tunnel Protection Area unless the proposals have first been forwarded to DSD and GEO for agreement and any measures necessary to protect the sewage tunnels as may be stipulated by DSD are complied with.

Procedures

6. For public works or housing projects proposed by Works Departments or the Housing Department, it is the responsibility of the relevant Department to check whether any part of the project falls within the Protection Areas and, if so, to forward the relevant proposals to DSD and GEO for comment/agreement.

7. While DSD is responsible for vetting and agreeing to proposals which may affect the sewage tunnels, GEO will provide specialist advisory services to DSD for the appraisal of submitted proposals based on the standards and requirements mentioned in this Circular. It is therefore necessary to submit the proposals for works to be carried out within the protection boundary to both DSD and GEO. Detailed submission requirements are described in Paragraphs 8 and 9 below.

8. Submissions to DSD and GEO shall include all relevant drawings, an explanatory memorandum explaining the scope and programme of the proposed works, ground investigation reports together with an assessment report to assess the effects of the proposed works on the sewage tunnel and any further information as may be required by DSD/GEO. Submissions to DSD shall be addressed to the Chief Engineer of the District Division of DSD in which the works lie. The geographical areas covered by these Divisions, designated as Hong Kong and Islands, and Mainland South Divisions, are shown on the attached Map No. 2. Submissions to GEO shall be addressed to the Chief Geotechnical Engineer of the District Division of GEO in which the works lie. The geographical areas covered by these Divisions, designated as Island, Mainland East and Mainland West Divisions, are shown on the attached Map No. 3.

9. For projects where geotechnical submissions are required under the relevant circulars, the assessment report on the effects of the proposed works on the sewage tunnel shall preferably be submitted together with the geotechnical submission to facilitate coherent consideration under the project. For avoidance of doubt in these cases, the submitter should indicate that the submission of the assessment report to GEO is made under this circular.

10. Submissions shall be sent to DSD direct with a copy to GEO at the same time and at an early stage since additional information may be required to assess the proposals properly. GEO shall provide DSD with comments on geotechnical conditions and protective measures to be complied with by the project proponent for the consideration of DSD within 21 days of receipt of the submission. DSD shall reply to a submission incorporating GEO's comments where appropriate as quickly as possible and in any case within 28 days of receipt of the submission, either agreeing to the proposals with or without conditions, or stating why they are not agreed.

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Technical Notes for Guidance

11. The "Technical Notes for Guidance in Assessing the Effects of Construction/Ground Investigation Works on Harbour Area Treatment Scheme Stage 1 and Stage 2A Sewage Tunnels" attached as Annex A to this Appendix provides guidance on the measures and requirements likely to be stipulated to protect the sewage tunnels and further details on the requirements of submissions to DSD and GEO.

12. The Technical Notes are for guidance only, and in case of doubt as to whether any proposed works will affect adversely the sewage tunnels, DSD and GEO must be consulted.

Exemptions

13. The above procedures do not apply to the following works:

(a) Road opening, road and highway structure maintenance where piling works are not involved, and road pavement construction.

(b) Excavation works or trial pits on land within a depth of 10m and is not closer than 30m from the nearest point of any HATS sewage structure such as drop shafts, connecting conduits and approach chambers. In case of doubts as to the separation from these sewage structures, DSD should be consulted.

(c) Maintenance dredging and minor marine maintenance works at locations other than the Stage 1 Outfall at the Western Dangerous Goods Anchorage provided that the dredging or excavation level is not more than 5m below the base of the existing marine deposit.

(d) Landscaping and planting.

(e) Erection of street lighting, shallow footing construction for minor works, laying and maintenance of underground utility services and water mains within a depth of 10m, except where piling works are involved.

(f) Upgrading or hazard mitigation works, maintenance and urgent repairs to slopes, including natural hillsides.

(g) Emergency repairs of existing underground utility services, such as water mains, sewers, drains and highway structures.

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Annex A

Technical Notes for Guidance in Assessing the Effects of Construction /Ground Investigation Works on Harbour Area Treatment Scheme Stage 1 and Stage 2A Sewage Tunnels

These technical notes apply to works situated on or adjacent to the alignment of the Harbour Area Treatment Scheme Stage 1 and Stage 2A sewage tunnels.

General

2. "Sewage tunnel" means an underground tunnel and associated underground structures for the transfer of sewage. A shaft connecting to a sewage tunnel is part of the sewage tunnel. Drawings showing details of the sewage tunnels are available from the relevant District Divisions of DSD. The extent of a shaft in soil is defined as the external shaft diameter; in rock it is defined as the internal diameter plus 2.5 metres each side. DSD should be consulted if there is any query concerning the route and extent of sewage tunnels.

3. Shafts of sewage tunnels are located within permanent land allocations to DSD. Tunnels constructed or to be constructed between these shafts are generally deep with at least 30 metres of rock cover except for both ends of the tunnel section between Ap Lei Chau Preliminary Treatment Works and Aberdeen Preliminary Treatment Works which are under soil or shallow rock cover. Most of the construction works on the ground surface will not have any significant effect on sewage tunnels and no restrictions on these works will be necessary.

4. The main risks of damage to sewage tunnels arise from either site formation or foundation works or tunnel/cavern works constructed immediately adjacent to shaft sites or from boreholes, wells, shafts, tunnels, grouting or other deep works constructed close to sewage tunnels. There is also a risk from ground or marine investigation works for a project requiring deep boreholes close to the sewage tunnels.

5. For the purposes of these notes the term "rock" is defined as Grades I, II and III rock material as classified in Table 4 - Classification of Rock Material Decomposition Grades - in Geoguide 3 (Guide to rock and soil descriptions) published by the Geotechnical Engineering Office. The term "soil" is defined as Grades IV, V and VI rock material (also classified in Geoguide 3), reclamation materials, and marine and alluvial deposits.

6. Leakage of sewage and the migration of gas from or into sewage tunnels poses health and safety risks. These risks must be evaluated when considering any proposed works near sewage tunnels, especially in respect of any dewatering works where there is the potential for the migration of hazardous substances in the groundwater.

Site Formation or Foundation Works or Tunnel/Cavern Works

7. Where construction works (including site formation, foundation works or excavation for basements, shafts, tunnels, cavern and the like) other than ground investigation works are proposed within the area as described in Paragraph 2 of this Annex, the effects of such works shall be within the following limits:

(a) The vertical or horizontal pressure on any sewage tunnel structure in soil due to the above operations (including filling and dewatering) and due to additional loads

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transmitted from foundations (including loads arising during construction) shall not be varied by more than 20kPa or by 5% of the total overburden pressure for structures at depths greater than 20m. For sewage tunnel structures in rock, where it is not possible to assess the change in ground pressure due to the above operations, the hydrostatic pressure shall not be increased or decreased by more than 50kPa.

(b) Differential movement resulting from the works shall not produce a calculated final diametric distortion exceeding 0.1% of the shaft or sewage tunnel internal diameter and the calculated total movement in any plane shall not exceed 20mm.

(c) The peak particle velocities at any sewage tunnel structures resulting from blasting (where permitted) or from driving or withdrawing of piles or any operation which can induce prolonged vibration shall not exceed 25mm/sec for blasting and 15mm/sec for other operations.

(d) No holes or excavations shall be sunk or excavated within a distance of 3m from any point of any sewage tunnel structure without prior agreement by DSD and GEO for the works and the method to be employed.

(e) No pile, foundation, well, soil nail, horizontal drain, or rock bolt/dowel shall be driven or constructed within a distance of 3m in any plane of any point of any sewage tunnel structure.

(f) Any part of a ground anchor and /or other geotechnical installation shall be more than 3m from any part of any sewage tunnel structure.

8. Proposals for monitoring the effects on sewage tunnels shall be submitted, when required, to DSD and GEO before works commence and subsequent data together with interpretation shall be submitted to DSD and GEO for the duration of the works. Where the proposed works or any part of the proposed works shall come within a distance of **10m** from any point of any sewage tunnel structure, the submission shall also include detailed method statements on the method to be employed for constructing the proposed works and for monitoring the alignment/depth of the proposed works.

Ground Investigation Works

9. Where ground investigations are proposed within the area as described in Paragraph 4 of this Annex, it is necessary for the following to be submitted to DSD and GEO:

(a) details of the exploration and locations of the proposed exploration holes, field testing or instrumentations relative to sewage tunnels;

(b) proposed depth of holes, pits, trenches, field testing or instrumentation; and

(c) a method statement for checking and monitoring the alignment of holes when the minimum distance from a hole to any point of a sewage tunnel is less than 50m should holes be sunk to a depth within 3m from the highest point of the sewage tunnels.

10. Any proposal will also be judged against the following technical guidelines :

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(a) The vertical and horizontal pressure on any sewage tunnel structure in soil due to ground investigation works including field testing such as plate load test, pressuremeter test, packer test or any operation should not be increased or decreased by more than 20kPa or by 5% of the total overburden pressure for structures at depths greater than 20m. For sewage tunnel structures in rock, where it is not possible to assess the change in ground pressure due to the above operations, the hydrostatic pressure shall not be increased or decreased by more than 50kPa.

(b) The peak particle velocities at any sewage tunnel structure resulting from -

(i) artificial shocks generated either by the detonation of explosives or a mechanical blow at ground surface or at depth within a hole should not exceed 25mm/sec; and

(ii) percussion drilling, hammer drilling or any operation which can induce prolonged vibration, should not exceed 15mm/sec.

(c) The method to be employed for sinking/excavating deep holes and for monitoring the hole alignment/depth to ensure that no hole is within a distance of 3m from any point of any sewage tunnel structure.

Dewatering Works and Wells

11. Assessment shall be made regarding the leakage of sewage and the migration of gas in respect of all dewatering and well proposals within 100 metres of sewage tunnels. Monitoring proposals shall be submitted to DSD and GEO for the duration of the dewatering or extraction.

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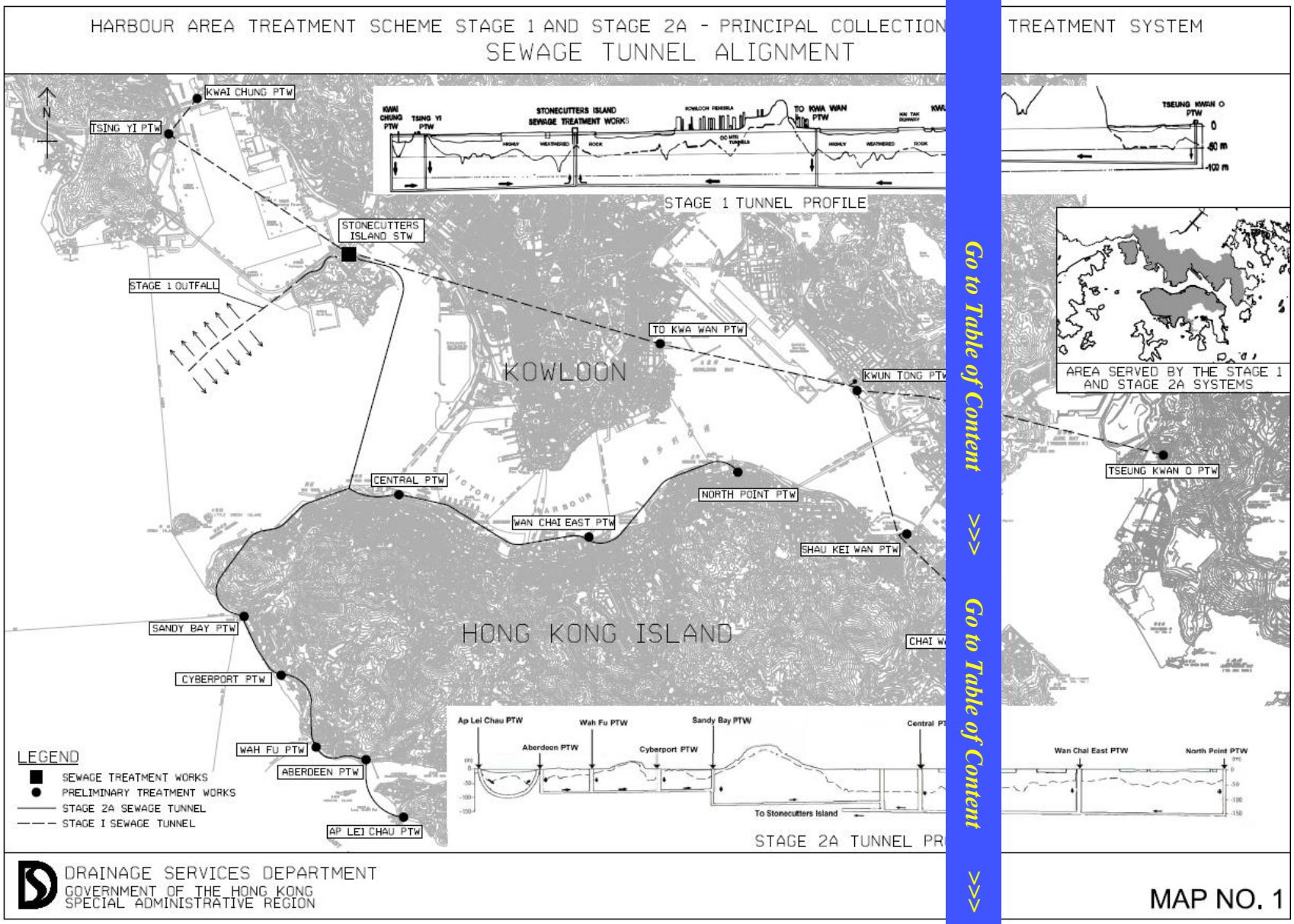

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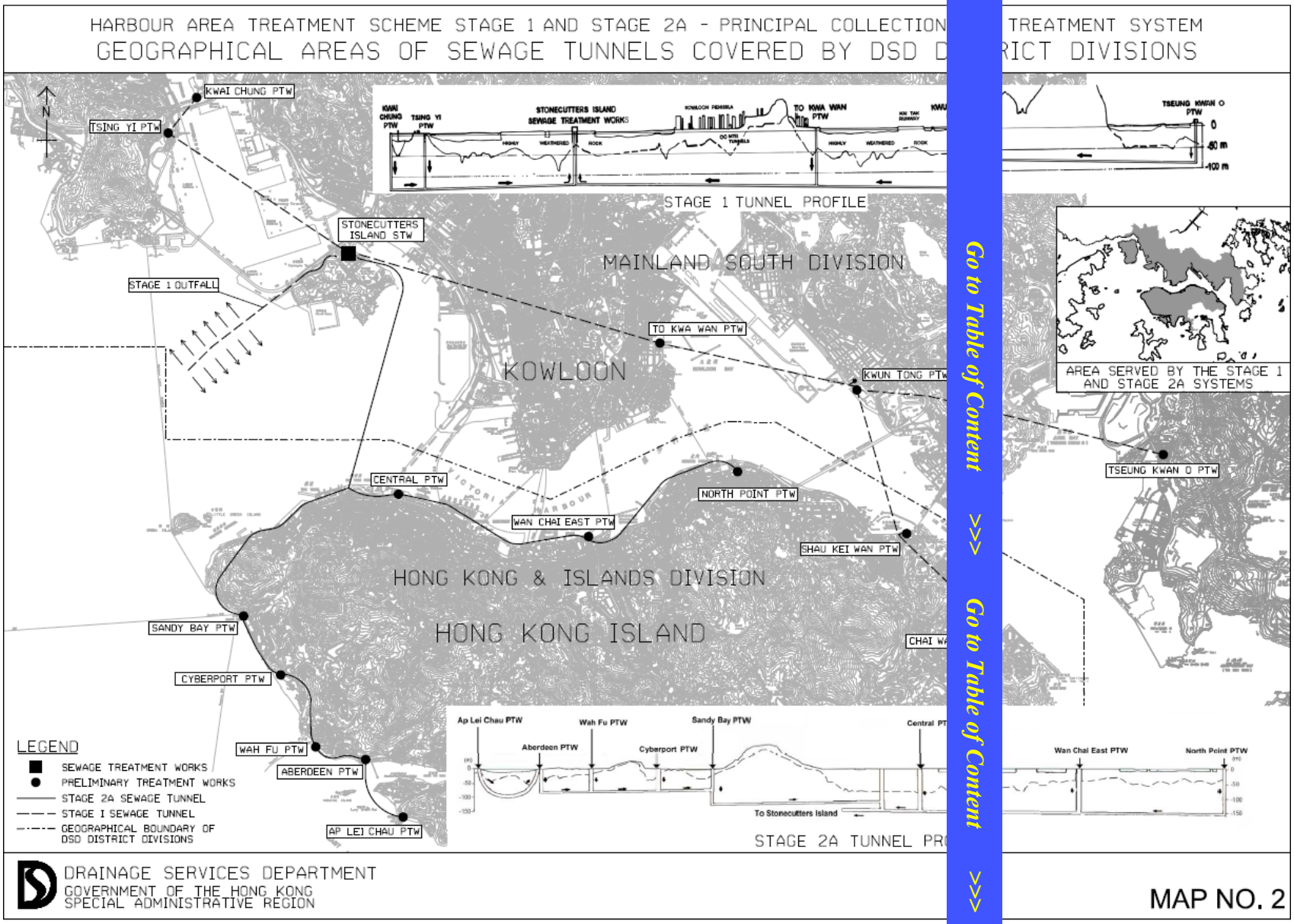

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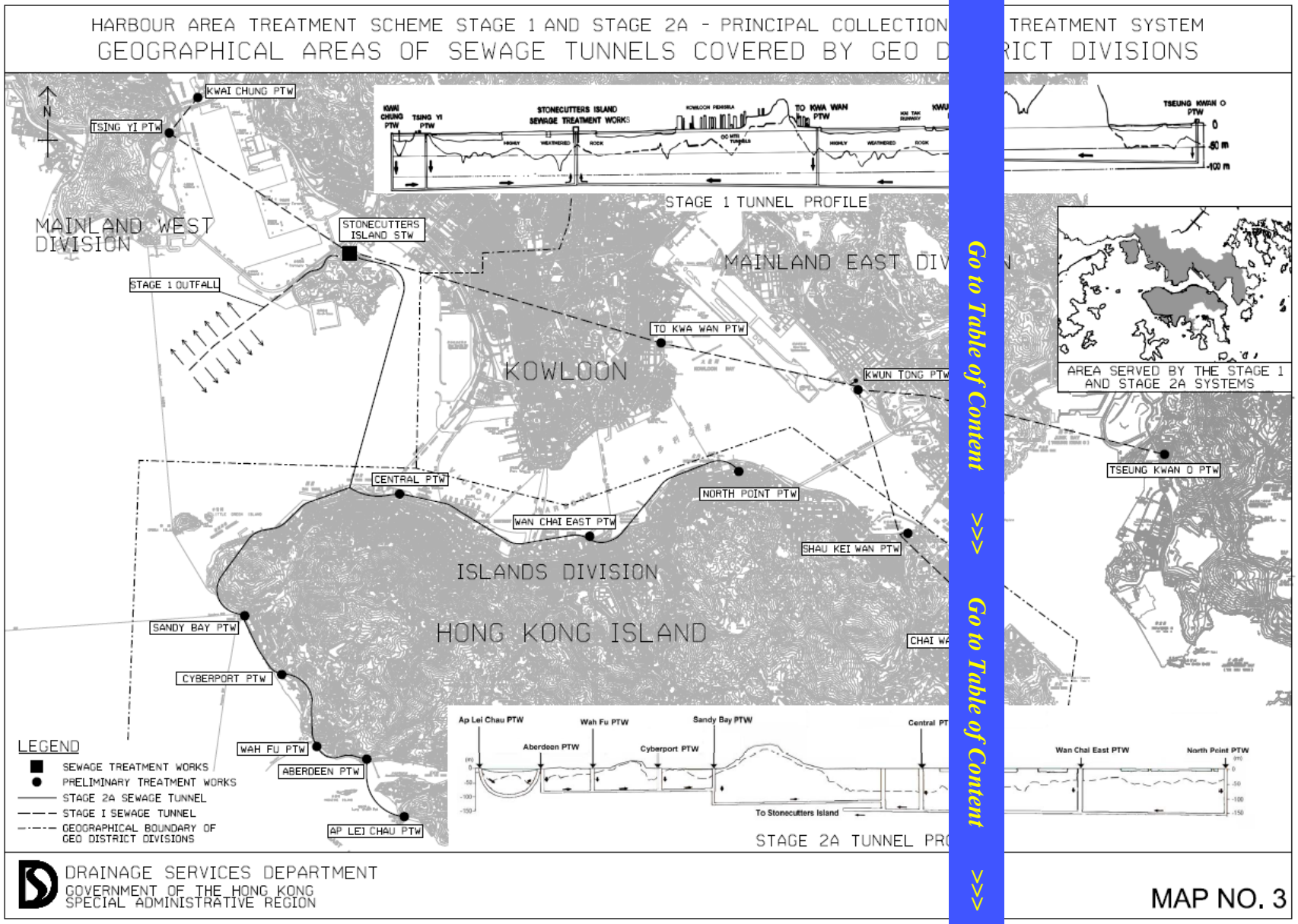

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CHAPTER 5

CONTRACT DOCUMENTS

The parts of the PAH shown in blue and bold should only be updated by Works Branch of Development Bureau.

Rev	Issue Date	Amendment Incorporated
First Issue	November 2024	NA
1	16 April 2025	Amd No. 2/2025
2	15 July 2025	Amd No. 3/2025
3	11 September 2025	Amd No. 4/2025
4	22 December 2025	Amd No. 7/2025

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SYNOPSIS

This Chapter provides a handy reference to the various standard documents, forms and information that are regularly used in the preparation of contract documents for civil engineering works using the General Conditions of Contract (GCC) for Civil Engineering Works (1999 Edition). In some cases, standard forms and exact wording to be included in contract documents are reproduced in the Chapter. However, where a printed version of a standard document is available or where the information is contained in a well-known document, the Chapter makes reference to such documents or source rather than reproducing them. Standard documents referred to in this Chapter should be of the latest editions of the General Conditions of Contract for Civil Engineering Works, Standard Method of Measurement for Civil Engineering Works, General Specification for Civil Engineering Works, Subcontract Articles of Agreement and Conditions for Civil Engineering Works, Contractor Management Handbook and Construction Site Safety Manual. The information in this Chapter would also be useful in the preparation of documents for term contracts using the General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition).

To cater for the wider adoption of New Engineering Contract (NEC) form in public works projects, DEVB has promulgated the "Practice Notes" for New Engineering Contract for Public Works Projects in Hong Kong aiming to provide guidance, performance benchmarking and alignment of practices in the preparation and administration of public works projects using NEC form. The most updated version of the "Practice Notes" for Engineering and Construction Contract (NEC – ECC) and Term Service Contract (NEC – TSC) are available at the following DEVB's websites:

NEC – ECC
https://www.devb.gov.hk/en/publications_and_press_releases/publications/standard_contract_documents/practice_notes_nec_engineering_construction_contract/index.html

NEC – TSC
https://www.devb.gov.hk/en/publications_and_press_releases/publications/standard_contract_documents/practice_notes_nec_term_service_contract/index.html

Pursuant to SDEV's memo ref. () in DEVB 506/30/07 dated 31.12.2021, for works contracts adopting NEC ECC form where tenders are to be invited on or after 1.4.2022, project offices shall adopt NEC4 version unless there are justifications for not doing so, which shall be endorsed by an officer at D2 rank or above with the justifications documented. For ECC works contracts to be invited on or after 1.7.2022, the use of NEC4 version is mandatory.

Pursuant to SDEV's memo ref. () in DEVB 506/30/07 dated 8.7.2022, for term contracts adopting NEC TSC form where tenders are to be invited on or after 1.10.2022, project offices shall adopt NEC4 version unless there are justifications for not doing so, which shall be endorsed by an officer at D2 rank or above with the justifications documented. For term contracts adopting NEC TSC form to be invited on or after 1.1.2023, the use of NEC4 version is mandatory.

Pursuant to SDEV's memo ref. () in DEVB(W) 506/30/07 dated 19.7.2022, for capital works contracts of values above the threshold for engaging Group C contractors under the List of Approved Contractors for Public Works[1], procuring departments shall adopt NEC form unless there are strong justifications with prior endorsement obtained from DEVB for not doing so. The above revised

[1] For the avoidance of doubt, the revised requirement is also applicable to capital works contracts engaging specialist contractors under the List of Approved Suppliers of Materials and Specialist Contractors for Public Works, and the threshold for applying this revised requirement to such works contracts is the Group Tender Limit for engaging Group C contractors under the List of Approved Contractors for Public Works.

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requirements shall be applicable to works contracts of values above the Quotation Limit for which tenders are to be invited on or after 15.8.2022 except for those where the adoption of NEC form or otherwise has been endorsed prior to 19.7.2022.

Pursuant to SDEV's memo ref. () in DEVB 506/30/07 dated 16.11.2023, for works contracts adopting NEC ECC form where tenders are to be invited on or after 1.4.2024, project offices shall adopt the NEC ECC HK Edition unless there are justifications for not doing so, which shall be endorsed by an officer at D2 rank or above with the justifications documented. For works contracts adopting NEC ECC form where tenders are to be invited on or after 1.7.2024, the use of the NEC ECC HK Edition is mandatory.

Pursuant to SDEV's memo ref. () in DEVB 506/30/07 dated 28.6.2024, for works contracts (including both capital works and term contracts) of values above the threshold for engaging Group C contractors under the List of Approved Contractors for Public Works, procuring departments shall adopt NEC form unless there are strong justifications with prior endorsement obtained from DEVB for not doing so. For works contracts other than those covered above, procuring departments shall adopt NEC form as far as practicable. The decision and justifications for not doing so shall be endorsed by an officer at D2 rank or above in the procuring department.

The guidelines provided in this Chapter were originally written for preparation of contract documents under GCC contracts. As the types of contract involved and the composition of contract documents in GCC contracts and NEC contracts are different, project officers are advised to refer to Sections A4.1 and A4.2 of the Practice Notes for NEC-ECC and Section B4.1 and B4.2 of the Practice Notes for NEC – TSC when they prepare the tender and contract documents for NEC contracts.

Notwithstanding the above, many of the guidelines in this Chapter can still be applied to the preparation of contract documents for NEC contracts.

A contract for civil engineering construction is a very complex legal document containing several inter-related documents each of which plays an important role in defining the obligations and responsibilities of the parties concerned or in providing information on the works to be constructed. It is therefore essential that the contract documents for each contract are prepared with great care and by an experienced professional who has thorough knowledge of the works to be constructed. The documents forming a contract must be scrutinized for comprehensive coverage, accuracy and consistency with one another before tenders are invited.

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I. ABBREVIATION

I.01 The meaning of the abbreviations assigned in this Chapter of the Project Administration Handbook for Civil Engineering Works shall only apply to this Chapter.

I.02 The following list shows the meaning of the abbreviations for the common terms used in this Chapter of the Project Administration Handbook for Civil Engineering Works

Abbreviation	Term
AAR	Alkali-Aggregate Reaction
BQ	Bills of Quantities
CCC	Conditions of Contract Committee
CCGO	Central Cyber Government Office
CCIP	Contractor Controlled Insurance Programme
CEDD	Civil Engineering and Development Department
CPFS	Contract Price Fluctuation System
C&D	Construction and Demolition
DCED	Director of Civil Engineering and Development
DEVB	Development Bureau
DEVB TCW No.	DEVB Technical Circular (Works) No.
DLO	District Lands Office
DPO	Digital Policy Office
DRA	Dispute Resolution Adviser
EDP	Electronic Dissemination Package
EIA	Environmental Impact Assessment
E&M	Electrical and Mechanical
EMSD	Electrical and Mechanical Services Department
EP	Environmental Permit
EPD	Environmental Protection Department
ER	Employer's Requirements
ETWB	Environment, Transport and Works Bureau
ETWB TCW No.	ETWB Technical Circular (Works) No.
FoT	Form of Tender
FC No.	Financial Circular No.
GCC	General Conditions of Contract for Civil Engineering Works (1999 Edition)
CGE/S&T	Chief Geotechnical Engineer/Standards and Testing
GCT	General Conditions of Tender
GEO	Geotechnical Engineering Office
GS	General Specification for Civil Engineering Works (2020 Edition)
HATS	Harbour Area Treatment Scheme
HIA	Hazard Identification Activity
HyD	Highways Department

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Abbreviation	Term
LAD(Works)/DEVB	Legal Advisory Division (Works) of Development Bureau
LandsD	Lands Department
LD's	Liquidated Damages
LWBTC No.	Lands and Works Branch Technical Circular No.
MM	Method of Measurement
NEC	New Engineering Contract
NEC – ECC	New Engineering Contract – Engineering and Construction Contract
NEC – TSC	New Engineering Contract – Term Service Contract
NTT	Notes to Tenderers
OCIP	Owner Controlled Insurance Programme
PAH	Project Administration Handbook for Civil Engineering Works
PES	Pre-work Exercise and Safety
PFC	Public Fill Committee
PFF	Price Fluctuation Factor
PFSES	Pay for Safety and Environment Scheme
PFSS	Pay for Safety Scheme
PII	Professional Indemnity Insurance
PRC	People's Republic of China
PP	Particular Preamble
PS	Particular Specifications
PWP	Public Works Programme
PWL	Public Works Laboratories
QPME	Quality Powered Mechanical Equipment
SCC	Special Conditions of Contract
SCCT	Standing Committee on Concrete Technology
SCT	Special Conditions of Tender
SDEV	Secretary for Development
SETW	Secretary for Environment, Transport and Works
SFST	Secretary for Financial Services and the Treasury
S for W	Secretary for Works
SMM	Standard Method of Measurement for Civil Engineering Works (1992 Edition)
SMP	Subcontractor Management Plan
SoR	Schedule of Rates
SPID	Standard Phraseology of [Bill of Quantities] Item Descriptions
SPRs	Stores and Procurement Regulations
SRM	Systematic Risk Management
SSC	Site Safety Cycle
WBTC No.	Works Bureau Technical Circular No. or Works Branch Technical Circular No.

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Abbreviation	Term
WTO GPA	Agreement on Government Procurement of the World Trade Organization

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II. GLOSSARY OF TERMS

II.01 Words and expressions to which meanings are assigned in this Chapter of the Project Administration Handbook for Civil Engineering Works (PAH) shall only apply to this Chapter.

II.02 In this Chapter of the PAH the following words and expressions shall have the meaning hereby assigned to them except when the context otherwise requires:

"Government" means the Government of the Hong Kong Special Administrative Region.

"project office" means the office responsible for the planning, design and construction of the project.
(Where these functions are performed by different offices at different stages, the project office shall mean the office responsible at each particular stage.)

"Contract", "Contractor", "Drawings", "Employer", "Engineer", "Engineer's Representative" and "Works" are as defined in the General Conditions of Contract for Civil Engineering Works (1999 Edition) or the General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition).

"Schedule of Rates" and "Works Order" are as defined in the General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition).

II.03 Words importing the singular only also include the plural and vice versa where the context requires.

II.04 The common terminologies used in GCC, NEC – ECC and NEC – TSC are compared in the table below.

GCC	**NEC – ECC**	**NEC – TSC**
Extension of time, variations, claims, disruptions, loss and expenses	Compensation events	
Bills of Quantities / Schedule of Rates	Bill of Quantities / Activity Schedule	Price List
Architect / Engineer / Surveyor / Supervising Officer	Project Manager / Supervisor	Service Manager
Site	Site / Working Areas	Contract Areas / Sites
Contract Sum	The Prices	
Date of completion	Completion Date	End of the Service Period / Task Completion Date
Estimated value of works	Price for Work Done to Date	Price for Service(s) Provided to Date
Maintenance Periods	Defects date, defect correction period	Maintenance Periods

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Special Conditions of Contract	Additional Conditions of Contract
Liquidated damages	Delay damages

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1. GENERAL

1.1 SELECTION OF TYPE OF CONTRACT

Contracts for construction may be broadly classified into the following types:

(a) a remeasurement contract containing Bills of Quantities or a measurement contract containing a Schedule of Rates,

(b) a lump sum contract with drawings and specification,

(c) a lump sum contract with firm Bills of Quantities,

(d) a cost reimbursement contract,

(e) a design and build contract involving both design and construction by the Contractor. This type of contract is normally priced as a lump sum. (See DEVB TCW No. 4/2015)

Paragraph 10 stipulates that lump sum contracts with firm Bills of Quantities should be regarded as the preferred procurement approach for all civil engineering works. The criteria set out in Paragraph 10 should be followed in determining the type of contract to be adopted. A measurement contract with a Schedule of Rates should normally be used for term contracts involving maintenance works or works of a recurrent nature or works of a minor nature.

Other types of contract may be used subject to the prior approval of the Head of Office/Division who may seek higher authority as necessary.

1.2 COMPOSITION OF TENDER AND CONTRACT DOCUMENTS

For a typical civil engineering contract, the tender documents generally include the following:

(a) Notes to Tenderers (see Paragraph 11.2),

(b) General Conditions of Tender (GCT) (see Paragraph 2.1),

(c) Special Conditions of Tender (SCT) (see Paragraph 2.2),

(d) Form of Tender (see Paragraph 3.1, Appendix 5.1 & 5.2),

(e) Schedule of Proportions for calculating the PFF (see Paragraph 3.2),

(f) General Conditions of Contract (GCC) (see Paragraph 5.1),

(g) Special Conditions of Contract (SCC) (see Paragraph 5.2),

(h) General Specification (GS) (see Paragraph 6.1),

(i) Particular Specification (PS) (see Paragraph 6.2),

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(j) Standard Method of Measurement (SMM),

(k) Particular Preambles (if any),

(l) Bills of Quantities (BQ) (see Paragraph 7.1)

(m) Drawings (see Paragraph 8.1), and

(n) Any relevant pre-contract correspondence with the Contractor (e.g. tender addendum, circular letters to tenderers) (see Paragraphs 5.2, 6.14.4, 7.2.1, 7.3, 7.6 & 8.1.1 of PAH Chapter 6).

Usually, only documents (d) to (n) listed above, the letter of acceptance of the tender and the Articles of Agreement form the contract documents (see Paragraph 8.1.1 of PAH Chapter 6).

The type or edition of document used shall be the current version as promulgated by DEVB TCWs or other appropriate circular. Reference should also be made to the current corrigenda issued to the GS and the SMM (see Paragraph 5.2 of PAH Chapter 6).

1.3 CONSISTENCY AMONGST DOCUMENTS

Care should be taken to avoid any ambiguities or discrepancies in the documents which form a contract as contractual claims and disputes are often caused by inconsistencies in or between the documents. If any ambiguities or discrepancies exist, it should be noted that the provisions of the SCC prevail over those of the GCC, which in turn prevail over the PS and the Drawings, which in turn prevail over the GS. GCC Clause 5(1) and GS Clause 1.01 are relevant in this aspect.

In the drafting of SCC or PS clauses, reference should be made whenever appropriate to the GCC and the GS, using phrases such as:

(a) "Pursuant to General Conditions of Contract Clause .....", or

(b) "GS Clause ..... is deleted and replaced by ....." etc.

1.4 COMMENTS ON DOCUMENTS BY CONTRACT ADVISERS

The responsibility for ensuring that tender documents are properly prepared rests with the professional officers handling the project. They may however seek advice from Contract Advisers on tender documents when genuine doubts emerge. When seeking such advice, the officer concerned shall inform the Contract Adviser of the doubts he has and the aspects of the case on which he wants advice (see Paragraph 1.5.1 of this Chapter).

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1.5 LEGAL VETTING OF TENDER DOCUMENTS

1.5.1 Contracts Estimated to Exceed $500M

(Ref.: SDEV's memo ref. ( ) in DEVB(W) 510/30/01 dated 29 March 2019)

If a works contract has an estimated value exceeding $500M, departments must send all the non-standard components of the tender documents, including bills of quantities, particular specifications, special conditions of contracts, etc. through the appropriate Contract Adviser to the Legal Advisory Division (Works) of DEVB (LAD(Works)/DEVB) for legal vetting prior to calling for tenders. Before submission to LAD(Works)/DEVB, it is advisable to request the relevant Contract Adviser to comment on the documents. Comments made by the relevant Contract Adviser on the draft should be attached for LAD(Works)/DEVB's information.

The non-standard components of the tender documents to be submitted shall include the following:

(a) Special Conditions of Tender,

(b) Form of Tender and Appendix thereto (if these have been altered from the standard version shown at Appendix 5.1),

(c) Articles of Agreement (if these have been altered from the standard printed version),

(d) Special Conditions of Contract,

(e) Particular Specification, and

(f) Bills of Quantities, including General and Particular Preambles.

A memo shall accompany the non-standard components of the tender documents, drawing attention to the following:

(a) SCT clauses and SCC clauses together with reasons for their incorporation,

(b) alterations, if any, to the standard versions of the Articles of Agreement and the Form of Tender and Appendix thereto, and

(c) any clause in the PS, any item in the BQ, or any other matter relating to the tender documents or to the Contract which may have significant contractual or financial implications.

LAD(Works)/DEVB will consider these documents (retaining a copy for future reference) and may recommend amendments they consider advisable to the works division/regional office concerned, who should incorporate such amendments as necessary into the documents before calling for tenders. The vetting by LAD(Works)/DEVB will take at least three weeks and provision should be made in the programme for tender preparation.

If owing to urgency, or some other reasons, the documents cannot be submitted through Contract Adviser then the reason for the same should be explained in the covering memo to LAD(Works)/DEVB. However, action should then be taken to forward the comments made by Contract Adviser as soon as they are received.

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1.5.2 Design and Build Contract

The Administrative Procedures issued under DEVB TCW No. 4/2015 should be followed as closely as possible. In particular, the procedures laid down in the "Guidance Notes on the Preparation of the Employer's Requirements" (Appendix C of the Administrative Procedures) should be followed in order to avoid any unnecessary design changes after the contract is awarded. Prior approval of DEVB shall be obtained if the Procedures are not to be followed because of special consideration given to individual cases. The legal vetting requirement as described in Paragraph 1.5.1 applies equally to design and build contracts. The Administrative Procedures can be found on the DEVB website (under Publications and Press Releases\Publications\Standard Contract Documents\).

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2. CONDITIONS OF TENDER

2.1 GENERAL CONDITIONS OF TENDER

(Ref.: SDEV's memo ref. (026NM-01-3) in DEVB(W) 546/17/01 dated 25.6.2010 and SDEV's memo ref. ( ) in DEVB(W) 546/83/01 dated 11.11.2020)

Commonly used GCT clauses to be included in the Conditions of Tender are given in the Library of General Conditions of Tender available on DEVB website and shall be used for all works contracts other than design and build contracts.

The Library of General Conditions of Tender has been uploaded to the DEVB website under standard contract documents in the publications section and it will be updated from time to time when new technical circulars/memos are promulgated which may affect the library content. For the latest version, please refer to the DEVB website.

(http://www.devb.gov.hk/en/publications_and_press_releases/publications/standard_contract_documents/index.html)

2.2 SPECIAL CONDITIONS OF TENDER

(Ref.: SDEV's memo ref. (03487-01-1) in DEVB(W) 510/83/05 dated 31.12.2019 and SDEV's memo ref. () in DEVB(W) 510/83/05 dated 14.7.2020, 16.9.2020 and 26.3.2021)

Any alterations to a GCT shall be effected by a SCT. Commonly used SCT clauses to be included in the Conditions of Tender for works contracts other than design and build contracts are provided in the Library of Special Conditions of Tender available on DEVB website. In addition, any SCT clauses promulgated by means of memos/respective technical circulars after promulgation of the Library shall be deemed to have been included in the Library. The project office may use the SCTs promulgated selectively since not every item of the provisions is applicable to a particular contract.

The inclusion of the standard SCT clauses requires the approval of an officer at D1 rank or above. When non-standard SCT clauses are needed, approval will have to be given by an officer of at least D2 rank. When seeking such approval, the reasons for their inclusion and a draft of them (with legal advice from LAD(W)/DEVB where appropriate) should be submitted.

The Library of Special Conditions of Tender has been uploaded to the DEVB website under standard contract documents in the publications section and it will be updated from time to time when new technical circulars/memos are promulgated which may affect the library content. For the latest version, please refer to the DEVB website.

(*http://www.devb.gov.hk/en/publications_and_press_releases/publications/standard_contract_documents/index.html)*

A sample Joint Venture (JV) Proforma has been drawn up to facilitate tenders to provide the proposed value of works in submitting their tenders in the form of a joint venture. The sample JV Proforma and SCT on Contractors' Joint Venture as promulgated in SDEV's memo ref. () in DEVB(W) 510/83/05 dated 26.3.2021, Notes to Tenderer and GCT on Essential Submissions as promulgated in SDEV's memo ref. (03487-01-1) in DEVB(W) 510/83/05 dated 31.12.2019 shall be adopted for all public works contracts without prequalification. For contracts adopting prequalification, the SCT clause set out at Annex 1 of SDEV's memo ref. (02VVW-01-1) in DEVB(W) 510/83/05 dated 24.1.2017 remains in force.

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Updated version of standard GCT 31 in relation to the eligibility of probationary contractors to tender and for award of contracts is promulgated in SDEV's memo ref. () in DEVB(W) 510/83/05 dated 14.7.2020.

Updated version of standard GCT 29 on "One tender only for holding companies, subsidiaries or related parties" and sub-clause (3) of GCT 16 on "Tender Clarification" is promulgated in SDEV's memo ref. () in DEVB(W) 510/83/05 dated 9.11.2020.

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3. FORM OF TENDER AND SCHEDULE OF PROPORTIONS

3.1 STANDARD FORM OF TENDER

(Ref.: SDEV's memo ref. ( ) in DEVB(W) 546/83/01 dated 11.11.2020)

For capital works contracts, the standard Form of Tender as shown at Appendix 5.1 should be used. Guidelines for completing the Form of Tender are given at Appendix 5.2. Regarding Form of Tender for term contracts, reference should be made to PAH Chapter 8. For capital works contracts using NEC form, please refer to the above mentioned SDEV's memo for the updated Form of Tender.

Matters to be dealt with in the Appendix to the Form of Tender depend very much on the standard form of contract used and other special contract provisions (in the form of SCCs and Particular Specification) incorporated in the contract. Departments should check and ensure that all the matters required to be dealt with in the Appendix to the Form of Tender have been properly specified/stated therein.

3.2 SCHEDULE OF PROPORTIONS

A Contract Price Fluctuation System (CPFS) is used in all civil engineering capital works contracts and term contracts to cover changes in the cost of labour and materials between the time of tender submission and the time of payment is made for the Works completed. A description of the system and guidelines for the preparation and administration of contracts using the CPFS are provided in DEVB TCW No. 4/2021.

The CPFS requires the inclusion of a Schedule of Proportions in the contract documents, which will be used to calculate a PFF for adjusting payments to the Contractor for items valued at tendered rates. The guidelines on preparation and the sample Schedule of Proportions for different types of contracts are given at the annexes/ appendices of DEVB TCW No. 4/2021 which was revised via SDEV's memo ref. ( ) in DEVB WB WP4S-022-003-001-001 dated 1 August 2025. Amd No. 4/2025

All new contracts (including design and build contracts) with tenders to be invited on or after 1 October 2021 shall adopt the Index Numbers of the Costs of Labour and Materials used in Public Sector Construction Projects (April 2021=100) published by the Census and Statistics Department and the associated provisions stipulated in DEVB TCW No. 4/2021 for contract price fluctuation (CPF) adjustment. If it is considered impractical or unsuitable to adopt the CPFS in a contract due to reasons such as predominant use of proprietary products/systems and/or absence of suitable cost indices for price fluctuation computation, approval for such exemption should be obtained from an officer at D3 rank or above with the justifications properly documented.

3.3 LIQUIDATED DAMAGES

(Ref.: ETWB TCW No. 4/2003)

3.3.1 General Principle

Liquidated damages (LD's) is a sum agreed by the Employer and the Contractor in advance as the amount to be paid by or deducted from payments to the Contractor as damages if the Contractor breaches the contract by failing to complete the work in time. A provision for LD's is enforceable if the amount fixed is a genuine pre-estimate, judged at the time the contract is entered into, of the loss likely to arise from the anticipated breach. The Employer

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does not need to prove actual damages but LD's are not enforceable if imposed as a penalty. Guidelines for distinguishing between liquidated damages and a penalty are stated in the leading case of *Dunlop Pneumatic Tyre Company Limited v New Garage and Motor Company Limited* [1914-15] All ER 739. Reference may also be made to the judgement of the Privy Council in *Philips Hong Kong Limited v The Attorney General of Hong Kong* delivered on 9 February 1993. If the courts find the agreed sum to be "extravagant or unconscionable in amount in comparison with the greatest loss which could conceivably be proved to have followed from the breach" it will be held to be a penalty.

3.3.2 Calculation of Liquidated Damages

The LD's formula to be entered in the Appendix to the Form of Tender should be a genuine pre-estimate of the likely loss to the Employer resulting from delay in completion of the Works, or any Section of the Works, as the case may be. The General Conditions of Contract Clause 52 has been drafted on the basis that if any part of the Works is designated as a Section, the remainder of the Works must also be designated as a Section. If a contract contains Sections, LD's should be calculated for each Section instead of for the whole of the Works.

If it is possible to carry out a cost-benefit analysis, LD's shall be calculated using the daily rate of economic benefit likely to be generated by the project after completion and those additional costs due to the delay in completion of the Works, if any. Where such analysis is not possible, as is usually the case in public sector construction contracts, an amount being a genuine pre-estimate of the likely loss to the Employer may be stipulated as the LD's.

In estimating the likely loss to the Employer, there is a widely accepted formula method which includes the following components:

- **(a) loss of revenue or interest on the capital invested in the project;**
- **(b) supervisory costs during the delay period;**
- **(c) the additional sum payable to the Contractor in respect of fluctuations in the cost of labour and materials; and**
- **(d) any special damages specific to the particular project.**

Adopting this, the empirical formulae given in Appendix 5.34 may be used to calculate the components of LD's to be specified in the Contract unless an alternative, more accurate assessment can be made.

3.3.3 Special Damages

There may be situations where the Employer will suffer some special losses as a result of a project not being completed on time. For example, where a contract is on the critical path any delay may result in an ultimate delay to the completion of another contract (e.g. a separate demolition or piling contract can delay the completion of the whole project). The Employer will suffer a loss on the following contract(s) if delayed by the late completion of the contract in respect of which the calculation is being made. LD's for special damages cannot be imposed if there is a float period between contracts, because there cannot be any genuine pre-estimate of the special damages. However, in many cases contracts are programmed so that there is no float. This should be confirmed before a calculation is made.

There may be other categories of loss caused by delay in meeting key dates. For example, there may be a special loss of running a less cost efficient facility until the replacement

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facility is available; the opening of a school or offices may depend on the completion of a road access; or the loss of interest on capital invested in an adjoining sewage treatment plant which cannot be commissioned until the sewer tunnel is completed.

There may also be occasions where Government is liable to a third party for losses caused by delay in completion of the Works. For example, Government undertakes the site formation of a leased land and is liable to damages for delay. Another example is that Government may have to pay its consultants additional fees and expenses arising from delay in completion of the Works.

If any such special damages can be identified at the project planning stage, it is essential that the rationale behind the calculation (but not the calculation itself), is clearly stated in the tender documents as a Special Condition of Tender and the appropriate sum representing the special damages included as part of the genuine pre-estimate of loss in the event of late completion of the Works or, as the case may be, the relevant Section.

3.3.4 Minimum Amount of Liquidated Damages

The amount of LD's is subject to proportional reduction under General Conditions of Contract Clause 52(2), due to the completion or handing over of a part of the Works or part of a Section in advance of the whole. Under certain circumstances, this proportional reduction may not reflect the real effect of delay. For example, a partial completion of the Works would not help in reducing the special damages. Also, in practice, there is a limit on the minimum size of the site supervisory staff beyond that no further reduction is possible. Under such circumstances, a SCC specifying the minimum amount of LD's should be incorporated in the contract by adding a sub-clause (5) to General Conditions of Contract Clause 52 as follows:

"General Conditions of Contract Clause 52 is amended by adding the following as sub-clause (5):

> **(5) Notwithstanding the proviso to General Conditions of Contract Clause 52(2) the resulting rate per day of liquidated damages for the Works or any Section after reduction in accordance with that sub-clause shall not be less than the minimum rate per day of liquidated damages for the Works or, as the case may be, the relevant Section as stated in the Appendix to the Form of Tender."**

and the sum calculated in respect of the special damages and the minimum supervisory staff costs shall be inserted in the Appendix to the Form of Tender as the "Minimum amount of liquidated damages (per day)".

It should be noted that the concept of minimum site staff establishment may not be applicable to Sections, other than the last Section, as the supervision can be carried out by the supervisory staff for the remaining Sections. However, there are exceptions. For instance, if a Section of the Works is geographically or technically separated, entailing the need to deploy staff purely for that Section of the Works. Another example is where some of the staff could be released on completion of a major Section, leaving some minor works such as landscaping works as the last Section to be completed.

3.3.5 Lowering the Daily Rate of LD's

Contractually, there is no impediment to setting LD's at a level below the genuine pre-estimate of the Employer's loss as calculated in accordance with the above Paragraphs 3.3.2 and 3.3.3. If the daily rate of LD's is likely to be more than a contractor can reasonably bear, the

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procuring department may consider lowering the rate to a commercially acceptable level and seek the endorsement of the Development Bureau on the proposed amount of LD's on a case by case basis. Where such a rate is lower than the genuine pre-estimated loss, the approval of the Secretary for Financial Services and the Treasury must be sought before incorporating such a rate in the tender documentation.

3.3.6 LD's in the Tender Documentation

Where the amount of LD's is to a certain extent related to the contract value of the Works or the Section, the rate of LD's shall be stipulated as a function of the Contract Sum or the contract value of the Section and appropriate footnote should be added to the relevant LD's provisions in the Appendix to the Form of Tender. (e.g. $A*Y_1 + B$ where Y_1 is the Contract Sum or the total sum of a Bill in the Bills of Quantities and A & B are some numerical values determined in accordance with Appendix 5.34 and Paragraph 3.3.3. See also the example given in Annex B of Appendix 5.35). The department shall notify the tenderer of the rate of LD's so calculated before tender acceptance and a copy of such notice shall be incorporated in the contract documents forming part of the contract.

In addition, to deal with possible anomalies which may arise as a result of negative pricing by tenderers, appropriate footnote (depending on whether or not there is minimum LD's for the Works/Section) should be added to the relevant LD's provisions in the Appendix to the Form of Tender along the following lines:

(a) Where there is no minimum LD's

> **"The value of the formula within the square brackets shall be taken as zero for the purpose of computation of the daily rate of liquidated damages if and when the sum is worked out to be a negative value by substituting each of *[specify those indeterminate items] [as appropriate,]** with its corresponding value in the priced Bills of Quantities."**
>
> **[Note*: *Consider inclusion of the words "as appropriate," if the Works are divided into Sections and the footnote is used in relation to two or more Sections with no minimum LD's.*]**

(b) Where there is minimum LD's

> **"The value of the formula within the square bracket shall be taken as *[specify the amount of the applicable daily rate of minimum LD's]* for the purpose of computation of the daily rate of liquidated damages if and when the sum is worked out to be less than *[specify the amount of the applicable daily rate of minimum LD's]* by substituting each of *[specify those indeterminate items]* with its corresponding value in the priced Bills of Quantities."**

An example of the LD's provisions in the Appendix to the Form of Tender is at Annex C of Appendix 5.35.

3.3.7 Independent Check

It is important that those responsible for calculating LD's should ensure that the calculations are logical and free from error. In all cases, the full implications of the contract must be considered in applying the formulae given in Appendix 5.34. In this respect, LD's

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calculations should always be subject to an independent check by a senior professional officer. Calculations from which LD's are derived must be set out clearly and kept on file for future reference.

A proforma which may be useful as a guide in the calculation of LD's is at Annex A of Appendix 5.35. A worked example is at Annex B of Appendix 5.35. The summary statement only but not the calculations shall be included in the Appendix to the Form of Tender.

3.3.8 Check Before Tender Invitation

The formula to be entered into the Appendix to the Form of Tender for determining the rate of LD's (hereinafter referred to "the Formula") should be reviewed immediately before tender invitation, with reference to the latest available information.

3.3.9 Keep in View During the Tender Period

Should there be changes to the scope of the Works or the special damages before the tender closing date, the Formula should be adjusted by means of a tender addendum.

3.3.10 Check before the Issue of the Letter of Acceptance

As a provision for LD's is enforceable only if the rate fixed is a genuine pre-estimate of the Employer's loss judged at the time of entering into the contract, there is a need to review the Formula immediately before a tender is accepted. If the Formula no longer represents a valid estimate of the likely loss to the Employer (e.g. the original assumption concerning the float period between contracts is found to be invalid or the special damages have changed due to changed circumstances), the following action should be taken:

(a) If the rate of LD's calculated in accordance with the Formula is higher than the latest estimate of the likely loss, the procuring department should negotiate with the tenderer(s) to amend the rate of LD's in accordance with the tender negotiation procedures stipulated in the SPRs.

(b) If the rate of LD's calculated in accordance with the Formula is lower than the latest estimate of the likely loss, the procuring department should follow the procedures in sub-paragraph (a) above to revise the rate of LD's. If as a result of negotiation the revised rate of LD's is at a level below the genuine pre-estimated loss i.e. the latest estimated loss in this case, the procuring department must seek DEVB's endorsement and the approval of Secretary for Financial Services and the Treasury.

3.3.11 Record

Full record of any review of LD's together with all related calculations should be kept on file.

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4. ARTICLES OF AGREEMENT

Standard Articles of Agreement attached to the respective editions of the GCCs shall be used, namely, GF 548 for capital works contracts for Civil Engineering Works as modified by Appendix A of WBTC No. 20/2000, GF 546 for term contracts for Civil Engineering Works, GF 549 for Design and Build Contracts, GF 541 for Building Works, and GF 550 for Electrical & Mechanical Works. Appropriate modification to the attestation clauses should be made in accordance with DEVB TCW No. 7/2014.

For Nominated Subcontracts, the Articles of Agreement in the "The Government of the Hong Kong Special Administrative Region, Subcontract Articles of Agreement and Conditions for Civil Engineering Works" (GF 543), with appropriate modification to suit different contract forms, shall be used for all Nominated Subcontracts to capital works contracts.

Where a contract is awarded to an unincorporated joint venture, the revised Articles of Agreement at Appendix E of ETWB TCW No. 50/2002 shall be used. Appropriate modification to the attestation clauses should be made in accordance with DEVB TCW No. 7/2014. Where the contractor is an incorporated joint venture, the ordinary form of Articles of Agreement shall be used.

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5. CONDITIONS OF CONTRACT

5.1 GENERAL CONDITIONS OF CONTRACT

The following standard documents are available:

(a) The Government of the Hong Kong Special Administrative Region, General Conditions of Contract for Civil Engineering Works (1999 Edition);

(b) The Government of the Hong Kong Special Administrative Region, General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition);

(c) The Government of the Hong Kong Special Administrative Region, General Conditions of Contract for Building Works (1999 Edition);

(d) The Government of the Hong Kong Special Administrative Region, General Conditions of Contract for Term Contracts for Building Works (2004 Edition);

(e) The Government of the Hong Kong Special Administrative Region, General Conditions of Contract for Electrical and Mechanical Engineering Works (1999 Edition);

(f) The Government of the Hong Kong Special Administrative Region, General Conditions of Contracts for Term Contracts for Electrical and Mechanical Engineering Works (2007 Edition); and

(g) The Government of the Hong Kong Special Administrative Region, General Conditions of Contract for Design and Build Contracts (1999 Edition).

The GCCs have been uploaded to the DEVB website (under standard contract documents in the publications section) and will be updated from time to time when new editions are promulgated. (*http://www.devb.gov.hk/en/publications_and_press_releases/publications/standard_contract_documents/index.html)*

5.2 SPECIAL CONDITIONS OF CONTRACT

5.2.1 General Consideration

Any amendments, additions, deletions and amplifications to the GCC should be effected by the inclusion of SCC clauses. However, SCC clauses should only be included when there is a genuine need to alter or supplement the GCC.

Matters concerning materials or workmanship standards or detailed arrangement for the execution of Works should not in general be stipulated in the form of SCC. Such matters, if not adequately covered by the GS, should be dealt with in the PS (see Paragraphs 6.1 and 6.2 below).

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5.2.2 Library of Standard Special Conditions of Contract

Commonly used standard SCC clauses for use with the General Conditions of Contract for Civil Engineering Works, Building Works and Electrical & Mechanical Engineering Works (1999 Edition) are included in the Library of Standard Special Conditions of Contract ("Library of standard SCC") promulgated and updated by DEVB in WBTC Nos. 18/2000, 18/2000A and 18/2000B and SDEV's memo ref. DEVB(W) 546/17/02 dated 9.2.2011. In addition, any SCC clauses promulgated by means of memos/respective technical circulars after promulgation of the Library of standard SCC shall be deemed to have been included in the Library. All additions and deletions from the Library of standard SCC will be vetted by the Conditions of Contract Committee (CCC) and approved by the SDEV. To maximize the usefulness of the Library, any non-standard SCC developed for a particular contract that will have repeated use or could be of use to others should be submitted to the CCC through the department's representative with a view to placing the clause in the Library of standard SCC.

The updated Library of standard SCC as promulgated in SDEV's memo ref. DEVB(W) 546/17/02 dated 9.2.2011 is available for use on the Works Group Intranet Portal. The current practice of updating the PAH to incorporate SCC from newly issued technical circulars/memos will be maintained. As updating of the Library of standard SCC may not be in pace with the PAH, newly issued SCC may have been updated to the PAH sooner than that of the Library of standard SCC. In this regard, project officers should also make reference to the PAH when using the Library of standard SCC. If any anomalies are found, they should notify their departmental contract advisors for further clarification with the DEVB subject officer [AS(WP4)8, telephone no. 3509 7308].

The SCC for deletion of a provision in GCC which expressly disentitles a Contractor to an extension of time if the cause of the delay is a shortage of labour is promulgated in Appendix A of DEVB TCW No. 5/2013, and should be incorporated in works contracts of all categories including capital works contracts, term contracts and Design and Build (D&B) contracts whose tenders are invited on or after 15 August 2013.

The SCC for introducing Pay for Safety Performance Merit System (PFSPMS) as an extension to the existing Pay for Safety and Environment Scheme (PFSES) and Pay for Safety Scheme (PFSS) is promulgated in SDEV's memo ref. (02LSV-01-1) in DEVB(W) 516/70/03 dated 22.11.2013, and should be included in all capital works contracts including electrical and mechanical contracts and D&B contracts which adopt PFSS/PFSES and with tenders to be invited on or after 1 February 2014. The Guidelines on the Inclusion of the Pay for Safety Performance Merit Scheme as Extension to the Pay for Safety Scheme (PFSS) have been revised in Chapter 12 of Construction Site Safety Manual (March 2018 version) and should be followed.

The SCC for dealing with tenderers' alternative designs, tenderer's designs required for part of the Works and alternative designs from Contractors after contract award is promulgated in DEVB TCW No. 3/2014, and should be included in all works contracts for which tenders are invited on or after 15 May 2014 except D&B contracts.

The SCC for aligning with the Domestic Arbitration Rules (2014) promulgated by the Hong Kong International Arbitration Centre which took effect on 1 November 2014 is promulgated in SDEV's memo ref. DEVB(W) 510/10/01 dated 4.12.2014, and should be included in all public works contracts for which tenders are invited on or after 1 January 2015. Dispute resolution clause in Annexes A – D to SDEV's memo ref. DEVB(W) 510/10/01 dated 4.12.2014 are superseded by Annex E to DEVB TC(W) No. 6/2021.

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The SCC for the use of non-road mobile machinery approved under the Air Pollution Control (Non-road Mobile Machinery) (Emission) Regulation is promulgated in DEVB TCW No. 1/2015, and should be incorporated in tender documents for capital works contracts of public works including D&B contracts, with an estimated contract value exceeding $200 million and with tenders to be invited on or after 1 June 2015.

The SCC for excluding enforceable contractual rights on a third party is promulgated in Annex of SEDV's memo DEVB(W) 510/10/01 dated 28.8.2015, and should be included in the tenders for all works contracts to be awarded on or after 1 January 2016.

The SCC for re-introducing the Independent Safety Audit Scheme is promulgated in SDEV's memo ref. (02SR7-01-1) in DEVB(W) 516/83/02 dated 30.10.2015, and should be incorporated into the documents of mega capital works contracts (estimated contract sums exceeding $1,000 million) or capital works contracts (excluding maintenance contracts) involving unconventional construction method (such as working in compressed air at pressure exceeding 3.45 bars) even if the estimated contract sum is less than $1,000 million, and for which tenders are to be invited on or after 1 January 2016.

The SCC for allowing the use of the prefabricated rebar products produced in the yards on the "List of Approved Steel Reinforcing Bar Prefabrication Yards for Public Works" is promulgated in DEVB TCW No. 10/2018, and should be included into the public works contracts including capital works contracts, term contracts, and D&B contracts of all categories of building and civil engineering works for which the tenders are to be invited on or after 1 March 2016.

The SCC for ceasing the reimbursement of the Mandatory Provident Fund is promulgated in SDEV's memo ref. (02VKU-01-3) in DEVB(W) 510/17/01 dated 16.12.2016, and is applicable to new contracts of which tenders will be invited on or after 1 January 2017.

The SCC for the provision of site uniform for personnel working on public works site is promulgated in Appendix I of the SDEV's memo ref. DEVB(Trg) 133/3 (10) dated 23.1.2017, and is applicable to all public works contracts, including design and build contracts and term contracts, with a contract period of not less than 12 months, of which the tender invitations will be issued on or after 1 February 2017.

Project officers should refer to SDEV's memo ref. DEVB(W) 505/91/01 dated 17.5.2017 which amends the DEVB TCW No. 8/2010 and specifies the latest requirements for an enhanced specification on site cleanliness and tidiness for adoption in public works contracts on a need basis.

The SCC for the employment of skilled works in public works contracts is promulgated in Appendix A of DEVB TCW No. 4/2017 and is applicable to all public works contracts, including design and build contracts and terms contracts, of which the tender invitations will be issued on or after 15 July 2017.

The SCC to be incorporated into tender documents for contracts requiring the contractor to have obtained ISO 9000 certification is promulgated in the Appendix F of SDEV's memo ref. DEVB(W)520/83/01 (2018 version) dated 4.4.2018 for immediate implementation.

The adoption of a unified title of Assistant Clerical Officer (Labour Relations) ("ACO(LR)") in all new public works contracts is promulgated in SDEV's memo ref. (02YWL-01-2) in DEVB(W) 510/17/01 dated 5.2.2018 which provides that Works Departments should modify the relevant SCC and Particular Specification for wage payment monitoring measures accordingly.

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The SCC for advance payment mechanism as an interim relief measure to assist the construction industry is promulgated in SDEV's memos ref. ( ) in DEVB(W) 510/33/02 dated 14.2.2020, 5.3.2021 and 10.3.2022, and should be included into the capital works contracts for which the tenders are to be invited on or after 1.3.2020 until further notice.

The SCC for advance payment mechanism under term contracts is promulgated in SDEV's memos ref. ( ) in DEVB(W) 510/33/02 dated 5.6.2020, 5.3.2021 and 10.3.2022, and should be included into term contracts for which the tenders are to be invited on or after 20.4.2020 until further notice.

The SCC for CPFS, which includes a mechanism to deal with changes in indices and statistical figures referenced in the prescribed method for CPF calculation, is promulgated in Appendix A of DEVB TCW No. 4/2021 and should be included in all new contracts (including design and build contracts) which tenders are to be invited on or after 1 October 2021.

The revised Guidelines on Scope and Contents of Subcontractor Management Plan promulgated under SDEV's memo ref. (03E8T) in DEVB(W)516/80/03 dated 3.8.2022 replacing the existing Appendix to Special Conditions of Contract / *additional conditions of contract* on Subcontractor Management Plan promulgated under DEVB TC(W) No. 6/2021 are at Appendices 5.6A, 5.6C and 5.6E respectively.

The above-mentioned revisions to the Library of standard SCC may not be exhaustive. Project officers should refer to the latest technical circulars/memos on DEVB's website and Works Group Intranet Portal during their preparation of tender documents.

5.2.3 Approval of Special Conditions of Contract

In accordance with the technical circulars promulgating the Library of Standard SCC, except for the clause deleting provision for extension of time due to inclement weather, standard SCC clauses may be used as required with the approval of the chief engineer (or a higher rank officer in cases of SCC for Sections subject to excision, care of the Works insurance and third party insurance) responsible for the administration of the particular contract. The use of the standard SCC clause deleting the provisions for extension of time due to inclement weather must however be approved by the Head of Department and endorsed by DEVB (attention PAS(W)3).

All non-standard SCC clauses may be drafted and used as required on the approval of the Head of Department/Office or those officers (not below the rank at D1) to whom this responsibility has been delegated. When seeking such approval, the reasons for the inclusion of the SCC clause and a draft of the clause should be submitted. Should the Head of Department/Office or the delegated officer have any doubt as to the wording of a proposed SCC not contained in the Library of standard SCC then the clause may be forwarded to LAD(Works)/DEVB for advice, through the relevant Contract Adviser.

Contentious cases involving a major point of principle or change in policy should, at the discretion of Head of Department/Office, be referred to the Works Group Directors' Meeting for consideration.

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6. SPECIFICATION

6.1 GENERAL SPECIFICATION
(Subsumed from WBTC No. 18/92; Ref.: DEVB TCW No. 7/2007)

The General Specification for Civil Engineering Works (GS) covers general requirements and may need varying degrees of amplification and modification to suit individual contracts, e.g. on the general description (major items only) of the Works, the list of Drawings, works by other contractors on the Site running concurrently with the Works under the contract. Amplifications and modifications to the GS should be made in the Particular Specification (PS). In supplementing the GS by a PS, compatibility of all changes must be ensured by the department preparing the tender documents. If changes are considered necessary, the revised items together with the reasons for the changes shall be submitted to the D1 (or higher) level officer administering the contract for approval. Furthermore, it is essential to ensure that the PS does not conflict with other parts of the tender documents.

The GS, 2020 Edition can be found on the CEDD website (https://www.cedd.gov.hk/eng/publications/standards-spec-handbooks-cost/stan-gs-2020/index.html). It has incorporated, among other changes, the use of "green" construction materials including recycled aggregates and reclaimed asphalt material to further promote environmentally friendly construction practices in public works projects. It has included two new sections on "Environmental Protection" and "Preservation and Protection of Trees".

As the latest edition of the GS is publicly available and can be purchased at the Publications Sales Unit of the Information Services Department, it is therefore not necessary to bind the GS into the tender or contract documents. However, this should be reflected in the Conditions of Tender by stating that the GS is not issued as part of the tender documents.

6.2 PARTICULAR SPECIFICATION

Each contract will require a different set of PS clauses to suit its own circumstances (See Paragraph 6.1). Standard clauses/guidelines may be available from DEVB TCWs for the following subjects:

(i) For capital works or maintenance works (including tree planting) within the Railway Protection Area or in close proximity to railway vent shafts, reference should be made to DEVB TCW No. 1/2019;

(ii) Not used;

(iii) Not used;

(iv) For contracts involving permanent pre-stressed ground anchors, reference should be made to ETWB TCW No. 16/2004;

(v) For reclamation contracts involving public filling, reference should be made to WBTC Nos. 10/92, 2/93, 2/93B, 16/96, 4/98 & 4/98A and subsequent revisions;

(vi) For contracts including computer facilities as an item to be provided by the Contractor, reference should be made to Paragraph 9.14 of this Chapter;

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(vii) Not used;

(viii) Not used;

(ix) Not used;

(x) For contracts involving importation of sand from the Chinese Mainland by barges, reference should be made to WBTC Nos. 10/95 & 10/95A;

(xi) For the Pay for Safety Scheme and Pay for Safety Performance Merit Scheme, reference should be made to WBTC No. 30/2000, the Construction Site Safety Manual, ETWB TCW No. 19/2005, the Interim Guidance Note on Administration of Environmental Management and Pay for Safety and Environment Scheme for Public Works Contracts promulgated under SETW's memo ref. (014G7-01-1) in ETWB(W) 517/91/01 dated 19.6.2006 (except paragraph 2 which was made obsolete by SDEV's memo ref. DEVB(W) 517/91/01 dated 29.3.2018), and SDEV's memo ref. DEVB(W) 517/91/01 dated 29.3.2018.;

(xii) For contracts including contract transport, reference should be made to LWBTC No. 11/84 and Paragraph 6.3.2(c);

(xiii) For independent checking of the Design, Erection, Use and Removal of Temporary Works, reference should be made to Paragraph 9.35;

(xiv) For contract measures to prevent non-payment of wages, reference should be made to Paragraph 9.11.

(xv) Not used;

(xvi) For employment of registered skilled workers and registered semi-skilled workers in public works contracts, reference should be made to DEVB TCW No. 4/2017;

(xvii) Not used;

(xviii) For contracts involving reinforced fill structures, references should be made to the model specification in Appendix A to Geoguide 6, "Guide to Reinforced Fill Structure and Slope Design", which is available on the CEDD website https://www.cedd.gov.hk/eng/publications/geo/geoguides/geo-g6/index.html (the project department shall submit the specification to GEO for checking in accordance with ETWB TCW Nos. 29/2002 & 29/2002A);

(xix) Not used;

(xx) Not used;

(xxi) Not used;

(xxii) Not used;

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(xxiii) For alternative hoarding design to enhance the aesthetic appearance of site and improve the image of construction sites and public's perception, reference should be made to the guidelines in DEVB's memo ref. (0289W-01-3) in DEVB(W) 516/95/02 dated 16.8.2010;

(xxiv) For contracts involving management of dredged/excavated sediment, reference should be made to paragraph 4.2 of Chapter 4 of the PAH;

(xxv) For contracts involving alternative designs by tenderers, reference should be made to DEVB TCW No. 3/2014;

(xxvi) For enhanced control of site cleanliness and tidiness, reference should be made to DEVB TCW No. 8/2010 (as amended by SDEV's memo ref. DEVB(W) 505/91/01 dated 17.5.2017);

(xxvii) For implementation of additional measures to improve site cleanliness and control mosquito breeding on construction sites, reference should be made to Appendix A to ETWB TCW Nos. 22/2003 and 22/2003A;

(xxviii) For contracts involving the use of recycled aggregates in concrete production or in road sub-base construction, reference should be made to Paragraph 9.37 for details while for contracts involving the use of concrete paving units made of recycled aggregates, reference should be made to ETWB TCW No. 24/2004;

(xxix) For implementation of Site Safety Cycle and provision of welfare facilities for workers at construction sites, reference should be made to Chapter 3 of Construction Site Safety Manual;

(xxx) For employment of technician apprentices and building & civil engineering graduates by contractors of public works contracts, reference should be made to Paragraph 9.39;

(xxxi) Not used;

(xxxii) For contracts implementing Systematic Risk Management (SRM), the standard particular specification in Annex I of ETWB TCW No. 6/2005 should be incorporated;

(xxxiii) For contracts where an Environmental Permit has been obtained by the project proponent for the Works, the standard PS clause in Paragraph 1.6.5 in Appendix A to ETWB TCW No. 13/2003 should be included;

(xxxiv) Not used;

(xxxv) For public works to be carried out within the protection boundary of the Harbour Area Treatment Scheme (HATS) Stage 1 and Stage 2A sewerage tunnels, reference should be made to Appendix 4.31 of Chapter 4 (subsumed with amendments from ETWB TCW No. 28/2003). For public works to be carried out in the vicinity of the drainage tunnels managed by Drainage Services Department (DSD) (e.g. Hong Kong West Drainage Tunnel), advice should be sought from DSD for the required protection requirements of the drainage tunnels;

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(xxxvi) For contracts involving tunnel works, reference should be made to ETWB TCW No. 15/2005;

(xxxvii) For contracts involving noise barriers, reference should be made to annex I to HyD's Practice Notes No. BSTR/PN/003 Rev. C;

(xxxviii) For contracts involving the use of Subcontractor Management Plan, reference should be made to Paragraph 9.33;

(xxxix) For contracts where construction and demolition materials including waste generated on site require disposal, reference should be made to DEVB TCW No. 6/2010;

(xl) For contracts involving provision of uniform for personnel working on public works sites, reference should be made to SDEV's memo ref. () in DEVB(Trg) 133/3 (10) dated 23.1.2017;

(xli) For contract involving procurement of arboricultural service for tree risk assessment, reference should be made to 'Service Specifications on Tree Risk Assessment and Mitigation Measures' in the Tree Management section of the Cyber Manual for Greening or the direct link (http://devb.host.ccgo.hksarg/en/contactus/index.html);

(xlii) For contract involving preservation of existing trees, reference should be made to 'Contract Provision for Preservation of Existing Trees (where there are Old and Valuable Trees)' and 'Contract Provision for Preservation of Existing Trees (where there are no Old and Valuable Trees)' in the Tree Management section of the Cyber Manual for Greening and the Particular Specification given in Appendix D of DEVB TCW No. 4/2020. The Tree Management Guidelines promulgated by DEVB (see Paragraph 12 "References") also contain considerations that should be taken into account in the contract provision;

(xliii) For adoption of sustainable designs and features in site accommodations for Resident Site Staff in public works contract, reference should be made to DEVB TCW No. 11/2020;

(xliv) For contracts involving the use of chainsaw in tree pruning works, reference should be made to the SDEV's memo ref. (36) in L/M to DEVB(GLTM) 302/5/1 dated 17.12.2014;

(xlv) For promoting green procurement, it is encouraged to adopt the mandatory/desirable requirements as specified in the green specifications in Annex II of Environment Bureau Circular Memorandum No. 1/2021 in contracts as far as possible;

(xlvi) Not used;

(xlvii) For contracts incorporating the Independent Safety Audit Scheme, reference should be made to Paragraph 9.48.

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(xlviii) For implementation of mandatory construction industry collaborative training schemes in public works contracts, reference should be made to DEVB TCW No. 6/2019.

(xlix) For civil engineering capital works contracts, to rationalise the minimum qualification and experience requirements for contractor's site management staff and maintain consistency amongst civil engineering contracts under works departments, a guideline setting out the minimum qualification and experience requirements for management staff of Group A, B and C contractors undertaking civil engineering capital works contracts is appended in Appendix 5.61 as promulgated under SDEV's memo ref. DEVB(W) 510/70/03 dated 8.4.2022. The guideline shall be applied to civil engineering capital works contracts, with tenders to be invited on or after 9.5.2022.

(il) For adoption of Building Information Modelling for Capital Works Projects, reference should be made to DEVB TCW No.2/2021.

(l) For the request for inspection and/or survey check (RISC) system, reference should be made to SDEV's memo ref. () in DEVB(W) 510/70/03 dated 13.11.2020.

(li) For capital works contracts with a pre-tender estimate exceeding $400 million, reference should be made to SDEV's memo ref. ( ) in DEVB(W) 510/70/03 dated 1.9.2021 for incorporating the standard PS clause on Inspection and Test Plans into the contract documents. For capital works contracts below this threshold, project offices may consider adopting the standard PS clause as appropriate.

(lii) For contracts involving the use of structural concrete, both pulverized fly ash (PFA) and ground granulated blastfurnace slag (GGBS) shall be allowed as supplementary cementitious material for partial replacement of Portland cement in concrete production. In accordance with the requirement as stated in WBTC No. 14/90 and the Standing Committee on Concrete Technology's (SCCT's) memo ref. ( ) in CEDD T 4/1/3/21 dated 5.8.2016, should there be special circumstances where the use of PFA/GGBS is considered undesirable, the project engineer/ architect shall seek the approval of the SCCT to include a restricting Particular Specification Clause in the works contracts. The particular specification clause in the works contracts should not specify using PFA only and must also allow the use of GGBS in concrete. The Engineer for the Contract shall consider the use of PFA/GGBS in structural concrete if it is proposed by the Contractor. If the Contractor's proposal is rejected, he/she should inform the Secretary of SCCT of the reasons for the rejection.

(liii) For contracts involving the use of manufactured sand, reference should be made to DEVB TCW No. 8/2018.

(liv) For capital works contracts, including capital subventions contracts under Head 708, with pre-tender estimate exceeding $30 million, reference should be made to DEVB TCW No. 2/2023 and 3/2016 for adoption of the Digital Works Supervision System (DWSS).

(lv) For contracts involving timely application of temporary electricity and water supply for public works contracts and wider use of electric vehicles in public works contracts, reference should be made to DEVB TCW No. 13/2020.

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(lvi) All government contracts with tender invitations to be issued on or after 1.12.2021, shall specify in their tenders the requirement to engage tree management personnel registered under the "Registration Scheme for Tree Management Personnel" in undertaking respective types of tree-related works. Reference should be made to SDEV's memo ref. DEVB(GLTM) 204/1/6 dated 31.8.2021.

(lvii) Pursuant to SDEV's memo ref. (03C1Q) DEVB(W)516/71/01 dated 28.12.2021, new particular specification clauses were promulgated to enhance control on works in confined space in connection with or in the vicinity of underground pipework, drainage or sewage manholes or chambers, or structures alike. The new particular specification clauses at Appendix 5.61A shall be incorporated in all public works contracts (including capital works contracts and maintenance contracts) of which tenders are to be invited on or after 28.1.2022.

(lviii) Pursuant to SDEV's memo ref. (03E45) in DEVB(W)516/71/01 dated 13.7.2022, a set of new particular specification clauses were promulgated to enhance the safety precautionary measures for floor openings and free edges at buildings and structures, and to tighten up the control on conveying debris through floor openings in public works contracts, with a view to mitigating the fall from height hazard through openings and struck by falling objects hazard. This new set of particular specification clause at Appendix 5.62 shall be incorporated in all public works contracts (including capital works contracts and maintenance contracts) of which tenders are to be invited on or after 29.7.2022.

(lix) Pursuant to SDEV`s memo ref. (03FBT) in DEVB(W) 505/91/01 dated 5.1.2023, to echo the directives from the Pest Control Steering Committee chaired by the Under Secretary for Environmental and Ecology appealing for the concerted effort to enhance the anti-rodent measures at various premises under the management of bureaux/departments, the particular specification at Appendix 5.63 shall be incorporated into public works contracts (including all capital works contracts and maintenance contracts) tendered on or after 6.1.2023.

(lx) Contractors are required to provide site specific induction training to all persons employed on the works or in connection with the contract on the first day of their commencement of work on site, and provide refresher training at intervals of 6 months depending on the amount of changes to the site condition. Pursuant to SDEV's memo ref. (03F9H) in DEVB(W)516/71/01 dated 29.12.2022, the particular specification at Appendix 5.64 shall be incorporated in all public works contracts (including capital works contracts and maintenance contracts) tendered on or after 29.12.2022.

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6.3 SPECIFICATION REGARDING CONTRACT PRELIMINARIES AND EQUIPMENT

6.3.1 General Principles

(a) Specification in Terms of Performance

In the drafting of any PS clause, it should be noted that according to Paragraph 9 of DEVB TCW No. 2/2014, technical specifications shall, where appropriate, be in terms of performance rather than design or descriptive characteristics and be based on international standards where such exist. The same principle applies regardless of whether or not the tendering procedures are governed by the Agreement on Government Procurement of the World Trade Organization (WTO GPA). There shall be no requirement for or reference to a particular trademark or trade name or patent or origin unless there is no sufficiently precise or intelligible way of describing the procurement requirements and provided that "products having equivalent functions or performance" shall always be permitted and indicated in the tender documentation. (See S for W's memo ref. WB(W) 272/31/02D dated 4.4.2002)

In the project offices there should exist a three-tier checking/approval mechanism whereby design drawings/tender documents are prepared by one group of officers, checked by officers of other ranks and finally approved by officers of higher ranks. If brand named products are to be specified, they should also be subject to the same scrutiny mechanism.

(b) Used Preliminaries

To accord with the green policy of the Government, used preliminaries can be accepted if they are in good working and serviceable condition and if they can comply with the requirements of the contract. In the preparation of tender documents, project offices are encouraged to specify, as far as reasonable and practicable and as much as possible, used preliminaries which are to be supplied by the Contractor for use of the Engineer during the contract period. In warranted cases, works departments could specify clearly preliminary items as "used, but in a condition acceptable to the Engineer" (or where appropriate, another more definitive specification such as "not more than 2 years old" for land transport, etc.) to save costs for the government.

Moreover, on the requirement of providing a temporary accommodation for the Engineer, the project offices, before considering erection of a new office, should first investigate the feasibility of using any existing site office. In the event that a new office is required to be erected, preference should be given to the used prefabricated units which are in good working and serviceable conditions, and such preference should be stated in the tender documents.

(c) Size of Site Accommodation

The size of site accommodation for in-house projects or consultant-managed projects should be determined with reference to the number and rank of resident site staff (RSS) required. The factors to be considered include the grade/rank of RSS proposed, size of furniture to be provided, and common ancillary areas (such as meeting rooms) required. When preparing the particular specification for the size of site accommodation, the project officer shall adopt the space standards promulgated by Government Property Agency as tabled in Appendix 5.56 to determine the ceiling of space entitlement of each grade/rank of RSS proposed. The relevant space standards are available on the CCGO Portal under Schedule of Accommodation of the Regulations & Guidelines section (http://gpa.host.ccgo.hksarg/schedule-of-accommodation.html). Deviations from these standards require the approval of an officer at D2 rank or above.

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6.3.2 Specification regarding Contract Preliminaries

(a) Central Acceptance and Distribution of Contract Preliminary Items

The following PS clause should be included in the tender documents for the provisioning of contract preliminaries:

> "*All contract preliminary items shall be provided to the office of the Engineer's Representative for central acceptance and distribution. The Engineer's Representative should inform the Contractor of the name of the officers responsible for accepting these items. The Contractor shall not provide the items directly to an individual member of the site supervisory staff.*"

(b) Avoid Over-provision of Preliminary Items

The following PS clause should be included in the tender documents for works contracts with estimated contract sum exceeding $15M:

> *"Any equipment or facilities to be provided for the use of the Engineer's staff are only required to meet the minimum requirements stipulated in the Contract. Where this is impracticable (e.g. when the model just satisfying the minimum requirements is outdated or out of stock), the Contractor may provide at his own cost equipment or facilities slightly exceeding the minimum requirements. Extravagant or out-of-the norm over-provision is unnecessary and should be avoided. In the event that a much higher quality than that stipulated shall be provided for legitimate reasons, the Contractor shall give prior notification to the Employer of such an over-provision.*"

(c) Identification on Contract Transport

The contract transport for the Engineer should be properly painted or affixed by adhesive plastic labels with the contract number, Contractor name, Department name, Department logo, Department complaint hotline (or other suitable identifications) and the phrase "For Official Use Only" "只供公務用途" in good size letters for easy identification.

(d) Intellectual Property Rights

In addition, it is necessary to include the following PS clause in accordance with S for W's memo ref. WB(W) 209/32/110 Pt. 12 dated 9.1.2001: "Please note that if the Contractor intends to use the intellectual property rights of another party in performing his obligations under the Contract, appropriate licences should be obtained from the relevant owners."

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7. BILLS OF QUANTITIES

7.1 GENERAL

(Subsumed from WBTC No. 18/92; Ref.: 21/93, 21/93A and 21/93B)

The main functions of the BQ are:

(a) to allow a comparison of tender prices of tenders obtained from tenderers, and

(b) to provide a means of valuing the work executed when the Contract has been entered into.

Provided that the construction works are measured according to the Standard Method of Measurement for Civil Engineering Works 1992 Edition (SMM) and conform to the General Specification for Civil Engineering Works 2020 Edition (GS), the BQ should be prepared in accordance with the SMM and the Standard Phraseology of [Bill of Quantities] Item Descriptions (SPID) as the standardized method for composing works-contract bill of quantity items. The latest edition of the SMM and its corrigenda can be found on the CEDD website. In the interest of uniformity the SMM shall be strictly followed for the measurement of items it covers. Only where this is not practical or where the SMM does not cover the item required should any amendment or addition to the SMM be made. Amendments or additions to the SMM should be made in the form of a Particular Preamble which shall follow the General Preambles in the contract documents and shall be submitted to an officer at D1 rank or above administering the contract for approval.

It is not necessary to reproduce a copy of SMM in contract and tender documents. The incorporation of the SMM into the contract is effected by reference in the Particular Specification. Since it is a requirement of Clause 59(1) of the General Conditions of Contract for Civil Engineering Works, 1999 edition, that the Method of Measurement to be used in the contract is that which is stated on the Preamble to the Bills of Quantities, it is essential that the General Preambles detailed in Part IV of the SMM are included in every contract document.

Due attention is drawn to the amendments made to SMM regarding the use of lump sum BQ contracts in Paragraph 7.4.2 and Paragraph 10. The quantities in the lump sum BQ contract must be measured accurately and regarded as firm, not subject to remeasurement. Where quantities cannot be measured accurately, the respective items in the BQ should be marked as "provisional".

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7.2 PREPARATION OF BILLS OF QUANTITIES

The rules for preparing BQ are contained in Part III of the SMM and they should be strictly followed. In accordance with the SMM, a BQ will comprise the following:

- General and Particular Preambles

- Bill No. 1 : Preliminaries
- Bill No. 2 :) for works items,
) see guidance below.
- Bill No. :)
- Bill No. : Site Safety *(a)
- Bill No. : Daywork
- Bill No. : Prime Cost and Provisional Sums
- Grand Summary.

*(a) This Bill is to be provided for all appropriate tenders as required under Pay For Safety Scheme in accordance with Chapter 3 and Chapter 12 of the Construction Site Safety Manual.

Separate bills may be considered, at the discretion of the project engineer, for work items charged to different financial votes. When a lump sum form of contract is used, the provisional quantities are included in the Bills wherever it is appropriate and sensible to do so. Individual items to be remeasured can be mixed in with the "firm" items, or a whole section can be shown separately and described as provisional. The items in each bill should be grouped into the appropriate section of Part V of the SMM in the order shown. A sample for the Grand Summary is given at Appendix 5.5.

Copies of the SMM have been issued to all the approved contractors on the DEVB Lists and it needs not be reproduced in contract and tender documents.

Specimen BQ items provided in DEVB TCWs for various subjects such as site cleanliness and tidiness, preservation and protection of preserved trees, Professional Indemnity Insurance for the Works, etc. should be adopted where applicable.

All works items should be included in the BQ and omitted items should be minimized as far as practicable. The BQ should undergo a checking process to ensure the completeness and accuracy of the BQ and elimination of major errors. This would facilitate competitive tendering, reduce resources for valuation of omitted items and minimize the disputes arising from the valuation of omitted items. (Audit Report No. 53 Ch. 3 - http://www.aud.gov.hk/pdf_e/e53ch03.pdf)

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7.3 PREAMBLES TO THE BQ

A set of standard clauses for the "General Preambles to the Bills of Quantities" is contained in Part IV of the SMM. Any amendments or alterations to the SMM to be adopted in the preparation of the BQ shall have the prior approval of an officer at D1 rank or above administering the Contract and shall be included as Particular Preambles to the Bills of Quantities.

The Preambles should also contain any other information which is considered to be necessary for the pricing of the BQ but is not included elsewhere in the contract documents.

Standard Particular Preambles for various subjects set out in DEVB TCWs, SDEV's memos and Construction Site Safety Manual should be adopted where applicable.

7.4 PROVISIONAL ITEM

7.4.1 Provisional Items

Provisional Item means an item describing work, the requirement for which is uncertain at the time the tender documents are issued and which can only be carried out on the instruction of the Engineer for the Contract. All works described by a Provisional Item should be clearly specified and the provisional nature clearly explained in the PS and BQ.

The use of Provisional Items in the BQ should be avoided as far as possible. They should not be included if it is impossible for the tenderer to provide a realistic tender price for the work, taking into account its provisional nature and the manner in which the works may be described. If the requirement for the work is very remote, issuing variations during the contract is generally more advisable than trying to cover the work by inclusion of Provisional Items.

7.4.2 Provisional Quantities under a Lump Sum Contract with Firm BQ

Any item or part of work which cannot be accurately measured is covered by a provisional quantity or sum and measured as executed on completion of the item or part of work i.e. the value of these item(s) or part(s) of work(s) in the Bills is/are deducted from the Contract Sum and the value of the works executed is added. For details, refer to Paragraph 10.

7.5 PROVISIONAL SUM/CONTINGENCY SUM/PRIME COST SUM

Provisional Sum means a sum provided for work(s) or expenditure which has not been quantified or detailed at the time the tender documents are issued. Contingency Sum means the sum provided for work(s) or expenditure which cannot be foreseen at the time the tender documents are issued. Prime Cost Sum means the sum provided for works to be executed or for materials or services to be supplied by a Nominated Subcontractor, after deducting any trade or other discount. However, according to GCC Clause 1(1), both Provisional Sum and Contingency Sum may include provision for works to be executed or for materials or services to be supplied by a Nominated Subcontractor.

Provisional Sums for specific purposes should be included in the relevant bills of the BQ.

Under the GCC for Term Contracts (2002 Edition), Contingency Sum may also be specified in a works order in term contracts for work or services or expenditure which cannot be foreseen at the time such works order is issued.

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7.6 DAYWORK
(Subsumed from ETWB TCW No. 31/2002)

The HKCA Schedules For Plant Used in Dayworks Carried Out Incidental to Contract Work ("the Schedules") published by the Hong Kong Construction Association (HKCA) have been developed to meet the absence of a developed plant hire market in Hong Kong. The Schedules are drawn up in broad categories thus enabling contractors, when tendering, to price the adjusting percentage on the various provisional sums included for dayworks plant in a manner suited to their particular plant holdings. In these circumstances the relativity of rates within an individual plant category assumes equal, if not greater, importance than the basic pricing level adopted in the Schedules.

Clause 27.03 in Part V of the SMM specifies that the rates contained in the Schedules current at the date for return of Tender shall be used for plant employed on dayworks. To provide certainty on the edition of the Schedules to be used under a contract, project officer shall check the homepage of HKCA for the current edition of the Schedules to be adopted and include the sample Particular Preamble given at Appendix 5.14 in the BQ.

7.7 SITE CLEANLINESS AND TIDINESS

For public works contracts including term contracts and design and build contracts, adopting the enhanced specification on site cleanliness and tidiness, payment provision shall be incorporated. The item on site cleanliness for works contracts that are BQ based are to be marked 'Quantity Provisional' to cater for Contractors over-running the time for completion of Contracts. Payment will continue to be made (if justified) throughout the construction period even if the Contractor is in culpable delay. The purpose of continuing the payment is to ensure that the Contractor shall continue the cleaning and tidying up of the Site irrespective of the work progress.

Sample BQ, method of measurement and guidelines for preparing the section on site cleanliness are given in DEVB TCW No. 8/2010 as amended by SDEV's memo ref. DEVB(W) 505/91/01 dated 17.5.2017.

7.8 SITE SAFETY AND ENVIRONMENTAL MANAGEMENT

7.8.1 Pay for Safety Scheme (PFSS) and Environmental Management on Construction Sites

All appropriate tenders as required under PFSS shall include a separate 'Site Safety' section in the BQ in accordance with Chapter 3 and Chapter 12 of the Construction Site Safety Manual.

With the promulgation of ETWB TCW No. 19/2005, all appropriate tenders with environmental management shall include items in "Preliminaries" section in the BQ. A number of sample BQ and guidelines for preparing the "Preliminaries" Section of BQ are given in ETWB TCW No. 19/2005 and the Interim Guidance Note on Administration of Environmental Management and Pay for Safety and Environment Scheme for Public Works Contracts promulgated under SETW's memo ref. (014G7-01-1) in ETWB(W) 517/91/01 dated 19.6.2006, which are amended under SDEV's memo ref. DEVB(W) 517/91/01 dated 29.3.2018. Please also see Paragraph 9.15.

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7.8.2 Site Safety Cycle (SSC)

Payment for Site Safety Cycle (SSC) shall be made under the PFSS by including appropriate sections in the Method of Measurement and appropriate items in the BQ. The main item to be included for payment is collectively referred to as 'Pre-work Activities' which comprise the following activities on one day:

(a) Pre-work Exercise and Safety (PES) meetings;

(b) Hazard Identification Activity (HIA) meetings; and

(c) Pre-work Safety Checks.

Guidelines for the SSC and the updated sample BQ are incorporated into Chapter 3 of the Construction Site Safety Manual.

7.8.3 Management of Contaminated Soil

Tender documents should indicate restrictions, if any, on disposal of contaminated soil from a project based on the agreed arrangements with EPD where appropriate (See Paragraph 3.1.2(g) of Chapter 3). Tenderers should be reminded that permission for disposal of contaminated soil at landfills needs to be obtained from EPD prior to the delivery of the contaminated soil to landfills.

In case the treatment or disposal arrangement of contaminated soil is subject to further assessment during contract stage, appropriate contract provisions should be provided to draw the tenderers attention and to allow for the possible variances in handling of contaminated soil.

7.8.4 Welfare Facilities for Workers

To take care of the needs and welfare of workers and to promote site cleanliness and hygiene, the Contractor is required to provide storage compartments, drinking water facilities, toilet facilities, hand-wash facilities and rubbish bins. Showering facilities may also be required depending on the number of workers on site. These provisions shall be included in the Preliminary Items 'Temporary Accommodation for the Contractor' or 'Contractor's Site Accommodation in the Preliminaries' as appropriate by incorporating the sample Particular Preamble in Chapter 3 of the Construction Site Safety Manual.

7.8.5 Pay for Safety Performance Merit Scheme (PFSPMS)

Reference should be made to Paragraph 9.15.1 of this Chapter. Sample BQ, measurement rules and guidelines for preparing the section on PFSPMS are given in Chapter 12 of the Construction Site Safety Manual.

7.9 TRIP TICKET SYSTEM

Sample Particular Preamble is provided in DEVB TCW No. 6/2010 for the requirement of Site Management Plan for Trip Ticket System.

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7.10 PRESERVATION AND PROTECTION OF PRESERVED TREES & OLD & VALUABLE TREES

Sample contract provisions, guidelines and reference information for preservation and protection of preserved trees and Old and Valuable trees can be found in the Tree Management section of the Cyber Manual for Greening.

7.11 MEASUREMENT PROCEDURES

The project engineer should open a measurement file before any taking-off commences and issue instructions to his staff regarding the method of measurement to be adopted and any other guidance he considers necessary for the preparation of the BQ.

Standard forms for taking-off, abstracting and billing are included in Chapter 9 (Measurement Procedure), and should be used. All taking-off and abstract sheets should be signed and dated by the officer preparing them and inserted into the measurement file.

The project engineer should arrange to have the taking-off sheets, abstract sheets and the bills checked to ensure correctness in all respects. Checked documents should be dated and signed by the officer who carries out the checks.

7.12 PAY FOR MONITORING PAYMENT OF WAGES

Reference should be made to Paragraph 9.11 of this Chapter for sample Particular Preambles and BQ for implementing “Pay for Monitoring Payment of Wages”.

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8. DRAWINGS

8.1 DRAWINGS INCLUDED WITH TENDER DOCUMENT

These should be listed in the PS and should include sufficient drawings to enable the tenderers to price the tender properly. Amongst these should be a general layout plan, general arrangement drawings, typical structural details and any other drawings required for providing tenderers with a good perspective of the extent and nature of the work.

8.2 DRAWINGS NOT INCLUDED WITH TENDER DOCUMENTS

It is not uncommon that drawings giving site investigation information, utilities drawings and reinforcement details drawings are not included with the tender documents. In that case, they should be listed in the PS and should be made available for inspection by tenderers during the tender period. These drawings, when forming part of the Contract, should be issued to the Contractor at the commencement of the Contract. Standard drawings, if applicable to the Contract, should be listed (specifying the applicable version) in the PS but may be excluded from the tender documents and the subsequent Contract documents if they are available in the department's website. Otherwise, they should be made available for inspection by tenderers during the tender period, and, if necessary, be issued to the Contractor at the commencement of the Contract.

8.3 DRAWINGS NOT FORMING PART OF THE CONTRACT

Drawings giving information only, including site investigation plans and existing utilities plans, do not form part of the Contract and should be stated as such so as to avoid possible future claims. A note should also be added on the drawings to disclaim responsibility for the accuracy or sufficiency of the information given. They should be made available for inspection by the tenderers during the tender period.

8.4 ELECTRONIC DRAWINGS

(Subsumed from WBTC No. 7/2000 and ETWB TCW No. 7/2000A; Ref.: SDEV's memo ref. () IN DEVBWB-WP4S-022-006-001-P001 dated 3.9.2024)

If tender/contract drawings are available in electronic form, a tenderer/contractor may ask the Engineer designate/Engineer for the supply of additional copies of such tender/contract drawings in electronic form for the purpose of preparing/administrating his tender/contract. The charges for supplying electronic drawings are announced by DEVB periodically. The charges with effect from 1 November 2024 as announced via SDEV's memo ref. () IN DEVB WB-WP4S-022-006-001-P001 dated 3.9.2024 are as follows: -

(a) Handling Charge - $56.4 per drawing

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(b) Material Charge

Material	Unit Charge (HK$)
(i) 700MB CD-ROM	$1.2
(ii) 4.7GB DVD+/-R	$1.2

The electronic drawings should only include the data files. They should not include any executable programmes.

Before electronic drawings are issued, the tenderers/contractors should be asked to confirm their acceptance of the following terms of use on electronic drawings.

(a) When electronic drawings are issued, the Engineer designate or the Engineer should advise the tenderer/contractor in writing that while every care has been taken to check the integrity of the electronic drawings, no guarantee can be given that the electronic drawings are free from computer viruses and that neither he nor the Employer will be responsible for any direct or consequential damage or losses resulting from any computer viruses that may be contained in the electronic drawings.

(b) The tenderer/contractor should also be advised that electronic drawings are issued only for the convenience of the tenderer/contractor and they do not form part of the tender/contract documents. There may be a loss of fidelity when the drawings are displayed on the tenderers/contractors system because the preservation of fidelity will depend on proper system settings. If there are discrepancies between the electronic drawings and the tender/contract drawings in hard copy format, the latter should prevail. The Employer and the Engineer or the Engineer designate will not accept any liability arising from any discrepancies between the electronic drawings and the tender/contract drawings.

Furthermore, if the electronic drawings contain digital map other than those mentioned in paragraphs 7.4.4(a) – (j) of Chapter 1 supplied by the Lands Department, the Engineer designate or the Engineer shall require the tenderer or, as the case may be, the contractor to provide a duly signed undertaking in the form set out in Appendix 5.7 before these electronic drawings are issued.

To assure authenticity, the Engineer designate or the Engineer shall digitally sign electronic drawings with the digital certificates issued by Certification Authorities approved by the DPO under the Electronic Transactions Ordinance (Cap. 553).

If the tenderer/contractor has provided an undertaking on the use of Government digital map data, the Engineer designate or the Engineer shall check that the tenderer/contractor has executed and returned the "Confirmation by contractor on cessation of the use of Government digital map data" set out in Appendix 5.10 on the tenderer submitting its tender or the contractor having completed the relevant work.

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9. SPECIAL TOPICS

9.1 MULTI-CONTRACT AND SINGLE CONTRACT ARRANGEMENTS

Where the required financial and manpower resources are available, the contracts of a multi-contract project are normally carried out in parallel to enable the completion of the project in the shortest possible time.

Some of the issues that need to be considered and provided for in a multi-contract project would include:

(a) Site access,

(b) Facilities (provided by the Contractor) for other contractors,

(c) Works areas,

(d) Staged possession and handing over of site, and

(e) Consequence of delay in any one of the contracts on other contracts.

Suitable provisions should be made in the constituent contracts to cover these and other relevant issues. Such provisions should be made in the SCC, PS and Drawings, where appropriate.

For projects (i) involving sequential handling-over of the project site among contractors of concurrent contracts and/or (ii) in which the work progress of one contractor is dependent on that of another contractor in the same project, the compatibility of the multi-contract arrangement with the preferred contract forms of the project should be carefully assessed. For instance, before adopting the arrangement of implementing a conventional contract for civil works and a design-and-build contract for E&M works at the same time, the pros and cons of such arrangement should be thoroughly compared with that of combining the civil and the E&M works into a single contract. When preparing tender documents for works contracts involving interface with other contracts, the consultants (for contracts administered by consultants) or the procuring departments (for contracts administered by in-house resources) are required to carefully check that the time programmes for interfacing works in all contracts concerned are consistent. The consultants shall seek the procuring departments' comments on the time programmes prior to incorporation of the relevant information in the tender documents.

For projects involving substantial underground works, and hence with a relatively high degree of uncertainty, consideration should be given to reducing risks by carrying out works at different locations under separate contracts to be undertaken by different contractors. However, before deciding on adopting this approach, its benefits would have to be balanced against possible demerits such as the reduction in economy of scale and the need for greater management effort to deal with contract interface problems.

For time-critical projects, whilst it may be desirable to adopt advance contracts to capture programming benefits, demerits of such arrangement such as introduction of additional contract interfaces should be carefully assessed (also see Paragraph 9.19 on time-critical projects).

It is important that all the merits and demerits of using multi-contract arrangement in a project should be thoroughly assessed before deciding on the most appropriate number and form of contracts in a project.

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For multi-contract projects, those parts of tender documents delineating the split of the works, particularly the drawings and bills of quantities, should be carefully checked to ensure consistency and that there is no omission or duplication of works at the interface.

9.2 COMPLETION IN SECTIONS

For contracts to be completed in Sections, the tender documents, i.e. the Form of Tender, SCC, PS and Drawings, where appropriate, should explicitly define the extent of the various Sections and their respective time for completion. Separate amounts of liquidated damages and minimum amounts of liquidated damages, if any, should be set for each Section of the Works in the Appendix to the Form of Tender.

Each Section should preferably be a self-contained package of work. Great care should be taken in defining the extent of each Section to avoid any possibility of ambiguity. There should be no overlapping between Sections and all the Sections should add up to be the Works.

9.3 CONTRACTOR'S DESIGNS AND ALTERNATIVE DESIGNS

Departments shall invite alternative designs and specify in the tender documents the part of the Works for which alternative designs are invited in situations where there is potential for better value for money or for enhancing buildability. The justifications for not inviting tenderers to submit alternative designs should be properly documented for future reference and auditing purposes.

Departments may require tenderers to submit tenderer's design for part of the Works not covered by the Engineer/Architect's design in the following circumstances:

(a) Where the part of the Works is in a specialist or developing field;

(b) Where the part of the Works involves materials and construction methods, the design of which requires the specialist experience of contractors or suppliers;

(c) Exceptionally, where the detailed design of the part of the Works is insufficiently advanced and the completion of the Works is urgent;

(d) For piling works where several solutions are available; and

(e) For works of a short limited lifespan or temporary in nature.

For all tenders, departments shall include provisions to allow the Contractor to submit and the Employer to accept Cost Savings Designs to provide opportunities for achieving better value for money. The resultant saving in cost, if any, shall be shared between the Employer and the Contractor.

The contractual provisions to be incorporated into the tender documents for tenders inviting alternative designs and tenders requiring tenderer's designs are given in DEVB TCW No. 3/2014. Particular attention is drawn to the following requirements:

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(a) The tender documents shall include a complete set of design criteria, any outline drawings, plans and requirements related to the part of the Works for which tenderer's design is required or alternative design is invited;

(b) The tender documents shall include clear indication to tenderers of any design material or method of construction which is not allowed; and

(c) An adequate tendering period shall be allowed, taking into account the time required to prepare a design in sufficient detail.

Where alternative designs are not to be invited, the following General Conditions of Tender shall be incorporated in the tender documents:

"Alternative tenders or designs for which no invitation has been made shall not be considered."

For tenders inviting alternative designs, tenderers have a choice to submit a conforming tender and/or a tender with an alternative design, i.e. an alternative tender. Those two tenders shall be assessed as two separate tenders. To this end, departments should include a Note to Tenderer to require tenderers to clearly mark on the respective sealed envelopes with the following words as appropriate:

"Technical Submission (Tender Conforming to the Engineer/Architect's Design)"

"Tender Price Documents (Tender Conforming to the Engineer/Architect's Design)"

or

"Technical Submission (Alternative Tender)"

"Tender Price Documents (Alternative Tender)"

To cater for the assessment of tenders inviting alternative designs or requiring tenderer's designs, the Standard Marking Scheme for tender evaluation in Appendix C1 to DEVB TCW No. 4/2014 (as amended by SDEV's memos ref. ( ) in DEVB(W) 546/84/01 dated 9.7.2021 and 10.11.2023), with due consideration to the points to note in Appendix E to DEVB TCW No. 3/2014, shall be used. There might be another situation where the Contractor, vis-à-vis tenderers, may be required to carry out and submit a relatively straight-forward design for part of the Works during the course of the Works. In these circumstances, the design need not be submitted at the tender stage for assessment or is only submitted for checking the compliance with essential requirements under the Stage I Screening. Tenders of this kind should be clearly distinguished from those tenders requiring tenderer's designs at the tender stage.

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9.4 CONSTRUCTION RELATED INSURANCE

9.4.1 Care of the Works Insurance and Third Party Liability Insurance
(Ref.: SDEV's memo ref. DEVB(W) 506/90/01 dated 11.5.2021)

(a) ETWB TCW No. 6/2005 sets out guidelines on the application of a systematic risk management (SRM) process in public works projects. All public works programme projects with cost estimates in excess of $1000M will be required to go through a SRM process promulgated under the subject circular. The authority for approving exemption remains to be an officer at D2 rank or above of the works department. The risk management process comprises a systematic approach to risk planning, identification, assessment and treatment. One of the treatment options available is to transfer certain risks to insurers through proper contract documentation.

(b) For public works programme projects with cost estimates below $1000M, ETWB TCW No. 6/2005 does not apply. However, for the purpose of assessing whether insurance is required for the respective contracts under that particular public works programme project, departments should adopt a similar approach to risk assessment and treatment set out under ETWB TCW No. 6/2005 to reach a decision on the matter. Project offices are encouraged to apply the SRM where the nature, complexity and/or risk level of the works warrant such applications. The justifications for applying the SRM in such cases should be properly documented.

(c) The result of the risk-based assessment on insurance procurement should be properly documented and endorsed by an officer at D2 rank or above.

(d) If the result of the SRM process dictates that insurance procurement is the proper treatment of the identified risks, two options exist on the procurement of construction insurance viz: -

(i) Owner Controlled Insurance Programme (OCIP)
(ii) Contractor Controlled Insurance Programme (CCIP)

(e) Coverage for the contract works (Care of the Works) or for liability emanating therefrom (Third Party Liability) should be procured in the joint-names of the Owner (i.e. Government/Works Department), the Contractors (including co- and subcontractors) and their servants or agents in any tier and/or consultants for their site activities only. The determination of the amount of insurance coverage should follow the quantitative assessment methods outlined in the SRM procedures. This can be procured by either OCIP or CCIP. If the requirement for insurance is specified, the contract should state clearly by way of inclusion of suitable special conditions, what insurance is required and who is responsible to arrange the insurance. In cases where the nature and extent of the risks identified in the SRM process which require insurance are routine and are considered insignificant, the procurement of insurance should be left with the Contractor on a self-arranged basis and the contract makes no mention of the requirement for insurance. The Employer, in this event, relies on the indemnity clauses under the contract for protection.

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(f) For contract specified insurance, strategies have been developed on how insurances are to be procured for the following categories of contracts: -

I Major projects which are significant and are multi-contract, multi-discipline in nature and involve interfacing and interdependencies or large and complex difficult contracts.
II Minor Works or small value contracts and Term Maintenance contracts.
III All other contracts.

A determination of which category the contract in question falls should be made.

(g) Procurement of insurances should be considered on the following basis for each category: -

Category I – Consideration should be given to procurement on an OCIP basis. The insurance clauses within the contract conditions for the contract works and third party liability coverage should state that the Employer will procure the insurance. These clauses are contract-specific and the project department should seek LAD(Works)/DEVB's assistance in drafting these provisions. The procurement may be taken to cover a number of concurrent or inter-related contracts.

The engagement of a specialist construction insurance adviser is recommended in the structuring of the programme. The insurance adviser shall have a sound understanding of construction risk, SRM and shall familiarise themselves with the specific risk profile of the project at hand.

Departments may consider the inclusion of the service of an insurance adviser as part of the main consultancy. The insurance adviser can advise on the coverage, policy wording and the method of procurement either by OCIP or CCIP. The service of the insurance adviser can be retained up to the tender stage of the construction contract or continued throughout the construction stage depending on the actual requirements. If CCIP is adopted and specified, the standard policy as described in Appendix B of ETWB TCW No. 7/2005, suitably modified and extended may be considered together with the special contract clause in Appendix A of ETWB TCW No. 7/2005.

Category II – The insurance clauses within the contract conditions should state that the contract works insurance should be procured by the contractor together with a primary HK$10M limit of indemnity for third party liability insurance i.e. a CCIP arrangement for the primary layer of liability. This limit should be for any one occurrence.

Above the HK$10M limit of indemnity for third party liability, project departments should arrange an excess liability policy for all minor works and term contracts within the department for HK$XM (exact sum determined via the SRM process) any one occurrence in excess of the contractor's primary HK$10M any one occurrence policy, providing a total limit of liability of HK$(10 + X)M any one occurrence. The arrangement will effectively be a multi-layer placement with a combination of a CCIP placement for the primary layer and an OCIP placement for the secondary layer. Again, the engagement of a specialist construction insurance adviser is recommended in the structuring of the OCIP placement for the secondary layer. Multi-layer insurance placement may also be suitable for Category I projects subject to the result of the SRM taking into consideration the recommendation of the insurance adviser

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and having regard to the prevailing market conditions.

Category III – The insurance clauses within the contract conditions should state what insurance(s) the contractor is required to procure, i.e. the contract works insurance, or the third party liability insurance, or both. This is a traditional approach and the placement is solely on the basis of a CCIP arrangement. Standard contract provisions for use in term contracts (primary layer) and capital works contracts and a standard policy are available for a CCIP placement and these are given in Appendix A and Appendix B of ETWB TCW No. 7/2005. Risk assessment may show that additional coverage or different policy wordings to those contained in the standard policy are required and in such case, the department may look for the advice of an insurance adviser, either employed independently or under the main consultancy as suggested above.

(h) Other key factors to consider in procuring construction related insurance should refer to ETWB TCW No. 7/2005.

9.4.2 Professional Indemnity Insurance (PII)

For works contracts involving contractors' designs or independent checking of contractors' designs including design and build contracts, a risk management approach shall be adopted in assessing whether PII is required to be procured, and if required, the amount of cover required so as to associate the PII requirements with the anticipated risk exposure. In respect of contractors' design and alternative design invited during the pre-contract stage, DEVB TCW No. 9/2007 promulgated the revised requirements of PII to be taken out by the relevant parties including consultants, contractors, their designers and independent checking engineers. In line with the changes brought about by DEVB TCW No. 9/2007, SDEV via his memo ref. (02245-01-13) in DEVB(W) 510/34/01 dated 6.10.2009 made the following amendment to the contractual provisions in respect of PII requirements for works contracts involving Contractor's Design or Independent Checking Engineer's Services:

DEVB TCW No. 9/2007

(a) SCC(A) at Appendix E is to be replaced by the revised SCC(A).

9.4.3 Execution of works within or adjacent to Railway

Works Departments shall request the Contractor to complete the "MTRCL's Indemnity Form" and "Letter of Undertaking" before entering into railway premises or working in the vicinity of at-grade or overhead railway structures/installations pursuant to DEVB TCW No. 1/2019.

9.4.4 Provision of BQ items for construction related insurance

Where insurance against damage to the Works or third party risks is required under the Contract, separate items should be provided in the BQ for the Contractor to price the cost of such insurance pursuant to Standard Method of Measurement for Civil Engineering Works (1992 Edition). Where PII is required to be procured, a separate item should be provided in the BQ for the Contractor to price the cost of such insurance pursuant to DEVB TCW No. 9/2007.

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9.5 CONTRACTOR'S SUPERINTENDENCE

The requirement for the Contractor to be represented at all times on the Site by a competent and authorized English speaking agent is stipulated in GCC Clause 17. The Engineer's authority to withdraw his approval of the Contractor's agent, thus causing this agent to be removed from the Site, is also stated in GCC Clause 17. See also the GS and the Guidance Notes on the GS.

In general, the qualifications of the Contractor's surveyor responsible for the setting out of the Works are specified in GS Clause 1.09(2). It should be noted that any person employed by the Contractor who is considered incompetent may be objected to by the Engineer, and thus removed from the Works, in accordance with GCC Clause 18.

In general, public works projects managed by different works departments vary in the nature and complexity of works. Works departments should determine the relevant requirements of land surveying staff employed by the Contractor based on the characteristics, complexity, site constraints, surveying demand etc. of the respective projects.

HyD has promulgated its Technical Circular No. 5/2003 which sets out the guidelines on qualification and experience requirements of the Contractor's surveyor in highway projects. If other works departments have public works projects involving the construction of new roads or substantial roadworks, they should make reference to the above-mentioned HyD's technical circular in preparing the contract requirements. Generally speaking, for projects involving substantial surveying work, the project officers should consult their respective survey division on the requirements of land surveying staff engaged by the Contractor in order to suit the latest development of the technology and the market.

9.6 CONTRACT TRANSPORT

(Ref.: Report No. 43 of the Director of Audit dated 23.10.2004, Part 3 of Chapter 7: Management of the government vehicle fleet)

Contract transport refers to land or marine transport provided for use by the Engineer (and his staff) and the Employer (and his employees) under the Contract. See LWBTC No. 11/84 and the GS for more details.

Contract transport should only be included under the Contract where it has been established that such transportation is essential to the supervisory staff for the adequate and proper supervision of the Works and for the discharge of other related duties. Critical examination for justifications to provide contract transport shall be made with due regard to meeting the operational need. The possibility of shared use of contract transport with other relevant on-going contracts shall also be taken into account in the critical examination. In particular, the adequacy of public transport for accessing the site direct shall be assessed in determination of the quantity of contract transport. In making such determination, the project office should not take into account the need to provide contract transport to serve the site staff to and from the site if the site is adequately served by public transport. The prior approval of an officer at D2 rank (D3 for HyD according to HyD's internal procedures) or above is required for the provision of contract transport.

The specification should be less restrictive so that there may be scope for savings. As stated in paragraph 7.1 of the LWBTC No. 11/84, it must be ensured that the specification does not call for a higher standard of transportation than is necessary. The transportation must be adequate having regard to the type of use to which it would be put and length of time for which it would be required. A new motor vehicle will not always be required; however, where a used motor vehicle will suffice, it is suggested that it should not be more than 2 years old when first brought to Site.

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9.7 MATERIALS TESTING ARRANGEMENT

9.7.1 General Considerations

Unless Chief Geotechnical Engineer/Standards and Testing of GEO (CGE/S&T) advises otherwise, all materials compliance tests required by the works contract or by the Engineer must be done through Public Works Laboratories (PWL) (comprising the Public Works Central Laboratory and the Public Works Regional Laboratories) in accordance with WBTC No. 14/2000. CGE/S&T may also advise on whether an additional Regional Laboratory should be established to meet the testing demand. On such occasion, the project office should liaise with CGE/S&T regarding the preparation of detailed layout plans, equipment lists and other contract requirements for incorporation into suitable works contracts.

CGE/S&T should be consulted at an early stage in project planning regarding the testing demand for testing services. In order to facilitate CGE/S&T to provide advice, the project office should supply full details of the anticipated testing required, including information on quantities and the programme. If CGE/S&T considers that certain tests cannot be undertaken by PWL, then such tests have to be performed by an independent laboratory (i.e. with no affiliation as a legal entity to the Contractor and its subcontractors) subject to approval by the Engineer. Test results obtained from a laboratory other than PWL should be checked by periodic verification using another independent laboratory to conduct identical tests on items selected from the same samples, or as advised by CGE/S&T.

Due to potential conflict of interest, only in very exceptional circumstances may compliance testing by the Contractor be specified and this should be provided through the provision of suitable PS clauses in the contract documents. CGE/S&T should be consulted in this regard. Where the cost of testing is not otherwise catered for in the Contract, then consideration should be given to including a separate item in the BQ.

For the laboratory testing of construction materials, reference should be made to WBTC Nos. 14/2000 and 15/2000 and CEDD website (https://www.cedd.gov.hk/eng/public-services-forms/geotechnical/laboratory-testing/index.html).

9.7.2 Laboratory Information Management System e-Portal ("LIMS e-Portal")

To boost productivity, enhance traceability and promote a paperless culture, PWL has introduced the Laboratory Information Management System e-Portal ("LIMS e-Portal") [system website: https://lims.cedd.gov.hk]. With LIMS e-Portal in place, project teams (including their Resident Site Staff (RSS)) of public works contracts can make test requests, arrange sample collection, trace the test progress and download electronic test reports online round-the-clock.

The adoption of LIMS e-Portal will not result in departure from the governing principles and policies set out in WBTC No. 14/2000 with respect to compliance tests for construction materials used in public works contracts. In particular, the test results will be delivered directly to the Engineer/Architect but not via the Contractor.

Starting from 1 April 2025 onwards, all test requests shall be made via LIMS e-Portal. The above arrangement shall apply to both ongoing and new public works contracts.

Under special circumstances, if a project team considers it necessary to make or continue making paper-based test requests on or after 1 April 2025 for a particular contract, endorsement from

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an officer at D1 rank or above should be obtained, with justification(s) provided to PWL for record. In this connection, the request for alternative arrangements to handle the tests shall be made to PWL.

For the procedures of Use of LIMS e-Portal , reference should be made to Annex of SDEV's memo ref. () in DEVBWB WP4S-022-006 of 25.10.2024. Amd No. 3/2025

9.7.3 Provision of Testing Equipment

Testing equipment for use on sites can be provided either:

(a) On loan from the PWL (or from the Employer), or

(b) By making appropriate provision in the contract documents.

The list of equipment required for a particular contract should be forwarded at contract design stage to CGE/S&T who will decide whether:

(a) All (or a part) of the testing equipment can be supplied on loan from the PWL, or

(b) All (or a part) of the testing equipment should be supplied by the Contractor and remain his property on completion of the works, or

(c) All (or a part) of the testing equipment should be supplied by the Contractor and become the property of Government on completion of the works.

Provision of testing equipment on loan from the PWL will be recommended if stocks are available. Provision of testing equipment by the Contractor which is to become the property of the Employer on completion of the Works will generally be recommended if the testing equipment is likely to be useful to the Employer and is in good condition at the end of the Contract. In each case CGE/S&T will seek approval from the Director of Government Logistics for any testing equipment acquired in this way, and will arrange for the testing equipment to be taken on charge at an appropriate time. The provision in the Contract for the maintenance and taking over of the testing equipment should be agreed with CGE/S&T.

Additional or replacement of testing equipment may be ordered through a variation order during the Contract. The same procedures for the provision of testing equipment as described above should be followed.

9.8 SUPPLY OF MATERIALS BY GOVERNMENT

The Contractor should normally obtain all materials necessary for use in the Works from his own sources except for:

(a) Materials specially pre-ordered by the Government under a separate contract,

(b) Materials provided from the Government stock,

(c) Materials produced by the Correctional Services Department, e.g. precast concrete products, retro-reflective traffic signs, metal road dividing railings, and traffic signposts. (See FC No. 3/2014)

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Before making provision in a Contract for certain materials to be supplied by Government, confirmation must be obtained from the relevant authority of the availability of the particular materials within the required time period. In the case of pre-ordered materials under another contract, the delivery date of the materials must be known in advance.

9.9 SUBCONTRACTS FOR SPECIALIST WORKS

(a) General

Very often the Engineer may wish to retain control over which subcontractor will carry out certain specialized work under the main contract. This may be achieved by writing into the main contract one of the following two alternatives:

(i) The specialized work shall be carried out by a Nominated Subcontractor (GCC Clauses 65 to 70), or

(ii) If the Contractor is not included in the List of Approved Suppliers of Materials and Specialist Contractors for Public Works or the List of Approved Contractor for Public Works, then the Contractor shall enter into written subcontracts with the approved listed contractors in the relevant Groups, Category and Class for the execution of the respective part of the Works.

(b) Nominated Subcontracts

The employment of Nominated Subcontractors on civil engineering works is not encouraged, because of the potential contractual problems. However, when highly specialized work constitutes a significant part of the project and the co-ordination of separate contracts would pose severe difficulties, it may be preferable to use the system of Nominated Subcontracts. When this is proposed the approval of the relevant Chief Engineer (or higher) responsible for the administration of the particular contract should be obtained.

In normal circumstances, when requiring the appointment of nominated subcontractors or when employing specialist contractors under direct contracts, to select the contractors from those included in the List of Approved Contractors for Public Works and the List of Approved Suppliers of Materials and Specialist Contractors for Public Works; any proposed appointment of nominated subcontractors or specialist contractor not on these Lists shall be referred to the Finance Section of DEVB for financial pre-qualification.

Documents for Nominated Subcontracts should be prepared following the guidelines set out in Paragraphs 2 to 8 of this Chapter using a separate set of Conditions of Tender, Articles of Agreement and Conditions of Subcontract.

(c) Subcontracts with Specialist Contractors on the Approved List

This method is commonly used in requiring the employment of specialist contractors for works such as piling, bridge bearings, permanent pre-stressed ground anchors, landscaping, planting, supply and installation of machinery for sewage treatment works and asbestos abatement works. WBTC No. 25/94 introduces the Standard

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Form of Domestic Subcontract for specialist works (1994 Edition). The form has been drafted to suit the GCC for Building Works only and may not suit the GCC for Civil Engineering Works. Advice should be sought from Contract Advisers if it is proposed to incorporate the form into an engineering contract.

(d) Subcontracts with Contractors on the Approved List in the Waterworks category

See WBTC No. 29/93 for details.

(e) Subcontracts with Contractors on the Specialist Contractors List of Supply of Bituminous Pavement Materials and Construction of Special Bituminous Surfacing

All contracts involving bituminous pavement materials shall require the contractor to enter into a subcontract with a contractor in the Specialist List for works defined below:

(i) supply of any bituminous pavement materials;
(ii) laying of the following special bituminous materials:-
(1) polymer modified bituminous surfacing materials which include polymer modified friction course materials, polymer modified stone mastic asphalt materials, polymer modified cushion course materials, etc.
(2) stone mastic asphalt;
(3) any other bituminous materials not covered by Section 9 of the General Specification for Civil Engineering Works 2020 Edition.

In this connection, the SCC clause on Subcontracting shall be included in the contract document.

(f) Subcontracts with Contractors for Coring of Deep Cement Mixing (DCM)

All core-drilling of DCM works shall be carried out by an independent Specialist Contractor registered under the DEVB's List of Approved Suppliers of Materials and Specialist Contractors for Public Works in the category of Ground Investigation Field Work, who is required to make a declaration that it is not a holding company, a subsidiary company, an associated company or a related party of the Contractor or any of his subcontractors responsible for the DCM works for which the core-drilling is carried out, and that it has no financial interests in the DCM works to be tested.

9.10 DISPOSAL OF EXCAVATED MATERIALS

If excavated materials are to be disposed of off Site, the specifying of particular disposal areas in the Contract should be made. Reference should be made to paragraph 4.1.3 and 4.2 of Chapter 4 of the PAH, WBTC Nos. 2/93, 2/93B, 16/96, 4/98, 4/98A, ETWB TCW No. 19/2005 and DEVB TCW No. 6/2010 and the Interim Guidance Note on Administration of Environmental Management and Pay for Safety and Environment Scheme for Public Works Contracts promulgated under SETW's memo ref. (014G7-01-1) in ETWB(W) 517/91/01 dated 19.6.2006. The project engineer should estimate the timing and the quantities of excavated materials (the secretary of the Marine Fill Committee and the Public Fill Committee should be kept fully informed of anticipated volumes of excess fill in accordance with WBTC No. 12/2000) and confirm with the managing office of the disposal areas as to their availability. The PS should require the Contractor to dispose of

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excavated materials at the specific locations and make provision for checking that he complies with this requirement. The relevant BQ items should be provided accordingly. This procedure should also be followed when it is considered desirable for the Contractor to dispose of excavated materials at a specific location irrespective of the quantities of excavated materials.

The Construction Waste Disposal Charging Scheme came into operation on 1 December 2005. A standard Note to Tenderers is given in SETW's memo ref. (00W45-01-9) in ETWB (W) 810/72/01 dated 21.11.2005.

9.11 CONTRACT MEASURES TO PREVENT NON-PAYMENT OF WAGES

(Ref.: SDEV's memo ref. (027RU-01-3) in DEVB(W) 510/17/01 dated 16.7.2010, SDEV's memo ref. (02FYE-01-11) in DEVB(W) 510/17/01 dated 27.7.2012, SDEV's memo ref. (02H25-01-1) in DEVB(W) 510/17/01 dated 8.11.2012, SDEV's memo ref. (02UZT-01-1) in DEVB(W) 510/17/01 dated 28.9.2016, SDEV's memo ref. (02VKU-01-3) in DEVB(W) 510/17/01 dated 16.12.2016 and SDEV's memo ref. (02YWL-01-2) in DEVB(W) 510/17/01 dated 5.2.2018)

Since 2008, DEVB has promulgated a set of contract measures to prevent non-payment of wages for implementation in all works contracts except maintenance contracts and E&M supply and installation contracts.

The contract measures for preventing non-payment of wages were further revised under SDEV's memos dated 16.7.2010, 27.7.2012, 8.11.2012, 28.9.2016, 16.12.2016 and 5.2.2018. The revisions include, but are not limited to, the adoption of the attendance records in the Construction Workers Registration System (CWRS) for the purpose of wage payment monitoring, cease of the requirement for reimbursement of contractor's and subcontractors' contribution to the Mandatory Provident Fund and granting flexibility to the Works Departments to adopt some alternative means of provision of Assistant Clerical Officer (Labour Relations). The latest revised contract provisions (e.g. SCC and PS) for preventing non-payment of wages were promulgated under SDEV's memo ref. (02VKU-01-3) in DEVB(W) 510/17/01 dated 16.12.2016. Based on SDEV's memo dated 5.2.2018, these latest revised contract provisions may need to be further fine-tuned, depending on the means of provision of Assistant Clerical Officer (Labour Relations) under a particular works contract.

The "Guidelines on Wage Payment Monitoring and Reimbursement of Contractor's and Subcontractors' Contributions to the Mandatory Provident Fund for their Site Personnel" (Rev. 1) were promulgated under SDEV's memo ref. (02H25-01-1) in DEVB(W) 510/17/01 dated 8.11.2012. The said Guidelines serve as reference for project officers, site supervisory staff and Labour Relations Officers/Assistant Clerical Officer (Labour Relations) in the execution of the relevant contract provisions. The soft copy of the Guidelines, and any further amendments, is available at DEVB's website.

As promulgated under SDEV's memo dated 16.7.2010, some maintenance contracts were selected for trial implementation of the contract measures to prevent non-payment of wages. DEVB had no plan for further trial and no plan to implement the contract measures in maintenance contracts after the trial.

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9.12 SITE CRUSHERS
(Subsumed from WBTC No. 11/2002)

9.12.1 Policy for Setting up Site Crushers

The hard inert C&D material, such as concrete and broken rock including rock excavated from works projects, can be recycled into aggregates for reuse in construction works. In order to reduce the pressure on the demand for public filling and landfill capacity, it is essential that the reusable portion of the inert C&D material be recycled and put into good use. For projects requiring excavation in rock or processing of hard inert C&D material, the project office should consider setting up site crushers where it is technically feasible and environmentally acceptable. This Paragraph sets out the necessary procedures and requirement for setting up site crushers in Government projects.

9.12.2 Procedures

At the planning stage of a project that includes the establishment of a site crusher, the project office should advise the Secretary of the Public Fill Committee (PFC) and seek approval in principle from the Director of Civil Engineering and Development (DCED). Approval from the Director of Environmental Protection (DEP) is also required for installation and operation of a site crusher in respect of the environmental requirements. In addition, the setting up of site crushers may be classified as a "designated" project under Schedule 2, G.5 of the Environmental Impact Assessment Ordinance. Where appropriate, DEP should be consulted on the environmental requirements for setting up a site crusher.

9.12.3 Crushed Rock and Recycled Products Produced by Site Crushers for Project Use

DCED should be informed in advance if a site crusher is to be included for use in a Government project to process hard inert C&D material including rock, which are generated from or imported to the site for use solely in the works. No royalty will be required by the Government in respect of the operation of a site crusher as described in this clause, provided its installation is permitted in the lease conditions.

9.12.4 Regulating Conditions

In every project where a site crusher is to be included, the following special conditions, to be provided by DCED, shall be included in the tender documents:

(a) The permitted uses, and royalty rate if sales are permitted;

(b) If rock and hard inert C&D material may be imported to the site;

(c) The permitted duration for the operation of the site crusher and its regular inspection by the Mines Division, CEDD;

(d) The submission for approval of the details of the crushing plant and its dust control systems; and

(e) The submission of monthly returns of production and declaration on sales, if permitted.

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If a site crusher is included in the Contract, the Pneumoconiosis Compensation Fund Board should be informed of the details. If approval has not been obtained to use a site crusher in a contract, a clause prohibiting the use of a site crusher should be included in the PS.

9.13 RESOLUTION OF DISPUTES BY MEDIATION / ADJUDICATION / ARBITRATION

(Ref.: SDEV's memos ref. (02BBG-01-4) in DEVB(W) 506/00/01, () in DEVB(W) 510/83/03, DEVB(W) 510/10/01 dated 24.3.2011, and 11.2.2021 respectively and DEVB TC(W) No. 6/2021)

GCC Clause 86 (For term contract, GCC Clause 89) sets out the framework of dispute resolution procedures. In summary, a dispute may go through 3 distinct stages: a decision of the Engineer, mediation and arbitration.

Where the Engineer makes a decision on the dispute, if either the Government or the Contractor is dissatisfied with such decision, either the Employer or the Contractor may, within 28 days after receiving the decision, request the matter be referred to mediation in accordance with the Government of HKSAR Construction Mediation Rules. Detailed guidelines are given in WBTC No. 4/99 and ETWB TCW No. 4/99A. Pursuant to WBTC No. 4/99, in all cases the merits of the dispute should be given careful consideration before deciding whether to agree to or to refuse mediation. Nonetheless, it is the Government's policy that mediation should be implemented wherever is possible to achieve cost effective resolution of disputes.

If the matter cannot be resolved by mediation, or if either the Employer or the Contractor does not wish the matter be referred to mediation, then either party may require the matter to be referred to arbitration. A SCC as given in the Library of Standard Special Conditions of Contract should be incorporated in the contract documents stating that place of arbitration shall be in Hong Kong.

To foster co-operation between Contractor and the Employer and their consultants and subcontractors, minimise the number of claims, avoid conflicts in the first instance and settle disagreements of disputes as they emerge, all capital works contracts shall adopt Dispute Resolution Advisor (DRA) System in conjunction with Voluntary Adjudication (VA), subject to the following selection criteria:

(a) Civil and E&M engineering works contracts

(i) The DRA System shall be adopted for such contracts with value exceeding $700M, except for contracts which are of routine nature and primarily straightforward. Approval for exemption shall be given by an officer at D2 rank or above of the procuring department;

(ii) Where the contract value does not exceed the $700M threshold, procuring departments may consider applying the DRA system having regard to the complexity of the works. The decision and justifications for applying the DRA system in such cases should be properly documented and endorsed by an officer at D2 rank or above of the procuring department.

(b) Building works contracts

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The adoption of the DRA System should be considered when the following criteria are satisfied:

(i) the nature of work is not simple and disputes are likely to arise during the course of contract; and

(ii) the contract value is over $700M, or over $100M for exceptional case where there is demonstrable benefit to adopt the DRA System.

The Guideline for the Use of the Dispute Resolution Advisor System with General Conditions of Contract for Civil Engineering Works (1999 Edition) and General Conditions of Contracts for Electrical and Mechanical Engineering Works (1999 Edition) and VA documents can be downloaded from Works Group Intranet Portal. Reference may be made to SDEV's memos ref. (02BBG-01-4) in DEVB(W) 506/00/01 of 24.3.2011 and ref. () in DEVB(W) 510/83/03 of 11.2.2021.

The provisions of four sets of SCC on settlement of disputes, where the Domestic Arbitration Rules (2014) promulgated by the Hong Kong International Arbitration Centre have been catered for, for capital works contract (with or without adoption of voluntary adjudication), term contract, and design & build contract are set out in Annex E of DEVB TC(W) No. 6/2021.

9.14 COMPUTER FACILITIES FOR WORKS CONTRACTS

(Ref.: Item Ref. 5.5 of Strategic Review of Project Administration Handbook for Civil Engineering Works, Progress Report on Second Stage Implementation of Review Proposal dated March 2005)

The Contract Computer Facilities (CCF) means the computer equipment (including hardware, software and network), related maintenance support services and training as stipulated in the relevant departmental guidelines on CCF which are provided by the Contractor under Works Contract to the staff of the Engineer/Supervising Officer for the purpose of managing the works contract on site.

The Project Officer should, at an appropriate stage, formulate a proposal for CCF in consideration of the following aspects and in compliance with relevant departmental technical specifications, guidelines and DPO's requirements:

(a) The intended areas of contract management where the CCF will be used;

(b) The site supervisory staff establishment;

(c) Training to be given to the site supervisory staff; and

(d) Requirements for necessary transfer of ownership of hardware, software and data and related intellectual property/copyright, etc.

The proposal of CCF with an estimated cost not exceeding $10 million or 0.5% of the estimated contract sum whichever is the lower is to be approved by an officer at D1 rank or above. If the aforementioned limit is to be exceeded, a submission with justification is to be made to an officer at D2 rank or above for approval.

9.15 SITE SAFETY AND ENVIRONMENTAL MANAGEMENT

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(Ref.: SDEV's memo ref. (02LSV-01-1) in DEVB(W) 516/70/03 dated 22.11.2013, SDEV's memo ref. (02N5N-01-1) in DEVB(W) 517/17/01 dated 8.6.2016, SDEV's memo ref. DEVB(W) 516/71/01 dated 29.3.2018 and SDEV's memo ref. DEVB(W) 517/91/01 dated 29.3.2018)

SDEV's memo ref. DEVB(W) 516/71/01 dated 29.3.2018 revised the Construction Site Safety Manual to reflect the enhancement to the Safety Management System for public works contracts with a view to sustaining the effort on site safety as well as to simplify and streamline the existing administrative work. The contractual provisions contained in Chapter 3 and Chapter 12 of the Construction Site Safety Manual shall apply to all works contracts and term contracts, undertaken by contractors on the List of Approved Contractors for Public Works or those on the List of Approved Suppliers of Materials and Specialist Contractors for Public Works, and design and build contracts. However, owing to their small size and/or nature, some contracts may warrant changes to the contractual provisions. Each works department is the best judge of its own situation and needs. Project engineers shall seek advice from their Departmental Safety and Environmental Adviser and the agreement of the appropriate (D2 rank or above) officer for such changes.

A Safety Plan shall be a mandatory requirement for the following contracts:

(a) Works contracts, undertaken by contractors on the List of Approved Contractors for Public Works or those on the List of Approved Suppliers of Materials and Specialist Contractors for Public Works, with contract period longer than 6 months and estimated contract sums of $20M and above;

(b) Term contracts, undertaken by contractors on the List of Approved Contractors for Public Works or those on the List of Approved Suppliers of Materials and Specialist Contractors for Public Works, with total estimated expenditure of $50M and above; and

(c) Design and build contracts with estimated contract sums of $20M and above.

For works contracts and design and build contracts with estimated contract sums of less than $20M and term contracts with total estimated expenditure of less than $50M, the criterion to decide whether safety plans are required or not is whether dangerous situations are anticipated by virtue of the site location or the operation involved in the construction work within the scope of the contract. Departmental Safety and Environmental Advisers should be consulted for advice on specific requirements.

In respect of environmental management, ETWB TCW No. 19/2005 sets out the policy and procedures requiring contractors to prepare an Environmental Management Plan and adopt unified standards on environmental nuisance abatement measures on sites, and expands the "pay for safety and environment scheme" to cover environmental nuisance.

However, interim guidance notes on the ETWB TCW No. 19/2005 regarding the administration of "Environmental Management on Construction Sites" were issued via SETW's memo ref. (014G7-01-1) in ETWB(W) 517/91/01 dated 19.6.2006, replacing Appendices A to F of ETWB TCW No. 19/2005.

Subsequently, SDEV's memo ref. DEVB(W) 517/91/01 dated 29.3.2018 was issued to promulgate the following enhancements to environmental management on construction sites:

(a) The Pay for Safety and Environment Scheme (PFSES) would be renamed as the Pay for Safety Scheme (PFSS).

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(b) All environmental related pre-priced payment items from the Bills for the PFSES would be removed and then combined in an appropriate item to the Bills for Preliminaries.

All public works contracts, including design and build contracts and term contracts, shall implement the above enhancements through incorporation of the amendments to ETWB TCW No. 19/2005 as stipulated in SDEV's memo ref. DEVB(W) 517/91/01 dated 29.3.2018.

The sample contract provisions regarding the requirements on mechanical dump truck covers for application to capital works contracts with PFSS and term contracts with PFSS were promulgated under SDEV's memo ref. DEVB(W) 810/83/09 dated 24.9.2010. The sample contract provisions include the following:

(a) A set of revised clauses in the Particular Specification at Appendix 5.48; and

(b) A new clause in the Notes to Tenderers at Appendix 5.49.

Capital works project with estimated construction cost equal to or exceeding $500M, excluding Design & Build projects, should follow the Design for Safety process as stipulated in the "Guidance Notes of Design for Safety" which can be downloaded from DEVB website:

https://www.devb.gov.hk/en/publications_and_press_releases/publications/index.html

In particular, "Pre-tender Health and Safety Plan" should be issued to the tenderer, tenderer should submit "Outline Health and Safety Plan" with his tender submission and "Health and Safety File" should be kept.

9.15.1 Pay for Safety Performance Merit Scheme (PFSPMS)

(Ref.:-SDEV's memo ref. DEVB(W) 517/91/01 dated 29.3.2018)

Under the current PFSES/PFSS, contractors are paid if they have completed the respective task-tied safety items, such as provision and updating of safety plan, attending safety meetings/walks, and provision of safety trainings, etc. The task-tied payment, however, is not linked to the safety performance of the contractors. To motivate contractors to strive for better safety performance, DEVB has promulgated a performance-tied payment scheme for public works contracts as an extension to the PFSS, i.e. the Pay for Safety Performance Merit System (PFSPMS), which has been incorporated in Chapter 12 of the Construction Site Safety Manual. The PFSPMS shall be applicable to all capital works contracts including electrical and mechanical contracts and Design and Build contracts which adopt PFSS.

Under the PFSPMS, payment will be made under a set of pre-priced performance-tied payment items which are measured according to the contractors' achievements in respect of the safety performance indicators specified in the contract. The total value of the performance-tied payment items under the PFSPMS shall be about 1.7% of the estimated Contract Sum or total estimated expenditure as stipulated in Annex B to the Guidelines, at Appendix VI in Chapter 12 of the Construction Site Safety Manual . The payment for PFSPMS is in addition to that for PFSS.

The eight safety performance indicators of the PFSPMS are as follows-

(a) No reportable accident in a month;

(b) No notice of safety or environmental prosecution received in a month;

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(c) Compliance of safety training (Silver Card) for workers of specified trades in a month;

(d) Half-yearly review of safety performance – based on inspection / improvement / suspension notices received from the Labour Department;

(e) 12-month rolling accident frequency rate for reportable accidents below 0.25 per 100,000 man-hours worked;

(f) Yearly review of safety performance - no fatal accident in a year;

(g) Achievement in safety campaign organized by Development Bureau, (i.e. Considerate Contractors Site Award Scheme); and

(h) Final review of safety performance – overall safety performance based on fatal accident and cumulative accident frequency rate for reportable accidents under the contract (Annex E to the Guidelines).

To implement the PFSPMS, DEVB have prepared a set of Guidelines and relevant contract provisions for inclusion in the tender/contract documents for capital works contracts. A copy of the Guidelines and contract provisions are enclosed Appendix VI in Chapter 12 of the Construction Site Safety Manual.

The PFSPMS for term contracts is under preparation and will be promulgated in due course.

The Construction Site Safety Manual Chapter 12 could be accessed via the following link: -

Construction Site Safety Manual Chapter 12
https://www.devb.gov.hk/filemanager/en/content_191/Chapter12_Ver.Mar.2018_highlighted.pdf

9.16 SECTIONAL COMMENCEMENT OF THE WORKS (Subsumed from WBTC No. 12/93)

9.16.1 General

The GCC defines "Section" as "a part of the Works for which a separate time for completion is identified in the Contract". GCC Clause 47 (Commencement of the Works) does not refer to a separate date for commencement of a Section.

There are occasions when it is necessary to stipulate in the Contract commencement of a part of the Works designated as a Section in the Contract at a later date than the date for commencement notified by the Engineer in accordance with GCC Clause 47. This shall be referred to as "sectional commencement".

9.16.2 Procedures

Where sectional commencement is required, the SCC for 'Sectional commencement' given in the Library of standard SCC under SDEV's memo ref. DEVB(W) 546/17/02 dated 9.2.2011 shall be included in the contract documents. Any requirement for phased possession of any Portion of the Site by the Contractor shall be prescribed in the contract documents taking into account the different dates for commencement of the Sections as stated or referred to in the Contract.

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It will not be necessary to invoke the said contractual arrangement in the following circumstances where delayed commencement of part(s) (whether designated as Section(s) or not) of the Works can be achieved by using the existing provisions in the GCC or the library of SCC. For example :-

(a) where only phased possession of Portion(s) of the Site by the Contractor is required the necessary contractual arrangement is stipulated in GCC Clause 48; or

(b) where a Section of the Works Subject to Excision is required in accordance with Paragraph 9.41 of this Chapter, the necessary contractual arrangement is already catered for by the SCC for 'Section Subject to Excision' as given in the Library of standard SCC under SDEV's memo ref. DEVB(W) 546/17/02 dated 9.2.2011.

It is important to check whether or not the other contract documents contain any cross reference(s) to GCC Clause 47 and if so, consider whether or not such cross-reference(s) need to be amended by reason of the SCC on sectional commencement.

9.17 ENVIRONMENTAL PERMIT

Departments shall observe the guidelines and procedures set out in ETWB TCW Nos. 13/2003 and 13/2003A for obtaining an environmental permit (EP) for Government projects and proposals. Depending on the nature of project and the recommendations in the EIA reports, project proponent may choose to apply for a single EP for a project or separate EPs for various stages of a project, such as construction, operation and decommissioning. To maintain overall programme control and continuity, it is recommended that the project proponent shall apply for the necessary EPs before the commencement of project construction and hold the EPs throughout the construction period. Such arrangement will ensure that the EP is in place immediately after the award of the contract and hence the Contractor can rely on the EP issued to the project proponent to commence works on the site without the need to apply for a further EP. Department should ensure that sufficient time is allowed for the completion of the EIA process before the issue of tender documents.

The standard clause in Paragraph 1.6.5, Appendix A of ETWB TCW No. 13/2003 shall be included in the Particular Specification for works contracts where EP has been obtained by the proponent for the works to safeguard against any unnecessary claims for extension of time and additional costs from the Contractor due to application for a further EP or any subsequent variation to the conditions of EP.

To ensure that the contractor has the full knowledge of the conditions of the EP, a copy of the EP issued to the proponent shall be included in the Particular Specification to form part of the tender documents and hence the contract. As part of the standard conditions of the EP, the Contractor shall display the EP at the site throughout the construction period. The proponent shall notify the Contractor any subsequent change or variation to the conditions of EP.

Where the requirements in ETWB TCW No. 13/2003 cannot be complied with, the department responsible should:

(a) take action to critically review the results and assess the implications of the EIA study

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(including the latest environment control conditions) as soon as it is available; and

(b) if the tender documents have already been handed out, take action to immediately inform all tenderers of the findings of the EIA study, so that they could take the EIA findings into account before submitting their bids (SETW's memo ref. () in ETWB(W) 1552/662/CL SF(1) dated 3.12.2003 refers).

9.18 DELETION OF EXTENSIONS OF TIME FOR INCLEMENT WEATHER (Subsumed from WBTC No. 26/98)

Circumstances may arise where it is desirable to fix the completion date (e.g. to tie in with the opening of a school term) and hence the Contractor's right to extensions of time for inclement weather is deleted. Heads of departments may approve the deletion of GCC Clause 50(1)(b)(i), (ii) and/or (iia), and submit details to the SDEV for endorsement. Tenders must not be invited until this endorsement has been received. The SCC on 'deletion of extensions of time for inclement weather' in the Library of standard SCC under SDEV's memo ref. DEVB(W) 546/17/02 dated 9.2.2011 shall be used as appropriate. Other than for exceptional circumstances, a reasonable allowance for inclement weather shall be included in the time for completion. What is reasonable will largely depend upon the nature of the Works. In deciding whether or not to delete sub-clause (b)(ii) and/or (iia), the risk of injury and/or damage to property must be considered.

Nevertheless, it should be noted that where the provision for extensions of time due to inclement weather is deleted, Contractor's entitlement to extensions of time in respect of inclement weather which occurs after the expiry of the time originally prescribed in the Contract for completion of the Works, but before the period of culpable delay, is not deleted.

9.19 TIME-CRITICAL PROJECTS

(See SETW's memo ref. () in ETWB(W) 1552/662/CL SF(1) dated 3.12.2003)

The time required for completion of time-critical projects should be critically assessed prior to the invitation of tenders so as to ensure that sufficient time is allowed for completion of the works. Furthermore, the implications and potential cost of including or deleting those contract provisions (such as provisions for granting extension of time for inclement weather) which could adversely affect the completion date of the works as stated in the contract documents so as to avoid the need for negotiating a supplementary agreement with the Contractor.

For time-critical projects with multiple works contracts, sufficient float time should be allowed between the works contracts so as to minimize the risk of the knock-on effect of delay in one contract on other contract(s).

If the projects require input from users on their design requirements, the departments should:

(a) Always require users to finalise their design requirements before an agreed cut-off date so as to avoid any design changes at a later stage; and

(b) Obtain the users' explicit agreement to essential design requirements prior to the letting of contracts so as to avoid delays and contractual claims arising from changes in users' requirements.

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9.20 CONTRACTS AFFECTED BY CONDITIONS OF LAND GRANT

(See SETW's memo ref. () in ETWB(W) 1552/662/CL SF(1) dated 3.12.2003)

Issues relating to any conditions of a land grant, which could have an effect on the works of the contracts, should be resolved with the Director of Lands before letting of the contracts. Departments should take prompt action to assess the implications of such conditions before a land grant is finalized.

9.21 CONTRACTUAL PROVISIONS TO REDUCE THE RISK OF CONTRACT FORFEITURE

(See SETW's memo ref. ETWB(CR)(W) 1-150/4 Pt.2 dated 27.4.2004)

For time critical contracts and/or large-scale contracts, and where the contract conditions impose a substantially higher degree of risk than normal on the Contractor, the project office should consider implementing measures (such as the use of parent company guarantee and performance bond) to minimize the risk of contract forfeiture and should strictly implement the contract conditions for the provision of parent company guarantee and performance bond (if any) to ensure the required contract instruments are submitted by the Contractor within the stipulated time limits. For the use of performance bonds security and retention money, see WBTC Nos. 10/97 & 10/97A (as amended by SDEV's memo ref. ( ) in DEVB(W) 510/70/03 dated 27.7.2021).

For large-scale works projects, the contract payment schedules should be critically devised to ensure that progress payments are made, as far as possible, in line with the actual progress of works.

9.22 RESTRICTED-HOUR LOCATIONS

(Ref.: SETW's memo ref. (008BT-01) in ETWB(W) 830/31/01 dated 12.7.2004, Audit Recommendations on Public Works Contracts)

Under a works contract, some works may be required to be carried out within restricted hours. Experience has shown that during the construction stage, the Transport Department/the Hong Kong Police Force required the works at more locations to be carried out within restricted hours. This has led to claims and variations. With a view to minimizing claims for EOT and prolongation cost arising from works carried out within restricted hours, the project office should:

(a) Strengthen consultation with the Transport Department/Hong Kong Police Force to ensure that all locations, which require works to be carried out within restricted hours, are identified before tendering; and

(b) Consider improving the contractual provisions of main-laying contracts such as by incorporating provisional items so as to allow for addition of more restricted-hour locations subsequently found necessary.

9.23 ADDITIONAL WORKS AREA AND EXTENSION OF WORKS AREA

(Ref.: Lands Department's memo ref. (3) in LD TI 10/04/03 dated 16.6.2004, Provision of Land for Works Area)

The project office should note that any request for additional works area after award of a

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contract will be subject to payment of rent by the Contractor and any request for extension of works area should be provided with justifications, or the DLO may charge a rental or may refuse the request.

9.24 TUNNEL WORKS

For contracts involving tunnel works, the project office should include suitable clauses in the PS and, in the case of design and build contracts, the Employer's Requirements (ER) to enable effective implementation of the ETWB TCW No. 15/2005. Where the GEO raises major geotechnical concerns on the public safety aspects of the geotechnical design or the related PS or the ER clauses, the project office must resolve such concerns before tenders are invited.

Reference should also be made to the "Guidance Notes on Safety and Health of Hand-Dug Tunnelling Work" published by the Labour Department when hand-dug tunnelling work is unavoidable. The occupational safety and health measures as set out in the Guidance Notes shall be incorporated in the relevant tender documents. The Guidance Notes is available on the website of Labour Department (*http://www.labour.gov.hk/eng/news/pdf/GN_on_S&H_of_Hand-dug_Tunnelling_Work_Eng.pdf*).

9.25 PERMITS FOR EXCAVATION WORKS UNDER LAND (MISCELLANEOUS PROVISIONS) ORDINANCE CAP.28

(Ref.: SDEV's memo ref. (0281L-01-5) in DEVB(W) 510/70/01 dated 1.11.2010)

Standard Notes to Tenderers, Particular Specification and amendment to the Form of Tender for incorporation into civil engineering works contracts are given in SETW's memo ref. ETWB (W) 249/38/02[TC13/2001] dated 29.3.2004. Standard Special Conditions of Contract for incorporation into civil engineering works contracts are given in SDEV's memo ref. (0281L-01-5) in DEVB(W) 510/70/01 dated 1.11.2010.

9.26 MEASURES TO PREVENT ILLEGAL EXTRACTION OR IMPORTATION OF BOULDERS/COBBLES/PEBBLES

For future public-works projects, if the design requires large quantities of natural boulders/cobbles/pebbles that are not readily available in the market, the project office should consider stipulating in the contract documents clauses requiring the Contractor to submit documentary proof that extraction or production of these materials by the material suppliers will not cause unacceptable environmental impacts (such as reports from independent environmental consultants) and also proof of the legality of the source of materials. For natural boulders/cobbles/pebbles that are to be obtained outside Hong Kong, the Contract should require the Contractor to submit export permits from the relevant authorities. These permits should have been verified by notary(ies) public of the originating place(s), where applicable, in order to demonstrate that such materials are supplied legally and without causing unacceptable environmental impacts to its source. The Engineer should be empowered to seek further information from the Contractor in case he has any doubt.

The Contractor shall not be allowed to deliver natural boulders/cobbles/pebbles to site before submission of the above-mentioned proof to the Engineer for his agreement. The Engineer for the Contract and the Contractor should also enhance their site supervision respectively to avoid

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the taking of risk by the Contractor or the Subcontractors to deliver these materials to site prior to approval.

9.27 ADOPTION OF NON-CONTRACTUAL PARTNERING IN PUBLIC WORKS CONTRACTS

(Ref: SETW's memo ref. (0117S-01-2) in ETWB (W) 506/30/02 dated 30.3.2006 and SDEV's memo ref. () in DEVB (W) 506/30/02 dated 23.9.2020)

The project offices and consultants should refer to the "Practice Note on Adoption of Non-contractual Partnering in Public Works Contracts" (included in Appendix 5.28) promulgated by DEVB in delivering public works contracts. The Practice Note sets out the guidelines for selection of contracts for adoption of non-contractual partnering and its implementation. Reference documents for the implementation of the non-contractual partnering that are provided include "Good Practices for Implementation of Non-contractual Partnering"; "Typical Partnering Charter"; "Standard notes for tenderers to communicate Government's intent to partner/ Standard letter to the Contractor to communicate Government's intent to partner and to invite him to participate in project partnering"; "Form of Tender" and "Client's Brief to Service Providers for Designing and Facilitation Partnering Workshops and Related Services".

9.27.1 Guidelines for selection of contracts for adoption of non-contractual partnering

In order to promote the wider use of partnering approach in public works contracts, non-contractual partnering should be adopted in the following types of contracts as far as possible:

(a) Building and civil engineering capital works contracts with tenders to be invited from Group C contractors;

(b) E&M contracts with tenders to be invited from Group B and/or C contractors;

(c) Other contracts such as maintenance term contracts if approval is given by an officer at D2 or above rank to adopt the non-contractual partnering arrangement having regard to the nature and complexity of the works.

For contracts under (a) and (b) above, approval from an officer at D2 or above rank shall be obtained for not adopting the non-contractual partnering arrangement.

For NEC contracts, they already entail partnering spirit and associated project management tools, and therefore there is no need to require the adoption of non-contractual partnering in NEC contracts.

9.28 CONTROL OF OFF-SITE FABRICATION OF CONSTRUCTION COMPONENTS

(Ref: SETW's memo ref. (018RD-01-1) in ETWB (W) 925/50/01 dated 13.10.2006 - Assignment No. 04/2006 - Control of Off-site Fabrication of Construction Components)

If the works under the Contract or any alternative design proposed by the Contractor involve fabrication of construction components outside Hong Kong, the project office should either arrange for the resident site staff of in-house projects or consultant-managed projects to supervise and inspect

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the works in the fabrication area or require the Contractor to employ an independent inspection agent (IIA)[#] to control the quality of the components fabricated in the fabrication area. In this situation, the project office should determine the most appropriate site supervision requirements, inspection arrangement and warranty from the manufacturer, and should stipulate them in the contract documents. If an IIA is employed by the Contractor to supervise and inspect the works in the fabrication area, the project office should specify in the contract documents the qualification requirements of the IIA and, where practicable, the IIA's staff assigned for the supervision and inspection.

If an IIA is required under the Contract, apart from the qualification requirements of the IIA and, where practicable, the IIA's staff assigned for the supervision and inspection, the project office shall also stipulate in the contract documents the following requirements:

(a) the qualifications of the IIA and the IIA's staff shall be submitted to the Engineer for approval;

[#] Note: project office is to decide the scope and extent of the IIA services

(b) the Contractor shall require the IIA and his staff to submit declaration of no conflict of interest with the supplier/manufacturer/Contractor to the Employer upon employment of the IIA. The Contractor shall also ensure that the IIA and his staff declare any conflict of interest with the supplier/manufacturer/Contractor to the Employer via the Engineer as soon as such a conflict comes to the knowledge of the IIA, his staff or the Contractor. In the event that such conflict or potential conflict between the supplier/manufacturer/Contractor arises, the Contractor shall forthwith take such reasonable measures as are necessary to mitigate as far as possible or remove the conflict or potential conflict so disclosed;

(c) the Contractor shall require the IIA to submit to the Engineer for approval a site supervision and inspection plan for the fabrication works as well as any subsequent changes, and to certify compliance with the site supervision and inspection plan;

(d) the Contractor shall caution the IIA and his staff not to accept lavish entertainment during supervision and inspection;

(e) the Contractor shall not allow the IIA and his staff to accept any advantage from suppliers, manufacturers and/or objects of supervision/inspection;

(f) the Contractor shall require the IIA to submit to the Contractor and the Engineer simultaneously site records and reports on any non-compliance with the Contract's requirements;

(g) the Contractor shall require the IIA to submit periodic statistical returns (e.g. returns on the number and periods of supervision and inspections conducted by the IIA and his staff and the works covered in these supervision and inspections) for management information; and

(h) the Contractor shall require the IIA to certify to the Employer that the fabrication works have been constructed in accordance with the Contract's requirements.

Notwithstanding the above requirements stipulated, the employment of the IIA shall not relieve the Contractor of any duties or liabilities under the Contract. Guidelines to assist project

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offices in controlling the quality of fabrication of construction components outside Hong Kong are given in Paragraph 21.21 of PAH Chapter 7.

9.29 SAFETY PRECAUTIONARY MEASURES RELATING TO EXTRACTION OF SAND FROM SEABED WITH POTENTIAL PRESENCE OF UNEXPLODED ORDNANCE

For any contracts involving extraction of sand from the seabed with potential presence of unexploded ordnance, the project office shall pay due regard to the "Guidance Note on Incidents Involving Explosive Ordnance During Marine Dredging" issued widely to all dredging contractors in the construction industry and updated by the Marine Fill Committee from time to time (whose terms of reference are stated in WBTC No. 12/2000). The Note is available for reference on the CEDD website (http://www.cedd.gov.hk/eng/services/fillmanagement/fm_mf.htm). The project office should consider the nature of the works and specify the necessary precautionary measures in the contract documents to minimize the risk associated with ordnance. For example, these measures to be specified may include the use of filtering devices during the suction or pumping of sand for the screening out of unexploded ordnance items exceeding 150mm.

9.30 DRAINAGE IMPACT ASSESSMENT PROCESS FOR PUBLIC SECTOR PROJECTS

The project proponent shall observe the guidelines and procedures set out in ETWB TCW No. 2/2006 for Government projects and proposals. Depending on the nature of project and the recommendations in the Drainage Impact Assessment reports, the project proponent shall incorporate into the tender documents all the specific requirements of the temporary mitigation measures, and the monitoring and audit requirements.

9.31 ENGAGEMENT OF SUBCONTRACTORS REGISTERED FROM THE "REGISTERED SPECIALIST TRADE CONTRACTORS SCHEME" (Subsumed from ETWB TCW No. 13/2004, SDEV's memo ref. (02KJ8-01-4) in DEVB(W) 510/94/02 dated 22.7.2013, SDEV's memo ref. ( ) in DEVB(W) 510/94/02 dated 28.3.2019, 11.8.2020, 4.12.2020, 11.1.2022, 17.6.2022,1.12.2022, 1.2.2023, 6.9.2023, 10.4.2024 and 11.12.2024 Amd No. 2/2025)

All capital works and maintenance works contracts shall require the contractor to only employ subcontractors (whether nominated, specialist or domestic and irrespective of tier) registered under the respective trades (and groups if available) available in the Registered Specialist Trade Contractors Scheme (RSTCS) (formerly known as the Subcontractor Registration Scheme (SRS)) managed by the Construction Industry Council (CIC).

The RSTCS which was launched on 1.4.2019 comprises the lists of both the Registered Specialist Trade Contractors (RSTC) and the Registered Subcontractors (RS). The RSTC are further classified into Group 1 and Group 2 subject to different admission criteria and tender limits. The requirement for engaging Group 1 and Group 2 Registered Specialist Trade Contractors in all public works contracts pursuant to the prescribed tender limits (see www.rstc.cic.hk) has taken effect since 1 October 2020.

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The NTT, SCC, ACC, as well as the appendices to SCC and ACC as given in Appendices 5.6, 5.6A, 5.6B, 5.6B1, Amd No. 2/2025 5.6C, 5.6C1, Amd No. 2/2025 5.6D and 5.6E shall be included in tenders to be invited on or after 1 May 2024,. The above requirements apply to Nominated Subcontractors, Specialist Subcontractors and subcontractors for specialist works referred to in SCC on "Subcontracting", as well as their further subcontractors of all tiers.

9.32 CONTRACT MEASURES TO LIMIT THE NUMBER OF TIERS OF SUBCONTRACTING

(Ref.: SDEV's memo ref. (01TC9-01-5) in DEVB(W) 510/17/01 dated 17.7.2008, & SDEV's memo ref. (01VP5-01-4) in DEVB(W) 510/17/01 dated 11.11.2008 & SDEV's memo ref. DEVB(W) 510/17/01 dated 6.9.2013 and 19.4.2021)

DEVB has promulgated that the contract measures at Appendix 5.19 for limiting the number of tiers of subcontracting is to be applied to all capital works contracts and maintenance contracts. The SCC clause at Appendix 5.19 sets as default the limitation to two tiers of subcontracting for all parts of works. For works requiring entry of human beings into confined space that form part of a drainage or sewerage system, only one tier of subcontracting is allowed in total. A diagram illustrating the intended limitation on subcontracting is at Appendix 5.20 for reference.

Subject to the agreement from Works Branch of DEVB, project officers may impose the restriction on other high-risk operations relevant to the nature of the contracts. Project officers shall provide justifications including past accident records involving such high-risk operations and obtaining prior endorsement of an officer at D2 rank or above in Works Departments.

The Engineer for the contract may, subject to no objection from the Employer (who should be an officer at D2 rank or above in Works Departments), permit the contractor to introduce an extra tier of subcontracting for a part of the Works in case there is a strong need for the extra tier of subcontracting. Works Departments shall keep a record of such approvals including justifications and update Works Branch of DEVB at 6-month intervals for all permissions granted under this provision. The need for the Engineer for the contract to obtain no objection from the Employer is a constraint on the power of the Engineer rendering the action of the Engineer being subject to the Employer's right of objection or direction.

In accordance with Clause 2(1)(b) of GCC, the particulars of any such constraint on the Engineer imposed under the terms of his appointment by the Employer has to be set out in the Appendix to Form of Tender. In this regard, project offices including consultants should include the constraint clause in the Appendix to Form of Tender when the SCC clause at Appendix 5.19 for limiting the number of tiers of subcontracting is incorporated.

9.33 ENHANCEMENT MEASURES FOR SUBCONTRACTOR MANAGEMENT PLAN (SMP)

(Subsumed from ETWB TCW No. 47/2002)

Subcontracting is a common practice in the construction industry. If properly managed by contractors, it will facilitate the execution of works in a cost-effective manner with efficient use of resources. However, in the absence of proper management, uncontrolled subcontracting could have adverse impact on the progress and quality of works.

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To augment the existing provisions prohibiting contractors from subcontracting the whole of the contracted works, special conditions are introduced in public works contracts to enhance the management of subcontractors by contractors.

A tenderer is required to submit with his tender a proposed outline SMP to show how he is going to manage his subcontractors. The guidelines on scope and contents of the SMP given at appendix to the SCC for Management of Subcontractors (Appendix 5.23) should be attached to the tender document to facilitate the tenderer to prepare his SMP.

The following requirements should be specified in the form of a SCC:

(a) The contractor will be required to ensure that his subcontractors will not further subcontract the whole of the works subcontracted to them.

(b) The contractor will be required to employ his own staff to manage and supervise his subcontractors.

To obtain a full picture of the contractor's subcontracting arrangement, the term 'subcontractor' described in this Paragraph means all types of subcontractor including without limitation Nominated Subcontractor and Specialist Subcontractor. Nevertheless, the requirements stipulated in WBTC No. 25/94 and other technical circulars for domestic subcontractors and nominated subcontractors should still be followed.

These following contractual provisions with updates from SDEV's memo ref. ( ) in DEVB(W) 510/94/02 dated 4.12.2020, DEVB TC(W) No. 6/2021 and Annex B to SDEV's memo ref. (03E8T) in DEVB(W)516/80/03 dated 3.8.2022 should be included in tenders for all capital and maintenance works contracts (For NEC ECC or TSC contracts, please refer to the above mentioned memo for the suite of contractual provisions):

(a) NTT for Payment for Subcontractor Management Plan (Appendix 5.22);

(b) SCC for Management of Subcontractors (Appendix 5.23) with Appendix to the SCC (Appendices 5.6A, 5.6C and 5.6E); and

(c) PS for Management of Subcontractors (Appendix 5.25).

Pursuant to the new arrangement promulgated under SDEV's memo ref. ( ) in DEVB(W) 510/94/02 dated 28.3.2019 (as mentioned in paragraph 9.31 above), the contractors should provide the details of subcontract(s), including but not limited to the trades (and groups if applicable) of the subcontractor(s) under the RSTCS and value of the subcontract(s) in the SMP. To build up subcontractors information and facilitate future analysis, project offices shall submit quarterly the particulars of subcontracts under item (ii) of Appendix to SCC on SMP in an excel template (see Table 1 in Appendix 5.23) to DEVB.

Project officers should refer to SDEV's memo ref. ( ) in DEVB(PS) 109/11/01 Pt. 9 dated 16.5.2017, the para. 3 of which provides the following revised requirements for streamlining of Subcontractor Management Plan submission in public works contracts:

(a) Deletion of the pre-priced items in Bills of Quantities/Schedule of Rates for "complete Subcontractor Management Plan" and "quarterly updating of Subcontractor Management Plan"; and

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(b) Minor revision of "Guidelines on Scope and Contents of SMP" – from "Criteria for selection of subcontractors" to "Criteria for selection of subcontractor(s) involving trade(s) not available in the Primary Register of the Subcontractor Registration Scheme".

9.34 CONTRACT MEASURES FOR IMPLEMENTATION OF EMERGENCY COMMAND SYSTEM

In August 2008, DEVB introduced the Emergency Command System (ECS) to deal with exceptional emergency incidents. To facilitate the implementation of the ECS, a set of contract measures was promulgated for incorporation into maintenance/term contracts. Please refer to Chapter 8 Paragraph 5.7 for the details of the ECS and the contract provisions.

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9.35 INDEPENDENT CHECKING OF THE DESIGN, ERECTION, USE AND REMOVAL OF TEMPORARY WORKS (Subsumed from WBTC No. 3/97)

A Special Condition of Tender (SCT 3 in the Library of Special Conditions of Tender), Special Condition of Contract (SCC 26 promulgated under SDEV's memo ref. DEVB(W) 546/17/02 dated 9.2.2011), and a Particular Specification (PS) item (see Appendix 5.11) have been prepared to enable officers responsible for preparing tender documents to require the Contractor to provide for independent checking of the design, erection, use and removal of selected Temporary Works.

SCC 26 promulgated under SDEV's memo ref. DEVB(W) 546/17/02 dated 9.2.2011 clarifies the Engineers' duty. The Engineer is required to examine the Contractor's design details concerning the design, erection, use and removal of the Temporary Works and shall satisfy himself that it contains no obvious deficiency and that the independent checking engineer has carried out his duties with reasonable skill and care in certifying that the Temporary Works have been properly and safely designed. The responsibility for the Temporary Works remains with the Contractor but no work shall be commenced until the Engineer has issued his consent in writing upon making such verification.

Under the revised SCC, the Contractor is additionally required to provide to the Engineer certified method statements in connection with the erection, use and removal of the designed Temporary Works.

The decision to incorporate any of the above documents i.e. SCT 3 in the Library of Special Conditions of Tender, SCC 26 promulgated under SDEV's memo ref. DEVB(W) 546/17/02 dated 9.2.2011 and the PS item (Appendix 5.11) in tender documents is a matter for the professional judgement of the Engineer and it is recognised that the type and complexity of Temporary Works to be used by the Contractor cannot always be accurately foreseen at the design stage. The following guidelines may be of assistance at tender documentation stage :

(a) The above documents shall only be used where the design of the Temporary Works is the responsibility of the Contractor, and not the Engineer.

(b) Where no part of the Temporary Works is assessed as requiring the particular submission of drawings or calculations or design checking, none of the above documents need to be included in the tender documents. During construction the Engineer will be able to call for details under Clauses 7 and 16 of the General Conditions of Contract (GCC), but will have to pay for any additional independent checking, being beyond the scope of merely providing details.

(c) If the project designer wishes to examine tenderers' proposals for undertaking more complex or extensive Temporary Works at tender assessment stage, then use of SCT 3 in the Library of Special Conditions of Tender may be considered together with SCC 26 promulgated under SDEV's memo ref. DEVB(W) 546/17/02 dated 9.2.2011. During construction, the Engineer will be able to call for more details under GCC 7 and 16.

(d) Use of the SCC 26 promulgated under SDEV's memo ref. DEVB(W) 546/17/02 dated 9.2.2011 and/or the PS item (Appendix 5.11) should be considered if it is thought likely the Temporary Works will be extremely complex or innovative, or

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the potential consequence of any failure is likely to be severe.

(e) Temporary cut or filled slopes and excavations and access platforms may require method statements. These can be called for under GCC 16.

(f) It is matter of judgement for the Engineer as when to require certificates for the erection, use or removal of Temporary Works.

Many failures of Temporary Works have been the result of insufficient consideration of ground conditions. The design of Temporary Works must take this into account.

SCT 3 in the Library of Special Conditions of Tender may be used independently of the PS item (Appendix 5.11) and SCC 26 promulgated under SDEV's memo ref. DEVB(W) 546/17/02 dated 9.2.2011.

In respect to Temporary Works generally, designers may find the following publications useful :

(a) Technical Report TRSC 4, issued by the Concrete Society and the Institution of Structural Engineers; provides useful guidance where Temporary Works are classified as falsework.

(b) Chapter 9 of the Geotechnical Manual for Slopes and GEO Technical Guidance Note No. 40 provide guidance and good practice for implementing temporary drainage and rainfall precautionary and mitigation measures during construction in the wet season.

(c) BS5975:1982 (Code of Practice for Falsework).

Should the Engineer be dissatisfied with the independent checking engineer, the Engineer, having given reasonable notice of dissatisfaction, may order the dismissal and replacement of the independent checking engineer by the Contractor.

Sub-clause (5) of GCC 7 affords basic protection to the Engineer from taking over responsibility for the Contractor's design of Temporary Works. Sub-clause (5) of SCC 26 promulgated under SDEV's memo ref. DEVB(W) 546/17/02 dated 9.2.2011 limits the involvement of the Engineer to seeing that the required certificates are in place and examining the design of the Temporary Works for obvious defects.

In addition, GCC 54(2)(d) gives the Engineer the right and the power to suspend any work discovered by the Engineer to be dangerous or potentially dangerous and the Engineer must do so. Sub-clauses (2) and (4) of GCC 7 further underline this power.

For Contractor designed Temporary Works that do not involve an independent checking engineer, the Engineer can similarly make use of the GCC clauses referred to in the above 2 paragraphs, without taking up any of the design responsibility. The duty to suspend also applies.

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9.36 QUALITY MANAGEMENT SYSTEM CERTIFICATION OF CONTRACTORS FOR PUBLIC WORKS ADMINISTERED BY THE WORKS GROUP OF DEPARTMENTS

(Ref.: SDEV's memos ref. (025B1) in DEVB(W) 520/83/01 dated 26.1.2010 and ref. DEVB(W) 520/83/01 dated 4.4.2018)

In accordance with WBTC No. 13/2001, consultants and contractors are required to obtain certification of their quality management systems in accordance with ISO 9001:2000 standard (subsequently updated as ISO 9001: 2015 standard in SDEV's memo ref. DEVB(W) 520/83/01 dated 4.4.2018).

The following new contract provisions which supersede the revised Appendices E, F, G and I as promulgated in DEVB's memo of 26.1.2010 are at Appendix 5.29 and summarised below for immediate implementation.

(a) SCT to be incorporated into tender documents for contracts requiring the contractor to have obtained the Certification *(replacing Revised Appendix E to DEVB's memo of 26.1.2010)*;

(b) SCC to be incorporated into tender documents for contracts requiring the contractor to have obtained ISO 9000 certification *(replacing Revised Appendix F to DEVB's memo of 26.1.2010)*;

(c) SCC to be incorporated into tender documents for contracts where the main contractor is required to enter into written subcontracts with the contractors on the categories and/or groups of the Lists shown in Appendix C to WBTC No. 13/2001 *(replacing Revised Appendix G to DEVB's memo of 26.1.2010)*; and

(d) SCT to be incorporated into tender documents for design and build contracts *(replacing Revised Appendix I to DEVB's memo of 26.1.2010)*.

9.37 USE OF RECYCLED AGGREGATES IN CONCRETE PRODUCTION AND IN ROAD SUB-BASE CONSTRUCTION

(Ref.: WBTC No. 12/2002)

This Paragraph promulgates the particular specifications to facilitate the use of recycled aggregates in concrete production and construction of road sub-base in PWP projects.

The hard inert C&D materials, such as broken rock and concrete, can be recycled into aggregates for reuse in construction works. In order to reduce the pressure on the demand for public filling and landfill capacity, it is essential that the reusable portion of C&D materials be recycled and put into good use. This Paragraph promulgates the particular specifications to facilitate the use of recycled aggregates in Grade 20 prescribed mix and Grade 25-35 designed mix concrete, and in road sub-base construction. The relevant particular specifications were developed by Standing Committee on Concrete Technology and Highways Department, based on internationally recognized standards and results of laboratory tests carried out locally. The particular specifications for prescribed mix concrete with 100% recycled coarse aggregate and for designed mix concrete with 20% recycled coarse aggregate are given in Appendix 5.30. The relevant specifications for recycled sub-base materials are given in GS Clauses 9.03, 9.13, 9.32 and 9.47.

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Recycled aggregates are also suitable for use in earthworks, drainage and marine works. The relevant specifications have been incorporated in the provisions in Sections 5, 6 and 21 of the GS. The use of recycled aggregates as sub-base materials for footpaths is being examined and if found feasible, a separate particular specification will be issued in due course.

The project department should consider using recycled aggregates in lieu of virgin materials wherever possible in the planning and design of a project, in accordance with the specifications stated in this paragraph. Where necessary, provisions should be included in the contract to cater for unforeseen problems, such as an unexpected shortage of supply of recycled aggregates.

9.38 METALLIC SITE HOARDINGS AND SIGNBOARDS (Ref.: WBTC No. 19/2001)

To reduce the amount of C&D waste generated from construction sites, all contracts shall specify the use of metal in all components of site hoardings and signboards. Furthermore, works departments shall specify a bolts and nuts jointing method in drawings and/or specifications for site hoardings and signboards where hoardings and signboards are to be erected, unless bolts and nuts jointing method are considered not feasible due to technical or safety reasons.

9.39 EMPLOYMENT OF TECHNICIAN APPRENTICES AND BUILDING & CIVIL ENGINEERING GRADUATES BY CONTRACTORS OF PUBLIC WORKS CONTRACTS (Ref.: ETWB TCW No. 12/2003)

To achieve the Government's objective to improve the quality and safety of public works projects, the contractors should employ, apart from qualified professionals, graduates and technicians for their works. The contractors of public works contracts are hence required to ensure that an adequate number of graduates and technicians are employed and provided with adequate training.

9.39.1 Technician Apprentices

For all capital works contracts exceeding $50M, the contractor is required to employ for each such contract the corresponding minimum number of technician apprentices under a valid contract of apprenticeship, as set out in the following table: -

(a)	**For a contract the contract sum of which exceeds $50 million but is not more than $100 million.**	**- one**
(b)	**For a contract the contract sum of which exceeds $100 million but is not more than $200 million.**	**- two**
(c)	**For a contract the contract sum of which exceeds $200 million.**	**- three**

To improve the quality and safety of construction works in the long run, the contractor must ensure that training is given to all technician apprentices employed in all aspects of their

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trades, and to ensure that they attend a course of instruction at an approved technical institution leading to the award of either a Higher Certificate in Building Studies, Civil Engineering, Building Services or a comparable alternative qualification.

9.39.2 Building and Civil Engineering Graduates

For all capital works contracts exceeding $50M, the contractor is required to employ for each such contract the corresponding minimum number of full time building or civil engineering graduate with an academic qualification gained within the preceding three years, and recognized by an appropriate local or overseas professional institution such as the Hong Kong Institute of Architects, the Hong Kong Institution of Engineers, the Institution of Civil Engineers, the Institution of Structural Engineers or the Chartered Institute of Building, as set out in the following table:-

(a)	**For a contract the contract sum of which exceeds $50 million but is not more than $100 million.**	**- one**
(b)	**For a contract the contract sum of which exceeds $100 million.**	**- two**

To improve the quality and safety of construction works in the long run, the contractor must provide practical training on site to the employed graduates for a minimum of 12 months or 70% of the time for completion of the Works as stipulated in the Appendix to the Form of Tender, whichever is longer. The contractor should also follow established training guidelines for the various disciplines as far as possible. General guidelines on site practice are given at Appendix 5.31 for works departments' information. The graduate(s) should be under the supervision of qualified professionals recognized by the relevant professional institutions mentioned in the first sub-paragraph of Paragraph 9.39.2. Unlike formal training, strict adherence to the guidelines and registration with the professional institutions mentioned are not required.

9.39.3 Implementation

Where the requirement on employment of technician apprentices and building & civil engineering graduates by contractors of public works contracts as given in Paragraph 9.39 applies, the Special Condition of Contract and Particular Specification given at Appendix 5.32 should be incorporated into the relevant tender document.

9.40 SPECIAL CONDITIONS OF CONTRACT FOR USE IN MEGA PROJECT CONTRACTS (Ref.: WBTC No. 26/2002)

A set of SCC, as given at Appendix 5.36, is devised for use in mega project contracts in conjunction with the GCC for Civil Engineering Works 1999 Edition.

Mega project contracts have some or all of the following characteristics:

(a) The contract sum is very large (normally exceeds $1 billion). During the construction period, there should be tight financial control because of the large sums of money involved.

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(b) There is a need to monitor the programme and control the progress closely because the contract itself or the project of which the subject contract forms an integral part has high social or economical implication

(c) The contract works are extensive and cover large areas, thus likely to have a lot of interfaces with other major projects. Hence very good co-ordination by all the concerned parties is required.

Project departments should have full regard to the "Guidelines for the Development of Major Infrastructure Projects" at Appendix 5.38.

This set of SCC has been prepared on the basis that all the SCC clauses will be used as a package (other than those optional clauses). As such, the full set of these SCC clauses (other than those optional clauses) must be used when a project department decides to use these SCC clauses in its works contract(s)

Project departments may adopt these SCC clauses including any modifications thereto on the approval of the Head of Department or his delegate. This delegation should not be down below the rank of D2 level. Any modifications to this set of SCC, including additions or omissions, should be vetted by LAD(Works)/DEVB.

Project departments are reminded that satisfying some or all of the criteria above does not automatically imply that the use of these SCC clauses is warranted. In deciding whether or not to use this set of SCC, project departments should consider the resource implication in the administration of the contract.

To facilitate the better management of the mega project contracts, the project department may wish to require the Engineer for the contract to obtain agreement of the Employer before making decisions on some of the following matters pursuant to Clause 2 of the GCC 1999 Edition in addition to those referred to in Paragraphs 7 and 8 of WBTC No. 20/2000, Paragraph 9.32 of this Chapter.

GCC Cl 16	**Approval of the works programme and any revised version thereof.**
GCC Cl 34	**Issuing instructions to afford facilities access and/or services to enable other parties to carry out their works.**
GCC Cl 48(5)(a)	**Deferral of a Portion handover date.**
GCC Cl 50	**Granting extensions of key dates.**
GCC Cl 53	**Issuing a Certificate of Completion in respect of the Works or of any part of the Works, any Section or any part of a Section or Certificate of Achievement for any Stage or any part of a Stage.**
GCC Cl 54	**Ordering suspension of the works or any part thereof save and except when considered to be essential on grounds of safety or other emergency in circumstances when it is impractical to refer the matter to the Employer beforehand.**
GCC Cl 55	**Recommencing work following suspension.**
GCC Cl 80	**Issuing the Maintenance Certificate.**

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GCC Cl 82(2)	**Authorizing remedial works to be carried out by persons other than the Contractor.**
GCC Cl 60(1)	**Omitting works on grounds of improved or more economic functioning of the works or aesthetic.**

For the purpose of Paragraph 9 of WBTC No. 20/2000, prior approval is deemed to have been given by the SDEV for the above additional constraints on the Engineer once a decision has been made by the project department to classify the contract as a mega project contract.

When the use of the SCC Clause A4A (under which provision for extension of time due to inclement weather is not included) is contemplated the proposal must be approved and endorsed in the manner as prescribed in Paragraph 9.18 of this Chapter prior to the invitation of tenders. If SCC Clause A10 at Appendix 5.36 is adopted in relation to a particular project, the SCT at Appendix 5.37 should be included in the tender documents in respect of that project.

The current requirement for legal vetting of draft tender documents by LAD(Works)/DEVB for all works contracts of estimated value in excess of $500M is also applicable to mega project contracts. Please refer to Paragraph 1.5.1 of this Chapter for details.

9.41 SECTIONS SUBJECT TO EXCISION

(Ref.: SDEV's memo ref. (027N7-01-2) in DEVB(W) 510/10/01 dated 29.6.2010, SDEV's memo ref. (02B2H-01-5) in DEVB(W) 510/10/01 dated 9.3.2011 and SDEV's memo ref. (02BL7-01-2) in DEVB(W) 510/10/01 dated 12.4.2011)

'Sections Subject to Excision' is required on occasions where it is necessary to let contracts prior to confirmation that all the works can proceed. For example, where there are land clearance problems, or where a decision has yet to be reached on the inclusion of a footbridge in a roadworks contract. In such circumstances it is obviously beneficial to have these works included as part of the competitive tender, but also equally important to make it clear to the tenderers that these works may not be required.

Where work is to be included in a tender, but the implementation of that work has not been decided upon by the Employer, then such work may be incorporated as a Section Subject to Excision. Consequently, the items for such works should comprise a separate bill within the BQ, which should be clearly designated 'Section Subject to Excision', and the standard Special Condition of Contract for 'Section Subject to Excision' as given in the Library of standard SCC under SDEV's memo ref. DEVB(W) 546/17/02 dated 9.2.2011 shall be included in the Contract.

It is obvious that the decision to proceed or not with the Section Subject to Excision shall rest with the Employer. The power of the Engineer to issue instruction to proceed with the works in a Section Subject to Excision is subject to a constraint in the sense that the Engineer is required to act in accordance with the direction of the Employer. In accordance with GCC Clause 2(1)(b), this constraint shall be set out in the Appendix to the Form of Tender.

Also the following information must be included in the Appendix to the Form of Tender:

(a) the period of time within which the Engineer may instruct the Contractor to proceed with the work contained within the Section Subject to Excision. This period commences from the date for commencement notified by the Engineer in

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accordance with Clause 47 of the General Conditions of Contract for Civil Engineering Works.

(b) the time for completion of the Section Subject to Excision,

(c) the liquidated damages for the Section Subject to Excision; and

(d) the aforesaid constraint on the Engineer's power.

As the Contractor must allow for the Section Subject to Excision in his programme, it must be taken into account when assessing the time for completion stated in the Contract.

However, if the work contained in the 'Sections Subject to Excision' is not ordered, any preliminaries and overhead costs attributable to those Sections which may be covered elsewhere in the Contract would still be payable to the Contractor. The effect of including 'Sections Subject to Excision' and the probability of its incorporation in the Works should therefore be carefully considered before it is included in the tender documents. Preliminary items in respect of the 'Sections Subject to Excision', where these can be identified, should be included in a separate bill of the BQ designated 'Section Subject to Excision'.

The inclusion of 'Sections Subject to Excision' in tender documents requires the approval of an officer at D2 rank or above.

If by the time a tender recommendation is made, the Government has decided not to proceed with the work contained within the Section(s) Subject to Excision, then the tender price for such section(s) shall be discarded and the net tender value shall be taken for the purposes of tender evaluation.

Departments should make the above policy known to the tenderers in the form of a note for tenderers for contracts which contain Section(s) Subject to Excision. SDEV promulgated via his memo ref. (02BL7-01-2) in DEVB(W) 510/10/01 dated 12.4.2011 an updated NTT(l) as shown in Appendix 5.41, which should be included in the Notes to Tenderers when SCC on Section Subject to Excision is incorporated in the tender documents.

In addition to civil engineering contracts, the provision for Section Subject to Excision has also been adopted in the "Administrative Procedures for use with the Government of the Hong Kong Special Administrative Region General Conditions of Contract for Design and Build Contracts, 1999 Edition". In this regard, the requirements mentioned in the above shall also apply to such Design & Build contracts. The project officers and where applicable the project consultants should include the constraint clause in the Appendix to Form of Tender for all works tenders in which a Section Subject to Excision is included.

SDEV promulgated via his memo ref. (02B2H-01-5) in DEVB(W) 510/10/01 dated 9.3.2011 two sets of SCC on the provision for Section Subject to Excision; one set for use with GCC for Civil Engineering Works 1999 Edition is given in Appendix 5.39, and the other set for use with GCC for Design and Build Contracts 1999 Edition is given in Appendix 5.40.

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9.42 ANTI-COLLUSION

(Ref.: SDEV's memo ref. (02B6J-01-6) in DEVB(W) 510/10/01 dated 24.3.2011)

To strengthen the collusion prevention in the letting of works contracts, DEVB has reviewed the GCTs for anti-collusion and decided to amend the relevant GCTs as well as introduce a new NTT.

Under the revised anti-collusion clauses, the tenderer shall submit with his tender a duly signed and witnessed letter to signify his understanding of the anti-collusion clauses. The above submission should not be included as an essential requirement under GCT 21.

SDEV promulgated via his memo ref. (02B6J-01-6) in DEVB(W) 510/10/01 dated 24.3.2011 a new NTT as shown in Appendix 5.42 and three revised GCTS on the provision for anti-collusion; GCT 1 on Definitions, GCT 25 on Submission of Further Information and GCT 26 on Anti-collusion as shown in Appendices 5.43, 5.44 and 5.45 respectively.

9.43 FINANCIAL RELIEF MEASURES TO ASSIST THE CONSTRUCTION INDUSTRY

(Ref.: SDEV's memo ref. (02APB-01-8) in DEVB(W) 510/83/08 dated 8.3.2011, SDEV's memo ref. () in DEVB(W) 510/83/08 dated 20.7.2012 and SDEV's memos ref. ( ) in DEVB(W) 510/33/02 dated 14.2.2020, 5.6.2020 and 5.3.2021)

In the immediate aftermath of the financial tsunami in late 2008, a package of interim financial relief measures were implemented via the promulgation of SDEV's memo ref. (01WLR-01-7) in DEVB(W) 510/83/08 dated 8.12.2008 with a view to relieving contractors, especially small and medium-sized contractors, of the cash flow difficulties they encountered at that time. Originally intended for one year, these interim measures were subsequently rolled forward to 2010 via SDEV's memo ref. (025QN-01-3) in DEVB(W) 510/83/08 dated 4.3.2010.

A review of these interim measures was completed. It was decided to adopt these interim measures (together with some additional ones) as standing policies in public works contracts with immediate effect. Details are stated in paragraphs 9.43.1, 9.43.2 and 9.43.3.

9.43.1 Interim Payment

(a) Interim payment should be instituted in all new public works contracts and existing public works contracts, which do not contain interim payment provision, including the quotation contracts of value less than $4 million. As the contracts without interim payment provision are in general small works contracts with different nature, works departments should prepare appropriate interim payment provisions specific to the contracts for incorporation; and

(b) In order to further enhance cash flow in major public works contracts, interim payments in respect of major off-site pre-fabrication works should be made as a standard practice, subject to the relevant precedent conditions including among others the maintenance of an effective bond to cover the pre-fabrication works. In this respect, the SCC in Appendix 5.46 shall be adopted for new public works contracts involving major off-site pre-fabrication works. The guidelines for adoption of the SCC in public works contract are attached at Appendix 5.55.

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9.43.2 Retention Money

For capital works contracts, the prevailing arrangement of releasing part of retention money after lapse of half of the maintenance period should be enhanced. It was decided to release retention money in stages in existing and new contracts viz. 50% of the retention money upon substantial completion of the works and the remaining 50% at expiry of the maintenance periods. Should there be minor outstanding works and defect rectification works remained, their estimated values at the material time should be taken into consideration in determining the amount of retention money to be released, making sure that these estimated values of works will be sufficiently covered by the remaining retention money after the first release of retention money upon substantial completion of the works and by retaining equivalent amount upon the second release at the expiry of the maintenance period until all minor outstanding works and defect rectification works are completed.

The enhanced arrangement is to be applied to existing capital works contracts, of which completion certificates of the Works are yet to be issued and supplementary agreements for releasing parts of retention money as promulgated in SDEV's memo ref (01WPS-01-4) in DEVB(W) 510/83/08 dated 11.12.2008 are yet to be signed. Please make reference to the samples in Annexes B1 and B2 attached to SDEV's memo ref. (02APB-01-8) in DEVB(W) 510/83/08 dated 8.3.2011 for preparing the supplementary agreements of the existing contracts. As regards new capital works contracts, please adopt the SCC in Appendix 5.47 for preparing tender documents.

9.43.3 Payment Level for Term Contracts

It was decided to raise the payment levels to not less than 90% of the estimated value of works upon completion of the works orders in existing and new term contracts.

For existing term contracts, please make reference to the samples of supplementary agreements in Annex A3 and A4 attached to SDEV's memo ref. (01WPS-01-4) in DEVB(W) 510/83/08 dated 11.12.2008 for raising the payment level. For new term contracts adopting General Conditions of Contract for Term Contracts for Building Works, please adopt the SCC in Annex D attached to SDEV's memo ref. (02APB-01-8) in DEVB(W) 510/83/08 dated 8.3.2011. For new term contracts adopting other General Conditions of Contract, please specify the payment level to not less than 90% of the estimated value of works in the Appendix to the Form of Tender.

9.43.4 Advance Payment under Capital Works Contracts

To assist the construction industry in the midst of the economic downturn in 2019/2020, an interim measure as promulgated in SDEV's memo ref () in DEVB(W) 510/33/02 dated 14.2.2020 is introduced on "advance payment" mechanism in capital works contracts adopting selective tendering, with a contract period of not less than 12 months. As stated in SDEV's memo ref () in DEVB(W) 510/33/02 dated 5.3.2021 and 10.3.2022, this interim "advance payment" measure shall apply to contracts for which tenders invited on or after 1.3.2020 until further notice.

The relevant provisions for contracts adopting GCC and NEC3 are set out at Appendix 5.47A and Appendix 5.47B respectively. For contracts adopting NEC4 form, the relevant provisions are incorporated in relevant NEC standard provisions.

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9.43.5 Advance Payment under Term Contracts

SDEV's memos ref () in DEVB(W) 510/33/02 dated 5.6.2020 introduced "advance payment" mechanism in term contracts adopting selective tendering. As stated in SDEV's memos ref () in DEVB(W) 510/33/02 dated 5.3.2021 and 10.3.2022, this interim "advance payment" measure shall apply to term contracts for which tenders are invited on or after 20.4.2020 until further notice.

The relevant provisions for term contracts adopting GCC and NEC are set out at Appendix 5.47C and Appendix 5.47D respectively. For contracts adopting NEC4 form, the relevant provisions are incorporated in relevant NEC standard provisions.

The memo dated 10.3.2022 also announced a new "advance payment" arrangement for new term contracts with tenders to be invited on or after 31.3.2022. Under the new arrangement, the amount of advance payment will be calculated based on the Estimated Average Annual Expenditure, instead of the estimated value of works under eligible Works Orders/Task Orders, while the Overall Cap of HK$10M for the advance payment will remain the same. The relevant tender and contract provisions for contracts adopting GCC and NEC are set out at Appendix 5.47E and Appendix 5.47F respectively. Procuring departments may fine-tune such tender and contract provisions to suit their particular circumstances, and seek advice/ clearance by LAD(W) in case of doubt.

In case officers responsible for administering term contracts consider it more appropriate to adopt the old arrangement as promulgated via SDEV's memo of 5.6.2020 or not appropriate to implement any of the "advance payment" arrangement under individual term contracts, approval from an officer at D2 rank or above shall be obtained, with written justifications kept for record purpose. For tenders already invited/ to be invited before 31.03.2022, procuring departments may consider adopting this new arrangement if found feasible.

9.43.6 Interim Relief Measure to Combat the 5th Wave of the COVID-19 Pandemic – Special Payment for Imported Items for Capital Works Contracts (Ref.: SDEV's memos ref. DEVB(W) 510/33/02 dated 8.7.2022 and 22.11.2023)

Although the 5th wave of the COVID-19 pandemic is gradually subsiding from its peak, the local business environment remains highly challenging. In particular, the construction industry is still experiencing uncertainties and delays in delivery of construction materials/products/plants/equipment/goods (hereinafter referred to as "materials and plant"). As a result, contractors are likely required to place orders of materials and plant well in advance with deliveries to be effected earlier than usual. At the same time, contractors may have to arrange local off-site storage for such materials and plant, especially for building contracts where the works sites are usually cramped.

To help public works contractors better cope with the above difficulties, policy approval is given for a special payment for materials and plant which are delivered to Hong Kong and properly stored off-site (hereinafter referred to as "Special Payment for Imported Items") under capital works contracts.

To enable proper implementation of the Special Payment for Imported Items under capital works contracts, project teams shall adopt the Special Payment for Imported Items mechanism by incorporating the following relevant provisions in the tender documents.

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Appendix 5.47L: Special Conditions of Contract for GCC
Appendix 5.47M: Amendments to NEC4 Clauses and *additional conditions of contract* for NEC4 ECC Option A and Option B contracts

This interim relief measure is effective until further notice.

9.43.7 Interim Relief Measure to Combat the 5th Wave of the COVID-19 Pandemic – Special Payment for Imported Items for Term Contracts
(Ref.: SDEV's memos ref. DEVB(W) 510/33/02 dated 28.7.2022 and 22.11.2023)

Similar to the arrangement in Paragraph 9.43.6 of this Chapter for the Special Payment for Imported Items under term contracts, project teams shall adopt the Special Payment for Imported Items mechanism by incorporating the following relevant provisions in the tender documents.

Appendix 5.47Q: Special Conditions of Contract for GCC Term Contracts
Appendix 5.47R: Amendments to NEC4 Clauses and *additional conditions of contract* for NEC4 TSC Option A

This interim relief measure is effective until further notice.

9.43.8 Relief Measures to Assist the Construction Industry – More Frequent Interim Payments and Milestone Payments
(Ref.: SDEV's memos Amd No. 7/2025 **ref. () in DEVBWB WP4S-021-004-002 dated 10.10.2024 and 18.7.2025** Amd No. 7/2025**)**

Since the construction sector has indicated that many contractors experienced difficulties in running their business in the past year or so due to financial hardship or cash flow problems, caused mainly by the shrinkage in volume of private construction works, SDEV's memo Amd No. 7/2025 **ref () in DEVBWB WP4S-021-004-002 dated 10.10.2024 introduced "partial interim payment" arrangement in existing interim payment mechanism of capital works contracts and more frequent milestones or more activities (for major items of works) in new capital works contracts adopting milestone payments or using activity schedules.**

As stated in SDEV's memo ref () in DEVBWB WP4S-021-004-002 dated 18.7.2025, "partial interim payment" arrangement shall apply to all new capital works contracts until further notice. The relevant contract provision for NEC ECC Hong Kong Edition are incorporated in relevant NEC standard provisions. Amd No. 7/2025

In case project teams consider it not appropriate to implement the "partial interim payment" arrangement under their new Amd No. 7/2025 **works contracts, approval from an officer at D2 rank or above should be obtained.** Amd No. 7/2025

Furthermore, SDEV's memo ref () in DEVBWB WP4S-021-004-002 dated 10.10.2024 introduced more frequent milestones or more activities (for major items of works) in new capital works contracts adopting milestone payments or using activity schedules, where practicable, to shorten the payment intervals to contractors. As stated in SDEV's memo ref () in DEVBWB WP4S-021-004-002 dated 18.7.2025, this interim measure shall be extended until further notice. Amd No. 7/2025

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9.44 EMPLOYER'S POWER TO REDUCE THE AMOUNT OF THE CONTINGENCY SUM PRIOR TO AWARD OF CONTRACT (Ref.: SDEV's memo ref. DEVB(W) 546/70/01 dated 8.8.2011)

SDEV's memo ref. DEVB(W) 546/70/01 dated 8.8.2011 promulgates a new tender provision to provide the Employer with the power to unilaterally reduce the amount of the Contingency Sum stated in the tender documents prior to award of a works contract.

There were submissions to the Central Tender Board where the original tender sums of the recommended tenders had exceeded the Approved Project Estimates (APE). In each of these cases, the procuring department discovered an over-estimation of the amount of Contingency Sum allowed in the contract. Since there was no tender provision for the Employer to unilaterally reduce this amount, the procuring department resorted to conduct tender negotiation with the recommended tenderer after obtaining approval from the relevant authority to have the amount reduced. This then enabled the procuring department to reduce the contract sum below the APE and award the contract without the need to apply for additional funding.

Although no complication has occurred in the tender negotiations mentioned above, such a risk does exist since the tenderer may not accept the proposed reduction in the amount of the Contingency Sum which may open up an opportunity for the tenderer to retract his offer. In any event, tender negotiation will incur additional time and resources. To avoid the risk of tender complication and streamline the process under this circumstance, a new tender provision is introduced for (a) works contracts other than design and build (Non-D&B) contracts and (b) design and build (D&B) contracts, to provide the Employer with the aforesaid power.

(a) Non-D&B Contracts

The new tender provision is provided in the attached Special Conditions of Tender (SCT), special Form of Tender and Notes to Tenderers at Appendix 5.50. It should be noted that the inclusion of this provision is subject to an officer at D2 rank or above in the Project Office/Department being satisfied that the conditions given in the 'Remarks/Guidelines' provided alongside the SCT clause are met. The exercise of the power to reduce the amount of the Contingency Sum is also subject to meeting the requirements stated therein including the approval of the Vote Controller.

The relevant parts of the Project Administration Handbook (i.e. Paragraph 7.2 of PAH Chapter 6 on "Checks prior to accepting tender", Appendix 5.5 on "Format of the Grand Summary to the Bills of Quantities" and Appendix 6.17 on "Sample Letter of Acceptance to Successful Tenderer") are revised accordingly. A sample letter for notifying the tenderer, whose tender is going to be recommended for contract award, of the reduction in the amount of the Contingency Sum, is also attached at Appendix 5.51.

(b) D&B Contracts

While the use of the new tender provision is discretionary for non-D&B contracts, it is mandatory for D&B contracts to include such a provision in view of the higher uncertainty in estimating the Contingency Sum in the absence of

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detailed design at the tendering stage. The new tender provision for D&B contracts is provided in the attached General Conditions of Tender (GCT) at Appendix 5.52. Departments shall make reference to the samples provided for non-D&B contracts above in preparing the Form of Tender, Notes to Tenderers, letter notifying the reduction in the amount of the Contingency Sum and the letter of acceptance to the successful tenderer for D&B contracts.

Departments must observe that the original tender sums of the tenderers (after being corrected for arithmetic errors, if any) shall be used in determining the price ranking or overall scores/marks in accordance with the prescribed tender evaluation criteria. The reduction in the amount of the Contingency Sum shall not affect the price ranking or overall scores/marks although the recommended contract sum will be reduced accordingly by the same amount.

Departments should be aware that the reduction in the amount of the Contingency Sum shall not affect any Provisional Sum, including that for reimbursement of Mandatory Provident Fund (MPF) as illustrated in the attached Appendix 5.5 of PAH. The reduction in the amount of the Contingency Sum shall also not affect the determination of liquidated damages (LD) since the Contingency Sum should have already been excluded from the contract sum in the LD computation according to ETWB TCW No. 4/2003. Departments shall check the LD formula(s) specified in the tender documents to ensure that the LD amount will not be affected by a reduction in the amount of the Contingency Sum.

Where the power to unilaterally reduce the amount of the Contingency Sum has been exercised, it should be clearly stated in the tender report. It should be confirmed in the tender report that the Vote Controller has approved the reduction in the amount of the Contingency Sum and the recommended tenderer has acknowledged the reduction of the Contingency Sum and the Tender Sum by the same amount.

Notwithstanding the availability of these new tender provisions, departments are reminded of their responsibility to prepare proper project estimates and pre-tender estimates as accurate as possible. Departments shall under no circumstances rely on these tender provisions to avoid seeking additional funding as a result of underestimation of the contract price. Prior to exercising the power, departments shall check that there will be sufficient remaining contingency sum to cover the contract and the project as a whole. Otherwise, departments shall resort to seeking additional funding prior to award of the contract.

The above new tender measure is applicable to all works contracts for which tenders are invited on or after 1 September 2011.

9.45 PROVISION OF UNIFORM FOR PERSONNEL WORKING ON PUBLIC WORKS SITES
(Ref.: SDEV's memo ref. DEVB(Trg) 133/3 (10) dated 23.1.2017)

9.45.1 Purpose

SDEV's memo ref. DEVB(Trg) 133/3 (10) dated 23.1.2017 sets out the policy and implementation details related to the provision of uniform to personnel working on public works sites.

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9.45.2 Policy

As one of the measures to enhance the image of the construction industry, SDEV's memo ref. DEVB(Trg) 133/3(7) dated 11.5.2011 was issued to introduce the policy regarding the provision of uniform to personnel working on public works sites.

After implementation, requests were received to enhance the policy with a view to simplifying administrative efforts, strengthening cost control, and promoting the use of anti-heat stress uniform which has been adopted by the Construction Industry Council as a standard design of uniform for workers.

To address the above issues, the following enhancements are made vide SDEV's memo ref. DEVB(Trg) 133/3 (10) dated 23.1.2017:

(a) To only require contractors ensuring non-casual workers (who are expected to work on the Site more than 7 days) involved in site works to wear site uniform when they are on site;

(b) To reduce the uniform items to "polo shirt and trousers" for capital works contracts, and "polo shirt or vest" for term maintenance contracts;

(c) To simplify the design requirement of polo shirt and trousers by adopting the design of anti-heat stress uniform or similar;

(d) To omit pre-priced item and other requirements related to payment measurement; and

(e) To simplify other administrative requirements.

All public works contracts, including Design and Build contracts and term contracts, with a construction period of not less than 12 months, the tender invitations of which are issued on or after 1 February 2017 shall implement the enhancements through the incorporation of relevant provisions into the tender documents. Similarly, the enhancements shall apply to Consultancy Agreements covering works contract(s) with estimated construction period of not less than 12 months and for which the invitations of technical and fee proposals for the Consultancy Agreements are issued on or after 1 February 2017. As for those public works contracts which have already obtained exemption on site uniform requirements, and the date of tender invitation of which is on or after 1 February 2017, the subject D2 or above officer of the relevant works department may decide following the exempted arrangement or the enhancements. The contract provisions to be incorporated into the public works contracts are available in SDEV's memo ref. DEVB(Trg) 133/3(10) dated 23.1.2017. The soft copies of the SDEV's memos and the Annexes are available at DEVB's Works Group Intranet Portal.

9.45.3 Implementation Guidelines

Guidelines have been prepared to facilitate project officers to implement the uniform initiative and are given in Paragraph 21.26 of PAH Chapter 7.

9.46 IMPLEMENTATION OF MANDATORY CONSTRUCTION INDUSTRY COLLABORATIVE TRAINING SCHEMES IN PUBLIC WORKS CONTRACTS

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Please refer to the policy and relevant contract provisions as promulgated in DEVB TCW No. 6/2019 regarding the implementation of mandatory construction industry collaborative training schemes in public works contracts.

9.47 IMPLEMENTATION IN PUBLIC WORKS CONTRACTS OF THE MANDATORY EMPLOYMENT OF GRADUATES OF THE ENHANCED CONSTRUCTION MANPOWER TRAINING SCHEME (ECMTS) (Ref.: SDEV's memo ref. DEVB(Trg) 133/4 (9) dated 7.12.2012)

9.47.1 Purpose

SDEV's memo ref. DEVB(Trg) 133/4 (9) dated 7.12.2012 promulgates the implementation of the mandatory employment of Enhanced Construction Manpower Training Scheme (ECMTS) Graduates in public works contracts to help enhance the attractiveness of the scheme and to provide better opportunities for ECMTS Graduates to further strengthen their skills.

9.47.2 Background

The Construction Industry Council (CIC) provides placement services to ECMTS Graduates to help them secure employment in the construction industry.

As a long-term measures to provide better employment opportunities for ECMTS Graduates and to maintain the attractiveness of the ECMTS in attracting new blood to join the industry, the Works Policies Coordination Committee endorsed at its meeting held on 9 July 2012 the proposal to implement the mandatory of ECMTS Graduates in public works contracts.

9.47.3 Implementation

All B&C capital works contracts and term contracts (including Design and Build contracts) with an estimated contract sum or estimated total expenditure of over $200 million and with a construction period of 2 years or longer shall incorporate the SCC at Appendix 1 to SDEV's memo ref. DEVB(Trg) 133/4 (9) dated 7.12.2012 for the mandatory employment of ECMTS Graduates. The soft copy of the Appendix is available at DEVB's Works Group Intranet Portal.

9.48 INDEPENDENT SAFETY AUDIT SCHEME FOR MEGA CAPITAL WORKS CONTRACTS OR CAPITAL WORKS CONTRACTS INVOLVING UNCONVENTIONAL CONSTRUCTION METHOD (Ref.: SDEV's memo ref. (02SR7-01-1) in DEVB(W) 516/83/02 dated 30.10.2015)

The requirement of the Independent Safety Audit Scheme (ISAS) using the safety auditing system version 1.3 are to be incorporated into the tender documents of mega capital works contracts (estimated contract sums exceeding $1,000 million) or capital works contracts involving unconventional construction method (upon confirmation from the Departmental Safety & Environmental Advisors, such as working in compressed air at pressure exceeding 3.45 bars) even if the estimated contract sum is not exceeding $1,000 million, and for which tenders are to be invited on or after 1 January 2016 (maintenance contracts are excluded).

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If incorporation of the ISAS is considered not warranted despite meeting the above criteria, the project office concerned shall seek the approval of an officer at D2 level or above for exemption.

The Special Conditions of Contract (replacing those in the library SCC in the Works Group Intranet Portal), Particular Specifications and Guidance Notes on the Administration of the ISAS respectively, as revised from those under WBTC No. 32/99, are provided under Appendices B, C and E of SDEV's memo ref. (02SR7-01-1) in DEVB(W) 516/83/02 dated 30.10.2015 for incorporation. The soft copies of the SDEV's memo and the Appendices are available at DEVB's Works Group Intranet Portal.

9.49 EMISSIONS CONTROL OF NON-ROAD MOBILE MACHINERY IN CAPITAL WORKS CONTRACTS OF PUBLIC WORKS (Ref.: DEVB TCW No. 1/2015)

DEVB TCW No. 1/2015 promulgates the requirements for the use of non-road mobile machinery ("NRMM") approved under the Air Pollution Control (Non-road Mobile Machinery) (Emission) Regulation ("the Regulation") in new capital works contracts of public works including design and build contracts, in addition to the statutory requirements of the Regulation.

To improve the air quality of Hong Kong, the Secretary for the Environment has, after consultation with the Advisory Council on the Environment, made the Regulation under the Air Pollution Control Ordinance (Cap. 311) to mandate that NRMM (with the exception of exempted NRMM) to be sold or leased in Hong Kong or used in specified activities (including the use of NRMM in construction sites) must meet a set of emission standards and must be NRMM approved by the Authority under the Regulation ("approved NRMM"). Approved NRMM must be affixed with an approval label for identification.

The Authority under the Regulation may, on application, exempt certain NRMM and existing NRMM from the new emission-control requirements. Exempted NRMM must be affixed with an exemption label for identification.

Approved NRMM are more environmentally friendly as compared to exempted NRMM. As such, notwithstanding the permitted use of exempted NRMM under the Regulation, DEVB requires the use of more approved NRMM in the execution of public works.

In this connection, Appendix A of DEVB TCW No. 1/2015 sets out an implementation plan to phase out the use of exempted NRMM for four types of NRMM, namely generators, air compressors, excavators and crawler cranes in new capital works contracts of public works including design and build contracts, with an estimated contract value exceeding $200 million and tenders invited on or after 1 June 2015. The following provisions shall be incorporated in tender documents of such contracts:

(a) SCC – Use of non-road mobile machinery approved under the Air Pollution Control (Non-road Mobile Machinery) (Emission) Regulation in Appendix B of DEVB TCW No. 1/2015; and

(b) Note to Tenderer in paragraph 9(B) of DEVB TCW No. 1/2015.

9.50 ENHANCING CLEANSING MEASURES FOR CONCRETE DELIVERY VEHICLES AT CONSTRUCTION SITES

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(Ref.: SDEV's memo ref. in DEVB(W) 825/83/04 dated 7.4.2020)

At present, vehicles, including concrete delivery vehicles leaving construction sites are subject to the following cleansing requirements as stipulated in the Air Pollution Control (Construction Dust) Regulation (CDR) (Chapter 311R):

(a) the vehicle shall be washed by using high pressure water jets in a facility installed at the exit of the construction site (from CDR Part III — General Control Requirements for Site Boundary & Entrance); and

(b) the vehicle shall be washed to remove any dusty materials from its body and wheels (from CDR Part IV – Control Requirements for Use of Vehicles)

To further minimise dust emission and reduce the impact on the areas outside the concrete batching plants (CBPs), concrete delivery vehicles of the CBPs in concerned areas need to be subject to enhanced vehicle cleansing when they leave these CBPs and at the construction sites before their return journey to these CBPs.

As promulgated in SDEV's memo ref. DEVB(W) 825/83/04 dated 7.4.2020, enhanced cleansing requirements for concrete delivery vehicles, which deliver ready-mix concrete supplied by CBPs, before they leave construction sites, shall be incorporated into relevant tender documents for new government works contracts as set out in Appendix 5.58.

9.51 EXTENSION OF "VACCINE BUBBLE" ARRANGEMENT TO PUBLIC WORKS CONTRACTS AND CONSULTANCIES

(Ref.: SDEV`s memo ref. DEVB(W) 511/70/01 dated 24.1.2022)

FSTB has promulgated via FSTB Circular Memorandum No. 2/2022 that the "vaccine bubble" arrangement for government employees shall be extended to cover employees of contractors and consultants of public works contracts/consultancies, who have to work in indoor government premises or enter the same for work-related purpose. Such arrangement shall also be applicable to employees of agents, sub-contractors or sub-consultants of the public works contractors and consultants.

The above "vaccine bubble" arrangement shall be applicable to public works contracts and consultancies which are awarded on or after 16.2.2022, regardless of the procurement means (e.g. quotations, tender, consultant selection procedures or direct engagement). Works departments should work out with the department(s) responsible for building management of the relevant government premises on the details of implementation of the "vaccine bubble" arrangement prior to the commencement of the contracts or agreements.

In connection with the above, the following contract conditions shall be incorporated for the preparation of tender documents by project offices:

Works Contracts
(i) SCC for GCC contract (see Appendix 5.59A)
(ii) ACC for NEC3 contract (see Appendix 5.59B)
(iii) ACC for NEC4 contract (see Appendix 5.59C)

Consultancy
(iv) SCE for consultancy adopting GCE (see Appendix 5.59D)
(v) ACC for NEC3 PSC consultancy (see Appendix 5.59E)

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For tenders/quotations under invitation, addendum should be issued to reflect the "vaccine bubble" requirement if feasible. For tenders/quotations of which the invitation period has ended but the contract has not yet been awarded, project offices should conduct negotiation with the contractor/consultant concerned to effect the "vaccine bubble" requirement. Pursuant to paragraph 6 of FSTBCM No. 2/2022, special blanket approval has been given to facilitate project offices to conduct the said negotiations expeditiously in accordance with Stores and Procurement Regulations 385. If there is an increase in tender/quotation price as a result of the negotiation, project offices should ensure that the extra expenditures incurred are reasonable, represent value for money and are justified on public interest grounds.

9.52 IMPLEMENTATION OF "VACCINE PASS" ARRANGEMENT AT PUBLIC WORKS SITES
(Ref.: SDEV's memo ref. DEVB(W) 511/70/01 dated 20.5.2022)

Pursuant to SDEV's memo ref. DEVB(W) 511/70/01 dated 20.05.2022, all public works sites shall adopt the "Vaccine Pass" arrangement, which applies to all persons working in or entering the sites, including employees of contractors and consultants as well as those of their agents, subcontractors or sub-consultants.

In connection with the above, the following standard contract provisions shall be incorporated for the "Vaccine Pass" arrangement into tender/invitation documents of new works contracts/consultancies:

For Works Contracts
(i) SCC for GCC contract (see Appendix 5.60A)
(ii) ACC for NEC3 contract (see Appendix 5.60B)
(iii) ACC for NEC4 contract (see Appendix 5.60C)

For Consultancies
(iv) SCE for consultancy adopting GCE (see Appendix 5.60D)
(v) ACC for NEC3 PSC consultancy (see Appendix 5.60E)

The above contract provisions shall apply to works contracts/consultancies with construction phase work, for which tenders/Technical & Fee (T&F) proposals are to be invited on or after 20.6.2022. For tenders or T&F proposals already invited or to be invited before the above date, the procuring department may incorporate the above contract provisions into the tender documents where practicable.

9.53 CONTRACT PROVISION FOR PROHIBITION OF IMPOSING ADMINISTRATIVE CHARGES FOR REPORTING OF SITE ACCIDENTS AND ELIMINATION OF UNDER-REPORTING OF SITE ACCIDENTS
(Ref.: SDEV's memo ref. (03E8T) in DEVB(W) 516/80/03 dated 3.8.2022)

SDEV's memo ref. (03E8T) in DEVB(W)516/80/03 dated 3.8.2022 promulgates a new set of contract provisions for incorporation in public works contracts and their subcontracts at all tiers for prohibition of imposing administrative charges for reporting of site accidents and processing employees' compensation claims as well as imposing requirements on reporting all site accidents by contractors. The contract provisions for incorporation into all public works contracts and their associated subcontracts are at Appendix 5.65.

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The Contractor shall devise measures and incorporate the measures in the Subcontractor Management Plan for (a) monitoring the performance of the subcontractor in complying with the requirements in the Contract regarding reporting site accidents; and (b) ensuring all subcontractors, irrespective of tiers, to incorporate the subcontract conditions mutatis mutandis as required in the provisions at Appendix 5.65 into all subcontracts. The revised Guidelines on Scope and Contents of Subcontractor Management Plan to replace existing Appendix to Special Conditions of Contract/additional conditions of contract on Subcontractor Management Plan promulgated under DEVB TC(W) No. 6/2021 are at Appendices 5.6A, 5.6C and 5.6E respectively.

This new set of contract provisions as set out in Appendices 5.6A, 5.6C, 5.6E and 5.65 shall be incorporated into all public works contracts (including capital works contracts and term contracts) of which the tenders are to be invited on or after 26 August 2022.

9.54 TENDER / CONTRACT PROVISION FOR SAFEGUARDING NATIONAL SECURITY IN PUBLIC WORKS CONTRACTS AND CONSULTANCIES (Ref.: SDEV's memo ref. DEVB(W) 510/30/01 dated 31.08.2022)

As promulgated in SDEV's memo ref. DEVB(W) 510/30/01 dated 31 August 2022, the SPRs have been updated on 29 August 2022 to include provisions to safeguard national security interests by clearly specifying that Controlling Officers should take into account their duty to safeguard national security. As far as government procurement is concerned, such safeguards should also be applicable to every stage of the entire procurement process. Please refer to the requirements in the latest version of SPRs available on the CCGO Portal (http://fb.host.ccgo.hksarg/spr/spr.htm).

To cater for the updated SPRs and to assist relevant project officers in making the confirmation in tender report as required in the updated SPRs, the standard tender / contract provisions have been prepared for incorporation into tender documents of works contracts. The above-mentioned SDEV's memo and relevant tender / contract provisions can be downloaded from Works Group Intranet Portal.

The above standard provisions shall apply to works contracts for which invitation of tenders / prequalification submissions have been made but not yet closed, or are to be made on or after 31 August 2022. For the former case, procuring B/Ds should incorporate the above standard provisions into their works contracts through tender addendum.

9.55 PRE-BID ARRANGEMENT UNDER NEC ECC TARGET CONTRACT

The Inter-departmental Working Group on NEC Projects and contract advisors completed a review of the pre-bid arrangement under NEC ECC target contracts. The set of tender / contract provisions have been updated accordingly. Relevant tender / contract provisions can be downloaded from DEVB's webpage and Works Group Intranet Portal.

Project officers shall note the guidelines given in Section A4.6 of the Practice Notes for NEC – ECC for Public Works Projects in Hong Kong (PN) available on DEVB's webpage for adoption of pre-bid arrangement.

Project officers can make necessary amendments to the provisions to suit the specific circumstances of the projects. The procedure specified in Section A4.1.1.1 of the PN shall be followed. Project Offices may consult DEVB and/or LAD(Works)/DEVB for advice, if there is any doubt.

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Project officers shall consult contract advisors and/or LAD(Works)/DEVB before inviting a tenderer to submit further information or clarification in accordance with GCT 16 as given in SCT 18.

9.56 CONTRACT PROVISION FOR PROPOSAL ON INNOVATION AND TECHNOLOGY FOR PUBLIC WORKS CONTRACTS ADOPTING NEC FORM (Ref.: SDEV's memo ref. ( ) in DEVB(W) 506/30/07 dated 20.04.2023)

SDEV's memo ref. ( ) in DEVB(W) 506/30/07 dated 20.04.2023 promulgates a new set of *additional conditions of contract* (ACC) on Proposal on Innovation and Technology ("I&T Proposal") to promote the adoption of innovation and technology for enhancing site safety, site supervision efficiency or decarbonisation under public works contracts adopting NEC form.

For new public works contracts adopting NEC form, the following ACC shall be incorporated in the tender documents for the "I&T Proposal":

(i) ACC for NEC4 ECC (see Appendix 5.66A)[#]
(ii) ACC for NEC4 TSC (see Appendix 5.66B)

[#] This ACC is also incorporated into the NEC ECC HK Edition and become the secondary Option X30.

For ongoing public works contracts adopting NEC form, if project teams consider the implementation of the I&T Proposal mechanism has merits, a supplementary agreement will need to be executed between the contracting parties. Samples of the supplementary agreement for use in NEC3/4 ECC and NEC3/4 TSC are given in the following appendices.

(i) Supplementary agreement for NEC3 ECC (see Appendix 5.66C)
(ii) Supplementary agreement for NEC3 TSC (see Appendix 5.66D)
(iii) Supplementary agreement for NEC4 ECC (see Appendix 5.66E)
(iv) Supplementary agreement for NEC4 TSC (see Appendix 5.66F)

10. LUMP SUM CONTRACTS WITH FIRM BILLS OF QUANTITIES (Subsumed from WBTC Nos. 17/95 and 17/95A)

The Works Group Directors Meeting of September 1992 had decided that, wherever it is appropriate and feasible, civil engineering works contracts shall be tendered lump sum, rather than the usual remeasurement basis.

A lump sum contract means a contract where the quantities are substantially measured firm and the final price to be paid is ascertained by adding to/deducting from the contractor's accepted tender price the value of variations and other specified items (e.g. provisional quantities and contingency items).

It is also customary for contracts for plant and equipment and for small construction works to be awarded as lump sum based on specifications and drawings (rather than quantities). This is outside the scope of this Handbook.

Traditionally all civil engineering works are contracted on an estimated quantities and remeasurement basis. Certain individual items are measured and priced lump sum, but overwhelmingly the tendered rates are treated as a preliminary schedule of rates.

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Good financial management demands as much certainty as possible over the final cost of a contract. A "lump sum" approach will increase that certainty compared to total remeasurement.

With increasing pressure on the time of engineers both pre and post contract (e.g. the introduction of "Estimating using Risk Analysis" (ERA), more thorough programme planning and reporting, site safety management) it is necessary to find ways of saving time elsewhere in the project development process.

For remeasurement contracts under the civil engineering General Conditions of Contract the whole of the Works is measured more than once i.e. quantities are estimated at the pre-tender stage, followed by interim/final accurate measurement as work proceeds.

It is also noted that in many cases the design of the Works is well advanced at tender stage and that substantial parts of the Works are unlikely to change in quantity between tender and final account (unless there is an error in the measurement or a variation to the design is necessary).

In the circumstances described in above paragraph, time and effort can be saved if such contracts are awarded lump sum, thereby eliminating the need for total post contract remeasurement. It is recognised that more pre-tender effort is necessary to produce an advanced detailed design and accurate quantities for the tender, which requires tight management control to avoid delay in the start on site for contracts now in the detailed design stage.

Before any tender document is finalised, the project engineer shall aim to ensure that the design is sufficiently completed so that there is no necessity for substantial post contract design changes/additional information. Whenever a substantial part of the Works is unlikely to change, the contract shall be prepared and awarded on the basis of lump sum (plus/minus variation etc.).

For the purposes of the above paragraph, "substantial" is defined as when the value of the firm quantities exceeds 80% of the estimated value of the Works (not including Provisional, Contingency and Prime Cost Sums). Unless such circumstances exist, the tender shall not be called until the design work is so developed and finalised and the quantities that accurately represent that work are included in the Bills of Quantities. The quantities for those parts of the Works that cannot be fully designed shall be described as "provisional" and be remeasured in the usual way, as explained more fully in the attached Practice Note at Appendix 5.12.

Contracts that fit the above paragraph situation but have to be "fast-tracked" for policy reasons, or the nature of the works/site precludes the design from reaching the required standard, can revert to remeasurement. Authority to "fast-track" is held by the Head of Department, whose written agreement shall be sought. Where given, the agreement to "fast track" or any other reason for not using lump sum, shall be attached to the tender report.

The then Secretary for Works had directed that the responsibility for providing the quantities shall remain with Government. The quantities shall be measured in accordance with the appropriate SMM as required by GCC Clause 59, some requirements of which may not be appropriate for lump sum and shall be amended in accordance with Appendix 5.13.

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It is recognised that the change to quantities provided in accordance with the above paragraph has staffing implications and an appropriate lead-time for a substantial change-over to lump sum is necessary.

Whenever the lump sum approach is used, an additional Note to Tenderers (see Standard Note to Tenderers (g) in the Library of Notes to Tenderers) and a SCC (see standard SCC 21 promulgated under SDEV's memo ref. DEVB(W) 546/17/02 dated 9.2.2011) and the standard amendments to the SMM (at Appendix 5.13) shall be included in the Contract.

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11. MISCELLANEOUS

11.1 CONTRACT NUMBER

Contract numbers will be allocated by the headquarters of the office managing the Contract, notwithstanding that funds for the contract may be under the control of another office. For CEDD, each development office allocates its own contract numbers.

11.2 NOTES TO TENDERERS

Information that is relevant to the submission of tenders and contract award, but not considered to be part of the tender documents, should be provided in the form of Notes to Tenderers (NTT). There should be a remark on the NTT that they do not form part of the Contract. The NTT should be bound separately from the tender documents and issued to tenderers at the same time as tender documents.

Commonly used clauses to be included in the NTT for works contracts other than design and build contracts are given in the Library of Notes to Tenderers available on DEVB website. In addition, any NTT clauses promulgated by means of memos/respective technical circulars after promulgation of the Library shall be deemed to have been included in the Library. The project office may use the clauses promulgated selectively since not every item of the provisions is applicable to a particular contract. For the checklist for tenders deposited in the Government Secretariat Tender Box as referred to in NTT (d) of the Library (or Public Works Tender Box as the case may be), please refer to Appendix 5.8.

The Library of Notes to Tenderers has been uploaded to the DEVB website under standard contract documents in the publications section and it will be updated from time to time when new technical circulars are promulgated which may affect the library content (vide SDEV's memo ref. DEVB(W) 546/17/02 dated 20.3.2015).

For the latest version, please refer to the DEVB website:
http://www.devb.gov.hk/en/publications_and_press_releases/publications/standard_contract_documents/index.html

The clause for noting the tenderers that the Waste Disposal (Charges for Disposal of Construction Waste) Regulation has come into operation on 1 December 2005 is promulgated in Attachment 5 of SETW's memo ref. (00W45-01-9) in ETWB(W) 810/72/01 dated 21.11.2005, and should be included in NTT for tendering of contracts with value ≥ $1M. Where the value of a construction contract is less than $1M, the NTT promulgated in Annex B of SETW's memo ref. (00XFX-01-4) in ETWB(W) 810/72/01 dated 21.12.2005 should be included.

The clause for disclosing cashflow discount rates (CDR) for tender evaluation to tenderers is promulgated in SDEV's memo ref. () in DEVB(W) 545/17/01 dated 19.4.2010, and should be included in NTT for invitation of works tenders from 3 May 2010. The CDR applicable for tender evaluation shall be the rates prevailing as on the first date of tender invitation. Project Officers should refer to the latest memo from Secretary for Financial Services and the Treasury regarding cashflow discount rates for tender evaluation.

Amendments to the standard NTT clause on regulating actions on inappropriate conducts are promulgated in SDEV's memo ref. () in DEVB(W) 546/70/02 dated 10.2.2021.

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11.3 BINDING OF TENDER DOCUMENTS

The tender documents should be bound together into booklets with a front cover sheet showing the title and number of the contract and listing the documents contained therein. The documents will be in accordance with the list in Clause GCT 2 of the General Conditions of Tender All pages of the tender documents should be numbered.

Tender drawings may be bound together in a separate folder, in which case the folder should have a cover sheet listing the tender drawings (see also Chapter 6).

11.4 ELECTRONIC DISSEMINATION OF TENDER DOCUMENTS AND ELECTRONIC SUBMISSION OF TENDER RETURNS IN REMOVABLE MEDIA (Subsumed from ETWB TCW No. 11/2005 and SDEV's memo ref. ( ) in DEVB(W) 546/94/01 dated 19.12.2019)

11.4.1 Electronic Dissemination of Tender Documents

The electronic version of tender documents for works contracts should be disseminated in the form of "Electronic Dissemination Package" (EDP) in accordance with the manner and format contained in Appendix 6.34 of PAH Chapter 6.

The existing practice of issuing hard copies of tender documents should continue. Departments should only issue one set of hard copies free of charge to tenderers eligible to submit tenders. Additional hard copies should be charged at the rates prescribed from time to time by the relevant authorities.

The hard copy disseminated according to the above and the EDP of the tender documents are each a complete set of the tender documents, bearing equal status.

11.4.2 Electronic Submission of Tender Returns in Removable Media

Tender submission in electronic format is optional. The following note shall be included in the Notes for Tenderers:

> **"Tenderers may submit tenders in traditional hard copy format or partly in electronic format in accordance with Clause 4 of the General Conditions of Tender. All tenders, whether in hard copy format or partly in electronic format, will be evaluated on an equal basis.**
>
> **When submitting tenders in electronic format, tenderers are reminded to digitally sign their tenders in electronic format, which shall comply with the requirements set out in Appendix [&]##."**
>
> **Note: [&] Insert the appropriate number.**
> **## The requirements have been set out in Annex 4 to Appendix 6.34 of PAH Chapter 6.**

A tenderer shall prepare his tender submission in accordance with Clause 4 of the General Conditions of Tender in the Library of General Conditions of Tender. He may submit his tender return in either hard copy format or electronic files format as follows:

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	Type of Document in Tender Return	Format of submission allowed
(a)	Form of Tender	In hard copy format only.
(b)	Bills of Quantities or Schedule of Rates	In hard copy format provided by the Works Department, or in electronic format only if electronic files of Bills of Quantities or Schedule of Rates in Excel format are provided in the EDP.
(c)	Other documents	In hard copy format or in electronic format

A tenderer who wishes to submit his tender partly in electronic format shall prepare the electronic part of the tender return in accordance with Annex 4 to Appendix 6.34 of PAH Chapter 6.

All electronic files in the tender return shall be Digitally Signed by the tenderer. Organizational e-Cert used for the purpose of applying Digital Signatures shall be issued under the name of the tenderer and shall be valid as at the Tender Closing Date.

A tenderer shall package necessary hard copy and electronic files together in accordance with Clause 4 of the General Conditions of Tender and submit the complete tender return to the designated tender box as required by the Gazette Notification or the Letter of Invitation or the Tender Notice.

11.4.3 Electronic Tendering System for Works Contracts

In line with the Government's pledge to digitalise the public services, DEVB has developed Electronic Tendering System for works contracts (e-TS(WC)). DEVB has announced the full implementation of e-TS(WC) on 1 July 2024 for the procurement of works contract under the ambit of Central Tender Board and Public Works Tender Board. Starting from this date, all works tenders to be invited shall be handle via e-TS(WC), which includes, inter alia, issuing tender invitations as well as uploading and disseminating tender documents, supplementary information and addenda by procuring bureaux/ departments (B/Ds), downloading relevant documents and submitting electronic tenders by tenderers, handling tender correspondences or clarifications, submission of tender reports to Central Tender Board or Public Works Tender Board, and notification of award results.

As an interim measure to cope with any unforeseen situations concerning the integrity of files to be uploaded by tenderers, tenderers are permitted to have an option to submit their tenders in paper-based form in addition to their e-submissions via e-TS(WC). This interim arrangement will be applicable for works tenders to be invited from 1 July 2024 to 30 June 2025 (both dates inclusive). Afterwards, submission of tenders in paper-based form will not be allowed.

For works tenders involving special submission requirements, such as submission of physical models/pamphlets/project reference materials or tender proposals in special file formats (collectively referred to as "special tenders") or due to some special reasons, the use of e-TS(WC) for tender submission may not be found suitable. In this connection, procuring B/Ds are required to seek approval from DEVB for exemption with justification provided. It should however be noted that for works tenders so approved by DEVB for exempting from using e-TS(WC), the notices of tender invitation, uploading and disseminating tender documents, supplementary information and addenda by procuring B/Ds, downloading relevant

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documents by tenderers, handling tender correspondence or clarifications, submission of tender reports to the tender board and announcement of tender awards shall still be made via e-TS(WC).

Details of the tender provisions for deployment by procuring bureaux/ departments (B/Ds) when inviting tenders for public works contracts adopting e-TS(WC) are listed in DEVB website as shown in Paragraph 2.1 of PAH Chapter 5.

11.4.4 Preparation of Contract Documents

The following shall be included as part of the contract documents:

(a) The tender return including any electronic files therein; and

(b) All correspondence in relation to tender correction.

For unsuccessful tenders, the retention and destruction of electronic files shall be handled in the same manner as tenders submitted in hard copy format.

11.5 REPRESENTATIONS AT PRE-CONTRACT STAGE

Departments should always practise with great care when issuing information to any prospective contractor in the pre-contract stage. It should be borne in mind that such information, if issued, could amount to a pre-contract representation or even become a term of the contract thereby causing significant contractual implications if the information turns out to be incorrect [Note 1]. Whilst it is prudent to seek legal advice whenever doubts arise, project offices shall also follow the guidelines stated below: (see SDEV's memo ref. (01QXA-01-12) in DEVB(W) 546/70/02 dated 23.4.2008)

(a) Tendering stage

Departments shall set out detailed requirements of the contract in the tender documents. Departments may also spell out particular circumstances and/or constraints for the carrying out of the works in the tender documents with a view to clearly delineating the obligations of the contractor. Normally, all such information will eventually form part of the contract.

The principle remains that any information included in the tender documents shall be checked as fully as possible to ensure its correctness.

There may also be circumstances where information is purposely supplied to prospective tenderers for their reference only and shall not form part of the contract. Site investigation information normally falls into this category. To this end, a standard GCT[Note 2] serving as a disclaimer for the supply of site investigation information to tenderers has been developed and this shall be incorporated as part of the tender documents.

Similar to the position in relation to prequalification as given in Paragraph 4.3 of Chapter 6, the issue of other side information, which goes beyond the above, to prospective tenderers is rarely necessary or appropriate. Project offices should be conscious of the potentially major contractual implications that might result from incorrect information issued and allegedly having been relied upon by the contractor. There is also the risk that the originally correct information could become incorrect with the lapse of time or changes in circumstances after the information is issued.

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Where the circumstances genuinely require the issue of specific side information to prospective tenderers, consent from the relevant officer at D2 rank or above shall be obtained. Before incorporating such information as part of the tender documents, the department shall also consult LAD(W) with regard to drafting any SCT and/or SCC which may be necessary having regard to the nature of the information and/or particular circumstances of the procurement so as to safeguard the Government's interest.

(b) Subsequent doubt over the truthfulness of any information issued under (a) above

Where a piece of information has been issued under (a) above but its truthfulness is subsequently found to be questionable due to change in circumstances or other reason(s), LAD(W) should be consulted as to the appropriate action to be taken (e.g. withdrawal of the information with or without extension of the date set for submission of prequalification applications or the tender closing date or cancellation of the prequalification/tender exercise) notwithstanding that a disclaimer may have already been incorporated in the prequalification documents and/or the tender documents.

Note 1: Under the common law and the Misrepresentation Ordinance (Cap. 284), a misrepresentation is a representation which does not accord with the true facts. The representee who has entered into a contract in reliance on such representation may sue for rescission (i.e. cancellation and putting the parties back to where they were before the contract was made) and/or damages. Where a misrepresentation has become a term of the contract, there is a right to terminate the contract (if the term is in the nature of a condition) and sue for damages for breach of contract as well as a right to sue for rescission (see section 2 of the Misrepresentation Ordinance).

Note 2: The standard General Conditions of Tender contains an express reference to General Conditions of Contract Clause 13 with regard to inspection of the Site.

11.6 DECLARATION AND UNDERTAKING BY OFFICERS INVOLVED IN PREPARING TENDER DOCUMENTATION INCLUDING TENDER SPECIFICATIONS

As required under SPR 186, all officers involved in preparing tender documentation including tender specifications must declare whether they have any actual, potential or perceived conflict of interest at the start of deliberation or as soon as they become aware of a potential conflict. Reference should be made to the memos ref. (10) in FT 93/88 dated 19.12.2007 and ref. (27) in TsyB T 00/810-4/9/0 Pt. 2 dated 30.5.2012 from the Secretary for Financial Services and the Treasury (ref. *http://fb.host.ccgo.hksarg/spr/memos.htm*).

The specimen Declaration and Undertaking in Appendix I (A) of the latest version of SPRs shall be used for the declaration. All declarations should be kept in file for record.

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12. REFERENCES

LWBTC No. 11/84	Contract Transport
LWBTC No. 7/87	Minimum Amount of an Interim Payment
WBTC No. 10/92	Provision of Refuse Containment Booms in Reclamation Contracts Involving Public Dumping
WBTC No. 2/93	Public Dumps
WBTC No. 2/93B	Public Filling Facilities
WBTC No. 21/93	Standard Phraseology of [Bills of Quantity] Item Descriptions
WBTC No. 21/93A	Standard Phraseology of [Bills of Quantity] Item Descriptions (SPID)
WBTC No. 21/93B	Standard Phraseology of [Bills of Quantity] Item Descriptions (SPID)
WBTC No. 29/93	Procedure for Incorporation of Waterworks into other Capital Works Contracts
WBTC No. 25/94	Standard Form of Domestic Subcontract (for specialist works)
WBTC No. 10/95	Importation of Sand from the People's Republic of China by Barges
WBTC No. 10/95A	Additional Requirements Concerning Barge Routes and Third Party Insurance
WBTC No. 16/96	Wet Soil in Public Dumps
WBTC No. 10/97	Use of Performance Bonds Security and Retention Moneys and Standard Form of Bond
WBTC No. 10/97A	Use of Performance Bonds Security and Retention Moneys and Standard Form of Bond
WBTC No. 4/98	Use of Public Fill in Reclamation and Earth Filling Projects
WBTC No. 4/98A	Use of Public Fill in Reclamation and Earth Filling Projects
WBTC No. 4/99	Construction Mediation Rules (1999 Edition) and Administrative Guidelines
ETWB TCW No. 4/99A	Construction Mediation Rules (1999 Edition) and Administrative Guidelines
WBTC No. 32/99	Second Stage of the Independent Safety Audit Scheme (ISAS)
WBTC No. 12/2000	Fill Management
WBTC No. 14/2000	Usage of Public Works Laboratories in Public Works Projects
WBTC No. 15/2000	Funding Arrangement for Public Works Regional Laboratories Operating, Monitoring and Accounting Procedures
WBTC No. 18/2000	Works Bureau Library of Standard Special Conditions of Contract for use with G.C.C. for Building Works, Civil Engineering Works and Electrical & Mechanical Engineering Works 1999 Editions

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ETWB TCW No. 18/2000A	Works Bureau Library of Standard Special Conditions of Contract for use with G.C.C. for Building Works, Civil Engineering Works and Electrical & Mechanical Engineering Works 1999 Editions
ETWB TCW No. 18/2000B	Works Bureau Library of Standard Special Conditions of Contract for use with G.C.C. for Building Works, Civil Engineering Works and Electrical & Mechanical Engineering Works 1999 Editions
WBTC No. 20/2000	General Conditions of Contract for Civil Engineering Works, 1999 Edition
WBTC No. 30/2000	Construction Site Safety Manual Second Updating of Chapters 3 and 12
WBTC No. 13/2001	Quality Management System Certification of Consultants and Contractors for Public Works Administered by the Works Group of Departments
ETWB TCW No. 13/2001A	Quality Management System Certification of Consultants and Contractors for Public Works Administered by the Works Group of Departments
WBTC No. 19/2001	Metallic Site Hoardings and Signboards
WBTC No. 12/2002	Specifications Facilitating the Use of Recycled Aggregates
WBTC No. 26/2002	Special Conditions of Contract for Use in Mega Project Contracts
ETWB TCW No. 29/2002	Geotechnical Control for Slopes and Retaining Walls
ETWB TCW No. 29/2002A	Geotechnical Control for Slopes and Retaining Walls
ETWB TCW No. 50/2002	Contractors' Joint Ventures
ETWB TCW No. 4/2003	Assessment of Liquidated Damages
ETWB TCW No. 12/2003	Employment of Technician Apprentices and Building & Civil Engineering Graduates by Contractors of Public Works Contracts
ETWB TCW No. 13/2003	Guidelines and Procedures for Environmental Impact Assessment of Government Projects and Proposals
ETWB TCW No. 13/2003A	Guidelines and Procedures for Environmental Impact Assessment of Government Projects and Proposals - Planning for Provision of Noise Barriers
ETWB TCW No. 22/2003	Additional Measures to Improve Site Cleanliness and Control Mosquito Breeding on Construction Sites
ETWB TCW No. 22/2003A	Additional Measures to Improve Site Cleanliness and Control Mosquito Breeding on Construction Sites
ETWB TCW No. 28/2003	Protection of Harbour Area Treatment Scheme Stage I Sewage Tunnels
ETWB TCW No. 16/2004	The Use of Permanent Pre-stressed Ground Anchors in Government Projects

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ETWB TCW No. 24/2004	Specification Facilitating the Use of Concrete Paving Units Made of Recycled Aggregates
ETWB TCW No. 6/2005	Implementation of Systematic Risk Management in Public Works Projects
ETWB TCW No. 7/2005	Procurement of Construction Related Insurance
ETWB TCW No. 15/2005	Geotechnical Control for Tunnel Works
ETWB TCW No. 19/2005	Environmental Management on Construction Sites
ETWB TCW No. 2/2006	Drainage Impact Assessment Process for Public Sector Projects
DEVB TCW No. 9/2007	Professional Indemnity Insurance for Consultancy Services, Works Contracts Involving Contractor's Design or Independent Checking Engineer's Services
DEVB TCW No. 6/2010	Trip Ticket System for Disposal of Construction & Demolition Materials
DEVB TCW No. 8/2010	Enhanced Specification for Site Cleanliness and Tidiness
DEVB TCW No. 5/2013	Extension of Time due to Labour Shortage
DEVB TCW No. 2/2014	Tender Procedures for Procurement governed by the Agreement on Government Procurement of the World Trade Organization
DEVB TCW No. 3/2014	Contractors' Designs and Alternative Designs
DEVB TCW No. 4/2014	Tender Evaluation Methods for Works Contracts
DEVB TCW No. 7/2014	Guidance on Execution of Public Works Contracts as a Deed
DEVB TCW No. 1/2015	Emissions Control of Non-road Mobile Machinery in Capital Works Contracts of Public Works
DEVB TCW No. 4/2015	Administrative Procedures 2015 for Use with the Government of the Hong Kong Special Administrative Region General Conditions of Contract for Design and Build Contracts 1999 Edition
DEVB TCW No. 4/2017	Employment of Skilled Workers in Public Works Contracts
DEVB TCW No. 8/2018	Use of Manufactured Sand in Public Works Contracts
DEVB TCW No. 10/2018	Quality Assurance for Use of Off-site Prefabricated Steel Reinforcing Bar Products
DEVB TCW No. 1/2019	Railway Protection
DEVB TCW No. 6/2019	Implementation of Mandatory Construction Industry Collaborative Training Schemes in Public Works Contracts
DEVB TCW No. 3/2020	Digital Works Supervision System
DEVB TCW No. 4/2020	Tree Preservation
DEVB TCW No. 5/2020	Registration and Preservation of Old and Valuable Trees
DEVB TCW No. 11/2020	Sustainable Site Accommodation
DEVB TCW No. 13/2020	Timely Application of Temporary Electricity and Water Supply for Public Works Contracts and Wider Use of Electric Vehicles in Public Works Contracts

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DEVB TCW No. 2/2021	Adoption of Building Information Modelling for Capital Works Projects in Hong Kong
DEVB TCW No. 4/2021	Contract Price Fluctuation System for Civil Engineering and Building Contracts
DEVB TCW No. 6/2021	Security of Payment Provisions in Public Works Contracts
Environment Bureau Circular Memorandum No. 1/2021	Green Procurement in the Government
FC No. 3/2014	Correctional Services Industries
S for W's memo ref. () in WB(W) 209/32/110 Pt. 12 dated 9.1.2001	WTO GPA Article VI - Technical Specifications
S for W's memo ref. () in WB(W) 209/32/110 dated 23.3.2001	Library of Special Conditions of Contract, Clause 14 - Subcontracting
S for W's memo ref. () in WB(W) 216/29/2 dated 10.5.2001	Guidelines for the Development of Major Infrastructure Projects
S for W's memo ref. () in WB(W) 272/31/02D dated 4.4.2002	Specifications of Products in Tender Document
SETW's memo ref. () in ETWB(W) 1552/662/CL SF(1) dated 3.12.2003	Audit Review - Penny's Bay Reclamation Stage I Project - Project and Contract Management
SETW's memo ref. () in ETWB(W) 249/38/02 [TC 13/2001] dated 29.3.2004	Land (Miscellaneous Provisions) (Amendment) Ordinance 2003 - Notes to Tenderers, Form of Tender, Particular Specification, SCC for Civil Engineering Works
SETW's memo ref. () in ETWB(CR)(W) 1-150/4 Pt. 2 dated 27.4.2004	Audit Review on Harbour Area Treatment Scheme Stage I Project and Contract Management
LandsD's memo ref. (3) in LD TI 10/04/03 dated 16.6.2004	Provision of land for works areas
SETW's memo ref. (008BT-01) in ETWB(W) 830/31/01 dated 12.7.2004	Audit Recommendations on Public Works Contracts
Report No. 43 of the Director of Audit dated 23.10.2004, Part 3 of Chapter 7	https://www.aud.gov.hk/eng/pubpr_arpt/rpt_43.htm
SETW's memo ref. (00W45-01-9) in ETWB(W) 810/72/01 dated 21.11.2005	Waste Disposal (Charges for Disposal of Construction Waste) Regulation

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SETW's memo ref. (00XFX-01-4) in ETWB(W) 810/72/01 dated 21.12.2005	Waste Disposal (Charges for Disposal of Construction Waste) Regulation
SETW's memo ref. (0117S-01-2) in ETWB(W) 506/30/02 dated 30.3.2006	Practice Note on Adoption of Non-contractual Partnering in Public Works Contracts
SETW's memo ref. (014G7-01-1) in ETWB(W) 517/91/01 dated 19.6.2006	Interim Guidance Note on the Administration of 'Environmental Management on Construction Sites' (ETWB TCW No. 19/2005)
SETW's memo ref. (014DQ-01-8) in ETWB(W) L/M(4)505/91/01 dated 29.8.2006	Particular Specification Clauses for Control of Dogs on Construction Sites
SETW's memo ref. (018RD-01-1) in ETWB(W) 925/50/01 dated 13.10.2006	Assignment No. 04/2006 - Control of Off Site Fabrication of Construction Components
SCCT'S memo ref. ( ) in CEDD T 4/1/3/21 dated 5.8.2016	Use of Ground Granulated Blastfurnance Slag in Structural Concrete
SDEV's memo ref. (01QXA-01-12) in DEVB(W) 546/70/02 dated 23.4.2008	Representatives at Pre-contract Stage
SDEV's memo ref. (01TC9-01-5) in DEVB(W) 510/17/01 dated 17.7.2008	Limiting the number of tiers of subcontracting
SDEV's memo ref. (01VP5-01-4) in DEVB(W) 510/17/01 dated 11.11.2008	Limiting the Number of Tiers of Subcontracting
SDEV's memo ref. (01WLR-01-7) in DEVB(W) 510/83/08 dated 8.12.2008	Immediate Measures to Assist the Construction Industry
SDEV's memo ref. (01WPS-01-4) in DEVB(W) 510/83/08 dated 11.12.2008	Immediate Measures to Assist the Construction Industry
SDEV's memo ref. (02245-01-13) in DEVB(W) 510/34/01 dated 6.10.2009	Professional Indemnity Insurance for Works Contracts Involving Contractor's Designs, Alternative Designs and Independent Checking Engineer's Services

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SDEV's memo ref. (025B1) in DEVB(W) 520/83/01 dated 26.1.2010	WBTC No. 13/2001 and13/2001A QMS Certification of Consultants and Contractors for Public Works Administered by the Works Group of Departments, Contract Provisions - Appendices A, B, E, F, G and I and SCT6 - ISO 9000 of ETWB TCW 26/2004
SDEV's memo ref. (025QN-01-3) in DEVB(W) 510/83/08 dated 4.3.2010	Financial Relief Measures to assist the Construction Industry
SDEV's memo ref. () in DEVB(W) 545/17/01 dated 19.4.2010	Revised Clause (x) in Library of Notes to Tenderers (Disclosing of Cashflow Discount Rates for Tender Evaluation to Tenderers)
SDEV's memo ref. (026NM-01-3) in DEVB(W) 546/17/01 dated 25.6.2010	GCT 4 Submission of Tender (Formula Approach and Marking Scheme)
SDEV's memo ref. (027N7-01-2) in DEVB(W) 510/10/01 dated 29.6.2010	Duties and Powers of the Engineer - Section Subject to Excision
SDEV's memo ref. (027RU-01-3) in DEVB(W) 510/17/01 dated 16.7.2010	Contract Measures to Prevent Non-payment of Wages and to Limit the Tiers of Subcontracting
SDEV's memo ref. (0289W-01-3) in DEVB(W) 516/95/02 dated 16.8.2010	Guidelines on Enhancement of Site Outlook at Construction Sites
SDEV's memo ref. () in DEVB(W) 810/83/09 dated 24.9.2010	Installation of Mechanical Dump Truck Covers in Capital/Term Contracts tendered on or after 1 November 2010
SDEV's memo ref. (0281L-01-5) in DEVB(W) 510/70/01 dated 1.11.2010	Land (Miscellaneous Provisions) Ordinance, Cap. 28 Special Conditions of Contracts (SCC)
SDEV's memo ref. () in DEVB(W) 546/17/02 dated 9.2.2011	Updated Library of Standard SCC for use of with GCC for Building Works, Civil Engineering Works and Electrical & Mechanical Engineering Works 1999 Editions
SDEV's memo ref. (02APB-01-8) in DEVB(W) 510/83/08 dated 8.3.2011	Financial Relief Measures to assist the Construction Industry
SDEV's memo ref. (02B2H-01-5) in DEVB(W) 510/10/01 dated 9.3.2011	Sections Subject to Excision

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SDEV's memo ref. (02BBG-01-4) in DEVB(W) 506/00/01 dated 24.3.2011	Dispute Resolution Advisor System in Capital Engineering Works Contracts
SDEV's memo ref. (02B6J-01-6) in DEVB(W) 510/10/01 dated 24.3.2011	Anti-collusion
SDEV's memo ref. (02BL7-01-2) in DEVB(W) 510/10/01 dated 12.4.2011	Sections Subject to Excision
SDEV's memo ref. () in DEVB(W) 546/70/01 dated 8.8.2011	Employer's Power to Reduce the Amount of the Contingency Sum prior to Award of Contract
SDEV's memo ref. () in DEVB(W) 510/83/08 dated 20.7.2012	Financial Relief Measures to assist the Construction Industry
SDEV's memo ref. (02FYE-01-11) in DEVB(W) 510/17/01 dated 27.7.2012	Enhanced Guidelines on Wage Payment Monitoring and Reimbursement of Contractor's and Subcontractors' Contributions to the Mandatory Provident Fund for their Site Personnel and Revised Special Conditions of Contract on Reimbursement of Mandatory Provident Fund Contributions to Subcontractors
SDEV's memo ref. (02H25-01-1) in DEVB(W) 510/17/01 dated 8.11.2012	Enhanced Guidelines on Wage Payment Monitoring and Reimbursement of Contractor's and Subcontractors' Contributions to the Mandatory Provident Fund for their Site Personnel and Revised Special Conditions of Contract on Reimbursement of Mandatory Provident Fund Contributions to Subcontractors - Supplementary Notes No. 1
SDEV's memo ref. () in DEVB(W) 510/10/01 dated 3.12.2012	New GCT and paragraph to be included in the "Instructions to Applicants" section of prequalification documents - Tenderer's Consent and Authorization on Conviction Records
SDEV's memo ref. () in DEVB(Trg) 133/4 (9) dated 7.12.2012	Implementation in Public Works Contracts of the Mandatory Employment of Graduates of the Enhanced Construction Manpower Training Scheme (ECMTS)
SDEV's memo ref. () in DEVB(W) 506/30/07 dated 3.9.2013	Extended Pilot on New Engineering Contract Form
SDEV's memo ref. () in DEVB(W) 510/17/01 dated 6.9.2013	Contract Measures to Limit the Tiers of Subcontracting in Maintenance Contracts
SDEV's memo ref. (02LSV-01-1) in DEVB(W) 516/70/03 dated 22.11.2013	Pay for Safety Performance Merit Scheme

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SDEV's memo ref. () in DEVB(W) 510/10/01 dated 2.5.2014	Standard Notes to Tenderers (NTT) - NTT (h) for formula approach, alternative NTT (h) for marking scheme and second alternative NTT (h) for use in tenders which EMSTF is eligible to bid
SDEV's memo ref. () in DEVB(W) 510/10/01 dated 4.12.2014	Revised SCC and SCE to align with HKIAC Domestic Arbitration Rules (2014)
SDEV's memo ref. (36) in L/M to DEVB(GLTM) 302/5/1 dated 17.12.2014	New Requirement in Pruning Works
SDEV's memo ref. () in DEVB(W) 510/10/01 dated 28.8.2015	SCC 84 - Contracts (Rights of Third Parties) Ordinance
SDEV's memo ref. (02SR7-01-1) in DEVB(W) 516/83/02 dated 30.10.2015	WBTC No. 32/99 Independent Safety Audit Scheme for Mega Capital Works Contracts or Capital Works Contracts Involving Unconventional Construction Method
SDEV's memo ref. (02N5N-01-1) in DEVB(W) 517/17/01 dated 8.6.2016	Design for Safety (DfS)
SDEV's memo ref. () in DEVB(Trg) 133/3 (10) dated 23.1.2017	Provision of Site Uniform for Personnel Working on Public Works Sites
SDEV's memo ref. (02VVW-01-1) in DEVB(W) 510/83/05 dated 24.1.2017	SCT 4 – Contractor's Joint Venture
SDEV's memo ref. () in DEVB(W) 505/91/01 dated 17.5.2017	DEVB TCW No. 8/2010 Enhanced Specifications for Site Cleanliness and Tidiness
SDEV's memo ref. () in DEVB(W) 516/71/01 dated 29.3.2018	Construction Site Safety Manual
SDEV's memo ref. () in DEVB(W) 517/91/01 dated 29.3.2018	ETWB TCW No. 19/2005 Environmental Management on Construction Sites
SDEV's memo ref. ( ) in DEVB(W) 510/94/02 dated 28.3.2019	Renaming and Enhancement of the Subcontractor Registration Scheme of the Construction Industry Council (to be known as Registered Specialist Trade Contractors Scheme)
SDEV's memo ref. () in DEVB(W) 510/30/01 dated 29.3.2019	Revision to the Threshold for Legal Vetting of Tender Documents for Works Contracts
SDEV's memo ref. () in DEVB(W) 546/94/01 dated 19.12.2019	Electronic Dissemination of Tender Documents and Electronic Submission of Tender Returns on Removable Media - Updated Data Format Requirements

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SDEV's memo ref. (03487-01-1) in DEVB(W) 510/83/05 dated 31.12.2019	Use of Joint Venture (JV) Proforma
SDEV's memo ref. () in DEVB(W) 510/33/02 dated 14.2.2020 with Annex B (Version 2) updated on 25.2.2020	Interim Relief Measure to Assist the Construction Industry – Advance Payment under Capital Works Contracts
SDEV's memos ref. () in DEVB(W) 510/33/02 dated 5.6.2020	Interim Relief Measure to Assist the Construction Industry – Advance Payment under New Term Contracts
SDEV's memo ref. () in DEVB(W) 510/83/05 dated 14.7.2020	Updated Version of Standard SCT 5 (Sub-clauses (5) & (5A) and GCT 31 in relation to the Eligibility of Probationary Contractors to Tender and for Award of Contracts
SDEV's memo ref. ( ) in DEVB(W) 510/94/02 dated 11.8.2020	Engagement of Subcontractors under Registered Specialist Trade Contractors Scheme (RSTCS) of the Construction Industry Council
SDEV's memo ref. () in DEVB(W) 510/83/05 dated 16.9.2020	Updating of Standard GCT 29 and SCT 5 (Sub-clause(6)) in relation to the "One-tender" Requirement for Holding companies, Subsidiaries or Related parties
SDEV's memo ref. () in DEVB(W) 506/30/02 dated 23.9.2020	Updated Guidelines on Selection of Contracts for Adoption of Non-contractual Partnering in Public Works Contracts
SDEV's memo ref. ( ) in DEVB(W) 510/83/05 dated 9.11.2020	Updating of Standard GCT 29 and GCT 16 (Sub-clause (3)) in relation to the "One-tender" Requirement for Holding Companies, Subsidiaries or Related Parties
SDEV's memo ref. ( ) in DEVB(W) 546/83/01 dated 11.11.2020	Updating of Standard Form of Tender and GCT 4 (Sub-clause (1)(a)(i))
SDEV's memo ref. ( ) in DEVB(W) 510/70/03 dated 13.11.2020	Particular Specification ("PS") Clause on Request for Inspection and/or Survey Check
SDEV's memo ref. ( ) in DEVB(W) 510/94/02 dated 4.12.2020	Addition of "Plastering" as One of the Designated Trades under the Registered Specialist Trade Contractors Scheme of the Construction Industry Council
SDEV's memo ref. ( ) in DEVB(W) 546/70/02 dated 10.2.2021	Amendments to Standard Notes to Tenderers on "Regulating Actions on Inappropriate Conducts" and Appendix to General Conditions of Tender Clause on "Financial Information"
SDEV's memo ref. () in DEVB(W) 510/83/03 dated 11.2.2021	Update of Guidelines on Adoption of Dispute Resolution Advisor System in Capital Works Contracts
SDEV's memo ref. () in DEVB(W) 510/33/02 dated 5.3.2021	Extension of Interim Relief Measure to Assist the Construction Industry – Advance Payment under New Capital Works Contracts

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SDEV's memos ref. () in DEVB(W) 510/33/02 dated 5.3.2021	Extension of Interim Relief Measure to Assist the Construction Industry – Advance Payment under New Term Contracts
SDEV's memo ref. () in DEVB(W) 510/83/05 dated 26.3.2021	Updating of Standard SCT 5 – Contractors' Joint Venture (JV) and Sample JV Proforma
SDEV's memo ref. ( ) in DEVB(W) 510/17/01 dated 19.4.2021	Limiting the Number of Tiers of Subcontracting in Public Works Contracts
SDEV's memo ref. ( ) in DEVB(W) 506/90/01 dated 11.5.2021	Implementation of Systematic Risk Management in Public Works Projects
SDEV's memo ref. () in DEVB(W) 546/84/01 dated 9.7.2021	DEVB TC(W) No. 4/2014 & No. 4/2014A Tender Evaluation Methods for Works Contracts - Amendments to Tender Evaluation Methods in respect of the Attributes for Assessing Tenderer's Past Performance
SDEV's memo ref. ( ) in DEVB(W) 510/70/03 dated 27.7.2021	Use of Retention Money and Performance Bond/Cash Security
SDEV's memo ref. ( ) in DEVB(GLTM) 204/1/6 dated 31.8.2021	Employment of Registered Tree Management Personnel in Government Contracts
SDEV's memo ref. () in DEVB(W) 510/70/03 dated 1.9.2021	Particular Specification Clause on Inspection and Test Plans
SDEV's memo ref. (03C1Q) in DEVB(W) 516/71/01 dated 28.12.2021	Control on Works in Confined Space in Connection with/in the Vicinity of Underground Pipework, Drainage/Sewage Manholes/Chambers or Structures Alike
SDEV's memo ref. ( ) in DEVB(W) 506/30/07 dated 31.12.2021	Migration from NEC3 to NEC4 Engineering and Construction Contract (ECC)
SDEV's memo ref. ( ) in DEVB(W) 510/94/02 dated 11.1.2022	Addition of "Suspended Ceiling" and "Tower Crane (Erecting, Dismantling, Altering Height)" as Designated Trades under the Registered Specialist Trade Contractors Scheme of the Construction Industry Council
SDEV's memo ref. ( ) in DEVB(W) 511/70/01 date 24.1.2022	Extension of "Vaccine Bubble" Arrangement to Public Works Contracts and Consultancies
SDEV's memo ref. () in DEVB(W) 510/33/02 dated 10.3.2022	Extension of Interim Relief Measure to Assist the Construction Industry – Advance Payment under New Capital Works Contracts
SDEV's memo ref. () in DEVB(W) 510/33/02 dated 10.3.2022	Extension of Interim Relief Measure to Assist the Construction Industry – Advance Payment under New Term Contracts

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SDEV's memo ref. ( ) in DEVB(W) 510/70/03 dated 8.4.2022	Professional Staff in Contractor's Management Team – Minimum Qualification and Experience Requirements for Civil Engineering Works
SDEV's memo ref. () in DEVB(W) 511/70/01 dated 20.5.2022	Implementation of "Vaccine Pass" Arrangement at Public Works Sites
SDEV's memo ref. () in DEVB(W) 510/94/02 dated 17.6.2022	Addition of "Building Drainage Installation" as One of the Designated Trades under the Registered Specialist Trade Contractors Scheme of the Construction Industry Council
SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 8.7.2022	Migration from NEC3 to NEC4 Term Service Contract (TSC)
SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 8.7.2022	Interim Relief Measure to Combat the 5th Wave of the COVID-19 Pandemic – Special Payment for Imported Items for Capital Works Contracts
SDEV's memo ref. () in DEVB(W) 506/30/07 dated 19.7.2022 and 28.6.2024	Wider Adoption of New Engineering Contract (NEC) Form in Public Works Contracts
SDEV's memo ref. () in DEVB(W) 510/33/02 dated 28.7.2022	Interim Relief Measure to Combat the 5th Wave of the COVID-19 Pandemic – Special Payment for Imported Items for Term Contracts
SDEV's memo ref. (03E8T) in DEVB(W) 516/80/03 dated 3.8.2022	Construction Site Safety Manual – Prohibition of Imposing Administrative Charges for Reporting of Site Accidents and Elimination of Under-reporting of Site Accidents
SDEV's memo ref. () in DEVB(W) 510/30/01 dated 31.8.2022	Tender / Contract Provisions for Safeguarding National Security in Public Works Contracts and Consultancies
SDEV's memo ref. () in DEVB(W) 510/94/02 dated 1.12.2022	Addition of adding "Truss Out Scaffolding", "Gondola (Permanent)" and "Gondola (Temporary)" as Designated Trades under the Registered Specialist Trade Contractors Scheme of the Construction Industry Council
SDEV's memo ref. (03FBT) in DEVB(W) 505/91/01 dated 5.1.2023	Rodent Control on Construction Sites
SDEV's memo ref. () in DEVB(W) 510/94/02 dated 1.2.2023	Addition of "Levelling and Setting Out" as One of the Designated Trades under the Registered Specialist Trade Contractors Scheme of the Construction Industry Council
SDEV's memo ref. () in DEVB(W) 506/30/07 dated 20.4.2023	Proposal on Innovation and Technology for Public Works Contracts Adopting NEC form
SDEV's memo ref. () in DEVB(W) 510/94/02 dated 6.9.2023	Addition of "Building Maintenance" and "Interior Fitting-out" as Designated Trades under the Registered Specialist Trade Contractors Scheme of the Construction Industry Council

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SDEV's memo ref. () in DEVB(W) 511/70/02 dated 4.10.2023	Fees and Charges Review - Provision of Electronic Drawings
SDEV's memo ref. () in DEVB(W) 546/84/01 dated 10.11.2023	DEVB TC(W) No. 4/2014 & No. 4/2014A Tender Evaluation Methods for Works Contracts – Merit / Demerit Point for Safety
SDEV's memo ref. ( ) in DEVB(W) 506/30/07 dated 16.11.2023	Migration from NEC4 Engineering and Construction Contract to the Hong Kong Edition of NEC Engineering and Construction Contract
SDEV's memo ref. () in DEVB(W) 510/33/02 dated 22.11.2023	Extension of Interim Relief Measure to Combat the COVID-19 Pandemic – Special Payment for Imported Items
SDEV's memo ref.() in DEVB(W) 546/94/02 dated 29.12.2023	Implementation of Electronic Tendering System for Works Contracts
SDEV's memo ref. () in DEVB(W) 510/94/02 dated 10.4.2024	Addition of "Painting", "Metal Work", "Structural Steelwork", "Horticultural Works", "Arboriculture Works" and "Skyrise Greenery Works" as Designated Trades under the Registered Specialist Trade Contractors Scheme of the Construction Industry Council
SDEV's memo ref.() in DEVB(W) 546/94/02 dated 24.5.2024	Electronic Tendering System for Works Contracts
SDEV's memo ref. () in DEVB(W) 546/83/01 dated 20.9.2024	Threshold of the Constraints on the Power of the Contract Administrator to Order Variation and the Related Matters
SDEV's memo ref. () in DEVBWB WP4S-021-004-002 dated 10.10.2024	Relief Measures to Assist the Construction Industry – More Frequent Interim Payments and Milestone Payments
SDEV's memo ref. () in DEVB WB WP4S-022-006 dated 25.10.2024	Public Works Laboratories Electronic Laboratory Information Management System for Handling Compliance Testing Services for Public Works Contracts Amd No. 3/2025
SDEV's memo ref. () in DEVB WB WP4S-022-009-002-P001 dated 11.12.2024	Additional of "Truss-out Scaffolding" as Designated Trades under the Registered Specialist Trade Constrictors Scheme of the Construction Industry Council Amd No. 2/2025
SDEV's memo ref. () in DEVBWB WP4S-021-004-002 dated 18.7.2025	Extension of Relief Measures to Assist the Construction Industry – More Frequent Interim Payments and Milestone Payments Amd No. 7/2025

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SDEV's memo ref. () in DEVB WB WP4S-022-003-001-001 dated 1.8.2025	New Material Cost Index of Ready-mixed Concrete for Incorporation into Contract Price Fluctuation System Amd No. 4/2025
SFST's memo ref. (27) in TsyB T 00/810-4/9/0 Pt. 2 dated 30.5.2012	Declaration of Conflict of Interest
SFST's memo ref. (31) in TsyB MA 00/550/1 (C) Pt. 2 dated 14.3.2018	Cashflow Discount Rates for Tender Evaluation
PWTB's memo ref. (7) in ASD13/95200/TEN/OPEN/PCF dated 5.7.2018	Photocopying Fee - Works Remeasurement Contracts
SFST's memo ref. () in TsyB T ADM/1-135/1/0 Pt.10 dated 24.12.2018	Adjustment of Photocopying Fee for Works Contracts
Audit Report No. 53 Ch. 3 - Construction works under Castle Peak Road Improvement Project	http://www.aud.gov.hk/pdf_e/e53ch03.pdf
DEVB Construction Site Safety Manual	http://www.devb.gov.hk/en/publications_and_press_releases/publications/construction_site_safety_manual/index.html
DEVB Contractor Management Handbook	https://www.devb.gov.hk/filemanager/en/content_187/CMH_Rev21-r1.pdf
DEVB Standard Contract Documents	http://www.devb.gov.hk/en/publications_and_press_releases/publications/standard_contract_documents/index.html

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DEVB Tree Management Guidelines	http://devb.host.ccgo.hksarg/en/tree_mgnt/index.html or https://www.greening.gov.hk/en/tree-care/tree-care-practices/index.html Guidelines on Yard Waste Reduction and Treatment Guidelines for Tree Risk Assessment and Management Arrangement Guidelines on Arboriculture Occupational Safety and Health Management Guidelines for Stonewall Trees Guideline on Pavement Renovation Works and Tree Stability Guidelines on Tree Transplanting Management Guidelines for Mature Trees Guidelines on Tree Preservation during Development Manual on the Management of Brown Root Rot Disease Tree Management Practice Note No. 1: Tree Preservation during Construction Tree Management Practice Note No. 3: Tree Pruning Tree Management Practice Note No. 4: Management of Brown Root Rot Disease Infected Trees And, other relevant, up-to-date guidelines published on the Tree Management section of the Cyber Manual for Greening or the greening website from time to time
GPA Space Standards under Schedule of Accommodation	http://gpa.host.ccgo.hksarg/schedule-of-accommodation.html
HyD Practice Notes BSTR/PN/003 Rev. E– Noise Barriers with Transparent Panels	https://www.hyd.gov.hk/en/technical_references/technical_document/division_practice_notes/pdf/PN003E.pdf
Labour Department Guidance Notes on Safety and Health of Hand-dug Tunnelling Work	http://www.labour.gov.hk/eng/news/pdf/GN_on_S&H_of_Hand-dug_Tunnelling_Work_Eng.pdf

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APPENDICES

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APPENDIX 5.1 FORM OF TENDER

(Subsumed from ETWB TCW No. 56/2002 and 56/2002A, and ref. SDEV's memo ref. ( ) in DEVB(W) 546/83/01 dated 11.11.2020)

{Internal Remark: For Capital Works Contracts using GCC form (excluding Design and Build Contracts)}

THE GOVERNMENT OF THE HONG KONG SPECIAL ADMINISTRATIVE REGION

[INSERT PROCURING DEPARTMENT]

CONTRACT NO. [INSERT CONTRACT NO.]
[INSERT CONTRACT TITLE]

FORM OF TENDER

NOTES :

(1) The Appendix forms part of the Contract.

(2) If the tenderer is a limited company (including incorporated joint venture), insert the information in the spaces provided at Form of Tender – P.3.

(3) If the tenderer is an unincorporated joint venture, insert the information in the spaces provided at Form of Tender – P.4 to P.5.

(4) If the tenderer is a sole proprietorship or a partnership, insert the information in the spaces provided at Form of Tender – P.6.

(5) In all cases, insert the number(s) and the expiry date(s) of the business registration certificate(s) here[2]:

Name:	_____	Name:	_____
Business Registration Number:	_____	Business Registration Number:	_____
Expiry Date:	_____	Expiry Date:	_____
Name:	_____	Name:	_____
Business Registration Number:	_____	Business Registration Number:	_____
Expiry Date:	_____	Expiry Date:	_____

{Internal Remark: Please update the following for submission to a tender board other than the Central Tender Board}

To : The Chairman,
Central Tender Board,
Lobby of the Public Entrance on the Ground Floor,
East Wing, Central Government Offices,
2 Tim Mei Avenue, Tamar, Hong Kong

[2] If the tenderer is a partnership or an unincorporated joint venture, provide the required information of all partners or all participants of the unincorporated joint venture.

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FORM OF TENDER – P.2

1. Having inspected the Site, examined the Drawings, General Conditions of Contract and Special Conditions of Contract (hereinafter referred to as "the said Conditions"), Specification and Bills of Quantities for the execution of the Works as defined in the Contract, I/we offer to construct, complete and maintain the whole of the said Works in conformity with the said Conditions, Drawings, Specification and Bills of Quantities for the sum of Dollars _____ [HK$ _____] or such sum as may be ascertained in accordance with the said Conditions, Drawings, Specification and Bills of Quantities.

{Internal Remark: Paragraph 2 may be deleted if a security is not required}

2. [If my/our Tender is accepted I/we will when required

   #(a) deposit with the Director of Accounting Services, the Government of the Hong Kong Special Administrative Region, as security for the due performance of the Contract a sum of $_____, such deposited sum to be returned to me/us in accordance with the said Conditions.

   #(b) with the approval of the Employer obtain the guarantee of a Bank or Insurance Company [to be approved by the Employer] to be jointly and severally bound with me/us in a sum of $_____ for the due performance of the Contract under the terms of a Bond in accordance with the said Conditions.]

   # NOTE: Tenderer to delete either clause 2(a) or 2(b).

3. I/We agree to abide by this Tender for the period of [90 days][3] from the date, or the extended date if this has been extended, of expiry fixed for receiving the same and it shall remain binding upon me/us and may be accepted at any time before the expiration of that period.

4. Unless and until the Articles of Agreement is prepared and executed, this Tender together with the written acceptance thereof by the Employer subject to the provisions of [clause 3][4] hereof shall constitute a binding contract between us.

5. I/We understand that the Employer reserves the right to negotiate with any tenderer about the term of the offer and is not bound to accept any tender irrespective of whether the tender is the lowest offer or, where the assessment of the tenders is based on a marking scheme or formula approach, the tender is with the highest overall score.

[3] Information to be inserted by the Project Office (normally 90 days).

[4] Modify as appropriate.

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FORM OF TENDER – P.3

NOTE: To be inserted in case the tenderer is a limited company

Name _____

Signature _____

in the capacity of

_____

duly authorised to sign tenders for and on behalf of (name of the limited company)

_____

Registered address of the limited company

_____

_____

_____

Name of Witness _____

Signature of Witness _____

Occupation of Witness _____

Address of Witness _____

_____

_____

Date _____

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FORM OF TENDER – P.4

NOTE: To be inserted in case the tenderer is an unincorporated joint venture[5]

Name _____	Name _____
Signature _____	Signature _____
in the capacity of _____	in the capacity of _____
duly authorised to sign tenders for and on behalf of (name of the participant of the unincorporated joint venture)	duly authorised to sign tenders for and on behalf of (name of the participant of the unincorporated joint venture)
_____	_____
Registered address of the participant of the unincorporated joint venture	Registered address of the participant of the unincorporated joint venture
_____	_____
_____	_____
_____	_____

Name _____	Name _____
Signature _____	Signature _____
in the capacity of _____	in the capacity of _____
duly authorised to sign tenders for and on behalf of (name of the participant of the unincorporated joint venture)	duly authorised to sign tenders for and on behalf of (name of the participant of the unincorporated joint venture)
_____	_____
Registered address of the participant of the unincorporated joint venture	Registered address of the participant of the unincorporated joint venture
_____	_____
_____	_____
_____	_____

[5] Insert the information of all participants of the unincorporated joint venture in the spaces provided. In case of more than four participants, insert an additional page following the above format.

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FORM OF TENDER – P.5

Trading in Hong Kong with a business name of (the name of the unincorporated joint venture)

_____

Correspondence address of the unincorporated joint venture

_____

_____

Name(s)[6] of Witness(es)	_____	_____
Signature(s) of Witness(es)	_____	_____
Occupation(s) of Witness(es)	_____	_____
Address(es) of Witness(es)	_____	_____
	_____	_____
Date	_____	_____

[6] In case more space is required for the information of the witness(es), insert an additional page following the above format.

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FORM OF TENDER – P.6

NOTE: To be inserted if the tenderer is a sole proprietorship or a partnership[7]

Name _____ Name _____

Signature _____ Signature _____

Residential address[8] Residential address[7]

_____ _____

_____ _____

_____ _____

Name _____ Name _____

Signature _____ Signature _____

Residential address[7] Residential address[7]

_____ _____

_____ _____

_____ _____

Trading in Hong Kong with a business name of (the name of the sole proprietorship or the partnership)

_____

Correspondence address of the sole proprietorship or the partnership

_____

Name(s)[9] of Witness(es) _____ _____

Signature(s) of Witness(es) _____ _____

Occupation(s) of Witness(es) _____ _____

Address(es) of Witness(es) _____ _____

_____ _____

Date _____ _____

[7] Insert the information of the sole proprietor or all partners of the partnership in the spaces provided. In case of more than four partners, insert an additional page following the above format.

[8] In case a partner of the partnership is a body corporate, its registered address shall be provided instead.

[9] In case more space is required for the information of the witness(es), insert an additional page following the above format.

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FORM OF TENDER – P.7

{Internal Remarks: This "Form of Tender – P.7" may be deleted if a security is not required.}

To be inserted by the Engineer before the signing of the Articles of Agreement:

Security Deposit (if any) Receipt No._____

Amount _____

Date _____

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APPENDIX TO FORM OF TENDER – P. 1

General Conditions of Contract for @Civil Engineering Works, 1999 Edition
{Internal Remark @: Modify as appropriate depending on the type of GCC form adopted}

Clause No.

1(1)	Maintenance Period	..... months
	*[Maintenance Period for the Works, except Establishment Works, Aftercare to Old and Valuable Trees and preservation and protection to existing trees (Section xx)	..... months]
	Maintenance Period for Establishment Works	..... months
	[1][Maintenance Period for preservation and protection to existing trees (Section xx)	..... months]
	[1][Maintenance Period for Aftercare to Old and Valuable Trees[2]	..... months]

2(1)(b) Actions of the Engineer[#] subject to the Employer's right of objection and direction

The Engineer[#] is required under the terms of his appointment by the Employer to obtain confirmation of no objection from the Employer and, in the event of an objection, to act in accordance with the Employer's direction before ordering any variation to the Works or taking any other action (including without limitation making an order under General Conditions of Contract Clause 54) which may commit the Employer to additional expenditure under the Contract, other than in respect of claims, of a value estimated to exceed HK$1,400,000. This requirement shall not be applicable where the variation order or other action is considered by the Engineer[#] to be essential on grounds of safety or other emergency in circumstances when it is impracticable to refer the matter to the Employer beforehand.

The Engineer[#] may, subject to any prior contrary instructions given by the Employer to the Engineer[#], order variation to the Works in accordance with the provisions of the Contract or take any other action (including without limitation making an order under General Conditions of Contract Clause 54) which may commit the Employer to additional expenditure under the Contract, other than in respect of claims, without the need to obtain confirmation of no objection from the Employer if the value of such order or commitment is estimated not to exceed HK$1,400,000.

[3][The Engineer[#] is required under the terms of his appointment[4] by the Employer to obtain confirmation of no objection from the Employer and, in the event of an objection, to act in accordance with the Employer's direction before permitting the Contractor to introduce an extra tier of subcontracting in accordance with sub-clause (5) of SCC[X[5]].]

*[The *Engineer[#] is required under the terms of his appointment[4] by the Employer to obtain confirmation of no objection from the Employer and, in the event of an objection, to act in accordance with the Employer's direction before issuing instruction on implementation of the Section Subject to Excision as defined in sub-clause (1) of SCC [X[6]].]

[7][The *Engineer[#] is required under the terms of his appointment[4] by the Employer to obtain confirmation of no objection from the Employer and, in the event of an objection, to act in accordance with the Employer's direction before approving alternative disposal grounds proposed by the Contractor in accordance with sub-clause (3) of PS[X[8]]

{Internal Remark:
 # Modify as appropriate depending on the type of GCC form adopted - the Engineer / Surveyor / Supervising Officer.}

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*12 Amount of bond or cash security (if required) $ .....

APPENDIX TO FORM OF TENDER – P. 2

47 Time after acceptance of Tender within which the date for commencement of the Works shall occur ..... days

49 Time for completion of the *Works/Section ……. ..... days

52 [9]Liquidated damages

[For use where the Works are not divided into Section]
For the Works HK$[.....* (Y1 +….Yn)+.....][10] per day

[For use where the Works are divided into Sections]
Section A HK$[…. *Y1 +…. *Yn +…. *Y2 +….][10] per day

Section B HK$[…. *Y1 +…. *Yn +…. *Y3 +….][10] per day

In the above summary statement of liquidated damages:
Y_1 = Total sum of Bill No. 1 in the Bills of Quantities
Y_2 = Total sum of Bill No. 2 in the Bills of Quantities
Y_3 = Total sum of Bill No. 3 in the Bills of Quantities
Y_n = The value of the Adjustment Item
(Note: items which do not attract LD's, such as the safety related items, should be taken out)

79(1) Percentage of certified value retained ..... per cent

79(1) Limit of Retention Money $ .....

79(2) Minimum amount of interim certificate $ .....
*[There shall be no minimum amount of interim certificates for the Establishment Works]

Special Conditions of Contract

Clause No.

*SCC_ Period for Establishment Works ..... months
_

*SCC_ Time, commencing from and including the date for commencement of the Works notified by the Engineer in accordance with GCC Clause 47, within which the Section Subject to Excision may be ordered ..... days
_

*SCC_ Minimum amount of third party insurance $ .....
_

*SCC_ Minimum amount of liquidated damages for the *Works/Sections $ ..... per day
_

*SCC_ Sum[11] payable to the Employer in the event that Old and Valuable Tree No. __ dies or becomes moribund $ .....
_

*SCC_ Period for Aftercare to Old and Valuable Trees (*Tree/Trees No. __)[2] ..... months
_

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{Internal Remark: The following are internal notes for APPENDIX TO FORM OF TENDER}

* Delete or modify as appropriate

1. Use when a separate Section of the Works (Section xx) is given for preservation and protection to existing trees. The scope of Section xx is described in the Particular Specification.
2. The Period for Aftercare to Old and Valuable Trees together with its subsequent Maintenance Period should preferably end on the same date as the Maintenance Period for the Works, or if there is more than one Maintenance Period, on the same date as the last Maintenance Period.
3. This paragraph is applicable to all public works contracts. Please refer to SDEV's memos ref. (01TC9-01-5) in DEVB(W) 510/17/01 dated 17.7.2008, ref. (01VP5-01-4) in DEVB(W) 510/17/01 dated 11.11.2008 ref. (027RU-01-3) in DEVB(W) 510/17/01 dated 16.7.2010, and ref. DEVB(W) 510/94/02 dated 28.3.2019 and 11.8.2020.
4. Where the Engineer / Surveyor / Supervising Officer is a consultant, works departments should take steps to ensure that the constraint is stipulated in the relevant consultancy agreement.
5. To insert relevant clause number for the SCC clause on Limiting the Tiers of Subcontracting.
6. To insert relevant clause number of the SCC clause on Section Subject to Excision.
7. This paragraph is applicable to all public works contracts, including capital works contracts and term contracts. Please refer to the revised trip ticket system as promulgated in DEVB TCW No. 6/2010.
8. To insert relevant clause number for the PS clause on Trip Ticket System.
9. Refer to ETWB TCW No. 4/2003 for guidance to include appropriate provisions in the Appendix to the Form of Tender where there is no minimum LD's and where there is minimum LD's.
10. Choose from either (a) or (b) below an appropriate footnote depending on whether or not there is minimum LD's for the Works/Sections and, where the works involve excavation requiring the application of excavation permits, add footnote (c):
    (a) Where there is no minimum LD's
    "The value of the formula within the square brackets shall be taken as zero for the purpose of computation of the daily rate of liquidated damages if and when the sum is worked out to be a negative value by substituting Y1, ...Yn with its corresponding value in the priced Bills of Quantities."
    (b) Where there is minimum LD's
    "The value of the formula within the square brackets shall be taken as HK$ [the minimum amount of LD's for the Works or, as the case may be, the relevant Section] per day for the purpose of computation of the daily rate of liquidated damages if and when the sum is worked out to be less than HK$ [the minimum amount of LD's for the Works or, as the case may be, the relevant Section] per day by substituting each of Y1, ...Yn with its corresponding value in the priced Bills of Quantities."
    (c) Where application of excavation permit is required
    "In computing the above liquidated damages, the Employer has not taken into account the Employer's liability for fees including economic cost under the Land (Miscellaneous Provisions) Ordinance, Cap. 28 ("the Ordinance") for any extension in respect of a permit referred to in Sections 10A(3) and 10D(4) of the Ordinance."
11. Separate sum shall be applied to each tree if more than one Old and Valuable Tree is involved. The sum for each Old and Valuable Tree shall be the genuine pre-tender estimate of the cost that the Employer has expended in nurturing, preservation, protection and maintenance of that particular tree.

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APPENDIX 5.2 GUIDELINES FOR COMPLETING THE FORM OF TENDER

(1) Maintenance Period for the Works

The Maintenance Periods for the Works and for Establishment Works are normally 12 months and 1 month respectively but may vary depending on the type of work. If separate Sections of Works are provided for preservation and protection of existing trees, and where required, Aftercare to Old and Valuable Trees, the Maintenance Periods are to be determined by the project office and would usually be 1 month.

(2) Actions of the Engineer subject to the Employer's right of objection and direction

Clause 2 of the GCC 1999 Edition provides that the Employer may impose constraints on the powers of the Engineer. According to existing policy, the Engineer shall obtain the agreement of the Employer before ordering variation in excess of $1,400,000. The Engineer may however commit expenditure other than in respect of claims if such commitment is less than $1,400,000. Besides, the Engineer may, subject to the Employer's right of objection, (i) permit the contractor in all public works contracts (other than maintenance contracts) to introduce an extra tier of subcontracting for a part of the Works, (ii) issuing instruction on implementation of the Section Subject to Excision and (iii) approve alternative disposal grounds proposed by the Contractor. These provisions shall be set out in the Appendix to the Form of Tender.

(3) Amount of bond or cash security

This provision is not usually required for typical works contracts but shall be included where the circumstances as stated in para. 2 of WBTC No. 10/97 warrant. If bond or cash security is required, refer to Appendix A of WBTC No. 10/97 (as amended by SDEV's memo ref. ( ) in DEVB(W) 510/70/03 dated 27.7.2021) for such amount (rounded off to the nearest $1000) with respect to the estimated contract value. Appendix B of WBTC No. 10/97A gives the standard form of performance bond to be incorporated in the tender documents if required.

(4) Time after acceptance of Tender within which the date for commencement of the Works shall occur

Enter a specific number of days, generally between 7 and 42 days unless there are reasons for specifying a different period.

(5) Time for completion of the Works/Sections

Public works projects, especially those of complex and multi-disciplinary in nature and with long project period, are susceptible to delay in completion due to underestimation of the time required for construction and insufficient programme contingency to cater for the unexpected circumstances and site conditions during construction. These prolonged projects are exposed to a higher risk of cost overruns as additional expenses would be incurred to cover the preliminaries, overheads and upward price adjustments, etc.

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The time for completion of the Works/Sections should be based on a realistic estimate of the normal period required for construction of the Works or Section of the Works (including 'Section subject to Excision'), having regard to the date when completion of the project is required, particularly with respect to the programme of other related projects.

In assessing the contract period before proceeding to tender, no allowance need be made for the effects of inclement weather unless it is intended to delete the inclement weather sub-clause (reference should be made to Paragraph 9.18).

Establishment Works normally forms a 'Section of Works' of its own. However, if it is not desirable to do so, the clause may be suitably modified or described to make clear the respective time for completion of 'Works except Establishment Works' and 'Establishment Works'.

Project officers shall complete the Checklist for Setting Contract Period for Major Public Works Contracts as enclosed in Appendix 5.57 and seek D1 officer's endorsement prior to inviting tender.

(6) Liquidated damages

See ETWB TCW No. 4/2003 for detailed guidelines on liquidated damages. The liquidated damages for 'Section subject to Excision' shall also be included.

(7) Percentage of certified value retained

Refer to Appendix A of WBTC No. 10/97 (as amended by SDEV's memo ref. ( ) in DEVB(W) 510/70/03 dated 27.7.2021) for the rate of retention with respect to the estimated contract value. Whenever practicable, the percentage used for the calculation of Retention Money for Nominated Subcontracts is to be the same as that used for the main contract.

(8) Limit of Retention Money

Refer to Appendix A of WBTC No. 10/97 (as amended by SDEV's memo ref. ( ) in DEVB(W) 510/70/03 dated 27.7.2021) for the limit of Retention Money (rounded off to the nearest $1000) with respect to the estimated contract value.

(9) Minimum amount of interim certificate

According to LWBTC No. 7/87, the minimum amount of interim certificate for contracts with an estimated contract sum of $2,000,000 or more is to be:

Estimated Contract Sum	Minimum amount of interim certificate
$ 2 M up to and including $ 5M	$ 70,000
over $ 5M up to and including $ 10 M	$110,000
over $ 10 M up to and including $ 25 M	$160,000

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over $ 25 M up to and including $ 50 M	$250,000
over $ 50 M up to and including $100M	$350,000
over $ 100 M up to and including $250 M	$500,000
over $ 250 M	$750,000

For contracts with an estimated contract sum of less than $2,000,000, the minimum amount of interim certificate should be:

$$\frac{\text{Estimated Contract Sum}}{\text{Period for completion in months}} \times F$$

where F is a factor normally ranging between 0.6 and 0.8 and shall be decided by the officer preparing the tender documents to suit the type and timing of the proposed work. However, the minimum amount shall not exceed $500,000.

(10) Minimum amount of third party insurance [if required]

The minimum amount of third party insurance should normally be assessed following a risk based approach given in ETWB TCW No. 7/2005. For works project with a cost estimate in excess of $1000M, a systematic risk management (SRM) promulgated in ETWB TCW No. 6/2005 shall be adopted. For works project at a cost less than $1000M, works departments should adopt an approach of risk assessment similar to the SRM. Project offices are encouraged to apply the SRM where the nature, complexity and/or risk level of the works warrant such applications.

(11) Works involving preservation and protection of existing trees and Old and Valuable Trees

The guidelines regarding the preservation and protection of existing trees, and where required, the protection and maintenance of registered Old and Valuable Trees can be found in DEVB TCW No. 5/2020 and the Tree Management section of the Cyber Manual for Greening (http://devb.host.ccgo.hksarg/en/contactus/index.html).

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APPENDIX 5.3 (NOT USED)

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APPENDIX 5.4 (NOT USED)

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APPENDIX 5.5 FORMAT OF THE GRAND SUMMARY TO THE BILLS OF QUANTITIES

THE GOVERNMENT OF THE HONG KONG SPECIAL ADMINISTRATIVE REGION
..... DEPARTMENT
CONTRACT NO. ……..….
(Title of Contract)
BILLS OF QUANTITIES
GRAND SUMMARY

Page No.	Bill No.	Description	HK$
	1 2 .. .. X Y	Preliminaries .. .. Site Safety + Daywork Prime Cost and Provisional Sums (excluding the sum allowed for MPF reimbursement)	
		Sub-Total of bill No. 1 to Y inclusive	
		Contingency Sum(1)	
		Total of the above	
		Add 3.5%# of the Total above as a Provisional Sum for reimbursement of MPF(2)	
		Grand Total	
		Adjustment Item *Addition/*Deduction	

Tender Sum _____

Signature of person authorized
to sign on behalf of tenderer: ……..

Name of tenderer: ……
Date: ……

\+ *the Bill on Site Safety is to be provided for all appropriate tenders required under Pay for Safety Scheme in accordance with Chapter 3 and Chapter 12 of the Construction Site Safety Manual.*

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 # Exact percentage to be decided by the project office

** delete where inappropriate*

(1) Where the Special Conditions of Tender on reduction of Contingency Sum has been included, the Employer has power to reduce the amount of the Contingency Sum as stated in the Bills of Quantities by giving notification in writing to the tenderer whose tender is going to be recommended for contract award.

(2) Where the Special Conditions of Tender (SCT) on reduction of Contingency Sum has been included and in accordance with sub-clause (2)(c) of the SCT, this provisional sum for reimbursement of Mandatory Provident Fund contribution shall not be affected by a reduction in the amount of the Contingency Sum by the Employer under sub-clause (2)(a) of the SCT.

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APPENDIX 5.6 NOTES TO TENDERERS AND SPECIAL CONDITIONS OF CONTRACT FOR ENGAGEMENT OF SUBCONTRACTORS REGISTERED FROM THE "REGISTERED SPECIALIST TRADE CONTRACTORS SCHEME" (FOR GENERAL CONDITIONS OF CONTRACT (GCC))

(Subsumed from ETWB TCW No. 13/2004, SDEV's memo ref. (02KJ8-01-4) in DEVB(W) 510/94/02 dated 22.7.2013 and SDEV's memo ref. ( ) in DEVB(W) 510/94/02 dated 4.12.2020, 11.1.2022,17.6.2022, 1.12.2022, 1.2.2023 ,6.9.2023 and 10.4.2024)

The following Notes to Tenderers and Special Conditions of Contract shall be included in tenders for all capital and maintenance works contracts:

Notes to Tenderers:

NTT C1 Engagement of Subcontractors who are Registered under the Respective Trades and Groups available in the Registered Specialist Trade Contractors Scheme (RSTCS)

Tenderers' attention is drawn to the Clause [x]# of the Special Conditions of Contract requiring the engagement of subcontractors who are registered under the respective trades and groups available in the Registered Specialist Trade Contractors Scheme (RSTCS).

Special Conditions of Contract

SCC[x]# - Engagement of subcontractors who are registered under the respective trades and groups available in the Registered Specialist Trade Contractors Scheme (RSTCS)

General Conditions of Contract Clause 4 is amended by adding the following:

[(10)][1] (a) For the purpose of this sub-clause [(10)][1] , the following words and expressions shall have the meaning hereby assigned to them:

" RSTCS[2]" means the Registered Specialist Trade Contractors Scheme managed by the Construction Industry Council and as referred to in the Rules and Procedures applicable to the aforesaid Registered Specialist Trade Contractors Scheme.

"Group 1", "Group 1 (Advanced)" and "Group 2" mean the classification of contractors into Group 1, "Group 1 (Advanced)" and Group 2 under each trade of the Register of Specialist Trade Contractors.

["Building Maintenance" and "Interior Fitting-out" mean the trade of "building maintenance" and "interior fitting-out" respectively under the RSTCS as promulgated by the Construction Industry Council from time to time.][8]

["Painting", "Metal Work", "Structural Steelwork", "Horticultural Works", "Arboriculture Works" and "Skyrise Greenery Works" mean the trade of

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"painting", "metal work", "structural steelwork", "horticultural works", "arboriculture works" and "skyrise greenery works" respectively under the RSTCS as promulgated by the Construction Industry Council from time to time.][9]

(b) Where the Contractor is to [subcontract/sub-let][3] part of the Works execution of which involves trades available in the RSTCS, the Contractor shall only engage, for the purposes of execution of such part of the Works, a subcontractor who has satisfied all of the following criteria:

(i) the subcontractor is the subcontractor stated in the Contractor's latest updated submission of the Subcontractor Management Plan;

(ii) the subcontractor has completed registration under the relevant trade(s) available in the RSTCS before the commencement of the works under the relevant subcontract; and

(iii) if the subcontractor is registered under a trade [9], except [8 Building Maintenance and Interior Fitting-out,][8] Painting, Metal Work, Structural Steelwork, Horticultural Works, Arboriculture Works and Skyrise Greenery Works][9] in the Register of Specialist Trade Contractors, and if the value of relevant subcontract exceeds the tender limit of Group 1, the subcontractor has been admitted into Group 1 (Advanced) or Group 2, and if the value of relevant subcontract exceeds the tender limit of Group 1 (Advanced), the Subcontractor has been admitted into Group 2, before the commencement of the works under the relevant subcontract.

The Contractor shall not engage a subcontractor who is suspended or in the process of an appeal against his suspension from registration in the RSTCS unless the suspension is lifted before the commencement of the works under the relevant subcontracts. The foregoing shall also apply to the Contractor's engagement of [Nominated Subcontractors][4], [Specialist Subcontractors][5] and [7 subcontractors for specialist works referred to in Special Conditions of Contract Clause [ ][6]][7].

(c) The Contractor shall ensure that where any part of the part of the Works subcontracted to :-

(i) a subcontractor engaged under sub-clause 10[1](b) of this Clause;

[(ii) a Nominated Subcontractor;][4]

[(iii) a Specialist Subcontractor; or][5]

[(iv) a subcontractor for specialist works referred to in Special Conditions of Contract Clause [ ][6]][7],

execution of which involves trades available in the RSTCS is further subcontracted (irrespective of any tier), only subcontractors (irrespective of any

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tier) who have satisfied all of the following criteria are engaged for the purposes of execution of such part of the part of the Works:

(i) the subcontractor is the subcontractor stated in the Contractor's latest updated submission of the Subcontractor Management Plan;

(ii) the subcontractor has completed registration under the relevant trade(s) available in the RSTCS before the commencement of the works under the relevant further subcontract; and

(iii) if the subcontractor is registered under a trade [[9], except [[8] Building Maintenance and Interior Fitting-out,][8] Painting, Metal Work, Structural Steelwork, Horticultural Works, Arboriculture Works and Skyrise Greenery Works,][9] in the Register of Specialist Trade Contractors, and if the value of relevant subcontract exceeds the tender limit of Group 1, the subcontractor has been admitted into Group 1 (Advanced) or Group 2, and if the value of relevant subcontract exceeds the tender limit of Group 1 (Advanced), the subcontractor has been admitted into Group 2, before the commencement of the works under the relevant further subcontract.

The Contractor shall also ensure that a subcontractor (irrespective of any tier) who is suspended or in the process of an appeal against his suspension from registration in the RSTCS shall not be engaged for the aforesaid further subcontracting (irrespective of any tier) unless the suspension is lifted before the commencement of the works under the relevant further subcontracts.

Internal Notes:

 # Insert appropriate reference.

1. The numbering of this added sub-clause may vary depending on the type of GCCs used and whether there are other SCC in the contract which also amend GCC Clause 4.

2. Upon the launch of the RSTCS by the CIC on 1 April 2019, seven trades, viz.– (1) Concreting; (2) Concreting Formwork; (3) Curtain Wall; (4) Demolition; (5) Erection of Concrete Precast Component; (6) Reinforcement Bar Fixing; and (7) Scaffolding are included under the Register of Specialist Trade Contractors. One more trade, i.e. (8) Plastering, has been included since 1 January 2021. Two more trades, i.e. (9) Suspended Ceiling and (10) Tower Crane (Erecting, Dismantling, Altering Height), have been included since 1 April 2022. One more trade, i.e. (11) Building Drainage Installation, has been included since 1 September 2022. One more trade, i.e. (15) Levelling and Setting Out, has been included since 1 March 2023. Two more trades, i.e. (13) Building Maintenance and (14) Interior Fitting-out have been included since 1 October 2023. With effect from 1 May 2024, six new trades, i.e. (15) Painting, (16) Metal Work, (17) Structural Steelwork, (18) Horticultural Works, (19) Arboriculture Works and (20) Skyrise Greenery Works will be added to the Register of Specialist Trade Contractors.

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3. Use "subcontract" or "sub-let" as appropriate depending on the type of GCC's used in individual contract.

4. Use as appropriate depending on the type of GCC's used in individual contract.

5. Use when the standard SCC in WBTC No. 25/94 (entitled "Standard Form of Domestic Subcontract for specialist works") is used in individual contract.

6. Insert the number of the SCC in the individual contract which has used the standard SCC for subcontracting in Secretary for Works' memo WB(W) 209/32/110 (entitled "Library of Special Conditions of Contract Clause 14 - Subcontracting") dated 23.3.2001.

7. Use when standard SCC on subcontracting in Secretary for Works' memo WB(W)209/32/110 (entitled "Library of Special Conditions of Contract Clause 14 - Subcontracting") dated 23.3.2001 is used in individual contract.

8. The words in square brackets should be deleted for contracts for which tenders will be invited on or after 1 July, 2024, i.e. the tender limits of Group 1, Group 1 (Advanced) and Group 2 should be observed for all trades including, Building Maintenance and Interior Fitting-out, except Painting, Metal Work, Structural Steelwork, Horticultural Works, Arboriculture Works and Skyrise Greenery Works. (SDEV's memo ref. DEVB(W) 510/94/02 dated 1.12.2022 refers)

9. The words in square brackets should be deleted for contracts for which tenders will be invited on or after 1 February, 2025, i.e. the tender limits of Group 1, Group 1 (Advanced) and Group 2 should be observed for all trades including Painting, Metal Work and Structural Steelwork while the tender limits of Group 1 and Group 2 should be observed for all trades including Horticultural Works, Arboriculture Works and Skyrise Greenery Works.„ (SDEV's memo ref. DEVB(W) 510/94/02 dated 10.4.2024, refers)

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APPENDIX 5.6A NOTES TO TENDERERS AND APPENDIX TO SPECIAL CONDITIONS OF CONTRACT FOR SUBCONTRACTOR MANAGEMENT PLAN (FOR GENERAL CONDITIONS OF CONTRACT (GCC))

The following Notes to Tenderers and Appendix to Special Conditions of Contract shall be included in tenders for all capital and maintenance works contracts:

Notes to Tenderers

NTT C2 Payment for Sub-contractor Management Plan

Tenderers' attention is drawn to Clause [GCT 20]# of General Conditions of Tender, Clause [X]# of Special Conditions of Contract and Clause [X]# of the Particular Specification requiring the submission and quarterly updating of the Subcontractor Management Plan (SMP) in the form and contents as prescribed in the Contract. Tenderers' attention is also drawn to the requirement to monitor and ensure the implementation of and the compliance with the SMP.

Tenderers should note that there are no separate items in the [*Bills of Quantities/Schedule of Rates] for measurement of "complete Subcontractor Management Plan" and "quarterly updating of Subcontractor Management Plan" and that, in line with the [*General Preambles/Method of Measurement] to the [*Bills of Quantities/Schedule of Rates], the rates in the [*Bills of Quantities/Schedules of Rates] shall cover, inter alia, the provision of implementation of and compliance with the SMP.

NTT C3 Details of Sub-contractor Management Plan

Tenderers' attention is drawn to the Appendix [X]# to Clause [X]# of Special Conditions of Contract on the scope and contents of Subcontractor Management Plan, including but not limited to the details of subcontract(s), the trade and group (if any) of the sub-contractor under the Registered Specialist Trade Contractors Scheme and value of the subcontract(s).

Internal Notes:

 # Insert appropriate reference

*** Delete or amend as appropriate**

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Appendix [X]# to SCC [X]#

Guidelines on Scope and Contents of Subcontractor Management Plan

The Subcontractor Management Plan shall include (but not limited to) the following:

i) Scope of works to be subcontracted including the form and extent of subcontracting arrangement such as labour only, labour and plant, labour and material, plant only, lump sum or any other combination of types. Proof of ownership of construction plant and material shall be addressed. The scope of works to be subcontracted shall comply with the relevant contractual provisions (i.e. the SCC for Limiting the Tiers of Subcontracting).

ii) Particulars of subcontracts (irrespective of tiers) as required under the Template under Table 1.

iii) The Contractor's approach to demand/ensure his subcontractor(s) to a) abstain from sub-contracting the whole of the works sub-contracted to him/them, and b) report upwards his/their subcontracting arrangement and any subsequent changes with written declarations of no "hidden" subcontracts for any part of the Works sub-contracted to any of them.

iv) The Contractor's proposed measures for supervision of the works and monitoring of the performance of subcontractors, particularly the aspects of the works programming, quality and safety of the works and environmental protection.

v) The Contractor's proposed measures for monitoring the performance of the sub-contractors in complying with the requirements in the contract in reporting site accidents.

vi) The Contractor's approach to ensure all sub-contractors, irrespective of tiers, to incorporate the Mandatory Subcontract Conditions for Prohibition of Imposing Administrative Charges for Reporting of Site Accidents and Elimination of Under-reporting of Site Accidents.

(vii) Criteria for selection of subcontractor(s) involving trade(s) not available in the Registered Specialist Trade Contractors Scheme (RSTCS).

(viii) The Contractor's approach to ensure all his subcontractor(s) (irrespective of tiers) to adopt written contracts in his/their subcontracting and that all the sub-contract(s) comply with the requirements as stipulated in the Contract (i.e. SCC for Subcontract conditions) and incorporate the Mandatory Subcontract Conditions for Security of Payment.

(ix) Details of the Contractor's Management Team, as required in the Contract (i.e. the SCC for Contractor's Management Team), employed on direct supervision and management of subcontractor(s). An organization chart showing the responsibilities of the Contractor's direct staff in supervision and management of his subcontractor(s) shall be submitted.

(x) Declaration through the standard declaration form that members of staff on the Contractor's Management Team are prohibited to be given a subcontract to any part of the Works or to have a vested interest in any of the subcontractors irrespective of tiers.

(xi) The Contractor's proposed measures to ensure the compliance with the implementation of the system of payment of wages to the Site Workers as stipulated in the Contract (i.e. SCC for Payment of Wages of Site Workers). The Contractor's proposed measures for ensuring timely payments to subcontractor(s) and payments by subcontractor(s) to subcontractor(s) of lower tiers.

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[NB. The above items are not exhaustive. The Contractor can add any other items, which he considers pertinent to the proper management of his subcontractor(s).]

Internal Note:

[#] Insert appropriate reference

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Appendix [X]# to SCC [X]#

[For contracts without contract measures to prevent non-payment of wages and/or limiting number of tiers of subcontracting]

Guidelines on Scope and Contents of Subcontractor Management Plan

The Subcontractor Management Plan shall include (but not limited to) the following:

i) Scope of works to be subcontracted including the form and extent of subcontracting arrangement such as labour only, labour and plant, labour and material, plant only, lump sum or any other combination of types. Proof of ownership of construction plant and material shall be addressed.

ii) Particulars of subcontracts (irrespective of tiers) as required under the Template under Table 1.

iii) Criteria for selection of subcontractor(s) involving trade(s) not available in the Registered Specialist Trade Contractors Scheme (RSTCS).

iv) Details of the Contractor's own staff employed for direct supervision and management of his subcontractor(s). An organization chart showing the responsibilities of the contractor's direct staff in supervision and management of his subcontractor(s) shall be submitted.

v) The Contractor's approach to demand/ensure his subcontractor(s) to a) abstain from subcontracting the whole of the works subcontracted to him/them, and b) submit written declarations of no "hidden" subcontracting of works.

vi) The Contractor's approach to encourage his subcontractor(s) to adopt written contract(s) in his/their subcontracting and that all the sub-contract(s) comply with the requirements as stipulated in the Contract to incorporate the Mandatory Subcontract Conditions for Security of Payment.

vii) The Contractor's proposed measures to demand his subcontractor(s) to report upward his/their subcontracting arrangement(s) and any subsequent changes.

viii) The Contractor's proposed measures for monitoring and assessing the works programme, quality, safety and environmental performance of his subcontractors.

ix) The Contractor's proposed measures for monitoring the performance of the sub-contractors in complying with the requirements in the Contract in reporting site accidents.

x) The Contractor's approach to ensure all sub-contractors, irrespective of tiers, to incorporate the Mandatory Subcontract Conditions for Prohibition of Imposing Administrative Charges for Reporting of Site Accidents and Elimination of Under-reporting of Site Accidents.

xi) The Contractor's proposed measures for ensuring timely payment to downstream sub-contractor(s) after his payment to his direct subcontractor(s)

xii) The Contractor's approach for monitoring disputes.

xiii) The Contractor's approach for handling complaints from workers on site regarding wages arrears disputes and co-ordinating with Labour Department for prompt action. Contractors are required to keep the Architect/Engineer/Supervising Officer's site representatives updated of the situation.

xiv) The Contractor's proposed measures for maintaining updated daily attendance records of all workers on site.

xv) The Contractor's proposed measures for site security and workers' daily access control if applicable.

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[NB. The above items are not exhaustive. The Contractor can add any other issues, which he considers pertinent to the proper management of his subcontractor(s).]

Internal Note:
[#] Insert appropriate reference

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Appendix [X]# to SCC [X]#

Standard Declaration Form by the Contractor
on Compliance with Provisions in
Sub-contractor Management Plan

To: The [Engineer / Maintenance Engineer / Supervising Officer / Maintenance Surveyor]*

Contract No. : _____

Contract Title : _____

In accordance with the Guidelines on Scope and Contents of Subcontractor Management Plan referred in SCC [X]#, I / we declare and confirm that we have complied with and undertake to continue to comply with the following provisions, and declare and confirm that I / we have ensured and undertake to continue to ensure that our members of staff on the Contractor's Management Team as referred in SCC [Y]# are aware of the following provisions:

(a) Members of staff on the Contractor's Management Team are prohibited from being given a subcontract to any part of the Works or having a vested interest in any of the subcontractors irrespective of tiers;

(b) Members of staff on the Contractor's Management Team are required to submit written declarations to the [Engineer / Maintenance Engineer / Supervising Officer / Maintenance Surveyor]* upon his / her written request from time to time or at any time that they do not have a subcontract to any part of the Works or any vested interest in any of the sub-contractors irrespective of tiers.

(Name of the Contractor) _____

(Name of the Signatory) _____

(Position of the Signatory) _____

(Date) _____

Internal Notes:
 # Insert appropriate reference
*** Delete where inappropriate**

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Appendix [X]# to SCC [X]#

Table 1 - Particulars of Sub-contracts (1)

No.	Contract No.	Contract Title	Contract Sum ($)	Contact Point	Company Name of Sub-contractor	Commencement Date	Program	No. of Tier	Form of Sub-contractor	Type(2) (RSTC or RS)	Trade(3)	Specialty(3) (NA for RSTC)	Registration No.	Expiry Date	Value(4)	Grouping(5) (1, 2 or NA)
e.g.	CV/XXXX/XX	Construction of XXX	100,000,000	Mr. XXX, E/XX	ABC Company Ltd.	1-10-2020	9 months	1	labour, plant & material	RSTC	Concreting Formwor	NA	XXXXXX	31-3-2022	E	1
	CV/XXXX/XX	Construction of XXX	100,000,000	Mr. XXX, E/XX	123 Company Ltd.	1-10-2020	12 months	2	labour & plant	RS	Fire Services Installatio	ervices pipe work	XXXXXX	31-3-2022	D	NA
1																
2																

Notes:

(1) Apart from the above information, the Contractor shall provide additional information and supporting document upon requested.

(2) RSTC refers to the Registered Specialist Trade Contractors under the Registered Specialist Trade Contractors Scheme (RSTCS) of the Construction Industry Council (CIC).

RS refers to the Registered Subcontractors under the RSTCS.

(3) One row for one particular trade or specialty. Sub-contract with multiple trades or specialties shall be reported individually in several rows. For details of the classification of trade and specialty, please refer to the website of the RSTC .cic.hk managed by the CIC.
RSTCS covers 20_ designated trade groups, viz. (1) Concreting, (2) Concreting Formwork, (3) Curtain Wall, (4) Demolition, (5) Erection of Concrete Precast Component, (6) Reinforcement Bar Fixing, (7) Scaffolding, (8) Plastering, ed Ceiling, (10) Tower Crane (Erecting, Dismantling, Altering Height), (11) Building Drainage Installation, (12) Levelling and Setting Out, (13) Building Maintenance, (14) Interior Fitting-out, (15) Painting, (16) Metal Work, (17) Structural Steelwork, (18) Ho orks, (19) Arboriculture Works and (20) Skyrise Greenery Works.

(4) One value for one particular trade group and specialty. The ranges of Value A to G are shown below:

A: Value < $1M

B: $1M ≤ Value < $3M
C: $3M ≤ Value < $6M
D: $6M ≤ Value < $15M
E: $15M ≤ Value < $30M
F: $30M ≤ Value < $50M
G: Value ≥ $50M

(5) Group 1, Group 1A and Group 2 refer to the tender limits set by CIC for the 20_ designated trades mentioned in (3) above, which are only applicable to RSTC. For details of the tender limits, please refer to the website of the RSTC .cic.hk managed by the CIC

Internal Note:
Insert appropriate reference

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APPENDIX 5.6B NOTES TO TENDERERS AND ADDITIONAL CONDITIONS OF CONTRACT FOR ENGAGEMENT OF SUBCONTRACTORS REGISTERED FROM THE "REGISTERED SPECIALIST TRADE CONTRACTORS SCHEME" (FOR NEW ENGINEERING CONTRACT (NEC) – ENGINEERING AND CONSTRUCTION CONTRACT (ECC))

The following Notes to Tenderers and Additional Conditions of Contract shall be included in tenders for all capital works contracts:

Notes to Tenderers

NTT C1 Engagement of Subcontractors who are Registered under the Respective Trades and Groups available in the Registered Specialist Trade Contractors Scheme (RSTCS)

Tenderers' attention is drawn to the Clause [C6]# of the *additional conditions of contract* requiring the engagement of subcontractors who are registered under the respective trades and groups available in the Registered Specialist Trade Contractors Scheme (RSTCS).

Additional Conditions of Contract

[C6]# Engagement of Subcontractors who are registered under the respective trades and groups available in the Registered Specialist Trade Contractors Scheme (RSTCS)

(1) For the purpose of this Clause, the following words and expressions shall have the meaning hereby assigned to them:

"RSTCS[1]" means the Registered Specialist Trade Contractors Scheme managed by the Construction Industry Council and as referred to in the Rules and Procedures applicable to the aforesaid Registered Specialist Trade Contractors Scheme.

"Group 1", "Group 1 (Advanced)" and "Group 2" mean the classification of contractors into Group 1, Group 1 (Advanced) and Group 2 under each trade of the Register of Specialist Trade Contractors.

["Gondola (Permanent)" and "Gondola (Temporary)" mean the trade of"gondola (permanent)" and "gondola (temporary)" respectively under the RSTCS as promulgated by the Construction Industry Council from time to time.][3]

["Levelling and Setting Out" means the trade of "levelling and setting out" under the RSTCS as promulgated by the Construction Industry Council from time to time.][4]

["Building Maintenance" and "Interior Fitting-out" mean the trade of "building maintenance" and "interior fitting-out" respectively under the RSTCS as promulgated by the Construction Industry Council from time to time.][3]

["Painting", "Metal Work", "Structural Steelwork", "Horticultural Works", "Arboriculture Works" and "Skyrise Greenery Works" mean the trade of

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"painting", "metal work", "structural steelwork", "horticultural works", "arboriculture works" and "skyrise greenery works" respectively under the RSTCS as promulgated by the Construction Industry Council from time to time.][4]

(2) Where the *Contractor* is to subcontract part of the *works*, performance of which involves trades available in the RSTCS, the *Contractor* shall only engage, for the purposes of execution of such part of the *works*, a Subcontractor who has satisfied all of the following criteria:

(i) the Subcontractor is the subcontractor stated in the *Contractor*'s latest updated submission of the Subcontractor Management Plan;

(ii) the Subcontractor has completed registration under the relevant trades available in the RSTCS before the commencement of the work under the relevant subcontracts; and

(iii) if the Subcontractor is registered under a trade [[4], except [[3] Building Maintenance and Interior Fitting-out,][3] Painting, Metal Work, Structural Steelwork, Horticultural Works, Arboriculture Works and Skyrise Greenery Works,][4] in the Register of Specialist Trade Contractors and if the value of relevant subcontract exceeds the tender limit of Group 1, the Subcontractor has been admitted into Group 1 (Advanced) or Group 2, and if the value of relevant subcontract exceeds the tender limit of Group 1 (Advanced), the Subcontractor has been admitted into Group 2, before the commencement of the work under the relevant subcontract.

The *Contractor* shall not engage a Subcontractor who is suspended or in the process of an appeal against his suspension from registration in the RSTCS unless the suspension is lifted before the commencement of the work under the relevant subcontracts. The foregoing shall also apply to the *Contractor*'s engagement of Specialist Subcontractors in Clause [C3][2] of these *additional conditions of contract*.

(3) The *Contractor* shall ensure that where any part of the part of the *works* subcontracted to a Subcontractor engaged under sub-clause (2) performance of which involves trades available in the RSTCS is further subcontracted (irrespective of any tier), only subcontractors (irrespective of any tier) who have satisfied all of the following criteria are engaged for the purposes of execution of such part of the part of the *works*:

(i) the Subcontractor is the subcontractor stated in the *Contractor*'s latest updated submission of the Subcontractor Management Plan;

(ii) the Subcontractor has completed registration under the relevant trades available in the RSTCS before the commencement of the work under the relevant further subcontracts; and

(iii) if the Subcontractor is registered under a trade [[4], except [[3] Building Maintenance and Interior Fitting-out,][5] Painting, Metal Work, Structural Steelwork, Horticultural Works, Arboriculture Works and Skyrise Greenery Works,][4] in the Register of Specialist Trade Contractors, and if the value of relevant subcontract exceeds the tender limit of Group 1, the Subcontractor has been admitted into Group 1 (Advanced) or Group 2, and if the value of

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relevant subcontract exceeds the tender limit of Group 1 (Advanced), the Subcontractor has been admitted into Group 2, before the commencement of the work under the relevant subcontract.

The *Contractor* shall also ensure that a Subcontractor (irrespective of any tier) who is suspended or in the process of an appeal against his suspension from registration in the RSTCS shall not be engaged for the aforesaid further subcontracting (irrespective of any tier) unless the suspension is lifted before the commencement of the work under the relevant further subcontracts.

Internal Notes:

 # Insert appropriate reference.

1. **Upon the launch of the RSTCS by the CIC on 1 April 2019, seven trades, viz. (1) Concreting; (2) Concreting Formwork; (3) Curtain Wall; (4) Demolition; (5) Erection of Concrete Precast Component; (6) Reinforcement Bar Fixing; and (7) Scaffolding are included under the Register of Specialist Trade Contractors. One more trade, i.e. (8) Plastering, has been included since 1 January 2021. Two more trades, i.e. (9) Suspended Ceiling and (10) Tower Crane (Erecting, Dismantling, Altering Height), have been included since 1 April 2022. One more trade, i.e. (11) Building Drainage Installation, has been included since 1 September 2022. One more trade, i.e. (12) Levelling and Setting Out, has been included since 1 March 2023.,, Two more trades, i.e. (13) Building Maintenance and (14) Interior Fitting-out have been included since 1 October 2023. With effect from 1 May 2024, six new trades, i.e. (15) Painting, (16) Metal Work, (17) Structural Steelwork, (18) Horticultural Works, (19) Arboriculture Works and (20) Skyrise Greenery Works will be added to the Register of Specialist Trade Contractors.**

2. **Insert appropriate reference which refers to Clause C3 of Library of Standard Additional Conditions of Contract for NEC ECC regarding "Specialist Subcontractors".**

3. **The words in square brackets should be deleted for contracts for which tenders will be invited on or after 1 October 2023, i.e. the tender limits of Group 1, Group 1 (Advance) and Group 2 should be observed for all trades including, Building Maintenance, and Interior Fitting-out except Painting, Metal Work, Structural Steelwork, Horticultural Works, Arboriculture Works and Skyrise Greenery Works. (SDEV's memo ref. DEVB(W)510/94/02 dated 6.9.2023, refers)**

4. **The words in square brackets should be deleted for contracts for which tenders will be invited on or after 1 February 2024, i.e. the tender limits of Group 1, Group 1 (Advanced) and Group 2 should be observed for all trades including, Painting, Metal Work and Structural Steelwork while the tender limits of Group 1 and Group 2 should be observed for all trades including Horticultural Works, Arboriculture Works and Skyrise Greenery Works. (SDEV's memo ref. DEVB(W) 510/94/02 dated 10.4.2024, refers)**

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APPENDIX 5.6B1 NOTES TO TENDERERS AND ADDITIONAL CONDITIONS OF CONTRACT FOR ENGAGEMENT OF SUBCONTRACTORS REGISTERED FROM THE "REGISTERED SPECIALIST TRADE CONTRACTORS SCHEME" (FOR NEW ENGINEERING CONTRACT (NEC) – ENGINEERING AND CONSTRUCTION CONTRACT (ECC) HONG KONG EDITION)

The following Notes to Tenderers and Additional Conditions of Contract shall be included in tenders for all capital works contracts:

Notes to Tenderers

NTT C1 Engagement of Subcontractors who are Registered under the Respective Trades and Groups available in the Registered Specialist Trade Contractors Scheme (RSTCS)

Tenderers' attention is drawn to the Clause [V:4]# of the *additional conditions of contract* requiring the engagement of subcontractors who are registered under the respective trades and groups available in the Registered Specialist Trade Contractors Scheme (RSTCS).

Additional Conditions of Contract

V:4 Subcontractor Registration Scheme

(1) For the purpose of this Clause,

(a) "RSTCS" means the Registered Specialist Trade Contractors Scheme managed by the Construction Industry Council and as referred to in the Rules and Procedures applicable to the aforesaid Scheme.

(b) "Register of Specialist Trade Contractors" means the register of specialist trade contractors compiled by the Construction Industry Council for the purpose of the RSTCS.

(c) "Group 1", "Group 1 (Advanced)" and "Group 2" mean the classification of contractors into Group 1, Group 1 (Advanced) and Group 2 under each trade of the Register of Specialist Trade Contractors.

(d) [Note 1 "Painting", "Metal Work", "Structural Steelwork", "Horticultural Works", "Arboriculture Works" and "Skyrise Greenery Works" mean the trade of "painting", "metal work", "structural steelwork", "horticultural works", "arboriculture works" and "skyrise greenery works" respectively under the Register of Specialist Trade Contractors.] Note 1

(2) If the *Contractor* is to subcontract part of the *works*, except the part of the *works* to be done by a Specialist Contractor stated in ACC Clause V:5, involving trades available in the RSTCS, the *Contractor* appoints a Subcontractor

(a) that is identified as a subcontractor in the latest SMP,

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(b) that is registered under the relevant trade in the RSTCS before the subcontract work starts, and

(c) if the Subcontractor is registered under a trade [Note 1, except Painting, Metal Work, Structural Steelwork, Horticultural Works and Skyrise Greenery Works,]Note 1 in the Register of Specialist Trade Contractors, that has been admitted into Group 1 (Advanced) or Group 2 before the subcontract work starts if the value of the subcontract exceeds the tender limit of Group 1 and that has been admitted into Group 2 before the subcontract work starts if the value of the subcontract exceeds the tender limit of Group 1 (Advanced).

The *Contractor* does not appoint a Subcontractor that is suspended or in the process of appealing against its suspension from registration unless the suspension will be lifted before the subcontract work starts.

(3) The *Contractor* ensures that a Tier Subcontractor that has been subcontracted with part of the *works*, except the part of the *works* to be done by a Specialist Contractor stated in ACC Clause V:5, involving trades available in the RSTCS

(a) is identified as a Tier Subcontractor in the latest SMP,

(b) is registered under the relevant trade in the RSTCS before the subsubcontract work starts, and

(c) if the Tier Subcontractor is registered under a trade [Note 1, except Painting, Metal Work, Structural Steelwork, Horticultural Works and Skyrise Greenery Works,]Note 1 in the Register of Specialist Trade Contractors, is admitted into Group 1 (Advanced) or Group 2 before the subsubcontract work starts if the value of the subsubcontract exceeds the tender limit of Group 1 and is admitted into Group 2 before the subsubcontract work starts if the value of the subsubcontract exceeds the tender limit of Group 1 (Advanced).

The Tier Subcontractor is not appointed if it is suspended or in the process of appealing against its suspension from registration unless the suspension will be lifted before the subsubcontract work starts.

Notes:

1. The words in square brackets should be deleted for contracts for which tenders will be invited on or after 1 February 2025, i.e. the tender limits of Group 1, Group 1 (Advanced) and Group 2 should be observed for all trades including Painting, Metal Work and Structural Steelwork while the tender limits of Group 1 and Group 2 should be observed for all trades including Horticultural Works, Arboriculture Works and Skyrise Greenery Works. (SDEV's memo ref. DEVB(W) 510/94/02 dated 10 April 2024 refers)

Amd No. 2/2025

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APPENDIX 5.6C NOTES TO TENDERERS AND APPENDIX TO ADDITIONAL CONDITIONS OF CONTRACT FOR SUBCONTRACTOR MANAGEMENT PLAN (FOR NEW ENGINEERING CONTRACT (NEC) - ENGINEERING AND CONSTRUCTION CONTRACT (ECC))

The following Notes to Tenderers and Appendix to Additional Conditions of Contract shall be included in tenders for all capital works contracts:

Notes to Tenderers

NTT C2 Payment for Subcontractor Management Plan

Tenderers' attention is drawn to Clause [GCT 20]# of General Conditions of Tender, Clause [C5]# of *additional conditions of contract* and Clause [X]# of the Particular Specification requiring the submission and quarterly updating of the Subcontractor Management Plan (SMP) in the form and contents as prescribed in the contract. Tenderers' attention is also drawn to the requirement to monitor and ensure the implementation of and the compliance with the SMP.

Tenderers should note that there are no separate items in the [bill of quantities* / **activity schedule*] for "submission of Subcontractor Management Plan" and "quarterly updating of Subcontractor Management Plan". The prices in the [**bill of quantities* / **activity schedule*] shall cover, inter alia, the provision of implementation of and compliance with the SMP.**

NTT C3 Details of Subcontractor Management Plan

Tenderers' attention is drawn to the Appendix [X]# to Clause [C5]# of *additional conditions of contract* on the scope and contents of Subcontractor Management Plan, including but not limited to the details of subcontract(s), the trade and group (if any) of the subcontractor under the Registered Specialist Trade Contractors Scheme and value of the subcontract(s).

Internal Notes:

 # Insert appropriate reference

*** Delete or amend as appropriate**

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Appendix [X]# to ACC [C5]#

Guidelines on Scope and Contents of Subcontractor Management Plan

The Subcontractor Management Plan shall include (but not limited to) the following:

i) **Scope of works to be subcontracted including the form and extent of subcontracting arrangement such as labour only, labour and plant, labour and material, plant only, lump sum or any other combination of types. Proof of ownership of construction plant and material shall be addressed. The scope of works to be subcontracted shall comply with the relevant contractual provisions (i.e. the ACC for Limiting the Tiers of Subcontracting).**

ii) **Particulars of subcontracts (irrespective of tiers) as required under the Template under Table 1.**

iii) **The *Contractor*'s approach to demand/ensure his subcontractor(s) to a) abstain from subcontracting the whole of the works subcontracted to him/them, and b) report upwards his/their subcontracting arrangement and any subsequent changes with written declarations of no "hidden" subcontracts for any part of the *works* subcontracted to any of them.**

iv) **The *Contractor*'s proposed measures for supervision of the works and monitoring of the performance of subcontractors, particularly the aspects of the works programming, quality and safety of the works and environmental protection.**

v) **The *Contractor's* proposed measures for monitoring the performance of the subcontractors in complying with the requirements in the contract in reporting site accidents.**

vi) **The *Contractor's* approach to ensure all subcontractors, irrespective of tiers, to incorporate the Mandatory Subcontract Conditions for Prohibition of Imposing Administrative Charges for Reporting of Site Accidents and Elimination of Under-reporting of Site Accidents.**

vii) **Criteria for selection of subcontractor(s) involving trade(s) not available in the Registered Specialist Trade Contractors Scheme (RSTCS).**

viii) **The *Contractor*'s approach to ensure all his subcontractor(s) (irrespective of tiers) to adopt written contracts in his/their subcontracting and that all the subcontract(s) comply with the requirements as stipulated in the Contract (i.e. ACC for Subcontract conditions) and incorporate the Mandatory Subcontract Conditions for Security of Payment.**

ix) **Details of the *Contractor*'s Management Team, as required in the Contract (i.e. the ACC for *Contractor*'s Management Team), employed on direct supervision and management of subcontractor(s). An organization chart showing the responsibilities of the *Contractor*'s direct staff in supervision and management of his subcontractor(s) shall be submitted.**

x) **Declaration through the standard declaration form that members of staff on the *Contractor*'s Management Team are prohibited to be given a subcontract to any part of the *works* or to have a vested interest in any of the subcontractors irrespective of tiers.**

xi) **The *Contractor*'s proposed measures to ensure the compliance with the implementation of the system of payment of wages to the Site Workers as stipulated in the Contract (i.e. ACC for Payment of Wages of Site Workers). The *Contractor*'s proposed measures for ensuring timely payments to subcontractor(s) and payments by subcontractor(s) to subcontractor(s) of lower tiers.**

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[NB. The above items are not exhaustive. The Contractor can add any other items, which he considers pertinent to the proper management of his subcontractor(s).]

Internal Note:
[#] Insert appropriate reference

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Appendix [X]# to ACC [C5]#

[For contracts without contract measures to prevent non-payment of wages and/or limiting number of tiers of subcontracting]

Guidelines on Scope and Contents of Subcontractor Management Plan

The Subcontractor Management Plan shall include (but not limited to) the following:

i) Scope of works to be subcontracted including the form and extent of subcontracting arrangement such as labour only, labour and plant, labour and material, plant only, lump sum or any other combination of types. Proof of ownership of construction plant and material shall be addressed.

ii) Particulars of subcontracts (irrespective of tiers) as required under the Template under Table 1.

iii) Criteria for selection of subcontractor(s) involving trade(s) not available in the Registered Specialist Trade Contractors Scheme (RSTCS).

iv) Details of the *Contractor*'s own staff employed for direct supervision and management of his subcontractor(s). An organization chart showing the responsibilities of the contractor's direct staff in supervision and management of his subcontractor(s) shall be submitted.

v) The *Contractor*'s approach to demand/ensure his subcontractor(s) to a) abstain from subcontracting the whole of the works subcontracted to him/them, and b) submit written declarations of no "hidden" subcontracting of works.

vi) The *Contractor's* approach to encourage his subcontractor(s) to adopt written contract(s) in his/their subcontracting and that all the subcontract(s) comply with the requirements as stipulated in this contract to incorporate the Mandatory Subcontract Conditions for Security of Payment.

vii) The *Contractor*'s proposed measures to demand his subcontractor(s) to report upward his/their subcontracting arrangement(s) and any subsequent changes.

viii) The *Contractor*'s proposed measures for monitoring and assessing the works programme, quality, safety and environmental performance of his subcontractors.

ix) The *Contractor's* proposed measures for monitoring the performance of the subcontractors in complying with the requirements in the contract in report in site accidents.

x) The *Contractor's* approach to ensure all subcontractors, irrespective of tiers, to incorporate the Mandatory Subcontract Conditions for Prohibition of Imposing Administrative Charges for Reporting of Site Accidents and Elimination of Under-reporting of Site Accidents.

xi) The *Contractor*'s proposed measures for ensuring timely payment to downstream subcontractor(s) after his payment to his direct subcontractor(s).

xii) The *Contractor*'s approach for monitoring disputes.

xiii) The *Contractor*'s approach for handling complaints from workers on site regarding wages arrears disputes and co-ordinating with Labour Department for prompt action. *Contractors* are required to keep the Architect/Engineer/Supervising Officer's site representatives updated of the situation.

xiv) The *Contractor*'s proposed measures for maintaining updated daily attendance records of all workers on site.

xv) The *Contractor*'s proposed measures for site security and workers' daily access control if applicable.

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[NB. The above items are not exhaustive. The Contractor can add any other issues, which he considers pertinent to the proper management of his subcontractor(s).]

Internal Note:
[#] Insert appropriate reference

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Appendix [X]# to ACC [C5]#

Standard Declaration Form by the *Contractor*
on Compliance with Provisions in
Subcontractor Management Plan

To: The *Project Manager*

Contract No. : _____

Contract Title : _____

In accordance with the Guidelines on Scope and Contents of Subcontractor Management Plan referred in ACC [C5]#, I / we declare and confirm that we have complied with and undertake to continue to comply with the following provisions, and declare and confirm that I / we have ensured and undertake to continue to ensure that our members of staff on the *Contractor*'s Management Team as referred in ACC [D1]# are aware of the following provisions:

(a) Members of staff on the *Contractor*'s Management Team are prohibited from being given a subcontract to any part of the *works* or having a vested interest in any of the subcontractors irrespective of tiers;

(b) Members of staff on the *Contractor*'s Management Team are required to submit written declarations to the *Project Manager* upon his / her written request from time to time or at any time that they do not have a subcontract to any part of the *works* or any vested interest in any of the subcontractors irrespective of tiers.

(Name of the *Contractor*) _____

(Name of the Signatory) _____

(Position of the Signatory) _____

(Date) _____

Internal Note:
 # Insert appropriate reference

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Appendix [X]# to ACC [C5]#

Table 1 - Particulars of Subcontracts(1)

No.	Contract No.	Contract Title	Contract Sum ($)	Contact Point	Company Name of Subcontractor	Commencement Date	Program	No. of Tier	Form of Subcontractor	Type(2) (RSTC or RS)	Trad	Specialty(3) (NA for RSTC)	Registration No.	Expiry Date	Value(4)	Grouping(5) (1, 2 or NA)
e.g.	CV/XXXX/XX	Construction of XXX	100,000,000	Mr. XXX, E/XX	ABC Company Ltd.	1-10-2020	9 months	1	labour, plant & material	RSTC	Concreting	NA	XXXXXX	31-3-2022	E	1
	CV/XXXX/XX	Construction of XXX	100,000,000	Mr. XXX, E/XX	123 Company Ltd.	1-10-2020	12 months	2	labour & plant	RS	Fire Services	Fire services pipe work	XXXXXX	31-3-2022	D	NA
1																
2																

Notes:

(1) Apart from the above information, the *Contractor* shall provide additional information and supporting document upon requested.

(2) RSTC refers to the Registered Specialist Trade Contractors under the Registered Specialist Trade Contractors Scheme (RSTCS) of the Construction Industry Council (CIC).

RS refers to the Registered Subcontractors under the RSTCS.

(3) One row for one particular trade or specialty. Subcontract with multiple trades or specialties shall be reported individually in several rows. For details of the classification of trade and specialty, please refer to the website of the RSTCS ...ic.hk managed by the CIC. RSTCS covers 20_ designated trade groups, viz. (1) Concreting, (2) Concreting Formwork, (3) Curtain Wall, (4) Demolition, (5) Erection of Concrete Precast Component, (6) Reinforcement Bar Fixing, (7) Scaffolding, (8) Plastering, (9) Suspended Ceiling, (10) Tower Crane (Erecting, Dismantling, Altering Height), (11) Building Drainage Installation, (12) Levelling and Setting Out, (13) Building Maintenance,(14) Interior Fitting-out, (15) Painting, (16) Metal W...ructural Steelwork, (18) Horticultural Works, (19) Arboriculture Works and (20) Skyrise Greenery Works.

(4) One value for one particular trade group and specialty. The ranges of Value A to G are shown below:

A: Value < $1M

B: $1M ≤ Value < $3M
C: $3M ≤ Value < $6M
D: $6M ≤ Value < $15M
E: $15M ≤ Value < $30M
F: $30M ≤ Value < $50M
G: Value ≥ $50M

(5) Group 1, Group 1A and Group 2 refer to the tender limits set by CIC for the 20_ designated trades mentioned in (3) above, which are only applicable to RSTC. For details of the tender limits, please refer to the website of the RSTCS ...cic.hk managed by the CIC

Internal Note:

Insert appropriate reference

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APPENDIX 5.6C1 NOTES TO TENDERERS AND APPENDIX TO ADDITIONAL CONDITIONS OF CONTRACT FOR SUBCONTRACTOR MANAGEMENT PLAN (FOR NEW ENGINEERING CONTRACT (NEC) - ENGINEERING AND CONSTRUCTION CONTRACT (ECC) HONG KONG EDITION)

The following Notes to Tenderers and Appendix to Additional Conditions of Contract shall be included in tenders for all capital works contracts:

Notes to Tenderers

NTT C2 Payment for Subcontractor Management Plan

Tenderers' attention is drawn to Clause [GCT 20]# of General Conditions of Tender, Clause [V:2]# of *additional conditions of contract* and Clause [X]# of the Particular Specification requiring the submission and quarterly updating of the Subcontractor Management Plan (SMP) in the form and contents as prescribed in the contract. Tenderers' attention is also drawn to the requirement to monitor and ensure the implementation of and the compliance with the SMP.

Tenderers should note that there are no separate items in the [bill of quantities* / **activity schedule*] for "submission of Subcontractor Management Plan" and "quarterly updating of Subcontractor Management Plan". The prices in the [**bill of quantities* / **activity schedule*] shall cover, inter alia, the provision of implementation of and compliance with the SMP.**

NTT C3 Details of Subcontractor Management Plan

Tenderers' attention is drawn to the Appendix [X]# to Clause [V:2]#

Internal Notes:

 # Insert appropriate reference

*** Delete or amend as appropriate**

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Appendix [X]# to ACC [V:2]#

[For contracts with contract measures to prevent non-payment of wages]

Guidelines on Scope and Contents of Subcontractor Management Plan

The Subcontractor Management Plan shall include (but not limited to) the following:

(i) **Scope of works to be subcontracted including the form and extent of subcontracting arrangement such as labour only, labour and plant, labour and material, plant only, lump sum or any other combination of types. Proof of ownership of construction plant and material shall be addressed. The scope of works to be subcontracted shall comply with the relevant contractual provisions (i.e. ACC Clause V:3 on Limiting Tiers of Subcontracting).**

(ii) **Particulars of subcontracts (irrespective of tiers) as required under the Template under Table 1.**

(iii) **The *Contractor*'s approach to demand/ensure its Subcontractor(s) to a) abstain from subcontracting the whole of the works subcontracted to it/them, and b) report upwards its/their subcontracting arrangement and any subsequent changes with written declarations of no "hidden" subcontracts for any part of the *works* subcontracted to any of them.**

(iv) **The *Contractor*'s proposed measures for supervision of the works and monitoring of the performance of Subcontractors, particularly the aspects of the works programming, quality and safety of the works and environmental protection.**

(v) **The C*ontractor*'s proposed measures for monitoring the performance of the Subcontractors in complying with the requirements in the contract in reporting site accidents.**

(vi) **The *Contractor*'s approach to ensure all Tier Subcontractors to incorporate the Mandatory Subcontract Conditions for Prohibition of Imposing Administrative Charges for Reporting of Site Accidents and Elimination of Under-reporting of Site Accidents as stipulated in the Appendix to ACC Clause V:7(1)(i).**

(vii) **Criteria for selection of Subcontractor(s) involving trade(s) not available in the Registered Specialist Trade Contractors Scheme (RSTCS).**

(viii) **The *Contractor*'s approach to ensure all its Tier Subcontractor(s) to adopt written contracts in its/their subcontracting and that all the subcontract(s) comply with the requirements as stipulated in the contract (i.e. ACC Clause V:7 on Subcontract Conditions) and incorporate the Mandatory Subcontract Conditions for Security of Payment as stipulated in the Appendix to ACC Clause VIII:1.**

(ix) **Details of the *Contractor*'s Management Team, as required in the contract (i.e. ACC Clause IV:1 on *Contractor*'s Management Team), employed on direct supervision and management of Subcontractor(s). An organization chart showing the responsibilities of the *Contractor*'s direct staff in supervision and management of its Subcontractor(s) shall be submitted.**

(x) **Declaration through the standard declaration form that members of staff on the *Contractor*'s Management Team are prohibited to be given a subcontract to any part of the *works* or to have a vested interest in any of the Tier Subcontractor(s).**

(xi) **The *Contractor*'s proposed measures to ensure the compliance with the implementation of the system of payment of wages to the Site Workers as stipulated in the contract (i.e. ACC Clause IV:4 on Non-Payment of Wages and Section 6.7 of**

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the Scope). The *Contractor*'s proposed measures for ensuring timely payments to Subcontractor(s) and payments by Subcontractor(s) to subcontractor(s) of lower tiers.

[NB. The above items are not exhaustive. The Contractor can add any other items, which it considers pertinent to the proper management of its Subcontractor(s).]

Internal Note:
 # Insert appropriate reference

Amd No. 2/2025

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Appendix [X]# to ACC [V:2]#

[For contracts without contract measures to prevent non-payment of wages and/or limiting number of tiers of subcontracting]

Guidelines on Scope and Contents of Subcontractor Management Plan

The Subcontractor Management Plan shall include (but not limited to) the following:

i) Scope of works to be subcontracted including the form and extent of subcontracting arrangement such as labour only, labour and plant, labour and material, plant only, lump sum or any other combination of types. Proof of ownership of construction plant and material shall be addressed. The scope of works to be subcontracted shall comply with the relevant contractual provisions (i.e. ACC Clause V:3 on Limiting Tiers of Subcontracting).

ii) Particulars of subcontracts (irrespective of tiers) as required under the Template under Table 1.

iii) Criteria for selection of Subcontractor(s) involving trade(s) not available in the Registered Specialist Trade Contractors Scheme (RSTCS).

iv) Details of the *Contractor*'s own staff employed for direct supervision and management of its Subcontractor(s). An organization chart showing the responsibilities of the contractor's direct staff in supervision and management of its Subcontractor(s) shall be submitted.

v) The *Contractor*'s approach to demand/ensure its Subcontractor(s) to a) abstain from subcontracting the whole of the works subcontracted to it/them, and b) submit written declarations of no "hidden" subcontracting of works.

vi) The *Contractor*'s approach to encourage its Subcontractor(s) to adopt written contract(s) in its/their subcontracting and that all the subcontract(s) comply with the requirements as stipulated in the contract (i.e. ACC Clause V:7 on Subcontract Conditions other than ACC Clause V:7(1)(b) on Payment of Site Workers' Wages) and incorporate the Mandatory Subcontract Conditions for Security of Payment as stipulated in the Appendix to ACC Clause VIII:1.

vii) The *Contractor*'s proposed measures to demand its Subcontractor(s) to report upward its/their subcontracting arrangement(s) and any subsequent changes.

viii) The *Contractor*'s proposed measures for monitoring and assessing the works programme, quality, safety and environmental performance of its Subcontractors.

ix) The C*ontractor*'s proposed measures for monitoring the performance of the Subcontractors in complying with the requirements in the contract in reporting site accidents.

x) The *Contractor*'s approach to ensure all Tier Subcontractors to incorporate the Mandatory Subcontract Conditions for Prohibition of Imposing Administrative Charges for Reporting of Site Accidents and Elimination of Under-reporting of Site Accidents as stipulated in the Appendix to ACC Clause V:7(1)(i).

xi) The *Contractor*'s proposed measures for ensuring timely payment to downstream subcontractor(s) after its payment to Subcontractor(s).

xii) The *Contractor*'s approach for monitoring disputes.

xiii) The *Contractor*'s approach for handling complaints from workers on site regarding wages arrears disputes and co-ordinating with Labour Department for prompt action. The *Contractor* is required to keep the *Project Manager*'s site

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representatives updated of the situation.

xiv) The *Contractor*'s proposed measures for maintaining updated daily attendance records of all workers on site.

xv) The *Contractor*'s proposed measures for site security and workers' daily access control if applicable.

[NB. The above items are not exhaustive. The Contractor can add any other issues, which he considers pertinent to the proper management of his subcontractor(s).]

Internal Note:

[#] Insert appropriate reference

Amd No. 2/2025

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Appendix [X]# to ACC [V:2]#

Standard Declaration Form by the *Contractor*
on Compliance with Provisions in
Subcontractor Management Plan

To: The *Project Manager*

Contract No. : _____

Contract Title : _____

In accordance with the Guidelines on Scope and Contents of Subcontractor Management Plan referred in ACC [V:2]#, I / we declare and confirm that we have complied with and undertake to continue to comply with the following provisions, and declare and confirm that I / we have ensured and undertake to continue to ensure that our members of staff on the *Contractor*'s Management Team as referred in ACC [IV:1]# are aware of the following provisions:

(a) Members of staff on the *Contractor*'s Management Team are prohibited from being given a subcontract to any part of the *works* or having a vested interest in any of the Tier Subcontractors;

(b) Members of staff on the *Contractor*'s Management Team are required to submit written declarations to the *Project Manager* upon its written request from time to time or at any time that they do not have a subcontract to any part of the *works* or any vested interest in any of the Tier Subcontractors.

(Name of the *Contractor*) _____

(Name of the Signatory) _____

(Position of the Signatory) _____

(Date) _____

Internal Note:
 # Insert appropriate reference

Amd No. 2/2025

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Appendix [X]# to ACC [C5]#

Table 1 - Particulars of Subcontracts(1)

No.	Contract No.	Contract Title	Contract Sum ($)	Contact Point	Company Name of Subcontractor	Commencement Date	Program	No. of Tier	Form of Subcontractor	Type(2) (RSTC or RS)	Trade	Specialty(3) (NA for RSTC)	Registration No.	Expiry Date	Value(4)	Grouping(5) (1, 2 or NA)
e.g.	CV/XXXX/XX	Construction of XXX	100,000,000	Mr. XXX, E/XX	ABC Company Ltd.	1-10-2020	9 months	1	labour, plant & material	RSTC	Concreting F	NA	XXXXXX	31-3-2022	E	1
	CV/XXXX/XX	Construction of XXX	100,000,000	Mr. XXX, E/XX	123 Company Ltd.	1-10-2020	12 months	2	labour & plant	RS	Fire Services I	Fire services pipe work	XXXXXX	31-3-2022	D	NA
1																
2																

Notes:

(1) Apart from the above information, the *Contractor* shall provide additional information and supporting document upon requested.

(2) RSTC refers to the Registered Specialist Trade Contractors under the Registered Specialist Trade Contractors Scheme (RSTCS) of the Construction Industry Council (CIC).

RS refers to the Registered Subcontractors under the RSTCS.

(3) One row for one particular trade or specialty. Subcontract with multiple trades or specialties shall be reported individually in several rows. For details of the classification of trade and specialty, please refer to the website of the RS .rstc.cic.hk managed by the CIC. RSTCS covers 21 designated trade groups, viz. (1) Concreting, (2) Concreting Formwork, (3) Curtain Wall, (4) Demolition, (5) Erection of Concrete Precast Component, (6) Reinforcement Bar Fixing, (7) Scaffolding, (8) I (9) Suspended Ceiling, (10) Tower Crane (Erecting, Dismantling, Altering Height), (11) Building Drainage Installation, (12) Levelling and Setting Out, (13) Building Maintenance,(14) Interior Fitting-out, (15) Painting, (16) M 17) Structural Steelwork, (18) Horticultural Works, (19) Arboriculture Works , (20) Skyrise Greenery Works and (21) Truss-out Scaffolding.

(4) One value for one particular trade group and specialty. The ranges of Value A to G are shown below:

A: Value < $1M
B: $1M ≤ Value < $3M
C: $3M ≤ Value < $6M
D: $6M ≤ Value < $15M
E: $15M ≤ Value < $30M
F: $30M ≤ Value < $50M
G: Value ≥ $50M

(5) Group 1, Group 1A and Group 2 refer to the tender limits set by CIC for the 21 designated trades mentioned in (3) above, which are only applicable to RSTC. For details of the tender limits, please refer to the website of the R w.rstc.cic.hk managed by the CIC

Internal Note:

Insert appropriate reference

Amd No. 2/2025

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APPENDIX 5.6D NOTES TO TENDERERS AND ADDITIONAL CONDITIONS OF CONTRACT FOR ENGAGEMENT OF SUBCONTRACTORS REGISTERED FROM THE "REGISTERED SPECIALIST TRADE CONTRACTORS SCHEME" (FOR NEW ENGINEERING CONTRACT (NEC) – TERM SERVICE CONTRACT (TSC))

The following Notes to Tenderers and Additional Conditions of Contract shall be included in tenders for all term service contracts:

Notes to Tenderers

NTT C1 Engagement of Subcontractors who are Registered under the Respective Trades and Groups available in the Registered Specialist Trade Contractors Scheme (RSTCS)

Tenderers' attention is drawn to the Clause [C6]# of the *additional conditions of contract* requiring the engagement of subcontractors who are registered under the respective trades and groups available in the Registered Specialist Trade Contractors Scheme (RSTCS).

Additional Conditions of Contract

[C6]# Engagement of Subcontractors who are registered under the respective trades and groups available in the Registered Specialist Trade Contractors Scheme (RSTCS)

(1) For the purpose of this Clause, the following words and expressions shall have the meaning hereby assigned to them:

"RSTCS[1]" means the Registered Specialist Trade Contractors Scheme managed by the Construction Industry Council and as referred to in the Rules and Procedures applicable to the aforesaid Registered Specialist Trade Contractors Scheme.

"Group 1", "Group 1 (Advanced)" and "Group 2" mean the classification of contractors into Group 1, Group 1 (Advanced) and Group 2 under each trade of the Register of Specialist Trade Contractors.

Amd No. 2/2025

["Painting", "Metal Work", "Structural Steelwork", "Horticultural Works", "Arboriculture Works" and "Skyrise Greenery Works" mean the trade of "painting", "metal work", "structural steelwork", "horticultural works", "arboriculture works" and "skyrise greenery works" respectively under the RSTCS as promulgated by the Construction Industry Council from time to time.][2]

(2) Where the *Contractor* is to subcontract part of the *service*, except those service specified in Clause C3 of these additional conditions of contract, Amd No. 2/2025 **performance of which involves trades available in the RSTCS, the *Contractor* shall only engage, for the purposes of execution of such part of the *service*, a Subcontractor who has satisfied all of the following criteria:**

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(i) the Subcontractor is the subcontractor stated in the *Contractor*'s latest updated submission of the Subcontractor Management Plan;

(ii) the Subcontractor has completed registration under the relevant trades available in the RSTCS before the commencement of the work under the relevant subcontracts; and

(iii) if the Subcontractor is registered under a trade [[2], except Amd No. 2/2025 **Painting, Metal Work, Structural Steelwork, Horticultural Works, Arboriculture Works and Skyrise Greenery Works,][2] in the Register of Specialist Trade Contractors, and if the value of relevant subcontract exceeds the tender limit of Group 1, the Subcontractor has been admitted into Group 1 (Advanced) or Group 2, and if the value of relevant subcontract exceeds the tender limit of Group 1 (Advanced), the Subcontractor has been admitted into Group 2, before the commencement of the work under the relevant subcontract.**

The *Contractor* shall not engage a Subcontractor who is suspended or in the process of an appeal against his suspension from registration in the RSTCS unless the suspension is lifted before the commencement of the work under the relevant subcontracts. Amd No. 2/2025

(3) The *Contractor* shall ensure that where any part of the *service* which has been Amd No. 2/2025 **subcontracted to a Subcontractor and it** Amd No. 2/2025 **involves trades available in the RSTCS is further subcontracted (irrespective of any tier), only subcontractors (irrespective of any tier) who have satisfied all of the following criteria are engaged for the purposes of execution of such part of the part of the *service*:**

(i) the subcontractor (irrespective of any tier) Amd No. 2/2025 **is the subcontractor stated in the *Contractor*'s latest updated submission of the Subcontractor Management Plan;**

(ii) the subcontractor (irrespective of any tier) Amd No. 2/2025 **has completed registration under the relevant trades available in the RSTCS before the commencement of the work under the relevant further subcontracts; and**

(iii) if the subcontractor (irrespective of any tier) Amd No. 2/2025 **is registered under a trade [[4], except [[2],** Amd No. 2/2025 **Painting, Metal Work, Structural Steelwork, Horticultural Works, Arboriculture Works and Skyrise Greenery Works,][4] in the Register of Specialist Trade Contractors, and if the value of relevant subcontract exceeds the tender limit of Group 1, the subcontractor (irrespective of any tier)** Amd No. 2/2025 **has been admitted into Group 1 (Advanced) or Group 2, and if the value of relevant subcontract exceeds the tender limit of Group 1 (Advanced), the Subcontractor has been admitted into Group 2, before the commencement of the works under the relevant subcontract**

The *Contractor* shall also ensure that a subcontractor Amd No. 2/2025 **(irrespective of any tier) who is suspended or in the process of an appeal against his suspension from registration in the RSTCS shall not be engaged for the aforesaid further**

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subcontracting (irrespective of any tier) unless the suspension is lifted before the commencement of the work under the relevant further subcontracts.

Internal Notes:

 # Insert appropriate reference.

1. **Upon the launch of the RSTCS by the CIC on 1 April 2019, seven trades, viz. (1) Concreting; (2) Concreting Formwork; (3) Curtain Wall; (4) Demolition; (5) Erection of Concrete Precast Component; (6) Reinforcement Bar Fixing; and (7) Scaffolding are included under the Register of Specialist Trade Contractors. One more trade, i.e. (8) Plastering, has been included since 1 January 2021. Two more trades, i.e. (9) Suspended Ceiling and (10) Tower Crane (Erecting, Dismantling, Altering Height), have been included since 1 April 2022. One more trade, i.e. (11) Building Drainage Installation, has been included since 1 September 2022. One more trade, i.e. (12) Levelling and Setting Out, has been included since 1 March 2023. Six more trades, i.e. (15) Painting, (16) Metal Work, (17) Structural Steelwork, (18) Horticultural Works, (19) Arboriculture Works and (20) Skyrise Greenery Works have been included since 1 May 2024. With effect from 1 January 2025, one new trade, i.e. (21) Truss-out Scaffolding will be added to the Register of Specialist Trade Contractors.** Amd No. 2/2025

Amd No. 2/2025

2. **The words in square brackets should be deleted for contracts for which tenders will be invited on or after 1 February 2025** Amd No. 2/2025**, i.e. the tender limits of Group 1, Group 1 (Advanced) and Group 2 should be observed for all trades including Painting, Metal Work and Structural Steelwork while the tender limits of Group 1 and Group 2 should be observed for all trades including Horticultural Works, Arboriculture Works and Skyrise Greenery Works. (SDEV's memo ref. DEVB(W) 510/94/02 dated 10.4.2024, refers)**

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APPENDIX 5.6E NOTES TO TENDERERS AND APPENDIX TO ADDITIONAL CONDITIONS OF CONTRACT FOR SUBCONTRACTOR MANAGEMENT PLAN (FOR NEW ENGINEERING CONTRACT (NEC) - TERM SERVICE CONTRACT (TSC))

The following Notes to Tenderers and Appendix to Additional Conditions of Contract shall be included in tenders for all term service contracts:

Notes to Tenderers

NTT C2 Payment for Subcontractor Management Plan

Tenderers' attention is drawn to Clause [GCT 20]# of General Conditions of Tender, Clause [C5]# of *additional conditions of contract* and Clause [X]# of the Particular Specification requiring the submission and quarterly updating of the Subcontractor Management Plan (SMP) in the form and contents as prescribed in the contract. Tenderers' attention is also drawn to the requirement to monitor and ensure the implementation of and the compliance with the SMP.

Tenderers should note that there are no separate items in the Schedule of Rates for "submission of Subcontractor Management Plan" and "quarterly updating of Subcontractor Management Plan". The rates in the Schedules of Rates shall cover, inter alia, the provision of implementation of and compliance with the SMP.

NTT C3 Details of Subcontractor Management Plan

Tenderers' attention is drawn to the Appendix [X]# to Clause [C5]# of *additional conditions of contract* on the scope and contents of Subcontractor Management Plan including but not limited to the details of subcontract(s), the trade and group (if any) of the subcontractor under the Registered Specialist Trade Contractors Scheme and value of the subcontract(s).

Internal Notes:

 # Insert appropriate reference

*** Delete or amend as appropriate**

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Appendix [X]# to ACC [C5]#

Guidelines on Scope and Contents of Subcontractor Management Plan

The Subcontractor Management Plan shall include (but not limited to) the following:

i) Scope of works to be subcontracted including the form and extent of subcontracting arrangement such as labour only, labour and plant, labour and material, plant only, lump sum or any other combination of types. Proof of ownership of construction plant and material shall be addressed. The scope of works to be subcontracted shall comply with the relevant contractual provisions (i.e. the ACC for Limiting the Tiers of Subcontracting).

ii) Particulars of subcontracts (irrespective of tiers) as required under the Template under Table 1.

iii) The *Contractor*'s approach to demand/ensure his subcontractor(s) to a) abstain from subcontracting the whole of the works subcontracted to him/them, and b) report upwards his/their subcontracting arrangement and any subsequent changes with written declarations of no "hidden" subcontracts for any part of the *service* subcontracted to any of them.

iv) The *Contractor*'s proposed measures for supervision of the works and monitoring of the performance of subcontractors, particularly the aspects of the works programming, quality and safety of the works and environmental protection.

v) The *Contractor's* proposed measures for monitoring the performance of the subcontractors in complying with the requirements in the contract in reporting site accidents.

vi) The *Contractor*'s approach to ensure all subcontractors, irrespective of tiers, to incorporate the Mandatory Subcontract Conditions for Prohibition of Imposing Administrative Charges for Reporting of Site Accidents and Elimination of Under-reporting of Site Accidents.

vii) Criteria for selection of subcontractor(s) involving trade(s) not available in the Registered Specialist Trade Contractors Scheme (RSTCS).

viii) The *Contractor*'s approach to ensure all his subcontractor(s) (irrespective of tiers) to adopt written contracts in his/their subcontracting and that all the subcontract(s) comply with the requirements as stipulated in the Contract (i.e. ACC for Subcontract conditions) and incorporate the Mandatory Subcontract Conditions for Security of Payment.

ix) Details of the *Contractor*'s Management Team, as required in the Contract (i.e. the ACC for *Contractor*'s Management Team), employed on direct supervision and management of subcontractor(s). An organization chart showing the responsibilities of the *Contractor*'s direct staff in supervision and management of his subcontractor(s) shall be submitted.

x) Declaration through the standard declaration form that members of staff on the *Contractor*'s Management Team are prohibited to be given a subcontract to any part of the *service* or to have a vested interest in any of the subcontractors irrespective of tiers.

xi) The *Contractor*'s proposed measures to ensure the compliance with the implementation of the system of payment of wages to the Site Workers as stipulated in the Contract (i.e. ACC for Payment of Wages of Site Workers). The *Contractor*'s proposed measures for ensuring timely payments to subcontractor(s) and payments by subcontractor(s) to subcontractor(s) of lower tiers.

Go to Table of Content >>> Go to Table of Content >>> Go to Table of Content

[NB. The above items are not exhaustive. The Contractor can add any other items, which he considers pertinent to the proper management of his subcontractor(s).]

Internal Note:
 # Insert appropriate reference

Go to Table of Content >>> Go to Table of Content >>> Go to Table of Content

Appendix [X]# to ACC [C5]#

[For contracts without contract measures to prevent non-payment of wages and/or limiting number of tiers of subcontracting]

Guidelines on Scope and Contents of Subcontractor Management Plan

The Subcontractor Management Plan shall include (but not limited to) the following:

i) Scope of works to be subcontracted including the form and extent of subcontracting arrangement such as labour only, labour and plant, labour and material, plant only, lump sum or any other combination of types. Proof of ownership of construction plant and material shall be addressed.

ii) Particulars of subcontracts (irrespective of tiers) as required under the Template under Table 1.

iii) Criteria for selection of subcontractor(s) involving trade(s) not available in the Registered Specialist Trade Contractors Scheme (RSTCS).

iv) Details of the *Contractor*'s own staff employed for direct supervision and management of his subcontractor(s). An organization chart showing the responsibilities of the contractor's direct staff in supervision and management of his subcontractor(s) shall be submitted.

v) The *Contractor*'s approach to demand/ensure his subcontractor(s) to a) abstain from subcontracting the whole of the works subcontracted to him/them, and b) submit written declarations of no "hidden" subcontracting of works.

vi) The *Contractor*'s approach to encourage his subcontractor(s) to adopt written contract(s) in his/their subcontracting and that all the subcontract(s) comply with the requirements as stipulated in this contract to incorporate the Mandatory Subcontract Conditions for Security of Payment.

vii) The *Contractor*'s proposed measures to demand his subcontractor(s) to report upward his/their subcontracting arrangement(s) and any subsequent changes.

viii) The *Contractor*'s proposed measures for monitoring and assessing the works programme, quality, safety and environmental performance of his subcontractors.

ix) The *Contractor's* proposed measures for monitoring the performance of the subcontractors in complying with the requirements in the contract in reporting site accidents.

x) The *Contractor's* approach to ensure all subcontractors, irrespective of tiers, to incorporate the Mandatory Subcontract Conditions for Prohibition of Imposing Administrative Charges for Reporting of Site Accidents and Elimination of Under-reporting of Site Accidents.

xi) The *Contractor*'s proposed measures for ensuring timely payment to downstream subcontractor(s) after his payment to his direct subcontractor(s).

xii) The *Contractor*'s approach for monitoring disputes.

xiii) The *Contractor*'s approach for handling complaints from workers on site regarding wages arrears disputes and co-ordinating with Labour Department for prompt action. *Contractors* are required to keep the Architect/Engineer/Supervising Officer's site representatives updated of the situation.

xiv) The *Contractor*'s proposed measures for maintaining updated daily attendance records of all workers on site.

xv) The *Contractor*'s proposed measures for site security and workers' daily access control if applicable.

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[NB. The above items are not exhaustive. The Contractor can add any other issues, which he considers pertinent to the proper management of his subcontractor(s).]

Internal Note:
[#] Insert appropriate reference

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Appendix [X]# to ACC [C5]#

Standard Declaration Form by the *Contractor*
on Compliance with Provisions in
Subcontractor Management Plan

To: The *Service Manager*

Contract No. : _____

Contract Title : _____

In accordance with the Guidelines on Scope and Contents of Subcontractor Management Plan referred in ACC [C5]#, I / we declare and confirm that we have complied with and undertake to continue to comply with the following provisions, and declare and confirm that I / we have ensured and undertake to continue to ensure that our members of staff on the *Contractor*'s Management Team as referred in ACC [D1]# are aware of the following provisions:

(a) Members of staff on the *Contractor*'s Management Team are prohibited from being given a subcontract to any part of the *service* or having a vested interest in any of the subcontractors irrespective of tiers;

(b) Members of staff on the *Contractor*'s Management Team are required to submit written declarations to the *Service Manager* upon his / her written request from time to time or at any time that they do not have a subcontract to any part of the *service* or any vested interest in any of the subcontractors irrespective of tiers.

(Name of the *Contractor*) _____

(Name of the Signatory) _____

(Position of the Signatory) _____

(Date) _____

Internal Note:
 # Insert appropriate reference

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Appendix [X]# to ACC [C5]#

Table 1 - Particulars of Subcontracts[1]

No.	Contract No.	Contract Title	Contract Sum ($)	Contact Point	Company Name of Subcontractor	Commencement Date	Program	No. of Tier	Form of Subcontractor	Type[2] (RSTC or RS)	Trade[3]	Specialty[3] (NA for RSTC)	Registration No.	Expiry Date	Value[4]	Grouping[5] (1, 2 or NA)
e.g.	CV/XXXX/XX	Construction of XXX	100,000,000	Mr. XXX, E/XX	ABC Company Ltd.	1-10-2020	9 months	1	labour, plant & material	RSTC	Concreting Formw	NA	XXXXXX	31-3-2022	E	1
	CV/XXXX/XX	Construction of XXX	100,000,000	Mr. XXX, E/XX	123 Company Ltd.	1-10-2020	12 months	2	labour & plant	RS	Fire Services Install	Fire services pipe work	XXXXXX	31-3-2022	D	NA
1																
2																

Notes:

(1) Apart from the above information, the *Contractor* shall provide additional information and supporting document upon requested.

(2) RSTC refers to the Registered Specialist Trade Contractors under the Registered Specialist Trade Contractors Scheme (RSTCS) of the Construction Industry Council (CIC). RS refers to the Registered Subcontractors under the RSTCS.

(3) One row for one particular trade or specialty. Subcontract with multiple trades or specialties shall be reported individually in several rows. For details of the classification of trade and specialty, please refer to the website of the RSTCS …ic.hk managed by the CIC. RSTCS covers 21 Amd No. 2/2025. designated trade groups, viz. (1) Concreting, (2) Concreting Formwork, (3) Curtain Wall, (4) Demolition, (5) Erection of Concrete Precast Component, (6) Reinforcement Bar Fixing, (7) Scaffolding, (8) Plasterin… (9) Suspended Ceiling, (10) Tower Crane (Erecting, Dismantling, Altering Height), (11) Building Drainage Installation, (12) Levelling and Setting Out,(13) Building Maintenance,(14) Interior Fitting-out (15) Painting, (16) Metal W… …uctural Steelwork, (18) Horticultural Works, (19) Arboriculture Works, (20) Skyrise Greenery Work and (21)Truss-out Scaffolding Amd No. 2/2025.

(4) One value for one particular trade group and specialty. The ranges of Value A to G are shown below:

A: Value < $1M

B: $1M ≤ Value < $3M
C: $3M ≤ Value < $6M
D: $6M ≤ Value < $15M
E: $15M ≤ Value < $30M
F: $30M ≤ Value < $50M
G: Value ≥ $50M

(5) Group 1, Group 1A and Group 2 refer to the tender limits set by CIC for the 21 Amd No. 2/2025. designated trades mentioned in (3) above, which are only applicable to RSTC. For details of the tender limits, please refer to the website of t… www.rstc.cic.hk managed by the CIC

Internal Note:

Insert appropriate reference

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APPENDIX 5.7 UNDERTAKINGS BY CONTRACTOR ON THE USE OF GOVERNMENT DIGITAL MAP DATA (Subsumed from WBTC No. 7/2000)

(Please complete in Block Letters)

To : _____
(Name of the Engineer/Engineer designate*)

In consideration of the Government of the Hong Kong Special Administrative Region ("Government") supplying additional copies of tender/contract* drawings in electronic form to us, we, _____ agree to abide by the
(Name of contractor in full)

following conditions in the use of Government digital map data ("the data") supplied by the Land Information Centre which may be contained in the drawings provided by the Engineer/Engineer designate* (for preparation of a tender)* for Contract No. _____ with _____concerning
(Name of Government Department in full)

_____.
(Title of the Contract)

(i) **The data shall only be used in our computer systems or visual terminals assigned (for tendering)* for the above Contract.**

(ii) **The data shall not be used for any purposes other than (tendering for)* the above Contract.**

(iii) **The data shall not be distributed in part or in whole and in whatever forms and media to a third party.**

(iv) **The data stored in our computer systems and storage media shall all be destroyed immediately after the completion of the tender/work for the above Contract and we undertake to advise in writing within seven days of so destroying the data by completing the standard form "Confirmation by contractor on cessation of the use of Government digital map data" and submit it to the Engineer/Engineer designate*.**

2. We understand that our employees must observe and abide by the above conditions. If any of our employees are proved to have breached any of the above conditions, we undertake to compensate the Government for any loss or damage that the Government has suffered as a result of the said breach.

Signed for and on behalf of the contractor

Signature _____
Name _____
Designation _____
Tel. No. _____
Fax No. _____
Date _____
Company Address _____

Company Chop
***delete where inappropriate**

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APPENDIX 5.8 CHECK-LIST FOR TENDERS DEPOSITED IN THE *GOVERNMENT SECRETARIAT TENDER BOX / *PUBLIC WORKS TENDER BOX

1. Before the tender is sealed and delivered to the *Government Secretariat Tender Box / *Public Works Tender Box, please check the following:

(a) The tender has been properly signed and the signature witnessed.

(b) All the documents issued with or requested in the tender such as acknowledgements of receipt of corrigenda or addenda, are properly completed and attached to the tender.

(c) For remeasurement contracts, copies of the Bills of Quantities and the Schedule of Proportions are attached to the tender. The *Central Tender Board / *Public Works Tender Board will make copies of the Bills of Quantities and Schedule of Proportions on behalf of tenderers who have failed to submit copies of such documents and a charge of *$12[1] /*$14.8[2] or such amount as advised by the *Secretary for Financial Services and the Treasury / *Chairman of the Public Works Tender Board periodically will be levied for each page so copied.

(d) The envelope or cover holding the tender does not bear the name of the tenderer but the tender reference or contract number and the closing date should be shown on the cover.

2. Tenderers should also note the following:

(a) Unless otherwise indicated, plans and drawings issued with the tender documents shall not be returned and deposited in the *Government Secretariat Tender Box / *Public Works Tender Box, such drawings are to be returned to the issuing office after submission of the tender.

(b) Samples, if called for, should be submitted separately to the issuing office inviting the tenders with the tender reference or contract number indicated clearly on the cover, and should not be deposited in the *Government Secretariat Tender Box / *Public Works Tender Box.

(c) Tenders that are bulky should be wrapped properly with strong paper which is unlikely to break when the tender is being deposited in the Tender Box. Tenders with a size exceeding 0.1m² and a thickness of more than 30cm should be separated into smaller parcels, each parcel to be properly labelled.

(d) For tender submission in electronic format, the tender opening team will make copies of the required documents on behalf of tenderers who have failed to submit the required duplicate in electronic format. The tenderer may be asked to bear the cost of making the duplicate at a charge of $51[3] per electronic file and a material charge of $1.0[3] per CD-ROM and $1.3[3] per 4.7GB DVD+/-R, or such amount as advised by the *Secretary for Financial Services and the Treasury / *Chairman of the Public Works Tender Board periodically will be levied for each duplicate so made.

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3. Please allow adequate time for your tender to be delivered to the *Government Secretariat Tender Box / *Public Works Tender Box. The Tender Box is closed on the tender closing day, which will be a Friday, as soon as the 12:00 noon time signal is broadcast by a local radio channel and the staff of the *Central Tender Board / *Public Works Tender Board are under strict instruction not to accept tenders that are delivered after the closing time. However, if a rainstorm black warning or typhoon signal No. 8 or above is hoisted between 9 a.m. and 12 noon on the tender closing day, the tender closing time will be extended to 12 noon on the first working day of the following week. An announcement of the extension of the tender closing time will be made through the radio (by the Financial Services and the Treasury Bureau) immediately after 9 a.m. or immediately after the signal/warning has been hoisted. In order to ensure that your tender is deposited in the Tender Box well before the closing time, you should as far as possible arrange for the tender to be deposited before the closing date.

Tenderers may rest assured that no person is allowed access to the tenders that have been deposited in the *Government Secretariat Tender Box / *Public Works Tender Box until after the closing time when they will be removed by authorized personnel.

Notes:

* Delete as appropriate.

1. For tenders opened by CTB, see SFST's memo ref. () in TsyB T ADM/1-135/1/0 Pt.10 dated 24.12.2018.

2. For tenders opened by PWTB, see PWTB's memo ref. (7) in ASD13/95200/TEN/OPEN/PCF dated 5.7.2018.

3. See SDEV's memo ref. () IN DEVB(W) 511/70/02 dated 26.9.2022.

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APPENDIX 5.9 CONTROL OF ALKALI SILICA REACTION IN CONCRETE

1. Alkali Silica Reaction (ASR) is a type of Alkali Aggregate Reaction (AAR) which is caused by the reaction in concrete between the alkaline cement paste with the reactive forms of silica in the aggregate. It can cause concrete to expand and crack. ASR can occur if the aggregate in the concrete is alkali reactive and if other unfavourable factors are present. As the local aggregate is mainly of granitic type, only ASR has been observed in Hong Kong. Other form of AAR has not been recorded.

2. For ASR to occur there must be alkali reactive minerals present in the aggregate, together with sufficient alkalis and moisture in the concrete to support the reaction process. A range of minerals, including opal, tridymite, cristobalite, highly strained quartz, microcrystalline quartz, volcanic glasses, and synthetic siliceous glass, have been reported alkali reactive. The occurrence of ASR depends on both the type and percentage by mass of alkali reactive minerals present, as well as other factors mentioned earlier. The alkalis in the concrete come mainly from the cement. Therefore, effective means of reducing the risk of ASR include the reduction of the amount of alkalis present in the concrete to 3 kg/m^3. This could be achieved by the reduction of the amount of cement used in the concrete mix, the use of low alkali cement, or the use of supplementary cementitious materials such as PFA and GGBS. One of the conditions for ASR to occur is that sufficient moisture has to be available in the concrete. For structural elements for which ingress of moisture of the concrete is not possible throughout the design life, the 3 kg/m^3 limit on alkali reactive content need not apply. The drawings should indicate the concrete elements for which the specification for the control of ASR do not apply.

3. Aggregate is classified into three categories in terms of the potential alkali-reactivity: non-reactive, potentially reactive and reactive. Aggregate used in Hong Kong is mostly of the "non-reactive" category. Occasionally, aggregate of the "potentially reactive" category is found, e.g. due to contamination by alkali reactive dyke rocks. Alkali reactive aggregate should not be used in permanent structural concrete unless it can be assured that ASR will not occur or ASR cracking is not a concern. The ultra-accelerated mortar bar test (AMBT) is a commonly adopted method to classify the potential alkali-reactivity of aggregate, and the detailed test procedure is specified in CS1:2010. Concrete prism test and petrographic analysis are also sometimes used in classifying the potential alkali-reactivity of aggregate.

4. SCCT and its Sub-committees conducted studies on ASR and established an ASR control framework for use in Hong Kong. The recommended control framework is given in Appendix H "Alkali Aggregate Reaction Control Framework for Hong Kong" of GEO Report No 167, which is accessible from the CEDD website:

https://www.cedd.gov.hk/eng/publications/geo/geo-reports/index.html

5. The concrete mix design framework, as detailed in Section H.2 of Appendix H of GEO Report No. 167, categorizes concrete structures into three classes. The majority of concrete structures in Hong Kong are "Class 2" structures. For "Class 1" and "Class 2" structures, aggregate in the "non-reactive" or "potentially reactive" categories may be used in concrete for works and the reactive alkali content of the concrete shall be limited to 3 kg/m^3. Aggregate in the "reactive" category is not permitted to be used in concrete for works unless with prior approval of the Engineer.

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6. For Class 3 structures (long service life or highly critical structures), where no ASR damage is acceptable, e.g. nuclear installations, dams, tunnels, exceptionally important bridges or viaducts and structures retaining hazardous materials, only aggregate in the "non-reactive" category is to be used and the reactive alkali content of the concrete is to be limited to 3 kg/m^3. The designer should indicate which parts of the works are categorised as Class 3 structures and specify these requirements in the relevant Drawings and/or include suitable Particular Specification clauses in the contract as necessary.

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APPENDIX 5.10 CONFIRMATION BY CONTRACTOR ON CESSATION OF THE USE OF GOVERNMENT DIGITAL MAP DATA (Subsumed from WBTC No. 7/2000)

(Please complete in Block Letters)

To : _____
(Name of the Engineer/Engineer designate*)

This is to advise that we, _____, have ceased
(Name of contractor in full)

using the Government digital map data ("the data") from the electronic drawings provided by the Engineer/Engineer designate* with effect from _____
(Date)

(for preparation of a tender)* for the Contract No. _____ with_____concerning_____
(Name of Government Department in full) (Title of Project/Study)

_____

We confirm that we are no longer in possession of the data or any part thereof in any media or in any form and that the data has been permanently erased and/or duly destroyed from our computer systems.

Signed for and on behalf of the contractor

Signature _____
Name _____
Designation _____
Tel. No. _____
Fax No. _____
Date _____
Company Address _____

Company Chop
*** delete where inappropriate**

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APPENDIX 5.11 PARTICULAR SPECIFICATION FOR INDEPENDENT CHECKING OF THE DESIGN, ERECTION, USE AND REMOVAL OF TEMPORARY WORKS (Subsumed from WBTC No. 3/97)

Particular Specification

(1) Pursuant to SCC Clause _____ , the design of the following Temporary Works shall be certified by the independent checking engineer -

(a) .....

(b) .....

(c) .....

(2) In addition, method statements certified by the independent checking engineer shall be provided for the erection, use and removal of the following Temporary Works -

(a) .....

(b) .....

(c) .....

(3) Any Temporary Works erected in close proximity to traffic shall be protected against impact from vehicles by suitably designed protective measures. The Contractor shall design such protective measures with regard to the conditions prevailing on the Site and the effect of any such impact. Such protective measures are to be designed as part of the Temporary Works and included in any requirement for independent checking.

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APPENDIX 5.12 PRACTICE NOTE FOR THE USE OF LUMP SUM BILLS OF QUANTITIES CONTRACTS FOR CIVIL ENGINEERING WORKS (Subsumed from WBTC No. 17/95)

1. For pure lump sum contracts the Contractor undertakes to carry out a defined amount of work in return for an agreed price. Once the work is done, the price is paid.

2. In our contracts the price is usually paid in stages, which may be subject to a price fluctuation clause. When it is not, it is described as a "fixed price" contract. The price is also adjusted for the effect of any variation ordered to the design of the Works and for adjustments for the Contingency Sum, any Provisional Sum, Prime Cost Sum etc. as stated in the Contract and for any error discovered in the quantities (if included).

3. It is clear that when we use the term "lump sum" we do not mean it strictly in the way it is used in para. 1. When we let a contract based on Bills of Quantities we further complicate the issue, because it is almost certain that when we go to tender not every detail of the design will be finalised and these unfinalised details cannot be measured accurately (referred to as "firm" quantities/items). The term "lump sum" is therefore a convenient way to differentiate this approach from total remeasurement (and other contracts).

4. Lump sum contracts with Bills of Quantities are priced on the basis of the drawings and specification, reduced by means of a standard method of measurement to a list of items which describe and measure the work included on the drawings and in the specification. Any item or section of work which cannot be accurately measured is covered by a provisional quantity or sum and measured as executed on completion of the item or section of work i.e. the value of the provisional item(s) or section(s) of work in the Bills is/are deducted from the Contract Sum and the value of the work executed is added.

5. The "details" referred in para 3 can be substantial. For example, in the building industry the whole of the substructure and much of the external works may be described as provisional and are remeasured as done. This does not prevent the contract from being described and treated as lump sum of a substantial part of the Works can be measured accurately for inclusion in the Bills.

6. The provisional quantities are included in the Bills wherever it is appropriate and sensible to do so. Individual items to be remeasured can be mixed in with the "firm" items, or a whole section can be shown separately and described as provisional. It is very important to clearly differentiate items of work that are not measured firm, by marking each item (or group of items) "provisional" and explaining the process of adjustment elsewhere in the Contract. (e.g. in the Preliminaries/Preambles).

7. General Conditions of Contract (GCC) Clause 5 - Documents mutually explanatory, takes on more importance in lump sum contracts. The agreement is that the work to be done is accurately reflected in the Bills. Any failure to do so

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places an obligation on the Engineer to put it right. (See the reference in sub-clause (4) proviso (a) to GCC Clause 59, which is replaced by the standard SCC 21 promulgated under SDEV's memo ref. DEVB(W) 546/17/02 dated 9.2.2011 and para 10(a) following.) Any other discrepancy between the various contract documents must be sorted out as though it were a variation. It is for the Contractor to prove that a discrepancy or an error in measurement exists.

8. Lump sum contracts often result in a heavier use of GCC Clause 60 - Variations. The provisional quantities are dealt with in the same way as estimated quantities in remeasurement contracts. The proviso to GCC Clause 61(1) i.e. the valuing of the "knock-on" effect of varied work on the unvaried, also takes on more importance in lump sum contracts. It is therefore very important to make sure that the design of the parts of the works measured as firm will not be subject to variations or lack detail that can produce an extension of time and disruption/prolongation claims.

9. The measure and value of each variation ordered is collected together into a "bill of variations" the net total of which is added to or omitted from the Contract Sum (together with the effect of any remeasured items or sections, the Contingency Sum adjustment etc.). The measure and value must be completed by the Engineer (but not necessarily agreed with the Contractor) within the contractually stated period. [See the standard SCC 21 promulgated under SDEV's memo ref. DEVB(W) 546/17/02 dated 9.2.2011 covering GCC Clause 59(7)].

10. Most of the changes to the General Conditions of Contract introduced by the Special Conditions of Contract, bring the Civil Engineering version into line with the Building version, generally using the same wording. There are exceptions viz -

(a) Clause 50(1)(b)(v) - Whilst the wording is changed, the purpose remains the same i.e. an extension of time is only considered if the increase in quantity is produced by other than an error in or omission of firm quantities (e.g. provisional quantities are under-estimated) because the work shown on the Drawings and/or in the Specification does not change, and therefore there is no reason why the time for completion should change. With provisional quantities the work can increase and therefore such increases should be considered for an extension of time. If the work shown on the Drawings and/or in Specification changes, this is a variation. (See Annex 1 examples).

(b) Clause 59(3) - the words "work required by the (Engineer) to be carried out" do not appear in the SCC. This reflects differing procedures between the civil engineering and building approaches. (For the latter, Clause 5 would be operated by the Contractor.) This difference does not change the outcome, items of work shown on the Drawings or described in the Specification which are required to be measured under the rules of the SMM must be so measured.

(c) Clause 59(4)(a) - includes an additional final sentence, again in order to assist the Engineer.

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(d) Clause 59(6)(b) and (c) and (7) - describe the procedures applicable to civil engineering, but require the Engineer to complete (but not necessarily agree with the contractor) the final measure and valuation in respect of work required to be measured under Clause 59(3), within a 30-day period commencing on the date of issue of the maintenance certificate.

11. GCC Clause 79(1) - Interim payments, are treated differently for lump sum contracts. No accurate measure of the work done at the applicable date is carried out. For interim payments the Engineer estimates the amount of work done (if possible in agreement with the Contractor) and values it. The Engineer also estimates the financial effect of all work done that has been varied under GCC Clause 60, though the Engineer should measure variations as soon as practicable in order to make a full and proper adjustment at the appropriate time i.e. when the varied work is executed/omitted. An estimate is not an inspired guess, it is a professional assessment.

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Annex 1 to Appendix 5.12

Examples of assessments under GCC Clause 50(1)(b)(v)

Scenario One :	**The drawings show an assumed rockhead level based on which the provisional quantity of rock excavation is determined in the Bills of Quantity.**	
Situation 1	**Quantity based on assumed information in the drawing**	**1000 units**
	Provisional quantity listed in the Bills of Quantity	**200 units**
	Actual quantity remeasured on site	**1000 units**
Intension	**Total change in quantity is 800 (1000 - 200) units. No Extension of Time shall be provided due to this change.**	
Situation 2	**Quantity based on assumed information in the drawing**	**1000 units**
	Provisional quantity listed in the Bills of Quantity	**1000 units**
	Actual quantity remeasured on site	**2000 units**
Intension	**Total change in quantity is 1000 (2000 - 1000) units. Extension of Time for this change shall be provided.**	
Situation 3	**Quantity based on assumed information in the drawing**	**1000 units**
	Provisional quantity listed in the Bills of Quantity	**200 units**
	Actual quantity remeasured on site	**2000 units**
Intension	**Total change in quantity is 1800 (2000 -200) units. No extension of Time for the change from 200 to 1000. Extension of Time shall be provided for the change from 1000 to 2000.**	
Scenario Two	**Specifications requires the formation for pavement and structures shall be compacted at completion. An item in the Bills of Quantity shall be provided according to the Standard Method of Measurement.**	
Situation 1	**Quantity implied from the Contract**	**1000 units**
	Quantity omitted in the Bills of Quantity	
	Actual quantity remeasured on site	**1000 units**
Intension	**No Extension of Time shall be provided.**	
Situation 2	**Quantity implied from the Contract**	**1000 units**
	Quantity described as firm quantity in the B of Q	**200 units**
	Errors discovered in the firm quantity	**800 units**

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Intension	**No Extension of Time shall be provided.**	
Situation 3	**Quantity implied from the Specifications**	**1000 units**
	Quantity described as provisional quantity in the B of Q	**200 units**
	Actual quantity remeasured on site	**1000 units**
Intension	**No Extension of Time shall be provided.**	
Scenario Three	**Specification requires width of road reinstatement shall be the trench width plus minimum 300 mm or the full lane width as directed by the Engineer.**	
Situation 1	**Quantity implied from the Specification**	**unclear but minimum 1000 units**
	Provisional quantity listed in the B of Q	**200 units**
	Actual quantity remeasured on site	**1000 units**
Intension	**No Extension of Time.**	
Situation 2	**Quantity implied from the Specification**	**unclear but minimum 1000 units**
	Provisional quantity listed in the B of Q	**1000 units**
	Actual quantity remeasured on site	**2000 units**
Intension	**Extension of Time shall be provided for the change in quantity of 1000 units (2000 - 1000)**	
Situation 3	**Quantity implied from the Specification**	**Unclear but minimum 1000 units**
	Provisional quantity listed in the B of Q	**200 units**
	Actual quantity remeasured on site	**2000 units**
Intension	**No Extension of Time for the change in quantity from 200 units to 1000 units. Extension of Time shall be provided for the change from 1000 units to 2000 units.**	

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APPENDIX 5.13 AMENDMENTS TO THE STANDARD METHOD OF MEASUREMENT FOR CIVIL ENGINEERING WORKS (1992 EDITION) (Subsumed from WBTC No. 17/95A)

Para. 1(a) of Part I of the SMM shall be replaced by :

> **"Bills of Quantities" means a list of items giving brief identifying descriptions and the quantities measured in accordance with this document in respect of the work to be performed.**

Para. 1(c) of Part I of the SMM shall be deleted.

Para. 1 of Part II of the SMM shall be replaced by the following :

> **"The Bills of Quantities are intended in the first instance to give information upon which tenders can be obtained. The quantities in the Bills of Quantities are firm except where described as provisional. When a contract has been entered into, measurement and valuation of the work required to be measured under the Contract performed shall be carried out by reference to the priced Bills of Quantities in the manner stated in the Contract."**

Para. 3 of Part III (Rules of Preparing Bills of Quantities) of the SMM shall be replaced by :

Quantities 3 (a) **Unless required otherwise by the nature of the work or directed otherwise by a measurement rule in the Method of Measurement, the quantities shall accurately represent the work to be executed and shall be regarded as firm. Where quantities cannot be accurately measured, the respective item in the Bills of Quantities shall be marked as "provisional".**

(b) **The quantities shall be computed net from the Drawings or Specification, unless otherwise stated in the Contract, and no allowance shall be made for bulking, shrinkage or waste. Quantities may be rounded up or down where appropriate. Fractional quantities are not generally necessary but, where required, should not be given to more than one place of decimals.**

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APPENDIX 5.14 PARTICULAR PREAMBLE TO SPECIFY THE CURRENT EDITION OF HKCA SCHEDULES FOR PLANT USED IN DAYWORKS CARRIED OUT INCIDENTAL TO CONTRACT WORK

SECTION 27

DAYWORK

DAYWORK

Measurement

27.03A Replace "HKCA Schedules for Plant Used in Dayworks Carried Out Incidental to Contract Work" current at the date for return of Tender" with "HKCA Schedules for Plant Used in Dayworks Carried Out Incidental to Contract Work (xxxx Edition[#]) " in line 1 of paragraph 1.

Insert the appropriate edition, e.g. 2013 Edition, of the Schedules current at the date for return of tender with reference to the information of Hong Kong Construction Association.

* * * * *

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APPENDIX 5.15 (NOT USED)

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APPENDIX 5.16 (NOT USED)

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APPENDIX 5.17 (NOT USED)

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APPENDIX 5.18 (NOT USED)

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APPENDIX 5.19 CONTRACT MEASURES FOR LIMITING TIERS OF SUBCONTRACTING

The following Notes to Tenderers and Special Conditions of Contract shall be included in tenders for all capital and maintenance works contracts:

Notes to Tenderers

NTT [xx]# – Limiting tiers of subcontracting

The Tenderers' attention is drawn to the provisions under Special Conditions of Contract Clause [X]# which impose certain restrictions on subcontracting.

Special Conditions of Contract

SCC [X]# – Limiting tiers of subcontracting

(1) For the purposes of this Clause, the first tier of subcontracting means the contracts between the Contractor and his subcontractors. The second tier means the subcontracts between any of the subcontractors of the first tier and his subcontractors. The foregoing shall apply with necessary modifications to subsequent tiers of subcontracting.

(2) Notwithstanding General Conditions of Contract Clause 4 on subcontracting and subject to sub-clause (3) to of this Clause, the subcontracting of any part of the Works by the Contractor shall be limited as follows:

(a) subcontracting of any part of the Works requiring entry of human beings into confined space that forms part of a sewerage or drainage system [or any part of the Works involving [state clearly the project-specific high-risk operations(s)][1]]* shall be limited to the first tier of subcontracting; and

(b) subcontracting of any part of the Works not falling under sub-clause (2)(a) above shall be limited to two tiers (i.e. the first tier and second tier) of subcontracting.

(3) (a) The Contractor may submit a proposal to the [Engineer/Maintenance Engineer/Supervising Officer/Maintenance Surveyor]* for an extra tier of subcontracting for any part of the Works which has been subcontracted in compliance with the limit in sub-clauses (2)(a) or (2)(b), whichever is applicable, of this Clause and with other provisions of the Contract.

(b) The [Engineer/Maintenance Engineer/Supervising Officer/Maintenance Surveyor]* shall not be obliged to consider the Contractor's proposal for an extra tier of subcontracting unless the proposal is submitted in writing to the [Engineer/ Maintenance Engineer/Supervising Officer/Maintenance Surveyor]* at least 14 days before the subcontractor of the relevant tier of subcontracting enters into any subcontract for the extra tier of subcontracting and the proposal is accompanied by an explanation with supporting evidence on the need for the extra tier of subcontracting.

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(c) A proposal which has been made in strict compliance with sub-clause (3)(b) above is taken to have been approved by the [Engineer/Maintenance Engineer/Supervising Officer/Maintenance Surveyor]* if it is not expressly rejected by the [Engineer/Maintenance Engineer/Supervising Officer/Maintenance Surveyor]* in writing within 14 days from the date of receipt by the [Engineer/Maintenance Engineer/Supervising Officer/Maintenance Surveyor]* of the Contractor's proposal.

(d) The rejection of the Contractor's proposal for any reason by the [Engineer/ Maintenance Engineer/Supervising Officer/Maintenance Surveyor]* shall not entitle the Contractor to any extension of time or additional payment nor does it relieve the Contractor from any liability or obligation under the Contract.

(4) The Contractor shall comply with and shall ensure that all subcontractors (irrespective of any tier) shall comply with the provisions of this Clause. If the Contractor or any of the subcontractors (irrespective of any tier) fails to comply with the provisions of this Clause, the [Engineer/Maintenance Engineer/Supervising Officer/Maintenance Surveyor]* shall, without prejudice to any other rights and remedies, have full power to order the removal of any subcontractor which has been engaged in contravention of any of the provisions of this Clause from the Site and/or the Works.

(5) In this Clause, unless the context otherwise requires, "confined space" has the same meaning as that adopted in the Factories and Industrial Undertakings (Confined Spaces) Regulation (Cap. 59AE).

Internal Notes:

 # Insert appropriate reference.

*** Delete as appropriate.**

1. Subject to the approval of Works Branch of the Development Bureau, project officers can insert project-specific high-risk operations, e.g. demolition, scaffolding work or working in confined spaces, etc. Project officers shall provide justifications including past accident records involving such high-risk operations and obtaining prior endorsement of an officer at D2 rank or above in Works Departments.

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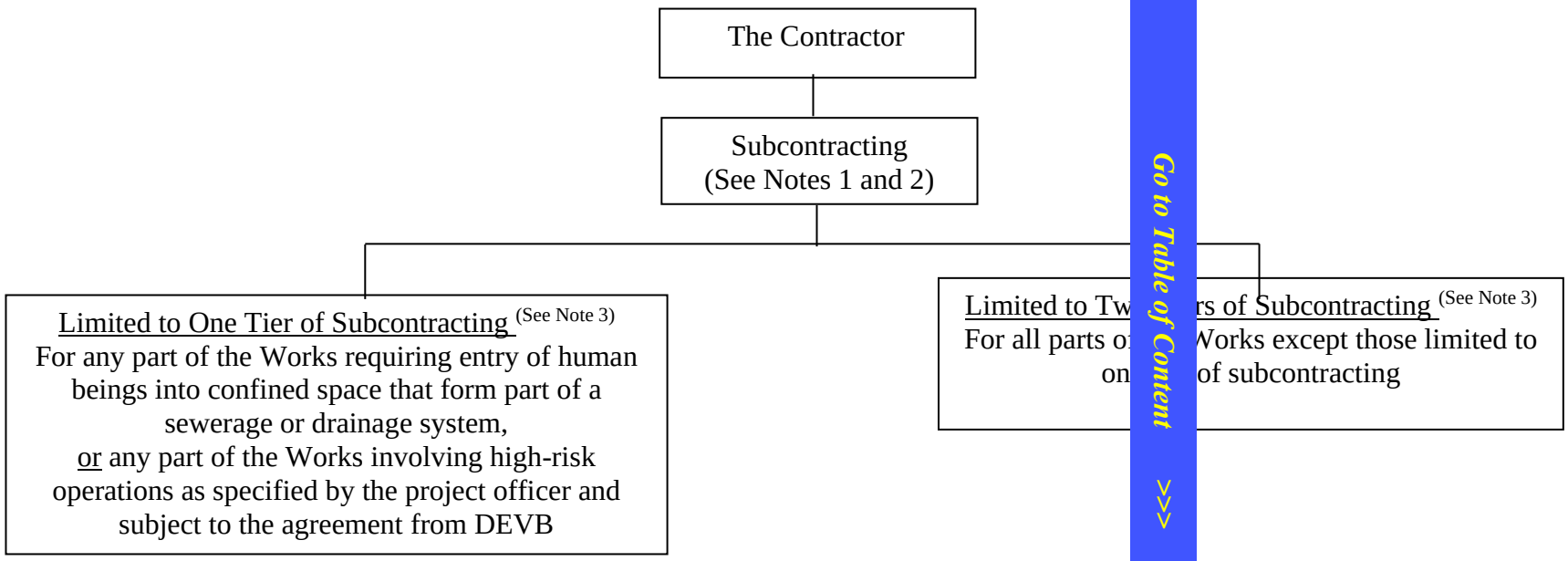
APPENDIX 5.20 ILLUSTRATION DIAGRAM ON LIMITING THE NUMBER OF TIERS OF S ONTRACTING FOR DIFFERENT NATURE OF WORKS

(For internal reference only and shall not be attached in contract documents)



Notes:

1. **Where the Contractor is to sublet/subcontract part of the Works to subcontractors involving trades av e under the Registers of the "Registered Specialist Trade Contractors Scheme" (RSTCS), the subcontractors shall be registered under the rel trades (and groups if applicable) in the Registers.**
2. **Details of the RSTCS are given in SDEV's memos ref. DEVB(W)510/94/02 dated 28 March 2019 and 4 D ber 2020, or the latest updated version.**
3. **The *Project Manager*, *Service Manager*, Engineer, Maintenance Engineer, Supervising Officer or Maint e Surveyor may, subject to no objection from the Employer (who should be an officer at D2 rank or above in Works Departments), permit Contractor to introduce an extra tier of subcontracting for a part of the Works in case there is a strong need for the extra tier of subcontracting orks Departments shall keep a record of such approvals including justifications and update Works Branch of DEVB at 6-month intervals for all p sions granted under this provision.**

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APPENDIX 5.21 (NOT USED)

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APPENDIX 5.22 NOTES TO TENDERERS FOR PAYMENT FOR SUBCONTRACTOR MANAGEMENT PLAN

Notes to Tenderers

NTT# : Payment for Subcontractor Management Plan

Tenderers' attention is drawn to GCT 20, Special Conditions of Contract Clauses [x]# and Particular Specification Section [x]# requiring the submission and quarterly updating of the Subcontractor Management Plan (SMP) in the form and contents as prescribed in the Contract. Tenderers' attention is also drawn to the requirement to monitor and ensure the implementation of and the compliance with the SMP.

Tenderers should note that there are no separate items in the [*Bills of Quantities/Schedule of Rates] for measurement of "complete Subcontractor Management Plan" and "quarterly updating of Subcontractor Management Plan" and that, in line with the "[*General Preambles/Method of Measurement] to the [*Bills of Quantities/Schedule of Rates], the rates in the [*Bills of Quantities/Schedules of Rates] shall cover, inter alia, the provision of implementation of and compliance with the SMP.

NTT# : Details of Subcontractor Management Plan

Tenderers' attention is drawn to the Appendix [x]# to Special Conditions of Contract [x]# requiring the submission of the details of subcontract(s), including but not limited to the trade and group (if any) of the subcontractor under the Registered Specialist Trade Contractors Scheme and value of the subcontract(s) in the Subcontractor Management Plan.

Internal Notes:
 # Insert appropriate reference

***Delete or amend as appropriate**

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APPENDIX 5.23 SPECIAL CONDITIONS OF CONTRACT FOR MANAGEMENT OF SUBCONTRACTORS

Special Conditions of Contract

SCC[x] #: Management of Subcontractors

General Conditions of Contract Clause 4 is amended by adding the following:

(7)^(a) Notwithstanding the foregoing sub-clauses of this Clause, the Contractor shall within 30 days of the Employer's letter of acceptance of the Tender submit a Subcontractor Management Plan (SMP) to the Engineer/Supervising Officer* (E/SO*) for information and comments, if any.

(b) The Contractor shall then submit quarterly the updated SMP till the issuance of the certificate of completion or where there is more than one such certificate, the issuance of the last certificate of completion to the E/SO* for information and comments, if any. Should there be any major changes in the Contractor's subcontracting arrangement during the period before the next quarterly reporting, the Contractor should notify immediately such changes to the E/SO* in writing. The quarterly updated SMP required under this paragraph (b) shall be submitted within one month from each quarterly period. For the avoidance of doubt, the first quarterly period shall commence from the date of submission of the SMP by the Contractor pursuant to paragraph (a) of this sub-clause. Any interim notification of changes by the Contractor shall not affect his obligation to submit the quarterly updated SMP. In case there is no change to the previous SMP, the Contractor shall declare such status in writing instead of submitting the same SMP again.

(c) The SMP submitted under paragraphs (a) and (b) of this sub-clause shall contain detailed information as required by the Guidelines on Scope and Contents of the Subcontractor Management Plan at Appendix [x] # to these Special Conditions of Contract.

(d) The E/SO* may upon receipt of the SMP comment on the SMP and notify the Contractor of such comments in writing. If the E/SO* is of the opinion that the SMP submitted under paragraphs (a) and (b) of this sub-clause does not meet the requirements of the Contract, the E/SO* may, by written notice, require the Contractor to revise or update the SMP and the Contractor shall comply with that requirement within 14 days of the date of the notice. No approval of the SMP is required from the E/SO*.

(e) Subject to the provisions of other Special Conditions of Contract stating to the contrary, the Contractor shall ensure that his subcontractors shall not subcontract the whole of the works subcontracted to them.

(f) The Contractor shall employ his own staff to manage and supervise his subcontractors.

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(g) For the purpose of this clause and the Guidelines on Scope and Contents of the Subcontractor Management Plan at Appendix [x] # to these Special Conditions of Contract, the term 'subcontractor' means all types of subcontractor including without limitation Nominated Subcontractor and Specialist Subcontractor.

(h) The Contractor shall, upon written request by the E/SO* (which may be issued by the E/SO* from time to time or at any time), produce to the E/SO* documentary proof to demonstrate to the satisfaction of the E/SO* that the Contractor has complied with all the provisions in the latest SMP submitted under paragraphs (a) and (b) of this sub-clause. Such documentary proof includes, but is not limited to, documents of subcontracts, reports from subcontractors on their further subcontracting arrangement and daily attendance records of site workers. For the purpose of determining the extent of documentary proof, the E/SO* shall made reference to the Guidelines on documentary proof to demonstrate the compliance of the provisions in the SMP at Appendix [y] to these Special Conditions of Contract. The E/SO* may make as many separate written requests as he thinks fit. The provisions of this sub-clause shall be without prejudice to sub-clause (5/7*) of this Clause.

Internal Notes:

 # Insert appropriate reference

*** Delete as appropriate [The numbering of the sub-clause may vary depending on individual contract. The sub-clause intended to be referred to is the sub-clause of GCC Clause 4 which states the duty of the Contractor if so required to furnish full particulars of any subcontractor employed on the Works.]**

^ The numbering of this added sub-clause may vary depending on the type of GCCs used and whether there is other SCC in the contract which also amend GCC Clause 4.

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Appendix [x]# to SCC[x]#

Guidelines on Scope and Contents of Subcontractor Management Plan

The Subcontractor Management Plan shall include (but not limited to) the following:

i) Scope of works to be subcontracted including the form and extent of subcontracting arrangement such as labour only, labour and plant, labour and material, plant only, lump sum or any other combination of types. Proof of ownership of construction plant and material shall be addressed. The scope of works to be subcontracted shall comply with the relevant contractual provisions (i.e. the SCC for Limiting the Tiers of Subcontracting).

ii) Particulars of subcontracts (irrespective of tiers) as required under the Template under Table 1.

iii) The Contractor's approach to demand/ensure his subcontractor(s) to a) abstain from subcontracting the whole of the works subcontracted to him/them, and b) report upwards his/their subcontracting arrangement and any subsequent changes with written declarations of no "hidden" subcontracts for any part of the Works subcontracted to any of them.

iv) The Contractor's proposed measures for supervision of the works and monitoring of the performance of subcontractors, particularly the aspects of the works programming, quality and safety of the works and environmental protection.

v) Criteria for selection of subcontractor(s) involving trade(s) not available in the Registered Specialist Trade Contractors Scheme (RSTCS).

vi) The Contractor's approach to ensure all his subcontractor(s) (irrespective of tiers) to adopt written contracts in his/their subcontracting and that all the subcontract(s) comply with the requirements as stipulated in the Contract (i.e. SCC for Subcontract conditions).

vii) Details of the Contractor's Management Team, as required in the Contract (i.e. the SCC for Contractor's Management Team), employed on direct supervision and management of subcontractor(s). An organization chart showing the responsibilities of the Contractor's direct staff in supervision and management of his subcontractor(s) shall be submitted.

viii) Declaration through the standard declaration from that members of staff on the Contractor's Management Team are prohibited to be given a subcontract to any part of the Works or to have a vested interest in any of the subcontractors irrespective of tiers.

ix) The Contractor's proposed measures to ensure the compliance with the implementation of the system of payment of wages to the Site Workers as stipulated in the Contract (i.e. SCC for Payment of Wages of Site Workers). The Contractor's proposed measures for ensuring timely payments to subcontractor(s) and payments by subcontractor(s) to subcontractor(s) of lower tiers.

NB. The above items are not exhaustive. The Contractor can add any other items, which he considers pertinent to the proper management of his subcontractor(s).

Internal Notes:

Insert appropriate reference

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Appendix [x]# to SCC[x]#

[For contracts without contract measures to prevent non-payment of wages and/or limiting number of tiers of subcontracting]

Guidelines on Scope and Contents of Subcontractor Management Plan

The Subcontractor Management Plan shall include (but not limited to) the following:

i) **Scope of works to be subcontracted including the form and extent of subcontracting arrangement such as labour only, labour and plant, labour and material, plant only, lump sum or any other combination of types. Proof of ownership of construction plant and material shall be addressed.**

ii) **Particulars of subcontracts (irrespective of tiers) as required under the Template under Table 1.**

iii) **Criteria for selection of subcontractor(s) involving trade(s) not available in the Registered Specialist Trade Contractors Scheme (RSTCS).**

iv) **Details of the Contractor's own staff employed for direct supervision and management of his subcontractor(s). An organization chart showing the responsibilities of the contractor's direct staff in supervision and management of his subcontractor(s) shall be submitted.**

v) **The Contractor's approach to demand/ensure his subcontractor(s) to a) abstain from subcontracting the whole of the works subcontracted to him/them, and b) submit written declarations of no "hidden" subcontracting of works.**

vi) **The Contractor's approach to encourage his subcontractor(s) to adopt written contract(s) in his/their subcontracting.**

vii) **The Contractor's proposed measures to demand his subcontractor(s) to report upward his/their subcontracting arrangement(s) and any subsequent changes.**

viii) **The Contractor's proposed measures for monitoring and assessing the works programme, quality, safety and environmental performance of his subcontractors.**

ix) **The Contractor's proposed measures for ensuring timely payment to downstream subcontractor(s) after his payment to his direct subcontractor(s).**

x) **The Contractor's approach for monitoring disputes.**

xi) **The Contractor's approach for handling complaints from workers on site regarding wages arrears disputes and co-ordinating with Labour Department for prompt action. Contractors are required to keep the Architect/Engineer/Supervising Officer's site representatives updated of the situation.**

xii) **The Contractor's proposed measures for maintaining updated daily attendance records of all workers on site.**

xiii) **The Contractor's proposed measures for site security and workers' daily access control if applicable.**

NB. The above items are not exhaustive. The Contractor can add any other issues, which he considers pertinent to the proper management of his subcontractor(s).

Internal Notes:

 # Insert appropriate reference

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Appendix [x]# to SCC[x]#

Standard Declaration Form by the Contractor on Compliance with Provisions in Subcontractor Management Plan

To: The [Engineer / Maintenance Engineer / Supervising Officer / Maintenance Surveyor]*

Contract No. : _____

Contract title : _____

In accordance with the Guidelines on Scope and Contents of Subcontractor Management Plan referred in SCC [x]# , I / we declare and confirm that we have complied with and undertake to continue to comply with the following provisions, and declare and confirm that I / we have ensured and undertake to continue to ensure that our members of staff on the Contractor's Management Team as referred in SCC [y]# are aware of the following provisions:

(c) Members of staff on the Contractor's Management Team are prohibited from being given a subcontract to any part of the Works or having a vested interest in any of the subcontractors irrespective of tiers;

(d) Members of staff on the Contractor's Management Team are required to submit written declarations to the [Engineer / Maintenance Engineer / Supervising Officer / Maintenance Surveyor]* upon his / her written request from time to time or at any time that they do not have a subcontract to any part of the Works or any vested interest in any of the subcontractors irrespective of tiers.

(Name of the Contractor) _____

(Name of the Signatory) _____

(Position of the Signatory) _____

(Date) _____

Internal Notes:

***Delete where inappropriate**

 # Insert appropriate reference

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Appendix [x]# to SCC[x]#

Table 1 - Particulars of Sub-contracts[1]

No.	Contract No.	Contract Title	Contract Sum ($)	Contact Point	Company Name of Sub-contractor	Commencement Date	Program	No. of Tier	Form of Sub-contractor	Type[2] (RSTC or RS)	Trade[3]	Specialty[3] (NA for RSTC)	Registration No.	Expiry Date	Value[4]	Grouping[5] (1, 2 or NA)
e.g.	CV/XXXX/XX	Construction of XXX	100,000,000	Mr. XXX, EAX	ABC Company Ltd.	1-10-2020	9 months	1	labour, plant & material	RSTC	Concreting Formwork	NA	XXXXXX	31-3-2022	E	1
	CV/XXXX/XX	Construction of XXX	100,000,000	Mr. XXX, EAX	123 Company Ltd.	1-10-2020	12 months	2	labour & plant	RS	Fire Services Installation	Fire services pipe work	XXXXXX	31-3-2022	D	NA
1																
2																

Notes:

(1) Apart from the above information, the Contractor shall provide additional information and supporting document upon requested.

(2) RSTC refers to the Registered Specialist Trade Contractors under the Registered Specialist Trade Contractors Scheme (RSTCS) of the Construction Industry Council (CIC).
RS refers to the Registered Subcontractors under the RSTCS.

(3) One row for one particular trade or specialty. Sub-contract with multiple trades or specialities shall be reported individually in several rows. For details of the classification of trade and specialty, please refer to the website of the RSTCS at www.rstc.cic.hk managed by the CIC.
RSTCS covers 8 designated trade groups, viz. (1) Concreting, (2) Concreting Formwork, (3) Curtain Wall, (4) Demolition, (5) Erection of Concrete Precast Component, (6) Reinforcement Bar Fixing, (7) Scaffolding, and (8) Plastering.

(4) One value for one particular trade group and specialty. The ranges of Value A to G are shown below:
A: Value < $1M
B: $1M ≤ Value < $3M
C: $3M ≤ Value < $6M
D: $6M ≤ Value < $15M
E: $15M ≤ Value < $30M
F: $30M ≤ Value < $60M
G: Value ≥ $60M

(5) Group 1 and Group 2 refer to the tender limits set by CIC for the 8 designed trades mentioned in (3) above, which are only applicable to RSTC. For details of the tender limits, please refer to the website of the RSTCS at www.rstc.cic.hk managed by the CIC.

Internal Note:
 # Insert appropriate reference

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Appendix [y]# to SCC[x]#

Guidelines on documentary proof to demonstrate the compliance of the provisions in the SMP

i) E/SO should base on their professional judgment in selecting samples of subcontract document/report for documentary proof.

ii) Documentary proof should be limited to relevant information for the demonstration of the compliance of the provisions in the submitted SMP i.e. information as stipulated in the Guidelines on Scope and Contents of the Subcontractor Management Plan at Appendix [x]# to these Special Conditions of Contract.

iii) Documentary proof should exclude sensitive commercial information such as price, payment conditions, bills of quantity etc.

Internal Note:

 # Insert appropriate reference

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APPENDIX 5.24 (NOT USED)

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APPENDIX 5.25 PARTICULAR SPECIFICATION FOR MANAGEMENT OF SUBCONTRACTORS

SECTION X

Management of Subcontractors

GENERAL

General **X.1** **(1) The Contractor shall ensure the submission and quarterly updating of the Subcontractor Management Plan (SMP) in the form and contents as prescribed in the Contract.**

(2) The Contractor shall monitor and ensure the implementation of and the compliance with the SMP.

SUBCONTRACTOR MANAGEMENT PLAN (SMP)

SMP **X.2** **(1) The Contractor shall, in accordance with SCC [x], prepare and submit to the Engineer/Supervising Officer* (E/SO*) 2 copies of the Subcontractor Management Plan signed by the Site Agent. The SMP shall contain detailed information as required by the Guideline on Scope and Contents of the Subcontractor Management Plan at Appendix [x] to the SCC [x].**

Quarterly updated SMP **X.3** **(1) The Contractor shall, in accordance with SCC [x], submit to the Engineer/Supervising Officer* (E/SO*) 2 copies of the quarterly updated Subcontractor Management Plan signed by the Site Agent. The quarterly updated SMP shall contain the updated detailed information as required by the Guideline on Scope and Contents of the Subcontractor Management Plan at Appendix [x] to the SCC [x].**

(2) If there is no change to the previous SMP, the Contractor shall, in accordance with SCC [x], declare such status in writing instead of submitting the same SMP again. The declaration shall be signed by the Site Agent and for the purpose of this Particular Specification, the declaration shall be considered as a quarterly updating of the SMP.

*** Delete as appropriate**

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APPENDIX 5.26 (NOT USED)

Go to Table of Content >>> Go to Table of Content >>> Go to Table of Content

APPENDIX 5.27 (NOT USED)

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APPENDIX 5.28 PRACTICE NOTE ON ADOPTION OF NON-CONTRACTUAL PARTNERING IN PUBLIC WORKS CONTRACTS (Ref: SETW's memo ref. (0117S-01-2) in ETWB (W) 506/30/02 dated 30.3.2006 and SDEV's memo ref. () in DEVB(W) 506/30/02 dated 23.9.2020)

Introduction

Partnering is a project delivery technique based on cooperative working practices, which can be taken as a journey of improvement with non-contractual partnering being the first step on this journey. This Practice Note promulgates the guidelines and good practices for implementation of non-contractual partnering in public works contracts.

Background

2. In Hong Kong, the Hospital Authority and MTR Corporation Limited (MTRCL) were probably the first clients to embrace the concept of partnering. Partnering was first used in hospital projects in the mid 1990's with some notable success. Partnering was also adopted by the MTRCL in its Tseng Kwan O Extension project, which opened ahead of schedule with construction cost substantially below budget. MTRCL has attributed such success to the use of project partnering.

3. The ETWB has been actively promoting the adoption of partnering in public works contracts in recent years, and introduced partnering on a non-contractual basis in public works contracts in 1997. Since then, non-contractual partnering has been used in more than 30 public works contracts. The wider use of partnering in construction industry was also recommended in the Construct for Excellence report published by the Construction Industry Review Committee (2001).

4. The ETWB also arranged a forum in November 2004, which was attended by representatives from all works departments and the Independent Commission Against Corruption (ICAC). The purpose of the forum was to share experience and information about what was going well and what needed to be improved. The good practices identified during the forum are summarized in Annex A as a reference guide.

Guidelines for selection of contracts for adoption of non-contractual partnering

5. In order to promote the wider use of partnering approach in public works contracts, non-contractual partnering should be adopted in the following types of contracts as far as possible:

(a) Building and civil engineering capital works contracts with tenders to be invited from Group C contractors;

(b) E&M contracts with tenders to be invited from Group B and/or C contractors;

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(c) Other contracts such as maintenance term contracts if approval is given by an officer at D2 or above rank to adopt the non-contractual partnering arrangement having regard to the nature and complexity of the works.

For contracts under (a) and (b) above, approval from an officer at D2 or above rank shall be obtained for not adopting the non-contractual partnering arrangement.

Implementation

Project Charter

6. Non-contractual partnering involves establishing a Partnering Charter after the contract is awarded. The Partnering Charter is a statement of general principles agreed among the stakeholders (e.g. Employer, Consultant and Contractor) and is non-binding, while the underlying contract establishes the legal relationship between the parties. A typical Partnering Charter is given in Annex B.

7. The Partnering Charter is drawn up at the beginning of the contract during the start-up partnering workshop. Subsequent partnering meetings are held at various stages to review performance of each project according to the established objectives. The partnering meetings are also used as the means to achieve better project value through mutual recognition and development of improvement opportunities, enhance effectiveness by preventing unnecessary cost and time escalations, and identify opportunities for simplifying procedures and potential savings in time or costs, etc. An independent professional facilitator is usually engaged jointly by the project office and contractor to help plan the partnering workshops and provide facilitation services.

Start-up workshop

8. To fully utilize the start-up workshop for each contract, the project office should invite staff who may not be involved in the project but are interested in non-contractual partnering to attend the workshop as observers. This will provide additional training opportunities for staff, especially frontline staff. Also, in order to "attract" other key stakeholders (e.g. EPD, TD, Police, subcontractors, etc.) to join the workshop to establish an informal communication channel at an early stage, representatives from these parties should be invited to attend the relevant part of the workshop instead of sitting through it, which usually lasts for a full day.

Sample Documents

9. Where a contract is selected for adoption of non-contractual partnering, the project department should include a note in the Notes for Tenderers in the tender documents indicating the Government's intention to adopt non-contractual partnering. After contract award, the project department should ask the contractor in writing whether he is willing to adopt non-contractual post-award partnering and share equally the costs associated with the partnering workshops including the services of an independent professional facilitator. The standard note for inclusion in the Notes for Tenderers and sample letter to the contractor are given in Annex C.

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10. A sample Form of Tender and Brief for appointing the facilitator are given in Annexes D and E respectively. The experience and qualification requirements for the facilitators are set out in paragraph 22 of the sample Brief. The quality of the facilitator has an important bearing on the outcome of non-contractual partnering. Therefore, the facilitator should be appointed on the basis of his technical and fee proposals, and where appropriate, a two-envelope approach should be adopted in his selection.

Appointment of Facilitator

11. Currently, with the agreement of the contractor, each contract will appoint a facilitator by letting a small consultancy assignment. For a department with many contracts adopting non-contractual partnering, some administrative time and resources may be saved if the department elects to let a term consultancy to provide facilitating services for say up to 3 contracts over a given period of time. However, before adopting this non-mandatory approach, the department should first consider its limitations, such as the administrative and funding arrangements for the term consultancy, the potential complications due to project slippage or cancellation, and the implications in case the contractor refuses to work with the term consultancy consultant, etc. If this approach is adopted, references to the "Contractor" in the brief in Annex E for appointment of facilitator should be removed. Also, the standard notes for tenderers and sample letter to the contractor in Annex C should be amended accordingly. Furthermore, the Engineer for a contract covered by the scope of the term consultancy should record his justifications in file if he elects NOT to use the term consultancy.

Monitoring

12. In addition to provision of partnering workshops/meetings, project departments should set up individual project management teams to drive, manage and monitor the actual process. In addition, DEVB has set up a steering group comprising representatives from works departments as well as the ICAC, to promote the wider use of partnering in public works contracts, to oversee the implementation as well as to determine policy and strategic directions.

Promote Awareness

13. To promote the awareness of non-contractual partnering, departments may consider identifying a pool of experienced staff, so that any "new comers" could contact them for help/advice if necessary. The contractor should be encouraged to do likewise.

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Annex A

GOOD PRACTICES FOR IMPLEMENTATION OF NON-CONTRACTUAL PARTNERING

ETWB arranged a forum in November 2004 for Works Department staff members who were working on non-contractual partnering projects. The purpose of the workshop was to share experience and information about what was going well and what needed to be improved. The following is a summary of good practices identified. In addition, some basic principles in contract administration from the standpoint of corruption prevention are reiterated in Enclosure I.

1 Common goals

Partnering enables project team members to share views about their own organisation's objectives and to establish a set of mutual objectives that all can aim for. At first this might seem difficult to achieve as team members often assume that they have incompatible objectives (i.e. RSS team want quality but the contractor wants profit) but this is rarely the case and any differences can normally be talked through to achieve a 'partnering charter' with objectives acceptable to all parties.

Establishing common goals begins at the start-up workshop and continues throughout the project. It is important to establish common goals for key issues affecting the projects such as major delaying events. Common goals should also be revisited and adjusted as necessary at review workshops.

Example ***:CEDD's T3 project in Shatin is being built in a densely populated area, both the project team and contractor are constantly facing challenges from external influences. As each new issue arises the project team from CEDD, the contractor and the RSS team discuss and agree a common approach.***

2 Involvement of senior management

One of the major benefits of partnering is the opportunity for senior management of the key parties (e.g. D1 or above officer) to get together to discuss and resolve key issues jointly, through the Champion or Steering Group meetings. Such meetings also provide an informal forum for senior management to share perceptions of how things are going and to listen to the views of junior staff. This helps senior staff to be better informed and provide support to the project staff in overcoming key issues.

Example ***:Open discussions at the Regular Champion Group meetings for the Central Reclamation Phase III project has helped senior management from CEDD, the contractor and RSS team to develop a relationship of cooperation, which was particularly important in dealing with the situation surrounding the judicial review process.***

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3 Culture of sharing and trust

No one party can succeed in delivering a project alone; often the teams are only as strong as the weakest link, which for example can be a key subcontractor. Establishing cooperation and trust amongst the parties provides the basis for a successful outcome. But this is often difficult to achieve if we have a culture of mistrust and selfish behaviour within the industry.

How can we build trust within a hard contractual relationship? The starting point is to think of how you can help the other team members achieve the mutual objectives rather than to think about how they should help you achieve your own objectives. There are plenty of ways to do this within the bounds of the contract and Government procedures, but it does need a change of attitude. By taking the first step to help others you will set an example and begin to establish a culture of sharing and trust, which will have significant benefits for the project and those involved.

Once you have taken the lead in role modelling this behaviour, be prepared to be assertive with those who remain selfish. Partnering has to be win/win.

Example ***:Getting an early mutual agreement for alternative designs proposed by the contractor gives a strong signal of the willingness to help the other side succeed. For Route 9 (formerly Route 5) in Tsuen Wan, the project team from CEDD was able to agree with the contractor the principles of the major Supplementary Agreement on his proposed alternative designs within 3 months of the start of the project.***

4 Prompt problem solving and decision making

Compared to other industries, decision-making and problem solving in construction is relatively slow. The root cause is that team members often focus on achieving decisions for the benefit of their own organisation or on allocating blame for problems on others. Joint problem solving is therefore a key to getting the best solutions, since no one party normally has all the information or the best ideas. A suggested approach to problem solving is illustrated in Enclosure II. Efficiency is also dependent upon employing good people and then giving them the freedom and authority to make decisions in the best interest of the project. Monitoring of the project performance can be done by taking a more holistic view and measuring trends against overall objectives.

Example ***:The Route 8 (Shatin Heights Tunnels and Approaches) project team reviewed progress of the project at Steering Group meetings using Key Performance Indicators, which provided an objective measure of performance against the mutual objectives. The review meetings also enabled the project team to focus on key issues affecting objectives and trends.***

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5 Streamlining procedures

There are many procedures to be followed in delivering a project. Some procedures have obvious purpose and benefit for a given project whilst others may not. Streamlining procedures is about removing activities that do not add value to the end result of the project, which we are all trying to achieve. Through cooperation, establishing trust and common objectives the parties can remove unnecessary procedures and duplication of effort. But this needs to start at the top and be undertaken as a joint improvement actions.

Example ***:Environmental constraints for construction of Tung Chung Road Improvement make it difficult for the contractor to carry out the construction works using conventional approaches. To assist the contractor to overcome the difficulty, the project team from HyD has worked hard to smooth out the processes required to enable the contractor to gain access, obtain storage areas and modify designs to suit the emerging situation.***

6 Sharing pain and sharing gain

Projects rarely go exactly as planned throughout project delivery. Therefore, success in partnering depends a great deal upon how the team face up to the opportunities and threats along the journey together. To encourage the contractor to come forward with cost-saving alternative methods or ideas that do not detract from the overall objectives or contractual obligations, such savings are shared equally between the Government and contractor [see DEVB TCW No. 3/2014]. Although getting the savings is not easy, they are still there for the teams that are prepared to look for them and work together to achieve them.

Sharing pain is more difficult under the conventional contractual arrangements. Nevertheless, supporting each other in difficult circumstances in whatever way is possible is a good investment in the relationship and will be returned when circumstances reverse.

Example ***:Replacement of the deodorisation equipment at To Kwa Wan and Kwun Tong Primary Sewage Treatment plants whilst keeping the plant running was a challenge that could only be met through teamwork. The teams from EMSD and the contractor treated each other as equals while facing the problem together. Both teams openly discussed issues on a regular basis and supported each other as new problems arose.***

[Notes: ETWB has identified a public works project for the trial adoption of contractual partnering based on the New Engineering Contract, which permits the cost of risk to be shared between the Employer and the contractor.]

7 Involvement of more stakeholders

For many projects, the non-contractual partnering relationship typically involves the employer, main contractor and principle consultant. This can bring about significant benefit. However, greater benefits may be realised by

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including other major stakeholders such as key subcontractors, user groups and other Government departments that can have a significant impact on the project outcome. If these stakeholders understand better the needs and objectives of the main project team by joining the partnership, they are more likely to help to find solutions to problems that satisfy the needs of all parties.

Example ***:Tai O Harbour and Development project team invited EPD, the environmental consultant and the independent environmental checking consultant along to the start-up workshop. This has greatly enhanced the relationship between the parties in dealing with subsequent environmental issues.***

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Enclosure I

General Principles for Contract Administration for Corruption Prevention

The following general principles in contract administration should be adopted for prevention of potential corruption:

a. Fairness and openness.

b. The terms and conditions of the contract should remain in full force unless varied by way of a supplementary agreement. The arrangement for controlling the issue of supplementary agreements is given in Appendix V(B) of the SPRs.

c. Quality control of the works on site, and checks-and-balances should not be relaxed

d. Granting of extension of time applications and claim assessment etc. should follow existing approval procedures and properly documented

e. The non-contractual partnering arrangement should not be used as an excuse for accepting advantage or inappropriate entertainments offered by contractors. Further guidelines are given in the Civil Service Regulation Chapter III.

In addition, project departments should consider inviting the ICAC to participate in the start-up workshop for contracts where non-contractual partnering is adopted.

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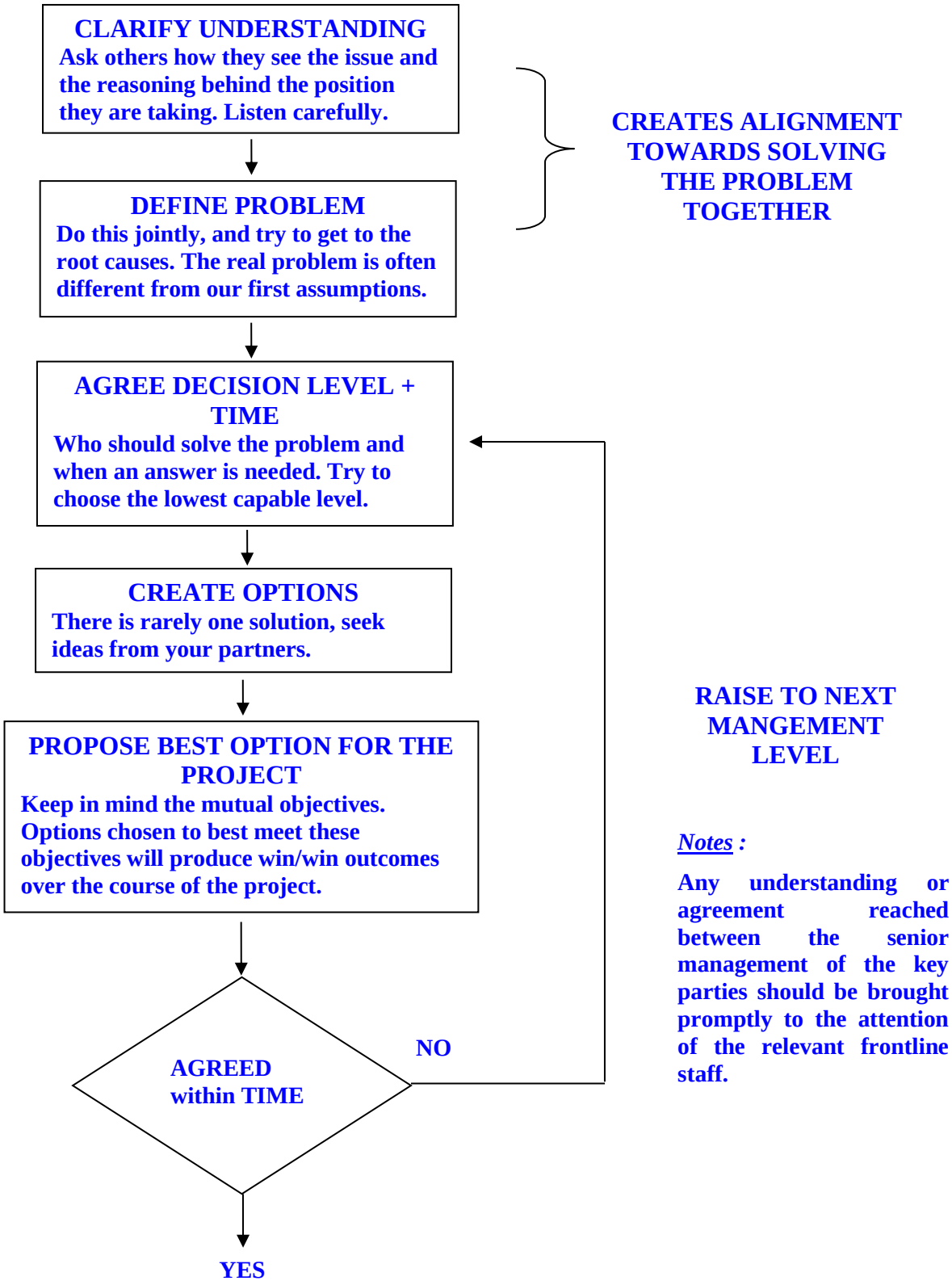
Enclosure II

Communication and Problem Solving in Partnering

90% of disagreements are caused by misunderstandings. To avoid this and improve problem solving, the following general approach may be considered:



Notes **:**

Any understanding or agreement reached between the senior management of the key parties should be brought promptly to the attention of the relevant frontline staff.

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Annex B

TYPICAL PARTNERING CHARTER

Contract No. + Contract Title
Main Participants - Employer/Main Contractor/Consultants

VISION STATEMENT

A simple statement of what the team aspires to.

MUTUAL OBJECTIVES

- **This is a detailed set of objectives that can be used as a basis for performance measurement.**
- **Generally they cover hard objectives such as time, cost, quality, safety and environmental outcomes.**
- **Usually there are about 6 key objectives.**

VALUES & BEHAVIOURS (Optional)

- **These set out how the team would expect to work together and can be used as a basis for monitoring development of the relationship and how the team adopting partnering behaviours.**
- **Generally they cover soft issues such as cooperation, trust, openness, support, joint problem solving, etc.**
- **Usually there are about 6-8 key values and behaviours noted.**

Though not essential it is often good to include a team photo or logos of the companies involved.

Signatures: All key members of the team (normally those present at the start-up partnering workshop) sign the charter.

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Annex C

(1) Standard notes for tenderers to communicate Government's intent to partner

NOTES FOR TENDERERS
(These notes will NOT form part of the Contract)

Partnering

Tenderers' attention is drawn to the Employer's intention to adopt non-binding post-award project partnering with participation of all stakeholders of the project. If the non-binding post-award project partnering is implemented, the costs associated with the partnering workshops including the services of an independent professional facilitator are to be shared equally between the Employer and the successful tenderer.

(2) Standard letter to the Contractor to communicate Government's intent to partner and to invite him to participate in project partnering

Adoption of Project Partnering

Please be informed of the Employer's intention to adopt non-binding post-award project partnering with participation of all stakeholders of the project. If the non-binding post-award project partnering is implemented, the costs associated with the partnering workshops including the services of an independent professional facilitator are to be shared equally between the Employer and the Contractor. As this initiative is to be implemented on a purely voluntary basis, please advise in writing your agreement or otherwise to the undersigned by Date .

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Annex D

FORM OF TENDER

NOTES:
If a tender is being made by a partnership or an unincorporated body, the name(s) and residential address(es) of all partners should be given in the spaces provided below.
In all cases, the tenderer must insert below the number and date of the business registration certificate:

Number _____ Date_____

To:	**Employer's Representative**	**Contractor's Representative**
	Name:	**Name:**
	Post:	**Post:**
	Department:	**Company:**
	Address:	**Address:**

1. **Having inspected the Client's Brief to Service Providers for Designing and Facilitating Partnering Workshops and Related Services (hereinafter referred to as "the Brief"), I/we offer to deliver and complete the assignment required under the Brief commencing from a date to be notified by the Client, in conformity with the Brief and for such rates that I/we have quoted in this Form of Tender.**

2. **I/We agree to abide by this Tender for a period of 3 months from the date fixed for receiving the same and it shall remain binding upon me/us and may be accepted at any time before the expiry of that period.**

3. **I/We understand that the acceptance of this Tender by the Client shall constitute a binding contract between us. The technical information attached to the Tender, with details of the qualifications and relevant experience of the Lead Facilitator and the Co-facilitator, shall be used for the purpose of assessing the Service Provider's competence in satisfactorily completing the assignment.**

4. **I/We understand that the Client is not bound to accept the lowest or any tender it may receive.**

5. **I/We understand that the Client reserves the right to negotiate with any tenderer about the terms of the offer.**

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6. I/We quote the following rates for completing the assignment as described in the Brief:

Item No	Description of Service	Estimated Quantity	Rate (HK$)
	Start-up Workshop		
	Design and facilitate a one-day start-up workshop	***1***	
	Follow-up Workshops		
2.	**Design and facilitate a half-day follow-up workshop (0.5 day)**	***1***	
	Venue for Workshops		
3.	**Provide venue for a one-day workshop for *[20]* participants**	***1***	
4.	**Extra over Item 3 for each additional participant**	***10***	
	Partnering and Introductory Meetings		
5.	**Attend and facilitate a partnering meeting (average 0.5 day per meeting)**	***5***	
6.	**Design and facilitate an introductory meeting (0.5 day) for an average of *[30]* participants**	***2***	

[Note: The estimated quantities for individual items and the number of participants for Items 3 and 6 are to be assessed by the Employer and the Contractor and adjusted accordingly prior to inviting tender.]

7. I/We understand that the rates quoted above shall be valid throughout the contract period from xxx to yyy *[to be specified by the project office]*, and my/our remuneration will be determined by the services to be instructed by the Client and actually carried out.

8. I/We will provide _____ as the Lead Facilitator and _____ as the Co-facilitator for the workshops and meetings.

Signed by the Tenderer with Company Chop _____

Name of Tenderer _____

Date _____

Registered Address of Company _____

Place of Business Registration _____

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Annex E

Client's Brief to Service Providers for Designing and Facilitating Partnering Workshops and Related Services

THE CLIENT AND THEIR REPRESENTATIVES

1. The Client requesting the Tender and technical information for designing and facilitating partnering workshops and the provision of related services are the Employer and the Contractor for the following Government works contract:

Contract No:
Contract Title:
Employer:
Contractor:
Commencement Date:
Contract Period:

2. The Employer's Representative for this assignment is _____ or such other person as may be appointed from time to time by the Employer and notified to the Contractor and the Service Provider in writing.

3. The Contractor's Representative for this assignment is _____ or such other person as may be appointed from time to time by the Contractor and notified to the Employer and the Service Provider in writing.

4. The Service Provider is the person, firm or company whose tender for this assignment has been accepted by the Client.

BACKGROUND AND OBJECTIVES OF THE ASSIGNMENT

5. The Client is determined to foster a partnering spirit for the project team which includes the staff of the Employer, Contractor, consultants, subcontractors and suppliers involved in the Government works contract through partnering workshops and meetings. The partnering workshops and meetings are intended to achieve enhanced mutual understanding, effective communication and co-operation, and to enhance project value through the involvement and commitment of all parties concerned.

6. The workshops and meetings are to be designed to facilitate participants to understand better project objectives; focus on creative co-operation; avoid adversarial confrontation; build working relationships based on mutual respect, trust and integrity; establish a more dynamic project organizational structure and clear line of communication; and develop a formal problem solving and dispute avoidance mechanism. The workshops and meetings will also be used as the means to achieve better project value through mutual recognition and development of improvement opportunities; enhance effectiveness by preventing unnecessary cost and time escalations, delays, or unresolved issues or problems; reduce the project time and improve quality; clarify common objectives; clarify project requirements; and identify opportunities for simplifying procedures and potential savings in time or costs.

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SERVICES TO BE PROVIDED BY THE SERVICE PROVIDER

Start-up Workshop

7. The Service Provider will initially be required to design and facilitate the start-up workshop, to be held in _____. The Service Provider shall use facilitation skills and all other necessary techniques to achieve the objectives of the assignment, and to ensure full commitment of all participants. Upon completion of the start-up workshop, the Service Provider shall provide a full report on all points agreed during the workshop with a follow-up action plan and post-workshop evaluation system. The Service Provider shall also prepare 3 copies of the project charter (with photo frames provided) to be signed up by the participants.

8. The Service Provider shall facilitate participants to develop an evaluation mechanism for regular monitoring and evaluating the mutual project objectives, improvement initiatives and partnering relationships. Such mechanism shall record the project team's assessed performance for the Government works contract to encourage continuous improvement.

9. The Service Provider must perform the work with the degree of skill and care required by good and sound professional procedures and currently available standards. He shall take all necessary steps to rectify any part of his work that does not meet professional standards and/or the Client's requirements.

10. The start-up workshop shall be designed and conducted by the Lead Facilitator and the Co-facilitator using the most up-to-date partnering methodologies worldwide. The Lead Facilitator is the person named in the Form of Tender to be the Lead Facilitator for this assignment. The Co-facilitator is the person named in the Form of Tender to be the Co-facilitator for this assignment. The facilitators shall conduct the workshop in a structured manner using a participatory and collaborative approach. The outcome of the workshop shall be action-oriented. At least one of the facilitators shall be Cantonese-speaking, otherwise the Service Provider may need to provide translation service at his own expenses.

11. The rate quoted for designing and facilitating the start-up workshop shall cover the services of the two facilitators for the workshop and the pre-workshop discussions and meetings, secretarial service at the workshop, preparation of the full report and the project charter, and the supply of worksheets, workbooks, relevant references and literature and other workshop material necessary for the effective delivery of the workshop.

12. The Service Provider shall be required to provide the venue for the workshop. The rate quoted for providing the venue for a one-day workshop shall cover the rent and other charges for the venue, lunch and coffee breaks and the provision of necessary audio and visual equipment and stationery such as paper, pencils, transparencies, markers, flip charts, TV, LCD projector, overhead projector, etc. The duration for the start-up workshop shall be from 9:00 a.m. to 6:00 p.m. (inclusive of 1 hour lunch break).

13. The facilitators for the workshop shall meet with key project team members in order to identify major concerns and risks involved with key stakeholders before the

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workshop. During such meetings, the facilitators shall clarify all pre-workshop concerns and issues and prepare all parties for the workshop. The Client shall forward relevant details of the workshop, e.g. names of participants, scope and progress of the Government works contract, etc. to the Service Provider before the workshop.

14. Participants will mainly be key members of the project team including staff of the Employer, Contractor, consultants, subcontractors and suppliers. The Service Provider shall prepare and agree the scope, format, structure, agenda, contents and handout with the Client prior to the workshop. The Service Provider shall provide each of the participants with a copy of the agenda and handout at the commencement of the workshop. The Service Provider shall also prepare and supply sufficient worksheets, workbooks, relevant references and literatures and workshop equipment and stationery, etc. as necessary for effective delivery of the workshop. The facilitators shall arrange for their own computer and printer for the workshop.

15. Within seven days from the workshop completion date, the Service Provider shall furnish to the Client four (4) copies of the post-completion report (in both hard copy and electronic format) for the workshop containing the information as mentioned in clause 7 of this Brief. In addition, the post-completion report shall evaluate the effectiveness of the workshop and make recommendations for future action. It shall also contain the salient points of the discussions, findings and conclusions made during the workshop.

Follow-up Workshops, Partnering Meetings and Introductory Meetings

16. In addition to designing and facilitating the start-up workshop, the Service Provider may be required to design and facilitate follow-up workshops and partnering meetings for the project team, and introductory meetings for other staff members of the Client. However, the services for follow-up workshops, partnering meetings and introductory meetings may only be required when instructed by the Client, and the Service Provider shall have no claims against the Client should these workshops and meetings are not required for any reasons.

17. The rate quoted for designing and facilitating the follow-up workshops shall cover the services of the two facilitators (i.e. the Lead Facilitator and the Co-facilitator) for the workshops and the pre-workshop discussions and meetings, secretarial service at the workshops, preparation of the workshop reports, and the supply of worksheets, workbooks, relevant references and literature and other workshop material necessary for the effective delivery of the workshops.

18. The rate quoted for attending and facilitating partnering meetings shall cover the service of either the Lead Facilitator or the Co-facilitator for the meeting with an evaluation of the effectiveness of the meeting and a recommendation for future action, as well as the secretarial service for the partnering meetings.

19. The rate quoted for designing and facilitating introductory meetings shall cover the service of a speaker (who shall be the Lead Facilitator for the workshops) for the meeting and necessary pre-meetings with key members of the Client, and the supply of worksheets, workbooks, relevant references and literature and other material necessary for the effective delivery of the meetings, as well as the secretarial service for the meetings and preparation of any reports as requested by the Client.

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20. The venue for the follow-up workshops, partnering meetings and introductory meetings will be approved by the Client.

SPECIALIST AND SUPPORTING SERVICES

21. The Service Provider shall provide all specialist and non-specialist services deemed necessary for the satisfactory completion of the assignment.

22. Facilitators for the workshops shall be highly trained in facilitation techniques. The Lead Facilitator shall have at least 3 years of practical relevant experience in conducting partnering workshops. Both facilitators should preferably have undergone training in group psychology and group dynamics, and have experience in facilitating partnering workshops for organizations in Hong Kong.

REMUNERATION AND PAYMENT TERMS

23. The Service Provider shall be remunerated for the services provided in accordance with the rates quoted in the Form of Tender. Payment to the Service Provider shall be made after satisfactory completion of each service including submission of the report to the reasonable satisfaction of the Client. The rates quoted in the Form of Tender shall be all inclusive rates. They shall also cover all profits, insurance, travelling, accommodation, food, subsistence allowance, price fluctuation and other expenses (e.g. royalties for use of copyright or patented material etc.) necessary and required for the assignment.

24. The Employer and the Contractor shall each be liable for half of the remuneration properly due to the Service Provider for the services provided by the Service Provider.

25. For each payment for services provided, the Service Provider shall separately invoice the Employer and the Contractor for half of the remuneration quoted in the Form of Tender. The invoices to the Employer or the Contractor shall be certified by the Employer's Representative or as the case may be the Contractor's Representative within 7 calendar days if the services are considered satisfactorily completed, and be settled by the Employer or as the case may be the Contractor within another 21 calendar days.

COPYRIGHT

26. Subject to Clause 27, the copyright and all other intellectual property rights in the reports, minutes, documents or other materials prepared produced or created at the workshops and meetings or otherwise prepared produced or created by the Service Provider for the assignment shall vest in the Employer and the Contractor jointly immediately upon their coming into existence. Upon completion of the services, the Service Provider shall deliver to the Employer and the Contractor all copies of such reports, minutes, documents or other materials.

27. The Service Provider shall draw to the attention of the Client those workshop materials that are under licence or in respect of which there is a pre-existing copyright or

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patent or any other restriction whatsoever affecting the use of the same and procure, at its sole costs and expense, the grant of irrevocable, royalty-free, worldwide sub-licensable licences for the benefits of the Client its authorized users assigns and successors by the relevant third parties in respect of such materials rights for all purposes contemplated by the assignment.

28. The Service Provider shall at its own costs and expense do and execute any further things and documents (or procure that the same be done or executed) as may be required by the Employer and/or the Contractor to give full effect to Clauses 26 and 27 and shall provide all such documents and materials to the Employer and/or the Contractor within 14 days of the date of the written request of the Employer and/or the Contractor or such longer period as may be agreed by the Employer and/or the Contractor in writing.

29. The Service Provider warrants that:

a) it has full right capacity power and authority to enter into this contract including without limitation the grant of the rights referred to in Clause 26 upon the terms and conditions of this contract;

b) the exercise of any rights granted under this contract by the Employer and the Contractor and their authorized users assigns and successors will not infringe any intellectual property rights of any persons; and

c) in respect of any third party materials used which will be incorporated as part of the workshop materials, the Service Provider has or shall have a valid and continuing licence under which it is entitled to use and sub-license the relevant materials for the Employer and the Contractor and their authorized users assigns and successors to use such materials for all (or any one or more) of the purposes contemplated by this contract.

The Service Provider shall indemnify and keep the Employer and the Contractor fully and effectively indemnified against all actions, costs, claims, demands, damages, expenses and liabilities of whatsoever nature for the infringement of any copyright or other intellectual property rights of any third party arising out of or in connection with the use and/or possession of any of the materials supplied by the Service Provider. The provisions of this clause shall survive the termination of this contract (howsoever occasioned) and shall continue in full force and effect notwithstanding such termination.

CONFIDENTIALITY

30. The Service Provider shall treat all information (including without limitation any personal data as defined in the Personal Data (Privacy) Ordinance, Cap.486) provided by the Client to the Service Provider for this assignment as confidential and shall not disclose or divulge it to any person (except to its own employees on a need to know basis) without the Client's prior written consent Provided That this clause shall not extend to any information which was rightfully in the possession of the Service Provider prior to the commencement of this assignment or which is already in the public knowledge otherwise than as a result of a breach of this clause.

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31. The Service Provider shall take all appropriate measures to ensure security of such information and shall in all respects comply with the provisions of the Personal Data (Privacy) Ordinance, Cap. 486.

32. The Service Provider shall indemnify and keep the Client fully and effectively indemnified against all actions, costs, claims, demands, damages, expenses and liabilities of whatsoever nature arising from or incurred by reason of any actions and/or claims made in respect of

- **a) any breach of confidence by the Service Provider or any of its employees or agents; and**
- **b) any breach of the provisions of the Personal Data (Privacy) Ordinance, Cap. 486 which would not have arisen but for the negligence or omission of the Service Provider.**

33. The provisions of Clauses 30, 31 and 32 shall survive the termination of this contract (howsoever occasioned) and shall continue in full force and effect notwithstanding such termination.

CANCELLATION OF WORKSHOPS OR MEETINGS

34. The Client shall have the right to cancel a workshop or a meeting by giving 7 days written notice. In the event that a typhoon warning signal number 8 or above or black rainstorm warning signal is hoisted on the date of a workshop or a meeting, the workshop or meeting will automatically be cancelled. If a workshop or a meeting is cancelled under the above conditions or any other unforeseeable conditions not due to the Service Provider's own fault, the Service Provider will be reimbursed for the actual expenses incurred, such as non-refundable deposit paid for the venue, and the Service Provider shall have no other claims against the Client.

DECLARATION OF INTEREST

35. The Service Provider shall declare any involvement or interest which he considers to be in real or apparent conflict with the duties to be performed for the assignment.

OTHER TERMS

36. The tenderer for the assignment shall submit with his tender a technical information for the purpose of assessing the tenderer's competence in satisfactorily completing the assignment.

37. Upon acceptance of a tender by the Client, the Client shall confirm this to the successful tenderer in writing. The Acceptance Letter, this Brief and the Form of Tender shall be construed as a binding contract valid for the whole contract period of the Government works contract. The Client shall confirm the preferred date of a workshop or a meeting to the Service Provider in writing. Any failure of the Service Provider to provide the service after the above written confirmation may render him liable for the damages incurred by the Client in this connection.

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38. The Client shall have the right to withhold payment in whole or in part should the Service Provider fail to meet the requisite professional standards and the Client's requirements.

39. Once the Service Provider's tender has been accepted by the Client, the Lead Facilitator and the Co-facilitator shall not be changed without the prior written approval from the Client.

ENQUIRIES FOR CLARIFICATION AND DETAILS

40. Please contact the Employer's Representative or the Contractor's Representative at the following addresses and contact numbers:

Employer's Representative	**Contractor's Representative**
Name:	**Name:**
Address:	**Address:**
Tel No:	**Tel No:**
Fax No:	**Fax No:**
E-mail:	**E-mail:**

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APPENDIX 5.29 CONTRACT PROVISIONS – REVISED APPENDICES E, F & G OF WBTC NO. 13/2001 AND REVISED APPENDIX I OF ETWB TCW NO. 13/2001A
(Ref.: SDEV's memo ref. ( ) in DEVB(W) 520/83/01 dated 4.4.2018)
Revised Appendix E (2018 version)

Special Condition of Tender to be incorporated into tender documents for contracts requiring the contractor to have obtained the Certification

SCT - ISO 9000 Certification for the Contractor

(1) The tenderer shall, upon written request by the [1]Architect/Engineer designate issued in accordance with General Conditions of Tender Clause 25, submit to the [1]Architect/Engineer/designate:

EITHER

(a) a copy of his ISO 9001:2015 certificate acceptable to the Employer showing the scope of certification and a statement either:

i) confirming that there is no area/aspect in the Contract which his quality system specifically excludes; or

ii) disclosing the areas/aspects in the Contract which his quality system specifically excludes

OR

(b) where the tenderer due to circumstances beyond his control has not obtained ISO 9001:2015 certification:

i) a copy of the confirmation from a certification body acceptable to the Employer, stating that a full review of the Quality Manual of the tenderer's Hong Kong office has been carried out in Hong Kong and such Quality Manual has been found to be in conformity with the requirements of the ISO 9001:2015 standard; and

ii) an undertaking that within three months of the acceptance of tender, he would book with the certification body the date of audit for the ISO 9001:2015 certification; with detailed documented quality system procedures ready at the time of booking

(2) Where the tenderer is a joint venture, he shall, upon written request by the [1]Architect/Engineer designate issued in accordance with General Conditions of Tender Clause 25, submit to the 1Architect/Engineer designate:

a statement declaring that he shall implement the quality system of one of his participants or shareholders and specifying which one;

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(b) a copy of the written notification to the certification body of the specified participant or shareholder that the joint venture shall implement the quality system of the specified participant or shareholder and the written agreement of all participants or, as the case may be, shareholders of the joint venture that the activities of the joint venture shall be subject to the surveillance of the certification body; and

(c) (i) a copy of his specified participant or shareholder's ISO 9001:2015 certificate acceptable to the Employer showing the scope of certification and a statement either:

(A) confirming that there is no area/aspect in the Contract which the specified participant or shareholder's quality system specifically excludes; or

(B) disclosing the areas/aspects in the Contract which the specified participant or shareholder's quality system specifically excludes.

OR

(ii) where the specified participant or shareholder due to circumstances beyond his control has not obtained the ISO 9001: 2015 certification:

(A) a copy of the confirmation from a certification body acceptable to the Employer, stating that a full review of the Quality Manual of the specified participant or shareholder's Hong Kong office has been carried out in Hong Kong and such Quality Manual has been found to be in conformity with the requirements of ISO 9001:2015 standard; and

(B) an undertaking that within three months of the acceptance of tender, the specified participant or shareholder would book with the certification body the date of audit for the ISO 9001:2015 certification; with detailed documented quality system procedures ready at the time of booking.

(3) The submission under sub-clause (2)(a) of this SCT, if applicable, shall form part of the Contract.

[1] **Delete as appropriate.**

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Revised Appendix F (2018 version)

Special Condition of Contract to be incorporated into tender documents for contracts requiring the contractor to have obtained ISO 9000 certification

SCC - ISO 9000 Certification for the Contractor

(1) Within three months of the acceptance of the Tender, the Contractor shall book with a certification body acceptable to the Employer the date of audit for the ISO 9001:2015 certification; with detailed documented quality system procedures ready at the time of booking. If the Contractor is a joint venture, the date of audit for the ISO 9001:2015 certification shall mean that of the specified participant or shareholder in the statement submitted in accordance with SCT [ ]§.

(2) Notwithstanding any other provisions in the Contract, compliance with subclause (1) of this Clause shall be a condition precedent to the Contractor's entitlement to any payment or any further payment as the case may be under the Contract.

(3) Sub-clauses (1) and (2) of this Clause are not applicable if the Contractor or, where the Contractor is a joint venture, its specified participant or shareholder has already obtained the ISO 9001:2015 certification on or before the date of acceptance of the Tender.

§ **Insert the clause number of the SCT dealing with ISO 9000 Certification for the Contractor.**

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Revised Appendix G (2018 version)

Special Condition of Contract to be incorporated into tender documents for contracts where the main contractor is required to enter into written subcontracts with the contractors on the categories and/or groups of the Lists shown in Appendix C

SCC – ISO 9000 Certification for Subcontractor
General Conditions of Contract Clause 4 is amended by adding the following:

(7) The approved listed contractor to be engaged in accordance with sub-clause (6) of this Clause for [specify the relevant categories and/or groups of works]:
shall either:

(a) have obtained an ISO 9001:2015 certificate acceptable to the Employer with the scope of certification acceptable to the Architect/Engineer; or

(b) (i) have obtained a confirmation from a certification body acceptable to the Employer, stating that a full review of the Quality Manual of its Hong Kong office has been carried out in Hong Kong and such Quality Manual has been found to be in conformity with ISO 9000 the requirements of the ISO 9001:2015; and

(ii) submit an undertaking to the Engineer that within three months of the execution of the subcontract, it would book with the certification body the date of audit ISO 9001:2015 certification; with detailed documented quality system procedures ready at the time of booking..

(8) (a) If the works specified in sub-clause (7) of this Clause are to be carried out by the Contractor itself, in which case the Contractor must be listed in the relevant category and/or group, it shall within three months of the acceptance of Tender, book with a certification body acceptable to the Employer the date of audit for the ISO 9001:2015 certification, with detailed documented quality system procedures ready at the time of booking. If the respective works are to be carried out through a subcontract by an approved listed contractor, then the Contractor shall procure that the approved listed contractor.

(b) Notwithstanding any other provisions in the Contract, compliance with sub-clause (8)(a) of this Clause shall be a condition precedent to the Contractor's entitlement to any payment, or any further payment, as the case may be, for the works specified in sub-clause (7) of this Clause under the Contract.

(c) Sub-clauses (8)(a) and (8)(b) of this Clause are not applicable if the Contractor has already obtained ISO 9001:2015 certification on or before the acceptance of the Tender or, as the case may be, the approved listed contractor has already obtained the ISO 9001:2015 certification on or before the date of execution of the subcontract.

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Revised Appendix I ***(2018 version)***

Special Conditions of Tender to be incorporated into tender documents of design and build contracts

SCT - Contractors under suspension

(a) If the tenderer or, if the tenderer is a partnership or an unincorporated or incorporated joint venture, any participant of the partnership or unincorporated joint venture or shareholder of the incorporated joint venture is under suspension from tendering for *any of/all of the following category [or categories] of public works, his tender will not be considered unless the suspension is lifted by the relevant works department or the Development Bureau by the date set for the close of tender, or if this has been extended, the extended date.

[list the category or categories of public works]

Provided that the tender will still be considered if the suspension is due solely to the failure of the tenderer to obtain ISO 9001:2015 certification.

(b) If the tenderer or, if the tenderer is a partnership or an unincorporated or incorporated joint venture, any participant of the partnership or unincorporated joint venture or shareholder of the incorporated joint venture is under voluntary suspension from tendering for *any of/all of the following category [or categories] of public works at the date of tender invitation but who subsequently revokes the voluntary suspension without agreement in writing from either the relevant works department or the Development Bureau, its tender will not be considered.

[list the category or categories of public works]

Provided that the tender will still be considered if the voluntary suspension is undertaken by the tenderer due solely to its failure to obtain the ISO 9001:2015 certification.

*** Delete whichever is inappropriate**

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APPENDIX 5.30 PARTICULAR SPECIFICATIONS TO FACILITATE THE USE OF RECYCLED AGGREGATES IN CONCRETE PRODUCTION (Ref.: WBTC No. 12/2002)

Particular Specification for Prescribed Mix Concrete with 100% Recycled Coarse Aggregate

Scope	**This Particular Specification is only applicable to concrete of 20 MPa grade strength.**
Application	**Concrete with 100% recycled coarse aggregate shall only be used in benches, stools, planter walls, concrete mass walls and other minor concrete structures where specifically permitted in the contract.**
General Requirements	**Concrete shall comply with Section 16 of GS and the additional requirements given below. In case of discrepancies, the requirements in this Particular Specification shall take precedence.**
Recycled Coarse Aggregates	**Recycled Coarse Aggregate shall be produced by crushing old concrete and shall meet the requirements in Table 1.**
Fine Aggregates	**Fine aggregate shall be within the limits of grading M in BS 882.** **Fine aggregate derived from recycled concrete shall not be used.**
Grading	**The grading of the coarse aggregates shall comply with the limits of Table 3 of BS 882:1992 for single-sized 20 mm and 10 mm aggregates.**
Mix Proportions	**Concrete shall be mixed in the following proportions:** **Ordinary Portland Cement : 100 Kg** **Fine Aggregate : 180 Kg** **20 mm Coarse Aggregate : 180 Kg** **10 mm Coarse Aggregate : 90 Kg**
Workability	**Recycled coarse aggregates have to be thoroughly wetted before being used.** **The concrete shall have a slump of 75 mm when it is ready to be compacted to its final position.**
Test Cubes	**4 concrete cubes shall be made on each concreting day, 2 for crushing tests at 7 days and another 2 at 28 days.**
Minimum Strength	**The minimum concrete cube strength shall be 14 MPa and 20 MPa at 7 and 28 days respectively.**
Trials	**Laboratory trials shall be conducted to confirm that the strength requirement can be met before the prescribed mix is used in the works.**

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The 28 day strength of each of the 3 cubes in the trial shall not be less than 26 MPa.

Table 1

Mandatory Requirements	Limits	Testing Method
Minimum dry particle density (kg/m^3)	2000	BS 812: Part 2
Max. water absorption	10 %	BS 812: Part 2
Max. content of wood and other material less dense than water	0.5 %	Manual sorting in accordance with BRE Digest 433
Max. content of other foreign materials (e.g. metals, plastics, clay lumps, asphalt and tar, glass etc.)	1 %	
Max. fines	4 % - Note 1	BS 812: Section 103.1
Max. content of sand (<4mm) (% m/m)	5 %	BS 812: Section 103.1
Max. content of sulphate (%m/m)	1%	BS 812: Part 118
Flakiness index	40 % - Note 2	BS 812: Section 105.1
10% fines test	100 kN - Note 3	BS 812: Part 111
Grading	Table 3 of BS 882:1992	
Maximum Chloride content	Table 7 of BS 882 – 0.05% by mass of chloride ion of combined aggregate – Note 4	

Note 1 Filler (<0.063mm) should be less than 2% in the RILEM Specification. BS 882 says that fines passing 75μm sieve shall not exceed 4 %. The latter requirement is easier to satisfy.

Note 2 Clause 16.08 (3) of the General Specification for Civil Engineering Works (GS) states that flakiness shall not exceed 35% whereas BS 882 states that it shall not exceed 40% for crushed rock or crushed gravel.

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Note 3 **Clause 16.08(3) of GS states that the 10% fines value shall be at least 100kN. BS 882 states that the 10% fines value to be 50kN for concrete not subjected to wearing. BRE Digest 433 states that 70kN is achievable in recycled aggregate derived from brickwork, and 100kN for those derived from crushed concrete. In recent tests carried out on recycled aggregates derived from old concrete, 100kN can be satisfied.**

Note 4 **BRE Digest 433 recommends to determine acid soluble chloride rather than water soluble chloride.**

Particular Specification for Designed Mix Concrete with 20% Recycled Coarse Aggregate

Scope	**This Particular Specification is only applicable to designed mix concrete of 25-35 MPa grade strength.**
Application	**Concrete with 20 % recycled coarse aggregates is for general application except in water retaining structures or otherwise precluded in the contract.**
Cementitious Material	**Only ordinary Portland Cement to BS 12 shall be used.**
Coarse Aggregates	**Coarse aggregates shall consist of 80% natural rock aggregates as defined in Cl. 16.08(3) of GS and 20% recycled coarse aggregates.** **Recycled Coarse Aggregates shall be produced by crushing old concrete and shall meet the requirements in Table 1.** **Tests on recycled aggregates from a particular source shall be carried out at weekly intervals to check compliance with Table 1.**
Fine Aggregates	**Fine aggregates shall be as defined in Cl.16.08(2) of GS.** **Fine aggregates recycled from old concrete shall not be used.**
Grading	**The grading of the coarse aggregates shall comply with the limits of Table 3 of BS 882:1992 for single-sized 20 mm and 10 mm aggregates.**
Workability	**Recycled coarse aggregates have to be thoroughly wetted before being used.** **The concrete shall have a minimum slump of 75 mm when it is ready to be compacted to its final position.**
Laboratory mix trials and plant trials	**Before any concrete is produced for use in the works, laboratory trials and plant trials must be performed in accordance with Cl. 16.25 and Cl.16.24 of GS respectively.**
Compliance	**Compliance criteria shall be as in Cl. 16.27 and Cl. 16.26 of GS**

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Criteria respectively if 150 mm cubes are used.

If 100 mm cubes are used, the modified compliance criteria will apply.

Concrete batching Recycled aggregates have to be stored in separate stockpiles or silos to prevent inadvertent mixing with natural aggregates.

A separate compartment must be provided for recycled aggregates in the batching plant.

Table 1

Mandatory Requirements	Limits	Testing Method
Minimum dry particle density (kg/m^3)	2000	BS 812: Part 2
Max. water absorption	10 %	BS 812: Part 2
Max. content of wood and other material less dense than water	0.5 %	Manual sorting in accordance with BRE Digest 433
Max. content of other foreign materials (e.g. metals, plastics, clay lumps, asphalt and tar, glass etc.)	1 %	
Max. fines	4 % - Note 1	BS 812: Section 103.1
Max. content of sand (<4mm) (% m/m)	5 %	BS 812: Section 103.1
Max content of sulphate (%m/m)	1%	BS 812: Part 118
Flakiness index	40 % - Note 2	BS 812: Section 105.1
10% fines test	100 kN - Note 3	BS 812: Part 111
Grading	Table 3 of BS 882:1992	
Maximum Chloride content	Table 7 of BS 882 – 0.05% by mass of chloride ion of combined aggregate – Note 4	

Note 1 Filler (<0.063mm) should be less than 2% in the RILEM Specification. BS 882 says that fines passing 75µm sieve shall not exceed 4 %. The latter

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requirement is easier to satisfy.

Note 2 **Clause 16.08 (3) of the General Specification for Civil Engineering Works (GS) states that flakiness shall not exceed 35% whereas BS 882 states that it shall not exceed 40% for crushed rock or crushed gravel.**

Note 3 **Clause 16.08(3) of GS states that the 10% fines value shall be at least 100 kN. BS 882 states that the 10% fines value to be 50kN for concrete not subjected to wearing. BRE Digest 433 states that 70kN is achievable in recycled aggregate derived from brickwork, and 100 kN for those derived from crushed concrete. In recent tests carried out on recycled aggregates derived from old concrete, 100 kN can be satisfied.**

Note 4 **BRE Digest 433 recommends to determine acid soluble chloride rather than water soluble chloride.**

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APPENDIX 5.31 GENERAL GUIDELINES ON SITE PRACTICE FOR BUILDING AND CIVIL ENGINEERING GRADUATES (Ref.: ETWB TCW No. 12/2003)

Experience with regard to site practice should, where possible, be provided in the following areas;

- **Planning and programming of construction**
- **Resource planning, allocation and control**
- **Methods of construction and their proper sequence, including design of temporary works**
- **Setting out works and knowledge of surveying instrument**
- **Mechanical plant including knowledge of use, capacity, output & cost**
- **Materials including their cost, storage and handling problems, quality and other characteristics**
- **Testing materials**
- **Measurement of work**
- **Valuation of variations including variation orders**
- **Interim statements and certificates**
- **Site safety**
- **Working conditions and welfare**
- **Liaison with other organizations and the public**
- **Site administration including control and management of subordinates**
- **Site records and reports**

Note :
The guidance on site practice is reproduced from the section on training for a Civil Engineer (Technologist) in the current Report on "Training Programmes for Principal Jobs in the Building and Civil Engineering Industry, Volume One : Technologists Jobs". The Report was prepared by the Building and Civil Engineering Industry Training Board of the Vocational Training Council.

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APPENDIX 5.32 CONTRACT MEASURES FOR TECHNICIAN APPRENTICES AND BUILDING & CIVIL ENGINEERING GRADUATES (Ref.: ETWB TCW No. 12/2003)

Special Conditions of Contract for Technician Apprentices and Building and Civil Engineering Graduates

"SCC [ ](1) The Contractor shall employ at least the minimum number of technician apprentices and building or civil engineering graduates as specified in the Contract.

(2) Where the Contractor employs the technician apprentice(s) pursuant to sub-clause (1) of this Clause, the Contractor shall ensure that all employed technician apprentice(s) attend a course of instruction at an approved technical institution leading to the award of either a Higher Certificate in Building Studies, Civil Engineering, Building Services or other comparable alternative qualification.

(3) Where the Contractor employs the building or civil engineering graduate(s) pursuant to sub-clause (1) of this Clause, the Contractor shall ensure that all employed graduate(s) are provided with practical training on site for a minimum of 12 months or 70% of the time for completion of the Works as stipulated in the Appendix to the Form of Tender, whichever is longer, and follow established training guidelines for the relevant disciplines as far as possible."

Particular Specification

1 The Contractor shall employ for each capital works contract exceeding $50M the corresponding minimum number of technician apprentices under a valid contract of apprenticeship, as set out in the following table. The contractor shall provide to the procuring department the names of technician apprentices employed, together with evidence of each technician apprentice's contract of apprenticeship, within three months after the date of commencement of the contract. Any subsequent changes on the employed technician apprentices must also be reported to the procuring department within 1-month time.

(a)	**For a contract the contract sum of which exceeds $50 million but is not more than $100 million.**	**- one**
(b)	**For a contract the contract sum of which exceeds $100 million but is not more than $200 million.**	**- two**
(c)	**For a contract the contract sum of which exceeds $200 million.**	**- three**

2 The Contractor shall employ for each capital works contract exceeding $50M the corresponding minimum number of building or civil engineering graduate with an academic qualification gained within the preceding three years, and recognised by an appropriate local or overseas professional institution, such as the Hong Kong Institute of Architects, the Hong Kong Institution of Engineers,

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the Institution of Civil Engineers, the Institution of Structural Engineers or the Chartered Institute of Building, as set out in the following table. The contractor shall provide to the procuring department the names of the building or civil engineering graduates employed, together with evidence of each graduate's terms or contract of employment and the qualified professional supervising such graduates, within three months after the date of commencement of the contract. Any subsequent changes on the employed graduates must be reported to the procuring department within 1-month time.

(a)	**For a contract the contract sum of which exceeds $50 million but is not more than $100 million.**	**- one**
(b)	**For a contract the contract sum of which exceeds $100 million.**	**- two**

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APPENDIX 5.33 GCT 4 - SUBMISSION OF TENDER (FORMULA APPROACH AND MARKING SCHEME)

(Ref.: ETWB TCW No. 11/2005 and SDEV's memo ref. ( ) in DEVB(W) 546/94/01 dated 19.12.2019 and ref. ( ) in DEVB(W) 546/83/01 dated 11.11.2020)

Clause		Remarks/Guidelines
GCT 4	**Submission of Tender (Formula Approach)**	
(1)	**The following documents shall be enclosed in a sealed envelope addressed, endorsed and deposited as required by the Gazette Notification or Letter of Invitation to Tender or the Tender Notice:**	**For tenders not using a marking scheme for tender evaluation. Ref. DEVB memos ref. (026NM-01-3) in DEVB(W) 546/17/01 dated 25.6.2010 and DEVB(W) 546/83/01 dated 11.11.2020.**
(a)	**One set of the documents referred to in Clause 2(b)* above with:**	*** Delete/Modify as appropriate.**
(i)	**The Form of Tender in hard copy format duly signed.**	**Note:**
***(ii)**	**The *Bills of Quantities/ *Schedule of Quantities/*Schedule of Rates in either hard copy format or electronic format [See Note 1] fully priced as to each item, extended, cast and totalled as appropriate. [See also Note 2]**	**1. Delete the option of electronic submission when the Bills of Quantities or Schedule of Quantities or Schedule of Rates in the EDP have not been provided in Excel format.**
***(iii)**	**Summary of Tender in either hard copy format or electronic format.**	**2. In some contracts, e.g. term contracts, tenderers are not required to return the Schedule of Rates etc. in which case sub-clause (1)(a)(ii) should be deleted.**
***(iv)**	**Column 3 in the Schedule of Proportions and the Appendix thereto, if applicable, to be used in calculating the Price Fluctuation Factor completed, in hard copy format.**	**3. Failure to provide certain information in the Form of Tender does not necessarily render a tender invalid. It depends on the nature of information that is found missing.**
***(v)**	***Plant and Labour Schedule/ *Equipment Schedule/ *Schedules of Particulars completed, in either hard copy format or in electronic format.**	
(b)	**A copy each of the documents submitted under sub-clauses (1)(a)(i), *(1)(a)(ii), *(1)(a)(iii) and *(1)(a)(iv) of this Clause.**	*** Delete/Modify as appropriate.**
(c)	**The submissions that are required by the General Conditions of Tender (GCT)**	**** Works Departments should stipulate the prevailing rates which may from time to time be prescribed by DEVB, FSTB**

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Clause		Remarks/Guidelines
	and Special Conditions of Tender (SCT).	**and/or PWTB. Ref: SDEV's memo ref. (030FA-01-1) in DEVB(W) 511/70/02 dated 3.7.2019, FSTB's memo ref. () in TsyB T ADM/1-135/1/0 Pt.10 dated 24.12.2018 and PWTB's memo ref. (7) in ASD13/95200/TEN/OPEN/PCF dated 5.7.2018. [Note: Please check the latest relevant memo. The photocopying charge for tenders opened by the CTB and PWTB are $12.0 per page and $14.8 per page respectively.]**
(2)	**If a tenderer submitted the documents required under sub-clause (1)(a) of this Clause in electronic format as allowed thereunder but failed to submit the required copy under sub-clause (1)(b) of this Clause, the tender opening team shall make the required copy in electronic format on the tenderer's behalf. The tenderer may be asked to bear the cost of making the copy. The cost of duplication is currently set at $54** per electronic file and the material charge at $1.1** per CD-ROM and $1.3** per 4.7GB DVD+/-R.**	
(3)	**If a tenderer submitted the documents required under sub-clause (1)(a) of this Clause in hard copy format as allowed or required thereunder but failed to submit the required copy under sub-clause (1)(b) of this Clause, the tender opening team shall make the required photocopies on the tenderer's behalf. The tenderer may be asked to bear the cost of making the photocopies. The cost of photocopying is currently set at $12 /$14.8 ** per copied page, which cost also covers material.**	
(4)	**If a tenderer elects to submit the priced *Bills of Quantities/ *Schedule of Quantities/ *Schedule of Rates in hard copy format and where a hard copy has been supplied by the Employer, he should price the *Bills of Quantities/ *Schedule of Quantities/ *Schedule of Rates on the hard copy supplied by the Employer. If a tenderer fails to do so, any extra cost incurred by the Employer in checking whether the printed descriptions or figures of the tender are identical to those in the hard copy supplied by the Employer is recoverable by the Employer as a debt. The tenderer whose tender has been so checked shall pay such cost if demanded by the Employer.**	

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Clause		Remarks/Guidelines
(5)	**Where a document may be submitted in hard copy format or electronic format and if a tenderer makes two submissions for the same document, one in hard copy format and one in electronic format, the submission in hard copy format shall be discarded.**	
(6)	**All submissions in electronic format shall comply with the requirements set out in Appendix [*insert appropriate reference*] [See Note 3].**	

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Clause	Remark/Guidelines
GCT 4 Submission of Tender (Marking Scheme)	
(1) The following documents shall be placed in two separate envelopes as specified below and the two envelopes shall then be enclosed in a sealed envelope addressed, endorsed and deposited as required by the Gazette Notification or Letter of Invitation to Tender or the Tender Notice: **In an envelope clearly marked with the tender reference and the words 'Tender Price Documents'**	**Alternative Clause 4 for tenders using a marking scheme for tender evaluation** **Ref. DEVB memos ref. (026NM-01-3) in DEVB(W) 546/17/01 dated 25.6.2010 and DEVB(W) 546/83/01 dated 11.11.2020.**
(a) One set of documents referred to in Clause 2(b)* above with: **(i) The Form of Tender in hard copy format duly signed.** ***(ii) The *Bills of Quantities/*Schedule of Quantities/*Schedule of Rates in either hard copy format or electronic format [See Note 1] fully priced as to each item, extended, cast and totalled as appropriate. [See Note 2]** ***(iii) Summary of Tender in either hard copy format or electronic format.** ***(iv) Column 3 in the Schedule of Proportions and the Appendix thereto, if applicable, to be used in calculating the Price Fluctuation Factor completed, in hard copy format.**	*** Delete/Modify as appropriate.** **Note:** **1. Delete the option of electronic submission when the Bills of Quantities or Schedule of Quantities or Schedule of Rates in the EDP have not been provided in Excel format.** **2. In some contracts, e.g. term contracts, tenderers are not required to return the Schedule of Rates etc. in which case sub-clause (1)(a)(ii) should be deleted.** **3. All submissions required from tenderers should be stated, quoting where the details of the requirements are given, e.g. Clause 1 of the Special Conditions of Tender.** **4. Attach an appendix to the GCT on the prevailing technical requirements for tender submission in electronic format (Appendix 4 to ETWB TCW No. 11/2005).**
(b) A copy each of the documents submitted under sub-clauses (1)(a)(i), *(1)(a)(ii), *(1)(a)(iii) and *(1)(a)(iv) of this Clause. **(c) The following submissions that are required by the General Conditions of Tender (GCT) and Special Conditions of Tender (SCT) [See Note 3]:** **(i) …… (GCT Clause [ ])** **(ii) ……(SCT Clause [ ])**	

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Clause		Remark/Guidelines
	In another envelope clearly marked with the tender reference and the words 'Technical Submission'	
(d)	**Submissions on technical resources and technical proposals which are the subject of evaluation in accordance with the marking scheme at [Appendix to Notes to Tenderers] *[and more particularly described in Special Conditions of Tender Clause], in either hard copy format or electronic format.**	
(e)	**The following submissions that are required by the General Conditions of Tender (GCT) and Special Conditions of Tender (SCT) [See Note 3]: (i) …… (GCT Clause [ ]) (ii) ……..……..(SCT Clause [ ])**	
(2)	**If a tenderer submitted the documents required under sub-clause (1)(a) of this Clause in electronic format as allowed thereunder but failed to submit the required copy under sub-clause (1)(b) of this Clause, the tender opening team shall make the required copy in electronic format on the tenderer's behalf. The tenderer may be asked to bear the cost of making the copy. The cost of duplication is currently set at $54** per electronic file and the material charge at $1.1** per CD-ROM and $1.3** per 4.7GB DVD+/-R.**	** **Works Departments should stipulate the prevailing rates which may from time to time be prescribed by DEVB, FSTB and/or PWTB. Ref: SDEV's memo ref. (032YD-01) in DEVB(W) 511/70/02 dated 3.7.2019, FSTB 's memo ref. () in TsyB T ADM/1-135/1/0 Pt.10 dated 24.12.2018 and PWTB's memo ref. (7) in ASD13/95200/TEN/OPEN/PCF dated 5.7.2018. [Note: Please check the latest relevant memo. The photocopying charge for tenders opened by the CTB and PWTB are $12.0 per page and $14.8 per page respectively.]**
(3)	**If a tenderer submitted the documents required under sub-clause (1)(a) of this Clause in hard copy format as allowed or required thereunder but failed to submit the required copy under sub-clause (1)(b) of this Clause, the tender opening team shall make the required photocopies on the tenderer's behalf. The tenderer may be asked to bear the cost of making the photocopies. The cost**	

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Clause		Remark/Guidelines
	of photocopying is currently set at $12/$14.8 ** per copied page, which cost also covers material.	
(4)	**If a tenderer elects to submit the priced *Bills of Quantities/*Schedule of Quantities/ *Schedule of Rates in hard copy format and where a hard copy has been supplied by the Employer, he should price the *Bills of Quantities/ *Schedules of Quantities/ *Schedule of Rates on the hard copy supplied by the Employer. If a tenderer fails to do so, any extra cost incurred by the Employer in checking whether the printed descriptions or figures of the tender are identical to those in the hard copy supplied by the Employer is recoverable by the Employer as a debt. The tenderer whose tender has been so checked shall pay such cost if demanded by the Employer.**	
(5)	**Where a document may be submitted in hard copy format or electronic format and if a tenderer makes two submissions for the same document, one in hard copy format and one in electronic format, the submission in hard copy format shall be discarded.**	
(6)	**All submission in electronic format shall comply with the requirements set out in Appendix [*insert appropriate reference*] [See Note 4].**	

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APPENDIX 5.34 EMPIRICAL FORMULAE FOR CALCULATION OF LIQUIDATED DAMAGES (Ref.: ETWB TCW No. 4/2003)

The following empirical formulae may be used to calculate the components of LD's to be specified in the Contract unless an alternative, more accurate assessment can be made.

(a) Recovery on Capital Invested (Notes 1 & 4)

$$\text{Daily LD's} = \frac{(C+E) * (1-V)*P}{365}$$

(b) Site Supervisory Costs (Notes 2 & 4)

$$\text{Daily LD's} = \frac{S}{T}$$

(c) Fluctuation (Note 3)

$$\text{Daily LD's} = \frac{V * C * T * F}{2 * D * 365}$$

Where C = the contract value of the Works (including preliminary items and the Provisional Sum for price fluctuations (if any) but excluding the payment for site safety, Contingency Sum and daywork) or, as the case may be, the contract value of the Section (including a share of preliminary items and the Provisional Sum for price fluctuations).

D = the assumed delay in days for the completion of the Works, or the delay in completion of a Section.

E = the estimated lump sum cost for providing professional and site supervisory staff.

F = the assumed annual change in the Price Fluctuation Factor applicable to the Contract.

P = the assumed lending rate (% per annum) during the course of the Contract.

S = the estimated lump sum site supervisory costs.

T = the time in days for completion of the Works, or time for completion of a Section.

V = the assumed value of outstanding works in percentage of C at time for completion.

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The following guidelines are provided for reference:

(i) D may be determined by reference to department's record of similar or equivalent contracts completed in the past 5 years;

(ii) E and S vary with the size and complexity of the project as well as the prevailing level of charge for professional service. They should exclude contingent sums such as allowance for supervisory costs during extended contract periods;

(iii) the average annual change in the Price Fluctuation Factor pertaining to the contract based on the past 5-year record may be taken as F;

(iv) the quoted best lending rate (% per annum) of the Hong Kong Monetary Authority recorded in the latest issue of the Hong Kong Monthly Digest of Statistics published by the Census and Statistics Department, Hong Kong may be taken as P; and

(v) V should be determined based on the value of D, the construction sequence and the rates for the works.

Note

1. If it is possible to carry out a cost-benefit analysis, such as the estimated daily revenue expected from the facility on completion, this sum should replace that derived by formula at (a).

2. The formula at (b) applies where site supervisory costs are likely to continue at a constant rate during the period of delay. See also Paragraph 3.3.4.

3. Daily LD's at (c) only apply to contracts to which price fluctuations apply.

4. For term contracts, it is not possible to estimate a lump sum value for E & S applicable to all works orders. The following formulae may be used in lieu of that in (a) and (b):

(i) Recovery on Capital Invested (alternative version for term contracts)

$$\text{Daily LD's} = \frac{(1 + E_1) * (1-V) * C * P}{365}$$

(ii) Site Supervisory Costs (alternative version for term contracts)

$$\text{Daily LD's} = \frac{C * S_1}{T}$$

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Where E_1 = the estimated cost for providing professional and site supervisory staff in percentage of C.

S_1 = the estimated site supervisory costs in percentage of C.

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APPENDIX 5.35 GUIDELINES ON CALCULATION OF LIQUIDATED DAMAGES (Ref.: ETWB TCW No. 4/2003)

ANNEX A - SUGGESTED FORMAT FOR CALCULATION OF LIQUIDATED DAMAGES

Title of Contract

_____

Contract No.

_____Date_____

Estimated final contract sum (including contingencies)

$_____SECTION_____

_____

	Value of Section (C) (include preliminaries but exclude contingencies)	**= $**	
	Time for Completion of Section (T)	**=**	**days**
	Interest Rate (P)	**=**	**%**
	Assumed delay in completion of the Section (D)	**=**	**days**
	Value of outstanding work at time for completion (V)	**=**	**%**
	Cost of Professional service and site supervision (E)/(E_1)	**=**	
	Site supervisory costs (S)/(S_1)	**=**	
	Annual change in the Price Fluctuation Factor (F)	**=**	**%**
(a)	**Recovery on capital invested [(C+E) * (1-V) * P ÷ 365] OR [(1+E_1)*(1-V)*C*P÷ 365]**	**= $**	
	OR		
	Daily rate of economic benefit	**= $**	
(b)	**Site Supervisory Costs**		
(i)	**[S ÷ T] OR C * S_1 ÷T**	**= $**	
(ii)	**Minimum site Supervisory Costs**	**= $**	
(c)	**Fluctuations V * C * T * F ÷ (2 * D * 365)(if any)**	**= $**	

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(d) Special damages (if any) **= $**

Total LD's (a + b(i) + c + d) **= $** **per day**

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ANNEX B – WORKED EXAMPLE

Contract for a service reservoir with an access road which requires early completion. There will be no special damages if the project is not completed on time. In the Bills of Quantities, Bill 1(Y_1) covers the preliminaries, Bill 2(Y_2) the access road and Bill 3 & 4(Y_3) the remainder of the Works. The preliminaries for the access road is 0.2 * Y_1. The contingency sums for the access road and remainder of the works are \$0.1M and \$0.2M respectively.

Section A (Access Road)

Value of Section A (C)	=	$0.2 * Y_1 + Y_2 – 0.1M$
Time for completion of Section A (T)	=	350 days
Lending Rate (P)	=	10 %
Delay in completion of the Section (D)	=	88 days
Outstanding work at time for completion (V)	=	20 %
Cost of professional service and site supervision (E)	=	3M
Site supervisory costs (S)	=	2M
Annual change in the Price Fluctuation Factor (F)	=	6.1 %
(a) Recovery on capital invested	=	$0.8 * (0.2 * Y_1 + Y_2 – 0.1M + 3M) *10\% \div 365$
	=	$2.192 * 10^{-4} * (0.2 * Y_1 + Y_2 + 2.9M)$
(b) (i) Site supervisory costs	=	2M ÷ 350 = 5714
(ii) Minimum site supervisory costs	=	zero
(c) Fluctuations	=	$0.2*(0.2*Y_1+Y_2-0.1M) *350*0.061 \div (2*88* 365)$
	=	$6.647 * 10^{-5} * (0.2 * Y_1 + Y_2 – 0.1M)$
(d) Special damages	=	zero
Total LD's (a+b(i)+c+d)	=	$0.571 * 10^{-4} * Y_1 + 2.857 * 10^{-4} * Y_2 +$ 6356

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Section B (remainder of the Works)

Value of Section B (C)	=	**(0.8 * Y_1 + Y_3 – 0.2M)**
Time for completion of Section B (T)	=	**400 days**
Lending Rate (P)	=	**10 %**
Delay in completion of the Section (D)	=	**100 days**
Outstanding work at time for completion (V)	=	**20 %**
Cost of professional service and site supervision (E)	=	**12M**
Site supervisory costs (S)	=	**8M**
Annual change in the Price Fluctuation Factor (F)	=	**6.1 %**
(a) Recovery on capital invested	=	**0.8 * (0.8 * Y_1 + Y_3 – 0.2M + 12M) * 10% ÷ 365**
	=	**$2.192 * 10^{-4}$ * (0.8 * Y_1 + Y_3 + 11.8M)**
(b) (i) Site supervisory costs	=	**8M ÷ 400 = 20,000**
(ii) Minimum site supervisory costs	=	**(to be calculated based on the minimum establishment, say $15,000 for this example)**
(c) Fluctuations	=	**0.2*(0.8*Y_1+Y_3-0.2M) *400*0.061÷(2*100* 365)**
	=	**$6.685 * 10^{-5}$ * (0.8 * Y_1 + Y_3 – 0.2M)**
(d) Special damages	=	**zero**
Total LD's (a+b(i)+c+d)	=	**$2.288 * 10^{-4}$ * Y_1 + $2.861 * 10^{-4}$ * Y_3 + 22,573**

Summary statement of liquidated damages:

Liquidated damages for section A	**=$ ($0.571*10^{-4}*Y_1+2.857*10^{-4}*Y_2+6356$) per day**
Liquidated damages for Section B	**=$ ($2.288*10^{-4}*Y_1+2.861*10^{-4}*Y_3+22,573$) per day**
Minimum liquidated damages for Section A	**= N/A**
Minimum liquidated damages for Section B	**= $15,000 per day**

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ANNEX C - APPENDIX TO FORM OF TENDER

52 Liquidated Damages

Summary statement of liquidated damages:

Section A	**HK$ [$0.571*10^{-4}*Y_1+2.857*10^{-4}*Y_2+6356$][#] per day**
Section B	**HK$ [$2.288*10^{-4}*Y_1+2.861*10^{-4}*Y_3+22,573$][##] per day**
Section B minimum liquidated damages	**HK$15,000 per day**

In the above summary statement of liquidated damages:

Y_1	**=**	**Total sum of Bill No. 1 in the Bills of Quantities**
Y_2	**=**	**Total sum of Bill No. 2 in the Bills of Quantities**
Y_3	**=**	**Total sum of Bill No. 3 and Bill No. 4 in the Bills of Quantities**

[#] The value of the formula within the square brackets shall be taken as zero for the purpose of computation of the daily rate of liquidated damages if and when the sum is worked out to be a negative value by substituting each of Y_1 and Y_2 with its corresponding value in the priced Bills of Quantities.

[##] The value of the formula within the square brackets shall be taken as HK$15,000 per day for the purpose of computation of the daily rate of liquidated damages if and when the sum is worked out to be less than HK$15,000 per day by substituting each of Y_1 and Y_3 with its corresponding value in the priced Bills of Quantities.

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APPENDIX 5.36 SPECIAL CONDITIONS OF CONTRACT FOR USE IN MEGA PROJECT CONTRACTS (Ref.: WBTC No. 26/2002)

INDEX

S.C.C. Ref.	Content	Related GCC	Related ETWB TCW	Date of Issue of SCC
A1	Programmes and Progress Reports	1(1), 16 & 78		
A2	Facilities for and coordination with others	34 & 63		
A3	Possession of Site	1(1), 48, 13, 20 & 21(1) & 22		
A4	Extension of time	50		
A4A	Extension of time (alternative version)	50		
A5	Liquidated damages for delay	52	4/2003	
A6	Variations	60		
A7	Stages and Key Dates	1(1), 49(1), 51(1), 53 & 63		
A8	Maintenance of records	6		
A9	Construction methods	7		
A10	General damages (optional)	52		

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S.C.C. A1 Programmes and progress reports

(1) **General Conditions of Contract Clause 1(1) is amended by adding the following :**

Programmes and progress reports

Must be used with SCC A2 – A9

" "Monthly Progress Report" means the report to be prepared by the Contractor in the form and detail prescribed by the Specification and submitted monthly to the Engineer in accordance with Clause 16(10).

"Works Programme" means the programme showing the sequence, method and timing in which the Contractor proposes to carry out the construction, testing, commissioning of the Works and related activities and any investigations and design as may be required to be carried out by the Contractor under the Contract including (in so far as such work is described in the Contract) due allowance for the carrying out of Specialist Works and work by utility undertakings, in the form and content prescribed by the Specification, or any amended or varied version thereof, as submitted by the Contractor and approved by the Engineer in accordance with Clause 16."

(2) **General Conditions of Contract Clause 16 is deleted and replaced by the following :**

"16 (1) **Within 7 days of acceptance of the Tender, the Contractor shall submit to the Engineer his proposed programme for approval as the initial Works Programme in the form and content prescribed by the Specification. Within 60 days of approval of the initial Works Programme in accordance with Clause 16(2) or such other period as may be prescribed in the Specification, the Contractor shall submit to the Engineer for his approval an expanded and more detailed version of the initial Works Programme in the form and content prescribed by the Specification.**

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S.C.C. A1 Programmes and progress reports

(2) **The Engineer shall, within 30 days of receipt of any programme submitted pursuant to this Clause 16, notify the Contractor in writing :**

(a) **that the programme is approved; or**

(b) **that the programme is rejected, in which case reasons for such rejection shall be given, including indication of those parts of the programme with which the Engineer is not satisfied; or**

(c) **that further information is required to clarify or substantiate the programme or to satisfy the Engineer as to its reasonableness.**

Provided that if none of the above actions is taken within the said period of 30 days the Engineer shall be deemed to have approved the programme submitted.

(3) **The Contractor shall within 21 days of receiving notification under Clause 16(2)(c), or within such further period as the Engineer may allow in writing, provide the further information requested failing which the programme shall, subject to the provisions of Clause 16(4), be deemed to have been rejected. The Engineer shall within 21 days of receipt of such further information approve or reject the programme in accordance with Clause 16(2).**

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S.C.C. A1 Programmes and progress reports

(4) **If the Engineer is of the opinion that the Contractor has provided sufficient information to satisfy him as to the reasonableness of a substantial part of any programme submitted pursuant to this Clause 16, the Engineer may but shall not be bound to notify the Contractor in writing that the programme is approved notwithstanding the failure of the Contractor to provide all or any of the further information requested under Clause 16(2)(c) in respect of the remaining part of the programme.**

(5) **In the event of a programme being rejected under Clause 16(2)(b) or deemed to have been rejected under Clause 16(3), the Contractor shall within 21 days thereafter submit a revised programme taking into account of the reasons given for the rejection or incorporating the further information requested by the Engineer, as the case may be.**

(6) **(a)** **The Contractor may at any time following approval of a programme as the Works Programme submit to the Engineer an amended or varied version thereof.**

(b) **The Contractor shall review the Works Programme in the event that :**

(i) **the Engineer grants an extension of time in accordance with Clause 50 ;**

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S.C.C. A1 Programmes and progress reports

(ii) **the Engineer instructs steps be taken to expedite the completion of the Works or any Section thereof or the achievement of any Stage under Clause 51;**

(iii) **the Engineer instructs a variation under Clause 60 ;**

(iv) **the Contractor considers for any reason that there is or will be a significant deviation between the actual or anticipated progress of the Works and the Works Programme, including without limitation the Contractor foreseeing a substantial increase or decrease in the quantity of an item of work included in the Contract;**

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S.C.C. A1 Programmes and progress reports

(v) the Engineer requests the Contractor in writing to reflect or incorporate any other matter in the Works Programme;

and shall within 21 days of such event either submit an amended or varied programme to the Engineer in accordance with Clause 16(2) or inform the Engineer in writing of the reasons why the Contractor considers that such a submission is inappropriate.

(7) Should it appear to the Engineer at any time that there is or will be a significant deviation between the actual or anticipated progress of the Works and the Works Programme, the Engineer shall be entitled by written instruction to require the Contractor to produce a revised version showing such modifications to the Works Programme as may be necessary to ensure or to be consistent with substantial completion of the Works and all Sections and the achievement of all Stages by the Key Dates. The Contractor shall submit such revised programme within 14 days of the Engineer's instruction or within such other time as the Engineer shall allow in writing.

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S.C.C. A1 Programmes and progress reports

(8) **(a)** **Unless and until an amended version of the Works Programme is approved by the Engineer in accordance with this Clause 16, the programme previously approved by the Engineer shall remain as the Works Programme for all purposes of the Contract.**

(b) **Approval by the Engineer of a Works Programme in accordance with this Clause 16 shall not relieve the Contractor of any its duties or responsibilities under the Contract nor bind or create any obligation or liability on the part of the Employer nor, in the event that a Works Programme indicates that a Key Date has not or will not be met entitle the Contractor to an extension of time in relation to such Key Date.**

(9) **Within 14 days of acceptance of the Tender, and thereafter at the end of each calendar month, the Contractor shall submit to the Engineer its three month rolling programme in the form and detail prescribed by the Specification setting out the work to be carried out during the following three months.**

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S.C.C. A1 Programmes and progress reports

(10) (a) The Contractor shall submit to the Engineer by the end of each monthly period (the first of such monthly periods to commence on the date for commencement of the Works) its Monthly Progress Report which shall, amongst other things, highlight actual or potential departures from the Works Programme and state the measures which the Contractor proposes to take in order to make good or reduce any delays.

(b) If requested by the Engineer, the Contractor shall submit to the Engineer at weekly intervals a written report as to the progress of off-Site manufacture of goods and materials."

(3) General Conditions of Contract Clause 78 is amended by adding the following :

"(3) As a condition precedent to consideration by the Engineer of any sums due to the Contractor, each of such statement shall be accompanied by the Monthly Progress Report for the month to which the statement relates."

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S.C.C. A2 Facilities for and coordination with others

(1)	**General Conditions of Contract Clause 34 is deleted and replaced by the following :**		**Facilities for and coordination with others**	**Must be used with SCC A1 and A3 – A9**
	"34	**(1) In accordance with the Contract and/or the reasonable instructions of the Engineer, the Contractor shall not impede and shall afford all reasonable facilities, access and/or services to any person who may be carrying out, on or adjacent to the Site, any work not included in the Contract but required by the Employer, any utility undertaking or other duly constituted authority, [(including in particular but without limitation the following interfacing works which are more particularly described in the Specification :**		
		(a) ……to be carried out by ……		
		(b) ……to be carried out by ……		
		(c) ……to be carried out by ……][1]		
		(2) The Contractor shall take all reasonable steps to ensure that the Works are coordinated and integrated with the design and construction of such other work as referred to in Clause 34(1), and shall in particular (but without limitation) consult, liaise and cooperate with those responsible for carrying out such other work including where necessary in the preparation of joint programmes, method statements, coordination drawings and specifications.		

[1] The words in square brackets at the end of Clause 34(1) should be incorporated only if Government is in a position to describe in sufficient details the "interfacing works" which are anticipated to have substantial interface with the Works.

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S.C.C. A2 Facilities for and coordination with others

(3) (a) The Contractor shall be deemed to have made adequate allowance in his Tender and in the Works Programme in respect of his obligations under Clauses 34(1) and 34(2).

(b) Without prejudice to the generality of Clauses 50, 63 and 64, if the Contractor considers that he has been requested or instructed to act in a manner which goes beyond his obligations under Clause 34(1) and if the Contractor considers that compliance with such request or instruction may entitle him to any extension of time and/or any additional payment of Cost, it shall be a condition precedent to any such entitlement that:

(i) the Contractor shall have notified the Engineer in writing prior to taking any such action that he considers such an entitlement may arise from the provision of such facilities, access and/or services, giving full particulars of the estimated duration of the delays and of the Cost which would be incurred; and

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S.C.C. A2 Facilities for and coordination with others

(ii) following receipt of such notice, the Engineer shall have instructed the Contractor in writing to take such action."

(2) General Conditions of Contract Clause 63 is amended by replacing paragraph (d) with the following :

"(d) delay caused by any person or any company, not being a utility undertaking, engaged by the Employer in supplying materials or in executing work directly connected with but not forming part of the Works save to the extent that such delay was caused or contributed to by some default on the part of the Contractor (including without limitation any failure by the Contractor to comply with his obligations under Clause 34(1) or Clause 34(2)) or by the Contractor complying with his obligations under Clause 34(1) or Clause 34(2), or"

"[(3) The Contractor shall be entitled to the sums set out in the section of the Bills of Quantities concerning coordination with those responsible for carrying out the interfacing works referred to in General Conditions of Contract Clause 34(1), provided that the Contractor shall have fulfilled his obligations for each item to the satisfaction of the Engineer.]"[1]

[1] Sub-clause (3) should be included only if Government is in a position to describe in sufficient details the "interfacing works" which are anticipated to have substantial interface with the Works and an item (pre-priced by the Engineer) is included in the BQ to cover the cost of promoting and facilitating co-ordination with the contractors carrying out such "interfacing works"

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S.C.C. A3 Possession of site

(1)	**General Conditions of Contract Clause 1(1) is amended by adding the following :** **""Portion Handover Date" means a date identified as such in the Appendix to the Form of Tender for possession of a Portion to be made available to or relinquished by the Contractor, as the same may be deferred by the Engineer in accordance with Clause 48(5)(a)."**	**Possession of Site**	**Must be used with SCC A1 – A2 and A4 – A9**

(2) General Conditions of Contract Clause 48 is deleted and replaced by the following :

"48 (1) The Contract may prescribe :

(a) the Portions of the Site to which the Contractor is intended to be given possession from time to time;

(b) the periods during which possession of such Portions of the Site is intended to be made available to the Contractor and the respective Portion Handover Dates;

(c) the order in which the Works shall be executed;

(d) the availability and nature of the access which is to be provided by the Employer;

(e) the availability and nature of the access which the Contractor is to provide to others;

(f) the use which the Contractor may make of such Portions of the Site.

(2) The Employer shall give to the Contractor on the date for commencement of the Works notified by the Engineer in accordance with Clause 47 possession of so much of the Site and access thereto as may be required to enable the Contractor to commence and proceed with the

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S.C.C. A3 Possession of site

construction of the Works in accordance with the Works Programme and shall from time to time, as the Works proceed, give to the Contractor possession of such further parts of the Site and such further access as may be required to enable the Contractor to proceed with the construction of the Works with due despatch in accordance with the Works Programme.
Provided always that:

(a) the Employer shall not in any event be obliged to give to the Contractor possession of a Portion of the Site or any part thereof or access thereto earlier or for a longer period than is prescribed pursuant to Clause 48(1); and

(b) the Employer may, on or at any time after the date for commencement of the Works notified by the Engineer in accordance with Clause 47, give the Contractor possession of any or all of the Portions of the Site, or of any part thereof, before the date prescribed pursuant to Clause 48(1) for such possession to be given to the Contractor.

Provided further that the Contractor shall not be entitled to any extension of time or additional payment by reason of the Contractor being given early possession of the Site or any Portion or part thereof in accordance with Clause 48(2)(b).

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S.C.C. A3 Possession of site

(3) Unless the Contract expressly provides to the contrary the Contractor shall not be entitled to exclusive possession of or uninterrupted access to the Site or any Portion or part of the Site and shall co-ordinate its activities with others on or in the vicinity of Site as described in Clause 34 and elsewhere in the Contract.

(4) Subject to Clause 64, if the Engineer is of the opinion that the Contractor has been involved in additional expenditure by reason of the progress of the Works or any part thereof having been materially affected by the failure of the Employer to give possession of or access to the Site or any Portion or part thereof in accordance with this Clause 48 then the Engineer shall as soon as reasonably practicable ascertain the Cost incurred, and shall certify in accordance with Clause 79.

(5) In the event that a Portion Handover Date is prescribed pursuant to Clause 48(1) for the release by the Contractor of a Portion of the Site:

(a) the Contractor shall relinquish possession of the relevant Portion of the Site on the Portion Handover Date unless the Engineer shall have deferred the Portion Handover Date by prior notice in writing. Such a notice shall not in any event constitute a variation within the meaning of Clause 60; and

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S.C.C. A3 Possession of site

(b) the Contractor shall, subject to any express provision of the Contract or written instruction of the Engineer to the contrary, clear away and remove from the relevant Portion of the Site before the Portion Handover Date all Constructional Plant, temporary buildings, surplus materials and all rubbish of any kind whatsoever. If the Contractor should fail to do so, the Employer may exercise the powers set out in Clauses 73(2)(a) and (b).

(6) (a) If the Engineer is of the opinion that the Contractor has been involved in additional expenditure by reason of the Engineer's decision under Clause 48(5)(a) to defer any Portion Handover Date, the Engineer shall ascertain the Cost incurred and certify payment to the Contractor.

(b) Any payment made in accordance with Clause 48(6)(a) shall be deemed to be in full compensation to the Contractor of any expenditure incurred by reason of the Engineer's decision under Clause 48(5)(a) to defer the Portion Handover Date. The Contractor shall be entitled to no further payment whatsoever or extension of any Key Date by reason of the Engineer's decision under Clause 48(5)(a) to defer the Portion Handover Date.

(7) The Contractor shall bear all expenses and charges for special or temporary wayleaves required by him in connection with access to the Site.

(8) Notwithstanding sub-clause (4) of this Clause, with respect to prescribed Portions of the Site of which the Contractor is to be given possession

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S.C.C. A3 Possession of site

from time to time, if the Contractor suffers delay from failure on the part of the Employer to give possession of any Portion in accordance with the terms of the Contract and the Engineer grants an extension of time for completion [of the Works or, as the case may be, the relevant Section in accordance with General Conditions of Contract Clause 50]+ in respect thereof, the Engineer shall certify payment to the Contractor a sum calculated at the rate per day inserted by the Contractor in the Bills of Quantities (hereinafter referred to as "the specified rate"), the number of days for which payment is certified being equal to the number of days granted as an extension of time. If possession of part of any Portion of the Site is delayed the Engineer shall reduce the specified rate for the affected Portion as he considers fair and reasonable having regard to all the circumstances.

(9) Any extension of time for completion [of the Works or, as the case may be, the relevant Section]+ granted in accordance with General Conditions of Contract Clause 50 and any payment made in accordance with sub-clause (8) of this Clause shall be deemed to be in full compensation to the Contractor for whatever claims that it may have as a result of failure on the part of the Employer to give possession of any Portion or any part of any Portion."

[Note : *(1) Sub-clauses (8) and (9) should only be used for contracts where delay in possession of the Site is envisaged.*

(2) If sub-clauses (8) and (9) are used, there is no need to use SCC 8 of the WB Library of Standard SCCs (Delayed Possession of Portion of) Not part of the SCC

+ Where sectional completion is envisaged.

+ Where sectional completion is envisaged.

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S.C.C. A3 Possession of site

the Site)*].*

+Under GCC Clause 50, EOT could be granted for completion of the Works/Section as well as achievement of a Stage on the ground of non-possession of the Site or any Portion or part thereof. Sub-clauses (8) and (9) only make reference to EOT for completion of the Works or the relevant Section because, it is submitted, EOT for achievement of a Stage is irrelevant for the purposes of sub-clauses (8) and (9).

(3) General Conditions of Contract Clause 13 is amended by replacing sub-clause (1) with the following :

"13 (1) The Contractor shall be deemed to have examined and inspected the Site and its surroundings and to have satisfied himself, before submitting his Tender, as regards existing roads or other means of communication with and access to the Site, the possibility of interference by persons other than the Employer who will also have access to or use of the Site or any Portion or part thereof after the Employer has given the Contractor possession of the Site or, as the case may be, the relevant Portion or part, the nature of the ground and sub-soil, the form and nature of the Site, the risk of injury or damage to property, the nature of materials (whether natural or otherwise) to be excavated, the nature of the work, and materials necessary for the execution of the Works, the accommodation he may require and generally to have obtained his own information on all matters affecting his Tender and the execution of the Works."

(4) General Conditions of Contract Clause 20 is deleted and replaced by the following :

"20 (1) The Contractor shall throughout the continuance of the Contract and the progress of the Works take full

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S.C.C. A3 Possession of site

responsibility for the adequate stability and safety of all operations on the Site other than those of Specialist Contractors and utility undertakings and have full regard for the safety of all persons on the Site. The Contractor shall keep the Site and the Works in an orderly state appropriate to the avoidance of danger to all persons.

(2) The Contractor shall in connection with the Works or for the purpose of the Contract provide and maintain all lights, guards, fences and warning signs and provide watchmen when and where necessary or required by the Engineer or by any competent statutory or other authority for the protection of the Works or the Site or for the safety and convenience of the public or others.

(3) The Contractor shall ensure that all parts of the Site where work is being carried out are so lighted as to ensure the safety of all persons on or in the vicinity of the Site and of such work.

(4) The Contractor, after obtaining any necessary approval from any relevant authority, shall submit to the Engineer proposals showing the layout of pedestrian routes, lighting, signing and guarding for any road opening or traffic diversion which may be required in connection with the execution of the Works or otherwise required for the purposes of the Contract. No such road opening or traffic diversion shall be brought into operation or use unless the proposals submitted have been previously approved by the Engineer and properly provided and implemented on the Site."

(5) General Conditions of Contract Clause 21(1) is amended by appending the following :

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S.C.C. A3 Possession of site

"And provided further that if the Engineer has decided under Clause 48(5)(a) to defer any Portion Handover Date to a date later than 28 days after the date of completion of the Works certified by the Engineer in accordance with Clause 53, the Contractor shall continue to be responsible for the care of the part of the Works on the relevant Portion and for the care of all things which are required to be retained on the relevant Portion by reason of the Engineer's decision under Clause 48(5)(a) to defer the Portion Handover Date until and including the deferred date of relinquishment."

(6) General Conditions of Contract Clause 22 is amended by replacing sub-clause (1) with the following :

"22 (1) The Contractor shall, except if and so far as the Contract otherwise provides, indemnify and keep indemnified the Employer against all losses and claims for injury or damage to any person or property whatsoever, other than surface or other damage to land or crops on the Site, which may arise out of or in consequence of the execution of the Works or the carrying out of the Contract and against all claims, demands, proceedings, damages, costs, charges and expenses whatsoever in respect thereof or in relation thereto."

[Note: If the Contractor in respect of a particular project is required to take out care of the Works insurance, SCC11 in the Works Bureau Library of Standard Special Conditions of Contract, as amended along the following lines, should be adopted.]

) Not part of) the SCC)

"SCC[ ] (1) Without limiting the Contractor's obligations and responsibilities under General Conditions of Contract Clause 21, the Contractor shall procure before the date for commencement of the Works in the joint names of the Contractor and the Employer,

Care of the works insurance

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S.C.C. A3 Possession of site

an insurance policy with an insurer and in terms approved by the Employer (which approval shall not unreasonably be withheld). The Contractor shall also assess the value of Specialist Works. The insurance policy shall be consistent with the terms in the specimen in the Appendix to these Conditions and shall at least cover the risks stipulated therein. The insurance policy shall cover the period from the date for commencement of the Works until 28 days after the date of completion of the Works certified by the Engineer in accordance with General Conditions of Contract Clause 53 or, where the Engineer has decided under General Conditions of Contract Clause 48 (5)(a) to defer any Portion Handover Date to a date later than 28 days after the date of the completion of the Works certified by the Engineer in accordance with General Conditions of Contract Clause 53, until and including the deferred date of relinquishment. The Contractor shall lodge with the Employer through the Engineer or the Engineer's Representative the originals or certified true copies of the policy or policies of insurance and copies of the receipts for payment of the current premiums.

(2) The extent of the cover to be provided shall be :

(a) The Works and Specialist Works to the full reinstatement value; and

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S.C.C. A3 Possession of site

(b) materials, Constructional Plant and other things brought on the Site by anyone so authorized to do so to the full value of such materials, Constructional Plant and other things."

S.C.C. A4 Extension of time

(1) General Conditions of Contract Clause 50 is deleted and replaced by the following :	**Extension of time**	**Must be used with SCC A1 - A3 and A5 – A9**

"50 (1) (a) As soon as practicable but in any event within 28 days after the cause of any delay to the progress of the Works or any Section thereof or to the achievement of any Stage has arisen, the Contractor shall give notice in writing to the Engineer of the cause and probable extent of the delay.

Provided that as soon as the Contractor can reasonably foresee that any order or instruction issued by the Engineer is likely to cause a delay to the progress of the Works or any Section thereof or to the achievement of any Stage the Contractor shall forthwith give notice in writing to the Engineer and specify the probable effect and extent of such delay. Such notice shall not in any event be given later than 28 days after the Engineer has issued the relevant order or instruction.

(b) If in the opinion of the Engineer the cause of the delay is:

(i) inclement weather and/or its consequences adversely affecting the progress of the Works, or

(ii) the hoisting of tropical cyclone warning signal No. 8 or above, or

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S.C.C. A4 Extension of time

(iia) a Black Rainstorm Warning, or

(iii) an instruction issued by the Engineer under Clause 5, or

(iv) a variation ordered under Clause 60, or

(v) a substantial increase in the quantity of any item of work included in the Contract not resulting from a variation ordered under Clause 60, or

(vi) the Contractor not being given possession of or access to the Site or any Portion or part thereof in accordance with the Contract or is subsequently deprived of it by the Employer, or

(vii) a disturbance to the progress of the Works for which the Employer or the Engineer or a Specialist Contractor is responsible including but not restricted to any matter referred to in Clause 63, or

(viii) the Engineer suspending the Works in accordance with Clause 54 in so far as the suspension is not occasioned by the circumstances described in Clause 54(2)(a) to (d), or

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S.C.C. A4 Extension of time

(ix) any utility undertaking or other duly constituted authority failing to commence or to carry out in due time any work directly affecting the execution of the Works, provided that the Contractor has taken all practical steps to cause the utility undertaking or duly constituted authority to commence or to proceed with such work, or

(x) the imposition by the Engineer of requirements or limitations in relation to the Contractor's methods of construction, in the circumstances described in Special Conditions of Contract Clause A9, or

(xi) the provision of facilities, access and/or services to the Employer or third parties in excess of the obligations of the Contractor under Clause 34(1) pursuant to an instruction of the Engineer in accordance with Clause 34(3)(b), or

(xii) delay on the part of any Nominated Subcontractor for any reason specified in sub-clauses (b)(i) to (xi) of this Clause and which the Contractor has taken all reasonable steps to avoid or reduce, or

(xiii) any special circumstance of any kind whatsoever,

then the Engineer shall in accordance with Clause 50(3) consider whether the Contractor is fairly entitled to an extension of the Key Dates.

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S.C.C. A4 Extension of time

(c) Notwithstanding the powers of the Engineer under the provisions of this Clause to decide whether the Contractor is fairly entitled to an extension of time the Contractor shall not be entitled to an extension of time if the cause of the delay is:

(i) a suspension occasioned by the circumstances described in Clause 54(2)(a) to (d), or

(ii) a shortage of Constructional Plant or labour, or

(iii) interference by reason of the provision of facilities, access and/or services to the Employer or third parties in accordance with the Contractor's obligations under Clause 34(1), or

(iv) inclement weather (but not including Black Rainstorm Warning and the hoisting of tropical cyclone warning signal No. 8 or above) and/or its consequences adversely affecting the progress of the Works or any Section thereof or the achievement of any Stage occurring on or after the date identified in the Appendix to the Form of Tender or on or after the date to which extension of time has been granted under this Clause for completion of the Works or the relevant Section or, as the case may be, for achievement of the relevant Stage.

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S.C.C. A4 Extension of time

(2) The Contractor shall use and continue to use all reasonable endeavours to avoid or reduce the effects of a cause of delay to the progress of the Works or any Section or to the achievement of any Stage and as soon as practicable but in any event within 28 days of notification under Clause 50(1) submit by further written notice to the Engineer :

(a) full and detailed particulars of the cause and actual or likely extent of the delay to the progress of the Works or any Section or to the achievement of any Stage; or

(b) where a cause of delay has a continuing effect or where the Contractor is unable to determine whether the effect of a cause of delay will actually cause delay to the progress of the Works or any Section or to the achievement of any Stage, such that it is not practicable for the Contractor to submit full and detailed particulars in accordance with Clause 50(2)(a), a statement to that effect with reasons together with interim written particulars (including details of the likely consequences of the cause of delay on progress of the Works and an estimate of the likelihood or likely extent of the delay); the Contractor shall thereafter submit to the Engineer at intervals of not more than 28 days further interim written particulars until the actual or likely delay caused (if any) is ascertainable, whereupon the Contractor shall as soon as practicable but in any event within 28 days submit to the Engineer full and detailed particulars of the cause and actual or likely extent of the delay; and

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S.C.C. A4 Extension of time

(c) details of the measures which the Contractor has adopted and/or proposes to adopt to avoid or reduce the effects of such cause of delay to the progress of the Works or any Section or to the achievement of any Stage.

(3) If in accordance with Clause 50(1)(b) the Engineer considers that the Contractor is using and will continue to use all reasonable endeavours to make good any delay, and that the Contractor is fairly entitled to an extension of the Key Dates, the Engineer shall within 28 days or such further time as may be reasonable in the circumstances of:

(a) receipt of final full and detailed particulars of the cause and actual or likely effect of any delaying factor, or

(b) where a cause of delay has a continuing effect or where the Engineer anticipates a significant delay before the actual or likely effect of a cause of delay becomes ascertainable and the Engineer considers an interim extension of time should be granted, receipt of such particulars as in the Engineer's opinion are sufficient for him to determine such an interim extension of time,

determine, grant and notify in writing to the Contractor such extension. The Engineer in determining any extension shall take into account all the circumstances known to him at that time, including in particular but without limitation the effect of any omission of work or part of any Stage, or substantial decrease in the quantity of any item of work.

Provided that:

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S.C.C. A4 Extension of time

(i) the Engineer may at any time following notification of a cause of delay under Clause 50(1)(a) determine and notify the Contractor in writing as to whether or not the said cause of delay constitutes a potential ground upon which an extension of time may be granted in accordance with Clause 50(1)(b) and the foregoing provisions of Clause 50(3);

(ii) the Engineer may in the absence of any claim assess and determine the delay that he considers has been suffered by the Contractor as a result of any of the events described in Clause 50(1)(b) in which case he shall determine, grant and notify in writing to the Contractor any such extension he considers appropriate;

(iii) notwithstanding Clause 50(2) and the foregoing provisions of this Clause 50(3), the Engineer may in the event of failure by the Contractor to comply with the provisions of Clause 50(2) consider such extension to the extent that the Engineer is able on the information available.

(4) If the Engineer decides that the Contractor is not entitled to an extension, the Engineer shall as soon as reasonably practicable notify the Contractor in writing accordingly.

(5) (a) Without prejudice to the Engineer's powers pursuant to Clause 50(3)(b), the Contractor shall not be entitled to an extension of time by reason of any delay unless such delay actually affects substantial completion of the Works or any Section or achievement of any Stage by the relevant Key Date.

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S.C.C. A4 Extension of time

(b) Any extension to a Key Date shall not of itself entitle the Contractor to an extension to any other Key Date.

(6) The Engineer shall within 28 days of the issue of either the certificate of completion of the Works or, in the event of division of the Works into Sections, of the certificate of completion of the last Section review and finally determine and certify the overall extension of time (if any) to which he considers the Contractor is entitled in respect of the Works or any Section or any Stage. Such final review shall not result in a decrease in any extension of time already granted by the Engineer under Clause 50(3).

(7) For the avoidance of doubt if the Engineer grants an extension of time in respect of a cause of delay occurring after the Employer is entitled to recover liquidated damages in respect of the Works or any Section or any Stage, the period of extension of time granted shall be added to the relevant Key Date identified in the Appendix to the Form of Tender or, if the same has been extended in accordance with this Clause 50, the relevant previously extended Key Date.

(8) Except as provided elsewhere in the Contract, any extension of time granted by the Engineer to the Contractor shall be deemed to be in full compensation and satisfaction for any loss or injury sustained or sustainable by the Contractor in respect of any matter or thing in connection with which such extension shall have been granted and every extension shall exonerate the Contractor from any claim or demand on the part of the Employer for the delay during the period of such extension but not for any delay continued beyond such period.

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S.C.C. A4 Extension of time

(9) For the purpose of this Clause, "Black Rainstorm Warning" means a warning issued by the Director of Hong Kong Observatory of a heavy rainstorm in, or in the vicinity of, Hong Kong by the use of the heavy rainstorm signal commonly referred to as "Black"."

S.C.C. A4A Extension of time (alternative version)

(1) General Conditions of Contract Clause 50 is deleted and replaced by the following :

Extension of time

Approval from Head of Department required for use of this SCC clause and details are to be submitted to SDEV for endorsement

Must be used with SCC A1 – A3 and A5 – A9

"50 (1) (a) As soon as practicable but in any event within 28 days after the cause of any delay to the progress of the Works or any Section thereof or to the achievement of any Stage has arisen, the Contractor shall give notice in writing to the Engineer of the cause and probable extent of the delay.

Provided that as soon as the Contractor can reasonably foresee that any order or instruction issued by the Engineer is likely to cause a delay to the progress of the Works or any Section thereof or to the achievement of any Stage the Contractor shall forthwith give notice in writing to the Engineer and specify the probable effect and extent of such delay. Such notice shall not in any event be given later than 28 days after the Engineer has issued the relevant order or instruction.

(b) If in the opinion of the Engineer the cause of the delay is:

(i) the hoisting of tropical cyclone warning signal No. 8 or above, or

(ii) a Black Rainstorm Warning, or

(iii) an instruction issued by the Engineer under Clause 5, or

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S.C.C. A4A Extension of time (alternative version)

(iv) a variation ordered under Clause 60, or

(v) a substantial increase in the quantity of any item of work included in the Contract not resulting from a variation ordered under Clause 60, or

(vi) the Contractor not being given possession of or access to the Site or any Portion or part thereof in accordance with the Contract or is subsequently deprived of it by the Employer, or

(vii) a disturbance to the progress of the Works for which the Employer or the Engineer or a Specialist Contractor is responsible including but not restricted to any matter referred to in Clause 63, or

(viii) the Engineer suspending the Works in accordance with Clause 54 in so far as the suspension is not occasioned by the circumstances described in Clause 54(2)(a) to (d), or

(ix) any utility undertaking or other duly constituted authority failing to commence or to carry out in due time any work directly affecting the execution of the Works, provided that the Contractor has taken all practical steps to cause the utility undertaking or duly constituted authority to commence or to proceed with such work, or

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S.C.C. A4A Extension of time (alternative version)

(x) the imposition by the Engineer of requirements or limitations in relation to the Contractor's methods of construction, in the circumstances described in Special Conditions of Contract Clause A9 , or

(xi) the provision of facilities, access and/or services to the Employer or third parties in excess of the obligations of the Contractor under Clause 34(1) pursuant to an instruction of the Engineer in accordance with Clause 34(3)(b), or

(xii) inclement weather (but not including Black Rainstorm Warning and the hoisting of tropical cyclone warning signal No. 8 or above) and/or its consequences adversely affecting the progress of the Works or any Section thereof or the achievement of any Stage occurring after the date identified in the Appendix to the Form of Tender for completion of the Works or the relevant Section or, as the case may be, for achievement of the relevant Stage but before the Employer is entitled to recover liquidated damages in respect of the Works or the relevant Section or, as the case may be, the relevant Stage, or

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S.C.C. A4A Extension of time (alternative version)

(xiii) delay on the part of any Nominated Subcontractor for any reason specified in sub-clauses (b)(i) to (xii) of this Clause and which the Contractor has taken all reasonable steps to avoid or reduce, or

(xiv) any special circumstance of any kind whatsoever,

then the Engineer shall in accordance with Clause 50(3) consider whether the Contractor is fairly entitled to an extension of the Key Dates.

(c) Notwithstanding the powers of the Engineer under the provisions of this Clause to decide whether the Contractor is fairly entitled to an extension of time the Contractor shall not be entitled to an extension of time if the cause of the delay is:

(i) a suspension occasioned by the circumstances described in Clause 54(2)(a) to (d), or

(ii) a shortage of Constructional Plant or labour, or

(iii) interference by reason of the provision of facilities, access and/or services to the Employer or third parties in accordance with the Contractor's obligations under Clause 34(1), or

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S.C.C. A4A Extension of time (alternative version)

(iv) inclement weather (but not including Black Rainstorm Warning and the hoisting of tropical cyclone warning signal No. 8 or above) and/or its consequences adversely affecting the progress of the Works or any Section thereof or the achievement of any Stage occurring on or before the date identified in the Appendix to the Form of Tender for completion of the Works or the relevant Section or, as the case may be, for achievement of the relevant Stage.

(2) The Contractor shall use and continue to use all reasonable endeavours to avoid or reduce the effects of a cause of delay to the progress of the Works or any Section or to the achievement of any Stage and as soon as practicable but in any event within 28 days of notification under Clause 50(1) submit by further written notice to the Engineer :

(a) full and detailed particulars of the cause and actual or likely extent of the delay to the progress of the Works or any Section or to the achievement of any Stage; or

(b) where a cause of delay has a continuing effect or where the Contractor is unable to determine whether the effect of a cause of delay will actually cause delay to the progress of the Works or any Section or to the achievement of any Stage, such that it is not practicable for the Contractor to submit full and detailed particulars in accordance with Clause 50(2)(a), a statement to that effect with reasons together with interim written particulars (including details of the likely consequences of

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S.C.C. A4A Extension of time (alternative version)

the cause of delay on progress of the Works and an estimate of the likelihood or likely extent of the delay); the Contractor shall thereafter submit to the Engineer at intervals of not more than 28 days further interim written particulars until the actual or likely delay caused (if any) is ascertainable, whereupon the Contractor shall as soon as practicable but in any event within 28 days submit to the Engineer full and detailed particulars of the cause and actual or likely extent of the delay; and

(c) details of the measures which the Contractor has adopted and/or proposes to adopt to avoid or reduce the effects of such cause of delay to the progress of the Works or any Section or to the achievement of any Stage.

(3) If in accordance with Clause 50(1)(b) the Engineer considers that the Contractor is using and will continue to use all reasonable endeavours to make good any delay, and that the Contractor is fairly entitled to an extension of the Key Dates, the Engineer shall within 28 days or such further time as may be reasonable in the circumstances of:

(a) receipt of final full and detailed particulars of the cause and actual or likely effect of any delaying factor, or

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S.C.C. A4A Extension of time (alternative version)

(b) where a cause of delay has a continuing effect or where the Engineer anticipates a significant delay before the actual or likely effect of a cause of delay becomes ascertainable and the Engineer considers an interim extension of time should be granted, receipt of such particulars as in the Engineer's opinion are sufficient for him to determine such an interim extension of time,

determine, grant and notify in writing to the Contractor such extension. The Engineer in determining any extension shall take into account all the circumstances known to him at that time, including in particular but without limitation the effect of any omission of work or part of any Stage, or substantial decrease in the quantity of any item of work.

Provided that :

(i) the Engineer may at any time following notification of a cause of delay under Clause 50(1)(a) determine and notify the Contractor in writing as to whether or not the said cause of delay constitutes a potential ground upon which an extension of time may be granted in accordance with Clause 50(1)(b) and the foregoing provisions of Clause 50(3);

(ii) the Engineer may in the absence of any claim assess and determine the delay that he considers has been suffered by the Contractor as a result of any of the events described in Clause 50(1)(b) in which case he shall determine, grant and notify in writing to the Contractor any such extension he considers appropriate;

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S.C.C. A4A Extension of time (alternative version)

(iii) notwithstanding Clause 50(2) and the foregoing provisions of this Clause 50(3), the Engineer may in the event of failure by the Contractor to comply with the provisions of Clause 50(2) consider such extension to the extent that the Engineer is able on the information available.

(4) If the Engineer decides that the Contractor is not entitled to an extension, the Engineer shall as soon as reasonably practicable notify the Contractor in writing accordingly.

(5) (a) Without prejudice to the Engineer's powers pursuant to Clause 50(3)(b), the Contractor shall not be entitled to an extension of time by reason of any delay unless such delay actually affects substantial completion of the Works or any Section or achievement of any Stage by the relevant Key Date.

(b) Any extension to a Key Date shall not of itself entitle the Contractor to an extension to any other Key Date.

(6) The Engineer shall within 28 days of the issue of either the certificate of completion of the Works or, in the event of division of the Works into Sections, of the certificate of completion of the last Section review and finally determine and certify the overall extension of time (if any) to which he considers the Contractor is entitled in respect of the Works or any Section or any Stage. Such final review shall not result in a decrease in any extension of time already granted by the Engineer under Clause 50(3).

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S.C.C. A4A Extension of time (alternative version)

(7) For the avoidance of doubt if the Engineer grants an extension of time in respect of a cause of delay occurring after the Employer is entitled to recover liquidated damages in respect of the Works or any Section or any Stage, the period of extension of time granted shall be added to the relevant Key Date identified in the Appendix to the Form of Tender or, if the same has been extended in accordance with this Clause 50, the relevant previously extended Key Date.

(8) Except as provided elsewhere in the Contract, any extension of time granted by the Engineer to the Contractor shall be deemed to be in full compensation and satisfaction for any loss or injury sustained or sustainable by the Contractor in respect of any matter or thing in connection with which such extension shall have been granted and every extension shall exonerate the Contractor from any claim or demand on the part of the Employer for the delay during the period of such extension but not for any delay continued beyond such period.

(9) For the purpose of this Clause, "Black Rainstorm Warning" means a warning issued by the Director of Hong Kong Observatory of a heavy rainstorm in, or in the vicinity of, Hong Kong by the use of the heavy rainstorm signal commonly referred to as "Black"."

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S.C.C. A5 Liquidated damages for delay

(1)	**General Conditions of Contract Clause 52 is deleted and replaced by the following :**		**Liquidated damages for delay**	**Must be used with SCC A1 - A4 and A6 –A9**
	"52 (1)	**If the Contractor fails to achieve any Stage or complete the Works or, where the Works are divided into Sections, any Section by the relevant Key Date, then the Employer shall be entitled to recover from the Contractor liquidated damages, and may but shall not be bound to deduct such damages either in whole or in part, in accordance with the provisions of Clause 83. The payment of such damages shall not relieve the Contractor from his obligation to complete the Works or from any other of his obligation under the Contract.**		
	(2) (a)	**The liquidated damages shall be calculated using the rate per day prescribed in the Appendix to the Form of Tender, either for the Works or for the relevant Section or Stage, whichever is applicable.**		
		Provided that, if the Engineer :		

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S.C.C. A5 Liquidated damages for delay

(i) certifies completion under Clause 53(5) of any part of the Works before completion of the Works or, where the Works are divided into Sections, any part of any Section before the completion of the whole thereof, or

(ii) certifies achievement under Clause 53(9) of any part of any Stage before achievement of the Stage,

then the daily rate of liquidated damages for the Works, the relevant Section or the relevant Stage , as the case may be, shall from the date of such certification be reduced in the proportion which the value of the part so certified bears to the value of the Works, the relevant Section or the relevant Stage, as applicable, both values as of the date of such certification shall be determined by the Engineer.

(b) The obligations to achieve any Stage and to complete the Works or, where the Works are divided into

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S.C.C. A5 Liquidated damages for delay

Sections, any Section by the relevant Key Dates are separate obligations of the Contractor. The Contractor acknowledges that the liquidated damages have been estimated by the Employer on the basis of damages likely to be suffered as a result of failure to meet any relevant Key Date irrespective of and independent from any damages which are likely to be suffered as a result of failure to meet any other Key Date. Liquidated damages attributed to separate Key Dates may, therefore, run concurrently.

(3) The period for which liquidated damages shall be calculated shall be the number of days from the relevant Key Date until and including the date when the Works are completed or, where the Works are divided into Sections, the relevant Section is completed or, as the case may be, the relevant Stage is achieved.

Provided that, if the Engineer subsequently grants an extension of time which affects the period described above, then the Employer shall reimburse the Contractor the liquidated damages for the number of days so affected at the rate described in sub-clause (2) of this Clause together with interest at the rate provided for in Clause 79(4) within 28 days of the granting of such extension of time.

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S.C.C. A5 Liquidated damages for delay

(4) All monies payable by the Contractor to the Employer pursuant to this Clause shall be paid as liquidated damages for delay and not as a penalty."

"[(5) Notwithstanding the proviso to Clause 52(2)(a) the resulting daily rate of liquidated damages for the Works, any Section or any Stage after reduction in accordance with that proviso shall not be less than the minimum rate per day of liquidated damages for the Works, the relevant Section or the relevant Stage, as the case may be, as stated in the Appendix to the Form of Tender.]*"

[Note : *Sub-clause (5) should be deleted if no minimum liquidated damages is specified in the Appendix to the Form of Tender.]

) Not part of) the SCC))

S.C.C. A6 Variations

(1) General Conditions of Contract Clause 60 is deleted and replaced by the following :

"60 (1) The Engineer shall order any variation to any part of the Works or any Stage that is in his opinion necessary for the completion of the Works or for the achievement of any Stage and may order any variation that is in his opinion desirable to achieve satisfactory or timely completion, or improved or more economic functioning of the Works or to achieve satisfactory or timely achievement of any Stage, or on aesthetic grounds. Such variations may include:

Variations

Must be used with SCC A1 – A5 and A7 – A9

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S.C.C. A6 Variations

(a) additions, omissions, substitutions, alterations, changes in quality, form, character, kind, position, dimension, level or line;

(b) changes to any sequence, method or timing of construction specified in the Contract; and

(c) changes to any Portion or part of the Site or access thereto,

and may be ordered during the Maintenance Period.

(2) No such variation shall be made by the Contractor without an order in writing, in the form specified in Appendix ____ hereto, by the Engineer. No variation shall in any way vitiate or invalidate the Contract, but the value of all such variations determined in accordance with Clause 61 shall be taken into account by the Engineer in ascertaining the Final Contract Sum.

) Fill in the
) Appendix
) No.

(3) The Employer may procure that work omitted as a variation to the Works pursuant to an order under Clause 60(1) be carried out by another contractor provided always that:

(a) upon such omitted work being let to another contractor, the Engineer shall , subject to the provisions of Clause 60(4), determine a fair amount in respect of the profit reasonably anticipated by the Contractor in respect of such omitted work as at the time of the relevant variation order and shall make such revision to the Final Contract Sum; and

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S.C.C. A6 Variations

(b) if the effect of the omission of such work would be to reduce an extension of time to which the Contractor would otherwise have been entitled had no such variation been ordered, the Engineer shall take the effect of such omission into account and, subject to the provisions of Clause 50, grant such extension of time (if any) so as to put the Contractor in no better and no worse position than if the said variation had not been ordered.

(4) Sub-clause (3)(a) of this Clause shall have no application if the omitted work is let to another contractor after the issue of the certificate of completion of the Works or earlier termination of the Contract or determination of the Contractor's employment, entry and expulsion in accordance with Clause 81. In the event of different certificates of completion having been issued for different Sections or parts of the Works pursuant to Clause 53, the expression "certificate of completion" shall for the purpose of this sub-clause, mean the last of such certificates.

(5) An instruction of the Engineer requiring the Contractor to comply with his obligations under Clause 30 or arising from a breach or apprehended breach by the Contractor of his obligations under Clause 30, shall not under any circumstances constitute a variation for the purposes of this Clause 60.

(6) The Engineer may order a variation to any part of the outstanding work referred to in Clause 53 during the Maintenance Period if such a variation shall in the opinion of the Engineer be desirable for or to achieve the satisfactory completion and functioning of the Works."

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S.C.C. A7 Stages and Key Dates

(1)	**General Conditions of Contract Clause 1(1) is amended by adding the following :** **" "Key Date" means a date identified as such in the Appendix to the Form of Tender as the same may be extended in accordance with Clause 50.** **"Stage" means a degree of achievement in the execution of the Works identified as such and more particularly described in the Specification for which a Key Date for the achievement thereof is stipulated in the Appendix to the Form of Tender."**	**Stages and Key Dates**	**Must be used with SCC A1 - A6 and A8 – A9**
(2)	**General Conditions of Contract Clause 1(1) is amended by replacing the definition of "Section" with the following:** **" "Section" means a part of the Works identified as such and more particularly described in the Specification for which a Key Date for the completion thereof is stipulated in the Appendix to the Form of Tender."**		
(3)	**General Conditions of Contract Clause 49(1) is deleted and replaced by the following :** **"49 (1) The Works and any Section thereof shall be completed and any Stage shall be achieved by the respective Key Dates thereof."**		
(4)	**General Conditions of Contract Clause 51(1) is deleted and replaced by the following :**		

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S.C.C. A7 Stages and Key Dates

"51 (1) If the rate of progress of the Works or any Section thereof or any Stage is at any time in the opinion of the Engineer too slow to ensure completion of the Works or any Section thereof or the achievement of any Stage by the relevant Key Date, the Engineer may so inform the Contractor in writing and the Contractor shall immediately take such steps as are necessary to expedite the completion of the Works or any Section thereof or the achievement of any Stage by the relevant Key Date. The Contractor shall inform the Engineer of such proposed steps and review the Works Programme in accordance with Clause 16(6)(b)(ii)."

(5) General Conditions of Contract Clause 53 is amended by adding the following :

"53 (8) When a Stage has been achieved and has satisfactorily passed any test that may be prescribed by the Contract, the Contractor may serve notice in writing to that effect on the Engineer, accompanied by an undertaking to carry out any outstanding work as soon as practicable but in any event within 42 days of issue of the certificate of achievement, requesting the Engineer to issue a certificate of achievement in respect of that Stage. The Engineer shall within 21 days of the date of receipt of such notice either :

(a) issue a certificate of achievement stating the date on which, in the Engineer's opinion, the Stage was achieved in accordance with the Contract, or

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S.C.C. A7 Stages and Key Dates

(b) issue instructions in writing to the Contractor specifying all the work which, in the Engineer's opinion, is required to be done by the Contractor before such certificate of achievement can be issued, in which case the Contractor shall be entitled to receive such certificate of achievement within 14 days of carrying out to the satisfaction of the Engineer the works specified by the said instructions.

(9) (a) The Engineer shall give a certificate of achievement in respect of any part of any Stage which has been achieved to the satisfaction of the Engineer and is required by the Employer for occupation or use or by any utility undertaking or other duly constituted authority for carrying out on or adjacent to the Site any work not included in the Contract but required by the Employer before achievement of the Stage.

(b) The Engineer, following a written request by the Contractor, may give a certificate of achievement in respect of any part of any Stage which has been achieved to the satisfaction of the Engineer before achievement of the Stage and is capable of occupation and/or use by the Employer for any purpose or capable of occupation and/or use by any utility undertaking or other duly constituted authority for carrying out on or adjacent to the Site any work not included in the Contract but required by the Employer.

(10) Achievement of a Stage shall not of itself constitute completion or substantial completion of a part of the Works for the purposes of Clause 53(5)."

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S.C.C. A7 Stages and Key Dates

(6) General Conditions of Contract Clause 63(a) is deleted and replaced by the following :

"63 (a) the Contractor not having received in due time necessary instructions, orders, directions, decisions, Drawings, specifications, details or levels from the Engineer for which the Contractor specifically applied in writing on a date which having regard to the Key Date for completion of the Works or any Section or achievement of any Stage was neither unreasonably distant from nor unreasonably close to the date on which it was necessary for the Contractor to receive the same, or"

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S.C.C. A8 Maintenance of records

(1)	**The Contractor shall establish at the Site or elsewhere as may be permitted in writing by the Engineer an office which shall be staffed during all normal business hours and at which shall be kept copies of all documents relating to or arising under the Contract and a complete, up-to-date and orderly documentary record of all transactions entered into by the Contractor for the purposes of the Contract, including copies of all subcontracts, purchase orders, correspondence, whether by letter, telex, facsimile or electronic transmission, manufacturer's specifications and details, minutes of meetings, all documents relating to the procurement of Constructional Plant, goods and materials, payroll and salary cost records, and all other matters whatsoever.**	**Maintenance of records**	**Must be used with SCC A1 – A7 & A9**
(2)	**To the extent that the design and other records of the Contractor are to be created and/or maintained on a computer or other information system or data storage device, the Contractor shall agree with the Engineer a procedure for backup and off-Site storage of copies of such design and other records and shall adhere, and shall cause its subcontractors [and the engineer carrying out independent checking of the Temporary Works in accordance with Special Conditions of Contract Clause _____]* to adhere, to such agreed procedure.**		
(3)	**If the Contractor uses proprietary software for the purpose of storing or utilizing records maintained in accordance with sub-clause (1) of this Clause and sub-clause (3) of Clause 64 of the General Conditions of Contract, the Contractor shall procure at his own expense the grant of a licence or sub-licence to use such software in favour of the Employer, the Engineer and their respective agents and employees and shall pay such licence fee or other payment as the grantor of such licence may require provided that the use of such software under the licence may be restricted to use relating to the design, construction, reconstruction, completion, maintenance, reinstatement, extension, repair and operation of the Works or any part thereof or any other works**		

* **The words in square brackets should be deleted if SCC clause 26 "Independent Checking of the Design, Erection, Use and Removal of Temporary Works" of the Works Bureau Library of Standard Special Conditions of Contract is not adopted.**

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S.C.C. A8 Maintenance of records

required to be carried out by the Employer in Hong Kong (irrespective of whether or not such works are related to the Works) and settlement of disputes or differences in accordance with Clause 86 of the General Conditions of Contract.

(4) General Conditions of Contract Clause 6 is amended by replacing sub-clause (5) with the following :

"(5) Without prejudice to the generality of Clause A8(1) of the Special Conditions of Contract, one copy of the Drawings furnished to the Contractor as aforesaid shall be kept by the Contractor on the Site and the same shall at all reasonable times be available for inspection and use by the Engineer and the Engineer's Representative and by any other person authorized by the Engineer in writing."

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S.C.C. A9 Construction methods

(1) **The Contractor shall submit in accordance with General Conditions of Contract Clause 7 such documents and information pertaining to the methods of construction (including Temporary Works [other than those parts of the Temporary Works which are subject to independent checking in accordance with Special Conditions of Contract Clause _____[1]] and the use of Constructional Plant) which the Contractor proposes to adopt or use and such calculations of stresses, strains and deflections that will or may arise in the permanent work or any parts thereof during construction from the use of such methods as will enable the Engineer to decide whether, if such methods are adhered to, the Works can be executed in accordance with the Drawings and the Specification and without detriment when completed to the permanent work.**

Construction methods **Must be used with SCC A1 – A8**

(2) **The Engineer shall inform the Contractor in writing within a reasonable period after receipt of the information submitted in accordance with sub-clause (1) of this Clause :**

(a) **that the Contractor's proposed methods of construction have the consent of the Engineer (which consent shall not be unreasonably withheld); or**

(b) **in what respects in the opinion of the Engineer the Contractor's proposed methods of construction :**

(i) **fail to meet the requirements of the Drawings and/or the Specification; or**

(ii) **would be detrimental to the permanent work; or**

(iii) **do not comply with the other requirements of the Contract; or**

(c) **as to the further documents or information which are required to enable the Engineer properly to assess the proposed methods of construction.**

In the event that the Engineer does not give his consent, the Contractor shall take such steps or make

[1] Insert SCC Clause number for checking of Temporary Works here.

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S.C.C. A9 Construction methods

such changes in the said methods or supply such further documents or information as may be necessary to meet the Engineer's requirements and to obtain his consent. The Contractor shall not change the methods of construction which have received the Engineer's consent without the further consent in writing of the Engineer which shall not be unreasonably withheld.

(3) The Engineer shall at the written request of the Contractor provide to the Contractor such design criteria relating to the permanent work or any Temporary Works designed by the Engineer which are relevant, in the opinion of the Engineer, to the Contractor's obligations under sub-clauses (1) and (2) of this Clause.

(4) If the Engineer's consent to the proposed methods of construction shall be unreasonably withheld or delayed or if the requirements of the Engineer pursuant to sub-clauses (2)(b)(i) and (ii) of this Clause or any limitations imposed by any of the design criteria supplied by the Engineer pursuant to sub-clause (3) of this Clause could not reasonably have been foreseen by an experienced contractor at the time of tender and if in consequence of any of the aforesaid the Contractor unavoidably incurs delay or Cost the Engineer shall :

(a) subject to Clause 50 of the General Conditions of Contract take such delay into account in determining any extension of time to which the Contractor is entitled, and

(b) subject to Clause 64 of the General Conditions of Contract and as soon as reasonably practicable determine such sum in respect of the Cost incurred and notify the Contractor in writing of such determination.

(5) Notwithstanding the foregoing provisions of this Clause or that certain of the Contractor's proposed methods of construction may be the subject of the consent of the Engineer given in accordance with sub-clause (2) of this Clause, the Contractor shall not be relieved of any liability or obligation under the Contract nor shall the same bind or create any obligation or liability on the part of the Employer.

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S.C.C. A10 General damages

(1)	**General Conditions of Contract Clause 52 shall not apply to [Section _____] of the Works.**	**General damages**	**[+]Optional. When is used, must be used with SCC A1 – A9 and include in the tender document a Special Condition of Tender along the lines at Appendix 5.36**
(2)	**If the Contractor fails to complete [Section _____] of the Works by the relevant Key Date, he shall indemnify the Employer against all loss or liability incurred by the Employer (including without limitation any and all liability under the Employer's contracts with third parties) arising from the delay between the Key Date for [Section _____] and the date of completion of [Section _____] certified in accordance with General Conditions of Contract Clause 53. All amounts payable by the Contractor pursuant to this Special Condition of Contract Clause A10 are hereafter to as "general damages".**		
(3)	**The Employer may but shall not be bound to deduct such general damages, either in whole or in part, in accordance with the provisions of General Conditions of Contract Clause 83. The payment of such damages shall not relieve the Contractor from his obligations to complete the Works or from any other of his obligations under the Contract.**		
(4)[*]	**The total amount of general damages in respect of [Section _____] of the Works to which this Special Condition of Contract Clause A10 applies shall be limited in aggregate to the relevant sum stated in the Appendix to the Form of Tender.**		
(5)	**If the Engineer subsequently grants an extension or further extension of time for completion of [Section _____] of the Works such that the Employer shall no longer be entitled to general damages in respect of the period of such extension, then any sum in respect of such extension which may already have been recovered under this Special Condition of Contract Clause A10 shall be reimbursed forthwith to the Contractor together with interest at the rate provided for in General Conditions of Contract Clause 79(4) within 28 days of the granting of such extension of time.**		

[+] **To adopt where liquidated damages will not apply in respect to the Works, any Section or Stage and general damages are to be recoverable.**

[*] **Sub-clause (4) should be deleted (and sub-clause (5) re-numbered accordingly) if it is decided, in relation to a particular project, that there is no need to limit the total amount of general damages payable.**

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APPENDIX 5.37 SPECIAL CONDITIONS OF TENDER FOR USE IN MEGA PROJECT CONTRACTS (Ref.: WBTC No. 26/2002)

SCT (General damages)

The tenderer's attention is drawn to the Contractor's obligation under Special Conditions of Contract Clause A10 to indemnify the Employer against all loss or liability incurred by the Employer (including without limitation any and all liability under the Employer's contracts with third parties) arising from the delay in completion of [Section _____] of the Works. Based on the information currently available to the Employer such loss or liability would include without limitation the Employer's obligation to compensate [specify the third party(ies) and refer to the relevant contract(s)/agreement(s) with the third party(ies) as described in Appendix [ ] to these Special Conditions of Tender. The tenderer shall be deemed to have allowed in his tender for all the risks, liabilities and obligations set out or implied in the Contract and all matters and things necessary for the proper execution of the Works including without limitation the full extent of the obligation to comply with the provisions of Special Conditions of Contract Clause A10.

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APPENDIX 5.38 GUIDELINES FOR THE DEVELOPMENT OF MAJOR INFRASTRUCTURE PROJECTS (Ref.: S for W's memo ref. () in WB(W) 216/29/2 dated 10.5.2001)

A Background

The original set of the Guidelines was prepared based on experience learnt from the implementation of the Airport Core Programme. Since its promulgation in October 1999, the Guidelines had been applied in a few major infrastructure projects. A review of the application of the Guidelines was later completed. Based on the feedbacks from the bureaux and departments, the Guidelines were considered generally in order but it would be appropriate to highlight in the Guidelines the need to address environmental issues at the earliest possible stage. As a result, a set of updated internal administrative guidelines for managing the delivery of major infrastructure projects was promulgated with paragraph 8 of the Guidelines expanded accordingly.

B Application

The Guidelines should be given full regard and careful consideration before embarking on major infrastructure projects. The Guidelines cover all stages in the delivery of a major infrastructure project starting from the initial selection of a suitable delivery agent through to the final operation stage. In addition, they contain special features such as project auditing, risk assessment and contingency planning. Thus all bureaux and works departments dealing with such projects should comply with the Guidelines as a matter of policy. However it should be realized that major infrastructure projects may differ widely in nature and that different institutional arrangements for their delivery are possible. These Guidelines are therefore meant to be only broad principles of general applicability. During the implementation process the concerned policy bureau could further develop or refine them to suit the circumstances of individual project. Due consideration should be given to the complexity of the project, number of parties involved, number of interfaces and so forth. The Development Bureau will continue to monitor, review and update the Guidelines.

C The Guidelines

The Guidelines are set out in the following pages.

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GUIDELINES FOR THE DEVELOPMENT OF MAJOR INFRASTRUCTURE PROJECTS

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GUIDELINES FOR THE DEVELOPMENT OF MAJOR INFRASTRUCTURE PROJECTS

I. Selecting the Most Appropriate Institutional Entity of Delivery

At a very early stage, careful thought should be given to how a project is to be delivered. A comparison should be made of the basic choices, such as designating a Government department as the delivery agent, commissioning a statutory organization as the executive agency or involving a private enterprise through a franchise or some other form of agreement. As a general rule, we should give a project to a Government department, a statutory organization or a private enterprise for delivery only when their ability to do so has been fully proven. The degree of control available to Government (in case of a non-government delivery agent), the track record of the organization and the experience of the key personnel involved are important considerations which would need to be taken into account.

II. Clear Demarcation of Responsibility and Authority

2. After the selection of the institutional entity of delivery, a basic 'charter' should be drawn up in consultation with the concerned parties, setting out the control and monitoring framework, with detailed description of their respective roles and responsibilities. Three points are particularly important:-

(a) Authority and responsibility must be aligned – Parties involved must not be left in any doubt as to their own responsibilities, whatever the overall monitoring mechanism is. In the case of a project undertaken by a non-Government organization, the demarcation of responsibilities must be clearly spelt out and formally agreed between Government and the organization and widely promulgated. Government must avoid getting more involved than its position requires, which might create the wrong impression that the success or otherwise of the project is a Government responsibility.

(b) 'Re-energization' is required – Parties involved in the delivery of a project should be reminded of their respective roles and responsibilities from time to time so that there will be no misunderstanding of what they should be. There can be updating exercises, conferences or seminars at crucial points for re-familiarization as necessary.

(c) In the 'charter', there should be clear and precise procedures and standards for measuring, tracking and reporting progress of the project by the delivery agent and all concerned parties. A commonly accepted glossary of terms and reporting formats for this purpose should be included.

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III. Good Governance as a General Requirement

3. This is of particular importance when the implementation of a huge and complex project is undertaken by a statutory organization, which is autonomous by law. The proper governance of the statutory organization is of pivotal importance. For example, its chairman and members are knowledgeable about the main functional areas of the project (e.g. engineering, finance, management, information technology, legal, etc.) or can have ready access to external expert advice. The Board of the statutory organization and its senior management should work together as a fully integrated entity with their responsibilities and relationship clearly delineated. The Board should be given authority commensurate with its responsibilities, including power to hire and fire staff. In order not to undermine the authority of the Board, Government should deal with the Board as far as practicable rather than solely with its staff.

IV. A Unified Project Management Approach

4. For a large scale project involving a multitude of key activities which must be centrally coordinated, consideration should be given to setting up a central point of monitoring and control with sufficient authority over project scope, schedule and budgets.

(a) Where Government has the ultimate responsibility and authority, certain powers should be vested in a Project Management Office within Government. In addition to authority, the Office would need to be provided with the necessary resources so that it is able to control critical milestones, use budget and project contingencies, order risk assessments and authorize acceleration of works. On top of this Office and directing its operation should be a high-level Steering Committee overseeing progress and budget of the project.

(b) Where the works have to be carried out by a statutory organization, a Steering Committee and a Project Management Office should be set up by mutual agreement. The respective responsibilities of the Steering Committee, the Project Management Office and the organization must be clearly delineated and promulgated, preferably in a Project Agreement. The Project Agreement should also cover other terms and conditions and serve as a binding document between the organization and the Government. It will need to be approved by both the management Board of the organization and the Government's policy secretary in charge of the project. As a general point, both the Steering Committee and the Project Management Office should have readily available professional input at a senior level, from either the head or senior members of the concerned Government department.

5. The project management framework in paragraph 4(b) above should also apply to situations where a number of projects which require close co-ordination are to be delivered in a mixed manner, i.e. some by Government and some by one or several autonomous statutory organizations. For

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entrustment works, the statutory organization will operate as the works agent for Government, and the same project management structure as set out in paragraph 4(a) should be considered although there is a case for a closer level of monitoring by the Project Management Office because of the more immediate accountability of Government for the timely completion of the works.

V. Check and Balance

6. At the macro level, a Project Management Office independent of the delivery agent working direct to a Steering Committee should operate as check and balance by way of exercising overall project management and control – see paragraphs 4 and 5 above. Depending on the nature and complexity of individual projects, the Office could be headed by a professional, if considered necessary.

7. At the micro level, out-sourced project management – Consideration should be given to contracting out project management or construction management services for new types of projects and for projects undertaken by an organization without a significant history in constructing and operating similar projects using its own resources. Leaving everything to the project team within the organization will run the risk of the project team being too much in control, to the detriment of the overall objectives of the project. The situation is particularly unsatisfactory when internal monitoring is absent or weak, or when the project team dominates the operation team.

8. Ongoing reviews during the design and construction stages – Technical viability considerations, including environmental issues, must be addressed in the design of the project at the earliest possible stage, before designs are fully committed. Design and construction should not be carried out in parallel as far as possible. Where this is necessary, a special mechanism would need to be set up to deal with design changes and their impact on project delivery so as to mitigate problems. In addition, an ongoing programme of value engineering by the project team and a one-off peer review of the project by an independent expert should be considered.

9. Early involvement of the operation team or the users – Assuming there is an ultimate operation team or user(s) of the facilities (not necessarily the owner) who can be identified early, the operation team or the users should be involved at the earliest possible stage. Operability should be an important consideration at the design stage and customer orientation should be recognized throughout the life cycle of the project. This is particularly true of integrated operational systems. Early and comprehensive work on systems performance and technical specifications, operational characteristics and systems integration planning should require and respect input from the operation team. The procuring body must spell out its specifications in clear and comprehensive terms which do not allow for any alternative interpretation. The bidder of a systems contract must be able to demonstrate that he fully understands the proposed systems before a contract is awarded to him. This would

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prevent substantial changes to the specifications at a later stage. Where changes are inevitable, they should be thoroughly discussed between the project team and the operation team and properly authorized at the appropriate level. A full documentary record of any such changes should be kept.

10. **Formal handing over of systems to the operation team – At a predetermined point in the master programme, the systems must be handed over formally to the operation team, who would then assess the operational status in accordance with their priorities during the commissioning stage and determine whether the systems are in fact ready for operational use on the target opening day.**

11. **Confirming readiness all around – There should be a predetermined checklist, prepared by an independent expert where appropriate, to be signed off by each and everyone of the operators of the key systems, attesting to the compliance and readiness of the systems for the opening day and the satisfactory completion of the required training, testing and trial activities. Any discrepancy must be attended to by the project team and/or the operation team as appropriate at the earliest possible opportunity. Unless the checklist is completely signed off, the project must not be considered ready for operational use. If an opening date for the project has been fixed well in advance, the opening date will need to be critically reviewed if items in the checklist are still outstanding. Where appropriate, this procedure of self-verification can be enhanced by an independent expert audit (see paragraph 19 below) or be tied in with statutory licensing procedures.**

VI. Transparency and Co-ordination

12. **Use an 'open book' approach to project management – Throughout the project management cycle, there shall be no withholding of information by the delivery agent. This is achieved through an 'open book' concept which includes full access for all concerned parties to reports and information notes, open attendance at review meetings etc. The Project Management Office will take the lead and set the example. It is recognized that there may be restrictions where proprietary or commercially sensitive information is involved. However, if the principle is recognized there should be a free flow of information between the project team and the Project Management Office, and between the delivery agent and their business partners, franchisees and Government departments to facilitate effective monitoring of progress of all key items.**

13. **Co-ordination meetings and progress review meetings – The successful airport relocation exercise and operations of Government departments at the airport highlight the importance of an early start on co-ordination and a close working relationship between the parties concerned. If outside agents or business partners are involved in the provision of services, their activities should be properly co-ordinated by the delivery agent. However the delivery agent should avoid creating too many committees with overlapping functions and responsibilities, but should rather devise an**

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open, comprehensive and flexible coordination mechanism. Moreover, progress reports should be studied carefully and digested, and any problems identified from such reports should be brought up for discussion in the appropriate forum. All discussions and decisions made together with subsequent actions should be properly documented.

VII. Programme Management

14. Use of well-defined critical milestones as 'project decision points' – There should be established targets and critical milestones incorporated into baseline implementation plans and contracts. Milestones should be integrated with scope control documents and programmes, and must be rigorously controlled. If a critical milestone is missed or forecast to be missed by a certain threshold value, the Project Management Office should be in a position to order an impact study or a risk assessment to determine possible 'workarounds', such as resequencing or acceleration, based on the invariable assumption that unless 'workarounds' are available and authorized, the opening date will be delayed by at least a corresponding duration as the milestone is missed. The burden of proof to overcome this assumption will rest with the project team.

15. A master programme for overview and tracking of progress – A project should proceed on the basis of a master programme that links activities together and allows progress and impact of delays to be measured. Without it, formal programme risk assessment cannot be conducted. The delivery agent must provide the Project Management Office with a comprehensive master programme setting out the resource requirements, updated and statused on a regular basis for control and monitoring purposes. Where applicable, the master programme should incorporate key dates for awarding contracts in time to meet the project completion date and key transitional activities such as progression from construction to operation.

16. Critical item reporting – The flow of information from the delivery agent to the Project Management Office and from the Project Management Office to the Steering Committee must be complete and honest. There should exist a mechanism whereby critical items are identified and reported on with follow-up actions taken as a matter of course. It will be a prime function of the Project Management Office to ensure that such a system is in place and is strongly enforced.

VIII. Managing the Transition from Construction to Operation

17. Transitional activities such as testing, commissioning, training and trials should be co-ordinated by the executive agent for the project on a comprehensive basis (i.e. all key operators included) as part of the master programme. There should be ample time allowed for each phase of the activities. Any compression of the timetable should be critically reviewed by the Project Management Office and the operation team. The entire process should be carried out under the overall charge of an officer with

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suitable experience in project management or with close professional support.

IX. An International Perspective

18. Use of international experts should be considered if local resources are not available. A degree of 'networking' with overseas authorities, overseas visits and, where appropriate, some international 'benchmarking' should be considered.

X. Use of an Auditor

19. In addition to the regular monitoring system, the Project Management Office and the delivery agent should also consider separate auditing of the project by an independent auditor, either on an ad hoc or regular basis as an additional safeguard on top of the regular monitoring mechanism. It will be necessary for the auditor to be guaranteed access to full information on the project so that he can be authorized, for example, to certify certain key activities such as trials or tests. Care should be taken to avoid confusion of roles or duplication of efforts.

XI. Risk Assessment and Contingency Plan

20. At the final stage of the project and in good time, the operation team should consider an overall risk assessment. Comprehensive contingency plans, prepared in consultation with all concerned parties and fully tried out, should exist to deal with unexpected situations with particular attention to the possible 'snowballing' effects of relatively minor problems. It should be the responsibility of the Project Management Office to oversee the work of all concerned parties in these issues.

XII. Community Support

21. Efforts should be made to seek and maintain the support of the community for the project. This process can become a source of useful feedback on the future operation of the project. Publicity activities however must not be allowed to interfere with project work, particularly when time is at a premium. Where public expectations run high, care should be taken to forewarn that for huge and complex projects some minor difficulties at the commissioning stage might be unavoidable.

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APPENDIX 5.39 SCC ON SECTION SUBJECT TO EXCISION (FOR USE WITH GENERAL CONDITIONS OF CONTRACT FOR CIVIL ENGINEERING WORKS 1999 EDITION)

(1) **"Section Subject to Excision" means a Section of the Works which is identified as such with details in the [ ]+, but the implementation of which has not been decided upon by the Employer at the time the tender documents are issued and which shall only be implemented upon a subsequent decision of the Employer, followed by a written instruction from the Engineer.**

(2) **The Contractor shall allow for the work within the Section Subject to Excision in his programme submitted in accordance with General Conditions of Contract Clause 16.**

(3) **The Engineer may, within the time stated in the Appendix to the Form of Tender for ordering the Section Subject to Excision (commencing from and including the date for commencement of the Works notified by the Engineer in accordance with General Conditions of Contract Clause 47), instruct the Contractor to proceed with the work within that Section.**

(4) **Notwithstanding the provisions of General Conditions of Contract Clause 47, the Contractor shall not execute the work within the Section Subject to Excision without the Engineer's instruction in writing in accordance with sub-clause (3) of this Clause, but upon receipt of the instruction:**

- **(a)** **the Contractor shall execute and complete that work within the Section Subject to Excision within the time for completion of that Section stated in the Contract, or such extended time as may be determined in accordance with General Conditions of Contract Clause 50 and this time for completion commences from and includes the date for commencement of the Works notified by the Engineer in accordance with General Conditions of Contract Clause 47; and**

- **(b)** **the Contract shall thereafter be construed in every way as if work within the Section Subject to Excision had at all times formed part of the Works.**

(5) **In the event that the Engineer does not issue an instruction in accordance with sub-clause (3) of this Clause:**

- **(a)** **without prejudice to the provisions of General Conditions of Contract Clause 60, the Contractor shall not thereafter be obliged to execute and complete the work within the Section Subject to Excision;**

- **(b)** **the Contractor shall not be entitled to any payment or other compensation or relief in respect of or attributable to the work within the Section Subject to Excision;**

- **(c)** **the Contract shall thereafter be construed in every way as if the work**

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within the Section Subject to Excision had not at any time formed part of the Contract and all references thereto shall have no effect;

(d) the Contractor shall review the programme submitted in accordance with General Conditions of Contract Clause 16 and, where appropriate, submit a revised programme to the Engineer in accordance with General Conditions of Contract Clause 16(2); and

(e) the Contractor shall review each of the other documents submitted in accordance with the provisions of the Contract (including but not limited to the documents set out in Appendix [ ] to these Special Conditions of Contract) and, where appropriate, submit an amended or varied version of the same to the Engineer.

+ State the relevant contract provisions.

NOTE : For contracts which also use SCC 6 in the Library of SCCs (i.e. the SCC on Sectional Commencement), "Clause 47" referred to in this SCC on Section Subject to Excision should be replaced by "Clause 47(1)".

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APPENDIX 5.40 SCC ON SECTION SUBJECT TO EXCISION (FOR USE WITH GENERAL CONDITIONS OF CONTRACT FOR DESIGN AND BUILD CONTRACTS 1999 EDITION)

(1) **"Section Subject to Excision" means a Section of the Works which is identified as such with details in the [ ]+, but the implementation of which has not been decided upon by the Employer at the time the tender documents are issued and which shall only be implemented upon a subsequent decision of the Employer, followed by a written instruction from the *Supervising Officer*.**

(2) **The Contractor shall allow for the work within the Section Subject to Excision in his programme submitted in accordance with General Conditions of Contract Clause 16.**

(3) **The *Supervising Officer* may, within the time stated in the Appendix to the Form of Tender for ordering the Section Subject to Excision (commencing from and including the date for commencement *of the construction* of the Works notified by the *Supervising Officer* in accordance with General Conditions of Contract *Clause 47(2)*), instruct the Contractor to proceed with the work within that Section.**

(4) **Notwithstanding the provisions of General Conditions of Contract Clause 47, the Contractor shall not execute the work within the Section Subject to Excision without the *Supervising Officer's* instruction in writing in accordance with sub-clause (3) of this Clause, but upon receipt of the instruction:**

- **(a)** **the Contractor shall execute and complete that work within the Section Subject to Excision within the time for completion of that Section stated in the Contract, or such extended time as may be determined in accordance with General Conditions of Contract Clause 50 *or revised time as may be determined in accordance with General Conditions of Contract Clause 13 (if appropriate) or agreed in accordance with General Conditions of Contract Clause 60* and this time for completion commences from and includes the date for commencement *of the construction* of the Works notified by the *Supervising Officer* in accordance with General Conditions of Contract Clause 47(2); and**

- **(b)** **the Contract shall thereafter be construed in every way as if work within the Section Subject to Excision had at all times formed part of the Works.**

(5) **In the event that the *Supervising Officer* does not issue an instruction in accordance with sub-clause (3) of this Clause:**

- **(a)** **without prejudice to the provisions of General Conditions of Contract Clause 60, the Contractor shall not thereafter be obliged to execute and complete the work within the Section Subject to Excision;**

- **(b)** **the Contractor shall not be entitled to any payment or other**

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compensation or relief in respect of or attributable to the work within the Section Subject to Excision;

(c) the Contract shall thereafter be construed in every way as if the work within the Section Subject to Excision had not at any time formed part of the Contract and all references thereto shall have no effect;

(d) the Contractor shall review the programme submitted in accordance with General Conditions of Contract Clause 16 and, where appropriate, submit a revised programme to the *Supervising Officer* in accordance with General Conditions of Contract Clause 16(2); and

(e) the Contractor shall review each of the other documents submitted in accordance with the provisions of the Contract (including but not limited to the documents set out in Appendix [ ] to these Special Conditions of Contract) and, where appropriate, submit an amended or varied version of the same to the *Supervising Officer*.

+ State the relevant contract provisions.

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APPENDIX 5.41 NTT ON SECTION SUBJECT TO EXCISION

Notes to Tenderers

[NTT(l) to be included in the Notes to Tenderers when SCC [ ] on Section Subject to Excision is incorporated.]

(l) Tenderers are advised that if, by the time a tender recommendation is made, the Government has decided not to proceed with the work contained within the Section Subject to Excision as defined in sub-clause (1) of SCC [ ][#], then the tender price for that Section shall be discarded and the net tender value shall be taken for the purposes of tender evaluation.

[#] **Insert the relevant clause number of the SCC clause on Section Subject to Excision.**

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APPENDIX 5.42 NTT ON ANTI-COLLUSION

Tenderers' attention is drawn to the anti-collusion provisions in GCT 26.

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APPENDIX 5.43 GCT 1 ON DEFINITIONS

Clause			Remarks/Guidelines
GCT 1 Definitions			
(1)	**For the purpose of these General Conditions of Tender and Special Conditions of Tender, words and expressions used throughout shall, except when the context otherwise requires, have the same meaning assigned to them under Clause 1(1) of the General Conditions of Contract. In addition, the following words and expressions shall have the meaning hereby assigned to them:**		**DEVB memo ref. (02B6J-01-6) in DEVB(W)510/10/01 dated 24.3.2011.**
	(a)	**"Engineer/Architect/Maintenance Surveyor designate" means ____#**	**# Delete/Modify as appropriate. Full description of the "Engineer/ Surveyor/ Supervising Officer designate" (including full name or, as the case may be, full description of the post and name of the current holder of the post, address, telephone number and fax number) should be given in the definition.**
	(b)	**"unincorporated joint venture", "participant", "incorporated joint venture" and "shareholder" shall bear the same meanings as those given in paragraph 6 of the Environment, Transport and Works Bureau Technical Circular (Works) No. 50/2002 on Contractors' Joint Venture.**	
	(c)	**"person" includes individual, corporation, partnership, firm and unincorporated body.**	
(2)	**In these General Conditions of Tender and Special Conditions of Tender, except where the context otherwise requires, the singular shall include the plural and vice versa and any gender shall include all genders.**		

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APPENDIX 5.44 GCT 25 ON SUBMISSION OF FURTHER INFORMATION

Clause	Remarks/Guidelines
GCT 25 Submission of further information	
The tenderer shall upon written request by the *Architect/Engineer/Surveyor/Maintenance Surveyor designate (which may be issued at any time after the tender closing date) submit to the *Architect/Engineer/Surveyor/Maintenance Surveyor designate within 7 days of the date of issue of the written request or within reasonable time upon the written request the following documents: **#[(a) .....;** **(b) .....; and** **(c) .....]** **Failure to comply with this Clause by the tenderer shall render his tender invalid.**	*** Delete as appropriate.** **Note: Non submission will be regarded as withdrawal of tender.** **# Project office to specify the relevant documents with reference to the relevant GCT or SCT clause, e.g. the financial information as referred to in General Conditions of Tender Clause 5. Such documents should not contain information which will affect the evaluation process or the marking scheme.**

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APPENDIX 5.45 GCT 26 ON ANTI-COLLUSION

Clause	Remarks/Guidelines
GCT 26 Anti-collusion	
(1) (a) Subject to sub-clause (2) of this Clause, the tenderer shall not communicate to any person other than the Employer the amount of the tender price or any part thereof until the tenderer is notified by the Employer of the outcome of the tender exercise. **(b) Further to paragraph (a) of this sub-clause, the tenderer shall not fix the amount of the tender price or any part thereof by arrangement with any other person, make any arrangement with any person about whether or not he or that other person will or will not submit a tender or otherwise collude with any person in any manner whatsoever in the tendering process.**	DEVB memo ref. (02B6J-01-6) in DEVB(W)510/10/01 dated 24.3.2011.
(c) Any breach of or non-compliance with this sub-clause by the tenderer shall, without affecting the tenderer's liability for such breach or non-compliance, invalidate his tender. **(2) Sub-clause (1)(a) of this Clause shall have no application to the tenderer's communications in strict confidence with:** **(a) his own insurers or brokers to obtain an insurance quotation for computation of tender price;** **(b) his consultants or subcontractors to solicit their assistance in preparation of tender submission; and** **(c) his bankers in relation to financial resources for the Contract.**	
(3) The tenderer shall submit with his tender a duly signed and witnessed letter in the form set out in Appendix [*insert appropriate reference*]+ to these General Conditions of Tender. The signatory to the letter shall be a person authorized to sign Government contracts on the tenderer's behalf. **(4) The tenderer shall indemnify and keep indemnified the Employer against all**	+ **See below. It shall not be included as an essential submission under GCT 21.**

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Clause	Remarks/Guidelines
losses, damages, costs or expenses arising out of or in relation to any breach of or non-compliance with sub-clause (1) of this Clause by the tenderer, including but not limited to additional costs due to price escalation, costs and expenses of re-tendering and other costs incurred.	
Appendix [ ] **To: The Government of the Hong Kong Special Administrative Region ("Government")** **Date: _____** **Dear Sir/Madam,** **Contract No.: [ ]** **Title: [ ]** ***[I/We], [(name of the tenderer) of (address of the tenderer)][1], refer to *[my/our] tender for the above Contract.** ***[I/We] confirm that, before *[I/we] sign this letter, *[I/we] have read and fully understand this letter and the anti-collusion clause in General Conditions of Tender Clause 26.** ***[I/We], represent and warrant that in relation to the tender for the above Contract:** **(i) *[I/We], other than the Excepted Communications referred to in the last paragraph of this letter, have not communicated and will not communicate to any person other than the Government the amount of the tender price or any part thereof until *[I/we] have been notified by the Government of the outcome of the tender exercise;** **(ii) *[I/We] have not fixed and will not fix the amount of the tender price or any part thereof by arrangement with any person;** **(iii) *[I/We] have not made and will not**	*** Delete as appropriate.** **1 Where the tenderer comprises two or more persons or companies acting in partnership, joint venture or otherwise, this part in square brackets should be expanded to include the respective names and addresses of such persons or as the case may be companies.** **2 Where the tenderer comprises two or more persons or companies acting in partnership, joint venture or otherwise, all such persons or as the case may be companies must sign. The signatory for each of such persons or companies shall be a person authorized to sign Government contracts on behalf of that person or as the case may be company.**

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Clause	Remarks/Guidelines
make any arrangement with any person as to whether *[I/we] or that other person will or will not submit a tender; and	
(iv) *[I/We] have not otherwise colluded and will not otherwise collude with any person in any manner whatsoever in the tendering process. ***[I/We] shall indemnify and keep indemnified the Government against all losses, damages, costs or expenses arising out of or in relation to any breach of any of the representations and/or warranties above, including but not limited to damages for delay, costs and expenses of re-tendering and other costs incurred.** **In this letter, the expression "Excepted Communications" means *[my/our] communications in strict confidence with:** **(i) *[my/our] own insurers or brokers to obtain an insurance quotation for computation of tender price;** **(ii) *[my/our] consultants or subcontractors to solicit their assistance in preparation of tender submission; and** **(iii) *[my/our] bankers in relation to financial resources for the Contract.** **Signed for and on behalf of [name of the tenderer] by [name and position of the signatory][2]:** **_____** **Name of Witness: _____** **Signature of Witness: _____** **Occupation: _____**	

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APPENDIX 5.46 SCC ON BOND FOR OFF-SITE MANUFACTURES OF MAJOR PREFABRICATION ITEM(S)

S.C.C. xx

Bond for Off-Site Manufacture of Major Prefabrication Item(s)

(1) For purposes of the Contract, "[Major Prefabrication Items]" shall mean the following item(s) of works:

(a) [*description*] identified in [*set out the relevant Drawing number(s) and the relevant clause/section number(s) of the Contract documents, e.g. Specification*]; and

(b) ……
[*set out details of any further item(s) of works*],

which has/have been completed off-Site in accordance with the Contract but is/are yet to be delivered to the Site for inclusion in the Works.

(2) Should the Contractor elect to apply for interim payment for the manufacturing and fabrication of any Major Prefabrication Item carried out off-Site before delivery to Site, the Contractor shall, as a condition precedent to his right to apply for any interim payment or to continue to apply for any interim payment pursuant to General Conditions of Contract Clause 79 in relation to the elected Major Prefabrication Item, provide the Employer with and maintain in existence a separate bond in the form annexed at Appendix [ ] to the Special Conditions of Contract covering the elected Major Prefabrication Item, in the amount therein described and subject to the terms more particularly described in the Contract, with only such amendments thereto as may previously have been agreed in writing by the Engineer. The bond shall be released in the manner described in the bond. The Contractor shall submit a separate bond in relation to each elected Major Prefabrication Item.

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(3) For the avoidance of doubt, if no bond as described in sub-clause (2) of this Clause covering the elected Major Prefabrication Item has been provided to the Employer and maintained in existence, no interim payment shall be made under the Contract for the Major Prefabrication Item and the payment for such Major Prefabrication Item shall continue to be processed and made in the normal manner upon delivery to Site under the provisions of the Contract.

(4) Upon the Contractor having provided to the Employer a duly executed bond under sub-clause (2) of this Clause in relation to any Major Prefabrication Item, the following amendments, effective from the date of the receipt of such bond by the Employer, shall be deemed to have been made to the Contract:

Clause 21 of General Conditions of Contract shall be amended by:

(A) Adding to the end of the first sub-paragraph of sub-clause (1) after "Specialist Works" but before the full stop:

", and, in relation to the Major Prefabrication Item(s) for which the Contractor has provided to the Employer duly executed bond(s) under sub-clause (2) of Special Conditions of Contract Clause xx, for the care of the Major Prefabrication Item(s) whether stored off-Site or in the course of transportation."

(B) Adding after "on the Site," in line 4 of sub-clause (2):

"or, in relation to the Major Prefabrication Item(s) for which the Contractor has provided to the Employer duly executed bond(s) under sub-clause (2) of Special Conditions of Contract Clause xx, to the Major Prefabrication Item(s)

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whether stored off-Site or in the course of transportation,"

Clause 72 of General Conditions of Contract shall be deleted and replaced by:

(1) All materials owned by the Contractor for incorporation in the Works shall be and become the property of the Employer upon delivery to the Site, except to the extent that property in such materials shall have already been passed to the Employer in accordance with sub-clause (2) of this Clause.

(2) In relation to the Major Prefabrication Item(s) for which the Contractor has provided to the Employer duly executed bond(s) under sub-clause (2) of Special Conditions of Contract Clause xx, such Major Prefabrication Item(s) located in the manufacture / fabrication / assembly yard(s) off-Site or in the course of transportation shall be and become the property of the Employer upon property in such Major Prefabrication Item(s) vesting in the Contractor or otherwise passing unconditionally to the Contractor under relevant subcontract.

(3) The materials under sub-clauses (1) and the Major Prefabrication Item(s) under sub-clause (2) of this Clause shall not be removed without an instruction or the prior written consent of the Engineer. Such materials and Major Prefabrication Item(s) shall, subject to Clause 81, only re-vest in the Contractor to the extent that they may be found to be surplus to requirements upon or prior to completion of the Works.

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The operation of this Clause shall not be deemed to imply any approval by the Engineer of such materials or Major Prefabrication Item(s) or prevent the rejection by the Engineer of any material or Major Prefabrication Item at any time.

Clause 78 of General Conditions of Contract shall be amended by:

(A) Adding after sub-clause (1)(b):

"(c) a list of the Major Prefabrication Item(s) for which the Contractor has provided the duly executed bond(s) under sub-clause (2) of Special Conditions of Contract Clause xx and the estimated contract value of such Major Prefabrication Item(s)"; and"

(B) Renumbering original sub-clause (1)(c) as sub-clause (1)(d).

Clause 79 of General Conditions of Contract shall be amended by:

(A) Adding after sub-clause (1)(c):

"(d) the estimated value of the Major Prefabrication Item(s) for which the Contractor has provided the duly executed bond(s) under sub-clause (2) of Special Conditions of Contract Clause xx; and"

(B) Renumbering original sub-clause "(1)(d)" and "(1)(e)" as (1)(e)" and "(1)(f)" respectively.

(C) Amending the further proviso at the end of sub-clause (1) to read:

"Provided further that, for the purpose of interim payments:

(i) the value of the materials as referred to in (c) above for use in

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connection with any item of permanent work priced in the Contract and the value of the Major Prefabrication Item(s) referred to in (d) above shall be determined on the basis of the rate set out in the Contract for such work; and

(ii) in relation to the Major Prefabrication Item(s) referred to in (d) above, it shall be a condition precedent to valuation and certification by the Engineer of such Major Prefabrication Item(s) under this sub-clause that the Contractor has complied with the provisions of sub-clause (5) of Special Conditions of Contract Clause xx."

For the avoidance of doubt, if the Contractor has not elected to apply for interim payment for any Major Prefabrication Item by not submitting the bond as required in sub-clause (2) of this Clause, this sub-clause (4) shall have no application to such Major Prefabrication Item.

(5) If the Contractor exercises his right under this Clause to apply for interim payment in relation to any Major Prefabrication Item(s), he shall be responsible for the arrangement and for all the costs and expenditure incurred by the Engineer's Representative in connection with his visit(s) to any off-Site manufacture / fabrication / assembly yard(s) to verify the Contractor's entitlement to any interim payment for such Major Prefabrication Item(s). The aforesaid costs and expenditure shall be deemed to be included in the rates of the Bills of Quantities.

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Furthermore, the Contractor shall furnish to the Engineer the following:

(i) clear proof that the Major Prefabrication Item(s) has/have met all Contract requirements and especially geometric configurations, ready for shipment to the Site for erection;

(ii) in the case the Major Prefabrication Item(s) is / are stored whether at the manufacture / fabrication / assembly yard(s) where the Major Prefabrication Item(s) has / have been manufactured / fabricated / assembled or at other place(s) of storage off-Site, evidence that there is in relation to such Major Prefabrication Item(s) clear identification of:

(1) the Employer as the person to whose order it is / they are held, and

(2) its / their destination as the Works and such Major Prefabrication Item(s) either is / are set apart or has / have been clearly and visibly marked, individually or insets, by letters or figures or by reference to a pre-determined code;

(iii) in the case the Major Prefabrication Item(s) is / are under shipment by sea, the relevant shipping documents;

(iv) clear proof that the Major Prefabrication Item(s) is / are the property of the Contractor and that the conditions set out in paragraphs (i) to (iii) of this sub-clause, as applicable, have been complied with; and

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[(v) clear proof that such Major Prefabrication Item(s) is/are fully insured against loss or damage for their full value under a policy of insurance protecting the interests of the Employer and the Contractor, during the period commencing with the transfer of property in the Major Prefabrication Item(s) to the Contractor until they are delivered to the Works.][#]

NOTE : *In implementation of the risk-based assessment for insurance procurement according to ETWB TCW Nos. 6/2005 and 7/2005, the project officer's attention is drawn to the risk of damage to the third party during the period commencing with the transfer of property in the Major Prefabrication Item(s) to the Employer until they are delivered to the Works.*

[#] Delete if OCIP arrangement has been adopted for the Contract.

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Appendix [ ]

FORM OF CONTRACTOR'S BOND IN RESPECT OF OFF-SITE PAYMENT FOR A MAJOR PREFABRICATION ITEM

BY THIS BOND dated the day of [ ] 201X
[ ] whose registered office is at
[ ]
("the Surety") is irrevocably and unconditionally bound to the Government of the Hong Kong Special Administrative Region (together with its successors and assigns, "the Employer") for payment of a sum ("the Bonded Sum") not exceeding [ ] ([ ])[1] for payment of which sum the Surety binds itself its successors and assigns in accordance with the provisions of this Bond.

WHEREAS

(A) By a contract dated [ ]("the Contract") made between the Employer and [ ] ("the Contractor"), the Contractor has agreed to execute and complete certain works ("the Works") upon the terms and conditions contained in the Contract.

(B) Pursuant to the terms of the Contract, the Contractor agrees that if he elects to apply for interim payment for any Major Prefabrication Items ("the Off-Site Payment") pursuant to Special Conditions of Contract Clause xx, the Contractor shall, as a condition precedent to its right to apply for any such interim payment, provide this on-demand bond ("Bond").

(C) The Contractor has elected to apply for interim payment for the Major Prefabrication Item comprising [ ] pursuant to Special Conditions of Contract Clause xx ("Relevant Major Prefabrication Item")

NOW THE TERMS AND CONDITIONS of this Bond are:-

1. The Surety hereby irrevocably and unconditionally undertakes to pay to the Employer an amount not exceeding [ ] ([ ])[1] upon receipt from the Employer of a written demand therefor accompanied by a certificate signed on behalf of the Employer stating:

   (a) that the Employer is entitled to terminate or has terminated the Contract or the employment of the Contractor under the Contract; and

   (b) the amount due and payable under this Bond in accordance with Clause 3 below.

2. The Surety shall pay to the Employer the amount thus demanded without requiring further evidence or proof of:-

   (a) the default of the Contractor or

   (b) the Employer's entitlement to terminate the Contract or the employment of the Contractor under the Contract or

[1] The value stated in the Appendix to Form of Tender which the Employer considers will be sufficient to cover him for maximum Off-Site Payment payable to the Contractor for the Relevant Major Prefabrication Item.

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(c) any termination of the Contract or the employment of the Contractor under the Contract or

(d) of the amount due and payable under this Bond.

3. The amount payable under this Bond shall be the aggregate of the sum stated in the latest interim payment certificate representing the Off-Site Payment paid to the Contractor under the Contract prior to the date of the written demand referred to in Clause 1 above less the aggregate of any and all sums in respect of the Relevant Major Prefabrication Item delivered to the Site as certified by the Engineer (as defined in the Contract) in accordance with the terms of the Contract provided always that the liability of the Surety under this Bond shall not exceeded [ ] ([ ])[1].

4. The liability of the Surety under this Bond shall remain in full force and effect and shall not be affected or discharged in any way by and the Surety hereby waives notice of:-

(a) any suspension of the Works, variation to or amendment of the Contract (including without limitation extension of time for performance), or any concession or waiver by the Employer in respect of the Contractor's obligations under the Contract;

(b) the termination of the Contract or of the employment of the Contractor under the Contract solely as a result of default by the Contractor under the Contract;

(c) any forbearance or waiver of any right of action or remedy the Employer may have against the Contractor or negligence by the Employer in enforcing any such right of action or remedy;

(d) any other bond, security or guarantee held or obtained by the Employer for any of the obligations of the Contractor under the Contract or any release or waiver thereof;

(e) any act or omission of the Contractor pursuant to any other arrangement with the Surety.

5. The liability of the Surety under this Bond shall cease on whichever of the following events first occurs:-

(a) payment by the Surety of the Bonded Sum in full to the Employer; or

(b) receipt of written notification from the Employer that all the components comprising the Relevant Major Prefabrication Item have been delivered to the Site; or

6. The Employer shall be entitled to assign the benefit of this Bond at any time without the consent of the Surety or the Contractor being required.

7. All documents arising out of or in connection with this bond shall be served:-

(a) Upon the Employer, at [ ], marked for the attention of [ ];

(b) Upon the Surety, at [ ] Hong Kong.

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8. The Employer and the Surety may change their respective nominated addresses for service of documents to another address in Hong Kong but only by prior written notice to each other. All demands and notices must be in writing.

9. This Bond shall be governed by and construed according to the laws for the time being in force in Hong Kong and the Surety agrees to submit to the non-exclusive jurisdiction of the courts of Hong Kong.

10. In this Bond, "Hong Kong" means the Hong Kong Special Administrative Region. Where applicable, words and expressions used in this Bond shall have the meanings assigned to them in the Contract.

IN WITNESS whereof this Bond has been executed as a deed on the date first above written.

(a) SIGNED, SEALED and DELIVERED)
by [name of sole proprietor])
trading as [name of the Surety])
in the presence of:)
) *[Signature of the*
) *sole proprietor]**
.....)
[Name])
[Occupation])
[Address])

L.S.

Or

(b) SIGNED, SEALED and DELIVERED by)
[name of partner] and)
[name of partner]^) *[Signature of the*
being the partners of [name of the Surety]) *individual*
in the presence of:) *partner]**
)
) *[Signature of the*
.....) *individual*
[Name]) *partner]**
[Occupation])
[Address])

L.S.

L.S.

Or

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(c) Executed and delivered)
as a deed and the COMMON SEAL)
of [name of the Surety])
was affixed in the presence of) *[Signature of the*
[ ] its [director(s) or) *director(s) etc]**
director and secretary or person(s))
authorized to sign the bond by its)
board of directors]**)
in the presence of a witness:)
)
.....)
[Name])
[Occupation])
[Address])

Common Seal

Or

(d) Executed and delivered as a deed)
by [name of the Surety])
acting through)
[ ] (its sole director))
or) *[Signature of the*
[ ] and [ ] (its directors)) *director(s) etc]**
or)
)
[ ] (its director) and)
[ ] (its company secretary)**)
in the presence of a witness:)
)
)
.....)
[Name])
[Occupation])
[Address])

Or

(e) SIGNED, SEALED and DELIVERED by)
[name of the Surety] by [ ])
his/her/its** attorney under power of attorney)
dated [ ])
) *[Signature of the*
in the presence of:) *attorney]**
)
.....)
[Name])
[Occupation])
[Address])

L.S.

Note :

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(a) For use where the surety is a sole proprietor.
(b) For use where the surety is a partnership.
(c) For use where the surety is a company incorporated in Hong Kong and executes the deed with a Common Seal.
(d) For use where the surety is a company incorporated in Hong Kong and executes the deed without a Common Seal.
(e) For use where the surety executes the deed under a power of attorney.
* The italic parts are not part of the execution clause. They are for guidance or information only.
** Select the correct expression for use. If none is applicable, insert an appropriate expression.
^ The deed shall be executed by all the partners. Add more names if required.

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APPENDIX 5.47 SCC ON RELEASE OF RETENTION MONEY (FOR USE IN CONJUNCTION WITH GCCS FOR BUILDING WORKS, CIVIL ENGINEERING WORKS, DESIGN AND BUILD CONTRACTS AND ELECTRICAL AND MECHANICAL ENGINEERING WORKS, 1999 EDITIONS)

SCC on Release of Retention Money

(For Capital Works contracts)

General Conditions of Contract Clause 79(3) is deleted and replaced by the following :

"(3)(a) The Engineer[/Surveyor][1][/Supervising Officer][2] shall, within 14 days of the date of issue of the certificate of completion in respect of the Works in accordance with Clause 53(1) , issue a certificate for the payment of not more than 50 % of the Retention Money giving due account to the cost of the outstanding work referred to in Clause 53 and all work of [maintenance,][3] repair, rectification and making good of any defects[/Defects][4] [imperfection, shrinkage, settlement and other fault][5] referred to in Clause 56 which have been notified in writing to the Contractor ("Outstanding Work") [, which certificate shall state any Retention Money due to any Nominated Subcontractor][6] and, subject to Clause 83, the Employer shall pay such portion of Retention Money to the Contractor within 21 days of such certificate. In the event of different certificates of completion having been issued for different Sections or parts of the Works pursuant to Clause 53, the expression "certificate of completion" shall, for the purposes of this sub-clause, mean the last of such certificates.

(b) Further to paragraph (a) of this sub-clause and within 14 days after the date of the expiry of the Maintenance Period [/Defects Liability Period][7] for the Works or, where there is more than one such Period, the latest Period, the Engineer [/Surveyor][8] [/Supervising Officer][9] shall issue a certificate for the payment of a further portion of the Retention Money representing the remainder of the Retention Money less, where applicable, an amount ("Remaining Amount") which, in the opinion of the Engineer [/Surveyor][10][/Supervising Officer][11], represents the cost of any Outstanding Work then remaining to be carried out [, which certificate shall state any Retention Money due to any Nominated Subcontractor][12] and, subject to Clause 83, the Employer shall pay such further portion of the Retention Money to the Contractor within 21 days of the date of such certificate.

(c) Where a sum representing the Remaining Amount is withheld from certification under paragraph (b) of this sub-clause, the Engineer [/Surveyor][13] [/Supervising Officer][14]

[1] Only applicable to Building Works contracts
[2] Only applicable to Design and Build contracts
[3] Not applicable to E&M contracts
[4] Only applicable to E&M contracts
[5] Not applicable to E&M contracts
[6] Only applicable to contracts with provision for Nominated Subcontractor
[7] Only applicable to E&M contracts
[8] Only applicable to Building Works contracts
[9] Only applicable to Design and Build contracts
[10] Only applicable to Building Works contracts
[11] Only applicable to Design and Build contracts
[12] Only applicable to contracts with provision for Nominated Subcontractor
[13] Only applicable to Building Works contracts
[14] Only applicable to Design and Build contracts

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shall, within 14 days of the date of issue by the Engineer [/Architect][1] [/Supervising Officer][2] of the maintenance certificate [/defects liability certificate][3] in accordance with Clause 80, issue a certificate for the payment of the sum representing the Remaining Amount [, which certificate shall state any Retention Money due to any Nominated Subcontractor][4] and, subject to Clause 83, the Employer shall pay such sum to the Contractor within 21 days of the date of such certificate."

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[1] Only applicable to Building Works contracts
[2] Only applicable to Design and Build contracts
[3] Only applicable to E&M contracts
[4] Only applicable to contracts with provision for Nominated Subcontractor

SCC on Release of Retention Money

(For Capital Works contracts – landscape works)

General Conditions of Contract Clause 79(3) is deleted and replaced by the following :

"(3)(a) The Engineer[/Surveyor][1][/Supervising Officer][2] shall within 14 days of the date of issue of the certificate of completion in respect of the Works except Landscape Works in accordance with Clause 53(1), issue a certificate for the payment of not more than 50% of the Retention Money giving due account to, in respect of the Works except Landscape Works, the cost of the outstanding work referred to in Clause 53 and all work of [maintenance,][3] repair, rectification and making good any defects[/Defects][4] , [imperfection, shrinkage, settlement and other fault][5] referred to in Clause 56 which have been notified in writing to the Contractor [and , which certificate shall state any Retention Money due to any Nominated Subcontractor][6] and, subject to Clause 83, the Employer shall pay such portion of Retention Money to the Contractor within 21 days of such certificate. In the event of different certificates of completion having been issued for different Sections or parts of the Works except Landscape Works pursuant to Clause 53, the expression "certificate of completion" shall, for the purposes of this sub-clause, mean the last of such certificates.

(b) Further to paragraph (a) of this sub-clause and upon the expiry of the Maintenance Period[/Defects Liability Period][7] for the Works except Landscape Works, or where there is more than one such Period, the latest Period, the Engineer[/Architect][8] [/Supervising Officer][9] shall notify the Contractor in writing the date of expiry of such Maintenance Period [/Defects Liability Period][10], and within 14 days of the date of notification by the Engineer [/Architect][11] [/Supervising Officer][12] , the Engineer [/Surveyor][13] [/Supervising Officer][14] shall issue a certificate for the payment of a further portion of the Retention Money and such further portion shall be equal to the Relevant Percentage of the Retention Money less an amount which, in the opinion of the Engineer [/Surveyor][15][/Supervising Officer][16], represents the cost of the outstanding work referred to in Clause 53 and all work of [maintenance,][17] repair, rectification and making good any defects[/Defects][18] , [imperfection, shrinkage, settlement and other fault][19] referred to in Clause 56 then remaining to be carried out) [, which certificate shall state any Retention Money

[1] Only applicable to Building Works contracts
[2] Only applicable to Design and Build contracts
[3] Not applicable to E&M contracts
[4] Only applicable to E&M contracts
[5] Not applicable to E&M contracts
[6] Only applicable to contracts with provision for Nominated Subcontractor
[7] Only applicable to E&M contracts
[8] Only applicable to Building Works contracts
[9] Only applicable to Design and Build contracts
[10] Only applicable to E&M contracts
[11] Only applicable to Building Works contracts
[12] Only applicable to Design and Build contracts
[13] Only applicable to Building Works contracts
[14] Only applicable to Design and Build contracts
[15] Only applicable to Building Works contracts
[16] Only applicable to Design and Build contracts
[17] Not applicable to E&M contracts
[18] Only applicable to E&M contracts
[19] Not applicable to E&M contracts

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due to any Nominated Subcontractor][1] and, subject to Clause 83, the Employer shall pay such further portion of Retention Money to the Contractor within 21 days of the date of such certificate. For the purposes of this sub-clause, "Relevant Percentage" means [98][2] % minus the percentage of the Retention Money certified under paragraph (a) of this sub-clause.

(c) The Engineer[/Surveyor][3] [/Supervising Officer][4] shall, within 14 days of the date of issue by the Engineer[/Architect][5] [/Supervising Officer][6] of the maintenance certificate[/defects liability certificate][7] in accordance with Clause 80, issue a certificate for the payment of the remaining portion of Retention Money [, which certificate shall state any Retention Money due to any Nominated Subcontractor][8] and, subject to Clause 83, the Employer shall pay such remaining portion of Retention Money to the Contractor within 21 days of the date of such certificate."

[1] Only applicable to contracts with provision for Nominated Subcontractor
[2] To insert a percentage appropriate to the Contract taking into account the proportion of Retention Money for Landscape Works
[3] Only applicable to Building Works contracts
[4] Only applicable to Design and Build contracts
[5] Only applicable to Building Works contracts
[6] Only applicable to Design and Build contracts
[7] Only applicable to E&M contracts
[8] Only applicable to contracts with provision for Nominated Subcontractor

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APPENDIX 5.47A NTT AND SCC ON ADVANCE PAYMENT (FOR USE IN CONJUNCTION WITH GCCS FOR BUILDING WORKS, CIVIL ENGINEERING WORKS, DESIGN AND BUILD CONTRACTS AND ELECTRICAL AND MECHANICAL ENGINEERING WORKS)

The following Notes to Tenderers and Special Conditions of Contract shall be included in the tender documents of all capital works contracts adopting General Conditions of Contract for Building Works (1999 Edition), General Conditions of Contract for Civil Engineering Works (1999 Edition) or General Conditions of Contract for E & M Engineering Works (1999 Edition) with contract period[1] of not less than 12 months and for which tenders are to be invited on or after 1 March 2020[2] from contractors on the List of Approved Contractors for Public Works and the List of Approved Suppliers of Materials and Specialist Contractors for Public Works:

Notes to Tenderers

Tenderers' attention is drawn to Special Conditions of Contract Clause [x] setting out the details of an advance payment to the Contractor and the repayment arrangement thereof.

Special Conditions of Contract[@]

"SCC[x] –

(1) The Contractor may request an advance payment from the Employer in accordance with the provisions of this Clause. The advance payment shall be the lesser of (i) an amount equal to two percent (2%) of the Contract Sum less Provisional Sums and the Contingency Sum or (ii) HK$30,000,000. The Contractor shall submit a statement after execution of the Articles of Agreement to the [Engineer/Surveyor]* requesting payment of the advance payment ("Advance Payment Statement"). Within 21 days of the date of delivery of the Advance Payment Statement to the [Engineer/Surveyor]*, the [Engineer/Surveyor]* shall if he is satisfied that the Contract has been duly executed by the Contractor, certify payment and within a further 21 days the Employer shall pay the advance payment to the Contractor. If a certified payment is late or if a payment is late because the [Engineer/Surveyor]* does not certify payment which he should certify, no interest is payable on such late payment.

(2) Subject to sub-clause (3) below, the advance payment shall be deducted by the Employer from interim and/or final payments due to the Contractor starting from the seventh monthly payment by equal instalments for a period of [six][3] months.

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[1] Contract period refers to the period stated in the Tender Notice.
[2] This relief measure will be implemented until further notice.
[3] Departments shall determine the number of repayment instalments, which shall not be less than 6, to suit the nature, size and characteristics of individual contract.

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(3) The advance payment or such part thereof which has not been repaid to the Employer shall become due for repayment immediately upon termination or abandonment of the Contract, or determination of the Contractor's employment in accordance with General Conditions of Contract Clause 81.

(4) Sub-clause (2) of Special Conditions of Contract Clause [28]# on ISO 9000 Certification for the Contractor is deleted and replaced by the following:

"Notwithstanding any other provisions in the Contract, compliance with sub-clause (1) of this Clause shall be a condition precedent to the Contractor's entitlement to any payment or any further payment as the case may be under the Contract provided that this condition precedent does not apply to the advance payment under Special Conditions of Contract Clause [ ]#."

(5) Special Conditions of Contract Clause [52]# on submission of signed declaration to confirm compliance with the provisions on ethical commitment and confidentiality is amended by replacing the first sentence with the following:

"The Contractor shall also submit a signed declaration in a form prescribed or approved by the Employer to confirm compliance with the provisions on ethical commitment and confidentiality as stated in Clauses [SCC 50 and SCC 51]# of these Special Conditions of Contract as part of the Contractor's interim statement at a frequency of once every [ ]# months and as part of the Contractor's Advance Payment Statement under Special Conditions of Contract Clause [ ]#."

2. Where situation permits, the above Notes to Tenderers and Special Conditions of Contract shall also be included, by way of tender addendum, in the tender documents of all capital works contracts adopting General Conditions of Contract for Building Works (1999 Edition), General Conditions of Contract for Civil Engineering Works (1999 Edition) or General Conditions of Contract for E & M Engineering Works (1999 Edition) with contract period of not less than 12 months and for which tenders have been invited from contractors on the List of Approved Contractors for Public Works and the List of Approved Suppliers of Materials and Specialist Contractors for Public Works.

@ If the standard SCC 33 on Security or sureties is adopted, the use of this SCC on advance payment will need to be reviewed in consultation with DEVB.

*** Delete as appropriate**

 # Insert as appropriate.

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APPENDIX 5.47B CONTRACT PROVISIONS ON ADVANCE PAYMENT (FOR CAPITAL WORKS CONTRACTS ADOPTING NEC3)

Notes to Tenderers

Tenderers' attention is drawn to the provisions of Secondary Option X14 as amended by the schedule to the Articles of Agreement setting out the details of advance payment to the Contractor and the repayment arrangement thereof.

Amendments to Secondary Option X14@

NEC ECC Clause No.	Action	Details
Option X14	Replace	The title and sub-title of "Advanced payment" to "Advance payment"
X14.1	Replace	Replace the whole X14.1 by the following: "The *Contractor* may request the *Employer* to make an advance payment to the *Contractor* of the amount stated in the Contract Data."
X14.2	Replace	Replace the whole X14.2 by the following new clause X14.2(a) to (d): "(a) The *Contractor* submits to the *Project Manager* a statement requesting payment of the advance payment after execution of the Articles of Agreement ("Advance Payment Statement"). (b) The *Project Manager* certifies payment within one week of the date of receipt of the Advance Payment Statement if the *Project Manager* is satisfied that the *Contractor* has duly executed the Articles of Agreement. (c) The *Employer* pays the advance payment to the *Contractor* within three weeks from the date the *Project Manager* certifies the Advance Payment Statement for payment. If a certified payment is late, or if a payment is late because the *Project Manager* does not certify payment which he should certify, no compensation event arises and no interest is payable on such late payment. (d) The Advance Payment Statement shall be submitted together with a declaration signed by the *Contractor* in a form prescribed and accepted by the *Employer* to confirm

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		compliance with the provisions on ethical commitment and confidentiality in Clauses [A3 and D15] #. If the *Contractor* fails to submit the duly signed declaration with the Advance Payment Statement, the *Employer* shall be entitled to withhold payment until such declaration is submitted and the *Contractor* shall not be entitled to interest in that period."
X14.3	**Replace**	**"advanced payment" by "advance payment".**

additional conditions of contract

ACC Clause D8(2) should be deleted and replaced by the following:

"Notwithstanding any other provisions in this contract, compliance with sub-clause (1) of this Clause shall be a condition precedent to the *Contractor*'s entitlement to any payment or any further payment as the case may be under this contract provided that this condition precedent does not apply to the advance payment under Secondary Option Clause X14."

@ If a performance bond is required, the use of this Secondary Option Clause on advance payment will need to be reviewed in consultation with DEVB.
 # insert as appropriate.

Contract Data Part one

The amount of the advance payment is the lesser of (1) an amount equal to two percent (2%) of the tendered total of the Prices set out in Contract Data Part 2 at the date of acceptance of the tender or (ii) HK$30,000,000.

The *Contractor* repays the instalments in assessments starting at the 7th month after the Contract Date. The instalments are [1/6][1] of the advance payment.

[1] **Departments shall determine the number of instalments, which shall not be less than 6, to suit the nature, size and characteristics of individual contract.**

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APPENDIX 5.47C CONTRACT PROVISIONS ON ADVANCE PAYMENT FOR TERM CONTRACTS ADOPTING GCC

The following Notes to Tenderers and Special Conditions of Contract shall be included in the tender documents for all term contracts adopting General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition), General Conditions of Contract for Term Contract for Building Works (2004 Edition) and General Conditions of Contract for E&M Works (2007 Edition).

Notes to Tenderers

Tenderers' attention is drawn to Special Conditions of Contract Clause [x] setting out the details of advance payment to the Contractor and the repayment arrangement thereof.

Special Conditions of Contract@

"SCC[x] –

(1) The Contractor may request an advance payment from the Employer for a Works Order if:

(i) issued on or after the date of the Articles of Agreement for the Contract up to and including the date being 12 months from the date of the abovementioned Articles of Agreement; and

(ii) with the [estimated value/total estimated cost]* of the Works not less than HK$300,000 and the time for completion not less than 6 months as stated in the Works Order at the time of its issuance ("Original Works Order"). For the avoidance of doubt, the [estimated value/total estimated cost]* of the Works as stated in the Original Works Order does not include Contingency Sum (if any).

(2) The total accumulated advance payment to be paid to the Contractor under the Contract shall not exceed HK$10,000,000 ("Overall Cap"). The advance payment shall be equal to five percent (5%) of the [estimated value/total estimated cost]* of the Works as stated in the Original Works Order unless the remaining balance of the Overall Cap is less than the amount calculated as aforesaid. In such case, the advance payment for that Works Order shall be equal to the remaining balance of the Overall Cap.

(3) The Contractor shall submit a statement, within 14 calendar days from the issuing date of a Works Order, to the [Engineer/ Maintenance Surveyor/ Surveyor]* requesting payment of the advance payment ("Advance Payment Statement"). The Contractor will no longer be entitled to any advance payment for that Works Order if the Contractor fails to comply with the

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14 days submission requirement set out above.

(4) Within 21 days of the date of delivery of the Advance Payment Statement to the [Engineer/Maintenance Surveyor/Surveyor]*, the [Engineer/ Maintenance Surveyor/Surveyor]* shall certify payment if he is satisfied that the conditions set out in sub-clauses (1) to (3) have been complied with, and within a further 21 days the Employer shall pay the advance payment to the Contractor. If a certified payment is late or if a payment is late because the [Engineer/ Maintenance Surveyor/ Surveyor]* does not certify payment which he should certify, no interest is payable on such late payment.

(5) Subject to sub-clauses (6), (7) and (8) below, the advance payment paid under each Works Order shall be deducted by the Employer from payments certified as due to the Contractor. The deduction shall be made from payments with a certificate date falling on or after :-

(a) the expiry of the period of six months from the issuing date of the Original Works Order, if the time for completion stated in the Original Works Order is not less than nine months; or

(b) the expiry of the period of [four/five]* months from the issuing date of the Original Works Order, if the time for completion stated in the Original Works Order is less than nine months.

The amount to be deducted from each payment^ shall be determined by the [Engineer/Maintenance Surveyor/Surveyor]*.

(6) The Contractor shall repay the advance payment or such part thereof which has not been repaid to the Employer immediately if the Works Order is varied by the [Engineer/ Maintenance Surveyor/ Surveyor]* in accordance with Clause [62/63]* of the General Conditions of Contract to the effect that the [estimated value/total estimated cost]* of the part of the Works under that Works Order which is considered by the [Engineer/ Maintenance Surveyor/ Surveyor]* to be outstanding as at the date of the variation is less than the amount of advance payment already paid for that Works Order.

(7) The advance payment or such part thereof which has not been repaid to the Employer shall become due for repayment immediately upon termination or abandonment of the Contract, or determination of the Contractor's employment in accordance with General Conditions of Contract Clause [84/87]*.

(8) If at any time the [Engineer/ Maintenance Surveyor/ Surveyor]* is of the opinion that the repayment mechanism stated in sub-

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clause (5) above will not be sufficient to recover the entire amount of the advance payment, or upon the advance payment or such part thereof becoming due under sub-clauses (6) or (7) above, the Employer is entitled to set off the entire amount of the advance payment or any part thereof against monies due to the Contractor under that Works Order or any other Works Order under the Contract or any other contract between the Employer and the Contractor.

(9) Sub-clause (2) of Special Conditions of Contract Clause [ ]# on ISO 9000 Certification for the Contractor is deleted and replaced by the following:

"Notwithstanding any other provisions in the Contract, compliance with sub-clause (1) of this Clause shall be a condition precedent to the Contractor's entitlement to any payment or any further payment as the case may be under the Contract provided that this condition precedent does not apply to the advance payment under Special Conditions of Contract Clause [ ]#."

(10) Special Conditions of Contract Clause [ ]# on submission of signed declaration to confirm compliance with the provisions on ethical commitment and confidentiality is amended by replacing the first sentence by the following:

"The Contractor shall also submit a signed declaration in a form prescribed or approved by the Employer to confirm compliance with the provisions on ethical commitment and confidentiality as stated in Clauses [SCC and SCC]# of these Special Conditions of Contract as part of the Contractor's interim statement at a frequency of once every [ ]# months and as part of the Contractor's Advance Payment Statement under Special Conditions of Contract Clause [ ]#."

(11) + (A) General Conditions of Contract Clause 81 is amended by replacing the first sentence by the following:

"Payment upon each of the Engineer's certificates shall be made by the Employer, after deducting any sum deductible by the Employer under the Contract, within twenty-one days of the Engineer's certificate."

(B) General Conditions of Contract Clause 82 is amended by inserting the following after "by the Employer" in the first line:

", after deducting any sum deductible by the Employer under the Contract,"

(12) ++ The definition of "Minor Works Order" in General Conditions of Contract Clause 1 is amended by replacing "an estimated value" by "a total estimated cost".

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(13) [++] General Conditions of Contract Clause 67A(2) is amended by replacing "the estimated value of the Works" by "the total estimated cost of the Works".

[@] If the standard SCC [ ] on Security or sureties is adopted, the use of this SCC on advance payment will need to be reviewed in consultation with DEVB.

[^] For the repayment arrangement, the Engineer/Maintenance Surveyor/Surveyor is given the discretion to determine the amount of deduction from payments in the remaining period of a Works Order. Normally, the deduction shall be made in three instalments from payments for that Works Order but the Engineer/Maintenance Surveyor/Surveyor has the discretion to make alternative arrangement to suit the circumstances of the Works Order and the project. The project team should ensure that the advance payment will be deducted in full from interim payment(s).

[+] Adopt Clause 11A for General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition) and General Conditions of Contract for E&M Works (2007 Edition). Adopt Clause 11B for General Conditions of Contract for Term Contract for Building Works (2004 Edition).

[++] Adopt for General Conditions of Contract for Term Contract for Building Works (2004 Edition) and where GCC 80B is adopted.

[#] Insert as appropriate.

[*] Delete as appropriate

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APPENDIX 5.47D CONTRACT PROVISIONS ON ADVANCE PAYMENT FOR TERM CONTRACTS ADOPTING NEC3

Notes to Tenderers

Tenderers' attention is drawn to the provisions of Secondary Option Clause X19 as amended by the schedule to the Articles of Agreement setting out the details of advance payment to the *Contractor* and the repayment arrangement thereof.

Amendments to Secondary Option Clause X19[@]

NEC TSC Clause No.	Action	Details
X19.13	Add	"(1) The *Contractor* may request an advance payment from the *Employer* for a Task Order if (i) the Task Order is issued on or after the date of the Articles of Agreement for the Contract up to and including the date being 12 months from the date of the abovementioned Articles of Agreement; and (ii) the total of the Prices for the Task is not less than HK$300,000 and the Task Completion Date is not less than 6 months as stated in the Task Order at the time of its issuance ("Original Task Order"). (2) The total accumulated advance payment to be paid to the *Contractor* under the Contract shall not exceed HK$10,000,000 ("Overall Cap"). The advance payment shall be equal to five percent (5%) of the total of the Prices for the Task as stated in the Original Task Order unless the remaining balance of the Overall Cap is less than the amount calculated as aforesaid. In such case, the advance payment for that Task Order shall be equal to the remaining balance of the Overall Cap. (3) The *Contractor* submits to the *Service Manager* a statement requesting payment of the advance payment ("Advance Payment Statement") within 14 calendar days from the issuing date of a Task Order, failing which the *Contractor* is no longer entitled to any advance payment for that Task Order. (4) If the *Service Manager* is satisfied that sub-clauses [X19.13(1) to (3)][#] have been complied with, the

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		Service Manager **certifies payment within one week of the date of receipt of the Advance Payment Statement.** **(5) The *Employer* pays the advance payment to the *Contractor* within three weeks from the date the *Service Manager* certifies the Advance Payment Statement for payment. If a certified payment is late, or if a payment is late because the *Service Manager* does not certify payment which he should certify, no compensation event arises and no interest is payable on such late payment.** **(6) The Advance Payment Statement shall be submitted together with a declaration signed by the *Contractor* in a form prescribed and accepted by the *Employer* to confirm compliance with the provisions on ethical commitment and confidentiality in Clauses [A3 and D15]#. If the *Contractor* fails to submit the duly signed declaration with the Advance Payment Statement, the *Employer* shall be entitled to withhold payment until such declaration is submitted and the *Contractor* shall not be entitled to interest in that period.** **(7) Subject to X19.13(8) and X19.13(9) below, the advance payment paid under each Task Order shall be deducted by the *Employer* from payments certified as due to the Contractor for that Task Order. The deduction shall be made from payments with a certification date falling on or after:-** **(a) the expiry of the period of six months from the issuing date of the Original Task Order, if the Task Completion date stated in the Original Task Order is not less than nine months; or** **(b) The expiry of the period of [four/five]* months from the issuing date of the Original Task Order, if the Task Completion Date stated in the Original Task Order is less than nine months as stated therein at the time of its issuance.** **The amount to be deducted from each payment shall be determined by the *Service Manager*.^** **(8) The *Contractor* shall repay the advance payment or such part thereof which has not been repaid to the *Employer* immediately if the Task Order is changed by the *Service Manager* in accordance with Clause X19.4 to the effect that the total of the Prices for the part of the Task under the Task Order which is estimated by**

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		the *Service Manager* to be outstanding as at the date of the change is less than the amount of advance payment already paid for that Task Order. **(9) If at any time the *Service Manager* is of the opinion that the repayment mechanism stated in X19.13(7) above will not be sufficient to recover the entire amount of the advance payment, or upon the advance payment or such part thereof becoming due under X19.13(8) above, the *Employer* is entitled to set off the entire amount of the advance payment or any part thereof against monies due to the *Contractor* under that Task Order or any other Task Order under the Contract or any other contract between the *Employer* and the *Contractor*.**

Amendment to Core Clause 93.1

93.1	**Add**	**A new fifth bullet point** **"a deduction of any un-repaid balance of an advance payment."**

Amendment to *additional conditions of contract*

ACC Clause D8(2) should be deleted and replaced by the following:

"Notwithstanding any other provisions in this contract, compliance with sub-clause (1) of this Clause shall be a condition precedent to the *Contractor*'s entitlement to any payment or any further payment as the case may be under this contract provided that this condition precedent does not apply to the advance payment under Secondary Option Clause [X19.13]#."

@ If a performance bond is required, the use of this Secondary Option Clause on advance payment will need to be reviewed in consultation with DEVB.

^ For the repayment arrangement, the *Service Manager* is given the discretion to determine the amount of deduction from payments in the remaining period of a Task Order. Normally, the deduction shall be made in three instalments from payments for that Task Order but the *Service Manager* has the discretion to make alternative arrangement to suit the circumstances of the Task Order and the project. The project team should ensure that the advance payment will be deducted in full from interim payment(s).

 # insert as appropriate.

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APPENDIX 5.47E CONTRACT PROVISIONS FOR NEW ARRANGEMENT ON ADVANCE PAYMENT FOR TERM CONTRACTS ADOPTING GCC (for new term contracts with tenders to be invited on or after 31.3.2022)

The following Notes to Tenderers and Special Conditions of Contract shall be included in the tender documents for all term contracts adopting General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition), General Conditions of Contract for Term Contract for Building Works (2004 Edition) and General Conditions of Contract for E&M Works (2007 Edition).

Notes to Tenderers

Tenderers' attention is drawn to Special Conditions of Contract Clause [x]# setting out the details of advance payment to the Contractor and the repayment arrangement thereof.

Special Conditions of Contract[1]

SCC[x] # –

(1) Within 14 calendar days after the commencement of the Contract Period ("Application Period"), the Contractor may make no more than one request for an advance payment from the Employer in accordance with the provisions of this clause. The advance payment shall be in an amount that is the lesser of (i) an amount equal to five percent (5%) of the Estimated Average Annual Expenditure, and (ii) HK$10,000,000. The Estimated Average Annual Expenditure shall be determined in accordance with Appendix [ ] # to the Special Conditions of Contract.

(2) A request for an advance payment under sub-clause (1) shall be in the form of a written statement [set out in [ ]#/setting out the amount of payment requested]* duly signed by the Contractor ("Advance Payment Statement") and submitted to the [Engineer/ Maintenance Surveyor]* within the Application Period. The Contractor is not entitled to any advance payment if the Advance Payment Statement is submitted after the expiry of the Application Period.

(3) Within 21 days after the delivery of the Advance Payment Statement to the [Engineer/ Maintenance Surveyor]*, if the [Engineer/ Maintenance Surveyor]* is satisfied that the Advance Payment Statement is submitted in accordance with sub-clause (2) [and the conditions in Special Conditions of Contract Clause [ ]# are satisfied][2], he shall issue to the Employer a certificate certifying the amount of advance payment calculated in accordance with sub-clause (1), which is to be paid to the Contractor in response to

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[1] If the standard SCC [ ] on Security or sureties is adopted, the use of this SCC on advance payment will need to be reviewed in consultation with DEVB.

[62] Please insert other conditions precedent to payment if applicable.

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the Advance Payment Statement. The Employer shall pay the amount so certified ("Advance Payment") to the Contractor within 21 days after his receipt of the certificate issued by the [Engineer/ Maintenance Surveyor]*. The Employer shall not be liable to pay the Contractor any interest if for any reason whatsoever, any Advance Payment is made after the 21-day period aforesaid.

(4) Notwithstanding any other provisions of the Contract but subject to sub-clauses (6) and (7) below, the amount of Advance Payment shall be fully accounted for and offset against payments certified by the [Engineer/ Maintenance Surveyor]* as due to the Contractor under the Contract during the Deduction Period specified in paragraph (i) below (collectively, "Certified Payments" and each a "Certified Payment"). Unless otherwise decided by the [Engineer/ Maintenance Surveyor]*[1]

[(i) the Deduction Period shall be a period of [12]# months commencing from the date falling 6 months after the commencement date of the Contract Period;

(ii) a deduction shall be made from each of the first [12]# Certified Payments certified in the Deduction Period; and

(iii) the amount to be deducted from each Certified Payment shall be calculated by dividing the amount of Advance Payment by [12]#][2]

(5) No deduction shall be regarded to have been made to a Certified Payment for the purpose of this Clause unless and until the Employer has paid the Contractor the balance of the Certified Payment, or if no such sum is payable by the Employer, the Employer has acknowledged the amount calculated in accordance with sub-clause (4)(iii) has been otherwise duly accounted for.

(6) The Contractor shall pay the Employer the balance of any Advance Payment not yet deducted from the Certified Payments immediately upon occurrence of any of the following events:

(i) termination of the Contract;

---

[1] The Engineer/ Maintenance Surveyor may take the forecast applications for payment to be submitted by the Contractor into consideration when exercising his discretion in agreeing other repayment arrangement with the Contractor.

[2] For the repayment arrangement, the project team is given the discretion to determine (i) the Deduction Period, (ii) the Certified Payments from which the deductions are made and (iii) the amount to be deducted from each Certified Payment. The project team may make alternative arrangement to suit their particular term contracts taking into consideration of the circumstances like payment mechanism, funding source, etc. Subject to the project team's determination on the repayment arrangement, normally, the deduction shall be made in 12 instalments equal to 1/12 of the advance payment within the 12-month period. Unless otherwise approved by DEVB, the 12-month period for repayment should not be adjusted shorter than 6 months or longer than 18 months. The project team should ensure that the advance payment will be deducted in full from interim payment(s).

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(ii) the Contractor's abandonment of the Contract; and

(iii) determination of the Contractor's employment in accordance with General Conditions of Contract Clause [84/87]*.

(7) The [Engineer/ Maintenance Surveyor]* may adjust the amount to be deducted from each Certified Payment and/or the number of Certified Payments to which deductions may be made under sub-clause (4) to ensure that the Advance Payment is fully accounted for and offset against the Certified Payments by the end of the Deduction Period. If at any time the [Engineer/ Maintenance Surveyor]* is of the opinion that notwithstanding the adjustments, it is unlikely that the Advance Payment can be fully accounted for and offset against the Certified Payments by the end of the Deduction Period, the [Engineer/ Maintenance Surveyor]* shall immediately notify the Employer and the Contractor in writing. In such event, the Employer is entitled to offset the whole or part of such Advance Payment not yet deducted from Certified Payments against monies due to the Contractor under the Contract or any other contract between the Employer and the Contractor.

(8) Sub-clause (2) of Special Conditions of Contract Clause [ ]# on ISO 9000 Certification for the Contractor is deleted and replaced by the following:

"Notwithstanding any other provisions in the Contract, compliance with sub-clause (1) of this Clause shall be a condition precedent to the Contractor's entitlement to any payment or any further payment as the case may be under the Contract provided that this condition precedent does not apply to the Advance Payment under Special Conditions of Contract Clause [x] #."

(9) Special Conditions of Contract Clause [ ] # on submission of signed declaration to confirm compliance with the provisions on ethical commitment and confidentiality is deleted and replaced by the following:

"The Contractor shall submit a signed declaration in a form prescribed or approved by the Employer to confirm the Contractor's compliance with the provisions on ethical commitment and confidentiality in Special Conditions of Contract Clauses [ ]# and [ ]#. The first signed declaration shall be submitted with the Advance Payment Statement. Thereafter, the signed declaration shall be submitted once every [ ]# months after the commencement of the Contract Period and together with the Contractor's interim statement then due. If the Contractor fails to submit the duly signed declaration with the Advance Payment Statement, the Employer is entitled to withhold payment of the

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Advance Payment until such declaration is submitted."

Amendment to Appendix [ ] to Special Conditions of Contract – Security of Payment (SOP) Provisions[1]

The following provision shall be inserted after SOP Clause 2(2)(b) in Appendix [ ]# to Special Conditions of Contract Clause [ ]# on Security of Payment Provisions:

"(c) the date, which is the commencement of the Contract Period, for the advance payment under Special Conditions of Contract Clauses [X]#."

*** Delete/ Modify as appropriate**
 # Insert as appropriate.

[1] **In the SOP provisions set out in Annex C of DEVB TC(W) 6/2021, for (i) term contracts using GCC for Term Contracts for Civil Engineering Works, 2002 Ed. or GCC for Term Contracts for E&M Engineering Works, 2007 Ed., and (ii) term contracts using GCC for Term Contracts for Building Works, 2004 Ed. (using Clauses 79B and 80B), SOP Clause 2(2)(c) has to be deleted if the advance payment under term contracts promulgated in DEVB's memos of 5.6.2020 and 5.3.2021 is not adopted. A new SOP Clause 2(2)(c) should be included in contracts adopting advance payment mechanism promulgated in this memo.**

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Appendix to Special Conditions of Contract

Notwithstanding any other provision of the Contract, for the purpose of Special Conditions of Contract Clause [x]#, the Estimated Average Annual Expenditure shall be determined as follows:-

Version A

[*Note: The definition of "Estimated Average Annual Expenditure" in Version A is drafted based on the sample format of Grand Summary of the Schedule of Percentages (attached at Annex A) where the "Total Value for Tender Assessment" is expressed in monetary value. Amendments should be made to suit the requirements of different term contracts and to match with the pricing document adopted in the contract.*]

"Estimated Average Annual Expenditure" is an amount equal to the Total Value for Tender Assessment (excluding contingency sums and provisional sums) divided by the number of years in the Contract Period, where:

(i) Total Value for Tender Assessment (excluding contingency sums and provisional sums) is [the amount set out in the Grand Summary of the Schedule of Percentages opposite "Subtotal of above (A)"] after correction in accordance with relevant correction rules specified in the tender documents if any; and**

(ii) for the purpose of Special Conditions of Contract [x]#, the number of years in the Contract Period is [ ][1].

Version B

[*Note: The definition of "Estimated Average Annual Expenditure" in Version B is drafted based on the sample format of the Schedule of Percentages (attached at Annex B) where the "Total Values for Tender Assessment" is the summation of the Value of Tender Assessment in column (7) of the Schedule of Percentages. Amendments should be made to suit the requirements of different term contracts and to match with the pricing document adopted in the contract.*]

"Estimated Average Annual Expenditure" is an amount equal to the Estimated Total Expenditure (excluding contingency sums and provisional sums) multiplied by (1 + the Total Value for Tender Assessment (in percentage)) divided by the number of years in the Contract Period, where

(i) Estimated Total Expenditure (excluding contingency sums and

[1] The amount to be inserted shall be determined based on the number of months in the Contract Period (an incomplete month shall not be taken into account) divided by 12 and the result shall be rounded to nearest 0.5 year.

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provisional sums) is [ ][#1]; and

(ii) Total Value for Tender Assessment (in percentage) is [the summation of the values in column [7][#] of the Schedule of Percentages] after correction in accordance with relevant correction rules specified in the tender documents if any; and**

(iii) for the purpose of Special Conditions of Contract [x][#], the number of years in the Contract Period is [ ][2].

[#] Insert as appropriate.
**** Revise as appropriate**

[1] The amount to be inserted shall be determined based on the Estimated Total Expenditure as specified under standard General Conditions of Tender on "Estimated Total Expenditure" with deduction of contingency sums and provisional sums, if there is any.

[2] The amount to be inserted shall be determined based on the number of months in Contract Period (an incomplete month shall not be taken into account) divided by 12 and the result shall be rounded to nearest 0.5 year.

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Annex A – Sample Format of Grand Summary of the Schedule of Percentages in Term Contracts (GCC form)

Page	Description	Value for Tender Assessment ($ M)
…	…	
	Sub-total of above (A) [To be calculated based on the weighting factors and the contract percentages, the estimated total expenditure but excluding the estimated contingency sums and provisional sums]	
	Contingency sum* (B)	*Insert by project office before tender invitation*
	Provisional sum for price adjustment for inflation* (C)	*Insert by project office before tender invitation*
	Sub-total of all contingency sums and provisional sums above* (D) = (B) + (C)	
	Total Value for Tender Assessment (TVTA) for tender assessment purpose* (E) = (A) + (D)	To be completed by the Engineer designate after receipt of tender

*Remarks:
(1) The contingency sums, provisional sums and Total Value for Tender Assessment (TVTA) shall not form part of this contract. Please refer to Special Conditions of Contract Clause [ ].

Annex B – Sample Format of Schedule of Percentages (GCC form)

Schedule of Percentages

Section No. of Schedule of Rates	Item No. of Schedule of Rates	Section Percentage (whole number) (%)	Adjustment Percentage (whole number) (%)	Contract Percentage (%)	Weighting Factor	Value for Tender Assessment (%)
(1)	(2)	(3)	(4)	(5)	(6)	(7)
SECTION 01			*PLUS / MINUS %			
SECTION 02						
SECTION 03						
SECTION 04						
SECTION 05						
SECTION 07						
SECTION 08						

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SECTION 09						
SECTION 10						
SECTION 11						
SECTION 12						
SECTION 14						
SECTION 16						
SECTION 19						
SECTION 22						
SECTION 24						
SECTION 26						
SECTION 27						
SECTION 28						
				Total	1.000	

*Delete or modify as appropriate

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APPENDIX 5.47F CONTRACT PROVISIONS FOR NEW ARRANGEMENT ON ADVANCE PAYMENT FOR TERM CONTRACTS ADOPTING NEC3/4 (for new term contracts with tenders to be invited on or after 31.3.2022)

Notes to Tenderers

Tenderers' attention is drawn to Clause [D32]# of the *additional conditions of contract* setting out the details of advance payment to the *Contractor* and the repayment arrangement thereof.

Inclusion of a new *additional conditions of contract*[1]

Clause No.	Details
[D32]#	(1) Within 14 calendar days after the *starting date* ("Application Period"), the *Contractor* may make no more than one request for an advance payment from the *Employer** in accordance with the provisions of this clause. The advance payment shall be in an amount that is the lesser of (i) an amount equal to five percent (5%) of the Estimated Average Annual Expenditure, and (ii) HK$10,000,000. The Estimated Average Annual Expenditure shall be determined in accordance with Appendix [ ]# to the *additional conditions of contract*. (2) A request for an advance payment under sub-clause (1) shall be in the form of a written statement [set out in [ ]#/setting out the amount of payment requested]* duly signed by the *Contractor* ("Advance Payment Statement") and submitted to the *Service Manager* within the Application Period. The *Contractor* is not entitled to any advance payment if the Advance Payment Statement is submitted after the expiry of the Application Period. (3) If the *Service Manager* is satisfied that the Advance Payment Statement is submitted in accordance with sub-clause (2) [and the conditions in Clause [ ]# of the *additional conditions of contract* are satisfied][2], the *Service Manager* certifies in the Advance Payment Statement the amount of advance payment calculated in accordance with sub-clause (1) within [one week][3] of the date of his receipt of the Advance Payment Statement. (4) Subject to sub-clause (5), the *Employer** pays the amount so certified ("Advance Payment") to the *Contractor* within [three weeks][4] from the date the *Service Manager* certifies the Advance Payment Statement. The *Employer** is not liable to pay the *Contractor* any interest if for any reason whatsoever, an Advance Payment is made after the three-week

[1] If a performance bond is required, the use of this *additional condition of contract* on advance payment will need to be reviewed in consultation with DEVB.

[2] Please insert other conditions precedent to payment if applicable.

[3] The payment processing time can be shortened subject to the lead-time required by individual project team.

[4] The payment processing time can be shortened subject to the lead-time required by individual project team.

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Clause No.	Details
[D32]#	**period aforesaid. For the avoidance of doubt, late payment of the Advance Payment to *the Contractor* does not constitute a compensation event.** **(5) *The Contractor* must submit with the Advance Payment Statement a declaration signed by the *Contractor* in a form prescribed and accepted by the *Employer** to confirm compliance with the provisions on confidentiality and ethical commitment in Clauses [A3 and D15]#. If the *Contractor* fails to submit the duly signed declaration with the Advance Payment Statement, the *Employer** is entitled to withhold payment of the Advance Payment until such declaration is submitted.** **(6) Notwithstanding any other provisions of this contract but subject to sub-clauses (8) and (9) below, the amount of Advance Payment shall be fully accounted for and offset against payments certified by the *Service Manger* as due to the *Contractor* under this contract during the Deduction Period specified in paragraph (i) below (collectively, "Certified Payments" and each a "Certified Payment"). Unless otherwise decided by the *Service Manager*[1]:** **[(i) the Deduction Period is a period of [12]# months commencing from the date falling 6 months after the *starting date*;** **(ii) a deduction is made from each of the first [12]# Certified Payments certified in the Deduction Period; and** **(iii) the amount to be deducted from each Certified Payment is calculated by dividing the amount of Advance Payment by [12]#][2].** **(7) No deduction shall be regarded to have been made to a Certified Payment for the purpose of this Clause unless and until the *Employer** has paid the *Contractor* the balance of the Certified Payment, or if no such sum is payable by the *Employer**, the *Employer** has acknowledged the amount calculated in accordance with sub-clause (6)(iii) has been otherwise duly accounted for.** **(8) The *Contractor* shall pay the *Employer** the balance of any Advance Payment not yet deducted from the Certified Payments immediately upon the expiry or earlier termination of this contract.**

[1] The *Service Manager* may take the forecast applications for payment to be submitted by the *Contractor* into consideration when exercising his discretion in agreeing other repayment arrangement with the *Contractor*.

[2] For the repayment arrangement, the project team is given the discretion to determine (i) the Deduction Period, (ii) the Certified Payments from which the deductions are made and (iii) the amount to be deducted from each Certified Payment. The project team may make alternative arrangement to suit their particular term contracts taking into consideration of the circumstances like payment mechanism, funding source, etc. Subject to the project team's determination on the repayment arrangement, normally, the deduction shall be made in 12 instalments equal to 1/12 of the advance payment within the 12-month period. Unless otherwise approved by DEVB, the 12-month period for repayment should not be adjusted shorter than 6 months or longer than 18 months. The project team should ensure that the advance payment will be deducted in full from interim payment(s).

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Clause No.	Details
[D32]#	**(9) The *Service Manager* may adjust the amount to be deducted from each Certified Payment and/or the number of Certified Payments to which deductions may be made under sub-clause (6) to ensure that the Advance Payment is fully accounted for and offset against the Certified Payments by the end of the Deduction Period. If at any time the *Service Manager* is of the opinion that notwithstanding the adjustments, it is unlikely that the Advance Payment can be fully accounted for and offset against the Certified Payments by the end of the Deduction Period, the *Service Manager* immediately notifies the *Employer** and the *Contractor*. In such event, the *Employer** is entitled to offset the whole or part of such Advance Payment not yet deducted from Certified Payments against monies due to the *Contractor* under this contract or any other contract between the *Employer** and the *Contractor*.**

Amendment to Core Clause 93.1

93.1	**Add**	**At the end** **"but after deduction of the balance of any Advance Payment not yet deducted from the Certified Payments."**

Amendment to *additional conditions of contract*

ACC Clause D8(2) should be deleted and replaced by the following:

"Notwithstanding any other provisions in this contract, compliance with sub-clause (1) of this Clause shall be a condition precedent to the *Contractor*'s entitlement to any payment or any further payment as the case may be under this contract provided that this condition precedent does not apply to the advance payment under Clause [D32]# of these *additional conditions of contract*."

Amendment to Appendix [ ]# to *additional conditions of contract – Security of Payment (SOP) Provision*[1]

The following provision is inserted after SOP Clause 2(2)(a) in Appendix [ ]# to Clause [ ]# of the *additional conditions of contract* on Security of Payment Provisions:

"the date, which is the *starting date*, for the advance payment under Clause [D32]# of the *additional conditions of contract*."

*** Use "*Employer*" for NEC3 TSC and "*Client*" for NEC4 TSC**
 # Insert as appropriate.

[1] **In the SOP provisions set out in Annex C of DEVB TC(W) 6/2021, for NEC 3 TSC, SOP Clause 2(2)(b) has to be deleted if the advance payment under term contracts promulgated in DEVB's memos of 5.6.2020 and 5.3.2021 is not adopted. A new SOP Clause 2(2)(b) should be included in NEC 3 TSCs adopting advance payment mechanism promulgated in this memo.**

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Appendix to the *additional conditions of contract*

Notwithstanding any other provision of this contract, for the purpose of Clause [D32]# of the *additional conditions of contract*, the Estimated Average Annual Expenditure shall be determined as follows:-

Version A

[*Note: The definition of "Estimated Average Annual Expenditure" in Version A is drafted based on the sample format of Grand Summary of the Schedule of Percentages (attached at Annex A) where the "Total Value for Tender Assessment" is expressed in monetary value. Amendments should be made to suit the requirements of different term contracts and to match with the pricing document adopted in the contract.*]

"Estimated Average Annual Expenditure" is an amount equal to the Total Value for Tender Assessment (excluding contingency sums and provisional sums) divided by the number of years in the *service period*, where

(i) Total Value for Tender Assessment (excluding contingency sums and provisional sums) is [the amount set out in the Grand Summary of the Schedule of Percentages opposite "Subtotal of above (A)"] after correction in accordance with relevant correction rules specified in the tender documents if any; and**

(ii) for the purpose of Clause [x]# of the *additional conditions of contract*, the number of years in the service period is [ ][1]

Version B

[*Note: The definition of "Estimated Average Annual Expenditure" in Version B is drafted based on the sample format of the Schedule of Percentages (attached at Annex B) where the "Total Values for Tender Assessment" is the summation of the Value of Tender Assessment in column (7) of the Schedule of Percentages. Amendments should be made to suit the requirements of different term contracts and to match with the pricing document adopted in the contract.*]

"Estimated Average Annual Expenditure" is an amount equal to the Estimated Total Expenditure (excluding contingency sums and provisional sums) multiplied by (1 + the Total Value for Tender Assessment (excluding contingency sums and provisional sums) (in percentage) divided by the Total Weighting Factor (excluding contingency sums and provisional sums)) divided by the number of years in the *service period*, where

(i) Estimated Total Expenditure (excluding contingency sums and provisional sums) is [ ]#;

(ii) Total Value for Tender Assessment (excluding contingency sums and provisional sums) (in percentage) is [the amount set out in column [7] # of the Schedule of Percentages opposite "Total Value for Tender Assessment

[1] The amount to be inserted shall be determined based on the number of months in the *service period* (an incomplete month shall not be taken into account) divided by 12 and the result shall be rounded to nearest 0.5 year.

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(excluding contingency sums and provisional sums)"] after correction in accordance with relevant correction rules specified in the tender documents if any;**

(iii) Total Weighting Factor (excluding contingency sums and provisional sums) is [ ][1]; and

(iv) for the purpose of Clause [x]# of the *additional conditions of contract*, the number of years in the *service period* is [ ][2]

 # Insert as appropriate

**** Revise as appropriate**

[1] The amount set out in column [6] of the Schedule of Percentages opposite "Total Value for Tender Assessment (excluding contingency sums and provisional sums)" shall be inserted.

[2] The amount to be inserted shall be determined based on the number of months in the *service period* (an incomplete month shall not be taken into account) divided by 12 and the result shall be rounded to nearest 0.5 year.

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Annex A – Sample Format of Grand Summary of the Schedule of Percentages in NEC TSC Contracts

Page	Description	Value for Tender Assessment
…	…	
	Sub-total of above (A) [To be calculated based on the weighting factors and the *contract percentages*, the estimated total expenditure but excluding the estimated contingency sums and provisional sums]	
	Contingency sum for Defined Cost for compensation events* (B)	*Insert by project office before tender invitation*
	Contingency sum for Fee for compensation events* (C) = (B) x *fee percentage* inserted by the tenderer in the Contract Data Part two	
	Provisional sum for price adjustment for inflation under Secondary Option X1* (D)	*Insert by project office before tender invitation*
	Sub-total of all contingency sums and provisional sums above* (E) = (B) + (C) + (D)	
	Forecast total of the Prices / Total Value for Tender Assessment (TVTA)** for tender assessment purpose*** (F) = (A) + (E)	To be completed by the *Service Manager* designate after receipt of tender

*Remarks:

(1) The contingency sums, provisional sums and forecast total of the Prices** / Total Value for Tender Assessment (TVTA)** shall not form part of this contract. Please refer to Clause [A7] of the *additional conditions of contract*.

**Delete as appropriate

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Annex B – Sample Format of Schedule of Percentages (NEC form)

Schedule of Percentages

Section No. of Schedule of Rates in Price List	Item No. of Schedule of Rates in Price List	Section Percentage (whole number) (%)	Adjustment Percentage (whole number) (%)	*contract percentage* (whole number) (%)	Weighting factor	Value for Tender Assessment (%)
(1)	(2)	(3)	(4)	(5)	(6)	(7)
SECTION 01			*PLUS / MINUS %			
SECTION 02						
SECTION 03						
SECTION 04						
SECTION 05						
SECTION 07						
SECTION 08						
SECTION 09						
SECTION 10						
SECTION 11						
SECTION 12						
SECTION 14						
SECTION 16						
SECTION 19						
SECTION 22						
SECTION 24						
SECTION 26						
SECTION 27						
SECTION 28						
Total Value for Tender Assessment excluding contingency sums and provisional sums **						(A)
Contingency sum for Defined Cost for compensation events**					(B)	
Contingency sum for Fee for compensation events** (C) = (B) × *fee percentage*						(C)
Provisional sum for price adjustment for inflation**						(D)
Total Value for Tender Assessment (TVTA) ** (E) = (A) + (C) + (D)					1.0000	(E)

* Delete whichever is inapplicable

** The contingency sums, provisional sums and Total Value for Tender Assessment (TVTA) shall not form part of this contract. Please refer to Clause [A7] of the *additional conditions of contract*.

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APPENDIX 5.47G (NOT USED)

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APPENDIX 5.47H (NOT USED)

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APPENDIX 5.47I (NOT USED)

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APPENDIX 5.47J (NOT USED)

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APPENDIX 5.47K (NOT USED)

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APPENDIX 5.47L SAMPLE SCC FOR NEW CONTRACT USING GCC FOR SPECIAL PAYMENT FOR IMPORTED ITEMS FOR CAPITAL WORKS CONTRACTS

SCC [A]

(1) The following shall be inserted after the definition of "Hong Kong" in General Conditions of Contract Clause 1(1):

"Imported Item" means any materials imported from any place outside Hong Kong.

(2) The following shall be inserted after the definition of "Maintenance Period" in General Conditions of Contract Clause 1(1):

"materials" include plants, materials, goods and equipment that form or are intended to form part of the Works but do not include Constructional Plant.

(3) The following shall be inserted after the definition of "Provisional Sum" in General Conditions of Contract Clause 1(1):

"Relevant Imported Item" means an Imported Item which is:

(i) purchased or imported into Hong Kong ahead of time due to supply shortages or logistics disruptions;
(ii) properly and securely stored at a premises in Hong Kong ("Premises") but is not yet due to be delivered by the Contractor to the Site; and
(iii) clearly demarcated from any other materials at the Premises.

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SCC [B]

[Note: Amendments/insertions are underlined for easy reference.]

(1) General Conditions of Contract Clause 78 is deleted and replaced by the following:

"78. (1) The Contractor shall submit to the Engineer at the end of each monthly period (the first of such monthly periods to commence on the date for commencement of the Works) a statement showing:

(a) the estimated contract value of the work done in accordance with the Contract up to the end of such monthly period with sums payable in respect of Nominated Subcontractors listed separately;
(b) a list of materials delivered to the Site for use in the permanent work and their estimated contract value;
(b1) a list of Relevant Imported Items and their estimated contract value;
(c) all further estimated sums which the Contractor considers to be due to him under the Contract,

("Interim Statement").

In this Clause, "estimated contract value" means the value estimated by the Contractor for the work done, materials delivered to the Site or Relevant Imported Items (as the case may be) based on the rates set out in the Contract.

(2) The Interim Statement shall be prepared on a form supplied by and at the expense of the Contractor, and the style and number of copies of the Interim Statement to be submitted shall be determined by the Engineer. The Contractor shall complete the required number of copies of the Interim Statement and deliver them to the Engineer for checking and, if necessary, correction in accordance with Clause 79. One corrected copy shall be returned to the Contractor.

(3) If the Contractor applies for interim payment for a Relevant Imported Item in an Interim Statement, the Contractor shall submit together with the Interim Statement all relevant supporting documents, including but not limited to evidence of purchase or importation of the Relevant Imported Item, evidence of supply shortage or logistic disruptions, the original date agreed by the Engineer for delivery of the Relevant Imported Item to the Site (if applicable), the address of the Premises, and photographs showing the condition of the Relevant Imported Items and the manner in which it is stored."

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SCC [C]

[Note: Amendments/insertions are underlined for easy reference.]

(1) Sub-clause (1) of General Conditions of Contract Clause 79 shall be replaced with the following new sub-clause (1) of General Conditions of Contract Clause 79:

"79. (1) Within 21 days (unless otherwise stated in the Contract) of the date of delivery to the Engineer of the Interim Statement submitted in accordance with Clause 78, the Engineer shall value and certify the sum which he considers to be due, based on the rates in the Contract where appropriate, in respect of the following:

(a) the estimated value of the permanent work executed, and

(b) the estimated value of any Temporary Works or preliminary item for which a separate sum is provided in the Bills of Quantities, and

(c) the estimated value of materials for inclusion in the permanent work, which are not prematurely delivered to and are properly stored on the Site, and

(c1) the estimated value of Relevant Imported Items, and

(d) the estimated sums payable in respect of Nominated Sub-contractors, and

(e) any other estimated sum to which, in the opinion of the Engineer, the Contractor is entitled in accordance with the Contract.

Provided that the total certified sum shall be adjusted by the Engineer to take into account:

(i) the retention of the percentage stated in the Contract until the sum retained reaches the limit of Retention Money stated in the Contract; and

(ii) any adjustment to be made for fluctuations in the cost of labour and materials in accordance with Clause 89.

Provided further that, for the purpose of interim payments:

(A) the value of the materials as referred to in (c) above for use in connection with any item of permanent work priced in the Contract and the value of the Relevant Imported Items referred to in (c1) above shall be determined on the basis of the rate set out in the

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Contract for such work; and

(B) in relation to a Relevant Imported Item referred to in (c1) above, the Engineer shall not value and certify any interim payment unless he is satisfied that the Relevant Imported Item is purchased or imported into Hong Kong ahead of time due to supply shortages or logistics disruptions; properly and securely stored at the Premises but is not yet due to be delivered by the Contractor to the Site; and clearly demarcated from any other materials at the Premises."

(2) The following new sub-clause (1A) of General Conditions of Contract Clause 79 shall be inserted after General Conditions of Contract Clause 79 (1):

"(1A) Within 21 days after the Employer's receipt of the Engineer's certification issued under sub-clause (1) of this Clause, the Employer shall pay to the Contractor the sum certified by the Engineer as due after deducting all previous payments made by the Employer (including previous payments on account, if any), value of materials supplied by the Employer (if any) and any other sum deductible by the Employer under the Contract."

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SCC [D] – Relevant Imported Items

(1) If the Engineer certifies interim payment for any Relevant Imported Item in an interim payment certificate and the total certified sum in the interim payment certificate has been paid by the Employer, the Contractor shall deliver the Relevant Imported Item to the Site within 6 months from the date of payment.

(2) Subject to sub-clause (3), if the Contractor fails to comply with sub-clause (1), without prejudice to any other right or remedy that the Employer may have against the Contractor, the Employer is entitled to deduct the interim payment made by the Employer for that Relevant Imported Item from payments due to the Contractor in 6 equal monthly instalments, or to otherwise recover the amount of interim payment made from the Contractor.

(3) On the expiry or earlier termination of the Contract or the determination of the Contractor's employment for any reason, all interim payments made by the Employer for Relevant Imported Items that are not yet delivered by the Contractor to the Site on the date of expiry or termination of the Contract or determination of the Contractor's employment shall be immediately recoverable by the Employer from the Contractor as a debt.

(4) The Engineer may cease to accept any new application for interim payment for any Relevant Imported Item on giving the Contractor not less than 30 days' written notice in advance. The date on which the cessation takes effect is hereinafter referred to as the "Cessation Date".

(5) With effect from the Cessation Date, the Contractor shall not make, and the Engineer shall not accept, any new application for interim payment for Relevant Imported Item. Notwithstanding the cessation, if an application for interim payment for a Relevant Imported Item is submitted before the Cessation Date, the Engineer shall continue to value and certify interim payment for the Relevant Imported Item in accordance with General Conditions of Contract Clause 79.

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APPENDIX 5.47M AMENDMENTS TO NEC4 ECC OPTION A AND OPTION B CONTRACTS FOR SPECIAL PAYMENT FOR IMPORTED ITEMS FOR CAPITAL WORKS CONTRACTS

Amendment to NEC Clauses

For use with NEC4 ECC Option A

NEC Clause	Amendments	
11.2	Add	the following as a new sub-clause after sub-clause #[(32)] of NEC Clause 11.2 "(33) Imported Items are Plant and Materials imported from any place outside Hong Kong."
50.2A	Add	a new clause 50.2A after clause 50.2 as follows: "The *Contractor* may in an application for payment referred to in clause 50.2 apply for payment of Plant and Materials which • are not individually itemised in the Activity Schedule, • have not been included in any completed work, and • are not prematurely delivered to and not improperly stored on the Site ("Relevant Plant and Materials"). The *Contractor* shall clearly identify in the application for payment the amount claimed and the item in the Activity Schedule to which the Relevant Plant and Materials will be included ("Relevant Item"), and submit to the *Project Manager* all relevant supporting documents. If on the assessment date to which the application for payment relate, the *Project Manager* is satisfied that the Relevant Plant and Materials • are not individually itemised in the Activity Schedule, • have not been included in any completed work, and • are not prematurely delivered to and not improperly stored on the Site,

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NEC Clause	Amendments	
		the *Project Manager* may assess the amount due to the *Contractor* for such Relevant Plant and Materials by reference to rates and lump sums of the Relevant Item. ("Advance Payment for Plant and Materials")."
50.2B	Add	a new clause 50.2B after clause 50.2A as follows: "The *Contractor* may in an application for payment referred to in clause 50.2 apply for payment of an Imported Item which is • purchased or imported into Hong Kong ahead of time due to supply shortages or logistics disruptions; • properly and securely stored at a premises in Hong Kong ("Premises") but is not yet due to be delivered by the *Contractor* to the Site; and • clearly demarcated from any other materials at the Premises. ("Relevant Imported Item") The *Contractor* shall clearly identify in the application for payment of the Relevant Imported Item the amount claimed and the item in the Activity Schedule to which the Relevant Imported Item relate ("Related Item") and submit to the *Project Manager* all relevant supporting documents, including but not limited to evidence of purchase or importation of the Relevant Imported Item, evidence of supply shortage or logistic disruptions, the original date agreed by the *Project Manager* for delivery of the Relevant Imported Item to the Site (if applicable), the address of the Premises, and photographs showing the condition of the Relevant Imported Item and the manner in which it is stored. If on the assessment date to which the application for payment relate, the *Project Manager* is satisfied that the Relevant Imported Item is • purchased or imported into Hong Kong ahead of time due to supply shortages or logistics disruptions; • properly and securely stored at the Premises but is not yet due to be delivered by the *Contractor* to the Site; and • clearly demarcated from any other materials at the Premises, the *Project Manager* shall assess the amount due to the *Contractor* for such Relevant Imported Item by reference to the rates and lump sums of the Related Item. ("Special Payment")."
50.3	Replace	the whole clause 50.3 by the following new clause 50.3:

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NEC Clause	Amendments	
		"If the *Contractor* submits an application for payment before the assessment date, the amount due at the assessment date is the amount calculated in the manner below based on the *Project Manager*'s assessment for each of the following items: • the Price for Work Done to Date, • plus Advance Payment for Plant and Materials, • plus Special Payment, • plus other amounts to be paid to the *Contractor*, • in respect of any item included in the assessment of the Price for Work Done to Date, less Advance Payment for Plant and Materials and Special Payment already made in respect of that item, if any, • less amounts to be paid by or retained from or deducted from the *Contractor*. The actual amount due shall be certified by the *Project Manager* and paid in accordance with clause 51."

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Amendment to NEC Clauses

For use with NEC4 ECC Option B

NEC Clause	**Amendments**	
11.2	Add	the following as a new sub-clause after sub-clause #[(33)] of NEC Clause 11.2 "(34) Imported Items are Plant and Materials imported from any place outside Hong Kong."
50.2A	Add	a new clause 50.2A after clause 50.2 as follows: "The *Contractor* may in an application for payment referred to in clause 50.2 apply for payment of Plant and Materials which • are not individually itemised in the Bills of Quantities, • have not been included in any completed work, and • are not prematurely delivered to and not improperly stored on the Site ("Relevant Plant and Materials"). The *Contractor* shall clearly identify in the application for payment the amount claimed and the item in the Bills of Quantities to which the Relevant Plant and Materials will be included ("Relevant Item"), and submit to the *Project Manager* all relevant supporting documents. If on the assessment date to which the application for payment relate, the *Project Manager* is satisfied that the Relevant Plant and Materials • are not individually itemised in the Bills of Quantities, • have not been included in any completed work, and • are not prematurely delivered to and not improperly stored on the Site, the *Project Manager* may assess the amount due to the *Contractor* for such Relevant Plant and Materials by reference to rates and lump sums of the Relevant Item. ("Advance Payment for Plant and Materials")."

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NEC Clause	Amendments	
50.2B	Add	a new clause 50.2B after clause 50.2A as follows: "The *Contractor* may in an application for payment referred to in clause 50.2 apply for payment of an Imported Item which is • purchased or imported into Hong Kong ahead of time due to supply shortages or logistics disruptions; • properly and securely stored at a premises in Hong Kong ("Premises") but is not yet due to be delivered by the *Contractor* to the Site; and • clearly demarcated from any other materials at the Premises. ("Relevant Imported Item") The *Contractor* shall clearly identify in the application for payment of the Relevant Imported Item the amount claimed and the item in the Bills of Quantities to which the Relevant Imported Item relate ("Related Item") and submit to the *Project Manager* all relevant supporting documents, including but not limited to evidence of purchase or importation of the Relevant Imported Item, evidence of supply shortage or logistic disruptions, the original date agreed by the *Project Manager* for delivery of the Relevant Imported Item to the Site (if applicable), the address of the Premises, and photographs showing the condition of the Relevant Imported Item and the manner in which it is stored. If on the assessment date to which the application for payment relate, the *Project Manager* is satisfied that the Relevant Imported Item is • purchased or imported into Hong Kong ahead of time due to supply shortages or logistics disruptions; • properly and securely stored at the Premises but is not yet due to be delivered by the *Contractor* to the Site; and • clearly demarcated from any other materials at the Premises, the *Project Manager* shall assess the amount due to the *Contractor* for such Relevant Imported Item by reference to the rates and lump sums of the Related Item. ("Special Payment")."
50.3	Replace	the whole clause 50.3 by the following new clause 50.3:

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NEC Clause	Amendments	
		"If the *Contractor* submits an application for payment before the assessment date, the amount due at the assessment date is the amount calculated in the manner below based on the *Project Manager*'s assessment for each of the following items: • the Price for Work Done to Date, • plus Advance Payment for Plant and Materials, • plus Special Payment, • plus other amounts to be paid to the *Contractor*, • in respect of any item included in the assessment of the Price for Work Done to Date, less Advance Payment for Plant and Materials and Special Payment already made in respect of that item, if any, • less amounts to be paid by or retained from or deducted from the *Contractor*. The actual amount due shall be certified by the *Project Manager* and paid in accordance with clause 51."

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additional conditions of contract

For use with NEC4 ECC Option A and Option B

Clause D[XX] of the *additional conditions of contract*

D[XX] (1) If the *Project Manager* certifies Special Payment for any Relevant Imported Item in a *Project Manager*'s certificate and the amount certified as due to the *Contractor* in the *Project Manager*'s certificate has been paid by the *Client*, the *Contractor* shall deliver the Relevant Imported Item to the Site within 6 months from the date of payment. Relevant Imported Items

(2) Subject to sub-clause (3), if the *Contractor* fails to comply with sub-clause (1), then, without prejudice to any other right or remedy that the *Client* may have against the *Contractor*, the *Client* is entitled to deduct the Special Payment made by the *Client* for that Relevant Imported Item from payments due to the *Contractor* in 6 equal monthly instalments, or to otherwise recover the amount of the Special Payment made from the *Contractor*.

(3) On the expiry or earlier termination of the contract for any reason, all Special Payments made by the *Client* for Relevant Imported Items that are not yet delivered by the *Contractor* to the Site on the date of expiry or termination of the contract shall be immediately recoverable by the *Client* from the *Contractor* as a debt.

(4) The *Project Manager* may cease to accept any new application for Special Payment for Relevant Imported Items on giving the Contractor not less than 30 days' written notice in advance. The date on which the cessation takes effect is hereinafter referred to as the "Cessation Date".

(5) With effect from the Cessation Date, the *Contractor* shall not make, and the *Project Manager* shall not accept, any new application for Special Payment. Notwithstanding the cessation, the *Project Manager* shall continue to process an application for Special Payment that is submitted before the Cessation Date and for which an assessment has not yet been made by the *Project Manager* under NEC Clause 50.

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APPENDIX 5.47N (NOT USED)

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APPENDIX 5.47O (NOT USED)

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APPENDIX 5.47P (NOT USED)

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APPENDIX 5.47Q SPECIAL CONDITIONS OF CONTRACT FOR GCC TERM CONTRACTS

[SCC for new contract using GCC for Term Contracts for Civil Engineering Works]

SCC [A]

(1) The following shall be inserted after the definition of "Hong Kong" in General Conditions of Contract Clause 1(1):

"Imported Item" means any materials imported from any place outside Hong Kong.

(2) The following shall be inserted after the definition of "Maintenance Period" in General Conditions of Contract Clause 1(1):

"materials" include plants, materials, goods and equipment that form or are intended to form part of the Works but do not include Constructional Plant.

(3) The following shall be inserted after the definition of "Provisional Sum" in General Conditions of Contract Clause 1(1):

""Relevant Imported Item" means an Imported Item which is:

(i) purchased or imported into Hong Kong ahead of time due to supply shortages or logistics disruptions;

(ii) properly and securely stored at a premises in Hong Kong ("Premises") but is not yet due to be delivered by the Contractor to the Site; and

(iii) clearly demarcated from any other materials at the Premises."

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SCC [B]

[Note: Amendments/insertions are underlined for easy reference.]

(1) General Conditions of Contract Clause 79 is deleted and replaced by the following:

"79.(1) During the progress of any Works the Contractor may submit a statement requesting an interim payment for such Works in respect of the following:

(a) the estimated value of the work carried out valued in accordance with the Contract; and

(b) the estimated value of materials for inclusion in the permanent work, based on the rates in the Contract for such work, and not being prematurely delivered to and being properly stored on the Site of such Works;

(b1) the estimated value of Relevant Imported Items for inclusion in the permanent work, based on the rates in the Contract for such work; and

(c) any other estimated sum to which the Contractor considers to be due to him under the Contract.

("Interim Statement")

(1A)If the Contractor applies for interim payment for a Relevant Imported Item in an Interim Statement, the Contractor shall submit together with the Interim Statement all relevant supporting documents, including but not limited to evidence of purchase or importation of the Relevant Imported Item, evidence of supply shortage or logistic disruptions, the original date agreed by the Engineer for delivery of the Relevant Imported Item to the Site (if applicable), the address of the Premises, and photographs showing the condition of the Relevant Imported Item and the manner in which it is stored.

(2) On receipt of the Interim Statement and any supporting documents, the Engineer shall within a reasonable time check and, if necessary, correct the Interim Statement and shall certify the sum which he considers to be due for payment provided that:

(a) each interim payment for work and materials as specified in paragraphs (a), (b) and (b1) of sub-clause (1) of this Clause shall not exceed the percentage stated in the Appendix to the Form of Tender of the estimated value of the same; and

(b) the statement shall be dated not less than 30 days from the date of issue of the Works Order or from the date of any previous successful request for an interim payment on such Works; and

(c) the amount payable under any Works Order shall not be less than the minimum amount for interim payments given in the Appendix to the Form of Tender; and

(d) in relation to a Relevant Imported Item referred to in paragraph (b1) of sub-clause (1) above, the Engineer shall not certify any interim

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payment unless he is satisfied that the Relevant Imported Item is purchased or imported into Hong Kong ahead of time due to supply shortages or logistics disruptions; properly and securely stored at the Premises but is not yet due to be delivered by the Contractor to the Site; and clearly demarcated from any other materials at the Premises.

Provided further that, the total certified sum shall be adjusted by the Engineer to take into account:

(i) any previous payment made by the Employer to the Contractor; and

(ii) any other sum deductible by the Employer under the Contract.

(3) Nothing in this Clause shall prevent the Engineer from issuing a certificate at any time for any sum if in the opinion of the Engineer it is desirable to do so."

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SCC [C]

[Note: Amendments/insertions are underlined for easy reference.]

(1) General Conditions of Contract Clause 80 is deleted and replaced by the following:

"80. The Interim Statement referred to in Clause 79 shall be prepared on a form supplied by and at the expense of the Contractor and the style and number of copies shall be as the Engineer shall determine. The Contractor shall complete the required number of copies of the Interim Statement and deliver them to the Engineer for checking and, if necessary, correction in accordance with Clause 79. One corrected copy shall be returned to the Contractor."

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SCC [D] – Relevant Imported Items

(1) If the Engineer certifies interim payment for any Relevant Imported Item in an interim payment certificate and the total certified sum in the interim payment certificate has been paid by the Employer, the Contractor shall deliver the Relevant Imported Item to the Site within 6 months from the date of payment.

(2) Subject to sub-clause (3), if the Contractor fails to comply with sub-clause (1), without prejudice to any other right or remedy that the Employer may have against the Contractor, the Employer is entitled to deduct the interim payment made by the Employer for that Relevant Imported Item from payments due to the Contractor in 6 equal monthly instalments, or to otherwise recover the amount of interim payment made from the Contractor.

(3) On the expiry or earlier termination of the Contract or the determination of the Contractor's employment for any reason, all interim payments made by the Employer for Relevant Imported Items that are not yet delivered by the Contractor to the Site on the date of expiry or termination of the Contract or determination of the Contractor's employment shall be immediately recoverable by the Employer from the Contractor as a debt.

(4) The Engineer may cease to accept any new application for interim payment for any Relevant Imported Item on giving the Contractor not less than 30 days' written notice in advance. The date on which the cessation takes effect is hereinafter referred to as the "Cessation Date".

(5) With effect from the Cessation Date, the Contractor shall not make, and the Engineer shall not accept, any new application for interim payment for Relevant Imported Item. Notwithstanding the cessation, if an application for interim payment for a Relevant Imported Item is submitted before the Cessation Date, the Engineer shall continue to value and certify interim payment for the Relevant Imported Item in accordance with General Conditions of Contract Clause 79.

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APPENDIX 5.47R AMENDMENTS TO NEC CLAUSES AND ADDITIONAL CONDITIONS OF CONTRACT FOR NEW TERM CONTRACT USING NEC4 TSC OPTION A

Amendment to NEC Clauses

For use with NEC4 TSC Option A

NEC Clause	Amendments	
11.2	Add	the following as a new sub-clause after sub-clause #[(31)] of NEC Clause 11.2 "(32) Imported Items are Plant and Materials imported from any place outside Hong Kong."
50.2A	Add	a new clause 50.2A after clause 50.2 as follows: "The *Contractor* may in an application for payment referred to in clause 50.2 apply for payment of Plant and Materials which • are not individually itemised in the Price List, • have not been included in any completed work, and • are not prematurely delivered to and not improperly stored on the Site ("Relevant Plant and Materials"). The *Contractor* shall clearly identify in the application for payment the amount claimed and the item in the Price List to which the Relevant Plant and Materials will be included ("Relevant Item"), and submit to the *Service Manager* all relevant supporting documents. If on the assessment date to which the application for payment relate, the *Service Manager* is satisfied that the Relevant Plant and Materials • are not individually itemised in the Price List, • have not been included in any completed work, and • are not prematurely delivered to and not improperly stored on the Site,

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NEC Clause	Amendments	
		the *Service Manager* may assess the amount due to the *Contractor* for such Relevant Plant and Materials by reference to rates and lump sums of the Relevant Item. ("Advance Payment for Plant and Materials")."
50.2B	Add	a new clause 50.2B after clause 50.2A as follows: "The *Contractor* may in an application for payment referred to in clause 50.2 apply for payment of an Imported Item which is • purchased or imported into Hong Kong ahead of time due to supply shortages or logistics disruptions; • properly and securely stored at a premises in Hong Kong ("Premises") but is not yet due to be delivered by the *Contractor* to the Site; and • clearly demarcated from any other materials at the Premises. ("Relevant Imported Item") The *Contractor* shall clearly identify in the application for payment of the Relevant Imported Item the amount claimed and the item in the Price List to which the Relevant Imported Item relate ("Related Item") and submit to the *Service Manager* all relevant supporting documents, including but not limited to evidence of purchase or importation of the Relevant Imported Item, evidence of supply shortage or logistic disruptions, the original date agreed by the *Service Manager* for delivery of the Relevant Imported Item to the Site (if applicable), the address of the Premises, and photographs showing the condition of the Relevant Imported Item and the manner in which it is stored. If on the assessment date to which the application for payment relate, the *Service Manager* is satisfied that the Relevant Imported Item is • purchased or imported into Hong Kong ahead of time due to supply shortages or logistics disruptions; • properly and securely stored at the Premises but is not yet due to be delivered by the *Contractor* to the Site; and • clearly demarcated from any other materials at the Premises, the *Service Manager* shall assess the amount due to the *Contractor* for such Relevant Imported Item by reference to the rates and lump sums of the Related Item. ("Special Payment")."
50.3	Replace	the whole clause 50.3 by the following new clause 50.3:

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NEC Clause	Amendments	
		"If the *Contractor* submits an application for payment before the assessment date, the amount due at the assessment date is the amount calculated in the manner below based on the *Service Manager*'s assessment for each of the following items: • the Price for Services Provided to Date, • plus Advance Payment for Plant and Materials, • plus Special Payment, • plus other amounts to be paid to the *Contractor*, • in respect of any item included in the assessment of the Price for Services Provided to Date, less Advance Payment for Plant and Materials and Special Payment already made in respect of that item, if any, • less amounts to be paid by or retained from or deducted from the *Contractor*. The actual amount due shall be certified by the *Service Manager* and paid in accordance with clause 51."

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additional conditions of contract

For use with NEC4 TSC Option A

Clause D[XX] of the *additional conditions of contract*

D[XX]	(1)	If the *Service Manager* certifies Special Payment for any Relevant Imported Item in a *Service Manager*'s certificate and the amount certified as due to the *Contractor* in the *Service Manager*'s certificate has been paid by the *Client*, the *Contractor* shall deliver the Relevant Imported Item to the Site within 6 months from the date of payment.	Relevant Imported Items
	(2)	Subject to sub-clause (3), if the *Contractor* fails to comply with sub-clause (1), then, without prejudice to any other right or remedy that the *Client* may have against the *Contractor*, the *Client* is entitled to deduct the Special Payment made by the *Client* for that Relevant Imported Item from payments due to the *Contractor* in 6 equal monthly instalments, or to otherwise recover the amount of the Special Payment made from the *Contractor*.	
	(3)	On the expiry or earlier termination of the contract for any reason, all Special Payments made by the *Client* for Relevant Imported Items that are not yet delivered by the *Contractor* to the Site on the date of expiry or termination of the contract shall be immediately recoverable by the *Client* from the *Contractor* as a debt.	
	(4)	The *Service Manager* may cease to accept any new application for Special Payment for Relevant Imported Items on giving the Contractor not less than 30 days' written notice in advance. The date on which the cessation takes effect is hereinafter referred to as the "Cessation Date".	
	(5)	With effect from the Cessation Date, the *Contractor* shall not make, and the *Service Manager* shall not accept, any new application for Special Payment. Notwithstanding the cessation, the *Service Manager* shall continue to process an application for Special Payment that is submitted before the Cessation Date and for which an assessment has not yet been made by the *Service Manager* under NEC Clause 50.	

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APPENDIX 5.47S (NOT USED) Amd No. 7/2025

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APPENDIX 5.47T (NOT USED) Amd No. 7/2025

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APPENDIX 5.47U (NOT USED) Amd No. 7/2025

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APPENDIX 5.47V (NOT USED) Amd No. 7/2025

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APPENDIX 5.47W (NOT USED) Amd No. 7/2025

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APPENDIX 5.47X (NOT USED) Amd No. 7/2025

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APPENDIX 5.47Y (NOT USED) Amd No. 7/2025

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APPENDIX 5.48 SAMPLE PARTICULAR SPECIFICATION FOR MECHANICAL DUMP TRUCK COVERS

1. (a) All dump trucks (i.e. goods vehicles of gross vehicle weight equal to or more than 16 tonnes, fitted with a dump bed) leaving the Site carrying dusty materials shall be fitted with a mechanical cover in good service condition which covers the dump bed. Such dump truck covers shall comply with the following.

(i) The cover shall be constructed of durable materials and suitable components in good condition. The covering materials shall be effective in preventing dust emissions. The cover shall be power-operated with manual backup. Except in the manual backup mode, the cover shall only be operable inside the driving cabin, if applicable.

(ii) The cover system shall incorporate controls to ensure safety in operation. The cover shall be inoperable unless the vehicle has come to a standstill, and after the hand brake is on. A warning system, consisting of flashing amber lights and audible alarm, shall be activated automatically when the cover is being operated inside the driving cabin. The warning system shall be visible and audible from both inside (by an indicator light or the like if necessary) and outside the driving cabin. A locking system shall be in place to prevent accidental opening of the cover, if applicable.

(iii) The cover shall be able to withstand strong winds under normal circumstances. After the cover to the dump bed is closed, any gap left on the system of enclosure shall be less than 25 mm wide measured in a direction across the gap as far as practicable. Any remaining gap shall be sealed up tightly with suitable materials of sufficient length to bridge across the gap as far as practicable. In addition, the cover shall not accumulate any significant amount of dust or debris which may obstruct its operation. The gross vehicle weight and maximum dimensions of the truck after fitted with the cover and associated accessories shall comply with the relevant legislation.

(b) The Contractor shall be responsible for selecting the design of mechanical cover satisfying the above requirements.

(c) The *Architect/Engineer/Supervising Officer or his Representative shall have the power to:

(i) refuse entry into the Site any dump truck that fails to meet this specification; and

(ii) require any loaded dump truck to unload its contents before leaving the Site if its dump bed and cover is found not to comply with the above requirements after loading.

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Provided always that approval for leaving the Site of a loaded dump truck by the *Architect/Engineer/Supervising Officer or his site supervisory staff shall not relieve the Contractor of his obligation to comply with the relevant legislation, and the Employer shall not be liable for any loss or damage sustained by the Contractor or the truck drivers or truck owners arising from or in connection with any offence committee by the Contractor or the truck drivers or truck owners in relation to transportation of the C&D materials from the Site.

2. Vehicles other than 'dump trucks' carrying dusty materials away from the Site may use means other than mechanical covers to cover their dusty materials, provided that the vehicle shall have properly fitted side boards and tailboards, with the dusty material loaded to a height not exceeding the height of side boards and tailboards, and covered by a tarpaulin or suitably impervious covering materials (as approved by the *Architect/Engineer/Supervising Officer or his Representative) in good condition. The covering shall be properly secured and extended at least 300 mm over the side boards and tailboards before leaving the Site.

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APPENDIX 5.49 NTT ON MECHANICAL DUMP TRUCK COVERS

Clause		Remarks/Guidelines
NTT(x)* (a)	Tenderers' attention is drawn to Particular Specification Clause [ ] on mechanical dump truck covers	This is to be used in Capital Works Contracts with Pay for Safety and Environment Scheme and Term Contracts with Pay for Safety Scheme to be tendered on or after 1 November 2010. *Uses of these clauses are subject to the Project Officer.
(b)	Tenderers should note that there are no separate items in the [*Bills of Quantities/Schedule of Rates] for measurement of use of mechanical dump truck covers and that, in line with the [*General Preambles/Method of Measurement] to the [*Bills of Quantities/Schedule of Rates], the rates in the [*Bills of Quantities/Schedule of Rates] shall cover, inter alia, provision of mechanical covers for dump trucks.	

* Delete or amend as appropriate

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APPENDIX 5.50 TENDER PROVISION (NON-D&B CONTRACTS) ON EMPLOYER'S POWER TO REDUCE THE AMOUNT OF THE CONTINGENCY SUM PRIOR TO AWARD OF CONTRACT

Special Conditions of Tender on Employer's Power to Reduce the Amount of the Contingency Sum prior to Award of Contract

Clause	Remarks/Guidelines
SCT XX Reduction of Contingency Sum (1) Without prejudice to the generality of the other General Conditions of Tender and Special Conditions of Tender, the Employer reserves the right to reduce unilaterally the amount of the Contingency Sum as stated in the [Bills of Quantities][1] by himself giving or requiring the *Engineer / Architect / Maintenance Surveyor designate to give a notification in writing as regards the reduction to a tenderer at any time after determination of the price ranking or overall marks/scores of the tenders in accordance with the evaluation criteria set forth in the tender documents but before award of the Contract. (2) By submitting his tender, a tenderer shall be deemed to have agreed that upon receipt by the tenderer of a notification in writing referred to sub-clause (1) of this Clause: **(a)** the amount of the Contingency Sum as stated in the [Bills of Quantities][1] shall be taken to be reduced accordingly; **(b)** the amount of the tender sum as stated in the Form of Tender and [Bills of Quantities][1] shall be taken to be reduced accordingly to reflect the reduction in the amount of the Contingency Sum under paragraph (a) above;[and][2] (c) the reduction in the amount of the Contingency Sum under paragraph (a) above shall not affect any Provisional Sums specified in the [Bills of Quantities][1] [or the amount of the Adjustment Item; and	1. This SCT shall only be included in a works contract involving Contingency Sum if an officer at D2 rank or above in the Project Office/Works Department is satisfied that the following adoption criterion is met: - The contract is identified in the risk assessment at the pre-tender stage to have highly uncertain risk factors that could lead to an over-estimation of the allowance made in the Contingency Sum for covering such risks. This finding must be properly documented in file. 2. Subject to compliance with the requirements given in paragraph 3 below, this SCT enables the Project Office, in case the original tender sum of the recommended tender exceeds the funding allowed for the contract in the Approved Project Estimate, to unilaterally reduce the Contingency Sum stated in the tender documents and consequentially the tender sum without the need for tender negotiation. The Project Office can then under properly justified circumstances: (i) keep the tender sum of the recommended tender within the funding available and, subject to approval by the relevant tender board, accept the tender without the need to seek additional funding; or (ii) reduce the amount of additional funding required even if after such reduction the tender sum of the recommended tender still exceeds the funding available and additional funding is still required to be sought.

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Clause	Remarks/Guidelines
(d) for the purposes of paragraph (c) above, "Adjustment Item" shall have the meaning given in [Preambles to the Bills of Quantities/Special Conditions of Tender Clause [ ]** and Special Conditions of Contract Clause [ ]**][1], and the amount of which may (where applicable) be revised in accordance with General Conditions of Tender Clause [ ]***][3].	3. In order to exercise this SCT, the Project Office shall have: (a) reviewed the risk assessment made at the pre-tender stage in arriving at the original Contingency Sum; (b) proper justifications that the amount of reduction is genuinely an excessive allowance in the original Contingency Sum; and (c) obtained approval of the Vote Controller.
(3) For the avoidance of doubt, the original tender sum as stated in the Form of Tender and [Bills of Quantities][1] will, subject to correction (where applicable) in accordance with General Conditions of Tender Clause [ ]***, be used for determination of the price ranking or overall marks/scores of the tenders in accordance with the evaluation criteria set forth in the tender documents irrespective of whether or not the Employer has subsequently exercised his right under this Clause to reduce the amount of the Contingency Sum.	4. In conjunction with the use of this SCT, the Form of Tender and the Letter of Acceptance to Successful Tenderer shall be modified as provided in the memo promulgating this SCT ref. DEVB(W) 546/70/01 of *8.8.2011*. Sample letter notifying the tenderer (whose tender is going to be recommended for contract award) of the reduction of the Contingency Sum is also provided in the said memo. 5. This SCT is for use in works contracts other than design and build (D&B) contracts. A GCT is separately provided for D&B contracts in the memo mentioned in paragraph 4 above. Explanatory notes to words in square brackets *1 The Project Office shall determine the appropriate wording to suit the contract/tender documentation arrangements of the contract being tendered.* *[2] To be inserted if the last part of paragraph (c) and the whole of paragraph (d), are deleted (see note 3 below).* *3 The last part of paragraph (c) and the whole of paragraph (d), which are in square brackets, should be deleted if "Adjustment Item" is not allowed in relation to the contract being tendered.* * Delete as appropriate. ** Insert the clause numbers of the Special Conditions of Tender and Special

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Clause	Remarks/Guidelines
	Conditions of Contract respectively on Adjustment Item (applicable to a contract which has adopted an SCT and an SCC dealing with Adjustment Item). *** Insert the clause number of the General Conditions of Tender dealing with correction rules for tender errors (i.e. GCT 11 in DEVB's Library of GCTs, SCTs and NTTs).

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Form of Tender on Employer's Power to Reduce the Amount of the Contingency Sum prior to Award of Contract

FORM OF TENDER
(For capital works contracts other than design-and-build contracts WHICH HAVE ADOPTED SCT XX ON REDUCTION OF COTINGENCY SUM)

THE GOVERNMENT OF THE HONG KONG SPECIAL ADMINISTRATIVE REGION

..... DEPARTMENT

CONTRACT NO. .....

(Title of Contract)

FORM OF TENDER

NOTES :

(1) The Appendix forms part of the Contract.

(2) If the tenderer is a sole proprietorship or a partnership, the name(s) and residential address(es) of the sole proprietor or all the partners shall be given in the spaces provided below.

(3) In all cases, the tenderer must give the number and the expiry date of the business registration certificate here:

Number :

Expiry Date :

[1]To: The Chairman,
Central Tender Board,
Ground Floor, East Wing,
Central Government Offices,
2 Tim Mei Avenue, Tamar, Hong Kong.

Having inspected the Site, examined the Drawings, General Conditions of Contract and Special Conditions of Contract (hereinafter referred to as "the said Conditions"), Specification and [2]Bills of Quantities for the execution of the Works as defined in the Contract, I/we offer to construct, complete and maintain the whole of the said Works in conformity with the said Conditions, Drawings, Specification [3]and Bills of Quantities for the sum of Dollars ..... ($.....) or such sum as may be ascertained in accordance with the said Conditions, Drawings, Specification and Bills of Quantities.

2. I/we agree that, upon receipt by me/us of a notification in writing referred to in sub-clause (1) of Special Conditions of Tender Clause [ ][4] (a copy of which is at the Appendix

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hereto) concerning reduction in the amount of the Contingency Sum, my/our Tender shall be taken to be amended as follows:

(a) the amount of the Contingency Sum as stated in the Bills of Quantities shall be taken to be reduced accordingly; and

(b) the amount of the tender sum as stated in clause 1 of this Form of Tender and the Bills of Quantities shall be taken to be reduced accordingly to reflect the reduction in the amount of the Contingency Sum under paragraph (a) above,

and I/we further agree that the reduction in the amount of the Contingency Sum under paragraph (a) above shall not affect any Provisional Sum specified in the Bills of Quantities [or the amount of the Adjustment Item. For the purposes of this clause 2, "Adjustment Item" shall have the same meaning as given in [5]Preambles to the Bills of Quantities/Special Conditions of Tender Clause [ ][6] (a copy of which is at the Appendix hereto) and Special Conditions of Contract Clause [ ][6], and the amount of which may (where applicable) be revised in accordance with General Conditions of Tender Clause [ ][7] (a copy of which is at the Appendix hereto)][8].

[9]3. If my/our Tender is accepted I/we will when required,

#(a) deposit with the Director of Accounting Services, the Government of the Hong Kong Special Administrative Region, as security for the due performance of the Contract a sum of $....., such deposited sum to be returned to me/us in accordance with the said Conditions.

#(b) with the approval of the Employer obtain the guarantee of a Bank or Insurance Company [to be approved by the Employer] to be jointly and severally bound with me/us in a sum of $..... for the due performance of the Contract under the terms of a Bond in accordance with the said Conditions.

4. I/We agree to abide by this Tender for the period of [10]90 days from the date of expiry fixed for receiving the same and it shall remain binding upon me/us and may be accepted at any time before the expiration of that period.

5. Unless and until the Articles of Agreement is prepared and executed this Tender together with the written acceptance thereof by the Employer subject to the provisions of clause 4 hereof shall constitute a binding Contract between us.

6. I/We understand that the Employer reserves the right to negotiate with any tenderer about the term of the offer and is not bound to accept any tender irrespective of whether the tender is the lowest offer or, where the assessment of the tenders is based on a marking scheme or formula approach, the tender is with the highest overall mark.

NOTES:

1. Where the tenders are to be submitted to a tender board other than the Central Tender Board, type in the name and the address of the tender board in lieu of that of the Central Tender Board.

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2. All references to Bills of Quantities may need to be suitably adjusted where some other forms are used.

3. Replace "and Bills of Quantities" with ", Bills of Quantities and the technical resources and technical proposals submitted in accordance with Clause 3(1)(d) of the General Conditions of Tender" when the tender adopts a marking scheme for use in tender evaluation.

4. Insert the clause number of the Special Conditions of Tender (SCT) dealing with reduction of Contingency Sum. If a tender addendum is issued to amend this SCT clause prior to tender closing, the copy of this SCT clause at the Appendix hereto should also be amended in the same manner by the same tender addendum.

5. Adopt the appropriate wording to suit the contract/tender documentation arrangements of the contract being tendered.

6. Insert the respective clause numbers of the SCT and Special Conditions of Contract (SCC) on Adjustment Item. If a tender addendum is issued to amend this SCT clause prior to tender closing, the copy of this SCT clause at the Appendix hereto should also be amended in the same manner by the same tender addendum.

7. Insert the clause number of the General Conditions of Tender (GCT) dealing with correction rules for tender errors (i.e. GCT 11 in DEVB's Library of GCTs, SCTs and NTTs). If a tender addendum is issued to amend this GCT clause prior to tender closing, the copy of this GCT clause at the Appendix hereto should also be amended in the same manner by the same tender addendum.

8. The part in square brackets should be deleted if "Adjustment Item" is not allowed in relation to the contract being tendered.

9. This item may be deleted if a security is not required.

10. Normally 90 days

#: Tenderer to delete either clause 3(a) or 3(b)

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Notes to Tenderer on Employer's Power to Reduce the Amount of the Contingency Sum prior to Award of Contract

Notes to Tenderer
Clause (XX) Employer's Power to Reduce Contingency Sum

Clause	Remarks/Guidelines
Tenderers' attention is drawn to Special Conditions of Tender Clause [ ] on "Reduction of Contingency Sum".	This is to be used where the Special Conditions of Tender on "Reduction of Contingency Sum" is included.

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APPENDIX 5.51 SAMPLE LETTER FOR NOTIFICATION OF REDUCTION OF CONTINGENCY SUM

Dear Sirs,

(Contract Title)
Reduction of Contingency Sum

Pursuant to sub-clause (1) of Special Conditions of Tender (SCT) XX, I hereby notify you that the Contingency Sum in the amount of $_____ as stated in the [Bills of Quantities][1] is reduced to $_____.

Please note that in accordance with sub-clause (2) of SCT XX, you are deemed to have agreed that:

(1) the amount of the Contingency Sum as stated in the [Bills of Quantities][1] shall be taken to be reduced accordingly; and

(2) the amount of the tender sum as stated in the Form of Tender and [Bills of Quantities][1] shall be taken to be reduced to $_____ to reflect the reduction in the amount of the Contingency Sum under (1) above.

Please also note that the Government is yet to decide on the award of the Contract and nothing in this letter should be construed as either an acceptance or rejection of your tender. The Government is not bound to accept any tender irrespective of whether the tender is the lowest tender or, where the assessment of the tenders is based on a marking scheme or formula approach, the tender has the highest overall mark.

I enclose an acknowledgement letter which you are required to sign and return within two days of receipt of this letter.

Yours faithfully,

.....
(Designation of the Engineer
designate for the Contract)

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ACKNOWLEDGEMENT
(To be signed and returned within two days of receipt of the above letter)

Date …….

To: (Designation of the Engineer designate for the Contract
or Consultant's Project Officer as appropriate)

Dear Sir,

(Contract Title)
Reduction of Contingency Sum

We hereby acknowledge receipt of the notification letter dated ____(date)____ on reduction of the Contingency Sum as stated in the [Bills of Quantities][1] for the above Contract.

Yours faithfully,

…….
(Authorized Signature with Company chop)

Name of Company ……..

1 The Project Office shall determine the appropriate wording to suit the contract/tender documentation arrangements of the contract being tendered.

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APPENDIX 5.52 TENDER PROVISION (D&B CONTRACTS) ON EMPLOYER'S POWER TO REDUCE THE AMOUNT OF THE CONTINGENCY SUM PRIOR TO AWARD OF CONTRACT

General Conditions of Tender Clause for Design and Build Contracts

Clause	Remarks/Guidelines
GCT XX Reduction of Contingency Sum (1) Without prejudice to the generality of the other General Conditions of Tender and Special Conditions of Tender, the Employer reserves the right to reduce unilaterally the amount of the Contingency Sum as stated in the Employer's Requirements by himself giving or requiring the Supervising Officer designate to give a notification in writing as regards the reduction to a tenderer at any time after determination of the overall scores of the tenders in accordance with the evaluation criteria set forth in the tender documents but before award of the Contract. (2) By submitting his tender, a tenderer shall be deemed to have agreed that upon receipt by the tenderer of a notification in writing referred to sub-clause (1) of this Clause: (a) the amount of the Contingency Sum as stated in the Employer's Requirements shall be taken to be reduced accordingly; (b) the amount of the tender sum as stated in the Form of Tender and Contractor's Proposals shall be taken to be reduced accordingly to reflect the reduction in the amount of the Contingency Sum under paragraph (a) above;[and][1] (c) the reduction in the amount of the Contingency Sum under paragraph (a) above shall not affect any Provisional Sums specified in the Employer's Requirements [or the amount of the Adjustment Item; and (d) for the purposes of paragraph (c) above, "Adjustment Item" shall	1. Subject to compliance with the requirements given in paragraph 2 below, this GCT enables the Project Office, in case the original tender sum of the recommended tender exceeds the funding allowed for the contract in the Approved Project Estimate, to unilaterally reduce the Contingency Sum stated in the tender documents and consequentially the tender sum without the need for tender negotiation. The Project Office can then under properly justified circumstances: (i) keep the tender sum of the recommended tender within the funding available and, subject to approval by the relevant tender board, accept the tender without the need to seek additional funding; or (ii) reduce the amount of additional funding required even if after such reduction the tender sum of the recommended tender still exceeds the funding available and additional funding is still required to be sought. 2. In order to exercise this GCT, the Project Office shall have: (a) reviewed the risk assessment made at the pre-tender stage in arriving at the original Contingency Sum; (b) proper justifications that the amount of reduction is genuinely an excessive allowance in the original Contingency Sum; and (c) obtained approval of the Vote Controller. 3. In conjunction with the use of this GCT, the Form of Tender and the Letter of

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Clause	Remarks/Guidelines
have the meaning given in [the Employer's Requirements/Special Conditions of Tender Clause [ ]* and Special Conditions of Contract Clause [ ]*], and the amount of which may (where applicable) be revised in accordance with General Conditions of Tender Clause [ ]**] [2].	Acceptance of Successful Tender shall be modified with reference to those amendments provided for non-D&B contracts in the memo promulgating this GCT ref. DEVB(W) 546/70/01 of 8.8.2011. The letter notifying the tenderer (whose tender is going to be recommended for contract award) of the reduction of the Contingency Sum should also follow the sample provided in the said memo with necessary amendments made to suit D&B contracts.
(3) For the avoidance of doubt, the original tender sum as stated in the Form of Tender and Contractor's Proposals will, subject to correction (where applicable) in accordance with General Conditions of Tender Clause [ ]**, be used for determination of the overall scores of the tenders in accordance with the evaluation criteria set forth in the tender documents irrespective of whether or not the Employer has subsequently exercised his right under this Clause to reduce the amount of the Contingency Sum.	Explanatory notes to words in square brackets *1 To be inserted if the last part of paragraph (c) and the whole of paragraph (d), are deleted (see note 2 below).* *2 The last part of paragraph (c) and the whole of paragraph (d), which are in square brackets, should be deleted if "Adjustment Item" is not allowed in relation to the contract being tendered.* * Insert the clause numbers of the Special Conditions of Tender and Special Conditions of Contract respectively on Adjustment Item (applicable to a contract which has adopted an SCT and an SCC dealing with Adjustment Item). ** Insert the clause number of the General Conditions of Tender dealing with correction rules for tender errors.

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APPENDIX 5.53 (NOT USED)

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APPENDIX 5.54 (NOT USED)

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APPENDIX 5.55 GUIDELINES ON ADOPTION OF SCC ON INTERIM PAYMENT FOR OFF-SITE PREFABRICATION ITEM

1. In order to enhance the cash flow of contractors, we promote wider adoption of the SCC in public works contracts. Project officers should pay attention to the requirements as stipulated in SCC. In gist, making interim payment(s) for major off-Site prefabrication item / equipment ("the item") are subject to the following preconditions, including

(i) maintenance of an effective bond by Contractor,

(ii) Contractor's undertaking of arrangement and all the costs and expenditure incurred by the Engineer's Representative in connection with his visit to off-Site manufacture / fabrication / assembly yards for verification on Contractor's entitlement on interim payment(s),

(iii) clear proof that the item has met Contract requirements,

(iv) clear identification of the item on whose order it is held and its destination,

(v) shipping documents (if by sea),

(vi) clear proof of Contractor's ownership of the item, and

(vii) if applicable, insurance against loss or damage for the full value of the item under a policy protecting the interests of Employer and Contractor during the period from transfer of property in the item to the Contractor until it is delivered to the Works.

2. Works Departments are required to incorporate the SCC into contracts satisfying the following criteria:-

(i) Project officer anticipates that an item [1] under the Contract is likely to be prefabricated off-Site (e.g. bridge deck, steel truss and E&M equipment[2]); and

(ii) The estimated total value of a single type of off-Site prefabrication item is not less than $1.4 million or 0.3% of pre-tender estimate (PTE) of the Contract, whichever is the greater.

3. The above requirements in paragraph 2 may be waived for a particular contract, where justified, with the approval of an officer at D2 or above rank.

4. Notwithstanding the requirement in paragraph 2(ii), when it is desirable, the project officer may still incorporate the SCC for smaller value of the off-Site prefabrication item having regard to the PTE.

Development Bureau
July 2012

[1] Item should be completed in off-Site manufacture / fabrication / assembly yards and no considerable assembly work is required on Site. Item may not be considered if its identification cannot be easily proved (e.g. typical precast concrete kerbs, precast pipes, electrical cables, bus-ducts and other more generic items and manufactured products).

[2] E&M equipment referred to may mean
(i) Heat Pump; (ii) Chiller; (iii) Air-handling units; (iv) Pumpset (including fire pump) ;
(v) Motor Control Centre (vi) Generator; (vii)Transformer; (viii) Switchboard; (ix) Centrifuge;
(x) Filter Press; (xi) Air Blower; (xii) Traffic Control and Surveillance System; and (xiii) Boiler.

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APPENDIX 5.56 SPACE ENTITLEMENT OF EACH GRADE/RANK OF RSS
(Ref: Staff Space Standard promulgated by Government Property Agency)

Grade/Rank of RSS of Consultant-Managed Projects		Equivalent Directorate/Grade/Rank of Civil Service		Space Entitlement (m^2)
Professional Staff	Principal Resident Engineer	Directorate D2		19.0
	Chief Resident Engineer	Directorate D1		19.0
	Senior Resident Engineer	Engineer	Senior Engineer	10.8
	Resident Engineer		Engineer	8.7
	Assistant Resident Engineer		Assistant Engineer	6.1
	Resident Architect	Architect	Architect	8.7
Technical Inspectorate	Resident Senior Inspector of Works	Inspector of Works	Senior Inspector of Works	6.9
	Resident Inspector of Works		Inspector of Works	4.1
	Resident Assistant Inspector of Works		Assistant Inspector of Works	4.1
	Resident Clerk of Works	Clerk of Works	Clerk of Works	4.1
	Resident Assistant Clerk of Works		Assistant Clerk of Works	2.8
Supervisory Staff	Resident Works Supervisor I	Works Supervisor	Works Supervisor I	2.0
	Resident Works Supervisor II		Works Supervisor II	2.0
Engineering Survey Staff	Senior Resident Land Surveyor	Land Surveyor	Senior Land Surveyor	10.8
	Resident Land Surveyor		Land Surveyor	8.7
	Resident Principal Survey Officer (Engineering)	Survey Officer	Principal Survey Officer	7.5
	Resident Senior Survey Officer (Engineering)		Senior Survey Officer	7.5
	Resident Survey Officer (Engineering)		Survey Officer	6.0
	Resident Survey Officer Trainee (Engineering)		Survey Officer Trainee	6.0
Quantity Survey Staff	Resident Senior Quantity Surveyor	Quantity Surveyor	Senior Quantity Surveyor	10.8
	Resident Quantity Surveyor		Quantity Surveyor	8.7
	Assistant Resident Quantity Surveyor		Assistant Quantity Surveyor	6.1
	Resident Senior Survey Officer (Quantity)	Survey Officer	Senior Survey Officer	7.5
	Resident Survey Officer (Quantity)		Survey Officer	6.0

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Grade/Rank of RSS of Consultant-Managed Projects		Equivalent Directorate/Grade/Rank of Civil Service		Space Entitlement (m^2)
	Resident Survey Officer Trainee (Quantity)		Survey Officer Trainee	6.0
Landscape Architectural Staff	Senior Resident Landscape Architect	Landscape Architect	Senior Landscape Architect	10.8
	Resident Landscape Architect		Landscape Architect	8.7
	Assistant Resident Landscape Officer		Assistant Landscape Officer	6.1
	Resident Senior Field Officer	Field Officer	Senior Field Officer	5.8
	Field Officer I		Field Officer I	4.4
	Field Officer II		Field Officer II	4.4
Technical Staff	Resident Principal Technical Officer (Civil)	Technical Officer	Principal Technical Officer	7.5
	Resident Senior Technical Officer (Civil)		Senior Technical Officer	7.5
	Resident Technical Officer (Civil)		Technical Officer	6.0
	Resident Technical Officer Trainee (Civil)		Technical Officer Trainee	6.0
	Resident Technical Officer (Laboratory)		Technical Officer	6.0
Clerical Staff	Resident Clerical Officer	Clerical Officer	Clerical Officer	4.4
	Resident Assistant Clerical Officer		Assistant Clerical Officer	4.4
	Resident Labour Relations Officer		Assistant Clerical Officer	4.4
	Resident Clerical Assistant	Clerical Assistant	Clerical Assistant	4.1

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APPENDIX 5.57 SAMPLE CHECKLIST FOR SETTING CONTRACT PERIOD FOR MAJOR PUBLIC WORKS CONTRACTS

Department: _____ Date: _____
Contract No.: _____
Contract Title:: _____

A. Comparison with Reference Contracts

	Pretender Estimate	Proposed Contract Period: (months)	Contract Form
This contract			

Reference Contracts	Awarded Contract Sum:	Final Contract Sum	Original Contract Period: (months)	Actual / Latest Contract Period: (months)	Comparison Table in Annex
1.					
2.					
3.					

Remarks: Please refer to the Gantt Chart showing the breakdown of major works activities for details.

B. Contract Period - Time allowance for major works activities

√ / X	**Activities**	**Time allowance**
☐	Permits application	months
☐	Authorities' vetting and approval of submissions	months
☐	Critical construction activities	months
☐	Working period due to traffic / environment / other constraints	months
☐	Interfacing works by utility undertakings / others	months
☐	Testing and commissioning / defect rectification	months
☐	Other specific time-critical tasks: Please state: _____	months

C. Project Period in LegCo Submission

√ / X	**Project information**	**Time allowance**
☐	Project period stated in LegCo submission: From _____ to _____	months
☐	Programme contingency for Extension of Time (at least 2 months per year)	months
☐	Delay by other parties, e.g. site possession, interfacing works, etc	months
☐	Delay by the contractors, e.g. material and plant delivery, resources, etc	months
☐	Variation for change in design / additional works / unforeseen site conditions	months
☐	Inclement weather	months
☐	Other time allowance for employer's risks. Please state: _____	months
☐	For project with multiple contracts, check if project period stated in LegCo submission (e.g. PWSC paper) will be extended due to this contract? If yes, please state extended project completion date: _____	

D. Endorsement

Prepared by: (Professional)	Checked by: (Senior Professional)	Endorsed by: (D1 rank officer)
Date:	Date:	Date:

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Guideline for Completing Checklist For Setting Contract Period for Major Public Works Contracts

1. This checklist is intended to give a summary of time allowance for critical activities and programme contingencies for a major public works contract of a Cat A project under public works programme. It is not only intended to provide a structured and aligned approach to assist project officers in devising the overall contract / project period but also enable the project leaders to take a quick check on the reasonableness of the time for construction.

2. The checklist is designed for major capital works contracts. Maintenance term contracts, service contracts, works contract under Cat D project and other entrusted and subvented works contracts are not applicable.

3. Project officers could add / delete items in Parts B and C of the checklist to suit particular circumstances of the contract.

4. The planned works programme in the form of a Gantt Chart shall be enclosed with the checklist.

5. For **Part A**, a systematic comparison with relevant and comparable past contracts is useful in assessing the reasonableness of the planned contract period. The comparison tables, which compare the contract forms, scope and quantity of works, complexity, site constraints and other peculiarities, etc. of the proposed contract with the reference contracts, shall be included in the annexes.

6. For **Part B**, given some major works activities may be carried out simultaneously, the overall contract period is not necessarily the sum of time allowance for the major works activities in contract period as stated in the checklist

7. For **Part C**, the programme contingency for Extension of Time means the float between project period stated in Legislative Council (LegCo) submission and the contract period. As agreed in Works Policies Coordination Committee, a programme contingency of at least 2 months per year shall be allowed in the project period for public works projects. If the proposed works contract is one of the multiple works contracts under a public works project, the project officers shall check whether the project period stated in the LegCo submission will be expired due to this contract. If affirmative, the extended project completion date shall be stated.

8. For **Part D**, project officers shall complete the checklist and seek D1 officer's endorsement prior to inviting tender.

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APPENDIX 5.58 Specifications for Enhanced Cleansing Measures for Concrete Delivery Vehicles at Construction Sites

The following enhanced measures shall be adopted for construction sites of government projects and public housing projects (except for the construction sites with small and/or congested areas rendering the provision of the enhanced measures not practicable, e.g. road maintenance works, roadside slope works, local waterworks and local drainage improvement works, etc.) which source concrete deliveries from Concrete Batching Plants:

(a) In addition to the use of high pressure water jets under the Air Pollution (Construction Dust) Regulation – Part III – General Control Requirements for Site Boundary & Entrance, CCTV shall be provided for surveillance monitoring of the washed vehicles. If necessary, manual hosing by designated labourer[1] shall be supplemented to ensure thorough removal of dusty materials from the body and wheels of the concrete delivery vehicles before departing from the construction site.

(b) A vehicle stopping device (e.g. a barrier gate) shall be provided within the site boundary and operated by designated labourer to ensure sufficient time for cleansing of concrete delivery vehicles and dripping or drying of excess wash water. The concrete delivery vehicles shall not be allowed to leave the construction site until the entire washing and dripping or drying processes have been completed.

(c) A slurry water handling system, usually in the form of U-channel or cut-off drain, shall be operated to intercept the wash water from the concrete delivery vehicle cleansing process to prevent it from flowing outside the construction site.

[1] The designated labourer is a worker responsible for vehicle cleansing in the frontline. He/she should be trained to comprehend the parts of the vehicle body that are often found with dust and concrete residues and a typical cleansing cycle that he/she should adopt as far as practicable in each cleansing exercise.

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APPENDIX 5.59A SCC Clause for Public Works Contracts in GCC Form

SCC [X] Admission of Contractor Personnel to Government Premises

(1) For purposes of the Contract, "Government" shall mean the Government of the Hong Kong Special Administrative Region.

(2) Notwithstanding any other provision of the Contract, upon request of the Employer made at any time and from time to time, the Contractor shall submit to the Employer a list containing information specified in sub-clause (3) of this Clause relating to the following persons who are to enter into any indoor premises owned or occupied by the Government ("Government Premises") for the purpose of the Contract:

(a) an employee of the Contractor;

(b) an agent of the Contractor;

(c) a sub-contractor of the Contractor; and

(d) an employee of the agent or sub-contractor of the Contractor.

(the persons referred to in paragraphs (a) to (d) above are collectively referred to as "Relevant Personnel").

(3) The list shall contain the following information of a Relevant Personnel:

(a) names;

(b) post;

(c) staff identity card number;

(d) telephone number;

(e) relationship with the Contractor; and

(f) any other information which the Employer may reasonably require.

(4) The Contractor shall ensure that while any of the Relevant Personnel is on the Government Premises, they shall observe the Government's rules, regulations, guidelines and code of practice which are from time to time applicable to the Contractor's execution of all or any part of the Works at the Government Premises.

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(5) The Contractor shall ensure that:

(a) all Relevant Personnel who are natural persons (other than an Excepted Personnel defined in sub-clause (7) of this Clause) have received at least the first dose of COVID-19 vaccine (or the latest required number of doses as specified by the Government from time to time for the Government's employees entering buildings and offices of the Government for work-related purposes); and

(b) each Relevant Personnel who is a natural person (other than an Excepted Personnel) presents his or her vaccination record in such form as required by the Employer for inspection and verification by any person authorised by the Employer to do so whenever such Relevant Personnel enters any Government Premises and upon request by the Employer's authorised person.

(6) The Contractor shall maintain a register of vaccination status of the Relevant Personnel and update the register at such intervals as prescribed by the Employer. The Contractor shall submit the register to the Employer for inspection upon the latter's request from time to time.

(7) If a Relevant Personnel is medically unfit to receive COVID-19 vaccine, the Contractor shall obtain from him or her a valid medical certificate certifying the medical reasons for not receiving the vaccine. The Contractor shall within [xx][1] days from the commencement of the Contract, submit to the Employer a list of names of all Relevant Personnel who are so certified to be unfit for vaccination due to medical conditions ("Excepted Personnel"). The Contractor shall submit to the Employer an updated list of Excepted Personnel at such intervals as specified by the Employer.

(8) The Contractor shall ensure that each Excepted Personnel applies to the Employer for a special pass ("SP") and submit to the Employer the medical certificate referred to in sub-clause (7) and all other documents required by it to process the application.

(9) The Employer will (i) refuse to admit an Excepted Personnel or other Relevant Personnel to a Government Premises, or (ii) evict such person from a Government Premises if:

(a) in the case of an Exempted Personnel, he or she is unable to produce a valid SP to the person authorised by the Employer to inspect the document; or

(b) in the case of other Relevant Personnel, he or she is unable to produce a valid vaccination record in such form as required by the Employer to a person authorised by the Employer to inspect the record.

[1] Project officers to insert the number of days as appropriate.

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(10) The Contractor shall obtain from all Relevant Personnel (including Excepted Personnel) consent to disclose and/or submit to the Employer information related to him or her as referred to in this Clause.

(11) The Contractor acknowledges and agrees that:

(a) the Government may at any time vary unilaterally the entry requirements (including any vaccination requirements) to any Government Premises;

(b) it will comply with the guidelines and/or directions issued by the Employer from time to time on entry requirements to the Government Premises.

(12) Without prejudice to any other provision of the Contract, if the Contractor fails to observe any provision of this Clause or if any Excepted Personnel or other Relevant Personnel is refused entry to or evicted from any Government Premises, such failure, refusal or eviction will be taken into account in compiling any report on the Contractor's performance referred to in the Contractor Management Handbook promulgated by the Development Bureau of the Government.

(13) Without prejudice to any other provision of the Contract, the Contractor shall indemnify and keep indemnified the Employer against all losses, claims, costs, demands and expenses that may arise out of or in consequence of any breach of this Special Condition of Contract.

(14) For the purpose of this clause, a medical certificate will only be regarded as valid if:

(a) it is issued by a medical officer of the Government or Hospital Authority, or a private medical practitioner who is a registered medical practitioner within the meaning of the Medical Registration Ordinance (Cap. 161); and

(b) it contains the full name of a Relevant Personnel, the assessments/recommendations of the medical officer/practitioner, the issue date and such other information required by the Employer from time to time.

(15) Nothing in this Clause shall derogate from any requirements under the Prevention and Control of Disease Ordinance (Cap. 599) (including its subsidiary legislation) and any other legislation applicable to the Contractor's performance of its obligations under the Contract.

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APPENDIX 5.59B ACC Clause for Public Works Contracts in NEC3 Form

ACC [X] Admission of Contractor Personnel to Government Premises

(1) For purposes of this contract, this contract, "Government" shall mean the Government of the Hong Kong Special Administrative Region.

(2) Notwithstanding any other provision of this contract, upon request of the *Employer* made at any time and from time to time, the *Contractor* shall submit to the *Employer* a list containing information specified in sub-clause (3) of this Clause relating to the following persons who are to enter into any indoor premises owned or occupied by the Government ("Government Premises") for the purpose of this contract:

(a) an employee of the *Contractor*;

(b) an agent of the *Contractor;*

(c) a sub-contractor of the *Contractor*; and

(d) an employee of the agent or sub-contractor of the *Contractor.*

(the persons referred to in paragraphs (a) to (d) above are collectively referred to as "Relevant Personnel").

(3) The list shall contain the following information of a Relevant Personnel:

(a) names;

(b) post;

(c) staff identity card number;

(d) telephone number;

(e) relationship with the *Contractor*; and

(f) any other information which the *Employer* may reasonably require.

(4) The *Contractor* shall ensure that while any of the Relevant Personnel is on the Government Premises, they shall observe the Government's rules, regulations, guidelines and code of practice which are from time to time applicable to the *Contractor*'s execution of all or any part of the [*works/service*][1] at the Government Premises.

[1] Use "*works*" for ECC and "*service*" for TSC.

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(5) The *Contractor* shall ensure that:

(a) all Relevant Personnel who are natural persons (other than an Excepted Personnel defined in sub-clause (7) of this Clause) have received at least the first dose of COVID-19 vaccine (or the latest required number of doses as specified by the Government from time to time for the Government's employees entering buildings and offices of the Government for work-related purposes); and

(b) each Relevant Personnel who is a natural person (other than an Excepted Personnel) presents his or her vaccination record in such form as required by the *Employer* for inspection and verification by any person authorised by the *Employer* to do so whenever such Relevant Personnel enters any Government Premises and upon request by the *Employer*'s authorised person.

(6) The *Contractor* shall maintain a register of vaccination status of the Relevant Personnel and update the register at such intervals as prescribed by the *Employer*. The *Contractor* shall submit the register to the *Employer* for inspection upon the latter's request from time to time.

(7) If a Relevant Personnel is medically unfit to receive COVID-19 vaccine, the *Contractor* shall obtain from him or her a valid medical certificate certifying the medical reasons for not receiving the vaccine. The *Contractor* shall within [xx][2] days of the Contract Date, submit to the *Employer* a list of names of all Relevant Personnel who are so certified to be unfit for vaccination due to medical conditions ("Excepted Personnel"). The *Contractor* shall submit to the *Employer* an updated list of Excepted Personnel at such intervals as specified by the *Employer*.

(8) The *Contractor* shall ensure that each Excepted Personnel applies to the *Employer* for a special pass ("SP") and submit to the *Employer* the medical certificate referred to in sub-clause (7) and all other documents required by it to process the application.

(9) The *Employer* will (i) refuse to admit an Excepted Personnel or other Relevant Personnel to a Government Premises, or (ii) evict such person from a Government Premises if:

(a) in the case of an Exempted Personnel, he or she is unable to produce a valid SP to the person authorised by the *Employer* to inspect the document; or

(b) in the case of other Relevant Personnel, he or she is unable to produce a valid vaccination record in such form as required by the *Employer* to a person authorised by the *Employer* to inspect the record.

[2] Project officers to insert the number of days as appropriate.

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(10) The *Contractor* shall obtain from all Relevant Personnel (including Excepted Personnel) consent to disclose and/or submit to the *Employer* information related to him or her as referred to in this Clause.

(11) The *Contractor* acknowledges and agrees that:

(a) The Government may at any time vary unilaterally the entry requirements (including any vaccination requirements) to any Government Premises;

(b) it will comply with the guidelines and/or directions issued by the *Employer* from time to time on entry requirements to the Government Premises.

(12) Without prejudice to any other provision of this contract, if the *Contractor* fails to observe any provision of this Clause or if any Excepted Personnel or other Relevant Personnel is refused entry to or evicted from any Government Premises, such failure, refusal or eviction will be taken into account in compiling any report on the *Contractor*'s performance referred to in the Contractor Management Handbook promulgated by the Development Bureau of the Government.

(13) Without prejudice to any other provision of this contract, the *Contractor* shall indemnify and keep indemnified the *Employer* against all losses, claims, costs, demands and expenses that may arise out of or in consequence of any breach of these *additional conditions of contract*.

(14) For the purpose of this clause, a medical certificate will only be regarded as valid if:

(a) it is issued by a medical officer of the Government or Hospital Authority, or a private medical practitioner who is a registered medical practitioner within the meaning of the Medical Registration Ordinance (Cap. 161); and

(b) it contains the full name of a Relevant Personnel, the assessments/recommendations of the medical officer/practitioner, the issue date and such other information required by the *Employer* from time to time.

(15) Nothing in this Clause shall derogate from any requirements under the Prevention and Control of Disease Ordinance (Cap. 599) (including its subsidiary legislation) and any other legislation applicable to the *Contractor*'s performance of its obligations under this contract.

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APPENDIX 5.59C ACC Clause for Public Works Contracts in NEC4 Form

ACC [X] Admission of Contractor Personnel to Government Premises

(1) For purposes of the contract, "Government" shall mean the Government of the Hong Kong Special Administrative Region.

(2) Notwithstanding any other provision of the contract, upon request of the *Client* made at any time and from time to time, the *Contractor* shall submit to the *Client* a list containing information specified in sub-clause (3) of this Clause relating to the following persons who are to enter into any indoor premises owned or occupied by the Government ("Government Premises") for the purpose of the contract:

(a) an employee of the *Contractor*;

(b) an agent of the *Contractor;*

(c) a sub-contractor of the *Contractor*; and

(d) an employee of the agent or sub-contractor of the *Contractor.*

(the persons referred to in paragraphs (a) to (d) above are collectively referred to as "Relevant Personnel").

(3) The list shall contain the following information of a Relevant Personnel:

(a) names;

(b) post;

(c) staff identity card number;

(d) telephone number;

(e) relationship with the *Contractor*; and

(f) any other information which the *Client* may reasonably require.

(4) The *Contractor* shall ensure that while any of the Relevant Personnel is on the Government Premises, they shall observe the Government's rules, regulations, guidelines and code of practice which are from time to time applicable to the *Contractor*'s execution of all or any part of the [*works/service*][1] at the Government Premises.

[1] Use "*works*" for ECC and "*service*" for TSC.

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(5) The *Contractor* shall ensure that:

(a) all Relevant Personnel who are natural persons (other than an Excepted Personnel defined in sub-clause (7) of this Clause) have received at least the first dose of COVID-19 vaccine (or the latest required number of doses as specified by the Government from time to time for the Government's employees entering buildings and offices of the Government for work-related purposes); and

(b) each Relevant Personnel who is a natural person (other than an Excepted Personnel) presents his or her vaccination record in such form as required by the *Client* for inspection and verification by any person authorised by the *Client* to do so whenever such Relevant Personnel enters any Government Premises and upon request by the *Client*'s authorised person.

(6) The *Contractor* shall maintain a register of vaccination status of the Relevant Personnel and update the register at such intervals as prescribed by the *Client*. The *Contractor* shall submit the register to the *Client* for inspection upon the latter's request from time to time.

(7) If a Relevant Personnel is medically unfit to receive COVID-19 vaccine, the *Contractor* shall obtain from him or her a valid medical certificate certifying the medical reasons for not receiving the vaccine. The *Contractor* shall within [xx][2] days of the Contract Date, submit to the *Client* a list of names of all Relevant Personnel who are so certified to be unfit for vaccination due to medical conditions ("Excepted Personnel"). The *Contractor* shall submit to the *Client* an updated list of Excepted Personnel at such intervals as specified by the *Client*.

(8) The *Contractor* shall ensure that each Excepted Personnel applies to the *Client* for a special pass ("SP") and submit to the *Client* the medical certificate referred to in sub-clause (7) and all other documents required by it to process the application.

(9) The *Client* will (i) refuse to admit an Excepted Personnel or other Relevant Personnel to a Government Premises, or (ii) evict such person from a Government Premises if:

(a) in the case of an Exempted Personnel, he or she is unable to produce a valid SP to the person authorised by the *Client* to inspect the document; or

(a) in the case of other Relevant Personnel, he or she is unable to produce a valid vaccination record in such form as required by the *Client* to a person authorised by the *Client* to inspect the record.

[2] Project officers to insert the number of days as appropriate.

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(10) The *Contractor* shall obtain from all Relevant Personnel (including Excepted Personnel) consent to disclose and/or submit to the *Client* information related to him or her as referred to in this Clause.

(11) The *Contractor* acknowledges and agrees that:

(a) the Government may at any time vary unilaterally the entry requirements (including any vaccination requirements) to any Government Premises;

(b) it will comply with the guidelines and/or directions issued by the *Client* from time to time on entry requirements to the Government Premises.

(12) Without prejudice to any other provision of the contract, if the *Contractor* fails to observe any provision of this Clause or if any Excepted Personnel or other Relevant Personnel is refused entry to or evicted from any Government Premises, such failure, refusal or eviction will be taken into account in compiling any report on the *Contractor*'s performance referred to in the Contractor Management Handbook promulgated by the Development Bureau of the Government.

(13) Without prejudice to any other provision of the contract, the *Contractor* shall indemnify and keep indemnified the *Client* against all losses, claims, costs, demands and expenses that may arise out of or in consequence of any breach of these *additional conditions of contract*.

(14) For the purpose of this clause, a medical certificate will only be regarded as valid if:

(a) it is issued by a medical officer of the Government or Hospital Authority, or a private medical practitioner who is a registered medical practitioner within the meaning of the Medical Registration Ordinance (Cap. 161); and

(b) it contains the full name of a Relevant Personnel, the assessments/recommendations of the medical officer/practitioner, the issue date and such other information required by the *Client* from time to time.

(15) Nothing in this Clause shall derogate from any requirements under the Prevention and Control of Disease Ordinance (Cap. 599) (including its subsidiary legislation) and any other legislation applicable to the *Contractor*'s performance of its obligations under the contract.

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APPENDIX 5.59D SCE Clause for Consultancies in GCE Form

SCE [X] Admission of Consultants Personnel to Government Premises

(1) Notwithstanding any other provision of the Agreement, upon request of the Employer made at any time and from time to time, the Consultants shall submit to the Employer a list containing information specified in sub-clause (2) of this Clause relating to the following persons who are to enter into any indoor premises owned or occupied by the Government ("Government Premises") for the purpose of the Agreement:

(a) an employee of the Consultants;

(b) an agent of the Consultants;

(c) a sub-consultant of the Consultants; and

(d) an employee of the agent or sub-consultant of the Consultants.

(the persons referred to in paragraphs (a) to (d) above are collectively referred to as "Relevant Personnel").

(2) The list shall contain the following information of a Relevant Personnel:

(a) names;

(b) post;

(c) staff identity card number;

(d) telephone number;

(e) relationship with the Consultants; and

(f) any other information which the Employer may reasonably require.

(3) The Consultants shall ensure that while any of the Relevant Personnel is on the Government Premises, they shall observe the Government's rules, regulations, guidelines and code of practice which are from time to time applicable to the Consultants' execution of all or any part of the services at the Government Premises.

(4) The Consultants shall ensure that:

(a) all Relevant Personnel who are natural persons (other than an Excepted Personnel defined in sub-clause (6) of this Clause) have received at least the first dose of COVID-19 vaccine (or the latest required number of doses as specified by the Government from time to time for the Government's employees entering buildings and offices of the Government for work-related purposes); and

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(b) each Relevant Personnel who is a natural person (other than an Excepted Personnel) presents his or her vaccination record in such form as required by the Employer for inspection and verification by any person authorised by the Employer to do so whenever such Relevant Personnel enters any Government Premises and upon request by the Employer's authorised person.

(5) The Consultants shall maintain a register of vaccination status of the Relevant Personnel and update the register at such intervals as prescribed by the Employer. The Consultants shall submit the register to the Employer for inspection upon the latter's request from time to time.

(6) If a Relevant Personnel is medically unfit to receive COVID-19 vaccine, the Consultants shall obtain from him or her a valid medical certificate certifying the medical reasons for not receiving the vaccine. The Consultants shall within [xx][1] days from the commencement of the Agreement, submit to the Employer a list of names of all Relevant Personnel who are so certified to be unfit for vaccination due to medical conditions ("Excepted Personnel"). The Consultants shall submit to the Employer an updated list of Excepted Personnel at such intervals as specified by the Employer.

(7) The Consultants shall ensure that each Excepted Personnel applies to the Employer for a special pass ("SP") and submit to the Employer the medical certificate referred to in sub-clause (6) and all other documents required by it to process the application.

(8) The Employer will (i) refuse to admit an Excepted Personnel or other Relevant Personnel to a Government Premises, or (ii) evict such person from a Government Premises if:

(a) in the case of an Exempted Personnel, he or she is unable to produce a valid SP to the person authorised by the Employer to inspect the document; or

(b) in the case of other Relevant Personnel, he or she is unable to produce a valid vaccination record in such form as required by the Employer to a person authorised by the Employer to inspect the record.

(9) The Consultants shall obtain from all Relevant Personnel (including Excepted Personnel) consent to disclose and/or submit to the Employer information related to him or her as referred to in this Clause.

(10) The Consultants acknowledge and agree that:

(a) the Government may at any time vary unilaterally the entry requirements (including any vaccination requirements) to any Government Premises;

[1] Project officers to insert the number of days as appropriate.

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(b) it will comply with the guidelines and/or directions issued by the Employer from time to time on entry requirements to the Government Premises.

(11) Without prejudice to any other provision of the Agreement, if the Consultants fail to observe any provision of this Clause or if any Excepted Personnel or other Relevant Personnel is refused entry to or evicted from any Government Premises, such failure, refusal or eviction will be taken into account in compiling any report on the Consultants' performance referred to in the Development Bureau Technical Circular (Works) No. 3/2016.

(12) Without prejudice to any other provision of the Agreement, the Consultants shall indemnify and keep indemnified the Employer against all losses, claims, costs, demands and expenses that may arise out of or in consequence of any breach of this Special Condition of Employment.

(13) For the purpose of this clause, a medical certificate will only be regarded as valid if:

(a) it is issued by a medical officer of the Government or Hospital Authority, or a private medical practitioner who is a registered medical practitioner within the meaning of the Medical Registration Ordinance (Cap. 161); and

(b) it contains the full name of a Relevant Personnel, the assessments/recommendations of the medical officer/practitioner, the issue date and such other information required by the Employer from time to time.

(14) Nothing in this Clause shall derogate from any requirements under the Prevention and Control of Disease Ordinance (Cap. 599) (including its subsidiary legislation) and any other legislation applicable to the Consultants' performance of its obligations under the Agreement.

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APPENDIX 5.59E ACC Clause for Consultancies in NEC3 PSC Form

ACC B[X] Admission of *Consultant* Personnel to Government Premises

(A) Notwithstanding any other provision of this contract, upon request of the Employer made at any time and from time to time, the *Consultant* shall submit to the Employer a list containing information specified in sub-clause (B) of this Clause relating to the following persons who are to enter into any indoor premises owned or occupied by the Government ("Government Premises") for the purpose of this contract:

(a) an employee of the *Consultant*;

(b) an agent of the *Consultant*;

(c) a Subconsultant of the *Consultant*; and

(d) an employee of the agent or Subconsultant of the *Consultant.*

(the persons referred to in paragraphs (a) to (d) above are collectively referred to as "Relevant Personnel").

(B) The list shall contain the following information of a Relevant Personnel:

(a) names;

(b) post;

(c) staff identity card number;

(d) telephone number;

(e) relationship with the *Consultant*; and

(f) any other information which the Employer may reasonably require.

(C) The *Consultant* shall ensure that while any of the Relevant Personnel is on the Government Premises, they shall observe the Government's rules, regulations, guidelines and code of practice which are from time to time applicable to the *Consultant's* execution of all or any part of the services at the Government Premises.

(D) The *Consultant* shall ensure that:

(a) all Relevant Personnel who are natural persons (other than an Excepted Personnel defined in sub-clause (F) of this Clause) have received at least the first dose of COVID-19 vaccine (or the latest required number of doses as specified by the Government from time to time for the Government's employees entering buildings and offices of the Government for work-related purposes); and

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(b) each Relevant Personnel who is a natural person (other than an Excepted Personnel) presents his or her vaccination record in such form as required by the Employer for inspection and verification by any person authorised by the Employer to do so whenever such Relevant Personnel enters any Government Premises and upon request by the Employer's authorised person.

(E) The *Consultant* shall maintain a register of vaccination status of the Relevant Personnel and update the register at such intervals as prescribed by the Employer. The *Consultant* shall submit the register to the Employer for inspection upon the latter's request from time to time.

(F) If a Relevant Personnel is medically unfit to receive COVID-19 vaccine, the *Consultant* shall obtain from him or her a valid medical certificate certifying the medical reasons for not receiving the vaccine. The *Consultant* shall within [xx][1] days of the Contract Date, submit to the Employer a list of names of all Relevant Personnel who are so certified to be unfit for vaccination due to medical conditions ("Excepted Personnel"). The *Consultant* shall submit to the Employer an updated list of Excepted Personnel at such intervals as specified by the Employer.

(G) The *Consultant* shall ensure that each Excepted Personnel applies to the Employer for a special pass ("SP") and submit to the Employer the medical certificate referred to in sub-clause (F) and all other documents required by it to process the application.

(H) The Employer will (i) refuse to admit an Excepted Personnel or other Relevant Personnel to a Government Premises, or (ii) evict such person from a Government Premises if:

(a) in the case of an Exempted Personnel, he or she is unable to produce a valid SP to the person authorised by the Employer to inspect the document; or

(b) in the case of other Relevant Personnel, he or she is unable to produce a valid vaccination record in such form as required by the Employer to a person authorised by the Employer to inspect the record.

(I) The *Consultant* shall obtain from all Relevant Personnel (including Excepted Personnel) consent to disclose and/or submit to the Employer information related to him or her as referred to in this Clause.

(J) The *Consultant* acknowledges and agrees that:

(a) the Government may at any time vary unilaterally the entry requirements (including any vaccination requirements) to any Government Premises;

(b) it will comply with the guidelines and/or directions issued by the Employer from time to time on entry requirements to the Government Premises.

[1] Project officers to insert the number of days as appropriate.

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(K) Without prejudice to any other provision of this contract, if the *Consultant* fails to observe any provision of this Clause or if any Excepted Personnel or other Relevant Personnel is refused entry to or evicted from any Government Premises, such failure, refusal or eviction will be taken into account in compiling any report on the *Consultant's* performance referred to in the Development Bureau Technical Circular (Works) No. 3/2016.

(L) Without prejudice to any other provision of this contract, the *Consultant* shall indemnify and keep indemnified the Employer against all losses, claims, costs, demands and expenses that may arise out of or in consequence of any breach of these *additional conditions of contract.*

(M) For the purpose of this clause, a medical certificate will only be regarded as valid if:

(a) it is issued by a medical officer of the Government or Hospital Authority, or a private medical practitioner who is a registered medical practitioner within the meaning of the Medical Registration Ordinance (Cap. 161); and

(b) it contains the full name of a Relevant Personnel, the assessments/recommendations of the medical officer/practitioner, the issue date and such other information required by the Employer from time to time.

(N) Nothing in this Clause shall derogate from any requirements under the Prevention and Control of Disease Ordinance (Cap. 599) (including its subsidiary legislation) and any other legislation applicable to the *Consultant's* performance of its obligations under this contract.

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APPENDIX 5.60A SCC Clause for Public Works Contracts in GCC Form

SCC [X] Vaccine Pass Requirements on the Site

(A) For purposes of the Contract, "Government" shall mean the Government of the Hong Kong Special Administrative Region.

(B) Notwithstanding any other provision of the Contract, upon request of the Employer made at any time and from time to time, the Contractor shall submit to the Employer a list containing information specified in sub-clause (3) of this Clause relating to the following persons who are to enter into the Site for the purpose of the Contract:

(a) an employee of the Contractor;

(b) an agent of the Contractor;

(c) a sub-contractor of the Contractor; and

(d) an employee of the agent or sub-contractor of the Contractor.

(the persons referred to in paragraphs (a) to (d) above are collectively referred to as "Relevant Contractor Personnel").

(C) The list shall contain the following information of a Relevant Contractor Personnel:

(a) name;

(b) post;

(c) staff identity card number;

(d) telephone number;

(e) relationship with the Contractor; and

(f) any other information which the Employer may reasonably require.

(D) The Contractor shall ensure that:

(a) each person working in or entering the Site who is a natural person (including the Relevant Contractor Personnel but excluding a person who is medically unsuitable for vaccination as certified in a valid Exemption Certificate within the meaning of this clause ("Exempted Person")) has been vaccinated according to the prevailing vaccination requirements (including but not limited to the dosage of vaccine and implementation date) set for all persons aged 12 or above entering or remaining on the specified premises under the Vaccine Pass arrangement as promulgated by the Government from time to time via the COVID-19 thematic website on Vaccine Pass (https://www.coronavirus.gov.hk/eng/vaccine-pass.html); and

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(b) whenever a person (other than an Exempted Person) works in or enters the Site, the person presents his or her vaccination record in such form as required by the Employer for inspection and verification by any person authorised by the Contractor to do so.

(E) The Contractor shall maintain a register of vaccination status of the Relevant Contractor Personnel and update the register at such intervals as prescribed by the Employer. The Contractor shall submit the register to the Employer for inspection upon the latter's request from time to time.

(F) If a Relevant Contractor Personnel is medically unsuitable to receive COVID-19 vaccine, the Contractor shall obtain from him or her a valid Exemption Certificate. The Contractor shall maintain and update a list of names of all Relevant Contractor Personnel to whom Exemption Certificates have been issued ("Excepted Contractor Personnel"). The Contractor shall submit an updated list of the Excepted Contractor Personnel to the Employer for inspection from time to time upon the latter's request.

(G) The Contractor shall (i) refuse to admit a person to the Site, or (ii) evict such person from the Site if:

(a) in the case of a person who claims to be medically unsuitable for vaccination, he or she is unable to present a valid Exemption Certificate to the person authorised by the Contractor to inspect the document; or

(b) in the case of any other person, he or she is unable to present a valid vaccination record meeting the vaccination requirements stated in sub-clause (4) of this Clause in such form as required by the Employer to a person authorised by the Contractor to inspect the record.

(H) The Contractor shall obtain from all Relevant Contractor Personnel (including an Excepted Contractor Personnel) consent to disclose and/or submit to the Employer information related to him or her as referred to in this Clause.

(I) The Contractor acknowledges and agrees that:

(a) the Employer may at any time vary unilaterally the entry requirements (including any vaccination requirements) to the Site;

(b) it will comply with the guidelines and/or directions issued by the Employer from time to time on entry requirements to the Site.

(J) Without prejudice to any other provision of the Contract, if the Contractor fails to observe any provision of this Clause, such failure will be taken into account in compiling any report on the Contractor's performance referred to in the Contractor Management Handbook promulgated by the Development Bureau of the Government.

(K) Without prejudice to any other provision of the Contract, the Contractor shall indemnify and keep indemnified the Employer against all losses, claims, costs, demands and expenses that may arise out of or in consequence of any breach of this Special Condition of Contract.

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(L) For the purpose of this Clause, a "valid Exemption Certificate" means a medical certificate:

(a) issued by a medical officer of the Government or Hospital Authority, or a private medical practitioner who is a registered medical practitioner within the meaning of the Medical Registration Ordinance (Cap. 161), certifying that a person is medically unsuitable for receiving the COVID-19 vaccine; and

(b) containing the full name of the person referred to in paragraph (a), the assessments/recommendations of the medical officer/practitioner in respect of the person, the issue date and such other information required by the Employer from time to time.

(M) Nothing in this Clause shall derogate from any requirements under the Prevention and Control of Disease Ordinance (Cap. 599) (including its subsidiary legislation) and any other legislation applicable to the Contractor's performance of its obligations under the Contract.

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APPENDIX 5.60B ACC Clause for Public Works Contracts in NEC3 Form

ACC [X] Vaccine Pass Requirements on the Site

(1) For purposes of this contract, "Government" shall mean the Government of the Hong Kong Special Administrative Region.

(2) Notwithstanding any other provision of this contract, upon request of the *Employer* made at any time and from time to time, the *Contractor* shall submit to the *Employer* a list containing information specified in sub-clause (3) of this Clause relating to the following persons who are to enter into the Site for the purpose of this contract:

(a) an employee of the *Contractor*;

(b) an agent of the *Contractor*;

(c) a subcontractor of the *Contractor*; and

(d) an employee of the agent or subcontractor of the *Contractor*.

(the persons referred to in paragraphs (a) to (d) above are collectively referred to as "Relevant Contractor Personnel").

(3) The list shall contain the following information of a Relevant Contractor Personnel:

(a) name;

(b) post;

(c) staff identity card number;

(d) telephone number;

(e) relationship with the *Contractor*; and

(f) any other information which the *Employer* may reasonably require.

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(4) The *Contractor* shall ensure that:

(a) each person working in or entering the Site who is a natural person (including the Relevant Contractor Personnel but excluding a person who is medically unsuitable for vaccination as certified in a valid Exemption Certificate within the meaning of this clause ("Exempted Person")) has been vaccinated according to the prevailing vaccination requirements (including but not limited to the dosage of vaccine and implementation date) set for all persons aged 12 or above entering or remaining on the specified premises under the Vaccine Pass arrangement as promulgated by the Government from time to time via the COVID-19 thematic website on Vaccine Pass (https://www.coronavirus.gov.hk/eng/vaccine-pass.html); and

(b) whenever a person (other than an Exempted Person) works in or enters the Site, the person presents his or her vaccination record in such form as required by the *Employer* for inspection and verification by any person authorised by the *Contractor* to do so.

(5) The *Contractor* shall maintain a register of vaccination status of the Relevant Contractor Personnel and update the register at such intervals as prescribed by the *Employer*. The *Contractor* shall submit the register to the *Employer* for inspection upon the latter's request from time to time.

(6) If a Relevant Contractor Personnel is medically unsuitable to receive COVID-19 vaccine, the *Contractor* shall obtain from him or her a valid Exemption Certificate. The *Contractor* shall maintain and update a list of names of all Relevant Contractor Personnel to whom Exemption Certificates have been issued ("Excepted Contractor Personnel"). The *Contractor* shall submit an updated list of the Excepted Contractor Personnel to the *Employer* for inspection from time to time upon the latter's request.

(7) The *Contractor* shall (i) refuse to admit a person to the Site, or (ii) evict such person from the Site if:

(a) in the case of a person who claims to be medically unsuitable for vaccination, he or she is unable to present a valid Exemption Certificate to the person authorised by the *Contractor* to inspect the document; or

(b) in the case of any other person, he or she is unable to present a valid vaccination record meeting the vaccination requirements stated in sub-clause (4) of this Clause in such form as required by the *Employer* to a person authorised by the *Contractor* to inspect the record.

(8) The *Contractor* shall obtain from all Relevant Contractor Personnel (including an Excepted Contractor Personnel) consent to disclose and/or submit to the *Employer* information related to him or her as referred to in this Clause.

(9) The *Contractor* acknowledges and agrees that:

(a) the Employer may at any time vary unilaterally the entry requirements (including any vaccination requirements) to the Site;

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(b) it will comply with the guidelines and/or directions issued by the *Employer* from time to time on entry requirements to the Site.

(10) Without prejudice to any other provision of this contract, if the *Contractor* fails to observe any provision of this Clause, such failure will be taken into account in compiling any report on the *Contractor*'s performance referred to in the Contractor Management Handbook promulgated by the Development Bureau of the Government.

(11) Without prejudice to any other provision of this contract, the *Contractor* shall indemnify and keep indemnified the *Employer* against all losses, claims, costs, demands and expenses that may arise out of or in consequence of any breach of these *additional conditions of contract*.

(12) For the purpose of this Clause, a "valid Exemption Certificate" means a medical certificate:

(a) issued by a medical officer of the Government or Hospital Authority, or a private medical practitioner who is a registered medical practitioner within the meaning of the Medical Registration Ordinance (Cap. 161), certifying that a person is medically unsuitable for receiving the COVID-19 vaccine; and

(b) containing the full name of the person referred to in paragraph (a), the assessments/recommendations of the medical officer/practitioner in respect of the person, the issue date and such other information required by the *Employer* from time to time.

(13) Nothing in this Clause shall derogate from any requirements under the Prevention and Control of Disease Ordinance (Cap. 599) (including its subsidiary legislation) and any other legislation applicable to the *Contractor*'s performance of its obligations under this contract.

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APPENDIX 5.60C ACC Clause for Public Works Contracts in NEC4 Form

ACC [X] Vaccine Pass Requirements on the Site

(1) For purposes of the contract, "Government" shall mean the Government of the Hong Kong Special Administrative Region.

(2) Notwithstanding any other provision of the contract, upon request of the *Client* made at any time and from time to time, the *Contractor* shall submit to the *Client* a list containing information specified in sub-clause (3) of this Clause relating to the following persons who are to enter into the Site for the purpose of the contract:

(a) an employee of the *Contractor*;

(b) an agent of the *Contractor*;

(c) a subcontractor of the *Contractor*; and

(d) an employee of the agent or subcontractor of the *Contractor*.

(the persons referred to in paragraphs (a) to (d) above are collectively referred to as "Relevant Contractor Personnel").

(3) The list shall contain the following information of a Relevant Contractor Personnel:

(a) name;

(b) post;

(c) staff identity card number;

(d) telephone number;

(e) relationship with the *Contractor*; and

(f) any other information which the *Client* may reasonably require.

(4) The *Contractor* shall ensure that:

(a) each person working in or entering the Site who is a natural person (including the Relevant Contractor Personnel but excluding a person who is medically unsuitable for vaccination as certified in a valid Exemption Certificate within the meaning of this clause ("Exempted Person")) has been vaccinated according to the prevailing vaccination requirements (including but not limited to the dosage of vaccine and implementation date) set for all persons aged 12 or above entering or remaining on the specified premises under the Vaccine Pass arrangement as promulgated by the Government from time to time via the COVID-19 thematic website on Vaccine Pass (https://www.coronavirus.gov.hk/eng/vaccine-pass.html); and

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(b) whenever a person (other than an Exempted Person) works in or enters the Site, the person presents his or her vaccination record in such form as required by the *Client* for inspection and verification by any person authorised by the *Contractor* to do so.

(5) The *Contractor* shall maintain a register of vaccination status of the Relevant Contractor Personnel and update the register at such intervals as prescribed by the *Client*. The *Contractor* shall submit the register to the *Client* for inspection upon the latter's request from time to time.

(6) If a Relevant Contractor Personnel is medically unsuitable to receive COVID-19 vaccine, the *Contractor* shall obtain from him or her a valid Exemption Certificate. The *Contractor* shall maintain and update a list of names of all Relevant Contractor Personnel to whom Exemption Certificates have been issued ("Excepted Contractor Personnel"). The *Contractor* shall submit an updated list of the Excepted Contractor Personnel to the *Client* for inspection from time to time upon the latter's request.

(7) The *Contractor* shall (i) refuse to admit a person to the Site, or (ii) evict such person from the Site if:

(a) in the case of a person who claims to be medically unsuitable for vaccination, he or she is unable to present a valid Exemption Certificate to the person authorised by the *Contractor* to inspect the document; or

(b) in the case of any other person, he or she is unable to present a valid vaccination record meeting the vaccination requirements stated in sub-clause (4) of this Clause in such form as required by the *Client* to a person authorised by the *Contractor* to inspect the record.

(8) The *Contractor* shall obtain from all Relevant Contractor Personnel (including an Excepted Contractor Personnel) consent to disclose and/or submit to the *Client* information related to him or her as referred to in this Clause.

(9) The *Contractor* acknowledges and agrees that:

(a) the Employer may at any time vary unilaterally the entry requirements (including any vaccination requirements) to the Site;

(b) it will comply with the guidelines and/or directions issued by the *Client* from time to time on entry requirements to the Site.

(10) Without prejudice to any other provision of the contract, if the *Contractor* fails to observe any provision of this Clause, such failure will be taken into account in compiling any report on the *Contractor*'s performance referred to in the Contractor Management Handbook promulgated by the Development Bureau of the Government.

(11) Without prejudice to any other provision of the contract, the *Contractor* shall indemnify and keep indemnified the *Client* against all losses, claims, costs, demands and expenses that may arise out of or in consequence of any breach of these *additional conditions of contract*.

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(12) For the purpose of this Clause, a "valid Exemption Certificate" means a medical certificate:

(a) issued by a medical officer of the Government or Hospital Authority, or a private medical practitioner who is a registered medical practitioner within the meaning of the Medical Registration Ordinance (Cap. 161), certifying that a person is medically unsuitable for receiving the COVID-19 vaccine; and

(b) containing the full name of the person referred to in paragraph (a), the assessments/recommendations of the medical officer/practitioner in respect of the person, the issue date and such other information required by the *Client* from time to time.

(13) Nothing in this Clause shall derogate from any requirements under the Prevention and Control of Disease Ordinance (Cap. 599) (including its subsidiary legislation) and any other legislation applicable to the *Contractor*'s performance of its obligations under the contract.

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APPENDIX 5.60D SCE Clause for Consultancies in GCE Form

SCE [X] Vaccine Pass Requirements on the Sites for Contract Works

(1) Notwithstanding any other provision of the Agreement, upon request of the Employer made at any time and from time to time, the Consultants shall submit to the Employer a list containing information specified in sub-clause (2) of this Clause relating to the following persons who are to enter into any Engineer's offices or accommodations on the sites for contract works covered by the Agreement ("the Relevant Site Accommodations"):

(a) an employee of the Consultants;

(b) an agent of the Consultants;

(c) a sub-consultant of the Consultants; and

(d) an employee of the agent or sub-consultant of the Consultants.

(the persons referred to in paragraphs (a) to (d) above are collectively referred to as "Relevant Consultants Personnel").

(2) The list shall contain the following information of a Relevant Consultants Personnel:

(a) name;

(b) post;

(c) staff identity card number;

(d) telephone number;

(e) relationship with the Consultants; and

(f) any other information which the Employer may reasonably require.

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(3) The Consultants shall ensure that:

(a) each person working in or entering the Relevant Site Accommodations who is a natural person (including the Relevant Consultants Personnel but excluding a person who is medically unsuitable for vaccination as certified in a valid Exemption Certificate within the meaning of this clause ("Exempted Person")) has been vaccinated according to the prevailing vaccination requirements (including but not limited to the dosage of vaccine and implementation date) set for all persons aged 12 or above entering or remaining on the specified premises under the Vaccine Pass arrangement as promulgated by the Government from time to time via the COVID-19 thematic website on Vaccine Pass (https://www.coronavirus.gov.hk/eng/vaccine-pass.html); and

(b) whenever a person (other than an Exempted Person) works in or enters the Relevant Site Accommodations, the person presents his or her vaccination record in such form as required by the Employer for inspection and verification by any person authorised by the Consultants to do so.

(4) The Consultants shall maintain a register of vaccination status of the Relevant Consultants Personnel and update the register at such intervals as prescribed by the Employer. The Consultants shall submit the register to the Employer for inspection upon the latter's request from time to time.

(5) If a Relevant Consultants Personnel is medically unsuitable to receive COVID-19 vaccine, the Consultants shall obtain from him or her a valid Exemption Certificate. The Consultants shall maintain and update a list of names of all Relevant Consultants Personnel to whom Exemption Certificates have been issued ("Excepted Consultants Personnel"). The Consultants shall submit an updated list of the Excepted Consultants Personnel to the Employer for inspection from time to time upon the latter's request.

(6) The Consultants shall (i) refuse to admit a person to the Relevant Site Accommodations, or (ii) evict such person from the Relevant Site Accommodations if:

(a) in the case of a person who claims to be medically unsuitable for vaccination, he or she is unable to present a valid Exemption Certificate to the person authorised by the Consultants to inspect the document; or

(b) in the case of any other person, he or she is unable to present a valid vaccination record meeting the vaccination requirements stated in sub-clause (3) of this Clause in such form as required by the Employer to a person authorised by the Consultants to inspect the record.

(7) The Consultants shall obtain from all Relevant Consultants Personnel (including an Excepted Consultants Personnel) consent to disclose and/or submit to the Employer information related to him or her as referred to in this Clause.

(8) The Consultants acknowledge and agree that:

(a) the Employer may at any time vary unilaterally the entry requirements (including any vaccination requirements) to the Relevant Site Accommodations; and

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(a) it will comply with the guidelines and/or directions issued by the Employer from time to time on entry requirements to the Relevant Site Accommodations.

(9) Without prejudice to any other provision of the Agreement, if the Consultants fail to observe any provision of this Clause, such failure will be taken into account in compiling any report on the Consultants' performance referred to in the Development Bureau Technical Circular (Works) Nos. 3/2016 and 5/2018.

(10) Without prejudice to any other provision of the Agreement, the Consultants shall indemnify and keep indemnified the Employer against all losses, claims, costs, demands and expenses that may arise out of or in consequence of any breach of this Special Condition of Employment.

(11) For the purpose of this Clause, a "valid Exemption Certificate" means a medical certificate:

(a) issued by a medical officer of the Government or Hospital Authority, or a private medical practitioner who is a registered medical practitioner within the meaning of the Medical Registration Ordinance (Cap. 161), certifying that a person is medically unsuitable for receiving the COVID-19 vaccine; and

(a) containing the full name of the person referred to in paragraph (a), the assessments/recommendations of the medical officer/practitioner in respect of the person, the issue date and such other information required by the Employer from time to time.

(12) Nothing in this Clause shall derogate from any requirements under the Prevention and Control of Disease Ordinance (Cap. 599) (including its subsidiary legislation) and any other legislation applicable to the Consultants' performance of its obligations under the Agreement.

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APPENDIX 5.60E ACC Clause for Consultancies in NEC3 PSC Form

ACC B[X] Vaccine Pass Requirements on the Sites for Contract Works

(A) Notwithstanding any other provision of this contract, upon request of the *Employer* made at any time and from time to time, the *Consultant* shall submit to the *Employer* a list containing information specified in sub-clause (B) of this Clause relating to the following persons who are to enter into any Engineer's / Project Manager's offices or accommodations on the sites for contract works covered by this contract ("the Relevant Site Accommodations"):

(a) an employee of the Consultant;

(b) an agent of the Consultant;

(c) a Subconsultant of the Consultant; and

(d) an employee of the agent or Subconsultant of the Consultant.

(the persons referred to in paragraphs (a) to (d) above are collectively referred to as "Relevant Consultant Personnel").

(B) The list shall contain the following information of a Relevant Consultant Personnel:

(a) name;

(b) post;

(c) staff identity card number;

(d) telephone number;

(e) relationship with the *Consultant*; and

(f) any other information which the *Employer* may reasonably require.

(C) The *Consultant* shall ensure that:

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(a) each person working in or entering the Relevant Site Accommodations who is a natural person (including the Relevant Consultant Personnel but excluding a person who is medically unsuitable for vaccination as certified in a valid Exemption Certificate within the meaning of this clause ("Exempted Person")) has been vaccinated according to the prevailing vaccination requirements (including but not limited to the dosage of vaccine and implementation date) set for all persons aged 12 or above entering or remaining on the specified premises under the Vaccine Pass arrangement as promulgated by the Government from time to time via the COVID-19 thematic website on Vaccine Pass (https://www.coronavirus.gov.hk/eng/vaccine-pass.html); and

(b) whenever a person (other than an Exempted Person) works in or enters the Relevant Site Accommodations, the person presents his or her vaccination record in such form as required by the *Employer* for inspection and verification by any person authorised by the *Consultant* to do so.

(D) The *Consultant* shall maintain a register of vaccination status of the Relevant Consultant Personnel and update the register at such intervals as prescribed by the *Employer*. The *Consultant* shall submit the register to the *Employer* for inspection upon the latter's request from time to time.

(E) If a Relevant Consultant Personnel is medically unsuitable to receive COVID-19 vaccine, the *Consultant* shall obtain from him or her a valid Exemption Certificate. The *Consultant* shall maintain and update a list of names of all Relevant Consultants Personnel to whom Exemption Certificates have been issued ("Excepted Consultant Personnel"). The *Consultant* shall submit an updated list of the Excepted Consultant Personnel to the *Employer* for inspection from time to time upon the latter's request.

(F) The *Consultant* shall (i) refuse to admit a person to the Relevant Site Accommodations, or (ii) evict such person from the Relevant Site Accommodations if:

(a) in the case of a person who claims to be medically unsuitable for vaccination, he or she is unable to present a valid Exemption Certificate to the person authorised by the *Consultant* to inspect the document; or

(b) in the case of any other person, he or she is unable to present a valid vaccination record meeting the vaccination requirements stated in sub-clause (C) of this Clause in such form as required by the *Employer* to a person authorised by the *Consultant* to inspect the record.

(G) The *Consultant* shall obtain from all Relevant Consultant Personnel (including an Excepted Consultant Personnel) consent to disclose and/or submit to the *Employer* information related to him or her as referred to in this Clause.

(H) The *Consultant* acknowledge and agree that:

(a) the Employer may at any time vary unilaterally the entry requirements (including any vaccination requirements) to the Relevant Site Accommodations; and

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(b) it will comply with the guidelines and/or directions issued by the *Employer* from time to time on entry requirements to the Relevant Site Accommodations.

(I) Without prejudice to any other provision of this contract, if the *Consultant* fails to observe any provision of this Clause, such failure will be taken into account in compiling any report on the *Consultant*'s performance referred to in the Development Bureau Technical Circular (Works) Nos. 3/2016 and 5/2018.

(J) Without prejudice to any other provision of this contract, the *Consultant* shall indemnify and keep indemnified the *Employer* against all losses, claims, costs, demands and expenses that may arise out of or in consequence of any breach of these *additional conditions of contract*.

(K) For the purpose of this Clause, a "valid Exemption Certificate" means a medical certificate:

(a) issued by a medical officer of the Government or Hospital Authority, or a private medical practitioner who is a registered medical practitioner within the meaning of the Medical Registration Ordinance (Cap. 161), certifying that a person is medically unsuitable for receiving the COVID-19 vaccine; and

(b) containing the full name of the person referred to in paragraph (a), the assessments/recommendations of the medical officer/practitioner in respect of the person, the issue date and such other information required by the *Employer* from time to time.

(L) Nothing in this Clause shall derogate from any requirements under the Prevention and Control of Disease Ordinance (Cap. 599) (including its subsidiary legislation) and any other legislation applicable to the *Consultant*'s performance of its obligations under this contract.

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APPENDIX 5.61 Guideline on Minimum Qualification and Experience Requirements for Common Positions of Professional Staff in Contractor's Management Team (For Civil Engineering Capital Works Contracts)

Guideline on Minimum Qualification and Experience Requirements for Common Positions of Professional Staff in Contractor's Management Team (For Civil Engineering Capital Works Contracts)

Position	Minimum Professional / Academic Qualification Requirement	Minimum Post-qualification Experience Requirement	
		Groups A and B Contracts	Group C Contracts
Project Manager or Construction Manager or equivalent	Corporate Member of an appropriate professional institution or equivalent	10 years relevant post-qualification experience	12 years relevant post-qualification experience
Site Agent or equivalent	(i) Corporate Member of an appropriate professional institution or equivalent; or	5 years relevant post-qualification experience	7 years relevant post-qualification experience
	(ii) University degree or equivalent in an appropriate discipline	10 years relevant post-qualification experience	12 years relevant post-qualification experience
Site Engineer or Land Surveyor or Quantity Surveyor or equivalent	(i) Corporate Member of an appropriate professional institution or equivalent; or	No relevant post-qualification experience is required	2 years relevant post-qualification experience
	(ii) University degree or equivalent in an appropriate discipline; or	5 years relevant post-qualification experience	7 years relevant post-qualification experience
	(iii) Diploma/Higher certificate or equivalent in an appropriate discipline	7 years relevant post-qualification experience	9 years relevant post-qualification experience

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Notes:

1) Procuring departments may fine-tune the above minimum requirements taking into account the nature and complexity of the contracts as well as relevant administrative/regulatory requirements, and/or add other requirements for individual positions where found necessary (e.g. NEC training requirements, requisite work-related requirements, etc.).

2) For maintenance contracts or contracts undertaken by specialist contractors, procuring departments may make reference to this guideline, where suitable, and set their own requirements to suit the nature of contracts.

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APPENDIX 5.61A New Particular Specification Clauses on Control on Works in Confined Space in Connection with/in the Vicinity of Underground Pipework, Drainage/Sewage Manholes/Chambers or Structures Alike

Particular Specification on
Control on Works in Confined Space in Connection with/in the Vicinity of Underground Pipework, Drainage/Sewage Manholes/Chambers or Structures Alike

****

The following PS Clauses apply to the works in confined space in connection with or in the vicinity of underground pipework, drainage or sewage manholes or chambers, or structures alike.

A. Safety Training

(1) (a) All workers having the qualification of a "competent person (CP)" as per s.2 and s.4(2) of Chapter 59AE – Factories and Industrial Undertakings (Confined Spaces) Regulation (Chapter 59AE), who are employed on the Works or in connection with the Contract whether in the employ of the Contractor or subcontractors at all tiers shall complete the 1-day **"Confined Space Safety Training Course for Competent Persons Engaged in DSD's Works"** run by the Construction Industry Council (CIC) and obtain a certificate. For the purpose of this Contract, the course is referred to hereinafter as the **"Confined Space Training for Competent Persons"** and the certificate as the "**Certificate for Competent Persons**". A CP who possesses the valid qualification of competent person pursuant to s.2 and s.4(2) of the Factories and Industrial Undertakings (Confined Spaces) Regulation and simultaneously holds a valid "Certificate for Competent Persons" is referred to hereinafter as "Designated Competent Person (DCP)".

(b) All workers having the qualification of a "certified worker (CW)" as per s.2 and s.4(1) of Chapter 59AE – Factories and Industrial Undertakings (Confined Spaces) Regulation, who are employed on the Works or in connection with the Contract whether in the employ of the Contractor or subcontractors at all tiers shall complete the 1-day **"Confined Space Safety Training Course for Certified Workers Engaged in DSD's Works"** run by CIC and obtain a certificate. For the purpose of this Contract, the course is referred to hereinafter as the **"Confined Space Training for Certified Workers"** and the certificate as the "**Certificate for Certified Workers**".

(c) For workers having both the qualifications of a CP and CW as stated in sub-clause (a) and (b) above, they shall be taken as workers having the qualification of a CP only for the purpose of this PS Clause and the relevant provisions in this PS Clause shall apply.

(d) The provisions in this PS Clause do not apply to Safety Officers (SOs) appointed by the Contractor, who are registered under the Factories and Industrial Undertakings (Safety Officers and Safety Supervisors)

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Regulations. However, if they are also qualified as "competent persons" as per Factories and Industrial Undertakings (Confined Spaces) Regulation and are to perform the duties of a CP in carrying out confined space works, they shall be taken as workers having the qualification of a CP for the purpose of this PS Clause and the relevant provisions in this PS Clause shall apply.

B. Further Requirements

(1) (a) Safety precautions for working in drains, sewers and other enclosed spaces shall comply with (a) the statutory requirements laid down in Chapter 59AE – Factories and Industrial Undertakings (Confined Spaces) Regulation, (b) Code of Practice on Safety and Health at Work in Confined Space published by Labour Department, (c) the requirements contained in the publications "Safety Precautions in Sewers, Drains and Other Enclosed Spaces" (at in **PS Appendix [X]**) and (d) "Drainage Services Department Practice Note No. 1/2021 – Safety Supervision of Work in Confined Space" published by the Drainage Services Department (DSD) and its latest version. If an ambiguity or discrepancy in or divergence between the aforementioned documents and the Contract is found, the most stringent requirement contained in the aforementioned documents and the Contract shall prevail.

(b) Man-entry to sewers or drains with a diameter not greater than 900mm or equivalent for undertaking any type of works shall be prohibited. For CCTV survey, man-entry to sewers or drains with a diameter not larger than 1 300mm or equivalent shall also be prohibited. Where man-entry cannot be avoided under anomalous circumstances, the Contractor shall obtain prior approval from the Engineer. The Contractor's attention is drawn to that approval from the Engineer would not normally be given for man-entry to carry out opening of lateral connections inside a lined pipeline due to lack of robotic cutting machine/equipment or the like.

(c) The Contractor shall establish a written notification system to enable the Engineer's Representative (ER) of confined space works to be carried out. The system shall include means to ensure that the ER is to be informed of, vide the Contractor, any such works to be carried out by him, his subcontractors at all tiers or other persons on the Works or in connection with the Contract.

(d) The Contractor shall notify the ER two clear working days in advance of any proposed work in confined space in writing. The Contractor shall also notify the ER the proposed time of commencement for the confined space works. In case of emergency situations where the 2-day advance notification requirement cannot be met, the Contractor shall obtain verbal consent from the Engineer or the ER prior to the commencement of any confined space works. The verbal consent shall be recorded in writing by the Engineer or the ER before noon on the next working day following the granting of verbal consent.

(e) The Contractor shall implement a permit-to-work system for working in confined space. The permit-to-work certificate (refer to hereinafter as

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"Permit") shall only be signed and issued by the Contractor's representative on confined space works (viz. Project Manager or Site Agent) who is appointed by the Contractor and accepted by the Engineer, and shall not be issued by the subcontractors nor the DCP. The Permit shall be signed by the Contractor's representative on confined space works at the entrance of the confined space works and advance issue of the Permit shall not be accepted. The Permit shall legibly indicate the date and time of issue, allowable period of stay in the confined space and incorporate the latest record of gas monitoring at that space. Original copy of the valid Permit pertaining to each shift of confined space operation shall be displayed at the entrance of that confined space. The implementation of the permit-to-work system does not derogate the Contractor from his obligation under the legislation and other contractual requirements.

(f) Any work involving entry into confined space shall not be carried out without the presence of the Contractor's Safety Officer or other staff who is a DCP, and having sufficient knowledge and experience in supervising the work in confined space appointed by the Contractor and accepted by the ER. He shall attend the Site and shall not leave the Site until all persons entering the confined space have left the confined space and return to the open atmosphere.

(g) The Contractor shall submit a copy of the risk assessment with a safety checklist and detailed programme of the work at least two weeks before the commencement of confined space works for checking. When there is change in the works or the risks involved, the Contractor shall submit a fresh risk assessment and programme to the ER at least two weeks in advance for checking.

(h) The Contractor shall not allow work to proceed in a confined space unless all pre-entry requirements as mentioned in this clause and **PS Appendix [X]** are fully checked and satisfied. Notwithstanding this, the Contractor shall ensure that any person entering a confined space shall bring along a gas detector each therein to continuously monitor the atmosphere throughout the stay in the confined space.

(i) The Contractor shall ensure that each person entering a confined space shall wear an audio-visual personal alarm of dead-man type maintaining its operating in active mode throughout his/her stay in that space, and is able to give out signals that can alert the standby person stationed at the entrance of that space.

(j) The Contractor shall not allow work to proceed in a confined space located in industrial areas unless the persons working therein are wearing suitable breathing apparatus of approved type.

(k) The Contractor shall ensure that each person entering a confined space shall wear safety harness with a lifeline connected to a man-lifting tripod or other lifting equipment approved by the Engineer for rescue purpose.

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(l) The Contractor shall set up CCTV cameras at manholes or end of pipeline for real-time monitoring of the conditions of the workers staying in the confined space where the direct line of sight between the standby person stationed at the entrance of a confined space and the person entering a confined space is impossible.

(m) The Contractor shall take video throughout the whole work duration, including entry to and exit from the confined space. The Contractor shall submit electronic copy of the videos to the ER within two working days for record purpose.

(n) The Contractor shall ensure that –

i) any person entering a confined space shall wear a spark-proof / explosion-proof two-way telecommunication equipment to enable continuous and non-interrupted real-time communication with the standby person stationed at the entrance of a confined space; and

ii) any person entering a confined space shall be continuously monitored by the standby person or via the CCTV visual display panel real-time viewable by the standby person when the direct line of sight between the standby person stationed at the entrance of a confined space and the person entering a confined space is impossible.

(o) The Contractor shall conduct regular rescue drills on confined space works to enhance and maintain the responsiveness of the confined space operating team and the rescue team during emergency. The rescue drills shall be conducted at an interval of not more than six months or a more frequent interval when considered necessary by the Engineer.

(p) The Contractor's representative on confined space works (viz. Project Manager or Site Agent) and the Safety Officer shall conduct at least 3 site check in each shift of confined space works.

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PS Appendix [X]

SAFETY PRECAUTIONS WHEN WORKING IN SEWERS, DRAINS AND OTHER CONFINED SPACE

1. **Responsibility**

1.1 The **person-in-charge** (e.g. foreman or gang leader) of the confined space works appointed by the Contractor and accepted by the Engineer's Representative (ER) shall ensure that –

(a) detailed working procedures and safety precautions are drawn up for the work being carried out;

(b) all workers are provided with adequate training and information on the personal hygiene and health precautions, the use of personal protective equipment etc.;

(c) all workers are instructed in the working procedures and safety precautions to be followed;

(d) equipment is provided in sufficient quantities and readily available in serviceable condition at the scene for immediate use so that the working procedures and safety precautions can be followed;

(e) the working procedures and safety precautions are correctly carried out;

(f) the requirements of the Factories and Industrial Undertakings (Confined Spaces) Regulation and other requirements stated in the Contract are strictly complied with;

(g) a DCP is appointed to carry out risk assessment of the working environment and the works to be carried out in the confined space and make recommendations on measures to be taken in relation to safety and health of workers when work is to be undertaken, and he shall not be the certified worker in the same confined space operation;

(h) no workers enter or work in the confined space other than certified workers (For the purpose of this Contract, a certified worker refer to a person who possesses the valid qualification of certified worker pursuant to s.2 and s.4(1) of the Factories and Industrial Undertakings (Confined Spaces) Regulation and simultaneously holds a valid "Certificate for Certified Worker" (person refer to hereinafter as "DCW"));

(i) he shall not act as the Contractor's representative on confined space works or DCP in the same shift of confined space works concurrently;

(j) he shall attend the Site at the commencement of the confined space works and shall not leave the Site until all personnel entering the

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confined space have left that space and return to the open atmosphere; and

(k) he shall not enter the confined space to carry out any work thereat throughout the period of discharging the duties as "person-in-charge" in the confined space works. He shall arrange the responsible DCP to closely monitor the health and safety of all personnel staying in the confined space.

(The following sub-clause shall be included in the tender document if it is considered that the "person-in-charge" will have genuine need to enter into confined space)

Should entry of "person-in-charge" into confined space be required due to works management purpose, prior agreement shall be sought from Employer vide the Engineer and suitable arrangement should be made by the Contractor to the satisfaction of Employer in such manner that the responsibilities of "person-in-charge" stated in the above sub-clauses (a) to (j) will not be sacrificed due to his/her absence outside the confined space. During the entry of "person-in-charge" into confined space, the DCP shall be kept stationing outside the confined space. The time of entry/leave in each confined space by the "person-in-charge" shall be timely registered in a logsheet for subsequent auditing. For the avoidance of doubt, the entry of "person-in-charge" into the confined space is limited to ad-hoc (not full time) supervision, inspection, checking, verification of the progress/condition of work in confined space and handing-over of the works thereat. Simultaneous entry/staying of the responsible DCP and the "person-in-charge" within the confined space shall not be allowed unless the Safety Officer is present at the entrance of confined space to oversee and monitor the health and safety of all personnel staying in that confined space. The "person-in-charge" entering the confined space shall hold a valid DCW certificate, comply with all necessary confined space safety requirements as stated in the contract and risk assessment for that shift of confined space works concerned, and shall not perform the works of certified workers during his/her period of stay in that confined space.

1.2 The **DCP** shall –

(a) attend the Site and shall not leave this Site until all persons entering the confined space have left that space and return to the open atmosphere;

(b) have sufficient knowledge and experience in supervising the work in confined space appointed by the Contractor and accepted by the ER;

(c) carry out risk assessment of the working environment and the works to be carried out in the confined space and make recommendations on measures to be taken in relation to safety and health of workers when work is to be undertaken in compliance with the Factories and Industrial Undertakings (Confined Spaces) Regulation;

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(d) not enter the confined space throughout the period of discharging the duties as "DCP" in that operation. Should his/her entry into confined space be required, he/she should designate a competent standby person, who holds a valid DCW certificate, to station outside the confined space throughout the duration of his/her absence outside the confined space to perform the duties of the standby person according to the duties stated in paragraph 1.4 of this PS Appendix. DCP shall seek prior agreement of both the Contractor's representative and the ER before his/her entry. For the avoidance of doubt, DCP's entry is limited to ad-hoc (not full time) inspection, checking, verification or assessment of the condition in confined space and he/she shall hold a valid DCW certificate, comply with all necessary confined space safety requirements as stated in the contract, and all necessary safety precautions in relation to the hazards identified in the risk assessment pertaining to DCP's entry into confined space have been taken. He/She shall not perform the works of DCWs during his/her period of stay in that confined space. For the avoidance of doubt, a separate risk assessment (not compiled by the DCP intending to enter confined space) and Permit-to-work shall be prepared prior to DCP's entry; and

(e) not act as the person-in-charge or Contractor's representative on confined space works in the same shift of confined space works concurrently.

1.3 The **Contractor's representative on confined space works** (viz. Site Agent or Project Manager) shall –

(a) be directly and wholly employed by the Contractor;

(b) be authorized by the Contractor to endorse the risk assessment and issue / void the Permit for the work to be proceeded in the confined space;

(c) be responsible for determining the continuation / suspension / resuming of confined space operation at the onset of / during / after adverse weather conditions and / or the lowering of adverse weather warning signals;

(d) attend the Site and shall ensure all persons entering the confined space have left that space and return to the open atmosphere;

(e) not enter the confined space throughout the period of discharging the duties as "Contractor's representative on confined space works" in the same shift of confined space works; and

(f) not act as the person-in-charge or DCP in the same shift of confined space works concurrently.

1.4 **Standby person** is responsible for ensuring the safety of all personnel staying in the confined space. He shall –

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(a) keep in touch with the personnel staying in the confined space via suitable two-way communication device at reasonable intervals, normally not more than every 2 minutes (Direct calling/shouting is NOT encouraged and the Contractor is required to explore and formulate alternative more effective two-way communication device before the commencement of confined space operation);

(b) ensure the lifelines are holding firmly on a man-lifting tripod, or other lifting equipment approved by the Engineer, pay out and reel in the lifelines as required, so that at all times the lifeline can be used in an emergency;

(c) in the event of a warning being received that working environment is likely to become dangerous, or if they suspect danger themselves, instruct all personnel staying in the confined space to return to the open atmosphere immediately;

(d) hold a valid DCW certificate and be responsible for the lookout for signs of danger including –

(i) sudden increases in flow,

(ii) heavy rain falling in the area or upstream, and

(iii) signs of hot or peculiar smelling discharges;

(e) ensure all confined space including manholes etc. required for ventilation are kept open;

(f) prohibit smoking and ensure that no naked lights, fires and internal combustion engine (diesel generator set) are located near to the confined space openings;

(g) check that all personnel have returned to the open atmosphere on completion of the operation and that all manhole covers are property reinstated;

(h) not act as the person-in-charge or the Contractor's representative; and

(i) not enter the confined space thereat throughout the period of discharging the duties as "standby-person" in the same shift of confined space operation.

1.5 **All persons entering or staying in manholes, sewers, drains and other confined space** should –

(a) hold a valid DCW certificate;

(b) wear adequate protective clothing and safety harness with lifeline;

(c) keep in touch with the standby persons and obey any instructions given by them;

(d) carry a gas detector with them and perform continuous gas monitoring throughout the period of stay;

(e) wear a dead-man type personal alarm, maintaining in active operating mode throughout his/her stay in that space;

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(f) place safety chains etc. in manholes where facilities are provided for them, in particular, downstream of the area being worked;

(g) avoid stirring up silt and check frequently for gas when this is unavoidable;

(h) be on the lookout for signs of danger including:

(i) sudden increases in flow,

(ii) signs of hot or peculiar smelling discharges,

(iii) signs of gas shown by the gas detector equipment, and

(iv) tiredness, faintness, headaches;

(i) return to the open atmosphere immediately when the working environment become dangerous or weather condition become worsen;

(j) observe procedures implemented by the person-in-charge of the confined space operation;

(k) observe instructions and advice and have already attended relevant safety training courses for confined space operation; and

(l) make full and proper use of, and forthwith report to the person-in-charge of the confined space operation any fault or defect in, any safety equipment or emergency facilities provided.

2. **Safety Equipment**

(a) Every gang working in manholes, sewers, storm water drains and other confined space must check that they have the following safety equipment readily available in a serviceable condition at the scene in addition to normal working tools –

- sufficient number of gas detection apparatus (At least 1 no. of gas detection apparatus shall be carried into the confined space to continuously monitor the atmosphere therein.)
- 1 No. of dead-man type audio-visual personal alarm for each person, maintaining in active operating mode throughout his/her stay in that space, for each person entering the confined space to alert those staying outside.

  (WARNING: The dead-man type personal alarm emits "rescue signal" rather than "warning signal for danger detected". Its major use is for locating the victim in a rescue. The dead-man type alarm shall never be relied upon, whether knowingly or unknowingly, as an alarm of danger detected because serious harm could have already been done to the person wearing it before it is activated.)
- 1 No. of safety harness for each person.
- 1 No. of lifeline for each person, each 15m long.

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- 1 No. of man-lifting tripod, or other lifting equipment approved by the Engineer.
- 1 No. of first aid kit.
- 1 No. of crowbar.
- Sufficient sets of spark-proof / explosion-proof lamp or torch.
- soap, antiseptic and an adequate supply of clean water.
- 3 Nos. of safety chains, each 3 m long.
- Other than those to be used by personnel entering the confined space, minimum 1 set of standby approved type of breathing apparatus (BA) shall be ready available at the scene for immediate use at each job location / work front in case of emergency. The nos. of BA required in each shift of operation should be sufficient to cater for the extent, time to be spent and the nos. of personnel to enter into the confined space.
- Effective wireless and hands-free two-way communication device for establishing clear and uninterrupted communications between the workers in the confined space and the supervisors/standby-persons at ground level or entrance of confined space of a type approved by the Engineer. When equipped by the workers in the confined space, such communication device shall not involve modification to the approved type of BA or if modification is required, the modified BA shall have been approved by Labour Department according to the prevailing legislation. The communication device shall be spark-proof / explosion-proof.
- 1 set of resuscitation equipment.
- 1 No. of mechanical blower
- 1 No. of stretcher.
- 1 set of fire fighting equipment.

(b) Each workman shall be provided with protective headgear, helmet, goggles, hearing protection, a pair of industrial gloves, rubber boots and other protective clothing as required by the working environment and the nature of the works to be carried out.

(c) The weather condition should be checked and under continuous monitoring by those personnel staying outside the confined space.

(d) CCTV camera shall be set up at manholes or end of pipeline for real-time monitoring of the condition of workers staying in the confined space where direct line of sight between the standby person at the entrance of that space and the person entering that space is impossible.

(e) The Contractor shall note that some of the survey works may involve man-entry into deep manholes with intermediate platforms where the access and line of sight may be hindered. In such case, the Contractor shall devise and implement specific safety measures in order to enable the survey works to be carried out in compliance with the safety requirements for confined space operations as stated in the contract. For example, the Contractor is required to setup one additional tripod at the intermediate platform for rescue. Where the

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intermediate platform does not provide sufficient space for setting up of tripod, the Contractor may design and construct temporary works / platform to ensure the safe execution of the survey works. For the avoidance of doubt, if the Contractor fails to provide such specific safety measures resulting in abandonment of survey but the Engineer considers it reasonably practical to do so, the Engineer's acceptance will not be given for the application for abandonment of survey.

3. **General Precautions**

(a) Prohibit smoking, naked lights, fires or internal combustion engine (diesel generator set) located near to any entrance to manholes, drains, sewers or nullahs and only spark-proof / explosion-proof lamp or torch are to be used anywhere below ground level or inside confined space.

(b) Unhealed cuts or scratches, however, must be covered by impermeable plaster.

(c) Any abrasion, scratch or cut, no matter how slight, must be cleaned immediately and dressed with antiseptic gauze and impermeable plaster.

(d) Before eating and after changing clothing, all workers should wash their hands and forearms with soap and water containing disinfectant.

(e) Use caution and common sense at all times.

4. **Precautions Before Commencing Work**

(a) Check that all safety equipment is readily available and in serviceable condition.

(b) Check the position and likelihood of exceptional discharges or any influx of dangerous substances, either vapour/gases or liquid, from factories and other places affecting the area in which the gang is working.

(c) Check that the sewers, drains, manholes, confined space, etc., in which the gang is working, is structurally stable.

(d) Locate the nearest fire station and hospital for summoning assistance in case of an emergency. If man-entry confined space work is carried out at remote / rural areas, the nearest well known scenic spot or public road should be ascertained so that the rescue team can reach the correct spot to conduct the rescue expeditiously.

(e) Ventilate the area to be worked by opening the manhole covers and if necessary by providing forced ventilation. At least one manhole upstream and one manhole downstream of the length of sewer or drain being worked / inspected should be opened in addition to those on the length being worked / inspected.

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(f) All open manholes shall be marked with Danger Notice Boards and guarded at all sides so that vehicles and persons are kept well clear.

(g) Proper temporary traffic arrangement (TTA) and lighting, signing and guarding shall be provided.

(h) Alternative confined space exit point(s) is practicably available and imminently serviceable for evacuation / escape purpose. The location(s) and route(s) to reach these exit point(s) shall be made known to all personnel concerned before the commencement of each shift of man-entry confined space operation. These exit point(s) shall be opened and illuminated throughout each operation.

5. **Before Entering Manholes, Sewers, Drains or Confined Space**

(a) Risk assessment is carried out and prepared by the DCP at the scene of entry which is specific to the prevailing weather, actual working environment and the type, scope and duration of confined space works to be carried out.

(b) Permit-to-work is signed and issued by the Contractor's representative on confined space works (not by DCP or sub-contractor) at the scene of entry.

(c) Advance preparation, signing or issue of risk assessment and/or permit-to-work are strictly prohibited.

(d) Standby persons are stationed at the scene of entry and shall attend full time at those points where personnel are entering or leaving a manhole, sewer, drains and other confined space.

(e) After the sewer, drain, manhole and other confined space has been ventilated for a sufficient period, a gas detection apparatus shall be lowered into that space to test whether or not it is safe for personnel to enter/stay.

(f) If working inside conduits is required, a gas detection apparatus shall be placed inside the concerned part of the conduits to test and monitor continuously whether or not it is safe for personnel to enter/stay.

(g) Even though the gas tests indicate safe conditions, if there is a peculiar smell or if there are any suspicious circumstances no one shall enter the sewer, drain, manhole or confined space.

(h) Clean down the manhole shaft and step irons or access ladder.

(i) Check any other works activities being implemented in the vicinity that may affect the safety of the workmen staying inside the sewer, drain, manhole or confined space.

(j) Set up a man-lifting tripod, or other lifting equipment approved by the Engineer, for holding lifelines. The tripod need not sit directly over the manhole or entrance / exit point during the works but must be placed in the vicinity such that it will be ready available for rescue purpose in case of emergency.

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6. **In Case of Emergency**

(a) In the event of physical injury, first aid should be given and the injured person must be brought out of the manhole, sewer, drain or confined space as quickly as possible, care being taken not to aggravate the injury. Depending upon the seriousness of the injury, the person-in-charge must decide whether medical or other assistance is required.

(b) In the event of a person collapse in the sewer, drain, manhole or confined space, any personnel with him/her must warn the standby person(s) stationed outside the confined space and unless they are able to drag the casualty clear at once, leave the sewer, drain, manhole or confined space as quickly as possible.

(c) NO FURTHER RESCUE ATTEMPT SHOULD BE MADE WITHOUT BREATHING APPARATUS and help must be summoned AS QUICKLY AS POSSIBLE by dialing 999 and asking for life rescue.

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APPENDIX 5.62 New Set of Particular Specification Clauses for Safety Precautionary Measures for Floor Openings and Free Edges at Buildings and Structures and Control on Conveying Debris through Floor Openings

Particular Specification –
Safety Precautionary Measures
for Floor Openings and Free Edges at Buildings and Structures
and Control on Conveying Debris through Floor Openings

****

Safety Precautionary Measures for Floor Openings and Free Edges at Buildings and Structures

(1) (a) The Contractor shall fully cover all floor openings or erect railings around them. The Contractor shall post warning notices at the floor openings to alert site personnel of the floor openings.

(b) Covers to all floor openings shall be constructed with solid material of sufficient strength and securely fixed in position to prevent fall of persons, materials and article. All covers to all floor openings shall be clearly and boldly marked to show their purpose.

(c) The Contractor shall erect rigid and secure railings around the floor openings and at the free edges of a building or structure. They shall include but not be limited to the following –

(i) top railing at a height of 900 mm to 1 150 mm;
(ii) intermediate railing at a height of 450 mm to 600 mm;
(iii) toe board of 200 mm high above the floor surface where no permanent upstand exists; and
(iv) brightly coloured safety meshes mounted on the top railings and down to the toe boards.

(d) On top of the provisions in sub-clause (c) of this Clause, for floor openings with considerable risks or safety concerns of falling persons or objects, the Contractor shall provide safety nets of suitable size and sufficient strength covering the floor openings. The safety nets shall be clear of any debris.

(e) Where the erection of railings or provision of covers to prevent fall from a floor opening or a free edge is considered impracticable, the Contractor shall provide suitable fall arrest system to workers with reference to the Guidance Notes on Classification and Use of Safety Belts and their Anchorage Systems published by the Labour Department.

(f) The Contractor shall develop and implement an effective and safe system of work to ensure that the above safety measures are properly implemented and maintained.

(g) For the avoidance of doubt, this Clause is applied to all buildings or structures, irrespective of whether they are permanent or temporary in nature.

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Control on Conveying Debris through Floor Openings

(2) (a) Debris generated in the works shall be regularly removed to prevent excessive stockpiling that could –

(i) affect the integrity of the building or structure;
(ii) affect the access to and egress from the workplaces;
(iii) result in a risk of fire; or
(iv) cause health and safety hazards.

(b) The Contractor shall only convey debris through floor openings with suitable chutes, full enclosures or shafts.

(c) The Contractor shall define designated areas for conveying debris through floor openings with chute, full enclosure or shaft for acceptance by the Architect/Engineer. The designated areas shall have an enclosed structure to contain the falling debris where the hazard of workers or the public being struck by falling objects/rebounding debris is eliminated. The designated areas shall be clearly identified, and fenced off or barricaded to prevent unauthorized entry. Overhead conveyance of debris through designated areas shall be suspended during removal of debris therein. All site personnel involved shall be unequivocally informed of the suspension of overhead conveyance of debris through the designated areas. Warning notice shall be posted at all entry points of the designated areas to warn site personnel of the potential hazards.

(d) The Contractor shall ensure that all chutes, full enclosures or shafts installed at the floor openings –

(i) shall be of adequate strength and securely fixed and supported to allow safe and free falling of debris therein;
(ii) shall be fully enclosed at every entry point to prevent a person from falling therein;
(iii) shall be adequately secured having regard to the weight of the chute, full enclosure or shaft and the weight of possible accumulated load therein;
(iv) shall prevent escape of materials and dust; and
(v) shall be able to minimise the noise while debris is passing through.

(e) The Contractor shall ensure that every entry point for the designated area mentioned in sub-clause (c) of this Clause, and all chutes, full enclosures or shafts mentioned in sub-clause (d) of this Clause shall be adequately protected by barriers during the removal of debris by mobile plant, and suitably guarded by barriers with adequate strength at all times. Barriers shall be high enough to prevent mobile plant from riding over them, and strong enough to halt a fully loaded mobile plant.

(f) Where the compliance of any provision in sub-clauses (b), (c), (d) and (e) of this Clause by the Contractor is considered impracticable, the Contractor shall submit an alternative proposal for conveying debris through floor openings, with due consideration and mitigation of hazards including, but not limited to falling from height and struck by falling objects, for acceptance by the Architect/Engineer before the commencement of conveying debris through floor openings.

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(g) For the avoidance of doubt, this Clause is applied to all buildings or structures, irrespective of whether they are permanent or temporary in nature.

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APPENDIX 5.63 Particular Specification - Rodent Control on Construction Sites

(a) The *Contractor / *Contractor* shall comply with the Code of Practice for Rodent Management and other relevant guidelines promulgated by the Food and Environmental Hygiene Department for anti-rodent work.

(b) The *Contractor / *Contractor* shall engage a competent pest control agent to carry out rodent disinfestation operations upon taking over the Site and throughout the Contract, which shall include, but not limited to –

(i) identify any rodent infested areas and any potential rodent infested areas on the Site;

(ii) set out and install sufficient rodent control measures, such as rodent baiting points, rodent traps, rodent glues and filling of rodent holes, as appropriate, to disinfest any rodent found and to prevent rodent infestation on the Site;

(iii) inspect the rodent control measures regularly, replenish and adjust them as necessary;

(iv) place appropriate warning signs in the vicinity of the rodent baits, traps and glues; and

(v) collect and dispose of live and dead rodent and all wastes arising from the disinfestation operation to appropriate waste collection points.

(c) The *Contractor / *Contractor* shall clean up the Site to eliminate the three survival conditions of rodent on the Site, viz. removal of food sources, elimination of hiding places of rodents, and blockage of rodent dispersal routes, and continue to maintain the Site in a clean and hygienic condition.

(d) The *Contractor / *Contractor* shall provide statistics on anti-rodent work to the *Architect / Engineer / Supervising Officer / Maintenance Surveyor / *Project Manager* / *Service Manager* on a monthly basis. The statistics shall include the following items and other items as requested by the *Architect / Engineer / Supervising Officer / Maintenance Surveyor / *Project Manager* / *Service Manager* –

(i) Number of inspection conducted in connection with rodent infestation / control;
(ii) Number of bait points set;
(iii) Number of trap placed;
(iv) Number of live rodent trapped;
(v) Number of dead rodent collected;
(vi) Number of rodent hole filled;
(vii) Number of joint site visit conducted with the Food and Environmental Hygiene Department;
(viii) Number of joint visit conducted with *Architect / Engineer / Supervising Officer / Maintenance Surveyor / *Project Manager* / *Service Manager*; and
(ix) Number of complaint received.

(e) The *Contractor / *Contractor* shall review the statistics enumerated in sub-clause (d) above as well as the sufficiency and effectiveness of rodent control measures adopted

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with the *Architect / Engineer / Supervising Officer / Maintenance Surveyor / *Project Manager* / *Service Manager* during the Site Environmental Management Committee meetings or other appropriate meetings between the *Contractor / *Contractor* and the *Architect / Engineer / Supervising Officer / Maintenance Surveyor / *Project Manager* / *Service Manager* on a monthly basis.

Note:
The optional entries with asterisk (*) are for selection by contract drafters to suit contracts using NEC or Government of the Hong Kong Special Administrative Region (HKSARG) General Conditions of Contracts (GCC). Contract drafters are reminded to remove the inapplicable ones in blue.

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APPENDIX 5.64 Particular Specification on Safety Training

Construction Site Safety Manual
Chapter 3
Appendix III – PARTICULAR SPECIFICATION ON SITE SAFETY

8 Safety Training

(6) (a) All persons employed on the Works or in connection with the Contract whether in the employ of the Contractor or sub-contractors of all tiers shall receive "site specific induction training".

(b) Site specific induction training and its refresher shall take the form of an one-hour talk conducted by the Safety Officer in accordance with sub-clause 6(e) below.

(c) The talk shall be conducted as follows:

(i)	Safety Policy	10 mins
(ii)	General particulars of the Site	10 mins
(iii)	Special characteristics of the Works and inherent hazards on the Site, highlights of particular safety measures and use of personal protective equipment	15 mins
(iv)	Emergency procedures and first-aid facilities	10 mins
(v)	Reporting of accidents and injury compensation procedures	5 mins
(vi)	Questions and answers	10 mins
	total	60 mins

(d) The Safety Officer shall prepare the talk based on Part II of the "Site Safety & Health Induction Training Manual" published by the Hong Kong Construction Association Ltd.

(e) An outline of the talk and every update of it shall be provided to the *Architect/Engineer's Representative for approval. All persons enumerated in sub-clause (6)(a) above shall be provided with site specific induction training on the first day of their commencement of work on the Site. Thereafter, they shall be given refresher talks at

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intervals of 6 months depending on the amount of changes to the site condition.

(f) The Contractor shall ensure that "site specific induction training" talks are carried out by Safety Officers who are competent trainers and have received training on safety training techniques organised by the Hong Kong Construction Association Ltd. (HKCA), Construction Industry Council (CIC), Occupational Safety and Health Council (OSHC) or other approved training organisations.

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APPENDIX 5.65 Contract Provisions for Prohibition of Imposing Administrative Charges for Reporting of Site Accidents and Elimination of Under-reporting of Site Accidents

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[**Note:** The optional entries with asterisk (*) are for selection by contract drafter to suit contracts using NEC3/4 Engineering and Construction Contract (ECC) or NEC3/4 Term Services Contract (TSC) or Government of the Hong Kong Special Administrative Region (HKSARG) General Conditions of Contract (GCC) 1999 Edition or HKSARG GCC for Term Contracts. Contract drafters are reminded to remove the inapplicable ones in blue.

Please update the reference as appropriate.]

The following shall be incorporated into the contract / Contract between the *Employer* / *Client* / Employer and the *Contractor* / Contractor as *additional conditions of contract* / Special Conditions of Contract –

Section D – General Obligation

		Marginal Notes	Guidelines
[D33]#	(1) The **Contractor* / Contractor shall not impose charges of any form on any *subcontractor / sub-contractor, or deduct any amount from the payment to which any *subcontractor / sub-contractor is entitled, for reporting accidents and processing any claims for compensation under the Employees' Compensation Ordinance (Cap. 282) on behalf of the *subcontractor / sub-contractor. For the avoidance of doubt, *subcontractor / sub-contractor in this clause [D33]# means all types of *subcontractors / sub-contractors, irrespective of tiers.	**Prohibition of Imposing Administrative Charges for Reporting of Site Accidents and Elimination of Under-reporting of Site Accidents**	
	(2) The **Contractor* / Contractor shall ensure that the provisions at Appendix [A]# of these **additional conditions of contract* / Special Conditions of Contract are included *mutatis mutandis* in all *subcontracts / sub-contracts entered into with *its / his *subcontractors / sub-contractors. The **Contractor* / Contractor shall, if necessary, within a reasonable time enter into a supplemental agreement with *its / his *subcontractors / sub-contractors to comply with the requirements in this sub-clause.		

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Marginal Notes Guidelines

(3) For *subcontracts / sub-contracts at any lower tiers of *subcontracting / sub-contracting, the **Contractor* / Contractor shall take all reasonable steps to ensure that the provisions at Appendix [A]# of these **additional conditions of contract* / Special Conditions of Contract are included *mutatis mutandis* in all such *subcontracts / sub-contracts. The **Contractor* / Contractor shall take all reasonable steps to ensure that *subcontractors / sub-contractors at any lower tiers of *subcontracting / sub-contracting shall, if necessary, within a reasonable time enter into a supplemental agreement to include the provisions at Appendix [A]# of these **additional conditions of contract* / Special Conditions of Contract *mutatis mutandis* in all such *subcontracts / sub-contracts.

(4) Upon request by the **Project Manager / Service Manager* / Architect / Engineer / Maintenance Surveyor / Surveyor / Supervising Officer, the **Contractor* / Contractor shall provide the original documents of the *subcontracts / sub-contracts to the **Project Manager / Service Manager* / Architect / Engineer / Maintenance Surveyor / Surveyor / Supervising Officer, for inspection.

(5) Where injury by accident arising out of and in the course of the employment is caused to any person employed to *Provide the Works / Provide the Service or in connection with the contract, the *Contractor* shall notify the Commissioner for Labour in such form and manner as required by the law and report the matter to the **Project Manager / Service Manager* in the form prescribed in this contract without delay. This sub-clause shall apply irrespective of whether the person is in the employ of the *Contractor* or a subcontractor, and whether the person claims for compensation.

[**Note:** This sub-clause is only applicable for contracts using NEC3/4 ECC or NEC3/4 TSC.]

(6) The **Contractor* / Contractor shall make necessary arrangements to ensure that all *subcontractors / sub-contractors report all accidents on the Site involving their employees via their upper tier *subcontractors / sub-contractors (if applicable) to the **Contractor* / Contractor without delay. Such arrangement shall be incorporated in the Safety Plan and Subcontractor Management Plan required under the *contract / Contract.

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	Marginal Notes	Guidelines
(7) The **Employer / Client* shall not be liable for or in respect of any damages or compensation payable at law in respect of or in consequence of any accident or injury to any worker or other person in the employ of the *Contractor* or any subcontractors save and except an accident or injury resulting from any act or default of the **Employer / Client*, his agents or employees and the *Contractor* shall indemnify and keep indemnified the **Employer / Client* against all such damages and compensation, save and except as aforesaid and against all claims, demands, proceedings, damages, costs, charges and expenses whatsoever in respect thereof or in relation thereto.		[**Note:** This sub-clause is only applicable for contracts using NEC3/4 ECC or NEC3/4 TSC.]
(8) The compliance of this clause [D33]# of these **additional conditions of contract* / Special Conditions of Contract by the **Contractor* / Contractor is entirely without prejudice to and do not relieve the **Contractor* / Contractor from any of **its / his* obligations or responsibilities under the **contract / Contract,* the Factories and Industrial Undertakings Ordinance (Cap. 59), the Occupational Safety and Health Ordinance (Cap. 509) and the Employees' Compensation Ordinance (Cap. 282), and all their subsidiary legislation.		

Appendix [A]# of **additional conditions of contract* / Special Conditions of Contract

The following clause shall be incorporated mutatis mutandis into the *subcontracts / sub-contracts at any tiers under the Contractor as *additional conditions of contract / Special Conditions of Contract –

Clause [X] – Mandatory Subcontract Conditions for Prohibition of Imposing Administrative Charges for Reporting of Site Accidents and Elimination of Under-reporting of Site Accidents

(1) In this clause, the following words and expressions shall have the meanings hereby assigned to them except when the context otherwise requires:-

"**Client / Employer* / Employer" means the Government of the Hong Kong Special Administrative Region;

"**Project Manager / Service Manager* / Architect / Engineer / Maintenance Surveyor / Surveyor / Supervising Officer" means the **Project Manager / Service Manager* / Architect / Engineer / Maintenance Surveyor / Surveyor / Supervising Officer for the Contract;

"Contract" means the main contract [insert the Contract No.]# made between the **Client / Employer* / Employer and the **Contractor* / Contractor;

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"**Contractor* / Contractor" means the contractor who has entered into the Contract with the **Client / Employer* / Employer and entered into the Sub-contract with the Sub-contractor [Note: Replace the words "the Sub-contract with the Sub-contractor" with "a sub-contract with a sub-contractor at the first tier of the same chain of subcontracting in connection with this Sub-contract" for the second or lower tier subcontracts];

"Sub-contract" means this agreement;

"Sub-contractor" means the party who entered into this Sub-contract with the **Contractor* / Contractor [Note: Replace the words "the **Contractor* / Contractor" with "the Higher-tier-sub-contractor" for the second or lower tier subcontracts];

"sub-contractors" means all types of sub-contractors of the Sub-contractor, irrespective of tiers;

"Higher-tier-sub-contractor" means the party who entered into a subcontract at higher tier than this Sub-contract with another party and entered into this Sub-contract with the Sub-contractor; *[Note: Adopt this definition for the second or lower tiers subcontracts only].*

(2) The Sub-contractor shall not impose charges in any form on any sub-contractor, or deduct any amount from the payment to which any sub-contractor is entitled, for reporting any accidents and processing any claims for compensation under the Employees' Compensation Ordinance (Cap. 282) on behalf of the sub-contractor.

(3) Where injury by accident arising out of and in the course of the employment is caused to any person employed by the Sub-contractor or sub-contractors on the Works or in connection with the Contract, the Sub-contractor shall, without delay, notify the Commissioner for Labour in such form and manner as required by the law and report the matter to the **Contractor* / Contractor and **Project Manager* / *Service Manager* / Architect / Engineer / Maintenance Surveyor / Surveyor / Supervising Officer. This sub-clause shall apply irrespective of whether the person claims for compensation.

(4) Upon request by the **Contractor* / Contractor [Note: Add "or the Higher-tier-subcontractor" for the second or lower tiers subcontracts], the Sub-contractor shall provide the original documents of the sub-contracts to the **Contractor* / Contractor [Note: Replace "the **Contractor* / Contractor" with "the Higher-tier-subcontractor" for the second or lower tiers subcontracts] who is authorized to provide the same to the **Project Manager* / *Service Manager* / Architect / Engineer / Maintenance Surveyor / Surveyor / Supervising Officer [Note: Add "and the **Contractor* / Contractor" for the second or lower tiers subcontracts] for inspection.

(5) The compliance of this clause [X]# of the **additional conditions of contract* / Special Conditions of Contract by the Sub-contractor is entirely without prejudice to and do not relieve the Sub-contractor from any of **its /his* obligations or responsibilities under this contract, the Factories and Industrial Undertakings Ordinance (Cap. 59), the Occupational Safety and Health Ordinance (Cap. 509) and the Employees' Compensation Ordinance (Cap. 282), and all their subsidiary legislation.

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APPENDIX 5.66A Amendments to *additional conditions of contract* for use with NEC4 ECC regarding Proposal on Innovation and Technology

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Clause AA[XX] of the *additional conditions of contract*

AA[XX] (1) For the purpose of this Clause, the following words and expressions shall have the meaning hereby assigned to them:-

Proposal on Innovation and Technology

"I&T Proposal" means a proposal to adopt an innovation or technology which:-

(a) is additional to or more advanced than the requirements in the Scope; and

(b) could enhance site safety, site supervision efficiency or decarbonisation.

"Innovation and Technology Register" is a register of I&T Proposals which are notified by the *Project Manager* or the *Contractor*.

(2) The *Contractor* and the *Project Manager* give written notice to the other when either makes an I&T Proposal. The *Project Manager* enters I&T Proposals in the Innovation and Technology Register. Notification of an I&T Proposal for which a compensation event has previously been notified is not required.

(3) (a) The *Project Manager* prepares a first Innovation and Technology Register and issues it to the *Contractor* within four weeks of the first notification of an I&T Proposal. The *Project Manager* instructs the *Contractor* to attend a first innovation and technology meeting within two weeks of the issuance of the first Innovation and Technology Register.

(b) Later innovation and technology meetings are held if either the *Project Manager* or *Contractor* instructs the other to attend an innovation and technology meeting.

(c) The *Project Manager* or *Contractor* may invite any person to attend an innovation and technology meeting.

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(4) At an innovation and technology meeting, those who attend co-operate in:-

(a) considering each I&T Proposal in the Innovation and Technology Register, including but not limited to exploring the potential benefits as well as cost and time implications of adopting each I&T Proposal;

(b) deciding on the I&T Proposals to be adopted; and

(c) deciding which I&T Proposals can be removed from the Innovation and Technology Register.

(5) The *Project Manager* revises the Innovation and Technology Register to record the decisions made at each innovation and technology meeting and issues the revised Innovation and Technology Register to the *Contractor* within one week of the innovation and technology meeting. If a decision needs a change to the Scope, the *Project Manager* instructs the change at the same time as the revised Innovation and Technology Register is issued.

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APPENDIX 5.66B Amendments to *additional conditions of contract* for use with NEC4 TSC regarding Proposal on Innovation and Technology

****

Clause AA[XX] of the *additional conditions of contract*

AA[XX] (1) For the purpose of this Clause, the following words and expressions shall have the meaning hereby assigned to them:-

Proposal on Innovation and Technology

"I&T Proposal" means a proposal to adopt an innovation or technology which:-

(a) is additional to or more advanced than the requirements in the Scope; and

(b) could enhance site safety, site supervision efficiency or decarbonisation.

"Innovation and Technology Register" is a register of I&T Proposals which are notified by the *Service Manager* or the *Contractor*.

(2) The *Contractor* and the *Service Manager* give written notice to the other when either makes an I&T Proposal. The *Service Manager* enters I&T Proposals in the Innovation and Technology Register. Notification of an I&T Proposal for which a compensation event has previously been notified is not required.

(3) (a) The *Service Manager* prepares a first Innovation and Technology Register and issues it to the *Contractor* within four weeks of the first notification of an I&T Proposal. The *Service Manager* instructs the *Contractor* to attend a first innovation and technology meeting within two weeks of the issuance of the first Innovation and Technology Register.

(b) Later innovation and technology meetings are held if either the *Service Manager* or *Contractor* instructs the other to attend an innovation and technology meeting.

(c) The *Service Manager* or *Contractor* may invite any person to attend an innovation and technology meeting.

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(4) At an innovation and technology meeting, those who attend co-operate in:-

(a) considering each I&T Proposal in the Innovation and Technology Register, including but not limited to exploring the potential benefits as well as cost and time implications of adopting each I&T Proposal;

(b) deciding on the I&T Proposals to be adopted; and

(c) deciding which I&T Proposals can be removed from the Innovation and Technology Register.

(5) The *Service Manager* revises the Innovation and Technology Register to record the decisions made at each innovation and technology meeting and issues the revised Innovation and Technology Register to the *Contractor* within one week of the innovation and technology meeting. If a decision needs a change to the Scope, the *Service Manager* instructs the change at the same time as the revised Innovation and Technology Register is issued.

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APPENDIX 5.66C Supplementary Agreement for NEC3 ECC

[DRAFT for NEC3 – ECC]

[PLEASE FILL IN ALL MISSING INFORMATION]

[*Insert Contract Title and Contract Number*]

Supplementary Agreement No. [xx]

THIS SUPPLEMENTARY AGREEMENT No. [xx] is made on [xx]

BETWEEN

(1) The Government of the Hong Kong Special Administrative Region (hereinafter referred to as "***Employer***"); and

(2) [***insert name of contractor***] of [***insert principal place of business of the contractor***] (hereinafter referred to as "***Contractor***"),

(the *Employer* and the *Contractor* are hereinafter collectively referred to as the "**Parties**").

WHEREAS

(A) The Parties have entered into a contract dated [xx] (bearing reference number Contract No. [xx]) for [***insert brief description of the subject matter of this contract***]. #[This Contract was subsequently amended by Supplementary #[Agreement] No. [xx] made by the Parties on [xx]].

(B) The Parties are desirous of amending this Contract in accordance with this Agreement.

#Delete/revise as appropriate.

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[DRAFT for NEC3 – ECC]

NOW IT IS HEREBY AGREED BETWEEN THE PARTIES as follows: -

1. In this Agreement (including the Recitals):

   (i) "Contract" means Contract No. [xx] referred to in Recital (A) #[and as it is amended by the Supplementary Agreement(s) mentioned in the Recital];

   (ii) words and expressions defined in this Contract shall, save as otherwise defined herein or unless the context otherwise requires, have the same meaning in this Agreement;

   (iii) all rules of interpretation and construction used in this Contract shall be and are hereby deemed to be incorporated in and form part of this Agreement as if set out herein in full.

2. In consideration of the mutual benefits conferred by this Agreement, the Parties agree that with effect from the date of this Agreement –

   (i) a new clause AA[XX] as set out in **Annex** is added to the *additional conditions of contract.*

   [*Note: The following sub-clause (ii) should be added if NEC Clauses 12.5 to 12.10 have not already been added in a previous supplementary agreement.*]

   (ii) the following shall be inserted after NEC Clause 12.4:

   "12.5 All references to "this contract" or "the contract" are to this contract as supplemented or amended from time to time.

   12.6 All references to the "*conditions of contract*" are to the *conditions of contract* described in Part One of the Contract Data and as supplemented or amended from time to time.

   12.7 All references to the "*additional conditions of contract*" are to the *additional conditions of contract* described in Part One of the Contract Data and as supplemented or amended from time to time.

   12.8 All references to a condition, clause, sub-clause or provision of the *conditions of contract* or *additional conditions of contract* are to the condition, clause, sub-clause or provision of the *conditions of contract* or *additional conditions of contract*, and as supplemented or amended from time to time.

   12.9 Headings are inserted for ease of reference only and shall not

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affect construction of this contract.

12.10 References in this contract to a document shall: -

(a) include all schedules, appendices, annexures and other materials attached to such document; and

(b) mean the same as supplemented or amended from time to time."

3. The Parties further agree that:

(i) the *Contractor* shall not be entitled to any additional payment, compensation, relief or variation of the Completion Date or the Prices by reason of any provision in this Agreement;

(ii) nothing in this Agreement shall affect any antecedent rights or obligations of either Party under the Contract;

(iii) save as varied herein, the terms and conditions of this Contract shall remain and continue in full force and effect in all respects; and

(iv) with effect from the date of this Agreement, this Agreement shall be construed as one with the Contract.

4. This Agreement shall be governed by and construed in accordance with the laws of Hong Kong.

[#]Delete/revise as appropriate.

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[DRAFT for NEC3 – ECC]

IN WITNESS WHEREOF this Agreement is executed as a deed by the Parties on the date first above written.

[***Please insert suitable attestation clauses in accordance with DEVB TC(W) No. 7/2014*** **]**

[#]Delete/revise as appropriate.

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Annex

Clause AA[XX] of the *additional conditions of contract*

AA[XX] (1) For the purpose of this Clause, the following words and expressions shall have the meaning hereby assigned to them:- **Proposal on Innovation and Technology**

"I&T Proposal" means a proposal to adopt an innovation or technology which:-

(a) is additional to or more advanced than the requirements in the Works Information; and

(b) could enhance site safety, site supervision efficiency or decarbonisation.

"Innovation and Technology Register" is a register of I&T Proposals which are notified by the *Project Manager* or the *Contractor*.

(2) The *Contractor* and the *Project Manager* give written notice to the other when either makes an I&T Proposal. The *Project Manager* enters I&T Proposals in the Innovation and Technology Register. Notification of an I&T Proposal for which a compensation event has previously been notified is not required.

(3) (a) The *Project Manager* prepares a first Innovation and Technology Register and issues it to the *Contractor* within four weeks of the first notification of an I&T Proposal. The *Project Manager* instructs the *Contractor* to attend a first innovation and technology meeting within two weeks of the issuance of the first Innovation and Technology Register.

(b) Later innovation and technology meetings are held if either the *Project Manager* or *Contractor* instructs the other to attend an innovation and technology meeting.

(c) The *Project Manager* or *Contractor* may invite any person to attend an innovation and technology meeting.

(4) At an innovation and technology meeting, those who attend co-operate in:-

(a) considering each I&T Proposal in the Innovation and Technology Register, including but not limited to

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exploring the potential benefits as well as cost and time implications of adopting each I&T Proposal;

(b) deciding on the I&T Proposals to be adopted; and

(c) deciding which I&T Proposals can be removed from the Innovation and Technology Register.

(5) The *Project Manager* revises the Innovation and Technology Register to record the decisions made at each innovation and technology meeting and issues the revised Innovation and Technology Register to the *Contractor* within one week of the innovation and technology meeting. If a decision needs a change to the Works Information, the *Project Manager* instructs the change at the same time as the revised Innovation and Technology Register is issued.

[#]Delete/revise as appropriate.

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APPENDIX 5.66D Supplementary Agreement for NEC3 TSC

[DRAFT for NEC3 – TSC]

[PLEASE FILL IN ALL MISSING INFORMATION]

[*Insert Contract Title and Contract Number*]

Supplementary Agreement No. [xx]

THIS SUPPLEMENTARY AGREEMENT No. [xx] is made on [xx]

BETWEEN

(1) The Government of the Hong Kong Special Administrative Region (hereinafter referred to as "***Employer***"); and

(2) [*insert name of contractor*] of [*insert principal place of business of the contractor*] (hereinafter referred to as "***Contractor***"),

(the *Employer* and the *Contractor* are hereinafter collectively referred to as the "**Parties**").

WHEREAS

(A) The Parties have entered into a contract dated [xx] (bearing reference number Contract No. [xx]) for [***insert brief description of the subject matter of this contract***]. #[This Contract was subsequently amended by Supplementary #[Agreement] No. [**xx**] made by the Parties on [**xx**]].

(B) The Parties are desirous of amending this Contract in accordance with this Agreement.

#Delete/revise as appropriate.

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[DRAFT for NEC3 – TSC]

NOW IT IS HEREBY AGREED BETWEEN THE PARTIES as follows: -

1. In this Agreement (including the Recitals):

   (i) "Contract" means Contract No. [xx] referred to in Recital (A) #[and as it is amended by the Supplementary Agreement(s) mentioned in the Recital];

   (ii) words and expressions defined in this Contract shall, save as otherwise defined herein or unless the context otherwise requires, have the same meaning in this Agreement;

   (iii) all rules of interpretation and construction used in this Contract shall be and are hereby deemed to be incorporated in and form part of this Agreement as if set out herein in full.

2. In consideration of the mutual benefits conferred by this Agreement, the Parties agree that with effect from the date of this Agreement –

   (i) a new clause AA[XX] as set out in **Annex** is added to the *additional conditions of contract.*

   [*Note: The following sub-clause (ii) should be added if NEC Clauses 12.5 to 12.10 have not already been added in a previous supplementary agreement.*]

   (ii) the following shall be inserted after NEC Clause 12.4:

   "12.5 All references to "this contract" or "the contract" are to this contract as supplemented or amended from time to time.

   12.6 All references to the "*conditions of contract*" are to the *conditions of contract* described in Part One of the Contract Data and as supplemented or amended from time to time.

   12.7 All references to the "*additional conditions of contract*" are to the *additional conditions of contract* described in Part One of the Contract Data and as supplemented or amended from time to time.

   12.8 All references to a condition, clause, sub-clause or provision of the *conditions of contract* or *additional conditions of contract* are to the condition, clause, sub-clause or provision of the *conditions of contract* or *additional conditions of contract*, and as supplemented or amended from time to time.

   12.9 Headings are inserted for ease of reference only and shall not

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affect construction of this contract.

12.10 References in this contract to a document shall: -

(a) include all schedules, appendices, annexures and other materials attached to such document; and

(b) mean the same as supplemented or amended from time to time."

3. The Parties further agree that:

(i) the *Contractor* shall not be entitled to any additional payment, compensation, relief or variation of the Task Completion Date or the Prices by reason of any provision in this Agreement;

(ii) nothing in this Agreement shall affect any antecedent rights or obligations of either Party under the Contract;

(iii) save as varied herein, the terms and conditions of this Contract shall remain and continue in full force and effect in all respects; and

(iv) with effect from the date of this Agreement, this Agreement shall be construed as one with the Contract.

4. This Agreement shall be governed by and construed in accordance with the laws of Hong Kong.

[#]Delete/revise as appropriate.

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[DRAFT for NEC3 – TSC]

IN WITNESS WHEREOF this Agreement is executed as a deed by the Parties on the date first above written.

[***Please insert suitable attestation clauses in accordance with DEVB TC(W) No. 7/2014*** **]**

[#]Delete/revise as appropriate.

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Annex

Clause AA[XX] of the *additional conditions of contract*

AA[XX] (1) For the purpose of this Clause, the following words and expressions shall have the meaning hereby assigned to them:- **Proposal on Innovation and Technology**

"I&T Proposal" means a proposal to adopt an innovation or technology which:-

(a) is additional to or more advanced than the requirements in the Service Information; and

(b) could enhance site safety, site supervision efficiency or decarbonisation.

"Innovation and Technology Register" is a register of I&T Proposals which are notified by the *Service Manager* or the *Contractor*.

(2) The *Contractor* and the *Service Manager* give written notice to the other when either makes an I&T Proposal. The *Service Manager* enters I&T Proposals in the Innovation and Technology Register. Notification of an I&T Proposal for which a compensation event has previously been notified is not required.

(3) (a) The *Service Manager* prepares a first Innovation and Technology Register and issues it to the *Contractor* within four weeks of the first notification of an I&T Proposal. The *Service Manager* instructs the *Contractor* to attend a first innovation and technology meeting within two weeks of the issuance of the first Innovation and Technology Register.

(b) Later innovation and technology meetings are held if either the *Service Manager* or *Contractor* instructs the other to attend an innovation and technology meeting.

(c) The *Service Manager* or *Contractor* may invite any person to attend an innovation and technology meeting.

(4) At an innovation and technology meeting, those who attend co-operate in:-

(a) considering each I&T Proposal in the Innovation and Technology Register, including but not limited to

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exploring the potential benefits as well as cost and time implications of adopting each I&T Proposal;

(b) deciding on the I&T Proposals to be adopted; and

(c) deciding which I&T Proposals can be removed from the Innovation and Technology Register.

(5) The *Service Manager* revises the Innovation and Technology Register to record the decisions made at each innovation and technology meeting and issues the revised Innovation and Technology Register to the *Contractor* within one week of the innovation and technology meeting. If a decision needs a change to the Service Information, the *Service Manager* instructs the change at the same time as the revised Innovation and Technology Register is issued.

[#]Delete/revise as appropriate.

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APPENDIX 5.66E Supplementary Agreement for NEC4 ECC

[DRAFT for NEC4 – ECC]

[PLEASE FILL IN ALL MISSING INFORMATION]

[*Insert Contract Title and Contract Number*]

Supplementary Agreement No. [xx]

THIS SUPPLEMENTARY AGREEMENT No. [xx] is made on [xx]

BETWEEN

(1) The Government of the Hong Kong Special Administrative Region (hereinafter referred to as "***Client***"); and

(2) [*insert name of contractor*] of [*insert principal place of business of the contractor*] (hereinafter referred to as "***Contractor***"),

(the *Client* and the *Contractor* are hereinafter collectively referred to as the "**Parties**").

WHEREAS

(A) The Parties have entered into a contract dated [xx] (bearing reference number Contract No. [xx]) for [***insert brief description of the subject matter of this contract***]. #[This Contract was subsequently amended by Supplementary #[Agreement] No. [**xx**] made by the Parties on [**xx**]].

(B) The Parties are desirous of amending this Contract in accordance with this Agreement.

#Delete/revise as appropriate.

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[DRAFT for NEC4 – ECC]

NOW IT IS HEREBY AGREED BETWEEN THE PARTIES as follows: -

1. In this Agreement (including the Recitals):

   (i) "Contract" means Contract No. [xx] referred to in Recital (A) #[and as it is amended by the Supplementary Agreement(s) mentioned in the Recital];

   (ii) words and expressions defined in this Contract shall, save as otherwise defined herein or unless the context otherwise requires, have the same meaning in this Agreement;

   (iii) all rules of interpretation and construction used in this Contract shall be and are hereby deemed to be incorporated in and form part of this Agreement as if set out herein in full.

2. In consideration of the mutual benefits conferred by this Agreement, the Parties agree that with effect from the date of this Agreement –

   (i) a new clause AA[XX] as set out in **Annex** is added to the *additional conditions of contract.*

   [*Note: The following sub-clause (ii) should be added if NEC Clauses 12.5 to 12.10 have not already been added in a previous supplementary agreement.*]

   (ii) the following shall be inserted after NEC Clause 12.4:

   "12.5 All references to "this contract" or "the contract" are to this contract as supplemented or amended from time to time.

   12.6 All references to the "*conditions of contract*" are to the *conditions of contract* described in Part One of the Contract Data and as supplemented or amended from time to time.

   12.7 All references to the "*additional conditions of contract*" are to the *additional conditions of contract* described in Part One of the Contract Data and as supplemented or amended from time to time.

   12.8 All references to a condition, clause, sub-clause or provision of the *conditions of contract* or *additional conditions of contract* are to the condition, clause, sub-clause or provision of the *conditions of contract* or *additional conditions of contract*, and as supplemented or amended from time to time.

   12.9 Headings are inserted for ease of reference only and shall not

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affect construction of this contract.

12.10 References in this contract to a document shall: -

(a) include all schedules, appendices, annexures and other materials attached to such document; and

(b) mean the same as supplemented or amended from time to time."

3. The Parties further agree that:

(i) the *Contractor* shall not be entitled to any additional payment, compensation, relief or variation of the Completion Date or the Prices by reason of any provision in this Agreement;

(ii) nothing in this Agreement shall affect any antecedent rights or obligations of either Party under the Contract;

(iii) save as varied herein, the terms and conditions of this Contract shall remain and continue in full force and effect in all respects; and

(iv) with effect from the date of this Agreement, this Agreement shall be construed as one with the Contract.

4. This Agreement shall be governed by and construed in accordance with the laws of Hong Kong.

[#]Delete/revise as appropriate.

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[DRAFT for NEC4 – ECC]

IN WITNESS WHEREOF this Agreement is executed as a deed by the Parties on the date first above written.

[***Please insert suitable attestation clauses in accordance with DEVB TC(W) No. 7/2014*** **]**

[#]Delete/revise as appropriate.

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Annex

Clause AA[XX] of the *additional conditions of contract*

AA[XX] (1) For the purpose of this Clause, the following words and expressions shall have the meaning hereby assigned to them:- **Proposal on Innovation and Technology**

"I&T Proposal" means a proposal to adopt an innovation or technology which:-

(a) is additional to or more advanced than the requirements in the Scope; and

(b) could enhance site safety, site supervision efficiency or decarbonisation.

"Innovation and Technology Register" is a register of I&T Proposals which are notified by the *Project Manager* or the *Contractor*.

(2) The *Contractor* and the *Project Manager* give written notice to the other when either makes an I&T Proposal. The *Project Manager* enters I&T Proposals in the Innovation and Technology Register. Notification of an I&T Proposal for which a compensation event has previously been notified is not required.

(3) (a) The *Project Manager* prepares a first Innovation and Technology Register and issues it to the *Contractor* within four weeks of the first notification of an I&T Proposal. The *Project Manager* instructs the *Contractor* to attend a first innovation and technology meeting within two weeks of the issuance of the first Innovation and Technology Register.

(b) Later innovation and technology meetings are held if either the *Project Manager* or *Contractor* instructs the other to attend an innovation and technology meeting.

(c) The *Project Manager* or *Contractor* may invite any person to attend an innovation and technology meeting.

(4) At an innovation and technology meeting, those who attend co-operate in:-

(a) considering each I&T Proposal in the Innovation and Technology Register, including but not limited to

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exploring the potential benefits as well as cost and time implications of adopting each I&T Proposal;

(b) deciding on the I&T Proposals to be adopted; and

(c) deciding which I&T Proposals can be removed from the Innovation and Technology Register.

(5) The *Project Manager* revises the Innovation and Technology Register to record the decisions made at each innovation and technology meeting and issues the revised Innovation and Technology Register to the *Contractor* within one week of the innovation and technology meeting. If a decision needs a change to the Scope, the *Project Manager* instructs the change at the same time as the revised Innovation and Technology Register is issued.

[#]Delete/revise as appropriate.

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APPENDIX 5.66F Supplementary Agreement for NEC4 TSC

[DRAFT for NEC4 – TSC]

[PLEASE FILL IN ALL MISSING INFORMATION]

[*Insert Contract Title and Contract Number*]

Supplementary Agreement No. [xx]

THIS SUPPLEMENTARY AGREEMENT No. [xx] is made on [xx]

BETWEEN

(1) The Government of the Hong Kong Special Administrative Region (hereinafter referred to as "***Client***"); and

(2) [*insert name of contractor*] of [*insert principal place of business of the contractor*] (hereinafter referred to as "***Contractor***"),

(the *Client* and the *Contractor* are hereinafter collectively referred to as the "**Parties**").

WHEREAS

(A) The Parties have entered into a contract dated [xx] (bearing reference number Contract No. [xx]) for [***insert brief description of the subject matter of this contract***]. #[This Contract was subsequently amended by Supplementary #[Agreement] No. [**xx**] made by the Parties on [**xx**]].

(B) The Parties are desirous of amending this Contract in accordance with this Agreement.

#Delete/revise as appropriate.

Go to Table of Content >>> Go to Table of Content >>> Go to Table of Content

NOW IT IS HEREBY AGREED BETWEEN THE PARTIES as follows: -

1. In this Agreement (including the Recitals):

   (i) "Contract" means Contract No. [xx] referred to in Recital (A) #[and as it is amended by the Supplementary Agreement(s) mentioned in the Recital];

   (ii) words and expressions defined in this Contract shall, save as otherwise defined herein or unless the context otherwise requires, have the same meaning in this Agreement;

   (iii) all rules of interpretation and construction used in this Contract shall be and are hereby deemed to be incorporated in and form part of this Agreement as if set out herein in full.

2. In consideration of the mutual benefits conferred by this Agreement, the Parties agree that with effect from the date of this Agreement –

   (i) a new clause AA[XX] as set out in **Annex** is added to the *additional conditions of contract.*

   [*Note: The following sub-clause (ii) should be added if NEC Clauses 12.5 to 12.10 have not already been added in a previous supplementary agreement.*]

   (ii) the following shall be inserted after NEC Clause 12.4:

   "12.5 All references to "this contract" or "the contract" are to this contract as supplemented or amended from time to time.

   12.6 All references to the "*conditions of contract*" are to the *conditions of contract* described in Part One of the Contract Data and as supplemented or amended from time to time.

   12.7 All references to the "*additional conditions of contract*" are to the *additional conditions of contract* described in Part One of the Contract Data and as supplemented or amended from time to time.

   12.8 All references to a condition, clause, sub-clause or provision of the *conditions of contract* or *additional conditions of contract* are to the condition, clause, sub-clause or provision of the *conditions of contract* or *additional conditions of contract*, and as supplemented or amended from time to time.

   12.9 Headings are inserted for ease of reference only and shall not affect construction of this contract.

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12.10 References in this contract to a document shall: -

(a) include all schedules, appendices, annexures and other materials attached to such document; and

(b) mean the same as supplemented or amended from time to time."

3. The Parties further agree that:

(i) the *Contractor* shall not be entitled to any additional payment, compensation, relief or variation of the Task Completion Date or the Prices by reason of any provision in this Agreement;

(ii) nothing in this Agreement shall affect any antecedent rights or obligations of either Party under the Contract;

(iii) save as varied herein, the terms and conditions of this Contract shall remain and continue in full force and effect in all respects; and

(iv) with effect from the date of this Agreement, this Agreement shall be construed as one with the Contract.

4. This Agreement shall be governed by and construed in accordance with the laws of Hong Kong.

[#]Delete/revise as appropriate.

Go to Table of Content >>> Go to Table of Content >>> Go to Table of Content

[DRAFT for NEC4 – TSC]

IN WITNESS WHEREOF this Agreement is executed as a deed by the Parties on the date first above written.

[***Please insert suitable attestation clauses in accordance with DEVB TC(W) No. 7/2014*** **]**

[#]Delete/revise as appropriate.

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Annex

Clause AA[XX] of the *additional conditions of contract*

AA[XX] (1) For the purpose of this Clause, the following words and expressions shall have the meaning hereby assigned to them:- **Proposal on Innovation and Technology**

"I&T Proposal" means a proposal to adopt an innovation or technology which:-

(a) is additional to or more advanced than the requirements in the Scope; and

(b) could enhance site safety, site supervision efficiency or decarbonisation.

"Innovation and Technology Register" is a register of I&T Proposals which are notified by the *Service Manager* or the *Contractor*.

(2) The *Contractor* and the *Service Manager* give written notice to the other when either makes an I&T Proposal. The *Service Manager* enters I&T Proposals in the Innovation and Technology Register. Notification of an I&T Proposal for which a compensation event has previously been notified is not required.

(3) (a) The *Service Manager* prepares a first Innovation and Technology Register and issues it to the *Contractor* within four weeks of the first notification of an I&T Proposal. The *Service Manager* instructs the *Contractor* to attend a first innovation and technology meeting within two weeks of the issuance of the first Innovation and Technology Register.

(b) Later innovation and technology meetings are held if either the *Service Manager* or *Contractor* instructs the other to attend an innovation and technology meeting.

(c) The *Service Manager* or *Contractor* may invite any person to attend an innovation and technology meeting.

(4) At an innovation and technology meeting, those who attend co-operate in:-

(a) considering each I&T Proposal in the Innovation and Technology Register, including but not limited to

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exploring the potential benefits as well as cost and time implications of adopting each I&T Proposal;

(b) deciding on the I&T Proposals to be adopted; and

(c) deciding which I&T Proposals can be removed from the Innovation and Technology Register.

(5) The *Service Manager* revises the Innovation and Technology Register to record the decisions made at each innovation and technology meeting and issues the revised Innovation and Technology Register to the *Contractor* within one week of the innovation and technology meeting. If a decision needs a change to the Scope, the *Service Manager* instructs the change at the same time as the revised Innovation and Technology Register is issued.

[#]Delete/revise as appropriate.

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CHAPTER 6

TENDER PROCEDURE

The parts of the PAH shown in blue and bold should only be updated by Works Branch of Development Bureau.

Rev	Issue Date	Amendment Incorporated
First Issue	December 2024	NA
1	16 April 2025	Amd No. 2/2025
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SYNOPSIS

This Chapter sets out the procedures for obtaining and assessing tenders for all capital works contracts which are basically in accordance with Stores and Procurement Regulations (SPRs).

To cater for the wider adoption of New Engineering Contract (NEC) form in public works projects, DEVB has promulgated the "Practice Notes for New Engineering Contract – Engineering and Construction Contract (NEC–ECC) for Public Works Projects in Hong Kong" (referred to as "the Practice Notes") aiming to provide guidance, performance benchmarking and alignment of practices in the administration of public works projects using NEC form. The most updated version of the Practice Notes is available at DEVB's website:

https://www.devb.gov.hk/en/publications_and_press_releases/publications/standard_contract_documents/practice_notes_nec_engineering_construction_contract/index.html

Whilst the guidelines provided in this Chapter were originally written for tender procedure under GCC, the majority of them can still be applied to tender procedure under NEC and tenders for term and maintenance contracts subject to any modifications set out in Chapter 8 "Maintenance and Minor Works and Works for and by Others". Where appropriate, this Chapter shall be read in conjunction with the Practice Notes for relevant subjects of tender procedure. In addition, project officers shall refer to the relevant guidelines or practice from corresponding Works Departments regarding how the duties of the Engineer / Architect / Surveyor / Supervising Officer under GCC form contracts would be taken up by the Project Manager / Supervisor under NEC form contracts. Please also refer to para. II.04 in this Chapter for the comparison of common terminologies used under GCC and NEC–ECC.

In addition, these procedures apply to tenders for design and build contracts, subject to the modifications set out in the Administrative Procedures for Use with the Government of the Hong Kong Special Administrative Region (HKSAR) General Conditions of Contract for Design and Build Contracts, which can be found on the DEVB website (under Publications and Press Releases\Publications\Standard Contract Documents\). The additional procedures for procurement covered by the Agreement on Government Procurement of the World Trade Organization are also set out.

Tenders for contracts may only be invited after obtaining authority, either by the inclusion of the project in Public Works Programme Category A or D, or by approval from the respective Policy Secretaries. The Secretary for Financial Services and the Treasury has delegated authorities to all Policy Secretaries to allow tenders for works projects, irrespective of type and value, to be invited before funding is secured subject to the conditions as set out in Financial Circular No. 3/2020. However, tender action is normally subject to the availability of funds and of land, and the completion of legal and administrative procedures.

Tenders are normally invited from contractors in the appropriate categories and groups of Development Bureau Lists of Approved Contractors for Public Works or Approved Suppliers of Materials and Specialist Contractors for Public Works through notification in the Government of the HKSAR Gazette or through invitations published on the Internet. For occasions where the quality of service or product is a major consideration, a marking scheme in tender evaluation should be adopted. A separate exercise for prequalification of tenderers should only be employed in exceptional situation with sound justifications. Minor services

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and stores are procured in accordance with SPRs. Supply-only tenders are normally handled by the Government Logistics Department. Government tender procedure is not required for Government works entrusted to non-government bodies, such as MTR Corporation Limited, who will themselves be responsible in accordance with their own tender procedure.

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I. ABBREVIATION

I.01 The meaning of the abbreviations assigned in this Chapter of the Project Administration Handbook for Civil Engineering Works shall only apply to this Chapter.

I.02 The following list shows the meaning of the abbreviations for the common terms used in this Chapter of the Project Administration Handbook for Civil Engineering Work:

Abbreviation	Term
AFCD	Agriculture, Fisheries and Conservation Department
ArchSD	Architectural Services Department
ASP	Authorized Services Providers
BJO	Beijing Office
BQ	Bills of Quantities
Cat.	Category
CTB	Central Tender Board
COLO(Unit 3)	Chief Official Language Officer (Translation Unit 3)
CIO	Chief Information Officer
CEDD	Civil Engineering and Development Department
CSB	Civil Services Bureau
C&D	construction and demolition
CITA	Construction Industry Training Authority
CMIS	Contractor Management Information System
D of J	Department of Justice
D&B	Design and Build
DEVB TCW No.	DEVB Technical Circular (Works) No.
DEVB	Development Bureau
D of A	Director of Audit
D of Adm	Director of Administration
D of GL	Director of Government Logistics
DPO	Digital Policy Office
DSD	Drainage Services Department
e-TS(WC)	Electronic Tendering System (Works Contract)
EMSTF	Electrical and Mechanical Services Trading Fund
EDP	Electronic Dissemination Package
ETWB	Environment, Transport and Works Bureau
EIA	Environmental Impact Assessment
EPD	Environmental Protection Department
ETWB TCW No.	Environment, Transport and Works Bureau Technical Circular (Works) No.
FC No.	Financial Circular No.

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Abbreviation	Term
FSTB	Financial Services and the Treasury Bureau
GCC	General Conditions of Contract for Civil Engineering Works (1999 Edition)
GCT	General Conditions of Tender
GS	General Specification for Civil Engineering Works (2020 Edition)
GEO	Geotechnical Engineering Office
HQ	Headquarters
HyD	Highways Department
HKSAR	Hong Kong Special Administrative Region
I&PR	Information and Public Relations Unit
LWBTC No.	Lands and Works Branch Technical Circular No.
LAD(W)	Legal Advisory Division (Works) of Development Bureau
LCSD	Leisure and Cultural Services Department
LD	Liquidated Damages
MRC	Managing Review Committee
MFC	Marine Fill Committee
MTRCL	MTR Corporation Limited
NEC	New Engineering Contract
NEC-ECC	New Engineering Contract – Engineering and Construction Contract
No.	Number
Para.	Paragraph
PP	Particular Preambles
PS	Particular Specifications
PSTsy	Permanent Secretary for Financial Services and the Treasury (Treasury)
PIO	Principal Information Officer
PAH	Project Administration Handbook for Civil Engineering Works
PFC	Public Fill Committee
PWD TC No.	Public Works Departmental Technical Circular No.
PWP	Public Works Programme
PWSC	Public Works Sub-Committee
PWTB	Public Works Tender Board
SDEV	Secretary for Development
SETW	Secretary for the Environment, Transport and Works
SFST	Secretary for Financial Services and the Treasury
S for Tsy	Secretary for the Treasury
S for W	Secretary for Works
SEO(PS)	Senior Executive Officer (Professional Services)
SCC	Special Conditions of Contract
SCT	Special Conditions of Tender

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Abbreviation	Term
SDR	Special Drawing Rights
SMM	Standard Method of Measurement for Civil Engineering Works (1992 Edition)
SPO	Secretariat Press Officer
SPRs	Stores and Procurement Regulations
SMP	Sub-contractor Management Plan
TLB	Transport and Logistics Bureau
TD	Transport Department
VSRS	Voluntary Sub-contractor Registration Scheme
WSD	Water Supplies Department
WBTC No.	Works Bureau Technical Circular No.
WTO GPA	Agreement on Government Procurement of the World Trade Organization

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II. GLOSSARY OF TERMS

II.01 Words and expressions to which meanings are assigned in this Chapter of the Project Administration Handbook for Civil Engineering Works (PAH) shall only apply to this Chapter.

II.02 In this Chapter of the PAH the following words and expressions shall have the meaning hereby assigned to them except when the context otherwise requires:

"Government" means the Government of the Hong Kong Special Administrative Region.

"project office" means the office responsible for the planning, design and construction of the project.
(Where these functions are performed by different offices at different stages, the project office shall mean the office responsible at each particular stage.)

"Contract", "Contractor", "Drawings", "Employer", "Engineer" and "Engineer's Representative" are as defined in the General Conditions of Contract for Civil Engineering Works (1999 Edition) or the General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition).

"Schedule of Rates" and "Works Order" are as defined in the General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition).

II.03 Words importing the singular only also include the plural and vice versa where the context requires.

II.04 The common terminologies used in GCC and NEC–ECC are compared in the table below.

GCC	**NEC–ECC**
Extension of time, variations, claims, disruptions, loss and expenses	Compensation events
Bills of Quantities / Schedule of Rates	Bill of Quantities / Activity Schedule
Architect / Engineer / Surveyor / Supervising Officer	Project Manager / Supervisor
Site	Site / Working Areas
Contract Sum	The Prices
Date of completion	Completion Date
Estimated value of works	Price for Work Done to Date
Maintenance Periods	Defects date, defect correction period

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1. TENDER PROCEDURE CHECKLIST

This tender procedure checklist provides a general list of actions to be taken and it may not cover all situations. Individual departments/offices/divisions should extract this list, expand it if necessary to include internal procedures of the department/office/division concerned, and make it a standard requirement for a copy of the check-list to be kept in the relevant project file and project handbook. The project engineer should record in the "Remarks" column of the checklist the file reference and other relevant information when action on any item is completed.

Item No.	Procedure	Reference	Remarks
1.	**PRIOR TO TENDERING**		
1.1	Decide method of calling for tenders	Para. 2.1.1	
1.2	Decide method of tender evaluation	Para. 2.1.5 & 2.1.6	
1.3	Seek policy support and obtain approval to use non-standard marking scheme (if required)	Para. 2.1.5	
1.4	Prepare schedule for tender procedures	Para. 2.4	
1.5	Obtain authority to call for tenders	Para. 3.1	
1.6	Check availability of funds	Para. 3.2	
1.7	Check availability of land	Para. 3.3	
1.8	Complete legal and administrative procedures	Para. 3.4 & Chapter 3	
1.9	Complete tender documents (for contract estimated to exceed $500 million, arrange legal vetting of tender documents)	Para. 3.5 & Chapter 5	
1.10	Check interfacing and handover of land	Para. 3.6	
1.11	Check estimated value of the contract in need for compliance with the WTO GPA tendering procedures	Para. 3.7	
1.12	Not Used		
1.13	Seek legal advice for restriction on the maximum number of contracts to be undertaken by the same contractor (if imposed)	Para. 3.11	
2.	**CALLING FOR TENDER** (The following applies to normal tendering procedures. For single and restricted tendering and prequalified tendering, see Para. 4.2 and 4.3 respectively for general guidelines)		
2.1	Determine categories and groups of contractors eligible to tender	Para. 4.1.1	
2.2	Register for tender closing date (if necessary)	Para. 4.1.2 & Appendix 6.38	Amd No. 1/2026
2.3	Complete routing sheet, check-list and estimates summary	Para. 4.1.2	

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Item No.	Procedure	Reference	Remarks
2.4	Obtain approval to proceed with tender invitation / Complete memo requesting publication of gazette notice (if required)	Para. 4.1.2	
2.5	Arrange tender notice for publication in department's Home Page on the Internet / Arrange publication of gazette notice (if required) / Arrange publication of tender notice in local press (if necessary)	Para. 4.1.2	
2.6	Arrange publication of press release (if required)	Para. 4.1.2	
2.7	Issue tender documents (for procurement covered by WTO GPA, forward tender documents to tenderers upon receipt of a written request from tenderers)	Para. 4.1.1 & 4.1.3	
2.8	Issue EDP with tender documents and to ASP	Para. 4.1.3	
3.	**ACTION DURING TENDER PERIOD**		
3.1	Arrange pre-tender meeting (if necessary)	Para. 5.1	
3.2	Arrange tender addendum by circulation letter (if required)	Para. 5.2	
3.3	Deal with queries from tenderers	Para. 5.3	
3.4	Arrange sale of plans or drawings (if required)	Para. 5.4	
3.5	Arrange legal vetting of substantial alteration to tender documents for contracts estimated to exceed $500 million in value (if necessary)	Para. 5.6	
3.6	Arrange extension of time for tendering (if necessary)	Para. 5.7	
3.7	Seek tenderers' agreement to extension of tender validity period (if necessary)	Para. 5.8	
4.	**EXAMINATION OF AND REPORT ON TENDERS**		
4.1	Establish assessment panel to evaluate the technical submission for marking scheme approach	Para. 6.3	
4.2	Declaration of conflict of interest by tender examination team	Para. 6.4	
4.3	Check if all electronic files in the tender return has been 'digitally signed' (if necessary)	Para. 6.5	
4.4	Check electronic submission of tender return according to Appendix 6.34 (if necessary)	Para. 6.5 & Appendix 6.34	
4.5	Check if all tenderers contain the names and addresses of all the partners or offices as appropriate	Para. 6.6	
4.6	Seek clarification from tenderers and request confirmation by writing (if required)	Para. 6.6	
4.7	Check and correct errors in the pricing document according to ETWB TCW No. 41/2002	Para. 6.6, 6.9 & ETWB TCW No. 41/2002	

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Item No.	Procedure	Reference	Remarks
4.8	Bring to Engineer designate's attention and investigate unreasonably low or high rates, missing rates and items of which any changes in quantity would materially affect the final contract price	Para. 6.8	
4.9	Check all tenders for eligibility to tender	Para. 6.12	
4.10	Check tenderer's past performance on DEVB's CMIS as appropriate	Para. 6.14.1, 6.14.2 & ETWB TCW No. 3/2007	
4.11	Not Used		
4.12	Conduct tender evaluation based on a marking scheme approach or a formula approach according to DEVB TCW Nos. 4/2014 & 4/2014A and SDEV's memo ref. ( ) in DEVB(W) 546/84/01 dated 10.11.2023	Para. 6.14.2, DEVB TCW Nos. 4/2014 & 4/2014A & SDEV's memo ref. ( ) in DEVB(W) 546/84/01 dated 10.11.2023	
4.13	Assess designs and/or alternative designs by tenderers (if alternative designs/tenders are invited)	Para. 6.11	
4.14	Check and evaluate technical submission	Para. 6.14.3	
4.15	Calculate present value of contract prices (if required)	Para. 6.13	
4.16	List tenders in order of the combined price/quality score	--	
4.17	For the 3 tenderers with the highest combined price/quality score,		
4.17.1	Check if tenders have been signed by person authorized to sign tenders	Para. 6.14.4	
4.17.2	Check amount of work allowed under probationary status (if necessary)	Para. 6.14.4	
4.17.3	Check financial capability	Para. 6.14.4	
4.17.4	Check return of certification for tender addenda	Para. 6.14.4	
4.18	Check eligibility to tender and for the award of contracts for contractors and specialist contractors with probationary status (if necessary)	Para. 6.14.6	
4.19	Conduct tender negotiations (if necessary)	Para. 6.17	
4.20	Complete tender report recommending acceptance of tender	Para. 6.15 & 6.18	
4.21	Obtain endorsement of tender report	Para. 6.19	
4.22	Submit tender report to tender board (if required)	Para. 6.20 & 6.21	Amd No. 1/2026
5.	**ACCEPTANCE OF TENDER**		
5.1	Obtain authorization to accept tender	Para. 7.1	

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Item No.	Procedure	Reference	Remarks
5.2	Copy the approval memo to D of A and D of GL for information	Para. 7.1	
5.3	Arrange safe custody of all tenders returned with the tender report	Para. 7.1	
5.4	Check availability of funds	Para. 7.2	
5.5	Check availability of land	Para. 7.2	
5.5.1	Check whether the Employer/Engineer designate has issued a notification in writing on reduction of Contingency Sum (if applicable)	Para. 7.2	
5.6	Review and notify tenderer of rate of LD entered in the tender documents / Decide correspondence to be formed as part of the Contract	Para. 7.2 & 7.2.1	
5.7	Fix date for execution of the Articles of Agreement	--	
5.8	Send letter of acceptance to successful tenderer	Para. 7.3	
5.9	Send letter to unsuccessful tenderers	Para. 7.4.1	
5.9.1	Send letter to tenderers with irregularities in tenders submitted via e-TS(WC) (if necessary)	Para. 6.5	Amd No. 2/2025
5.10	Response to queries and arrange debriefing to unsuccessful tenderers (if necessary)	Para. 7.4.2 & 11.6	
5.11	Report tendering performance to Managing Departments	Para. 7.7	
6.	**PREPARATION OF CONTRACT DOCUMENTS**		
6.1	Prepare, check and seal original, duplicate, triplicate (and quadruplicate, in case of consultant-managed contracts) and 3 certified true copies of contract documents (i.e. one hardcopy and two electronic copies of the certified true copies of contract documents)	Para. 8.1 & 8.2	
6.2	Check and obtain approval of proposed bondsman and bond (if necessary)	Para. 8.3	
6.3	Check Contractor's business registration details	Para. 8.4	
6.4	Check Contractor's insurance policies and premium receipts (if required)	Para. 8.4	
6.5	Check Contractor's Power of Attorney (if required)	Para. 8.4	
6.6	Check Contractor's security deposit receipt (if required)	Para. 8.4	
6.7	Check Joint Venture Guarantees (if required)	Para. 8.4	

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Item No.	Procedure	Reference	Remarks
7.	**EXECUTION OF ARTICLES OF AGREEMENT**		
7.1	Arrange publicity for contract signing (if necessary)	Para. 9.4	
7.2	Signing of original and duplicate of contract documents (by the Contractor and Government signatories)	Para. 9.2	
7.3	Record Contractor's insurance policies (if required)	Para. 9.2	
7.4	Retain/Return Contractor's insurance policies (if required)	Para. 9.2	
7.5	Issue acknowledgement letter to Contractor for receipt of documents (if required)	Para. 9.3	
8.	**DISTRIBUTION OF CONTRACT DOCUMENTS**		
8.1	Forward original and 3 certified true copies of contract documents (i.e. one hardcopy and two electronic copies of the certified true copies of contract documents) together with the originals or certified true copies of any surety bond, insurance policies and premium receipts to departmental headquarters by hand (different arrangement for HyD)	Para. 10	
8.2	Deliver duplicate of contract documents to the Contractor and check for its receipt	Para. 10	
8.3	Forward triplicate of contract documents to the Engineer	Para. 10	
8.4	Notify relevant tender boards or D of GL for details of the contract awarded	Para. 11.4 & 11.5	
8.5	Check EDP return notice by ASP	Para. 11.7	

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2. GENERAL

2.1 METHODS OF CALLING FOR TENDERS

2.1.1 For Contracts Generally

The methods of calling for tenders are listed in the following tables:

NORMAL PROCEDURE (This procedure should be used wherever possible)		
Method	Applications	Eligible Tenderers
Tenders invited by notification on Internet and, if required, in Government Gazette (see Para. 4.1)	For works generally	All contractors in the appropriate categories and groups of DEVB List of Approved Contractors for Public Works (see Section 2 of Contractor Management Handbook and Para. 4.1.1)
	For specialist works and supply of materials where an appropriate specialist category exists in DEVB List of Approved Suppliers of Materials and Specialist Contractors for Public Works	All contractors/suppliers in the appropriate specialist category of DEVB List of Approved Suppliers of Materials and Specialist Contractors for Public Works (see Section 3 of Contractor Management Handbook and Para. 4.1.1)

SPECIAL PROCEDURE (The approval of SFST must be obtained prior to inviting tenders under these circumstances)		
Method	Applications	Eligible Tenderers
Tenders invited by direct invitation (see Para. 4.2)	For emergency works under which curtailment of the normal tender procedure is essential, and for works where public invitation to tender is undesirable	Contractors chosen from DEVB Lists for their ability to carry out the works (see Para. 4.2)
	For specialist works where there is no appropriate category in DEVB List of Approved Suppliers of Materials and Specialist Contractors for Public Works, and for works where invitation of tenders from Contractors on DEVB Lists generally is considered inappropriate (see Para. 4.2)	Contractors chosen after a prequalification exercise, which may be local or overseas and may not necessarily appear in DEVB Lists (see Para. 4.3)

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2.1.2 For Minor Services and Stores

The procedures laid down in SPRs 200 to 290 shall be followed as appropriate for the procurement of stores and services/procurement of consultancy services of value not exceeding the financial limits stated in SPR 220/SPR 221.

The tender procedures/consultants selection procedures laid down in Chapter III/Chapter IV of the SPRs shall be followed as appropriate when making the purchases of stores and services/procurement of consultancy services exceeding the financial limits stated in SPR 220/SPR 221.

2.1.3 For Supply-only Tenders

Supply-only tenders are to be arranged through the Government Logistics Department following the procedures laid down in SPRs. Supplies Officer of the department/office should be consulted regarding the arrangements.

2.1.4 For Government Works Entrusted to Outside Bodies

For Government works entrusted to outside bodies (e.g. MTRCL) tenders are obtained by the agencies using their own procedures. However, prior approval by SFST of the proposed arrangement must be obtained whenever funding by Government is involved.

2.1.5 Use of Marking Schemes in Tender Evaluation

(Ref.: SDEV's memos ref. ( ) in DEVB(W) 546/84/01 dated 25.2.2021 and 10.11.2023.)

SPR 350(h) specifies the types of contracts for which departments may consider adopting a marking scheme in tender evaluation. With a view to adopting a more transparent and systematic approach to tender evaluation, putting more emphasis on the quality of tender and eliminating the time-consuming prequalification process, DEVB TCW Nos. 4/2014, 4/2014A and SDEV's memo ref. ( ) in DEVB(W) 546/84/01 dated 10.11.2023 stipulate a wider application of the marking scheme method. A separate exercise for prequalification of tenderers should only be employed in accordance with the guidelines for prequalification given in ETWB TCW No. 5/2015.

Guidelines on the use of marking schemes for tender evaluation are given in SPRs Appendix III(G) and DEVB TCW Nos. 4/2014, 4/2014A and SDEV's memo ref. ( ) in DEVB(W) 546/84/01 dated 10.11.2023. If departments wish to make any modifications to the standard marking scheme, they must seek policy support from the Works Policy Division of DEVB or TLB before they proceed to obtain approval from the relevant tender board. This procedure must be complied with prior to invitation to tender. In seeking policy support for the use of a non-standard marking scheme, departments should provide a brief description of the works, the special features of the contract, justification for the use of a non-standard marking scheme, respective weights for quality and price, assessment criteria and their relative weights, and passing mark for individual attributes. The departments should also provide detailed explanation on why the standard marking scheme is considered inapplicable. The departments will only be allowed to proceed with submission to the relevant tender board for approval of a non-standard marking scheme after they have obtained the said policy support. No alteration to an approved marking scheme may be made without the prior approval of the relevant tender board. If departments wish to adopt the option of 50/50 for the "price to

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technical weighting" in the Standard Marking Scheme, they are required to seek policy support from DEVB in accordance with SDEV's memo referenced ( ) in DEVB(W) 546/84/01 dated 25.2.2021.

Notwithstanding the above, departments should not adopt marking schemes in tenders where in their opinion EMSTF may have an interest to bid in order to guard against potential bid challenges. Please refer to DEVB TCW Nos. 4/2014 and 4/2014A and SDEV's memo ref. ( ) in DEVB(W) 546/84/01 dated 10.11.2023 for details.

For maintenance works contract, please also refer to WBTC Nos. 15/99 & 15/99A and ETWB TCW No. 15/99B for details. If there are minimum requirements for which the tenderers must comply with before their tenders will be considered further, departments should include all the necessary details of these mandatory requirements and the consequence of non-compliance in the Notes to Tenderers.

For contracts involving tunnel works, the marking scheme for the tenderers' technical submissions should contain elements and due weight for assessment against the minimum requirements governing the competence and experience of site supervision staff, including geotechnical/tunnelling/blasting specialists, that the contractor is required to employ under the contract (Ref.: ETWB TCW No. 15/2005).

2.1.6 A Formula Approach to Tender Evaluation

Guidelines on the formula approach are found in DEVB TCW Nos. 4/2014 and 4/2014A and SDEV's memo ref. ( ) in DEVB(W) 546/84/01 dated 10.11.2023. For public works contracts being applied by DEVB TCW No. 4/2014 and the tender invitations of which are issued **on or after 1 October 2018**, the "training rating" shall be incorporated in the Formula Approach and the Standard Marking Scheme for evaluating tender s from Group C contractors. In the case of open tendering, or where tenders are invited from contractors other than Group C contractors enlisted in any category of the List of Approved Contractors for Public Works, the "training rating" shall also be incorporated in the Formula Approach and the Standard Marking Scheme for evaluating tenders if the department has assessed that not less than 80% of potential tenderers would be Group C contractors enlisted in any category of the List of Approved Contractors for Public Works so that the past performance assessment criterion in connection with the provision of on-the-job training to workers could be meaningfully adopted and put to use.

2.2 TENDER BOARDS

(Ref.: SPR 310 & Appendix II, FC No. 3/2009 and the Civil and Miscellaneous Lists of the Government of the HKSAR)

The Financial Secretary has appointed several tender boards (the Central Tender Board and other subsidiary tender boards), each consisting of not less than three persons, to consider and decide on the acceptance of tender. Updated information on the membership and terms of reference of these tender boards can be found in the Civil and Miscellaneous Lists of the Government of the HKSAR, which can be viewed at the website https://www.info.gov.hk/cml/eng/cbc/c23.htm. The following tender boards mainly deal with public works:

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(a) Central Tender Board

The CTB is to deal with high value tenders, which exceed those values specified for the subsidiary tender boards. For construction services, tenders exceeding $200 million are considered by the CTB. It also advises on matters concerning tenders, contracts and subsidiary tender boards generally.

The CTB normally meets on every Wednesday except near holidays and except when a Central Consultants Selection Board meeting, which is held monthly, is scheduled for the following week. However, the Chairman may, if necessary, fix a meeting on any weekday instead.

The Tender Box for the CTB is located at the lobby of the Public Entrance on the Ground Floor, East Wing, Central Government Offices, 2 Tim Mei Avenue, Tamar, Hong Kong

(b) Public Works Tender Board

The PWTB is to deal with tenders for works contracts not exceeding $ 200 million.

The PWTB normally meets on every Wednesday. However, the Chairman may, if necessary, fix a meeting on any weekday instead, or direct that certain tenders be circulated for consideration and approved by the Board Members.

The Tender Box for the PWTB is located at Room 503, 5/F., Low Block, Queensway Government Offices, 66 Queensway, Hong Kong.

Under the simplified tendering arrangement promulgated in FC No. 3/2009 (updated on 28 September 2020), Controlling Officers can approve the award of works contracts that fall within certain criteria. (see Para. 7.1 for details)

2.3 DEVB LISTS OF APPROVED CONTRACTORS

DEVB maintains two lists of approved contractors for public works, namely:

(a) The List of Approved Contractors for Public Works, and

(b) The List of Approved Suppliers of Materials and Specialist Contractors for Public Works.

Contractors registered under (a) above are eligible to submit tenders for the respective category of contracts arising in the five works categories into which the majority of Government public works contracts fall, namely, Buildings, Port Works, Roads and Drainage, Site Formation and Waterworks. (Section 2 of Contractor Management Handbook gives more details of the rules for administration of the List of Approved Contractors for Public Works)

The List of Approved Suppliers of Materials and Specialist Contractors for Public Works is a register of suppliers of materials and specialist contractors eligible to submit tenders for contracts arising in the respective specialist categories in the List and in certain

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circumstances to act as sub-contractors to main contractors. Current categories of specialist suppliers/contractors contained in the List are given in Appendix 3A of Contractor Management Handbook. (Section 3 of Contractor Management Handbook gives more details of the rules for administration of the List of Approved Suppliers of Materials and Specialist Contractors for Public Works)

Contractors included in the above approved lists should be required to notify in writing immediately or in the tender submission of any factor that might affect their qualified status to tender. The Government has the right to review their qualified status in the light of any new information provided on their qualifications.

2.4 TIMING FOR TENDER PROCEDURES

Sufficient time should be allowed for tender procedures. A survey conducted by the Census and Statistics Department revealed that a tight tendering period would pose higher risk to the Contractor and resulting in a higher tender price. Project Officers shall allow for a sufficient tendering period with a view to lowering the tender premium and hence the overall project cost. The timing shown in the following table provides guidance in this respect:

TIMING FOR TENDER PROCEDURES				
Procedures	Normal Procedure		Special Procedure	
	Time Allowed (Weeks)	Cumulative Total (Weeks)	Time Allowed (Weeks)	Cumulative Total (Weeks)
Invitation to tender (Note 1)	0 - 1 (1 - 3 for WTO GPA)	0 - 1 (1 - 3 for WTO GPA)	1 - 12	1 - 12
Tendering period (Note 2)	1 - 3 (At least 6 for WTO GPA)	1 - 4 (7 - 9 for WTO GPA)	3 - 12	4 - 24
Recommendations submitted (Note 3)	2 - 12	3 - 16 (9 - 21 for WTO GPA)	2 - 12	6 - 36
Contract signed	1 - 2	4 - 18 (10 - 23 for WTO GPA)	1 - 4	7 - 40
Works commencement	1 - 2	5 - 20 (11 - 25 for WTO GPA)	1 - 2	8 - 42

Note 1 The time allowed for invitation to tender under the 'normal procedure' is for the arrangement of publishing tender notice on the Internet, in the Government Gazette and if necessary, in the local press and in selected overseas journal for the particular trade/ product. According to FC No. 3/2009, tender invitations for all works contracts not exceeding $52 million each need only be published on the Internet and therefore significant time can be reduced.

For works contracts covered by WTO GPA, it is still required to publish the tender notices in the Government Gazette and on the Internet in accordance with SPR 340

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and SFST's memo ref. (50) in L/M No. (3) to S6/1/21 dated 9.9.2010. Time should also be allowed for the arrangement of advertising if press release on the local and/or international press is/are considered necessary.

The time allowed under the 'special procedure' covers that required for obtaining the necessary approval for single and restricted tendering or prequalification tendering. More time may be required for these tendering procedures due to extra consideration being necessary.

Note 2 Please refer to DEVB TCW No. 2/2014, FC No. 3/2009 and SPR 340 (f) for the time limits for tendering and delivery for works contracts covered by WTO GPA and simplified tendering arrangement. The prequalification in regard of WTO requirements is also applicable to design and build contracts.

Notwithstanding the above, the time allowed for the tendering period may be longer having regard to the nature, scope and complexity of the contract and may depend on the necessity for the tenderers to produce alternative designs or to arrange sub-letting of specialist works.

Departments should bear in mind that a longer tendering period and a longer tender validity period may be required if a marking scheme is adopted.

Note 3 Tender recommendation should be made as expeditiously as possible. The upper range of the time allowed is to cover cases where complication arises, e.g. queries to tenderer, queries from tender board or tender negotiation is required.

While tender evaluation, including financial vetting, normally takes 4 to 6 weeks, Controlling Officers should aim to complete tender evaluation within 2 to 3 weeks for works contracts not exceeding $52 million in accordance with FC No. 3/2009. For those covered by WTO GPA, the time frame for submission to the relevant tender board stipulated in SPR 375(b) should be observed, particularly in relation to the timing of the tender board meetings.

2.5 INTEGRITY

2.5.1 As stipulated in the SPR 109(d), integrity is one of the principles underpinning the policy of government procurement. To uphold the integrity of government procurement, procurement process and decisions should be done in an impartial manner. Procuring officers shall observe relevant guidelines and procedures in the Civil Service Code[1], Civil Service Regulations (CSR)[2], Civil Service Bureau (CSB) Circulars and Circular Memoranda[2], and SPRs[3] on how to prevent or deal with conflict of interest situations and other integrity matters relating to government procurement.

[1] CSB's website: https://www.csb.gov.hk/english/admin/conduct/1751.html

[2] Procuring officers' particular attention is drawn to the list of CSR and CSB Circulars & Circular Memoranda under the subjects of **Conflict of Interest, Acceptance of Advantages and Entertainment and Investments** at Annex of the Civil Service Code.

[3] Procuring officers' particular attention is drawn to Chapter 1A of SPRs on **Avoiding and Managing Conflict of Interest in Government Procurement**.

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2.5.2 Other useful resources published by the Independent Commission Against Corruption (ICAC) such as "Corruption Prevention Guide on Government Procurement of General Goods and Services" and "Toolkit on Managing Declared Conflict of Interest for Civil Servants" are also available on the Intranet of the Central Cyber Government Office (https://portal.ccgo.hksarg/en/) for procuring officers' reference.

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3. PREREQUISITES TO CALLING FOR TENDERS

3.1 AUTHORITY TO CALL FOR TENDERS

For works in the Public Works Programme, authority to call for tenders is given automatically when Finance Committee or SFST approves the item for inclusion in Cat. A or D. With a view to expediting the delivery of the capital works projects, SFST through FC No. 3/2020 has delegated authorities to all Policy Secretaries to allow tenders for works projects, irrespective of type and value, to be invited before funding is secured without separate recourse to FSTB with conditions. The authorization also extends to cover the initiation of prequalification exercises for works tenders. However, it should be noted that with the promulgation of the use of marking scheme according to DEVB TCW Nos. 4/2014 & 4/2014A and SDEV's memo ref. ( ) in DEVB(W) 546/84/01 dated 10.11.2023, a separate exercise for prequalification of tenderers should normally be unnecessary and departments may adopt Stage I Screening in conjunction with a marking scheme in lieu of prequalification. References should be made to WBTC No. 15/99, ETWB TCW Nos. 15/99B and 5/2015.

3.2 AVAILABILITY OF FUNDS

Prior to tendering, the relevant division/regional office must check to ensure that funds will be available by the time the contract is expected to be awarded. In this connection, it is important to check that a subhead will be created in time for Cat. A items, whereas for Cat. D items that funds will be available in the Block Vote. For contracts undertaken by a works department on behalf of a client department, the relevant division/regional office has to check that the appropriate Letter of Intent will reach the works department before the contract is awarded. For other cases, reference should be made to Chapter 8 "Maintenance and Minor Works and Works for and by Others".

In any case, a procuring department must not enter into contractual commitments of any kind and must not notify the successful tenderer that the Government would accept his tender until funding has been approved.

3.3 AVAILABILITY OF LAND

Land required for the works may include works site, works area, borrow and fill areas etc. Land must be available by the time the contract is expected to commence, unless specific provision has been made in the tender documents for staged possession of the site by the Contractor. Where the contract works involve removal of unsuitable materials, such as sea mud or toxic materials, the confirmation of the availability of a suitable dumping site is necessary. Land clearance and resumption therefore must be arranged to suit, and confirmation of its availability included in the memo accompanying the draft Gazette Notification or other request for authority to invite tenders as appropriate. There may however be occasions where it is not possible to give confirmation of land resumption and clearance prior to tendering. In such cases, justification should be made to the approval authority for the necessity to start tender procedures before the normal confirmation can be given.

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As far as practicable, site possession date must be agreed with the party who is accountable for the availability of site so that it can be held responsible for the consequences arising from its failure to handover the site on time. If all possible, it is beneficial to obtain a binding agreement from the third party concerned so that it can be held responsible for reimbursing the Government any prolongation cost arising from its failure to handover the site on time.

It should be noted that all public fill, being the inert portion of C&D material, shall be disposed of at designated public filling facilities and all C&D waste at designated landfills. Details of the trip-ticket system for disposal of construction and demolition materials are given in DEVB TCW No. 6/2010 (for contracts for which tenders are invited on or after 1 November 2010). Confirmation from the Public Fill Committee and/or the Director of Environmental Protection as appropriate for the disposal arrangement is required.

3.4 LEGAL AND ADMINISTRATIVE PROCEDURES

All legal and administrative procedures should have been completed to a stage where all necessary approvals and agreements have been obtained before inviting tenders. Reference should be made to Chapter 3 “Land Matters” for the relevant procedures.

3.5 TENDER DOCUMENTS

All tender documents must be completed prior to calling for tenders.

It should be the aim to have all designs and drawings, including structural designs and details, and Bills of Quantities completed and checked before tenders are invited, except for projects where designs by tenderers will be required. Where exceptional reasons prevent this aim being achieved, e.g. the allowable time for design is unusually short as in emergency works, every effort should be made to complete all principal designs and drawings and as much detail as possible before tenders are invited. The potential risk to Government in terms of subsequent contractual claims of not having the design fully completed and not having sufficient detailed drawings at the tender stage must be carefully evaluated. If the possible consequence is considered serious, it must be drawn to the attention of the relevant officer of D2 rank or above and his consent obtained before proceeding further with invitation of tenders. In any event, no tender should be invited without sufficient drawings to show to tenderers clearly the works involved.

For multi-contract projects, those parts of tender documents delineating the split of the works, particularly the drawings and bills of quantities, should be carefully checked to ensure consistency and that there is no omission or duplication of works at the interface.

All non-standard components of the tender documents, i.e. GCT, SCT, Form of Tender, SCC, PS, PP and BQ etc., for contracts estimated to exceed $500 million (Ref.: SDEV's memo ref. ( ) in DEVB(W) 510/30/01 dated 29.3.2019) in value must be submitted via the Contract Adviser to the LAD(W) for vetting (see SPR 345(d)). Recommendations and amendments made by the LAD(W) should be incorporated into the documents before calling for tenders.

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The formula to be entered into the Appendix to the Form of Tender for determining the rate of liquidated damages should be reviewed immediately before tender invitation, with reference to the latest available information.

According to SPR 347, departments should not disclose the estimated contract value to the tenderers. If, however, the estimated contract value has been disclosed to the public, departments should, in all fairness, inform the tenderers of the estimated contract value.

3.6 INTERFACING AND HANDOVER OF LAND

Interfacing with other projects and programmes for handover of any land to other parties during or at the end of the contract period (see Para. 5.1 of Chapter 3) should be agreed with all the relevant parties before the completion of the tender documents. The communications with organizations outside government, consultants and other government departments, including interfacing arrangement and handover dates, should be recorded in writing. The tender documents should set out clearly the obligations of the contractor, the extent of the works or areas affected, and the handover dates.

3.7 CONTRACTS ESTIMATED TO EXCEED 5,000,000 SPECIAL DRAWING RIGHTS

Hong Kong was acceded to the WTO GPA on 20 May 1997. For construction contracts of estimated tender sum made at the time of gazette, which includes all provisional sums, prime cost sums and contingency allowed in the contract, exceeding the threshold of 5,000,000 SDR, there are a few additional tendering procedures for compliance with the WTO GPA requirements. (Ref.: DEVB TCW No. 2/2014 and FC No. 2/2014). The Special Drawing Rights of the International Monetary Fund is based on a basket of currencies. The threshold is recalculated at intervals of two years on the basis of the average of the daily HK$/SDR exchange rates and shall thereafter be effective for the following two calendar years. Departments will be notified of any revision in the equivalent HK$ threshold values. (Ref.: WTO Agreement on Government Procurement Hong Kong Dollar Thresholds - *https://fb.host.ccgo.hksarg/spr/memos.htm*)

Most of the information required under the WTO GPA is already provided in the tender documentation under the current practice, but additional information regarding the criteria for awarding the contract and the procedure for opening tenders, as promulgated in DEVB TCW No. 2/2014, must also be given in the Notes to Tenderers. If any other special criteria for awarding the contract are to be adopted, prior approval has to be obtained from relevant tender board.

Departments should not sub-divide contracts merely to avoid the application of the WTO GPA.

Joint ventures satisfying the conditions laid down in ETWB TCW No. 50/2002 and SETW's memos ref. (01656-01-03) in ETWB(W) 511/34/01 dated 4.8.2006 and ref. (019JP-01-4) in ETWB(W) 511/34/01 dated 2.11.2006 and ref. (02VVW-01-01) in DEVB(W) 510/83/05 dated 24.1.2017 should always be permitted to tender for contracts, which are covered by the provisions of the WTO GPA. For contracts not covered by the WTO GPA, departments may decide whether or not to allow joint ventures to tender.

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3.8 LANGUAGES TO BE USED FOR TENDER SUBMISSIONS

Article 9 of the Basic Law stipulates that "in addition to the Chinese language, English may also be used as an official language by the executive authorities, legislature, and judiciary of the Hong Kong Special Administrative Region". It is therefore inappropriate to state in the tender notices and tender documents that tenders should be submitted in English.

3.9 MINIMUM WAGE REQUIREMENTS

The former S for Tsy in his memo ref. (6) in FT 53/88/2 dated 28.2.2000 announces that departments should not stipulate minimum wage requirements in their tender exercises. If departments would like to secure quality services, more effective means should be used, e.g. by specifying in detail the qualifications, experience, training and skills required of the personnel concerned; requesting tenderers to provide references from their previous clients; or using a marking scheme for tender evaluation. Nevertheless, if a department really considers it essential to stipulate minimum wage requirements in a particular tender exercise, it should make a submission with full justifications to the Central Tender Board for prior approval (i.e. before tendering). This will prevent the need to cancel the tender exercise if the Board is not satisfied with the justifications provided.

3.10 NOT USED

3.11 MAXIMUM NUMBER OF CONTRACTS TO BE UNDERTAKEN BY THE SAME CONTRACTOR

There are occasions when procuring bureaux/departments invite tenders for more than one contract in a tender exercise and impose a restriction on the maximum number of contracts each tenderer may secure. Some procuring bureaux/departments have also imposed a restriction on the maximum number of a particular type of contracts (which may be tendered out at one go in the same tender exercise or separately in different tender exercises) that a contractor can undertake simultaneously. SFST in his memo ref. FT 53/88 Pt. 3 dated 18.11.2004 required Controlling Officers to revisit the need and justification for setting such a restriction. In particular, for tendering of contracts covered by WTO GPA, the procuring bureaux/departments should ensure that such restriction is legally in order and seek legal advice when necessary if they wish to impose such a restriction.

3.12 CONTROL OF OMITTED ITEMS AND SUBSTANTIAL CHANGES IN QUANTITIES

To avoid the occurrence of omitted items and substantial changes in quantities during construction, the following quality assurance procedures should be adopted:-

(a) In general, the Standard Method of Measurement (SMM) should be followed in the preparation of the BQ. If it is necessary to amend the method of measurement, a Particular Preamble (PP) to that effect should be prepared and included in the BQ in accordance with Rule 10 in Part III of the SMM. Prior approval for the incorporation of the PP (for any method of measurement which

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deviates from the SMM), as well as any drawings clarifying or defining the method of measurement, should be obtained from an officer at D1 rank or above administering the contract according to Section 7.1 of Chapter 5. Such request and approval must be properly minuted and documented in the project file for future reference. Besides, the project officer should confirm such modified method of measurement in writing with the officers responsible for the preparation of the BQ, in case the PP and the BQ are prepared by different officers. Close liaison between the design team and the taking-off team should be maintained to ensure mutual understanding of the documents and any changes made to the SMM.

(b) A pre-tender cross-checking procedure should be introduced in the preparation of BQ. An officer in the rank of engineer, quantity surveyor, senior engineer, senior quantity surveyor or other equivalent professional ranks, not being the officer who actually prepared the quantities, should make a bulk checking on the quantities of the cost-significant items (items which carry significant implication on contract expenditure) in the BQ against the tender drawings/specifications, or against the quantity of other related items (i.e. items with quantities comparable to or bearing a well recognized ratio to the quantities of the items being checked) to identify possible omitted items and problems arising out of substantial changes in quantities. Examples of 'bulk checking' are (i) volume of excavation against volume of soil disposal and deposition; (ii) area of formwork wall against area of wall tiles; and (iii) number of moving of piling rig against the total number of piles shown in the drawings, etc. When drawing up a list of the cost-significant items, the officer concerned should take into consideration the nature and size of the works, the value of the items and the likelihood of future changes to the relevant items. Sufficient time should be allowed to conduct the bulk checking. Any mistake/problem identified in the checking process should be rectified before the issue of tender documents.

(c) The above procedures have been prepared mainly for those projects administered by in-house project team. For those projects administered by Consultants, the Consultants shall be required to adopt similar procedures to ensure the quality of BQ and PP and submit their proposed procedures to the Director's Representative for agreement. Besides, if resources permit, project office should conduct spot-checking on the quantities of some selected cost significant items after the BQ has been prepared by the Consultants. Such spot-checking conducted by the project office should be properly documented.

(d) Apart from the above, an officer of the project office at a rank not lower than D1 should chair a meeting to vet the BQ and PP prepared and to ensure all the checking and cross-checking procedures have been duly completed and documented. For those projects administered by the Consultants, the Consultants shall assign one of their senior managers to attend the meeting.

No tender invitation should be carried out without undergoing the above procedures. Similar review and approval procedures should also be adopted for any subsequent changes made by tender addenda, subject to the need for a formal meeting required in (d) above to be decided by the chairman.

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4. TENDERING

4.1 NORMAL TENDERING

4.1.1 Eligible Tenderers

(Ref.: SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 31.8.2020 and SDEV's memo ref. ( ) in DEVB(PS) 108/34 dated 15.1.2021)

In selective tendering, a tender will not be considered unless the tenderer has met certain qualification requirements, e.g. is on a particular List of Approved Contractors and not being suspended from tendering, by the date set for the close of tender, or if this has been extended, the extended date. (see Contractor Management Handbook for details.) The eligibility of tenderers can be broadly classified as:

(a) For works generally

Eligible tenderers are contractors in the appropriate categories and groups of the List of Approved Contractors for Public Works. Eligibility of contractors on the Approved List to tender for works is as summarized in the following table (For details, please refer to Sub-sections 2.2, 2.5 and Section 7 of Contractor Management Handbook).

<table>
<tr><th rowspan="2">Tendered Sum</th><th colspan="2">Eligible Contractors</th></tr>
<tr><th>Category</th><th>Group</th></tr>
<tr><td>Up to $ 150M</td><td rowspan="3">Chosen according to the predominant nature of the works involved (may be more than one, see below)</td><td>Group A, B</td></tr>
<tr><td>Above $ 150M and up to $ 400M</td><td>Group B</td></tr>
<tr><td>Above $ 400M</td><td>Group C</td></tr>
</table>

The choice of groups and categories of contractors to be invited to tender for contracts is normally based on the value of the contract and the predominant nature of the work as set out in the above table. More careful consideration is required when different types of work are involved, particularly when there are small (in financial terms) elements of a specialist nature. In deciding the groups/categories of contractors to be invited to tender, the aim should be to limit eligibility to contractors who have the necessary experience and capability (as demonstrated by inclusion in the appropriate groups/categories), but at the same time including a sufficient number of tenderers to ensure competition. Tender invitations extended only to contractors who are included in more than one category should be rare, but the nature of works in some contracts may require this treatment. The appropriate officer of D2 rank or above should be consulted if in doubt.

The following matters regarding the eligibility of contractors to submit tenders have to be noted/checked:

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(i) A contractor who is suspended under the provisions of Para. 5.2 to 5.8 and 5.13 of Contractor Management Handbook is allowed to collect tender documents and to tender. The tender will be considered provided that the suspension is lifted by date set for the close of tender, or if this has been extended, the extended date.

(ii) Parent and subsidiary companies included in the same category are not permitted to individually submit a tender for a particular contract. Only one tender submission is permitted from either one of them. Failure to observe this requirement will render the tenders submitted null and void.

(iii) The requirements on contractor to employ technician apprentices, ex-CITA trainee craftsmen and Building and Civil Engineering Graduates as prescribed in ETWB TCW No. 12/2003.

(iv) The requirements on contractor to employ the minimum number of registered skilled workers and registered semi-skilled workers as prescribed in WBTC No. 4/2017.

(v) Subject to Para. 5 of ETWB TCW No. 50/2002 and SETW's memos ref. (01656-01-03) in ETWB(W) 511/34/01 dated 4.8.2006 and ref. (019JP-01-4) in ETWB(W) 511/34/01 dated 2.11.2006 and SDEV's memo ref. (02VVW-01-1) in DEVB(W) 510/83/05 dated 24.1.2017, departments should check whether or not joint ventures are allowed to tender for contracts that are not covered by the provisions of the WTO GPA. Joint ventures should always be permitted to tender for all contracts covered by WTO GPA. A sample Joint Venture (JV) Proforma has been drawn up to facilitate tenderers to provide the proposed value of works in submitting their tenders in the form of a joint venture prescribed in SDEV's memo ref. (03487-01-1) in DEVB(W) 510/83/05 dated 31.12.2019.

(vi) The requirements on contractor to obtain quality management system certification as prescribed in WBTC Nos. 13/2001 and 13/2001A.

(vii) The regulatory actions against contractor convicted of site safety offences or environmental offences or incurring serious incidents on site as prescribed in DEVB TCW No. 5/2023 and SDEV's memo ref. ( ) in DEVB(W) 510/10/01 dated 11.2.2014 and SDEV's memo ref. ( ) in DEVB(W) 516/71/01 dated 17.5.2017.

(viii) The regulatory actions against contractor repeatedly convicted of Section 27 of the Public Health and Municipal Services Ordinance (Cap. 132) regarding mosquito breeding offences as prescribed in ETWB TCW Nos. 22/2003 and 22/2003A and SDEV's memo ref. ( ) in DEVB(W) 510/10/01 dated 11.2.2014.

(ix) The regulatory actions against contractor convicted of contraventions of the Employment Ordinance (Cap. 57) as prescribed in the Contractor Management Handbook.

(b) For specialist works and supply of materials

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Where the specialist works or materials supply forms a main contract and where an applicable category exists in the List of Approved Suppliers of Materials and Specialist Contractors for Public Works, the eligible tenderers are contractors/suppliers in the appropriate category (and group) of the said List. (see Section 3 of Contractor Management Handbook)

Eligibility of contractors/suppliers in different categories and groups of the said List to tender for works is given in Appendix 3A of Contractor Management Handbook.

Where the specialist works or materials supply forms only a part of a main contract, the contract conditions should require the main contractor to employ a sub-contractor who is on the List of Approved Suppliers of Materials and Specialist Contractors for Public Works in the appropriate category (and group) to carry out such part of the work if:

(i) the specialist works or materials supply is of significant value or constitutes a substantial part of the main contract, e.g. a contract with substantial structural steelwork, or

(ii) the specialist works or materials supply can only be satisfactorily undertaken by an experienced specialist contractor, e.g. supply and installation of bridge bearings.

In such cases, the main contractor shall enter into written sub-contracts with the specialist contractor of the approved list for the execution of the respective part of the Works. Appropriate SCC shall be incorporated into the contract document on sub-contracting. Standard SCCs in this respect are given in the Library of Standard Special Conditions of Contract maintained by DEVB. As promulgated in memo ref. WB(W) 209/32/110 dated 2.5.2001 from the former S for W, it is no longer required to ask tenderers to submit with their tenders a letter of intent from specialist subcontractors.

(c) For procurement covered by WTO GPA

For procurement covered by WTO GPA, the qualification criteria for selecting contractors/suppliers are limited to those which are essential to ensure the contractors'/suppliers' ability to provide the required services or articles. Departments shall provide open, fair, consistent and non-discriminatory treatment to products, services and contractors irrespective of their country of origin. Local and overseas contractors and suppliers should all be treated on an equal footing. Please refer to DEVB TCW No. 2/2014 for details.

(d) For Term Contracts

Eligibility to tender for term contracts shall be determined in accordance with Sub-section 7.3 of Contractor Management Handbook.

There are restrictions on the award of some maintenance and minor works term contracts and the restrictions are set out at the Appendix of WBTC No. 24/99.

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Relevant restrictions should be specified in the tender documents so that all tenderers are made aware of the restrictions.

(e) Interim measures for broadening the span of groups of contractors to be invited to tender

To support small and medium-sized contractors (SME contractors) in participating in public works projects, SDEV promulgates the following interim measures for broadening the span of groups of contractors to be invited to tender stipulated in SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 08.08.2022.

(i) Inviting lower group contractors to submit tenders for a higher group of capital contracts with pre-tender estimate marginally exceeding the tender limit set for the lower group contractors, unless otherwise with the consent from SDEV;

(ii) Splitting specialist works from the main works and inviting separate contract(s) for such specialist works where possible with due regard to project-specific technical requirements.

Details of the measures, including the associated tender provisions, are given in the guide at Annex of the memo above. The measures shall apply to contracts for which tenders will be invited on or after 29 August 2022.

The measures will be implemented until further notice.

4.1.2 Tender Invitation

Prior to invitation to tender, the procuring department shall provide the sum allowed in Approved Project Estimate/ Estimated Cost of the Project for the contract to Project Strategy and Governance Office (PSGO), DEVB (Attn: CAS(W)1) using the template in Appendix 6.35 (ref. SDEV's memo ref ( ) in DEVB(PSGO) 38/05 dated 27.06.2022). Amd No. 1/2026

In addition, the SDEV should be alerted through Press Secretary to SDEV by the works department on the issue of important works tenders, especially those related to Chief Executive's initiatives in the policy address, via the departmental headquarters. Invitation to tender is normally made in the form of Gazette Notice and/or posting a tender notice on the Internet.

Except those involving prequalified tendering or open tendering, all works contracts under the ambit of CTB and PWTB shall adopt e-TS(WC) for the entire procurement process of works contracts, which includes, inter alia, issuing tender invitations as well as uploading and disseminating tender documents, supplementary information and addenda by procuring bureaux/ departments (B/Ds), downloading relevant documents and submitting electronic tenders by tenderers, handling tender correspondences or clarifications, submission of tender reports to CTB or PWTB, and notification of award results (ref. SDEV's memo ref ( ) in DEVB (W) 546/94/02 dated 29.12.2023).

For works tenders involving special submission requirements, such as submission of physical models/pamphlets/project reference materials or tender proposals in special file formats (collectively referred to as "special tenders") or due to some special reasons, the use of e-TS(WC) for tender submission may not be found suitable. In this connection, procuring

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B/Ds are required to seek approval from DEVB for exemption with justification provided. It should however be noted that for works tenders so approved by DEVB for exempting from using e-TS(WC), the notices of tender invitation, uploading and disseminating tender documents, supplementary information and addenda by procuring B/Ds, downloading relevant documents by tenderers, handling tender correspondence or clarifications, submission of tender reports to the tender board and announcement of tender awards shall still be made via e-TS(WC) (ref. SDEV's memo ref ( ) in DEVB (W) 546/94/02 dated 29.12.2023).

For works contracts involving prequalified tendering or open tendering, e-TS(WC) is not applicable. Procuring B/Ds are required to inform DEVB of such tendering exercises, while conducting the entire process using paper-based form (ref. SDEV's memo ref ( ) in DEVB (W) 546/94/02 dated 29.12.2023). For tender cases with exemption and exception from using e-TS(WC), including but not limited to tender cases adopting simplified tendering procedures where e-TS(WC) is not applicable, procuring departments are required to publish them on the e-TS(WC) and to keep the information thereon up-to-date with any subsequent changes to the published information on departmental websites.

In case where e-TS(WC) is applicable, the procuring department shall make prior registration with DEVB for their proposed tender closing date (or extended tender closing date) for their works using the registration form in Appendix 6.38 (ref. SDEV's memo ref ( ) in DEVB (W) 546/94/02 dated 10.5.2024). The latest version of registration form is available on Works Group Intranet Portal. The procuring department should ensure that they make the registration using the latest form. Upon confirmation of the tender closing date or the extended tender closing date with DEVB, procuring B/Ds are reminded to notify the Central Tender Board ("CTB") or the Public Works Tender Board ("PWTB") about the tender invitation. The procuring B/Ds are required to provide the respective boards with the necessary information as set out in the corresponding memos ref. TsyB T 00/810-1/2/0 Pt. 2 dated 19 October 2023 and ref. ASD13/95200/TEN/CLOSE/DAT dated 9 November 2023. (ref. SDEV's memo ref ( ) in DEVB (W) 546/94/02 dated 10.5.2024).

Tenderers could submit their tenders in paper-based form in addition to their e-submission via e-TS(WC) for works tenders as interim arrangement stage. The validity period of the interim arrangement is extended until further notice. Afterwards, submission of tenders in paper-based form will not be allowed. (ref. SDEV's memo ref ( ) in DEVB (W) 546/94/02 dated 20.5.2025) Amd No. 1/2026

Depending on the value of a contract, the procedures for tender invitation can be broadly classified as follows:

(a) For works contracts not exceeding $52 million

Under the simplified tendering arrangements promulgated in FC No. 3/2009, tender invitations for all works contracts not exceeding $52 million each need only be published on the Internet while the tender information should be published on e-TS(WC). Amd No. 1/2026 Controlling Officers may decide whether to also publish these in the Gazette, local press and journals, and whether to allow the full tender documents to be downloaded from the Internet. The date for tender invitation can be any day except those falling on public holidays. However, the tender closing date has to be a Friday or some other date announced by the relevant tender boards as all tenders shall still be submitted to the relevant tender boards.

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Departments should devise their internal procedures for obtaining approval to proceed with tender invitation and for posting of tender notice on the Internet. The routing sheet, check list and estimates summary shown in Appendix 6.1 can be used for submitting supporting documents by division/regional office through office and departmental headquarters. Departments should post the tender notice (and subsequent corrigendum to such notice, where applicable) on the "tender page" of their Internet homepage. A sample of the tender notice to be published on the Internet is given in Appendix 6.2.

(b) For works contracts covered by the WTO GPA

All works contracts that fall within the provision of WTO GPA shall follow the procedures for tender invitation stipulated in SPR 340, DEVB TCW No. 2/2014, SFST's memo ref. (50) in L/M No. (3) to S6/1/21 dated 9.9.2010, SDEV's memo ref. DEVB(W) 546/70/01 dated 25.11.2010 and SDEV's memo ref. ( ) in DEVB(PS) 108/34 dated 15.1.2021. For tenders to be invited from contractors on the List of Approved Contractors for Public Works and/or the List of Approved Suppliers of Materials and Specialist Contractors for Public Works, departments shall publish their tender invitations and notices of prequalification of tenderers in the Government Gazette and their Home Pages on the Internet only. For selective tendering using the Approved Lists, departments shall notify each contractor on the relevant Approved Lists the tender invitation by post, email or notification email sent by e-TS(WC) Amd No. 1/2026 on the same day of the first publication of the Gazette Tender Notice and via e-TS(WC). Where tenders will be invited also from contractors not on the above lists, such as in open tendering, departments may publish tender notices also in local press. Departments may, in addition, publish invitations in selected journals, send invitation letters to qualified contractors and notify consulates and trade commissions in Hong Kong of such tender invitations, if considered appropriate. A Gazette Notice for invitation to tender is normally published in two consecutive issues of the Gazette but if it is considered desirable to publish a particular notice in more than two issues, the originating department should recommend accordingly. Publication day is a Friday unless that Friday is a public holiday. If tender notices are considered necessary to be published in local press, they shall be advertised in at least one English and one Chinese local press, and departments should make advertising arrangements with the Director of Information Services direct.

To publish tender notice in the Gazette, the procedures provided in General Regulations 103 – 105 shall be followed. Briefly, three copies of the draft Gazette Notice, in both Chinese and English, should be provided to the Official Languages Division, CSB (Attn: COLO(Unit 3)) by 3:30 p.m. on the Tuesday preceding the publication date, which is normally Friday. The Official Languages Division, CSB will, after vetting the Chinese translation, forward the notice to the Assistant Clerk to the Executive Council, who acts as the Editor. The department should also send an additional copy of the Gazette Notice directly to the D of GL not later than 2:30 p.m. on the Tuesday preceding the publication date.

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When Friday is a holiday, the Gazette appears on the nearest previous working day. The respective time limits for submissions stated in the above paragraph are then similarly adjusted. When holidays occur on days which do not affect the publication date of the Gazette, an adjustment to the time limits for submission should nevertheless be made to allow the usual number of full working days. Should any adjustment result in a time limit for submission falling on a Sunday or Saturday then the actual closing time will be 2:30 p.m. on the previous Friday.

A copy of the tender invitation (and subsequent corrigendum to the notice) should be sent to the relevant tender board, where appropriate, for tender collection and opening arrangements to be made.

Tender notice should be posted on the "tender page" of the department's Internet homepage while the tender information should be published on e-TS(WC), in case where e-TS(WC) is applicable Amd No. 1/2026 on the same day when the Gazette Notice is published. The tender Amd No. 1/2026 notice should remain on the "tender page" until the respective closing date of the tender exercise. Departments are to ensure that the information Amd No. 1/2026 shall tally with that contained in the Gazette Notice. A sample of the tender notice to be published on the Internet is given in Appendix 6.2.

The routing sheet for submission of supporting documents, the memo requesting for publication of Gazette Notice, a specimen Gazette Tender Notice and specimen Invitation Letter for selective tendering are given in Appendices 6.1, 6.3, 6.4A/6.4AA and 6.4B/6.4BB respectively. Departments shall ensure that all information required by the WTO GPA is included in the tender invitations.

Depending on the sensitivity of a project and the degree of public/media interest, a press release in layman terms for advertising on the local and/or international press may also be issued concurrently with the Gazette Notice. It is advisable to contact and discuss with SPO of DEVB on the necessity of a press release well in advance of gazette notification in order to save time and effort. If a press release is required, it should include at least one English and one Chinese newspaper and should be arranged with SPO or the I&PR of Transport Department (for HyD projects), by the submission of a draft press release (Appendix 6.5) with the aforesaid documents.

Guidelines for the preparation of documents for Gazette notification and draft press release are given in Appendix 6.6. For preparation of the gazette notice for invitation to tender to be published in the Gazette, please refer to memo from D of GL dated 12 August 2005 (ref. (38) in PD/12/4). A copy of the guidelines on the format for government notices in the main Gazette (which is the annex to this memo) is attached as an annex to Appendix 6.6.

Limited tendering (i.e. single or restricted tendering) procedures should only be used in circumstances detailed in DEVB TCW No. 2/2014. Departments making application to PSTsy for initiation of single or restricted tendering should substantiate their request with full justifications. Departments shall send tender invitations by letter to contractors/suppliers as approved by the PSTsy.

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(c) For works contracts exceeding $52 million but not covered by the WTO GPA

Where tenders will be invited from contractors on the List of Approved Contractors for Public Works and/or the List of Approved Suppliers of Materials and Specialist Contractors for Public Works, departments shall have their tender notices published in the Government Gazette and on the Internet.

As promulgated in the former SETW's memo ref. ETWB(PS) 111/9 dated 16.1.2003, if notices of tender/pre-qualification of tender are to be disseminated to the Chinese Mainland authorities/enterprises through the BJO, departments should send the tender notices to the Trade Officer of the BJO (Tel.: 86-10-6518 6318 Ext 21 & Fax.: 86-10-6518 6322) through an assigned departmental co-coordinator. Departments should also state the target group of distribution, if possible. A copy of the correspondence with the BJO should be copied to DEVB or TLB for reference.

4.1.3 Issue of Tender Documents

Depending on the applicability of e-TS(WC), tender documents must be ready for download via e-TS(WC) or collection on the first publication day of the tender invitation.

In cases where e-TS(WC) is not applicable, pre-addressed envelopes or labels for the return of tenders should, as far as possible, be provided to tenderers. Additionally, drawings are normally bound separately and they should be returned to the issuing office after submission of the tender. Amd No. 1/2026

Except for procurements covered by WTO GPA, only contractors in the appropriate group and category of the Lists should be allowed to collect tender documents. Tender documents may be issued, in accordance with the principles and procedures set out in Para. 4.1.1, to a probationary contractor who is holding the allowable maximum number or total value of contracts, or to a contractor who is not in the appropriate group stipulated for the tender but who has applied for inclusion in or upgrading to this group. Please refer to para. 7.2.5 and 7.2.6 of Contractor Management Handbook for details.

For procurement covered by WTO GPA, tender documents should be downloaded by contractors via the e-TS(WC). In case where e-TS(WC) is not applicable, tender documents Amd No. 1/2026 should continue to be collected by contractors according to current practice but shall be forwarded to interested contractors by courier, if requested in writing, in the case of both open and selective tendering. Such requests shall be answered promptly. Departments are empowered to recover the full delivery cost from tenderers for example by crediting their departmental general revenue accounts, by requesting contractors to provide their account numbers with the courier so that the delivery cost can be charged direct to the contractor's account, or by other means.

A contractor who is suspended from tendering (voluntary or otherwise) is still allowed to download or Amd No. 1/2026 collect tender documents but his tender will not be considered unless the suspension is lifted by the date set for the close of tender, or if this has been extended, the extended date. More detailed guidelines are given in Para. 4.1.1(a) (i) to (ix) which should be followed.

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Contractors on the approved lists may be promoted, downgraded or deleted from the Lists or suspended from tendering at any time. It is essential therefore that up-to-date records of contractors' status be referred to prior to the issue of tender documents to contractors.

In case where e-TS(WC) is applicable, an EDP which comprises a collection of electronic files containing the contents of a set of tender documents should be made available for download by eligible tenderers via e-TS(WC) in accordance with the provisions stipulated in Appendix 6.34, and no hard copy should be provided. Amd No. 1/2026

In cases where e-TS(WC) is not applicable, an EDP should be disseminated free of charge to eligible tenderers by Direct Dissemination Amd No. 1/2026 in accordance with the provisions stipulated in Appendix 6.34, in addition to the hard copy set. Request for additional electronic copies of tender drawings should be charged in accordance with Section 8.4 of PAH Chapter 5. Request for additional electronic copies of other types of tender documents should be charged at the rates prescribed from time to time by the relevant authorities. An EDP should be issued with the attachment of a set of licence conditions given in Annex 1 of Appendix 6.34, duly completed by the department concerned in accordance with the footnotes therein. The hard copy and the EDP are each a complete set of the tender documents, bearing equal status.

In cases where e-TS(WC) is not applicable, in addition to the EDP issued to tenderers, the same EDP should also be distributed to ASP using the issue notice stipulated in Schedule 2 to Annex 3 of Appendix 6.34. It should be issued with the attachment of a set of licence conditions given in Annex 4 of Appendix 6.34, duly completed by the department concerned in accordance with the footnotes therein. Hard copies of the tender documents shall not be issued to ASP. DEVB or TLB will announce from time to time the current list of ASP (see DEVB website for projects under DEVB). If there is no ASP on the list referred to in paragraph 2.4.4 of Appendix 6.34, procuring departments must distribute the EDP only by Direct Dissemination. Amd No. 1/2026

4.2 SINGLE AND RESTRICTED TENDERING

Please refer to para. 14, 26 and 27 of DEVB TCW No. 2/2014 and SPR 325 for details.

Requests for single or restricted tendering should be signed or endorsed by an officer at directorate level. Subject to the prior approval of PSTsy upon the recommendation of the department, invitation letter can be sent to the short-listed contractors/suppliers for tendering. Departments should advise the tenderers to submit their tenders in the same manner as open and selective tender procedures. Tenderers should not be informed that tenders are being invited on a single or restricted basis. A sample letter of invitation to tender is shown in Appendix 6.7. It should not include any information that may prejudice Government's interest in the tender. In cases where e-TS(WC) is applicable, EDP should be downloadable by the tenderers. Otherwise, EDP should be distributed to the tenderers and the ASP in the same manner as described in Para. 4.1.3. Project teams should check the current list of ASPs on the DEVB website prior to deciding to engage an ASP for the dissemination of EDP.). If there is no ASP on the list referred to in paragraph 2.4.4 of Appendix 6.34, procuring departments must distribute the EDP only by Direct Dissemination. Amd No. 1/2026

Department shall keep a report in writing on each contract awarded under the single or restricted tendering procedures. Such reports shall contain the name of the procuring

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entity, value and kind of goods or services procured, country of origin and a statement of the conditions which necessitate the use of single or restricted tendering.

4.3 PREQUALIFIED TENDERING

Reference should be made to DEVB TCW No. 5/2015 regarding the guidelines on prequalification of tenderers for all public works contracts. Departments should consider if the use of a marking scheme under DEVB TCW Nos. 4/2014 & 4/2014A and SDEV's memo ref. ( ) in DEVB(W) 546/84/01 dated 10.11.2023 should be adopted in lieu of prequalification.

Departments should note that the purpose of prequalification is to identify those contractors who are capable of undertaking the contract. It is not necessary to ask applicants to commit themselves to any resources proposal, method of construction, engagement of sub-contractors etc. at the prequalification stage. Normally, contracts warranting prequalification of tenderers are all subject to the use of a marking scheme in tender evaluation similar to the one promulgated under DEVB TCW Nos. 4/2014, 4/2014A and SDEV's memo ref. ( ) in DEVB(W) 546/84/01 dated 10.11.2023. However, for tender evaluation of tenders submitted by contractors on the prequalified list, it is generally not required to reassess the experience criteria under Section 1 of the marking scheme since this has already been assessed in the prequalification process. At the contract tender stage tenderers will be asked to submit technical and resource proposals and these proposals will be binding and form part of the contract.

Detailed guidelines for invitation, qualification requirements, preparation of prequalification documents, analysis of submission, selection of tenderers and other considerations for prequalified tendering are given in DEVB TCW No. 5/2015, and SPR 330. As stipulated in paragraph 41(a) of DEVB TCW No. 5/2015, it is not required to check applicants' financial capability at the prequalification stage. Changes to the composition of a prequalified joint venture contractor may be permitted under the conditions stipulated in paragraphs 25 to 32 of DEVB TCW No. 5/2015.

References should be also be made to FC No. 3/2020 regarding initiating works-related tendering and prequalification exercises for works tenders before funding is secured.

4.3.1 Conflict of Interest

In preparing the prequalification report for submission to CTB, the requirements as stipulated in paragraph 52 of DEVB TCW No. 5/2015 and Appendix III(D) of SPRs should be followed. Reference should also be made to Appendix I(A) of the SPRs for the standard form for declaration of no conflict of interest by public officers involved in the preparation of prequalification documents and in the prequalification exercise, and to Appendix 6.37 for the standard form for declaration of no conflict of interest by consultants' staff. All officers should each complete one form and officer submitting the report should confirm in accordance with Paragraph H of Appendix III(D) of the SPRs that all officers involved in the preparation of prequalification documents and in the prequalification exercise have already declared their interest and, where conflicts of interest (actual, potential or perceived) have been identified, appropriate remedial action has been taken. Sample confirmation statements on declaration of no conflict of interest are as follows:

(a) Prequalification reports prepared by Government officers

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"I confirm that all officers involved in the preparation of prequalification documents and in the prequalification exercise have declared that there is no actual, potential or perceived conflict of interest for them to take part in the process in accordance with Stores and Procurement Regulation 186."

(b) Prequalification reports prepared by the project consultants
"We, (name of the project consultant), have declared our compliance with the relevant terms and conditions of the Consultancy Agreement on conflict of interest and confirmed that there was no actual, potential or perceived conflict of interest in connection with our services in the preparation of prequalification documents and in the prequalification exercise."

All declarations of interest in accordance with SPR 186 should be kept in file for record. The declarations of no conflict of interest by consultants' staff by the standard form in Appendix 6.37 shall be appended to the prequalification reports for checking and acceptance by project teams.

4.3.2 Representations at Pre-Contract Stage

Departments should always practise with great care when issuing information to any prospective contractor in the pre-contract stage. It should be borne in mind that such information, if issued, could amount to a pre-contract representation or even become a term of the contract thereby causing significant contractual implications if the information turns out to be incorrect [Note 1]. Whilst it is prudent to seek legal advice whenever doubts arise, project officers shall also follow the guidelines stated below (Ref.: SDEV's memo ref. (01QXA-01-12) in DEVB(W) 546/70/02 dated 23.4.2008):

(a) Prequalification stage

Departments shall set out the scope of the contract, the essential requirements of the contract and the qualification requirements in the prequalification document to be issued to prospective applicants to assist them in preparing submissions seeking for prequalification. Reference shall be made to DEVB TCW No. 5/2015.

Any other "side information", e.g. market conditions, source and/or availability of materials and commentaries on suitability of construction methods or current legal requirements, is rarely necessary or appropriate for inclusion in or issue with the prequalification document. Project officers should be conscious of the potentially major contractual implications that might result from incorrect information issued and allegedly having been relied upon by the contractor. There is also the risk that the originally correct information could become incorrect with the lapse of time or changes in circumstances after the information is issued.

Where the circumstances genuinely require the issue of specific side information to prospective applicants in the prequalification stage, consent from the relevant officer at D2 rank or above shall be obtained. Before issuing any such information to prospective applicants, the department shall also consult LAD(W) with regard to drafting any special disclaimer clauses for inclusion in the prequalification document and/or the Special Conditions of Contract which

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may be necessary having regard to the nature of the information and/or particular circumstances of the procurement so as to safeguard the Government's interest.

(b) Subsequent doubt over the truthfulness of any information issued under (a)

Where a piece of information has been issued under (a) above but its truthfulness is subsequently found to be questionable due to change in circumstances or other reason(s), LAD(W) should be consulted as to the appropriate action to be taken (e.g. withdrawal of the information with or without extension of the date set for submission of prequalification applications or cancellation of the prequalification exercise) notwithstanding that a disclaimer may have already been incorporated in the prequalification document.

Note 1: Under the common law and the Misrepresentation Ordinance (Cap. 284), a misrepresentation is a representation which does not accord with the true facts. The representee who has entered into a contract in reliance on such representation may sue for rescission (i.e. cancellation and putting the parties back to where they were before the contract was made) and/or damages. Where a misrepresentation has become a term of the contract, there is a right to terminate the contract (if the term is in the nature of a condition) and sue for damages for breach of contract as well as a right to sue for rescission (see section 2 of the Misrepresentation Ordinance).

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5. ACTION DURING TENDER PERIOD

5.1 PRE-TENDER MEETING

Pre-tender meetings should not be held if the existing procedures for communication are sufficient to obtain competitive tenders. If a pre-tender meeting is considered necessary, it should be arranged in the week following the last publication of the tender invitation, or in the case of restricted tendering at a suitable time before the date set for receipt of tenders.

At the pre-tender meeting, Contractors should be allowed to visit the site if possible and to raise any queries they may have. Contractors should however be informed at the beginning of the meeting that any oral information given at the meeting should not be taken as varying the information in the tender documents unless subsequently confirmed in writing. Important points raised should be covered in the form of questions and answers in a circulation letter to be sent to all tenderers, irrespective of whether they attended the meeting or not. Minutes are not required for the pre-tender meeting.

Further details for pre-tender meeting are given in WBTC No. 4/92.

5.2 TENDER ADDENDA (Subsumed from WBTC No. 6/95 and ETWB TCW No. 6/95B)

If amendments to tender documents are found necessary after they have been issued to tenderers, such amendments shall be prepared and processed in accordance with the following guidelines.

(a) Preparation of addenda

The following principles shall be observed in preparing amendments:

(i) The Conditions of Tender shall only be amended by means of Special Conditions of Tender,

(ii) The General Conditions of Contract shall only be amended by means of Special Conditions of Contract,

(iii) The General Specification shall usually be amended by means of a Particular Specification. In exceptional cases, for example, with alternative designs, amendments may be made by a letter,

(iv) The Standard Method of Measurement (SMM) shall only be amended by means of appropriate preambles to the Bills of Quantities (BQ), by way of replacement or additional clauses, as applicable, in the same format as that given in the SMM,

(v) Standard documents such as the General Specification and the SMM are updated/amended from time to time. The amendments are sometimes done by way of corrigenda. These amendments/corrigenda are usually available from the internet.

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Where these are available, the tenderers' attention should be drawn to the specific websites. Otherwise, the amendments and corrigenda shall be incorporated in full in appropriate places in the tender documents. For example, they could be included as an appendix to the standard documents where these documents are included or where only references to the documents are made as an appendix to such references.

(vi) Should there be changes to the scope of the Works before the tender closing date which may affect the rate of liquidated damages or the associated special damages, the formula that have been entered into Contract Data Part one or Amd No. 1/2026 **the Appendix to the Form of Tender for the determination of liquidated damages should be adjusted by means of a tender addendum.**

(b) Method of making amendments

Care must be taken to ensure that any amendments to the documents do actually form part of the contract and also have the requisite effect on it. Tender addenda can be issued as:

(i) A replacement or additional page marked "Addendum No....." which either replaces the original page or serves to amplify/amend the original document, or

(ii) An extra document or a letter amplifying or amending the original document.

The first method is the legally preferred way of making amendments and should be used whenever possible. Where it is not practical to provide a replacement/additional page, the amendment may be made by means of an extra document. Such an amendment must also be assigned a tender addendum number and be dealt with similarly.

(c) Processing amendments

The tender addenda should be bound separately to a letter for:

(i) Issuing to all tenderers who have collected tender documents, and

(ii) In cases where e-TS(WC) is not applicable, attaching Amd No. 1/2026 **to all copies of tender documents which have not been collected at the time of issuing the tender addenda (for issue to further tenderers).**

The letter (see sample at Appendix 6.8) should provide for:

(iii) In cases where e-TS(WC) is not applicable, an Amd No. 1/2026 **acknowledgement of receipt by the tenderer,**

(iv) In cases where e-TS(WC) is not applicable, a Amd No. 1/2026 **certification by the tenderer that the addenda have been taken into account, and**

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(v) A tender addenda sheet describing the amendments made. The letter should be signed by the Engineer designate (see Appendix 6.9).

Copies of all amendments shall be sent to other parties as required for the particular project.

During the tender period, a record of all acknowledgements of receipt returned shall be maintained and clarification shall immediately be sought from those tenderers who have not returned the acknowledgement within the time limit.

The procedures for preparing the EDP for tender addenda are given in Appendix 6.34.

5.3 QUERIES FROM TENDERERS
(Ref.: General Circular No. 8/97)

All questions raised at the pre-tender meeting or put forward in writing by tenderers which suggest the existence of errors or ambiguities in the tender documents should be carefully examined and if found justified, a letter attaching the tender addenda should be issued to correct the errors or clarify the ambiguities. (See Para. 5.2(c) for details.)

Procuring department should respond to questions or requests from tenderers in a timely manner. Responses to tenderers' questions should, as a general rule, be made within ten working days. An interim reply should be issued if a substantive reply cannot be made within the above timeframe.

For contracts administered by consultants, the consultants shall seek the procuring department's comments on the responses to tenderers' questions or requests before issuing them to the tenderers. The procuring departments may need to seek further comments from the relevant policy bureaux before replying to the consultants if necessary.

Information essential in enabling a tenderer to submit a conforming tender (e.g. clarifications on the terms, conditions and specifications of tender) should be provided. For fairness and transparency, departments should provide the same information to all potential tenderers known to the departments (or publish on department's website in case of open tender) as soon as possible and in any case before the closing date for receipt of tenders.

5.4 SALE OF PLANS OR DRAWINGS TO TENDERERS

Tenderers may request additional copies of the drawings which are issued with the tender documents, or copies of those drawings which are available for inspection but not issued. There is no objection to a reasonable number of drawings being supplied to each tenderer in such cases but it must be on the basis of purchase by the tenderer at the rates currently charged for the sale of plans to the general public. The question of what is reasonable or unreasonable with regard to a tenderer's request for drawings shall be determined by the division/regional office concerned. Reference can be made to PWD TC No. 11/76.

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It should be stressed to tenderers that the copyright of the drawings remains with Government and the drawings must not be used for purposes other than the preparation of the tender concerned.

A tenderer may ask for the supply of additional copies of tender drawings in electronic form for the purpose of preparing his tender. The standard charges and guidelines for the supply of electronic drawings are given in Section 8.4 of PAH Chapter 5. Basically, the following salient points should be noted when issuing electronic drawings to the tenderers:

(a) the tenderers should be advised in writing and confirm their acceptance that the electronic drawings are not guaranteed to be free from computer viruses and the Employer will not be responsible for any damage arising therefrom;

(b) the tenderer should be advised in writing and confirm their acceptance that the Employer will not accept any liability arising from any discrepancies between the electronic drawings and the tender drawings in hard copy format; and

(c) if the electronic drawings contain digital map data supplied by the Lands Department, the tenderer shall be required to provide a duly signed undertaking regarding the conditions in the use of Government digital map data as given in Section 8.4 of PAH Chapter 5.

5.5 AMENDMENTS TO TENDER DESIGNS

No alterations should be made to the basis of designs on which the tender documents have been prepared and tenders invited, except for purposes such as clarification of details or for the acceptance of alternative designs as permitted by the Conditions of Tender.

In the event that exceptional circumstances have arisen such that part or the whole of the tender designs must be altered, appropriate approval should be sought to make the necessary amendments or cancel the tendering exercise with a view to re-tendering. Under SPR 380(e), the decision not to accept any tender in a tender exercise must be made by the relevant tender board. This authority has been delegated to the Controlling Officer for works contracts not exceeding $30 million each and not subject to WTO GPA. The relevant tender board must still be consulted for the cancellation of tenders costing $30 million or above each.

5.6 LEGAL VETTING OF SUBSTANTIAL ALTERATION TO TENDER DOCUMENTS

If during the tendering period any substantial alterations are made to the tender documents for contracts estimated to exceed $500 million (Ref.: SDEV's memo ref. ( ) in DEVB(W) 510/30/01 dated 29.3.2019) in value, then details of the alterations including all correspondence and memoranda relating thereto must be submitted to the LAD(W) for vetting. Time must be allowed to obtain the approval for the alteration to the tender documents before the acceptance of the tender. Any major alteration must be approved by the D of J.

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5.7 EXTENSION OF TIME FOR TENDERING

The arrangement for extension of tender closing time due to typhoon, rainstorm, "extreme conditions after super typhoons" announced by the Government and blockage of public access should be as follows:

If tropical cyclone signal No. 8 or above, or a black rainstorm warning signal is hoisted or if "extreme conditions after super typhoons" announced by the Government is/are in force at any time between 9.00 am and 12.00 noon on the tender closing date,, the tender closing time for tenders to be received through the Specific Tender Box will be extended to 12.00 noon on the first working day after the tropical cyclone signal No. 8 is lowered, or the black rainstorm warning signal or the "extreme conditions after super typhoons" announced by the Government has/have ceased to be in force. Saturday is not counted as a working day. If there is a blockage of the public access to the location of the Specified Tender Box at any time between 9:00 am and 12:00 noon on tender closing date, the Government will announce extension of the tender closing date and time until further notice. Following removal of the blockage, the Government will announce the extended tender closing date and time as soon as practicable. The announcements will be made via press releases on the website of Information Services Department (https://www.info.gov.hk/gia/general/today.htm).

If there is any other reason which in the Government's view shall affect the close of tender, the Government will notify tenderers of the extension in tender closing date and time via the e-TS(WC) and/or emails. Amd No. 1/2026

The tender period may need to be extended if:

(a) Tenderers give substantive reasons showing why tenders cannot be properly prepared within the specified period,

(b) Queries raised by the tenderers require significant time to resolve, or

(c) The timing or nature of a tender addendum is considered to be disruptive to the pricing of the Bills of Quantities.

In any event, consideration must be given to granting an extension due to any addendum, other than those of a very straightforward nature, issued during the last week of the tender period.

The length of any extension will also depend on the type and timing of the request, queries or addendum.

The justification for and the length of the extension to the tender period must be agreed by the Chief Engineer or Regional Office Head before action is taken.

When the need to extend the tender period and the length of the extension have been agreed, all tenderers who have taken out tender documents and the relevant tender board should be informed via e-TS(WC), or Amd No. 1/2026 initially by telephone, followed by confirmation in writing if e-TS(WC) is not applicable. Amd No. 1/2026 A sample letter informing the tenderers and a sample memo informing the tender board of the extension of tender period is given in Appendix 6.10 and 6.11 respectively. For selective tendering governed by WTO GPA, the

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letter notifying tenderers of the revised time for receipt of tenders shall be issued to all contractors on the relevant Approved Lists (Ref.: SDEV's memo ref. ( ) in DEVB(W) 920/30/01 dated 6.1.2015). In cases where e-TS(WC) is not applicable, copies Amd No. 1/2026 of the letter must also be attached to tender documents which have not been collected at the time the tender period is extended.

For tenders requiring gazetting, publication of the gazette notice for extension of tender period should be sent to the Assistant Clerk to the Executive Council through the Official Languages Division (Attn: COLO/Unit 3) by the submission of the following documents by division/regional office through the office and departmental headquarters:

(a) Memo requesting publication of Gazette Notice (Appendix 6.12) for extension of tender period, and

(b) Draft gazette notice (Appendix 6.13) with contents page.

Departments should also ensure that the relevant details on the "tender page" of their Internet homepage are updated accordingly.

5.8 EXTENSION OF TENDER VALIDITY PERIOD

The period for which tenders remain binding is stated in the Form of Tender. After the expiration of this period, a tender cannot be accepted without the written consent of the tenderer to extend the tender validity period. As a matter of principle, an unduly long tender validity period should be avoided as it may jack up the tender price and adversely affect tender response. The tender validity period should normally be set as 90 days from the tender closing date. If a longer validity period is required, the project team should take into account the specific circumstances and set a reasonable period which is not unduly long with justifications recorded in file.

If such an extension is anticipated before tender closing date, a tender addendum should be issued. If such an extension is required after tender closing date but before acceptance of tender, a letter enclosing a standard confirmation letter for reply (see Appendix 6.14) should be written to all tenderers asking for their agreement to extend the tender validity period without changing their original bid (tendered sum). The action should then be recorded in the tender report. If such an extension is required after acceptance of tender, the letter should be written to the successful tenderer asking for agreement to extend the tender validity period without changing the original bid (tendered sum). If the tenderer does not agree to the extension unconditionally, it will be necessary to justify the acceptance of the additional cost and re-submit the case to the appropriate authority for approval. It should be noted that a tenderer's refusal to extend would render his tender ineligible for acceptance after the expiry of the original tender validity period. On the other hand, a tenderer's agreement to extend subject to conditions will be considered as a qualified bid and may be rejected.

Tenderers should be reminded that the letter seeking their agreement to an extension of the tender validity period does not signify either an acceptance or a rejection of their tenders, all tenders are still under consideration and Government does not bind itself to accept either the lowest or any other tender.

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6. EXAMINATION OF AND REPORT ON TENDERS

This Section sets out the procedures for examination of tenders and submission of tender reports for public works. **These general procedures are also applicable to design and build contracts, subject to any additional requirements stipulated in the Administrative Procedures for Use with the General Conditions of Contract for Design and Build Contracts, which can be found on the DEVB website (under Publications and Press Releases\ Publications\ Standard Contract Documents\) (Subsumed from DEVB TCW No. 8/2014)**. DEVB TCW Nos. 4/2014, 4/2014A and SDEV's memo ref. ( ) in DEVB(W) 546/84/01 dated 10.11.2023 sets out the various methods of tender evaluation in the procurement of all capital works contracts and term contracts (excluding design, build and operate (DBO) contracts) which do not involve prequalification of tenderers.

6.1 CONFIDENTIALITY OF TENDERS
(Subsumed from DEVB TCW No. 8/2014)

No unauthorized disclosure of any information and matter concerning tenders is permitted. **From the time tenders are received and opened until the decision is made on the acceptance or otherwise, all oral and written communications regarding the tenders are classified as "RESTRICTED (TENDER)". Communications on prequalification and single or restricted tendering, such as a request for authority to conduct a restricted tendering exercise, shall also be so classified.** Care should also be exercised in the subsequent de-restriction of information to ensure that no sensitive matter, e.g. a remark made by the tender board, the disclosure of which may cause embarrassment is placed on an open file.

The authority to open and handle documents classified as "RESTRICTED (TENDER)" is vested in the following officers, hereinafter collectively referred to as the "tender examiner":

(a) The officer of D2 rank (or above) relevant to the tender;

(b) The departmental secretary and accountant;

(c) The officer in charge of the confidential registry;

(d) The consultants or the officer nominated by the D2 officer referred to above to deal with the processing of tenders; and

(e) Other officers authorized by the Head of Department or tender board.

The extent to which these officers should have access to the related materials shall be on a need-to-know basis. Officers entrusted with the checking of tenders shall ensure that the contents are treated in the strictest confidence. Typing, marking etc. of all correspondence, documents of and reports on tenders must be carried out in such a manner that no lapse of security is anticipated. The project engineer (or consulting engineer if appropriate) shall be responsible for the safe keeping and checking of the tenders but detailed checking may be delegated to assistant engineers or quantity survey officers who must be made fully aware of the confidential nature of the documents.

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The transfer of documents marked "RESTRICTED (TENDER)" shall be by appropriate secure methods to prevent unauthorized access to the tender information. Envelopes containing "RESTRICTED (TENDER)" materials should be sealed using a red wafer seal and the originating officer should sign across the seal. Correspondence, in sealed envelopes, could be dispatched by the normal receiving and dispatching channels.

6.2 OPENING AND LISTING OF TENDERS

Tender opening procedures should commence immediately after closing and upon receipt of tenders. Tenders are to be opened and listed by the tender board concerned.

With reference to SFST's memo ref (71) in TsyB T00/810-1/1/0(C) Pt. 3 dated 27.8.2018, Controlling Officers ("COs") are required to ensure that for all CTB tenders that will close on or after 30 November 2018, the address of the tender box as stated in the relevant tender notice must be revised as follows:

Government Secretariat Tender Box,
Lobby of the Public Entrance on the Ground Floor,
East Wing, Central Government Offices,
2 Tim Mei Avenue, Tamar, Hong Kong.

After tenders have been opened and authenticated by the tender opening team, one copy of the duplicates of the tenders received will be kept by the relevant tender board. The originals and the remaining duplicates of the tenders will be sent to the procuring department for assessment. The tenders should usually be ready for dispatching/collecting on the day after the tender closing date. The procuring department shall inform DEVB (Attn: CAS(W)1) of the prices for the 3 highest combined score tenders within 3 working days after the opening of the tender fees using the template in Appendix 6.36 (ref. SDEV's memo ref. ( ) in DEVB(PSGO) 38/05 dated 27.06.2022.

For works contracts adopting a marking scheme, the tender opening team of the tender board will place the originals of the tender price documents in a sealed envelope. The sealed envelope, together with the technical submissions, should be collected by the procuring department while the duplicates of the tender price documents should be kept by the tender board. **In tender evaluation, departments should not open the envelope containing the tender price documents until the evaluation of the technical submissions has been completed except in some special circumstances where the technical and price submissions are to be assessed by two independent panels concurrently and in such a case, the two independent panels should not exchange any information about the technical or price submissions. (Subsumed from DEVB TCW No. 8/2014)** Additional guidelines on the opening of tenders for contracts adopting a marking scheme approach are given in DEVB TCW No. 4/2014.

Approval of cancellation of tender exercise is not required when no tender is received after close of tender invitation.

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6.3 ASSESSMENT PANEL

For contracts adopting a marking scheme approach, an assessment panel shall be established to evaluate the technical submissions. The assessment panel shall be made up of suitably qualified personnel capable of making an independent assessment of the tenderers' submissions, technical or otherwise. The assessment panel shall consist of a chairman plus at least two other members. Normally the chairman will not mark the tenderer's submissions in order to ensure that the meeting is considered orderly and impartially. The chairman shall be a directorate officer while the other members shall be public officers of professional rank or above from more than one department. Members of the project team and members of the assessment panel including the chairman should familiarize themselves with the basic requirements, implications and obligations contained in the WTO GPA and the associated rules which govern the subject tender exercise. Reference should be made to the guidelines given under DEVB TC(W) No. 2/2014. For contracts administered by consultants, the consultants may be invited to serve as an adviser to the assessment panel but the consultants shall not be appointed as a member of the assessment panel.

Members of the assessment panel shall individually mark the tenderers' submissions in accordance with the marking scheme. The assessment panel meeting should include a separate agenda item to discuss widely differed marks given by individual panel members (marks differing by two grades or more) if any. Such discussion on why marks have been so different and conclusions of the discussion (e.g. whether or not marks have been adjusted following the discussion and the reasons for any mark adjustment; why diverged views/marks have been considered acceptable) should be properly recorded in the minutes indicating clearly the marking members concerned. For each submission, the average mark given by the panel members after adjustment (if any) shall then be taken as the technical score of that submission. The meeting(s) of the assessment panel may be conducted online by means of a secured video conferencing tool (i.e. virtual meeting) in lieu of face-to-face, where found suitable. Further details for the operation of the assessment panel are given in Appendix C of DEVB TCW Nos. 4/2014 and 4/2014A and SDEV's memo ref. ( ) in DEVB(W) 546/84/01 dated 10.11.2023.

6.4 CONFLICT OF INTEREST

The names of officers checking the tenders must be recorded in file and all checked documents should be signed and dated by the checking officers. **All public officers involved in preparing tender documentation (including tender specifications and marking schemes), assessing tenders and conducting negotiations should observe the prevailing civil service guidelines including Civil Service Bureau Circular No. 2/2004 and the provisions in Chapter IA (180 to 197) of the SPRs on how to prevent or deal with conflict of interest situations, and must declare whether they have any actual, potential or perceived conflict of interest upon their taking up of the respective responsibilities in procurement matters and as soon as they become aware of such actual, potential or perceived conflict of interest. When a member of the assessment panel has declared a conflict of interest in the procurement exercise, the chairperson of the assessment panel should decide on the suitability of the member to continue to handle the present procurement taking account of the actual, potential or perceived conflict of interest (subsumed from DEVB TCW No. 8/2014).** Department must state in each tender report whether or not the public officers involved in preparing tender documentation (including tender specifications and marking schemes), assessing tenders and conducting negotiations have declared their interest and, where conflicts of interest (actual, potential or perceived) have been

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identified, what remedial action has been taken. Reference should be made to Appendix I(A) of the SPRs for the specimen declaration and undertaking. Departments should consider and if appropriate draw up supplementary guidelines to fit its circumstances on the avoidance of conflicts. A form of undertaking similar to that attached to SFST's memo ref. (10) in FT 93/88 dated 19.12.2007 may be used for the declaration of interests by the officers involved in preparing tender documentation including tender specifications and assessing tenders. All declarations of interest in accordance with SPR 186 should be kept in file for record.

The consultants' directors, employees, agents and sub-consultants are subject to standard probity clauses on acceptance of advantage and entertainment, declaration of conflict of interest and handling of confidential information when they conduct business in connection with consultancy agreements. One of the key services of the consultants is to assess tenders for works contracts. Similar to the arrangement for civil service officers, all consultants' staff involved in the tender exercise of works contracts are required to sign a form undertaking to maintain confidentiality of tender information, avoid and declare conflict of interest with the tenderers. The standard form is appended in Appendix 6.37 for use. The signed forms shall be appended to the tender assessment reports for checking and acceptance by project teams. (Ref.: SDEV's memo ref. ( ) in DEVB(PS) 106/43 dated 09.02.2024.)

For contracts adopting a marking scheme approach, the assessment panel and the project team, as well as the officer responsible for the safe custody of the sealed envelope on tender prices, should observe the same procedures regarding conflict of interest.

6.5 EXAMINATION OF ELECTRONIC SUBMISSION OF TENDER RETURNS

Amd No. 2/2025

(Subsumed from ETWB TCW No. 11/2005,SDEV's memo ref. ( ) in DEVB(W) 546/94/01 dated 19.12.2019, SDEV's memo ref. DEVB(W) 546/94/02 dated 29.12.2023 and SDEV's memo ref. DEVB(W) 546/94/02 dated 24.5.2024)

Amd No. 1/2026

All tenders, whether in the form of hard copy or in electronic files, shall be checked and evaluated on an equal basis. All electronic files in the tender return shall be 'digitally signed' by the tenderer. Organizational e-Cert used for the purpose of applying digital signatures shall be issued under the name of the tenderer and shall be valid as at the tender closing date in Appendix 6.34.

For tenders submitted via e-TS(WC), any irregularities, including:

(i) file that cannot be opened;
(ii) file that is contaminated with computer virus; or
(iii) additional file that does not contain a sufficiently clear statement drawing attention as to which error is to be rectified and/ or which specific file or part thereof in the tender is to be replaced or supplemented,

shall be dealt with in accordance with the relevant conditions of tender. After the tender has been awarded, the project team should issue a letter to remind the tenderer to avoid repeating such mistakes in future tendering exercises; a sample letter is given in Appendix 6.39.

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Regarding the irregularity mentioned in item (iii) above, decision reached by the project team to disregard any additional file (or a part of it) shall be well-documented and the same standard shall be consistently applied. Amd No. 2/2025

6.6 COMPLIANCE WITH CONDITIONS OF TENDER
(Ref.: ETWB TCW No. 41/2002 & subsumed from DEVB TCW No. 8/2014)

The tender examiner should check that every tender, at the time of opening, complies with the essential requirements set out in the tender document and that it is from a tenderer who is eligible for submitting a tender. He should also check that the Form of Tender is duly completed and contains, inter alia, the names and residential addresses of all partners (if the tender is submitted by a partnership) or offices (if the tender is submitted by an unincorporated body) and the number of the business registration certificate. When there are errors or non-compliance, they shall be dealt with strictly in accordance with the relevant provisions in the conditions of tender. All endorsements and corrections made to tenders in accordance with the conditions of tender by the tender examiner shall be in red ink.

If errors in the pricing documents are found, they shall be corrected in accordance with Appendix 6.27. For the purpose of the correction rules, "error" means arithmetical error or any form of deviation from a conforming tender including without limitation omission to provide the required information pursuant to a condition of tender. The rules to be adopted in correcting errors and omissions depend on the type of contract. Endorsements and corrections made to tender documents should be marked in red (on printouts of the electronic part of the tender return if appropriate) for easy identification.

(Ref.: ETWB TCW No. 41/2002)

Where certain tender information is found missing or where a tender contains technical ambiguities, departments will need to consider carefully whether to seek the missing information or clarification from the relevant tenderer. In general, departments shall keep such post-tender closing contacts with tenderers to the minimum. They shall record clearly and in full all such contacts. Most importantly, they must ensure that such contacts will not give a tenderer any advantage or perceived advantage over other tenderers.

Normally, tenderers are permitted to correct unintentional errors of form (for instance, clerical errors) as long as the correction does not change the tender in substance or give an advantage or perceived advantage to the tenderer over other tenderers. The opportunities that may be given to tenderers to correct unintentional errors of form shall be made equally available to all tenderers and shall not be permitted to give rise to any discriminatory practice.

Where the provision of certain information is specified as an "essential requirement" in the tender document and where such information is missing or incomplete in a tender, the tender shall be considered as non-conforming. Departments should not approach the tenderer concerned to correct a non-conforming tender. Such non-conformance is regarded as "submission of non-conforming tender" for the purpose of circumstances warranting regulating action under paragraph 5.2.3(b)(i) of the Contractor Management Handbook and departments should take appropriate action accordingly.

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Where any missing information or clarification relates to factual information which does not affect compliance with the essential requirements of the tender or the marking of a technical submission in the case of tender evaluation using a marking scheme, and where there is no room for manipulation by a tenderer by virtue of the late clarification or submission of such information, departments may approach the tenderers concerned for such clarification or missing information. In other cases, departments shall assess a tender as submitted. If departments are in doubt as to whether clarifications should be sought, LAD(W) should be consulted.

Departments should not accept any clarification or information submitted by a tenderer after close of tender irrespective of whether or not the clarification or information is submitted at the invitation of the Government if such clarification or information would alter the tender in substance or give the tenderer an advantage or perceived advantage over the other tenderers.

In approaching a tenderer for clarification, departments must not provide any information that may provide an opportunity for the tenderer to improve his tender and result in an advantageous position over the other tenderers.

In case of special circumstances requiring different consideration, departments shall seek the advice of LAD(W) and/or the relevant tender board.

6.7 FOREIGN CURRENCY CONVERSION
(Subsumed from DEVB TCW No. 8/2014)

In general, contract sums for Government contracts should be quoted and paid in Hong Kong dollars. However, in order to avoid tenderers putting in an unreasonable amount of allowance in their quotations to cover risks in exchange rates during the contract period, tenderers may be allowed to quote in foreign currencies. **The conditions under which a department may allow tenderers to quote their offers in foreign currencies are set out in the SPR 355. Where it is allowed and a tender has been priced in whole or in part in a foreign currency, the conversion rate used for tender comparison shall be based on the selling rate of the relevant currency quoted by the Hong Kong Association of Banks at the close of business on the tender closing date. Tender boards/Departmental Tender Committee, in considering recommendations for the award of contracts, will also take into consideration any significant fluctuations in exchange rates after the tender closing date. Departments should state in tender reports the converted tendered sums based on the selling rates on the tender closing date and that on the date of reporting and whether the ranking of the tenders is affected as a result.**

6.8 EXAMINATION OF TENDER PRICES AND RATES
(Subsumed from DEVB TCW No. 8/2014)

The tender examiner shall draw the attention of the Engineer designate to items which are obviously and substantially over or under-priced, erratically priced, or not priced at all, in particular to those items which have a potential for contract variations and which, in the event of variations, would have a significant bearing on the final contract sum. Unrealistic prices or rates should always be checked with other sources

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(Please refer to Para. 6.21). If a department considers that a tender is unreasonably low in terms of price and may therefore affect the tenderer's capability of carrying out the works in accordance with the terms of the contract, the department concerned should further consider the tenderer's capability of undertaking the contract by making an overall assessment of the various risks associated with the acceptance of the unreasonably low tender, such as the risk of the tenderer defaulting (e.g. by claiming that there is a mistake in the pricing of certain items), the risk of the tenderer using sub-standard materials, and the risk of sub-standard workmanship. If a department considers that certain rates in a tender are unreasonably high or erratic and that there is a risk that the tenderer will take advantage of such rates in future claims, the department should assess the risk that the Government will be exposed to in accepting such a tender. When a decision is made to either recommend or not recommend a tender, the tender report should explain the basis of such a decision.

Due care must be exercised in preparing and entering the quantities in the BQ in the first place. Where exceptionally high or low rates are spotted for items in the highest-scored tender during tender assessment, the tender examiner should re-check the corresponding quantities given in the BQ to validate their accuracy. If the quantities are found to be either substantially overstated or understated, a sensitivity analysis shall be carried out to see whether there will be a substantial increase in contract sum or a change in the ranking of the tenders. Where appropriate, the department should consult LAD(W) and seek the approval of the tender board/Controlling Officer[4] to carry out tender negotiations with the tenderers by requesting them to submit rates for the new items added to cover the omitted quantities. The tenders will then be assessed with the rates quoted for the new items taken into account. (Ref.: SDEV's memo ref. ( ) in DEVB(W) 545/83/02 dated 2.7.2010)

6.9 PROCEDURE AFTER CORRECTION OF ERRORS AND EXAMINATION OF RATES

(Subsumed from DEVB TCW No. 8/2014)

After the correction of tender errors and the identification of any substantially over or under-priced and unpriced items, the Engineer designate shall notify in writing each relevant tenderer of these corrections and irregularities. Before making a recommendation, the Engineer designate shall require each tenderer to confirm in writing that he is prepared to abide by the (corrected) tender. LAD(W) should be consulted on possible remedies available if a tenderer chooses not to abide by the tender.

Negotiation with the tenderer in this respect should not be conducted as this may be construed as giving the tenderer concerned an advantage over the other tenderers.

6.10 TENDER QUALIFICATION

(Subsumed from DEVB TCW No. 8/2014)

It is generally stated in tender documents that any qualification of the tender may cause the tender to be disqualified and the Government may not consider the tender further. A tender may, however, be qualified inadvertently owing to different interpretation of particular statements or remarks made by the tenderer in the tender.

4 If such authority has been delegated to Controlling Officer via Financial Circular No. 3/2009

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Approval from the appropriate tender board is NOT required to approach a tenderer in seeking clarification on the purpose or meaning of particular statements or remarks in his tender; reminding him of possible disqualification of his tender; and seeking an unequivocal withdrawal of any qualifications by a reasonable deadline.

Care must be exercised in approaching tenderers for clarification of tender qualifications, and legal advice from LAD(W) should be sought where necessary. Under no circumstances can a qualified tender be rejected, expressly or otherwise, without the prior authority from the appropriate tender board.

6.11 DESIGNS AND ALTERNATIVE DESIGNS BY TENDERERS (Ref.: DEVB TCW No. 3/2014)

Where alternative designs are not invited, alternative tenders shall not be taken into consideration.

Where alternative designs are invited, tenderers may elect to submit a tender conforming to the Engineer/Architect's design and/or in accordance with the invitation to submit a tender with an alternative design, i.e. an alternative tender. It is not necessary that both tenders are submitted. If a tenderer elects to submit both a tender conforming to the Engineer/Architect's design and an alternative tender, the two tenders shall be assessed separately as two independent tenders without affecting each other. The principle is that tenders conforming to the Engineer/Architect's design and those other tenders with alternative designs are evaluated using the same marking scheme, except that the Engineer/Architect's design will serve as a benchmarking reference with a pre-set technical mark for the design attribute(s) whereas a higher or lower mark for those other tenders with alternative designs may be given depending on their own merits. In this situation, the marks given to the corresponding attributes for all other tenders which conform to the Engineer/Architect's designs should always be the Passing Mark(s) which is(are) normally half of the maximum mark(s).

Where tenderers are required to submit tenderer's designs for part of the Works not covered by the Engineer/Architect's design, a tenderer must submit such a design or otherwise, his tender will not be considered.

For a time-critical project, the risks of project slippage as a result of adopting an alternative design shall be critically assessed in accordance with the guidelines set out in ETWB TCW No. 6/2005. The risk assessment shall be included in the tender report for submission to the CTB/PWTB. (Ref.: Audit Report No. 53 Ch. 10)

Where foundation works in the "Scheduled Areas" in the northwest New Territories and Ma On Shan is involved, the tenderers' foundation design proposal shall be submitted to the GEO for comment in accordance with ETWB TCW No. 4/2004.

6.12 CONTRACTORS' ELIGIBILITY TO TENDER (Subsumed from DEVB TCW No. 8/2014)

All tenderers, including EMSTF, should be checked to confirm their eligibility to tender with regard to whether they are subject to regulating actions due to convictions under

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the Employment Ordinance, Immigration Ordinance, Public Health and Municipal Services Ordinance, site safety related offences or environmental offences etc.

A tenderer is eligible for tender submission if he meets the qualification requirements on the date set for the close of tender or, if this has been extended, the extended date.

For determining the eligibility of probationary contractors to tender and for award of contracts, a two-stage checking shall be carried out in accordance with paragraphs 2.5.1, 3.5.1 and Sub-section 7.5 of the Contractor Management Handbook.

6.13 EFFECT OF INCIDENCE OF PAYMENTS
(Subsumed from DEVB TCW No. 8/2014)

In recommending the acceptance of a tender to a tender board, departments should have value for money in mind. **If the tendered sums, or the overall scores when a marking scheme or formula approach is adopted in the tender evaluation, are very close, or if the contract to be awarded involves payments over a number of years, e.g. interim payments to the contractor, the department should compare the tenders by discounting future payments to obtain the present value and use the present value to substitute the tender price in determining the ranking of the tenders. In assessing the present values of tenders, the department may approach the Management Accounting Division of FSTB for advice.**

6.14 EVALUATION OF TENDERS

6.14.1 General
(Subsumed from DEVB TCW No. 8/2014)

The tender examiner should examine tenders against the technical specifications, terms and conditions laid down in the tender documents to determine whether they are fully conforming. In recommending a tender for acceptance, the department should check the technical, commercial and financial capability of the tenderer in undertaking the contract, which should include their past performance records and the current performance ratings, conviction records under site safety and environmental pollution related ordinances, Immigration Ordinance, Employment Ordinance, Section 27 of the Public Health and Municipal Services Ordinance (i.e. Mosquito breeding offences), and for contracts with a value exceeding $100 million any past history of claims pertaining to the honesty and integrity of the tenderers, where available. There is no need to include the above conviction records in the tender report or to summarize the number of these convictions in the text of the tender report, unless special references to these records have been made in the report.

Other than corrections made in accordance with the conditions of tender, departments should not accept any change in tender price offered by a tenderer after close of tender.

Tender evaluation, including financial vetting, normally takes four to six weeks. Under the simplified tendering arrangement promulgated under FC No. 3/2009, Controlling

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Officers should aim to complete tender evaluation within two to three weeks for works contracts not exceeding $52 million.

6.14.2 Methods of Tender Evaluation

Basically, tender evaluation should be carried out by means of a marking scheme approach or a formula approach as detailed in DEVB TCW Nos. 4/2014, 4/2014A and SDEV's memo ref. ( ) in DEVB(W) 546/84/01 dated 10.11.2023.

The cut-off dates in different contexts for tender assessment should have been clearly set out in the tender documents of a particular contract and should be followed in the tender evaluation. In general, the original tender closing date (TCD) is to be used for counting the relevant experience and qualification of tenderers and their key personnel irrespective of whether the TCD has been extended, while the extended TCD, if it has been extended, is to be used for counting other aspects of tender assessment (see Appendix 6.32). (Ref.: FSTB's memo ref. ( ) in TsyB T 00/810-6/33/0 Pt 5 dated 8.8.2014)

Details of the Contractor's Performance Index System are given in ETWB TCW No. 3/2007 and DEVB TCW No. 3/2007A.

6.14.3 Technical Submissions

Where a marking scheme in tender evaluation is adopted, the tenderers are required to make a technical submission on technical resources and technical proposal, which shall form part of the contract. Normally, the technical submissions are to be evaluated first. If during the technical assessment it is revealed that it is necessary to deal with any tender qualifications and/or seek any clarifications on any matters in the technical submissions, they should be dealt with and resolved before the tender price documents are opened such that the technical submissions may be properly assessed. The sealed envelope that contains the tender price documents should only be opened after the assessment panel has completed the evaluation of all technical submissions based on the approved marking scheme. The evaluation of the technical submissions shall follow Appendix C of DEVB TCW Nos. 4/2014 & 4/2014A and SDEV's memo ref. ( ) in DEVB(W) 546/84/01 dated 10.11.2023.

The technical submission shall be carefully studied in the tender evaluation process to ensure that it is compatible with all other provisions of the contract. The project officers shall check to ensure that the proposed technical resources such as managerial and technical staff, plant and equipment and the tenderer's technical proposal such as quality assurance plan are essential and sufficient to complete the contract both in an efficient and in a good quality manner.

In order to enhance the quality of works delivery, it is beneficial that the project officers shall assess at the tender evaluation stage if adequate resources for site supervision and a structured site supervision system will be adopted by the tenderer, based on the technical submission being submitted.

For projects involving substantial underground works, consideration should be given to requiring tenderers to submit method statements with indicative costs for dealing with adverse ground conditions even if the occurrence of such conditions are considered rather unlikely by the Engineer. This would improve the chance of completing these projects even if unexpected adverse ground conditions do occur.

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6.14.4 Other Checks to be carried out on Tenders

The three tenders with the highest combined price-quality score should also be checked for the following:

(a) The tenders are signed by persons authorized and where applicable, details of partners etc. agree with those in DEVB's Approved List;

(b) A tenderer who is on probation will not exceed the limit of work allowed if awarded the contract (Please refer to Para. 6.14.6);

(c) The tenderers are believed to be financially capable of successfully carrying out the contract and any other Government contracts he may hold. According to Para. 2.9.2 of the Contractor Management Handbook, a departmental responsibility in this respect shall be met by consulting the Finance Section of DEVB (a sample memo for financial checking is given in Appendix 6.15):

(i) In respect of contracts of value exceeding $15 million; and

(ii) In cases where there is reason to doubt the financial capability of tenderers for contracts with a value of $15 million or less; and

(d) Where tender addenda have been issued, a check should be made to ensure that the tenderers have submitted with their tenders all the required certification for tender addenda (Para. 5.2). If such certification has not been returned with any one of the tenders, it shall be obtained from the respective tenderer. (Subsumed from WBTC No. 6/95)

It should be noted that if a tenderer does not meet the qualification requirement by the tender closing date, his tender shall not be considered.

6.14.5 Unified Approach for Rounding Marks in Tender Evaluation and Prequalification Exercises of Works Contracts (Ref.: SDEV's memo ref. DEVB(W)546/84/01 dated 27.1.2010)

There shall be "no rounding" of figures throughout the marking process. For avoidance of doubt, "no rounding" means the whole number including all digits to the right of a decimal separator shall be employed for calculation purposes. The level of precision recommended is 8 decimal places. Procuring departments may choose to adopt a different precision level if so justified.

As regards presentation in the hard-copy form (e.g. marking sheet and tender report, etc.), all figures shall normally be "shown" in 2 decimal places according to the following rule : "round" up the 3rd decimal place if it equals to or exceeds 5 and "round" down if it is below 5. Procuring departments shall choose to adopt more decimal places if so justified, e.g. in checking the passing mark or comparing the final scores. For

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instance, the final scores of two tenderers of 88.88440000 and 88.88450000 shall be shown as 88.884 and 88.885 respectively.

6.14.6 Eligibility to Tender and for the Award of Contracts for Contractors and Specialist Contractors with Probationary Status

(Ref.: Sections 2.5, 3.5 and 7.5 of Contractor Management Handbook subsumed from SDEV's memo ref. ( ) in DEVB(W) 546/83/01 dated 10.8.2011 and SDEV's memo ref. ( ) in DEVB(PS) 108/34 dated 15.1.2021)

On rare circumstances, a probationary contractor who is eligible to tender may become ineligible for award of the contract due to the tender limit being exceeded as a result of award of another contract of the same category, class and group during the period from tender closing to signing of the tender report. To address the issue, a two-stage checking on the eligibility of probationary contractors to tender and for award of the contract should be carried out. For the details regarding the two-stage checking to be carried out, the checking criteria, parallel tenders and notification to tenderers, please refer to sections 2.5, 3.5 and 7.5 of Contractor Management Handbook subsumed from SDEV's memo ref. ( ) in DEVB(W) 546/83/01 dated 10.8.2011 and SDEV's memo ref. ( ) in DEVB(PS) 108/34 dated 15.1.2021 available at Works Group Intranet Portal. Clauses 30 and 30A in the standard library of General Conditions of Tender (available in DEVB's internet website and Works Group Intranet Portal) are also relevant.

6.15 TENDER RECOMMENDATIONS

Where it has been specified that the formula approach or a marking scheme is to be used in the tender evaluation, the tenders shall be evaluated strictly in accordance with the rules and the criteria specified. Normally, the tender which attains the highest overall score should be recommended, subject to the usual requirement that the recommended tenderer is fully (technically, commercially and financially) capable of undertaking the contract and that the recommended tender is the most advantageous to the Government in accordance with the tender provisions.

For tenders involving multiple contracts, there may be a cap on the maximum number of contracts that may be awarded to each tenderer. If a tenderer is successful in a number of contracts that exceeds the cap, the department should recommend a tender award combination that would cost least to the Government as set out in Appendix 6.33, unless some other selection criteria have been specified in the tender documents. Reference should be made to S for Tsy's memo ref. (107) in FT 53/88 Pt 2 dated 8.2.2002.

If none of the tenders received complies with the essential requirements of the tender, the department should recommend to the relevant tender board, or the Controlling Officer as the case may be, to cancel the tender exercise (see SPR 380(e) and FC No. 3/2009) and re-tender with revised specifications, terms and conditions, where applicable. If exceptionally departments wish to recommend a non-conforming tender, SPR 370(g) should be followed. Procedures for cancellation of tender exercises under other circumstances should be referred to SPR 380.

6.16 NOT USED

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6.17 TENDER NEGOTIATIONS

In general, the Government policy is to seek competitive tenders and to select the offer representing the best value for money. Under certain circumstances, it would be in the Government's best interest to negotiate the award of a contract.

Further details and guidelines on preparing for and conducting negotiations are given in SPR 385 and Appendix III(J) of the SPRs for general reference.

6.18 TENDER REPORT BY THE ENGINEER DESIGNATE

Tender reports for submission to the CTB/PWTB shall be prepared in accordance with the standard format in Appendix III(I) to the SPRs together with any modifications as may be required by the PSTsy from time to time. If it is intended to make use of a tender report prepared by the project consultant for submission to a tender board, it should be accompanied by a covering memo containing an endorsement of the tender report including any other relevant information not covered in the tender report. (Subsumed from DEVB TCW No. 8/2014) The covering memo should also include a confirmation statement on declaration of no conflict of interest as described in Item (f)(i) below. **The covering memo should be signed by the Head of Department or a directorate officer on his behalf. Where the procurement is governed by WTO GPA, it should be stated in the tender report whether the requirements of WTO GPA have been fully complied with and the reasons for any non compliance. (Subsumed from DEVB TCW No. 8/2014)**

The tender report should be signed by the Engineer designate for the Contract (the practice in WSD is slightly different, as given in WSD's internal documents). Key statements should be written in active voice in order not to blur accountability. For example:

- I recommend acceptance of the tender submitted by ....
- I consider the recommended tenderer is suitable to carry out the contract ....
- I confirm that the recommended tenderer is not suspended from tendering ....
- I consider it realistic to accept the recommended tender ....

In addition to the information required for a tender report as set out in Appendix III(I) of the SPRs, the following statements/information should also be included where applicable:

(a) Any tenderer has written in to withdraw his tender.

(b) If, within the three tenders with the highest combined price-quality score, there are omissions/irregularities in the pricing of such magnitude which would potentially affect the final contract sum significantly due to substantial change in original estimated quantities or due to variations, then this should so stated.

(c) Any tenderer has been asked to correct the Schedule of Proportions for calculating the Price Fluctuation Factor.

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(d) If only a small number of tenders are received, an explanation should be given for the poor response.

(e) For prequalified tendering, it has to be confirmed that appropriate endorsement has been obtained for any changes in material particulars of the prequalified tenderers which occur between the prequalification exercise and the submission of the tender report.

(f) It should be stated that all officers involved in the tender assessment have already declared their interest and, where conflicts of interest (actual, potential or perceived) have been identified, appropriate remedial action has been taken. Sample confirmation statements on declaration of no conflict of interest are as follows:

(i) Tender reports prepared by Government officers
"I confirm that all officers involved in preparing tender documentation including tender specifications (including tender specifications and marking schemes) and assessing tenders have declared that there is no actual, potential or perceived conflict of interest for them to take part in the process in accordance with Stores and Procurement Regulation 186."

(ii) Tender reports prepared by the project consultants (Ref.: SDEV's e-mail dated 10.7.2008 "Declaration of No Conflict of Interest for Consultants")
"We, (name of the project consultant), have declared our compliance with the relevant terms and conditions of the Consultancy Agreement on conflict of interest and confirmed that there was no actual, potential or perceived conflict of interest in connection with our services in the preparation of *tender and contract documents and in the tender exercise*."

(Note: Replace words in italics by "prequalification document and in the prequalification exercise" for prequalification submissions.)

(g) For tenders subject to WTO GPA, a statement should be included confirming whether the requirements of WTO GPA have been fully complied with and if not, why not. Department should consult D of J via LAD(W) if there is any doubt as to the requirements of WTO GPA in particular cases.

(h) For tenders of which the marking scheme approach is adopted, the approved marking scheme and the result of the evaluation should be highlighted in the tender report.

(i) For tenders with a restriction on the maximum number of contracts to be undertaken by the same contractor imposed (with reference to Para. 3.11 and SFST's memo ref. FT 53/88 Pt. 3 dated 18.11.2004), the tender reports should indicate justifications for setting the restriction and whether the restriction is supported by legal advice.

(j) The contractors' performance index ratings over the past two years for the three tenders with the highest combined price-quality score.

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(k) Paragraph G of Appendix III(I) to the SPRs requires checking of all performance reports of government contracts and relevant Housing Authority contracts undertaken by the recommended tenderer during the preceding five years ("5-year checking period') and stating the total number of these contracts together with a summary of any adverse report(s) issued under these contracts in the tender report. For tenders adopting the standard marking scheme for tender evaluation, the 5-year checking period shall tally with the 5-year assessment period defined in Appendix C1 to DEVB TCW Nos. 4/2014 & 4/2014A and SDEV's memo ref. ( ) in DEVB(W) 546/84/01 dated 10.11.2023. For tenders adopting the formula approach for tender evaluation, the 5-year checking period shall be counted from the original date set for close of tender or, if this has been extended, the extended date. Copies of the relevant computer printouts of Contractor Management Information System showing the summary of the Contractor's Performance Reports (i.e. RPT0034A for formula approach or RPT0034B for standard marking scheme) and the Contractor's Performance Ratings shall be appended to the tender report. The total no. of contracts and a summary of any adverse report(s) issued as shown in the relevant computer printouts should be stated in the tender report. The same practice is applicable to Housing Authority contracts (Ref.: SDEV's memo ref. ( ) in DEVB(W) 545/83/02 dated 12.2.2010 and SDEV's memo ref. ( ) in DEVB(W) 546/84/01 dated 2.5.2014).

(l) Conviction records should only be included if special references to these records have been made in the report. (Please refer to Para. 6.14.1).

(m) If an alternative design is recommended for a time-critical project, the tender report should include the risk assessment of project slippage as a result of adopting the alternative design (Please refer to Para. 6.11). (Ref.: Audit Report No. 53 Ch. 10)

The works department shall state in the tender report any special circumstances or important assumptions governing the tender recommendation (Ref. Appendix III (I) of the SPRs). For example, if a works department notes that there could be a site handover problem (e.g. mismatch of the date for return of a works area from the contractor to the Government under the works contract with the land grant conditions whereby the Government is under an obligation to hand over the land to a third party by a certain date), the department should inform the relevant tender board of the special circumstance accordingly.

The tender report should be submitted to an officer of D2 rank or above for his endorsement and submission to the appropriate tender board (see Appendix 6.16).

Where none of the tenders is recommended for acceptance, the report to be submitted to the appropriate tender board should contain:

(a) Background information;

(b) Number of tenders received and their tender price;

(c) Detailed reasons for not recommending acceptance of any of the received tenders; and

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(d) A recommendation on the way forward and whether a second tender exercise would be required, and if so, the timing and method of re-tendering.

The requirement to prepare and submit tender reports to tender boards does not apply to works contracts awarded under the simplified tendering arrangements promulgated in FC No. 3/2009. Controlling Officers are authorized to approve the award of all contracts not exceeding $30 million and of all contracts above $30 million but not exceeding $52 million provided these are awarded to the highest combined price-quality scorer. If a works contract above $30 million but not exceeding $52 million is not recommended to the highest combined price-quality scorer, the project office shall still follow the normal procedures to seek the approval of the relevant tender board.

In any cases, tenderers should only be informed of the result of the tender assessment after a decision from the appropriate authority is received.

6.19 ENDORSEMENT OF TENDER REPORT

The officer of D2 rank or above will forward the Engineer designate's report (the practice in WSD is slightly different, as given in WSD's internal documents) to the chairman of the relevant tender board with a covering memo containing the remark (Appendix 6.16):

> "I support the (Engineer designate's) recommendation in para….. of the attached tender report".

together with any other comment he may see fit to add in special cases. If there is a delay in putting forward a submission, department must state the reasons in the tender report for not being able to submit on time. In case of a tender report prepared by a non-directorate officer or consultants, and submitted under cover of a memo signed by a directorate officer on behalf of the Head of Department, the memo should contain an endorsement of the tender report in its entirety.

If the officer of D2 rank or above does not support the Engineer designate's recommendation, he must give an alternative recommendation and reasons for such change.

The Head of Department concerned or his representative may be requested or may himself request to attend the relevant tender board meeting to present his recommendations or to answer any queries that the tender board may have (see SPR 310(c) and 375(c)).

6.20 SUBMISSION OF E-TENDER REPORT FORM TO CTB (Ref.: SFST's memo ref. in TsyB T 00/810-6/75/0 dated 19.12.2024)

The e-Tender Report Form facilitates B/Ds in preparing tender reports in an accurate, consistent and efficient manner as well as enabling the digitalisation of CTB's work processes and data management. The e-Tender Report Form covers all works tenders (including tender cases with exemption and exception) under the ambit of CTB.

B/Ds are required to adopt the e-Tender Report Form for works tenders (including tender cases with exemption and exception) for submission to CTB on or after

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1 March 2025. Relevant tender reports without submission of the e-Tender Report Form in the e-TS(WC) will not be processed by the CTB Secretariat.

B/Ds are required to input relevant tender information (e. g. details of tender invitation, information of tenderers, tender evaluation and recommendation, etc.) of works tenders in the e-Tender Report Form in the e-TS(WC). The tender information from the e-Tender Report Form will then be auto-populated to generate a tender report. B/Ds may edit the tender report and include additional information as necessary having regard to individual circumstances (e.g. reporting complaints received or attaching copy of legal advice obtained) for submission to CTB.

That notwithstanding, to facilitate expeditious processing by the CTB Secretariat, B/Ds should continue the existing arrangement of submitting sufficient hardcopies (i. e. seven copies and the original copy of the report) of the tender report signed or endorsed by the Controlling Officer or his representative at directorate level to the CTB Secretariat at least five clear working days prior to CTB meeting in accordance with the Stores and Procurement Regulations 310(c) and 375(b). In gist, B/Ds should complete the e-Tender Report Form in the e-TS, compile the tender report and submit the signed tender report in hardcopies and upload the same signed tender report in pdf format via the e-TS to the CTB Secretariat.

For the avoidance of doubt, the e-Tender Report Form is only applicable to tender reports for contract awards (including seeking approval-in-principle for acceptance of tender). B/Ds should follow the existing practice to submit other applications (e.g. seeking prior approval for negotiation/tender cancellation) in pdf format through the e-TS(WC) to the CTB Secretariat. Amd No. 1/2026

6.21 SUBMISSION OF TENDER REPORTS

For contracts that require submission of tender report to tender boards, the following original tender documents plus six/four copies of the tender report and documents in item (b) below shall be submitted to the CTB/PWTB respectively. For tender report submitting to the CTB, one extra copy of the report should be submitted to SEO(PS) of DEVB (and TLB as appropriate) by hand at the same time.

(a) Original tender documents

(i) If the lowest (highest for revenue tenders) tender (in terms of price) or the tender with the highest overall score in formula approach or marking scheme cases is recommended for acceptance, the three lowest (highest) tenders or, as the case may be, the three tenders of the highest overall scores.

(ii) If the recommended tender is not the lowest (highest for revenue tenders), the lower (higher) tender(s), the recommended tender and the next two higher (lower) tenders or, where a formula approach or a marking scheme is adopted and the recommended tender is not of the highest overall score, the tender(s) of higher overall score, the recommended tender and the next two tenders of lower overall scores.

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(b) Copies of correspondence

Copies of correspondence exchanged with the tenderers and the tenderers' past performance records are not required for submission with the tender report unless special references to these correspondence or records have been made in the report. Normally, it is only necessary for departments to provide a statement summarizing all the post-tender closing contacts such as missing information and clarifications submitted by the tenderers after close of tender and confirming that the tenderers have confirmed in writing that they are prepared to abide by their tenders as may be required in paragraph 6.9 within the relevant criteria together with a report on the contractors' performance index ratings and a summary of contractor's performance reports within the last five years (Items (j) and (k) of Para. 6.18). While it is not necessary to include the details of the contacts with the tenderers during the tender evaluation stage in the tender report, it should be confirmed in the tender report that the post-tender closing contacts/clarifications with tenderers, if any, are conducted in accordance with the relevant tender terms and SPR 365 (Ref.: SFST's memo ref. (45) in FT 53/88 Pt. 6 dated 31.3.2009).

The hardcopies of Amd No. 1/2026 **tender report must reach the Chairman, CTB/PWTB, by hand if necessary, five clear working days (Saturdays excluded) before the meeting of the tender board, and at least four weeks before, whichever is earlier, the expiry of the validity period of the recommended tender or the intended commencement date of the contract to be awarded. Any recommendation that is considered controversial should allow an extended period to permit the tender board to raise questions and request further information.**

6.22 REJECTION OF TENDER

(Ref.: ETWB TCW No. 8/2003 and SDEV's memo ref.(022UY-01-10) in DEVB(W) 510/10/01 dated 31.8.2009)

Departments should note that under no circumstances can a tenderer be advised that his tender is unsuccessful, even though his tender is non-conforming until a decision on tender award is made by the relevant tender board or the Controlling Officer where such authority has been delegated via FC No. 3/2009 (subsumed from DEVB TCW No. 8/2014).

One of the Government's objectives in procurement is to obtain goods and services at the best value for money taking into account not only the competitiveness in prices, but also compliance with users' requirements, reliability of performance, qualitative superiority, whole-life costs and after-sale support, where applicable. It is not in the interest of the Government to accept an unreasonably low bid. Departments should adopt a flexible approach and reject bids that have been priced unreasonably low. It is not practical, if not impossible, to set quantitative guidelines for determining whether a bid is unreasonably low or not. Each case should be considered on its own merits and professional judgement should be exercised. Assessment of the reasonableness of a bid should take account of the following:

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(a) prices, including overall prices as well as any unit rates for major items, quoted by other contractors who have submitted tenders or bids for the contract;

(b) pre-tender estimates for the contract;

(c) prices, including overall prices as well as any unit rates for major items, quoted by the successful tenderers in recent tender exercises;

(d) market rates for major items, if available from other sources;

(e) cost build-up rates, including staff rates;

(f) whether the price is heavily front-loaded.

The tenderer with unreasonably low bid shall not be rejected until approval is obtained from the relevant tender board or the Controlling Officer where such authority has been delegated.

Enquiries must be made with the tenderer before the procuring department decides not to award the contract to the tenderer if a procuring entity has doubts (arising from the unreasonably low bid) on the capability of the tenderer. The following provisions are hereby introduced to supplement the above policy and provisions and shall be read in conjunction with procedures for examination of tenders and submission of tender reports given in this Section:

(a) If a procuring department considers that, prima facie, a bid is unreasonably low and as such they have concern about the tenderer's capability to fulfil the relevant contract, the department shall make sure that the tenderer does comply with the conditions of participation, and carry out enquiry to find out whether or not the tenderer is capable of fulfilling the terms of the contract prior to making tender recommendation.

(b) The procuring department shall inform the tenderer of the precise points that have given rise to their concern on unreasonably low bid and the tenderer's capability to fulfil the contract. The tenderer shall be asked to provide explanations. For example, if the unreasonably low bid is made up of various items and the price/rate for some of these items are considered unreasonably low, the procuring department shall ask for explanations in respect of the specific items.

(c) In considering the tenderer's reply, care shall be taken to ensure that the tenderer will not take the opportunity to change or qualify their tender prices or rates or to enhance their tender or to cause any unfairness to any other tenderers.

(d) The tenderer shall be advised of the prohibition referred to in sub-paragraph (c) above and that any explanation given by the tenderer at this stage will only be used to assess whether the tender price is unreasonably low and whether the tenderer is capable to fulfil the contract. If the tenderer gives any explanation which has the potential to introduce any

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change to the tender (such as qualifying the tender prices or rates for future variations), LAD(W)'s advice shall be sought. Any qualification shall be dealt with in accordance with the established procedures.

(e) A sample letter to the tenderer on unreasonably low bids is attached at Appendix 6.29. Project officers may amend the sample letter to suit the needs of their individual contracts. In case of doubt, LAD(W) should be consulted.

(f) The recommendation made to the relevant tender board must be fully justified taking into account the outcome of the enquiry made with the tenderer. The head of the procuring department must be personally satisfied with and agree to the recommendation made to the relevant tender Board in case of rejection of an unreasonably low bid.

(g) For the avoidance of doubt, the above provisions apply to all works contracts irrespective of whether they are covered by WTO GPA or not.

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7. ACCEPTANCE OF TENDER

7.1 AUTHORITY TO ACCEPT TENDER

The authority to accept a tender shall be given from either the relevant tender board or the Controlling Officers, depending on the value of contracts and whether the contract is awarded to the highest combined price-quality scorer or not. The appropriate approval authorities are as follows:

Contract Value	Approving Authority
(a) Not exceeding $30 million	Controlling Officers
(b) Above $30 million but not exceeding $52 million and contract is:	
(i) To be awarded to the highest combined price-quality scorer	Controlling Officers
(ii) Not to be awarded to the highest combined price-quality scorer	Public Works Tender Board
(c) Above $52 million but not exceeding $200	Public Works Tender Board
(d) Above $200 million	Central Tender Board

The Controlling Officer has the authority of awarding tender not exceeding $52 million as set out in the above table only if such tender exercises are under the simplified tendering arrangement in accordance with FC No. 3/2009 (i.e. for works contracts that are not subject to the WTO GPA). After a decision has been made on the acceptance of a tender, the secretary of the relevant tender board or the Controlling Officers shall notify the project office of its approval and copy the approval memo to the D of A and the D of GL for information. All tenders submitted with the tender report should be returned with this memo. No action from the project office should be taken until the appropriate approval is received.

7.2 CHECKS PRIOR TO ACCEPTING TENDER

Checks should be made to ensure that:

(a) ensure that either funds are available for payments to the contractor or that the Finance Committee has approved funds and administrative action is in hand to obtain their release;

(b) ensure that land required for the work will be available by the contract commencement date or, for staged possession of site, in accordance with the details given in the contract;

(c) ascertain, in the case where the Special Conditions of Tender have included a clause on reduction of Contingency Sum, whether the Employer/Engineer designate has issued a notification in writing (see Appendix 6.31) referred to in sub-clause (1) of the Special Condition of Tender on reduction of Contingency Sum with request for acknowledgement of receipt. If so, a copy of the

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notification in writing referred to in sub-clause (1) of the Special Condition of Tender on reduction of Contingency Sum together with the acknowledgement shall be incorporated in the contract documents forming part of the contract; and

(d) ensure that the rate of liquidated damages entered into the Appendix to the Form of Tender is a genuine pre-estimate of the Employer's loss judged at the time of entering into the contract and notify the tenderer (with request of acknowledgement) of the rate of LD so calculated before tender acceptance and a copy of such notice shall be incorporated in the contract documents forming part of the contract. (see Para. 16 & 21 of ETWB TCW No. 4/2003).

7.2.1 Post Tender Correspondence Prior to the Issue of the Letter of Acceptance (Subsumed from WBTC No. 6/95)

Where correspondence has been exchanged with a tenderer regarding his tender and it is decided to accept his tender, the Engineer designate for the contract shall decide and agree with the tenderer as to which correspondence shall form part of the contract.

7.3 ACCEPTANCE OF TENDER (Subsumed from WBTC No. 6/95)

A letter of acceptance shown in Appendix 6.17 shall be sent to the successful tenderer with the following content:

(a) A list of all correspondence exchanged with the tenderer both during the tender period and after receipt of the tender which has been agreed to form part of the Contract, if applicable;

(b) Details of insurance to be provided by the Contractor if applicable;

(c) Details of bond/security to be provided by the Contractor if applicable (one copy of the standard form of Performance Bond shown in Appendix B of WBTC No. 10/97A may be attached to the letter for the Contractor's reference);

(d) Place, date and time for executing the Articles of Agreement;

(e) The requirement for a power of attorney for executing the Articles of Agreement if necessary;

(f) The title and address of the Engineer for the Contract;

(g) The requirement for submission of works programme as stated in GCC Clause 16 and the Safety Plan as stated in relevant SCC if necessary; and

(h) Granting of in-principle consent of contract assignment, if applicable (the provision shall be read in conjunction with SDEV's memos ref. (0348H-01), (03969) and ( ) in DEVB(W) 510/33/02 dated 3.1.2020, 12.5.2021 and 10.3.2022 respectively available at Works Group Intranet Portal and Section 21.3 of PAH Chapter 7).

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(i) Any other relevant instruction or matters relevant to the acceptance of tender.

The letter shall be signed by the Government officers authorized to execute contracts on behalf of Government (Government signatory) (see Para. 9.1).

If there are files submitted via e-TS(WC) that cannot be opened or are contaminated with computer virus, or there are additional files submitted but without a sufficiently clear statement as to which error is to be rectified and/ or which specific file or part thereof in the tender is to be replaced or supplemented, a letter shall be sent together with the letter of acceptance for notifying the successful tenderer regarding the observation and arrangement. A sample of the letter is given in Appendix 6.39. Amd No. 1/2026

7.4 FEEDBACK AND DEBRIEFING TO UNSUCCESSFUL TENDERERS

7.4.1 Notification
(Subsumed from LWBTC No. 22/85; Ref.: ETWB TCW No. 42/2002)

Within three working days after the letter of acceptance has been sent to the successful tenderer or upon notification from tender board that no tender is to be accepted, all unsuccessful tenderers shall be notified in writing that their tenders have not been accepted. For contracts with an awarded contract sum or total estimated expenditure above $4 million, the procuring department shall disclose to the unsuccessful tenderers who have submitted valid tenders the following information where applicable:

(a) The awarded contract sum;

(b) The overall quality score of the successful tenderer;

(c) The highest score attained for each quality attribute in the tendering exercise; and

(d) The unsuccessful tenderers' own overall quality score and scores for each quality attribute.

For contracts with an awarded contract sum or total estimated expenditure above $100 million (including Design and Build Contract) and the use of a marking scheme is adopted in tender evaluation, the procuring departments shall also notify the unsuccessful tenderers that they can lodge a request for a debriefing if considered beneficial. However, to save manpower resources, unsuccessful tenderers to be debriefed shall be limited to those who have submitted conforming tenders with tender sums lower than the awarded contract price, or whose tenders are amongst the four highest overall scores. Debriefing need not be offered to unsuccessful tenderers where the formula approach is adopted in tender evaluation or tenderers who have failed in getting prequalified if applicable.

Request for debriefing shall be raised within 3 weeks from the date of the notification letter to the unsuccessful tenderers and late request shall not be entertained. The request shall include a list of questions or issues that the unsuccessful tenderer would

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like to have further feedback from the procuring department. A number of prerequisites as given in Appendix 6.28 have to be accepted by the unsuccessful tenderers before the requested debriefing should be arranged.

A sample letter to the unsuccessful tenderers is given at Appendix 6.18.

If there are files submitted via e-TS(WC) that cannot be opened or are contaminated with computer virus, or there are additional files submitted but without a sufficiently clear statement as to which error is to be rectified and/ or which specific file or part thereof in the tender is to be replaced or supplemented, a letter shall be sent together with the notification letter to the unsuccessful tenderers for notifying the tenderers regarding the observation and arrangement. A sample of the letter is given in Appendix 6.39. Amd No. 1/2026

7.4.2 Debriefing
(Ref.: ETWB TCW No. 42/2002)

Upon receipt of a request for debriefing, the procuring department shall fix the date, time and place of the debriefing. Separate debriefing session shall be arranged for each tenderer. Detailed guidelines and procedures for arranging and conducting debriefing session are given in Appendix 6.28. Basically, the following salient points should be noted:

(a) The debriefing team shall be led by an officer of the rank of senior professional or above from the procuring department with at least one member of the team selected from the assessment panel or who has assisted directly in tender evaluation;

(b) The number of representatives from the unsuccessful tenderer shall be not more than three;

(c) No comparison of the unsuccessful tenderer's submission with other submissions shall be discussed;

(d) The debriefing should be conducted as informal discussion and no formal record or notes (including tape recording) should be prepared;

(e) Any information that would impede the law enforcement or otherwise be contrary to public interest or would prejudice the legitimate commercial interest of particular enterprises, public or private, or might prejudice fair competition between contractors should not be released; and

(f) The debriefing shall not be taken as a means or an opportunity for the unsuccessful tenderers to lodge appeal or complaint against tendering result nor to re-open the tendering exercise.

In any case, SPRs 346, 347 and 349 should be strictly followed when responding to any request for information made by the tenderers.

7.5 DISPOSAL OF UNSUCCESSFUL TENDERS

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(Subsumed from LWBTC No. 22/85)

Submissions from unsuccessful tenderers for contracts tendered under WTO GPA should be retained for a period of 3 years after execution of the contract. For tenders not covered by WTO GPA, submissions from unsuccessful tenderers shall be retained for a period of 3 months after execution of the contract on site, or, until receipt of a notification from tender board that no tender is to be accepted, after which they should be broken up, reusable documents retrieved and the remainder destroyed (see SPR 530(c)).

7.6 AMENDMENTS AFTER THE ISSUE OF THE LETTER OF ACCEPTANCE (Subsumed from WBTC No. 6/95)

Any amendments required after issue of the letter of acceptance can only be made by means of a separate agreement with the tenderer (now Contractor). All such cases must be referred to the LAD(W) for advice.

7.7 REPORTING OF TENDERING PERFORMANCE

The Managing Department of the relevant category is to maintain the records of contractors' tenders, whether accepted or not. The office/division/unit concerned of the department that calls tenders in a particular category or categories should report the tendering performance of all the contractors to the Secretary of the Managing Review Committee (MRC) of the predominated category within one week after acceptance of the tenders by the relevant approving authority. A sample memo for the reporting of tendering performance is given at Appendix 6.19. However, the procuring department should be responsible for uploading the tendering performance onto the Contractor Management Information System (CMIS) (S for W's memo ref. (70) in WB(PS) 105/11(97) XI dated 9.12.99). The CMIS is intended to maintain central records for the better management of the contractors' list, including the tracking of the contractors' tendering performance. For the case where a tender exercise is cancelled under the circumstances as stipulated under SPR 380, the reporting of tendering performance should be carried out within one week after approval of the cancellation of the tender exercise by the relevant authority, and the uploading of the tendering performance onto the CMIS should also be carried out. In such case, the wording of the sample memo at Appendix 6.19 should be adjusted accordingly.

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8. ACTION PRIOR TO EXECUTION OF THE ARTICLES OF AGREEMENT

8.1 PREPARATION OF COPIES OF DOCUMENTS (Subsumed from LWBTC No. 22/85)

Identical sets (number to suit Departmental requirements) of documents comprising the contract (i.e. those referred to in the Articles of Agreement) shall be prepared.

6 sets of contract documents shall be prepared as set out in the following table:

<table>
<tr><th colspan="3">Sets of Documents</th><th>Purpose</th></tr>
<tr><td rowspan="3">3 complete sets</td><td colspan="2">Original (comprising the booklet and/or electronic files returned by the successful tenderer with all the other documents and correspondence comprising the Contract with the exception of GS and SMM)</td><td>For signing and subsequent submission to the Accounts Section of the departmental HQ (or the Finance Section for WSD contracts or Accounts Section of respective Office/Region for HyD and CEDD contracts) for safe custody</td></tr>
<tr><td>Duplicate</td><td rowspan="2">Identical with the original, prepared utilizing duplicate copies of standard documents and photocopies of non-standard documents taken from the successful tender</td><td>For signing and passing to the Contractor</td></tr>
<tr><td>Triplicate</td><td>For certifying as true copy and retention by the Engineer for the Contract</td></tr>
<tr><td>3 sets</td><td colspan="2">Identical with the original but without drawings and GCC, prepared utilizing duplicate copies of standard documents and photocopies of non-standard documents taken from the successful tender</td><td>For certifying as true copy and distribution to:
(i) D of A (softcopy of certified true copy of contract documents in pdf (searchable) format only)
(ii) Contract Adviser of the department/office (softcopy of certified true copy of contract documents in pdf (searchable) format only)
(iii) Accounts Section of the departmental HQ (except for HyD and CEDD where the certified true copy should be sent to the relevant Accounts Section responsible for processing payment for that contract.)</td></tr>
</table>

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Other sets of contract documents shall be prepared for the division/regional office administering the Contract, the Engineer's Representative and his staff as necessary. In particular, for contracts administered by consultants, a quadruplicate copy of the contract documents identical with the original shall be prepared for certifying as true copy for retention by the division/regional office.

The documents shall be bound into separate sets, each set in one volume if practicable, although drawings are normally bound together in a separate volume. Tape shall be threaded through holes punched in the documents and knotted. The knots shall be sealed with "sealing wax" or "adhesive paper seal" and with the office seal applied. The Contractor should also be given the opportunity of fixing his seal on the tape.

If the set of documents comprises more than one volume, each volume shall be similarly taped and clearly marked to indicate the total number of volumes in the set (e.g. volume 1 of three volumes). Moreover, the front sheet of each volume (except for the volume containing the Articles of Agreement) of both the original and the duplicate sets of documents should have provisions made for signatures in the same form as the signature section of the Articles of Agreement.

8.1.1 Incorporation of Amendments and Post Tender Correspondence into Formal Contract Documentation (Subsumed from WBTC Nos. 6/95 & 6/95A; Ref.: DEVB TCW No. 7/2014)

Copies of all documentation that is to form part of the contract must, together with copies of the letter of acceptance, be bound into the formal contract documents.

The following rules should also be followed for the incorporation of amendments and post tender correspondence into contract documents:

(a) Those parts of the documents that are amended or affected by correspondence exchanged with the tenderer and that have neither been altered in the document nor replaced by an addendum sheet shall be marked "see correspondence". Where the GCC have been amended by SCC, the affected clauses shall be marked "See Special Conditions of Contract".

(b) Any correspondence exchanged with the tenderer (who is now the Contractor) that has neither been dealt with in accordance with Para. 5.2 nor been referred to in the letter of acceptance and yet is intended to form part of the Contract must be referred to in the Articles of Agreement. This requires amendments to the standard Articles of Agreement which must not be made without reference to the LAD(W).

(c) The amendments and correspondence shall be incorporated into the first volume (if there is more than one volume) of the contract documents containing the Articles of Agreement. Where the number of amendments and correspondence is such that it would not be feasible to have them bound into the first volume of the contract documents, copies of all the amendments and correspondence may be placed in a separate volume to the remainder of the documents with an index and a "signature and

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witness" sheet (in the same form as the signature section of the Articles of Agreement) at the front of the volume. The "signature and witness" in this volume is to be completed at the time of executing the Articles of Agreement. The various volumes comprising the contract documents should be referenced so that it is quite clear how many volumes are involved and an index should be placed in the first volume making it quite clear that the copies of the correspondence and amendments are in a separate volume.

The sample attestation clauses in a deed for use by the respective parties in a contract given in DEVB TCW No. 7/2014 should be used for all the "signature and witness" sections in the contract documents. The format to be signed by the Contractor differs slightly depending on whether it is an unincorporated body, unincorporated joint venture, company incorporated in or outside Hong Kong, or company incorporated in Chinese Mainland. Different attestation clause shall also be used if the Contract is to be executed under a power of attorney. Execution of the Contract should all be witnessed and the witness shall sign and his/her name, occupation and address shall be stated in the attestation clause.

8.2 CHECKING OF COPIES OF DOCUMENTS

The officer responsible for the preparation of the copies of documents should check that the copies to be signed are all made up correctly and should flag up all places where signatures are required.

The duplicate copy should also be carefully checked independently by another officer against the original documents to ensure its correctness.

The certified true copies should also be completed and checked for correctness by the officer responsible for the preparation of the copies of documents. These copies should be marked "Certified True Copy (signature)" at the top right hand corner of the front cover of the documents.

8.3 APPROVAL OF BONDSMAN

If the Contract requires a bond (see WBTC Nos. 10/97 (as updated by SDEV's memo ref. ( ) in DEVB(W) 510/70/03 dated 27.7.2021) & 10/97A) and the Contractor elects to provide a bond instead of security money, he should submit the name of his proposed bondsman.

Bondsmen on the Government approved list maintained by DEVB and as notified from time to time by circular memo from the Director of Accounting Services are deemed to be approved automatically. Otherwise, the name of the proposed bondsman must be submitted to the Director of Accounting Services for his approval. Should the Director of Accounting Services not approve the proposed bondsman, then the Contractor must be notified accordingly and instructed to submit the name of another bondsman or deposit the security money within seven days.

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8.4 OTHER CHECKS PRIOR TO EXECUTING THE ARTICLES OF AGREEMENT
(Subsumed from LWBTC No. 22/85; Ref.: DEVB TCW No. 7/2014)

Prior to signing the Articles of Agreement, the Contractor should submit and the officer responsible for the preparation of the documents shall ensure the following:

(a) details given by the successful tenderer and information stated in the Articles of Agreement regarding the names and addresses are in order by checking against his business registration record. This may include checking the Business Registration Certificate, the Certificate of Incorporation, the Certificate of Registration of Oversea Company or the Articles of Association, depending on whether the successful tenderer is an unincorporated body, unincorporated joint venture, company incorporated in or outside Hong Kong, or company incorporated in Chinese Mainland. The guidelines given in DEVB TCW No. 7/2014 should be followed.

If the successful tenderer is on the list of approved contractors maintained by departments, the department may already have such records indicating the company's business registration certificate number, the date of expiry of the certificate and other relevant information. In such cases, verification will only be necessary annually when the business registration certificate is due for renewal.

(b) Any insurance policies and receipts for the payment of their premiums that are required by the Contract.

(c) The power of attorney produced by the successful tenderer is valid, if the Articles of Agreement are to be executed pursuant to such. The procedures for checking the power of attorney would be different if the company concerned is incorporated in or outside Hong Kong. A sample certification of a copy of the power of attorney and checklists for examining a power of attorney are given in DEVB TCW No. 7/2014.

(d) Any other item required by the Contract prior to signing.

(e) The bond, if required in the Contract and the Contractor has elected to provide one (refer to WBTC No. 10/97A) (which should be retained and subsequently sent to the Accounts Section of departmental headquarters for safe custody), or the receipt for payment of the security deposit (in which case the receipt number shall be entered in the space provided on the Form of Tender).

(f) Joint Venture Guarantee, where applicable. (see ETWB TCW No. 50/2002 as amended by SETW's memo ref. (01656-01-3) in ETWB(W) 511/34/01 dated 4.8.2006 and DEVB TCW No. 7/2014).

(g) If common seal is used, check that it is a metallic seal with the name of the company engraved in legible characters.

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If the Articles of Agreement are to be signed under a power of attorney and the Contractor's representative fails to produce an acceptable power of attorney prior to the signing, then the signing must be postponed until either an acceptable power of attorney is produced or the person authorized to sign Government contracts on the Contractor's behalf signs in person.

In case of doubt as to the power of a company to enter into a contract or as to the authority of the person signing a contract on the company's behalf, the department may, if necessary, seek the advice of the Registrar of Companies, preferably at the time the file is being inspected. Most contracts are in a standard form, and their general method of execution will be apparent from the form. Any queries or points of doubt about executing of contracts should be addressed to the LAD(W) but some guidance notes are provided at Appendix V(A) of the SPRs and checklists are given in DEVB TCW No. 7/2014 to assist departments as to specific details.

If the Contractor fails to provide any of the other items referred to above, then the signing should be postponed until they are available unless it is recognized that there may be circumstances which, in the opinion of the Government signatory, dictate that the signing should proceed.

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9. EXECUTION OF THE ARTICLES OF AGREEMENT

9.1 SIGNATORIES
(Subsumed from LWBTC No. 22/85; Ref.: DEVB TCW No. 7/2014)

Refer to DEVB TCW No. 7/2014 and any subsequent amendments with regard to person(s) authorized to sign Articles of Agreement on behalf of the Government and Contractor.

Contracts shall be signed on behalf of the Government by officers at the directorate level unless the SFST has authorized otherwise. The normal practice is as follows:

Department/Office	Types of Contract	Officer nominated to sign contracts for and on behalf of Government
CEDD/HyD/DSD/WSD divisions/regional offices/offices headquarters	Contracts arising in the divisions/regional offices/office headquarters for which the respective nominees are responsible	Officer of D2 rank or above
Development Offices of CEDD	All contracts arising in Development Offices of CEDD including contracts managed by consultants	Chief Engineer or above

Note : The officer nominated to sign a contract for and on behalf of Government should not be the same person who will also be nominated as the Engineer for that particular Contract.

The Contractor's signatories for a contract should be in accordance with the following table (see also Appendix V(A) of the SPRs and DEVB TCW No. 7/2014):

Contractor Organization	**Signatory**	
Sole proprietor	**Owner (in person)**	**Signatory conferred with the requisite power to execute the Articles of Agreement by a power of attorney**
Partnership	**All partners (jointly)**	
Company incorporated in Hong Kong	**Signatory in accordance with the Articles of Association of the company and executed with or without a common seal**	
Company incorporated outside Hong Kong including Chinese Mainland	**Normally overseas companies would execute the Articles of Agreement by a power of attorney. It must be properly notarized and authenticated by the appropriate authorities. Refer to DEVB TCW No. 7/2014 for details.**	
Joint venture	**Depending on nature of the joint venture – incorporated joint venture or unincorporated joint venture. Refer to DEVB TCW No. 7/2014 for details**	

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The guidelines in the form of checklists given in DEVB TCW No. 7/2014 for the execution of public works contracts with or without a common seal are given in Appendix 6.30. The guidelines are not hard and fast rules for valid execution and there are other ways of attestation which constitute valid execution. Works department are advised to seek legal advice if they are in doubt.

9.2 SIGNING OF CONTRACT (Subsumed from LWBTC No. 22/85)

If the requisite signatories are present at the date fixed for the signing of the Contract, the signing shall proceed. All signatories of the Contractor should be asked for production of identity card for verification of identity. A note should also be made on file that such verification has been made. Execution of the Contract should be witnessed and the witness(es) should sign accordingly.

The original and the duplicate of the contract documents (Para. 8.1) should be executed as follows:

(a) the Articles of Agreement signed by all the requisite signatories and the witness(es);

(b) a wafer applied alongside the Government's signature and

(i) where common seal is applied in the Articles of Agreement, the Contractor's company seal applied alongside his signature(s);

(ii) where common seal is inapplicable, a wafer applied alongside the Contractor's signature(s).

(c) if a set comprises more than one volume, the top sheet of each volume other than that containing the Articles of Agreement shall be signed by all the signatories and the witness(es) and dated.

After the signing of the Contract, all documents that are not required for keeping by the department shall be returned to the Contractor.

The details of any insurance policies should be noted in a standard form (see Appendix 6.20) signed by the Engineer for the Contract and attached to the front cover of the original and the certified true copies of the Contract. If the policies are annual policies, the above details should also be recorded in the relevant contract file. The annual policies and the premium receipts shall then be returned to the Contractor. If the policies are specific to the Contract in hand (i.e. other than an annual policy), then the original or certified true copies of the policies and the premium receipts shall be forwarded to the departmental headquarters for retention.

If the requisite signatories are not present, a new date for signing shall be arranged and in the event of the Contractor's failure to comply, the matter shall be referred through office and departmental headquarters to DEVB or TLB.

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9.3 RECEIPT FOR DOCUMENTS FROM CONTRACTOR

A letter to acknowledge receipt of the original or certified true copies insurance policy(ies) and/or surety bond from the Contractor should be issued if such are to be retained by the department. (see Appendix 6.21)

9.4 PUBLICITY FOR SIGNING CONTRACTS OF PUBLIC INTEREST

Contracts with a significant social, economic or political impact are of great public interest. The signing of such contracts should receive good publicity and SPO of DEVB or PIO, I&PR of TD (for HyD projects) should be requested to arrange this.

These contracts should preferably be signed by the Head of Office or Head of Department personally.

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10. DISTRIBUTION OF CONTRACT DOCUMENTS
(Subsumed from LWBTC No. 22/85)

The set of signed and sealed documents incorporating the Contractor's original submission together with the bond (if any) shall be kept in the Managing Department for safe custody. The duplicate of the contract documents shall be delivered by the division/regional office to the Contractor by registered post, or given by hand and a receipt obtained. A softcopy of certified true copy of contract documents in pdf (searchable) format shall be forwarded to the Director of Audit and to Contract Adviser of the department/ office.

The division/regional office should forward the following to Accounts Sections of the departmental headquarters (or the Finance Section for WSD contracts) by hand with a covering memo as shown in Appendix 6.22:

(a) Original of the executed contract documents, including drawings if any;

(b) Original and a copy of the surety bond, if any;

(c) Original or certified true copies of insurance policies and premium receipts, if any; and

(d) Three certified true copies of the contract documents (without drawings), i.e. one hard copy and two softcopies of the certified true copies of contract documents.

Distribution of the documents by departmental headquarters will be as follows:

(a) One softcopy of certified true copy of contract documents in pdf (searchable) format to Director of Audit;

(b) One softcopy of certified true copy of contract documents in pdf (searchable) format to Contract Adviser of the department/office; and

(c) The original and one certified true copy of the Contract, and the original or certified true copies of the insurance policies and premium receipts and the surety bond (if any) to be retained by Accounts Section of the departmental headquarters or the Finance Section for WSD contracts.

The triplicate of the contract documents should be delivered to the Engineer for the Contract.

The remaining sets of contract documents shall be used as required to suit Departmental requirements.

For HyD, DSD and CEDD, the method of distribution is slightly different. Appendix 6.22 is not used. The Office/Region/Division shall distribute the documents to D of A and the Contract Adviser directly. In addition, the Office/Region/Division shall also provide one certified true copy of the contract documents to its Accounts Section who will be responsible for processing payment for that contract. For HyD, the original of the contract documents

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shall be retained in the Accounts Section of the respective Office/Region and the Office/Region shall send to the Accounts Section of the departmental headquarters only the original or certified true copies of the insurance policies and premium receipts (if any) and the surety bond and its copy (if any). For DSD, the Division shall forward to the Departmental Administration Division only the original of the executed contract documents, including drawings if any. For CEDD, the original of the contract documents including drawings (if any) shall be retained in the Accounts Section of the respective Office and the Office/Division shall send to the Accounts Section of the departmental headquarters the original of the insurance policies and premium receipts and surety bond (if any).

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11. MISCELLANEOUS

11.1 NOMINATED SUB-CONTRACT

Guidelines set out in Sections 1 to 6 apply generally to tenders for nominated sub-contracts. Gazette notice, tender invitation, prequalification notice etc. should clearly specify that the tender invited or intended to be invited is for a nominated sub-contract.

The procedure for the acceptance of a tender from a nominated sub-contractor is different to that for other contracts as the contract is between the main contractor and the nominated sub-contractor.

Whilst Government nominates the nominated sub-contractor, it is the main contractor who accepts his tender. Consequently, the tender from the sub-contractor who is nominated by Government must be sent to the main contractor to enable him to accept it. A standard letter to the nominated sub-contractor advising him that he has been nominated is given at Appendix 6.23 and a standard letter to the main contractor requesting him to accept the tender and to make arrangements for it to be formally signed and executed is given at Appendix 6.24.

The main contractor is requested to send certified true copies of the executed nominated sub-contract to Government and the Engineer for the Contract.

11.2 HANDLING OF COMPLAINTS

Please refer to SPR 160. For contracts covered by WTO GPA, contractors may make a challenge against alleged breaches of WTO GPA to the Review Body on Bid Challenge. For the rules of operation of the Review Body on Bid Challenges, see the following website for reference:

https://www.tid.gov.hk/english/trade_relations/tradefora/reviewbody/reviewbody.html

11.3 ACCESS TO TENDER INFORMATION

The guidelines on the disclosure of tender information are stipulated in SPRs 346 – 349. In disclosing tender information, departments must ensure that such disclosure will not undermine the integrity of the tendering system, and that the prevailing Code on Access to Information is observed. Legal advice should be sought if in doubt.

11.4 NOTICE TO TENDER BOARDS FOR DETAILS OF THE CONTRACT AWARDED

For contracts tendered under WTO GPA, departments should provide the relevant tender board with the details as prescribed in Appendix 6.25 within two weeks after the contract has been awarded.

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11.5 NOTICE TO GOVERNMENT LOGISTICS DEPARMENT FOR DETAILS OF THE CONTRACT AWARDED

For contracts not exceeding $52 million handled through the simplified tendering arrangements promulgated in FC No. 3/2009, Controlling Officers are required to notify the Government Logistics Department on contracts awarded by them through the delegated authority to enable the D of GL to arrange to publish the details of the contracts awarded on the Internet.

To facilitate the Government Logistics Department (GLD) in making the necessary arrangement, the procuring department should refer to the guidelines in GLD website to download the latest version e-form (https://gld.host.ccgo.hksarg/gld/pcms/pcms.html). (Ref: GLD's email dated 15.4.2015) The list of contracts awarded in a particular month should reach the Government Logistics Department at least two weeks before the end of the following month for publication. Departments may make necessary arrangements to assign an officer to coordinate the return for the whole department regularly. Please also refer to SPR 390(d).

11.6 OBLIGATIONS OF DEPARTMENTS

For contracts tendered under WTO GPA, on request from a contractor, the department shall collect necessary information and provide the contractor with:

(a) An explanation of its procurement practices and procedures;

(b) The reasons why its application to qualify was rejected, or why its existing qualification was brought to an end or why it was not selected; and

(c) (To an unsuccessful tenderer) the reasons why its tender was not selected and pertinent information on the characteristics and relative advantages of the winning tender selected as well as the name of the successful tenderer. Para. 7.4.1, 7.4.2 and Appendix 6.28 provides the guidelines and procedures on debriefing to unsuccessful tenderers. However, departments may decide that certain information on the contract award be withheld where release of such information would impede law enforcement or otherwise be contrary to the public interest or would prejudice the legitimate commercial interest of particular enterprises, whether public or private, or might prejudice fair competition between contractors or suppliers.

11.7 CESSATION OF THE USE OF ELECTRONIC DATA

If the tenderer has provided an undertaking on the use of Government digital map data as described in Para. 5.4, departments should check whether the relevant cessation notice has been returned by the required date. The requirement is given in Section 8.4 of Chapter 5.

Similarly, the ASP being distributed with an EDP should also be required to submit within 7 days a return notice as given in Schedule 3 to Annex 3 of Appendix 6.34. Departments should retain the return notices for record purpose.

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11.8 CONTRACT RATE DATABASE SYSTEM

The Contract Rate Database System was launched by DEVB to provide a convenient access to contract rates of works contracts let by CEDD, DSD, HyD and WSD. The system comprises two different databases, one for civil engineering works and another for electrical and mechanical works. User manual of the system can be obtained through DEVB's intranet portal.

A departmental coordinator in each of the said departments has been assigned to oversee the compilation of the databases. Project engineers of the said departments shall follow the guidelines of their respective departments to submit data files containing the unit rates of major items of awarded contracts to their departmental coordinators. The departmental coordinators shall consolidate and disseminate the data through the Contract Rate Database System.

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12. REFERENCES

CSB Circular No. 2/2004	Conflict of Interest
PWD TC No. 11/76	Sale of Plans to Tenderers for P.W.D. Projects
WBTC No. 4/92	Pre and Post Tender Meetings
WBTC No. 10/97	Use of Performance Bonds Security and Retention Moneys and Standard Form of Bond
WBTC No. 10/97A	Use of Performance Bonds Security and Retention Moneys and Standard Form of Bond
WBTC No. 15/99	Improvement to Quality of Maintenance Works
WBTC No. 15/99A	Improvement to Quality of Maintenance Works
WBTC No. 24/99	Restrictions on the award of maintenance and minor works term contracts
WBTC No. 13/2001	Quality Management System Certification of Consultants and Contractors for Public Works Administered by the Works Group of Departments
WBTC No. 13/2001A	Quality Management System Certification of Consultants and Contractors for Public Works Administered by the Works Group of Departments
ETWB TCW No. 15/99B	Improvement to Quality of Maintenance Works
ETWB TCW No. 41/2002	Correction Rules for Tender Errors
ETWB TCW No. 42/2002	Feedback and Debriefing to Unsuccessful Bidders for Consultancy Agreements and Works Contracts
ETWB TCW No. 50/2002	Contractors' Joint Ventures
ETWB TCW No. 4/2003	Assessment of Liquidated Damages
ETWB TCW No. 8/2003	Rejection of Unreasonably Low Bids
ETWB TCW No. 12/2003	Employment of Technician Apprentices and Building & Civil Engineering Graduates by Contractors of Public Works Contracts
ETWB TCW No. 22/2003	Additional Measures to Improve Site Cleanliness and Control Mosquito Breeding on Construction Sites
ETWB TCW No. 22/2003A	Additional Measures to Improve Site Cleanliness and Control Mosquito Breeding on Construction Sites
ETWB TCW No. 4/2004	Checking of Foundation Works in the Scheduled Areas of Northwest New Territories and Ma On Shan and the Designated Area of Northshore Lantau
ETWB TCW No. 6/2005	Implementation of Systematic Risk Management in Public Works Projects
ETWB TCW No. 15/2005	Geotechnical Control for Tunnel Works
ETWB TCW No. 3/2007	Contractors' Performance Index System
DEVB TCW No. 3/2007A	Contractors' Performance Index System

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DEVB TCW No. 3/2009	Regulating Action against Contractors for Occurrence of a Serious Incident or Conviction for Site Safety or Environmental Offences
DEVB TCW No. 6/2010	Trip Ticket System for Disposal of Construction & Demolition Materials
DEVB TCW No. 2/2014	Tender Procedures for Procurement governed by the Agreement on Government Procurement of the World Trade Organization
DEVB TCW No. 3/2014	Contractors' Designs and Alternative Designs
DEVB TCW No. 4/2014	Tender Evaluation Methods for Works Contracts
DEVB TCW No. 4/2014A	Tender Evaluation Methods for Works Contracts
DEVB TCW No. 7/2014	Guidance on Execution of Public Works Contracts as a Deed
DEVB TCW No. 5/2015	Prequalification of Tenderers for Public Works Contracts
DEVB TCW No. 4/2017	Employment of Skilled Workers in Public Works Contracts
FC No. 3/2009	Simplified Tendering Arrangement for Capital Works
FC No. 2/2014	Revised Agreement on Government Procurement of the World Trade Organization
FC No. 3/2020	Parallel tendering for contracts
Audit Report No. 53 Ch. 10 - Provision of a bypass in Tuen Mun West	https://www.aud.gov.hk/pdf_e/e53ch10.pdf
D of GL's memo ref. (38) in PD/12/4 dated 12.8.2005	Submission of Government Notices to be Published in the Gazette
DEVB Contractor Management Handbook	https://www.devb.gov.hk/en/construction_sector_matters/contractors/contractor_management_handbook/index.html
DEVB's email dated 10.7.2008	Declaration of No Conflict of Interest for Consultants
DEVB's emails dated 17.5.2021 and 20.5.2021	Updates of Project Administration Handbook for Civil Engineering Works - Appendix 6.2 Sample Tender Notice for Publishing on the Internet on the Department's Homepage, Appendix 6.4A Specimen Gazette Tender Notices and Section 11.5
FSTB Stores and Procurement Regulations	http://fb.host.ccgo.hksarg/spr/spr_e_clean(fc03_2020).pdf
FSTB (Treasury Branch)'s memo ref. (10) in FT 93/88 dated 19.12.2007	Avoiding Conflict of Interest - Declaration and Undertakings by Officers Involved in Preparing Tender Documentation including Tender Specifications and Assessing Tenders
GLD's email dated 15.4.2015	Contract Award Notice

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Public Works Tender Board's memo ref. (18) in ASD13/95200/TEN/CLOSE/DAT dated 21.7.2020	Re-location of Public Works Tender Box
S for W's memo ref. ( ) in WB(W) 209/32/110 dated 02.05.2001	Library of Special Conditions of Contract, Clause 14 - Sub-contracting
S for Tsy's memo ref. (6) in FT 53/88/2 dated 28.02.2000	Minimum Wage Requirements in Government Tenders for the Procurement of Services
S for Tsy's memo ref. (107) in FT 53/88 Pt. 2 dated 8.2.2002	Selection of combination of tenders
S for W's memo ref. (70) in WB(PS) 105/11(97) XI dated 09.12.1999	Contractor Management Information System - Tendering Performance
SDEV's memo ref. (01QXA-01-12) in DEVB(W) 546/70/02 dated 23.4.2008	Representatives at Pre-contract Stage
SDEV's memo ref. (022UY-01-10) in DEVB(W) 510/10/01 dated 31.8.2009	ETWB TCW No. 8/2003 - Rejection of Unreasonably Low Bids
SDEV's memo ref. () in DEVB(W) 546/84/01 dated 27.1.2010	Rounding Marks in Tender Evaluation and Prequalification Exercises of Works Contracts and Consultancies
SDEV's memo ref. () in DEVB(W) 545/83/02 dated 12.2.2010	Past Performance Reports of Recommended Tenderer
SDEV's memo ref. () in DEVB(W) 545/83/02 dated 2.7.2010	Checking of Quantities for Items with Exceptional High Tender Rates
SDEV's memo ref. () in DEVB(W) 546/70/01 dated 25.11.2010	Termination of Publication of Tender Notices in Local Newspapers
SDEV's memo ref. () in DEVB(W) 546/83/01 dated 10.8.2011	Contractors and Specialist Contractors with Probationary Status Eligibility to Tender and for the Award of Contracts
SDEV's memo ref. () in DEVB(W) 510/10/01 dated 11.2.2014	Alignment with the new Companies Ordinance (Cap. 622)
SDEV's memo ref. () in DEVB(W) 546/84/01 dated 2.5.2014	DEVB TCW No. 4/2014 Tender Evaluation Methods for Works Contract - Update of cross-references

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SDEV's memo ref. () in DEVB(W) 920/30/01 dated 6.1.2015	DEVB TCW No. 2/2014 - Tender Procedures for Procurement governed by the WTO GPA - Extension of tender closing date
SDEV's memo ref. (02VVW-01-1) in DEVB(W) 510/83/05 dated 24.1.2017	SCT 4 – Contractors' Joint Venture
SDEV's memo ref. () in DEVB(W) 510/30/01 dated 29.3.2019	Revision to the Threshold for Legal Vetting of Tender Documents for Works Contracts
SEDV's memo ref. () in DEVB (W) 546/94/01 dated 19.12.2019	Electronic Dissemination of Tender Documents and Electronic Submission of Tender Returns on Removable Media
SDEV's memo ref. (03487-01-1) in DEVB(W) 510/83/05 dated 31.12.2019	Use of Joint Venture (JV) Proforma
SDEV's memo ref. (0348H-01) in DEVB(W) 510/33/02 dated 3.1.2020	Interim Relief Measure to Assist the Construction Industry – Streamlining the Approval Process of Contract Assignment
SDEV's memo ref. () in DEVB(PS) 108/30 dated 3.1.2020	Notification Letter to Unsuccessful Tenderers
SDEV's memo ref. () in DEVB(PS) 108/34 dated 15.1.2021	List of Approved Contractors for Public Works (the List) and List of Approved Suppliers of Materials and Specialist Contractors for Public Works (the Specialist List) Group Tender Limit, Probationary Limit and Financial Criteria
SDEV's memo ref. () in DEVB(PS) 108/34 dated 29.1.2021	List of Approved Contractors for Public Works (the List) and List of Approved Suppliers of Materials and Specialist Contractors for Public Works (the Specialist List) Revised Contractor Management Handbook
SDEV's memo ref. () in DEVB(W) 546/84/01 dated 25.2.2021	Amendment to DEVB TC(W) No. 4/2014A Introduction of an Option of Price to Technical Weighting of 50/50 in the Standard Marking Scheme for Works Tenders
SDEV's memo ref. (03969) in DEVB(W) 510/33/02 dated 12.5.2021	Extension of Interim Relief Measure to Assist the Construction Industry – Streamlining the Approval Process of Contract Assignment
SDEV's memo ref. () in DEVB(W) 510/70/03 dated 27.7.2021	Use of Retention Money and Performance Bond/Cash Security
SDEV's memo ref ( ) in DEVB(W) 510/33/02 dated 10.3.2022	Extension of Interim Relief Measure to Assist the Construction Industry - Streamlining the Approval Process of Contract Assignment

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SDEV's memo ref. ( ) in DEVB(PSGO) 38/05 dated 27.6.2022	Reflecting the Returned Tender Prices in Legislative Council
SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 8.8.2022	Interim Measures to Support Small and Medium Sized Contractors in Participating in Public Works Projects – Extension of Measures on Broadening the Span of Groups of Contractors to be Invited to Tender
SDEV's memo ref. ( ) in DEVB(PS) 106/43 dated 9.2.2024	Handling of Conflict of Interest – Declaration and Undertakings by Consultants' Staff Involved in Tender Exercise of Works Contracts
SDEV's memo ref ( ) in DEVB(W) 546/84/01 dated 10.11.2023	DEVB TC(W) No. 4/2014 & No. 4/2014A Tender Evaluation Methods for Works Contracts Merit/ Demerit Point for Safety
SDEV's memo ref ( ) in DEVB(W) 546/94/02 dated 29.12.2023	Implementation of Electronic Tendering System for Works Contracts
SDEV's memo ref ( ) in DEVB(W) 546/94/02 dated 10.5.2024	Electronic Tendering System for Works Contracts Registration for Tender Closing Date
SETW's memo ref. () in ETWB(PS) 111/9 dated 16.1.2003	Dissemination of Tender Notice to the Mainland
SETW's memo ref. (01656-01-3) in ETWB(W) 511/34/01 dated 4.8.2006	ETWB TCW No. 50/2002 Contractor Joint Ventures
SETW's memo ref. (019JP-01-4) in ETWB(W) 510/83/05 dated 2.11.2006	ETWB TCW No. 50/2002 Contractor Joint Ventures
SFST's memo ref. () in FT 53/88 Pt. 3 dated 18.11.2004	Restriction on the Maximum Number of Contracts to be Undertaken by the Same Contractor
SFST's memo ref. (45) in FT 53/88 Pt. 6 dated 31.3.2009	Clarification of Tenders and submission of Tender Reports
SFST's memo ref. (50) in L/M No. (3) to S6/1/21 dated 9.9.2010	Publication of Tender Notices
SFST's memo ref. () in TsyB T 00/810-6/33/0 Pt 5 dated 8.8.2014	Cut-off Dates for Tender Assessment
SFST's memo ref. L/M to TsyB E 00/810-4/1/0 dated 20.12.2017	Amendments to Stores and Procurement Regulations

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SFST's memo ref (71) in TsyB T00/810-1/1/0(C) Pt.3 dated 27.8.2018	Tender Opening Issues

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APPENDICES

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APPENDIX 6.1 CALLING FOR TENDERS - SAMPLE ROUTING SHEET

Contract No.:
Title:

From	Signature /Date	To	Action	Action by D# minus Note 1
E		CE (thro' SE)	Please approve the checklist, estimates summary and draft documents as follows: - (i) * Memo Note 3 requesting publication of gazette notice for invitation to tender (ii) * Draft tender notice for posting on Internet and, if necessary, advertising in local press / Draft Gazette Notice (copies) Note 2 (iii) * Draft press release (copies) Note 2 (iv) Contract general layout drawings (copies) Note 2	18– 21 WD
CE		E (thro' SE)	Checklist, estimates and documents (i) to (iv) are agreed. Please fair the documents.	15– 18 WD
E		CE (thro' SE)	Documents (i) to (iv) are faired and attached. Please sign the Memo Note 3.	12 – 15 WD
CE		D2 or D3 Officer as appropriate (Thro' Tech Sec/SE Note 4)	I attach Documents (i) to (iv) for tender invitation, as well as the checklist and estimates summary for your information. Please sign the Memo Note 3 for tender invitation.	10 – 13 WD
D2 or D3 Officer as appropriate		Director of Department	Documents (i) to (iv), checklist and estimates summary are submitted herewith. Please sign the Memo Note 3 for tender invitation.	8 – 11 WD
Director of Department		Appropriate Tech Sec/ SE Note 4	I have approved the tender invitation. Please invite tenders. All documents, checklist and estimates summary are returned herewith.	6 – 9 WD
Appropriate Tech Sec/ SE Note 4		E	I have completed tender invitation	5 – 8 WD

D# = Date of first Tender Invitation
WD = Working Days (excluding Saturday, Sunday and public holidays). The numbers of WD are to be determined by project offices.
* Delete or modify as appropriate

Notes:

1. The action dates are given for guidance only and should be set according to the departmental procedures on invitation to tenders. The upper ranges of the action dates are to allow more time for contracts that require tender invitation by Gazette Notice.
2. The total number of copies required depends on the method of tender invitation.
3. Using sample memo given in Appendix 6.3, PAH (The distribution list may be modified to accord with simplified tendering arrangement in FC No. 3/2009, viz. tender invitation for contract under $52M need only be published on the Internet.)
4. The appropriate Technical Secretary/Senior Engineer of individual project office subject to its arrangement.

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CALLING FOR TENDERS - CHECK-LIST

1. Documents attached:

* (i) Memo requesting for invitation to tender / publication of Gazette Notice
* (ii) Draft tender notice for posting on the Internet / Draft Gazette Notice
* (iii) Draft press release
* (iv) General layout drawing
* (v) Draft tender documents and drawings
* (vi) Project file
* (vii) Calculation file
* (viii) Quantities file

2. Procedure completed:

Procedure	Folio/File Reference
(a) Legal (i) Roads (Works, Use and Compensation) Ordinance (ii) Water Pollution Control Ordinance – Water Pollution Control (Sewerage) Regulation (iii) Foreshore and Sea-bed (Reclamations) Ordinance (iv) EIA Ordinance (v) Others (Please specify) (b) Land Works site, and disposal sites for surplus fill and mud works/borrow areas confirmed by : (i) Public Fill Committee (PFC) (ii) Marine Fill Committee (MFC) (iii) District Lands Conference or District Lands Office (iv) Others (Please specify) (c) Tree removal agreed by (i) District Lands Conference (ii) LCSD/AFCD (d) General layout agreed (see PWSC Submission Check-List in Project File) (e) Works programme agreed by Utilities/circulated to Utilities (f) Setting out drawing agreed by Lands Department (g) Standard SCT and non-standard SCT approved by an officer of D1 rank or above and an officer of D2 rank or above respectively (h) SCC approved by Head of Department/an officer of D2 rank or above/an officer of D1 rank (see Para. 5.2.3 of Chapter 5 as appropriate, who has been delegated with this responsibility (i) Design agreed in principle by (Division/Office responsible for future maintenance) (j)* Facilities for Persons with Disabilities have been designed to the established standard. or (j)* The Rehabilitation Advisory Committee Sub-committee on Access was consulted pursuant to PAH Chapter 4 Para. 4.3.2.	

* Delete where appropriate

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3. Attention is drawn to the following special requirements of the Particular Specification:

4. Estimates summary attached.

_____

Project Engineer

(for HyD : (tel. no. :))

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CALLING FOR TENDERS – ESTIMATES SUMMARY

I. Estimated Cost of Contract and Related Works

A.	Investigations	$
B.	Other Divisions	$
C.	Other Offices	$
D.	Other Departments	$
E.	Resumption and Clearance	$
F.	Reprovisioning	$
G.	Utilities	$
H.	Contracts	$
J.	Consultants' Fees etc.	$
K.	Stores and Equipment	$
L.	Landscaping and Amenities	$
M.	Miscellaneous	$
	TOTAL COMMITMENT:	$

II. Project Estimate. Head Subhead

1.	Approved Estimate		$
2.	Completed & current commitments		
	(a)	$	
	(b)	$	
	(c)	$	$
3.	Estimated commitment for this contract and related works		$
4.	Estimated cost of future works		
	(a)	$	
	(b)	$	
	(c)	$	$
	TOTAL 2. to 4. :		$

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III. Current Financial Year

1. Funds provided

(a)	in Printed Estimates	$	
(b)	by supplementary provision	$	$

2. Estimated Expenditure

(a)	Existing expenditure and commitments		$	
(b)	this contract and related works	$		
(c)	Other		$	$

Supplementary provision has been/will be sought if found necessary.

_____

Project Engineer

(for HyD : (tel. no. :))

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APPENDIX 6.2 SAMPLE TENDER NOTICE / NOTICE FOR PREQUALIFICATION FOR PUBLISHING ON THE INTERNET ON THE DEPARTMENT'S HOME PAGE – NOT ADOPTING E-TENDERING SYSTEM (WORKS CONTRACTS)

Tender Details

Tender Reference: [tender reference/contract number/PWP Item No.]

Procuring Department: [name of department]

Subject: [the subject of the tender or prequalification exercise]

Description: [a brief description in one or two sentences on the goods or services to be procured, or in respect of works contracts, the scope of project [The description should be the same as given in the Gazette Notice if appropriate], the contract period and the scheduled date for the contract commencement.]

Estimated quantity: [estimated quantity of goods or services to be procured, if applicable, or in respect of works contracts, state "not applicable"]

Contact: [name and/or post title of a contact officer to whom enquiries may be directed, and from whom tender or prequalification documents may be obtained]

[address]

[telephone number]

[fax number]

[e-mail address]

Closing Date/Time: [closing time and date for the submission of tender or prequalification applications]
*The closing time has been extended to [new time and date].

Submission of *Tenders/prequalification Applications: *Sealed tenders, in *duplicate/triplicate, must be clearly marked with the tender reference and the subject of the tender on the outside of the envelope (but should not bear any indication which may relate the tender to the tenderer) addressed to the Chairman, [state the name of the relevant tender board] and place in [title and address of the tender box]. Tenders must be deposited in the tender box as specified in this tender notice ("Specified Tender Box") before the tender closing time. **Late tenders and tenders not deposited in the Specified Tender Box will not be accepted**.

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*Completed prequalification applications shall be submitted to [state name and address of the office]. **Late applications will not be accepted**.

The tender closing date may be extended under the following circumstances:-

(a) If tropical cyclone signal No. 8 or above, or a black rainstorm warning signal is hoisted or if "extreme conditions after super typhoons" announced by the Government is in force at any time between 9 am and 12 noon on *{the tender closing date}/{the closing date for receipt of prequalification applications}, the tender closing time will be extended to 12 noon on the first working day after the tropical cyclone signal No. 8 is lowered, or the black rainstorm warning signal or the "extreme conditions after super typhoons" announced by the Government has/have ceased to be in force. Saturday is not counted as a working day. The announcements on "extreme conditions after super typhoons" will be made via **press releases website** of the Information Services Department (http://www.info.gov.hk/gia/general/today.htm); or

(b) If there is a blockage of the public access to the location of the Specified Tender Box at any time between 9 am and 12 noon on the tender closing date, the Government will announce extension of the tender closing date and time until further notice. Following removal of the blockage, the Government will announce the extended tender closing date and time as soon as practicable. The announcements will be made via **press releases website** of the Information Services Department (https://www.info.gov.hk/gia/general/today.htm).

Remarks: *a. The tender to be invited is covered by the Agreement on Government Procurement of the World Trade Organization and will not involve electronic auction.

b. [1]{Open tendering is adopted. All interested contractors *{are invited to tender.}/{who also meet the following requirements are invited to tender:- [list out the qualifications or the conditions for participations].}}.

[2&8] {Selective tendering is adopted. *{Confirmed} contractors on the List of Approved Contractors for Public Works in Group [xx] under the [xx] category Amd No. 1/2026[3]{or joint ventures with participation of local and/or overseas contractors with [4]{the lead participant or the major

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shareholder}/[5]{at least one of the participants or shareholders} being a *{confirmed} contractor on the List of Approved Contractors for Public Works in Group [xx] under the [xx] category Amd No. 1/2026}, who also meet the [6]{following} qualifications and [6]{other} conditions for participation stipulated in the tender documents are invited to tender*{./:}

[6]{List out the required qualifications/experience stipulated in stage I screening}

[3, 5 & 7] {In case of a joint venture tenderer, the requirement in either paragraph (1) or (2) below has to be satisfied:

(1) the lead participant or major shareholder is a confirmed Group C contractor included in the List of Approved Contractors for Public Works under the [xx] category Amd No. 1/2026; OR

(2) the lead participant or major shareholder is a contractor who is not enlisted in any service category under the List of Approved Contractors for Public Works and the List of Approved Suppliers of Materials and Specialist Contractors for Public Works. In this case,

a) the total percentage participation of participant(s) or shareholder(s) who is/are confirmed Group C contractor(s) included in the List of Approved Contractors for Public Works under the [xx] category Amd No. 1/2026 is at least 40%; and

b) the percentage participation of the lead participant or major shareholder is no more than 60%.}}

[3]{The detailed requirements for joint ventures with participation of local and/or overseas contractors, if applicable, are stipulated in the tender documents.}

{[9]{Applicants}/ [8&10]{{Confirmed} contractors on the List of Approved Contractors for Public Works in Group [xx] under the [xx] category Amd No. 1/2026 [3]{or joint ventures with participation of local and/or overseas contractors with [4]{the lead participant or the major shareholder}/[5] {at least one of the participants or shareholders} being a *{confirmed} contractor on the List of Approved Contractors for Public Works in Group [xx] under the [xx] category Amd No. 1/2026}}, who also meet the following requirements and other qualifications and conditions for participation stipulated in the prequalification documents are invited to apply for prequalification:

[state a list and brief description of the qualification/conditions for participation]

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[3, 5, 7 & 8] {In case of a joint venture applicant, the requirement in either paragraph (1) or (2) below has to be satisfied:

(1) the lead participant or major shareholder is a confirmed Group C contractor included in the List of Approved Contractors for Public Works under the [xx] category Amd No. 1/2026; OR

(2) the lead participant or major shareholder is a contractor who is not enlisted in any service category under the List of Approved Contractors for Public Works and the List of Approved Suppliers of Materials and Specialist Contractors for Public Works. In this case,

a) the total percentage participation of participant(s) or shareholder(s) who is/are confirmed Group C contractor(s) included in the List of Approved Contractors for Public Works under the [xx] category Amd No. 1/2026 is at least 40%; and

b) the percentage participation of the lead participant or major shareholder is no more than 60%.}

[3]{The detailed requirements for joint ventures with participation of local and/or overseas contractors, if applicable, are stipulated in the prequalification documents.}}

c[11]. Contractors not yet on the [title(s) of the approved list(s) and category] may also submit a tender if they submit a request for participation together with a duly completed application for inclusion in the above-mentioned approved list/category by [12] [state the date of the deadline] to [13] [address], meet the qualifications and conditions for participation, and the application for inclusion is duly approved on or before the tender closing date. Details for making the application are available at: https://www.devb.gov.hk/en/construction_sector_matters/contractors/index.html

d[14]. Contractors will be liable to have their names removed from the approved list(s) if they fail or refuse to implement an accepted tender.

*e[14]. Tenderers must attach to each tender a cheque/cashier order/the original copy of a receipt for the sum of $..... as a pledge of the bona fides of their tenders, which amount shall be forfeited to the Government of the Hong Kong Special Administrative Region if any tenderer fails or refuses to implement an accepted tender. The amount will be returned to the unsuccessful tenderers without interest.

*f. The *{forms of tenders and further particulars}/{prequalification documents} are obtainable from [state the name, address and telephone/fax number/e-mail address of the office, and other information necessary to contact the office and obtain the documents]. *{A sum of $....., which

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will not be refunded, is required to cover the cost of the *tender/prequalification documents.}

*g. A charge will be levied for delivery of *{tender/prequalification} documents where the delivery of *{tender/prequalification} documents is requested by *{a tenderer/an applicant}. A written request must be made.

h[16]. Not more than [State the number] applicants will be selected for tender invitations in accordance with the evaluation criteria stipulated in the prequalification documents.

i[14]. The Government of the Hong Kong Special Administrative Region does not bind itself to accept any tender irrespective of whether the tender is the lowest bid or where the assessment of the tenders is based on a marking scheme or formula approach, the tender has the highest overall score.

j. The Government of the Hong Kong Special Administrative Region reserves the right [15]{to reject any application and} to negotiate with any *{tenderer/applicants} about the terms of the offer.

k[14]. Details of the award of this contract will be published on the Internet at https://pcms2.gld.gov.hk/.

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1 For open tendering only, delete if not applicable.
2 For selective tendering only, delete if not applicable.
3 For cases where joint ventures are allowed to tender. Delete if not applicable.
4 For contracts of value **below $2B**. Delete if not applicable.
5 For contracts of value **equal to or above $2B.** Delete if not applicable.
6 For contracts incorporate Stage I screening, delete if not applicable
7 This paragraph is drafted with reference to DEVB's memo ref. () in DEVB(W) 510/83/05 dated 26 March 2021. Please refer to the latest standard SCT 5 and amend as appropriate.
8 In case of tenders inviting from the List of Approved Suppliers of Materials and Specialist Contractors for Public Works, please amend to suit.
9 For open invitation for prequalification only, delete if not applicable.
10 For prequalification submissions invited from contractors on the Approved List only, delete if not applicable.
11 For selective tendering under WTO GPA excluding prequalification, delete if not applicable.
12 The deadline shall be set at not less than 25 days from the date of publication of the Gazette Tender Notice. See paragraph 22 of DEVB TCW No. 2/2014.
13 Address of the responsible officer of the procuring department.
14 For Tender Notice other than prequalification only, delete if not applicable.
15 For Notice for Prequalification only, delete if not applicable.
16 For Type 1 Prequalification only, delete if not applicable.
* delete where inappropriate
[ ] data to be filled in
{ } selective

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SAMPLE TENDER NOTICE / NOTICE FOR PREQUALIFICATION FOR PUBLISHING ON THE INTERNET ON THE DEPARTMENT'S HOME PAGE – NOT ADOPTING E-TENDERING SYSTEM (WORKS CONTRACTS) (CHINESE VERSION)

招標詳情

招標編號： [招標編號／合約編號／工務計劃項目編號]

採購部門： [部門名稱]

項目： [招標項目名稱或投標資格預審項目名稱]

詳情： [簡述所需採購貨品或服務的資料，如屬工程合約，簡述工程的範圍（須與刊載於香港特別行政區政府憲報的敍述相同）、合約期及工程的預計展開日期]

估計數量： [估計所需採購貨品或服務的數量。如屬工程合約，填上「不適用」]

聯絡： [可供投標者查詢及索取投標文件或投標資格預審文件的人員之姓名／職位名稱]
[地址]
[電話號碼]
[傳真號碼]
[電郵地址]

截標日期／時間： [遞交投標書或投標資格預審申請書的截止日期及時間]
*截標時間延至？？？？年？？月？？日(星期?)?午?時

遞交*投標書/投標資格預審申請書：

*投標者必須在一式*兩／三份封密的投標表格信封面註明招標編號、投標項目(但不得有任何記認，使人認出投標者的身分)及「[相關投標委員會]主席收」。投標者必須把投標書放入[相關投標箱地址]的「[相關投標箱的名稱]」內。投標者必須在截標時間前把投標書放入本招標公告中指定的投標箱(「指定投標箱」)內。**逾期遞交或未有放入指定投標箱的投標書，概不受理**。

*申請人須把填妥的投標資格預審申請書送交[述明辦公室的名稱和地址]。**逾期遞交的申請書概不受理**。

在下列情況下，截標日期可能會延遲：-

(a) 若*{截標}/{截止申請}當日上午9時至中午12時期間，八號或以上熱帶氣旋或黑色暴雨警告信號懸掛，或政府公布的「超強颱風後的極端情況」生效，截標時間會延至八號熱帶氣旋警告信號除下，或當時生效的黑色暴雨警告信號或政府公布的「超強颱風後的極端情況」取消後首個工作天中午12時。星期六並不屬於工作天。關於

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「超強颱風後的極端情況」的公布事項會在政府新聞處**新聞公報網頁**(https://www.info.gov.hk/gia/general/ctoday.htm)宣布。

(b) 如在截標當日上午9時至中午12時期間的任何時間內，前往指定投標箱所在地點的公眾通道受阻，政府會宣布延遲截標日期及時間，直至另行通告。待通道受阻情況獲消除後，政府會盡快公布所延遲的截標日期及時間。公布事項會在政府新聞處**新聞公報網頁**(https://www.info.gov.hk/gia/general/ctoday.htm)宣布。

備註： *a. 是次招標受世界貿易組織《政府採購協定》規管，且不涉及電子拍賣。

b. 註1{此招標採用公開招標。現邀請所有有興趣的承*建/造商*{承投這次招標項目}/{並同時符合下列要求[註明所需資格]，承投這次招標項目。}}

註2&8{此招標採用選擇性招標。現邀請名列認可公共工程承建商名冊內獲准承投[工程類別]的[組別]承*建/造商*{經確認者}註3{或由本地和/或海外承*建/造商所組成的合營企業(其註4{首席參與者或主要股東}/註5{最少其中一個參與者或股東}必須是名列認可公共工程承建商名冊內獲准承投[工程類別]的[組別]承*建/造商*{經確認者})}，並同時符合註6{下列}投標文件列出的資格和註6{其他}條件的承*建/造商註3{或合營企業}承投這次招標項目*{。/：}

註6[列出第I階段篩選中訂明的所需資格／經驗]}

註3, 5&7{如屬合營企業投標者,，投標者需符合以下段落(1)或(2)所列出要求：

(1) 首席參與者或主要股東是名列認可公共工程承建商名冊內獲准承投[工程類別]的丙組承*建/造商 (經確認者)；或

(2) 首席參與者或主要股東並非名列認可公共工程承建商名冊和認可公共工程物料供應商及專門承造商名冊上的任何工程類別。就此情況：

甲、 所有名列認可公共工程承建商名冊內獲准承投[工程類別]的丙組承*建/造商(經確認者)的參與者或股東的參與百分比總和不少於40%；和

乙、 首席參與者或主要股東的參與百分比不超過60%。}}

註3{有關由本地和/或海外承建商所組成的合營企業投標者（如適用）的詳細要求，已詳列於招標文件內}.

*{現邀請註9{申請者}/註8&10{名列認可公共工程承建商名冊內獲准承投[工程類別]的[組別]承*建/造商*{經確認者}註3{或由本地和/或海外承*建/造商所組成的合營企業(其註4{首席參與者或主要股東}/註5{最少其中一個參與者或股東}必須是名列認可公共工程承建商名冊內獲准承投[工程類別]的[組別]承*建/造商*{經確認者})}}，並同時符合下列要求以及投標資格預審文件列出的其他資格和條件的承*建/造商註3{或合營企業}，申請投標資格預審：

[列出並簡述參與投標的資格/條件]}

註3, 5, 7 & 8{如屬合營企業申請者,，申請者需符合以下段落(1)或(2)所列出要求：

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(1) 首席參與者或主要股東是名列認可公共工程承建商名冊內獲准承投[工程類別]的丙組承*建/造商 (經確認者)；或

(2) 首席參與者或主要股東並非名列認可公共工程承建商名冊和認可公共工程物料供應商及專門承造商名冊上的任何工程類別。就此情況：

甲、 所有名列認可公共工程承建商名冊內獲准承投[工程類別]的丙組承*建/造商(經確認者)的參與者或股東的參與百分比總和不少於40%；和

乙、 首席參與者或主要股東的參與百分比不超過60%。}

註3{有關由本地和/或海外承建商所組成的合營企業申請者(如適用)的詳細要求，已詳列於招標文件內。}}

c註11. 承建商如非[有關的認可名冊的名稱和類別]內的承*建/造商也可參與投標，惟須在註12[述明截止日期]或之前提出要求，同時把填妥的納入上述認可名冊／類別申請書送交註13[地址]，符合所需資格和條件，以及在截標日期或之前正式獲准加入名冊。有關申請列入名冊詳情，請參閱：
https://www.devb.gov.hk/en/construction_sector_matters/contractors/index.html

d註14. 投標一經採納，承*建/造商如未能或拒絕履行投標書內的規定，其名稱有可能從認可名冊上刪除。

*e註14. 為表明投標者確有誠意，投標者必須繳付按金 元，並把相關支票／銀行本票／按金收據正本夾附於每份投標書內。標書一經採納，中標者如未能或拒絕履行投標書內的規定，該筆按金會由香港特別行政區政府沒收。落選者的按金會不附利息悉數發還。

*f. *{投標表格和進一步資料}/{投標資格預審文件}可向[述明辦事處的名稱、地址和電話／傳真號碼／電郵地址，以及為聯絡辦事處和索取文件所必須的其他資料]索取。*{須繳付*投標文件/投標資格預審文件的費用 元(不會退還，以彌補印製*投標文件/投標資格預審文件的開支)。}

g. 有意{投標者}/{申請者}如要求送遞*{招標}/{投標資格預審}文件，必須以書面提出，並須繳付送遞費用。

h註16. 當局會根據投標資格預審文件訂明的評核準則，選出不超過[述明數目]名申請者。

i註14. 香港特別行政區政府不一定採納任何投標書，包括索價最低的投標書。如投標書評估是按照評分計劃或公式計算，香港特別行政區政府亦不一定採納其中整體得分最高的投標書。

j. 香港特別行政區政府有權註10{拒絕任何申請及}與任何*{投標者}/{申請者}商議批出合約的條款。

k註14. 批出是項合約的詳情，將在互聯網上公布。請參閱：https://pcms2.gld.gov.hk/。

註1 只適用於公開招標，請刪去不適用者。
註2 只適用於選擇性招標，請刪去不適用者。
註3 適用於容許合營企業參與投標的合約，請刪去不適用者。
註4 只適用於總值低於港幣二十億元的合約，請刪去不適用者。
註5 只適用於總值等於或高於港幣二十億元的合約，請刪去不適用者。
註6 適用於設有第I階段篩選的合約，請刪去不適用者。
註7 此段根據發展局通告(參考編號：DEVB(W) 510/83/05，2021年3月26日)草擬。請參考最新標準合約文件(SCT 5)並作出合適更改。

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註8 如根據認可公共工程物料供應商及專門承造商名冊招標，請作出合適更改。
註9 只適用於投標資格預審公開邀請，請刪去不適用者。
註10 只適用於認可名冊上的承建/造商所提交的投標資格預審申請，請刪去不適用者。
註11 只適用於根據WTO GPA 之選擇性招標(不適用於投標資格預審)，請刪去不適用者。
註12 截止日期須訂為刊登相關憲報招標公告的日期起計不少於25天。見發展局的工務技術通告第2/2014號第22段。
註13 採購部門負責人員的地址。
註14 適用於招標公告，請刪去不適用者。
註15 適用於投標者資格預審公告，請刪去不適用者。
註16 適用於第I類的投標者資格預審，請刪去不適用者。
* 刪去不適用者
[ ] 請填寫相關資料
{ } 選擇性

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APPENDIX 6.2A SAMPLE TENDER NOTICE FOR PUBLISHING ON THE INTERNET ON THE DEPARTMENT'S HOME PAGE - ADOPTING E-TENDERING SYSTEM (WORKS CONTRACTS)

Tender Details

Tender Reference: [*tender reference/contract number/PWP Item No.*]

Procuring Department: [*name of department*]

Subject: [*the subject of the tender*]

Description: [*a brief description in one or two sentences on the goods or services to be procured, or in respect of works contracts, the scope of project* [*The description should be the same as given in the Gazette Notice if appropriate*], *the contract period and the scheduled date for the contract commencement.*]

Estimated quantity: [*estimated quantity of goods or services to be procured, if applicable, or in respect of works contracts, state "not applicable"*]

Contact: [*name and/or post title of a contact officer to whom enquiries may be directed*]

[*address*]

[*telephone number*]

[*fax number*]

[*e-mail address*]

Closing Date/Time: [*closing time and date for the submission of tender*]
*The closing time has been extended to [*new time and date*].

Submission of Tenders:

A tenderer must submit its tender in electronic format via the Electronic Tendering System for works contracts ("**e-TS(WC)**"). **Late submission will not be accepted**.

In addition to the electronic submission, a tenderer may opt to submit its tender in hard copy as well. Submission in **hard copy is optional** and it will not be used unless falling within the exceptions stated in the conditions of tender. If a tenderer opts to submit a hard copy tender in addition to electronic submission, the tender must be sealed, clearly marked with the tender reference and the subject of the tender on the outside of the envelope (but should not bear any indication which may relate the tender to the tenderer) addressed to the Chairman, [*state the name of the relevant tender board*] and placed in [*title*

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and address of the tender box]. Tenders must be deposited in the tender box as specified in this tender notice ("Specified Tender Box") before the tender closing time. Late tenders and tenders not deposited in the Specified Tender Box will not be accepted.

The tender closing date may be extended under the following circumstances:-

(a) If tropical cyclone signal No. 8 or above, or a black rainstorm warning signal is hoisted or if "extreme conditions after super typhoons" announced by the Government is in force at any time between 9 am and 12 noon on the tender closing date, the tender closing time will be extended to 12 noon on the first working day after the tropical cyclone signal No. 8 is lowered, or the black rainstorm warning signal or the "extreme conditions after super typhoons" announced by the Government has/have ceased to be in force. Saturday is not counted as a working day. The announcements on "extreme conditions after super typhoons" will be made via **press releases website** of the Information Services Department (http://www.info.gov.hk/gia/general/today.htm);

(b) If there is a blockage of the public access to the location of the Specified Tender Box at any time between 9 am. and 12 noon on the tender closing date, the Government will announce extension of the tender closing date and time until further notice. Following removal of the blockage, the Government will announce the extended tender closing date and time as soon as practicable. The announcements will be made via **press releases website** of the Information Services Department (https://www.info.gov.hk/gia/general/today.htm); or

(c) If there is any other reason which in the Government's view shall affect the close of tender, the Government will notify tenderers of the extension in tender closing date and time **via the e-TS(WC) and/or emails**.

Remarks: *a. The tender to be invited is covered by the Agreement on Government Procurement of the World Trade Organization and will not involve electronic auction.

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b. The tender documents are included in the Electronic Dissemination Package ("**EDP**") which can be downloaded from the e-TS(WC) via this link [*insert hyperlink*]. Hard copy of the EDP will not be issued.

c. Regarding the use of e-TS(WC), tenderers should take note of the following:
   (i) Prior to downloading tender documents, tenderers must register an account on the e-TS(WC).
   (ii) Certain electronic files required to be submitted with the tender require digital signature(s). Tenderers are advised to apply for the Organizational e-Cert in advance and ensure its validity.
   (iii) Tenderers are reminded to ensure that data transmission is completed before the close of tender.
   (iv) Detailed information on procedures for application of an e-TS(WC) account, Terms and Conditions of Use and Participation, User Manual and Frequently Asked Questions can be found on the website https://www.gov.hk/en/theme/etendering/ets.
   (v) For general enquiry, please call 3997 1844 and for technical support, please call 6310 9329.

d. [2&8] {Selective tendering is adopted. *{Confirmed} contractors on the List of Approved Contractors for Public Works in Group [xx] under the [xx] category Amd No. 1/2026 [3]{or joint ventures with participation of local and/or overseas contractors with [4]{the lead participant or the major shareholder}/[5]{at least one of the participants or shareholders} being a *{confirmed} contractor on the List of Approved Contractors for Public Works in Group [xx] under the [xx] category Amd No. 1/2026}, who also meet the [6]{following} qualifications and [6]{other} conditions for participation stipulated in the tender documents are invited to tender*{./:}

[6]{*List out the required qualifications/experience stipulated in stage I screening*}

[3, 5 & 7] {In case of a joint venture tenderer, the requirement in either paragraph (1) or (2) below has to be satisfied:

(1) the lead participant or major shareholder is a confirmed Group C contractor included in the List of Approved Contractors for Public Works under the [xx] category Amd No. 1/2026; OR

(2) the lead participant or major shareholder is a contractor who is not enlisted in any service category under the List of Approved Contractors for Public Works and the List of Approved Suppliers of Materials and Specialist Contractors for Public Works. In this case,

c) the total percentage participation of participant(s) or shareholder(s) who is/are confirmed Group C contractor(s) included in the List of Approved Contractors for Public Works under the [xx] category

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Amd No. 1/2026 is at least 40%; and

d) the percentage participation of the lead participant or major shareholder is no more than 60%.}}

[3]{The detailed requirements for joint ventures with participation of local and/or overseas contractors, if applicable, are stipulated in the tender documents.}

e[11]. Contractors not yet on the [*title(s) of the approved list(s) and category*] may also submit a tender if they submit a request for participation together with a duly completed application for inclusion in the above-mentioned approved list/category by [12] [*state the date of the deadline*] to [13] [*address*], meet the qualifications and conditions for participation, and the application for inclusion is duly approved on or before the tender closing date. Details for making the application are available at: https://www.devb.gov.hk/en/construction_sector_matters/contractors/index.html

f[14]. Contractors will be liable to have their names removed from the approved list(s) if they fail or refuse to implement an accepted tender.

g[14]. The Government of the Hong Kong Special Administrative Region does not bind itself to accept any tender irrespective of whether the tender is the lowest bid or where the assessment of the tenders is based on a marking scheme or formula approach, the tender has the highest overall score.

h. The Government of the Hong Kong Special Administrative Region reserves the right to negotiate with any tenderer about the terms of the offer.

i[14]. Details of the award of this contract will be published on the Internet at https://pcms2.gld.gov.hk/.

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1 Not used.
2 For selective tendering only, delete if not applicable.
3 For cases where joint ventures are allowed to tender. Delete if not applicable.
4 For contracts of value **below $2B**. Delete if not applicable.
5 For contracts of value **equal to or above $2B.** Delete if not applicable.
6 For contracts incorporate Stage I screening, delete if not applicable
7 This paragraph is drafted with reference to DEVB's memo ref. () in DEVB(W) 510/83/05 dated 26 March 2021. Please refer to the latest standard SCT 5 and amend as appropriate.
8 In case of tenders inviting from the List of Approved Suppliers of Materials and Specialist Contractors for Public Works, please amend to suit.
9 Not used.
10 Not used.
11 For selective tendering under WTO GPA excluding prequalification, delete if not applicable.
12 The deadline shall be set at not less than 25 days from the date of publication of the Gazette Tender Notice. See paragraph 22 of DEVB TCW No. 2/2014.
13 Address of the responsible officer of the procuring department.
14 For Tender Notice other than prequalification only, delete if not applicable.

* delete where inappropriate
[ ] data to be filled in
{ } selective

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SAMPLE TENDER NOTICE FOR PUBLISHING ON THE INTERNET ON THE DEPARTMENT'S HOME PAGE (CHINESE VERSION) - ADOPTING E-TENDERING SYSTEM (WORKS CONTRACTS)

招 標 詳 情

招標編號： [招標編號／合約編號／工務計劃項目編號]

採購部門： [部門名稱]

項目： [招標項目名稱]

詳情： [簡述所需採購貨品或服務的資料，如屬工程合約，簡述工程的範圍（須與刊載於香港特別行政區政府憲報的敍述相同）、合約期及工程的預計展開日期]

估計數量： [估計所需採購貨品或服務的數量。如屬工程合約，填上「不適用」]

聯絡： [可供投標者查詢及索取投標文件的人員之姓名／職位名稱]
[地址]
[電話號碼]
[傳真號碼]
[電郵地址]

截標日期／時間： [遞交投標書的截止日期及時間]
*截標時間延至？？？？年？？月？？日(星期?)?午?時

遞交投標書：

投標者必須透過電子投標系統（工程合約）遞交電子投標書。**逾期遞交的投標書，概不受理**。

除了遞交電子投標書外，投標者也 可以選擇同時以印本形式遞交投標書。遞交**印本形式的投標書是屬於自願性質**，除非在招標條款中規定的例外情況，否則印本形式的投標書將不會被使用。如果投標者在遞交電子投標書的同時，選擇遞交印本形式的投標書，印本形式的投標書必須以封密的信封遞交。信封面須清楚註明招標編號、投標項目（但不得有任何記認，使人認出投標者的身分）及「[相關投標委員會]主席收」，並必須把投標書放入[相關投標箱地址]的「[相關投標箱的名稱]」內。投標者必須在截標時間前把投標書放入本招標公告中指定的投標箱(「指定投標箱 」) 內。逾期遞交或未有放入指定投標箱的投標書，概不受理。

在下列情況下，截標日期可能會延遲：-

(a) 若截標當日上午9時至中午12時期間，八號或以上熱帶氣旋或黑色暴雨警告信號懸掛，或政府公布的「超強颱風後的極端情況」生效，截標時間會延至八號熱帶氣旋警告信號除下，或當時生效的黑色暴雨警告信號或政府公布的「超強颱風後的極端情況」取消後首個工作天中午12時。星期六並不屬於工作天。關於「超強颱風後的極端情況」的公布事項會在政府新聞處**新聞公報網頁**

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(https://www.info.gov.hk/gia/general/ctoday.htm)宣布。

(b) 如在截標當日上午9時至中午12時期間的任何時間內，前往指定投標箱所在地點的公眾通道受阻，政府會宣布延遲截標日期及時間，直至另行通告。待通道受阻情況獲消除後，政府會盡快公布所延遲的截標日期及時間。公布事項會在政府新聞處**新聞公報網頁**(https://www.info.gov.hk/gia/general/ctoday.htm)宣布。

(c) 若政府認為有任何其他原因影響截標，政府將透過**電子投標系統（工程合約）**和/或**電子郵件**通知投標者延遲的截標日期和時間。

備註： *a. 是次招標受世界貿易組織《政府採購協定》規管，且不涉及電子拍賣。

b. 招標文件已包含在電子發布包中，而電子發布包可透過此連結[插入超連結]從電子投標系統（工程合約）下載。 電子發布包將不會以印本形式提供。

c. 投標者應注意以下關於使用電子投標系統（工程合約）的事項：
(i) 下載招標文件之前，投標者必須在電子投標系統（工程合約）上登記帳戶。
(ii) 某些需要隨投標書遞交的電子檔案必須附有電子簽署。投標者請預早申請電子證書（機構）及確保其有效性。
(iii) 投標者請確保在投標截止前完成數據傳輸。
(iv) 有關申請電子投標系統帳戶的程序、電子投標系統的條款及條件、常見問題和用戶手冊的詳情可在電子投標系統（工程合約）網站（https://www.gov.hk/tc/theme/etendering/ets）瀏覽。
(v) 有關一般查詢，請致電 3997 1844；如需技術支援，請致電 6310 9329。

d. 註2&8{此招標採用選擇性招標。現邀請名列認可公共工程承建商名冊內獲准承投[工程類別]的[組別]承*建/造商*{經確認者}註3{或由本地和/或海外承*建/造商所組成的合營企業(其註4{首席參與者或主要股東}/註5{最少其中一個參與者或股東}必須是名列認可公共工程承建商名冊內獲准承投[工程類別]的[組別]承*建/造商*{經確認者})}，並同時符合註6{下列}投標文件列出的資格和註6{其他}條件的承*建/造商註3{或合營企業}承投這次招標項目*{。/：}
註6[列出第I階段篩選中訂明的所需資格／經驗]}

註3, 5&7{如屬合營企業投標者,，投標者需符合以下段落(1)或(2)所列出要求：

(1) 首席參與者或主要股東是名列認可公共工程承建商名冊內獲准承投[工程類別]的丙組承*建/造商 (經確認者)；或

(2) 首席參與者或主要股東並非名列認可公共工程承建商名冊和認可公共工程物料供應商及專門承造商名冊上的任何工程類別。就此情況：

甲、 所有名列認可公共工程承建商名冊內獲准承投[工程類別]的丙組承*建/造商(經確認者)的參與者或股東的參與百分比總和不少於40%；和

乙、 首席參與者或主要股東的參與百分比不超過60%。}}

註3{有關由本地和/或海外承建商所組成的合營企業投標者（如適用）的詳細要求，已詳列於招標文件內}.

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e[註11]. 承建商如非[有關的認可名冊的名稱和類別]內的承*建/造商也可參與投標，惟須在[註12] [述明截止日期]或之前提出要求，同時把填妥的納入上述認可名冊／類別申請書送交[註13] [地址]，符合所需資格和條件，以及在截標日期或之前正式獲准加入名冊。有關申請列入名冊詳情，請參閱：
https://www.devb.gov.hk/en/construction_sector_matters/contractors/index.html

f[註14]. 投標一經採納，承*建/造商如未能或拒絕履行投標書內的規定，其名稱有可能從認可名冊上刪除。

g[註14]. 香港特別行政區政府不一定採納任何投標書，包括索價最低的投標書。如投標書評估是按照評分計劃或公式計算，香港特別行政區政府亦不一定採納其中整體得分最高的投標書。

h. 香港特別行政區政府有權與任何投標者商議批出合約的條款。

i[註14]. 批出是項合約的詳情，將在互聯網上公布。請參閱：https://pcms2.gld.gov.hk/。

註1 未使用。
註2 只適用於選擇性招標，請刪去不適用者。
註3 適用於容許合營企業參與投標的合約，請刪去不適用者。
註4 只適用於總值**低於港幣二十億元**的合約，請刪去不適用者。
註5 只適用於總值等於或**高於港幣二十億元**的合約，請刪去不適用者。
註6 適用於設有第I階段篩選的合約，請刪去不適用者。
註7 此段根據發展局通告(參考編號：DEVB(W) 510/83/05，2021年3月26日)草擬。請參考最新標準合約文件(SCT 5)並作出合適更改。
註8 如根據認可公共工程物料供應商及專門承造商名冊招標，請作出合適更改。
註9 未使用。
註10 未使用。
註11 只適用於根據WTO GPA 之選擇性招標(不適用於投標資格預審)，請刪去不適用者。
註12 截止日期須訂為刊登相關憲報招標公告的日期起計不少於25天。見發展局的工務技術通告第2/2014號第22段。
註13 採購部門負責人員的地址。
註14 適用於招標公告，請刪去不適用者。

* 刪去不適用者
[ ] 請填寫相關資料
{ } 選擇性

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APPENDIX 6.3 MEMO REQUESTING PUBLICATION OF GAZETTE NOTICE FOR INVITATION TO TENDER

MEMO

From	*To* (Head of Office) *(thro'…….) .....
Ref. ..... *in*	*(Attn.:* ..... *)*
Tel. No.	*Your* ..... *in* .....
Fax. No.	*Dated* ..... *Fax. No.* .....
Date.	*Total Pages* .....

Contract No. : .....

Title : .....

I forward herewith notification for insertion in the Government of the Hong Kong Special Administrative Region Gazette on.....

2. The scheme for which tenders are to be called for the above Contract forms the *whole/part of Project No. ..... in the *PWP/..... and complies in all essentials with that which was *upgraded to Category A by Finance Committee at its Meeting held on ..... / included in Category D by..... on .....

3. The estimated cost of this contract is $ ..... for which funds are available under Head ..... Sub-head .....

4. #Authority to call for tenders .....

5. All necessary legal procedures have been completed *and possession of the land has been arranged.

6. In addition, the following is relevant: General Layout Drawing No(s).……

7. As advised by SPO, *a press release is required and a draft press release is attached / a press release is not required.

.....
(Designation of Chief Engineer/Regional Office Head)

* Delete where inapplicable
# Authorization to call for tender before funding is secured is allowed under FC No. 3/2020

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To: *Director of Civil Engineering and Development
*Director of Highways
*Director of Drainage Services
*Director of Water Supplies

In order, Gazette notification submitted for signature please.

.....
(Designation of Head of Office)

To: Assistant Clerk to the Executive Council
thro' Official Languages Division, CSB (Attn: COLO/Unit 3) [Email: csbolgazette@csb.gov.hk]*@

Please find attached the draft notification [in triplicate]*@ for publication in the Gazette on the required dates given at paragraph 1 of the attached memo.

.....
*Director of Civil Engineering and Development
*Director of Highways
*Director of Drainage Services
*Director of Water Supplies

c.c. #With gazette notification
^Director of Government Logistics (Attn.: Chief Proof Reader)
- by email: pd-gazette@gld.gov.hk
- w/ soft copy of draft notification in the form of *MS Word/ *MS Excel/ *text file AND scanned image of draft notification in PDF format

Secretary, *(the relevant Tender Board)*
[- please note that *a marking scheme for tender evaluation is adopted for this contract. Tenderers are required to submit "Tender Price Documents" and "Technical Submission" in accordance with the general condition of tender.*
*- Contact detail of the project officer should be provided if the tender is under purview of PWTB]**

*DLO/.....

With gazette notification, draft press release* and notice on the Internet
Division/Regional Office++
*Consulting Engineer .....

*With gazette notification, draft press release and general layout drawing
CIO, SPO, DEVB or PIO, I&PR, TD (for HyD projects)
- Please return the finalised version of the press release, if amended, to

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CE/GE/GGE/PM … for agreement before issuing to the Press
Departmental headquarters
Office headquarters

For tenders that need to be distributed to consulates and/or overseas trade commissions, the gazette notification should also be copied to the Economic Affairs Department of the Liaison Office of the Central People's Government in the HKSAR.

For tenders that need to be distributed to the Chinese Mainland authorities/enterprises, the gazette notification should also be copied to the Trade Officer of the BJO and SDEV. Please refer to Para. **4.1.2** for details)

* Delete where inapplicable

@ As an initiative to reduce paper consumption, one copy of the draft notification shall be sent by email only to the specified mail address with soft copy of draft notification in the form of MS Word AND scanned image of draft notification in PDF format, as far as practicable. Should the draft notification consist of more than 20 pages, the draft notification shall be sent in triplicate by normal dispatch.

^ Refer to the Circular Memorandum from the D of GL dated 12 August 2005 attached at Annex to Appendix 6.6 regarding the alternative arrangements if soft copy or PDF format of the draft notification cannot be sent by e-mail. Please also refer to Appendix 6.6 regarding the format of the gazette notifications.

++ For tender notices that need to be published in local press, departments should arrange with Director of Information Services to publish tender invitations in at least one English and one Chinese local press. Departments may, in addition, publish tender invitations in selected journals, send invitation letters to qualified contractors and notify consulates and trade commissions in Hong Kong of such invitations, if considered appropriate.

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APPENDIX 6.4 SPECIMEN GAZETTE NOTICE FOR PREQUALIFICATION OF TENDERERS

G.N. DEPARTMENT

Contract No
Contract Title
Public Works Programme Number

NOTICE OF PREQUALIFICATION OF TENDERERS

It is intended to invite tenders in (month and year) from prequalified tenderers for Contract No. [state the contract number and contract title]. The tenders to be invited will be covered by the Agreement on Government Procurement of the World Trade Organization and will not involve electronic auction. This notice also serves as a summary notice required under the Agreement on Government Procurement of the World Trade Organization.

The scope of works of the contract comprises [give a brief description of the works including the nature and the estimated quantity of the project].

[1]{Applicants}/ [2&8]{*{Confirmed} contractors on the List of Approved Contractors for Public Works in Group [xx] under the [xx] category[3] Amd No. 1/2026{or joint ventures with participation of local and/or overseas contractors with [4]{the lead participant or the major shareholder}/[5]{at least one of the participants or shareholders}} being a *{confirmed} contractor on the List of Approved Contractors for Public Works in Group [xx] under the [xx] category Amd No. 1/2026}}, who also meet the following requirements and other qualifications and conditions for participation stipulated in the prequalification documents are invited to apply for prequalification:

(state a list and brief description of the qualifications/conditions for participation)

[3, 5, 6 & 8] {In case of a joint venture applicant, the requirement in either paragraph (1) or (2) below has to be satisfied:

(1) the lead participant or major shareholder is a confirmed Group C contractor included in the List of Approved Contractors for Public Works under the [xx] category Amd No. 1/2026; OR

(2) the lead participant or major shareholder is a contractor who is not enlisted in any service category under the List of Approved Contractors for Public Works and the List of Approved Suppliers of Materials and Specialist Contractors for Public Works. In this case,

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(a) the total percentage participation of participant(s) or shareholder(s) who is/are confirmed Group C contractor(s) included in the List of Approved Contractors for Public Works under the [xx] category Amd No. 1/2026 is at least 40%; and

(b) the percentage participation of the lead participant or major shareholder is no more than 60%.}

[3]{The detailed requirements for joint ventures with participation of local and/or overseas contractors, if applicable, are stipulated in the prequalification documents.}

The prequalification documents are obtainable from [state the name, address and telephone/fax number/e-mail address of the office, and other information necessary to contact the office and obtain the prequalification documents]. *{A sum of $....., which will not be refunded, is required to cover the cost of the prequalification documents.}

A charge will be levied for delivery of the prequalification documents where the delivery of prequalification documents is requested by an applicant. A written request must be made.

[7]{Not more than [state the number] applicants will be selected for tender invitations in accordance with the evaluation criteria stipulated in the prequalification documents.}

Completed prequalification applications shall be submitted not later than 12:00 noon on [state the closing date for receipt of prequalification applications] to [state name and address of the office]. Tenders must be deposited in the tender box as specified in this tender notice ("Specified Tender Box") before the tender closing time. Late tenders and tenders not deposited in the Specified Tender Box will not be accepted. If tropical cyclone signal No. 8 or above is hoisted, or a black rainstorm warning signal or "extreme conditions after super typhoons" announced by the Government is/are in force at any time between 9:00 and 12:00 noon on [closing date for receipt of prequalification applications], the closing time will be postponed to 12:00 noon on the first working day after the tropical cyclone signal No. 8 is lowered, or the black rainstorm warning signal or the "extreme conditions after super typhoons" announced by the Government has/have ceased to be in force. In case of blockage of the public access to the location of the Specified Tender Box at any time between 9:00 a.m. and 12:00 noon on Friday, [tender closing date], the Government will announce extension of the tender closing time until further notice. Following removal of the blockage, the Government will announce the extended tender closing time as soon as practicable. The above announcements will be made via press releases on the website of Information Services Department (https://www.info.gov.hk/gia/general/today.htm).

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[3]*{Joint ventures satisfying the requirements stated in the prequalification documents will be considered.}

The Government of the Hong Kong Special Administrative Region reserves the right to reject any application and to negotiate with any applicants about the terms of their offers.

Date Name of Head of Department

1. For open invitation only, delete if not applicable.
2. For prequalification submissions invited from contractors on the Approved List only, delete if not applicable.
3. For cases where joint ventures are allowed to apply for prequalification. Delete if not applicable.
4. For contracts of value **below $2B**. Delete if not applicable.
5. For contracts of value **equal to or above $2B.** Delete if not applicable.
6. This paragraph is drafted with reference to DEVB's memo ref. ( ) in DEVB(W) 510/83/05 dated 26 March 2021. Please refer to the latest standard SCT 5 and amend as appropriate.
7. For Type I prequalification, delete if not applicable.
8. For prequalification submissions invited from the List of Approved Suppliers of Materials and Specialist Contractors for Public Works, please amend to suit.

* delete if not applicable
[ ] data to be filled in
{ } selective

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投標者資格預審公告(刊憲樣本)

第_____號公告 部門名稱

合約編號_____

合約名稱_____

工務計劃項目第_____號

投標者資格預審公告

當局擬於_____年___月邀請投標資格經預審的投標者承投合約編號[述明合約編號和合約名稱]。是次招標受世界貿易組織《政府採購協定》規管，且不涉及電子拍賣。此公告亦用作世界貿易組織《政府採購協定》所規定的摘要公告。

合約工程範圍包括[簡述工程內容，包括工程性質和預計工程數量]。

[1]{申請者}/[2&8]{名列認可公共工程承建商名冊內獲准承投[工程類別]的[組別] 承*建/造商*{ 經確認者 }[3] *{或由本地和／或海外承*建/造商所組成的合營企業（其[4]{首席參與者或主要股東}/[5]{最少其中一個參與者或股東}必須是名列[認可公共工程承建商名冊內獲准承投[工程類別]的[組別]承*建/造商*{經確認者} ）}}如符合下列要求：

[列出並簡述參與投標的資格／條件]

以及投標資格預審文件列出的其他資格和條件，可申請投標資格預審。

[3,5,6&8]{如屬合營企業申請者，申請者需符合以下段落(1)或(2)所列出要求：

(1) 首席參與者或主要股東是名列認可公共工程承建商名冊內獲准承投[工程類別]的丙組承*建/造商 (經確認者)；或

(2) 首席參與者或主要股東並非名列認可公共工程承建商名冊和認可公共工程物料供應商及專門承造商名冊上的任何工程類別。就此情況：

甲、 所有名列認可公共工程承建商名冊內獲准承投[工程類別]的丙組承*建/造商(經確認者)的參與者或股東的參與百分比總和不少於40%；和

乙、 首席參與者或主要股東的參與百分比不超過60%。}

[3]{由本地和／或海外承建商所組成的合營企業申請者（如適用）的詳細要求，已詳列於投標資格預審文件內。}

投標資格預審文件可向[述明辦事處的名稱、地址和電話／傳真號碼／電郵地址，以及為聯絡辦事處和索取投標資格預審文件所必須的其他資料]索取。*{須繳付投標資格預審文件的費用_____元(不會退還，以彌補印製招標文件的開支)。}

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申請者如要求送遞投標資格預審文件，必須以書面提出，並須繳付送遞費用。

[7]{當局會根據投標資格預審文件訂明的評核準則，選出不超過[述明數目]名申請者。}

填妥的投標資格預審申請書須於[述明投標資格預審申請的截止日期]中午12時前送交[述明辦公室的名稱和地址]。投標者必須在截標時間前把投標書放入本招標公告中指定的投標箱(「指定投標箱」)內。逾期遞交或未有放入指定投標箱的投標書，概不受理。若[投標資格預審申請的截止日期]上午9時至中午12時期間，八號或以上熱帶氣旋警告信號懸掛，或黑色暴雨警告信號或政府公布的「超強颱風後的極端情況」生效，截止申請時間會延至八號熱帶氣旋警告信號除下或當時生效的黑色暴雨警告信號或政府公布的「超強颱風後的極端情況」取消後首個工作天中午12時。如在[述明截標日期]星期五上午9時至中午12時期間的任何時間內，前往指定投標箱所在地點的公眾通道受阻，政府會宣布延遲截標時間，直至另行通告。待通道受阻情況獲消除後，政府會盡快公布所延遲的截標時間。以上公布事項會在政府新聞處網頁(https://www.info.gov.hk/gia/general/ctoday.htm)以新聞公報形式宣布。

[3]*{合營企業如符合投標資格預審文件內所訂要求，其申請亦會獲得考慮。}

香港特別行政區政府有權拒絕任何申請及與任何申請者商議批出合約的條款。

日期 部門首長姓名

1 只適用於公開邀請，請刪去不適用者。
2 只適用於認可名冊上的承*建/造商所提交的投標資格預審申請，請刪去不適用者。
3 適用於容許合營企業參與投標資格預審申請的合約，請刪去不適用者。
4 只適用於總值低於港幣二十億元的合約，請刪去不適用者。
5 只適用於總值等於或高於港幣二十億元的合約，請刪去不適用者。
6 此段根據發展局通告(參考編號：DEVB(W) 510/83/05，2021年3月26日)草擬。請參考最新標準合約文件(SCT 5)並作出合適更改。
7 適用於第I類的投標者資格預審，請刪去不適用者。
8 如屬根據認可公共工程物料供應商及專門承造商名冊的投標資格預審申請，請作出合適更改。

* 請刪去不適用者
[ ] 請填寫相關資料
{ } 選擇性

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APPENDIX 6.4A SPECIMEN GAZETTE TENDER NOTICES – NOT ADOPTING E-TENDERING SYSTEM (WORKS CONTRACTS)

G.N. [*State the name of department*]

It is hereby notified that sealed tenders in *duplicate/triplicate are invited for Contract No. (state the contract number, contract title) *{(Public Works Programme Item No._____)}. The works include [*give a brief description of the works including the nature, the estimated quantity of the project and, where applicable, a description of any options*]. The works are scheduled to commence in [*month/year*] *{and will take about [*no. of months*] months to complete}/{for completion in [*month/year*]}.

Tenders must be clearly marked with the tender reference and the subject of the tender on the outside of the envelope (but should not bear any indication which may relate the tender to the tenderer) addressed to the Chairman, [*state the name of the tender board to be addressed*] and placed in [*title and address of the relevant tender box*], before 12 noon on Friday, [*state the tender closing date*]. Tenders must be deposited in the tender box as specified in this tender notice ("Specified Tender Box") before the tender closing time. Late tenders and tenders not deposited in the Specified Tender Box will not be accepted.

The tender closing date may be extended under the following circumstances:-

(a) If tropical cyclone signal No. 8 or above, or a black rainstorm warning signal is hoisted or if "extreme conditions after super typhoons" announced by the Government is in force at any time between 9 am and 12 noon on the tender closing date, the tender closing time will be extended to 12 noon on the first working day after the tropical cyclone signal No. 8 is lowered, or the black rainstorm warning signal or the "extreme conditions after super typhoons" announced by the Government has/have ceased to be in force. Saturday is not counted as a working day. The announcements on "extreme conditions after super typhoons" will be made via **press releases website** of the Information Services Department (http://www.info.gov.hk/gia/general/today.htm); or

(b) If there is a blockage of the public access to the location of the Specified Tender Box at any time between 9 am and 12 noon on the tender closing date, the Government will announce extension of the tender closing date and time until further notice. Following removal of the blockage, the Government will announce the extended tender closing date and time as soon as practicable. The announcements will be made via **press releases website** of the Information Services Department (https://www.info.gov.hk/gia/general/today.htm).

Forms of tender and further particulars are obtainable from [*state the name, address and telephone/fax number/e-mail address of the office, and other information necessary to contact the office and obtain the tender documents*]. *{A sum of $....., which will not be refunded, is required to cover the cost of the tender documents.}

[1] & [7]{Selective tendering is adopted. *{Confirmed} contractors on the List of Approved Contractors for Public Works in Group [*xx*] under and the [*xx*] category Amd No. 1/2026 [2]{or joint ventures with participation of local and/or overseas contractors with [3]{ the lead participant or the major shareholder}/[4]{at least one of the participants or shareholders} being

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a *{confirmed} contractor on the List of Approved Contractors for Public Works in Group [*xx*] under the [*xx*] category Amd No. 1/2026,} who also meet the [5]{following} qualifications and [5]{other} conditions for participation stipulated in the tender documents are invited to tender *{./:}

[5][*List out the required qualifications/experience stipulated in stage I screening*]

[2, 4 & 6]{In case of a joint venture tenderer, the requirement in either paragraph (1) or (2) below has to be satisfied:

(1) the lead participant or major shareholder is a confirmed Group C contractor included in the List of Approved Contractors for Public Works under the [*xx*] category Amd No. 1/2026; OR

(2) the lead participant or major shareholder is a contractor who is not enlisted in any service category under the List of Approved Contractors for Public Works and the List of Approved Suppliers of Materials and Specialist Contractors for Public Works. In this case,

(a) the total percentage participation of participant(s) or shareholder(s) who is/are confirmed Group C contractor(s) included in the List of Approved Contractors for Public Works under the [*xx*] category Amd No. 1/2026 is at least 40%; and

(b) the percentage participation of the lead participant or major stakeholder is no more than 60%.}}

[2]{The detailed requirements for joint ventures with participation of local and/or overseas contractors, if applicable, are stipulated in the tender documents.}

[8]Contractors not yet on the [*title(s) of the approved list(s) and category*] may also submit a tender if they submit a request for participation together with a duly completed application for inclusion in the above-mentioned approved list/category by [9][*state the date of the deadline*] to [10][*address*], meet the qualifications and conditions for participation, and the application for inclusion is duly approved on or before the tender closing date. Details for making the application are available at:

https://www.devb.gov.hk/en/construction_sector_matters/contractors/index.html

Contractors will be liable to have their names removed from the approved list(s) if they fail or refuse to implement an accepted tender.

[11]{Open tendering is adopted. All interested contractors *{are invited to tender.}/{who also meet the following requirements are invited to tender:- [*list out the qualifications or the conditions for participations*].}}

*{Tenderers must attach to each tender a cheque/cashier order/the original copy of a receipt for the sum of $..... as a pledge of the bona fides of their tenders, which amount shall be forfeited to the Government of the Hong Kong Special Administrative Region if any tenderer fails or refuses to implement an accepted tender. The amount will be returned to the unsuccessful tenderers without interest.}

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*{This tender is covered by the Agreement on Government Procurement of the World Trade Organization and will not involve electronic auction. This notice also serves as a summary notice required under the Agreement on Government Procurement of the World Trade Organization.}

*{A charge will be levied for delivery of tender documents where the delivery of tender documents is requested by a tenderer. A written request must be made.}

The Government of the Hong Kong Special Administrative Region does not bind itself to accept any tender irrespective of whether the tender is the lowest bid or where the assessment of tenders is based on a marking scheme or formula approach, the tender with the highest overall score.

The Government of the Hong Kong Special Administrative Region reserves the right to negotiate with any tenderer about the terms of the offer.

Details of the award of this contract will be published on the Internet at https://pcms2.gld.gov.hk/.

Date (State the name and title of Head of Department)

1 For selective tendering only, delete if not applicable.
2 For cases where joint ventures are allowed to tender, delete if not applicable.
3 For contracts of value **below $2B**. Delete if not applicable.
4 For contracts of value **equal to or above $2B**. Delete if not applicable.
5 For contracts incorporate Stage I screening, delete if not applicable.
6 This paragraph is drafted with reference to DEVB's memo ref. () in DEVB(W) 510/83/05 dated 26 March 2021. Please refer to the latest standard SCT 5 and amend as appropriate.
7 In case of tenders inviting from the List of Approved Suppliers of Materials and Specialist Contractors for Public Works, please amend to suit.
8 For selective tendering under WTO GPA, delete if not applicable.
9 The deadline shall be set at not less than 25 days from the date of publication of the Gazette Tender Notice. See paragraph 22 of DEVB TCW No. 2/2014
10 Address of the responsible officer of the procuring department.
11 For open tendering only, delete if not applicable.

* delete / revise where inappropriate.
[ ] data to be filled in
{ } selective

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招標公告(刊憲樣本) — 不採用電子投標系統（工程合約）

第_____號公告 [述明部門名稱]

現招標承投合約編號[述明合約編號，合約名稱]*{(工務計劃項目第_____號)}。工程包括[簡述工程內容，包括工程性質、預計工程數量，以及簡述其他選項(如有)]。工程預計於[_____年___月]展開，*{約需時____個月完成}／{於_____年____月完成}。投標者必須填具一式*兩份／三份的投標表格，並把填妥的投標表格放置信封內封密。

投標者須在信封面清楚註明招標編號、投標項目(但不得有任何記認，使人認出投標者的身分)及「[相關投標委員會的名稱]主席收」，並須於[述明截標日期]星期五中午12時前，把投標書放入[相關投標箱的名稱和地址]內。投標者必須在截標時間前把投標書放入本招標公告中指定的投標箱(「指定投標箱 」) 內。逾期遞交或未有放入指定投標箱的投標書，概不受理。

在下列情況下，截標日期可能會延遲：-

(a) 若截標當日上午9時至中午12時期間，八號或以上熱帶氣旋或黑色暴雨警告信號懸掛，或政府公布的「超強颱風後的極端情況」生效，截標時間會延至八號熱帶氣旋警告信號除下，或當時生效的黑色暴雨警告信號或政府公布的「超強颱風後的極端情況」取消後首個工作天中午12時。星期六並不屬於工作天。關於「超強颱風後的極端情況」的公布事項會在政府新聞處**新聞公報網頁** (https://www.info.gov.hk/gia/general/ctoday.htm)宣布。

(b) 如在截標當日上午9時至中午12時期間的任何時間內，前往指定投標箱所在地點的公眾通道受阻，政府會宣布延遲截標日期及時間，直至另行通告。待通道受阻情況獲消除後，政府會盡快公布所延遲的截標日期及時間。公布事項會在政府新聞處**新聞公報網頁** (https://www.info.gov.hk/gia/general/ctoday.htm)宣布。

投標表格和進一步資料可向[述明辦事處的名稱、地址和電話／傳真號碼／電郵地址，以及為聯絡辦事處和索取投標文件所必須的其他資料]索取。*{須繳付投標文件的費用_____元(不會退還，以彌補印製招標文件的開支。)}

[1] & [7] {此招標採用選擇性招標。現邀請名列認可公共工程承建商名冊內獲准承投[工程類別]的[組別] 承*建/造商*{經確認者} [2]{或由本地和／或海外承*建/造商所組成的合營企業(其[3]{首席參與者或主要股東}／[4]{最少其中一個參與者或股東}必須是名列認可公共工程承建商名冊內獲准承投[工程類別]的[組別]承*建/造商*{經確認者})}，並同時符合[5]{下列}投標文件列出的資格和[5]{其他}條件的承*建/造商[3]{或合營企業}承投這次招標項目*{。／：}

[5][列出第I階段篩選中訂明的所需資格／經驗]

[2,4&6] {如屬合營企業投標者,，投標者需符合以下段落(1)或(2)所列出要求：

(1) 首席參與者或主要股東是名列認可公共工程承建商名冊內獲准承投[工程類別]的丙組承*建/造商 (經確認者)；或

(2) 首席參與者或主要股東並非名列認可公共工程承建商名冊和認可公共工程物料供應商及專門承造商名冊上的任何工程類別。就此情況：

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甲、所有名列認可公共工程承建商名冊內獲准承投[工程類別]的丙組承*建/造商(經確認者)的參與者或股東的參與百分比總和不少於40%；和

乙、首席參與者或主要股東的參與百分比不超過60%。}}

[2]{有關由本地和／或海外承建商所組成的合營企業投標者（如適用）的詳細要求，已詳列於招標文件內}

[8]承建商如非在[有關的認可名冊的名稱和類別]內的承*建/造商也可參與投標，惟須在 [9][述明截止日期]或之前提出要求，同時把填妥的納入上述認可名冊／類別申請書送交[10][地址]，符合所需資格和條件，以及在截標日期或之前正式獲准加入名冊。有關申請列入名冊詳情，請參閱：
https://www.devb.gov.hk/tc/construction_sector_matters/contractors/index.html

投標一經採納，承*建/造商如未能或拒絕履行投標書內的規定，其名稱有可能從認可名冊上刪除。

[11]{是次招標採用公開招標。現邀請所有有興趣的承*建/造商*{承投這次招標項目}/{並同時符合下列要求[註明所需資格]，承投這次招標項目。}}

*{為表明投標者確有誠意，投標者必須繳付按金_____元，並把相關支票／銀行本票／按金收據正本夾附於每份投標書內。標書一經採納，中標者如未能或拒絕履行投標書內的規定，該筆按金會由香港特別行政區政府沒收。落選者的按金會不附利息悉數發還。}

*是次招標受世界貿易組織《政府採購協定》規管，且不涉及電子拍賣。此公告亦用作世界貿易組織《政府採購協定》所規定的摘要公告。

*有意投標者如要求送遞招標文件，必須以書面提出，並須繳付送遞費用。

香港特別行政區政府不一定採納任何投標書，包括索價最低的投標書。如投標書評估是按照評分計劃或公式計算，香港特別行政區政府亦不一定採納其中整體得分最高的投標書。

香港特別行政區政府有權與任何投標者商議批出合約的條款。

批出是項合約的詳情，將在互聯網上公布。請參閱：https://pcms2.gld.gov.hk/。

日期 [述明部門首長職銜和姓名]

1 只適用於選擇性招標，請刪去不適用者。
2 適用於容許合營企業參與投標的合約，請刪去不適用者。
3 只適用於總值低於**港幣二十億元**的合約，請刪去不適用者。
4 只適用於總值等於或高於**港幣二十億元**的合約，請刪去不適用者。
5 適用於設有第I階段篩選的合約，請刪去不適用者。
6 此段根據發展局通告(參考編號：DEVB(W) 510/83/05，2021年3月26日)草擬。請參考最新標準合約文件(SCT 5)並作出合適更改。
7 如根據認可公共工程物料供應商及專門承造商名冊招標，請作出合適更改。
8 只適用於根據世界貿易組織《政府採購協定》之選擇性招標，請刪去不適用者。
9 截止日期須訂為刊登相關憲報招標公告的日期起計不少於25天。見發展局的工務技術通告第2/2014號第22段。
10 採購部門負責人員的地址。
11 只適用於公開招標，請刪去不適用者。

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* 刪去/更改不適用者
[ ] 請填寫相關資料
{ } 選擇性

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CONTENT PAGE FOR GAZETTE NOTICE FOR INVITATION TO TENDER

GAZETTE NO. / (YEAR)

CONTENTS

Government Notice No.	Subject	Page
	TENDERS	
	XX Department	
	(Title of Contract)	

N.B.: "Gazette No.", "Government Notice No." and "Page" should be left blank. The details will be inserted by the D of GL.

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APPENDIX 6.4AA SPECIMEN GAZETTE TENDER NOTICES – ADOPTING e-TENDERING SYSTEM (WORKS CONTRACTS)

G.N. [*State the name of department*]

It is hereby notified that tenders are invited for Contract No. [*state the contract number, contract title*) *{(Public Works Programme Item No._____)}. The works include [*give a brief description of the works including the nature, the estimated quantity of the project and, where applicable, a description of any options*]. The works are scheduled to commence in [*month/year*] *{and will take about [*no. of months*] months to complete}/{for completion in [*month/year*]}.

The tender closing time and date is at **12 noon on Friday, [*state the tender closing date*]**.

A tenderer must submit its tender in electronic format via the Electronic Tendering System for works contracts ("**e-TS(WC)**"). **Late submission will not be accepted**.

In addition to the electronic submission, a tenderer may opt to submit its tender in hard copy as well. Submission in **hard copy is optional** and it will not be used unless falling within the exceptions stated in the conditions of tender. If a tenderer opts to submit a hard copy tender in addition to electronic submission, the tenders must be sealed, clearly marked with the tender reference and the subject of the tender on the outside of the envelope (but should not bear any indication which may relate the tender to the tenderer) addressed to the Chairman, [*state the name of the tender board to be addressed*] and placed in [*title and address of the relevant tender box*]. Tenders must be deposited in the tender box as specified in this tender notice ("Specified Tender Box") before the tender closing time. Late tenders and tenders not deposited in the Specified Tender Box will not be accepted.

The tender closing date may be extended under the following circumstances:-

(a) If tropical cyclone signal No. 8 or above, or a black rainstorm warning signal is hoisted or if "extreme conditions after super typhoons" announced by the Government is in force at any time between 9 am and 12 noon on the tender closing date, the tender closing time will be extended to 12 noon on the first working day after the tropical cyclone signal No. 8 is lowered, or the black rainstorm warning signal or the "extreme conditions after super typhoons" announced by the Government has/have ceased to be in force. Saturday is not counted as a working day. The announcements on "extreme conditions after super typhoons" will be made via **press releases website** of the Information Services Department (http://www.info.gov.hk/gia/general/today.htm);

(b) If there is a blockage of the public access to the location of the Specified Tender Box at any time between 9 am and 12 noon on the tender closing date, the Government will announce extension of the tender closing date and time until further notice. Following removal of the blockage, the Government will announce the extended tender closing date and time as soon as practicable. The announcements will be made via **press releases website** of the Information Services Department (https://www.info.gov.hk/gia/general/today.htm); or

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(c) If there is any other reason which in the Government's view shall affect the close of tender, the Government will notify tenderers of the extension in tender closing date and time **via the e-TS(WC) and/or emails**.

The tender documents are included in the Electronic Dissemination Package ("**EDP**") which can be downloaded from the e-TS(WC) via this link [*insert hyperlink*]. Hard copy of the EDP will not be issued.

Regarding the use of e-TS(WC), tenderers should take note of the following:

(i) Prior to downloading tender documents, tenderers must register an account on the e-TS(WC).

(ii) Certain electronic files required to be submitted with the tender require digital signature(s). Tenderers are advised to apply for the Organizational e-Cert in advance and ensure its validity.

(iii) Tenderers are reminded to ensure that data transmission is completed before the close of tender.

(iv) Detailed information on procedures for application of an e-TS(WC) account, Terms and Conditions of Use and Participation, User Manual and Frequently Asked Questions can be found on the website https://www.gov.hk/en/theme/etendering/ets.

(v) For general enquiry, please call 3997 1844 and for technical support, please call 6310 9329.

[1 & 7]{Selective tendering is adopted. *{Confirmed} contractors on the List of Approved Contractors for Public Works in Group [xx] under and the [xx] category Amd No. 1/2026 [2]{or joint ventures with participation of local and/or overseas contractors with [3]{ the lead participant or the major shareholder}/[4]{at least one of the participants or shareholders} being a *{confirmed} contractor on the List of Approved Contractors for Public Works in Group [xx] under the [xx] category Amd No. 1/2026,} who also meet the [5]{following} qualifications and [5]{other} conditions for participation stipulated in the tender documents are invited to tender *{./:}

[5][*List out the required qualifications/experience stipulated in stage I screening*]

[2, 4 & 6]{In case of a joint venture tenderer, the requirement in either paragraph (1) or (2) below has to be satisfied:

(1) the lead participant or major shareholder is a confirmed Group C contractor included in the List of Approved Contractors for Public Works under the [xx] category Amd No. 1/2026; OR

(2) the lead participant or major shareholder is a contractor who is not enlisted in any service category under the List of Approved Contractors for Public Works and the List of Approved Suppliers of Materials and Specialist Contractors for Public Works. In this case,

(a) the total percentage participation of participant(s) or shareholder(s) who is/are confirmed Group C contractor(s) included in the List of Approved Contractors for Public Works under the [xx] category Amd No. 1/2026 is at least 40%; and

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(b) the percentage participation of the lead participant or major stakeholder is no more than 60%.}}

[2]{The detailed requirements for joint ventures with participation of local and/or overseas contractors, if applicable, are stipulated in the tender documents.}

[8]Contractors not yet on the [title(s) of the approved list(s) and category] may also submit a tender if they submit a request for participation together with a duly completed application for inclusion in the above-mentioned approved list/category by [9][*state the date of the deadline*] to [10][*address*], meet the qualifications and conditions for participation, and the application for inclusion is duly approved on or before the tender closing date. Details for making the application are available at:

https://www.devb.gov.hk/en/construction_sector_matters/contractors/index.html

Contractors will be liable to have their names removed from the approved list(s) if they fail or refuse to implement an accepted tender.

[11]{Open tendering is adopted. All interested contractors *{are invited to tender.}/{who also meet the following requirements are invited to tender:- [*list out the qualifications or the conditions for participations*].}}

*{This tender is covered by the Agreement on Government Procurement of the World Trade Organization and will not involve electronic auction. This notice also serves as a summary notice required under the Agreement on Government Procurement of the World Trade Organization.}

The Government of the Hong Kong Special Administrative Region does not bind itself to accept any tender irrespective of whether the tender is the lowest bid or where the assessment of tenders is based on a marking scheme or formula approach, the tender with the highest overall score.

The Government of the Hong Kong Special Administrative Region reserves the right to negotiate with any tenderer about the terms of the offer.

Details of the award of this contract will be published on the Internet at https://pcms2.gld.gov.hk/.

Date (*State the name and title of Head of Department*)

1 For selective tendering only, delete if not applicable.
2 For cases where joint ventures are allowed to tender, delete if not applicable.
3 For contracts of value **below $2B**. Delete if not applicable.
4 For contracts of value **equal to or above $2B**. Delete if not applicable.
5 For contracts incorporate Stage I screening, delete if not applicable.
6 This paragraph is drafted with reference to DEVB's memo ref. () in DEVB(W) 510/83/05 dated 26 March 2021. Please refer to the latest standard SCT 5 and amend as appropriate.
7 In case of tenders inviting from the List of Approved Suppliers of Materials and Specialist Contractors for Public Works, please amend to suit.

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8 For selective tendering under WTO GPA, delete if not applicable.
9 The deadline shall be set at not less than 25 days from the date of publication of the Gazette Tender Notice. See paragraph 22 of DEVB TCW No. 2/2014
10 Address of the responsible officer of the procuring department.
11 For open tendering only, delete if not applicable.

* delete / revise where inappropriate.
[ ] data to be filled in
{ } selective

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招標公告(刊憲樣本) — 採用電子投標系統（工程合約）

第_____號公告 [述明部門名稱]

現招標承投合約編號[述明合約編號，合約名稱]*{(工務計劃項目第_____號)}。工程包括[簡述工程內容，包括工程性質、預計工程數量，以及簡述其他選項(如有)]。工程預計於[_____年___月]展開，*{約需時____個月完成}／{於_____年____月完成}。

截標日期及時間為[**述明截標日期**]**星期五中午12時**。

投標者必須透過電子投標系統（工程合約）遞交電子投標書。**逾期遞交的投標書，概不受理**。

除了遞交電子投標書外，投標者也可以選擇同時以印本形式遞交投標書。遞交**印本形式的投標書是屬於自願性質**，除非在招標條款中規定的例外情況，否則印本形式的投標書將不會被使用。如果投標者在遞交電子投標書的同時，選擇遞交印本形式的投標書，印本形式的投標書必須以封密的信封遞交。信封面須清楚註明招標編號、投標項目（但不得有任何記認，使人認出投標者的身分）及「[相關投標委員會]主席收」，並必須把投標書放入[相關投標箱地址]的「[相關投標箱的名稱]」內。投標者必須在截標時間前把投標書放入本招標公告中指定的投標箱(「指定投標箱 」) 內。逾期遞交或未有放入指定投標箱的投標書，概不受理。

在下列情況下，截標日期可能會延遲：-

(a) 若截標當日上午9時至中午12時期間，八號或以上熱帶氣旋或黑色暴雨警告信號懸掛，或政府公布的「超強颱風後的極端情況」生效，截標時間會延至八號熱帶氣旋警告信號除下，或當時生效的黑色暴雨警告信號或政府公布的「超強颱風後的極端情況」取消後首個工作天中午12時。星期六並不屬於工作天。關於「超強颱風後的極端情況」的公布事項會在政府新聞處**新聞公報網頁** (https://www.info.gov.hk/gia/general/ctoday.htm)宣布。

(b) 如在截標當日上午9時至中午12時期間的任何時間內，前往指定投標箱所在地點的公眾通道受阻，政府會宣布延遲截標日期及時間，直至另行通告。待通道受阻情況獲消除後，政府會盡快公布所延遲的截標日期及時間。公布事項會在政府新聞處**新聞公報網頁** (https://www.info.gov.hk/gia/general/ctoday.htm)宣布。

(c) 若政府認為有任何其他原因影響截標，政府將透過**電子投標系統（工程合約）和/或電子郵件**通知投標者延遲的截標日期和時間。

招標文件已包含在電子發布包中，而電子發布包可透過此連結[插入超連結]從電子投標系統（工程合約）下載。電子發布包將不會以印本形式提供。

投標者應注意以下關於使用電子投標系統（工程合約）的事項：

(i) 下載招標文件之前，投標者必須在電子投標系統（工程合約）上登記帳戶。

(ii) 某些需要隨投標書遞交的電子檔案必須附有電子簽署。投標者請預早申請電子證書（機構）及確保其有效性。

(iii) 投標者請確保在投標截止前完成數據傳輸。

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(iv) 有關申請電子投標系統帳戶的程序、電子投標系統的條款及條件、常見問題和用戶手冊的詳情可在電子投標系統（工程合約）網站（https://www.gov.hk/tc/theme/etendering/ets）瀏覽。

(v) 有關一般查詢，請致電 3997 1844；如需技術支援，請致電 6310 9329。

[1 & 7]{此招標採用選擇性招標。現邀請名列認可公共工程承建商名冊內獲准承投[工程類別]的[組別] 承*建/造商*{經確認者} [2]{或由本地和／或海外承*建/造商所組成的合營企業(其[3]{首席參與者或主要股東}／[4]{最少其中一個參與者或股東}必須是名列認可公共工程承建商名冊內獲准承投[工程類別]的[組別]承*建/造商*{經確認者})}，並同時符合[5]{下列}投標文件列出的資格和[5]{其他}條件的承*建/造商[3]{或合營企業}承投這次招標項目*{。／：}

[5][列出第I階段篩選中訂明的所需資格／經驗]

[2,4&6]{如屬合營企業投標者,，投標者需符合以下段落(1)或(2)所列出要求：

(1) 首席參與者或主要股東是名列認可公共工程承建商名冊內獲准承投[工程類別]的丙組承*建/造商 (經確認者)；或

(2) 首席參與者或主要股東並非名列認可公共工程承建商名冊和認可公共工程物料供應商及專門承造商名冊上的任何工程類別。就此情況：

甲、所有名列認可公共工程承建商名冊內獲准承投[工程類別]的丙組承*建/造商(經確認者)的參與者或股東的參與百分比總和不少於40%；和

乙、首席參與者或主要股東的參與百分比不超過60%。}}

[2]{有關由本地和／或海外承建商所組成的合營企業投標者（如適用）的詳細要求，已詳列於招標文件內}

[8]承建商如非在[有關的認可名冊的名稱和類別]內的承*建/造商也可參與投標，惟須在 [9][述明截止日期]或之前提出要求，同時把填妥的納入上述認可名冊／類別申請書送交[10][地址]，符合所需資格和條件，以及在截標日期或之前正式獲准加入名冊。有關申請列入名冊詳情，請參閱：
https://www.devb.gov.hk/tc/construction_sector_matters/contractors/index.html

投標一經採納，承*建/造商如未能或拒絕履行投標書內的規定，其名稱有可能從認可名冊上刪除。

[11]{是次招標採用公開招標。現邀請所有有興趣的承*建/造商*{承投這次招標項目}/{並同時符合下列要求[註明所需資格]，承投這次招標項目。}}

*是次招標受世界貿易組織《政府採購協定》規管，且不涉及電子拍賣。此公告亦用作世界貿易組織《政府採購協定》所規定的摘要公告。

香港特別行政區政府不一定採納任何投標書，包括索價最低的投標書。如投標書評估是按照評分計劃或公式計算，香港特別行政區政府亦不一定採納其中整體得分最高的投標書。

香港特別行政區政府有權與任何投標者商議批出合約的條款。

批出是項合約的詳情，將在互聯網上公布。請參閱：https://pcms2.gld.gov.hk/。

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日期 [述明部門首長職銜和姓名]

1 只適用於選擇性招標，請刪去不適用者。
2 適用於容許合營企業參與投標的合約，請刪去不適用者。
3 只適用於總值**低於港幣二十億元**的合約，請刪去不適用者。
4 只適用於總值等於或**高於港幣二十億元**的合約，請刪去不適用者。
5 適用於設有第I階段篩選的合約，請刪去不適用者。
6 此段根據發展局通告(參考編號：DEVB(W) 510/83/05，2021年3月26日)草擬。請參考最新標準合約文件(SCT 5)並作出合適更改。
7 如根據認可公共工程物料供應商及專門承造商名冊招標，請作出合適更改。
8 只適用於根據世界貿易組織《政府採購協定》之選擇性招標，請刪去不適用者。
9 截止日期須訂為刊登相關憲報招標公告的日期起計不少於25天。見發展局的工務技術通告第2/2014號第22段。
10 採購部門負責人員的地址。
11 只適用於公開招標，請刪去不適用者。

* 刪去/更改不適用者
[ ] 請填寫相關資料
{ } 選擇性

CONTENTS PAGE FOR GAZETTE NOTICE FOR INVITATION TO TENDER (CHINESE VERSION)

????年第??期憲報

目 錄

政府公告
編號 有關事項 頁數

招標

XX署

(合約名稱)

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APPENDIX 6.4B SPECIMEN TENDER INVITATION LETTER FOR SELECTIVE TENDERING – NOT ADOPTING E-TENDERING SYSTEM (WORKS CONTRACTS)

[*Contractor*] ……..
[*Address*) ……..

Dear Sirs,

Contract No: ……
Title :……
*(Public Works Programme Item No. ……)

[6]{*{Confirmed} contractors on the List of Approved Contractors for Public Works in Group [*xx*] under the [*xx*] category Amd No. 1/2026 [1]{or joint ventures with participation of local and/or overseas contractors with [2]{the lead participant or the major shareholder}/[3]{at least one of the participants or shareholders} being a *{confirmed} contractor on the List of Approved Contractors for Public Works in Group [*xx*] under the [*xx*] category Amd No. 1/2026}, who also meet the [4]{following} qualifications and [4]{other} conditions for participation stipulated in the tender documents are invited to submit a sealed tender in *duplicate/triplicate for the above contract*{./:}

[4]{List out the required qualifications/experience stipulated in stage I screening}

[1, 3 & 5] {In case of a joint venture tenderer, the requirement in either paragraph (1) or (2) below has to be satisfied:

(1) the lead participant or major shareholder is a confirmed Group C contractor included in the List of Approved Contractors for Public Works under the [*xx*] category Amd No. 1/2026; OR

(2) the lead participant or major shareholder is a contractor who is not enlisted in any service category under the List of Approved Contractors for Public Works and the List of Approved Suppliers of Materials and Specialist Contractors for Public Works. In this case,

a) the total percentage participation of participant(s) or shareholder(s) who is/are confirmed Group C contractor(s) included in the List of Approved Contractors for Public Works under the [*xx*] category Amd No. 1/2026 is at least 40%; and

b) the percentage participation of the lead participant or major shareholder is no more than 60%.}}

[1]{The detailed requirements for joint ventures with participation of local and/or overseas contractors, if applicable, are stipulated in the tender documents.}

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If you are currently under suspension or voluntary suspension from tendering, your attention is drawn to General Conditions of Tender Clause GCT 22.

The works include [*give a brief description of the works including the nature, the estimated quantity of the project and, where applicable, a description of any options*]. The works are scheduled to commence in [*month/year*] *{and will take about [*no. of months*] months to complete}/{for completion in [*month/year*]}.

[7]{Tender notice for the next term contract for [*state the period of the next term contract*] will be published around [*state the estimate date in month/year*].}

Tenders must be clearly marked with the tender reference and the subject of the tender on the outside of the envelope (but should not bear any indication which may relate the tender to the tenderer) addressed to the Chairman, [*state the name of the tender board to be addressed*] and placed in [*title and address of the relevant tender box*] before 12 noon on Friday, [*state the tender closing date*]. Tenders must be deposited in the tender box as specified in this tender notice ("Specified Tender Box") before the tender closing time. Late tenders and tenders not deposited in the Specified Tender Box not be accepted.

The tender closing date may be extended under the following circumstances:-

(a) If tropical cyclone signal No. 8 or above, or a black rainstorm warning signal is hoisted or if "extreme conditions after super typhoons" announced by the Government is in force at any time between 9 am and 12 noon on the tender closing date, the tender closing time will be extended to 12 noon on the first working day after the tropical cyclone signal No. 8 is lowered, or the black rainstorm warning signal or the "extreme conditions after super typhoons" announced by the Government has/have ceased to be in force. Saturday is not counted as a working day. The announcements on "extreme conditions after super typhoons" will be made via **press releases website** of the Information Services Department (http://www.info.gov.hk/gia/general/today.htm); or

(b) If there is a blockage of the public access to the location of the Specified Tender Box at any time between 9 am and 12 noon on the tender closing date, the Government will announce extension of the tender closing date and time until further notice. Following removal of the blockage, the Government will announce the extended tender closing date and time as soon as practicable. The announcements will be made via press releases website of the Information Services Department (https://www.info.gov.hk/gia/general/today.htm).

Forms of tender and further particulars are obtainable from [*state the name, address and telephone/fax number/e-mail address of the office, and other information necessary to contact the office and obtain the tender documents*]. *{A sum of $....., which will not be refunded, is required to cover the cost of the tender documents.}

Contractors/suppliers will be liable to have their names removed from the approved list(s) if they fail or refuse to implement an accepted tender.

*{Tenderers must attach to each tender a cheque/cashier order/the original copy of a receipt for the sum of $..... as a pledge of the bona fides of their tenders, which amount

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shall be forfeited to the Government of the Hong Kong Special Administrative Region if any tenderer fails or refuses to implement an accepted tender. The amount will be returned to the unsuccessful tenderers without interest.}

*This tender is covered by the Agreement on Government Procurement of the World Trade Organization and will not involve electronic auction.

*A charge will be levied for delivery of tender documents where the delivery of tender documents is requested by a tenderer. A written request must be made.

The Government of the Hong Kong Special Administrative Region does not bind itself to accept any tender irrespective of whether the tender is the lowest bid or where the assessment of tenders is based on a marking scheme or formula approach, the tender with the highest overall score.

The Government of the Hong Kong Special Administrative Region reserves the right to negotiate with any tenderer about the terms of the offer.

Details of the award of this contract will be published on the Internet at https://pcms2.gld.gov.hk/.

Yours faithfully

(Designation of officer who would sign the Contract on behalf of Government)

1 For cases where joint ventures are allowed to tender. Delete if not applicable.
2 For contracts of value **below $2B**. Delete if not applicable.
3 For contracts of value **equal to or above $2B.** Delete if not applicable.
4 For contracts incorporating Stage I screening. Delete if not applicable.
5 This paragraph is drafted with reference to DEVB's memo ref. ( ) in DEVB(W) 510/83/05 dated 26 March 2021. Please refer to the latest standard SCT 5 and amend as appropriate.
6 In case of tenders inviting from the List of Approved Suppliers of Materials and Specialist Contractors for Public Works, please amend to suit.
7 For term contracts only, delete if not applicable.

* delete / revise where inappropriate
[ ] data to be filled in
{ } selective

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APPENDIX 6.4BB SPECIMEN TENDER INVITATION LETTER FOR SELECTIVE TENDERING – ADOPTING E-TENDERING SYSTEM (WORKS CONTRACTS)

(Contractor) ……..
(Address) ……..

Dear Sirs,

Contract No: ……
Title :……
*(Public Works Programme Item No. ……)

[6]{*{Confirmed} contractors on the List of Approved Contractors for Public Works in Group [xx] under the [xx] category Amd No. 1/2026 [1]{or joint ventures with participation of local and/or overseas contractors with [2]{the lead participant or the major shareholder}/[3]{at least one of the participants or shareholders} being a *{confirmed} contractor on the List of Approved Contractors for Public Works in Group [xx] under the [xx] category Amd No. 1/2026}, who also meet the [4]{following} qualifications and [4]{other} conditions for participation stipulated in the tender documents are invited to submit a tender for the above contract*{./:}

[4]{*List out the required qualifications/experience stipulated in stage I screening*}

[1, 3 & 5] {In case of a joint venture tenderer, the requirement in either paragraph (1) or (2) below has to be satisfied:

(1) the lead participant or major shareholder is a confirmed Group C contractor included in the List of Approved Contractors for Public Works under the [xx] category Amd No. 1/2026; OR

(2) the lead participant or major shareholder is a contractor who is not enlisted in any service category under the List of Approved Contractors for Public Works and the List of Approved Suppliers of Materials and Specialist Contractors for Public Works. In this case,

a) the total percentage participation of participant(s) or shareholder(s) who is/are confirmed Group C contractor(s) included in the List of Approved Contractors for Public Works under the [xx] category Amd No. 1/2026 is at least 40%; and

b) the percentage participation of the lead participant or major shareholder is no more than 60%.}}

[1]{The detailed requirements for joint ventures with participation of local and/or overseas contractors, if applicable, are stipulated in the tender documents.}

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If you are currently under suspension or voluntary suspension from tendering, your attention is drawn to General Conditions of Tender Clause GCT [22].

The works include [*give a brief description of the works including the nature, the estimated quantity of the project and, where applicable, a description of any options*]. The works are scheduled to commence in [*month/year*] *{and will take about [*no. of months*] months to complete}/{for completion in [*month/year*]}.

[7]{Tender notice for the next term contract for [*state the period of the next term contract*] will be published around [*state the estimate date in month/year*].}

The tender closing time and date is at **12 noon on Friday, [*state the tender closing date*]**.

A tenderer must submit its tender in electronic format via the Electronic Tendering System for works contracts ("**e-TS(WC)**"). **Late submission will not be accepted**.

In addition to the electronic submission, a tenderer may opt to submit its tender in hard copy as well. Submission in **hard copy is optional** and it will not be used unless falling within the exceptions stated in the conditions of tender. If a tenderer opts to submit a hard copy tender in addition to electronic submission, the tenders must be sealed, clearly marked with the tender reference and the subject of the tender on the outside of the envelope (but should not bear any indication which may relate the tender to the tenderer) addressed to the Chairman, [*state the name of the tender board to be addressed*] and placed in [*title and address of the relevant tender box*]. Tenders must be deposited in the tender box as specified in this tender notice ("Specified Tender Box") before the tender closing time. Late tenders and tenders not deposited in the Specified Tender Box will not be accepted.

The tender closing date may be extended under the following circumstances:-

(a) If tropical cyclone signal No. 8 or above, or a black rainstorm warning signal is hoisted or if "extreme conditions after super typhoons" announced by the Government is in force at any time between 9 am and 12 noon on the tender closing date, the tender closing time will be extended to 12 noon on the first working day after the tropical cyclone signal No. 8 is lowered, or the black rainstorm warning signal or the "extreme conditions after super typhoons" announced by the Government has/have ceased to be in force. Saturday is not counted as a working day. The announcements on "extreme conditions after super typhoons" will be made via **press releases website** of the Information Services Department (http://www.info.gov.hk/gia/general/today.htm);

(b) If there is a blockage of the public access to the location of the Specified Tender Box at any time between 9 am and 12 noon on the tender closing date, the Government will announce extension of the tender closing date and time until further notice. Following removal of the blockage, the Government will announce the extended tender closing date and time as soon as practicable. The announcements will be made via **press releases website** of the Information Services Department (https://www.info.gov.hk/gia/general/today.htm); or

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(c) If there is any other reason which in the Government's view shall affect the close of tender, the Government will notify tenderers of the extension in tender closing date and time **via the e-TS(WC) and/or emails**.

The tender documents are included in the Electronic Dissemination Package ("**EDP**") which can be downloaded from the e-TS(WC) via this link [*insert hyperlink*]. Hard copy of the EDP will not be issued.

Regarding the use of e-TS(WC), tenderers should take note of the following:

(i) Prior to downloading tender documents, tenderers must register an account on the e-TS(WC).

(ii) Certain electronic files required to be submitted with the tender require digital signature(s). Tenderers are advised to apply for the Organizational e-Cert in advance and ensure its validity.

(iii) Tenderers are reminded to ensure that data transmission is completed before the close of tender.

(iv) Detailed information on procedures for application of an e-TS(WC) account, Terms and Conditions of Use and Participation, User Manual and Frequently Asked Questions can be found on the website https://www.gov.hk/en/theme/etendering/ets.

(v) For general enquiry, please call 3997 1844 and for technical support, please call 6310 9329.

Contractors/suppliers will be liable to have their names removed from the approved list(s) if they fail or refuse to implement an accepted tender.

*This tender is covered by the Agreement on Government Procurement of the World Trade Organization and will not involve electronic auction.

The Government of the Hong Kong Special Administrative Region does not bind itself to accept any tender irrespective of whether the tender is the lowest bid or where the assessment of tenders is based on a marking scheme or formula approach, the tender with the highest overall score.

The Government of the Hong Kong Special Administrative Region reserves the right to negotiate with any tenderer about the terms of the offer.

Details of the award of this contract will be published on the Internet at https://pcms2.gld.gov.hk/.

Yours faithfully

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(Designation of officer who would sign
the Contract on behalf of Government)

1 For cases where joint ventures are allowed to tender. Delete if not applicable.
2 For contracts of value **below $2B**. Delete if not applicable.
3 For contracts of value **equal to or above $2B.** Delete if not applicable.
4 For contracts incorporating Stage I screening. Delete if not applicable.
5 This paragraph is drafted with reference to DEVB's memo ref. ( ) in DEVB(W) 510/83/05 dated 26 March 2021. Please refer to the latest standard SCT 5 and amend as appropriate.
6 In case of tenders inviting from the List of Approved Suppliers of Materials and Specialist Contractors for Public Works, please amend to suit.
7 For term contracts only, delete if not applicable.

* delete / revise where inappropriate
[ ] data to be filled in
{ } selective

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APPENDIX 6.5 DRAFT PRESS RELEASE FOR GAZETTE NOTIFICATION

Draft Press Release

Tenders are about to be invited for (state the contract title).

2. (Brief description of the scope, location, purpose of the works, and the anticipated contract commencement and completion dates).

3. The works have been designed and construction will be supervised by (state relevant division, office, department or consultants) *for (state client department).

* Delete where inappropriate

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DRAFT PRESS RELEASE FOR GAZETTE NOTIFICATION
(CHINESE VERSION)

新 聞 公 報 草 稿

（部門名稱）將招標承投「_____工程」。

2. （簡短介紹有關公程的範圍、地點、目的和預計施工及完工日期）。

3. （有關部門辦事處名稱或顧問工程師名稱）負責設計及監督有關之建造工程。

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APPENDIX 6.6 GUIDANCE NOTES FOR PREPARATION OF DOCUMENTS FOR GAZETTE NOTIFICATION AND DRAFT PRESS RELEASE

These guidance notes are for the preparation of the following documents for invitation of tenders by gazette notice:

(1) Routing sheet, check-list and estimates summary.

(2) Memo requesting publication of gazette notification.

(3) Gazette notice (with contents page).

(4) Contract general layout drawing.

(5) Draft press release.

(1) Routing sheet, check-list and estimates summary

The preparation of these documents is self-explanatory. It is however crucial to observe the timing for the processing of the documents for gazette notification stated in the routing sheet.

(2) Memo requesting publication of gazette notice

The memo shown in Appendix 6.3 is divided into 3 parts:

Part 1

This part should be signed by the Chief Engineer or Regional Office Head and addressed to the Head of the Office through, if applicable, a designated officer (e.g. Technical Secretary) in the office headquarters. The paragraphs should be completed as follows:

Para. 1 – Enter the dates on which publication is required, which should normally be the dates for two consecutive issues of the gazette. Publication day is a Friday unless otherwise notified when that Friday is a public holiday.

Para. 2 – Fill in the details as appropriate, i.e. the project no, whether the works is in the PWP, whether the work was upgraded to Cat. A or included in Cat. D.

Para. 3 – Enter the contract sum and funding source as appropriate. If the contract includes work for more than one project, modify as:

"The estimated cost of this contract is $ ..... for which funds are available under Head ..... Sub-head ..... ($.....) and Head ..... Sub-head ..... ($.....)".

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If no subhead exists but arrangements have been made for funds to be provided in the following financial year, delete Para. 3 and replace with:

"The estimated cost of this contract is $ ..... for which funds will be provided in 20..../....".

The estimated cost of the contract should be at current prices. If the funds provided in the vote are inadequate to cover any increased estimated cost, then a footnote should be made stating that action will be taken to revise the project estimate after tenders are received and before the contract is awarded.

Para. 4 – State the authority for which approval to call for tender has been given. If tender invitation is to proceed before funding is secured as allowed under FC No. 3/2020, the particulars should be given here.

Para. 5 – If approval for tendering before confirmation of land clearance and resumption has been obtained, delete "and possession of the land has been arranged" and state the reference and date of such approval for tendering as appropriate.

Para. 6 – Enter general layout drawing no. and any other relevant information if necessary.

Para. 7 – The need of a press release will depend on the sensitivity of the project and the degree of public/media interest.

Part 2

This part should be signed by the Head of Office if documents for gazette notification are considered to be in order.

Part 3

This part should be signed by the Director of the Department if documents for gazette notification are considered to be in order. Distribution of copies of memo and enclosures to the relevant parties should be made by departmental headquarters.

(3) Gazette notice

The preparation of these documents is self-explanatory. Please refer to Appendix 6.4 and 6.4A for Specimen Gazette Notice for Prequalification of Tenderers and Specimen Gazette Tender Notices respectively.

(4) Contract general layout drawing (not required for WSD contracts)

The contract general layout drawing should show the extent of the works site, works area, borrow and dumping areas as appropriate, and should give an indication of the scope of the works. Where appropriate, cross sections of the

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works should be shown. The contract general layout drawing should be coloured. Street names and familiar names of places etc. should, whenever possible, be inserted on the plan, such references as Road R4 should be avoided.

(5) Draft press release

The draft press release should be prepared in both English and Chinese and be forwarded to CIO, SPO, DEVB or PIO, I&PR, TD (for HyD projects) through departmental HQ.

The object of the press release is to inform the public what is being done by Government. When drafting, the following should therefore be borne in mind:

(i) The press release should be written in such a way that it is interesting and meaningful to the layman. References such as Road P, Area 6 etc. should be avoided as far as possible. Location of the works should be described by referring to existing streets, major buildings, public facilities, villages or town centers, etc.

(ii) When the job merits it, they should be accompanied by a plan suitable for publication, (no colouring should be used and all lines and printing should be thick enough to be fully legible when the drawing is photo reduced in size).

(iii) for CEDD/HyD/DSD/WSD projects, the draft should describe, in layman terms, the purpose of the work and the benefits it will bring to the community. It should commence with the phrase "Tenders are about to be invited for" and finish with a sentence to the effect that "the works have been designed and construction will be supervised by (state relevant division, office, department or consultants) for (state client department, if applicable)".

(iv) For development projects of CEDD, the draft press release should be written so as to:

emphasize that Development Office of CEDD is building the new towns, and
describe in journalistic terms the content of the work and its contribution to the development of the town.

The draft press release should have an opening paragraph similar to:

"The Civil Engineering and Development Department (state also the Development Office concerned) is inviting tenders for another project as part of the continuing programme for the development of (state name of new town). It should be finished with a sentence similar to that for draft press release for CEDD/HyD/DSD/WSD projects.

(v) Copy the draft press release to CIO or PIO as appropriate with a remark as follows:

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> "Please return the finalised version of the press release, if amended, to CE/GE/GGE/PM ... for agreement before issuing to the Press."

Draft press releases regarding works in politically sensitive locations of the urban area should be agreed with the Director of Information Services (DIS). In all cases the assistance of DIS may be sought in preparing the press release.

Any public enquiry about the works to be tendered should be referred to a nominated officer in the office headquarters (normally the Technical Secretary of the office) for processing. CIO, SPO of DEVB or PIO, I&PR of TD (for HyD projects), will assist in arranging radio, television and press interviews where appropriate, after obtaining approval from the Head of Office.

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Annex to Appendix 6.6

CIRCULAR MEMORANDUM

From	Director of Government Logistics	*To*	Directors of Bureaux Heads of Departments
Ref.	(38) *in* PD/12/4	*(Attn :*	*)*
Tel. No.	2564 9502	*Your Ref.*	*in*
Fax. No	2516 5786	*dated*	
E-mail	cps@gld.gov.hk	*Your Fax*	
Date	12 Aug 2005	*Total Pages*	

Submission of Government Notices to be Published in the Gazette

The purpose of this circular memorandum is to request responsible officers in Bureaux/Departments (B/D) to submit to the Printing Division of this Department their copies (manuscripts) of the Government Notices to be published in the Gazette in the form of electronic file (soft copy) latest by **1 September 2005**. This is in line with the spirit of e-government and will reduce typesetting work to be undertaken by the Printing Division to enhance cost-effectiveness.

2. The soft copy should be sent to the Senior Proof Reader (Gazette) by e-mail: pd-gazette@gld.gov.hk together with a scanned image of the hard copy saved as PDF file attached to the same e-mail to facilitate proof reading by the Printing Division. This is necessary to safeguard against any possible discrepancy between the output of the softcopy by the Printing Division and that of the originating B/D such as missing fonts or distorted image. If a PDF file cannot be attached for any reason, the B/D should send to the Printing Division a hard copy of the Notice for the attention of Senior Proof Reader (Gazette) by fax at 2579 1156 for proof reading purpose.

3. The soft copy can be submitted in the form of MS Word, MS Excel or simply a text file. Please follow the guidelines on the format to be used at Annex. Senior Proof Reader (Gazette) will acknowledge receipt by e-mail once the file is received. Just in case the soft copy cannot be sent by e-mail for any reason, B/D may also submit the soft copy on a disk with a printed copy of the notice and deliver to the Printing Division.

4. Any enquiry regarding this circular memo should be referred to Mr D S Ng, Chief Proof Reader at telephone No. 2564 9532 or e-mail : cpr@gld.gov.hk.

(Miss Ivy Hong)
for Director of Government Logistics

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Annex

GUIDELINES ON THE FORMAT FOR GOVERNMENT NOTICES IN THE MAIN GAZETTE

English Version

1. In General

8/9 pt Times, maximum text area 176 mm height x 118 mm width
No indentation on first paragraph, indent one pica starting from second paragraph; 0.5 line for space between paragraphs.

2. Font

Appointment & Notices

Department name	-	Times Roman capital/small capital quad right
Main title	-	Times Bold capital centred
Sub-title	-	Times Roman capital/small capital centred
Text	-	Time Roman justify
Column	-	Times Roman quad left, Times Italic for running head
Signature	-	Times Italic quad left for date, Roman for Signature and Italic for post title

For the format on content, please refer to the Government Gazette at www.gld.gov.hk/egazette or the General Regulation 100-127 for reference.

中文版

1. 一般格式

8/11 pt 字身、最大正文版度 176 mm 高 x118 mm 闊
正文第一段齊左起排，第二段起縮入一字身位起排，每段之間開 0.5 行距

2. 字款

委任令及公告

部門名稱	-	細明體(宋體) 分中
主標題	-	粗體 分中
副標題	-	細明體 分中
內文	-	細明體 齊左右
欄	-	細明體 齊左 欄目用斜體
下款	-	細明體 日期齊左 發文人姓名及職銜齊右

招標

部門名稱	-	粗體 分中
主標題	-	粗體 分中
內文	-	細明體 齊左右
欄	-	細明體 齊左 欄目用斜體
下款	-	細明體 日期齊左 發文人姓名及職銜齊右

內文格式可參考憲報或瀏覽憲報網址 www.gld.gov.hk/egazette 及總務規則第 100 至 127 條。

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APPENDIX 6.7 SINGLE AND RESTRICTED TENDERING – LETTER OF INVITATION TO TENDER

RESTRICTED (TENDER)

(Contractor) .....

(Address) .....

Dear Sirs,

Contract No. : …….....

Title : .....…….....

*You are hereby invited to submit a sealed tender in *duplicate/triplicate for the above contract. The works include _____ and are scheduled to commence in (month, year) and *will take about (no. of months) months to complete / for completion in (month, year) .

*The tender documents will be available for collection on (date) from (office, address, *responsible officer) (Telephone No. : _____, Fax No. : _____).

*The tender documents are enclosed herewith and consist of the following:

(a) One copy of booklet containing:

- (i) Conditions of Tender comprising the General Conditions of Tender and the Special Conditions of Tender,
- (ii) Form of Tender,
- *(iii) Conditions of Contract comprising General Conditions of Contract and the Special Conditions of Contract,
- *(iv) Articles of Agreement,
- *(v) Particular Specification,
- *(vi) Plant and Labour Schedule/*Equipment Schedule,
- *(vii) Particular Preambles and Bills of Quantities,
- *(viii) Schedule of Proportions to be used in calculating the Price Fluctuation Factor,

(b) One duplicate copy of the Form of Tender,

*(c) One set of drawings as listed in Particular Specification Clause ……,

*(d) General Specification for Civil Engineering Works (…. Edition),

*(e) Standard Method of Measurement for Civil Engineering Works (…. Edition),

Your tender shall be completed in accordance with the Conditions of Tender and returned in the pre-addressed envelope, clearly marked with the tender reference and the subject of the tender on the outside of the envelope, and *placed in the (name of tender box) situated at (location of tender box) / *returned by post to the Chairman of the (name of tender board) at (address of tender board) before 12:00 noon on Friday, (Date) . Tenders must be deposited in the tender box as specified in this tender notice ("Specified Tender Box") before the tender closing time. Late tenders and tenders not deposited in the Specified Tender Box not be accepted.

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*If tropical cycline signal No. 8 or above is hoisted, or a black rainstorm warning signal or "extreme conditions after super typhoons" announced by the Government is/are in force at any time between 9:00 a.m. and 12:00 noon on Friday, _____(date)_____ , the tender closing time will be postponed to 12:00 noon on the first working day after the tropical cyclone signal No. 8 is lowered, or the black rainstorm warning signal or the "extreme conditions after super typhoons" announced by the Government has/have ceased to be in force. In case of blockage of the public access to the location of the Specified Tender Box at any time between 9:00 a.m. and 12:00 noon on Friday, [tender closing date], the Government will announce extension of the tender closing time until further notice. Following removal of the blockage, the Government will announce the extended tender closing time as soon as practicable. The above announcements will be made via press releases on the website of Information Services Department (https://www.info.gov.hk/gia/general/today.htm).

*If there is any other reason which in the Government's view shall affect the close of tender, the Government will notify tenderers of the extension in tender closing date and time via the e-TS(WC) and/or emails.

*This tender is covered by the Agreement on Government Procurement of the World Trade Organisation and will not involve electronic auction.

*A charge will be levied for delivery of tender documents where the delivery of tender documents is requested by a tenderer. A written request must be made.

The Government of the Hong Kong Special Administrative Region does not bind itself to accept any tender irrespective of whether the tender is the lowest bid or where the assessment of tenders is based on a marking scheme or formula approach, the tender has the highest overall score.

The Government of the Hong Kong Special Administrative Region reserves the right to negotiate with any tenderer about the terms of the offer.

*Contractors will be liable to have their names removed from the approved list(s) if they fail or refuse to implement an accepted tender.

*You are invited to attend a pre-tender meeting at __(venue, date and time)____.

Please acknowledge receipt of this letter.

Yours faithfully,

.....
(Designation of officer who would sign
the contract on behalf of Government)

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c.c. without encl.
Secretary of the relevant tender board
Director of Audit
CIO, SPO, DEVB or PIO, I&PR, TD (for HyD projects)
Office HQ
Departmental HQ
*Consulting Engineer

* delete where inappropriate

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APPENDIX 6.8 SAMPLE LETTER FOR TENDER ADDENDUM

Dear Sirs,

(Contract Title)

I enclose Tender Addendum No. …..... in respect of the above contract. I also enclose an additional copy of this letter with a certification added. You are required to sign this certification and attach it together with the addendum to your tender.

#You are required to acknowledge receipt of this letter by clicking the acknowledgement check box in e-Tendering System (Works Contracts) ("e-TS(WC)") within two days of receipt of this letter. Amd No. 1/2026

@ Amd No. 1/2026 **In addition I enclose an acknowledgement letter which you are required to sign and return within two days of receipt of this letter.**

Yours faithfully,

.....
(Designation of the Engineer
designate for the Contract)

CERTIFICATION

I certify that Tender Addendum No. ..…... forwarded with this letter has been taken into account in my tender.

Authorized Signature of Tenderer .....
(with Company chop)

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Name of Tenderer .....….....

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@ Amd No. 1/2026 ACKNOWLEDGEMENT

(To be signed and returned within two days of receipt of the Tender Addendum)

Date …….

To: (Designation of the Engineer designate for the contract
or Consultant's Project Officer as appropriate)

Dear Sir,

(Contract Title)

Tender Addendum No.

We hereby acknowledge receipt of Tender Addendum No. ……..... for the above contract.

Yours faithfully,

…….……
(Authorized Signature with Company chop)

Name of Company …….……..

 # Applicable to tendering adopting e-TS(WC)
@ Applicable to tendering not adopting e-TS(WC) Amd No. 1/2026

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(Contract Title)

TENDER ADDENDUM NO.
(Sample)

BILLS OF QUANTITIES

Replace Page 2/1 with the enclosed page marked 'TENDER ADDENDUM No. _____'.

The item for demolition of groups of buildings and structures in Area C is deleted.

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APPENDIX 6.9 THE ENGINEER FOR CONTRACTS

For CEDD, DSD and WSD contracts

(1)	Contracts administered by Divisions/Regional Offices/Branches	:	Chief Engineers/ Chief Geotechnical Engineers
(2)	Contracts administered by consultants	:	Consulting Engineers
(3)	WSD Term Contracts for civil works	:	Assistant Directors

For HyD contracts

(1)	Contracts administered by consultants	:	Consulting Engineers
(2)	Contracts administered in-house		
	Contracts of value not exceeding $50M	:	Senior professionals
	Contracts of value $50M to $500M	:	D1
	Contracts of value exceeding $500M	:	D2

Where there is no appropriate rank officer, the 'Engineer' shall normally be an officer at one rank higher but the responsible Head of Office may exercise his discretion to appoint a lower rank officer if good justifications exist. The minimum rank for appointment as the 'Engineer' shall be senior professionals.

Notwithstanding the above general guidelines, contracts of special complexity or sensitivity may demand a higher rank officer to act as the 'Engineer'.

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APPENDIX 6.10 SAMPLE LETTER NOTIFYING TENDERERS FOR EXTENSION OF TENDER PERIOD

RESTRICTED (TENDER)

Date ……

To All Tenderers

Dear Sirs,

(Contract Title)

In connection with (state the reason for extension of tender period) , it is decided that the tender period for the above Contract will be extended by (no. of weeks). The closing date for receipt of tenders shall be 12.00 noon on Friday, (date).

#You are required to acknowledge receipt of this letter by clicking the acknowledgement check box in e-Tendering System (Works Contracts) ("e-TS(WC)") within two days of receipt of this letter. Amd No. 1/2026

@ Amd No. 1/2026 **I also enclose an acknowledgement letter which you are required to sign and return within two days of receipt of this letter.**

Yours faithfully,

.....
(Designation of the Engineer designate for the Contract)

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@ Amd No. 1/2026 ACKNOWLEDGEMENT

(To be signed and returned within two days of receipt
of the notification letter for extension of tender period)

Date.....

To: (Designation of the Engineer designate for the Contract or Consultant's Project Officer as appropriate)

Dear Sir,

(Contract Title)

Extension of Tender Period

We hereby acknowledge receipt of notification letter dated (date) for extension of tender period for the above contract.

Yours faithfully,

……
(Authorized Signature with Company chop)

Name of Company .....

 # Applicable to tendering adopting e-TS(WC)
@ Applicable to tendering not adopting e-TS(WC) Amd No. 1/2026

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APPENDIX 6.11 MEMO TO TEDNER BOARD FOR EXTENSION OF TENDER PERIOD

RESTRICTED (TENDER)

MEMO

From	*To* Chairman of Tender Board .....
Ref. ..... *in*	*(Attn.:* ..... *)*
Tel. No.	*Your* ..... *in* .....
Fax. No.	*dated* ..... *Fax. No.* .....
Date.	*Total Pages* .....

Contract No. _____

(Title)

Extension of Tender Period

Please be advised that the closing date for receipt of tenders for the above Contract will be extended from (date) to (date) due to (state the reason for extension of tender period).

2. The tenderers have been / will be* informed accordingly.

.....
(Designation of the Engineer designate for the Contract)

Note:
* Delete where inapplicable

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APPENDIX 6.12 MEMO REQUESTING PUBLICATION OF GAZETTE NOTICE FOR EXTENSION OF TENDER PERIOD

MEMO

From	*To* (Head of Office) *(thro'……..)
Ref. *in*	*(Attn.:* *)*
Tel. No.	*Your* *in*
Fax. No.	*dated* *Fax. No.*
Date.	*Total Pages*

Contract No._____
(Title)

Extension of Tender Period

I forward herewith notification for insertion in the Government of the Hong Kong Special Administrative Region Gazette on ..... for an extension of time for return of tenders for the above contract from ..... to .....

2. The extension is considered necessary because (give justification for extension of tender period).

3. The tenderers have been / will be* informed accordingly.

.....
(Designation of Chief Engineer/Regional Office Head)

* Delete where inapplicable

To: *Director of Civil Engineering and Development
*Director of Highways
*Director of Drainage Services
*Director of Water Supplies

In order, Gazette notification submitted for signature please.

.....
(Designation of Head of Office)

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To: Assistant Clerk to the Executive Council
thro' Official Languages Division (Attn: COLO/Unit 3) [- Email: csbolgazette@csb.gov.hk]*@

Please find attached the draft notification [in triplicate]*@ for publication in the Gazette on the required dates given at paragraph 1 above.

.....
*Director of Civil Engineering and Development
*Director of Highways
*Director of Drainage Services
*Director of Water Supplies

c.c. With gazette notification

Director of Government Logistics (Attn.: Chief Proof Reader)
- by email: pd-gazette@gld.gov.hk
- w/ soft copy of draft notification in the form of *MS Word/ *MS Excel/ *text file AND scanned image of draft notification in PDF format

Secretary, *(the relevant Tender Board)*
*DLO/.....
Division/Regional Office
*Consulting Engineer .....
CIO, SPO, DEVB or PIO, I&PR, TD (for HyD projects)
Departmental headquarters
Office headquarters

* Delete where inapplicable
@ As an initiative to reduce paper consumption, one copy of the draft notification shall be sent by email only to the specified email address with soft copy of draft notification in the form of MS Word AND scanned image of draft notification in PDF format, as far as practicable. Should the draft notification consist of more than 20 pages, the draft notification shall be sent in triplicate by normal dispatch.

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APPENDIX 6.13 GAZETTE NOTICE FOR EXTENSION OF TENDER PERIOD

G.N. *CIVIL ENGINEERING AND DEVELOPMENT DEPARTMENT
*HIGHWAYS DEPARTMENT
*DRAINAGE SERVICES DEPARTMENT
*WATER SUPPLIES DEPARTMENT

With reference to the Government of the Hong Kong Special Administrative Region Notice No. ____ of ____(date)__ and __(date)____ inviting tenders for the__(title of Contract and/or brief description of Works and the PWP Item Number in brackets if appropriate)____, it is hereby notified that the closing date for receipt of tenders shall be extended to 12:00 noon on Friday, ____(date)____.

If tropical cyclone signal No. 8 or above is hoisted, or a black rainstorm warning signal or "extreme conditions after super typhoons" announced by the Government is/are in force at any time between 9:00 a.m. and 12:00 noon on Friday, ____(date)___, the tender closing time will be postponed to 12:00 noon on the first working day after the tropical cyclone signal No. 8 is lowered, or the black rainstorm warning signal or the "extreme conditions after super typhoons" announced by the Government has/have ceased to be in force. In case of blockage of the public access to the location of the Specified Tender Box at any time between 9:00 a.m. and 12:00 noon on Friday, [tender closing date], the Government will announce extension of the tender closing time until further notice. Following removal of the blockage, the Government will announce the extended tender closing time as soon as practicable. The above announcements will be made via press releases on the website of Information Services Department (https://www.info.gov.hk/gia/general/today.htm).

……
**Director of Civil Engineering and Development*
**Director of Highways*
**Director of Drainage Services*
**Director of Water Supplies*

* Delete where inapplicable

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GAZETTE NOTICE FOR EXTENSION OF TENDER PERIOD (CHINESE VERSION)

第????號公告

*土木工程拓展署
*路政署
*渠務署
*水務署

有關招標承投_____一事，已在????年??月??日及????年??月??日的香港特別行政區政府公告第????號內公布。現特通知，該項招標的截標日期將延至????年??月??日星期?中午12時。

若????年??月??日星期?上午9時至中午12時期間，八號或以上熱帶氣旋警告信號懸掛，或黑色暴雨警告信號或政府公布的「超強颱風後的極端情況」生效，截標時間會延至八號熱帶氣旋警告信號除下或當時生效的黑色暴雨警告信號或政府公布的「超強颱風後的極端情況」取消後首個工作天中午12時。如在[述明截標日期]星期五上午9時至中午12時期間的任何時間內，前往指定投標箱所在地點的公眾通道受阻，政府會宣布延遲截標時間，直至另行通告。待通道受阻情況獲消除後，政府會盡快公布所延遲的截標時間。以上公布事項會在政府新聞處網頁(https://www.info.gov.hk/gia/general/ctoday.htm) 以新聞公報形式宣布。

……
*土木工程拓展署署長
*路政署署長
*渠務署署長
*水務署署長

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APPENDIX 6.14 LETTER FOR EXTENSION OF TENDER VALIDITY PERIOD

RESTRICTED (TENDER)

(Contractor) .....

(Address) .....

Dear Sirs,

Contract No. : …….....

Title : .....…….....

I should be grateful if you would confirm that you agree to abide by your tender for the above contract for an extended period of …..…. days in addition to the …..... days period stipulated in Clause …….. of the Form of Tender, by signing and returning the enclosed letter.

Please note that this letter should not be construed as either an acceptance or a rejection of your tender. Further, this letter should not be construed as indicating that your tender is conforming or non-conforming, or valid or invalid. All tenders are still under consideration and the Government of the Hong Kong Special Administrative Region does not bind itself to accept any tender irrespective of whether the tender is the lowest bid or where the assessment of tenders is based on a marking scheme or formula approach, the tender has the highest overall score.

Thank you for your co-operation.

Yours faithfully,

.....
(Designation of the Engineer
designate for the Contract)

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AGREEMENT TO EXTENSION OF TENDER VALIDITY PERIOD

Date …….

To: (Designation of the Engineer designate for the contract or Consultant's Project Officer as appropriate)

Dear Sir,

Contract No. : …….....

Title : .....…….....

I confirm that I agree to extend the validity period of my tender for the above contract from ..... days to ..... days. The tender validity period will therefore expire on (date) . I agree to abide by my tender until that date.

Yours faithfully,

…….……
(Authorized Signature with Company chop)

Name of Company …….……..

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APPENDIX 6.15 MEMO TO DEVB FOR FINANCIAL CAPABILITY CHECKING

RESTRICTED (TENDER)

MEMO

From	*To* Ch TA, Finance Section, DEVB
Ref. *in*	*(Attn.:* *)*
Tel. No.	*Your* *in*
Fax. No.	*dated* *Fax. No.*
Date.	*Total Pages*

Contract No._____
(Title)

Financial Capability Enquiry

Tenders for the above contract have been received and the three tenders with the highest combined price-technical score are as follows:

Name of Contractor	Tender Price (*corrected/uncorrected)	Technical Score	Overall Score (price to technical weighing : 60/40 or 50/50)

2. The anticipated commencement date is …… and the anticipated completion date is ……. The contract period is ……. months.

3. Please advise the financial capabilities of these contractors to carry out the above work.

4. *Copies of the schedules of work in hand as submitted by Group C Contractors are attached.

*My records show that ……. holds only a probationary status in Group…. Please advise if the permitted workload will be exceeded should this tender be accepted.

……..…….
(Designation of Chief Engineer/Regional Office Head)
or (Signed by a directorate officer for Head Office or Head of Department)
or (for HyD : Signed by an officer for Head of Office or Head of Department)

* Delete or modify as appropriate

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APPENDIX 6.16 COVERING MEMO FOR ENDORSEMENT OF TENDER REPORT

RESTRICTED (TENDER)

MEMO

From	*To* Chairman of Tender Board (thro' Head of Office)
Ref. *in*	*(Attn.:* *)*
Tel. No.	*Your* *in*
Fax. No.	*dated* *Fax. No.*
Date.	*Total Pages*

Contract No._____
(Title)

Tender Report

*Memo ……. from the Secretary of *Central Tender Board / Public Works Tender Board refers.

2. I submit herewith #4/6 copies of the tender report from (the Engineer designate for the contract) for the above contract.

3. *I support the (Engineer designate's) recommendation in para. …… of the attached tender report.

*I support the tender report in its entirety. [It is necessary only when the tender report is prepared by a non-directorate officer or consultants]

*I do not support the recommendation in para ..... of the report. I recommend that *none of the tenders be nominated / the ……. tender submitted by ..... in the sum of $..... be nominated. The reasons for my recommendation are [Detail reasons as well as the suitability of the recommended tender, the tender recommended by the Engineer designate and other relevant tenders shall be given so that tender boards may be able to decide without referring the tender report back to departments]:

4. I confirm that all officers involved in preparing tender documentation including tender specifications and assessing tenders have declared that there is no actual, potential or perceived conflict of interest for them to take part in the process in accordance with Stores and Procurement Regulation 186.

5. The (No.) tenders are returned herewith.

.....
(Designation of an Officer of D2 Rank or above)
or Director of .....

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6. *Please contact ……. for details of this tender report.
[- Applicable if addressed to PWTB.]

* Delete where inapplicable

4 copies of the tender reports (including the original) are required by Public Works Tender Board whereas 6 copies of the tender reports (including the original) are required by Central Tender Board.

Copy to (with copy of tender report)

SEO(PS), DEVB		(only for tender reports submitting to the Central Tender Board) – Urgent by Hand
Departmental HQ Initiator of Report	))	(all contracts)
CEDD HQ DSD HQ HyD HQ	)))	(if the tender with highest price-quality score is not recommended) – without enclosures to the tender report
Consultant		(for project managed by consultant)
Vote Controller		(if project is carried out on agency basis for another department)
Secretary, PWSC		(if approved estimate is exceeded)

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APPENDIX 6.17 SAMPLE LETTER OF ACCEPTANCE TO SUCCESSFUL TENDERER

(Contractor) .....

(Address) .....

Dear Sirs,

Contract No. : …….....

Title : .....…….....

In accordance with the decision made by the *Central Tender Board / Public Tender Board / Director of …….., I hereby notify you that your *(corrected) tender [+], as adjusted in accordance with the notification in writing dated _____ issued by the Government in accordance with sub-clause (1) of the Special Conditions of Tender Clause XX on reduction of Contingency Sum] which totals (words and figures) is accepted.

(If the tender contains alternatives or post-tender correspondence that has modified the tender, then set out what is being accepted. Where the alternatives can only be accurately referred to by reference to sums of money, then these sums should be referred to as being adjustments to the sum given in the Form of Tender.)

* The following correspondence forms part of this Contract:

(List relevant correspondence giving dates and reference numbers together with any enclosures to that correspondence. Pre-tender correspondence is invariably confirmed by a letter or note of acknowledgement but must nevertheless be included. Post-tender correspondence which is to form part of the contract must be agreed to between the two parties in advance of this letter.)

* You should now proceed to effect the following insurance policy(ies):

(i) Third Party Insurance in accordance with Clause …….. of the Special Condition of Contract and Clause …..... of the Particular Specification.

(ii) (Any other special insurance required under the Contract).

The policy(ies) is/are to be submitted to me three working days prior to the date set for executing the Articles of Agreement.

* You should now pay the attached Demand Note No. ..... for $..... being the security deposit called for by the General Conditions of Contract.

* You are to inform me by return of the name of the Bondsman who has agreed to act as your guarantor in respect of this Contract. For the purpose of providing the bond two

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copies of the Government of the Hong Kong Special Administrative Region form of bond are enclosed. The bond must be duly executed as a deed and must be submitted to me three working days prior to the date set for executing the Articles of Agreement.

You or your authorized representative are required to attend a meeting held (place, date, time) for the purpose of executing the Articles of Agreement, bringing with you *(the receipt for security deposit together with) the necessary documents in accordance with the DEVB TCW No. 7/2014.

The Engineer for this Contract will be (title only), (address) who will write to you separately regarding the delegation of authority to the Engineer's Representative. As stipulated in the attached letter from the Engineer ref. (letter reference) of (date), the date for commencement of the Works shall be on (date).[1]

You are to submit to the Engineer the programme as required by Clause 16 of the General Conditions of Contract and *the Safety Plan in accordance with Special Condition of Contract Clause ……..

With reference to Clause 3 of the General Conditions of Contract, in-principle consent is hereby granted for the assignment of the Contract to a licensed bank in Hong Kong subject to formal execution of the deed of assignment in the standard form as shown in Appendix 7.48 of the Project Administration Handbook for Civil Engineering Works (2018 Edition). If the aforesaid standard form of the deed is not used in its entirety, separate approval of the form should be sought from the Employer. Please draw the attention of the prospective assignee that this consent is given on the basis that no reliance has been placed on any information from the Employer nor have any representations or warranties been given by the Employer on the Contractor's financial status. For the avoidance of doubt, you are not required to submit a separate application to the Employer unless otherwise requested by the Employer. Notwithstanding the aforesaid, the Employer reserves all rights and powers including but not limited to the powers to revise or revoke the in-principle consent, require submissions of further justifications and information, and/or refuse any amendment to the standard form of the deed.

If your Partnership Agreement or Articles of Association in any way differs, with respect to execution of Articles of Agreement, from the information you last supplied to the Development Bureau you must correct this information at least seven days before the date given for executing the Articles of Agreement.

Yours faithfully,

[1] This paragraph should normally be used. If the date for commencement of the Works cannot be determined at the time of contract award, the following paragraph should be used instead :

"The Engineer for this Contract will be (title only), (address) who will write to you separately regarding the delegation of authority to the Engineer's Representative and the date for commencement of the Works.".

The wording of the sample letter of acceptance is based on General Conditions of Contract for Civil Engineering Works (1999 Edition) and should be adjusted if other form of contract (e.g. NEC) is adopted.

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……...
(Designation of officer who would sign
the contract on behalf of Government)

c.c. without enclosure

Secretary, Central Tender Board / Public Works Tender Board
Director of the Managing Department for the relevant category
Director of Audit
Ch TA, DEVB or TLB
Commissioner for Labour
Director of Immigration
Departmental Headquarters/Office Headquarters
Senior Engineer/Contract Adviser
The Engineer

* Delete where inappropriate

\+ The words in square brackets should be added where the Special Conditions of Tender have included a clause on reduction of Contingency Sum and notification in writing referred to in sub-clause (1) of the Special Conditions of Tender Clause XX on reduction of Contingency Sum has been issued by the Employer/Engineer designate.

\# This paragraph should normally be included in the Letter of Acceptance to be issued. Under exceptional circumstances and in order to safeguard Government's interests, relevant Head of Department may exercise his discretion to delete this paragraph. Please also see Section 21.3 of PAH Chapter 7 and SDEV's memos ref. (0348H-01), (03969) and ( ) in DEVB(W) 510/33/02 dated 3.1.2020, 12.5.2021 and 10.3.2022 respectively.

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APPENDIX 6.18 SAMPLE LETTER TO UNSUCCESSFUL TENDERERS (Ref.: ETWB TCW No. 42/2002)

(Contractor) .....

(Address) .....

Dear Sirs,

Contract No. : …….....

Title : .....…….....

Further to my letter of ……., I regret to advise that your tender has not been accepted, and the contract has been awarded to …… .

For the purpose of administration of the List of Approved Contractors for Public Works*/List of Approved Suppliers of Materials and Specialist Contractors for Public Works*, your tender is regarded as **

- ** a competitive tender
- ** a non-competitive tender as it is more than 25% above the average of tenders received for the contract
- ** an invalid tender because (describe briefly the reasons why it is considered invalid)

@ In accordance with Paragraph 7.4.1 of Chapter 6 of the Project Administration Handbook for Civil Engineering Works (PAH), we provide the following information for your reference:

Description	Highest Value/Score	Your Score
Awarded contract sum#	$	-
Technical score of the successful tender*		
Highest score attained for each quality attribute in tenders submitted in this exercise* (a) Contractor's experience (b) Contractor's past performance (technical) (c) Contractor's past performance (general obligation) (d) Contractor's resources (e) Contractor's technical ability (f) (add in any other items in the marking scheme)		

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@ In accordance with Paragraph 7.4.1, 7.4.2 and Appendix 6.28 of Chapter 6 of the PAH, we will, at your request, conduct a debriefing in an informal manner with you or your representatives (no more than 3 persons). If you wish to have a debriefing, please lodge your request in writing within 3 weeks from the date of this letter. You are also required to state expressly in your request your agreement to abide by the conditions and ground rules stipulated in this letter. Your request will not be entertained if you fail to do so or refuse to abide by the conditions and ground rules. With a view to enabling us to better prepare for the debriefing session, you are requested to provide a list of specific items related to this tender exercise which you would like our feedback.

@ The debriefing session shall not be used as an opportunity to lodge appeal/complaint against the award of the works contract. You should also note that our decision on the award of the contract is final and the debriefing cannot be used to change the choice of contractor nor to re-open the selection procedure. The main purpose of a debriefing session is for us to provide feedback to you on any shortcomings of your tender so as to enable you to improve your competitive performance in future tender exercises. Please also note the following ground rules for the debriefing, if held:

- **(a) the debriefing will be informal;**
- **(b) you will be told of the perceived strengths and weaknesses of your tender and your responses will be noted;**
- **(c) the merits of other bids, including the winning bid, will not be discussed;**
- **(d) the debriefing is not to be taken as a means or an opportunity for you to lodge appeal or complaint against the bidding result;**
- **(e) tape recording during the debriefing will not be allowed;**
- **(f) request for records of the debriefing or agreement on any notes prepared by either party will not be entertained; and**
- **(g) you shall not use the information obtained during the debriefing for any judicial or administrative proceedings.**

Last but not least, your effort in submitting the tender for this Contract is very much appreciated.

Yours faithfully,

…….
(Designation of the Engineer for the Contract)

 # For tender evaluated using the formula approach (DEVB TCW Nos. 4/2014, 4/2014A and SDEV's memo ref. () in DEVB(W) 546/84/01 dated 10.11.2023 refer), it is only required to give the awarded contract sum; the performance rating of the winning tenderer is NOT required to be made known.

*** Delete where appropriate**

**** Include whichever is relevant; if the tender is invalid, it is not necessary to state whether it is competitive or non-competitive.**

@ In case of an invalid tender, the 3rd, 4th and 5th paragraphs should be deleted. The 4th and 5th paragraphs shall be deleted if a debriefing is not to be conducted. In case of a consultants-managed contract, the 4th and 5th paragraphs shall be included in a separate letter to be sent by the procuring department.

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APPENDIX 6.19 SAMPLE MEMO FOR THE REPORTING OF TENDERING PERFORMANCE

RESTRICTED (TENDER)

MEMO

From	*To* Secretary for the MRC concerned# .....
Ref. ..... *in*	*(Attn.:* ..... *)*
Tel. No.	*Your* ..... *in* .....
Fax. No.	*dated* ..... *Fax. No.* .....
Date.	*Total Pages* .....

Contract No._____
_____(Title)___

Reporting of Tendering Performance

Tenders have been called for the above contract. Details are given below for your record:

(a) Predominant category of works – (insert the category of works concerned)

(b) Tenders were invited by *gazette notification / invitation on Internet to contractors on the List of Approved Contractors for Public Works in Group _____ for the category Amd No. 1/2026 of (insert the category of works concerned) .

(c) Tender invitation date : _____
Tender closing date : _____

(d) The (total no. of tenders) tenders received are listed below in descending order of their combined price and *technical/performance score based on a 60/40 or 50/50 weightings:

Tenderer	Group status	Overall score	Corrected tender price	Technical score

(e) *None of tenders was withdrawn / _____ tenders was/were withdrawn.

*(f) The tender submitted by _____ is non-conforming because _____.

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*(g) The tender submitted by _____ is non-competitive as its tendered price is more than 25% above the average of all the tenders received.

*(h) Following the decision of the *Central Tender Board / Public Works Tender Board at its meeting on __(date)__ / Director of _____ in the _____ Tender Committee at its meeting on __(date)__ , the contract was awarded to _____ with the *highest combined price and *technical/performance score / second highest combined price and *technical/performance score.

*(i) The tender exercise is cancelled under the circumstances as stipulated under SPR 380. (The reporting department shall still be required under Para. 7.7 of Chapter 6 of the PAH for uploading the tendering performance under item (i) below even if the tender exercise is cancelled.)

(j) The relevant tendering performance *has been/will be uploaded onto the Contractor Management Information System (CMIS).

……
(Designation of Chief Engineer/Regional Office Head)

#	CEDD	- all contracts where contractors belonging to Port Works category Amd No. 1/2026 are invited to tender - all contracts where contractors belonging to Site Formation category Amd No. 1/2026 are invited to tender
	HyD	- all contracts where contractors belonging to Roads & Drainage category Amd No. 1/2026 are invited to tender
	WSD	- all contracts where contractors belonging to Water Works category Amd No. 1/2026 are invited to tender
	ArchSD	- all contracts where contractors belonging to Buildings category Amd No. 1/2026 are invited to tender

* Delete where inapplicable

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APPENDIX 6.20 DETAILS OF INSURANCE POLICIES

Type of Policy: *General/Specific

Insurance Policy No.: .....
issued by : .....
covering period from ..... to .....

for Contract No.: ……

Brief particulars & special conditions:
.....
.....
.....
.....
.....

Examined by .....
(Designation of the Engineer for the Contract)

* Delete where inapplicable

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APPENDIX 6.21 LETTER OF ACKNOWLEDGEMENT OF RECEIPT OF CONTRACTOR'S DOCUMENTS

(Contractor) .....

(Address) .....

Dear Sirs,

Contract No. : …….....

Title : .....…….....

This is to acknowledge receipt of the following documents which you passed to me on ….....…….

*(a) *Original/certified true copies of the insurance policy(ies) required under the Contract including Policy(ies) No. ……..; and

*(b) *Original/certified true copies of the surety bond in the sum of $……..

Yours faithfully,

……..……..……
(Designation of the Engineer for the Contract)

* Delete where inapplicable

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APPENDIX 6.22 SAMPLE MEMO TO DEPARTMENTAL HQ FOR SUBMISSION OF CONTRACT DOCUMENTS

BY HAND

MEMO

From	*To* .....
Ref. ..... *in*	*(Attn.* ....., ...
Tel. No.	*Your* ..... *in* .....
Fax. No.	*dated* ..... *Fax. No.* .....
Date.	*Total Pages* .....

Contract No._____
(Title)

Submission of Contract Documents

I enclose herewith for your safe custody the original signed contract documents including drawings for the above Contract.

2. Also enclosed for your distribution and retention are:

(i) three certified true copies of the contract documents without drawings (i.e. one hardcopy and two softcopies of the certified true copies of contract documents);

*(ii) *original/certified true copies of the insurance policies and premium receipts; and

*(iii) *original/certified true copies of the surety bond.

.....
(Designation of Chief Engineer/Regional Office Head)

* delete where inapplicable

Note: This sample memo is not used for HyD and DSD. See Section 10.

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APPENDIX 6.23 SAMPLE LETTER TO SUCCESSFUL NOMINATED SUB-CONTRACTOR

(Nominated Sub-contractor) .....

(Address) .....

Dear Sirs,

Contract No. : …….....

Title : .....…….....

Nominated Sub-contract for ……

You have been nominated by the Government of the Hong Kong Special Administrative Region for the execution of the above work and your tender dated ..... (of the amount $....….....) will be forwarded shortly to the Main Contractor, Messrs .....….....….....

On acceptance of your tender by the Main Contractor, you will be a Nominated Sub-contractor within the terms of the Main Contract and will be required to enter into a formal Sub-contract with the Main Contractor who will make the necessary arrangements with you in consultation with the Engineer for the Main Contract, (Designation and Address).

Payments for the work will be included in the certificates issued under the Main Contract and will be made to you in accordance with the terms of the Main Contract.

Yours faithfully,

……..…….……
(Designation of Government Officer authorized
to sign Main Contract on behalf of Government)

c.c. The Engineer for the Main Contract

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APPENDIX 6.24 SAMPLE LETTER TO MAIN CONTRACTOR ON ACCEPTANCE OF NOMINATED SUB-CONTRACTOR

(Main contractor) .....

(Address) .....

Dear Sirs,

Contract No. : …….....

Title : .....…….....

Nominated Sub-contract for ……

I enclose herewith a copy of letter ref. ..... dated ..... addressed to Messrs ..... who have been nominated by the Government of the Hong Kong Special Administrative Region under the terms of the Main Contract.

Sub-contract documents for the above work containing tender of Messrs ..... dated ..... are also enclosed herewith.

You are hereby instructed to enter into a sub-contract with Messrs ..... before *(date) using the forms of Sub-contract provided by the Government of the Hong Kong Special Administrative Region.

A certified true copy of the executed Sub-contract should be forwarded to me and to the Government of the Hong Kong Special Administrative Region for retention.

Yours faithfully,

……..…….……
(The Engineer for the Main Contract)

c.c. Designation of Government Officer authorized to sign the Main Contract

* Insert the date of expiry of the tender validity period for the Nominated Sub-contractor's tender

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APPENDIX 6.25 SAMPLE MEMO TO TENDER BOARDS FOR DETAILS OF THE CONTRACT AWARDED

MEMO

From	*To* Secretary of Relevant Tender Board .....
Ref. ..... *in*	*(Attn.* ..... *,* .....
Tel. No.	*Your* ..... *in* .....
Fax. No.	*dated* ..... *Fax. No.* .....
Date.	*Total Pages* .....

Contract No._____
_____(Title)___

Notice of Award of Contract

I refer to your memo ref. _____ dated _____. I confirm that the contract has been awarded by this Department on _____with the details at Annexes A and B.

……...
(Designation of Chief Engineer/Regional Office Head)

* Delete where inapplicable

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Annex A

Tender Reference	Tendering Procedure [1]	Particulars [2]	Contractor(s) & Address(es) [3]	Item/Quantity [4]	Amount [5]

Notes:

1. *Open, selective, prequalified, limited as appropriate.*
2. *Tender subject.*
3. *Name(s) and address(es) of the successful tenderer(s).*
4. *Quantity of products or services covered by the contract.*
5. *The value of the contract awarded to the successful tenderer. In case of a term contract, the estimated contract value should be stated.*

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Annex B

招標編號	*招標種類*[1]	*項目*[2]	*承包商/承造商名稱及地址*[3]	*數量*[4]	*價值($)*[5]

備註 ：

1 從列選其合適者 - 公開*(open)*，選擇性*(selective)*，資格預審*(prequalified)*，局限性*(Limited)*。
2 招標項目名稱。
3 中標者的名稱及地址(如中標者沒有中文名稱或地址，此欄用英文填寫亦可)。
4 貨品的數量或提供服務的年期。
5 已批准訂立的合約的價值，如為定期合約則只須列出預計的合約價值。

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APPENDIX 6.26 (NOT USED)

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APPENDIX 6.27 CORRECTION RULES FOR TENDER ERRORS (Ref.: ETWB TCW No. 41/2002)

Section 1 - General

1.1 For errors which have been specifically addressed in the general or special conditions of tender, the errors shall be dealt with strictly in accordance with the relevant conditions of tender. The following rules shall only apply where the errors have not been specifically addressed in the conditions of tender.

1.2 Subject to paragraph 1.1 above, where a correction rule provided in Section 2 below is applicable, the errors shall be corrected in accordance with that rule.

1.3 In the event no written correction rule is applicable,

(i) where ambiguity as to the tenderer's true intention exists, it shall be construed by the tender examiner by reference to the best practice or his best judgement; and

(ii) where errors relate to factual information and there is no room for manipulation by a tenderer by virtue of subsequent correction; or where the correction of such errors would not change the tender in substance or the quality of the tender which would give the tenderer an advantage over the other tenderers, the concerned tenderers may be permitted to correct the errors. In other cases, departments shall assess a tender with the errors as submitted.

1.4 For the purposes of these rules, errors include omissions.

Section 2 - Errors in the pricing document

2 If the following error(s) in the pricing document are found after the opening of tenders, correction shall be made as follows, depending on the type of contract being tendered:

(1) Lump Sum Contracts with Bills of Quantities

(a) The tender sum stated on the Form of Tender shall remain unchanged irrespective of any corrections made hereinafter. If there is a discrepancy between the amount in "words" and in "figures", the one that agrees with the figure stated in the Grand Summary of the Bills of Quantities shall be taken as the tender sum. If neither one agrees with the figure stated in the Grand Summary of the Bills of Quantities, the amount in "figures" shall be taken as the tender sum. Where either the amount in "words" or the amount in "figures" is left blank or illegible, the remaining one shall be taken as the tender sum. If the amount in "words" and the amount in "figures" are both left blank or illegible, the tender is invalid.

(b) If there are errors in the Bills of Quantities, they shall be corrected as follows:

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(i) if one or more pages of the Bills of Quantities are found missing, subject to sub-paragraph (ii) below, the rates for all items in the missing page(s) shall be marked as zero and the costs shall be deemed to have been allowed for in rates entered elsewhere in the Bills of Quantities, and

(ii) where the Bills of Quantities contain a Provisional Sum, a Contingency Sum, a Prime Cost Sum, any other pre-priced item or any combination of them and the tenderer fails to include any or all of them correctly in his Bills of Quantities, then such sum (or sums) shall be correctly reinstated in the Bills of Quantities; and

(iii) errors in the casting of cash columns shall be corrected; and

(iv) the extension may be amended to agree with the quantity and rate or (dependent on the judgement of the tender examiner) the rate may be amended to agree with the quantity and the extension in the cash column but in no case will the alteration of both rate and cash extension be permitted; and

(v) indistinct rates shall be clarified to agree with the quantity and the extension in the cash column.

(c) Where no extension amount and no rate has been made against any item or quantity in the Bills of Quantities it shall be deemed that the cost of the item or quantity has been allowed for in rates entered elsewhere in the Bills of Quantities and the rate shall therefore be marked as zero.

(d) Should there be a tender addendum introducing changes to the Bills of Quantities but the changes have not been incorporated into the Bills of Quantities by a tenderer, then the changes as required by the addendum shall be incorporated into the tenderer's Bills of Quantities and the rates for those new items or modified items shall be determined as follows:

Where new item is introduced	**Rate for the new item shall be marked as zero**
Where the item description and/or quantity is changed	**If a rate has been entered against the original item of work, the same rate shall be used**
Where an item is deleted	**That item shall be deleted in accordance with the addendum**
Where the measurement unit is modified	**If a rate has been entered against the original item of work, the rate shall be adjusted to fit in with the new unit**

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(e) Any sum entered against an Adjustment Item (the Adjustment Item may either be printed in the tender documents or added by the tenderer) in the General/Grand Summary of the Bills of Quantities shall not be altered regardless of corrections made in accordance with (1)(b), (c) and (d) provided that the sum (whether addition or deduction) entered against the Adjustment Item does not exceed 10% of the tender sum prior to the application of that Adjustment Item. If the sum is outside the ±10% limits, the inserted positive sum exceeding the maximum positive limit shall be revised to a sum equal to the tender sum divided by 11. Likewise the inserted negative sum exceeding the maximum negative limit shall be revised to a sum equal to the tender sum divided by 9. If the Adjustment Item is left blank it shall be deemed to be zero. The total of the Bills of Quantities corrected in accordance with (1)(b), (c), (d) and (e) is hereinafter referred to as the corrected total of the Bills of Quantities.

(f) After correcting all the errors in accordance with (1)(b), (c), (d) and (e), the difference between:

(i) the tender sum minus the total of all Provisional Sums, the Contingency Sum, Prime Cost Sums (but not profit and attendance on them), any other pre-priced items and the Adjustment Item, and

(ii) the corrected total of the Bills of Quantities minus the total of all Provisional Sums, the Contingency Sum, Prime Cost Sums (but not profit and attendance on them), any other pre-priced items and the Adjustment Item

shall be calculated as a plus percentage of the sum at (1)(f)(ii) if (1)(f)(i) is greater than (1)(f)(ii) or as a minus percentage of the sum at (1)(f)(ii) if (1)(f)(i) is less than (1)(f)(ii).

(g) Subject to (1)(h), the plus or minus percentage will be applied to the tendered rates including those corrected under (1)(b)(iii) and (iv) and including Preliminaries/Preambles but excluding all pre-priced items and the Adjustment Item.

(h) If the absolute value of the percentage calculated in accordance with (1)(f) is less than 0.25%, no adjustment shall be made.

(i) For any Prime Cost Sum, the plus/minus percentage shall only be applied to the profit and attendance element and not the Prime Cost element.

(j) After correcting errors in accordance with the foregoing rules and if the plus or minus percentage calculated in accordance with paragraph (1)(f) is equal to or more than 0.25%, the General/Grand Summary of the Bills of Quantities shall be endorsed as follows:

'In accordance with Appendix 6.27 of Chapter 6 of the Project

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Administration Handbook for Civil Engineering Works, all the rates and prices inserted by the tenderer in these Bills of Quantities [except those pre-priced items and the Adjustment Item] shall be corrected by ....% for all purposes for which those rates and prices may be used under the Contract.'

Note: [ ] delete where inappropriate

No endorsement is necessary where the plus or minus percentage calculated in accordance with paragraph (1)(f) is less than 0.25%.

(2) Lump Sum Contracts based on Specification and Drawings with Schedule of Rates and Approximate Quantities submitted by Tenderers

The same principle and relevant procedures as in (1) shall apply except that the Schedule of Rates and approximate quantities submitted by the tenderer may be adjusted as necessary to reflect the approximate quantities of work to be carried out so that the total value so calculated is equal to the tender sum, with the intent that resultant rates may be used for valuing variations in accordance with the terms of the Contract. Adjustment of quantities and rates should only be necessary in the event of arithmetical errors or when the quantities are grossly in error.

(3) Remeasurement Contracts

(a) Under no circumstances can the tendered rates be changed.

(b) If errors are found in the Bills of Quantities, they shall be corrected as follows.

(i) Errors in extensions and casting of page totals shall be corrected and the rectified amounts carried to the General/Grand Summary.

(ii) Where there is an extension amount but no rate or an illegible rate has been inserted against any quantity in the Bills of Quantities the rate is deemed to be the amount divided by the quantity as rounded off to the nearest cent.

(iii) Where there is no extension amount or an illegible amount and no rate or an illegible rate has been inserted against any item or quantity in the Bills of Quantities it shall be deemed that the cost of the item or quantity has been allowed for in rates entered elsewhere in the Bills of Quantities and the rate shall therefore be marked as zero.

(iv) If one or more pages of the Bills of Quantities are found missing, subject to sub-paragraph (vi) below, the rates for all items in the missing page(s) shall be marked as zero and the costs shall be deemed to have been allowed for in rates entered elsewhere in the Bills of Quantities.

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(v) Should there be a tender addendum introducing changes to the Bills of Quantities but the changes have not been incorporated into the Bills of Quantities by a tenderer, then the changes as required by the tender addendum shall be incorporated into the tenderer's Bills of Quantities and the rates for those new items or modified items shall be determined as follows:

Where new item is introduced	**Rate for the new item shall be marked as zero**
Where the item description and/or quantity is changed	**If a rate has been entered against the original item of work, the same rate shall be used**
Where item is deleted	**That item shall be deleted in accordance with the addendum**
Where the measurement unit is modified	**If a rate has been entered against the original item of work, the rate shall be adjusted to fit in with the new unit**

(vi) Where the Bills of Quantities contain a Provisional Sum, a Contingency Sum, a Prime Cost Sum, any other pre-priced item or any combination of them and the tenderer fails to include any or all of them correctly in his Bills of Quantities, then such sum (or sums) shall be correctly reinstated in the Bills of Quantities.

(vii) Any sum entered against an Adjustment Item (the Adjustment Item may either be printed in the tender documents or added by the tenderer) in the General/Grand Summary of the Bills of Quantities shall, subject to sub-paragraph (viii) below, not be altered regardless of corrections made in accordance with (3)(b)(i) to (vi). If the Adjustment Item is left blank it shall be deemed to be zero.

(viii) If the sum entered against an Adjustment Item is outside the adjustment limits which are ±10% of the grand total of the Bills of Quantities (corrected in accordance with the rules above as necessary) before the addition or deduction of the Adjustment Item, the inserted positive sum exceeding the maximum positive limit shall be adjusted to such maximum positive limit (i.e. +10%) and the inserted negative sum exceeding the maximum negative limit shall be adjusted to the maximum negative limit (i.e.-10%).

(c) After correcting all the errors in the manner abovementioned, the tender sum shall be corrected to the corrected grand total of the Bills of Quantities.

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APPENDIX 6.28 GUIDELINES AND PROCEDURES FOR FEEDBACK AND DEBRIEFING TO UNSUCCESSFUL BIDDERS FOR WORKS CONTRACTS (Ref.: ETWB TCW No. 42/2002)

The unsuccessful bidders should be informed of the following ground rules for the debriefing:

- **(a) the debriefing will be informal;**
- **(b) the bidders will be told the perceived strengths and weaknesses of their bidding submissions and their responses will be noted;**
- **(c) the merits of other bids, including the winning bid, will not be discussed;**
- **(d) the decision on the award of the works contract is final thus the debriefing session shall not be taken as a means or an opportunity for the bidder to lodge appeal or complaint against the bidding result of the works contract;**
- **(e) tape recording during the debriefing will not be allowed;**
- **(f) request for records of the debriefing or agreement on any notes prepared by either party will not be entertained, and**
- **(g) The bidder shall not use the information obtained during the debriefing for any judicial or administrative proceedings.**

2. We should make it clear to the bidders that the debriefing should not be used to change the choice of contractor nor to re-open the selection procedure. In case if a bid challenge has been lodged to the award of the works contract under the World Trade Organisation Agreement on Government Procurement, the procuring department shall hold up the debriefing until the bid challenge is settled.

3. Any request from an unsuccessful bidder who fails to expressly agree or refuses to be bound by the ground rules shall not be entertained.

4. Upon receipt of a request for debriefing, the procuring department shall fix the date, time and place of the debriefing. Separate debriefing session shall be arranged for individual bidder. The debriefing shall be conducted by a team led by an officer of the rank of senior professional or above from the procuring department. At least one member of the team should have been a member of the assessment panel or have assisted directly in evaluating the bidding documents. For a contract managed by consultants, a senior staff member from the consultant's project team for the project concerned should also be included in the debriefing team. If it is envisaged that the consultant's staff shall be required to serve in any debriefing exercise, the requirement should be spelt out in the consultancy brief concerned. The procuring department shall determine the team size and flexibility is allowed to assign different team members to conduct different debriefing sessions under the same contract. To allow exchange of views in a casual manner, the bidder shall be requested to limit the number of representatives attending the debriefing to three.

5. Each debriefing session should be carefully planned with due regard to the weaknesses and strengths of the bidder. In general, discussion should be limited to the information submitted by the bidder without comparison with other submissions. Where practicable, the bidder should be informed frankly, honestly and tactfully of the weaknesses and strengths of his submission which shall be measured against established

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practices, general experience of the department or standards in the industry. Any information that would impede the law enforcement or otherwise be contrary to public interest or would prejudice the legitimate commercial interest of particular enterprises, public or private, or might prejudice fair competition between contractors should not be released. The discussion during the debriefing should be limited to the issues/questions raised by the bidders as mentioned in the first paragraph above. If necessary, some topics as suggested in Annex 1 can also be discussed. The departments shall also consider the appropriate level of details to be discussed. Nonetheless, care should be exercised to demonstrate that judgments are made only against the assessment criteria made known to the bidders.

6. The debriefing should be conducted as an informal discussion, and not in writing. Nevertheless, the debriefing team should record the results and conclusions of the debriefings for internal reference in case follow-up actions are needed for improving the process of similar procurements and debriefings. Such notes shall not be sent to the bidder. The bidder is free to take notes for himself. However, request for records of the debriefing or agreement on any notes prepared by either party shall be refused. Tape recording by the bidder shall also be refused as it would hinder a free exchange of views between the parties and thus defeat the purpose of the debriefing.

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Annex 1

Examples of Debriefing Topics for Works Contracts

1. **Cost – discussion on the competitiveness of the contractor's tendered sum in general terms (prices and rates of other tenderers other than the awarded sum shall not be disclosed)**

2. **Contractor's experience**
   a. **Relevant experience in contracts of similar type or size**
   b. **Relevant local experience (if it is essential for the delivery of the project)**

3. **Contractor's past performance (technical)**
   a. **Workmanship**
   b. **Progress**
   c. **Claims attitude**

4. **Contractor's past performance (general obligations)**
   a. **Site safety**
   b. **Environmental performance**
   c.. **Care of utilities and the general public**
   d. **Compliance with other enactments**

5. **Contractor's resources**
   a. **Managerial and technical staff**
   b. **Plant and equipment**

6. **Contractor's technical ability**
   (this may include method statement, quality assurance plan, site safety policy, works programme, extent of subcontracting and control mechanisms for subcontractors etc.)

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APPENDIX 6.29 SAMPLE LETTER TO TENDERER WITH UNREASONABLY LOW BIDS

To: the Tenderer

Dear Sirs,

Contract No. and Title

I refer to your tender for the captioned contract dated DD/MM/YYYY.

Your tender price is considered unreasonably low and it raises doubts as to whether you are capable of fulfilling the terms of the Contract. [Procuring departments shall also cite the prices or unit rate of any major items which are considered as unreasonably low, or other specific issues in relation to the tender price that the procuring department considers relevant in casting doubt on the tenderer's capability.]

You are invited to provide clarification or justification or any information which may be helpful in explaining why the tender price is not unreasonably low and how you are able to fulfil the contract at such a low price on or before DD/MM/YYYY.

Please note that only clarification or justification or any information provided in response to the third paragraph above can be submitted. You are not allowed to introduce any change to the tender.

Please note that this letter shall not be construed as either an acceptance or a rejection of your tender. All tenders are still under consideration and the Government of the Hong Kong Special Administration Region does not bind itself to accept any tender irrespective of whether the tender is the lowest bid or where the assessment of the tenders is based on a marking scheme or formula approach, the tender has the highest overall score.

Yours faithfully,

(The Engineer/Architect/Surveyor/Supervising Officer/Maintenance Surveyor designate)

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APPENDIX 6.30 GUIDELINES ON EXECUTION OF PUBLIC WORKS CONTRACTS AS A DEED (Ref.: DEVB TCW No. 7/2014)

A. EXECUTION BY GOVERNMENT

Checklist	Remarks
• The contract shall be signed on behalf of the Government by an officer at directorate level unless the Secretary for Financial Services and the Treasury has authorized otherwise. • Execution of the contract should be witnessed. The witness should sign and his/her name, occupation and address should be stated.	See paragraph 505(e) of the Stores and Procurement Regulations.

Sample attestation clause in a deed for use by Government.[1]

SIGNED, SEALED and DELIVERED by)
the Employer by)
[insert name and appointment of officer])
) in the
)
in the presence of:) *[Signature of the officer]*[1]
)
)
.....)
[Name])
[Occupation])
)
[Address])

[1] The italic parts are not part of the execution clause. They are for guidance or information only.

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B. EXECUTION BY UNINCORPORATED BODY

Checklist	Remarks
I. Sole Proprietor	
• **If it has not been done during tender stage, obtain a certified copy each of the Business Registration Certificate and the extract of information on the business register from the Commissioner of Inland Revenue. Use the information contained in the certified copies to check against those stated in the Articles of Agreement.**	**See Stores and Procurement Regulation 505.**
• **If execution is pursuant to a power of attorney, ask for the production of the original power of attorney. If the power of attorney is specifically granted for execution of the contract, keep the original power of attorney or a certified copy thereof in the file. If the power of attorney is a general one, keep a certified copy of it in the file.**	**See paragraph D below for execution of the contract pursuant to a power of attorney and proper certification of a copy of the power of attorney.**
• **Obtain other relevant documents, e.g. ask for production of identity card for verification of the identity of the signatory. Make a note on file that such verification has been made.**	
• **Execution of the contract should be witnessed. The witness should sign and his/her name, occupation and address should be stated.**	

Sample attestation clause in a deed for use by a sole proprietor.[1]

SIGNED, SEALED and DELIVERED)
by [insert name of sole proprietor])
trading as [name of the firm])
in the presence of:)
) ***[Signature of the sole proprietor][1]***
)
.....)
[Name])
[Occupation])
[Address])

L

[1] The italic parts are not part of the execution clause. They are for guidance or information only.

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II. Partnership	
• **If it has not been done during tender stage, obtain a certified copy each of the Business Registration Certificate and the extract of information on the business register from the Commissioner of Inland Revenue. Use the information contained in the certified copies to check against those stated in the Articles of Agreement.**	**See Stores and Procurement Regulation 505.**
• **If execution is pursuant to a power of attorney, ask for the production of the original power of attorney. If the power of attorney is specifically granted for execution of the contract, keep the original power of attorney or a certified copy thereof in the file. If the power of attorney is a general one, keep a certified copy of it in the file.**	**See paragraph D below for execution of the contract pursuant to a power of attorney and proper certification of the power of attorney.**
• **Obtain other relevant documents, e.g. ask for production of identity cards for verification of the identity of the signatories. Make a note on file that such verification has been done.**	
• **The contract shall be executed by all the partners.**	
• **Execution of the contract should be witnessed. The witness should sign and his/her name, occupation and address should be stated.**	

Sample attestation clause in a deed for use by partners of a partnership.[1]

SIGNED, SEALED and DELIVERED by)
[ ][2] and)
[ ][2]) *[Signature of the individual partner][1]* L.
being the partners of [name of Contractor])
in the presence of:)
) *[Signature of the individual partner][1]* L.
)
.....)
[Name])
[Occupation])
[Address])

[1] The italic parts are not part of the execution clause. They are for guidance or information only.
[2] Insert names(s) of partners. Add more names if there are more partners.

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C. EXECUTION BY COMPANY INCORPORATED IN HONG KONG

Checklist	Remarks
• **Obtain a copy of the Certificate of Incorporation of the company from the Companies Registry if this is the first time a works department deals with the company.**	
• **Obtain the registered office address of the company from the Companies Registry and check on its registered office address against that stated in the Articles of Agreement.**	
• **Obtain a copy of the latest Annual Return from the Companies Registry or obtain a certified copy from the company and check the identity of the directors and the secretary.**	
• **Obtain a copy of the Articles of Association (and the relevant Special Resolution if any amendment was made to the Articles of Association) from the Companies Registry or obtain a certified copy from the company.**	
• **If the company executes the Contract with a common seal, check the Articles of Association to ensure that the requirements on sealing and signing of the Contract are in accordance with the relevant provision in the Articles of Association on use of the seal. If the Articles of Association require the authorization of a board resolution before (a) its common seal can be used and/or (b) a person can sign a document with the common seal affixed or witness and attest the affixing of the common seal, obtain the original board resolution or a certified copy thereof from the company and check the following:** **1. sufficiency of quorum in accordance with the provisions of the Articles of Association;** **2. approval to affix the common seal to the contract; and/or** **3. the person authorized to sign the contract with the common seal affixed or witness and attest the affixing of the common seal.**	
• **If the company executes the Contract without a common seal:** **(a) In the case of a company with only one**	**See Section 127 of the Companies Ordinance (Cap. 622)**

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director, by having the contract signed by the director on the company's behalf. **(b) In the case of a company with 2 or more directors, by having the contract signed on the company's behalf by:** **(i) The 2 directors or any 2 of the directors; or** **(ii) Any of the directors and the company secretary of the company.**	
N.B. Please ensure that the Contract is also expressed to be executed by the company.	**See Section 127(5) of the Companies Ordinance (Cap. 622)**
• **If execution is pursuant to a power of attorney, ask for production of the original power of attorney. If the power of attorney is specifically granted for execution of the contract, keep the original power of attorney or a certified copy thereof in the file. If the power of attorney is a general one, keep a certified copy of it in the file.**	**See paragraph D below for execution of the contract pursuant to a power of attorney and proper certification of the power of attorney**
• **Obtain other relevant documents, e.g. ask for production of identity card(s) for verification of the identity of the signatory(ies). Make a note on file that such verification has been made.**	
• **Check that the common seal is a metallic seal with the name of the company engraved in legible form.**	**See section 124(2) of the Companies Ordinance (Cap. 622).**
• **Execution of the contract should be witnessed. The witness should sign and his/her name, occupation and address should be stated.**	

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Sample attestation clause in a deed for use by company incorporated in Hong Kong:[1]

Alternative A (with Common Seal)[1]

Executed and delivered	**)**	
as a deed and the COMMON SEAL	**)**	
of [name of Contractor]	**)**	
was affixed in the presence of	**)**	
[ ] its [director(s)] or	**)**	***[Signature of the***
director and secretary or person(s) authorized to	**)**	***director(s) etc][1]***
sign the contract by its board of directors][2]	**)**	
in the presence of a witness:	**)**	
	)	
.....	**)**	
[Name]	**)**	
[Occupation]	**)**	
[Address]	**)**	

Co

Alternative B (without a Common Seal)[1]

Executed and delivered	**)**	
as a deed	**)**	
by [name of Contractor]	**)**	
acting through	**)**	
[ ] (its sole director)	**)**	***[Signature of the***
or	**)**	***director(s) etc][1]***
[ ] and [ ] (its directors)	**)**	
or		
[ ] (its director) and		
[ ] (its company secretary)[2]	**)**	
in the presence of a witness:	**)**	
	)	
.....	**)**	
[Name]	**)**	
[Occupation]	**)**	
[Address]	**)**	

[1] The italic parts are not part of the execution clause. They are for guidance or information only.

[2] Select the correct expression for use. If none is applicable, insert an appropriate expression.

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D. EXECUTION UNDER A POWER OF ATTORNEY

Checklist	Remarks
• **Check the operative part to ensure that the attorney has sufficient authority to sign the contract in question.**	**Powers of attorney are strictly construed, i.e. any ambiguity will be construed in favour of the grantor and against the third party.**
• **Seek confirmation that the power of attorney has not been revoked.**	**But see the protection of third persons where power of attorney is revoked as stipulated in section 5(2) of the Powers of Attorney Ordinance. Seek legal advice if in doubt.**
• **Check that the power of attorney was executed in deed form.**	**Authority to execute a deed must in turn be granted by deed.**
• **Verify the identity of the attorney. Make a note in the file that such verification has been made.**	
• **Execution of the contract should be witnessed. The witness should sign and his/her name, occupation and address should be stated.**	

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Sample attestation clause in a deed for use by an attorney:[1]

SIGNED, SEALED and DELIVERED by	**)**	
[name of Contractor] by [ ]	**)**	
his/her/its[2] **attorney under power of attorney**	**)**	
dated [ ]	**)**	
	)	***[Signature of the***
in the presence of:	**)**	***attorney]***[1]
	)	
.....	**)**	
[Name]	**)**	
[Occupation]	**)**	
[Address]	**)**	

L

[1] The italic parts are not part of the execution clause. They are for guidance or information only.

[2] Delete as appropriate.

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The following is a sample certification of a copy of the power of attorney by either the donor of the power or a solicitor. The certification should appear at the end of each page of the copy of the power of attorney. The solicitor who certifies the copy must be a practising solicitor and not be suspended from practice at the material time.

(1) Where the power of attorney consists of one page only:

Power of Attorney

[Text of power of attorney]

I certify that this copy is a true and complete copy of the original power of attorney.

(Signed) _____
Name [of donor of power or solicitor]

Date

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(2) Where the power of attorney consists of two or more pages[1]:

Power of Attorney

[Text of power of attorney]

I certify that this copy is a true and complete copy of the corresponding page of the original power of attorney.

(Signed) _____
Name [of donor of power or solicitor]

Date _____

[1] The certification must appear on each and every page of the copy of power of attorney.

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E. EXECUTION BY COMPANY INCORPORATED IN CHINESE MAINLAND

Checklist	Remarks
• **Obtain a copy of the Certificate of Registration of Oversea Company from the Companies Registry if this is the first time a works department deals with the oversea company.**	
• **Ask for the power of attorney. It must be notarised and authenticated by the Ministry of Foreign Affairs of the PRC. Keep the original or a certified copy of it in the file.**	**See paragraph D above for execution of the contract pursuant to a power of attorney and proper certification of a copy of the power of attorney.**
• **Ask for a PRC lawyer's legal opinion on the power of attorney to the effect that the power of attorney was validly executed and that the relevant contract to be executed by the attorney will be legal, valid and binding on the company. Proof of the legal qualification of the PRC lawyer should be obtained.**	
• **Obtain other relevant documents, e.g. ask for production of identity card for verification of the identity of the signatory. Make a note in the file that such verification has been made.**	
• **Execution of the contract should be witnessed. The witness should sign and his/her name, occupation and address should be stated.**	

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F. EXECUTION BY COMPANY INCORPORATED OUTSIDE HONG KONG

Checklist	Remarks
• **Obtain a copy of the Certificate of Registration of Oversea Company from the Companies Registry if this is the first time a works department deals with the oversea company.**	
• **Ask for the power of attorney. The power of attorney must be attested by a notary public. Keep the original power of attorney or a certified copy of it in the file.**	**Normally oversea companies execute works contract through an attorney. See paragraph D above for a sample attestation clause for use by an attorney and proper certification of a copy of the power of attorney.**
• **Ask for the legal opinion on the power of attorney from a lawyer qualified to practise in the country where the company was incorporated to the effect that the power of attorney was validly executed and that the relevant contract to be executed by the attorney will be legal, valid and binding on the company. Proof of legal qualification of the lawyer should be obtained.**	
• **Apostille is required if the attested documents are from country which is a party to the Hague Convention Abolishing the Requirement of Legalization for Foreign Public Documents.**	**An apostille is a certificate issued by the competent authority of the state from which the attested documents emanate. For example, in UK, the competent authority to issue apostilles is the Foreign and Commonwealth Office.**
• **Legalization of the attested documents at a consulate of the PRC in that place is required if the documents are from countries not a party to the Hague Convention.**	**Legalisation refers to the formality by which the diplomatic or consular agents of the country in which a document is to be produced certify the authenticity of the signature, the capacity in which the person signing the documents has acted and, where appropriate, the identity of the seal or stamp which it bears.**

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• **Obtain other relevant documents, e.g. ask for production of identity card for verification of the identity of the signatory. Make a note in the file that such verification has been made.** • **Execution of the contract should be witnessed. The witness should sign and his/her name, occupation and address should be stated.**	

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G. EXECUTION BY UNINCORPORATED JOINT VENTURE

Checklist	Remarks
• **For guidance on execution by each of the participants in the unincorporated joint venture, please refer to paragraphs B to F above, as the case may be.** • **Execution of the contract should be witnessed. The witness should sign and his/her name, occupation and address should be stated.**	

Sample attestation clauses in a deed for use where an unincorporated joint venture:[1]

(a) #SIGNED, SEALED and DELIVERED)
by [name of participant] being a participant)
of the [name of the unincorporated joint)
venture])
in the presence of:)
)
)
)
.....)
[Name])
[Occupation])
[Address])

[Signature of the participant] [1]

Or

(b) #SIGNED, SEALED and DELIVERED)
by [name of partner] and [name of partner][3])
being the partners of [name of participant])
being a participant of the [name of the)
unincorporated joint venture])
in the presence of:)
)
)
)
)
)
.....)
)
[Name])
[Occupation])
[Address])

[Signature of the individual partner] [1]

[Signature of the individual partner] [1]

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Or

(c) #Executed and delivered as a deed and the COMMON SEAL of [name of participant] being a participant of the [name of the unincorporated joint venture] was affixed in the presence of [ ] its [director(s) or director and secretary or person(s) authorized to sign contract by its board of directors][2] in the presence of a witness:

.....

[Name]
[Occupation]
[Address]

[Signature(s) of the directors etc] [1]

Co

Or

(d) #Executed and delivered as a deed by [name of participant] being a participant of the [name of the unincorporated joint venture] acting through
[ ] (its sole director)
or
[ ] and [ ] (its directors)
or
[ ] (its director) and
[ ] (its company secretary)[2]

in the presence of a witness:

.....

[Name]
[Occupation]
[Address]

[Signature(s) of the directors etc] [1]

Or

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(e) #SIGNED, SEALED and DELIVERED by [name of participant] being a participant of the [name of the unincorporated joint venture] by [ ] his/her/its[2] attorney under power of attorney dated [ ]

in the presence of:

.....

[Name]
[Occupation]
[Address]

[Signature of the attorney][1]

Notes :

(a) For use where the joint venture participant is a sole proprietor.
(b) For use where the joint venture participant is a partnership.
(c) For use where the joint venture participant is a company incorporated in Hong Kong and executes the deed with a Common Seal.
(d) For use where the joint venture participant is a company incorporated in Hong Kong and executes the deed without a Common Seal.
(e) For use where the joint venture participant executes the deed under a power of attorney.

Select the appropriate form or forms and REPEAT FOR EACH PARTICIPANT of the unincorporated joint venture.
1 The italic parts are not part of the execution clause. They are for guidance or information only.
2 Select the correct expression for use. If none is applicable, insert an appropriate expression.
3 The deed shall be executed by all the partners. Add more names if required.

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APPENDIX 6.31 SAMPLE LETTER FOR NOTIFICATION OF REDUCTION OF CONTINGENCY SUM

Dear Sirs,

(Contract Title)
Reduction of Contingency Sum

Pursuant to sub-clause (1) of Special Conditions of Tender (SCT) XX, I hereby notify you that the Contingency Sum in the amount of $____ as stated in the [Bills of Quantities][1] is reduced to $____.

Please note that in accordance with sub-clause (2) of SCT XX, you are deemed to have agreed that:

(1) the amount of the Contingency Sum as stated in the [Bills of Quantities][1] shall be taken to be reduced accordingly; and

(2) the amount of the tender sum as stated in the Form of Tender and [Bills of Quantities][1] shall be taken to be reduced to $_____to reflect the reduction in the amount of the Contingency Sum under (1) above.

Please also note that the Government is yet to decide on the award of the Contract and nothing in this letter should be construed as either an acceptance or rejection of your tender. The Government does not bind itself to accept any tender irrespective of whether the tender is the lowest bid or where the assessment of the tenders is based on a marking scheme or formula approach, the tender has the highest overall score.

I enclose an acknowledgement letter which you are required to sign and return within two days of receipt of this letter.

Yours faithfully,

…….……
(Designation of the Engineer designate for the Contract)

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ACKNOWLEDGEMENT
(To be signed and returned within two days of receipt of the above letter)

Date ……

To: (Designation of the Engineer designate for the Contract
or Consultant's Project Officer as appropriate)

Dear Sir,

(Contract Title)
Reduction of Contingency Sum

We hereby acknowledge receipt of the notification letter dated (date) on reduction of the Contingency Sum as stated in the [Bills of Quantities][1] for the above Contract.

Yours faithfully,

…….
(Authorized Signature with Company chop)

Name of Company ……..……

1 The Project Office shall determine the appropriate wording to suit the contract/tender documentation arrangements of the contract being tendered.

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APPENDIX 6.32 CUT-OFF DATES FOR TENDER ASSESSMENT

(Ref.: Annex from FSTB's memo ref. () in TsyB T 00/810-6/33/0 Pt. 5)

Type of contract	Aspects of assessment	Original TCD	Extended TCD (if TCD has been extended)
Works	Tenderer's experience	✓	
	Key personnel's experience and qualification	✓	
	Tenderer's admission, promotion and confirmation to Development Bureau's approved list/specialist list of contractors		✓
	Tenderer's performance		✓
	Tenderer's conviction records		✓
	Tenderer not under suspension		✓
	Eligibility of probationary contractors to tender and for award of contract		✓
Stores	Tenderer and/or manufacturer's experience	✓	
	Tenderer and/or manufacturer's qualification (e.g. possession of valid licence(s)/certificate(s), production capacity, etc.)	✓	
	Key personnel's experience and qualification	✓	
	Laboratory test report		✓
Non-works services	Tenderer's experience	✓	
	Tenderer's qualification (e.g. possession of valid licence(s)/ certificate(s))	✓	
	Key personnel's experience and qualification	✓	
	Tenderer's performance (e.g. default notices/warning letters received)		✓
	Tenderer's demerit points		✓
	Tenderer's conviction records		✓

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APPENDIX 6.33 METHOD OF SELECTION OF TENDER COMBINATION

(Subsumed from DEVB TCW No. 8/2014)

Method

Selection of the tender combination should be based on the lowest total cost of the combination to the Government. This method applies when a marking scheme approach or formula approach is adopted for tender evaluation and a tenderer is found to be the highest combined technical/price (or performance/price) scorer for a greater number of contracts in the same tender exercise than he is allowed to take up.

Example

Five contracts are to be tendered out through a tender exercise which sets out the maximum number of contracts that may be awarded to a tenderer as two. A marking scheme (with a 70% weighting for price and 30% weighting for technical assessment) is adopted for tender evaluation. One tenderer (Tenderer A) has gained the highest combined technical/price score for three contracts. The score sheet is at Annex.

Three tender combinations are possible as shown in the following table. In this example, Combination 1 should be recommended as it yields the lowest total cost to the Government:

	Contract I	**Contract II**	**Contract III**	**Total Tendered Prices**
Combination 1 Successful Tender (Tender Price)	Tenderer A ($50)	Tenderer A ($80)	Tenderer D ($100)	$230
Combination 2 Successful Tender (Tender Price)	Tenderer A ($50)	Tenderer C ($100)	Tenderer A ($135)	$285
Combination 3 Successful Tender (Tender Price)	Tenderer B ($100)	Tenderer A ($80)	Tenderer A ($135)	$315

Annex

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Score Sheet

Contract/ Contractor	Tendered Price	Price Score (out of 70)	Technical Score (out of 30)	Combined Technical/Price Score	
Contract I					
Tenderer A	**$50**	**70.00**	**15.00**	**85.00**	**(highest)**
Tenderer B	$100	35.00	30.00	65.00	(2nd highest)
Tenderer C	$70	50.00	10.00	60.00	
Tenderer D	$200	17.50	25.00	42.50	
Contract II					
Tenderer A	$80	61.25	19.00	80.25	(highest)
Tenderer C	$100	49.00	30.00	79.00	(2nd highest)
Tenderer B	$70	70.00	8.00	78.00	
Tenderer D	$220	22.27	22.00	44.27	
Contract III					
Tenderer A	$135	51.85	30.00	81.85	(highest)
Tenderer D	$100	70.00	5.00	75.00	(2nd highest)
Tenderer B	$125	56.00	10.00	66.00	
Tenderer C	$220	35.00	25.00	60.00	
Contract IV					
Tenderer B	$220	61.25	28.00	89.25	(highest)
Tenderer D	$175	70.00	18.00	88.00	
Tenderer A	$250	49.00	30.00	79.00	
Tenderer C	$225	54.44	20.00	74.44	
Contract V					
Tenderer C	$200	52.50	30.00	82.50	(highest)
Tenderer A	$180	58.33	20.00	78.33	
Tenderer D	$150	70.00	8.00	78.00	
Tenderer B	$350	30.00	20.00	50.00	

(Contract IV to be awarded to Tenderer B and Contract V to Tenderer C as the highest combined technical/price scorer.)

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APPENDIX 6.34 ELECTRONIC DISSEMINATION OF TENDER DOCUMENTS AND ELECTRONIC SUBMISSION OF TENDER RETURNS (Subsumed from ETWB TCW No. 11/2005, SDEV's memo ref. () in DEVB(W) 546/94/01 dated 19.12.2019, SDEV's memo ref. DEVB(W) 546/94/02 dated 29.12.2023 and SDEV's memo ref. DEVB(W) 546/94/02 dated 24.5.2024) Amd No. 1/2026

1. Introduction

1.1 Definitions

1.1.1 In this appendix, unless the context otherwise requires-

(a) "*Project Manager*" Amd No. 1/2026 means the person who will perform the duty of the *Project Manager* Amd No. 1/2026 for a Works Contract being tendered.

(b) "Authorized Service Provider" means a non-government organization which has signed a service agreement with DEVB on the provision of electronic dissemination services for EDP. [*only for cases where e-TS(WC) is not applicable*] Amd No. 1/2026

(c) "CD-ROM" means CD-ROM media complying with ISO 9660 standard and/or DVD-ROM media in DVD+R or DVD-R format. [*only for cases where e-TS(WC) is not applicable*] Amd No. 1/2026

(d) "Digital Signature" means a digital signature as defined in section 2 of the Electronic Transactions Ordinance (Cap. 553) satisfying the requirements stipulated in Section 6 of that Ordinance. "Digitally Signed" should be interpreted accordingly.

(e) "Editable File" means an electronic file which is stored in file formats that are editable using mainstream computer applications for office automation and computer-aided drafting.

(f) "Electronic Dissemination Package" (or "EDP") means the collection of electronic files comprising:-

(i) files containing the contents of a set of Tender Documents;

(ii) the licence conditions on using the files in Clause 1.1.1(f)(i) above; and

(iii) supporting files containing information on using the files in Clause 1.1.1(f) (i) above.

(g) "Eligible Tenderer" means a tenderer who is eligible to submit tender for a Works Contract. Amd No. 1/2026

(h) "e-TS(WC)" means the Electronic Tendering System for Works Contracts, a centralised on-line platform maintained by the Development

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Bureau(DEVB) specifically designed for conducting tendering exercises electronically. Amd No. 1/2026

(i) "Image File" means an electronic file which is stored in file formats that capture the printed image of the document.

(j) "Map Data" means any map and land boundary data in which Lands Department has copyright. Map Data do NOT include any data from other sources including any land surveys commissioned by a Works Department.

(k) "Organizational e-Cert" means a recognized certificate issued the name of an organization by a recognized certification authority to an organisation and which identifies a person who is duly authorised by the organisation to use the recognized certificate. "Recognized certificate" and "recognized certification authority" shall bear the meanings as assigned to them under the ETO. Amd No. 1/2026

(l) "Signed Editable File" means the Digitally Signed version of the Editable File.

(m) "Signed File" means Signed Editable File and Signed Image File.

(n) "Signed Image File" means the Digitally Signed version of the Image File.

(o) "Tender Addendum" means a set of documents and its attachments in the form of hard copy or electronic files issued before the Tender Closing Date to amend the tender documents.

(p) "Tender Closing Date" means the date and time set for the return of tender for a Works Contract.

(q) "Tender Documents" means the documents in the form of hard copy or electronic files issued for the tendering of Works Contracts, including-

(i) the invitation to submit tenders and other documents issued together with it; and

(ii) Tender Addenda.

(r) "Works Contract" means a contract managed by a procuring department Amd No. 1/2026 **for design, construction, operation or maintenance of infrastructures or buildings and includes maintenance term contracts and design and build contracts. A Works Contract does not include-**

(i) contracts awarded through the Government Supplies Department;

(ii) consultancy agreements awarded in accordance with the consultant selection procedures in the Stores and Procurement Regulations; and

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(iii) procurements made in accordance with Chapter II of the Stores and Procurement Regulations.

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1.2 Scope

1.2.1 This document stipulates the procedures for the dissemination of Tender Documents for Works Contracts managed by a procuring department. Amd No. 1/2026

1.2.2 Tender Documents for Works Contracts should be disseminated through each of the following channels-

(a) Dissemination through e-TS(WC) – All Works Contracts under the ambit of Central Tender Board ("CTB") and Public Works Tender Board ("PWTB"), except for the cases where e-TS(WC) is not applicable, Tender Documents in the form of EDP only should be disseminated through e-TS(WC); Amd No. 1/2026

(b) Direct Dissemination – For cases where e-TS(WC) is not applicable, Tender Documents in the form of both hard copy and EDP on CD-ROM Amd No. 1/2026 **should be issued to tenderers eligible to submit tenders for Works Contracts; and**

(c) Dissemination through Authorized Service Providers – For cases where e-TS(WC) is not applicable, Amd No. 1/2026 **Tender Documents in the form of EDP only should be disseminated through Authorized Service Providers.**

1.2.3 Electronic dissemination of Tender Documents should apply to all Works Contracts delivered using in-house resources of the procuring department Amd No. 1/2026 **or through consultants.**

1.3 Structure of document

1.3.1 This document is structured as follows-

(a) Section 1 – Introduction;

(b) Section 2 – Electronic Dissemination Procedures, which describes the procedures to be followed by a procuring department Amd No. 1/2026 **in disseminating electronic tender documents;**

(c) Section 3 – Electronic Dissemination Packages, which describes the procedures for packaging the electronic tender documents for dissemination;

(d) Section 4 – Authorized Service Providers, which focuses mainly on the procedures to be followed by DEVB in appointing authorized service providers for disseminating electronic tender documents;

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(e) Annexes-

(i) Annex 1 – Licence Conditions for Electronic Dissemination Packages Amd No. 1/2026**;**

(ii) Annex 2 – Licence Conditions for Electronic Dissemination Packages Distributed Through Authorized Service Providers; Amd No. 1/2026

(iii) Annex 3 – Service Agreement for Dissemination of Electronic Dissemination Packages; and Amd No. 1/2026

(iv) Annex 4 – Requirements for Tender Submission in Electronic Format Amd No. 1/2026

2. Electronic Dissemination Procedures

2.1 Purpose

2.1.1 This section describes the procedures to be followed by a procuring department Amd No. 1/2026 **in disseminating electronic tender documents.**

2.2 Preparation of EDP

2.2.1 The electronic version of Tender Documents for Works Contracts should be disseminated in the form of EDP's prepared in accordance with the manner and format contained in Section 3.

2.2.2 EDP's containing the following documents should be issued –

(a) the original version of tender documents; and

(b) any Tender Addenda issued in accordance with the Conditions of Tender.

2.3 Dissemination through e-TS(WC)

A procuring department that manages a Works Contract under the ambit of CTB and PWTB, except those excluded from using e-TS(WC) in accordance with paragraph 9 of DEVB memo ref. DEVB(W) 546/94/02 date d 29 December 2023, should issue the EDP for the contract to Eligible Tenderers via e-TS(WC). The EDP should be uploaded to e-TS(WC) for collection by Eligible Tenderers through the same system. No hard copy of Tender Document should be provided. Amd No. 1/2026

2.4 Direct Dissemination [*only for cases where e-TS(WC) is not applicable*] Amd No. 1/2026

2.4.1 For cases where e-TS(WC) is not applicable, both the EDP on CD-ROM and the hard copy of Tender Documents for the contract should be issued to Eligible

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Tenderers. Amd No. 1/2026 **The EDP and the hard copy should be issued free of charge . Requests for additional electronic copies of tender drawings should be charged in accordance with the provisions of the prevailing DEVB technical circular on charges of electronic drawings. Request for additional electronic copies of other types of Tender Documents should be charged at the rates prescribed from time to time by the relevant authorities. Request for additional hard copies should be charged at the rates prescribed from time to time by the relevant authorities.**

2.5 Dissemination through Authorized Service Provider [*only for cases where e-TS(WC) is not applicable*] Amd No. 1/2026

2.5.1 DEVB may from time to time enter into service agreements with non-government organizations (including, without limitations, construction industry trade associations and commercial entities) for-

(a) distribution of EDP's through their web sites (Internet dissemination services);

(b) distribution of duplicates of EDP's (replication services); and

(c) providing value-added services through their web sites using the contents of the EDP's (value-added services).

2.5.2 Hard copies of Tender Documents should not be issued to Authorized Service Providers.

2.5.3 The procedures for negotiating service agreements are set out in Section 4.

2.5.4. Service agreements will be made using the standard agreement in Annex 3. The list of Authorized Service Providers is posted on DEVB's web site at https://www.devb.gov.hk/en/construction_sector_matters/electronic_services/e_procurement/e_procurement_of_public_works_contracts/dissemination_through_asp/index.html.

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2.5.5 When EDP's are issued to Eligible Tenderers, the procuring department Amd No. 1/2026 **should issue at the same time the same EDP's to Authorized Service Providers using the Issue Notice stipulated in Schedule 2 to Annex 3. An EDP should be issued with the attachment of a set of licence conditions in Annex 1 or Annex 2 where appropriate, duly completed by the Works Department in accordance with the footnotes therein.**

2.5.6 In accordance with the service agreement, Authorized Service Providers should submit, within 7 working days of the Tender Closing Date, a Return Notice as stipulated in Schedule 3 to Annex 3 to the procuring department Amd No. 1/2026**. The procuring department** Amd No. 1/2026 **should retain the Return Notice for record purposes.**

3. Electronic Dissemination Packages

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3.1 General Guidelines

3.1.1 Notwithstanding the procedures for preparing EDP as described in this Section, the following guidelines are applicable to electronic copies of all Tender Documents Amd No. 1/2026 **except CAD drawings:**

(a) The EDP files should be considered as an e-book of the corresponding hard copy of tender documents. Number of files constituting each Part (Clause 3.7.6 below) of the Tender Documents Amd No. 1/2026 **should be minimized.**

(b) The followings serve as reference when compiling EDP files on textual information, Bill of Quantities and images:

(i) Sections of each Part of the Tender Documents Amd No. 1/2026 **other than Bill of Quantities, etc., that are standardized and not subject to changes to suit particular contract, should be combined into one single file. If, e.g., Section xxx of Part yyy will be different for different contracts, it is recommended to combine all Sections before Section xxx into one file, Section xxx in a separate file and the remaining Sections in another file. Only three files will cover the whole part in this example.**

(ii) It is recommended to have one Excel workbook for the Bills of Quantities / Schedule of Rates/Plant and Labour Schedule / Equipment Schedule.

(iii) Image files should be reviewed to see if they could be combined meaningfully into a multi-page image file with a view to reducing the number of files in an EDP.

(iv) Due to operational constraints such as time available in checking the merged file of different documents produced by different professional disciplines, each Part of the tender document may be split according to the disciplines. Yet, the principle of minimizing the number of EDP files should be adhered to.

3.2 Contents

3.2.1 The original set of Tender Documents in electronic format should contain the electronic version of-

(a) a set of tender documents;

(b) the license conditions for EDP; and

(c) the supporting information described in section 3.8 below for using the EDP.

3.2.2 The Tender Addendum in electronic format should contain electronic version of-

(a) the covering letter for the Tender Addendum;

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(b) the amendment sheets issued with the Tender Addendum;

(c) the license conditions for EDP; and

(d) the supporting information described in section 3.8 below for using the EDP.

3.3 Media [*only for cases where e-TS(WC) is not applicable*] Amd No. 1/2026

3.3.1 EDP should be distributed on write once type CD-ROM. Re-writable media shall not be used. The CD-ROM shall be logically closed such that no subsequent change can be made to the EDP.

3.3.2 The label for the CD-ROM's should contain the following information:

(a) the EDP reference number as specified in section 3.6 below

(b) the Contract number and the Contract title

(c) CD-ROM sequence number in the form of "Disk x of y" where x is the sequence number of the CD-ROM and y is the total number of CD-ROM's in the EDP. This will be useful in identifying individual CD-ROM when an EDP contains more than one CD-ROM.

3.3.3 For EDP that will be used for direct dissemination, i.e. EDP issued directly to Eligible Tenderers, the distribution media should be contained in envelopes or other similar enclosures and sealed with labels containing the following notice –

> **"Please read the attached "Licence Conditions for Electronic Dissemination Packages" (the Licence Conditions) before opening this package. If you open this package, you will be deemed to have read the Licence Conditions and to have accepted them. If you do not agree with the Licence Conditions, please do not open the package and do return the package to [name of department and address]. "**

3.4 Data formats

3.4.1 The data formats[6] and associated versions of documents / files to be adopted in EDP's should adhere to the latest DPO Interoperability Framework which can be downloaded from the DPO's website:

https://www.digitalpolicy.gov.hk/en/our_work/data_governance/policies_standards/interoperability_framework/

The current data formats for the various types of documents in EDP's are stipulated as follows-

[2] ***Internal Note for procuring departments:** The data formats and associated versions of documents / files to be adopted in EDP's should be updated to the latest DPO Interoperability Framework as appropriate.*

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Type of File	Editable File Format	Image File Format
Bills of Quantities, Schedule of Rates and any other schedules	Microsoft Excel format (.xls or .xlsx)	Not Applicable
Other text documents	Rich Text Format (RTF); or Word (.doc or .docx)	Portable Document Format (PDF)
Scanned text documents	Not applicable	PDF
Drawings	Microstation DGN format AutoCAD format Autodesk Drawing Exchange Format (DXF) Initial Graphic Exchange Specification (IGES)	PDF
Building Information Modelling (BIM)	*(Procuring Department to define and insert)*	Not Applicable[7]
Scanned drawings	Not applicable	PDF
Animation[8]	HTML5	Not Applicable
Video, movie[9]	MPEG-1 (ISO 11172) MPEG-4 (ISO 14496)	Not Applicable
Slide presentation	PowerPoint (.ppt or .pptx)	PDF

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3.4.2 To facilitate electronic tender preparation by tenderers and subsequent processing of electronic tender return, the files for "Bills of Quantities, Schedule of Rates and any other schedules" should be prepared in Excel format, unless prior agreement is made with DEVB. Cells which are not intended for data entry by tenderers should be locked and protected from being updated. The file should be structured and formatted to enable the use of verification tools that the procuring Amd No. 1/2026 **departments may adopt to facilitate checking of unauthorized changes to locked cells.**

3.4.3 If more than one file format are specified, files need to be provided in one of the specified formats only. In so far as possible, the preferred formats should be used.

3.4.4 The contents of each document in an EDP, where applicable, shall be hosted in two file formats as shown in section 3.4.1-

(a) Editable File format– which is in file formats that are editable by mainstream computer applications for office automation and computer-aided drafting; and

(b) Image File format – which in file formats that capture the printed image of

[7] For files generated by BIM, please refer to the file format required for the respective types of documents.
[8] For files generated by BIM, please refer to the file format required for the respective types of documents.
[9] Please ensure that appropriate viewers / codecs are openly accessible to the tenderers (e.g. as freeware downloadable from the Internet), and should provide a pointer to the viewer / codecs as necessary.

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the documents.

3.4.5 As the conversion of drawing files to PDF may slightly distort the scale of the drawing elements, line scales in both horizontal and vertical directions should be included in drawings files to enable the tenderers to ascertain the correction factors to compensate for the distortion.

3.4.6 File compression programs should NOT be used to compress files in EDP.

3.5 Digital Signature

3.5.1 For the purpose of authentication, all files in an EDP should be Digitally Signed.

3.5.2 For in-house contracts, the Digital Signatures for Signed Files should be applied by officers authorized by the *Project Manager* Amd No. 1/2026 Designate. For contracts managed by consultants, the signatures should be applied by employees of the consultants at professional or more senior ranks.

3.5.3 Organizational e-Cert shall be used for the purpose of applying Digital Signatures.

3.6 Reference Number

3.6.1 Each EDP should be identified by a unique reference number consisting of the following fields-

(a) Standard prefix consisting of the letters "EDP";

(b) Contract number, that is the contract number for the Works Contract;

(c) Serial number to be assigned as follows-
(i) EDP for original set of Tender Documents – 0; and
(ii) EDP for Tender Addendum – reference assigned to the addendum.

3.6.2 The following examples illustrate the rules in section 3.6.1 above-

Tender Documents	EDP Reference
EDP issued with original set of tender documents for DC/98/12	EDP-DC/98/12-0
EDP issued with Tender Addendum No. 2 for DC/98/12	EDP-DC/98/12-2

3.7 File Naming Convention

General provisions

3.7.1 EDP files but excluding model drawing files should be named in accordance with the conventions in the following sections. However, procuring departments Amd No. 1/2026 may adapt or extend these conventions to suit their requirements.

3.7.2 File names of the model drawing files should comply with the CAD Standard for

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Works Projects.

3.7.3 File names should consist of fields separated by the dash character (“-“).

3.7.4 Characters that are not allowed in file names should be replaced with the underscore character ("_").

3.7.5 The type identifier of an Editable File is "E" and the type identifier of an Image File is "I".

3.7.6 The following are the suggested identifiers for identifying files belonging to the various parts of the EDP-

Part	Part Identifier
General specification	GS
Standard method of measurement	SMM
Articles of agreement	AA
General conditions of contract	GCC
General conditions of tender	GCT
Special conditions of tender	SCT
Form of tender	FTR
Special conditions of contract	SCC
Particular specifications	PS
Bills of Quantities	BQ
Schedule of Rates	SR
Drawings	DRG
Tender Addenda	TDA
Licence Conditions for EDP	LC

3.7.7 File names should include version numbers that may consist of alphabets, numerals or a combination of both.

Drawing files

3.7.8 The file name should consist of the following fields-

(a) type identifier;

(b) drawing number conforming with the CAD Standard for Works Projects;

(c) part identifier; and

(d) version number

Tender Addenda

3.7.9 The file names for Tender Addenda should consist of the following fields-

(a) type identifier;

(b) contract number;

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(c) part identifier for Tender Addenda;

(d) Tender Addendum number – the reference number assigned to the Tender Addendum; and

(e) component number – a field for distinguishing the different files containing the contents of a Tender Addendum.

Other types of files

3.7.10 The file name for the other types of files should consist of the following fields-

(a) type identifier;

(b) contract number;

(c) part identifier;

(d) component number – a field for distinguishing the different files containing the contents of Tender Documents; and

(e) version number.

3.8 Supporting Information

3.8.1 Each EDP should include a "Readme" file, named "README.RTF", that should be prepared in Rich Text Format, Digitally Signed and stored in the root directory (on every CD-ROM for cases where e-TS(WC) is not applicable) Amd No. 1/2026**. This file should contain at least the following information:** Amd No. 1/2026

(a) general guidance on the use of EDP (e.g. the file naming convention, directory structure of the EDP, software name and version for viewing the file);

(b) a list of all documents in the EDP with the following information-
- **(i) brief description of the content of the document; and**
- **(ii) for cases where e-TS(WC) is not applicable,** Amd No. 1/2026 **disk no. (if the EDP contain more than one CD-ROM) and filename with full path information for the Signed Image File and Signed Editable File;**

(c) Revision history – summary of the revisions made to the files including the Tender Addenda making the revisions;

(d) information on the proper setting for viewing, editing, and printing the EDP files, including, without limitations-
- **(i) the type of printer to be used for printing the files;**
- **(ii) the paper sizes;**
- **(iii) requirements for special fonts; and**
- **(iv) any special printing instructions (e.g. the adjustment settings such as "Shrink oversized pages to paper size", "Expand small pages to paper size", etc. when printing PDF files);**

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(e) the name and telephone number of subject officer responsible for the tender for enquiry purpose.

3.9 Intellectual Property Issues

Map Data and other contents subject to pre-existing copyrights

3.9.1 Files containing Map Data should be designated as Special Files in the licence conditions in Annex 1 and Annex 2 to prevent re-distribution by the tenderers and customers of Authorized Service Providers.

3.9.2 The inclusion of any other contents subject to pre-existing copyrights in EDP should be avoided. Instead of including these contents, procuring departments Amd No. 1/2026 **should consider the alternative of providing the Internet addresses for obtaining the information from the copyright owners.**

4. Authorized Service Providers

4.1 Purpose

4.1.1 This section describes the procedures for appointing Authorized Service Providers.

4.2 Overview

4.2.1 DEVB may enter from time to time service agreements with non-government organizations for re-dissemination of EDP. These organizations may include non-commercial establishments or commercial entities.

4.2.2 An Authorized Service Provider may provide the following types of services to its customers using EDP-

(a) Replication Service (RS), which is the making of physical duplicates of EDP's for re-distribution;

(b) Internet Dissemination Service (IDS), which is the dissemination of EDP's through the web sites of the Authorized Service Provider; and

(c) Value Added Service (VAS), which is the provision of value added service using information in the EDP.

4.2.3 Non-government organizations may apply for appointment as an Authorized Service Provider in accordance with the procedures set out in the following stages-

(a) submission of application;

(b) assessment of application by DEVB; and

(c) conclusion of service agreement.

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4.3 Submission of application

4.3.1 A non-government organization should submit to DEVB in writing an application prepared in accordance with the following outline-

(a) General information
- **(i) the nature of the organizations;**
- **(ii) the purposes of the application;**

(b) Scope of services, describing the services that the organization intends to provide, including-
- **(i) whether the organization intends to provide RS;**
- **(ii) whether the organization intends to provide IDS; and**
- **(iii) whether the organization intends to provide VAS and the nature of such services;**

(c) Service Proposal
- **(i) General**
  - **(1) authenticating the identity of parties using RS, IDS and VAS;**
  - **(2) keeping records of the contents provided to users of RS, IDS and VAS;**
  - **(3) securing the customers' acceptance of the Licence Conditions before allowing them to use the RS, IDS and VAS;**
  - **(4) arrangements for advising downloaders of the issue of Tender Addenda in a timely manner;**
- **(ii) RS**
  - **(1) the target clients for RS;**
  - **(2) the proposal for providing RS including the proposed service levels; and**
  - **(3) the proposed charges for RS;**
- **(iii) IDS**
  - **(1) the address of the hosting web site that will provide IDS;**
  - **(2) the target clients for the service;**
  - **(3) the proposals for providing IDS including proposed service levels; and**
  - **(4) the proposed charges for IDS;**
- **(iv) VAS**
  - **(1) the address of the hosting web site that will provide VAS;**
  - **(2) the details of the proposed VAS;**
  - **(3) the target clients for VAS;**
  - **(4) the proposal for providing VAS, including service levels; and**
  - **(5) the proposed charges for VAS.**

4.3.2 The service level proposals should include, without limitations-

(a) RS, IDS and VAS - The turnaround times for making updates available upon the receipt of Issue Notice for EDP stipulated in Schedule 2 to Annex 3;

(b) IDS and VAS – Appropriate performance indicators, including, without

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limitations-

(i) bandwidths dedicated to IDS and VAS;
(ii) downloading speeds; and
(iii) response time to enquiries.

4.4 Assessment of application

4.4.1 DEVB should assess the suitability of an application on the basis of the following considerations-

(a) nature of the organization and its connection with the construction industry;

(b) purposes of providing the Internet dissemination services, replication services and value-added services;

(c) capability for providing satisfactory levels of service to users;
(d) the adequacy of the proposals for providing the various services, in particular the proposed levels of services;

(e) reputation of the organization; and

(f) whether such authorization will have detrimental effects on the image of DEVB and Works Departments.

4.5 Conclusion of Service Agreement

4.5.1 If an application is accepted, DEVB may enter into a service agreement with the organization. The agreement should be prepared on the basis of the pro-forma agreement in Annex 3.

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Annex 1 to Appendix 6.34

Licence Conditions for Electronic Dissemination Packages

Amd No. 1/2026

EDP Reference - [10]

1. This set of "Licence Conditions for Electronic Dissemination Packages Amd No. 1/2026 **" may be cited as the "Licence Conditions".**

2. In these conditions, unless the context otherwise requires-

(a) "Contract" means the works contract named in Schedule 1 hereto.

(b) "Digital Signature" means a digital signature as defined in section 2 of the Electronic Transactions Ordinance (Cap. 553) satisfying the requirements stipulated in Section 6 of that Ordinance. "Digitally Signed" should be interpreted accordingly.

Amd No. 1/2026

(c) "Editable File" means an electronic file which is stored in file formats that are editable using mainstream computer applications for office automation and computer-aided drafting.

(d) "Electronic Dissemination Package" (or "EDP") means the electronic files in Schedule 2 hereto containing the contents of the Tender Documents, the supporting information for using these electronic files and these Licence Conditions.

(e) "*Client* Amd No. 1/2026 **" means the Government of the Hong Kong Special Administrative Region.**

(f) "Image File" means an electronic file which is stored in file formats that capture the printed image of the document.

(g) "Licensee" means the person who Amd No. 1/2026 **uses the EDP and includes, if the person acts on behalf of another person, that other person.**

(h) "Relevant File" means an electronic file that-
(i) is derived from duplication of any files in the EDP; or
(ii) contains any contents extracted from any files in the EDP.

(i) "Signed Editable File" means a file listed under the column "Signed Editable File" in Schedule 2 hereto containing the Digitally Signed version of an Editable File.

(j) "Signed Image File" means a file listed under the column "Signed Image File" in Schedule 2 hereto containing the Digitally Signed version of an Image File.

[10] **To be inserted by department**

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(k) "Special File" means a file listed in Schedule 3 hereto.

(l) "Sub-licensee" means a party licensed by the Licensee to use the EDP.

(m) "Tender" means the tender that may be submitted for the Contract.

(n) "Tender Addendum" means a set of documents and its attachments in the form of electronic files issued before the Tender Closing Date to amend the tender documents.

(o) "Tender Closing Date" means the date and time set for the return of tender for the Contract.

(p) "Tender Documents" means the documents in the EDP issued for the tendering of the Contract, including:-

(i) the invitation to submit tenders and other documents issued together with it; and

(ii) Tender Addenda.

(q) "Triggering Event" means one of the following events-

(i) The Licensee does not submit a Tender by the Tender Closing Date;

(ii) The Licensee receives notification from the *Client* Amd No. 1/2026 that his Tender is invalid;

(iii) The Licensee receives notification from the *Client* Amd No. 1/2026 that his Tender is not accepted;

(iv) The Licensee withdraws his Tender; or

(v) The execution of the Articles of Agreement for the Contract.

3. Words importing the singular only also include the plural and vice versa where the context requires. Words importing one gender (whether masculine, feminine or neuter) shall be taken to include any other gender where the context requires.

4. Subject to the provisions hereof, the *Client* Amd No. 1/2026 grants the Licensee, free of charge, a non-exclusive and revocable licence for using the EDP solely for the purpose of preparing the Tender. The Licensee shall not use the EDP for any other purpose. Save as aforesaid, all other rights in the EDP are reserved by the relevant copyright owners.

5. The Licensee shall indemnify and keep indemnified the *Client* Amd No. 1/2026 against all losses, liabilities, damages, costs, legal costs, professional and other expenses of any nature whatsoever incurred or suffered by the *Client* Amd No. 1/2026 whether direct or consequential arising out of any disputes or other claims or proceedings against the *Client* Amd No. 1/2026 by any third party by reason of any breach by the Licensee of Clause 4 hereof.

6. (1) The licence for using the EDP shall expire within seven working days of the occurrence of a Triggering Event.

(2) Sub-clause (1) shall not apply if the Licensee is nominated as a sub-

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contractor or supplier in a tender submitted by a tenderer who is holding a valid licence to use the EDP (the "Relevant Licence"). In this case, the licence of the Licensee shall expire with the Relevant Licence. If there are more than one Relevant Licences, the licence shall expire with the last Relevant Licence.

(3) On or before the expiration date of the licence, the Licensee shall-

(a) either destroy the Relevant Files in his possession or retain them as archives; and

(b) ensure that all sub-licensees have either destroyed the Relevant Files in their possession or retained these files for archive purpose

7. Any files kept as archives pursuant to Clause 6 shall not be used for any other purpose.

8. Subject to the following conditions, the Licensee may license other persons as Sub-licensees to use the EDP-

(a) The Licensee shall obtain from each Sub-licensee an undertaking in writing that the Sub-licensee shall not use the EDP for any purpose other than for the purpose of preparing the Tender;

(b) The Licensee shall be liable to the *Client* Amd No. 1/2026 for the breach of the undertaking referred to in sub-clause (a) of this Clause by the Sub-licensees as if the breach were committed by the Licensee;

(c) The Licensee shall indemnify and keep the *Client* Amd No. 1/2026 indemnified against all losses, liabilities, damages, costs, legal costs, professional and other expenses of any nature whatsoever incurred or suffered by the *Client* Amd No. 1/2026 whether direct or consequential arising out of any disputes or other claims or proceedings against the *Client* Amd No. 1/2026 by any third party by reason of any breach of the undertaking referred to in sub-clause (a) of this Clause by the Sub-licensees as if the breach were committed by the Licensee;

(d) Provided that:-

(i) The Licensee shall not license any Sub-licensee to use the Special Files enumerated in Schedule 3 hereto; and

(ii) The Licensee shall not grant any Sub-licensee the right to license other parties to use the EDP.

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Schedule 1[11]

Contract No. _____

Contract Title _____

Department _____

Tender Closing Date[12] _____

[11] **To be completed by department.**
[12] **Please also fill in the time.**

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Schedule 2 – Electronic Dissemination Package[13]

Tender Documents	Version no.	Signed Image File[14]	Signed Editable File[15]

[13] To be completed by department

[14] the location and filename in the EDP (if e-TS(WC) is not applicable, includes disk no., if the EDP contains more than one CD-ROM, and filename with full path information) Amd No. 1/2026

[15] the location and filename in the EDP (if e-TS(WC) is not applicable, includes disk no., if the EDP contains more than one CD-ROM, and filename with full path information) Amd No. 1/2026

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Schedule 3 – Special Files[16]
(Files not to be re-distributed by tenderers)

(List the file names of the special files in the EDP)

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[16] **To be completed by department**

Annex 2 to Appendix 6.34

Licence Conditions
for Electronic Dissemination Packages
Distributed Through Authorized Service Providers

EDP Reference - [17]

1. This set of "Licence Conditions for Electronic Dissemination Packages Distributed Through Authorized Service Providers" may be cited as the "Licence Conditions".

2. In these conditions, unless the context otherwise requires-

(a) "Authorized Service Provider" means a service provider which has been authorized by the *Client* Amd No. 1/2026 to provide dissemination services for EDP.

(b) "Contract" means the works contract named in Schedule 1 hereto.

(c) "Digital Signature" means a digital signature as defined in Section Amd No. 1/2026 2 of the Electronic Transactions Ordinance (Cap. 553) satisfying the requirements stipulated in section 6 of that Ordinance. "Digitally Signed" should be interpreted accordingly.

Amd No. 1/2026

(d) "Editable File" means an electronic file which is stored in file formats that are editable using mainstream computer applications for office automation and computer-aided drafting.

(e) "Electronic Dissemination Package" (or "EDP") means the electronic files in Schedule 2 hereto containing the contents of the Tender Documents, the supporting information for using these electronic files and these Licence Conditions.

(f) "*Client* Amd No. 1/2026" means the Government of the Hong Kong Special Administrative Region.

(g) "Image File" means an electronic file which is stored in file formats that capture the printed image of the document.

(h) "Licensee" means the person who uses the EDP and includes, if the person acts on behalf of another person, that other person. Amd No. 1/2026

Amd No. 1/2026

(i) "Relevant File" means an electronic file that-

(i) is derived from duplication of any files in the EDP; or

(ii) contains any contents extracted from any files in the EDP.

[17] **To be inserted by department**

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(j) "Signed Editable File" means a file listed under the column "Signed Editable File" in Schedule 2 hereto containing the Digitally Signed version of an Editable File.

(k) "Signed Image File" means a file listed under the column "Signed Image File" in Schedule 2 hereto containing the Digitally Signed version of an Image File.

(l) "Special File" means a file listed in Schedule 3 hereto.

(m) "Sub-licensee" means a party licensed by the Licensee to use the EDP.

(n) "Tender" means the Amd No. 1/2026 **tender that may be submitted for the Contract.**

(o) "Tender Addendum" means a set of documents and its attachments in the form of electronic files issued before the Tender Closing Date to amend the tender documents.

(p) "Tender Closing Date" means the date and time set for the return of tender for the Contract.

(q) "Tender Documents" means the documents in the EDP issued for the tendering of the Contract, including:-

- **(i) the invitation to submit tenders and other documents issued together with it; and**
- **(ii) Tender Addenda.**

(r) "Triggering Event" means one of the following events-

- **(i) The Licensee does not submit a Tender by the Tender Closing Date;**
- **(ii) The Licensee receives notification from the *Client* Amd No. 1/2026 that his Tender is invalid;**
- **(iii) The Licensee receives notification from the *Client* Amd No. 1/2026 that his Tender is not accepted;**
- **(iv) The Licensee withdraws his Tender; or**
- **(v) The execution of the Articles of Agreement for the Contract.**

3. Words importing the singular only also include the plural and vice versa where the context requires. Words importing one gender (whether masculine, feminine or neuter) shall be taken to include any other gender where the context requires.

4. Subject to the provisions hereof, the *Client* Amd No. 1/2026 grants the Licensee, free of charge, a non-exclusive and revocable licence for using the EDP solely for the purpose of preparing the Tender. The Licensee shall not use the EDP for any other purpose. Amd No. 1/2026 **Save as aforesaid, all other rights in the EDP are reserved by the relevant copyright owners.**

5. The Licensee shall indemnify and keep indemnified the *Client* Amd No. 1/2026 against all losses, liabilities, damages, costs, legal costs, professional and other expenses

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of any nature whatsoever incurred or suffered by the *Client* Amd No. 1/2026 whether direct or consequential arising out of any disputes or other claims or proceedings against the *Client* Amd No. 1/2026 by any third party by reason of any breach by the Licensee of Clause 4 hereof.

6. (1) The licence for using the EDP shall expire within seven working days of the occurrence of a Triggering Event.

(2) Sub-clause (1) shall not apply if the Licensee is nominated as a sub-contractor or supplier in a tender submitted by a tenderer who is holding a valid licence to use the EDP (the "Relevant Licence"). In this case, the licence of the Licensee shall expire with the Relevant Licence. If there are more than one Relevant Licences, the licence shall expire with the last Relevant Licence.

(3) On or before the expiration date of the licence, the Licensee shall-

(a) either destroy the Relevant Files in his possession or retain them as archives; and

(b) ensure that all sub-licensees have either destroyed the Relevant Files in their possession or retained these files for archive purpose.

7. Any files kept as archives pursuant to Clause 6 shall not be used for any other purpose.

8. Subject to the following conditions, the Licensee may license other persons as Sub-licensees to use the EDP-

(a) The Licensee shall obtain from each Sub-licensee an undertaking in writing that the Sub-licensee shall not use the EDP for any purpose other than for the purpose of preparing the Tender;

(b) The Licensee shall be liable to the *Client* Amd No. 1/2026 for the breach of the undertaking referred to Amd No. 1/2026 in sub-clause (a) of this Clause by the Sub-licensees as if the breach were committed by the Licensee;

(c) The Licensee shall indemnify and keep the *Client* Amd No. 1/2026 indemnified against all losses, liabilities, damages, costs, legal costs, professional and other expenses of any nature whatsoever incurred or suffered by the *Client* Amd No. 1/2026 whether direct or consequential arising out of any disputes or other claims or proceedings against the *Client* Amd No. 1/2026 by any third party by reason of any breach of the undertaking referred to in sub-clause (a) of this Clause by the Sub-licensees as if the breach were committed by the Licensee;

(d) Provided that:-

(i) The Licensee shall not license any Sub-licensee to use the Special Files enumerated in Schedule 3 hereto; and

(ii) The Licensee shall not grant any Sub-licensee the right to license other parties to use the EDP.

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Schedule 1[18]

Contract No. _____

Contract Title _____

Department _____

Tender Closing Date[19] _____

[18] **To be completed by department**
[19] **Please also fill in the time.**

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Schedule 2 – Electronic Dissemination Package[20]

Tender Documents	Version no.	Signed Image File[21]	Signed Editable File[22]

[20] **To be completed by department**

[21] **the location and filename in the EDP (includes disk no., if the EDP contain more than one CD-ROM, and filename with full path information)**

[22] **the location and filename in the EDP (includes disk no., if the EDP contain more than one CD-ROM, and filename with full path information)**

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Schedule 3 – Special Files[23]
(Files not to be re-distributed by tenderers)

(List the file names of the special files in the EDP)

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[23] **To be completed by department**

Annex 3 to Appendix 6.34

Service Agreement
for Dissemination of Electronic Dissemination Packages

Agreement No. – [to be assigned]

THIS AGREEMENT is made day of between the Government of the Hong Kong Special Administrative Region ("the Grantor") and [insert the full name of the service provider] ("the Grantee") whose registered office is [insert address].

RECITALS

(A) The Grantee has requested for use of the Electronic Dissemination Packages for providing Internet Dissemination Service, Replication Service, and Value-added Services.

(B) The Grantor has agreed to grant to the Grantee right to use the Electronic Dissemination Packages subject to the terms and conditions as hereinafter contained.

IT IS AGREED by the Grantor and the Grantee as follows:-

1. Definitions and Interpretation

1.1 In this Agreement, unless the context otherwise requires-

(a) "Customer" means a person who uses RS, IDS or VAS.

(b) "Duplicate" means a removable medium or a set of removable media which is an exact duplicate of an EDP.

(c) "Electronic Dissemination Package" (or "EDP") means a removable electronic storage medium hosting the electronic files of the tender documents of a Works Contract issued by the Grantor through an Issue Notice.

(d) "Hosting Web Site" means the web site for hosting the IDS and VAS.

(e) "Internet Dissemination Service" (or "IDS") means the dissemination of the whole or parts of EDP's through a Hosting Web Site.

(f) "Issue Notice" means a notice in the form as set out in Schedule 2 hereto.

(g) "Licence Conditions" means the licence conditions stipulated in the Issue Notice for using an EDP.

(h) "Relevant File" means an electronic file that is derived from duplication of any files in the EDP or contains any contents extracted from any files in the EDP.

(i) "Replication Service" (or "RS") means the production of Duplicates and distributing them to Customers.

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(j) "Return Notice" means a notice in the form as set out in Schedule 3 hereto.

(k) "Licensed Services" means RS, IDS and VAS.

(l) "Service Proposal" means the Grantee's proposal on the service level of RS, IDS and VAS to be offered by the Grantee to their Customers.

(m) "Technical Specification" means a set of basic service requirements that the Grantee shall meet for providing RS, IDS and VAS.

(n) "Tender Closing Date" means the date and time set for the return of the tender stipulated in an Issue Notice.

(o) "Value-added Services" (or "VAS") means the value-added services to be provided by the Grantee using the contents of the EDP's.

1.2 Words importing the singular only also include the plural and vice versa where the context requires. Words importing one gender (whether masculine, feminine or neuter) shall be taken to include any other gender where the context requires.

1.3 The headings or notes in this Agreement are for ease of reference only and shall not limit or extend the interpretation of this Agreement.

2. Service Level

2.1 The Licensed Services provided by the Grantee shall comply with the Technical Specification contained in Schedule 1 hereto.

2.2 The Grantee shall provide the Licensed Services in accordance with the terms of this Agreement and the annexed Service Proposal dated [insert date of Service Proposal]. The Service Proposal shall form an integral part of this Agreement for all purposes.

2.3 In the event of any inconsistency between the provisions of this Agreement (excluding the Service Proposal) and those of the Service Proposal, the former shall prevail.

3. Issue of EDP's

3.1 The Grantor may issue EDP to the Grantee from time to time through the Issue Notices in Schedule 2 hereto. Upon receiving an Issue Notice, the Grantee shall collect at his own cost the EDP stated in the notice from the Grantor.

4. Licence

4.1 Upon the issue of an Issue Notice, the Grantor grants to the Grantee free-of-charge a non-exclusive and revocable licence for using the EDP stated in the notice to provide the Licensed Services.

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4.2 The licence granted in accordance with Clause 0 for an EDP shall expire within seven working days of the Tender Closing Date stipulated in the Issue Notice.

5. Return Notice

5.1 Upon the expiration of the licence, the Grantee shall return the completed Return Notice and shall include therein-

(a) a list showing the names and addresses of Customers who have obtained EDP's or parts of an EDP through RS, IDS or VAS;

(b) confirmation that all undistributed Duplicates have been destroyed; and

(c) confirmation that the EDP issued with the Issue Notice and the Relevant Files have either been destroyed, or kept by the Grantee as archive.

5.2 EDP's kept as archive may be used for verifying the authenticity of the Duplicates made from the EDP and for locating source of computer viruses and shall not be used for any other purposes.

5.3 Relevant Files kept as archive shall not be used for any other purposes.

6. Provision of Licensed Services

6.1 The Grantee shall provide the Licensed Services in accordance with the terms of this Agreement and the Service Proposal.

6.2 The Grantor may by written notice request the Grantee to provide evidence of compliance. The Grantee shall provide evidence to the satisfaction of the Grantor within 5 working days of such notice.

6.3 The Grantee shall provide the Grantor with all reasonable assistance in verifying compliance with Sub-Clause 0, including giving reasonable access to sections of the Hosting Web Site.

7. Indemnity

7.1 The Grantee hereby indemnifies the Grantor against all losses, liabilities, damages, costs, legal costs, professional and other expenses of any nature whatsoever incurred or suffered by the Grantor whether direct or consequential arising from any breach of this Agreement.

8. Warranty

8.1 EDP's are provided by the Grantor without any warranty, representation or undertaking on their fitness for any purpose. The Grantor, its employees or agents, shall not be responsible whatsoever for their fitness for any purpose.

9. Termination

9.1 The Grantor may terminate any licence granted pursuant to this Agreement by serving on the Grantee a 7-day notice in writing to this effect. Furthermore, the Grantor may terminate or revoke any licence granted forthwith by serving a notice in writing on the Grantee under any of the following circumstances-

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(a) the Grantee shall fail to perform or observe any of the obligations on its part to be performed or observed under this licence provided that in the case of a breach which is capable of being remedied, such breach has remained unremedied for a period of more than 10 days after written notice to remedy the same has been given to the Grantee;

(b) a winding-up resolution or petition in respect of the Grantee is passed or presented (otherwise than solely for the purpose of a bona fide reconstruction or amalgamation) or a receiver has been appointed over any of its assets.

9.2 Termination of the licence by the Grantor, for any reason, shall be without prejudice to its rights accrued on or at any time up to the date of termination.

10. Assignment

10.1 The Grantee shall not assign, mortgage, charge or otherwise transfer any rights or obligations under this Agreement, without the prior written consent of the Grantor.

11. Notices

11.1 All notices arising out of or in connection with this Agreement shall be served-

upon the Grantor, at [insert address of Environment, Transport and Works Bureau]; and

upon the Grantee, at [insert address].

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IN WITNESS HEREOF the parties hereto have hereunto set their hands the day and year first above written.

Signed by [insert name of Government's representative] for and on behalf of the Grantor in the presence of:	**)))))**
Signed by for and on behalf of the Grantee in the presence of:	**)))))**

_____
Name:
Position: Director

_____
Name:
Position: Director/Secretary

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Schedule 1
Technical Specification

1. Authentication

1.2 The Grantee shall implement to the satisfaction of the Grantor procedures for authenticating the identities of the Customers that use any of the Licensed Services.

2. Acceptance of Licence Conditions

2.1 The Grantee shall implement to the satisfaction of the Grantor the procedures for securing the Customers' acceptance of the Licence Conditions for an EDP before they are allowed to use the IDS or VAS that make use of the EDP contents.

3. Tender Addendum

3.1 The Grantee shall implement to the satisfaction of the Grantor procedures for notifying Customers of the issue of Tender Addendum.

4. Replication Services

4.1 Duplicates shall be exact duplicates of an EDP. The Grantee shall not alter any contents of EDP's in the replication process.

4.2 Each Duplicate shall be distributed by the Grantee-

(a) with a copy of the Licence Conditions stipulated in the Issue Notice for the EDP;

(b) in an envelope or other similar enclosures and sealed with a label containing the following notice-

"Please read the attached "Licence Conditions for Electronic Dissemination Packages" (the Licence Conditions) before opening this package. If you open this package, you will be deemed to have read the Licence Conditions and to have accepted them. If you do not agree with the Licence Conditions, please do not open this package and do return the package to [name of Grantee and address]."

5. Internet Dissemination Service (IDS)

5.1 IDS shall only be provided through the Hosting Web Site specified in the Service Proposal.

5.2 An exact copy of all files in the EDP shall be available in the Hosting Web Site for downloading by Customer using IDS. The Grantee shall maintain the original file and directory structure of the EDP when disseminating the EDP through IDS.

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Schedule 2 - Issue Notice for EDP

Issue Notice for EDP

To- [Name and address of Grantee]

In accordance with Agreement No. [insert agreement no.] dated [insert date of agreement], I enclose the EDP Reference [insert EDP Reference] for Contract No. [insert contract no.] – [insert contract title] for your use in providing the Licensed Services. The Tender Closing Date is [insert tender closing date and time].

The Licence Conditions for using the EDP Reference [insert EDP Reference] are attached.

Please collect the above mentioned EDP at [address for collecting EDP].

If you wish to obtain further information about the contract, would you please contact [insert name of subject officer responsible for the tender] at telephone no. [insert telephone no].

Yours faithfully,

([Name])
for [Head of Department or Office Head]

Acknowledge Receipt of EDP
(to be completed by Grantee and returned to the issuing office when collecting the EDP)

To- [Department]

We hereby acknowledge receipt of the EDP Reference [insert EDP Reference] and the Licence Conditions for using the EDP.

(chop of Grantee & date)
[Name of Grantee]

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Schedule 3 - Return Notice for EDP

To: [Name of department to be inserted]
[Address to be inserted]

EDP Reference –[reference to be inserted]

We refer to the EDP Reference [insert EDP reference] issued with Issue Notice of [insert date of Issue Notice].

We wish to provide the following return on the distribution of the EDP-

No. of Duplicates made	
No. of Duplicates distributed	

We confirm that all undistributed duplicates have been destroyed. We also confirm that the EDP Reference [insert EDP reference] issued with the Issue Notice and the Relevant Files have been-

- **permanently destroyed; or**
- **kept in this office as archive. We understand that the archive may be used for verifying the authenticity of duplicates of the EDP and for locating source of computer viruses. We undertake to seek the prior written approval of Environment, Transport and Works Bureau of the Government of Hong Kong Special Administrative Region for other uses.**

The following Customers have obtained duplicates of the EDP-

[insert names and addresses of Customers]

The following Customers have downloaded the EDP through Internet Dissemination Service or Value-added Services-

[insert names and addresses of Customers]

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Chop of Grantee **Signed for and on behalf of Grantee**

Signature _____
Name _____
Designation _____
Tel. No. _____
Fax No. _____
Date _____
Address _____

Annex 4 to Appendix 6.34

Appendix [&][24] to the General Conditions of Tender
Requirements for Tender Submission in Electronic Format

The following are the requirements for submitting tender in electronic format via the e-TS(WC).

1. In this Appendix, unless the context otherwise requires-

(a) "Digitally Signed", in relation to a file, means that such file has been Digitally Signed in accordance with paragraph 4 in this Appendix.

(b) "Editable File" means a file in the ESP which is stored in file formats that are editable using mainstream computer applications for office automation and computer-aided drafting.

(c) "Image File" means a file in the ESP which is stored in file formats that capture the printed image of the document.

(d) "Electronic Submission Package" (or "ESP") means all files submitted by a tenderer for this tenderer exercise via the e-TS(WC).

(e) "ETO" means the Electronic Transactions Ordinance (Cap. 553).

(f) "Organizational e-Cert" means a recognized certificate issued by a recognized certification authority to an organisation and which identifies a person who is duly authorised by the organisation to use the recognized certificate. "Recognized certificate" and "recognized certification authority" shall bear the meanings as assigned to them under the ETO

[24] **Insert appendix number**

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(g) "Registered User" means a person who holds a valid account on the e-TS(WC).

2. The ESP shall be submitted via e-TS(WC) and shall contain a "README.rtf" file in its root directory prepared in rich text format. This file shall contain at least the following information:

(a) general guidance on the use of the files in the ESP (e.g. the file naming convention, directory structure of the tender, software name and version for viewing the file);

(b) a list of all files submitted in the ESP with brief description of the contents of the file.

(c) information on the proper setting for viewing, editing, and printing the electronic files, including, without limitations-

(i) the printer to be used for printing the files;
(ii) the paper sizes;
(iii) requirements for special fonts;
(iv) any special printing instructions (e.g. the adjustment settings such as "shrink oversized pages to paper size", "expand small pages to paper size", etc. when printing PDF files); and
(v) software name and version for viewing the files.

(d) detailed instructions for viewing other type of electronic information or visualisation not covered in paragraph 5 of this Appendix.

3. During each upload, the maximum number of files and maximum file size that may be uploaded to each section of e-TS(WC) are set out in the table below. If the intended file(s) to be uploaded exceed the maximum number of files or maximum file size, the file(s) will not be successfully uploaded to e-TS(WC). The same restrictions apply for any subsequent uploads. Tenderers should take note of such restrictions and organise their uploads accordingly. For the avoidance of doubt, there is no restriction on the total number of uploads that may be made by a tenderer before the close of tender, nor on the total number of files so uploaded.

[***note to project office: Table below is for Formula Approach***.]

Section of e-TS(WC)	Maximum number of file	Maximum file size in total
"Upload Form of Tender"	**1**	**100MB**
"Upload Contract Data Part two"	**1**	**100MB**

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[*Only applicable to contracts adopting NEC-TSC, which require CDPII to be digitally signed*]		
"Upload Tender"	**20**	**10GB (each file size is limited to 500MB)**

[*note to project office: Table below is for Marking Scheme Approach.*]

Section of e-TS(WC)	Maximum number of file	Maximum file size in total
"Upload Form of Tender"	**1**	**100MB**
"Upload Contract Data Part two" **[*Only applicable to contracts adopting NEC-TSC, which require Contract Data Part two to be digitally signed*]**	**1**	**100MB**
"Upload Tender Price Document"	**4**	**2GB (each file size is limited to 500MB)**
"Upload Technical Submission"	**16**	**8GB (each file size is limited to 500MB)**

4. For the purpose of the General Conditions of Tender, Special Conditions of Tender and this Appendix, a file is Digitally Signed if and only if it complies with the following conditions: -

(a) It is signed using a digital signature as defined in section 2 of the ETO by the person(s) who is/are authorised to sign Government contracts. A person is authorised to sign Government contracts if the person is acting

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in the following capacity:

(i) if the tenderer is a sole proprietorship, the sole proprietor;

(ii) if the tenderer is a partnership, a partner of the partnership;

(iii) if the tenderer is a body corporate, a person who is duly authorized by the tenderer to sign Government contracts for and on behalf of the tenderer;

(iv) if the tenderer is an unincorporated joint venture, the sole proprietor, partner or authorized person, as the case may be, of each and every of its participants.

(b) For the avoidance of doubt, a file submitted by an unincorporated joint venture must be Digitally Signed by all of its participants;

(c) The digital signature is supported by an Organisational e-Cert issued to the tenderer or (for unincorporated joint venture) its participants, which identifies the person(s) who signs the file as authorised user of the Organisational e-Cert;

(d) The digital signature is generated within the validity of the Organisational e-Cert in accordance with section 6(2) of the ETO;

(e) The digital signature is used in accordance with the terms of the Organisational e-Cert;

(f) The digital signature is attached to the file in Public-key Cryptography Standards (PKCS#7) and (CAdES) such that the signed file is in .p7s format; and

(g) The Organisational e-Cert remains valid as at the earlier of (i) the date and time on which the file is submitted via the e-TS(WC); or (ii) the date and time on which the file is signed, if such information is generated in the form of a time stamp in the affixed digital signature.

5. (a) The following data formats shall be used for preparing the files in the ESP:-

Type of files	Editable Format	Image File
***bills of quantities / activity schedule** [25]	Excel (.xls or xlsx)	Not applicable
Other Schedules	Excel (.xls or .xlsx)	Portable Document Format (PDF)

[25] **Delete as appropriate for ECC. Amend as appropriate for TSC.**

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Type of files	Editable Format	Image File
Text files	**Rich Text Format; or Word (.doc or docx)**	**PDF**
Drawings	**Microstation DGN format; [26] AutoCAD format; Autodesk Drawing Exchange Format (DXF); or Initial Graphic Exchange Specification (IGES)**	**PDF**
Building Information Modelling (BIM)	***(Procurement Department to define and insert)***	**Not Applicable**
Animation	**HTML5**	**Not applicable**
Video, movie	**MPEG-1 (ISO 11172) MPEG-4 (ISO 14496)**	**Not applicable**
Slide presentation	**PowerPoint format (.ppt or pptx)**	**PDF**
Other types of documents, including scanned documents or scanned drawings	**Not Applicable**	**PDF**

The data formats and associated versions of files to be adopted in the ESP should adhere to the latest DPO Interoperability Framework which can be downloaded from the DPO website: -

https://www.digitalpolicy.gov.hk/en/our_work/data_governance/policies_standards/interoperability_framework/

(b) If more than one file formats are specified, files need to be provided/submitted in one of the specified formats only. If both Editable File and Image File are submitted, the Image File shall prevail.

(c) A file shall not contain any computer instructions, including but not limited to,

(i) computer viruses; and

(ii) macros, scripts and fields that depend on the execution environment and the execution of which will cause changes to the file itself or the information system displaying the electronic record in respect of the file.

[26] **Either AutoCAD or Microstation may be deleted if the receiving department cannot support the drawing file format.**

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6. **Tenderers shall prepare the files for *bills of quantities / activity schedule* [27] using the files in Excel format in the Tender Documents provided by the *Client*. The *bill of quantities / activity schedule* [27] shall only be submitted in Editable File format, i.e. the Excel format. Tenderers shall not modify cells that are locked and protected, failing which shall constitute a qualified tender and shall be handled in accordance with General Conditions of Tender Clause GCT 9.**

7. **Notwithstanding paragraph 6 above, the files for *bills of quantities / activity schedule* [27] may contain simple arithmetic for automatic calculation of the totals and sub-totals. However, any reference made in the arithmetic formula shall be within the same file and the automatic calculation shall not be dependent on other files.**

8. **As the conversion of drawing files to PDF format may slightly distort the scale of the drawing elements, line scales in both horizontal and vertical directions should be included in drawings files to enable correction factors to be made to compensate for distortion.**

9. **If other type of electronic information, for example, visualisation or modelling, not covered in paragraph 5 above is submitted with the ESP, software necessary for viewing the information shall be supplied with the submission. The software provided must be free of virus and can be run in mainstream PC under Windows operating environment. Necessary licence to use the software must be provided free of charge to the Government for viewing the information. Detailed instructions on setup, usage and removal of the software provided must be included in the ESP.**

10. **The account user or any sub-account user of a Registered User may use its password to login the e-TS(WC) and make the submission. The person who login to the e-TS(WC) may be different from the person who Digitally Signs the ESP.**

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APPENDIX 6.35 SAMPLE MEMO TO PSGO FOR APPROVED PROJECT ESTIMATE / ESTIMATED COST OF THE PROJECT FOR THE CONTRACT

RESTRICTED

MEMO

From		*To*	Secretary for Development
Ref.	*in*	*(Attn.:*	CAS(W)1
Tel. No.		*Your ref.*	*in* DEVB(PSGO)38/05
Fax. No.		*Dated*	27 June 2022
E-mail		*Fax No.*	2537 1961
Date.		*Total Pages*	

PWP Item xxxx – (Project Title)
Contract No. xxxx – (Contract Title)

Sum allowed in Approved Project Estimate / Estimated Cost of the Project for the Contract

I refer to your memo dated 27 June 2022 and hereby notify that the captioned contract is planned to invite tender on *[Date]*. Please find below the information pertaining to the contract:

Approved Project Estimate / Estimated Cost of the Project*	HK$XXX
Sum allowed in Approved Project Estimate / Estimated Cost of the Project for the Contract*	HK$XXX
Pre-tender estimate of the contract	HK$XXX

* delete as appropriate

(Office Name)
[Organisation]

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APPENDIX 6.36 SAMPLE MEMO TO PSGO FOR RETURNED TENDER PRICES OF THE CONTRACT

RESTRICTED

MEMO

From	*To* Secretary for Development
Ref. *in*	*(Attn.:* CAS(W)1
Tel. No.	*Your ref.* *in* DEVB(PSGO)38/05
Fax. No.	*Dated* 27 June 2022
E-mail	*Fax No.* 2537 1961
Date.	*Total Pages*

PWP Item xxxx – (Project Title)
Contract No. xxxx – (Contract Title)

Returned Tender Prices of the Contract

I refer to your memo dated 27 June 2022 and hereby notify that the tender was invited on *[Date]* and returned on *[Date]* with *[no.]* of tenders received. Please find below the information pertaining to the three highest combined score tenders:

Approved Project Estimate / Estimated Cost of the Project*	HK$XXX
Sum allowed in Approved Project Estimate / Estimated Cost of the Project for the Contract*	HK$XXX
Pre-tender estimate of the contract	HK$XXX

Combined Score Tenders	**Corrected / Uncorrected* Tender Prices/ Forecast Total of the Prices***
1st	HK$XXX
2nd	HK$XXX
3rd	HK$XXX

* delete as appropriate

(Office Name)
[Organisation]

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APPENDIX 6.37 DECLARATION AND UNDERTAKINGS BY CONSULTANTS' STAFF INVOLVED IN TENDER EXERCISE OF WORKS CONTRACTS
(Ref. SDEV's memo ref. ( ) in DEVB(PS) 106/43 dated 09.02.2024)

[Consultancy Agreement Reference and Subject]

[Tender Reference and Subject]

To: The Government of the Hong Kong Special Administrative Region ("Government")

I, **[*full name of staff*]** , **[*post title*]** , hereby declare that there is no conflict of interest, whether actual, potential or perceived, between the roles and duties assigned to me by **[Name of Consultants#]** in relation to the captioned tender exercise under the captioned Consultancy Agreement (hereafter refer to "my Duties") and my financial, professional, commercial, personal or other interests.

2. I undertake to —

(a) hold in strict confidence all tender information that I have access to through my Duties. Tender information includes, but is not limited to, details of tenders received and any other sensitive, restricted or confidential information relating to a tender;

(b) refrain from making any unauthorised disclosure or taking advantage of any tender information referred to in paragraph 2(a) above whether or not for personal gain;

(c) notify my employer of any actual, potential or perceived conflict of interest with my Duties immediately when I become aware of any such conflict;

(d) comply with my employer's directions in respect of how a conflict of interest described in paragraph 2(c) above shall be dealt with;

(e) take steps to avoid any conflict of interest with any potential tenderer or tenderer by not putting myself in a position of obligation towards any of them; for example, by not accepting any favour or lavish or excessive entertainment, and not over-socialising with any of them;

(f) 【perform my Duties on a professional and impartial basis in accordance with applicable professional standards in the Hong Kong and international markets;】 * and

(g) not to offer, solicit or accept any advantage as defined in the Prevention of Bribery Ordinance (Cap. 201 of the Laws of Hong Kong) in relation to my Duties.

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3. The undertakings in paragraphs 2(a) and (b) above shall not apply —

(a) if and when the disclosure and information therein referred to becomes a matter of public knowledge (other than by reason of a breach of paragraphs 2(a) and (b) above);

(b) to any communications or disclosures caused or permitted by me to the public officers of the Government who are or are expected to be involved in the course of their official duties in the captioned tender exercise or parts thereof;

(c) to any communications or disclosures caused or permitted by me to other staff of **[Name of Consultants#]** who are or are expected to be involved in the course of their duties in the captioned tender exercise or parts thereof under the captioned Consultancy Agreement; or

(d) to disclosures of any information in circumstances where such disclosure is required pursuant to any law, regulation, rule of any relevant stock exchange, or order of a court or arbitral authority of competent jurisdiction.

4. I agree that in the event of any breach or threatened breach of the provisions of this Declaration and Undertakings, money damages are unlikely to be a sufficient remedy and the Government shall be entitled, in the discretion of the court, to an injunction to restrain the said breach or threatened breach in addition to and not in lieu of any other equitable or any legal relief including damages.

Signed : _____

Name (block letters) : _____

Post : _____

Name of Consultant : _____

Date : _____

** Delete for non-professional staff*

 # If the Consultants who undertake the captioned consultancy agreement are in a form of joint venture, please insert the name of the joint venture.

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APPENDIX 6.38 TENDER CLOSING DATE REGISTRATION FORM (Ref. SDEV's memo ref. ( ) in DEVB(W) 546/94/02 dated 10.5.2024)

Notes		
This registration form is for registration for tender closing date of works contract under the ambit of the Central Tender Board and Public Works Tender Board that invites tenders via e-TS(WC) on or after 1 July 2024.		
Application Procedure		
Step 1. Procuring B/D fills in Section A and Section B. Step 2. Procuring B/D sends the duly completed form (in softcopy) to DEVB (e-TS Support Team email: ets@devb.gov.hk). This registration will normally take 2 working days for processing. Step 3. DEVB informs the result to the procuring B/D by email.		
Section A – Contact Information (to be completed by procuring B/D)		
Procuring Bureau / Department:		
Name of Officer:		
Post:		
Telephone No.:		
Email:		
Section B – Tender Information (to be completed by procuring B/D)		
Tender Reference / Contract No.:		
Subject / Contract Title:		
Proposed / Actual# Tender Invitation Date: (DD/MM/YYYY)		
Proposed Tender Closing Date: (DD/MM/YYYY)		Extension of Tender Closing Date : Y/N *
Category / Group / Class of Invited Contractors:		
Tender Board Note 1:	Central Tender Board / Public Works Tender Board*	
Type of Contract :	Design & Build / Non-Design & Build*	
Tender Evaluation Method:	Formula Approach / Marking Scheme Approach*	
Estimated File Size of Tender Documents Note 2:		MB / GB*
Estimated No. of Tender Submissions:		
Estimated File Size of Each Tender Submission Note 3:		MB / GB*

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Special Submission Requirements (if any) Note 4 :		Approval of DEVB has been sought for exempting from using e-TS(WC) for tender submission : Y/N *
For e-TS Support Team Use Only		
Received By：	Post：	Date：

* Delete as appropriate

\# For the case of extended tender closing date.

Note 1: Procuring B/Ds are required to notify the Central Tender Board or the Public Works Tender Board, as the case may be, of your tender invitation and provide them with the relevant information as set out in their respective memo ref. TsyB T 00/810-1/2/0 Pt. 2 dated 19 Oct 2023 and ref. ASD13/95200/TEN/CLOSE/DAT dated 9 November 2023.

Note 2: A reference for estimated file size is available at DEVB Works Group Intranet Portal (Home > Procurement & Costing > e-Procurement) which will be updated from time to time.

Note 3: Procuring B/Ds are required to estimate the no. of tender submissions based on past experience in similar works contracts, no. of contractors to be invited and other relevant factors.

Note 4: For works tenders involving special submission requirements (e.g. physical models, tender submission in special file formats, tender submission of very large file size, etc.) that the use of e-TS(WC) for tender submission may not be found suitable, procuring B/Ds are required to seek approval from DEVB for exemption with justification provided. However, for works tenders so approved for exempting from using e-TS(WC), the notices of tender invitation, uploading and disseminating tender documents, supplementary information and addenda by procuring B/Ds, downloading relevant documents by tenderers, handling tender correspondence or clarifications, submission of tender reports to the tender board and announcement of tender awards shall still be made via e-TS(WC).

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APPENDIX 6.39 SAMPLE LETTER TO NOTIFY TENDERER ON IRREGULARITIES IN SUBMITTING TENDER VIA e-TS(WC)

(Contractor)……

(Address)……
……

Dear Sirs,

Contract No. :……..
Title:……

I refer to your tender dated _____ for the above Contract.

@Unopened files submitted via e-TS(WC)

Please be informed that we found the following file(s) submitted via the e-TS(WC) *cannot be opened / *is contaminated with computer virus:

……
……
……

In accordance with Clause [GCT 4(5)][#] of the General Conditions of Tender, the above-mentioned file(s) has/have been discarded and not been considered. *The *Project Manager* designate has used the hard cop(ies) of the above-mentioned file(s) submitted for tender evaluation. You are strongly recommended to double-check the integrity of your files before submission to avoid similar occurrence in future tendering exercises.

@Additional file(s) without clear statement in accordance with Clause GCT 10(1)(b)

You have submitted additional file(s) to the e-TS(WC) before the close of tender but certain additional file(s) does not contain a sufficiently clear statement drawing the *Client*'s attention as to which error(s) is to be rectified and/ or which specific file(s) or part(s) thereof in the tender is to be replaced or supplemented.

*In accordance with Clause [GCT 10(1)(b)][#] of the General Conditions of Tender, if it is unclear to the Client which file(s) or part(s) thereof in the tender is to be rectified, replaced or supplemented, the additional file(s) *[and/or part(s) thereof] which is unclear will be discarded and not be considered. You are strongly recommended to double-check your additional file(s) before submission and ensure that it contains a sufficiently clear statement as required under Clause [GCT 10(1)(b)][#] to avoid similar occurrence in future tendering exercises.

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Yours faithfully,

_____

( )

c.c.
DEVB (Attn: AS(WP4)7)

Legend

@ Include this section if relevant
# Insert correct reference
* Delete as appropriate

Amd No. 2/2025

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CHAPTER 7

CONTRACT MANAGEMENT

The parts of the PAH shown in blue and bold should only be updated by Works Branch of Development Bureau.

Rev	Issue Date	Amendment Incorporated
First Issue	December 2024	NA
1	17 March 2025	Amd No. 1/2025
2	16 April 2025	Amd No. 2/2025
3	15 July 2025	Amd No. 3/2025

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SYNOPSIS

This Chapter provides reference and general guidelines on management of civil engineering contracts. It is basically written for capital works contracts and reference is made to the General Conditions of Contract for Civil Engineering Works (1999 Edition) (GCC).

To cater for the wider adoption of New Engineering Contract (NEC) form in public works projects, DEVB has promulgated the "Practice Notes for New Engineering Contract – Engineering and Construction Contract (NEC–ECC) for Public Works Projects in Hong Kong" (referred to as "the Practice Notes") aiming to provide guidance, performance benchmarking and alignment of practices in the administration of public works projects using NEC form. The most updated version of the Practice Notes is available at DEVB's website:

https://www.devb.gov.hk/en/publications_and_press_releases/publications/standard_contract_documents/practice_notes_nec_engineering_construction_contract/index.html

Whilst the guidelines provided in this Chapter were originally written for contract management under GCC, the majority of them can still be applied to contract management under NEC. Where appropriate, this Chapter shall be read in conjunction with the Practice Notes for relevant subjects of contract administration. In addition, project officers shall refer to the relevant guidelines or practice from corresponding Works Departments regarding how the duties of the Engineer / Architect / Surveyor / Supervising Officer under GCC form contracts would be taken up by the Project Manager / Supervisor under NEC form contracts. Please also refer to paragraph II.04 in this Chapter for the comparison of common terminologies used under GCC and NEC–ECC.

Owing to the complicated and complex nature of contract management, the guidelines provided in this Chapter shall in no way be construed as directives overriding the powers and responsibilities of the Engineer/Engineer's Representative under GCC form contracts and the Project Manager/Project Manager's Representative/Supervisor under NEC form contracts who shall always make their own decisions under their contracts' provision.

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I. ABBREVIATION

I.01 The meaning of the abbreviations assigned in this Chapter of the Project Administration Handbook for Civil Engineering Works shall only apply to this Chapter.

I.02 The following list shows the meaning of the abbreviations for the common terms used in this Chapter of the Project Administration Handbook for Civil Engineering Works (PAH):

Abbreviation	Term
AC No.	Accounting Circular No.
AFCD	Agriculture, Fisheries and Conservation Department
AIOW	Assistant Inspector of Works
AMO	Antiquities and Monuments Office of the Leisure and Cultural Services Department
APE	Approved Project Estimate
Arch SD	Architectural Services Department
BQ	Bills of Quantities
C of IR	Commissioner of Inland Revenue
C&SD	Census and Statistics Department
CEDD	Civil Engineering and Development Department
CIC	Construction Industry Council
CTA(F)	Chief Treasury Accountant (Finance)
CSSM	Construction Site Safety Manual
D of J	Department of Justice
D&B	Design and Build
DEVB	Development Bureau
DEVB TCW No.	DEVB Technical Circular (Works) No.
DLO	District Lands Office
DSD	Drainage Services Department
DSDTC No.	Drainage Services Department Technical Circular No.
E&M	Electrical and Mechanical
EACSB	Engineering and Associated Consultants Selection Board EACSB
EMSD	Electrical and Mechanical Services Department
EOT	Extension of Time
EPD	Environmental Protection Department
ER	Engineer's Representative
ETWB	Environment, Transport and Works Bureau
ETWB TCW No.	ETWB Technical Circular (Works) No.
FC No.	Financial Circular No.
FSTB	Financial Services and the Treasury Bureau

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Abbreviation	Term
FSTBCM No.	Financial Services and the Treasury Bureau Circular Memorandum No.
GC No.	General Circular No.
GCC	General Conditions of Contract for Civil Engineering Works (1999 Edition)
GEO	Geotechnical Engineering Office
GS	General Specification for Civil Engineering Works (2020 Edition)
HAD	Home Affairs Department
HKPF	Hong Kong Police Force
HyD	Highways Department
HyD TC No.	Highways Department Technical Circular No.
ICAC	Independent Commission Against Corruption Amd No. 3/2025
IOW	Inspector of Works
LA(W)	Legal Adviser (Works)
LAD(W)	Legal Advisory Division (Works)
Lands D	Lands Department
LCSD	Leisure and Cultural Services Department
LD	Labour Department
LWBTC No.	Lands and Works Branch Technical Circular No.
MD	Marine Department
MPF	Mandatory Provident Fund
MPFSA	Mandatory Provident Fund Schemes Authority
MTRCL	MTR Corporation Limited
NEC	New Engineering Contract
NEC-ECC	New Engineering Contract – Engineering and Construction Contract
OVT	Old and Valuable Tree
PAH	Project Administration Handbook for Civil Engineering Works
PCFB	Pneumoconiosis Compensation Fund Board
PS	Particular Specification
PSTsy	Permanent Secretary for Financial Services and the Treasury (Treasury)
PWCL	Public Works Central Laboratory
PWDTC No.	Public Works Departmental Technical Circular No.
PWL	Public Works Laboratories
PWP	Public Works Programme
PWRL	Public Works Regional Laboratories
PWSC	Public Works Subcommittee
RPE	Registered Professional Engineer
S for J	Secretary for Justice

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Abbreviation	Term
S for Tsy	Secretary for the Treasury
S for W	Secretary for Works
SCA	Subcommittee on Access under the Rehabilitation Advisory Committee
SCC	Special Conditions of Contract
SCCT	Standing Committee on Concrete Technology
SCE	Special Conditions of Employment
SDEV	Secretary for Development
SE	Senior Engineer
SFST	Secretary for Financial Services and the Treasury
SMM	Standard Method of Measurement for Civil Engineering Works (1992 Edition)
SO(Q)	Survey Officer (Quantity)
SPRs	Stores and Procurement Regulations
SSO(Q)	Senior Survey Officer (Quantity)
STA	Senior Treasury Accountant
VO	Variation Order
VTC	Vocational Training Council
WBTC No.	Works Bureau Technical Circular No.
WSD	Water Supplies Department
WTO GPA	World Trade Organization Agreement on Government Procurement

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II. GLOSSARY OF TERMS

II.01 Words and expressions to which meanings are assigned in this Chapter of the Project Administration Handbook for Civil Engineering Works (PAH) shall only apply to this Chapter.

II.02 In this Chapter of the PAH the following words and expressions shall have the meaning hereby assigned to them except when the context otherwise requires:

"Government" means the Government of the Hong Kong Special Administrative Region.

"project office" means the office responsible for the planning, design and construction of the project. (Where these functions are performed by different offices at different stages, the project office shall mean the office responsible at each particular stage.)

"Contract", "Contractor", "Drawings", "Employer", "Engineer" and "Engineer's Representative" are as defined in the General Conditions of Contract for Civil Engineering Works (1999 Edition) or the General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition).

"Schedule of Rates" and "Works Order" are as defined in the General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition).

II.03 Words importing the singular only also include the plural and vice versa where the context requires.

II.04 The common terminologies used in GCC and NEC–ECC are compared in the table below.

GCC	**NEC–ECC**
Extension of time, variations, claims, disruptions, loss and expenses	Compensation events
Bills of Quantities / Schedule of Rates	Bill of Quantities / Activity Schedule
Architect / Engineer / Surveyor / Supervising Officer	Project Manager / Supervisor
Site	Site / Working Areas
Contract Sum	The Prices
Date of completion	Completion Date
Estimated value of works	Price for Work Done to Date
Maintenance Periods	Defects date, defect correction period

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1. ACTION CHECKLIST AT COMMENCEMENT OF CONTRACT

The checklist in this Section 1 (for commencement of contract) and Section 2 (for completion of contract) provide a fairly comprehensive list of actions to be taken but it may not cover all situations. Individual offices/divisions should extract this list, expand it if necessary to include internal procedures of the office/division concerned, and make it a standard requirement for a copy of the check-list to be kept in the relevant project file and project handbook. The Engineer's Representative (ER) should record in the "Remarks" column of the checklist the file reference and other relevant information when action on any item is completed.

Item No.	Procedure	Reference	Remarks
1	ACTIONS BY THE ENGINEER		
1.1	Notify Contractor of the date for commencement of the Works	-	
1.2	Notify Chief Treasury Accountant (Finance) CTA(F) of Development Bureau (DEVB) of contract number, name of contractor, contract title, name of department, contract approval date and awarded contract sum	-	
1.3	Inform Contractor of the name and delegated authorities of the ER	4.1	
1.4	Confirm and arrange method of payment	7.1	
1.5	Issue Forms to Construction Industry Council (CIC) & Pneumoconiosis Compensation Fund Board (PCFB)	21.1	
1.6	Send notification to Vocational Training Council (VTC), CIC and/or Electrical and Mechanical Services Department (EMSD)	21.1	
1.7	Send Mandatory Provident Fund (MPF) form to Mandatory Provident Fund Schemes Authority (MPFSA)	21.1	
1.8	Notify Labour Department (LD)/Marine Department (MD) of the commencement date and other details of the Contract	11.3	
1.9	Inform SCA of contact channel	10.2	
1.10	Provide Contractor with information for preparation of Waste Management Plan/ Environmental Management Plan	12.5.3/ 12.9	
1.11	Send master programme and CV of nominated	4.3	

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Item No.	Procedure	Reference	Remarks
	geotechnical supervision personnel to Geotechnical Engineering Office (GEO)		
1.12	Hand over the Site to Contractor	3.1	
1.13	Provide survey control points and beacon marks	3.2	
1.14	Determine the types and format of site records to be kept	5.1	
1.15	Issue "Registration Form for Testing of Construction Materials" to Public Works Laboratories (PWL)	-	
1.16	Submit "Summary Details of Contract" to the Departmental Safety and Environmental Adviser	11.5	
1.17	Central acceptance and distribution of contract preliminary items	21.18	
2	ACTIONS BY THE CONTRACTOR		
2.1	Submit details of managerial and technical staff and site supervision structure	4.2.1	
2.2	Nominate Site Agent	4.2.2	
2.3	Nominate surveyor(s)	4.2.3	
2.4	Nominate Safety Officer/Supervisor	4.2.4 & 11.2	
2.5	Nominate Construction Engineer and Construction Supervisor for piling works	4.4	
2.6	Nominate Labour Relation Officer (LRO (with title currently unified as ACO(LR)))	4.5	
2.7	Submit details and particulars of the technician apprentices, and building and civil engineering graduates employed (if any)	4.2.5	
2.8	Submit Programme of Works	6.1	
2.9	Submit details of project signboard	3.5	
2.10	Obtain approval for the Engineer's site accommodation	-	
2.11	Obtain approval for the Contractor's site accommodation	3.3	
2.12	Submit details of Safety Plan (where required)	11.9 &	

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Item No.	Procedure	Reference	Remarks
		11.10	
2.13	Submit Waste Management Plan/ Environmental Management Plan (where required)	12.5.3/ 12.9	
2.14	Submit first detailed version of Sub-contractor Management Plan (SMP) (where required)	21.14	
2.15	Circulate to obtain latest utility information	10.1	
3	JOINT ACTIONS BY BOTH PARTIES		
3.1	Carry out joint initial survey and agree survey results	3.2	
3.2	Arrange site security to be set up	3.4	
3.3	Take photos of the Site and surroundings before commencement of the Works	3.1 & 5.12	
3.4	Decide locations where settlement/movement of the Site or structures should be monitored	5.18(c)	

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2. ACTION CHECKLIST ON COMPLETION OF CONTRACT

Item No.	Procedure	Reference	Remarks
1	Hand back land/Works Area formed under the Contract to District Lands Office (DLO)	3.7 & 18.1.3	
2	Hand over completed Works to operation/maintenance departments/divisions	3.7 & 18.1.2	
3	Prepare list of outstanding works	18.1.4	
4	Issue completion certificate(s)	18.2.1, 18.2.2 & 18.2.3	
5	Release of security deposit/surety bond, if any	18.2.4	
6	Prepare as-constructed drawings and survey plans, and forward to appropriate authorities	5.3 & 18.3.6	
7	Forward as-constructed drawings, design calculations, operation and maintenance manuals, warranty certificates, etc., where applicable, to operation/ maintenance departments/divisions	18.3.7	
8	Issue maintenance certificate	18.3.3	
9	Release of retention money	18.3.4	
10	Prepare report on completion of the Contract	18.3.5	
11	Finalise valuation of variations and settle claims	13.3 & 14.2	
12	Finalise and agree site measurements and record of materials and equipment provided by Government	5.5 & 5.14	
13	Prepare final payment certificate	7.3	
14	Issue Forms to CIC & PCFB	21.1	
15	Check return for electronic drawings from Contractor (if any)	18.3.8	
16	Arrange custody of site records and documents	5.19	

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3. THE SITE

3.1 HANDING OVER TO CONTRACTOR

According to the General Conditions of Contract, on the date for commencement of the Works notified by the Engineer, the Contractor should be given possession of so much of the Site as may be required to enable the Contractor to commence and proceed with the construction of the Works in accordance with his programme, unless the Contract makes specific provision for phased possession of Portions of the Site. If phased possession is not stated in the Contract, the general policy is to hand over the whole of the Site to the Contractor on the date for commencement of the Works.

Whenever possible, the project office should arrange to take over the Site from the appropriate District Lands Office (DLO) of the Lands Department (Lands D) or the existing occupier on the same date as that of handing over the Site to the Contractor so that continuous control may be exercised to prevent illegal occupation or dumping.

Relevant details of the handing over of the Site or any Portions, which should include a plan clearly showing the areas handed over, should be confirmed in writing to the Contractor. A copy of the same plan should be sent to the appropriate DLO together with written confirmation that the Site has been handed over and stating the period for which the areas will be occupied by the Contractor. A further copy of the plan should be sent to the Lands Administration Office, Lands D, if applicable. Details concerning the preparation of the plan are given in Chapter 3 (Land Matters).

When the Contractor takes possession of the Site or any part, the existing features of the Site and the area adjacent to the Site are to be extensively photographed with particular emphasis on the condition of adjoining properties or amenities. See also paragraph 5.12.

Should it occur that possession of the whole of the Site on the date notified for commencement or the possession of a portion of the Site on the specified date is not possible, then the extent of any delay to the progress of the Works caused by the non-possession is to be established and recorded at the time.

3.2 JOINT SURVEY AND SETTING OUT

Survey work associated with a construction contract and required by the project engineer is normally carried out by the survey section of the project office (or survey division of the project department), except that where consultants are employed to supervise the Contract such survey work will usually be carried out by surveyors of the consultant's site establishment. In carrying out different types of survey work, reference should be made to "Engineering Survey Practice Guides for Works Projects" which is available at Civil Engineering and Development Department (CEDD) Amd No. 3/2025 website (https://www.cedd.gov.hk/eng/publications/standards-spec-handbooks-cost/index.html) or Lands D website (https://www.landsd.gov.hk/en/resources/survey-related-guides.html).

Setting out of the limits of the Contract or the Site should be carried out in conjunction with the Contractor and Estate Surveyor of the appropriate DLO, and if appropriate, the Lands Administration Office, Lands D. If it is necessary to readjust private

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lot boundaries, this should be done by the appropriate District Survey Office of the Lands D.

The project engineer should arrange to establish a sufficient number of control points and benchmarks to enable the Contractor to set out the Works. These points should be well constructed and, as far as is practical, located so that they will not be disturbed as the Works proceed. Regular checking should be done during the Contract to ensure that such points are correct. The control points and benchmarks should be provided to the Contractor in appropriate forms and diagrams, or plotted on the Dimensioned Plan with their co-ordinates and levels listed. The Dimensioned Plan shall be issued as a contract drawing to the Contractor. In order to enable speedy map revision work, a copy of the Dimensioned Plan or setting-out plan should be sent to DD/SM (Attn: Technical Division, Survey and Mapping Office (SMO)) of the Lands D.

Before the commencement of any work, the original ground levels and details of existing features including trees to be preserved with tree protection zone, trees to be transplanted or felled on the Site should be established by a survey carried out jointly with the Contractor. The results of the survey should be agreed with the Contractor and recorded in the form of drawings.

The project office shall seek the prior agreement of DD/SM if, during the progress of work, it is found necessary to deviate from the agreed Dimensioned Plan.

3.3 MANAGEMENT

When formal notice is given by the Engineer to the Contractor to commence work, the Contractor must be required to take charge of the Site, and immediately he takes possession of the Site, be responsible for its care and control, including keeping it clean and clear of illegal occupation. If any illegal occupation is found on the Site, the Contractor should initiate eviction action, provided it is specified under the Contract, such as in the Particular Specification (PS). If unsuccessful, the case should be reported to the appropriate DLO and the Police for assistance to clear the illegal occupation.

The Contractor must be fully aware of and comply with any restrictions on the use of the Site as specified in the Contract, especially the clauses in the Engineering Conditions with respect to Temporary Government Land Allocations for land such as works areas. Close liaison should be maintained with the Lands D and, where necessary, the District Office to avoid unnecessary friction with private individuals.

All site offices and other temporary structures required for the Works should, wherever possible, be sited together in one or two defined areas to assist recognition by the staff of the Lands D.

If any site offices or temporary accommodations are to be erected on Site which may conflict with the permanent works or in areas which may have to be handed back to the Lands D before the whole of the Works are completed, the implications should be carefully considered and appropriate conditions should be added to avoid claims from the Contractor regarding any necessary vacation and re-erection of the site offices or temporary accommodations.

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If a temporary structure is required on a Works Site that cannot be defined in the contract documents, such as in term contracts, the form, "Consent to Erect Temporary Structure on Contract Works Site" (Appendix 7.1), should be issued. Sites for such structures should be jointly selected by representatives from the DLO and project office/department before the form is issued.

3.4 SECURITY

(a) In general, works areas, site formation areas, public filling areas and borrow areas in urban districts and in rural recreational areas should preferably be shielded from view by means of hoardings. However, a hoarding should not be provided under the following circumstances:

(i) If it will have to be removed within 6 months, or

(ii) If it will unduly obstruct traffic.

Reference should be made on any mandatory requirements for the provision of hoarding under the Air Pollution Control (Construction Dust) Regulation. These requirements should prevail over any other requirements that may be specified in the Contract.

(b) If the provision of hoarding is impracticable, then a chain link fence or portable barrier should be provided.

(c) The works area where the Engineer's offices are situated should be properly fenced off, locked and, if necessary, manned with a watchman at night.

(d) Appropriate signs should be put up at prominent locations, declaring this is a construction site and trespassing will not be permitted.

(e) Close liaison should be maintained with local Police Station who are requested to pay special attention to the works area during the daily patrolling especially at night.

(f) Equipment, especially that of a portable type, should be kept under lock and key.

3.5 PROJECT SIGNBOARD

3.5.1 Size and Location

The project signboard must always be of appropriate size (see paragraph 3.5.2 below) and in the appropriate location to achieve the desired result. On occasions, more than one project signboard may be required for a particular project or it may be desirable for a project signboard to be illuminated at night.

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3.5.2 Details of Project Signboard

(a) The design, size and construction and other relevant details of the project signboard shall be as per the relevant departmental standard drawings.

(b) Major project signboards are to carry, in both Chinese and English, a brief project title, a simple description of the project or the benefit to the community to be derived from the project, and a large, simple artist's impression of the completed project or the construction in progress as viewed from the location of the project signboard. The estimated completion date is to be stated and it is preferable to express this date by saying, for example, "mid-2004" or "early 2005" to allow for possible extensions of time. Subject to the approval of the relevant Director, the estimated cost may be given. The attached side of project signboard is to carry the department logo and the name, in Chinese and English, of the department under the control of which the project is being executed. With the approval of the Chief Engineer, the names of Consultants, Contractors and Sub-Contractors engaged on the project may be displayed on the Consultants/Contractors names board. Consultants' names may be displayed on this subsidiary project signboard in the format approved or recommended by the professional institution to which they belong. In no case should a consultants'/contractors' project signboard be permitted to compete with, detract from or in any way overshadow the Government project signboard.

(c) Minor project signboards are to carry all the information included on major signboards with the exception of the artist's impression.

(d) The colours of the lettering, characters, dividing lines and background shall be as shown on the relevant departmental standard drawings. Chinese characters are to have the same prominence as English letters.

3.5.3 Erection, Maintenance and Removal

The erection, maintenance and removal of project signboards stated in the Contract shall be in accordance with GS Clause 1.48.

3.6 TEMPORARY UTILITY SUPPLIES

On behalf of the Contractor, when deemed appropriate and subject to funds being available, and having taken regard of available options, the project engineer should make an advance application for temporary supply of electricity, water and telephone services before the award of the Contract in order to expedite the availability of such services shortly after commencement of the Works.

Expenses for the temporary utility supplies are to be met by the Contractor. However, as the Contract will not have been signed and sealed at the time of making an advance application for temporary supplies, it should be noted that any fees paid by the project office are unlikely to be recoverable from the Contractor unless a Special Conditions of Contract (SCC) clause and specific contractual provisions including PS clause is written in to this effect. The Contractor shall be responsible for the maintenance and subsequent removal of the temporary supplies, and all fees in connection with the supplies.

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3.7 RE-POSSESSION ON COMPLETION

(a) On completion of the whole or any Section of the Works, the Site or part of the Site should be re-possessed in the following manner, to ensure continuous control:

(i) The area permanently occupied by the Works should be handed over to end-user/operation/control/maintenance departments or to the authority responsible for further work in the area. Upon completion of handing over, the project office must inform the appropriate DLO of the arrangement made so that the appropriate records can be updated.

(ii) Remaining areas should be handed back in the agreed condition to the appropriate DLO or other department on management and maintenance of these areas. These areas shall include the land not occupied by the Works on the ground, but with Works above or below ground across such land.

(b) Re-possession and handing over should normally be by a joint inspection followed by an exchange of memoranda and drawings, if necessary. If the Site is handed over to another Division/Office for further work, the appropriate DLO must be advised. See Chapter 3 for further information on handing over the Site or part of the Site.

3.8 SITE ACCOMMODATION FOR RESIDENT SITE STAFF

The size of site accommodation has been determined with reference to the number and rank of resident site staff (RSS) required and stipulated in the particular specification (see Chapter 5 paragraph 6.3.1 for details). The site staff shall not accept site accommodation with size deviated from the contract specification, unless prior approval has been sought from the Employer.

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4. SUPERVISING PERSONNEL

4.1 ENGINEER'S STAFF

Immediately on signing the Contract, the Engineer should advise the Contractor of the names of the Engineer's Representative(s) (ER) who will represent him in supervising the Works. The duties and powers, which the Engineer will delegate to the ER(s), should be identified and communicated in writing to the Contractor.

4.2 CONTRACTOR'S STAFF

GCC Clause 18 requires the Contractor to employ skilled, experienced and competent staff in carrying out the Works. It is therefore necessary that the contract documents stipulate the minimum requirements and qualifications of the staff stated in paragraphs 4.2.1 to 4.2.6 who are employed on the Contract. The Engineer has to be satisfied that these staff members meet the contract requirements and that the Contractor has fulfilled his obligations under the Contract.

4.2.1 Technical Resources and Site Supervision Structure

For contracts tendered with marking scheme approach in accordance with DEVB TCW No. 4/2014 and 4/2014A, the Contractor shall submit a site organization chart on a monthly basis showing the details of the managerial and technical staff and the site supervision structure for the Engineer's checking/agreement. If there is a change in the site key staff, it shall be reported to the Engineer. The technical resources on managerial and technical staff and the technical proposal on site supervision should be checked against the Contractor's "Technical Submission" made at the tendering stage to ensure that adequate site supervision will be provided by the Contractor. In the event the Contractor is unlikely to provide or maintain any staff of the management team submitted by the Contractor in his Tender submissions on technical resources or necessarily inferred therefrom, he shall report to the Engineer as soon as practicable.

4.2.2 Site Agent

The Contractor should submit for approval within 7 days after the date for commencement of the Works the name and particulars of the site agent who will represent the Contractor on the Site. The qualification and experience of the Contractor's site agent should comply with the requirements of the Contract.

4.2.3 Surveyor

The Contractor should submit for the Engineer's information the name and particulars of the person employed to set out the Works within 7 days of his appointment. The person should be competent and experienced and possess the academic and professional qualifications acceptable to the Engineer and appropriate to the nature of the survey work required for the Contract.

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4.2.4 Safety Officer

Where the Contract requires the employment of a Safety Officer(s), the Engineer should check whether the Safety Officer(s) proposed by the Contractor has the relevant training, knowledge and experience as required in the Contract. Refer to paragraph 11.2 for further details regarding the employment of a safety officer(s)/supervisor.

4.2.5 Technician Apprentices and Building and Civil Engineering Graduates

In accordance with ETWB TCW No. 12/2003, Approved Contractors for Public Works on the List are required to employ technician apprentices, or building and civil engineering graduates. The ER should keep records and report the number of technician apprentices, building and civil engineering graduates in the Contractor's Performance Report. The project office should report to Development Bureau (DEVB) of any deficiencies according to the circular.

4.2.6 Registered Skilled Workers and Registered Semi-skilled Workers

In accordance with DEVB TCW No. 4/2017, all public works contracts, including design and build contracts and term contracts, tendered on or after 15 July 2017, shall employ the minimum number of registered skilled workers and registered semi-skilled workers. Random site checks for compliance with the said Technical Circular will be carried out by site supervisory staff .

For public works contracts tendered before 15 July 2017 and adopting the contract provisions under Works Bureau Technical Circular No. (WBTC No.) 13/2002, which requires the employment of qualified tradesmen and intermediate tradesmen, works departments are no longer required to verify contractors' monthly submissions on the qualification of their workers with a view to simplifying administrative requirement, however, site supervisory staff should continue carrying out random compliance checks by site inspections or checking contractors' records.

4.3 SUPERVISION FOR GEOTECHNICAL WORKS

In accordance with ETWB TCW Nos. 29/2002, 29/2002A and 15/2005, the project office shall ensure that suitably qualified and experienced geotechnical supervision personnel are appointed to supervise the geotechnical works (including the associated temporary works and blasting activities, the construction of which could pose significant risk to public life and property) and the ground investigations under the Contract. The geotechnical supervision personnel shall ensure that the works carried out on site comply with the design, any specified working procedure and contractual acceptance limits. They shall inspect and check the actual site conditions encountered and the critical items of works/working procedure and validate the design assumptions and the buildability of the works. The supervision personnel shall have the authority and responsibility to carry out any necessary design review, design modifications and specification of preventive/mitigation/remedial measures to ensure that the works meet the design objectives. They shall make a design amendment submission to the GEO prior to commencement of the works through the project office or its consultants, should there be any significant changes in the design after the design review.

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Guidance on the recommended minimum requirements for geotechnical supervision is at Appendix 7.47. The project office shall provide the GEO with a copy of the master programme for the works contract and the curriculum vitae of the nominated geotechnical supervision personnel on commencement of the contract for comment.

For projects involving compaction of new fill slopes, the Department responsible for a contract (its consultant where one is employed) must take adequate provision well before the start of a contract for site supervision and compaction control testing, to ensure that the requirement as stipulated in the "General Specification for Civil Engineering Works (2020 Edition)" is achieved. The Engineer/Architect/Supervising Officer for the project will be held personally responsible for ensuring compliance with the specification. (Subsumed from PWDTC No. 13/78)

For geotechnical works relating to slopes, retaining walls, tunnel works, ground investigation works and foundation works in Scheduled Areas Nos. 2 and 4 and in the Designated Area of Northshore Lantau, involving design or alternative design by the Contractor, the project office shall agree with the GEO the site supervision requirements for these works prior to tendering.

For a Design and Build (D&B) contract and for works involving design or alternative design by the Contractor for a non D&B, the Designer, Design Checker or Independent Checking Engineer should carry out site inspection to confirm the design and amendments of design and shall report the findings to the Category I supervision personnel.

For projects involving tunnel works, the project office shall consult the GEO on the minimum requirements for the site supervision personnel that the Engineer/Architect/ Supervising Officer (E/A/SO) and the Contractor should employ for supervising the different types of tunnel works under the Contract (see ETWB TCW No. 15/2005). The project office shall submit to the GEO details of the E/A/SO's and the Contractor's site supervision arrangement and management structure, including the curriculum vitae of the key site supervision personnel, and their duties, responsibilities, authority and lines of reporting, prior to the commencement of construction of the tunnel works. The GEO may audit the documents submitted and carry out site audits.

Guidelines on the requirements for site supervision relating to ground investigation works and foundation works in Scheduled Areas Nos. 2 and No. 4 and in the Designated Area of Northshore Lantau are given in ETWB TCW No. 4/2004.

For projects involving blasting for rock excavation, the project office shall consult the GEO on the minimum requirements of the resident site supervision team and the Contractor's supervision team, including any requirement for geological input for the blasting works.

In general, the resident site supervision team should include at least one Competent Supervisor with at least four years' relevant experience in blast design and supervision of blasting works. For large or complex projects, additional and/or more experienced Competent Supervisors and a geologist should be engaged.

The Competent Person who prepares the Blasting Assessment during the design stage (see paragraph 4.6.12 in Chapter 4) can also be the Competent Supervisor for carrying

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out the supervision of the blasting works. If a person holds the qualification and experience of both the Category I supervisor and the Competent Supervisor for blasting works, they can take up the construction supervision for the geotechnical works, including blasting. The curriculum vitae of the proposed Competent Supervisor should be submitted to the Mines Division of GEO for agreement, prior to commencement of the blasting works. The need and the number of Resident Explosives Supervisors required for a particular project will depend on the explosives delivery arrangement and the blasting programme. (See paragraph 21.6.3 below)

4.4 SUPERVISION FOR PILING WORKS

Supervision for piling works should be carried out by personnel with suitable qualification and experience, and should comply with the relevant technical circular, if any, issued by the department of the project office (e.g. Departmental Technical Circular No. 4/2007 issued by Highways Department (HyD) on "Quality Supervision and Assurance for Piling Works"). Basically, the Contractor should employ a Construction Engineer and a Construction Supervisor in connection with the execution of piling works as stated in the Contract. The Contractor shall develop a monitoring system before piling commences, to ensure the integrity and accuracy of the piling record. This system shall be agreed by the Engineer.

4.5 SUPERVISION FOR SOFT LANDSCAPE WORKS

The project office shall ensure that suitably qualified and experienced landscape and arboricultural professionals/supervision personnel are appointed for supervising the setting out of tree protective zone, erection of protective fence and other protective measures for trees, preparation works for transplanting, tree felling works, routine vegetation maintenance, tree risk assessment and mitigation measures, soil and ground preparation, checking plant materials, installation/planting, stabilizing works, transplanting works, establishment works, coordination of conflicting above and underground utilities/structures with the planting plan, etc. The Contractor shall employ qualified landscape professionals/field officers in connection with the preparation and implementation of the greening and landscape works.

4.6 EMPLOYMENT OF LABOUR RELATION OFFICER (LRO (with title currently unified as ACO(LR)))

A set of contract measures to prevent non-payment of wages was introduced by the Secretary for Development (SDEV) under SETW's memo ref. (0126S-01-6) in DEVB(W) 510/17/01 dated 26.4.2006, SETW's letter ref. (015YP-01-5) in ETWB(W) 510/17/01 dated 27.7.2006, SDEV's memo ref. (01TAM-01-7) in DEVB(W) 510/17/01 dated 17.7.2008 and SDEV's memo ref. (023Q5-01-7) in DEVB(W) 510/17/02 dated 23.11.2009. Parts of the measures require the Contractor to employ a LRO (with title currently unified as ACO(LR)) to assist the Resident Engineer in monitoring and maintaining records for payment of workers in in-house administrated projects (other than maintenance contracts and E&M supply and installation contracts). For projects administrated by a consultant, the LRO (with title currently unified as ACO(LR)) would be employed by the same consultant as part of its resident site staff establishment.

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The LRO (with title currently unified as ACO(LR)) is a general officer responsible for collecting, maintaining and checking payment of wages to the workers on site. He or she should be conversant with the existing labour regulations and be prepared to explain to the workers their rights under the Law. Depending on the size of the contract and the labour force, the LRO (with title currently unified as ACO(LR)) establishment may be more than one person. The LRO (with title currently unified as ACO(LR)) reports directly to the Resident Engineer on site who will follow up with the Contractor and the Labour Department (LD), if necessary, on incomplete records or matters requiring investigation. The LRO (with title currently unified as ACO(LR)) has no statutory or contractual authority viz-a-viz the Contractor as well as the workers.

Paragraph 9.11 of PAH Chapter 5 has set out in detail the measures to prevent non-payment of wages in which the contract provisions in relation to the employment of the LRO (with title currently unified as ACO(LR)) are also included.

As the site staff including LRO (with title currently unified as ACO(LR)) would have access to personal data when monitoring payment of wages and Mandatory Provident Fund (MPF) contributions, they should be required to handle the data in compliance with the Personal Data (Privacy) Ordinance (PDPO) and the relevant Data Protection Principles. They should observe and follow the principles and guidelines on complying with the PDPO set out at Appendix 7.54 (subsumed from DEVB WB Internal Circular No. 9/2007). (Ref.: SDEV's memo ref. (01TAM-01-7) in DEVB(W) 510/17/01 dated 17.7.2008)

4.7 QUALITY SITE SUPERVISION PLAN (QSSP)

The Secretary for Environment, Transport and Works promulgated the requirements of Quality Site Supervision Plan (QSSP) in memo ref. () in ETWB(W) 925/50/01 dated 29.1.2003. The relevant paragraphs have also been subsumed in Annex A of Appendix 4.6 of the EACSB Handbook. The project office should ensure its compliance by their consultants and that the site staff manual gives details on authorities, duties, responsibilities and contract management and works supervision procedures for the guidance of all grades of the site establishment.

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5. RECORDS

5.1 GENERAL

The keeping of good comprehensive records is very important. Records serve three basic purposes:

(a) They provide information for the administration of the Contract, and in particular, for the evaluation of work done for payment.

(b) They provide the management with necessary information on progress, the level of resources and the condition of the Works, on which engineering and management decisions may be based.

(c) They provide information on the history of the Works, so that facts are available for the evaluation of claims or resolution of disputes should these arise.

The ER, in consultation with the Engineer where necessary, should establish a set procedure for record keeping at the commencement of the Works such that adequate records will be produced efficiently. During the progress of work, should events occur or be about to occur, which may lead to claims or disputes, the ER should consider and implement as soon as possible a system for keeping additional records. It is important that such a system will provide detailed and comprehensive information. Where possible, the Contractor's agreement to the records should be obtained.

Records submitted by the Contractor must be carefully checked and verified as soon as they are received. Discrepancies should be resolved early while memories and evidence are still fresh; but where agreement cannot be reached, the differences must be recorded either in the site diary (paragraph 5.4) or in a letter to the Contractor.

The standard practice for filing of works contract site-documents as stipulated in Appendix 7.73 should be followed by departments as far as possible. The standard practice is recommended to be carried out in both the department's project office as well as the works-contract site office. The requirements shall be applied to all Public Works Programme (PWP) works contracts and any proposed modification to the standard practice shall be submitted to Works Branch of DEVB for agreement and issue. A computer aided document management system may be employed having regard to the requirements of particular contracts. However, the provision of such system should be considered as part of the Contract Computer Facilities subject to the conditions and requirements as laid down in paragraph 9.14 of PAH Chapter 5.

The type of records considered being necessary for good contract administration and the more common types of engineering records required under most contracts are described in the following paragraphs and are also contained in other sections of this Chapter. The list is by no means exhaustive and the keeping of other records must be considered according to the needs of a particular contract.

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5.2 CONTRACT DOCUMENTS

A certified true copy of the signed contract documents, including a set of the original contract drawings should always be kept in the site office. Any standard document which forms part of the Contract, but is not bound in the signed documents, should also be kept in the site office. Such documents include the General Conditions of Contract (GCC), General Specification (GS) and Standard Method of Measurement (SMM).

5.3 RECORD DRAWINGS

One set of drawings should be kept separate from the set of original contract drawings mentioned in paragraph 5.2, the latter being kept intact for reference only.

To ensure the building up of a comprehensive set of record drawings as the Works proceed, the following should be observed:

(a) A set of drawings comprising the contract drawings and one copy of all revised drawings, additional drawings issued to the Contractor and the CAD drawings approved by the Engineer shall be designated for record purposes.

(b) Where the as-constructed work deviates from the drawings, the as-constructed details should be recorded as soon as possible and marked in red ink on the relevant drawings in the set to record exact dimensions and positions of the finished work.

(c) Where details of the finished work are the subject of a record survey, either a copy of the survey plan produced should be kept in the set or the results of the survey should be abstracted and incorporated into the relevant drawings.

Attention is drawn to GCC Clause 44 that concerns the examination of works before they are covered up. All details, especially those that deviate from the drawings, should be adequately recorded for the preparation of the as-constructed drawings.

On completion of the work, the set of record drawings should be checked and endorsed by the ER and then passed to the drawing office for the preparation of faired copies of the as-constructed drawings for the designs carried out by the Engineer and the Contractor (if any). The as-constructed drawings shall be completed within the time scale appropriate to the size and complexity of the Contract and according to operational needs, as determined by the project engineer during the preparation of the Contract, or for consultant-managed projects, within the time scale stipulated in the brief to the consultancy agreement.

For projects involving tunnel works, the project office shall submit to GEO prior to completion of any consultancy/contract under the project, as appropriate, as-built survey plans showing the boundaries of the tunnels/shafts/caverns and the extent of any temporary works, which may affect future construction (see ETWB TCW No. 15/2005).

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5.4 SITE DIARY

The standard form to use for the site diary is GF 536 that is bound in a book. Subject to the agreement of the Engineer, the ER may choose to keep site diaries in electronic format, preferably on database management software. In this event, the ER shall outline the proposed format, including the details and capabilities of the management software, to the Engineer for endorsement.

The site diary is one of the most important records for a contract, its primary aim being to record facts. It should therefore contain an accurate and concise record of the progress of work, plant and labour employed, weather and site conditions, and any occurrences which affect the progress and/or quality of the work, including the extent to which they are affected. In addition, comments on causes of delays and disruptions to normal progress should be noted where appropriate. The post and name of site supervisory staff who carries out the inspection and the works inspected shall be recorded.

The Inspector of Works (IOW) is normally responsible for keeping the site diary. The IOW and the Contractor's authorised agent or representative should sign the diary daily and the ER should check and initial the diary at least once a week. For site diaries kept in electronic format, hard copies should also be signed as outlined above and kept in file for reference and record.

For contracts occupying a large site area and comprising several well-defined Sections, the use of several diary books, one for each Section, should be considered. Where a contract is exceptionally large or complex in nature, the standard form of diary may be inadequate. In that event, a special diary format may be devised for use subject to the Engineer's endorsement.

5.5 SITE MEASUREMENT BOOK

The standard site measurement book to be used is GF 534.

Measurements should be entered with reference to the SMM or the method of measurement stated in the Contract. Entries should be made by the site supervisory staff or Survey Officer (Quantity) (SO(Q)) regularly and signed by authorised representatives of both the Contractor and the Engineer. The ER is normally the person responsible for agreeing measurements.

Further guidance on using the site measurement book is contained in Chapter 9.

5.6 PROGRESS CHART

A progress chart should be maintained in the site office and brought up-to-date at least once a month.

The chart should be drawn up so as to show clearly the actual progress in relation to the programme submitted by the Contractor.

A sample progress chart for a simple contract is shown at Appendix 7.3.

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For complex contracts, a master chart showing overall progress and several charts showing progress on different Sections of the Contract may be necessary. No standard form will suit all contracts and a different chart should be devised for each contract.

5.7 INCLEMENT WEATHER

General weather conditions are recorded in the site diary (paragraph 5.4). On days of inclement weather, an additional daily report should be completed by a member of the site staff of rank AIOW or above, and countersigned by the ER, using the standard form shown at Appendix 7.4.

Apart from recording the actual weather conditions, the inclement weather report should also denote the extent to which Works were affected by weather. Observations on the Contractor's failure to mitigate the effects of inclement weather, such as inadequate protection of Works, should also be included in the report.

5.8 SITE INSTRUCTIONS

Instructions given to the Contractor on Site should be issued on the standard form shown at Appendix 7.5. The form may also be used by the ER, with delegated authority, under GCC Clauses 60 & 62 for ordering work paid for on a daywork basis. However, it should not be used for ordering variations where the standard form at Appendix 7.21 should be employed for such circumstances. Where the works in site instruction or variation are paid by dayworks, the works should be charged under the Daywork Bill.

One copy of instructions should be handed to the Contractor's representative, one copy should remain in the instruction book kept in the site office and one copy should be sent to the project office for the contract file. If dayworks are ordered on the form, an additional copy should be made for filing with Dayworks Daily Record (paragraph 5.9).

5.9 DAYWORKS

The General Conditions of Contract requires the Contractor to submit, and the ER to agree (or reject with reasons), daily records of labour, plant and materials employed on any work executed on a daywork basis. Such daily records should be made on the standard form shown at Appendix 7.6.

To facilitate the calculation of the amount to be paid under daywork items each month, a summary of daily records for each daywork order should be made at the end of each month using the standard form shown at Appendix 7.7.

All daily records and monthly summaries relating to one daywork order should be filed together for easy checking.

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5.10 INVENTORY OF FURNITURE AND EQUIPMENT

The standard form shown at Appendix 7.8 should be used for recording the receipt by the ER of equipment and furniture provided under the Contract. A copy of this record must be kept in the site office. On completion of Works, the Contractor should be asked to sign this form to acknowledge receipt of furniture and equipment returned to him. Please also see paragraph 21.18 for control of preliminaries.

5.11 MINUTES OF MEETINGS AND CORRESPONDENCE

Minutes of meetings with the Contractor, including monthly meetings, meetings with utilities, rate fixing meetings etc., and all correspondence with the Contractor will form part of the records of the Contract and must therefore be kept in the site office and, where necessary, in the project office files.

5.12 RECORD PHOTOGRAPHS

The main purposes of taking photographs are:

(a) to provide a visual record of the conditions of the Site and surroundings before and during the course of the Contract,

(b) to record particular features of the work, especially which will later be covered, and

(c) to provide material for publicity or training.

To fulfil the purpose of (a) above, one set of photographs of the Site and surroundings should be taken before commencement of the Works. Particular attention should be paid to existing structures, installations or properties which may be damaged by the Works. Attention should also be paid to any area of potential disputes e.g. adjoining land used by local farmers.

For purpose (b) above, photographs should be taken regularly during the course of the Contract from the same vantage points on various Sections of the Works. The location of the vantage points should be indicated on a key plan in the photograph album.

All photographs should include something to give a scale effect where this is not readily apparent. On the back of each record photograph, the following information should be written:

(a) Date on which the photograph was taken,

(b) Exact location and description of the subject photographed, and

(c) Purpose of the photograph.

Selected prints shall be authenticated by the Contractor and the ER by signing and dating on the back of the prints. The photographs taken to record the conditions of the Site

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and surroundings before the Works commence should be sent to the DLO/maintenance authorities for record and acceptance of the as-photo conditions of the Site.

Ordinary record photographs should normally be taken by the site supervisory staff. Where aerial photographs are required and no provisions were made in the Contract for such photographs to be taken by the Contractor, requests for assistance can be made to the appropriate Survey Office of the Lands D through the respective Chief/Senior Land Surveyor.

5.13 REQUEST FOR INSPECTION AND SURVEY CHECK

(Ref.: SDEV's memo ref. () in DEVB(W) 510/70/03 dated 13.11.2020)

At present, the PS clause that governs the requests for inspection and/or survey check (RISC) system varies with different works contracts. To ensure consistency, a standard PS clause on RISC system for incorporating into the contract documents has been prepared by the SDEV under Annex A (for GCC contracts) and Annex B (for NEC contracts) of by the SDEV under SDEV's memo ref. DEVB(W) 510/70/03 dated 13.11.2020. The PS clause shall be adopted for works contracts with tender invitation to be made on or after 1 December 2020. For tenders invited/to be invited before this date, procuring departments may adopt the clause as appropriate.

The standard form shown at Appendix 7.82A (for GCC contracts) and Appendix 7.82B (for NEC contracts) should be used for recording the Contractor's request for inspection and/or survey of work performed and the ER's permission to proceed with proposed work after inspection/survey of the preceding stage. The purpose of using this standard form is to improve communications on Site and provide a record of the sequence of events. For critical items, hold points, witness points, interfacing works or works to be covered-up, the form should be countersigned by the resident engineer or above rank. The ER should respond to the contractor's request for inspection/survey expeditiously. When the standard forms could not be submitted prior to the time for inspection/survey due to exceptional circumstances with prior agreement by the ER, the standard forms should be submitted no later than 3 calendar days following the inspection/survey. Under no circumstances should the works be covered up or put out of view without the approval of the ER.

The ER should ensure that sufficient level of details of the works to be inspected or surveyed should have been inserted in the standard form by the Contractor. Specific descriptions of all the works to be inspected or surveyed, such as types of details, drawing numbers, reference documents, etc. should be inserted in the standard form.

The ER should also be aware of the requirement of countersigning on the standard form. All forms should be countersigned by the supervisor of the inspection officer. The supervisor's duty is to ensure the inspection officer has inspected the works in conformance with the contract documents, and to conduct appropriate level of site supervision of the works. Such requirement of countersigning is applicable to all items.

Implementation of the mechanism of request for inspection/survey should be included as a standard item in the technical audit carried out by Works Departments in accordance with paragraph 21.2.1 of Chapter 7 of the PAH. The audit team should carry out spot check by specifying the events, locations and dates and requesting the ER to provide the

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respective standard forms. The audit should include the requirements given in the contract specifications and as outlined above. The standard forms should be checked whether they were timely submitted, duly completed and signed and properly documented.

5.14 RECORD OF MATERIALS AND EQUIPMENT PROVIDED BY GOVERNMENT

The standard record book to use is GF 537.

This book should be maintained in the site office when stores are issued to the Contractor free of charge and should record all receipts and issues. Materials issued to the Contractor for incorporation into the Works should be signed for by the Contractor's site agent or authorised representative.

On completion of the Works, the book should be returned to the project office and the quantities issued should be checked against the site measurements.

The pages referring to the Contract should be detached, stapled together, certified by the ER and filed in the measurement file. A record of the sheets removed giving the reference of the relevant measurement file should be maintained on the inside front cover of GF 537 and endorsed by the ER for audit inspection.

5.15 MATERIALS TESTING

(Ref.: WBTC Nos. 14/2000 and 15/2000, and SDEV's memo ref. ( ) in DEVBWB WP4S-022-006 dated 25.10.2024 Amd No. 3/2025)

Pursuant to WBTC No. 14/2000, all compliance tests for construction materials used in public works contracts must be done through the PWL of CEDD or its appointed contract laboratories. In any case, the ER's supervisory staff must supervise the sampling, transport and delivery of samples to the laboratories.

Independent Commission Against Corruption (ICAC) publishes the "Best Practice Checklist on Construction Quality Control Testing" in which it stresses the importance of independence of testing laboratories in a project. It aims at providing some recommended practices to prevent abuse and corruption and avoid conflict of interest. Officers involved in quality control of materials and works in construction projects should adopt these practices as far as practicable, without prejudice to the requirements stipulated in WBTC No. 14/2000. Amd No. 3/2025

5.15.1 Using Public Works Laboratories Amd No. 3/2025

The Engineer should consult the Chief Geotechnical Engineer/Standards and Testing of GEO (CGE/S&T) at an early stage to confirm the compliance tests of construction materials to be undertaken by the Public Works Central Laboratory (PWCL) and the Public Works Regional Laboratories (PWRL) collectively under PWL Amd No. 3/2025. PWL provides an extensive range of materials testing services. A list of materials testing services and the test request forms for laboratory testing can be downloaded from CEDD website at the hyperlinks https://www.cedd.gov.hk/eng/public-services-forms/geotechnical/laboratory-testing/public-works-laboratories/index.html and https://www.cedd.gov.hk/eng/public-

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services-forms/public-forms/geotechnical-services/test-request-forms-for-laboratory-testing/index.html respectively.

All test requests to PWL shall be made through the Laboratory Information Management System e-Portal (LIMS e-Portal) starting from 1 April 2025. Project teams (including their Resident Site Staff (RSS)) of public works contracts can make test requests, arrange sample collection, trace the test progress and download electronic test reports online round-the-clock. In particular, the test results will be delivered directly to the Engineer but not via the Contractor.

For process control and security reasons, users of LIMS e-Portal will be required to open a user account prior to using the system. For each public works contract, the project team of the managing Department should complete and submit the (1) Registration Form for Testing of Construction Materials (Form 2007e) and (2) Proforma for User Registration, which are downloadable under the "information hub" of LIMS e-Portal website (https://lims.cedd.gov.hk), to PWL by email (pwcl@cedd.gov.hk) to create user account. When the user accounts are created, the project team will receive a notification by email from PWL.

For each public works contract, users can opt for a 2-week pre-use trials of the system using dummy test data, in order to familiarize themselves with the system before formal use of the system.

Under special circumstances, endorsement from an officer at D1 rank or above should be obtained, with justification(s) provided to PWL for record, to make or continue making paper-used test requests for a particular contract. In this connection, the request for alternative arrangements to handle the tests shall be made to PWL.

Amd No. 3/2025

5.15.2 Using Laboratories Other Than Public Works Laboratories

Amd No. 3/2025

Amd No. 3/2025 If the required tests cannot be undertaken by PWL as advised by CGE/S&T, then testing must be performed by an independent HOKLAS accredited laboratory with no affiliation as a legal entity to the Contractor and its sub-contractors. In this case, the following requirements should be followed (see DEVB's memo ref. () in DEVB(PS) 106/47/1(TC21/2012) dated 6.11.2012 "ICAC Assignment Report No. 5/2012 - Study on Site Supervision System for Consultant-Managed Projects"):

(a) Particulars of the proposed laboratories including a declaration of any conflict of interest made by the laboratories must be submitted to the Engineer for approval. (GS Clause 1.40(1)(c))

(b) The ER's supervisory staff shall make prior arrangements with the laboratory engaged by the Contractor to ensure that the test results must be supplied directly to the ER in sealed envelope, not via the Contractor; and the ER's supervisory staff must exercise caution to examine the validity and integrity of the test results.

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(c) Test results obtained from a laboratory other than PWL should be checked by periodic verification using another independent laboratory to conduct identical tests on items selected from the same samples, or as advised by CGE/S&T.

Although the Contractor may carry out as many quality control tests for his own purposes as he wishes, using either his own laboratory or commercial laboratories, these quality tests performed for the Contractor shall not be taken as compliance tests done through PWL for public works projects. See CEDD's memo ref. () in CEDD GPWR/1-150/7 dated 31.7.2015 for reference.

5.15.3 Records of Compliance Testing of Construction Materials

Records of tests on materials used in the Contract should be kept. The following arrangement should be noted and followed whenever applicable:

(a) Compression Test of Concrete Cubes

The test request forms should normally be signed by the IOW and then delivered to PWL with the concrete cubes to be tested by a member of the site supervisory staff. Results of testing will be shown on the forms and returned to the respective project office. With the implementation of the Central Concrete Mix Database (see paragraph 21.22 for details), the MIX ID of a registered designed mix shall be printed on the test request form so that PWL can store the test information in the database.

A sample of Concrete Test Cube Register is shown at Appendix 7.10. One register should be prepared and kept by the resident site staff for each grade of concrete with the same mix design used in the Contract.

(b) Test of Steel Reinforcement

Please observe the Steel Bar Circular and the announcements of the Standing Committee on Concrete Technology (SCCT) on CEDD website.

(c) Soil Compaction Test

A sample of Soil Compaction Test Summary Form is shown at Appendix 7.12. The Soil Compaction Test Summary Form should be prepared and kept by the resident site staff.

(d) Sand Replacement Test

See DEVB's memo ref. ( ) in DEVB(W) 216/27/22 dated 12.7.2013 - Enhancement for Sand Replacement Test (SRT) for a new enhancement mechanism for SRT in public works projects. Project officer shall also refer to SDEV's memo ref. ( ) in DEVB(W) 216/27/22 dated 25.5.2010 - Fraudulent Acts by Site Personnel Attempting to Influence the Results of Sand Replacement Test (SRT) when dealing with SRT.

(e) Labels for Samples of Concrete Cube/Concrete Core/Steel Bar/Bituminous Materials/Fill Materials/Steelwork Materials and Associated Mechanical

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Fasteners

For implementation of security labels for samples of concrete cube / concrete core / steel bar / bituminous materials / fill materials / steelwork materials and associated mechanical fasteners taken in Hong Kong or fabrication yards outside Hong Kong, see "Guidance Notes on the Use of Security Labels" on CEDD website. Amd No. 3/2025

5.16 LABOUR RETURNS AND WAGES

The General Conditions of Contract requires the Contractor to provide a daily return of labour employed on the Works. The Contractor should be asked to fulfil this requirement by filling the standard form GF 527 (Rev. 1/2003) and GF 527 (Rev. 1/2017) pursuant to DEVB TC(W) No. 3/2003A. The inspector should check the accuracy of the information entered on the form by the Contractor, as far as practicable.

The Contractor should complete the standard form and submit to the site supervisory staff within the first 4 working days of the succeeding month. In completing the form, the Contractor should be reminded to include wage rates for normal working hours only and to ignore overtime pay and employers' contribution to MPF. If the accuracy of wage rates entered on the form is doubtful, the Contractor should be asked to produce evidence such as wage books to support his return. The site supervisory staff should check the returns and deliver excel copies of the returns directly to, or through the project office to, the Census and Statistics Department (C&SD) within the first two weeks of the succeeding month. The information will provide bases for compiling the "Index Numbers of Costs of Labour and Selected Materials Used in Government Contracts" which are used in the calculation of contract price fluctuations under GCC Clause 89. Further guidelines on the monthly return of site labour deployment and wage rates for construction works are given in ETWB TCWs No. 3/2003 and No. 3/2003A.

Four copies of the GF 527 (Rev. 1/2003) shall be prepared. The original excel copies should be sent to C&SD, the duplicate to be retained by the project office, the triplicate to be filed as site record and the quadruplicate to be kept by the Contractor.

Recommendation 80 of the Report of the Construction Industry Review called for the LD to review the methodology for collating the construction safety statistics with a view to developing a more reliable mechanism for calculating the accident rates for construction sites. In this connection, LD revised the methodology for the calculation of accident rates for the construction industry to reflect the site safety performance. The revised methodology will encompass all personnel of contractors engaged at construction sites including the managerial and supervisory staff, which differs from the previous methodology of employing the manual works only in the calculation. (Ref.: ETWB TCW No. 4/2005)

A new form is designed accordingly for the collection of the required data from contractors, which is applicable for both public and private sector construction sites. Currently, the contractors for public works contracts are also required to submit the GF 527 on site labour deployment and wage rates of manual workers under ETWB TCWs No. 3/2003 and 3/2003A. As such, the new form is numbered as GF 527A with a view to reminding the contractors to submit both forms concurrently. In addition,

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opportunity is taken to include the return on site vacancies and the number of employers/ self-employed persons engaged at the site in GF 527A for compiling the statistics on labour demand and number of contractors' personnel engaged at construction sites. (Ref.: ETWB TCW No. 4/2005)

All public works contracts including Buildings, Civil, Electrical and Mechanical, Term and D&B shall submit the GF 527A to C&SD monthly. One GF 527A shall be submitted for each and every public works contract. (Ref.: ETWB TCW No. 4/2005)

A sample of the GF 527A and the guidelines for submission and completion are attached at Appendices 7.52 and 7.53 respectively. The GF 527A will be completed in quadruplicate: the original excel copies to C&SD, the duplicate kept by the project office, the triplicate filed as site record and the quadruplicate kept by the Contractor. The data in the GF 527A will be prepared based on the last full working day of the reporting month, which will exclude Saturdays, Sundays, public holidays or days of inclement weather such as strong winds, heavy rains or typhoons whereby the construction activities may be affected. An example of how to determine the last full working day for a month is given in paragraph (c) of the guidelines at Appendix 7.53. (Ref.: ETWB TCW No. 4/2005)

Furthermore, only persons who have worked or engaged at the site (including in the site office) for three hours or more on the reporting day will be included for the number of persons of the respective category in the GF 527A. The data will cover all the persons employed by the Contractor and his sub-contractors, except for those employed by the nominated sub-contractors for public works contracts, who will complete a separate GF 527A and submit to the principal contractor for consolidation. (Ref.: ETWB TCW No. 4/2005)

The completed GF 527 and GF 527A will be submitted to the Architect/Engineer/Supervising Officer/Maintenance Surveyor's Representative within the first four working days of the month following the reporting month. Upon receipt of the completed forms, the Architect/Engineer/Supervising Officer/Maintenance Surveyor's Representative will check that the data provided in the forms are in order, except for the numbers of vacancies and employers/self-employed persons, which are the Contractor's responsibility to ensure their accuracy. If necessary, the Architect/Engineer/Supervising Officer/Maintenance Surveyor's Representative may request the contractor to substantiate the data provided in the forms. Any discrepancy found will be notified to the Contractor immediately for rectification. The Architect/Engineer/Supervising Officer/Maintenance Surveyor's Representative will complete the checking of the forms for submission to the relevant parties within the first two weeks of the month following the reporting month. (Ref.: ETWB TCW No. 4/2005)

Pursuant to SDEV's memo ref. ( ) in DEVB (PS) 107/3 dated 2.6.2021, upon review, the threshold contract value for submission of forms GF 527 and GF 527A is now increased to $3M. To echo with the Government's target of facilitating electronic submissions, only excel copies of the completed forms GF 527 (both GF 527 (Rev. 1/2003) and GF 527 (Rev. 1/2017)) and GF 527A shall be submitted to C&SD by email. The excel files are available at www.devb.gov.hk/en/public_forms. Submission of scanned signed copies of forms GF 527 and GF 527A to C&SD is no longer required. The responsible personnel shall insert their names in the forms after completing or

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checking the returns, which will be taken as fulfilling the requirement of signing the returns stipulated in the "Guidelines for filling in GF 527 (Rev. 1/2003)", "Guidelines for filling in GF 527 (Rev. 1/2017)" and "Guidelines for Completion and Submission of GF 527A". The following statement should be included in the submission email to C&SD:

"The submitted forms GF 527 and GF 527A were completed by the Contractor/Contractor's agent and checked by the site supervisory staff, whose names are indicated in the applicable fields in the forms."

For the avoidance of doubt, the threshold contract value for submission to C&SD of the standing return on commencement and completion of contracts will remain unchanged (i.e. at $1M).

5.17 USE OF CONTRACT TRANSPORT

The guidelines for the use of contract transport, both land and marine, are given in LWBTC No. 11/84. Section 5.1 of LWBTC No. 11/84 emphasizes that contract transport must not be used by any officer for non-official business or for any un-authorised journeys between home and office, whether or not the Contractor is prepared to carry out the journeys free of charge.

A record must be kept for the use of vehicles and launches provided under the Contract, using the standard log-book GF 100. One log-book should be kept for each vehicle or launch and all journeys must be recorded and signed by the user of the transport. The ER/Engineer should ensure that the necessary log-books are correctly maintained and should check them at least once a fortnight, endorsing each page wherever necessary.

In addition to routine checking of the log-books, the ER/Engineer shall carry out periodical reviews of the actual utilization level of contract transport and make recommendations to the project office for maintaining or terminating the contract transport provision. The project office shall carry out global reviews of the returns from the ER/Engineer and make further adjustments if necessary.

Staff should not avail themselves of the Contractor's transport service if that service is not specified in the Contract except where this is necessary and expedient for both parties to jointly examine or record on-site any matter connected with the Works. Such transport service that is called for by the Contract is to be used only in the manner and at the times specified.

If, in an emergency, the vehicle is driven by a member of the site supervisory staff, the log-book shall be similarly completed by that person but in addition, the nature of the emergency must be stated in the 'Purpose' column and the entries in the log-book is to be initialled by the ER/engineer/senior engineer or, where appropriate, the Engineer.

5.18 MISCELLANEOUS RECORDS

(a) Piling records

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Examples of forms for pile driving records and pile loading test records are given in the General Specification. Particular records of piling works may also be required by the PS of a contract.

(b) Record for soil and rock conditions

Full records should be kept of the soil and rock conditions as the Works progress. Apart from their importance during construction in respect of the method of working, confirmation of original design, safety, progress evaluation etc., these records will be of great value for future maintenance of the Works and also for planning future works in the vicinity. If necessary, the project engineer should be contacted to advise on the records to be kept.

(c) Settlement and movement records

These should be carefully planned at an early stage, particularly for works where settlement/movement is expected. The respective Land Surveyor should be consulted to devise a method for monitoring and recording the movements efficiently. If necessary, Geotechnical Projects Division, GEO, can be requested to give advice on the type of instruments and techniques most suitable for the measurement of soil and rock movements.

(d) Concrete casting records

A record should be kept of the location, date, time, grade, approximate quantity, test cube reference numbers, and supplier (if more than one source) of each concrete pour. Where a structure is cast in more than one operation, the sequence of casting should also be recorded, preferably on a drawing of the structure. This type of record will be particularly useful in the subsequent identification of materials in a structure should it be necessary to investigate the extent of non-complying materials.

(e) Bar bending schedules

These are required for all works with reinforced concrete construction. Schedules should be prepared on the standard form shown at Appendix 7.13.

All bar bending schedules, whether prepared by the ER or the Contractor, should be kept in the site office with the R.C. drawings. They should be updated in the same manner as record drawings. It should be noted that GS Clause 15.16 requires that bending schedules shall be prepared by the Contractor and submitted to the Engineer before bending of reinforcement starts.

(f) Tensioning record for prestressed concrete

This is an important record for works involving prestressed concrete construction. A sample of a suitable form is shown at Appendix 7.14.

(g) Record of bituminous materials delivered to Site

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When bituminous materials are used, a record should be kept of the temperature of the material at various stages, the time lapse between production and placing, and location of placing. The record will provide part of the information for determining acceptability of the material and the necessity for further investigation into the quality of materials already placed. A sample of a suitable form is shown at Appendix 7.15.

(h) Drainage pipeline test records

A record should be kept of acceptance tests on drainage pipelines carried out in accordance with the GS.

A sample of suitable form for recording results of air test, water test and infiltration test on gravity pipelines is shown at Appendix 7.2. A sample of form for recording water tests on gravity pipelines between 150mm and 450mm diameter and for recording hydraulic test results on pressure pipelines is shown at Appendix 7.16.

(i) Water pipeline test records

A record for pressure testing of water pipelines should be kept in accordance with GS Clause 22.1.5 of Appendix 22.1.

Standard forms and standard pressure testing procedures stipulated in Appendix 3.2 of the "Manual of Mainlaying Practice 2012 Edition" and Clauses 22.81 - 22.83 and Appendix 22.1 of GS respectively, should be followed. For water pipelines to be handed over to Water Supplies Department (WSD) for maintenance, charts for registering the test results from a continuous pressure recorder should be presented as records after testing.

(j) Bearing and expansion joint records

When bearings and expansion joints are used in the Works, a clear record of their performance should be kept using the form shown at Appendix 7.17.

(k) Record of materials on Site

A record of materials delivered to Site should be kept to enable the ER to certify interim payment regarding the materials on Site. This record may be a loose leaf file or a hard backed book with separate sections for each type of material, listing the quantity delivered, date of delivery, (and time of delivery when appropriate), together with such information as delivery tickets, truck numbers and any other useful data. If the Contractor co-operates by making copies of delivery tickets available, these should be retained on file but summaries should still be produced as outlined above.

(l) Labour strength chart

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The total number of the Contractor's workforce on the Site is to be recorded daily in a graphical form from the date of commencement until no appreciable amount of work remains to be carried out.

(m) Tree survey record and subsequent records

The Contractor shall carry out an initial tree survey for all existing trees and submit the survey record to the Engineer within a specified duration at the commencement of the Works, in accordance with the methods and requirements as stipulated in the contract Specifications. All trees to be preserved, transplanted or felled should be located and tagged and checked and confirmed before proceeding with tree works. The Contractor may require the regular reporting of the conditions of the trees on site.

Other records, such as earthwork quantity record, marine work quantity record, caisson record, soil compaction test record, soil nail record, safety report, accident record, interim payment record, Works programme, progress report, expenditure chart, Contract Price Fluctuation record, Nominated Sub-contractor record, and record on permits and licences required in the Contract, are also commonly kept on site.

5.19 CUSTODY AND DISPOSAL

When the final payment certificate for a Contract has been issued, the ER is to arrange for all documents, including records, files, measurement books, accounts and other information to be gathered together and catalogued. The catalogue is to give the date when, subject to no outstanding litigation or audit queries, the various documents can be destroyed. Reference should be made to Accounting Circular No. (AC No.) 9/2005, AACSB/EACSB Handbook and other relevant circulars/guidelines on the retention time required. Departments may set a longer period to suit their own requirements.

The afore-referenced retention times are not applicable to the contract documents which have been scheduled for disposal. All the records and documents shall be properly stored. Where boxes are used, labels shall be fixed to each box (not the lid) showing:

The Contract number and title;.

The number of the box;

The number of boxes used for the Contract; and

The documents enclosed together with the date for disposal.

Normally, the original signed contract documents shall be kept under safe custody in the department for a period of time according to department's internal procedures. After that period, the department should arrange for the original signed contract documents to be transferred to the Records Centre of the Records Management Office for storage. A registry record shall be kept giving details of the Contract number and title, the scheduled date for disposal of the original signed contract documents, and the locations of storage for ease of future retrieval. Three months before the scheduled date for disposal of any contract documents, the person responsible for arranging disposal shall notify the respective

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Division/Branch Head to destroy the documents concerned. Upon receipt of confirmation from the respective Division/Branch Head, the responsible person shall arrange with the Government Records Service Director for the disposal of the original signed contract documents.

5.20 INSPECTION AND TEST PLANS

(Ref.: SDEV's memo ref. () in DEVB(W) 510/70/03 dated 1.9.2021)

At present, it is not a mandatory requirement to adopt Inspection and Test Plans (ITP) in works contracts. Upon review, it is considered that ITP can facilitate site supervisory staff and contractors to agree on hold points[1] and witness points[2] for critical items of works or activities prior to commencement of such works/activities so that adequate resources can be arranged in a timely manner to facilitate necessary site supervision/inspection.

In view of the above, a standard PS clause on ITP for incorporating into the contract documents, as given in Annex A (for GCC contracts) and Annex B (for NEC contracts) under SDEV's memo ref. () in DEVB(W) 510/70/03 dated 1.9.2021. The PS clause shall be adopted for capital works contracts with a pre-tender estimate[3] exceeding $400 million and tenders to be invited on or after 27 September 2021. For capital works contracts below this threshold, procuring departments may consider adopting the PS clause as appropriate.

[1] Hold points mean construction activities, stages, elements and particular aspects or details of any item of works, the inspection and acceptance of which by the site supervisor staff must be obtained before the contractor can proceed to the next construction activity, stage, element and particular aspect/detail of such works.

[2] Witness points are tests of materials/equipment, performance tests of prototypes as well as testing and commissioning of any item of works/installations, which require the site supervisor staff's witnessing or recording. The contractor may however proceed to the next hold points or witness points even if such witnessing and recording have not been conducted by the site supervisor staff within the notified time frame.

[3] For NEC contracts, the pre-tender estimate refers to the forecast total of the Prices.

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6. PROGRAMME, PROGRESS & EXPENDITURE

6.1 CONTRACTOR'S PROGRAMME AT COMMENCEMENT

GCC Clause 16 requires the Contractor to submit a programme of the Works at the commencement of the Contract. The programme should show clearly the sequence, method and timing of all major activities under the Contract, including allowance for carrying out specialist work by other contractors to be employed by Government and work by utility undertakers.

The programme should normally be in the form of a bar chart. For complex contracts involving a large number of inter-related activities, the programme may need to be in the form of a network diagram. Critical activities and the critical path should be identified on the programme. For contracts with different completion dates for different Sections of the Works, the critical path for each Section of the Works should be identified and shown on the programme.

In addition to the programme to be submitted to the Engineer in accordance with GCC Clause 16, the Contractor shall, in accordance with the GS, submit within a further 14 days a programme showing a detailed breakdown of the work to be carried out in the first 3 months, and an outline for the remainder of the work. A programme showing the work completed to date, a detailed breakdown of the work to be carried out in the next 3 months and an updated outline for the remainder of the work shall be submitted to the Engineer not later than 4 weeks before the commencement of each subsequent 3-monthly period. Programmes submitted in accordance with this paragraph shall be in the form of a bar chart showing the earliest and latest start and finish dates for each activity, and the critical path.

When a programme is submitted by the Contractor, it should be acknowledged, but approval of the programme (or wording conveying approval) should not be given in the letter of acknowledgement as this may be construed as relieving the Contractor of some of his responsibilities or duties under the Contract. However, the programme should be analysed and examined to determine:

(a) Whether details shown on the programme, in respect of sequence, method and timing, conform with the requirements of the Contract,

(b) Whether the programme is over-optimistic in respect of any critical activity or the Works as a whole, and

(c) Whether information provided in the programme is sufficient for the management of the Contract, this being particularly important where activities under the Contract will have major effects on other related contracts.

If the programme does not satisfy (a) above, the Contractor must be asked to re-submit a programme that conforms with the requirements of the Contract.

If the programme does not satisfy (b) above, the Contractor should be asked to explain in writing the basis of his programming, which should include information on the methods of construction and resources he intends to employ on the critical activities. If the Engineer is not convinced of the Contractor's justification, he should inform the Contractor

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of his dissatisfaction with the programme submitted and request the Contractor to re-consider and revise the programme. However the Engineer should not advise or instruct the Contractor on how the programme should be revised.

6.2 PROGRAMME UPDATING AND REVISION

The Contractor should be required to revise the programme described in paragraph 6.1 during the course of the Contract whenever:

(a) An extension of time for completion of the Works or any Section of the Works has been granted by the Engineer;

(b) Progress is too slow to ensure completion by the due date and the Contractor has been so informed;

(c) Progress on critical activities is falling behind the original programme or the latest revised programme, particularly where the Contractor had been informed that his programme was in the opinion of the Engineer over-optimistic, or;

(d) The latest programme is rendered unsuitable by unanticipated events which have occurred since preparation of the programme.

6.3 MONITORING AND REPORTING PROGRESS

A fair copy of the Contractor's programme should be posted up in the site office and actual progress marked on the programme to monitor progress of work.

If necessary, a monthly progress report should be made. The report should be tailor-made according to the individual situation of the Contract. As a general guideline, the report may include:

(a) Commencement date, original completion date, EOT granted, revised completion date, time elapsed in days and in percentage of the contract period, a realistic estimated completion date based on the actual progress made and the expected time to complete outstanding works;

(b) Original contract sum, predicted final contract sum, estimated percentage of work physically completed, amount and percentage of certified value of works, expenditure to date, yearly forecast expenditure and a predicted/actual cash flow chart;

(c) Dayworks, variations and drawings issued;

(d) Description of progress with a progress table and progress chart;

(e) Claim record;

(f) Safety matters and accident matters;

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(g) Record of significant meetings;

(h) Record of hand over of works; and

(i) Environmental issues.

6.4 ACTION IN CASE OF SLOW OR VARIABLE PROGRESS

As soon as it is apparent that the progress of the Works or any Section of the Works is too slow or variable to ensure completion by the due date, the Engineer for the Contract should inform the Contractor in writing of the unsatisfactory progress. The Contractor should also be reminded of his obligation under the GCC to inform the Engineer of actions he will take to expedite completion and to submit a revised programme. Care should be taken not to give instructions that may be construed as an order to accelerate the work.

Close monitoring of the rate of progress should continue and further warning letters to the Contractor should be issued if progress has not improved. The Contractor's response and performance subsequent to the issue of warning letters should be noted in the Quarterly Report on Contractor's Performance (see Section 15).

If slow progress continues despite repeated warnings from the Engineer, the situation should be reported to the relevant Reporting Review Committee for further appropriate actions, which will include management actions as stipulated in Sub-section 4.6 of the Contractor Management Handbook. Reference should also be made to Part D of Appendix 4B of the Handbook for guidelines on assessing the progress of the Contractor.

For a joint venture of several contractors, regulating action will be applied to every constituent party. The lead party's managing department will co-ordinate and keeps the managing departments of other constituent parties informed.

6.5 MONITORING AND ESTIMATING EXPENDITURE

The ER plays an important role in the financial control of the Contract at site level. The project engineer (PE) controlling the project vote also plays an important role in the review from time to time of the Approved Project Estimate (APE) and expenditure in the light of progress of the project. Particular attention should be paid to the financial control in contract expenditure and the APE, where the performance of the Contractor is slow or variable and/or where the contractor is in financial difficulties (e.g. where re-entry and/or novation of contract are being considered.) Once the Contractor's programme is known, it is possible for the ER to produce a detailed curve of expected expenditure. As the Works progress, he should compare actual against expected expenditure, making amendments as required, and drawing the attention of the Engineer and the Employer to any significant changes so that necessary adjustments to the annual expenditure allocation can be made. Any major revision of the Contractor's programme would require a new expenditure curve.

When producing the curve of expected expenditure the following should be noted:

(a) The rate of expenditure may not be uniform.

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(b) It may be possible to assess the rate of expenditure from the Contractor's programme thus allowing for any "front end loading" in the rates.

(c) The Contractor's programme and the due date for completion may have to be extended if the work continues through a wet season.

(d) The whole of the contract sum may not be expended and, for the purpose of producing the expected rate of expenditure, the quantities in the Bills of Quantities are to be taken as being correct without further checking. The amount included as the contingency sum is to be shown separately.

It is necessary to recognise that this record will show the value of work done on the date to which the interim statement refers as opposed to the date of actual payment by Treasury. The payment by Treasury will be some time after the date of measurement depending on the period of time taken to receive and process an interim statement, prepare a draft certificate and to effect the payment.

When monitoring expenditure, the ER should give an early warning in liaison with the PE controlling the project vote if it appears that the contract sum will be exceeded and, if so, by how much, to enable action to be taken for the provision of funds. The estimation of the Final Contract Sum can be affected by various circumstances, such as:

(a) Changes in Quantities

During construction, the ER should note any significant changes in quantities that have been identified and should record the additional expenditure or savings accruing as a result. This may be revealed by one or more of the following:

(i) Measurement of completed work being sufficiently advanced to show inaccuracies in original estimates;

(ii) Ground conditions becoming more adverse or more favourable than expected; and

(iii) Errors or omissions in the Bills of Quantities becoming apparent.

(b) Contractual Claims

There are provisions in the GCC for the Contractor to claim additional payment in various circumstances. Should such circumstances occur or appear to be unavoidable, an estimate of the possible additional payment is to be made.

(c) Variation Orders

The effect of all issued and proposed variation orders including all the consequential costs shall be assessed carefully using the best information available. The contract sum and the APE should be checked before ordering variation. Where the varied work is to be carried out at new rates, estimation will be necessary if the new rates are yet to be agreed. If the total effect of a

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variation order is small in the context of the contingency sum then it is acceptable to ignore detailed calculations.

(d) Contract Price Fluctuations (CPF)

An estimate of the likely expenditure/saving due to any CPF can be made by projecting the average rate of increase calculated to date. Should there be insufficient data available to obtain an average rate of increase then the current average factor of a similar contract may be used.

(e) Items omitted from the Bill of Quantities (Ref.: In view of the findings in Chapter 3 of the Audit Report No. 53, SDEV requested in email of 19.2.2010 to strengthen the relevant PAH Sections on omitted items for reference by works departments and, where applicable, the consultants appointed as the Engineer for the Contract.)

For those items of works shown on the Drawings or described in the Specification but omitted from the Bill of Quantities (hereinafter called "omitted items"), the Engineer shall value the omitted items actually carried out in accordance with Clause 61, and shall certify in accordance with Clause 79. For the purpose of financial control, once potential omitted items are identified, the Engineer or his representative should exercise his professional judgement in rendering a preliminary assessment of rates and estimate the possible additional payment to be made. The total additional payment of potential omitted items and those omitted items which have already been valued should be properly reflected in the Final Contract Sum.

6.6 AUTHORITY TO INCREASE CONTRACT SUM

When any event occurs, which will probably cause the original contract value to be exceeded, approval has to be given by officers designated in Item A.I of Appendix V(B) of the Stores and Procurement Regulations (SPRs). This shows a schedule of authorities and lists the officers who can authorise increases in contract sums for payments in accordance with the terms of the contract subject to the APE not being exceeded. This authority is also applicable to variations essential for the completion of the works as defined in the original contract. Items A.III and A.IV of Appendix V(B) of the SPRs also stipulate that prior approval of the appropriate authority is required for an increase in the contract sum for additional works outside the terms of the Contract but within the approved scope of the project, subject to the APE not being exceeded. Where there is a supplementary agreement involved for additional works approved under Items A.III and A.IV of Appendix V(B) of the SPRs, it should be treated as a separate contract for the purpose of effecting further variations to these additional works and the schedule of authorities for variation of contract under Item A.I should also be applicable where appropriate. According to SPR 520(f), departments should copy to the Director of Audit correspondences on approved variations and any supplementary agreements consequentially signed.

In no circumstances may a contract sum be increased if such an increase would result in the APE being exceeded, or if the works which necessitate such an increase are outside the approved scope of the project, unless prior approval from the Secretary for Financial Services and the Treasury (SFST) has been obtained for an increase in the project

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estimate, or for a change in the scope of the project, in accordance with Financial Circular No. (FC No.) 2/2012.

If the increase in contract sum will exceed the departmental cap of the project, the internal procedure as set out in FC No. 2/2012 for securing approval for increase in additional allocations in excess of the departmental cap should apply. However, there is no need for submission to Public Works Subcommittee (PWSC) or Finance Committee if the APE is not exceeded. See the SFST's memo ref. FIN CR1/6/581/87(02) Pt.65 dated 12.9.2002 for details.

6.7 SECTIONS SUBJECT TO EXCISION (Subsumed from LWBTC No. 6/89)

Once the Contract has commenced and within the period of time stipulated in the Appendix to the Form of Tender, the Employer must decide whether he wishes the work contained within the Section Subject to Excision (if applicable) to be carried out or not. If the decision is made to proceed with the work then the Engineer must issue an instruction to the Contractor. If the decision is made not to proceed then the Contractor should be notified accordingly.

6.8 MINOR WORKS

The Director of Audit has conducted an audit review on the administration of minor works/term contracts of a works department. Pursuant to the Director of Audit's recommendations arising from the review, SDEV has announced the requirement that minor works projects should be controlled as much as other capital works projects for timely completion vide his memo ref. (3) in L/M in DEVB(CR)(W) 1-106/33 (2009) Pt. 1 dated 22.4.2009.

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7. CONTRACT PAYMENTS

7.1 ARRANGEMENT FOR PAYMENTS TO CONTRACTOR

Payments to Contractors are normally made by direct bank credit unless specially requested by Contractors otherwise Amd No. 1/2025. After signing the Contract, the Accounts Division/Section of the Works Department/Office shall request the Contractor to duly complete GF 179A on "Authority for payment to a Bank" for receiving payment by direct bank credit.

As a new measure promulgated by FSTB via memo ref. TsyB E 00/735/1/0(C) Pt.8 on 29 November 2024, for all government procurement exercises invited from 1 June 2025 onwards, regardless of value, including quotations and tenders as well as contracts awarded by way of direct engagement, the Government will make payments to Contractors by electronic means, and will no longer use cheques. The electronic means options include (i) bank transfer via traditional or digital bank accounts; and (ii) payment made by using Faster Payment System (FPS) proxy through Hong Kong Identity Card number or FPS identifier. For the avoidance of doubt, there will be no change to payment methods for procurement exercises invited before 1 June 2025. Amd No. 1/2025

7.2 INTERIM PAYMENTS

7.2.1 General Principles

The Contractor is required to submit to the Engineer at the end of each monthly period (the first of such monthly periods to commence on the date for commencement of the Works) a statement showing:

(a) The estimated contract value of the work done in accordance with the Contract up to the end of such monthly period with sums payable in respect of Nominated Sub-contractors listed separately;

(b) A list of materials delivered to the Site for use in the permanent work and their estimated contract value; and

(c) All further estimated sums, which the Contractor considers to be due to him under the Contract.

The statement shall be prepared on a form supplied by and at the expense of the Contractor, and the style and number of copies shall be as determined by the Engineer. The Contractor shall complete the required number of copies of the statement and deliver them to the Engineer for checking and, if necessary, correction in accordance with GCC Clause 79. To facilitate checking and correction, the Contractor shall also submit an electronic copy of his statement, in a format agreed by the Engineer. One corrected hard copy shall be returned to the Contractor.

According to GCC Clause 79(1), the Engineer shall value and certify Contractors' interim payment within 21 days of receiving Contractor's statement, and the Government shall effect payment to the Contractor within a further 21 days. Notwithstanding this contractual provision, SDEV (then S for W) gave directive in April 2000 and re-confirmed in

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January 2001 to achieve a 90% administrative target to effect payment of Contractors' interim accounts within 25 calendar days, for helping Contractors' cash flow in the "Helping Business Programme".

The payment to the Contractor should be the sum, which in the opinion of the Engineer is due, based on the rates in the Contract where appropriate, in respect of the following:

(a) The estimated value of the permanent work executed,

(b) The estimated value of any Temporary Works or preliminary items for which a separate sum is provided in the Bills of Quantities,

(c) The estimated value of materials with proof of ownership from the Contractor for inclusion in the permanent work and not being prematurely delivered to and being properly stored on the Site,

(d) The estimated sums payable in respect of Nominated Sub-contractors, and

(e) Any other estimated sum, which the Contractor is entitled in accordance with the Contract.

Provided that the total certified sum should be adjusted by the Engineer to take into account the retention of the percentage stated in the Contract until the sum retained reaches the limit of Retention Money and any adjustment to be made for fluctuations in the cost of labour and materials.

The quantities ascertained and determined by the Engineer for valuing an interim payment may be given in fractions of a unit.

The assessment of quantities for interim payments should be based on the Interim Payment Abstract Sheets which record quantities abstracted from site measurements and surveys on as-constructed drawings. The Interim Payment Abstract Sheet should be prepared on a form as shown at Appendix 9.10 of Chapter 9 (Measurement Procedure). See Chapter 9, paragraph 3.3.2, for more details.

The method of assessing quantities may vary according to the nature of the work but every effort should be made to ensure neat and clear records, which are agreed, by both the ER and the Contractor.

Note: 1. When assessing quantities of earthworks by lorry loads or barge loads, check surveys should be carried out every three months and the quantity per lorry/barge load should be adjusted if necessary.

2. Any measurements or survey computations taken solely for interim payment purposes should be filed but should be clearly marked INTERIM ONLY.

7.2.2 Procedure

In order to meet the administrative target of effecting Contractor's payment within

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25 calendar days as described in paragraph 7.2.1, the following progress record sheet or similar workflow procedure should be adopted by departments. However, the procedure as shown is for illustrative purpose only and each department may have their internal procedure for processing interim payment to suit departmental situation and the relevant departmental instructions should be referred to.

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Interim Payment Certification - Progress Record					
To	Action	Action Deadline [1]	Date		Signature
			In	Out	
GR	Account received and Progress Record Sheet passed to ER	D minus 16 WD [2]			
ER	Account received and passed to Inspector	D minus 15 WD			
Inspector	Quantities checked and passed to ER	D minus 12 WD			
ER	Account checked and passed to SSO(Q)	D minus 10 WD			
SSO(Q)	Bill casting checked and passed to Accounts Section	D minus 6 WD			
Accounts Section	Interim Payment Certificate checked	D minus 4 WD			
ER	Interim Payment Certificate signed	D minus 3 WD			
SE	Employer's Statement for Payment signed and passed to Accounts Section	D minus 2 WD			
Accounts Section	Payment Voucher online authorised in the 'Government Financial Management Information System' (GFMIS)	D [3]			
GR	Accounts copied to Site Office and filed	-			

Notes:
1. The exact calendar date of action deadline should be entered in the column, taking into account any intervening public holidays. The required action deadlines are for guidance only. Departments should work out their particular dates on its own merits.
2. WD = Working Days (including Saturday). The numbers of working days shown are for a typical cycle and indicative only. Action period of certain activities may have to be reduced due to extra public holidays in some circumstances e.g. Easter Holidays.
3. D = Deadline for GFMIS online authorisation which should be within 20 calendar days on receipt of IP from the Contractor.

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Contractor's accounts, including the electronic copy, must be submitted in their final form with an accompanying dated letter, so that the date of receipt of the account is recorded. The General Registry should stamp the account and prepare the Interim Payment Certificate Progress Record Sheet with the action dates filled in the appropriate columns. These, including the electronic copy, should then be passed in a loose jacket by hand to the ER. The Contractor's covering letter should be inserted into the main file and should be passed to the appropriate Senior Engineer for information.

The ER should check and sign the account, making such alterations as he considers necessary on the electronic copy and print out a hard copy of the corrected account. The ER should at least retain a copy of the uncorrected account in electronic form. His check should comprise checking the correctness of all quantities, that the work is being paid for under the appropriate items, the extension of quantities and rates, and the summation of the amounts shown against each item. He may request assistance from his Quantity Surveyors, Assistant Engineers, Inspectors of Works, Senior Survey Officer (Quantity) (SSO(Q)) and SO(Q) as appropriate, but should be responsible for ensuring that all such checks have been carried out within the stipulated periods.

If, for any reason, the ER finds that the account is invalid or cannot be certified, he should advise the Contractor accordingly in writing explaining the reasons and should return the account.

The ER should pass the corrected account both in hard and electronic copies to the Accounts Section, dating and signing the appropriate columns of the Interim Certificate Progress Record. The corrected account should not be returned to the Contractor for re-typing before passing to the Accounts Section.

The standard form at Appendix 7.19, which is based on Form EDD 27 or other relevant forms used in each individual department, on Engineer's Certificate shall be used. If the Engineer has not delegated authority to certify interim payment under GCC Clause 79(1) to the ER, the Certificate shall be signed by the Engineer.

The Employer's statement for Payment should be signed by an officer appointed by the Project Controller and such person should not be the Engineer nor the Engineer's Representative. After the account is authorised online by the Accounts Section, the Treasury will arrange for payment to the Contractor by direct bank credit and will also notify the Contractor accordingly. The Treasury normally takes three working days (excluding Saturday) to effect payment with an aim to achieve the administrative target of payment within 25 calendar days of receipt of accounts from the Contractor. A copy of the Payment Voucher and Engineer's Certificate shall be sent simultaneously to the Contractor and DEVB.

See paragraph 7.7.8 for more details as to "partial interim payment" arrangement, which is an interim relief measure.

7.2.3 Minimum Amount

The minimum payment to be made in an interim certificate is given in the Appendix to the Form of Tender. Minimum payments are specified to avoid the unproductive administrative effort necessary to prepare an interim certificate and may give an incentive to the Contractor to proceed with due diligence. It is recognised that in some circumstances a

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low value of completed work may be the result of the type and timing of the work being undertaken, extensive adverse weather or delays in making part of the Site available for work to proceed etc, and, is not due to any failure by the Contractor to make diligent progress. When there are circumstances of this nature, consideration should be given to exercising the discretionary powers under the Contract in favour of certifying payment for an amount less than that shown in the Appendix to the Form of Tender. See also LWBTC No. 7/87.

Should the ER consider that there are grounds for issuing a certificate in a sum less than the specified minimum amount then before any detailed checking is carried out these grounds are to be stated in the payment file for consideration by the Engineer who will decide if a certificate is to be issued or not.

7.2.4 Contract Price Fluctuation

The operation of Contract Price Fluctuation (CPF) procedure is contained in DEVB TCW No. 4/2021. For on-going contracts, index numbers for civil engineering contracts, entitled "Index Numbers of the Costs of Labour and Materials used in Public Sector Construction Projects (April 2003=100)" compiled by C&SD shall be used for calculating the CPF. All new contracts (including design and build contracts) with tenders to be invited on or after 1 October 2021 shall adopt the 2021-based Index Numbers published by C&SD and the associated provisions (including the revised sample Schedules of Proportions) stipulated in DEVB TCW No. 4/2021 for CPF adjustment.

7.2.5 Deductions

In preparing the "Employer's Statement for Payment" on the standard form at Appendix 7.19, deductions shall be made in respect of the following, where appropriate:

(a) Previous payments - Since the Engineer's Certificate is based on the total and hence cumulative value to which the Contractor is entitled (adjusted for Retention Money and price fluctuations), deductions will have to be made on all except the first certificate, in respect of previous payments.

(b) Liquidated damages - refer to paragraph 8.2.

(c) Value of materials supplied by the Employer.

(d) Other deductions - the contractual grounds for such deductions shall be stated.

7.3 FINAL PAYMENTS

Basically, the guidelines as contained in paragraph 7.2 on interim payments shall be followed for final payments where appropriate. However, the following major differences shall be noted:

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(a) The Contractor shall submit the final account and supporting documentation showing the value of work done with all further sums he considers to be due to him not later than 90 days after the date of issue of the maintenance certificate.

(b) Under GCC Clause 79(6), within 90 days after receipt of the final account and of all information reasonably required for its verification, the Engineer shall issue a final payment certificate stating the sum which is finally due under the Contract up to the date of the maintenance certificate with deductions of all sums previously paid by the Employer and the amounts to which the Employer is entitled under the Contract.

(c) Any balance to be paid to or by the Contractor shall be made within 28 days of the date of the certificate.

Having regard to the above differences, the ER should ensure that the necessary checking has been carried out within 90 days after receipt of the final account and of all information reasonably required for its verification. As a good practice, the preparation of the final account should proceed throughout the contract period and not be left until submission of the final account. Where the Contractor fails to submit a statement of the final account within 90 days of the date of the maintenance certificate, the case should be reported to the Engineer who will consider issuing a final account without reference to the Contractor under GCC Clause 79(7).

The Final Payment Certificate at Appendix 7.20 shall be used. The due date for payment shall be entered as 28 days from the actual date of the Engineer's Certificate.

The certificate shall not make express reference to approval of any work, this being covered by GCC Clause 80 maintenance certificate. (Subsumed from WBTC No. 36/93)

Where payment has to be made by the Contractor to the Employer, the standard General Demand Note shall be issued. The General Demand Note contains the words "payment to be made within 14 days from date of bill". Under GCC Clause 79(6) of the Engineering Works the balance due from the Contractor to the Employer is required to be paid by the Contractor within 28 days of the Engineer's final payment certificate. The General Demand Note shall be amended to comply with the Contract. (Subsumed from WBTC No. 36/93)

7.4 MISTAKES IN PAYMENTS

GCC Clause 79(5) allows the Engineer to delete, correct or modify any sum previously certified by him by means of certificates. Should it be discovered that there has been a mistake in the Final Payments, the matter shall be reported to the Engineer who will give directions as to the appropriate action to be taken.

Legal advice is that for contracts executed under seal, the account will be left open for 12 years from the date of the final payment certificate. The Director of Audit, Director of Accounting Services, Director of Corruption Prevention and Permanent Secretary for Financial Services and the Treasury (Treasury) (PSTsy) have agreed that the "no finality" approach is appropriate. This permits the Employer and the

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Contractor to retrieve over/under payments, subject to the 12-year limit. (Subsumed from WBTC No. 36/93)

Where difficulty is experienced in obtaining a refund of previous overpayments, or where it is not possible to make a claim due to the statutory period of 12 years having elapsed or for other reasons, legal advice and assistance should be sought and, if necessary, an application for write-off or waiver made in the usual way. See FC No. 5/2017 for more guidance.

7.5 OVERDUE PAYMENTS

In the event of failure by Government to make payment to the Contractor in compliance with GCC Clause 79, Government shall pay to the Contractor interest at one percent below the judgement debt rate prescribed from time to time by the Rules of the High Court (Chapter 4 of the Laws of Hong Kong).

7.6 RE-ENTERED CONTRACTS (Subsumed from WBTC No. 36/93)

There is no agreed standard format for certificate for contracts re-entered under GCC Clause 81. Individual departments should produce forms to suit their requirements based on the model at Appendix 7.20.

7.7 MEASURES TO ASSIST THE CONSTRUCTION INDUSTRY

7.7.1 Financial Relief Measures

In the immediate aftermath of the financial tsunami in late 2008, DEVB has implemented a package of interim financial relief measures with a view to relieving contractors, especially small and medium-sized contractors, of the cashflow difficulties they encountered at that time.

According to SDEV's memo ref. (025QN-01-3) in DEVB(W) 510/83/08 dated 4.3.2010, each works department is required to monitor the status with standing targets for achieving early contract finalization.

Upon completion of a review of the interim measures, DEVB decided to adopt these interim measures as standing policies in public works contracts under SDEV's memo ref. (02APB-01-8) in DEVB(W) 510/83/08 dated 8.3.2011. The measures includes, among other things, incorporation of contract provisions for interim payments for contracts which do not contain interim payment provisions, interim payment for major off-site pre-fabrication works, release of retention money in stages to the contractors. The SCC as promulgated under SDEV's memo ref. (02APB-01-8) in DEVB(W) 510/83/08 dated 8.3.2011 for implementation of the measures are given in Appendices 7.62, 7.65 and 7.66.

In order to improve the cash flow of contractors, DEVB also promulgated a set of

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guidelines under SDEV's memo ref. DEVB(W) 510/83/08 dated 20.7.2012 for adoption of the SCC on interim payment for major off-site prefabrication items in public works contracts with a view to promoting its wider use. The set of guidelines is also given in Appendix 7.70.

7.7.2 Contract Measures to Prevent Non-payment of Wages and to Limit the Tiers of Sub-contracting

(Ref.: SDEV's memos ref. (027RU-01-3) in DEVB(W) 510/17/01 dated 16.7.2010, (02UZT-01-1) in DEVB(W) 510/17/01 dated 28.9.2016, DEVB(W) 510/17/01 dated 4.6.2019 and ( ) in DEVB(W) 510/17/01 dated 19.4.2021)

DEVB promulgates contract measures to prevent non-payment of wages for implementation in all capital works contracts and contract provisions limiting the tiers of sub-contracting for application of public works contracts. See Section 21.7 for more details as to the contract measures to prevent non-payment of wages.

7.7.3 Advance Payment under New Capital Works Contracts

To assist the construction industry in the midst of the economic downturn in early 2020, DEVB introduced an interim relief measure of an "advance payment" mechanism in capital works contracts adopting selective tendering, with a contract period of not less than 12 months under SDEV's memo ref. () in DEVB(W) 510/33/02 dated 14.2.2020.

The helping measure allows the Contractor to request an advance payment from the Employer after the execution of the Articles of Agreement. In brief, the Contractor is required to submit a statement for such purpose to the Engineer / Surveyor / Project Manager for certification. The duly certified statement will then be passed to the Employer for processing payment. The advance payment will be deducted from interim and/or final payments due to the Contractor starting from the seventh monthly payment by instalments.

To help the construction industry tide over the difficult period of 5th wave of the COVID-19 pandemic, DEVB extended the "advance payment" mechanism until further notice under SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 10.3.2022.

7.7.4 Special Advance Payment under Ongoing Capital Works Contracts

To help the construction industry tide over the difficult economic situation in early 2020, DEVB extended the "advance payment" mechanism to cover ongoing capital works contracts with a contract period of not less than 12 months under SDEV's memo ref. () in DEVB(W) 510/33/02 dated 27 February 2020.

This one-off "special advance payment" arrangement shall apply to all ongoing capital works contracts at that time and contracts with tenders invited before 1.3.2020.

7.7.5 Special Advance Payment (5th Wave) for Ongoing Capital Works Contracts

To help the construction industry tide over the difficult period of the 5th wave of the COVID-19 pandemic, DEVB introduced a one-off "special advance payment (5th wave)" arrangement for ongoing capital works contracts under SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 15.3.2022, similar to the special advance payment arrangement promulgated under SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 27.2.2020

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The one-off "special advance payment (5th wave)" arrangement shall apply to all ongoing capital works contracts awarded on or before 31 December 2021, irrespective of whether a similar advance payment has been made before pursuant to SDEV's memos ref. DEVB(W) 510/33/02 dated 14 February 2020 or 27 February 2020.

7.7.6 Special Payment for Imported Items

The 5th wave of the COVID-19 pandemic is gradually subsiding from its peak. However, the construction industry is still experiencing uncertainties and delays in delivery of construction materials / products / plants / equipment / goods (hereinafter referred to as "materials and plant").

To help public works contractors better cope with the above difficulties, policy approval is given under SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 8.7.2022 for a special payment for materials and plant which are delivered to Hong Kong and properly stored off-site (hereinafter referred to as "Special Payment for Imported Items") under capital works contracts.

For NEC ECC Option A and Option B contracts, Advance Payment for Plant and Materials is colloquially referred to as "materials on site". Irrespective of the contract form adopted (i.e. GCC or NEC), in assessing payments for materials on site, consideration as to whether the materials and plant concerned are "not prematurely delivered" shall be made with due regard to the genuine effort made by contractors in securing delivery of such materials and plant, thereby avoiding delay to the projects.

To cope with the situation as described above under NEC-ECC target contracts, the *Project Managers* are reminded to refer to Item 3 on Plant and Materials and Item 4 on Subcontractors of the Schedule of Cost Component.

According to SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 22.11. 2023, DEVB decided to extend this measure until further notice.

7.7.7 Streamlining the Approval Process of Contract Assignment

See Note 1 of Section 21.3 below for details.

7.7.8 More Frequent Interim Payments

The construction sector has indicated that many contractors experienced difficulties in running their business in the past year or so due to financial hardship or cash flow problems, caused mainly by the shrinkage in the volume of private construction works.

DEVB introduced a "partial interim payment" arrangement in the existing interim payment mechanism of capital works contracts under SDEV's memo ref. ( ) in DEVBWB WP4S-021-004-002 dated 10.10.2024. This new payment arrangement shall be applicable for all new capital works contracts for which tenders are to be invited during the period from 24 October 2024 to 31 August 2025 (both dates inclusive), or for those ongoing capital works contracts where a supplementary agreement is executed to incorporate appropriate contract provisions.

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If this "partial interim payment" arrangement is adopted, the monthly interim payment will be paid to the contractor in two instalments. The first instalment, called partial interim payment, will be certified within 14 days after receipt of the contractor's interim payment application and paid 7 days after certification. In order to minimise the workload arising from the introduction of this new arrangement, the amount to be certified by the contract administrator for the partial interim payment will be assessed on a broad-brush basis, amounting to 50% of either (i) the amount claimed by the contractor in his interim payment application; or (ii) a reasonable amount estimated by the contract administrator to be due to the contractor for the assessment period, as considered appropriate by the contract administrator. Upon completing detailed assessment of the amount due to the contractor for the assessment period by the contract administrator, the second instalment, viz. the amount due to the contractor for the assessment period less the amount paid under the first instalment, will be certified by the contract administrator and paid within the time frame specified in the original contracts.

The "partial interim payment" arrangement is only an interim relief measure in nature, contract administrator is empowered to suspend or cease the operation of the "partial interim payment" arrangement as he thinks fit under circumstances such as a contractor running into serious financial problem or having seriously poor performance or when DEVB considers that there is no need to continue this relief measure. When the operation of the "partial interim payment" arrangement is suspended or ceased, the payment method will be reverted to the conventional monthly interim payment arrangement.

7.7.9 More Frequent Milestone Payments

With the difficulties in the construction sector as mentioned in paragraph 7.7.8, according to SDEV's memo ref. ( ) in DEVBWB WP4S-021-004-002 dated 10.10.2024, project offices should introduce more frequent milestones or more activities (e.g. for major items of works) in new capital works contracts adopting milestone payments or using activity schedules, where practicable, to shorten the payment intervals to contractors.

This measure shall also be incorporated into ongoing capital works contracts as far as practicable provided that it would not result in additional costs to be borne by the Government. For works contracts which have already had contract provisions to allow sub-division of milestones / activities in the existing payment schedules, project offices should work proactively with contractors to introduce such sub-divisions. For works contracts which do not have such contract provisions, project offices should enter into a supplementary agreement with contractors through exchange of correspondence to introduce similar changes to the payment schedules with a view to achieving the objective of expediting payments to contractors.

For the purpose of executing a supplementary agreement as mentioned above, project offices should adopt one the sample letters in Appendices 7.83, 7.84 and 7.85 for NEC ECC HK Edition, NEC4 ECC and GCC contracts respectively. For ongoing capital works contracts adopting NEC3 ECC, project offices should make necessary amendments to the sample letters at the Annexes mentioned above to suit the context of NEC3 ECC. Clearance by LAD(W) should be sought in case of doubt.

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8. EXTENSION OF TIME FOR COMPLETION AND LIQUIDATED DAMAGES

8.1 EXTENSION OF TIME FOR COMPLETION AND LIQUIDATED DAMAGES

8.1.1 General Principles

(a) An extension of time for completion in effect deprives Government of the right to liquidated damages for delay in completion of the Works for the period of the extension and therefore has a financial implication.

(b) GCC Clause 50(1)(a) expressly requires the Contractor to give notice in writing to the Engineer of their claim for an extension of time for completion within certain stipulated time limits, as follows:

(i) As soon as practicable but in any event within 28 days after the cause of any delay to the progress of the Works or any Section has arisen, the Contractor shall give notice to the Engineer of the cause and probable extent of the delay.

(ii) As soon as the Contractor can reasonably foresee that any order or instruction issued by the Engineer is likely to cause a delay to the progress of the Works or any Section, the Contractor shall give notice to the Engineer and specify the probable effect and extent of such delay. Such notice shall not in any event be given later than 28 days after the Engineer has issued the relevant order or instruction.

(c) If the Contractor has failed to comply with GCC Clause 50(1), the Engineer is not bound under the Contract to consider whether the Contractor is fairly entitled to an extension of time for completion. However, the Engineer is not explicitly deprived of such power and the Engineer may consider the Contractor's claim for an extension of time for completion if it is not unreasonable for him to do so.

(d) In order to ensure that the Contractor knows as soon as possible whether or not he is entitled to an extension and to enable him to plan his progress accordingly, the Engineer should take action in accordance with the following provisions in the Contract:

(i) Under GCC Clause 50(1)(b): if in the opinion of the Engineer, the cause of the delay is any of those stipulated in this sub-clause, then the Engineer shall within a reasonable time consider the Contractor's claim.

(ii) Under GCC Clause 50(2): if the Engineer considers that the Contractor is fairly entitled to an extension of time for completion, the Engineer shall within a reasonable time determine, grant and notify the Contractor in writing accordingly.

(e) The Engineer is also required under GCC Clause 50(2) to notify the Contractor

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in writing if he decides that the Contractor is not entitled to an extension in response to a claim made by the Contractor.

(f) It should be noted that the Contractor has no duty to submit full and detailed particulars of the claim unless the Engineer has expressly required him to do so. Again, the submission if required shall be made by the Contractor to the Engineer as soon as practicable. If the Contractor fails to comply with a request for such a submission, the Engineer shall consider such extension only to the extent that he is able on the information available.

(g) When examining a claim for an extension of time, the two crucial questions are whether the Contractor has in fact been held up by delay within the provisions of GCC Clause 50, and whether he is "fairly" entitled to an extension. It is thus necessary to take into account the facts on Site including the state of readiness of the Contractor to act had the matter that is the subject of the claim not arisen, and the effect on the critical path for the Works. For this purpose, it may be reasonable to consider the critical path as being the actual critical path at the time the matter took effect recognising that this may or may not be the same as the critical path in the notified programme. In all respects, the Engineer in determining an extension of time, is required under GCC Clause 50(2) to take into account all the circumstances which are known to him at that time, including the effect of any omission of work or substantial decrease in the quantity of any item of work.

(h) It should also be noted that the Engineer, if so requested by the Contractor in writing under GCC Clause 50(2), shall make a subsequent review of the circumstances causing the delay and determine whether any further extension of time for completion should be granted. However, the Engineer may not, at such subsequent review, decrease any extension already granted to the Contractor.

(i) For contracts that are managed by consultants, the provision of Clause 25(iv) of the "General Conditions of Employment of Engineering and Associated Consultants for a Design and Construction Assignment" should be referred to in matters relating to delays to the progress of the contract works and assessment of grant of an extension of time for completion. The same consideration also applies to in-house contracts.

(j) An extension of time for completion may be granted in units of half a day.

(k) Entitlement to an extension of time does not automatically lead to entitlement to monetary compensation. GCC Clause 50(5) provides that except as provided elsewhere in the Contract, any extension of time granted by the Engineer shall be deemed to be in full compensation and satisfaction for any loss or injury sustained or sustainable by the Contractor in respect of any matter or thing in connection with which such extension shall have been granted. (Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 18.12.2013)

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8.1.2 Reasons for Extension

(a) The main causes of delay that may justify an extension of time are given in GCC Clause 50(1)(b)(i) to (xi), and **SCC Clauses for unforeseen utility work if included in accordance with ETWB TCW No. 17/2004, and Change in Law if included in accordance with ETWB TCW No. 23/2004. (Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 18.12.2013)**

(b) When a claim for an extension of time in respect of inclement weather as stated in GCC Clause 50(1)(b)(i) is examined, "inclement weather" may be taken to mean "any weather condition which is detrimental to the progress of the Works in critical areas of the works programme and effectively delays the completion of the Works". When weather conditions occur which may fall within this definition it is the responsibility of the Engineer/Architect to fairly determine whether the conditions prevented the completion of the Works, within the stated or extended time and if so, to assess the length of time by which the Works were delayed, and grant an extension to the time for completion accordingly. The object is to replace the lost time. In making this decision the Engineer/Architect must use his professional judgment, but in so doing the Engineer/Architect may consider:

(i) the Contractor's notice required under Clause 50(1)(a) of the cause and probable extent of the delay;

(ii) the timing, duration and severity of the "inclement weather";

(iii) changes in volume of work output;

(iv) changes in resources employed on the site;

(v) details of items of work delayed and their importance in the works programme as a whole;

(vi) the readiness of the Contractor to work had weather conditions been favourable;

(vii) any measures taken by the Contractor to minimise the effects of inclement weather; and

(viii) whether the extended period included any statutory or accepted (e.g. Lu Pan Festival) holiday during which the Contractor would not in any case work, in which case this lost time may also be added.

[Paragraph 8.1.2(b) (Subsumed from WBTC No. 8/92)]

(c) Not used.

(d) Where the provision for extension of time due to inclement weather is deleted in the Contract according to paragraph 9.18 of PAH Chapter 5, it should be noted that the Contractor's entitlement to extension of time in respect of

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inclement weather that occurs after the expiry of the completion time originally prescribed in the Contract, but before the period of culpable delay, is not deleted.

(e) In deciding whether the cause of delay is a disturbance to the progress for which the Employer is responsible pursuant to GCC 50(1)(b)(vii), the Engineer should take into account all relevant matters including e.g. the Government is wearing two hats in that on the one hand it is the Employer under the Contract and on the other hand it is exercising its public function. Any delay arising out of or in connection with the Government exercising its public function (e.g. implementation of large number of big infrastructure projects causing a shortage of construction workers in particular trades; rejection or lengthy processing of applications for importation of labour by LD, etc.) may not be a delay caused by the Employer under GCC 50(1)(b)(vii) of the Contract. (Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 18.12.2013)

(f) "Any special circumstance of any kind whatsoever" under GCC Clause 50(1)(b)(xi) excludes the Employer's breach of express or implied terms of the Contract and any matters of delaying effects reasonably within the contemplation of the parties at the time of tender. Whether a claim of special circumstance is established depends on the facts of each case. In making this decision the Engineer/Architect must use his professional judgment, but in so doing the Engineer/Architect may consider the following factors (which are not exhaustive) where appropriate: (Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 18.12.2013)

(i) whether the occurrence of the event/problem relied on is something out of the ordinary or uncommon; (Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 18.12.2013)

(ii) in case the occurrence of the event/problem is foreseeable at the time of tender, whether the time of occurrence or the severity is not reasonably within the contemplation of the parties at the time of tender; (Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 18.12.2013)

(iii) whether the occurrence or the severity of the event/problem is self-induced by or arising out of the fault of the Contractor; and (Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 18.12.2013)

(iv) whether the Contractor has taken reasonable steps to avoid the occurrence of the event or alleviate the problem. (Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 18.12.2013)

(g) The Contractor shall not be entitled to an extension of time for completion if the cause of the delay is any of the causes which are stipulated in GCC Clause 50(1)(c) (i) or (ii). **A mandatory SCC has been promulgated under DEVB TCW No. 5/2013 to delete "labour" from Clause 50(1)(c)(ii). (Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 18.12.2013)**

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(h) Upon the adoption of the SCC promulgated under DEVB TCW No. 5/2013, shortage of labour (or particular trades) is not a cause of delay automatically justifying an extension of time under Clause 50(1)(b) but the Contractor may be entitled to an extension of time if the Engineer/Architect considers that the delay brought by shortage of labour (or particular trades) is a case of special circumstance pursuant to GCC 50(1)(b)(xi). The problem of labour shortage not only covers the problem of insufficient workers of a particular trade but also insufficient skilled workers of the particular trade. Where the labour shortage is made more transparent and publicized by the Construction Industry Council (CIC) and the market information amid the increasing number of infrastructure projects in full swing and aging of workforce, shortage of labour (or particular trades) should be foreseeable at the time of tender. To demonstrate that the problem of labour shortage (or particular trades) is a case of special circumstance, the circumstance, e.g. the time of occurrence or the severity of labour shortage (or particular trades) etc. must be one which was not reasonably within the contemplation of the parties at the time of tender. As the Contractor is responsible for providing the resources necessary for constructing the work, the Contractor is not fairly entitled to any extension of time if the problem of shortage of labour is self-induced, caused by its own fault or arises out of its failure to take reasonable steps to alleviate the problem. However, each case turns on its own facts. Apart from the considerations mentioned above, the following are some relevant factors which may be taken into account (which are not exhaustive) in coming to a reasonable and just conclusion: (Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 18.12.2013)

(i) The wages the Contractor is prepared to pay and the reasonableness of the terms of employment. Hence, the level of wages the Contractor is offering when recruiting labour is a relevant factor for consideration. The wage rates published by the Census and Statistic Department and the Hong Kong Construction Industry Employees General Union may be used as a reference for comparison. (Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 18.12.2013)

(ii) Whether the Contractor has provided a safe and reasonable working environment to workers. (Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 18.12.2013)

(iii) Whether the Contractor has taken reasonable steps to increase efficiency and reduce the requirement of labour force, such as reasonably more use of prefabricated units, mechanical plants as compared with its Technical Proposal and any other contractual requirements etc. (Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 18.12.2013)

(iv) Whether the Contractor has taken reasonable steps to recruit workers timely, such as carrying out recruitment exercise through the Construction Industry Resources Centre, joining the Contractor

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Cooperative Training Scheme etc. (Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 18.12.2013)

8.1.3 Procedure
(Subsumed from LWBTC No. 14/85)

An extension of time for completion of a contract should not be granted by means of a Variation Order (or Site Instruction in the case of Architectural Office contracts) but by letter. It should be notified to the Contractor in the form of the sample letter as given in Appendix 7.18. This should be adapted as necessary by individual departments and to suit specific cases. If there are any Sections identified in the Contract then the situation with regard to these Sections is to be stated, notwithstanding that they may be unaffected by the extension. In some cases, it may be only a Section that is affected and the whole of the Works may remain unaffected.

8.2 LIQUIDATED DAMAGES

8.2.1 Authority

Under GCC Clause 52, if the Contractor fails to complete the Works or any Section (where the Works are divided into Sections) within the time of completion or any extension thereof, then the Contractor shall pay liquidated damages to the Employer or the Employer may deduct liquidated damages from money due to the Contractor. It should be noted that the contractual authority to deduct liquidated damages is the officer nominated as the Employer on behalf of the Government.

8.2.2 General Principles

(a) When the date for completion of an identified Section or the Works becomes due and the certificate of completion in respect of the Section or the Works is not to be issued in accordance with GCC Clause 53, the Engineer shall review the situation and make recommendations to the officer nominated as the Employer prior to the imposition of any liquidated damages. The review is to show the current due date for completion with notes and an assessment of any claims for extensions of time received or expected, together with an indication of the monies payable or likely to become payable to the Contractor. Retention Money and projected payments for price fluctuations, if any, are to be shown separately. If there appears to be good reason to suppose that the deduction of liquidated damages may produce such financial hardship that it might prevent the Contractor from completing the Works or any Section (where the Works are divided into Sections), this shall be specifically indicated in the recommendation.

(b) If there appears to be reasonable grounds for an extension of time that might put back the due date for completion beyond the actual completion date, then deductions should not be made until the extension has been fully evaluated and the certificate of completion issued. Should there be an extension of time under consideration but preliminary assessments show that there are insufficient grounds to grant such an extension that would come near or go beyond the anticipated or actual completion date, then deductions after the

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most optimistic estimate of the extended date may be appropriate.

(c) GCC Clause 52 on liquidated damages also provides for the reduction of liquidated damages should any part of the Works or any part of the Sections be certified as being complete before the completion of the Works or the Sections.

(d) The period for which liquidated damages shall be calculated shall be the number of days from the prescribed date for completion or any extension thereof of the Works or the relevant Section until and including the certified date of completion (apart from the interim deductions in sub-clause (b)).

(e) If upon a subsequent review of the circumstances causing delay, the Engineer has granted an extension of time, any sum in respect of such period, which may have been paid by or deducted from the Contractor, must be reimbursed to him together with interest at one percent below the judgement debt rate in accordance with GCC Clause 79(4).

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9. SITE MEETINGS

9.1 OBJECTIVE

The main objectives of site meetings with the Contractor are to review works progress and programme, to discuss problems encountered with regard to the execution of the Works and to propose remedies.

9.2 FREQUENCY

Site meetings should normally be called and chaired by the ER once a month or at more frequent intervals if necessary. The meetings shall be attended by the inspectorate staff, the Contractor's site agent and his representatives. When required, the Employer, the Engineer and the Contractor's senior personnel may attend meetings to address particular issues such as adverse progress or serious site problems. For certain contracts, such as operation and maintenance term contracts, site meetings may be at intervals greater than one month.

9.3 TYPICAL TOPICS

Typical topics discussed should include works progress and programme, site supervision, site resources including labour and plant, workmanship, materials, testing and site safety.

9.4 RECORDS

Matters discussed at site meetings shall be recorded in the minutes. The number of the meeting, date, time, venue and whoever attends should be stated. The minutes of meetings should be sent to the Contractor for his confirmation and retention. Copies of the same should be separately sent to the site agent, site office and other relevant officers for information and necessary action.

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10. LIAISON WITH OTHERS

10.1 LIAISON WITH UTILITY COMPANIES, GOVERNMENT DEPARTMENTS AND OTHERS

Close liaison between the Contractor and others is very important. The Contractor should make all the necessary arrangements with and obtain all necessary approvals/ agreements from Government departments, utility undertakers and other duly constituted authorities for carrying out the Works, including those required for traffic arrangement and control.

For excavation in existing public roads maintained by the HyD, the project office should apply for the necessary Excavation Permit or Works Permit from the Regional Offices or the Bridges and Structures Division of HyD as appropriate. Detailed procedures for the application of Excavation Permits from the HyD can be found in the Excavation Permit (XP) Processing Manual, which is available at the web site: http://www.hyd.gov.hk. For excavation in unleased Government lands other than streets maintained by the HyD, permission in the form of Simplified Temporary Land Allocation (STLA) should be obtained from the Lands D by the project office. Where STLA is not applicable and such excavation is not within the category of exemption under Section 10B of the Land (Miscellaneous Provisions) Ordinance, the Contractor shall apply to the Lands D for an Excavation Permit and shall be the Permittee.

The Contractor should maintain close liaison with all the necessary authorities throughout the Contract and in this respect Section 1 of the GS gives guidelines, and also details of traffic arrangements and control, works in roads and adjacent to utilities. Also, Chapter 3 gives further information concerning the appropriate Ordinances to follow and approvals to obtain.

There are cases in the past where reclamations formed with sand extracted from local marine borrow areas were found to contain unexploded ordnance. When carrying out any reclamation works and if any unexploded ordnance is found during the contract, the project office should assess the implications of the potential risks to the works and the future land use for appropriate actions. If there is any likelihood of residual risk to the land, the future land users (such as works departments responsible for subsequent provision of infrastructure works on the reclamation) and/or Lands D (in case no subsequent infrastructure works are needed but Lands D will arrange the land for disposal) should be consulted, where practicable, for any safety measures to be adopted and/or appropriate measures to be planned for the subsequent infrastructure works contracts and/or land lease conditions. The project office responsible for reclamation should provide the details to the future land users/Lands D for carrying out any necessary actions subsequently.

10.2 FACILITIES FOR THE BLIND

For capital works projects affecting existing pedestrian way, the project office shall inform the Subcommittee on Access (SCA) under the Rehabilitation Advisory Committee the site telephone numbers through which people with disabilities could contact site personnel for assistance when necessary. The address of SCA is Government Secretariat, 11/F, West Wing, Central Government Offices, 2 Tim Mei Avenue, Tamar, Hong Kong. The SCA is the

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principal advisory body to the Secretary for Health, Welfare and Food on the development and implementation of rehabilitation policies.

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11. SITE SAFETY

11.1 RESPONSIBILITY

It is the Contractor's responsibility to ensure the safety of all persons on Site and the general public during execution of the Works. Government site supervisory staff should encourage the Contractor and his workers to use safe methods of working and remind them of the provisions of the Construction Sites (Safety) Regulations and other relevant regulations, but they should avoid giving specific advice or instructions on working methods which could construe the site staff having assumed the Contractor's responsibility. Any breach of the regulations or safe working practices observed on Site should be brought to the attention of the Contractor and recorded in the site diary. Where it is considered that the outcome of any unsafe working practice could result in injury or be detrimental to the permanent works, the matter should be reported to the Engineer, who should then consider whether to exercise his power to suspend the progress of the Works and/or to notify the LD and/or Marine Department (MD) as appropriate.

With reference to SDEV's memo ref (02U5N-01-1) in DEVB(W) 517/17/01 dated 8 June 2016, capital works projects with estimated construction cost equal to or exceeding $500M, excluding Design & Build projects, should follow the Design for Safety process with immediate effect. The project teams are reminded to refer to "Guidance Notes of Design for Safety" and "Worked Examples of Design for Safety" for their safety responsibilities during contract management. The documents can be downloaded from DEVB's website at: http://www.devb.gov.hk/en/publications_and_press_releases/publications/index.html

11.2 CONTRACTOR'S SAFETY ORGANISATION

The Contractor shall submit to the ER at monthly intervals an updated safety organisation chart. The ER shall ensure that the Contractor shall establish a Site Safety and Environmental Committee (SSEC). The statutory requirements for site safety management are listed in the Factories and Industrial Undertakings (Safety Management) Regulation, which vary according to the contract sum and the number of employees on Site. Under the Factories and Industrial Undertakings (Safety Officers and Safety Supervisors) Regulations, the Contractor has to employ a full-time Safety Officer and Safety Supervisor on Site when the number of workers reaches 100 and 20 respectively. The contractual requirements require the Contractor to employ part-time or full-time Safety Officer(s), Safety Supervisor(s) and Safety Representative(s) according to the number of workers on Site.

11.3 MONITORING AND LIAISON WITH LABOUR DEPARTMENT AND MARINE DEPARTMENT

To ensure closer co-operation between the site staff and LD/MD and to improve efficiency in monitoring site safety matters, the following procedures shall be followed. However, works department may adjust the procedures to suit their own modes of operation.

(a) At the commencement of the Contract, the Engineer shall inform the relevant Divisional Occupational Safety Officer (DOSO) of LD of the location and the nature of the works, the name and the telephone number of the ER responsible

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for supervising the Contract, the name of the Contractor, the contract sum, the commencement date and the estimated completion date of the Contract. For contracts which may involve any use of vessel and/or barge, the Senior Shipping Safety Officer (SSSO) of MD shall similarly be informed. The Engineer shall inform DOSO or SSSO immediately whenever there is any change of information.

(b) The ER shall closely liaise with LD/MD throughout the whole construction period regarding the construction site safety matters. The ER shall invite LD/MD to attend the first Site Safety and Environmental Management Committee (SSEMC) meeting, and subsequent SSEMC meetings and other ad-hoc safety meetings where appropriate.

(c) When the site staff have identified that an unsafe situation or believed that the Contractor or his workers are using unsafe working methods, the matter shall be drawn to the attention of the Contractor's Site Agent or Safety Officer as soon as possible. The matter should then be duly recorded in the site diary which must be countersigned by the Contractor's Site Agent. If the unsafe situation or the unsafe working methods still persist after repeated notifications by the site staff, they shall be reported by the most senior site staff to the relevant DOSO for their immediate action. Where the unsafe situation is considered as one with a definite risk to life, the Engineer may in parallel instruct the Contractor to suspend relevant portions of the Works. For similar cases involving persistent unsafe situations or unsafe working methods on a floating barge/vessel, the matter shall be reported by the most senior site staff to the SSSO in the Marine Industrial Safety Section of MD for their immediate action. See Chapter 8 of the CSSM for contact points of the relevant DOSO and SSSO.

(d) When an Occupational Safety Officer (OSO), or a Shipping Safety Officer (SSO) visits the Site, the site staff shall brief the OSO or SSO the condition on the Site, accompany them during inspection, and ask them to sign on the site diary upon completion of the inspection. The ER shall ask the Contractor to follow up the items in the Construction Site Inspection Report issued by the Commissioner for Labour.

(e) Where it is necessary for the Commissioner for Labour or the Director of Marine to issue statutory notices, viz. Improvement Notice, Suspension Notice, Marine Direction or Warning Letter, to the Contractor, the notices shall be copied to the Departmental Safety and Environmental Adviser (DSEA) concerned and the site staff. Upon the receipt of such reports and notices, the DSEA shall then copy them to the appropriate project office and other parties as he sees fit. The issue of any statutory notices shall be noted on the Report on Contractor's Performance.

(f) Works department shall take the guiding principles of the "Guidance Notes on Safety and Health of Hand-Dug Tunnelling Work" (GN) into consideration when planning any trenchless/tunnelling work before awarding works contracts to contractors, and remind them to strictly follow the occupational safety and health (OSH) measures as set out in the GN. For effective monitoring the OSH performance, works department is requested to notify LD

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once it intends to employ "heading" hand-dug tunnelling method in works projects and provide the information of the works such as site location, construction period and name of the consultant (if any), principal contractor to be involved and respective contact persons via letter or email to:

Senior Divisional Occupational Safety Officer
(Operations Division)(Headquarters)1
Address: Operations Division, Labour Department
13/F, Harbour Building,
38 Pier Road, Central,
Hong Kong.
Email: sso-hq-1@labour.gov.hk

11.4 CHECKING AND AUDITING OF TEMPORARY WORKS

Unless specifically provided in the Contract to the contrary, the Contractor is responsible for the design and stability of all temporary works. Attention is also drawn to paragraph 9.35 of PAH Chapter 5 concerning the independent checking of the design, erection, use and removal of temporary works. The ER is required to examine the Contractor's design details concerning the design, erection, use and removal of the temporary works and shall satisfy himself that it contains no obvious deficiency. In particular, the ER is to carry out all necessary checks to ensure that the proposed methods do not have a detrimental effect on the permanent works or on the safety of existing or temporary slopes especially where public safety could be affected, and if necessary in consultation with the project engineer. For temporary works which will be extremely complex or innovative, or the case where potential consequence of any failure is likely to be severe, the requirement of independent checking of temporary works, including temporary drainage, and their effects on the permanent works or on the safety of existing or temporary slopes especially where public safety could be affected, should be considered. Where the requirements for checking, testing or inspecting temporary works have been given in the Contract then these requirements are to be implemented and monitored accordingly. In the majority of cases, no such specific requirements will be stated, and the ER should make all checks as appear to be reasonable as to the adequacy of the design and implementation, pointing out any errors or areas of uncertainty that become apparent. In some circumstances, a trial run or test load may be a practical way to prove suitability. The responsibility for the temporary works remains with the Contractor but no work should commence until the ER has issued his consent in writing upon making such verification. The ER should also satisfy himself that the Independent Checking Engineer has carried out his duties with reasonable skill and care in certifying that the temporary works have been properly and safely designed. See also paragraph 9.35 of PAH Chapter 5.

Guidance on temporary drainage provisions and precautionary and mitigation measures against severe rainfall during site formation works are given in GEO Technical Guidance Note No. 40. Suitable control requirements to protect public safety should be specified in the consultancy agreement and works contract. In some cases, there could be benefits to specify construction of some of the permanent drainage works in the early stage of the contract, to channel the majority of surface water flow to safe discharge locations, for safety and ease of construction.

In respect to temporary works, the following publications may generally be of use:

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(a) Technical Report TRSC 4, issued by the Concrete Society and the Institution of Structural Engineers, provides useful guidance where temporary works are classified as falsework;

(b) Chapter 9 of the Geotechnical Manual for Slopes and GEO Technical Guidance Note No. 40 provide guidance and good practice for implementing temporary drainage and rainfall precautionary and mitigation measures during construction in the wet season;

(c) BS 5975:1996 (Code of Practice for Falsework); and

(d) Appendix B in the Structures Design Manual for Highways and Railways for the design of protective measures for Temporary Works.

Temporary geotechnical works should be designed and constructed in a safe manner. Proper supervision by technically and professionally qualified personnel is essential, particularly when public safety may be affected. Guidance on the requirements for geotechnical supervision is given in Appendix 7.47.

For projects involving tunnel works, the project office shall submit to the GEO for audit the geotechnical design documentation for all tunnel works, including associated temporary works, where such works could pose a significant risk to public life or property. Details of the information to be included in the geotechnical design submission are given in Appendix A of ETWB TCW No. 15/2005.

11.5 REPORTING OF SITE INCIDENTS AND ACCIDENTS

All accidents causing personal injury, affecting the Works or adjacent property, and incidents on or adjacent to the Site are to be recorded in the site diary. An accident is classified as a notifiable accident if:

(a) it has led to fatality, or

(b) the victim is in critical condition, or

(c) the media have arrived on site or have telephoned to ask information concerning the accident, or

(d) it will arouse public interest/concern in view of the damage/inconvenience that has been caused or its potential harm to workers and/or the public, or

(e) it has created a drawn-out situation which may lead to fatality or multiple injuries.

Then, where practicable, the situation should be extensively photographed. The ER shall follow the procedures laid down in Sections 9.1.2, 9.1.3 and Appendix C9-AX of the Construction Site Safety Manual (CSSM). For other reportable accidents, the procedures in Appendix C9-AIV should be followed.

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The ER should ensure that all evidence and facts are recorded. This must be done as soon after the occurrence of the event as practically possible. When ascertaining and recording the evidence and facts it is necessary to ensure that nothing is said or done which will:

(a) Suggest that the Contractor has been relieved of any responsibilities or liabilities,

(b) Interfere with the relationship between the Contractor and any insurance company, or

(c) Admit any liability on behalf of Government or Government employees.

On the occurrence of accidents or incidents on Site, the ER shall ensure that the Contractor report to LD or MD using the appropriate statutory forms as required under the Factories and Industrial Undertakings Regulations, Occupational Safety and Health Ordinance or Shipping and Port Control Ordinance. Dangerous Occurrences shall be reported under Occupational Safety and Health Ordinance Section 13 or Factories and Industrial Undertakings Regulations Section 18. Should a Contractor's (including sub-contractors') employee be injured, the Contractor shall, without delay, notify the Commissioner of Labour in such form and manner as required by the Employees' Compensation Ordinance (Chapter 282). The matter should also be reported to the Engineer in the form prescribed in the Contract in accordance with GCC Clause 27 for Works Contracts or GCC Clause 29 for Term Contracts. For further details of contractor's responsibility to report accidents, reference should be made to Section 9.1. of the CSSM.

Should any accident or claim be either unclear as to responsibility or give rise to or be likely to give rise to legal proceeding by the Contractor or others against Government, then Secretary for Justice (S for J) are to be advised accordingly.

The "PWP Construction Site Safety & Environmental Statistics" (PCSES) system is a database maintained by DEVB, among others, for compiling and analyzing accident statistics of public works contracts. The accident statistics covered in the PCSES system include dangerous occurrences and reportable accidents resulting in death, serious bodily injury and injury with incapacity for more than 3 days. The ER shall collect information according to the procedures and using standard forms as stipulated in Appendices C9-AIV to C9-VII of the CSSM, for public works contracts including term contracts under his control and send to the Departmental Safety and Environmental Advisory Unit for entry into the PCSES system.

11.6 SPECIAL PRECAUTIONS WITHIN RAILWAY RESERVES

To promulgate the safety precautions to be taken by the site staff who are required to work in the vicinity of railway tracks, the ER shall:

(a) Not used;

(b) Not used;

(c) Liaise with the Light Rail Director of MTR Corporation Limited (MTRCL) for

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works affecting the Light Rail; or

(d) Liaise with MTRCL and refer to the guidelines stipulated in DEVB TCW No. 1/2019 for works affecting the MTR protection boundary.

The requirements laid down in Chapter 3 should also be noted.

11.7 REGULATING ACTIONS ON CONTRACTORS CONVICTED OF SITE SAFETY OFFENCES OR INCURRING SERIOUS INCIDENTS ON SITE

Regulating actions will be taken against contractors who have been convicted of site safety offences or who have incurred serious incidents on sites including any other sites not under the control of the works group of departments. This applies to all listed contractors and sub-contractors that are either nominated Sub-contractors or specialist Sub-contractors employed under domestic sub-contracts. A site safety offence means a conviction for any offence set out in the following Ordinances and their subsidiary legislation:

(a) The Factories and Industrial Undertakings Ordinance (Cap. 59);

(b) The Occupational Safety and Health Ordinance (Cap. 509);

(c) The Shipping and Port Control Ordinance (Cap. 313);

(d) The Merchant Shipping (Local Vessels) Ordinance (Cap. 548)

For the purpose of regulating actions, a serious incident means an incident involving either one or a combination of the following:

(a) Loss of life at a construction site;

(b) Serious bodily injury at a construction site:
- resulting in a loss or an amputation of a limb; or
- which has caused or is likely to cause permanent total disablement to the injured (see footnote 1 of DEVB TC(W) No.5/2023);

(c) Dangerous occurrence (see footnote 2 of DEVB TC(W) No.5/2023) or incident at a construction site leading to or resulting in injuries that are considered serious (but not up to the extent as described in sub-paragraph (b) above), or damage to works or property on or adjacent to the construction site that posed a potential threat to public safety as identified/notified by DEVB, LD or MD.

A contractor who may have caused or contributed (whether by act or omission) to the occurrence of a serious incident on a construction site, or has committed conviction of five or more site safety offences counted by the date of commission and not the date of conviction, each arising out of separate incidents in any six months period on a construction site or construction sites under the same contract (or sub-contract where the contractor is acting as a sub-contractor), will be required to make a written representation. A Panel of Enquiry chaired by DS(W2) of DEVB will make recommendations on regulating action after considering the written representation and hearing the case from the contractors. PS(W) will

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then decide on the regulating action to be taken which may include issue of warning letter, independent safety audit, requesting for improvement proposal, suspension from tendering or other regulating actions including demotion, downgrading or removal. Further details are given in DEVB TCW No. 5/2023.

For arrangement for approval of domestic sub-contract, before an Architect/ Engineer/ Supervising Officer/ Maintenance Surveyor/ Project Manager/ Service Manager advises a contractor under a works contract whether he has an objection with respect to a proposed domestic sub-contractor, he shall check and ensure that the sub-contractor has not been suspended from tendering or removed from the Lists, taking cognizance of the requirements described in paragraphs 46 and 47 of DEVB TCW No. 5/2023 as appropriate.

11.8 DEPARTMENTAL SAFETY AND ENVIRONMENTAL ADVISER

In each Works Department, a Safety and Environmental Adviser is appointed at senior professional level to head a Safety and Environmental Advisory Unit. The roles and duties of the Safety and Environmental Adviser are set out in ETWB TCW No. 14/2003.

The Safety and Environmental Adviser shall submit monthly and quarterly reports to CAS(W)5 of DEVB with a copy to the respective Head, Deputy Head or Assistant Head of the department. Such reports shall include the relevant statistics and analyses on the health, safety and environmental performance of contractors for contracts undertaken by the department during the reporting period.

11.9 CONSTRUCTION SITE SAFETY MANUAL

A copy of the Public Works Programme Construction Site Safety Manual, issued by DEVB, is to be kept in the ER's Office. The Manual gives guidelines in policy, legislation, contractual provisions and site safety set-up and actions during construction. It also contains guidelines of a comprehensive safety plan, which help the Contractor to ensure the provision of a safe and healthy working environment for all personnel in public works construction sites and others who may be affected by the works. It is imperative that every professional and supervisory staff are familiar with and adhere to the contents of the Manual, particularly those involved in the administration and supervision of public works contracts.

The Manual will be reviewed in the light of experience gained and revisions will be issued from time to time. It has been completely revised in two parts via **Chapters 1, 2 and 4 to 11 of CSSM** and WBTC No. 30/2000. The most updated version of the Manual is available at DEVB's website.

11.10 PAY FOR SAFETY AND ENVIRONMENT SCHEME

The "Pay for Safety and Environment Scheme" (PFSES) includes pre-priced safety and environmental items in the Bills of Quantities (BQ) or Schedule of Rates. These items would be certified and paid to the Contractor, provided that the specified activities are satisfactorily performed whilst failure to perform would result in no payment for the relevant

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items. As a general rule set out in ETWB TCW No. 19/2005 and supplemented by the interim guidance note issued in June 2006 (see paragraph 12.9), capital works contracts including E&M contracts and D&B contracts having an estimated contract sum of $20M or more (or a smaller contract sum as set by individual departments), for which tenders are invited on or after 16 January 2006 shall be included under the PFSES. Irrespective of the value of the contract, contracts with duration of 6 months or less can be exempted from inclusion under PFSES. See WBTC No. 30/2000, Section 3.2 of Chapter 3 of CSSM, ETWB TCW Nos. 15/2003 (for contracts for which tenders are invited before 16 January 2006) and 19/2005 (& the interim guidance note) (for contracts for which tenders are invited on or after 16 January 2006) for details of the PFSES and DEVB's memo ref. (02LSV-01-1) in DEVB (W) 516/70/03 dated 22.11.2013 for details of Pay for Safety Performance Merit Scheme.

In mid-2015, the Safety Management System for public works contracts (SMS) was reviewed by DEVB with the objectives to sustaining the effort on site safety as well as to simplify and streamline the existing administrative works. The DEVB TCW No. 19/2005 was subsequently revised in March 2018 to reflect the enhancement to the SMS after the review. In brief, the PFSES has been renamed as the "Pay for Safety Scheme" (PFSS). For all public works contracts, including design and build contracts and term contracts, the tender of which are issued on or after 20 April 2018, all environmental related pre-priced payment items from the Bills for the PFSES shall be removed and then combined in an appropriate item to the Bills for Preliminaries. See DEVB's memo ref. DEVB(W) 516/71/01 dated 29 March 2018 for details.

11.11 SCORE CARD FOR ASSESSMENT OF SITE SAFETY PERFORMANCE

The Score Card system for assessing contractors' site safety performance applies to all works and term contracts except for minor contracts for supply of materials/equipment or laboratory testing etc. It provides a quantitative approach to assess the safety aspects of performance of contractors, which will be reflected in the Report on Contractors' Performance. The ER may consider incorporating the checklist items into the weekly safety walk checklists for use by his/her site staff so that a more consistent and objective assessment can be made on the contractor's safety performance during the reporting period.

Any items of major weaknesses identified in the Score Card shall be promptly communicated in writing by the Engineer or the ER to the Contractor who shall be requested to take prompt and appropriate action to rectify the situation. The major weaknesses identified and follow up actions required shall be discussed in the following Site Safety Management Committee meetings or progress meeting where appropriate, until satisfactory completion of the remedial actions.

DEVB TCW No. 1/2020 stipulates the detailed administration of the Score Card System, and Appendices A, B and C to DEVB TCW No. 1/2020 were subsequently updated in DEVB's memo ref. (03F9H) in DEVB(W) 516/71/01 dated 29 December 2022 and (03F7R) in DEVB(W) 516/70/03 dated 27 February 2023. The circular is available at DEVB's website.

A "Very Poor" rating in the Final Performance Rating of the Score Card as reflected in "Site Safety" section of the Report of Contractor's Performance (RCP) shall result in an "Adverse" RCP. Under such circumstance, regulating actions against contractors with poor performance as set out in Contractor Management Handbook shall be initiated where

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appropriate. Moreover, provisions in paragraphs 24 and 25 of Appendix B of DEVB TCW No. 1/2020 relating to Final Performance Rating should be taken into account.

11.12 SITE SAFETY CYCLE

The Site Safety Cycle (SSC) aims to enhance the communication between site management and working levels on safety and health matters, promote workers' safety awareness and improve housekeeping and site tidiness. All these contribute towards the improvements of safety performance and prevention of accidents on construction sites. The second stage of SSC was promulgated via Section 3.2 of Chapter 3 of CSSM, which applies to all capital works contracts including Design, and Build contracts that are included in the PFSS or PFSES, and tenders of which are invited on or after 15 August 2002.

Basically, the activities of SSC are classified into three categories, namely Daily Cycle, Weekly Cycle and Monthly Cycle. Each of these cycles comprise activities as follows:

(a) Daily Cycle
  (i) Pre-work Exercise and Safety meeting;
  (ii) Hazard Identification Activity meeting;
  (iii) Pre-work Safety Checks;
  (iv) Safety inspection by Site Agent or his/her representatives;
  (v) Guidance and supervision during work;
  (vi) Safety co-ordination meeting;
  (vii) Daily cleaning and tidying up of the Site; and
  (viii) Checking of the Site after each day's work.

(b) Weekly Cycle
  (i) Weekly Safety Walk by Site Agent and Safety Officer in company with the ER;
  (ii) Weekly co-ordination meeting with Site Agent and the ER; and
  (iii) Weekly overall cleaning and tidying up of the Site.

(c) Monthly Cycle
  (i) Site Safety and Environmental Management Committee meeting (including pre-meeting inspection); and
  (ii) Site Safety and Environmental Committee meeting.

Reference should be made to Section 3.2 of Chapter 3 of CSSM for the administration and payment details of the SSC. The ER shall closely monitor the Contractor's performance on practising SSC on the Site. Any irregularity observed for the Pre-work Activities shall be put up to the Contractor for improvement in the weekly co-ordination meetings and/or Site Safety and Environmental Management Committee meetings as appropriate. The Contractor shall be warned if his performance on practising SSC is not satisfactory resulting in non-payment for "arrange and hold Pre-work Activities" for more than two consecutive weeks. If the non-payment continues, this should be duly reflected in the Contractor's quarterly performance report.

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11.13 SAFETY TRAINING

Works departments should ensure that adequate site safety training is provided to departmental staff, particularly those working on construction sites and those responsible for the administration and/or supervision of contracts on sites and resident site staff employed by consultants on public works projects in accordance with the basic principles set out in Chapter 5 of the CSSM.

Contractual provisions on safety training for resident site staff employed by consultants shall be incorporated in consultancy agreements. Reference should be made to WBTC No. 12/2001 for the details of implementation.

11.14 ADOPTION OF SMART SITE SAFETY SYSTEM (SSSS)

All capital works contracts with an estimated contract sum exceeding $30 million shall adopt SSSS. See DEVB TCW No.3/2023 for further details.

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12. ENVIRONMENTAL PROTECTION

12.1 NOISE CONTROL

12.1.1 Working Within Restricted Hours

The Noise Control Ordinance (Cap. 400) provides for controls to restrict and reduce the nuisance caused by environmental noise. Of particular relevance to construction sites are the restrictions on:

(a) Noise from certain construction activities, and

(b) Noise from certain individual items of plant.

The Ordinance enables regulations and technical memoranda to be made which introduce detailed control criteria, measurement procedures and other technical matters.

In general, construction work using powered mechanical equipment between the hours of 7 p.m. and 7 a.m., or at any time on a general holiday, is prohibited under the Ordinance unless a valid Construction Noise Permit (CNP) is in force. On the other hand, carrying out percussive piling between the hours of 7 p.m. and 7 a.m., or at any time on a general holiday, is definitely prohibited. See paragraph 6.2 of Chapter 3 for more details of the Noise Control Ordinance. Reference should be made to technical memoranda issued from time to time pursuant to Section 9 of the Noise Control Ordinance.

12.1.2 Processing of Construction Noise Permit (CNP)

Applications for such permits are to be made by the Contractor on the prescribed forms to the Director of Environmental Protection. Note that percussive piling is subject to special conditions and may only be carried out in accordance with a CNP. For details with regard to the issue of CNP for a specific site, reference should be made to the relevant technical memoranda and the associated amendments issued by Environmental Protection Department (EPD).

When work is to be carried out during the restricted hours in an emergency, the Contractor should notify the officer-in-charge of the nearest police station before work commences, or as soon thereafter as is practicable. EPD should be notified the next day of the incident either by facsimile or a letter signed by the Chief Engineer.

12.1.3 Monitoring Noise Control Measures

The issue of CNP may include conditions such as details of the special noise control measures to be employed, acoustic performance specifications for such measures, or for particular quiet items of powered mechanical equipment/quiet percussive piling methods to be used, maximum noise levels at the nearest sensitive receiver or other position, or other conditions as imposed by EPD.

To ensure satisfactory control of construction noise, regular surveillance on noises emitted from the Site is encouraged. The site supervisory staff shall ensure that the conditions specified in the CNP are followed. In cases where a maximum noise level has

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been specified as a condition of a CNP, any measurements which are taken to determine if this condition is being complied with should follow the procedure and guidelines as given in the relevant technical memoranda issued by EPD.

12.1.4 Sanctions Against Offences

Should the Contractor carry out his construction work using powered mechanical equipment within restricted hours without a valid CNP or fail to comply with any conditions of a permit, the case shall be reported to EPD who will carry out necessary prosecutions against the same.

12.2 PREVENTION OF WATER POLLUTION

12.2.1 Water Pollution Control Ordinance (Cap. 358)

The Water Pollution Control Ordinance provides the main control of water pollution in Hong Kong. The Contractor shall carry out work in such a manner, as far as is reasonable and practicable, to prevent water pollution. He shall comply with the requirements of the GS and in particular Clauses 1.22, 1.23 and 1.34.

12.2.2 Dumping at Sea Ordinance (Cap. 466)

The Dumping at Sea Ordinance controls the dumping or incineration of substances and articles at sea so as to prevent damage to the marine environment. It is an offence under the Ordinance to dump or incinerate substances or articles at sea without a valid permit or to do so not in accordance with the terms and conditions set out in the permit.

Projects or portions of projects, which involve the marine disposal of dredged/excavated sediment, shall be governed by the Ordinance. The Contractor shall make a formal application to the Director of Environmental Protection (DEP) for a dumping permit. The permit is valid for specific periods of time, for specific quantities and types of material carried by specific vessels, for a specific/designated place of disposal, and are subject to certain conditions. It is the responsibility of the Contractor to ensure that the permit conditions are met to DEP's satisfaction. Failure to comply with permit conditions will render the permit holder and/or responsible parties liable to legal action, and for repeated offences to refusal of future permits. Reference should be made to paragraph 4.2.1 of Chapter 4 of the PAH for details.

12.3 PREVENTION OF AIR POLLUTION

The Air Pollution Control Ordinance (Cap. 311) is the principal ordinance for the management of air quality. The Air Pollution Control (Construction Dust) Regulation came into operation on 16.6.97. The Regulation gives definitions and sets out control standards that must be met when construction works are carried out to prevent and to minimise dust emissions from the works.

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12.3.1 Classification of Works

Under the Regulation, construction works are classified into the following categories:

(a) "Emergency work" which means

(i) Work that is required under emergency situations where human life or building safety is immediately threatened or is being threatened; or

(ii) Repair work that is immediately required as a result of failure of utility services, road collapse or road blockade due to natural uncontrollable forces or accidents.

(b) "Excluded work" which means

(i) Renovation, maintenance and alteration work carried out entirely within the external walls and under the roof of a building;

(ii) Work carried out exclusively for asbestos investigation, abatement and removal;

(iii) Any specified process;

(iv) work carried out entirely within a tunnel (except work carried out in any part of the tunnel that is within 100 m of any exit to the open air);

(v) work carried out entirely under water;

(vi) Repair work (including cleansing and inspection) to an underground sewer, drain, culvert or other pipeline that is carried out entirely within the confines of such sewer, drain, culvert or pipeline;

(vii) Paint brushing and patch repairs carried out on the outer surface of the external wall or the upper surface of the roof of a building;

(viii) Work carried out in a quarry including any associated rehabilitation of the excavated surface; or

(ix) Farming or archaeological activities.

(c) "Notifiable work" which means

(i) Site formation;

(ii) Reclamation;

(iii) Demolition of a building;

(iv) Work carried out in any part of a tunnel that is within 100 m of any exit to the open air;

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(v) Construction of the foundation of a building;

(vi) Construction of the superstructure of a building; or

(vii) Road construction work,

but does not include any emergency work, excluded work or regulatory work.

(d) "Regulatory work" which means

(i) Renovation carried out on the outer surface of the external wall or the upper surface of the roof of a building;

(ii) Road opening or resurfacing work;

(iii) Slope stabilisation work; or

(iv) Any work involving any of the following activities:
(1) Stockpiling of dusty materials;
(2) Loading, unloading or transfer of dusty materials;
(3) Transfer of dusty materials using a belt conveyor system;
(4) Use of vehicles;
(5) Pneumatic or power-driven drilling, cutting and polishing;
(6) Debris handling;
(7) Excavation or earth moving;
(8) Concrete production;
(9) Site clearance; or
(10) Blasting,

but does not include any emergency work, excluded work or notifiable work.

12.3.2 Notification

The Contractor responsible for the construction site shall give notice to EPD before the proposed notifiable work commences to be carried out and shall be in the prescribed form and include the specified particulars.

Where any change relating to any of the particulars given in an earlier notice is proposed, the Contractor shall give notice to the EPD of the proposed change before the proposed change shall take effect.

12.3.3 Control of Works

The Contractor responsible for a construction site where notifiable or/and regulatory works are being carried out shall ensure that the works are carried out in accordance with the Schedules of Dust Control Requirements stated in the Regulation.

Where an excluded work is being carried out the Contractor shall ensure that any dusty materials, which are stored outside the site, are stored and handled in accordance with any relevant provisions of the Schedules of Dust Control Requirements stated in the

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Regulation.

Any person who contravenes commits an offence and is liable to a fine under the Regulation.

12.3.4 Use of Non-road Mobile Machinery

DEVB TCW No. 1/2015 promulgates the requirements for the use of non-road mobile machinery ("NRMM") approved under the Air Pollution Control (Non-road Mobile Machinery) (Emission) Regulation in capital works contract of public works including design and build contracts with an estimated contract value exceeding $200 million. Reference should be made to DEVB TCW No. 1/2015 for the implementation plan to phase out the use of exempted NRMM and the provisions to be incorporated in tender documents.

12.4 ENVIRONMENTAL PERMIT

The Environmental Impact Assessment Ordinance (Cap. 499) (EIAO) came into operation on 1.4.98. The purpose of the Ordinance is to avoid, minimise and control the adverse impacts of certain designated projects on the environment through the use of the environmental impact assessment process and the issue of environmental permit. In accordance with Section 10 of the Ordinance, a person who wishes to have constructed, construct or operate a designated project listed in Part I of Schedule 2 or to decommission a designated project listed in Part II of the Schedule is required to have an Environmental Permit issued by the Director of Environmental Protection.

A Technical Memorandum on Environmental Impact Assessment Process was issued under the EIAO and in addition "A Guide to the Environmental Impact Assessment Ordinance" was published containing detailed information on the practices and procedures involved. Further reference should be made to ETWB TCW No. 13/2003.

It should also be noted that project profiles to be submitted under Section 5 of the EIAO (application for permission to apply directly for an environmental permit) shall be in both English and Chinese to facilitate public inspection.

See also paragraph 13.5 for variations affecting environmental permit.

12.5 CONSTRUCTION AND DEMOLITION (C&D) MATERIAL

12.5.1 Dumping Licences

Application for Dumping Licences needs to be submitted to Chief Engineer/Fill Management of CEDD for delivering inert C&D material to public filling facilities. Public filling facilities include public filling areas, public filling barging points and public fill stockpiling areas. Licences are issued by the CEDD under the Land (Miscellaneous Provisions) Ordinance, under the delegated authority of Director of Lands. Dumping Licences for public filling facilities require that material to be disposed of at public filling facilities must comprise only earth, building debris, broken rock and concrete. Such materials shall be free from marine mud, household refuse, plastic, metal, industrial and chemical waste, animal and vegetable matter and other matter considered unsuitable by the Filling Supervisor. Small quantities of timber mixed with otherwise suitable material may be

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permitted. The materials considered unsuitable for disposal at public filling facilities have to go to a landfill.

Reference should also be made to WBTC Nos. 2/93, 2/93B, 16/96, 4/98 & 4/98A and ETWB TCW Nos. 15/2003 (for contracts for which tenders are invited before 16 January 2006) & 19/2005 (for contracts for which tenders are invited on or after 16 January 2006) concerning the handling and disposal of C&D material to public filling facilities.

12.5.2 Trip-ticket System

In order to deal with the problem of illegal dumping, a trip-ticket system has been applied, subject to certain exemptions, to all PWP contracts invited on or after 1 July 1999. All inert C&D materials and C&D wastes shall be disposed of at designated public filling facilities and designated landfills respectively. The operation procedures of the trip-ticket system should be in accordance with the details stipulated in the PS and DEVB TCW No. 6/2010 (for public works contracts for which tenders are invited on or after 1 November 2010).

The Contractor's compliance with the system shall be a consideration in the assessment of the Contractor's performance. See DEVB TCW No. 6/2010 (for public works contracts for which tenders are invited on or after 1 November 2010) and the guidance notes in Appendix 4B of the Contractor Management Handbook for details.

Implementation of the trip-ticket system should be included as a standard item in the technical audit carried out by Works Departments in accordance with paragraph 21.2.1 of Chapter 7 of the PAH. The audit should include the aspects on the implementation of the trip-ticket system and the implementation of follow-up actions for any non-compliance with the requirements of the system.

12.5.3 Waste Management Plan

All capital works contracts including E&M contracts and D&B contracts having an estimated contract sum of $20 million or more, for which tenders are invited on or after 1 July 2003, should require the contractor to prepare and implement an enhanced Waste Management Plan (WMP) as stipulated in ETWB TCW No. 19/2005 with the aim to ensure that solid steps would be taken to avoid and/or minimize C&D material generation, to reuse and recycle C&D material generated and to maintain the Site in a clean and tidy condition. Contractors are required to carry out on-site sorting of C&D materials to recover the inert portion, and those reusable and/or recyclable materials. The WMP should include a proposal of how the contractor would maintain the Site in a clean and tidy condition and checklists, including a daily checklist for site cleanliness and tidiness (see also paragraph 12.6) to ensure the WMP is properly implemented. The WMP shall be submitted for the Engineer's approval.

The Contractor's performance in implementing the WMP shall be considered in assessing the Contractor's performance. See the guidance notes in Appendix 4B of the Contractor Management Handbook for details.

Following the issue of ETWB TCW No. 19/2005, the WMP has been incorporated as part of the Environmental Management Plan (EMP) for contracts for which tenders are invited on or after 16 January 2006. See paragraph 12.9 for further details of the EMP.

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12.5.4 Construction Waste Disposal Charging Scheme

The Construction Waste Disposal Charging Scheme came into operation on 1 December 2005. See EPD's website for details.

12.6 REGULATING ACTIONS ON CONTRACTORS CONVICTED OF ENVIRONMENTAL OFFENCES

Regulating actions will be taken against contractors who have been convicted of environmental offences on sites including any other sites not under the control of the works group of departments. This applies to all listed contractors and sub-contractors that are either nominated Sub-contractors or specialist Sub-contractors employed under domestic sub-contracts. An environmental offence means a conviction for any offence set out in the following Ordinances and their subsidiary legislation:

(a) the Air Pollution Control Ordinance (Cap. 311);

(b) the Noise Control Ordinance (Cap. 400);

(c) the Waste Disposal Ordinance (Cap. 354);

(d) the Water Pollution Control Ordinance (Cap. 358);

(e) the Dumping at Sea Ordinance (Cap. 466);

(f) the Ozone Layer Protection Ordinance (Cap. 403);

(g) the Environmental Impact Assessment Ordinance (Cap. 499);

(h) the Hazardous Chemicals Control Ordinance (Cap. 595).

A contractor who has committed conviction of five or more environmental offences counted by the date of commission and not the date of conviction, each arising out of separate incidents in any six-month period on a construction site or construction sites under the same contract (or sub-contract where the contractor is acting as a sub-contractor) will be required to make a written representation. A Panel of Enquiry chaired by DS(W2) of DEVB will make recommendations on regulating action after considering the written representation and hearing the case from the contractors. PS(W) will then decide on the regulating action to be taken which may include issue of warning letter, requesting for improvement proposal, suspension from tendering or other regulating actions including demotion, downgrading or removal. Further details are given in DEVB TCW No.5/2023.

For arrangement for approval of domestic sub-contract, before an Architect/ Engineer/ Supervising Officer/ Maintenance Surveyor/ Project Manager/ Service Manager advises a contractor under a works contract whether he has an objection with respect to a proposed domestic sub-contractor, he shall check and ensure that the sub-contractor has not been suspended from tendering or removed from the Lists, taking cognizance of the requirements described in paragraphs 46 and 47 of DEVB TCW No.5/2023 as appropriate.

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12.7 SITE CLEANLINESS, TIDINESS AND CONTROL ON MOSQUITO BREEDING

GCC Clause 38 and Clause 1.32 of the GS requires the Contractor to keep the Site clean and hygienic and to maintain site cleanliness. An enhanced specification on cleanliness and tidiness of public works sites was introduced in all PWP contracts, including D&B contracts, invited on or after 15 April 2002. Separate items for payment on site cleanliness are stipulated in the BQ to prevent the Contractor from evading their general obligation. The Contractor shall be required to maintain records on site cleanliness including, but not limited to, daily and weekly inspection checklists and photos taken at various work locations to be agreed by the Engineer for monitoring of site cleanliness condition. Payment can be made upon the satisfactory performance of the Contractor on site cleanliness in accordance with the PS based on the inspection checklists and photos taken. The ER may conduct regular inspections and surprise checks to verify the Contractor's performance on site cleanliness in certifying payment.

The ER shall maintain a record of payment and non-payment to the Contractor on site cleanliness. A verbal warning shall be given to the Contractor whose performance on site cleanliness is not satisfactory, resulting in non-payment for two consecutive Cleaning Days or Cleaning Week Days, or more than two Cleaning Days in any rolling five-Cleaning Day period. If the performance is not improved, a written warning shall be issued. If the situation is still not improved, the Contractor's unsatisfactory performance should be duly reflected in the quarterly performance report. Further details for the administration and payment on the enhanced specification for site cleanliness and tidiness are given in DEVB TCW No. 8/2010.

The Engineer shall direct the Contractor to implement the measures in ETWB TCW No. 22/2003 for improvement of site cleanliness and to control mosquito breeding on construction sites. The Engineer may revise the measures and/or supplement additional measures to suit specific nature of individual contracts and shall monitor the effectiveness of such basic measures or any additional measures through the Pay for Safety and Environment Scheme (or the Pay for Safety Scheme as appropriate).

The Engineer shall report the Contractor's performance in site cleanliness and control of mosquito breeding in the Report on Contractor's Performance. See ETWB TCW Nos. 22/2003 & 22/2003A and the guidance notes in Appendix 4B of the Contractor Management Handbook for details.

12.8 USE OF PFA AS GENERAL FILL IN RECLAMATION

Procedures and guidelines for using Pulverised Fuel Ash (PFA) as general fill in reclamation, both below and above water, are given in WBTC No. 14/94.

With the reorganisation of the Fill Management Committee (FMC) into the Marine Fill Committee (MFC) and the Public Fill Committee (PFC), the previous role of the FMC in co-ordinating the use of the PFA as outlined in the above circular is taken up by the PFC. In general, the PFC, as authority for the allocation of fill sources to reclamation projects, may require Government Departments to include PFA as reclamation fill where this is considered by the PFC to be feasible. See WBTC No. 12/2000 for reference.

When lagooned or fresh PFA is transported by road or used as fill above water, dust suppression measures given in Appendix A of WBTC No. 14/94 shall be implemented.

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12.9 ENVIRONMENTAL MANAGEMENT

The concept of waste management has been further extended to environmental management by ETWB TCW No. 19/2005, targeted at those nuisances relating to air (smoke and dust), noise and wastewater pollution. The requirements of environmental management covering both nuisance abatement and waste management shall be applied to all capital works contracts. Capital works contracts including E&M contracts and D&B contracts having an estimated contract sum of $20M or more and with duration longer than 6 months, for which tenders are invited on or after 16 January 2006 shall be included under the "Pay for Safety and Environment Scheme" (PFSES).

The PFSES was first introduced, by extending the then "Pay for Safety Scheme", to cover waste management. The purpose is to enhance waste management on construction sites and to facilitate monitoring and control of the contractor's performance on waste management. Following the issue of ETWB TCW No. 19/2005, the PFSES has been expanded to environmental management absorbing waste management into it. The contractor shall be required to prepare and implement an Environmental Management Plan (EMP) with the aim to abate environmental nuisances on construction sites and to reduce C&D materials to be disposed of during the course of construction.

ETWB TCW No. 19/2005 has been supplemented by the "Interim Guidance Note on Administration of Environmental Management and Pay for Safety and Environment Scheme for Public Works Contracts" issued via SETW's memo ref. (014G7-01-1) in ETWB(W) 517/91/01 dated 19.6.2006, incorporating feedback from the construction industry, EPD and works departments with updated appendices of the circular. The guidance note is available at DEVB's website.

As part of the EMP on waste management, the Contractor shall establish a mechanism to record the quantities of C&D materials generated each month (using the "Monthly Summary Waste Flow Table"). The Contractor shall also provide in his EMP the estimated quantities of C&D materials that will be generated each year from the site during the whole construction period (using the "Yearly Summary Waste Flow Table"), and such information shall be updated on a half-yearly basis. In addition, the Contractor shall set up a disposal recording system as part of the EMP by adopting the trip-ticket system as stipulated in DEVB TCW No. 6/2010 (for public works contracts for which tenders are invited on or after 1 November 2010), for ensuring the proper disposal of C&D materials to designated outlets. Information returned by the Contractor in the Summary Waste Flow Tables shall be collected and collated by each works department. The project offices shall then upload the data to the "PWP Construction Site Safety & Environmental Statistics" (PCSES) System of DEVB. DEVB will coordinate with the DSEAs to monitor the returns from the contractors.

The PFSES has incorporated provisions requiring that all trucks used for the transportation of C&D materials to and from the Site shall be fitted with mechanical covers.

The Contractor's environmental performance shall be monitored and controlled through the weekly environmental walks, SSEMC meetings and SSEC meetings under the PFSES. If the Engineer considers that the Contractor has exhibited consistently poor environmental performance, it should be duly reflected in the Report on Contractor's Performance. See the guidance notes in Appendix 4B of the Contractor Management Handbook for details.

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As per the review of SMS as mentioned in paragraph 11.10, ETWB TCW No. 19/2005 regarding the environmental management on construction sites has been updated by DEVB's memo ref. DEVB(W) 517/91/01 dated 29 March 2018.

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13. VARIATIONS

13.1 AUTHORITY FOR VARIATIONS

(SDEV's memo ref. ( ) in DEVB(W) 546/83/01 dated 20.9.2024)

The Engineer may order certain variations to any part of the Works in accordance with GCC Clause 60. It should be noted that such variations have to be made in writing. Under GCC Clause 62, the Engineer may also order in writing that work to be carried out as a result of variations shall be executed on a daywork basis.

The ER may have delegated authority to order certain variations himself. When any variation exceeds the limit of delegation to the ER or when delegation is not made, orders for variations shall be made by the Engineer.

It is necessary to check whether the additional works are within the terms of the original Contract. If not, the works may need to be carried out in the form of supplementary agreement (see paragraph 13.4). Prior to any variation being ordered by the Engineer or the ER, it is necessary to check whether an increase in the contract sum would be involved. If a variation would involve an increase in the original contract sum, the approval for such an increase should be in accordance with Appendix V(B) of the SPRs . If such an increase would result in the APE being exceeded, prior approval from SFST must first be obtained for an increase in the project estimate. Pursuant to SPR 520(c), the cumulative value of contract variations in accordance with GCC Clause 60 for all contracts should not normally exceed 50% of the original contract value.

In addition, prior approval from the appropriate officer in accordance with the formal delegation of authority by the Head of the Department, or from the Director's Representative shall be sought by the Engineer for variations estimated to exceed $1,400,000 in value for all works contracts (including term contracts), for which tenders are to be invited on or after 16 October 2024, as revised in SDEV's memo ref. () in DEVB(W) 546/83/01 dated 20 September 2024. For ongoing works contracts (including those under tender stage with tender invitation already made before 16 October 2024 and tender addendum not able to be issued in time), a supplementary agreement shall be executed between the contracting parties through exchange of correspondences by adopting the sample letters in Appendices 7.80 and 7.81 for GCC and NEC contracts respectively. In case project offices consider it not appropriate to implement the revised threshold for individual works contracts, approval from an officer at D2 rank or above shall be obtained. Justifications may include construction works nearing substantial completion, unlikelihood of issuing orders of higher values, etc.

For value less than that mentioned in previous paragraph, no prior approval is required provided that no increase in contract sum is necessary. Should increase in contract sum be required, the authorisation laid down in SPR 520 and Appendix V(B) of the SPRs shall be followed. When approval for variations under SPRs is being sought, the direct cost of the variation and the financial consequences it may generate (excluding extension of contract period) should all be lumped under Appendix V(B) Item A.I(a) for approval in terms of authority. For variations involving extension of contract period, Appendix V(B) Item A.V should be referred to for the appropriate level of approval authority.

Pursuant to SPR 520(d), the authorisation limits specified in Appendix V(B) of the SPRs concerning contract variations shall be strictly interpreted and not be evaded by

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deliberately omitting unrelated works to bring the net value of a variation to within the limits. For avoidance of doubt, for a contract that involves variations leading to a decrease in contract value in one area and an increase in contract value in another during the contract period, only the variation that leads to an increase in contract value will count under the accumulated value of the contract for determining the appropriate level of authority for seeking approval for contract variation as specified in Appendix V(B) of the SPRs.

However, there are variations that inevitably involve deletion of works as well as additional works (such as replacing a 300mm diameter pipe with a 450mm one because of a change in design requirements and this variation involves deleting the 300mm diameter pipe and adding on the 450mm one) and they are all part and parcel of the subject variation. In these instances, the net value of the variation will be determined for the purpose of applying the authorities under Appendix V(B) of the SPRs. For variations that involve additions and omissions which are unrelated in cause (such as deletion of an item related to "assistance to the Engineer" and the creation of a new item for the provision of a new drainage pipe), they should be caught by SPR 520(d) mentioned above for the purpose of applying the authorities under Appendix V(B) of the SPRs.

For further guidance on the application of SPR 520 and Appendix V(B) relating to authorities for contract variations, reference should be made to SETW's memo ref. (01BP9-01-2) in ETWB(W) 510/30/1 dated 8.1.2007. Copy of such memo should be available from the Departmental Contract Advisor.

For variation to a supplementary agreement for additional works approved under Items A.III and A.IV of Appendix V(B) of the SPRs, see paragraph 13.4.

13.2 VARIATION ORDERS

There is no provision in the GCC for issuing variations verbally for later confirmation in writing. All variation orders are to be made in writing and signed by the Engineer or ER with delegated authority.

The standard form for variation orders is at Appendix 7.21.

13.3 VALUATION OF VARIATIONS

(Ref.: SDEV's memo ref. () in DEVB(W) 511/83/03 dated 19.3.2013)

Whenever practicable, the rates for variations are to be agreed prior to the issue of the variation orders. It is recognised that this is not always possible and that rates are often determined after the variation order has been issued and sometimes after the work has been carried out.

The principles for valuing variations are set out in GCC Clause 61. GCC Clause 61(1)(b) provides that if the varied work is the same as or similar in character to and executed under the same or similar conditions and circumstances to work priced in the Contract, then such Contract rates shall be used to value the varied work ("Rule 1"). The inherent profitability or otherwise of the rate is not relevant in applying Rule 1. It is immaterial that the Contract rates may appear "too high" or "too low". Valuation under GCC Clause 61(1)(a) for work omitted also falls under the application of Rule 1. GCC Clause 61(1)(c)

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provides that if the varied work is of a dissimilar character or is executed under dissimilar conditions to work priced in the Contract, then the Contract rates shall be used as the basis of valuation so far as may be reasonable ("Rule 2"). The word "reasonable" refers only to whether it is practical or feasible to use the Contract rates as the basis of valuation, irrespective of the monetary value of such rates. The fact that the rate itself may not be reasonable is irrelevant. GCC Clause 61(1)(c) also provides that the rate shall be agreed between the Engineer and the Contractor ("Rule 3") if Rules 1 and 2 are not applicable. If Rule 3 comes into play and/or the circumstances contemplated by the proviso to GCC Clause 61(1) occur, the Engineer has to confer with the Contractor in an attempt to reach an agreement on the rate. However, the Engineer is not required under the Contract to seek the agreement of the Contractor as to the Engineer's valuation under Rule 1 and Rule 2.

In the event that the Engineer and the Contractor fail to reach agreement on any rate for variations under Rule 3 and the proviso to GCC Clause 61(1), the Engineer shall, pursuant to GCC Clause 61(2), fix such a rate as shall in his opinion be reasonable and shall notify the Contractor accordingly.

It should be noted that there is a difference in nature between the valuation of variations under GCC Clause 61 pertaining to an issue of a variation order under GCC Clause 60 and the ascertaining of Cost incurred under GCC Clauses 46(4), 48, 54, and 63, etc. If in doubt, the Departmental Contract Adviser should be consulted.

When the Engineer values variations in accordance with GCC Clause 61, he shall notify the Contractor of such valuations in the form of a letter. A standard form of such a letter is shown at Appendix 7.22. The following shall be stated in the letter: (i) whether or not any rates are subject to Contract Price Fluctuation, (ii) the contract provisions under which the valuation is based, and (iii) when the valuations are valued pursuant to Rule 3 in GCC Clause 61(1)(c) or the proviso to GCC Clause 61(1), requesting the Contractor to make a reply within 28 days or such other longer period as may appear reasonable indicating whether he agrees to the Engineer's valuations. The power to value variations is usually not delegated to the ER. As such, the letter valuing variations is to be signed by the Engineer.

If the Contractor does not reply after the period of time stated in the letter of request has expired or indicates a disagreement within such period, the Engineer shall review his valuations and decide whether to (a) further discuss the valuations with the Contractor in an attempt to reach agreement or (b) invoke GCC Clause 61(2) to fix the rate or rates. For the letter to be regarded as the letter for fixing rates, GCC Clause 61(2) should be referenced as shown in the letter at Appendix 7.22A.

For internal financial control, when letters concerning valuing variations are issued, a current financial statement as shown at Appendix 7.23 should be prepared and copied to relevant parties together with the letters of valuing variations.

The Engineer should finish the valuation of variations as soon as practicable. After the issuance of the last certificate of completion, the Engineer shall take stock of the variations where rates are still under discussion with the Contractor. The Engineer should investigate the reasons for the failure to reach an agreement and take appropriate actions, to expedite the finalization of the valuation of the rates of the variations. For those variations in respect of which the rates, valued under Rule 3 in GCC Clause 61(1)(c) and the proviso to GCC Clause 61(1), are not yet agreed, the Engineer may then invoke GCC Clause 61(2) to fix the rates for such problematic variations. The Engineer shall endeavour to finalise all the

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rates, taking account the requirement under GCC Clause 79(6) that the Contractor shall submit to the Engineer a statement of final account within 90 days after the date of issue of the maintenance certificate.

Contracts with the deployment of a DRA have a particular set of time frames for valuation of variations, and the above time frame is not applicable.

13.4 EXECUTION OF WORK OUTSIDE THE ORIGINAL SCOPE OF THE CONTRACT AND CHANGES TO CONTRACT TERMS AND CONDITION

Where the execution of work outside the terms of the original Contract is proposed, prior approval from the appropriate authorities in accordance with SPR 520 and Appendix V(B) of the SPRs must be obtained for such changes.

Contract variations, especially those which are not provided for in the original contract, may amount to new procurements. For contract variations amounting to new procurements covered by World Trade Organization Agreement on Government Procurement (WTO GPA), Works Departments shall ensure that all relevant requirements of WTO GPA (https://www.fstb.gov.hk/tb/en/business/gov_procurement/guide-to-procurement.htm#topic-3) are complied with. In case of doubt as to whether contract variations amount to new procurements covered by WTO GPA, Works Departments should seek legal advice from LAD(W)/DEVB.

Should it be necessary to execute any work outside the scope of those allowed under the Contract or to change the terms and conditions originally specified in the Contract, the execution of such work, or such change of contract terms and conditions, shall be subject to a Supplementary Agreement, between the Government and the Contractor. Prior agreement must be obtained from the Contractor as to the execution of the work, the change in the terms and conditions, the rates for the relevant work and all cost, time and other implications. In addition, approval from the appropriate authorities as stipulated in Appendix V(B) of the SPRs must be sought before executing the Supplementary Agreement. Where a Supplementary Agreement involves acceleration of works the progress of which is susceptible to delays by unforeseen circumstances, consideration should be given to linking payment in the Supplementary Agreement with the implementation of the agreed acceleration measures.

Supplementary Agreement may be in various formats, such as by an exchange of correspondence or by an agreement on deed, depending on the importance and complexity of the content of the Agreement, the desired length of its limitation period and whether there is doubt on presence of consideration. The Government should be represented by the officer who signed the Contract for the Government or any other officer of at least D2 level, provided that such officer is not also the Engineer for the Contract. For an agreement on deed, the draft Supplementary Agreement has to be submitted through the Departmental Contract Adviser to Legal Advisory Division (Works) (LAD(W)), DEVB for legal vetting. After the execution of the Supplementary Agreement, a copy shall be passed to the Departmental Contract Adviser. The Department should also copy any signed Supplementary Agreement to the Director of Audit. For guidance on execution of Public Works Contracts as a deed, please refer DEVB TCW No. 7/2014.

It is also necessary to revisit the provision of liquidated damages in respect of post-

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contract variation by ways of Supplementary Agreements. Consideration has to be given to whether or not the rate originally fixed for liquidated damages would remain appropriate for the Works or Section(s) where the scope of work under the original Works or Section(s) is altered. See ETWB TCW No. 4/2003 for details.

Supplementary Agreement for additional works approved under Items A.III and A.IV of Appendix V(B) of the SPRs should be treated as a separate contract for the purpose of effecting further variation to these additional works and the schedule of authorities for variation of contracts under Item A.I of Appendix V(B) of the SPRs should also be applicable where appropriate.

13.5 VARIATIONS AFFECTING ENVIRONMENTAL PERMIT

If the Engineer considers that the issuing of a particular variation may cause a material change to the designated project or to an environmental impact of the project as defined in the "Technical Memorandum on Environmental Impact Assessment Process", he shall consult the Director of Environmental Protection (DEP). If the DEP considers that the environmental permit should be so varied, the Engineer shall advise the proponent department who shall apply for a variation of the environmental permit under Section 13 of the EIA Ordinance. After obtaining the variation of the environmental permit, the Engineer shall then order the variation under the Contract.

Should the Contractor submit an alternative proposal during the course of the Contract which may give rise to a material change to the designated project or to an environmental impact of the project, the proponent department shall consider whether it is more appropriate for him or the Contractor to apply for variation of the environmental permit. No agreement shall be entered into until it has been clarified whether a variation to the environmental permit is required and which party shall be responsible for making the application.

Reference should be made to ETWB TCW No. 13/2003.

13.6 OMITTED ITEMS AND THEIR VALUATION

(Ref.: In view of the findings in Chapter 3 of the Audit Report No. 53, SDEV requested in email of 19.2.2010 to strengthen the relevant PAH Sections on omitted items for reference by works departments and, where applicable, the consultants appointed as the Engineer for the Contract.)

From the viewpoints of financial control, omitted items should be kept to an absolute minimum through proper preparation of a BQ and Particular Preambles. Therefore, the Engineer should provide the Employer with the reasons justifying the acceptance of omitted items and the basis of his valuation.

Whenever practicable, once omitted items are identified, the Engineer should exercise his professional judgement in rendering a preliminary assessment of rates and reflect the existence of such items in his regular financial report (including a summary of all omitted item identified/valued, interim payment already certified for such items and a payment forecast for such items). For those contracts administered by the Consultants, the Consultants should provide the aforesaid information in his regular (usually on monthly basis) report on

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financial matters required by the Director's Representatives.

After the Engineer has valued any omitted items in accordance with the GCC, he shall notify the Contractor of such valuation in the form of a letter. A standard form of such a letter is shown at Appendix 7.22. It shall also be stated in the letter whether or not any rates are subject to Contract Price Fluctuation. However, the power to value omitted items is usually not delegated to the ER. As such, the letter valuing omitted items should be signed off by the Engineer. When letters concerning valuing omitted items are issued, a current financial statement as shown at Appendix 7.23 should be prepared and copied to the relevant parties together with the letters.

13.7 DEALING WITH A VARIATION WITH VALUE EXCEEDING ITS ESTIMATE MADE AT THE TIME OF APPROVAL

If due to any reason other than contract price fluctuation the value of a variation exceeds its estimate made at the time approval was given, the following actions are required:

(a) If the increase is due to a change in scope or a change in the nature of the original variation, the whole variation as changed shall be treated as a new variation and all necessary approvals by the public officer of appropriate rank shall be obtained;

(b) If the increase is due to any reasons other than sub-paragraph (a) above, the public officer of appropriate rank shall be notified (via the original approving officer) with explanations of such increase. For the avoidance of doubt, if the increased value of the variation in the aforesaid case is still within the approval limit of the original approving officer, only notification to the original approving officer is required.

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14. CONTRACTUAL CLAIMS

14.1 GENERAL

The General Conditions of Contract makes provision for the Contractor to claim additional payment. In all cases the Contractor should, in accordance with GCC Clause 64, notify his intention to claim within the period of time stated in the Contract, citing the clause and sub-clause under which it is being brought. Should any claim not cite the clause(s) then the Contractor is to be asked to provide this information before further action is taken. A standard reply letter to the Contractor in respect of this case is given in Appendix 7.24.1.

Should the Contractor refuse or be unable to cite the clause(s), then this is to be brought to the attention of the Engineer who should give instructions on the matter.

Should the Contractor fail to give notification within the period stated in the Contract, then the claim should not be considered. Standard reply letters in respect of this case as shown in Appendices 7.24.2 & 7.24.3 shall be issued by the Engineer accordingly.

After receiving notification, the Engineer may wish to exercise powers under the Contract to call for detailed and contemporary records to be maintained, and the ER should recommend this course of action if it appears that any special record is necessary. Standard letters concerning the discussed subject are at Appendices 7.24.4 & 7.24.5.

It is not uncommon that the Contractor submits notification to claim for time extensions and additional costs under different clauses of the GCC. To facilitate future claim assessment, it is advisable to assign separate claim numbers for time extension and cost claims and use the appropriate standard letters described above, with modifications where necessary.

14.2 HANDLING OF CLAIMS

The analysis and evaluation is to be carried out by the ER for the approval of the Engineer. Full details of the analysis and evaluation are to be presented on a separate file with copies of all supporting information such that any officer called upon to examine the claim at a later date will have all the necessary information and reasoning to hand.

The method of analysis and evaluation of a claim is a matter for professional judgement but some aspects will be common to many claims such as:

(a) Evaluation must be based on the provisions of the Contract, which are either expressed or reasonably implied. If there are no provisions, then no claim under the Contract can be considered. The Engineer may not evaluate a claim for breach of Contract that is not dealt with by the contract terms. Such claim shall be referred to Legal Adviser (Works) (LA(W)), DEVB.

(b) Notification of the claim should be made within the period of time stated in the General Conditions of Contract. The date of incident leading to the claim should be documented and compliance with the time bar should be justified.

(c) The Contractor must be able to support the details submitted.

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(d) The Contractor should have taken all reasonable steps to mitigate the effects of the situation that gave rise to the claim.

After giving notice of a claim, the Contractor is to provide full and detailed particulars including justifications for the proposed approach in assessing the claim as soon as is reasonable. Should any detail not be supported by site diaries or other records maintained by the site supervisory staff, the ER shall request the Contractor to supply supporting information. If the Contractor fails to provide the full details required, the Engineer should consider writing to the Contractor setting out what in his opinion is a reasonable period of time for such submissions. If the Contractor fails to respond or provide sufficient reason, then the evaluation of the claim is to proceed as provided for in Clause 64(6) with all reasonable speed.

The ER shall contest any ill founded parts of the claim, indicating that clarification is being sought on behalf of the Engineer for the Contract and that no outright rejection is being given. Any doubt as to the validity of a claim or any part thereof may be referred to the Departmental Contract Adviser for an opinion, who may refer the matter further to LAD(W), DEVB if considered necessary. Requests for further details from the Contractor, if required, should not be used as a means of delaying the evaluation. On the other hand, whenever a Contractor makes an invalid argument, in particular when this has major cost implications, it should be rejected by the Engineer in no uncertain terms. Any double reimbursement to the Contractor for variation order and prolongation cost should be checked.

The reasons behind every claim are to be considered by the works division and should it appear that the circumstances giving rise to the claim could be repeated then the matter is to be reported in brief to the design division for necessary action.

The correspondences of sensitive nature related to claims should be filed in a restricted manner. The following correspondences/documents should be classified as restricted:

(a) Documents/correspondences related to the Engineer's assessment of the claims (including claim analysis and evaluation) that are not going to be disclosed to the Contractor;

(b) Legal advice on claims, the disclosure of which will put Government in an unfavourable position in claims negotiation;

(c) Documents/correspondences related to extra-contractual settlement of claims, such as Controlling Officer's recommendations to Financial Services and the Treasury Bureau (FSTB), the ceiling figure of any monetary offer and waiving of any rights etc., the disclosure of which will put Government in an unfavourable position in extra-contractual settlement of claims; and

(d) Any other documents/correspondences the disclosure of which will put Government in an unfavourable position in claims processing.

For detailed guidance of the processing of claims, reference should be made to "Guidelines for Claims Management and Conduct of Negotiations in Works Contracts under the Public Works Programme" prepared by DEVB (then WB) and promulgated under S for

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W's memo ref. WB(W) 206/32/5(97) dated 30.12.97. Such Guidelines should be available from the Departmental Contract Advisor. The Guidelines provide guidance for claims management with the objective of resolving contractual claims efficiently without delay. It is imperative to note that all claim notifications received from the Contractor should be duly logged chronologically in a claims register maintained on site and in the head office in accordance with paragraph 5.2.1.3 of the Guidelines.

14.3 AUTHORITY TO SETTLE CLAIMS

It should be noted that the certification of claims should be made under the relevant clauses in the GCC and should not be confused with valuing variations. The standard letter at Appendix 7.25 may be issued for certifying claims made under the Contract.

It should be noted that, pursuant to Appendix V(B) of the SPRs, the officer who is delegated the authority by the Controlling Officer may authorise increase in contract sum within certain limit to meet the certified claims or arbitration awards. No such limit is imposed on the Controlling Officer himself, subject to the limit of APE not being exceeded. As a related issue, reference should also be made to WBTC Nos. 20/2000 & 16/2002, the Brief for consultancy agreements (for consultant-managed contracts) and relevant departmental circulars (for in-house contracts) regarding constraints on duties and powers of the Engineer, and the requirement of reports and response time limits.

On the other hand, in accordance with Item E.I of Appendix V(B) of the SPRs, where a claim to be settled is not certified by the Engineer and is not the subject of an arbitration award or an award of the court, the limit of delegated authority of the Controlling Officer or designated officer at directorate level to approve such payments is an accumulated value up to $7 million (according to the August 2018 version of SPRs) and must be based on the advice of Department of Justice (D of J) or LAD(W), DEVB. The responsible officers are reminded to refer to Item E.I of Appendix V(B) of the SPRs and the quotation limit as specified in SPR 220(b) for the latest accumulated value. If the limit has been exceeded, a recommendation has to be made to PSTsy to approve such a payment. In considering the settlement of claims not certified by the Engineer, the chance of success of the Employer's case shall be taken into consideration, even in cases where the chance is considered small.

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15. REPORTS ON CONTRACTORS' PERFORMANCE

15.1 OBJECTIVE

The basic objective of the reports on contractors' performance is to monitor the contractors' performance and assess their suitability for future work. These reports also form the major basis on which action will be taken as to upgrading, suspension, downgrading or deletion from the Lists of Approved Contractors for Public Works.

15.2 PROCEDURE AND GUIDANCE

Section 4 and Appendices 4A, 4B and 4C of the Contractor Management Handbook give detailed procedures and guidance notes for the completion of report on contractors' performance. In particular, the reporting timetable as stipulated in paragraph. 4.6.4 and Appendix 4D of the Handbook shall be strictly followed. When recommending an adverse report, the responsible officers should entirely satisfy that there is adequate documented evidence to prove such reports are warranted before endorsement/amendment. Also refer to Sub-section 5.4 of the Contractor Management Handbook for regulating actions to be taken against contractors with adverse reports.

For contracts carried out by a joint venture, a single performance report should be made on the joint venture with comments on the input and information on the value of the share of the Works of the participants or shareholders. The report shall be copied to all management departments of the categories of works undertaken and also to the individual files of the joint venture participants or shareholders.

A performance score is to be assigned to each report on contractor's performance, and a weighted average of the performance scores given in all the reports written on the performance of a contractor in Government works contracts in the preceding 12 reporting periods will be taken as the contractor's current performance rating. The method of evaluation is given in ETWB TCW No. 3/2007 and DEVB TCW No. 3/2007A. Contractors' performance reports are normally due on the last day of February, May, August and November covering the three-month reporting periods up to those dates. Departments shall take the responsibility of uploading all contractors' performance reports to the Contractor Management Information System (CMIS) within the time limit specified in the Contractor Management Handbook after the date due for the report. DEVB will then generate the new performance rating on the first working day of May, August, November and February and contractors on the Approved List will be advised of their respective new performance ratings by post. Departments may obtain a report on a contractor's recent performance ratings over the past two years from the CMIS terminals.

On the aspect of site safety, under the Score Card System, one Score Card is to be completed by the ER and endorsed by the Engineer for completion of each contractors' performance report, irrespective of whether the reporting period is 6-weekly or quarterly. The assessment should reflect the observation during routine site inspections and day-to-day administration and site supervision of the contract during the reporting period. Score Cards are required to be completed throughout the whole contract period unless otherwise instructed by the Engineer. However, Score Card is not required during the maintenance period, defects liability period or establishment period. Completed Score Cards are to be kept by the project

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office for record purpose. See DEVB TCW No. 1/2020 and paragraph 11.11 for detailed procedures for completing the Score Cards in relation to the report on contractors' performance.

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16. DETERMINATION OF CONTRACTOR'S EMPLOYMENT

16.1 GENERAL

Determination of Contractor's employment may only take place for the reasons given in GCC Clause 81 or the SCC Clause as promulgated in ETWB TCW No. 23/2004 - "Right of the Employer to Terminate for Convenience and Risk Allocation with respect to Changes in Law'. No action towards determination of Contractor's employment under the Contract can be taken for reasons that are not given in the Clauses. Should a situation develop that is considered likely to give rise to the need for determination of Contractor's employment, then the Engineer is to liaise with LAD(W), DEVB who are to be kept informed of all future developments.

Reference should be made to WBTC Nos. 16/99, 16/99A & 16/99B and ETWB TCW No. 16/99C for detailed contractual and financial procedures to be followed in case of determination of Contractor's employment.

16.2 WARNINGS PRIOR TO DETERMINATION OF CONTRACTOR'S EMPLOYMENT

Whenever it is apparent that the Contractor is having difficulty in carrying out the Contract and before the invocation of the determination of Contractor's employment provision, the Engineer shall notify the Contractor of the complaint leading to the possibility of determination of Contractor's employment. He shall also request explanations and proposals for a course of action to remedy the situation. This notice must be served in ample time to allow the Contractor to improve his efforts before a final decision is made. In the case of the Contractor failing to proceed with due diligence, action under paragraph 6.4 is necessary.

Should the early written warning of dissatisfaction or action under paragraph 6.4 fails to produce the required improvement, and after conferring with the Government officer authorised to sign the Contract on behalf of the Government, the Engineer shall issue to the Contractor a letter as given in Appendix 7.26.

Upon being advised by copy of the letter at Appendix 7.26, all relevant departments are to provide the department concerned, as soon as possible by fax and copied to CTA(F), DEVB, with details of all contracts that the departments have with the defaulting Contractor for which further payment has yet to be made by the Government under these contracts. Nil returns are required.

If the letter at Appendix 7.26 produces the desired results and no further action is to be taken, then the recipients of the copies of the letter are to be notified accordingly. Otherwise, the ER shall arrange for the following:

(a) All gates and doors giving access to any part of the Site to be secured by new padlocks.

(b) A 24-hour security guard to be posted to ensure that no plant or materials leave the Site without the expressed permission of the Engineer.

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16.3 ACTION TO EFFECT DETERMINATION OF CONTRACTOR'S EMPLOYMENT

16.3.1 General

If the letter at Appendix 7.26 fails to produce the desired result and determination of Contractor's employment is to be initiated, then the Engineer shall inform the Head of Department (via the Government officer authorised to sign contract on behalf of the Government) of such recommendation. To effect the determination of Contractor's employment, a sample recommendation by the Engineer to the Employer is given in Appendix 7.27. This certification is to be made on the expiry of the time period stated in the warning letter at Appendix 7.26. A draft notice of determination of Contractor's employment as shown in Appendix 7.28 should also be attached with the Engineer's certification. In each case, the notice must be cleared with LA(W), DEVB. Upon agreement, the Head of Department shall sign and despatch the notice of determination of employment to the Contractor.

16.3.2 Actions upon the Serving of a Notice of Determination of Contractor's Employment

When the formal notice of determination of Contractor's employment at Appendix 7.28 is issued, the ER shall arrange for the following:

(a) A copy of the notice of determination of Contractor's employment, suitably protected from the weather, should be posted in a prominent place on the Site.

(b) The nearest police station should be informed of the event.

(c) The Site including any works and borrow areas, storage yards and the like and their immediate areas to be extensively photographed to show, amongst other things:

  (i) The extent and standard of temporary works and permanent work;

  (ii) The condition and location of any plant;

  (iii) The condition and quantity of any unused materials; and

  (iv) Details of any poor workmanship or temporary works that may have influenced the decision of the Engineer to recommend determination of Contractor's employment.

(d) The Engineer shall give written notice to the Contractor, under the provisions of the relevant GCC Clauses on vesting of constructional plant and temporary buildings and of materials, prohibit the removal from the Site of any such properties owned by the Contractor. Refer also to Item 2.3 of Appendix A of WBTC No. 16/99.

(e) Hired plant essential for the completion of the remainder of the work shall be retained on Site. Refer also to Item 2.4 of Appendix A of WBTC No. 16/99.

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16.3.3 Actions upon Determination of Contractor's Employment

On the notified day of determination of Contractor's employment, an officer, specifically authorised in writing by the Director to do so, shall enter upon the Site on behalf of the Government. The ER shall then arrange for the following:

(a) The officer being authorised to enter the Site should record in the site diary that he has entered upon the Site and that the Site has been re-entered. He should certify to the Director that he has entered upon the Site on the behalf of the Government and expelled the Contractor therefrom.

(b) A copy of notice of re-entry, suitably protected from the weather, should be posted in a prominent place on the Site.

(c) Enhance site security and additional security guard should be hired if necessary since all plants, temporary buildings and materials on the Site have become the properties of the Government upon re-entry. Close liaison with the Police should be made.

(d) Despite the record taken after the serving of the notice of determination of employment, a complete photographic record of the Site, the Works and all items on the Site shall be made as soon as possible upon re-entry.

(e) If applicable, a letter together a copy of the notice of re-entry posted on the Site shall be sent to the Bondsman by registered post advising him that the Site and the Works have been re-entered. The Bondsman must be advised that a formal claim on the Bond may be lodged once the financial position is known. A sample letter is shown in Appendix 7.29.

(f) Other parties which should also be informed of the re-entry includes:

  (i) the insurer(s) who provide(s) insurance required by the Contract,

  (ii) any Nominated Sub-contractor, and

  (iii) any Specialist Contractor.

(g) Every effort should be made to keep the Specialist Contractors working. If not possible, the Engineer shall be obliged to order a suspension of the Works in accordance with the relevant GCC Clause. Refer also to Item 3.3 of Appendix A of WBTC No. 16/99.

(h) The remaining plant on the Site should be valued by Electrical and Mechanical Services Department (EMSD) if necessary.

(i) Continued provision of utility services for the necessary maintenance of the Site should be ensured.

(j) Under some circumstances, the need for emergency work should be assessed and the required works should be carried out.

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Notwithstanding the above, no action is to be taken that can be construed as meaning that the Contract has been brought to an end. When determination of Contractor's employment takes place under GCC Clause 81, the Contract is still in force and confers certain rights and obligations on both the Contractor and the Government.

When bankruptcy of the Contractor occurs, the procedure is similar except that no certification from the Engineer to the Head of Department or letters prior to this certification is necessary. Whenever possible, determination of Contractor's employment should take place before bankruptcy occurs although it is recognised that it is not always possible to accurately assess the developing situation.

16.3.4 Actions after Determination of Contractor's Employment

The ER shall arrange for all the records and measurements of the works carried out by the defaulting Contractor to be brought up-to-date.

From the date of the determination of Contractor's employment until another contractor commences the remainder of the Works, all staff (including consultants' staff) engaged in the determination of Contractor's employment and re-entry process should make detailed record of the time and cost spent. This should include the additional resources related to the preparation of new tender documents and analysis of tenders, if applicable. It should however be noted that work on the preparation and processing of new tender documents should be carried out with all reasonable speed so as not to jeopardise Government's right of recovery of the related cost. It would be beneficial to record the time and cost for any work associated with the re-entry process which extends beyond the start date of a new contract. Calculation of the staff cost should be based on the actual salary of the officers and not the mid-point of their salary scale. The departmental STA should be consulted for assistance in this respect.

Following re-entry upon the Site, the Engineer shall prepare a full report to the Head of Department including:

(a) Name of Contractor;

(b) Contract sum;

(c) Due date for completion;

(d) Amount already certified;

(e) Value of completed work not yet certified;

(f) Retention money withheld;

(g) Amount of Bond and name of Bondsman (if any);

(h) Liquidated damages to be deducted (if any);

(i) The estimated cost of completing the work using Term Contractor(s) or carrying out the works under any other existing contract(s);

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(j) The estimated cost of completing the Works by calling new tenders;

(k) The likelihood of calling in and exceeding the Bond (if any);

(l) The effect on current financial provisions for contract sum and project vote; and

(m) A recommendation as to how to complete the Works and an outline programme for the preparation of documents, calling for tenders and completion of the Works.

There is a general duty under common law to mitigate any loss. After re-entry, it is important that the Works are completed as quickly and economically as possible, otherwise the defaulting Contractor may have grounds for contesting some of the expenses incurred or damages sustained by the Employer. Preparation work for completing the Works, either by tendering new contracts or utilising existing term contracts or other means, should start as early as possible. Prompt decisions should be made as to arrangements for:

(a) Any hired and hire-purchase Constructional Plant and its assignment;

(b) Any Nominated Sub-contract; and

(c) Any other contract related to the Works.

It is necessary to formulate a disposal strategy in respect of the forfeited Constructional Plant and to retain those that are suitable for re-use on Site for the completion of the Works left undone by the defaulting Contractor. Department shall conduct a risk-benefit analysis to assist in reaching a decision on the treatment of the forfeited Constructional Plant. The considerations should take into account conditions of the plant if reused, the required cost and time for plant replacement if they are removed in advance and the possible programme gain associated with advanced removal, etc. The risk-benefit analysis should at least cover the items of the forfeited Constructional Plant which are critical to the completion of the Works. Where forfeited Constructional Plant are used to complete the Works, departments shall consider to include a disclaimer clause, where appropriate, to disclaim liability on the part of the Employer resulting from the use of the forfeited Constructional Plant. LAD(W) of DEVB should be consulted on the drafting of such a disclaimer clause.

The employment of any Nominated Sub-contractor is terminated upon re-entry of the Site. The contractual status of the original or any new Nominated Sub-contractor should be clarified and ascertained as soon as possible. See Item 4.2 of Appendix A of WBTC No. 16/99.

The Engineer with the assistance of the ER/Surveyor shall ascertain the financial position of the Contract and settle the final account with the defaulting Contractor at the earliest possible time. The financial procedures as stipulated in Appendix B of WBTC No. 16/99 & WBTC No. 16/99B should be followed. This may include determination of the expenses and damages incurred by the Government, assessment of any sources from which money may be recovered, establishment of debt or recovery of money by set-off from other contracts etc.

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On expiry of the Maintenance Period and after the financial position of the Contract have been ascertained, a Final Statement shall be issued to the defaulting Contractor and copied to CTA(F), DEVB and the Bondsman. A checklist for the preparation and a sample format of a Final Statement is given in Appendix C of WBTC No. 16/99. Appropriate written enquiry and/or legal procedures shall be initiated if the Contractor fails to pay the money due in time and in full. See Item 5 of Appendix B of WBTC No. 16/99.

Once it is established that the defaulting Contractor has caused the Government to sustain expenses and/or damages which cannot be recovered by set-off and the defaulting Contractor has not honoured the Final Statement, the Department should inform CTA(F), DEVB to call in the Bond. LA(W), DEVB must be kept informed of the calling in of the Bond and their advice should be sought before any action is taken. Where the debt to the Government is less than the value of the bond, a sum equal to the debt shall be called in. Refer also to Items 6.2 & 6.3 of Appendix B of WBTC No. 16/99.

The SCC Clauses promulgated under WBTC No. 11/2001 empowers the Engineer to issue an interim certificate to the defaulting Contractor if he is satisfied at any time prior to the completion of the Works that there is any net sum due to the Government. The interim certificate shall then be considered as a debt due from the defaulting Contractor to the Government and shall be paid by the Contractor within 21 days of the date of interim certification by the Engineer. This would protect the Government's right to recovery of sums from being delayed unnecessarily. See WBTC No. 11/2001 for reference.

16.4 CHECK-LIST FOR ACTIONS REGARDING DETERMINATION OF CONTRACTOR'S EMPLOYMENT

The following is a checklist for actions regarding determination of Contractor's employment. This is not meant to be exhaustive and is for guidance only. Departments should produce their action checklists to suit their departmental situation in order that appropriate and timely action is taken by their staff to effect the necessary procedures for the determination of Contractor's employment.

Activity	Ref.	Action Initiated by	Action Taken (with date)
Prior to Determination of Contractor's employment			
1. Issue letter(s) to the Contractor pointing out the observed deficiencies and request for explanations and remedy proposal	Para. 6.4 Para. 16.2		
2. Issue warning letter to the Contractor advising likelihood of determination of employment	Para. 16.2 App. 7.26		

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Activity	Ref.	Action Initiated by	Action Taken (with date)
3. Control Site access: (a) use new padlocks for all doors/gates access to any part of the Site (b) engage 24 hour security guard(s) on Site	Para. 16.2(a) Para. 16.2(b)		
Notice of Determination of Contractor's employment In case of NO improvement after issuing the warning letter in item 2 above: 4. Consult LA(W), DEVB and clear the draft notice of determination of Contractor's employment 5. Recommend determination of Contractor's employment to Head of Department by the Engineer 6. Issue Notice of Determination of Contractor's employment to the Contractor (on expiry of the deadline stated in the warning letter in item 2 above)	 Para. 16.3.1 App. 7.28 Para. 16.3.1 App. 7.27 Para. 16.3.1 App. 7.28		
After Serving Notice of Determination of Contractor's employment 7. Post Notice of Determination of Contractor's employment on the Site 8. Inform the nearest police station 9. Take photographs for record 10. Give written notice to the Contractor to prohibit removal of properties from Site 11. Retain hired plant	 Para. 16.3.2(a) Para. 16.3.2(b) Para. 16.3.2(c) Para. 16.3.2(d) Para. 16.3.2(e)		
Upon Determination of Contractor's employment (after re-entry of the Site) 12. Effect re-entry of the Site 13. Post notice of re-entry on the Site 14. Enhance site security and maintain liaison with the Police	 Para. 16.3.3(a) Para. 16.3.3(b) Para. 16.3.3(c)		

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Activity	Ref.	Action Initiated by	Action Taken (with date)
15. Make complete photographic record of the Site	Para. 16.3.3(d)		
16. Issue letter to Bondsman	Para. 16.3.3(e) App. 7.29		
17. Inform insurers, Nominated Sub-contractor and/or Specialist Contractor	Para. 16.3.3(f)		
18. Order suspension of Works to the Specialist Contractors if necessary	Para. 16.3.3(g)		
19. Valuation of plant by EMSD if necessary	Para. 16.3.3(h)		
20. Maintain essential utility services	Para. 16.3.3(i)		
21. Assess the need for and carry out emergency works if necessary	Para. 16.3.3(j)		
After Determination of Contractor's employment			
22. Update all records and measurements of the Contractor and the Work	Para. 16.3.4		
23. Keep detailed records of time and cost of all staff involved	Para. 16.3.4		
24. Prepare full report to the Head of Department	Para. 16.3.4		
25. Resolve assignment of hired plant	Para. 16.3.4		
26. Settle Nominated Sub-contract(s)	Para. 16.3.4		
27. Ascertain financial position of the Contract in consultation with LA(W), DEVB and departmental STA	Para. 16.3.4		
28. Prepare new tender document and call for new tender if necessary	Para. 16.3.4		
29. Prepare and issue Final Statement on expiry of the Maintenance Period	Para. 16.3.4		
30. Call in the Bond if necessary	Para. 16.3.4		

16.5 RETENTION OF DOCUMENTS/FILES UNTIL APPROVAL OF WRITE-OFF FOR DEFAULTING CONTRACTORS AND DEFAULTING CONTRACTS

Documents and files in relation to any defaulting contractor(s) and defaulting contract(s) should be retained until approval of write-off of debt.

Attention should be paid to FSTB's requirement that works departments are required to prepare a write-up of the case with all details about the defaulting contractor and the defaulting contract(s) involved for FSTB to process a write-off

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application. Works departments are also required to provide accurate information regarding defaulting contractor(s) and defaulting contract(s) in response to queries from FSTB. In this connection, all files and records related to the defaulting contractor and the relevant contract(s) should be kept intact and retained until the write-off is approved. Necessary action should be taken to avoid disposal of files and records related to defaulting contractors and relevant contracts pending approval of write-off.

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17. DAMAGE REPAIRS AND EMERGENCY WORK

17.1 DAMAGE REPAIRS GENERALLY

Damage to the permanent or temporary works caused by weather or other factors except those 'expected risks' as defined in GCC Clause 21(4) is the responsibility of the Contractor up to 28 days after the issue of the certificate of completion, or until the date the Government takes over the Works, whichever is earlier. GCC Clause 21 should be referred to for the requirements on the care of the Works.

If in doubt as to the allocation of responsibility and expenses for the damage and repair of the Works, the departmental contract adviser and/or STA should be consulted.

17.2 DAMAGE TO CROPS AND PROPERTY ON AGRICULTURAL LANDS

In the wet season, especially during typhoon and heavy rainstorm conditions, flooding may occur and silt may wash down from the Site or borrow areas onto agricultural lands causing damage to crops and/or property. Damage may also result from other aspects of construction work. The ER should ensure that the Works proceed in such a way as to obviate the risk of this as far as possible. After damage has been suffered, additional improvement work should be considered to eliminate the likelihood of recurrence.

Whenever there is any damage to crops and/or property on agricultural lands which is believed to be arising from the construction works concerned, the procedures set out at the Appendix A of WBTC No. 28/92 should be followed. The procedures are intended primarily to avoid delay in payment of small claims for compensation where crops or property on agricultural land are damaged as a direct consequence of execution of the Works under the Contract.

In order to ensure that any claimant will only be offered a level of ex-gratia payment, which is acceptable to the Government, the SFST should be consulted in all cases of complaint, irrespective of the size of the monetary claims, before any formal approach is made to the claimant.

17.3 EMERGENCY WORK

Where any remedial or other work of repair becomes urgently necessary for security or the safety of the Works, the following steps should be taken:

(a) At the time of the inspection that identified the need for urgent repairs, a site instruction listing the required remedial or repair works should be issued by the ER to the Contractor. This should be followed up by written confirmation from the Engineer (sent by registered post or by hand) not later than one working day after the issue of the site instruction.

(b) If after 7 days (or earlier if the circumstances require) the Contractor has made no reasonable effort to carry out the required works, the Engineer should made a request to the Head of Department for authority to use either another contractor or the Term Contractor to undertake the works. The request should

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be sent urgently by hand to the Head of Department for approval. A standard form of request is given in Appendix 7.30.

(c) Upon receipt of the authority from the Head of Department, the Engineer shall inform the Contractor of the actions being taken and a sample letter is shown in Appendix 7.31. On the other hand, a Works Order to the Term Contractor, or an instruction to another contractor, whichever the case may be, should be issued. The instruction shall include a specified time for completion and shall be endorsed by the contractor concerned regarding acceptance of the required completion date.

(d) Any excess cost incurred in completing the remedial or repair works shall be deducted from monies due to the Contractor who failed to comply with the original request from the ER or the Engineer.

17.4 REPORTING OF MAJOR EMERGENCY INCIDENTS

ETWB TCW No. 20/2005 sets out the procedures for upward reporting of major emergency incidents from Works Department to the DEVB. Basically, major emergency incidents, which may occur during or outside office hours, are classified into two categories based on the following fundamental criteria:

(a) Whether or not the incident is a crisis, and

(b) Whether or not the incident will likely develop into a crisis.

A Category 1 emergency incident is one, which is itself a crisis when it occurs. A Category 2 emergency incident refers to one which is not a crisis itself but will likely develop into a crisis. Works Department should exercise their judgement sensibly as to which major incidents should be classified as Category 1 or Category 2. Some characteristics and consequential implications of a crisis are provided in ETWB TCW No. 20/2005.

Departments should follow the reporting procedures stipulated in ETWB TCW No. 20/2005 whenever any of the above two categories of major emergency incidents occurs. When an incident involves more than one Works Department, the lead department shall, with the assistance from other supporting departments, coordinate the information and be responsible for upward reporting to DEVB. The responsibilities for emergency works among Works Departments should follow the established practice under various technical circulars in force. In the interest of time, the Works Department that first arrives at the scene shall take up the co-ordinating role in the first instance until the lead department is identified and takes over control. Unless agreed otherwise, the lead department shall, in default, be determined with the broad guidelines set out in Appendix D of ETWB TCW No. 20/2005.

For the tree failure incidents involving (a) loss of human lives or major injuries, (b) damage to property or blockage of access and, (c) tree failure cases other than scenarios (a) and (b), departments are requested to remind colleagues who are responsible for handling tree failure incidents, to fully understand the arrangement of the “Direct Report of Tree Failure Incidents to the Tree Management Office (TMO) of the Development Bureau (DEVB)” given in Appendix 7.61.

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18. PROCEDURE ON COMPLETION OF WORKS

18.1 PRIOR TO ISSUE OF CERTIFICATE OF COMPLETION

18.1.1 Criteria for Assessing Completion

Any Section of the Works or the whole of the Works can be assessed as complete after its substantial completion and that it has satisfactorily passed all prescribed final tests. Should the completed works form only part of the Works, the assessing criteria for completion may also include its capability of permanent occupation and/or permanent use by the Government. GCC Clause 53(5) is applicable in such circumstances.

18.1.2 Handing Over Completed Works

The following guidelines should be followed for handing over completed works to relevant division/department responsible for future operation or maintenance:

(a) When the works are approaching substantial completion, the ER should arrange a joint inspection with the Office/Division responsible for the future operation or maintenance of the completed works. The results of the inspection shall be recorded to show, among other things, all incomplete items distinguishing between those items for which the Contractor is responsible under the Contract and those which are not.

(b) When all works are completed, a further/final joint inspection shall be made.

(c) In case of any disagreement on the standard of completed works or the extent of works that should be carried out before handing over, a report on the points of disagreement should be referred to the Engineer for a decision.

(d) Handing-over notes covering at least the following headings should be prepared and jointly signed by the ER and the officer responsible for taking over the works:

(i) Date of joint inspection(s);

(ii) A list of outstanding works/defects (see paragraph 18.1.4);

(iii) Schedule of as-constructed drawings;

(iv) Schedule of the final set of revised contract drawings;

(v) References of relevant files; and

(vi) Any relevant remarks.

(e) The ER/project office shall also ensure that all design calculations, spare parts, operation and maintenance manuals, maintenance equipment, warranty certificates and manufacturer's catalogues, where applicable, should be handed over to the maintenance authority.

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(f) If it has been decided that any temporary works (e.g. access roads, bridges, drainage etc.) are to be retained, the maintenance responsibility of such items must be clarified by the ER in collaboration with the relevant departments/division as appropriate. All agreements made shall be recorded in the handing-over notes and in the relevant files.

(g) If slopes or retaining walls are involved in the Works, the procedures stipulated in DEVB TCW No. 2/2018 for the registration of catalogue of slopes should be followed. The GEO Checking Certificate for Slopes and Retaining Walls should also have been obtained in accordance with ETWB TCW No. 20/2004 prior to handing over of the geotechnical features.

(h) For all tunnel works (see ETWB TCW No. 15/2005), the project office or its consultants shall submit to GEO for record:

(i) The geotechnical performance review and the monitoring/survey data obtained for the tunnel works (prepared by the designer and certified by the design checker);

(ii) The geological and hydrogeological data collected including field data obtained from the excavation faces; and

(iii) Maintenance manuals, where appropriate, for the maintenance and the long-term monitoring of special measures such as prestressed ground anchors (prepared by the designer and certified by the design checker).

(i) For tunnel works, the project office or its consultants shall submit factual geological and hydrogeological data obtained during the construction of the tunnel works to the Public Section of the Geotechnical Information Unit, CEDD in accordance with DEVB TCW No. 4/2016. (The Hong Kong Geological Survey will refer to such data when preparing new or revised geological maps).

(j) Where drainage works are involved, the guidelines given in DSD Practice Note No. 1/2010, Stormwater Drainage Manual and Sewerage Manual should also be followed. Particular attention should be made on the need to conduct additional inspections of works in dry conditions where such works have to be commissioned in parts or in stages prior to formal handing-over and the works will be under submerged condition during the final handing-over. Unless prior agreement has been made with the office responsible for future operation or maintenance of the works, such partially commissioned works shall continue to be looked after by the main contractor until the completeness of the remaining works and formal handing-over of all the works.

(k) Where landscape softworks are involved, the new plantings would normally be handed over to the maintenance departments upon expiry of the contract Establishment Period. To facilitate smooth handing over of the plantings, the project office should arrange joint inspections with the maintenance departments nearing completion of the landscape softworks with a view to obtaining their agreement on aspects essential for the commencement of the

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establishment and the final handing over. Further joint inspection with the maintenance departments should be conducted upon expiry of the Establishment Period for formal handing over of the plantings for long-term maintenance.

18.1.3 Liaison with DLO

No works project is considered complete until all reasonable steps have been taken to reinstate and, if possible, improve the appearance of the area affected by the Works. All rubbish and surplus materials must be removed and any temporary concrete floors etc. should be broken up and removed.

When the Works are approaching substantial completion, the ER should arrange a joint inspection with DLO regarding the land to be handed back. The results of the inspection should be recorded to show the items that require rectification and noting any illegal occupation if necessary. See also Chapter 3 for handing over of completed works to DLO.

When all structures and machinery have been cleared from the Site, including the Works Area, a joint meeting should be arranged with DLO to agree responsibility for taking over and maintaining the Site. This must be recorded in the contract file prior to the release of retention money.

18.1.4 Outstanding Works

A list of outstanding works requiring attention or action shall be prepared at the effective date of the certificate of completion. A certificate of completion shall not be issued until the Contractor undertakes to carry out all these outstanding works or otherwise agreed.

18.2 CERTIFICATE OF COMPLETION

18.2.1 Procedure

A certificate of completion for the Works, or any Section, should be issued to the Contractor as soon as the relevant work is completed in accordance with the terms of the Contract.

When a certificate of completion is requested in writing by the Contractor, accompanied by an undertaking to complete any outstanding work during the Maintenance Period, the Engineer shall, within 21 days of the receipt date of such notice either:

(a) Issue a certificate of completion to the Contractor pursuant to GCC Clause 53(1)(a); or

(b) Give written instruction to the Contractor listing all the works that are required to be done before a certificate of completion can be issued, pursuant to GCC Clause 53(1)(b).

The ER should recommend to the Engineer on whether a certificate of completion should be issued and the justification recorded in the contract file:

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(a) If the issue of a certificate of completion is recommended, the minute should include a statement or similar statement as "I certify that the Works/Section(s) ..... was/were substantially completed on ..... in accordance with the Contract and a certificate of completion should be issued taking into account of the undertaking by the Contractor to carry out the outstanding work as listed below during the Maintenance Period." (If there is no outstanding work to be completed during the Maintenance Period, the last part of the sentence should be omitted.)

(b) If the issue of a certificate of completion is not recommended, the minute should include a statement or similar statement as "The Works/Section(s) ..... was/were not substantially completed on ..... as required by the Contract. The outstanding works that must be completed by the Contractor before a certificate of completion should be issued are detailed in the attached draft letter to the Contractor. I recommend that this letter instructing the Contractor to complete the outstanding work be sent immediately."

18.2.2 Standard Forms

Standard forms for certificates of completion are given in:

(a) Appendix 7.32: Certificate of completion in respect of a part of the Works.

(b) Appendix 7.33: Certificate of completion in respect of a Section of the Works.

(c) Appendix 7.34: Certificate of completion of the Works.

18.2.3 Partial Completion

Pursuant to GCC Clause 53(5) and where permitted by the Contract, the Engineer can exercise his discretionary powers in favour of issuing a completion certificate for any substantial part of the Works not being a defined Section under the Contract. However, the prevailing site conditions should be fully considered as to the suitability and implication of granting such partial completion.

18.2.4 Release of Surety Bond and Security Deposit

When a completion certificate for the whole of the Works has been issued, the Surety Bond or Security Deposit, where appropriate shall be released to the Contractor.

A sample certificate of release of surety bond is shown in Appendix 7.35. The Engineer shall complete Part A of the certificate in triplicate. Two copies shall be issued to the Contractor together with the certificate of completion of the Works and the third sent direct to the Accounts Division of the departmental headquarters. On presentation by the Contractor of the certificate of release of surety bond, the Accounts Division shall release the surety bond in return for the Contractor's receipt on Part B of the certificate.

Where a Cash Deposit has been held, the Accounts Division shall invite the Contractor to present the receipt to STA who shall endorse the receipt and notify the Treasury so that the Contractor may present the receipt to the Treasury for reimbursement.

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18.3 MATTERS DURING MAINTENANCE PERIOD

18.3.1 Working During the Maintenance Period

The exact date on which the Contractor's responsibility for care of the Works ceases should be determined with reference to GCC Clause 21, 53 and 80.

During the Maintenance Period, any defects arising, which the maintenance office considers may be the Contractor's liability, should be referred to the ER or the Engineer for action.

If the Contractor is instructed to carry out repairs to damage occurring during the Maintenance Period, which is not due to the Contractor's fault or not due to materials or workmanship not being in accordance with the Contract, the work shall be paid for under the terms of the Contract. When the Contractor is required to carry out any investigation of defects, an instruction under the relevant GCC Clause should be issued.

It is important to make suitable arrangements for taking care of completed works if they are not handed over to the office responsible for their maintenance/operation immediately after completion is certified. This type of situation often arises when separate parts of a project are completed at different times but the office responsible for maintenance/operation will only take over the works when they are fully completed and functional. Arrangements for the care of such completed works should be made in consultation with the maintenance/operation office, who should render all possible assistance. Depending on the nature of the completed works, the services of a Term Contractor or the Contractor employed to construct the works or some other arrangement may be needed. Completed works must not be left unattended for a prolonged period of time.

18.3.2 Inspections Before the End of the Maintenance Period

Prior to any joint inspection with other relevant parties, the ER should be responsible to carry out thorough inspections towards the end of the Maintenance Period to ensure that all identified repair and outstanding works have been or will be completed on time and satisfactorily. Particular attention should be paid to the regular maintenance works required for the vegetation through the maintenance period to ensure their proper establishment and growth for the timely handover at the end of the maintenance period. Two to four weeks before the end of the Maintenance Period, the ER should arrange an inspection with the Contractor, the maintenance office and other parties if necessary, to check whether all outstanding works have been completed and any further works are required. If the condition is found to be in order, the Contractor may be relieved of all further obligations under the Contract. Should any defects or deficiencies of any kind be identified, then the Contractor shall be notified, preferably before the expiry of the Maintenance Period but in no case later than 14 days after its expiry. Failure to notify any defect that should have been revealed by a diligent inspection may jeopardise Government's right to having these defects repaired by the Contractor.

18.3.3 Maintenance Certificate

When all outstanding work, repair work and clearance of the Site has been completed, or when the Maintenance Period has expired, whichever is the later, a maintenance certificate shall be issued irrespective of there being any outstanding payments,

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unsettled valuations or unresolved claims. If Professional Indemnity Insurance (PII) is procured under a works contract, the Engineer shall also check whether the PII policy period covers the requisite 6-year period after certified contract completion before issuance of the maintenance certificate. A sample maintenance certificate is shown in Appendix 7.36.

The ER should recommend to the Engineer for the issue of maintenance certificate to the Contractor. In the recommendation, the ER should provide details of the joint inspection with the maintenance office and other relevant parties such as the inspection date(s), persons involved and agreements made. The ER should also make a statement or similar statements covering the following subjects (but is not meant to be exhaustive):

(a) All outstanding works have been carried out.

(b) All repair works have been completed.

(c) All areas including carriageways, footpaths, grassed and paved areas disturbed by the Contractor have been satisfactorily reinstated.

(d) Temporary buildings/structures have been removed.

(e) All constructional plant and temporary works have been removed.

(f) All separate works area provided have been cleared of all plant, buildings, rubbish and surplus materials and that they have been or are capable of being handed back to the appropriate authorities.

18.3.4 Release of Retention Money

Within 14 days of the date of issue of the maintenance certificate for the Works, the Engineer shall issue a certificate for the release of Retention Money, using the form at Appendix 7.37.1 or Appendix 7.37.2 depending on whether Nominated Sub-contractors are engaged. The Government is then required to pay the Retention Money to the Contractor within 21 days of the date of such certificate.

18.3.5 Report on Completion of the Contract

Within one month of the issue of the final payment certificate, a report on completion of the Contract should be prepared and signed by the Engineer. A standard report form is shown in Appendix 7.38.

18.3.6 As-built Survey

All as-built survey plans and as-built BIM models in machine readable format (such as BIM, CAD, GIS) should be sent to the SMO of the Lands D (Attn: Technical Division, SMO) for updating the relevant maps and records. See paragraph 5.4.3 of Chapter 3 of PAH and DEVB TCW No. 1/2025 Amd No. 1/2025 or its latest version for reference. In addition, the following should also be noted:

(a) Civil engineering works

When construction of a project is completed, a copy of the as-built survey

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plans should also be sent to the DLO for record and preparation of Government Land Allocation Plan if the construction of a Government installation is involved. Another copy of as-built survey plans and as-built BIM models should also be sent to SMO of the Lands D (Attn: Technical Division, SMO).

(b) Building works

When construction of a project is completed, the responsible department should advise the Government Property Agency who will request the District Survey Office to prepare a Government Land Allocation Plan incorporating any adjustment or confirming the boundary.

(c) Geotechnical works

When construction of a project with prescribed geotechnical features meeting certain criteria is involved, the responsible department should complete a standard form with appropriate plans and send to CGE/SS of GEO requesting for the registration and updating of the Catalogue of Slopes maintained by GEO. The information being required should be provided to GEO when the feature formation is substantially completed. The detailed registration procedures are given in DEVB TCW No. 2/2018.

(d) Tunnel Works

The project office or its consultants shall submit to GEO for record as-built survey plans (accepted by the Engineer/Architect/Supervising Officer under the Contract) showing the boundaries of the tunnels/shafts/caverns and the extent of any temporary works, which may affect future construction (see ETWB TCW No. 15/2005).

(e) Landscape Works

When construction of a project with landscape works completed, the responsible project office should provide a set of as-constructed drawings showing the completed landscape works and the landscape maintenance manual to the maintenance party such that the soft landscape design can be properly maintained in accordance with the original design intention.

18.3.7 Information for Maintenance Authority

On completion of the Works, the record drawings should be returned to the responsible drawing office for preparation of the as-constructed drawings for the designs carried out by the Engineer and the Contractor (if any). Upon completion of the preparation of such drawings, hard copy (signed and full size) and digital copy (in MicroStation (.dgn) and Acrobat (.pdf) formats) of relevant drawings should be sent to the maintenance office(s) for record purposes as soon as possible, preferably within three months. In the event that the project office cannot pass the as-constructed drawings within three months, they should inform the maintenance office(s) of the revised target completion date. The maintenance authority may also require additional information for specific works, e.g. site investigation reports during the construction stage, bearing and expansion joint details and performance

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details for highways structures, construction cost, and design calculations etc. Copies of all drawings, in A3 size together with a digital copy in Acrobat (.pdf) format, should always be forwarded to the appropriate DLO. In addition, the relevant District Survey Office should be provided with both hard copy and digital copy in CAD format of all drawings.

For all highways structures to be handed over to the HyD, a set of hard copy (signed and full size) and digital copy (in MicroStation (.dgn) and Acrobat (.pdf) formats) of the as-constructed drawings, and both hard copy and digital copy (in Acrobat (.pdf) format) of the design calculation shall be forwarded to the respective maintenance office of HyD. The digital image and settings for creating Acrobat (.pdf) file for submission shall be no less than 200dpi, and 8-bit gray scale or 16-bit colour depth. The settings and details of the as-constructed drawings in MicroStation (.dgn) format shall be in accordance with the latest revision of the ETWB TCW Nos. 38/2002 and 38/2002A. The MicroStation plot configuration file, colour table setting file and the resources files shall also be submitted.

For at-grade road sections to be handed over to the HyD which are 6m or more above ground [for example, those on embankments steeper than 1 (vertical) : 4 (horizontal) or retaining structures] or adjacent to water bodies, the assessment table in Appendix 7.50 should be completed and submitted together with a plan showing the location and the extent of the subject road section to the respective maintenance office of HyD for record. If the road being handed over consists of multiple such road section, one assessment table should be completed for each of them.

For drainage works to be handed over to Drainage Services Department (DSD), the documents to be submitted by the project office are given in DSD Practice Note No. 1/2010, Stormwater Drainage Manual and Sewerage Manual. In particular, an Operation and Maintenance Manual is required. Guidelines on the contents, submission timeframe and control mechanism of such Manual are given in DSD Practice Note No. 1/2010.

18.3.8 Electronic Drawings

If the Contractor has been provided with electronic drawings containing digital map other than those mentioned in paragraphs 7.4.4(a)–(j) of PAH Chapter 1 supplied by the Lands D and the Contractor has provided an undertaking on such use, the ER or the Engineer shall check that the Contractor has executed and returned the "Confirmation by contractor on cessation of the use of Government digital map data" upon completion of the relevant work. See paragraph 8.4 of PAH Chapter 5 for reference.

18.4 POST-COMPLETION

18.4.1 Post-completion Review (Subsumed from ETWB TCW No. 26/2003)

A post-completion review shall be conducted upon the substantial completion of a major consultancy agreement or a major works contract on projects under the PWP. It is considered as a useful project management tool which serves the following key purposes:

(a) to measure the success or otherwise of a project in achieving its planned objectives on time, within budget and at the specified quality level;

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(b) to bring up the lessons learned, both good and bad, so that, where appropriate, these can be used to benefit future projects; and

(c) to provide an opportunity to review the overall effectiveness of the procurement strategy and procedures in place in the light of project performance, so as to identify any necessary improvement areas.

Such a review and experience sharing process would also be conducive to continuous improvement in the performance of all parties involved and the development of long-term partnership.

There is no rigid definition for major projects or the minimum number of reviews to be undertaken by departments. As a broad guideline, it is considered that post-completion reviews are generally not warranted for consultancy agreements and works contracts of a project which has a total cost less than $500 million or of a project which does not involve complicated technical and management issues. Some suggested indicators of the involvement of complicated issues are provided in Appendix 7.46 for reference. Based on the above guidelines, departments could select agreements/contracts to be reviewed at their discretion.

It is desirable that input from major project participants, including the service providers such as consultants and contractors, could be included in the review. Nevertheless, the participation of the service providers or any relevant party in the review is to be on a voluntary and good faith basis. More than one discussion session with the presence of different service providers may be conducted, if necessary. However, as consultancy assignments for feasibility studies or investigation may be completed long before the commencement of the works contract, departments shall consider if separate reviews for such feasibility study/investigation assignments are required taking into account the benefits of such reviews against the resources required.

The emphasis and objective of the review are to gain maximum benefit from the experience accrued, rather than to apportion blame, i.e. it is not intended to be an auditing exercise. Any observed shortfall in the procurement, contract management and practices, and monitoring of the performance of the consultants and contractors should however be critically reviewed and rectified to avoid repetition of the same mistakes in the future.

Guidance notes for the conducting of a post-completion review and the suggested issues to be examined in the review are given in Appendix 7.46. Nonetheless, departments should determine the scope and details of the review to suit individual project.

Upon the completion of a post-completion review, the department shall prepare a report documenting all concerned issues, findings, conclusions and recommendations for future reference by the department. If the findings of a review are considered useful to other departments/bureaux, the department may circulate the findings to other departments/bureaux for experience sharing purpose. Furthermore, if input has been offered or provided by any consultant or contractor or other service provider in the review, the report should also be copied to such service provider. Nevertheless, the report copied to a service provider may need to have the information or details of or on

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the other service providers blocked out.

18.4.2 Works Contracts with Significant Amount of Omitted Items

Works contracts with a significant amount of omitted items should be reviewed upon substantial completion of the contracts with a view to identifying areas for improvement in preparation of BQ. In conducting the review, the project offices should make reference to the relevant recommendations given in Audit Report No. 53 Ch. 3 (http://www.aud.gov.hk/pdf_e/e53ch03.pdf) issued by the Audit Commission.

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19. DEDUCTION OF MONIES FROM GOVERNMENT CONTRACTS

19.1 GENERAL

GCC Clause 83 stipulates the contractual provisions where monies recoverable from one contract may be set-off against monies due to the same Contractor under other contracts.

19.2 ADMINISTRATIVE PROCEDURE

When the amount of a debt owed by the Contractor has been ascertained and it has been established that recovery is not possible under the Contract for which the debt was incurred, the Engineer shall report to the Head of Department (via the Government officer authorised to sign contract on behalf of the Government) on the situation, giving but not limited to the following:

(a) Particulars of the Contract, e.g. Contractor's name, contract number and title;

(b) The ascertained amount of and details giving rise to the debt;

(c) Details of other contracts currently being undertaken by the same Contractor within the jurisdiction of the same Division/Office;

(d) His assessment of the implication and desirability of setting off the debt from any or all the contracts under control; and

(e) His recommended ways forward.

The report should be copied to other Division/Office Heads who should advise the Head of Department regarding the details of current contracts being undertaken by the same Contractor in their Division/Office. They should also give their assessment of the implication and desirability of setting off the debt from any or all the contracts under control.

The Head of Department should consider the recommendation from the Engineer as well as all the views from the Divisions/Offices and decide the actions to be taken. The matter shall then be reported to DEVB enclosing the necessary details and copied to all other Works Departments. Upon receiving the report, all relevant departments shall provide DEVB with details of all contracts that the departments have with the Contractor concerned for which further payment has yet to be made by the Government under these Contracts, together with their views on possible set-off. Nil returns are required.

If considered necessary, a liaison group similar to the one required under WBTC No. 16/99 for the dealing of determination of Contractor's employment should be formed. LA(W), DEVB and/or S for J should be consulted before a decision is made. The liaison group should identify which contract(s) the debt should be recovered considering factors such as the effect on works progress of the affected contract(s), possible liabilities for payment of interest etc. CTA(F), DEVB should also be invited to advise on any accounting or financial implications. Once a decision is made, any special accounting arrangements as required by CTA(F), DEVB shall be followed by the departments concerned. Any payments and/or release of retention money shall be subject to the approval of CTA(F), DEVB who will

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consult as necessary with the departments concerned before giving such approval.

After all the necessary set-off/deductions have been completed, the departments concerned shall report to DEVB on the latest situation and any follow-up actions that are needed.

Whenever the Engineer anticipated that a debt is likely to be incurred and not recoverable under the Contract but the debt is yet to be established, he should also report the case to the Head of Department (via the Government officer authorised to sign contract on behalf of the Government). This may happen in the determination of Contractor's employment when liquidated damages and additional cost for completion are likely to exceed any retention money or bond being held under the Contract. In his report, the Engineer should provide with the Head of Department, in additional to other particulars pertaining to the matter, his estimated amount of the debt. See also Section 16 for reference.

All administrative procedures relating to the set-off of debt owed by the Contractor should be dealt with under confidential cover.

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20. CONTRACTS INVOLVING DESIGNS BY CONTRACTOR

20.1 ALTERNATIVE DESIGNS FROM CONTRACTORS AFTER CONTRACT AWARD

DEVB TCW No. 3/2014 introduces a set of SCC allowing the Employer to accept alternative designs from Contractors after contract awards under works contract other than design-and-build contracts, which is given in Appendix 7.60.

In the event that the proposal of an alternative design by the Contractor is accepted, it is important to ensure that the necessary independent checking of the Contractor's design against the contractual requirements by an Independent Checking Engineer (ICE) is complied with. The ICE must certify the works concerned by means of check certificates in the following standard forms:

(a) Form I, Interim Check Certificate, for use by the ICE for stage certification of the Contractor's design.

(b) Form II, Final Check Certificate, for use by the ICE where Interim Check Certificate(s) have been issued.

(c) Form III, Check Certificate, for use by the ICE where stage certification is neither required nor proposed.

The standard forms of the above check certificates are given in DEVB TCW No. 3/2014.

If an alternative design proposed by the Contractor during the course of Works involves additional cost implications or additional works outside the terms of the original contract (provided that the additional works are within the approved scope of the project subject to funds being available), the alternative design has to be approved by the appropriate authorities as stipulated in Appendix V(B) of the SPRs. Otherwise, if no additional cost implications or no additional works outside the terms of the original contract is involved, officers at D1 rank or above can authorize acceptance of the alternative design.

If an alternative design proposed by the Contractor involves overall cost saving to the Contract, approval in accepting the Contractor's alternative design should be obtained from the appropriate authorities as stipulated in DEVB TCW No. 3/2014.

20.2 DESIGNS UNDERTAKEN BY CONTRACTORS FOR GEOTECHNICAL WORKS

For tunnel works, submission and audit requirements relating to the geotechnical design of permanent works and associated temporary works undertaken by the Contractor are given in ETWB TCW No. 15/2005.

For all foundation works in the Scheduled Areas of Northwest New Territories and Ma On Shan, and in the Designated Area of Northshore Lantau, submission and checking requirements relating to the design of the works undertaken by the Contractor are given in

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ETWB TCW No. 4/2004.

20.3 PROFESSIONAL INDEMNITY INSURANCE FOR CONTRACTOR'S DESIGNS

For public works contracts involving contractors' design or independent checking of the contractors' design, relevant parties including contractors, their designers and independent checking engineers are required under relevant provisions in the respective contracts to procure Professional Indemnity Insurance (PII). Details of the requirements for PII and the implementation procedures are given in DEVB TCW No. 9/2007 and the revised SCE and SCC(A) at Appendix E of this circular, promulgated via SDEV's memo ref. (02245-01-13) in DEVB(W) 510/34/01 dated 6.10.2009.

Under exceptional circumstances when the required insurance can no longer be procured at reasonable commercial rates after award of the consultancy agreement/works contract, the Employer (an officer of D2 rank or above) may agree to reduce the requirement to that which is available at reasonable commercial rates. In such case, a supplementary agreement is required.

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21. MISCELLANEOUS

21.1 STATUTORY NOTIFICATIONS

The Construction Industry Council Ordinance and the Pneumoconiosis and Mesothelioma (Compensation) Ordinance provide for the collection of levies from contractors on construction operations of a value exceeding $3.0M, undertaken (or the tender submitted) on or after 30 July 2018. These Ordinances require the "authorised person" for construction work to notify the Construction Industry Council (CIC) and the Pneumoconiosis Compensation Fund Board (PCFB) within 14 days of commencement and within 14 days of the completion of such construction work together with the values of the work.

Notices are to be sent separately in respect of every contract exceeding $3.0M although works carried out under a nominated sub-contract need not be reported.

The Chief Engineer of the Division responsible for the Contract is the designated "authorised person" for the statutory notifications to the CIC and PCFB.

Notices are to be given on CIC Forms 1 and 3. PCFB Forms 1 and 3 have been prescribed for giving notices to the Board but the regulations shall be complied with if the notices given to CIC (on Forms 1 and 3) are copied to the Board. This latter procedure should therefore be adopted when applicable. These forms can be downloaded from the web sites of CIC (www.hkcic.org) and PCFB (www.pcfb.org.hk).

For term contracts and capital works contracts using the GCC for term contract, one notification of commencement to CIC and PCFB should be made for the whole contract instead of on works orders basis.

Under Sections 34 and 36 of the Construction Industry Council Ordinance, 'authorised person' is required to give notice to the Construction Workers Registration Authority within 14 days of commencement and within 14 days of completion of construction operations of value $3.0M or above, undertaken (or the tender submitted) on or after 30 July 2018. Pursuant to Section 24(4) of the Construction Workers Registration Ordinance, the 'authorised person' would comply with the requirement for the notifications if he has given notifications of commencement and completion to CIC under the Construction Industry Council Ordinance.

When a Contractor is permitted to operate a crusher on Site to produce aggregate (for site use or otherwise), this fact should be reported to the PCFB.

Upon the issue of the certificate of (substantial) completion, the ER shall submit Form 3 (with a copy for PCFB) as with Form 1 for preparation and signature by the Chief Engineer.

The date of completion to be reported is to be the date when the Works are handed over to Government. If the final value is not yet known, the approximate value should be stated and attention drawn to this.

In the event that a contract with an originally estimated contract sum in excess of $3.0M does not, on completion, reach this value then the ER shall draft a suitable letter of

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explanation in lieu of Form 3 for the signature of the Chief Engineer.

With the implementation of the MPF on 1 December 2000, the Engineer shall at the commencement of the Contract arrange for the completion of the MPF Notification Form at Appendix 7.41 and fax it direct to the Senior Manager, (Industry Schemes), Mandatory Provident Fund Schemes Authority (MPFSA).

21.2 TECHNICAL AUDITS

21.2.1 Technical Audits on Works Contracts (Subsumed from WBTC No. 15/2002 and ETWB TCW No. 53/2002)

The Contract Advisory Unit of each works department should carry out, among other duties, technical audits on all works contracts, including term contracts and those contracts supervised by consultants, for which the department is responsible. The technical audits should be carried out at various stages of a contract for compliance with written policies, procedures and instructions; including administration of the contract, site records, measurements, payments, claims and the valuation of variations. Also, selected contract final accounts should be audited, including where possible, spot remeasurement checks against "as constructed" drawings.

Technical audits should follow procedures set out in the "Manual for Technical Audits on Works Contracts" (included in Appendix 7.39), which provides guidelines for a consistent approach for conducting audits and reporting the findings. The manual describes the audits at various stages of a contract and provides guidelines on the procedures and report formats. Checklists and standard pro-forma audit reports are also included. However, departments may impose additional requirements or amend the pro-forma audit reports to suit their particular needs.

The Contract Adviser of each works department should submit quarterly activity reports on technical audits on works contracts to the Head or Deputy Head of Department, or equivalent, with copies to DEVB. Such reports are to show the technical audits carried out during the previous quarter, the proportion of time spent on technical audits, and a programme for the next quarter. As far as possible, at least 50% of the Unit's combined staff time should be spent on technical audits on works contracts.

21.2.2 Independent Auditing for Prevention of Sub-standard Works in Public Works Construction (Subsumed from WBTC No. 4/2002)

Each department should have their own independent auditing system for prevention of sub-standard works. Independent technical audits should be carried out on a regular basis as work progresses and any malpractices identified should be sanctioned as appropriate to deter foul play in the future. The auditing system should be devised in accordance with the following principles:

(a) Audits should be carried out by auditors strictly independent of the concerned projects and site supervisory teams to be audited, and preferably by a dedicated team.

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(b) Auditors should be appointed by the Head or Deputy Head of Department, or equivalent, and adequately empowered to conduct the audit.

(c) Audits should be conducted on surprise/random basis. Priority should be given to strategic projects with significance.

(d) Audits should cover critical site activities of works contracts including testing of end products rather than documentary checks of records.

(e) Audits would be conducted in the presence and with the assistance of the concerned project and site supervisory teams.

(f) Testing, if required, should be carried out by Public Works Central/Regional Laboratories as far as possible (departments should consult and provide Civil Engineering and Development Department (CEDD) for the attention of the Chief Geotechnical Engineer/Standards and Testing with the testing requirements in advance so as to allow the Laboratory to plan for the necessary resources for the testing).

(g) Auditors should preferably possess the necessary auditing skills in addition to the general knowledge, experience and expertise relating to the activities to be audited.

As works departments operate differently with different nature and value of works, each department should decide on the staffing, frequency and procedures of the audits consistent with the above principles. The required testing should normally be funded by the project votes.

The PWL of CEDD may join the departmental audit team to conduct audits on site facilities and work practices related to compliance testing on construction materials as part of the audit for prevention of sub-standard works. Each department should send a list of projects to be audited for sub-standard works to PWL as soon as it is available. The PWL audit team would liaise with the departmental audit team to confirm which projects are to be audited and the date of audit.

21.2.3 Technical Audits on Consultancy Agreements (Subsumed from WBTC No. 9/2002)

Technical audits on consultancy agreements should be carried out by all works departments in accordance with the guidelines in the "Technical Audit Manual for Consultancy Agreements" (included in Appendix 7.40).

The auditing officers should be assigned by the Head or Deputy Head of Department, or equivalent. They should be at senior professional rank.

The auditing officers should prepare regular Consultancy Agreement Audit Activity Reports to the Head or Deputy Head of Department, or equivalent, with copies to DEVB. Such reports should be prepared quarterly or half-yearly depending on the number of audits carried out and planned. They should show the audits carried out

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against the original programme during the last reporting period and the programme for the next.

21.2.4 Reporting of Audit Findings (Subsumed from WBTC Nos. 4/2002, 9/2002 & 15/2002)

The technical audit reports (on works contracts/consultancy agreements or for prevention of sub-standard works) should be submitted to the Head or Deputy Head of Department, or equivalent, with copies to the relevant Division/Unit heads and CAS(W)7, DEVB. The Head or Deputy Head of Department, or equivalent, should determine the follow-up actions required and ensure their proper implementations. Audit reports on consultancy agreements may also be copied to the Chairman of the Architectural and Associated Consultants Selection Board or the Engineering and Associated Consultants Selection Board (EACSB), if considered necessary.

21.2.5 Implementation and Reporting of Follow-up Actions (Subsumed from WBTC Nos. 4/2002, 9/2002 & 15/2002)

Works departments should critically review the audit findings and take follow-up actions with a view to rectifying the non-compliance and avoiding recurrence. If repeated non-compliances are observed, the cases should be thoroughly investigated and appropriate measures should be taken to remedy any shortcoming identified.

For cases where defaulting parties are clearly identified, works departments should seriously consider establishing sanction against the defaulting parties, e.g. reflecting the cases in the contractors' or the consultants' performance reports, or taking appropriate disciplinary actions against the personnel involved, as the case may be. Appropriate sanctions can serve as deterrence to future foul play.

When audit findings identify areas for improvement necessitating changes of existing policies, such findings should be brought to the attention of DEVB by an officer at D2 level or above. If the areas for improvement are of common interest to other departments, the initiating department should keep other departments informed of the proposed improvements.

Works departments should submit review reports to DEVB annually on the technical audits carried out in each calendar year, reaching DEVB before the first working day in March of the following calendar year. The review reports should include, inter alia, a brief summary of the audits carried out, the conclusions of the annual review, common non-compliances identified and also the follow-up actions taken. If the follow-up actions have not yet been completed at the time of reporting, their programme and progress should also be provided. For cases where defaulting parties are clearly identified, the sanctions taken should also be included in the report. If no sanction has been taken for such cases, works departments should state in the report the reasons why not.

21.2.6 Audits by GEO on Tunnel Works

The GEO may audit the geotechnical design, risk assessment, site supervision plan and related documents and undertake site audits. The Engineer/Architect/Supervising Officer for the works contract shall make suitable arrangements, make available to the GEO during

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the site audits all records and other information related to the contract, and provide all assistance required by the GEO to facilitate these audits. See ETWB TCW No. 15/2005 for further details.

21.2.7 Audits by TMO/ Department on Tree Risk Assessment

To ensure that tree risk assessments have been properly and professionally carried out, department shall carry out internal audit on the tree risk assessments done. For details, please refer to the "Guideline for Auditing of Tree Risk Assessment for Tree Management Departments" in the Cyber Manual for Greening.

21.3 ASSIGNMENT OF CONTRACTORS' FINANCIAL BENEFIT (Subsumed from ETWB TCW No. 13/2000)

Heads of Departments are vested with the authority to approve at their discretion applications made by Contractors under GCC Clause 3 for assignment of the Contract.

The Contractor shall be required to give his reasons for making the application for an assignment of his financial benefit and to provide details of the proposal in order that it can be ascertained that such an application is justified. A contractor's application for an assignment of his financial benefit should normally be approved [see Note 1] regardless of his financial situation. However should the circumstances of the case warrant, the Head of Department may exercise his discretion in order to safeguard Government's interests. For example, if re-entry is already contemplated and, judging from the Contractor's performance, it is considered that the assignment is unlikely to result in a substantial improvement but simply defer the date of re-entry, then approval should not be given.

If the assignee asks for confirmation that written consent to assign has been given, the following paragraph should be included in the reply:

> **"This consent is given on the basis that no reliance has been placed on any information from the Employer nor have any representations or warranties been given by the Employer on the Assignor's financial status."**

A standard form of the Deed of Assignment of Contractor's Financial Benefits is shown at Appendix 7.48. Where approval to assign is given, the Contractor shall be required to use this standard form in its entirety. Should a contractor propose any amendment to the standard form, departments shall seek advice from LAD(W), DEVB.

Project officer's attention is drawn to Clause 7.1 of the standard form of the Deed of Assignment of Contractor's Financial Benefits, which stipulates that all monies payable by the Employer to the Assignor pursuant to the Contract shall, during the subsistence of this Deed of Assignment, be paid by the Employer direct to the Assignee. Should a contractor propose any method of payment other than that specified in Clause 7.1, departments shall seek advice from LAD(W), DEVB.

[Note 1: As an interim measure to streamline the process, in-principle consent is granted, if applicable, for the assignment of the Contract upon issuance of the Letter of

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Acceptance. Also see PAH Appendix 6.17, SDEV's memos ref. (0348H-01) in DEVB(W) 510/33/02 dated 3.1.2020, (03969) in DEVB(W) 510/33/02 dated 12.5.2021 and ( ) in DEVB(W) 510/33/02 dated 10.3.2022.]

21.4 MEDIATION/ADJUDICATION/ARBITRATION IN CONSTRUCTION DISPUTES

21.4.1 Capital works contracts and term contracts not adopting voluntary adjudication

In accordance with GCC Clause 86/89, any contractual dispute arising between the Employer and the Contractor shall be referred to and settled by the Engineer who shall state his decision in writing and notify both the Employer and the Contractor. Such decision shall be final and binding upon the Contractor and the Employer unless either of them requires the matter to be referred to mediation or arbitration as provided in GCC Clause 86/89.

Mediation shall be conducted in accordance with "The Government of the Hong Kong Special Administrative Region Construction Mediation Rules" (1999 Edition) (the Rules) given in Appendix A of WBTC No. 4/99 and ETWB TCW No. 4/99A, or any modification thereof being in force at the date of the Contractor's or the Employer's request of the matter be referred to mediation. The prevailing Administrative Guidelines given in Appendix B of WBTC No. 4/99 shall be followed as far as practicable. Reference should also be made to the "Guidelines for Claims Management and Conduct of Negotiations" (December 1997), which should be obtained from Departmental Contract Advisor upon requests by project teams on a need basis, for guidance on the preparation for and conduct of negotiation within the mediation process.

If the matter cannot be resolved by mediation, or if either the Employer or the Contractor do not wish the matter to be referred to mediation, then either party may, within the time specified in GCC Clause 86/89, require that the matter be referred to arbitration in accordance with and subject to the provisions of the Arbitration Ordinance (Cap. 609). SCC for adoption in capital works contracts and term contracts (not adopting voluntary adjudication) to the Arbitration Ordinance (Cap. 609) are provided in Appendices 7.56, 7.56A and 7.57.

21.4.2 Capital works contracts adopting voluntary adjudication

For public works contracts where provisions for voluntary adjudication are incorporated, adjudication is available as an alternative dispute resolution option for adoption on a voluntary basis. SCC for adoption in capital works contracts adopting voluntary adjudication to the Arbitration Ordinance (Cap. 609) are provided in Appendix 7.55. The decision whether to initiate or agree to participate in an adjudication is dependent on the particular circumstances of the dispute under consideration. Due consideration should be given to various factors by the Works Department administering the contract, including but not limited to the type of the dispute, the amount of the sum in dispute, the timing of the Contractor's request for adjudication, whether there are other adjudications pending under the same Contract, the prospects for successfully defending or pursuing the claim and staff resources. In general terms, adjudication is best suited to straightforward claims which do not

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involve complex or disputed facts or technical issues or expert evidence requiring a lengthy hearing. The Works Departments should consult with LAD(W) on these issues before the decision is made on whether or not to adjudicate and should obtain advice and assistance from LAD(W) for the conduct of the proceedings. If either the Employer or the Contractor is dissatisfied with the adjudicator's decision, either the Employer or the Contractor may within 90 days of the date of the adjudicator's decision require that the dispute be referred to arbitration. Upon receipt of the adjudicator's decision, the Works Department should critically review the adjudicator's decision and timely consult with LAD(W) before the decision is made on whether or not to refer the dispute to arbitration.

For record purposes, works departments shall submit adjudication details to the DEVB in accordance with the prescribed forms at Appendix 7.58 and Appendix 7.59.

21.4.3 Disclosure of confidential information to the Public Accounts Committee

A SCC for revising GCC Clause 8 is provided in ETWB TCW No. 29/2003 to allow Government to disclose confidential information under certain conditions to the Public Accounts Committee of the Legislative Council concerning matters relating to settlement agreements or the outcome of the arbitration or any other means of resolution of dispute.

21.5 DISCOVERY OF ANTIQUES OR UNUSUAL/SUSPICIOUS OBJECTS (Subsumed from PWDTC No. 14/73; Ref.: SETW's memo ref. (01AVE-01-2) in ETWB(W) 515/84/02 dated 7.12.2006)

When any antique or article of value is discovered during the execution of public works, the following procedures should be taken:

(a) For in-house contracts, the resident site staff (RSS) should report to the Engineer in charge of the contract who should then report the matter to the Head of his office and simultaneously contact the Executive Secretary (Antiquities and Monuments), Antiquities and Monuments Office of the Leisure and Cultural Services Department (AMO of LCSD). Upon receiving such report, staff of the AMO will conduct inspection at discovery site as soon as possible.

(b) Where it is not possible to contact the AMO immediately, the Engineer should, at his discretion, decide on the measures to be taken and then confirm them with the AMO as early as possible.

(c) For consultant-managed contracts, the RSS should adopt the same procedure as for in-house contracts and the Engineer should report the discovery to the Employer without delay.

(d) The Contractor should also be instructed to carry out all necessary measures for protection or removal, if any, as requested by the appropriate authorities.

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In the event that unusual or suspicious objects are found on the Site, it is important that the RSS and the Contractor pay particular attention and take care of these objects and, if in doubt, report immediately to the Police and ER for direction.

21.6 USE OF EXPLOSIVES

21.6.1 General

For projects that involve blasting for rock excavation, the Contractor shall obtain a Blasting Permit from the Commissioner of Mines under the Cap. 295 Dangerous Goods Ordinance (DGO), prior to commencement of the blasting works. The Contractor shall provide a Method Statement when applying for a Blasting Permit. The Method Statement should incorporate all the requirements defined in the Blasting Assessment Report prepared by the Consultants during the design stage, and shall include:

(a) the method and sequence of the blasting work;

(b) details of the proposed blast design;

(c) procedures for review of the blast design based on information from drilling of blast holes and inspection of the blast location by a geologist;

(d) preventive, protective and precautionary measures;

(e) monitoring plans;

(f) contingency plans; and

(g) the organisation of the site personnel and their responsibilities.

The Contractor may make revisions to the Blasting Assessment Report prepared at the design stage to suit their method of work or the site conditions, provided that such revisions are endorsed by the project office or its Consultants and accepted by the GEO.

Where rock blasting is to be carried out under a flight path and flying rock may cause a hazard to aircraft (including helicopters), the Director of Civil Aviation shall be informed accordingly.

The Blasting Permit will not be issued until the Blasting Assessment and Method Statement have been found satisfactory and the site is ready for blasting with all the site preparatory works (e.g. construction of blasting cages, vertical screens, blast doors, monitoring stations, site magazine, designated unloading area, slope improvement works required etc.) completed to the required standards. The time required for processing a Blasting Permit application depends on the quality of the Contractor's submission and the progress of the site preparatory works. In cases where blasting works need to proceed urgently, the project office should liaise closely with the Mines Division of the GEO. Mines Division will facilitate the processing of applications, as far as possible, provided that safety and security in the transport, storage and use of explosives is not compromised.

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21.6.2 Reporting

The details of the reporting system required by a Contract are normally stated in the specifications and such a system should be implemented and monitored accordingly. For each blast, the following data, additional to that required by the specifications should be recorded:

(a) name(s) and Mine Blasting Certificate number(s) of shotfirer(s);

(b) location and identification number of the blast;

(c) date and time of the blast;

(d) quantities and types of explosives and detonators delivered;

(e) quantities and types of explosives and detonators destroyed on site, or returned to Government Explosives Depot or site magazine;

(f) blasting details including numbers and pattern of holes drilled, depth, diameter and inclination of the holes, initiating system and sequence, actual charges per hole, rock face orientation and throw direction;

(g) approximate volume of rock or length of tunnel blasted;

(h) details of any vibration and air-overpressure readings taken;

(i) records of implementation of any evacuation of premises and/or road closure prior to the blast; and

(j) records of inspection of the sensitive receivers before and after the blast by the Contractor's Engineering Geologist or Geotechnical Engineer when required under the Contract.

For any adjacent sensitive receivers (e.g. structure, slope, building, utility, facility etc.) that may be prone to damage by vibration from blasting under the Contract, consideration should be given to taking appropriate vibration monitoring readings even if similar monitoring measures are not stated in the specifications. The Contractor should be instructed to take the necessary readings together with readings from other normally occurring vibrations for comparison purposes, e.g. vibration due to heavy road vehicles.

21.6.3 Resident Explosive Supervisors

Resident Explosive Supervisors (RES) belong to the Resident Site Staff (RSS) team. The project office shall liaise with Mines Division in the project planning stage to work out the explosives delivery logistics and the blasting programme so that any need for RES can be ascertained. The number of RES in the RSS team is dependent on the number of daily blasts required and the explosives delivery arrangement agreed with Mines Division. The site supervisory staff performing the duties of RES should be registered with the Competent Supervisor and their details sent to Mines Division for record. The project office or its Consultant should also consult Mines Division regarding the required training and experience, and the duties of the RES.

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When required, RES should be deployed to accompany and keep watch over the explosives to be transported or handled by the contractor until all the explosives are stored in a site magazine, consumed or destroyed at the blasting site. This is to enhance security by preventing explosives being stolen, lost or otherwise mislaid.

In general, the RES duties should include the following:

(a) check that the amount of explosives drawn from the Government Explosives Depot or site magazine complies with the explosives requisition documents;

(b) ensure that all explosives drawn are delivered to either the project site magazine or the blast locations and loaded into the blast holes, and that explosives are not stolen, lost or otherwise mislaid (see (d) below for unused explosives);

(c) check that the explosives drawn are loaded and connected by the shotfirer according to the shotfirer's Charging Details as shown in Appendix 7.42; and

(d) witness the destruction of any unused explosives by the shotfirer on site, or the return of unused explosives to the site magazine.

21.6.4 Additional Site Supervision Requirements for Blasting Works

The supervision requirements for projects involving rock blasting are in addition to the qualified site supervision package of Category I, II and III supervisors as defined in ETWB TCW No. 29/2002, 29/2002A and Appendix 7.47 of the PAH. General requirements relating to the supervision of blasting works are given in paragraph 4.3.

The site supervision duties of the Competent Supervisor for blasting works should include:

(a) checking the Contractor's Blasting Method Statement and the Contractor's Blasting Assessment;

(b) checking (including both document and site checks) for each blast, that the Contractor's blast design and its implementation, including the installation of protective, precautionary, preventive measures, comply with the Blasting Permit requirements;

(c) verifying on site that the ground conditions and geology are as stated or assumed in the Blasting Assessment, and that the preventive, protective and precautionary measures as given in the Method Statement are adequate for the actual site conditions;

(d) ensuring that the preventive measures (e.g. slope upgrading works), when required, have been properly carried out prior to commencement of the blasting works, and that the protective and precautionary measures are carried out in accordance with the Method Statement prior to each blast;

(e) monitoring regularly the condition of all sensitive receivers and carrying out

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inspections and reviews before and after each blast;

(f) supervising directly the work undertaken by the RES and Category III supervisors for blasting works; and

(g) preparing monthly reports with records of the condition of the site, sensitive receivers, adjacent ground, structures and services, etc.

The additional duties of a Category III supervisor for blasting works should include the following particular items:

(a) checking the locations and depths of all the blast holes for each blast;

(b) inspecting the construction of preventive works, if required, for the sensitive receivers;

(c) inspecting the provision and installation of all necessary protective and precautionary measures prior to each blast, in accordance with the blast design;

(d) monitoring the site operations and working methods to ensure that they meet the safety requirements set out in the Blasting Permit;

(e) inspecting the condition of all sensitive receivers before and after each blast;

(f) checking the adequacy of monitoring of sensitive receivers before and after blasting; and

(g) reporting the findings of the above checks and inspections to the Competent Supervisor before approval is given to go ahead with the blast.

21.7 PAYMENTS OF WAGES

Should it come to the attention of any staff on the Site that a group of workers may not have been paid or not paid correctly, then the matter should be relayed to the ER/Engineer. It is recognised that this information may only be rumour or hearsay but the ER/Engineer should consider the matter and, if deemed necessary, make prompt referrals to the Labour Relations Division of LD in respect of suspected non-payment of wages to workers. A standard proforma for reporting of incidents is shown in Appendix 7.43.

In July 2008, SDEV promulgated a set of contract measures to prevent non-payment of wages for implementation in all capital works contracts (other than maintenance contracts and E&M supply and installation contracts). The measures include installing smart card systems at sites to keep attendance records; requiring written employment contracts for site personnel and requiring employment of Labour Relations Officers (LRO (with title currently unified as ACO(LR))) to handle employment matters and to monitor payment of wages and Mandatory Provident Fund (MPF) contribution. Moreover, there are provisions for reimbursement of Contractor's contribution to the MPF for his site personnel. The requirement for reimbursement of MPF was ceased on 1 January 2017 according to SDEV's memo ref. (02VKU-01-3) in

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DEVB(W) 510/17/01 dated 16.12.2016. For new contracts which tenders will be invited on or after 1 January 2017, the corresponding contract terms as highlighted in Annex A to the said SDEV's memo for reimbursement of MPF are no longer required and shall be deleted.

It is an offence under the Employment Ordinance for wages which become due on the expiry of the last day of the wage period to be paid later than 7 days thereafter. Whilst it is LD to take enforcement action against non-complying employers, works departments should take steps to prevent late payment of wages from happening on public works sites, in particular, under the contracts which have adopted the measures to prevent non-payment of wages to site personnel. SDEV has announced in the memo ref. (021QF-01-3) in DEVB(W)510/17/01 dated 26.6.2009 the measures in respect of monitoring of the situation of late payment of wages, compilation of statistics, referral of cases of late payment to LD and issue of advisory letters to the contractor, which should be adopted in public works contracts. For guidelines on wage payment monitoring and reimbursement of Contractor's and Sub-Contractors' contributions to the MPF for their site personnel and revised SCC on reimbursement of MPF Contributions to Subcontractors, please refer to DEVB's memo ref. (02FYE-01-11) in DEVB(W) 510/17/01 dated 27.7.2012 and ref. (02H25-01-1) in DEVB(W) 510/17/01 dated 8.11.2012.

21.8 OPENING CEREMONIES FOR PUBLIC WORKS PROJECTS

The procedures to be followed for opening ceremonies for projects under the Works group of departments are given in WBTC No. 3/89.

For all capital works contracts with an estimated value of greening works exceeding $10 million, the project office should allow for community planting close to or after the completion of projects. Reference should be made to DEVB TCW No.5/2017.

In addition, all new structures (e.g. buildings, bridges, flyovers, roads, piers, treatment works, workshops, etc.), which are to be officially opened by guests, should incorporate a plaque commemorating the name of the person opening the structure and the office responsible for its construction. The works department should be responsible for preparing the commemorative plaque and sufficient time should be allowed for its manufacturing and installation. When ordering, details to be incorporated on the plaque should be given together with a plan showing the location and an elevated view of the structure. A similar plaque should also be prepared for buildings and other structures not officially opened by guests and for those designed and constructed by consultants. Sample commemorative plaques are shown in Appendix 7.44.

The following is a sample checklist for preparing and arranging the opening ceremony but is not meant to be exhaustive. The department or the project office concerned should compile its own checklist to suit the particulars of the project:

(a) Submit details of the opening ceremony to and seek approval from SDEV, including but not limited to:
  (i) Date, time and location of the event;
  (ii) Person(s) officiating at the opening ceremony; and
  (iii) Tentative invitation/guest list.

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(b) Seek approval of funds from the Head of Department, via the Office Head or Branch Head as appropriate. This should be in the form of a memo itemising the various costs for the opening ceremony, such as ceremony stage, photo display panels, commemorative plaques, refreshments and brochures etc.

(c) Finalise and confirm date, time and person(s) officiating at the opening ceremony. It may be necessary to check with the Director of Protocol as to whether the proposed schedule and guests would clash with any other celebration events.

(d) Prepare guest list in collaboration with SDEV, District Office(s) and other appropriate departments.

(e) Prepare and send invitation cards, normally in the name of the Head of Department. A directional map should be shown on the reverse of the invitation card and a sample invitation card is shown in Appendix 7.45.

(f) Arrange publicity such as:
  (i) Brochure including order of proceedings; and
  (ii) Press release, radio and television broadcasts, pamphlet, announcing the event which should include any special traffic arrangement.

(g) Prepare draft speeches for the host and person(s) officiating at the ceremony.

(h) Ordering commemorative plaque and arrange its installation.

(i) Arrange refreshments.

(j) Arrange transport, particularly for V.I.P. and regarding office cars (an officer should be designated to control movement of cars).

(k) Organise any other transport and traffic matters that deem necessary, e.g. car parking arrangement, car parking labels, temporary traffic signs or temporary road markings.

(l) Prepare banners if required.

(m) Arrange dais, chairs and other furniture that may be required. Assistance from Government Logistics Department may be necessary.

(n) Organise appropriate floral arrangements if required.

(o) Prepare run-down and full details of the ceremony, preferably with appropriate drawings for reference. A contingency plan to account for bad weather should also be prepared.

(p) Arrange public addressing devices which should include a back-up system for contingency.

(q) Prepare seating plan for guests. The Director of Protocol should be consulted if necessary.

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(r) Prepare ribbons, scissors and/or curtain for the commemorative plaque if necessary.

(s) Appoint a Master of Ceremonies for the event.

(t) Arrange ushers for the guests if necessary.

(u) Conduct rehearsal(s) for the event if necessary.

21.9 QUALITY ASSURANCE FOR STRUCTURAL CONCRETE

Guidelines prepared by the SCCT to assist the Engineer in vetting quality systems for production and supply of structural concrete are given in Appendix B of ETWB TCW No. 57/2002.

21.10 NOVATION

According to Sub-section 6.6 of the Contractor Management Handbook (CMH), application for substitution will be considered/allowed to cater for genuine organizational restructuring to suit the business needs of contractors whilst upholding government procurement principle of open and fair competition. Subject to the conditions and procedural requirements as set out in Sub-section 6.6 of CMH, a contractor may submit an application for substitution which, if approved, will permit another company (the "new company") to inherit the company listing status, records of company experience, past performance, convictions, accidents and regulating actions of the company being substituted (the "outgoing company").

According to Sub-section 6.7 of CMH, apart from the substitution process mentioned above, a contractor may apply to transfer his benefits and obligations under a contract with the Government to a third party only if he is being wound up, will no longer be in existence, or is unable to complete the contract. Under such circumstances, the Government may, on balance and in the interest of the Government and public fund, agree to a novation instead of terminating the contract.

The actions required to effect novation are stipulated in Sub-section 6.8 of CMH. For public works contracts, a novation agreement is a tripartite agreement entered into by the Government, the Contractor and a third party, whereby the Contractor is released from and the third party assumes all the Contractor's obligations and rights under the Contract(s). The two standard forms of novation agreement are shown at Appendices 6C & 6D of CMH and any proposed change to the standard forms must be consulted with LAD(W), DEVB.

21.11 TREE PRESERVATION

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The need for tree preservation and tree felling/transplanting to be included in the Contract should have been identified during the planning and design stage with necessary approvals obtained. Reference should be made to DEVB TCW No. 4/2020, DEVB TCW No. 5/2020 for Old and Valuable Tree (OVT), "Guideline on Pavement Renovation Works and Tree Stability", "Management Guidelines for Stonewall Trees", "Guidelines on Tree Transplanting", "Management Guidelines for Mature Trees" and "Guidelines on Tree Preservation during Development" promulgated by DEVB. However, new tree felling/transplanting may be required during the execution of the Contract to facilitate the progress of Works or to suit conditions on the Site. In such case, the necessary approval shall be obtained from the Tree Works Vetting Panel (TWVP) of the project department in accordance with DEVB TCW No. 4/2020. It should nonetheless be borne in mind that all trees should be preserved as far as practicable. Factors such as site characteristics, project requirement, cost-effectiveness and merit of a compensatory planting proposal should be duly considered. It is necessary to ensure that no trees are unnecessarily felled or pruned. The project department should ensure that trees worthy of and suitable for preservation are identified in the planning and feasibility stage and properly preserved through careful and proper planning, design, implementation of protective measures, site monitoring, and post-construction maintenance. Due consideration should be given to preserving the existing trees that are healthy and structurally sound, and removal (i.e. transplanting or felling) should be considered only if preservation is impractical. The proposals to retain or transplant trees should reflect a balancing act taking into consideration the intrinsic tree factors, environmental factors, cultural factors, functional requirements of the project, engineering considerations and financial considerations. In the case of tree transplanting, sufficient time, normally not less than 12 months, should be allowed for sourcing of receptor location(s), identification of long-term maintenance party, consultation, obtaining approval and preparation of transplanting work.

The planning and design of a project must take into account the need to preserve and avoid any damage to tree(s) within and adjacent to the site. In addition, precautionary measures should be included in the design and contractual provisions to preserve and protect the trees during the construction stage. Details of the tree protection zone, tree inspections, monitoring, maintenance and other measures shall be in accordance with DEVB TCW No. 4/2020. If the construction works encroach upon the protection zone of an OVT in the register, the project office shall obtain the approval from the relevant TWVP. Details of the tree protection zone, tree inspections, protection, maintenance and other measures for OVT(s) shall be in accordance with DEVB TCW No. 5/2020.

The Contractor is required to identify any existing trees, including OVTs, on the Site. For preservation and protection of existing trees and, where required, the registered trees, reference should be made to the detailed methods, procedures and requirements as stated in DEVB TCW Nos. 4/2020 and 5/2020, General Specification for Civil Engineering Works (Section 26 on 'Preservation and Protection of Trees') and the Cyber Manual for Greening (http://devb.host.ccgo.hksarg/en/contactus/index.html). Where there are provisions under the Contract, the Contractor may also be required to employ a suitably qualified and experienced independent tree specialist to carry out the duties as stipulated in the relevant SCC.

For tree surgery work involving extensive crown, limb or root pruning that significantly affect the tree form, the justification, extent and supervision requirements of pruning works should be approved by the Senior Landscape Architect (SLA) or Landscape

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Architect (LA) of the works department for contracts managed by in-house staff, or the project director of the landscape consultants for consultant-managed contracts. Detailed pruning proposal and method statements submitted by contractor should be approved by the Engineer before implementation, and monitored throughout the duration of the contract. In performing tree pruning works, the contractor shall follow the 'General Guidelines on Tree Pruning' and 'Dos and Don'ts in Pruning' which are available at the Cyber Manual for Greening. The Contractor shall also follow the planting and management guidelines for greening on the tree care during construction and proper planting practices in the Cyber Manual for Greening.

Where incidents of unauthorized removal or damage of trees occur in a Government project, the project office should investigate and take necessary regulating actions should the contractor be found responsible for the incidents. The contractor's performance on tree protection should be fully reflected in the report on the contractor's performance. In addition, any incidents of unauthorized removal or damage of trees within unallocated or allocated Government land should be promptly reported to Agriculture, Fisheries and Conservation Department (AFCD) or the allocatee department respectively for investigation and necessary prosecution actions under the relevant legislation. The report should also be copied to the Lands D for information.

For any incident of unauthorized tree removal or damage of trees that have attracted media attention and/or public scrutiny within unleased and unallocated government land or allocated government land or private land, AFCD or the allocate department or Lands D respectively shall alert Greening, Landscape and Tree Management Section of DEVB (GLTMS) immediately and submit an incident report to GLTMS within five calendar days from the date of the incident. The incident report should be in the form shown in Appendix F of DEVB TCW No. 4/2020 and should set out the background of the incident, location, number and types of trees affected (if known), course of actions taken and follow-up actions required, where appropriate.

21.11.1 Proper Tree Preservation at Construction Works Sites

To enhance tree preservation at construction works sites, works departments should ensure the following actions are undertaken throughout the construction period:

(a) strengthen the knowledge and awareness of proper tree preservation and pruning works to all levels of project team members and contractors/consultants, including managerial, supervisory and frontline staff;

(b) bring to the attention of contractors/sub-contractors on a regular basis about the 'General Guidelines on Tree Pruning', "Dos and Don'ts in Pruning", guidelines on tree planting and other circulars and guidelines on tree works issued by the Works Branch;

(c) ensure contractors employ competent personnel in implementing all tree works on site, in particular tree preservation, pruning and transplanting work;

(d) remind contractors/sub-contractors about the procedural requirements for tree works as stipulated in the contracts, the General Specification for

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Civil Engineering Works and General Specification for Building in the first site progress meeting and subsequently at regular interval; and

(e) step up site supervision of all tree works on site including the tree preservation, pruning and transplanting work, preferably by more senior ranking officers.

Government circulars and guidelines concerning tree planting, preservation, pruning and transplanting are available at Cyber Manual for Greening (http://devb.host.ccgo.hksarg/en/contactus/index.html).

21.11.2 Tree Risk Assessment

To better protect public safety, tree risk assessment and mitigation measures should be undertaken for trees under their management in accordance with "Guidelines for Tree Risk Assessment & Management Arrangement on an Area Basis and on a Tree Basis" promulgated by DEVB.

21.12 IMPORTATION OF SAND FROM CHINESE MAINLAND BY BARGES

For contracts where importation of sand from Chinese Mainland by barges is required, the procedures as laid down in WBTC Nos. 10/95 & 10/95A shall be followed, particularly on the need to carry on board the original versions of a list of permits that are required by the appropriate authorities. The list of permit may change from time to time and the Engineer should remind the Contractor that the latest list is kept.

21.13 ELECTRONIC DRAWINGS

If contract drawings are available in electronic form, the Contractor may ask the Engineer for additional copies of such electronic drawings for use under the Contract. Charges and further details regarding the supply of electronic drawings are given in Section 8.4 of PAH Chapter 5.

21.14 MANAGEMENT OF SUB-CONTRACTORS BY CONTRACTORS

21.14.1 Sub-contractor Management Plan

For contract that requires the submission of Sub-contractor Management Plans (SMP), the Contractor shall, within 30 days of the acceptance of the tender, submit a detailed version of the SMP in the form and contents as prescribed in the Contract. Thereafter, the Contractor shall update and submit the SMP on a quarterly basis. Should there be any major changes in the Contractor's sub-contracting arrangement during the period before the next quarterly reporting, the Contractor should also notify the Engineer/ER in writing immediately. Upon receipt of the SMP, the Engineer/ER may offer his comments and notify the Contractor accordingly. No approval of the SMP is required from the Engineer/ER.

A contractor's performance in complying with the provisions in the SCC on

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sub-contracting and submission of the SMP will be assessed as pursuant to Section 4 of the CMH. Regulating actions shall be taken against the contractor in accordance with Section 5 of the CMH for poor performance in complying with the above provisions, but the guidelines for monitoring of performance given in Sub-section 5.4 of the CMH should be followed prior to making a recommendation for suspension from tendering. (Subsumed from ETWB TCW No. 47/2002)

If a contractor fails to update and submit the SMP to show his latest changes to the sub-contracting arrangement within one month of the quarterly reporting as required in the SCC, the procuring department should warn the contractor in writing and urge him to submit the updated SMP, and copy the warning letter to the SDEV (Attention: PAS(W)4). (Subsumed from ETWB TCW No. 47/2002)

If, after expiry of the one-month period as stated in paragraph 3 above, the contractor has failed to comply with or submit the updated SMP, the procuring department should notify the SDEV (Attention: PAS(W)4) with a copy to the Chairman of the relevant Managing Review Committee requesting regulating actions against the contractor in accordance with Section 5 of the CMH. Upon receipt of the procuring department's notice, the SDEV will give a further opportunity to the contractor to present his case before deciding whether to immediately suspend the contractor from tendering. Copies of all correspondence will be sent to the procuring department and the Managing Department. Uplifting of the suspension will only be considered when the contractor has submitted the updated SMP showing his latest sub-contracting arrangement. (Subsumed from ETWB TCW No. 47/2002)

Apart from the SMP, the Contractor is also required, normally in the form of a SCC, to ensure that his sub-contractor would not further sub-contract the whole of the works sub-contracted to them and that his own staff would be employed to manage and supervise his sub-contractors.

In 2005, the then ETWB conducted a review on the status and effectiveness of the implementation of SMPs for contracts reported to have wages arrears problems. It is found that the measures taken in response to the SMP requirements on payments and control of wages arrears differ substantially from one contractor to another. The standard of vetting the SMP adopted by individual departments also varies to great extent. To facilitate project officers in vetting the SMP proposals submitted by the contractor, the then ETWB drew up the following list of examples of good practice in the SMP consolidated from the review exercise (Ref.: SETW's memo ref. (00VB3-01-10) in ETWB(PS) 109/11/1 dated 15.11.2005):

(1) General

(a) The Contractor shall include all sub-contractors KNOWN to him in the SMP. (SMP requirement)

(b) The Contractor shall ensure that their sub-contractors report on the further subletting of their works (to other contractors) for including those details in the SMP. (SMP requirement)

(c) The Contractor will require its subcontractors to submit monthly updates for (b) above for his updating of the SMP.

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(d) Changes to the subcontracting arrangement will be discussed at monthly progress meetings with the Architects/Engineers to ensure that both the RSS and the Contractor's own site supervision team are well informed.

(2) Measures for monitoring early industrial dispute problems (SMP Requirements)

(a) Publicity
  (i) The Contractor will put up posters issued by LD and distribute LD's leaflets on the site to ensure all workers of subcontractors understand their rights and responsibilities.
  (ii) The Contractor will request and encourage all workers of subcontractors to report on any wages in arrears for over 7 days.

(b) Site surveillance
  (i) The Contractor will set up an industrial dispute hotline so that workers of subcontractors can report to a designated management staff on such disputes.
  (ii) The Contractor will set up a lockable suggestion box for workers to report their wages arrears problems privately and confidentially.
  (iii) The Contractor will remind workers at least once a week during the pre-work exercise to report on any wages arrears problems.
  (iv) The Contractor will remind workers of the requirements of submitting declarations of no "unsettled salary" through their employers and carry out random check on workers to verify the declarations received.
  (v) The Contractor will designate site foremen to collect intelligence from workers for advance warnings over potential wages arrears problems.

(c) Evidence of wages received by workers
  (i) The Contractor will require his sub-contractors to submit evidence of wages received by their workers together with the workers' declarations of no "unsettled salary" for the previous month when making their payment applications.
  (ii) The declaration forms in (i) above should also be submitted for any months the sub-contractors concerned do not apply for any payment.
  (iii) Declaration forms should be in the language known to the workers. The form should also be designed to take into account of the possibility of workers receiving dated cheque so that monitoring and if necessary, follow-up action can be made.

(d) Follow-up action
  (i) Once a suspected case of wages arrears is established, the Contractor will appoint a senior management staff to investigate the incident and alert the Engineer/Architect without delay.

(3) Measures for handling complaints from workers (SMP Requirements)

(a) Upon the receipt of a complaint, the Contractor's designated investigating staff will first make an attempt to resolve it as appropriate with the relevant subcontractor and workers. Payment records, declaration of receipt of wages and site attendance records should be retrieved for investigation.

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(b) Where appropriate, the investigating staff will attempt to mediate the complaint for an agreement between the subcontractor concerned and his workers. If necessary, he should witness and record any payments made to settle the case.

(c) If agreement cannot be made, the investigating staff will seek assistance from the LD to take over the mediation of the complaint.

(d) The investigation staff will at all times co-operate with LD for earlier actions in handling the complaint.

(e) The investigating staff will keep the Architect/Engineer informed of the development of the complaint.

(f) The Contractor will also report on the monthly progress report whether wages arrears dispute is identified on site.

(4) Measures for maintaining daily attendance records of all workers on the site. (SMP Requirements)

(a) System in place
  (i) A smart card, site pass or logbook system should be implemented under the supervision of a designated staff. Workers should be required to log in at the normal place of assembly or a site entrance.
  (ii) Names and details of all workers, their employers and the trades in which they are employed will be recorded and kept on the site.
  (iii) Security guards stationed at the entrance will be responsible for managing workers' in and out discipline.

(b) Counter-check mechanism
  (i) Sub-contractors will be required to submit daily attendance records (with names) of their workers for checking against the site access system's records by a designated staff.
  (ii) A designated senior staff will review the attendance record periodically to identify if there is any unreported further subcontracting or changes in subcontracting arrangement.

(5) Ensuring timely payment to lower-tier subcontractors (SMP Requirements)

(a) The Contractor will require subcontractors to submit declarations stating that they have duly paid their subcontractors at a lower tier, together with copies of the relevant evidence of payment, such as receipts.

(b) The Contractor will require their subcontractors to impose the same obligation as (a) on their subcontractors at a lower tier so that it is filtered down to subcontractors at all levels.

(c) The Contractor will appoint a designated staff to encourage subcontractors at all levels to report on any overdue payments.

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While the specific measures under each category cited in the above list are mere examples and might not be applicable to all contracts, project staff should exercise their judgement in making reference to them. On the other hand, the measures proposed by the contractors as part of their SMP for monitoring individual disputes problems should fall broadly within the four categories of heading identified in the good practices, i.e. publicity, site surveillance, evidence of wages received by workers and follow-up actions. Engineer/ER should ensure that all these elements are present when checking/ reviewing SMPs.

In December 2008, DEVB promulgated the following enhancement measures to improve the enforcement of the SMP (Ref.: SDEV's memo ref. DEVB(W) 109/11/01 Pt. 9 dated 19.12.2008). These enhancement measures should be implemented in all public works contracts to be tendered on or after 1 February 2009.

(a) Payment for Sub-contractor Management Plan

To address the quality issues, separate BQ items have been introduced for submission and updating of SMP.

(b) Contractual provisions for empowerment

To empower the Engineer to obtain documentary proof from contractors, contract provisions have been introduced to require the contractor, upon request by the Engineer, to submit relevant documents.

(c) Standard checklist

To assist project officers in vetting SMP submissions and conducting site compliance checks, a standard checklist has been designed. The checklist is given in Appendix 7.49.

(d) Regular internal audit

To strengthen the monitoring of SMP submissions, the Technical Audit procedures in Appendix 7.39 have been revised to include checking of SMP compliance.

21.14.2 Engagement of Sub-contractors registered under the Sub-contractor Registration Scheme (Subsumed from ETWB TCW No. 13/2004 & SDEV's memo ref. (02KJ8-01-4) in DEVB(W) 510/94/02 dated 22.7.2013)

The contractors of all capital works and maintenance works contracts with tenders invited on or after 15 August 2004 are required to only employ sub-contractors (whether nominated, specialist or domestic) registered under the respective trades available in the Primary Register of the Voluntary Sub-contractor Registration Scheme (VSRS) introduced by the Provisional Construction Industry Co-ordination Board (PCICB). The CIC took over the management of the VSRS in January 2010. CIC has completed a review of the VSRS and launched Stage 2 of the VSRS on 1 January 2013. Major enhancements include incorporation in the scheme a new entry requirement for registration on the Primary Register to facilitate new entrants to the subcontracting industry; strengthened regulatory action against convictions of offences under the

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Prevention of Bribery Ordinance, Employment Ordinance (in relation to payment of wages), Mandatory Provident Fund Schemes Ordinance, safety related ordinances and Immigration Ordinance; and refinement of operational details where appropriate to improve efficiency of the management of the scheme. The VSRS was also renamed as Subcontractor Registration Scheme ("SRS"). Details of the SRS can be found in the Rules and Procedures which latest version is available at the following website of CIC:http://www.cic.hk. In end 2018, the CIC completed a review of the SRS and subsequently proposed to rename the SRS as the Registered Specialist Trade Contractors Scheme (RSTCS) with a couple of enhancements. Please refer to paragraph 21.14.3 for details.

All sub-contractors registered under VSRS have automatically become Registered Sub-contractors under the SRS (hereinafter referred to as "RSTCS" with effect from 1 April 2019) and no application is required. They are governed by the RSTCS and subject to the Rules and Procedures as aforementioned.

Where the contractor is to sub-contract/ sub-let part of the Works involving trades available under the Primary Register of the RSTCS, he shall engage all sub-contractors (whether nominated, specialist or domestic), as stated in his latest updated submission of the SMP, who are registered under the relevant trades in the Primary Register of the RSTCS. Should the sub-contractors further sub-contract (irrespective of any tier) any part of the part of the Works sub-contracted to them involving trades available under the Primary Register of the RSTCS, the contractor shall ensure that all sub-contractors (irrespective of any tier) as stated in the Contractor's latest updated submission of the SMP are registered under the relevant trades in the Primary Register of the RSTCS.

Should those contractors on DEVB's List of Approved Contractors for Public Works and List of Approved Suppliers of Materials and Specialist Contractors for Public Works be engaged as sub-contractors (whether nominated, specialist or domestic) or their further sub-contractors in a public works contract, where in such cases if part of the Works involving trades available under the Primary Register of the RSTCS, they are still required to register from the respective trades under the Primary Register of the RSTCS.

To allow greater flexibility for the contractor's planning of his sub-contracting at early stage, it is acceptable to allow the sub-contractors (whether nominated, specialist or domestic) and their further sub-contractors proposed in the latest updated SMP submission by the contractor to complete their registration under the RSTCS before the commencement of the works under the relevant sub-contracts and further sub-contracts respectively. For the avoidance of doubt, when a sub-contractor or further sub-contractor is suspended or in the process of an appeal against his suspension from registration under the Primary Register of the RSTCS, he is still considered not having complied with the above requirements for engagement of sub-contractors unless the suspension is lifted before the commencement of the works under the relevant sub-contracts or further sub-contracts respectively.

If the contractor fails to comply with any of the contractual requirements for engagement of sub-contractors, works department shall warn the contractor in writing and urge him to fulfil such contractual requirement within one month. The works department shall forward copies of all relevant correspondence to the SDEV (Attention:

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PAS(W)4). If, after expiry of the one-month period, the contractor has still failed to comply with such contractual requirement, the works department shall notify the SDEV (Attention: PAS(W)4) with a copy to the Chairman of the relevant Managing Review Committee requesting for regulating actions to be taken against the contractor in accordance with Section 5 of the latest version of the Contractor Management Handbook.

Upon receipt of the works department's notice, the SDEV will give a further opportunity to the contractor to present his case before deciding whether to immediately suspend the contractor from tendering. Regulating actions will not be taken if such non-compliance is not within the control of the contractor. Copies of all correspondence will be sent to the works department concerned and the Managing Department of the relevant category of the List and/or the Specialist List. Uplifting of the suspension will only be considered when the contractor has complied with all the relevant contractual requirements.

21.14.3 Registered Specialist Trade Contractors Scheme

(Subsumed from SDEV's memos ref. ( ) in DEVB(W) 510/94/02 dated 28.3.2019 and 11.12.2024 Amd No. 1/2025**)**

The CIC completed a review of the SRS in end 2018, and subsequently proposed to rename the SRS as the RSTCS with a couple of enhancements. Under the revamped framework, the RSTCS comprises the lists of both the Registered Specialist Trade Contractors (RSTC) and the Registered Subcontractors (RS). The RSTC are further classified into Group 1 and Group 2 subject to different admission criteria and tender limits.

Upon the launch of the RSTCS by the CIC on 1 April 2019, a total of twenty-one trades as listed below Amd No. 1/2025 **have been included under the Register of Specialist Trade Contractors. Upon the launch of the RSTCS, the registered subcontractors in the SRS under the first** Amd No. 1/2025 **seven designated trades were** Amd No. 1/2025 **automatically transferred to Group 1 RSTC. These registered subcontractors may also apply for direct admission to Group 2 RSTC if they can meet the respective criteria. For other registered subcontractors in the remaining trades, they have been retained as RS under the RSTCS (previously SRS). More information of the RSTCS can be found on the website of CIC (http://www.cic.hk).**

Amd No. 1/2025

	Trades included under the Register of Specialist Trade Contractors	Date of Inclusion
(1)	Concreting	1 April 2019
(2)	Concreting Formwork	1 April 2019
(3)	Curtain Wall	1 April 2019
(4)	Demolition	1 April 2019
(5)	Erection of Concrete Precast Component	1 April 2019
(6)	Reinforcement Bar Fixing	1 April 2019
(7)	Scaffolding	1 April 2019
(8)	Plastering	1 January 2021
(9)	Suspended Ceiling	1 April 2022

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(10)	**Tower Crane (Erecting, Dismantling, Altering Height)**	**1 April 2022**
(11)	**Building Drainage Installation**	**1 September 2022**
(12)	**Levelling and Setting Out**	**1 March 2023**
(13)	**Building Maintenance**	**1 October 2023**
(14)	**Interior Fitting-out**	**1 October 2023**
(15)	**Painting**	**1 May 2024**
(16)	**Metal Work**	**1 May 2024**
(17)	**Structural Steelwork**	**1 May 2024**
(18)	**Horticultural Works**	**1 May 2024**
(19)	**Arboriculture Works**	**1 May 2024**
(20)	**Skyrise Greenery Works**	**1 May 2024**
(21)	**Truss-out Scaffolding**	**1 January 2025**

Amd No. 1/2025

Revised Requirements for Subcontractor Management Plan

Under the new arrangement as promulgated by DEVB on 28 March 2019 Amd No. 1/2025**, the contractors should provide the details of subcontract(s), including but not limited to the trades (and groups if applicable) of the subcontractor(s) under the RSTCS and the** Amd No. 1/2025 **value of the subcontract(s) in the SMP.**

Streamlining Requirements on Subcontractor Registration
(Ref.: SDEV's memo ref. ( ) in DEVB(W) 546/83/01 dated 24.4.2024)

The prevailing requirements on subcontractors in public works contracts are outlined in the following contract provisions:

(a) ACC V:5 under ECC HK Edition / ACC C3 under NEC4 ECC – Requirement on Specialist Contractors

(b) ACC V:4 under NEC ECC HK Edition / ACC C6 under NEC4 ECC – Requirement on Subcontractor Registration Scheme

As the policy intent of requirements (a) and (b) above are different and the registration requirement for the former is generally more stringent than that of the latter, DEVB on 24 April 2024 revised the standard contract provisions concerned such that when both requirements apply, the subcontractor is no longer required to fulfill both of them. Instead, compliance with requirement (a) suffices to meet the policy intent. In other words, the subcontractor concerned does not need to be registered in the RSTCS if it is already a specialist subcontractor on the List of Approved Contractors for Public Works / the List of Approved Suppliers of Materials and Specialist Contractors for Public Works.

For ongoing works contracts, supplementary agreements could be executed between the contracting parties for the purpose of bringing in the revised requirements, through the exchange of correspondence.

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21.15 TRANSPORTATION OF ABNORMAL LOAD

For transporting construction plants and/or materials with abnormal weight and dimensions, submission to Transport Department for the approval of the abnormal load routing is required.

21.16 MAINTENANCE OF EXISTING HIGHWAY

The arrangement on the maintenance of existing highway network within the project sites is given in Chapter 15 of the Maintenance Administration Handbook published by HyD.

21.17 THE CASE ON ENTRUSTMENT OF WORKS

(Ref.: SETW's memo ref. (008BT-01) in ETWB (W) 830/31/01 dated 12.7.2004, Audit Recommendation on Public Works Contracts)

(1) There has been an experience that department A planned to entrust some works to department B, but owing to delay in funding approval, the entrustment was not effected. After the funding approval, the two departments agreed to coordinate the works of their separate contractors by sequential possession of site.

(2) Finally, there were some delayed possession of sites resulting in delay to works, extension of time (EOT) and payment of prolongation costs.

(3) The departments concerned should take remedial actions to deal with delay in completing works in situations where possession of sites cannot be given to contractors on time owing to delays caused by other parties. The remedial actions may include:

- Entrusting the outstanding works to the other parties; or
- Deleting the outstanding works from the contracts and employing term contractors to carry out the works upon possession of the sites.

21.18 CONTROL OF CONTRACT PRELIMINARIES FOR ONGOING CONTRACTS

(Ref.: SETW's memo ref. (00NKG-01-2) in ETWB(W) 925/50/01 dated 27.5.2005, Assignment No. 27/2004 - Assignment Report on Control of Contract Preliminaries)

(1) Central acceptance and distribution of contract preliminary items

All contract preliminary items shall be provided to the office of the Engineer's Representative for central acceptance and distribution. The Engineer's Representative shall designate different officers to be responsible for the acceptance and distribution of the items. The Engineer for the Contract shall request the Contractor not to provide the items directly to an individual member of the site supervisory staff.

(2) Avoid buying preliminary items from the contractor

Works departments/Engineer's Representatives should issue a notice to all staff that they should not purchase contract preliminary items from the Contractor during or

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after the contract period in order to avoid any perceived or actual conflict of interest. Contract preliminary items refer to non-works items such as computers, mobile phones, personal protective equipment and contract transport, etc. provided for the use of the "Architect/Engineer" and his staff to facilitate implementation of the project.

Works departments/Engineer's Representatives should issues a notice to all staff and it should be displaced on the notice board of every site office and re-circulated annually.

21.19 MEASURES TO PREVENT ILLEGAL EXTRACTION OR IMPORTATION OF BOULDERS/COBBLES/PEBBLES

All works departments, Government consultants and contractors should pay more attention to ensure legality of natural boulders/cobbles/pebbles. In case of doubt, they should take prompt actions to clarify whether the materials are legal, and to report immediately to the relevant authorities if any illegal acts are suspected

21.20 DESIGN AND BUILD CONTRACT

For administration of design and build contracts, reference should also be made to the "Administrative Procedures for Use with General Conditions of Contract for Design & Build Contracts" which can be found in DEVB's website (under Publications and Press Releases\Publications\Standard Contract Documents\).

21.21 CONTROL OF OFF-SITE FABRICATION OF CONSTRUCTION COMPONENTS

(Ref.: SETW's memo ref. (018RD-01-1) in ETWB (W) 925/50/01 dated 13.10.2006, Assignment No. 04/2006 - Control of Off-site Fabrication of Construction Components, paragraph 33 of the Assignment Study Report No. 15/2017 "Administration of Consultant-managed Mega Civil Engineering Contracts Adopting General Conditions of Contract" and ICAC Assignment Report No. 18/2017 – Control of Construction Components Prefabricated outside HK for Infrastructure Projects)

Off-site inspections are a corruption-prone area because inspection officers are vulnerable to offer of bribes and lavish entertainment by the manufacturers/Contractor. The project office should adopt the following guidelines in controlling off-site fabrication of construction components outside Hong Kong:

(a) If an independent inspection agent (IIA) is to be employed by the Contractor to supervise and inspect the works in the fabrication area, the project office should implement the following measures:

(i) require the Contractor to submit the particulars of the IIA and his staff to the Engineer for approval;

(ii) require the IIA and his staff to declare any conflict of interest with the

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manufacturer/Contractor;

(iii) require the IIA to submit to the Engineer for approval a site supervision and inspection plan for the fabrication works as well as subsequent changes, and to certify compliance with the site supervision and inspection plan;

(iv) caution the IIA and his staff not to accept lavish entertainment during supervision and inspection;

(v) require the IIA to submit site records and reports on any non-compliance with the Contract's requirements to the Contractor and the Engineer simultaneously;

(vi) require the IIA to submit periodic statistical returns (e.g. returns on the number and periods of supervision and inspections conducted by the IIA and his staff and the works covered in the supervision and inspection) for management information;

(vii) require the IIA to certify that the fabrication works have been constructed in accordance with the Contract's requirements; and

(viii) where practicable and on a need basis, carry out material tests on the fabricated components delivered on site, e.g. Schmidt hammer tests or concrete coring tests.

(b) Normally, when the need for employment of IIA is identified during design stage of a project, the project office is required to stipulate the requirements in sub-paragraphs (a)(i) to (a)(vii) above in the contract documents in accordance with paragraph 9.28 of PAH Chapter 5. Under special circumstance when the need for employment of IIA is only identified during construction stage of a project (e.g. unanticipated large-scale fabrication works proposed by the Contractor), the Contractor should be required to obtain the project office's approval on the appointment of IIA and the project office should also require the IIA concerned to comply with the requirements in sub-paragraph (a) above.

(c) If the resident site staff (RSS) are arranged to supervise and inspect the works in the fabrication area, the project office should implement the following measures:

(i) ensure that supervision requirements and inspection arrangement for different types of works including off-site fabrication of construction components are included in the Quality Site Supervision Plan (QSSP) if applicable (please refer to paragraph 4.24 of EACSB Handbook for details);

(ii) require the RSS conducting supervision (including inspection) in the fabrication area to declare any conflict of interest with the manufacturers/Contractor;

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(iii) require the RSS to comply with departmental guidelines on the standards of transportation and accommodation allowed for off-site inspections, and the keeping of approval records for audit checks;

(iv) caution RSS not to accept lavish entertainment during supervision and inspections and require them to report any over-provision in excess of the approved standards;

(v) review any need for reimbursement of further subsistence allowance to the RSS due to recruitment difficulty, taking into account that accommodation and transport are normally provided through the works contracts. If this is necessary, seek the approval of the departmental Resident Site Staff Establishment Committee (RSSEC) on the proposed reimbursement cap which may be determined with reference to the similar prevailing Government practice if appropriate;

(vi) compile periodic statistical returns (e.g. returns on the number and periods of the supervision and inspections conducted by each RSS and the works covered in these supervision and inspections) for management information; and

(vii) where practicable and on a need basis, carry out material tests on the fabricated components delivered on site, e.g. Schmidt hammer tests or concrete coring tests.

(d) If in-house staff are deployed to supervise and inspect fabrication of large-scale or safety-critical construction components in the fabrication area, the project office should suitably document the supervision arrangement for such construction components (e.g. inspection frequencies, rank of officers to conduct the inspections), in a format commensurate with or similar to Quality Site Supervision Plan (QSSP) adopted in consultant-managed projects.

(e) The implementation of security labels on concrete cube / steel bar / bituminous samples are applicable to those delivered from fabrication yards outside Hong Kong, details see "Implementation of Security Labels on Concrete Cube / Steel Bar / Bituminous Samples" under CEDD website (see paragraph 5.15).

(f) Where the required material compliance tests cannot be undertaken by the Public Works Laboratories as advised by CGE/S&T of GEO, it is an existing practice for the Contractor to propose an independent laboratory to perform the tests concerned, subject to the approval of the Engineer and compliance with the policy outlined in WBTC No. 14/2000. For test samples transported from the fabrication yard to such Contractor's proposed laboratory, project office should implement appropriate measures (e.g. using non-detachable security tags/labels, locking test samples in a secured box, using designated trucks for delivery etc.) to ensure security of the test samples during the transportation process. Reference can be drawn to the Guidance Notes on the use of Security Labels for Concrete Cube/Steel Bar/Bituminous Samples published by Public Works Laboratories of GEO.

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21.22 CENTRAL CONCRETE MIX DATABASE, REGISTER OF THE BRAND OF CEMENTITIOUS MATERIALS COMMONLY USED IN PUBLIC WORKS CONTRACTS AND QUALITY CONTROL OF AGGREGATES

Central Concrete Mix Database

In order to facilitate the approval process of concrete designed mixes, a central concrete mix database (CCMD) has been developed by the PWCL to provide data of concrete cube strength for reference by the Engineer in his assessment of the designed mix submissions in accordance with GS Section 16. The CCMD also records the mix composition of each approved mix. Reference should be made to the detailed implementation notes for the CCMD, prepared by PWCL and promulgated under ETWB's memo dated 2.3.2007 ref. (01DHD-01-4) in ETWB(W) 520/11/02 or any updated version of the detailed implementation notes subsequently issued by PWCL.

If it is a new design, the Engineer should process the submission following the approval procedures stipulated in GS. After the designed mix has been approved, the Engineer should send an email requesting for MIX ID enclosing the following: (1) a document showing the approval of the concerned mix by the Engineer, (2) the mix detail/composition of each mix with highlight on the mix requiring the assignment of a new MIX ID, and (3) the QSPSC certificate of the batching plant to PWCL for processing. PWCL will assign a unique MIX ID for the mix and then inform the concrete producer and the Contractor through the Engineer.

If the proposed concrete mix is one previously approved in another public works contracts and registered in CCMD, it will already have a unique MIX ID. The Contractor should quote the MIX ID in his submission, and the Engineer should send the MIX ID to PWCL and request the relevant information (viz. record of mix details and test results obtained by PWCL in the last 12 months) to assist his assessment on acceptability of use of the proposed mix. If the proposed concrete mix is for non-structural concrete or its concrete grade is Grade 20 or below, request for assignment of MIX ID will not be required and no MIX ID will be assigned by PWCL.

The site supervisory staff should check that the correct MIX ID has been printed on the concrete producer's delivery dockets before accepting the concrete. For request of testing of concrete cubes of an approved concrete mix, the site supervisory staff should print the MIX ID on the test request form so that PWCL staff can upload the test results to the CCMD under the correct MIX ID.

Testing of Cementitious Materials

PWCL also maintains a register of the brands of Portland cement, pulverised fuel ash, Portland fly ash cement and ground granulated blastfurnace slag commonly used in public works contracts. PWCL regularly collects samples of the registered brands directly from the suppliers (or from relevant government contracts if samples are not available from suppliers), conduct tests on them, prepare a bi-monthly Cement Circular to present the test results, and upload the Cement Circular onto CEDD websitehttps://www.cedd.gov.hk/filemanager/eng/content_633/Cement%20Circular%20Sep2020.pdf. In general, PWCL would include the brand of the cementitious materials in the Cement Circular if it has been tested for more than three times and used in one or more Government contracts within the last six months. A brand not in use in any government

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contract for more than six months will be deleted from the Cement Circular. The Engineer may also request PWCL to carry out tests on brands of cementitious materials being used in his works contracts using the test request form (Form No. 2322) available at CEDD websitehttps://www.cedd.gov.hk/eng/public-services-forms/public-forms/geotechnical-services/test-request-forms-for-laboratory-testing/index.html. If the tests requested are on the commonly used brands which test results are available in the Cement Circular, explanations of the special circumstances (such as cementitious materials stored on site becoming contaminated as a result of inadequate protection) should be provided. The Engineer should assign a responsible site supervisory staff at Inspectorate level or above to check the test results given in the Cement Circular regularly, to see if there is any non-conformance with the specifications.

The Engineer may use the test results given in the Cement Circular and any additional relevant test results for:

(a) considering his approval of the Contractor's proposal to use a certain brand of cementitious material, and
(b) monitoring of the continuing compliance with the specifications of the brands of cementitious materials being used in his works contract.

Quality Control of Aggregates for Structural Concrete

Much of the rock used for concrete production in Hong Kong is excavated or crushed at Chinese Mainland quarries while some are from local quarries. Rock excavated from civil engineering projects (e.g. site formation and tunnelling contracts with significant rock excavation, locally or outside Hong Kong) is sometimes used. The excavated rock is crushed at a rock crushing plant (either a plant on site or at a quarry, or at a plant elsewhere) to produce aggregates for concrete production.

In accordance with the requirements of GS Clause 16.50, one representative sample of each type of the aggregates shall be provided at the same time as particulars of the material (i.e. concrete) are submitted to the Engineer under GS Clause 16.17(5). The samples shall be collected from the stockpiles or the stores at the ready-mixed concrete plant under the supervision of the Engineer. Method of sampling should be in accordance with Table 16.6 of GS. Sampling should cover both the average materials and materials that appear different from the average based on visual inspection. The samples shall be delivered to the Employer's Laboratories for testing to determine their compliance with GS. For the continued quality monitoring of aggregates for use in ready-mixed concrete in the public works projects, the Public Works Laboratories may also request the Engineer to arrange taking and delivering additional samples as stated above to the Employer's Laboratories for testing. Normally, the frequency of additional aggregate sampling is once in every three months for each quarry. The results will be provided to works departments for information.

21.23 HERITAGE CONSERVATION

Heritage impact assessment mechanism shall be adopted for capital works projects according to the procedure and requirements given in DEVB TCW No. 1/2022. It includes the requirement for assessing impacts on historic/heritage sites and buildings arising from the implementation of the project so that their conservation will be given due consideration.

The project office shall check that the works and the mitigation measures carried out

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at the construction stage for heritage conservation, if any, comply with the requirements stipulated in the Heritage Impact Assessment (HIA) as approved by the AMO of LCSD at the design stage.

During the course of implementation of a project, if the project office considers that the project might affect item(s) with possible heritage value which is/are not included in the list of "heritage sites", they should seek advice from AMO on the actions that need to be taken.

The HIA mechanism is not applicable to projects which have already attained Category A status and Category D items for which construction contracts have been awarded or works orders have been issued before 1 January 2008. However, if during the course of construction, new information is known that the works could probably affect or aggravate its effect on "heritage sites", the responsible works agent should seek AMO's advice immediately on the actions that need to be taken.

See DEVB TCW No. 1/2022 for further details.

21.24 TEMPORARY DRAINAGE IMPACT MITIGATION MEASURES AND MONITORING AND AUDIT REQUIREMENTS

ETWB TCW No. 2/2006 provides procedures on the application of the Drainage Impact Assessment (DIA) process to public sector projects, including monitoring and audit requirements for the construction stage. Besides the preparation of project profile and undertaking of DIA study at the project planning and design stages, the project office is responsible for monitoring the drainage performance of the project and also taking all measures necessary to mitigate unanticipated or unacceptable impacts arising during project construction.

The project office shall implement any temporary drainage impact mitigation measures and undertake any monitoring programme during the construction stage which have been agreed with DSD based on the findings of the DIA study. During construction stage, if the Contractor's proposal for temporary works or temporary mitigation measures does not comply with the specific requirements stated in the contract, the project office should seek DSD's advice and comments before consent under the contract is given.

A copy of all monitoring and audit reports during construction stage shall be sent to DSD once available. Also, DSD has the authority to conduct audit from time to time to check that the agreed mitigation measures are implemented. If any of the measures is found to be not undertaken or inadequate, DSD shall refer the case to the project office for rectification.

See ETWB TCW No. 2/2006 for further details.

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21.25 CONTROL OF SITE CRUSHERS (Subsumed from WBTC No. 11/2002)

21.25.1 General

When a site crusher is to be included for use in a construction project, information should be provided to the Chief Geotechnical Engineer/Mines (CGE/M) of CEDD on a monthly basis on the amount and nature of the rock to be crushed, and crushed rock product requirements for the works, and the construction period. Where the crusher is used to process hard inert C&D material, details on the amount and nature of the material to be processed, the recycled products requirements, and the project period should also be submitted. Further advice on the use of a site crusher may be obtained from CGE/M. The Secretary of PFC should be consulted on matters relating to recycling of hard inert C&D material.

21.25.2 Amendments

If it is proposed to amend any clause regulating the use of a site crusher after the award of a contract then the revised clause shall be approved by DCED. If approval for an amendment is given, then the revised conditions shall be provided by DCED, which may include the payment of a royalty for the amendment.

21.25.3 Sales of Crushed Rock and Recycled Products

Approval from DCED is required for off-site sales of crushed rock and recycled products produced by a site crusher in a Government project. Where off-site sales are allowed, a royalty will be charged on crushed rock products that are produced from Grade II or better rock source and sold as virgin aggregates. No royalty will be required for off-site sales of recycled products produced from hard inert C&D material of other nature. Detailed information should be submitted to DCED as set out in paragraph 21.25.1.

The royalty charged on the crushed rock products described above shall be paid by the contractor of the Government project. CGE/M will obtain the necessary approval from the SFST for the royalty rates. Demand notes in respect of the royalty due shall be issued to the contractor by CGE/M at quarterly intervals based upon the contractor's sales returns, which should be duly certified by the relevant project office.

21.26 PROVISION OF UNIFORM FOR PERSONNEL WORKING ON PUBLIC WORKS SITES (Ref.: SDEV's memos ref. DEVB(Trg) 133/3(10) dated 23.1.2017)

SDEV's memos ref. DEVB(Trg) 133/3(10) dated 23.1.2017 sets out the policy and implementation details related to the provision of uniform to personnel working on public works sites. The policy is given in paragraph 9.45 of PAH Chapter 5. The implementation guidelines for all public works contracts tendered on or after 1 February 2017 are given in Appendix 7.71.

For all existing contracts tendered before 1 February 2017, the implementation

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guidelines in revised Annex F of SDEV's memo ref. DEVB(Trg) 133/3(10) dated 18.8.2016 are still relevant.

21.27 IMPLEMENTATION OF MANDATORY CONSTRUCTION INDUSTRY COLLABORATIVE TRAINING SCHEME (CICTS) IN PUBLIC WORKS CONTRACTS

DEVB TCW No. 6/2019 sets out the policy on the implementation of CICTS in public works contracts with a view to increasing the supply of skilled workers. The following public works contracts of which the tender invitations issued on or after 30 September 2019 shall implement the mandatory CICTS through incorporation of the standard tender and contract provision as promulgated in Appendices A, B and C of DEVB TCW No. 6/2019 into the tender documents.

(a) Building and civil engineering (B&C) capital works contracts (including design and build contracts) and term contracts with an estimated contract sum or estimated total expenditure exceeding $300 million, with or without E&M works; and

(b) E&M supply and installation contracts and term contracts with an estimated contract sum or estimated total expenditure exceeding $50 million and with an estimated construction works period of not less than six months

For public works contracts tendered before 30 September 2019 and adopting the Mandatory Contractor Tradesman Collaborative Training Scheme (CTS) provisions for worker training under DEVB TCW No. 3/2017, should the contractors proposed to also participate in training Skilled Workers as stipulated in DEVB TCW No. 6/2019 at no additional cost, the Engineer/Supervising Officer may accept such training for the purpose of fulfilling the contract requirements.

For public works contracts tendered before 15 July 2017 and adopting the Mandatory Contractor Cooperative Training Scheme (CCTS) provisions as introduced in DEVB(Trg) 133/4(9) dated 5.8.2013 and 16.8.2013, the implementation guidelines are given in Appendix 7.72. Should the contractors propose to participate in CTS, which was integrated into CICTS, instead of CCTS for some of the trainees at no additional cost to the contract, the Engineer/Supervising Officer may accept CTS training to be equivalent as CCTS training of the same specified trades for the purpose of fulfilling the contract requirements.

21.28 ENHANCEMENT OF PRODUCTIVITY OF SKILLED WORKERS IN PUBLIC WORKS PROJECTS

In order to rationalize the demand for skilled workers in trades with projected shortage, the specific measures in construction process for individual trades given in the "Guidelines for Enhancement of Productivity of Skilled Workers in Public Works Projects" attached to DEVB's memo ref. (38) in DEVB(Trg) 133/8 dated 17.4.2013 should be followed. The guidelines are available on DEVB's website via the following link:

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https://www.devb.gov.hk/filemanager/en/content_29/Guidelines_Enhancement_of_Productivity_(Mar_2013)_English.pdf

21.29 USE OF OFF-SITE PREFABRICATED STEEL REINFORCING BAR PRODUCTS

As promulgated under DEVB TCW No. 10/2018, off-site prefabricated rebar products may be used in a public works contract if the contractor of the contract opts to engage a yard on the List of Approved Steel Reinforcing Bar Prefabrication Yards for Public Works ("the List") to supply prefabricated rebar products for the works under the contract. The Engineer / Supervising Officer of public works contracts shall not accept any prefabricated products produced in an off-site rebar prefabricated yard which is not on the List.

21.30 ADOPTION OF BUILDING INFORMATION MODELLING (BIM) FOR CAPITAL WORKS PROJECTS IN HONG KONG

Capital works project with project estimates more than $30 Million shall use BIM technology. The policy is applicable for projects in the investigation, feasibility, planning, design or construction stages in the Capital Works Programme irrespective of the modes of delivery.

For construction works tenders with BIM adoption to be invited on or after 1 April 2025, the design BIM models shall form part of tender and shall be contractually binding including the parts of BIM models of the proposed works corresponding to the information on the 2-dimensional tender drawings, while Mechanical, Electrical and Plumbing installations, existing site conditions and attributes involving proprietary products, etc. will serve as reference. Amd No. 1/2025

See DEVB TCW No. 2/2025 Amd No. 2/2025 for further details.

21.31 ADOPTION OF DIGITAL WORKS SUPERVISION SYSTEM (DWSS)

Capital works contracts, including capital subventions contracts under Head 708, with pre-tender estimate exceeding $30 million, shall adopt the DWSS. See DEVB TCW No. 2/2023 and No. 3/2016 for further details.

21.32 PROPOSAL ON INNOVATION AND TECHNOLOGY FOR PUBLIC WORKS CONTRACTS ADOPTING NEC FORM

SDEV's memo ref. () in DEVB(W) 506/30/07 dated 20.4.2023 sets out a new set of additional conditions of contract (ACC)[#] on Proposal on Innovation and Technology (hereinafter referred to as I&T Proposal) to promote the adoption of I&T for enhancing site safety, site supervision efficiency or decarbonisation under public works contracts adopting NEC form. Given that an I&T Proposal entails additional cost to a contract, project teams should exercise professional judgement in assessing each I&T proposal to ensure that it is soundly justified. The project team should also ensure the issuance of relevant instructions

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and approving authorities comply with applicable rules/criteria set out in the SPRs, as well as other applicable cost control mechanisms. See paragraph 9.56 of PAH Chapter 5 for further details.

This ACC is also incorporated into the NEC ECC HK Edition and become the secondary Option X30.

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22. REFERENCES

AC No. 9/2005	Proper Maintenance and Retention of Accounting Books and Records
LWBTC No. 11/84	Contract Transport
LWBTC No. 7/87	Minimum Amount of an Interim Payment
WBTC No. 3/89	Opening Ceremonies for Public Works Projects
WBTC No. 28/92	Damage of Crops and Property on Agricultural Lands
WBTC No. 2/93	Public Dumps
WBTC No. 2/93B	Public Filling Facilities
WBTC No. 14/94	Use of PFA as General Fill in Reclamations
WBTC No. 10/95	Importation of Sand from the People's Republic of China by Barges
WBTC No. 10/95A	Additional Requirements Concerning Barge Routes and Third Party Insurance
WBTC No. 16/96	Wet Soil in Public Dumps
WBTC No. 4/98	Use of Public Fill in Reclamation and Earth Filling Projects
WBTC No. 4/98A	Use of Public Fill in Reclamation and Earth Filling Projects
WBTC No. 4/99	Construction Mediation Rules (1999 Edition) and Administrative Guidelines
ETWB TCW No. 4/99A	Construction Mediation Rules (1999 Edition) and Administrative Guidelines
WBTC No. 16/99	Contractual and Financial Procedures for Determination of the Contractor's Employment
WBTC No. 16/99A	Contractual and Financial Procedures for Determination of the Contractor's Employment
WBTC No. 16/99B	Contractual and Financial Procedures for Determination of the Contractor's Employment
ETWB TCW No. 16/99C	Contractual and Financial Procedures for Determination of the Contractor's Employment
WBTC No. 12/2000	Fill Management
WBTC No. 14/2000	Usage of Public Works Laboratories in Public Works Projects
WBTC No. 15/2000	Funding Arrangement for Public Works Regional Laboratories Operating, Monitoring and Accounting Procedures
WBTC No. 20/2000	General Conditions of Contract for Civil Engineering Works, 1999 Edition
WBTC No. 30/2000	Construction Site Safety Manual (CSSM) Second Updating of Chapters 3 and 12
WBTC No. 11/2001	Interim Certification after Determination of the Contractor's Employment

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WBTC No. 12/2001	Safety Training for Departmental Staff and Resident Site Staff
WBTC No. 16/2002	General Conditions of Contract for Term Contracts for Civil Engineering Works, 2002 Edition
ETWB TCW No. 29/2002	Geotechnical Control for Slopes and Retaining Walls
ETWB TCW No. 29/2002A	Geotechnical Control for Slopes and Retaining Walls
ETWB TCW No. 38/2002	Computer-Aided-Drafting Standard for Works Projects
ETWB TCW No. 38/2002A	Computer-Aided-Drafting Standard for Works Project
ETWB TCW No. 50/2002	Contractors' Joint Ventures
ETWB TCW No. 57/2002	Quality Assurance for Structural Concrete
ETWB TCW No. 3/2003	Monthly Return of Site Labour Deployment and Wage Rates for Construction Works
ETWB TCW No. 3/2003A	Monthly Return of Site Labour Deployment and Wage Rates for Construction Works
ETWB TCW No. 4/2003	Assessment of Liquidated Damages
ETWB TCW No. 12/2003	Employment of Technician Apprentices and Building & Civil Engineering Graduates by Contractors of Public Works Contracts
ETWB TCW No. 13/2003	Guidelines and Procedures for Environmental Impact Assessment of Government Projects and Proposals
ETWB TCW No. 14/2003	Role of Departmental Safety and Environmental Advisor on Health, Safety and Environmental Protection on Construction Sites
ETWB TCW No. 22/2003	Additional Measures to Improve Site Cleanliness and Control Mosquito Breeding on Construction Sites
ETWB TCW No. 22/2003A	Additional Measures to Improve Site Cleanliness and Control Mosquito Breeding on Construction Sites
ETWB TCW No. 29/2003	Confidentiality clauses in works contracts and consultancy agreements
ETWB TCW No. 4/2004	Checking of Foundation Works in the Scheduled Areas of Northwest New Territories and Ma On Shan and the Designated Area of Northshore Lantau
ETWB TCW No. 17/2004	Impossibility / Unforeseen Ground Conditions / Utility Interference
ETWB TCW No. 20/2004	GEO Checking Certificate for Slopes and Retaining Walls
ETWB TCW No. 23/2004	Right of the Employer to terminate for convenience and Risk allocation with respect to changes in law
ETWB TCW No. 4/2005	Monthly Return on Construction Site Employment Statistics
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ETWB TCW No. 19/2005	Environmental Management on Construction Sites

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ETWB TCW No. 20/2005	Upward Reporting of Major Emergency Incidents from Works Departments
ETWB TCW No. 2/2006	Drainage Impact Assessment Process for Public Sector Projects
ETWB TCW No. 3/2007	Contractors' Performance Index System
DEVB TCW No. 3/2007A	Contractors' Performance Index System
DEVB TCW No. 9/2007	Professional Indemnity Insurance for Consultancy Services, Works Contracts Involving Contractor's Design or Independent Checking Engineer's Services
DEVB TCW No. 6/2010	Trip Ticket System for Disposal of Construction & Demolition Materials
DEVB TCW No. 8/2010	Enhanced Specification for Site Cleanliness and Tidiness
DEVB TCW No. 5/2013	Extension of Time due to Labour Shortage
DEVB TCW No. 3/2014	Contractors' Designs and Alternative Designs
DEVB TCW No. 4/2014	Tender Evaluation Methods for Works Contracts
DEVB TCW No. 4/2014A	Tender Evaluation Methods for Works Contracts
DEVB TCW No. 7/2014	Guidance on Execution of Public Works Contracts as a Deed
DEVB TCW No. 4/2016	Geotechnical Information Unit
DEVB TCW No. 3/2017	Implementation of Mandatory Construction Tradesman Collaborative Training Scheme in Public Works Contracts
DEVB TCW No. 4/2017	Employment of Skilled Workers in Public Works Contracts
DEVB TCW No. 5/2017	Community Involvement in Planting Works
DEVB TCW No. 2/2018	Registration and Updating of the Catalogue of Slopes
DEVB TCW No. 10/2018	Quality Assurance for Use of Off-site Prefabricated Steel Reinforcing Bar Products
DEVB TCW No. 1/2019	Railway Protection
DEVB TCW No. 6/2019	Implementation of Mandatory Construction Industry Training Scheme in Public Works Contracts
DEVB TCW No. 1/2020	Score Card for Assessment of Site Safety Performance
DEVB TCW No. 4/2020	Tree Preservation
DEVB TCW No. 5/2020	Registration and Preservation of Old and Valuable Trees
DEVB TCW No. 1/2025 Amd No. 1/2025	Adoption of Building Information Modelling for Capital Works Projects in Hong Kong
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DEVB TCW No. 1/2022	Heritage Impact Assessment Mechanism for Capital Works Projects
DEVB TCW No. 5/2023	Regulating Action against Contractors for Occurrence of a Serious Incident or Conviction for Site Safety or Environmental Offences
DEVB TCW No. 2/2023	Digital Works Supervision System

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FSTBCM No. 15/2017	Amendment to the Stores and Procurement Regulations
FSTBCM No. 12/2019	Amendment to the Stores and Procurement Regulations
FSTBCM No. 3/2017	Amendment to the Stores and Procurement Regulations
FC No. 2/2012	Procedures for making changes to the Estimates of the Capital Works Reserve Fund
FC No. 5/2017	Powers of Write-off
DEVB's email dated 19.2.2010	Proposed Amendments to PAH - Management of Omitted Items
DEVB's email dated 20.3.2012	Contractor Cooperative Training Scheme (CCTS)
SETW's letter ref. (015YP-01-5) in ETWB(W) 510/17/01 dated 27.7.2006	Contract Measures to monitor and control Payment of workers wages and sub-contracting Employment of Labour Relation Officer (LRO (with title currently unified as ACO(LR)))
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SDEV's memo ref. ( ) in DEVB(W) 510/70/03 dated 13.11.2020	Particular Specification ("PS") Clause on Request for Inspection and/or Survey Check
SDEV's memo ref. ( ) in DEVB(W) 510/94/02 dated 4.12.2020	Addition of "Plastering" as One of the Designated Trades under the Registered Specialist Trade Contractors Scheme of the CIC
SDEV's memo ref. () in DEVB(PS) 108/34 dated 29.1.2021	List of Approved Contractors for Public Works (the List) and List of Approved Suppliers of Materials and Specialist Contractors for Public Works (the Specialist List) Revised Contractor Management Handbook
SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 5.3.2021	Extension of Interim Relief Measure to Assist the Construction Industry – Advance Payment under New Capital Works Contracts
SDEV's memo ref. () in DEVB(W) 510/94/02 dated 5.3.2021	Corruption Prevention Advice on Subcontractor Management Plan (SMP)
SDEV's memo ref. (03969) in DEVB(W) 510/33/02 dated 12.5.2021	Extension of Interim Relief Measure to Assist the Construction Industry – Streamlining the Approval Process of Contract Assignment
SDEV's memo ref. ( ) in DEVB (PS) 107/3 dated 2.6.2021	Threshold for Submission of Forms GF527 and GF527A
SDEV's memo ref. ( ) in DEVB(W) 510/70/03 dated 1.9.2021	Particular Specification ("PS") Clause on Inspection and Test Plans ("ITP")
SDEV's memo ref. ( ) in DEVB(W) 510/94/02 dated 11.1.2022	Addition of "Suspended Ceiling" and "Tower Crane (Erecting, Dismantling, Altering Height)" as Designated Trades under the Registered Specialist Trade Contractors Scheme of the CIC
SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 10.3.2022	Extension of Interim Relief Measure to Assist the Construction Industry – Advance Payment under New Capital Works Contracts
SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 10.3.2022	Extension of Interim Relief Measure to Assist the Construction Industry – Streamlining the Approval Process of Contract Assignment
SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 15.3.2022	Interim Relief Measure to Combat the 5th Wave of the COVID-19 Pandemic – Special Advance Payment for Ongoing Capital Works Contracts

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SDEV's memo ref. ( ) in DEVB(W) 510/94/02 dated 17.6.2022	Addition of "Building Drainage Installation" as One of the Designated Trades under the Registered Specialist Trade Contractors Scheme of the CIC
SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 8.7.2022	Interim Relief Measure to Combat the 5th Wave of the COVID-19 Pandemic – Special Payment for Imported Items for Capital Works Contracts
SDEV's memo ref.(03E8T) in DEVB(W) 516/80/03 dated 3.8.2022	CSSM – Prohibition of Imposing Administrative Charges for Reporting of Site Accidents and Elimination of Under-reporting of Site Accidents
SDEV's memo ref. ( ) in DEVB(W) 510/94/02 dated 1.12.2022	Addition of adding "Truss Out Scaffolding", "Gondola (Permanent)" and "Gondola (Temporary)" as Designated Trades under the Registered Specialist Trade Contractors Scheme of the CIC
SDEV's memo ref. ( ) in DEVB WB WP4S-022-009-002-P001 dated 11.12.2024	Addition of "Truss-out Scaffolding" as Designated Trades under the Registered Specialist Trade Contractors Scheme of the Construction Industry Council Amd No. 1/2025
SDEV's memo ref.(03F9H) in DEVB(W) 516/71/01 dated 29.12.2022	Site Specific Induction Training
SDEV's memo ref. ( ) in DEVB(W) 510/94/02 dated 1.2.2023	Addition of "Levelling and Setting Out" as One of the Designated Trades under the Registered Specialist Trade Contractors Scheme of the CIC
SDEV's memo ref.(03F7R) in DEVB(W) 516/70/03 dated 27.2.2023	Score Card for Assessment of Site Safety Performance
SDEV's memo ref. ( ) in DEVB(W) 506/30/07 dated 20.4.2023	Proposal on Innovation and Technology for Public Works Contracts Adopting NEC form
SDEV's memo ref. ( ) in DEVB(W) 510/94/02 dated 6.9.2023	Addition of "Building Maintenance" and "Interior Fitting-out" as Designated Trades under the Registered Specialist Trade Contractors Scheme of the CIC
SDEV's memo ref. ( ) in DEVB(W) 546/83/01 dated 20.9.2024	Threshold of the Constraints on the Power of the Contract Administrator to Order Variation and the Related Matters
SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 22.11.2023	Extension of Interim Relief Measure to Combat the COVID-19 Pandemic-Special Payment for Imported Items
SDEV's memo ref. ( ) in DEVB(W) 510/94/02 dated 10.4.2024	Addition of "Painting", "Metal Work", "Structural Steelwork", "Horticultural Works", "Arboriculture Works" and "Skyrise Greenery Works" as Designated Trades under the Registered Specialist Trade Contractors Scheme of the CIC

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SDEV's memo ref. ( ) in DEVBWB WP4S-022-006 dated 25.10.2024	Public Works Laboratories Electronic Laboratory Information Management System for Handling Compliance Testing Services for Public Works Contracts Amd No. 3/2025
SFST's memo ref. () in FIN CR1/6/581/87(02) Pt.65 dated 12.9.2002	Review of funding requirements for Category A projects in the Capital Works Programme
GEO Technical Guidance Note No. 40	Guidelines on Temporary Drainage Provisions and Precautionary Measures against Severe Rainfall during Site Formation Works and Construction of Reinforced Fill Structures
DSD Practice Note No. 1/2010	Guidelines for Hand-over of Completed Works to Operation and Maintenance Parties
Audit Report No. 53 Ch. 3 - Construction works under Castle Peak Road Improvement Project	http://www.aud.gov.hk/pdf_e/e53ch03.pdf
DEVB Cyber Manual for Greening	Dos and Don'ts in Pruning
	General Guidelines on Tree Pruning
	Guideline for Auditing of Tree Risk Assessment for Tree Management Departments
	Guidelines for Tree Risk Assessment and Management Arrangement on an Area Basis and on a Tree Basis
	Guideline on Pavement Renovation Works and Tree Stability
	Management Guidelines for Stonewall Trees
	Guidelines on Arboriculture Occupational Safety and Health
	Guidelines on Tree Transplanting
	Management Guidelines for Mature Trees
	Guidelines on Tree Preservation during Development
Engineering Survey Practice Guides for Works Projects	https://www.cedd.gov.hk/filemanager/eng/content_22/ESPG_2021.pdf
FSTB Stores and Procurement Regulations	http://fb.host.ccgo.hksarg/spr/spr_e_clean_20220728.pdf
ICAC Best Practice Checklist on Construction Quality Control Testing	http://cpas.icac.hk/UPloadImages/InfoFile/cate_43/2016/4b471f9b-e9ef-4c04-aa49-704f29d431a4.pdf

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LD Guidance Notes on Safety and Health of Hand-dug Tunnelling Work	http://www.labour.gov.hk/eng/news/pdf/GN_on_S&H_of_Hand-dug_Tunnelling_Work_Eng.pdf
Mandatory Provident Fund Schemes Authority's letter dated 31.10.2023	Provision of Contractor Information to MPFA

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APPENDICES

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APPENDIX 7.1 CONSENT TO ERECT TEMPORARY STRUCTURE ON CONTRACT WORKS SITE

(One consent to be issued for each temporary structure)
(This form is only to be used for cases where works sites cannot be defined in the contract documents)

File Ref. .....

HIGHWAYS/CIVIL ENGINEERING/TERRITORY DEVELOPMENT/
DRAINAGE SERVICES/WATER SUPPLIES DEPARTMENT

..... Region/Division ..... Department/Office
Contractor .....
Contract No. .....

Approval is hereby given to erect the following temporary structure for the purpose of carrying out the above Contract:

Location:

Size and Description:

This consent expires on .....

#Signature .....
Name (in Block Letters) .....
Title .....
Telephone No. .....
Date .....

Distribution

Contractor (original + copy) - The original to be affixed to the temporary structure in most convenient position and the copy to be retained as office record
Issuing office of *HyD/CEDD/DSD/WSD
*Clearance Division, Housing Department
*Relevant District Office
Filed in Site record book

by Engineer or by ER with delegated authority
* Delete where inapplicable

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APPENDIX 7.2 DRAINAGE TESTING FORM

Testing of Gravity Pipelines for Drainage Works (GS Clause 5.101)

Location : _____ Date :

Internal Diameter of Pipe : D (m) _____

Length of Pipeline : L (m) _____

1. AIR TEST (Test for Pipeline of all Diameter)

Initial water head in glass U tube : 100mm

Final water head in glass U tube : mm (not less than 75mm is a pass)

Test duration : 5 mins. (to)

2. WATER TEST (Test for Pipeline of all Diameter)

Pipeline filled up with water at :

Pressure Head above the soffit of the pipe at the high / low end :

Test started at : _____

Test completed at : _____ T : _____ (mins.)

Permitted Leakage = D x L x T/60 litres

= _____ litres

Amount of water added : _____litres

Time	Time Elapsed (min)	Amount of water added (litre)
	0	
	5	
	10	
	15	
	20	
	25	
	30	

Testing pressure : 1.2m head of water above soffit of pipe at high end
(and less than 6m head of water at the invert of the low end of pipe.)

3. VISUAL INSPECTION (for Pipeline exceeding 900mm diameter)

4. INFILTRATION TEST (for Sewage Pipelines of all diameter BS 8005 : Part 1 Clause 13.6)

5. Remarks

Test Result : PASSED / FAILED **Recorded By :** _____

For ( ) Contractor **For Engineer's Representative**

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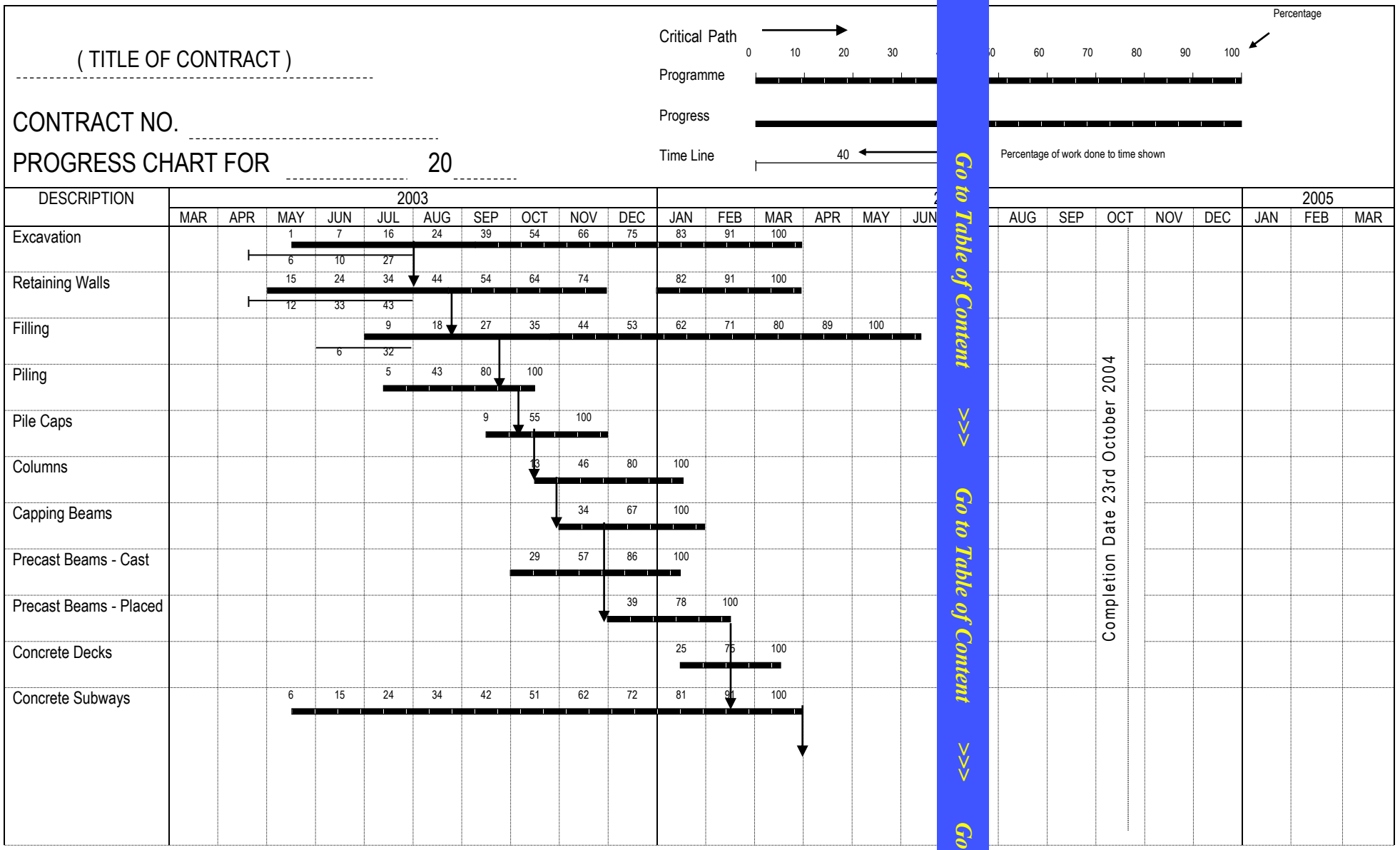
APPENDIX 7.3 SAMPLE PROGRESS CHART



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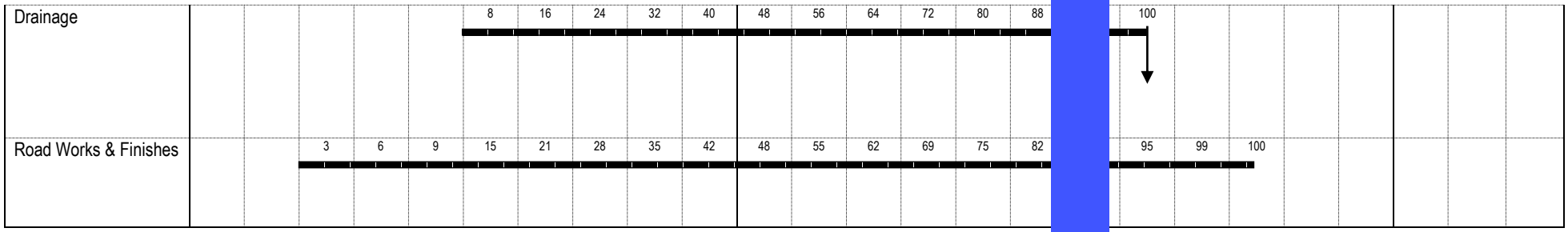

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APPENDIX 7.4 INCLEMENT WEATHER REPORT FORM

Contract No. _____ Date :

1. Rainfall recorded by the nearest rain gauge maintained by the Hong Kong Observatory within 24 hours ending 12:00 midnight : _____ mm

2. Records of weather conditions and Works affected (see below for legends):

Time		a.m.						noon						p.m.										
	7	8	9	10	11	12	1	2	3	4	5	6	7											
Weather condition																								
Works affected																								

3. Number of workers : (a.m.) / _____ (p.m.) _____

4. Proposed activities : _____

_____

5. Actual activities : _____

_____

6. Was the work on the critical path of the works programme? YES / NO

7. Was the Contractor ready to work had weather conditions been favourable? YES / NO

8. Were delays caused by any other reasons? YES / NO
(If YES, state the reasons in "Remarks")

9. Did the Contractor take any measures to minimize the effects of the inclement weather? YES / NO

10. How long did it take to tidy up afterwards? _____ hours / days

11. Remarks :

_____

_____

	No. of day(s)	Initial
Contractor's claim		
Recommendation		

Prepared by: _____ Countersigned by : _____

Designation: Designation _____ : _____

Legend :

Weather conditions
L - Light rain
H - Heavy rain
S - Strong wind
O - Others to be specified

Works affected
A - Slightly affected
B - Seriously affected
C - All works stopped

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APPENDIX 7.5 SITE INSTRUCTION FORM

SITE INSTRUCTION	
CONTRACT NO.	
FROM	TO
SITE INSTRUCTION NO.	DATE
FILE REF.	COPIES

Drawing/sketch attached : _____

_____
Engineer's Representative

Received by :

_____
Contractor's Representative

Date : _____ Time : _____

NB : Top copy - White - File Record
Duplicate - Yellow - Contractor
Triplicate - Green - Remain in book

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APPENDIX 7.6 DAYWORKS DAILY RECORD FORM

Contract No. _____ Site Instruction No. _____
Date _____ Sheet No. _____

Description and location of work _____
_____

LABOUR

B.O. Item	Trade of Labour	Total No.	Normal Working Time			Overtime		
			Working time	Hours per man	Total hours	Working time	Hours per man	Total hours

PLANT

B.Q. Item	Description of Plant	Total No.	Working time	Hours per plant	Additional Hours (for plant specially brought on Site)	Total hours

MATERIAL

B.Q. Item	Description of Material	Unit	Quantity

Record agreed by : _____ Submitted by :
_____
Designation : _____ Designation :
_____

N.B. Top copy – White – Daily Record
Duplicate – Yellow – Contractor's copy
Triplicate – Green – I.P. File copy

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APPENDIX 7.7 DAYWORKS MONTHLY SUMMARY FORM

Contract No. _____ Month _____ Dayworks Order No. _____ Amount include yment Certificate No. _____

Description and location of work _____

_____

Certified by _____ Approved by _____

Designation: _____ Designation: _____

LABOUR		Daily Hours																													Total Hours	Rate $	Amount	
Item No.	Date / Class	1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18	19	20	21	22	23	24	25	26	27	28	0	31			$	C

TOTAL LABOUR COST

PLANT		Daily Hours																													Total Hours	Rate $	Amount	
Item No.	Date / Class	1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18	19	20	21	22	23	24	25	26	27	28	0	31			$	C

TOTAL PLANT COST

MATERIAL		Description																														Amount	
Item No.	Date																															$	C

TOTAL MATERIAL COST

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APPENDIX 7.8 INVENTORY RECORD FORM FOR FURNITURE AND EQUIPMENT WH SHALL BE RETURNED TO THE CONTRACTOR

CONTRACT NO : _____ CONTRACTOR : _____

CONTRACT TITLE : _____

Reference Clause No.	Detail Description of Items	Acknowledge receipt in Good Order by Government Staff				Ackn ge Return by Contractor		
		Name	Designation	Signature	Date	Name	Signature	Date

Original Engineer's Copy
Duplicate Contractor's Copy

Note : Both copies of the inventory shall be updated gned immediately after an item is delivered to site or returned t ontractor

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APPENDIX 7.9 NOT USED

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APPENDIX 7.10 CONCRETE TEST CUBE REGISTER

(to be kept in a book)

Contract No. _____ Concrete Grade _____ Batching _____ Cement Brand _____ Additives _____ Coarse Ag urce _____ Fines Source _____

Request Form No.	Date of Cast	Location	Slump (mm)	Compliance (Y/N)	28-day Results							c	ge ive s	Standard Deviation (N/mm^2)	Compliance Criteria	Compliance (Y/N)	Remarks (Follow-up action)
					Test Certificate No.	Cube Mark	Date of Test	Age (days)	Density (kg/m^3)	Compressive Strength (N/mm^2)	Test Result						

Note : Please refer GS Clause 16.61 for compliance criteria for compressive strength of designed mix concrete.

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APPENDIX 7.11 NOT USED

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APPENDIX 7.12 SOIL COMPACTION TEST SUMMARY FORM

Contract No. _____
Period : _____ to _____
Fill Slope/Road Formation/_____

Date of Test	Location in the Works	Depth below surface (m)	Test Results			Remarks
			+ In-situ dry density (Mg/m^3)	# Max. dry density (Mg/m^3)	Relative Compaction (%)	

Note : + All in-situ densities are measured using the sand replacement method (Test Method 11.1/11.2, Geospec 3) unless otherwise stated

Test Method 10.1/10.2/10.3/10.4/10.5/10.6/10.7/10.8, Geospec 3 unless otherwise stated

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APPENDIX 7.13 BAR BENDING SCHEDULE

OFFICE / DIVISION _____ DEPARTMENT _____

CONTRACT NO. _____ BAR[illegible]EDULE NO. ☐☐☐ AMD ☐

TITLE _____ DRA[illegible] NO. ☐☐☐☐☐☐☐☐

Location and member	Bar mark	Type and Size	No. of members	No. in each	Total No.	Shape code	A* mm	B* mm	C* mm	D* mm	E/R* mm	[illegible]th of bar m	Total length M #	Mass/metre kg %	Total mass kg %

Legends
* specified to nearest 5 mm
\# specified to nearest 10 mm
% specified to two decimal places

Prepared by	Designation	Date	Checked by	Designation	Da[illegible]

Note: This Schedule is prepared for the Contractors' guidance only. The C[illegible] shall be responsible for checking all dimensions of reinforcement on the Site and/or from the drawings and no claim will [illegible]ed in respect of any inaccuracies in this Schedule.

Amendments

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APPENDIX 7.14 TENSIONING RECORD FORM FOR PRESTRESSED STRUCTURE

Contract No. _____ Member No. _____
Location _____
Date Cast _____ Date of tensioning/transfer _____

Test Cube Record

		At transfer
Date tested		
Cube strength	(i) (ii) (iii)	
Average strength		
Specified strength		

Sketch

Tensioning Record

Tendon	Strand or Wire	Load (Kg)		Extension (mm)		Anchorage pull-in (mm)	
		Specified	Measured	Calculated	Discrepancy %	Assumed	Measured

Remark:
_____
_____

Recorded by: _____ Designation: _____

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APPENDIX 7.15 RECORD FORM FOR BITUMINOUS MATERIALS DELIVERED TO SIT

Type of Bituminous Material _____ Mixing Plant Order No. _____
Contract No. _____ Date _____ Weather _____ Ten ure _____°C

Location	Source of Supply	Delivery Chit No.	Lorry No.	Time				emperature °C		Remarks
				Left Mixing Plant	Arrived Site	Departed Site	At Mixing P	On Arrival	When Placing	

Recorded by _____ Designat _____

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APPENDIX 7.16 DRAINAGE PIPELINE WATER TEST RECORD FORM

Contract No. _____

Date _____ Test No. _____

NOTE :

Diameter (mm)	150	225	300	375	450
Drop permitted per 30 m (mm)	100	625	48	60	72

Date	Location (refer to attached sketch)		Diameter (mm)	(a) Length (m)	(b) Reading at commencement (mm)	(c) Reading after 20 minutes (mm)	Actual drop per 30 m $\frac{(c)-(b)}{(a)} \times 30$ (mm)	Drop permitted per 30 m (mm)	Result	Remarks (including date of re-test if any)
	From	To								

Received by: _____ Designation: _____

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APPENDIX 7.17 BEARING AND EXPANSION JOINT PERFORMANCE RECORD FORM

Performance Report on Completion of Works by
Approved Specialist Contractors for Bearings and
Expansion Joints for Highways Structures

1. Contract No. :

2. Project Title :

3. Name of Consultant/A.P./Engineer :

4. Name of Main Contractor :

5. Approx. Value of Bearings (including installation cost) : HK$

6. Approx. Value of Expansion Joints (including installation cost) : HK$

7. Details of Bearings :

Name of Manufacturer	Type# & Model No.	Name of Specialist Contractor	No. of Bearings Installed	Location (See Note 1)	Standard of Material	Standard of Installation
Objective Comments : (See Notes 2-4 for Requirement) *(PLEASE_USE_ADDITIONAL_SHEET_IF_NECESSARY)*						

8. Details of Expansion Joints :

Name of Manufacturer	Type## & Model No.	Name of Specialist Contractor	No. (Length) of Expansion Joints Installed	Location (See Note 1)	Standard of Material	Standard of Installation
Objective Comments : (See Notes 2-4 for Requirement) *(PLEASE_USE_ADDITIONAL_SHEET_IF_NECESSARY)*						

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Prepared By : _____

Signed : _____

Name : _____

Post : PROJECT ENGINEER/ RESIDENT ENGINEER*
(Delete where appropriate)*

Date : _____

Notes :
1. The location of bearings / expansion joints should be specific (e.g. by using chainage system, movement joint no. or column/pier no.) and cross reference to the as-built record. If possible, separate location plans should be enclosed.
2. Description of movement for expansion joints and bearings performed during defects liability period.
3. The comments should included records of movements over one cycle of seasonal change (quarterly) and permissible movement range.
4. To comment on the performance whether the installed components have been performing as designed.
5. Submission of catalogues for bearings and expansion joints is required.

#Bearing Type	##Joint Type	
● Rocker Bearing ● Roller Bearing ● Knuckle Bearing ● Leaf Bearing ● Sliding Bearing ● Elastomeric (Rubber) Bearing ● Pot (Disc)Bearing ● Strip Bearing ● Laminated Bearing ● Plain Pad Bearing ● Mechanical Bearing : Reston ● Mechanical Bearing : Maurer-Spherical ● Mechanical Bearing : Maurer-Pot ● Mechanical Bearing : PSC Disc (Pot) ● Elastomeric Bearing : ● Reinforced Elastomeric ● Elastomeric Sliding ● Laminated and Pain Rubber ● Lasto Elastomeric Bearing ● Rubber-Metal-Technik (M) SDN BHD ● Other (please specify)	● ACME Trojan TR-300 ● ACME Trojan TR-400 ● ACME MSB 600 ● ASPHAPOL BURIED Joint ● Britflex BEJ Joint ● BEJ Expansion Joint ● CIPEC Wd80 ● CIPEC Wd110 ● CIPEC Wd160 ● CIPEC Wd230 ● CIPEC WP180 ● CIPEC W50 ● CIPEC W110 ● CIPEC W160 ● CIPEC W200 ● CIPEC W250 ● CIPEC WOSd ● Compression Sealant ● Compressive Rubber ● Felspan Expansion Joint ● FREYSSI P30 Joint ● FREYSSI P50 Joint ● FREYSSI P80 Joint ● Glacier GBM Series Expansion Joint	● Glacier-VSL ● Honel-132 FB ● Honel-132 FS ● Honel-161 NFS ● Honel-162 NFS ● MAGEBA Expansion Joint ● MAURER-Modular Expression Joint ● Onflex 25 with Aluminium Panel ● Onflex 25 with Elaston Panel ● Onflex 35 with Aluminium Panel ● Onflex 45 with Aluminium Panel ● SHO-BOND A-1 ● SHO-BOND A-2 ● SHO-BOND A-3 ● SHO-BOND New Cut-off Joint ● WABO Modular Joint ● WABO Stripseal System ● WSF Series of Expansion Joint ● WSL-VSL ● ZEBRAFLEX Bridge Joint ● Other (please specify)

(Please contact CHE/B&S, HyD for further information if necessary)

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APPENDIX 7.18 STANDARD LETTER FOR GRANTING EXTENSIONS OF TIME FOR COMPLETION OF CONTRACTS (Subsumed from LWBTC No. 14/85)

Dear Sir,

Contract No. _____

(Title)

I refer to your letter(s) dated …… detailing your claim(s) for extension of time for completion of the above contract.

In accordance with Clause …… of the General Conditions of Contract and on consideration of your submitted detailed particulars, *in my opinion no extension of time is due/an extension of …… days is granted. The revised date for completion is *unchanged/revised to …… .

The …… days granted is in respect of the following:

		Days
(a)	Inclement weather	
(b)	Variation work ordered	
(c)	Late supply of details/instructions	
(d)	.....	
(e)	.....	
(f)	.....	
	Total	

All known relevant factors including overlapping periods and time savings arising from variations have been taken into account in making the above assessment.

Yours faithfully,

.....
The Engineer for the Contract

c.c. To suit department needs.

*** Delete where inapplicable**

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APPENDIX 7.19 ENGINEER'S INTERIM PAYMENT CERTIFICATE

DEPARTMENT CONTRACT NO. / /

Title of Contract……
Contractor ……
Address ……
Date of commencement ..... Date/Extended date for completion ……

ENGINEER'S CERTIFICATION NO.

Payment to be made by .....
(1) Estimated value at ..... of :

(a) Work done by Contractor		$
(b) Nominated Sub-contractors' work (see attached statement)		$
(c) Materials on Site		$
(d) Other sums due to Contractor		$
	Total Estimated Value	$
(2) Deduct Retention Money (percent/maximum)		$
(3) Adjustment for Price Fluctuations (see back)	Add/Deduct	$
(4) Total		$

I certify that the total sum of the certificate is in accordance with the terms of Contract No. / /.

....
( ) Date
Engineer's Representative

EMPLOYER'S STATEMENT FOR PAYMENT

(5) Engineer's Certificate at (4)		$
(6) Deductions		
(a) Previous payments	$	
(b) Liquidated damages (see attached statement)	$	
(c) Value of materials supplied by Employer	$	
(d) Other deductions*		
…….....	$	$
Net Sum Due for Payment :		$

Passed for payment ....
for Vote Controller : Name ..... Date
Post .....
* State the contractual grounds for any such deduction

FINANCE DETAILS

Debit Expenditure
User Code : Amount
.....$
.....$

Contract Sum $
Authorised Change $
Revised Sum $

Credit Deposits - Retention Money
User Code :
.....$

Authority .....

Total gross payment to date $
(debit expenditure + retention money)

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DEPARTMENT CONTRACT NO. / /

CONTRACT PRICE FLUCTUATIONS

EFFECTIVE VALUE OF WORK

Total Estimated Value (see front)	$
DEDUCT value of Nominated Sub-contractors' work (see front - item (1)(b))	$
DEDUCT value of work based on actual cost or current price	$
DEDUCT Effective Value of work completed to previous Certificate No.	$ _____
Effective Value of work completed on this Certificate	$ _____

ADJUSTMENTS FOR PRICE FLUCTUATIONS

Certificate No.	Effective Value (EV)	Price ** Fluctuation Factor (PFF)	Actual/ On-account	Contract Price Fluctuation (EV X PFF)
	$			$
Current				
Previous				
1 to	-	-	Actual	
Total Adjustment for Price Fluctuations				

** Calculation for any PFF not previously calculated is attached.

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APPENDIX 7.20 ENGINEER'S FINAL PAYMENT CERTIFICATE

DEPARTMENT CONTRACT NO. / /

Title of Contract ……
Contractor ……
Address ……
Date of commencement ……
Due Date/extended date for completion ..... Actual date of completion .....

Payment to be made by .....

(1) Sum due under the Contract up to the date of the maintenance certificate:

(a) Work done by Contractor		$
(b) Nominated Sub-contractors' work (see attached statement)		$
(c) Other sums due to Contractor* (see attached statement)		$
(d) Adjustment for Price Fluctuations (see attached statement)		$
Total		$

(2) Credit to the Employer up to the date of the maintenance certificate:

(a) Previous payments	$	
(b) Liquidated damages (see attached statement)	$	
(c) Value of materials supplied by Employer	$	
(d) Other sums to which the Employer is entitled* (see attached statement)	$	$

(3) Balance due from **Employer to Contractor/ **Contractor to Employer $

I certify that the sum due under the Contract up to the date of the maintenance certificate and the balance due from **Employer to Contractor/**Contractor to Employer are as stated in items (1) and (3) respectively.

....
( ) Date of Certification
Engineer

* State the contractual grounds for any such sums due and/or credits
** Delete where inappropriate

EMPLOYER'S STATEMENT FOR PAYMENT

** The above balance due from Employer to Contractor is passed for Payment

** Demand Note No. ..... dated ..... in respect of the above balance due from Contractor to Employer is issued.

for Vote Controller : Signature ....
Name ..... Date
Post .....

** Delete where inappropriate

FINANCE DETAILS

Debit Expenditure
User Code: Amount
……$
……$
……$

Contract Sum $
Authorised Change $
Revised Sum $

Authority .....
Total gross payment to date $
(debit expenditure + retention money)

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DEPARTMENT CONTRACT NO. / /

CONTRACT PRICE FLUCTUATIONS

FINAL PAYMENT CERTIFICATE

EFFECTIVE VALUE OF WORK

Total value of work (see front – sum of items 1(a) and 1(c)) $

DEDUCT value of work based on actual cost or current price $

DEDUCT Effective Value of work completed to previous Certificate No. ……. $ _____

Effective Value of work completed on this Certificate $ _____

ADJUSTMENTS FOR PRICE FLUCTUATIONS

Certificate No.	Effective Value (EV)	Price ** Fluctuation Factor (PFF)	Actual/ On-account	Contract Price Fluctuation (EV X PFF)
	$			$
Final				
Previous				
1 to	-	-	Actual	
Total Adjustment for Price Fluctuations				

** Calculation for any PFF not previously calculated is attached.

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APPENDIX 7.21 VARIATION ORDER FORM

VARIATION ORDER NO. _____

Dear Sir,

Contract No. _____

(Title)

_____

_____

In accordance with Clause 60 of the General Conditions of Contract, please carry out the following:

(For example:

X/1. Additional reinforcement to walls as per enclosed Sketch No. .....

X/2. Extend surface water channel by approximately 3 m as indicated on Site.

X/3. Surface finish to all external walls of the Pumping Station to be mosaic tile.

X/4. Clean out the existing manhole adjacent to Gate No. 2.)

* In accordance with Clause 62(1) of the General Conditions of Contract, Items Nos. ..... are to be executed on daywork basis.

Yours faithfully,

.....
Name/Designation of the Engineer
or Engineer's Representative

c.c. *Engineer/Engineer's Representative

* delete where inapplicable

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APPENDIX 7.22 STANDARD LETTER FOR VARIATION ORDER/OMITTED ITEM

(Ref.: In view of the findings in Chapter 3 of the Audit Report No. 53, SDEV requested in email of 19.2.2010 to strengthen the relevant PAH Sections on omitted items for reference by works departments and, where applicable, the consultants appointed as the Engineer for the Contract.)

[VALUATION OF VARIATION ORDER NO./OMITTED ITEM]* _____

Dear Sir,

Contract No. _____
(Title)

I refer to [Variation Order No. ..... dated ..... / omitted item(s)]* as follows:-
(please provide detailed description of the omitted item(s))

In accordance with [Clause 61(1)/the proviso to GCC61(1)/ Clause 61(1) and the proviso to GCC61(1)/Clause 59(3)]* of the General Conditions of Contract, the rate(s) for [the following items of work in the said variation order/the following item(s) of works which were (was) omitted from the Bill of Quantities]* shall be as follows:

Item No.	Description	Quantity	Unit Rate	Amount

The above quantities are subject to re-measurement in accordance with the Contract.

* This valuation is/Items nos. ..... are based on prices current at the time of tender and are subject to Contract Price Fluctuations.

* This valuation is/Items nos. ..... are based on prices current on the dates on which the work was carried out and are not subject to Contract Price Fluctuations.

*Items nos. ……are valued in accordance with GCC 61(1)(c) of the General Conditions of Contract, please let me have your agreement to my assessed rates within [28 days] after receiving this letter. If your agreement is not received within the said [28 days], it will be treated as failing to reach agreement between us and I may fix such rates as shall in my opinion be reasonable and notify you accordingly.

Yours faithfully,

.....
The Engineer for the Contract

b.c.c.
D of A)
Relevant Consultants' Management Office) with current

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(for consultant-managed contracts)	) financial
Engineer's Representative	) statement
STA (or responsible Accounts Officer)	)
SE/CA (or responsible Contract Adviser)	)

* delete where inapplicable

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APPENDIX 7.22A STANDARD LETTER FOR FIXING RATES OF VARIATION ORDER/OMITTED ITEM

[VALUATION OF VARIATION ORDER NO./OMITTED ITEM]* _____

Dear Sir,

Contract No. _____
(Title)

I refer to [Variation Order No. ..... dated ..... / omitted item(s)]* as follows:-
(please provide detailed description of the omitted item(s))

I also refer to our letter ref: ..... dated ..... advising you the rates of the items therein.

Since an agreement cannot be reached on the following item(s), in accordance with Clause 61(2) of the General Conditions of Contract, the rate(s) for [the following items of work in the said variation order / the following item(s) of works which were (was) omitted from the Bill of Quantities]* shall be fixed as follows:

Item No.	Description	Quantity	Unit Rate	Amount

The above quantities are subject to re-measurement in accordance with the Contract.

* This valuation is/Items nos. ……. are based on prices current at the time of tender and are subject to Contract Price Fluctuations.
* This valuation is/Items nos. ……..are based on prices current on the dates on which the work was carried out and are not subject to Contract Price Fluctuations.

Should you intend to claim a higher rate than for [the above item / any of the above items]* pursuant to Clause 64(1) of the General Conditions of Contract, please notify me within 28 days from the date of this letter. Otherwise, the rate(s) fixed above [is/are]* deemed to be accepted.

Yours faithfully,

.....
The Engineer for the Contract

b.c.c.
D of A)
Relevant Consultants' Management Office) with current
(for consultant-managed contracts)) financial
Engineer's Representative) statement
STA (or responsible Accounts Officer))
SE/CA (or responsible Contract Adviser))

* delete where inapplicable

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APPENDIX 7.23 CURRENT FINANCIAL STATEMENT

(Ref.: In view of the findings in Chapter 3 of the Audit Report No. 53, SDEV requested in email of 19.2.2010 to strengthen the relevant PAH Sections on omitted items for reference by works departments and, where applicable, the consultants appointed as the Engineer for the Contract.)

Appendix to Valuation of Variation/Omitted Item No. .....
..... DEPARTMENT
..... OFFICE/REGION/DIVISION
CURRENT FINANCIAL STATEMENT
(For internal use only, not to be issued to Contractor)

Current approved contract sum (C)	_____
(Approval ref. ..... dated ….....)	
Anticipated final value of billed items (excluding omitted items)	.....
Value of valuation of omitted items issued	.....
Value of VOs issued	.....
Value of other sums certified to date (e.g. claims)	.....
CPF certified to date	.....
Sub-total (X)	_____

Contingency available before issue of this valuation (P) = (C - X).....
Value of this valuation (V) .....
* Contingency available after issue of this valuation (Q) = (P -V)
.....

Estimated value of other work not yet covered

by valuation of variation and/or omitted item	.....
Anticipated value of outstanding claims	.....
Anticipated further sum against CPF	.....
Any other items (give details)	.....
Sub-total (Z)	_____

Anticipated further increase in contract sum (I) = (Z - Q) ……..
Anticipated Final Contract Sum (F) = (C + I)
Note: The original contract sum was .....
The original contingency was .....
* if Q < 0, an increase in contract sum is required
# if Q > Z, I = 0

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APPENDIX 7.24 STANDARD LETTERS REGARDING NOTICE OF CLAIM

APPENDIX 7.24.1

(Standard letter to be sent to the Contractor when the notice of claim under GCC Clause 64(2) does not refer to the clause(s) upon which the claim is based)

Dear Sir,

Contract No. _____

(Title)

_____

_____

Notice of Claim

I acknowledge receipt of your letter ref. ……. dated …….. notifying me under GCC Clause 64(2) of your intention to claim. However, as your letter does not state the contractual provision upon which your claim is based and is not therefore considered as a valid notice under GCC Clause 64(2), I am unable to consider your claim pursuant to GCC Clause 64(5) unless the aforementioned contractual provision is given.

Yours faithfully,

.....
The Engineer for the Contract

c.c. SE/CA (or responsible Contract Adviser)

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APPENDIX 7.24.2

(Standard letter to be sent to the Contractor when the notice of claim under GCC Clause 64(1) has not been served within the stipulated 28-day period)

Dear Sir,

Contract No. _____

(Title)

_____

_____

Notice of Claim

I acknowledge receipt of your letter ref. ……. dated …….. notifying me under GCC Clause 64(1) of your intention to claim a higher rate than one notified by me to you in my letter ref. ……. dated …….. pursuant to *GCC Clause 59(4)(b)/61(2)/84(4)(b).

As your notice has not been served on me within the 28-day period stipulated under GCC Clause 64(1) and in accordance with GCC Clause 64(5), I am unable to consider your claim.

Yours faithfully,

.....
The Engineer for the Contract

c.c. SE/CA (or responsible Contract Adviser)

* Delete where inapplicable

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APPENDIX 7.24.3

(Standard letter to be sent to the Contractor when the notice of claim under GCC Clause 64(2) has not been served within the stipulated 28-day period)

Dear Sir,

Contract No. _____

(Title)

_____

_____

Notice of Claim

I acknowledge receipt of your letter ref. ……. dated …….. notifying me under GCC Clause 64(2) of your intention to claim an additional payment.

According to my records, the event to which you refer occurred on …….. In my opinion, your notice has not been served on me within the 28-day period stipulated under GCC Clause 64(2) and, in accordance with GCC Clause 64(5), I am unable to consider your claim.

Yours faithfully,

.....
The Engineer for the Contract

c.c. SE/CA (or responsible Contract Adviser)

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APPENDIX 7.24.4

(Standard letter to be sent to the Contractor when the notice of claim has been served under GCC Clause 64(1).)

Dear Sir,

Contract No. _____

(Title)

_____

_____

Notice of Claim

I acknowledge receipt of your letter ref. ……. dated …….. notifying me under GCC Clause 64(1) of your intention to claim a higher rate than one notified by me to you in my letter ref. ……. dated …….. pursuant to *GCC Clause 59(4)(b)/61(2)/84(4)(b).

I acknowledge that your notice has been served within the 28-day period stipulated under GCC Clause 64(1). The number ……. has been assigned to this claim and should be referred to in all our future correspondence.

In accordance with GCC Clause 64(3), you are required to give me details of the records you are keeping as may reasonably be necessary to support your claim. I would then advise you of any additional records I wish you to keep and agree with the Engineer's Representative.

I have studied your claim and consider that a period of ….. days from the date of this letter would be reasonable time within the meaning of GCC Clause 64(4) for the submission of your first interim account. Further submissions should then be made at *monthly/(or other as specified by the Engineer) intervals thereafter.

You are reminded that if you fail to comply with any of the above, I may consider your claim only to the extent that I am able on the information made available to me as stipulated under GCC Clause 64(6).

Yours faithfully,

.....
The Engineer for the Contract

c.c. SE/CA (or responsible Contract Adviser)

* Delete where inapplicable

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APPENDIX 7.24.5

(Standard letter to be sent to the Contractor when the notice of claim has been served under GCC Clause 64(2).)

Dear Sir,

Contract No. _____

(Title)

_____

_____

Notice of Claim

I acknowledge receipt of your letter ref. ……. dated …….. notifying me under GCC Clause 64(2) of your intention to claim an additional payment under GCC Clause(s) …...

I acknowledge that your notice has been served within the 28-day period stipulated under GCC Clause 64(2). The number ……. has been assigned to this claim and should be referred to in all our future correspondence.

In accordance with GCC Clause 64(3), you are required to give me details of the records you are keeping as may reasonably be necessary to support your claim. I would then advise you of any additional records I wish you to keep and agree with the Engineer's Representative.

I have studied your claim and consider that a period of ….. days from the date of this letter would be reasonable time within the meaning of GCC Clause 64(4) for the submission of your first interim account. Further submissions should then be made at *monthly/(or other as specified by the Engineer) intervals thereafter.

You are reminded that if you fail to comply with any of the above, I may consider your claim only to the extent that I am able on the information made available to me as stipulated under GCC Clause 64(6).

Yours faithfully,

.....
The Engineer for the Contract

c.c. SE/CA (or responsible Contract Adviser)

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APPENDIX 7.25 STANDARD LETTER FOR CERTIFYING CLAIMS

Dear Sir,

Contract No. _____

(Title)

_____

_____

I refer your letter ref. ……. dated …….. and subsequent correspondence detailing your claim for additional payment under Clause ……. of the General Conditions of Contract.

From the information made available to me, I have ascertained that payment in the sum of ……..... is due to you in accordance with the above Condition of Contract.

This sum *is/is not subject to Contract Price Fluctuations.

Yours faithfully,

.....
The Engineer for the Contract

b.c.c. D of A
Relevant Consultants' Management Office
(for consultant-managed contracts)
Engineer's Representative
STA (or responsible Accounts Officer)
SE/CA (or responsible Contract Adviser)

* Delete where inapplicable

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APPENDIX 7.26 WARNING LETTER PRIOR TO DETERMINATION OF CONTRACTOR'S EMPLOYMENT

REGISTERED POST

CONFIDENTIAL & URGENT

Dear Sir,

Contract No. _____

(Title)

_____

_____

I refer my letter(s) ref. ……. dated …….. (quote relevant correspondence).

I consider that insufficient corrective action has been taken and I hereby now require you to (describe corrective action(s), e.g. remove unsatisfactory work, proceed with due diligence, remove sub-contractors).

If after receiving this Notice you fail to so proceed, I shall after the expiration of 14 days (or more should any other time appear to be appropriate) from the date of this Notice certify to the Employer that in my opinion you have failed to (correct the matter as set out above) and shall advise the Employer to exercise the power of Clause 81 of the General Conditions of Contract that of entering upon the Site and expelling you therefrom.

Yours faithfully,

.....
The Engineer for the Contract

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c.c. SFST
SDEV (Attn: DS(W)2, PAS(W)3 & CTA(F))
LA(W), DEVB
D of A
D of DS }
DWS } Please provide, BY FAX and copied to
DEMS } CTA(F), ETWB, with details of all contracts
D Arch S } that your Department have with the above-
D of Hy } addressed Contractor for which further
DCED } payment has yet to be made by the
D of H } Employer under these contracts. Nil
DAFC } returns are required.
DHA }
DEP }
SE/CA (or responsible Contract Adviser)
STA (or responsible Accounts Officer)
Engineer's Representative
Bondsman, Messrs. (Name)} By registered post
(Address)

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APPENDIX 7.27 RECOMMENDATION FOR DETERMINATION OF CONTRACTOR'S EMPLOYMENT

CONFIDENTIAL

To *DCED/DHy//DDS/DWS
thro' Government officer authorised to sign the Contract on behalf of the Government

Contract No. _____

(Title)

_____

_____

I hereby certify that on (quote relevant date) by letter ref. ……, I served upon (insert Contractor's name), the Contractor for the above works a written notice requiring him to (detail what corrective action(s) was/were required) and that in my opinion he has failed to do so.

Accordingly, I hereby recommend that pursuant to Clause 81 of the General Conditions of Contract, 7 days notice in writing should now be given to the Contractor of your intention to enter upon the Site and expel the Contractor therefrom.

I enclose herewith a notice of determination of Contractor's employment for your perusal and signature please. The notice of determination of Contractor's employment has been cleared with LA(W), DEVB.

.....
The Engineer for the Contract

c.c. SE/CA (or responsible Contract Adviser)
STA (or responsible Accounts Officer)
Engineer's Representative

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APPENDIX 7.28 NOTICE OF DETERMINATION OF CONTRACTOR'S EMPLOYMENT

REGISTERED POST (OR BY HAND)

Contract No. _____

(Title)

_____

_____

To: (Contractor's Name)

WHEREAS:

(1) By Articles of Agreement dated the …….. day of (month), (year) and made between you as the Contractor and the Government of the Hong Kong Special Administrative Region it was agreed that you would construct the above Works for the consideration therein stated.

(2) By Clause 81 of the General Conditions of Contract annexed to and incorporated with the said Articles of Agreement I am empowered to enter upon the Site and the Works and expel you therefrom upon the Engineer certifying in writing to me that in his opinion you have (detail the fault e.g. failed to proceed with the Works with due diligence) and provided that I give you 7 days notice in writing of my intention to enter upon the Site and the Works and expel you therefrom.

(3) The Engineer has certified in writing to me that in his opinion you have failed to (detail what was required in (2)).

NOW THEREFORE TAKE NOTICE that acting under the power reserved by Clause 81 of the said General Conditions of Contract I will on the …….. day of (month), (year) at ……. o'clock enter upon the Site and the Works and take the same entirely out of your hands and I have authorised the Engineer to take possession of the Constructional Plant, Temporary Works and materials on the Site and the Works on behalf of the Government of the Hong Kong Administrative Region and the same shall be determined.

Dated the …….. day of (month) of (year).

_____

Director of *Civil Engineering & Development /
Highways / Drainage Services / Water Supplies
On behalf of the Government of the
Hong Kong Administrative Region

* Delete where inapplicable

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c.c. (Urgent)
SFST
SDEV (Attn: DS(W)2, PAS(W)3 & CTA(F)) }
LA(W), DEVB }
D of A }
D of DS }
DWS } Please be advised that the above
DEMS } Contract contains set-off provisions
D Arch S } for recovery of monies due to the
D of Hy } Employer
DCED }
D of H }
DAFC }
DHA }
DEP }
C of IR }
SE/CA (or responsible Contract Adviser)
STA (or responsible Accounts Officer)
The Engineer for the Contract
Engineer's Representative
(Relevant) CE(s)
(Relevant) SE(s)
(Relevant) E(s)
Bondsman, Messrs. (Name) } By registered post
(Address)

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APPENDIX 7.29 NOTICE TO BONDSMAN

REGISTERED POST

Dear Sir,

Contract No. _____

(Title)

_____

_____

I refer to the Bond dated ……. into which you entered as Surety for the above Company in the sum of …….. for the execution of the above Contract.

I wish to advise you that, pursuant to a notice served upon the above Company advising them that (describe the reason), the Government of the Hong Kong Special Administrative Region entered upon the Site and possessed the above Contract on (insert time, day, month and year).

I am now in the process of re-letting the above Contract to ensure that the Works are completed and upon such completion, I will finalise the account between the Government of the Hong Kong Special Administrative Region and the above Company.

It is anticipated that the final account will show a balance due from the above Company to the Government of the Hong Kong Special Administrative Region and in that connection it may be necessary for the Government of the Hong Kong Special Administrative Region to call upon your Company for payment under the terms of the Bond. I would emphasis that this letter is not a demand for payment but serves only to put you on notice that a claim under the Bond may be made on you in due course.

Yours faithfully,

_____

(Designation of the Government Officer authorised to sign contract on behalf of the Government of the Hong Kong Special Administrative Region)

.....Department

c.c. Contractor - (By registered post)
LA(W), DEVB
D of A
SE/CA (or responsible Contract Adviser)
The Engineer for the Contract
Engineer's Representative
Relevant CE

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APPENDIX 7.30 REQUEST FOR EMPLOYING ANOTHER / TERM CONTRACTOR TO CARRY OUT URGENT REMEDIAL / REPAIR WORKS

URGENT BY HAND

To *DCED/DHy//DDS/DWS
thro' Government officer authorised to sign the Contract on behalf of the Government

Contract No. _____

(Title)

_____

_____

I instructed the Contractor, Messrs. ……. under my letter ref. …… dated …….. (copy attached), to carry out *remedial/repair works which in my opinion were urgently necessary for (give reason for the work, e.g. security, safety). The Contractor has failed to take *any/appropriate action in this matter within the stipulated time and your authority is hereby requested to take action under Clause 82(2) of the General Conditions of Contract to remedy the situation.

After due consideration of all the pertaining factors, I am of the opinion that the most expedient way of resolving the matter in hand will be to employ the *Term Contractor/the Contractor Messrs. ……. to carry out the required remedial/repair work.

Upon receipt of your authority to the above, I will advise the Contractor, Messrs. ……. of the action being taken and issue the necessary *order/instruction to the Contractor, Messrs. ……. to complete the required *remedial/repair work.

.....
The Engineer for the Contract

c.c. SE/CA (or responsible Contract Adviser)
STA (or responsible Accounts Officer)
Engineer's Representative

* Delete where inapplicable

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APPENDIX 7.31 LETTER INFORMING THE CONTRACTOR OF EMPLOYING OTHERS TO CARRY OUT URGENT REMEDIAL / REPAIR WORKS

BY REGISTERED POST (OR BY HAND)

Dear Sir,

Contract No. _____

(Title)

_____

_____

Notwithstanding my letter ref. ……. dated …….. requesting you to carry out *remedial/repair works which in my opinion were urgently necessary for (give reason for the work, e.g. security, safety), you have failed within the stipulated period to comply with such request. Pursuant to Clause 82(2) of the General Conditions of Contract, I am obliged to take immediate action in this regard by authorising the carrying out of the above works by others.

The works comprise ……. and will be carried out by Messrs. ……..

You are hereby reminded of your liability under Clause 82(2) of the General Conditions of Contract that all additional expenses properly incurred arising therefrom shall be recoverable under the Contract. All concerned works undertaken will be measured and recorded separately. I will inform you on the actual expenses incurred as soon as it is ascertained.

Yours faithfully,

.....
The Engineer for the Contract

c.c. * DCED/DHy/DDS/DWS (thro' Government officer authorised to sign the Contract on behalf of the Government)
SE/CA (or responsible Contract Adviser)
STA (or responsible Accounts Officer)
Engineer's Representative

* Delete where inapplicable

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APPENDIX 7.32 CERTIFICATE OF COMPLETION IN RESPECT OF A PART OF THE WORKS

Dear Sir,

Contract No. _____

(Title)

_____

_____

Certificate of Completion No. ….
in respect of a part of the Works

In accordance with Clause 53 of the General Conditions of Contract, I hereby certify that the part of the Works as detailed in the attached Appendix and/or Drawing No. ……. was completed on (date).

Yours faithfully,

.....
The Engineer for the Contract

c.c. D of A
Head of Office/Branch/Region
STA (or responsible Accounts Officer)
SE/CA (or responsible Contract Adviser)
Engineer's Representative

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APPENDIX 7.33 CERTIFICATE OF COMPLETION IN RESPECT OF A SECTION OF THE WORKS

Dear Sir,

Contract No. _____

(Title)

_____

_____

Certificate of Completion No. ….
in respect of a Section of the Works

In accordance with Clause 53 of the General Conditions of Contract, I hereby certify that Section ……..…. was substantially completed on (date).

Yours faithfully,

.....
The Engineer for the Contract

c.c. D of A
CTA(F), DEVB
Head of Office/Branch/Region
STA (or responsible Accounts Officer)
SE/CA (or responsible Contract Adviser)
Engineer's Representative

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APPENDIX 7.34 CERTIFICATE OF COMPLETION OF THE WORKS

Dear Sir,

Contract No. _____

(Title)

_____

_____

Certificate of Completion of the Works

In accordance with Clause 53 of the General Conditions of Contract, I hereby certify that the Works were substantially completed on (date).

* Two copies of the completed form "Release of Surety Bond" are attached herewith.

* Please return your Treasury Receipt for the security deposit amounting to ……. so that arrangement can be made for its release.

Yours faithfully,

.....
The Engineer for the Contract

c.c. D of A
CTA(F), DEVB
Head of Office/Branch/Region
STA (or responsible Accounts Officer)
SE/CA (or responsible Contract Adviser)
Engineer's Representative

* Delete where inapplicable

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APPENDIX 7.35 CERTIFICATE OF RELEASE OF SURETY BOND

Contract No. _____

(Title)

_____

_____

RELEASE OF SURETY BOND

PART A Instruction to Contractor

To obtain the release of the surety bond for this Contract, please arrange to ave one copy of this form presented by your authorised representative to the Accounts Division/Section, *CEDD/DSD/HyD/WSD HQ at

(Address of Accounts Division/Section, Departmental Headquarters)

Your representative should bring with him the certificate of completion issued for this Contract, his HK Identity Card and your company chop.

In exchange for the surety bond your representative will be required to complete Part B of this form which will be retained by *CEDD/DSD/HyD/WSD.

Instruction to Accounts Division/Section,*CEDD/DSD/HyD/WSD HQ

The certificate of completion in respect of this Contract was issued on (date) and the surety bond in the sum of …… may now be released to the Contractor.

_____ _____

Date ( )

The Engineer for the Contract

* Delete where inapplicable

PART B Certification of Receipt by Contractor

I hereby certify that the surety bond for the above Contract was received by me today.

_____ _____

Date Signature of Authorised Representative

(Name)

_____

Name and chop of Contractor

Original – for Contractor's presentation to departmental headquarters
Duplicate – for Contractor's retention
Triplicate – for departmental headquarters

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APPENDIX 7.36 MAINTENANCE CERTIFICATE

Dear Sir,

Contract No. _____

(Title)

_____

_____

Maintenance Certificate of the Works

{*For contracts which do not require PII OR contracts which require PII and the policy covers the requisite 6-year period:}

In accordance with Clause 80 of the General Conditions of Contract, I hereby certify that you, as the Contractor for the above Contract, have completed your obligation to execute the Works on (date).

{*For contracts which require PII but the policy does not cover the requisite 6-year period:}

In accordance with Clause 80 of the General Conditions of Contract, I hereby certify that you, as the Contractor for the above Contract, have completed your obligation to execute the Works on (date), but not continuing obligations under the Contract including without limitation those under Special Conditions of Contract [*insert number*] for Professional Indemnity Cover.

Yours faithfully,

.....
The Engineer for the Contract

c.c. D of A
CTA(F), DEVB
Head of Office/Branch/Region
STA (or responsible Accounts Officer)
SE/CA (or responsible Contract Adviser)
Engineer's Representative

**** Incorporate as appropriate***

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APPENDIX 7.37 ENGINEER'S CERTIFICATE FOR PAYMENT OF RETENTION MONEY

APPENDIX 7.37.1 Engineer's Certificate for Payment of Retention Money

(To be used where Nominated Sub-contractors are not engaged)

FORM A

Contract No. _____

Title of Contract: _____

Contractor: _____

Address: _____

Date of issue of Maintenance Certificate: _____

ENGINEER'S CERTIFICATE FOR PAYMENT OF RETENTION MONEY

I hereby certify the payment of Retention Money in the amount of $ _____ .

_____ _____

( ) Date of Certification

The Engineer for the Contract

EMPLOYER'S STATEMENT FOR PAYMENT

(1) Retention Money due $

(2) *Deductions:

(i) $

(ii) $ $ _____

Net sum due for payment: $ _____

Payment to be made by _____ (state deadline date for payment to Contractor)

Passed for payment for Vote Controller: Signature: _____ Name: _____ Post: _____ Date: _____

* List new deductions after the last interim payment certificate and state the contractual ground for such deductions.

FINANCE DETAILS

Credit Expenditure/Revenue

User Code : Amount

..... $

..... $

..... $

Debit Deposits - Retention Money User Code :

..... $

Total gross payment to date

$

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APPENDIX 7.37.2 Engineer's Certificate for Payment of Retention Money
(To be used where Nominated Sub-contractors are engaged)

FORM B

Contract No. _____
Title of Contract: _____
Contractor: _____
Address: _____
Date of issue of Maintenance Certificate: _____

ENGINEER'S CERTIFICATE FOR PAYMENT OF RETENTION MONEY

I hereby certify the payment of Retention Money in the amount of $_____ which sum includes Retention Money due to Nominated Sub-contractors as detailed in the attached schedule.

_____.
( )
The Engineer for the Contract

_____
Date of Certification

EMPLOYER'S STATEMENT FOR PAYMENT

(1)	Retention Money due		$
(2)	*Deductions:		
	(i)	$	
	(ii)	$	$ _____
		Net sum due for payment:	$ _____

Payment to be made by _____ (state deadline date for payment to Contractor)

Passed for payment for Vote Controller: Signature: _____ Name: _____ Post: _____ Date: _____

* List new deductions after the last interim payment certificate and state the contractual ground for such deductions.

FINANCE DETAILS

Credit Expenditure/Revenue
User Code : Amount
..... $
..... $
..... $
Debit Deposits - Retention Money User Code :
..... $

Total gross payment to date

$

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CONTRACT NO. _____

Schedule of Retention Money due to Nominated Sub-contractors

The Retention Money due to Nominated Sub-contractors is as follows:

Name of Nominated Sub-contractor	Amount of Retention Money due

_____
( )
The Engineer for the Contract

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APPENDIX 7.38 REPORT ON COMPLETION OF CONTRACT

_____ DEPARTMENT

Contract No. _____

(Title)

_____

_____

REPORT ON COMPLETION OF CONTRACT

1. Brief description of Works _____
   _____

2. Original Contract Sum $ _____

3. Final Contract Sum + $ _____

4. Excess/saving on Contract Sum $ _____

5. Excess due to
   (a) Variations $ _____
   (b) Price fluctuation $ _____
   (c) Claims $ _____
   (d) Others $ _____

6. Original estimated time for completion of the Works _____ days

7. Date of commencement of the Works _____

8. Date of substantial completion of the Works _____

9. Actual time taken to complete the Works _____ days

10. Extension of time granted for completion _____ days

11. Deduction of liquidated damages for:
    (a) Section _____, _____ days (@ $ _____ /day) $ _____
    (b) Section _____, _____ days (@ $ _____ /day) $ _____
    (c) Whole of the Works, _____ days (@ $ _____ /day) $ _____

12. Maintenance Period was from _____ to _____.

13. Retention Money $ _____ has been released to the Contractor on _____.

_____
( )
The Engineer for the Contract
Designation _____
Date _____

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c.c. D of A
SEO(PS), DEVB
STA (or responsible Accounts Officer)
SE/CA (or responsible Contract Adviser)
CTA(F), DEVB
Head of Office/Branch/Region
Engineer's Representative

Legend:
+ For the avoidance of doubt, this is the sum **after** deductions such as liquidated damages made under the Contract.

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APPENDIX 7.39 MANUAL FOR TECHNICAL AUDITS ON WORKS CONTRACTS

(Subsumed from ETWB TCW No. 53/2002 & Ref.: SDEV's memo ref. () in ETWB(W) 545/83/02 Pt. 2 dated 17.8.2007)

Manual for Technical Audits

on

Works Contracts

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This Manual is intended for use in the technical auditing of architectural, civil, electrical and mechanical engineering capital works and maintenance contracts carried out in works departments. It covers the tendering and construction stages of contracts. This Manual serves as a guide only and does not purport to be exhaustive.

This Manual consists of two parts:

PART I - INTRODUCTION

This gives a brief description of the definition, types and objectives etc. of audits, and is particularly useful to officers who have not received any formal audit training.

PART II - THE AUDIT PROCESS

This describes technical audits at various stages of a contract and outlines the procedures to be followed. Checklists and standard pro-forma Technical Audit Reports are given at annexes.

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Technical Audits at Various Stages of a Contract
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PART I - INTRODUCTION

Definition of Audit

1. **An audit can be defined as a systematic and independent examination of specific activities carried out by an individual or a group of individuals, in order to determine whether such activities and related results comply with planned arrangements, and whether these arrangements are implemented effectively and are suitable to achieve objectives.**

Internal and External Audits

2. **An internal audit is an audit carried out by one organisation on itself. It is also called a first party audit.**

3. **An external audit is an audit carried out by one organisation on another. A second party audit is an external audit carried out by one organisation, working on its own behalf, on another (e.g. an audit carried out by a contractor on its material supplier). A third party audit is an external audit carried out by an independent organisation on another organisation (e.g. an audit carried out by an accredited certification body on a contractor for the purpose of ISO 9000 certification).**

4. **Procedures laid down in this Manual are applicable to internal audits only.**

Types of Audit

5. **There are two main types of audit:**

Adequacy Audit

6. **This is also known as a system or management audit. Its objective is to determine the extent to which the documented system and the associated procedures adequately meet the requirements of the organisation or the applicable quality standard.**

Compliance Audit

7. **This is an audit which seeks to establish the extent to which the relevant standards, the documented system and the associated procedures are implemented and observed by the staff.**

8. **Procedures laid down in this Manual are mainly for compliance audits.**

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Technical Audit

9. A technical audit is an internal audit which concentrates on the technical aspects only. For works contracts, a technical audit essentially examines whether the project staff have observed laid down procedures/requirements and exercised reasonable and adequate professional skill in carrying out their duties.

Objectives of Technical Audits

10. The following objectives should be borne in mind when carrying out technical audits on works contracts:

a) to check whether laid down procedures/requirements are strictly complied with by project staff, and if not, the reasons for non-compliance (Note that if any laid down procedures are found out-dated or no longer practicable during the course of the audit, such procedures should be brought to the attention of the authorities which laid down the procedures together with suggestions, where applicable);

b) where appropriate, to check objectively whether reasonable skill and care have been exercised by project staff in carrying out their technical duties (for example, no over-certification or under-certification of payments, prompt issuance of site instructions etc.); and

c) where laid down procedures/requirements are not being followed by project staff, to recommend measures which may be applied to prevent future repetition.

11. A positive attitude of mind should always be adopted by officers carrying out audit work (hereinafter referred to as audit officers). However, it carries no implication that audit officers shall not report any malpractice by project staff that clearly surfaced from the audit findings.

Handling of Classified Documents

12. When an audit process touches on classified documents, such documents and hence the Technical Audit Report should be properly handled in accordance with the procedures set out in the Security Regulations and the prevailing circulars.

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Audit Officer

13. Audit officers shall obtain complete and accurate information about specific activities they are auditing.

14. Apart from being objective and independent, audit officers should also be:

diplomatic	**observant**	**interested**
unbiased	**inquiring**	**industrious**
open minded	**analytical**	**patient**
resilient	**trained**	**able to communicate well**

15. On the other hand, the following are attributes unfavourable to the work of audit officers:

gullible	**opinionated**	**nit picking**
cynical	**argumentative**	**accepts things at face value**

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PART II - THE AUDIT PROCESS

Technical Audit Programme

16. Each Contract Adviser should submit quarterly Activity Reports on technical audits in accordance with paragraph 21.2.1 of PAH Chapter 7. The contracts chosen to be audited should, as far as practicable, be of different sizes and types of works and be managed by different officers.

Technical Audits at Various Stages of a Contract

17. Technical audits of works contracts shall, as far as practicable, cover various stages of a contract. These stages include:

- **a) tender documents preparation;**
- **b) tendering;**
- **c) tender assessment;**
- **d) construction; and**
- **e) final account including claims settlement.**

18. Where it is impracticable to audit all the above stages, the Contract Adviser shall determine which work stage(s) should be audited.

Planning and Preparing for Technical Audit

19. Before conducting the technical audit on a chosen contract, the Contract Adviser shall:

- **a) review the last Technical Audit Report (if any) on the contract, and note the areas of non-compliances and any follow up actions required to be taken;**
- **b) define the scope of the audit, whether it will cover all or some of the stages of the contract;**
- **c) prepare a time schedule indicating the dates on which the audit will take place. Preliminary contacts with the project staff concerned may be helpful in fixing mutually convenient dates;**
- **d) determine the number of audit officers required to carry out the audit, and nominate a leader (hereinafter referred to as an audit leader) if more than one audit officer are required;**
- **e) notify in writing the project staff of the contract to be audited. Such notification shall include the time schedule of the audit, name(s) of the audit officer(s) and the relevant documents (e.g. project files, tender documents, contract documents, payment certificates, measurements and**

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valuations of variations etc.) required to be made available for pre-audit reading by the audit officers; and

f) ensure that audit officers are informed of the details of the contract to be audited, the scope and time schedule of the audit, and the standards to be used as a basis of the audit.

20. The following documents shall, where applicable, be the standards to be used as the basis of the technical audit:

a) Environment, Transport and Works Bureau Technical Circular (Works);
b) Works Branch Technical Circulars/Works Bureau Technical Circulars;
c) Financial Circulars;
d) Departmental Technical Circulars/Instructions;
e) Relevant Building/Engineering Manuals and/or Handbooks;
f) Relevant General Conditions of Contract;
g) Relevant General Specifications and Standard Drawings;
h) Relevant Standard Method of Measurement;
i) Contract Documents and Supplementary Agreements (if any);
j) Consultancy Agreements; and
k) Any other relevant written policies, circulars, instructions or procedures which the Contract Adviser considers appropriate.

Opening Meeting

21. The technical audit shall start with an Opening Meeting. It serves as an introductory meeting and shall be chaired by the audit leader (if any) and attended by all audit officers and project staff of the contract to be audited. (If there is only one audit officer carrying out the audit, that audit officer shall assume the duties of the audit leader.)

22. At the Opening Meeting, the audit leader shall:

a) introduce himself/herself and the audit officers;

b) briefly describe the scope and time schedule of the audit, the relevant standards to be used as the basis of the audit, the meaning of a non-compliance, and the method of reporting;

c) ascertain which project officer is responsible for which parts/aspects of the contract to be audited, including the arrangement of guides for touring the site (if necessary);

d) explain that before the preparation of the Technical Audit Report, the project staff will be informed at the Closing Meeting of any major non-compliances found during the audit, and will be asked to give their views and/or explanations for such non-compliances; and

e) invite and answer any questions the project staff may have about the audit.

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Conducting Technical Audit

23. **For contracts in Arch SD, audit officers shall audit, as far as applicable but not necessarily restricted to, the items in the Checklist at Annex A. For contracts in other departments using the Project Administration Handbook for Civil Engineering Works, audit officers should audit, as far as possible but not necessarily restricted to, the items in the Checklist at Annex B. For other contracts, audit officers should prepare a similar checklist with reference to the corresponding laid down procedures/requirements in the department. The Contract Adviser should be consulted in case of doubt.**

24. **It is usually necessary to carry out file perusals, staff interviews and site visits during the course of the audit. These works shall be so arranged as to minimize disruption to both the project staff and the construction works.**

25. **Personal checklists and aides-memoire are useful tools to audit officers. However, care must be taken to ensure that they do not restrict enquiry. Audit officers shall always be prepared to follow up other lines of enquiry which could lead to information discovery.**

26. **All notes, checklists, aides-memoire together with other information found during the audit should be properly kept by the audit officers for future reference when necessary.**

27. **The following are some useful auditing skills:**

a) **let project staff talk freely. Unless the talk diverts from the topic, audit officers should avoid interrupting as more information may be gathered from the talk;**

b) **do not argue with the project staff or criticize their work. This will only cause ill feelings and could be obstructive to later auditing work;**

c) **do not initiate to tell project staff how to do their work as this may cause ill feeling. However, audit officers when requested by the project staff, should advise the correct procedures to be followed when carrying out their duties;**

d) **ensure that questions are put at the right level. For example, questions about operations are directed to the working level whereas questions about management and control are directed to the management level. This will ensure that the correct answers are obtained and time is not wasted;**

e) **be polite in delivering questions. A rude or suspicious attitude will not generate cooperation from project staff;**

f) **avoid asking leading questions (i.e. questions in the form of a statement and will only require a simple answers of "yes" or "no"). The project**

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**officer who answers such questions may give answers that he/she thinks will best protect him/her, whether or not they are true answers. Instead, audit officers should ask open questions wherever possible. Open questions normally begin with the words: "where.....; what.....; when.....; how.....; why.....; who.....; please show me ....."; **

g) distinguish between facts and opinions in statements expressed or answers provided by project staff;

h) be cautious of inefficient use of time by following false trails or attention on the minor and unimportant many;

i) carefully monitor progress of the audit so that the entire scope of the audit is covered as scheduled. Unless new issues with significant implications or non-compliances are found, departure from the original schedule should be avoided; and

j) try to programme interviews and site visits to fit the project staff's working hours, e.g. lunch break at a particular site may not be the same as that at head office.

Closing Meeting

28. At the end of the technical audit but prior to the preparation of the Technical Audit Report, the audit leader shall arrange a Closing Meeting with the project staff. The Meeting should be chaired by the audit leader and, whenever possible, involve the same people who attended the Opening Meeting.

29. Before holding the Closing Meeting, the audit leader should carefully review the findings of the audit to ensure that the entire scope of the audit is covered and that all non-compliances found are based on sound and objective evidence.

30. At the Closing Meeting, the audit leader shall:

a) recapitulate the scope of the audit, the relevant standards used as the basis of the audit and the meaning of a non-compliance;

b) state that although many things were found to be in compliance with the standards, only non-compliances and findings of significance will be reported;

c) give a disclaimer that it is possible that not all non-compliances which exist were identified during the audit;

d) describe the major non-compliances and/or other findings of special interest, and ask project staff to give their views and/or explanations on such non-compliances and/or findings;

e) state that all audit findings will be submitted to the Head or Deputy Head of Departments, or equivalent, in the form of a Technical Audit Report;

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and that appropriate recommendations will be included in the Report; and

f) invite and answer any questions that the project staff may have.

Technical Audit Report

31. After the Closing Meeting, the audit leader shall prepare and submit the Technical Audit Report as soon as practicable to the Contract Adviser for endorsement and onward submission to the Head or Deputy Head of Department, or equivalent.

32. For technical audits in Arch SD, the standard proforma Technical Audit Report at Annex C shall be used. For technical audits in all other works departments, the standard proforma Technical Audit Report at Annex D shall be used. The items listed in "Part III - Audit Findings" of these Reports follow the same sequence as the items listed in the corresponding Checklists at Annexes A and B.

33. In preparing the Technical Audit Report, care should be taken to avoid minor non-compliances being reported out of proportion.

Follow up Actions

34. Upon perusal of the Technical Audit Report, the Head or Deputy Head of Department, or equivalent, shall determine the follow up actions in accordance with PAH 7.21.2.4 and 7.21.2.5 .

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Annex A - Checklist for Architectural Services Department Contracts

Abbreviations

AOTI	**Architectural Office Technical Instruction**
Arch SD	**Architectural Services Department**
ASDTI	**Architectural Services Department Technical Instruction**
BSB	**Building Services Branch**
ETWB TCW	**Environment, Transport and Works Bureau Technical Circular (Works)**
FC	**Financial Circular**
GCC(BW)	**General Conditions of Contract for Building Works (1999 Edition)**
PAH	**Project Administration Handbook for Civil Engineering Works**
PAHx.x	**First digit = Chapter number. Second digit = Section number**
PAHx.x.x	**First digit = Chapter number. Second & third digit = Paragraph number**
PWDTC	**Public Works Department Technical Circular**
QSTI	**Quantity Surveying Technical Instruction**
SPRs	**Stores and Procurement Regulations**
WBTC	**Works Branch Technical Circular/Works Bureau Technical Circular**

A. PRE-CONTRACT

	ITEMS	REQUIREMENTS
A.1	**Contract Documents**	**Contract documents and drawings together with the selection and specification of equipment and materials should be prepared with proper care, skill and good professional practice in accordance with the Arch SD Manual and appropriate technical instructions. Bills of Quantities are to be measured in accordance with Hong Kong Standard Method of Measurement of Building Works and Hong Kong Standard Method of Measurement for Building Services.** **BSB Instruction No. 6 of 1999 is to be followed on the selection and specification preparation of BS equipment and materials.**
A.1	**Contract Documents (cont'd)**	**The project team are required to keep proper records of the following:** **(1) selection of contract types;** **(2) selection of contract form for Specialist Works;** **(3) assessment of contract period and liquidated damages;** **(4) use of Dispute Resolution Advisor.**

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	ITEMS	REQUIREMENTS
A.2	**Project Estimates**	**The estimate of the project should be reasonably accurate, especially for upgrading projects to Category 'A'. ASDOI 3/93 is relevant.**
A.3	**Tender Procedures including prequalification, press release, gazette notice, restricted tendering and tender reports**	**SPRs, FC, Arch SD Manual, other relevant WBTC and ASDOI are to be followed.**
A.4	**Execution of Contracts**	**Contract signing procedures in WBTC No. 22/85 and PAH 6.8 and 6.9 are to be followed.**

B. SITE AUDIT (During construction)

	ITEMS	REQUIREMENTS
B.1	**Statutory notifications**	**Check notifications to CIC, PCFB and Labour Department.**
B.2	**Original programme chart**	**The approval of the original and any subsequently updated works programme bar charts are to be recorded in the Site Record Book.**
B.3	**Schedule of** **a. Contract drawings** **b. Approved Contractor's drawings**	The schedules are to be included in the Site Record Book in accordance with ASDOI 6/79.
B.4	**Architect's Instructions**	**The issue and the authority to raise Architect's Instructions is to be in accordance with Arch SD Local Manual No. 6 Chapter 4 and No. 12 Chapter 3 as well as GCC(BW) 60. The financial consequences of late changes in project scope should be particularly noted. All Architect's Instructions issued are to be recorded in the Site Record Book.**
B.5	**Additional information, drawings/documents issued to Contractor**	**All documents (other than the Contract Drawings) issued to the Contractor should be recorded in the Site Record Book in compliance with ASDOI 6/79. GCC(BW) 5(2) should also be followed.**

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	ITEMS	REQUIREMENTS
B.6	**Store requisition and delivery notes, allocated and combined requisition vouchers**	**All Government stores are to be issued to the Contractor in compliance with ASDOI 14/84 and 15/85.**
B.7	**Samples**	**All samples should be recorded in the Site Record Book in compliance with ASDOI 6/79. The procedure relating to the approval of samples of materials is set out in Arch SD Local Manual No. 6 and ASDOI 19/78.**
B.8	**Materials**	**Materials should be recorded in the Site Record Book in accordance with ASDOI 6/79. The requirements of ASDTI 1/90, as supplemented by 14/90 and 16/90, regarding acceptable materials for use in projects should be followed.** **Alternative BS equipment and materials submitted by contractor should be approved by project engineer as set out in BSB Instruction No. 2/96.** **The BS equipment and materials delivered and installed on site are to be checked against the approved equipment/materials as set out in the BSB Instruction No. 2/00.** **Check compliance with ETWB TCW No. 57/2002 on quality assurance for structural concrete.**
B.9	**Concreting**	**The progress of pouring concrete is to be recorded in the Site Record Book in compliance with ASDOI 6/79. The procedure for accepting non-complying concrete under ASDTI 14/87 should be followed.**
B.10	**Use of Public Works Laboratories**	**Check compliance with WBTC No. 14/2000 including that any independent laboratory engaged must have no affiliation as a legal entity to the Contractor and its sub-contractors.**
B.11	**Test results, reports and certificates**	**The test results are to be recorded in the Site Record Book in accordance with ASDOI 6/79. If any unsatisfactory material or works have been instructed under GCC(BW) 46 to be removed check that the Contractor has met the expense involved. Also, check whether under GCC(BW) 42(3) that the expense has been taken under GCC(BW) 46 to see if the expense has been borne by the Contractor in the event that any tests show that the Contractor has failed to comply with the Contract.**

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	ITEMS	REQUIREMENTS
B.12	Explosives	The procedures for blasting set out in PAH 7.4.3 and 7.21.6 should be followed..
B.13	Contractor's labour return and weather records	The Contractor is to provide daily labour returns in accordance with GCC(BW) 32(3). Inclement weather is to be properly recorded in the Site Record Book in compliance with ASDOI 8/80.
B.14.	Qualified tradesman and intermediate tradesman	Check compliance with WBTC No. 13/2002.
B.15	Trip ticket system	Check compliance with procedures for disposal of public fill and C&D waste detailed in WBTC No. 21/2002, ETWB TCW No. 31/2004 or DEVB TCW No. 6/2010, where applicable, including implementation of follow-up actions for non-compliance.
B.16	Contractor's plant	The Contractor's and any Sub-contractor's plant, hired plant, plant brought onto the Site not for the Works should each be recorded separately in the Site Record Book in accordance with ASDOI 6/79. Documented records should be available for checking compliance with GCC(BW) 71, 73 & 74.
B.17	Site diary	The Clerk of Works is to make daily entries in the Site Diary. The Contractor's authorized agent is required to sign the Site Dairy in accordance with GCC(BW) 32(2). The daily site activities should be recorded in compliance with ASDOI 6/79. Any defects and short-comings of the Contractor in respect of the Works together with any Contractor's queries should be recorded in the Site Record Book in accordance with ASDOI 8/80.
B.18	Site visitor's records	Any comment or instruction given by the supervisory staff, or other senior staff visiting the Site, should be recorded in the Site Record Book in accordance with ASDOI 8/80.
B.19	Works order records (Term Contract only)	Any Works Order for works associated with the Term Contract are to be recorded in the Site Record Book in accordance with ASDOI 6/79.
B.20	Sundry records, handover/test certificates	Handover should be in accordance with Arch SD Local Manual No. 6 Chapter 4 and Manual No. 12 Chapter 3. Other sundry records are to be recorded in the Site Record Book in accordance with ASDOI 6/79.

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	ITEMS	REQUIREMENTS
B.21	Site meetings	All Site Meetings are to be confirmed by minutes in compliance with Arch SD Local Manual No. 6 Chapter 4. Communications between site supervisory staff and Consultants should be recorded either in the Site Record Book or in the minutes of Site Meetings in accordance with ASDOI 6/80.
B.22	Revised programme charts	A copy of the approved programme and/or revised programme is to be kept on Site. If the rate of progress of the Works or any Section is unsatisfactory, check whether the Architect has informed the Contractor in writing to revise the Programme in accordance with GCC(BW) 51(1).
B.23	Site measurement book	It shall be kept and maintained by the Clerk of Works.
B.24	Site safety	Site staff are to ensure that the SCC for the site safety requirements and relevant sections of the Construction Site Safety Manual (CSSM) are strictly complied and proper records of all safety matters are maintained. WBTC No. 21/99 is relevant.
B.25	Possession of site record	The Contractor is not allowed to enter the Site prior to the Date of Commencement. Arch SD Manual No. 12 Chapter 3 on early handing over the Site to the Contractor should be followed.
B.26	Setting out records	The procedures for setting-out are laid down in Arch SD Local Manual No. 6 Chapter 4.
B.27	Existing services records	The existing services affecting the Works should be removed or diverted without delay as required by ASDOI 14/77.
B.28	Piling records and pile test records	Piling records and pile test records are required to be maintained. When unsatisfactory caisson or other piling work is rectified by the superstructure Contractor, the cost of remedial work and any consequential costs is to be charged against the defaulting piling contractor. Check compliance with particular specifications and relevant technical circular, if any, issued by the department of the project office.

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	ITEMS	REQUIREMENTS
B.29	**Progress of the Works and payment**	**If the rate of progress of the Works or any Section is unsatisfactory, the Architect should inform the Contractor in writing to expedite the completion of the Works under GCC(BW) 51(1). The procedures set out in ASD Local Manual No. 12 Chapter 3 should be followed. Spot checks on the valuation of interim certificates should be made.**
B.30	**Record photographs**	**In accordance with ASDOI 13/83, photographs are to be taken as a record of the Works and the installation of equipment.**
B.31	**Security on site, records of theft, break-in, etc.**	**The obligations for Site security, damage, loss or injury to the Works or any Specialist Works, etc. is placed on the Contractor under GCC(BW) 20 & 21.**
B.32	**Nominated sub-contractors and domestic specialist sub-contractor**	**To ensure a contractually enforceable chain of responsibility between the Government through Main Contractor to Nominated Sub-contractors and Domestic Specialist Sub-contractors, management of Nominated Sub-contractors should follow the Arch SD Local Manual No. 12 Chapter 3. Check compliance with requirements to employ listed specialist contractors for specified works.**
B.33	**Site cleanliness**	**The Contractor is required to remove rubbish and keep the Site clean and tidy in compliance with GCC(BW) 38 and GS Clause 1.60. Under GCC(BW) 35, he should also clear away and remove from the Site all surplus materials and rubbish as soon as practicable after the issue of the completion certificate.**
B.34	**Obvious violation of statutory acts**	**The Contractor is required to conform with enactments and regulations in compliance with GCC(BW) 30. Particular attention shall be directed to the hours of piling, employment of illegal labour, etc.**
B.35	**Record of work by other departments**	**The Contractor should provide attendance for works carried out by Government departments in compliance with GS Clause 1.42. Records of works carried out by other departments shall be referred to when checking the extension of time awarded to the Contract.**

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ITEMS		REQUIREMENTS
B.36	**Extension of time**	**Check whether the Contractor's notice has been given to the Architect in writing and whether the Architect has responded in accordance with GCC. The Practice Note of Arch SD Local Manual No. 12 Annex 3-JA should be followed.**
B.37	**Liquidated damages**	**In the event of the Works has not been completed on the completion date or extended completion date check whether the Liquidated Damages has been imposed or the reason for not imposing the Liquidated Damages. Refer to GCC(BW) 52. Check whether the procedure for imposing Liquidated Damages has been carried out in accordance with Practice Notes of Arch SD Local Manual No. 12 Annex 3 - NA.**
B.38	**Claims**	**Check whether any notice of claim has been served in writing to the Surveyor in accordance with GCC(BW) 64. Check whether the substantiation of the Contractor's claim is justified and whether the project team has been responded expeditiously to the claim.**
B.39	**Sub-contractor Management Plan**	**Check compliance with the SCC for the Management of Sub-contractors:** **i) Contractor's compliance with the requirements as stipulated in SCCs has been checked. In particular, the SMP submitted contains the information stipulated in the Guidelines on Scope and Contents of SMP at Appendix.** **ii) Whether the SMP submitted by the Contractor tallies with the actual sub-contracting arrangement on site has been checked (based on records of the relevant items in the Standard Checklist for monitoring of the SMP completed by the Architect/Engineer).** **iii) Proper records of the Standard Checklists and documentary proof requested by the Architect/Engineer for demonstrating the Contractor's compliance with the provisions in the SMP are maintained.**
B.39A	**Engagement of sub-contractors registered under the Registered Specialist Trade Contractors Scheme (RSTCS)**	**Contractor's compliance with SCC on the engagement of sub-contractors who are registered under the respective trades available in the Primary Register of the RSTCS has been checked.**

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	ITEMS	REQUIREMENTS
B.40	**Quality Site Supervision Plan (QSSP)**	**Implementation of QSSP (including compliance of guidelines of inspection outside Hong Kong, if applicable).**
B.41	**Independent Inspection Agents**	**Inclusion of measures and their compliance as required in PAH.**
B.42	**Report on Contractor's Performance**	**Compliance with Contractor Management Handbook (CMH):** **i) Preparation and submission of the Report on Contractor's Performance complied with the procedures outlined in the CMH.** **ii) Preparation of the Contractor's performance ratings has considered the guidance notes for individual aspects of performance (based on records of Evaluation Standard Checklists* completed by the Reporting Officer for Sections 1 and 2 (i.e. workmanship and progress of the Aspects of Performance, Appendix 4B, CMH).** **[Note: * The Evaluation Standard Checklists should be prepared with reference to Part D, Guidance Notes for Completion of Reports, Appendix 4B of the latest version of the CMH available at DEVB's website.** **For more details on the completion of this part of the audit and a sample of the Evaluation Standard Checklist, please refer to SDEV's memo ref. () in ETWB(W) 545/83/02 Pt. 2 dated 17.8.2007.]**

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C. ASSESSMENT OF CLAIMS AND VALUATION OF VARIATIONS

	ITEMS	REQUIREMENTS
C.1	Extension of time	See Section B Item 36.
C.2	Measurement of variations	The dimensions and the items measured in the variation account should be checked. Ensure that the adjustment for any omissions item has not been missed.
C.3	Authority for the issue of variations	Check that variations have been ordered in writing. Under the General Conditions of Contract, no variation should be made by the Contractor without an order in writing by the Architect. Refer to Arch SD Local Manual No. 12 Chapter 3.
C.4	Valuation of variations	Variations are required to be valued in accordance with GCC(BW) 61. Check the rates for valuation with the contract rates. Pro-rata rates, "star" rates, percentage adjustment, prolongation cost, profit and attendance items on P.C. Sums shall also be checked. The valuation of variation orders issued after completion should be fair and reasonable. Where alternative materials have been used the SCC regarding approval of materials should be noted when checking the valuation of variations.
C.5	Daywork	Under GCC(BW) 62(1) the Architect may order in writing that the variation work is to be executed on a daywork basis. Check to see that the variation order has been valued on the basis of daywork. The daywork sheets are required to be endorsed by the Clerk of Works/Building Services Inspector. The rates for daywork should be reasonable where there are no rates set out in the Contract.

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	ITEMS	REQUIREMENTS
C.6	Contractual claims	In accordance with GCC(BW) 64, the notice of claim is to be given to the Surveyor in writing within 28 days. The Contractor is required to submit the accounts and details as required by the Surveyor in accordance with GCC(BW) 64(4). The assessment of claims (all extension of time, loss and expense/disruption) should be checked to see whether they have been assessed reasonably in accordance with the relevant GCC Clauses and Practice Notes. The causes, justification and substantiation of the claim should be checked. The adequacy of site records in connection with claims should also be checked. Note: The acceptance of ex-contractual claims (Common Law Claims) should only be made on the advice of Legal Advisory Division of Works Bureau. Check to see why common law claims have arisen and review the assessment of these claims.
C.7	Ex-contractual claims	Check compliance with SPRs.

D. CONTRACT FINAL ACCOUNTS

	ITEMS	REQUIREMENTS
D.1	Variations	See Section C Items 1 to 4 inclusive.
D.2	Remeasurement of provisional quantities	Remeasured quantities should be spot checked against "as constructed" drawings. The rates should also be checked.
D.3	Nominated Sub-contractor's Accounts	The statement of sums payable to the Nominated Sub-contractors should be checked to see whether the Nominated Sub-contractors' accounts have been prepared properly.
D.4	Claims	See Section C Item 5.
D.5	Contract Price Fluctuations	Price fluctuations are required to be calculated in accordance with GCC(BW) 89, relevant SCC and DEVB TCW No. 4/2021.
D.6	Adjustment of Prime Cost & Provisional Sums	Check the adjustment of Prime Cost & Provisional Sums including the Contingency Sum as well as profit and attendance items. Refer to GCC(BW) 65, 66, 67 & 68.

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D.7	**Retention money and maintenance certificate**	**Retention money is to be adjusted in accordance with GCC(BW) 79(1) and SCC. In compliance with GCC(BW) 79(3) the Surveyor is required to issue a certificate for the payment of Retention Money within 14 days of the date of issue of the maintenance certificate. Check also compliance with GCC(BW) 80 on maintenance certificate.**
D.8	**Liquidated damages**	**If the Contractor fails to complete the Works within the time for completion or such extended time, the Employer is entitled to impose the Liquidated Damages in accordance with GCC(BW) 52. Refer to Practice Note of Arch SD Local Manual No. 12 Annex 3 - NA.**
D.9	**Reconciliation of stores items**	**The quantities of stores items issued to the Contractor should be checked against the actual requirement in accordance with ASDOI 14/84 and 15/85. Any discrepancies including any surplus items which the Contractor has failed to return are required to be charged to the Contractor at the value of the stores + 20% on cost.**
D.10	**Other deductions e.g. charges for remedial works**	**The cost of remedial work and any consequential costs should be charged against the defaulting Contractor. Refer the SCC for piling contracts.**
D.11	**Authority to increase the Contract Sum**	**The necessary approval for any increase in contract sum should follow the Arch SD Local Manual No. 12 Chapter 3 and SPRs. The prior approval of PSTsy is required where an increase in a Contract Sum is required for additional works outside the scope of the Contract but within the approved scope of the Project.**
D.12	**Final Account for Re-entered Contracts**	**Final accounts for re-entered contracts should be prepared in accordance with GCC(BW) 81. Any necessary action to recover amounts owed to the Employer should be checked to see if it has been carried out expeditiously.**

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Annex B - Checklist for Contracts of Works Departments except Architectural Services Department

Note: **For contracts not using the Project Administration Handbook for Civil Engineering Works, the corresponding laid down procedures/ requirements of the department should be used as a basis for auditing.**

Abbreviations

DEVB TCW	**Development Bureau Technical Circular (Works)**
ER	**Engineer's Representative**
ETWB TCW	**Environment, Transport and Works Bureau Technical Circular (Works)**
FC	**Financial Circular**
GCC(CE)	**General Conditions of Contract for Civil Engineering Works (1999 Edition)**
GS(CE)	**General Specification for Civil Engineering Works (1992 Edition)**
LWBTC	**Lands and Works Branch Technical Circular**
PAH	**Project Administration Handbook for Civil Engineering Works**
PAHx.x	**First digit = Chapter number. Second digit = Section number**
PAHx.x.x	**First digit = Chapter number. Second & third digit = Paragraph number**
PS	**Particular Specifications**
PWDTC	**Public Works Department Technical Circular**
SPRs	**Stores and Procurement Regulations**
WBTC	**Works Branch Technical Circular/Works Bureau Technical Circular**

A. PRE-CONTRACT

	ITEMS	REQUIREMENTS
A.1	**Contract Documents**	**Contract documents and drawings shall be prepared with proper care, skill and good professional practice in accordance with Chapter 5 of PAH and appropriate technical instructions. Bills of Quantities shall be measured in accordance with the Standard Method of Measurement for Civil Engineering Works (1992 Edition) published by the Hong Kong Government.**
A.2	**Tender Procedures including prequalification, press release, gazette notice, restricted tendering and tender reports**	**Chapter 6 of PAH and appropriate technical instructions shall be followed.**

B. CONTRACT ADMINISTRATION

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	ITEMS	REQUIREMENTS
B.1	Statutory notifications	Check notifications to CIC, PCFB and Labour Department.
B.2	Joint venture	Check submission of joint venture guarantee from incorporated jointed ventures in accordance with ETWB TCW No. 50/2002.
B.3	Engineer's site staff organisation	Check Engineer's site staff to ensure it is the same as that indicated in the organisation chart. For contracts involving pile foundation works, the resident site staff should comply with relevant technical circular, if any, issued by the department of the project office.
B.4	Letter of delegation of Engineer's power to ER	The duties and powers which the Engineer will delegate to the ER should be identified and communicated in writing to the Contractor (PAH 7.4.1) and in compliance with the guidelines established in the relevant WBTCs and ETWB TCW.
B.5	Contractor's superintendence	Check compliance with requirements in GS(CE)/PS on Contractors' staff (PAH 7.4.2).
B.6	Correspondence and files	An overall check on records and correspondence of matters arising under the Contract (PAH 7.5.11), including compliance with Appendix 7.73 on Filing Practice.
B.7	Minutes of meeting	Records maintained in accordance with PAH 7.5.11 and 7.9.4.
B.8	Site instructions	Site instructions should be issued by the Engineer or ER on the standard form shown in PAH Appendix 7.5 (PAH 7.5.8) (check also letter of delegation of power to ER).
B.9	Works programme chart	Requirements under GS(CE) 1.08. Programme of Works prepared and updated in accordance with PAH 7.6.1 and 7.6.2, and GCC(CE) 16.
B.10	Works progress chart	Actual progress marked on Works programme, to comply with PAH 7.5.6.
B.11	Programme and progress of work on utilities	Check compliance with GS(CE) 1.08(4) and 1.24.
B.12	Monthly progress report	Compliance with PAH 7.6.3.

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ITEMS		REQUIREMENTS
B.13	**Site cleanliness**	**Compliance with requirements on general site cleanliness, prevention of mosquito breeding, prevention of dust (GS(CE) 1.32 to 1.34)/PS and WBTC No. 6/2002 and ETWB TCW No. 6/2002A.**
B.14	**Lighting, signing and guarding of road works**	**Compliance with procedures on temporary traffic arrangements and control (GS(CE) 1.14 and 1.15)/PS.**
B.15	**Conditions of Excavation Permits**	**Compliance with the conditions stipulated in the Excavation Permits.**
B.16	**Claims for extension of time**	**(a) Check whether notice in writing had been served by the contractor on the Engineer (GCC(CE) 50(1)(a)).** **(b) Check whether general principles in assessment of claim are followed (PAH 7.8.1.1).** **(c) Follow the requirements in WBTC No. 20/2000 or Clause 25 of the "General Conditions of Employment of Engineering and Associated Consultants for a Design and Construction Assignment", where applicable, on Independence of the Engineer and Referral of Variations and Other Commitments.**
B.17	**Liquidated Damages**	**In the event of the Works has not been completed on the completion date or extended completion date check whether the Liquidated Damages has been imposed or the reason for not imposing the Liquidated Damages. Refer to GCC(CE)52. Check whether the procedure for imposing Liquidated Damages has been carried out in accordance with PAH 8.2.**

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ITEMS		REQUIREMENTS
B.18	**Report on Contractor's performance**	**Compliance with Contractor Management Handbook (CMH):** **i) Preparation and submission of the Report on Contractor's Performance complied with the procedures outlined in the CMH.** **ii) Preparation of the Contractor's performance ratings has considered the guidance notes for individual aspects of performance (based on records of Evaluation Standard Checklists* completed by the Reporting Officer for Sections 1 and 2 (i.e. workmanship and progress of the Aspects of Performance, Appendix 4B, CMH).** **[Note: * The Evaluation Standard Checklists should be prepared with reference to Part D, Guidance Notes for Completion of Reports, Appendix 4B of the latest version of the CMH available at DEVB's website.** **For more details on the completion of this part of the audit and a sample of the Evaluation Standard Checklist, please refer to SDEV's memo ref. () in ETWB(W) 545/83/02 Pt. 2 dated 17.8.2007.]**
B.19	**Completion Certificate**	**(a) Follow standard forms given in PAH Appendix 7.34.** **(b) Check release of security deposit or surety bond (GCC(CE) 12). Standard form for release of surety bond given in PAH Appendix 7.35 (PAH 7.18.2.4).** **(c) Compliance with GCC(CE) 53.**
B.20	**Retention money and maintenance certificate**	**(a) Standard form given in PAH Appendix 7.36 (PAH 7.18.3.3).** **(b) Compliance with GCC(CE) 79.** **(c) Compliance with GCC(CE) 80.**
B.21	**Report on completion of contract**	**To be issued within one month of the issue of the final payment certificate. Standard form given in PAH Appendix 7.38 (PAH 7.18.3.5).**
B.22	**Quality Site Supervision Plan (QSSP)**	**Implementation of QSSP (including compliance of guidelines of inspection outside Hong Kong, if applicable).**

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	ITEMS	REQUIREMENTS
B.23	**Independent Inspection Agents**	**Inclusion of measures and their compliance as required in PAH.**

C. GENERAL RECORDS

	ITEMS	REQUIREMENTS
C.1	**Surety bond**	**Compliance with GCC(CE) 12.**
C.2	**Insurance Policies** **- Care of the Works** **- Third Party** **- Professional Indemnity Insurance**	**Compliance with relevant Special Condition of Contract and ETWB TCW No. 9/2007, as appropriate.**
C.3	**Sub-contracting**	**Compliance with the requirement to employ listed specialist contractor for specified works and the requirements in SETW's memo dated 22 August 2002.**
C.4	**Possession of site records**	**Relevant details of the handing over of the Site should be confirmed in writing to the Contractor (PAH 7.3.1).**
C.5	**Site survey before the commencement of the Works**	**The survey results should be agreed by the Engineer and the Contractor, and recorded in the form of drawings (PAH 7.3.2).**
C.6	**Setting out records**	**The Dimensioned Plan, with records on control points and bench marks, should be issued as a contract drawing to the Contractor (PAH 7.3.2).**
C.7	**Sets of contract documents**	**One certified true copy of the signed contract documents including one set of original contract drawings should be kept in the site office. Standard documents forming part of the contract but are not bound in the signed documents should also be kept in the site office (PAH 7.5.2).**
C.8	**Supplementary agreement**	**Compliance with PAH 7.13.4.**

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ITEMS		REQUIREMENTS	
C.9	**Labour returns and wages**	**(a)**	**The Contractor should provide a daily return of labour on standard form GF 527, of which the wage columns should be completed by the Contractor at the end of each month. Three copies of the form should be prepared.**
		(b)	**Carry out spot checks on actual numbers of labourers employed by cross-reference to the site diary.**
		(c)	**Records should be kept up-to-date.**
		(d)	**Compliance with GS(CE) 1.28/PS, PAH 7.5.16 and GCC(CE) 32(3).**
C.10	**Labour strength chart**	**Daily record, in graphical form, of the total number of Contractor's workforce on site (PAH 7.5.18(l)).**	
C.11	**Qualified tradesman and intermediate tradesman**	**Compliance with WBTC No. 13/2002.**	
C.12	**Site safety records and safety plans**	**(a)**	**Check whether the Contractor had employed a safety officer or safety supervisor (PAH 7.11.2).**
		(b)	**Check safety reports, if any.**
		(c)	**Compliance with GCC(CE) 20 - adequate lighting, fencing, etc.**
		(d)	**Compliance with Construction Site Safety Manual.**
		(e)	**Check submission and updating of safety plans, if any.**
C.13	**Accident records**	**(a)**	**Check and record the number of accidents since last visit and since commencement of Works.**
		(b)	**Accident records prepared in accordance with PAH 7.11.5 and GCC(CE) 27.**
C.14	**Noise control, Construction Noise Permit and prevention of air and water pollution**	Compliance with PAH 7.12.	

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ITEMS		REQUIREMENTS
C.15	Blasting records	(a) Compliance with PAH 7.21.6 and GS(CE)6.11. (b) Standard form for Shotfirers Charging Details given in PAH Appendix 7.42.
C.16	Diver's report, marine work quantity record	Compliance with PAH 7.5.18.
C.17	Checking of Temporary Works	(a) The ER is to carry out all necessary checks to ensure that the proposed temporary works do not have a detrimental effect on the permanent works, if necessary in consultation with the project engineer (PAH 7.11.4 and WBTC No. 3/97). (b) The ER is to ensure that those temporary works subject to an independent checking are so checked by a qualified person and the requisite certificates obtained (WBTC No. 3/97).
C.18	Designs by Contractor	Check strict compliance with procedures laid down in PAH 7.20, DEVB TCW Nos. 9/2007 and 3/2014.
C.19	Trip ticket system	Compliance with procedures for disposal of public fill and C&D waste detailed in WBTC No. 21/2002, ETWB TCW No. 31/2004 or DEVB TCW No. 6/2010, where applicable, including implementation of follow-up actions for non-compliance.
C.20	Waste management plan	Submission and monitoring of waste management plan and related records in accordance with ETWB TCW No.19/2005.

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ITEMS		REQUIREMENTS
C.21	**Record drawings**	**(a) A set of drawings comprising the contract drawings, all revised drawings and additional drawings issued to the Contractor should be designated for record purposes (PAH 7.5.3).** **(b) As-constructed details deviated from the drawings should be marked in red ink on the above set of drawings (PAH 7.5.3).** **(c) Record survey on finished works should be incorporated into the above set of drawings (PAH 7.5.3).** **(d) On completion of the Works, the set of record drawings checked and endorsed by ER and passed to the drawing office for production of 'as-constructed' drawings (PAH 7.5.3).**
C.22	**Site diary**	**(a) Standard form GF 536, which is bound in a book, shall be used. For contracts which are exceptionally large or complex in nature, a special diary format may be devised for use after consultation with the Contract Adviser (PAH 7.5.4).** **(b) The site diary shall contain an accurate and concise record of the progress of Works, plant and labour employed, etc, all in accordance with PAH 7.5.4.** **(c) The Inspector of Works and the Contractor's authorised agent or representative should sign the site diary daily. The ER should check and initial the site diary at least once a week (PAH 7.5.4 and GCC(CE) 32(2)).**
C.23	**Inclement weather daily report**	**Inclement weather daily report completed by a member of the site staff of rank of Assistant Inspector of Works (AIOW) or above, and countersigned by the ER. Standard form in PAH Appendix 7.4 to be used. Records should be kept up-to-date (PAH 7.5.7).**
C.24	**Inventory of furniture and equipment records**	**Standard form in PAH Appendix 7.8 should be used (PAH 7.5.10).**

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ITEMS		REQUIREMENTS
C.25	**Record photographs**	**(a) Requirements under GS(CE) 1.55.** **(b) Photographs should be taken before commencement of the works and regularly during the course of the Contract (PAH 7.5.12).** **(c) The back of each photograph should contain information on the date the photograph was taken, exact location and description of the subject photographed and purpose of the photograph. (PAH 7.5.12).** **(d) Select prints shall be authenticated by the Contractor and the ER by signing and dating on the back of the prints (PAH 7.5.12).** **(e) Where CCTV or video records are required in the Contract, such records should be properly kept.**
C.26	**Log books for contract transport**	**Standard log book GF 100 should be properly maintained (PAH 7.5.17) and regularly checked in accordance with LWBTC No. 11/84.**
C.27	**Request for inspection and survey check (RISC)**	**Standard form in PAH Appendix 7.82A (for GCC contracts) or Appendix 7.82B (for NEC contracts) should be used. (PAH 7.5.13 and GCC(CE) 44).** **Random checking of the RISC forms - Depending on the number of RISC forms submitted in the audit period which has not yet been covered by technical audit before, the auditor should determine the sampling size. The RISC forms to be checked should be selected by the auditor.**
C.28	**Earthwork quantity record**	**Compliance with PAH 7.5.18.**
C.29	**Records of vesting, removal and hiring and hire-purchase of constructional plant**	**Documented records should be available for checking compliance with GCC(CE) 71, 73 & 74.**

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ITEMS		REQUIREMENTS
C.30	**Sub-contractor Management Plan**	**Check compliance with the SCC for the Management of Sub-contractors:** **i) Contractor's compliance with the requirements as stipulated in SCCs has been checked. In particular, the SMP submitted contains the information stipulated in the Guidelines on Scope and Contents of SMP at Appendix.** **ii) Whether the SMP submitted by the Contractor tallies with the actual sub-contracting arrangement on site has been checked (based on records of the relevant items in the Standard Checklist for monitoring of the SMP completed by the Architect/Engineer).** **iii) Proper records of the Standard Checklists and documentary proof requested by the Architect/ Engineer for demonstrating the Contractor's compliance with the provisions in the SMP are maintained.**
C.30A	**Engagement of sub-contractors registered under the Registered Specialist Trade Contractors Scheme (RSTCS)**	**Contractor's compliance with SCC on the engagement of sub-contractors who are registered under the respective trades available in the Primary Register of the RSTCS has been checked.**

D. MATERIAL AND TESTING RECORDS

ITEMS		REQUIREMENTS
D.1	**Use of Public Works Laboratories**	**Compliance with WBTC No. 14/2000 including that any independent laboratory engaged must have no affiliation as a legal entity to the Contractor and its sub-contractors.**
D.2	**Metallic site hoardings and signboards**	**Compliance with WBTC No. 19/2001.**
D.3	**Record of material and equipment provided by Government**	**Standard record book GF 537 should be used (PAH 7.5.14).**

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ITEMS		REQUIREMENTS
D.4	**Material on site records**	**(a) Check whether the materials on site records are up-to-date by reference to the delivery notes/records (PAH 7.5.18(k)).** **(b) Check whether the materials on site are properly certified in interim payment taking into account of the wastage factor (PAH 7.5.18(k)) and GCC(CE) 79(1)(c)).**
D.5	**Piling records and pile test records**	**Examples of forms for pile driving records and pile loading test records are given in GS(CE) Appendix 8 (PAH 7.5.18(a)). Compliance with particular specifications and relevant technical circular, if any, issued by the department of the project office.**
D.6	**Soil and rock conditions records**	**Full records on such should be kept as Works progress (PAH 7.5.18(b))**
D.7	**Soil compaction test record and summary**	**Standard form in PAH Appendices 7.11 and 7.12 should be used (PAH 7.5.15(d)).**
D.8	**Settlement and movement records**	**Compliance with PAH 7.5.18(c).**
D.9	**Quality assurance for structural concrete**	**Compliance with ETWB TCW No. 57/2002.**
D.10	**Concrete casting records**	**Record maintained in accordance with PAH 7.5.18(d).**
D.11	**Concrete test cube register**	**One register should be kept for each grade of concrete with the same mix design used in the Contract. Standard form in PAH Appendix 7.10 to be used (PAH 7.5.15(b)).**
D.12	**Concrete compression test requests and certificates**	**Request forms for the test should be checked by the IOW and delivered to the Public Works Laboratory with the concrete cubes to be tested (PAH 7.5.15(a)).**
D.13	**Site crushers monthly return**	**Compliance with paragraph 21.25 of Chapter 7 of the PAH.**
D.14	**Bar bending schedules**	**(a) Prepared on standard form shown in PAH Appendix 7.13.** **(b) Updated in same manner as record drawings (PAH 7.5.18(e)).**

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	ITEMS	REQUIREMENTS
D.15	Reinforcement test records	Compliance with PAH 7.5.15.
D.16	Tensioning record for pre-stressed concrete	Suggested format given in PAH Appendix 7.14 (PAH 7.5.18(f)).
D.17	Bearing and expansion joint records	A clear record of the performance of the bearings and expansion joints should be kept using the form shown at PAH Appendix 7.17 (PAH 7.5.18(j)).
D.18	Record of bituminous materials delivered to Site	Compliance with PAH 7.5.18(g). Suggested format given in PAH Appendix 7.15.
D.19	Test records of bituminous materials	Proper test records are kept.
D.20	Water and drainage pipeline test records	Compliance with PAH 7.5.18 (h) and (i).

E. FINANCIAL ADMINISTRATION

	ITEM	REQUIREMENTS
E.1	Site measurement book	The standard site measurement book to be used is GF 534. Entries should be made by the site supervisory staff or Survey Officer (Quantity) and signed by authorized representatives of both the Contractor and the Engineer (PAH 7.5.5).
E.2	Curves of expected expenditure and actual expenditure	Prepared and updated in accordance with PAH 7.6.5.

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ITEM		REQUIREMENTS	
E.3	**Interim payment record book; payment certificate; interim payment abstract sheets**	**(a)**	**The date of certifying interim payments and the due date for payment to the Contractor should be in accordance with GCC(CE) 79(1).**
		(b)	**the format of Contractor's statement should be clear and well organised (e.g. payment on-account should be clearly indicated showing rates/prices).**
		(c)	**The ER should check and sign the Contractor's submitted accounts (PAH 7.7.2.2).**
		(d)	**The percentage of certified value retained, the limit of retention money and the minimum amount of interim certificate stated in the Appendix to Form of Tender should be correctly applied (GCC(CE) 79(1) & (2)).**
		(e)	**The calculation of contract price fluctuations should be in order (DEVB TCW No. 4/2021 and GCC(CE) 89).**
		(f)	**Check whether liquidated damages should be deducted from the payment certificate by making reference to the extended completion date. (PAH 7.8.2 and GCC(CE) 52).**
		(g)	**Standard forms for Engineer's interim payment and final payment certificates and contract price fluctuations shown at PAH Appendices 7.19 and 7.20 should be used (PAH 7.7.2.2 and 7.7.3).**
		(h)	**the number of items paid on-account is recorded. The Engineer should assess the rates for these items as soon as practicable.**
		(i)	**Payment on preliminaries items should be properly certified and substantiated. (e.g. insurances, etc.)**
		(j)	**Payment for measured items should be supported by measured quantities or if not possible, at least by rough measurement.**
		(k)	**Issue of certificate for the payment of retention money should be in accordance with GCC(CE) 79(3). Standard form in PAH Appendices 7.37.1 and 7.37.2 should be used.**
		(l)	**Issue of final payment certificate should be in**

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ITEM		REQUIREMENTS	
			accordance with GCC(CE) 79(6).
E.4	**Variations**	**(a)**	**Prior approval from directorate officer should be sought for variations estimated to exceed the value stated in WBTC No. 20/2000. For values less than that stated, no prior approval is required provided that no increase in contract sum is resulted (PAH 7.13.1).**
		(b)	**Variations ordered in accordance with GCC(CE) 60. Standard form in PAH Appendix 7.21 should be used (PAH 7.13.2).**
		(c)	**For approval for increase in contract sum, requirements laid down in SPRs shall be followed (PAH 7.13.1.).**
E.5	**Valuation of variations ordered**	**(a)**	**Valuation of variations should be in accordance with GCC(CE) 61 in a timely manner.**
		(b)	**Administrative procedures under PAH 7.13.3 shall be followed. Standard forms for valuation of variations and current financial statement as shown at PAH Appendices 7.22 and 7.23 respectively should be used (PAH 7.13.3).**
		(c)	**Check letter of delegation for issue of variation orders and their valuation.**
E.6	**Daywork**	**(a)**	**Site instructions standard form or variation order standard form should be used for ordering work paid on daywork basis (PAH 7.5.8, 7.13.1 and 7.13.2).**
		(b)	**Standard forms on Dayworks Daily Record and Dayworks Monthly Summary should be used. (PAH 7.5.9 and Appendices 7.6 and 7.7 and GCC(CE) 62(5)).**
		(c)	**Dayworks Daily Records should be agreed, or rejected with stated reasons and signed by the ER (GCC(CE) 62(4)).**

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ITEM		REQUIREMENTS	
E.7	**Monetary claims records**	**(a)**	**Check whether notice in writing had been served on the Engineer (GCC(CE) 64(1) and (2)).**
		(b)	**First interim account and further up-to-date accounts should be submitted by the Contractor (GCC(CE) 64(4)).**
		(c)	**Check whether major principles in assessment of claims are in order (PAH 7.14.2).**
		(d)	**Authority to settle claims (SPRs and PAH 7.14.3).**
		(e)	**Follow reporting system in WBTC No. 20/2000 or Clause 25 of the "General Conditions of Employment of Engineering and Associated Consultants for a Design and Construction Assignment", where applicable.**
		(f)	**Standard letter in PAH Appendix 7.25 for certifying claims should be used, as far as practicable.**
E.8	**Request for mediation**	**Compliance with GCC(CE) 86(1), WBTC No. 4/99 and PAH 7.21.4.**	
E.9	**Request for arbitration**	**Compliance with GCC(CE) 86(2) and PAH 7.21.4.**	

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Annex C - Proforma Audit Report for Architectural Services Department contracts

TECHNICAL AUDIT REPORT No. xx/200y
Architectural Services Department

PART I - CONTRACT DETAILS

1.	**Programme No.**	:	
2.	**Contract No.**	:	
3.	**Contract Title**	:	
4.	**Nature of Work**	:	**Capital/maintenance work***
5.	**Branch managing contract**	:	**Architectural/Building Services/Structural Engineering/Quantity Surveying/Property Services***
6.	**Consultants, if any (please specify role)**	:	
7.	**Architect for the Contract**	:	
8.	**Surveyor for the Contract**	:	
9.	**Architect's Representative(s)**	:	
10.	**Surveyor's Representative(s)**	:	
11.	**Contractor**	:	
12.	**Brief description of the Works**	:	
13.	**Date for commencement of the Works**	:	

			Section 1	Section 2**	Whole
14.	**Original date of completion of the Works**	:			
15.	**Extended date for completion of the Works**	:			
16.	**Extension of time granted**				
	- **for inclement weather**	:			
	- **for variations**	:			
	- **others (please specify)**	:			
	Total	:	**(days)**	**(days)**	**(days)**

* *Delete whichever is inappropriate*
** *Add additional Sections where applicable*

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		Section 1	Section 2**	Whole
17. Anticipated date for completion of the Works	:			
18. Certified date of completion	:			
19. Original Contract Sum	:	$	$	$
20. Approved Revised Contract Sum (if any)	:	$	$	$
21. Estimated Final Contract Sum	:	$	$	$
22. Gross amount certified in last payment certificate (Certificate No. _____*)**	:	$		

*** Use separate sheet if more than two sections*
**** Insert Certificate No.*

PART II - SITE VISITS AND PROJECT OFFICERS INTERVIEWED

23. **This is the 1st/ 2nd/ 3rd/ 4th/.....**** audit on the Contract.**
Site visits for this audit were made on _____ (dates).

24. **Site visits of the last audit were made on _____ (dates).**

25. **Project officers interviewed for this audit:**

Name	Grade

***** Delete or insert as appropriate*

PART III - AUDIT FINDINGS

26. **The following work stages were audited:**

a) tender documents preparation [ ]
b) tendering [ ]
c) tender assessment [ ]
d) construction [ ]
e) final account including claims settlement [ ]

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Item	Compliance with Requirements			Remarks
	Yes	No	N/A	
PRE-CONTRACT				
27. Contract documents				
28. Project estimates				
29. Tender procedure				
30. Execution of contract				
SITE AUDIT				
31. Statutory notifications				
32. Original programme chart				
33. Schedule of :				
a) contract drawings				
b) approved contractor's drawings				
34. Site instructions				
35. Additional information, drawings or documents issued to Contractor				
36. Store requisition and delivery notes; allocated and combined requisition vouchers				
37. Samples				
38. Materials :				
a) general				
b) concrete				
c) cement				
d) sand				
e) reinforcement				
f) structural				
g) electrical				
h) air-conditioning				

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Item	Compliance with Requirements			Remarks
	Yes	No	N/A	
i) fire services				
j) lifts				
k) other BS installations				
39. Concreting				
40. Use of Public Works Laboratories				
41. Test results, reports and certificates				
a) concrete cubes				
b) concrete cores				
c) steel reinforcement				
d) structural steel				
e) drains & stacks				
f) asphalt & membrane				
g) density in compact fill				
h) electrical				
i) air-conditioning				
j) fire services				
k) lifts				
l) other BS installations				
42. Explosive				
43. Contractor's labour return and weather records				
44. Qualified tradesman and intermediate tradesman				
45. Trip ticket system				
46. Contractor's plant				
47. Site diary				
48. Site visitor's records				

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Item	Compliance with Requirements			Remarks
	Yes	No	N/A	
49. Works Orders records				
50. Sundry records, handover/test certificates				
51. Site meetings				
52. Revised programme charts				
53. Site measurement book				
54. Site safety diary				
55. Possession of Site records				
56. Setting out records				
57. Existing services records				
58. Piling records and pile test records				
59. Progress of the Works and payment situation				
60. Record photographs				
61. Security on site, record of theft, break-in, etc.				
62. Sub-contracting				
62A. Sub-contractor Management Plan **a) Submission** **b) Site Compliance**				
62B. Engagement of sub-contractors registered under the Registered Specialist Trade Contractors Scheme				
63. Site cleanliness				
64. Violation of statutory acts				
65. Records of work carried out by other departments				
66. Extension of time				
67. Liquidated damages				
68. Claims				

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Item	Compliance with Requirements			Remarks
	Yes	No	N/A	
69. Report on Contractor's performance **a) Procedures compliance** **b) Guidance notes for individual aspects of performance considered (based on records of Sections 1 and 2 (i.e. workmanship and progress) of the Aspects of Performance, Appendix 4B, Contractor Management Handbook)**				
ASSESSMENT OF CLAIMS AND VALUATION OF VARIATIONS				
70. Extension of time				
71. Measurement of the variations				
72. The authority for ordering the variations				
73. Valuation of variations				
74. Daywork				
75. Contractual claims				
76. Ex-contractual claims				
CONTRACT FINAL ACCOUNTS				
77. Variations				
78. Remeasurement of provisional quantities				
79. Nominated sub-contractor's accounts				
80. Claims				
81. Contract price fluctuations				
82. Adjustment of P.C. & Provisional Sums				
83. Retention money and maintenance certificate				
84. Liquidated damages				

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Item	Compliance with Requirements			Remarks
	Yes	No	N/A	
85. Reconciliation of store items				
86. Other deductions e.g. charges for remedial works				
87. Authority to increase contract sum				
Others (please specify)				

PART IV - COMMENTS ON CORRECTIVE ACTIONS TAKEN SINCE THE LAST AUDIT

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PART V - GENERAL REMARKS, CONCLUSIONS AND RECOMMENDATIONS

Audit Officers: **(1)_____(signed)_____** **(2)_____(signed)_____**
(name and title) **(name and title)**

Date :_____ **Date :_____**

Endorsed by:

_____(signed)_____
(name and title of Contract Adviser)

Architectural Services Department

Date: _____

c.c. **AS(S)1, Development Bureau**
(and others as appropriate)

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ANNEX D - Proforma Audit Report for contracts of works departments except Architectural Services Department

TECHNICAL AUDIT REPORT No. xx/200y
_____ Department

Note: **For maintenance contracts or contracts not using the Chapter 7 of Project Administration Handbook for Civil Engineering Works, the items in Part III may be revised appropriately to tie in with the laid down procedures/requirements of the department. The Contract Adviser should be consulted in case of doubt.**

PART I - CONTRACT DETAILS

1.	Contract No.	:	_____
2.	Contract Title	:	_____
3.	Nature of Work	:	Capital / maintenance work*
4.	Division managing contract	:	_____
5.	Engineer for the Contract	:	_____
6.	Engineer's Representative	:	_____
7.	Consultants (to be completed if different from 5 above/please specify role)	:	_____
8.	Contractor	:	_____
9.	Brief description of the Works	:	_____
			_____
10.	Date for commencement of the Works	:	_____

			Section 1	Section 2**	Whole
11.	Original date of completion of the Works	:			
12.	Extended date for completion of the Works	:			
13.	Extension of time granted				
	- for inclement weather	:			
	- for variations	:			
	- others (please specify)	:			
	Total	:	_____ (days)	_____ (days)	_____ (days)

* *Delete whichever is inappropriate (Note that term contracts are not included here as they can be for capital or maintenance works)*

** *Add additional Sections where applicable*

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		Section 1	Section 2**	Whole
14. Anticipated date for completion of the Works	:			
15. Certified date of completion of the Works	:			
16. Original Contract Sum	:	$	$	$
17. Approved Revised Contract Sum (if any)	:	$	$	$
18. Estimated Final Contract Sum	:	$	$	$
19. Gross amount certified in last payment certificate (Certificate No. ____*)**	:	$	$	$

*** Use separate sheet if more than two Sections*

**** Insert Certificate No.*

PART II - SITE VISITS AND PROJECT OFFICERS INTERVIEWED

20. This is the 1st/ 2nd/ 3rd/ 4th/.....** audit on the Contract.**
Site visits for this audit were made on _____(dates).

21. Site visits of the last audit were made on _____(dates).

22. Project staff interviewed for this audit:

Name	Grade

***** Delete or insert as appropriate*

PART III - AUDIT FINDINGS

23. The following work stages were audited:

a)	**tender documents preparation**	**[ ]**
b)	**tendering**	**[ ]**
c)	**tender assessment**	**[ ]**
d)	**construction**	**[ ]**
e)	**final account including claims settlement**	**[ ]**

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Item	Compliance with Requirements			Remarks
	Yes	No	N/A	
PRE-CONTRACT				
24. Contract documents				
25. Tender procedures including pre-qualification, press release, gazette notice, restricted tendering and tender reports				
CONTRACT DOCUMENTS				
26. Statutory notifications				
27. Joint venture				
28. Engineer's site staff organization				
29. Letter of delegation of Engineer's power to ER				
30. Contractor's superintendence				
31. Correspondence and files				
32. Minutes of meeting				
33. Site instructions				
34. Works programme chart				
35. Works progress chart				
36. Programme and progress of work on utilities				
37. Monthly progress report				
38. Site cleanliness				
39. Lighting, signing & guarding of roadworks				
40. Conditions of excavation permits				
41. Claims for extension of time				
42. Liquidated Damages				
43. Report on Contractor's performance **a) Procedures compliance**				

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Item	Compliance with Requirements			Remarks
	Yes	No	N/A	
b) Guidance notes for individual aspects of performance considered (based on records of Sections 1 and 2 (i.e. workmanship and progress) of the Aspects of Performance, Appendix 4B, Contractor Management Handbook)				
44. Completion certificate				
45. Retention Money and maintenance certificate				
46. Report on completion of Contract				
GENERAL RECORDS				
47. Surety bond				
48. Insurance Policies - Care of the Works - Third Party - Professional Indemnity Insurance				
49. Sub-contracting				
49A. Sub-contractor Management Plan a) Submission b) Site Compliance				
49B. Engagement of sub-contractors registered under the Registered Specialist Trade Contractors Scheme				
50. Possession of site records				
51. Site survey before the commencement of the Works				
52. Setting out records				
53. Sets of contract documents				
54. Supplementary agreement				
55. Labour returns and wages				
56. Labour strength chart				

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Item	Compliance with Requirements			Remarks
	Yes	No	N/A	
57. Qualified tradesman and intermediate tradesman				
58. Site safety records and safety plans				
59. Accident records				
60. Noise control, Construction Noise Permit and prevention of air and water pollution				
61. Blasting records				
62. Diver's report, marine work quantity record				
63. Checking of Temporary Works				
64. Designs by Contractor				
65. Trip ticket system				
66. Waste management plan				
67. Record drawings				
68. Site diary				
69. Inclement weather daily report				
70. Inventory of furniture and equipment records				
71. Record photographs, CCTV and video record				
72. Log books for contract transport				
73. Requests for inspection and survey check				
74. Earthwork quantity record				
75. Records of vesting, removal and hiring and hire-purchase of Constructional Plant				
MATERIAL AND TESTING RECORDS				
76. Use of Public Works Laboratories				

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Item	Compliance with Requirements			Remarks
	Yes	No	N/A	
77. Metallic site hoardings and signboards				
78. Record of material and equipment provided by the Employer				
79. Material on site records				
80. Piling records and pile test records				
81. Soil and rock conditions records				
82. Soil compaction test record and summary				
83. Settlement and movement records				
84. Quality assurance for structural concrete				
85. Concrete casting records				
86. Concrete test cube register				
87. Concrete compression test requests/certificates				
88. Site crushers monthly return				
89. Bar bending schedules				
90. Reinforcement test records				
91. Tensioning record for prestressed concrete				
92. Bearing and expansion joint records				
93. Record of bituminous materials delivered to Site				
94. Test records of bituminous materials				
95. Water and drainage pipeline test records				
FINANCIAL ADMINISTRATION				
96. Site measurement book				

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Item	Compliance with Requirements			Remarks
	Yes	No	N/A	
97. Curves of expected expenditure and actual expenditure				
98. Interim payment record book; payment certificate; interim payment abstract sheets				
99. Variations				
100. Valuation of variations ordered				
101. Daywork				
102. Monetary claims records				
103. Request for mediation				
104. Request for arbitration				
Others (please specify)				

PART IV - COMMENTS ON CORRECTIVE ACTIONS TAKEN SINCE THE LAST AUDIT

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PART V - GENERAL REMARKS, CONCLUSIONS AND RECOMMENDATIONS

Audit Officers: **(1)** **(signed)** **(2)** **(signed)**
(name and title) **(name and title)**

Date : **Date :**

Endorsed by:

(signed)
(name and title of Contract Adviser)

Department

Date:

c.c. **CAS(W)7, Development Bureau**
(and others as appropriate)

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APPENDIX 7.40 TECHNICAL AUDIT MANUAL FOR CONSULTANCY AGREEMENTS (Subsumed from WBTC No. 9/2002)

Technical Audit Manual

for

Consultancy Agreements

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Technical Audit

1. For consultancy agreements, a technical audit essentially examines whether laid down procedures and requirements are observed, and ascertains the need for corrective and preventive actions. This is a compliance audit. The findings should be reviewed regularly and appropriate follow-up actions should be taken.

Objectives

2. The following objectives should be borne in mind when carrying out technical audits on consultancy agreements:

(a) to check whether laid down procedures and requirements are strictly complied with, and if not, the reasons for non-compliance. If any laid down procedures are found out-dated or no longer practicable during the course of the audit, such procedures should be brought to the attention of the respective consultants selection board; and

(b) where laid down procedures and requirements are not followed by project officers, to recommend measures which may be necessary to correct the irregularities and prevent future repetition.

Auditing Officers

3. The auditing officers should be assigned by the Head or Deputy Head of Department, or equivalent. They should be at senior professional rank.

Consultancy Agreements to be Audited

4. The auditing officers shall, unless otherwise directed by the Head or Deputy Head of Department, or equivalent, determine which consultancy agreements are to be audited based on the following criteria:

(a) consultancy agreements should be chosen in proportion to the number of agreements currently undertaken by each Division/Unit as far as practicable;

(b) consultancy agreements of which the nature of service is new to Government or very complex;

(c) consultancy agreements for strategic projects of significance; and

(d) consultancy agreements under which the consultants have been given unsatisfactory performance reports. Priority should be given to the consultancies having the worst performance report.

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Programme of Audits

5. The auditing officers should prepare regular Consultancy Agreement Audit Activity Reports to the Head or Deputy Head of Department, or equivalent, copied to Works Bureau. These reports should be prepared quarterly or half-yearly depending on the number of audits carried out and planned. They should show the audits carried out against the original programme during the last reporting period and the programme for the next.

Planning and Preparation for Audits

6. Before conducting the audit, the auditing officer shall:

(a) review the last audit report, if any, on the consultancy agreement, and note the areas of non-compliance and any follow up actions required to be taken;

(b) define the scope of the audit;

(c) prepare a time schedule indicating the dates on which the audit will take place and the length of the audit. Preliminary contacts with the project officers concerned may be helpful in fixing mutually convenient dates; and

(d) notify in writing the project officer of the consultancy agreement to be audited. Such notification shall include the time schedule of the audit, the name of the auditing officer and the relevant documents (e.g. project files, agreement documents, payment record, programme, reports etc.) required to be made available for pre-audit and post-audit reading by the auditing officer.

Opening Meeting

7. The audit shall start with an opening meeting, which serves as an introduction between the auditing officer and the project officer of the consultancy agreement to be audited.

8. At the opening meeting, the auditing officer shall:

(a) introduce himself and other auditing officers, if any;

(b) briefly describe the scope and time schedule of the audit, the relevant standards to be used as the basis of the audit, the meaning of a non-compliance and the method of reporting;

(c) ascertain which project officer is responsible for which parts/aspects of the consultancy agreement to be audited;

(d) explain that before the preparation of the audit report, the project officer

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will be informed at the Closing Meeting of any major non-compliance found during the audit, and will be asked to give their views and/or explanations for such non-compliance; and

(e) invite and answer any questions the project officers may have about the audit.

Scope of Audits

9. The Architectural and Associated Consultants Selection Board (AACSB) and the Engineering and Associated Consultants Selection Board (EACSB) are appointed by the Secretary for the Treasury for the selection and appointment of the relevant consultants. The procedures are set out in the relevant Handbooks. Auditing officers should not attempt to duplicate the checks and controls already exercised by the two Boards. Effort should be concentrated on the items which are normally not included in the submissions to the Boards and which will not be checked by the Boards. For consultancy agreements which are not necessary to be submitted to the Boards for approval, the audits should cover those items which correspond to the submission to the Boards. It should be noted that the scope of audit would heavily depend on the Brief of the consultancy agreement, which varies from one agreement to another. Auditing officers should exercise his professional judgement to determine the scope of audit on a case-by-case basis. Some common items are shown in the following paragraphs but they should not be regarded as an exhaustive list.

The Brief

10. The Brief shall define clearly the scope, nature and timing of the services to be provided by the consultants, and the responsibilities to be assumed. It shall describe exactly what is to be achieved and what the output is. Other requirements, constraints, assumptions and methodology must be clearly defined.

11. The Brief shall be prepared in consultation with all interested offices and consistent with the requirements of the project as approved by the Public Works Sub-Committee or other authority. For EACSB consultancy, it shall be finalised only after the pre-submission meeting with the shortlisted consultants are held.

Execution of Consultancy Agreement

12. The persons nominated to sign the agreement shall have the authority to do so. The legal status of the consultants should be clarified. Reference should be made to the Stores and Procurement Regulations 505 regarding the execution of the agreement.

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Delegation of Powers

13. The powers of the Director's Representative (DR) are defined in the consultancy agreement. It is expected that some of these powers will be delegated to the project officers responsible for the day-to-day management of the consultants. Such delegation should be made known to the consultants.

Programme

14. The consultant shall submit a draft programme for DR's approval in accordance with the General Conditions of Employment (GCE). This Programme shall form the basis for controlling and monitoring the progress, and shall not be revised without the approval of the DR.

Progress Report

15. The consultant should generally be required to submit progress reports at regular intervals in a format to be agreed by the DR. This report should indicate the progress of the reporting period against the agreed Programme.

Design Checking Report

16. In accordance with PAH Chapter 4 paragraph 3.5.5, for consultancy agreements involving design by consultants or contractors employed by the Government, to which the design checking approach in PAH Chapter 4 paragraph 3.5.4(b) or (c) is applicable, the Checking Engineer should prepare a design checking report providing details of the design checking and submit directly to DR, not via the Designer.

Payment of Fees

17. Fees shall be paid to the consultants in accordance with the Schedules of Fees and within the time frame stated in the GCE. The payment may include some or all of the following items, and should be assessed and made in accordance with the terms of the consultancy agreement.

(a) Interim payment
(b) Final payment
(c) Adjustment in lump sum fees
(d) Expenses
(e) Payment for additional services
(f) Reduction for lump sum fees
(g) Payment for delays
(h) Fees on time basis

Ordering and Execution of Additional Service

18. There are provisions in the GCE for the ordering of additional services for which the consultants are entitled to additional payment. The ordering of such service should be properly made by an officer with the necessary authority.

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Modification to Consultancy Agreement

19. Modifications to the terms of the consultancy agreements may be necessitated by changes in circumstances. Such modifications shall be covered by supplemental agreements. Legal Advisory Unit/Works Bureau should be consulted, if necessary, and the relevant approval should be sought. It should be noted that such modifications shall be consistent with the scope of the project as approved and within the limits set out in the Stores and Procurement Regulations.

Conclusion of Consultancy Agreement

20. When the consultants have substantially completed the duties, they should be so informed together with a list of outstanding items and any other ongoing responsibilities. The account should be finalised within a reasonable period.

21. The following are common outstanding items encountered during the completion of a consultancy agreement:

(a) Return of documents provided by the Employer
(b) Settlement of contractual claims
(c) Production of as-built drawings
(d) Production of maintenance manuals
(e) Submission of design calculations
(f) Submission of design certificates
(g) Record of handing over of works.

Conducting Audits

22. It is usually necessary to carry out file perusals and staff interviews during the course of the audit. These works shall be so arranged as to minimise disruption to the project officers.

23. Personal checklists and notes are useful tools to auditing officers. However, care must be taken to ensure that they do not restrict enquiry. Auditing officers shall always be prepared to follow up other lines of enquiry which could lead to information discovery.

24. All checklists and notes together with other information found during the audit should be properly filed for future reference when necessary.

25. The following are some useful auditing skills:

(a) let project officers talk freely. Unless the talk diverts from the topic, auditing officers should avoid interrupting as more information may be gathered from the talk;

(b) do not argue with the project officers or criticise their work. This will only cause ill feelings and could be obstructive to later auditing work;

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(c) do not initiate to tell project officers how to do their work as this may cause ill feeling. However, auditing officers, when requested by the project officers, should advise the correct procedures to be followed when carrying out their duties;

(d) be polite in delivering questions. A rude or suspicious attitude will not generate co-operation from project officers;

(e) avoid asking leading questions (i.e. questions in the form of a statement and will only require a simple answer of 'yes' or 'no). The project officer who answers such questions may give answers he thinks will best protect him, whether or not they are true answers. Instead, auditing officers should ask open questions wherever possible. Open questions normally being with the words: "where ....; what .....; when ....,; how .....; why .....; who .....; please show me .....";

(f) distinguish between facts and opinion in statements expressed or answers provided by project officers;

(g) be cautious of inefficient use of time by following false trails or attention on the 'minor and unimportant many';

(h) carefully monitor progress of the audit so that the entire scope of the audit is covered as scheduled. Unless new issues with significant implications or non-compliance are found, departure from the original schedule should be avoided; and

(i) try to programme interviews to fit the project officers' working hours.

Closing Meeting

26. At the end of the audit but prior to the preparation of the audit report, the auditing officer shall arrange a Closing Meeting with the project officers. The Meeting should involve the same people who attended the Opening Meeting.

27. Before holding the Closing Meeting, the auditing officer should carefully review the findings of the audit to ensure that the entire scope of the audit is covered and that all non-compliance found are based on sound and objective evidence.

28. At the Closing Meeting, the auditing officer shall:

(a) recapitulate the scope of the audit, the relevant standards used as the basis of the audit and the meaning of a non-compliance;

(b) state that although many things were found to be in compliance with the standards, only non-compliance and findings of significance will be reported;

(c) give a disclaimer that it is possible that not all non-compliance is identified during the audit;

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(d) describe the major non-compliance and/or other findings of special interest, and ask project officers to give their views and/or explanations on such non-compliance and/or findings;

(e) state that all audit findings will be submitted to the Head or Deputy Head of Department, or equivalent, in the form of an audit report; and that appropriate recommendations will be included in the report; and

(f) invite and answer any questions the project officers may have.

Audit Report

29. After the Closing Meeting, the auditing officer shall prepare and submit the audit report using the standard pro-forma contents at Annex as soon as practicable to the Head or Deputy Head of Department, or equivalent, with copies to Works Bureau. Audit reports may also be copied to the Chairman of the AACSB or EACSB, if considered necessary.

30. In preparing the audit report, care should be taken to avoid minor non-compliance being reported out of proportion.

Follow Up Actions

31. Upon perusal of the audit report, the Head or Deputy Head of Department, or equivalent, shall determine the follow up actions required (including corrective measures to procedural or other non-compliance) and direct the auditing officer or project officers accordingly.

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Annex

Pro-forma Contents of Technical Audit Reports on Consultancies

Summary

Brief Description of the Consultancy Assignment

Date of Audits

Documents Perused

Audit Findings

- **(list various headings in the scope of the audit)**

Recommendations

Appendices

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APPENDIX 7.41 MANDATORY PROVIDENT FUND NOTIFICATION FORM

To: General Manager Member Protection and Services Division
Mandatory Provident Fund Schemes Authority
(Email: contactMPSD@MPFA.org.hk)

Notification of Commencement of Contract

Contract No.:	
Contract Title:	
Contract Sum:	
Date for the commencement of Contract:	
Construction Period:	
Location of Site:	
Type of Works: *	
Name of Contractor:	
Company address of Contractor:	
Telephone Number:	
Facsimile Number:	
Name of contact person:	
Estimated number of workers:	under direct employment _____ employed by sub-contractors _____ estimated total number _____
Name of Nominated Sub-contractor(s) (if any):	
Name of Domestic Sub-contractor(s) (if any):	
Remarks:	

Information provided by the Contractor to:
Name: _____
Post: _____
Office/Department/Consultant _____
Telephone No. _____
Date _____

* Types of work:

A Foundation works
B Civil engineering works
C Demolition and structural alternation works
D Refurbishment and maintenance works
E General building construction works
F Fire services, mechanical and electrical works
G Gas, plumbing and drainage works
H Interior fitting out works
I Others

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APPENDIX 7.42 SHOTFIRER'S CHARGING DETAILS

[REGULATION 56(1) OF DANGEROUS GOODS (GENERAL) REGULATIONS, CAP 295]

Date: _____

Name of Contractor: _____ Site Code: _____

Name of Shotfirers:

1. _____ MBC NO.: _____ 2. _____ MBC NO.: _____

3. _____ MBC NO.: _____ 4. _____ MBC NO.: _____

Time of Blasting: (1) _____ (2) _____ (3) _____

	Type	Qty Received	Qty Consumed	Qty Destroyed
Cartridged Explosives				
Bulk Explosives				
Detonators				
Accessories				

Shotfirer i/c : _____ _____

(Name) Signature

Countersigned by Resident Explosives Supervisor : _____ _____

(Name) Signature

****

The following details of the above blast(s) are shown on the attached plans:

(1) the site code and date;
(2) the location of the blast(s);
(3) the layout of the blast holes, including the burden and spacing;
(4) the diameter, depth, inclination and subgrade drilling of the blast holes;
(5) the amount and type of explosives loaded into each hole;
(6) the initiation system, including full details of the delay sequence; and
(7) the charge weight/delay period.

These plans should be certified correct by the shotfirer i/c.

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香港法例第295章危險品（一般）規例第56(1)條
燃爆人員安裝炸藥詳報表

日期：_____

承建商姓名：_____ 地盤密碼：_____

燃爆員姓名：

1. _____ 鑽場燃爆證書編號: _____ 2. _____ 鑽場燃爆證書編號: _____

3. _____ 鑽場燃爆證書編號: _____ 4. _____ 鑽場燃爆證書編號: _____

爆石時間: (1) _____ (2) _____ (3) _____

	種類	接收數量	耗用數量	銷毀數量
炸藥條				
散裝爆炸品				
雷管				
炸藥配件				

負責燃爆人員 : _____ _____

（姓名） （簽署）

負責加簽的
駐地盤爆炸品督導員 : _____ _____

（姓名） （簽署）

****

關於上述爆石的下列詳情在附圖中顯示：

(1) 地盤密碼及日期；
(2) 爆石地點；
(3) 炮孔的排位，包括負荷及間距；
(4) 炮孔的直徑、深度、斜度及加深；
(5) 裝進每個炮孔的爆炸品數量及種類；
(6) 起爆系統，包括延時次序的詳情；及
(7) 炸藥份量 / 延時段數。

這些圖則須由負責的燃爆人員證實正確無誤。

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APPENDIX 7.43 PROFORMA FOR REPORTING CASE OF SUSPECTED NON-PAYMENT OF WAGES TO WORKERS

MEMO

From	*To* Commissioner for Labour
Ref. *in*	*(Attn.:* Labour Relations Division *)*
Tel. No.	*Your* *in*
Fax. No.	*dated* *Fax. No.* 2545 2959
Date.	*Total Pages*

Case of Suspected Non-payment of Wages to Employees in the Construction Industry

The following case of suspected non-payment of wages to employees in the construction industry is referred to your attention:

(a) Address of construction site:

(b) Particulars of employee(s) being owed wages:
Name:
Address:
Tel. No.:
Work involved at the Site:
Amount and duration of wages being owed:

(c) Particulars of direct employer who is suspected of failing to pay wages to his employees:
Name:
Address:
Tel. No.:
Work involved at the Site:
Contact Person (if known):

(d) Particulars of principal contractor of the Site:
Name:
Address:
Tel. No.:
Contact Person:

(e) Other relevant information:

_____
(Designation of Chief Engineer/Engineer Representative)

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APPENDIX 7.44 SAMPLE PLAQUES

Type A (for structures formally opened)

This *_____ was opened by The Honourable [Name & Title] [Post] on [Date] _____ Designed by [Name of Office and Department] (or Designed by Messrs. [Name of Consultant] in association with [Name of Office and Department]) Constructed by [Name of Contractor]	[Chinese version of the inscription to be shown here. Chinese characters should read vertically from top to bottom and the columns right to left. If it is necessary to arrange the Chinese characters horizontally, they should read from left to right and the row from top to bottom.]

Type B (for structures not formally opened)

This *_____ was designed by [Name of Office and Department] Constructed by [Name of Contractor] Completed on [Date]	

This *_____ was handed over by [Name of Consultant] to [Name of Office and Department] on [Date] _____ Designed by Messrs. [Name of Consultant] in association with [Name of Office and Department] Constructed by [Name of Contractor]	

* Insert identity of the structure

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APPENDIX 7.45 SAMPLE INVITATION CARD FOR OPENING CEREMONY

THE DIRECTOR OF _____

REQUESTS THE PLEASURE OF THE COMPANY OF

_____

AT THE OPENING OF

[The name of the project]

BY

THE HONOURABLE [Name of the guest], [The guest's title]

ON [Date] AT [Time]

R.S.V.P.
CHIEF ENGINEER,
[Division],
[Department],
[Address].
[Tel. No.]

REFRESHMENTS WILL BE SERVED
(GUESTS SHOULD BE SEATED BY [Time])

PLEASE BRING ALONG THIS CARD WITH YOU

P.T.O.

Note: A map showing the location of the ceremony, traffic routing, car park etc. should be printed at the back of the invitation card

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APPENDIX 7.46 GUIDANCE NOTES FOR POST-COMPLETION REVIEW (Subsumed from ETWB TCW No. 26/2003)

1. Introduction

A post-completion review is a means of recording experience, both success and failure, from past projects, so it can be used where appropriate to improve future projects by avoiding past mistakes and allowing good practices to be better understood by project staff. In general terms, the review should consider -

(a) project objectives in terms of cost, time and quality;
(b) management;
(c) organization;
(d) systems and procedures;
(e) suitability of the design, contract types and contract packaging; and
(f) public reaction during construction and operation.

Departments may consider conducting a single post-completion review examining aspects in both the consultancy agreement and works contracts together.

2. On what type of projects should a Post-Completion Review be conducted

It is considered that the post-completion review (being a new initiative and there is also a need to optimize the benefits against resources to be deployed) need not be conducted for consultancy agreements and works contracts of a project which has a total cost less than $500 million or of a project which does not involve complicated technical and management issues. Indicators that a project involves complicated issues may include the following:

(a) project involving a variation item costing substantial amount, say over $1 million;
(b) project involving a claim of a substantial sum, say over $1 million;
(c) project involving design or construction method not commonly used in Hong Kong; and
(d) project involving incidents that attract public attention.

3. Who and what should be involved in a Post-Completion Review

A post-completion review should be led by the officer in charge of the project (normally at senior professional level or above) and he or she should solicit input from the client and other project participants (such as the consultants, contractors and subcontractors) as appropriate. The department should also determine the depth of the review, taking into account the issues to be examined, and consider if assistance from legal advisor or technical specialists should be sought. Consideration should also be given to inviting project officers who have left the project team to provide input.

A post-completion review may involve both a document review and discussion sessions with the presence of different project participants. Due to the different concerns of different project participants, it may be necessary to have more than one

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discussion session with different party in order to facilitate better collection of views and exchange of ideas.

4. When should the Post-Completion Review be carried out

A post-completion review should be carried out within a reasonable period, say 6 months, after the substantial completion of a consultancy agreement or a works contract. However, in case there are on-going disputes with the service providers, it may be more appropriate to defer the review until the disputes are settled or the review may have to be carried out without the participation of the service provider concerned. For a project that comprises a number of contracts/consultancy agreements, the project office may elect, in view of the benefit of an overall review, to conduct a single review upon the substantial completion of the last contract.

5. The review

The project office could determine issues to be examined in a post-completion and some suggestions are given below:

- **(a) pre-contract arrangements/procedures;**
- **(b) contract administration system/arrangements;**
- **(c) adequacy and suitability of specifications/brief;**
- **(d) programme/cost/variation control measures;**
- **(e) management of consultant's/contractor's performance;**
- **(f) management and control in relation to subcontractors/subconsultants;**
- **(g) procedures in relation to the management of quality, safety and environmental aspects and traffic management issues;**
- **(h) contract documents;**
- **(i) acceptance, testing and commissioning system/procedures;**
- **(j) quality/performance of service providers;**
- **(k) organization of consultants/contractors/other service providers;**
- **(l) management/handling of public complaints;**
- **(m) adequacy of contract period/study period.**

Departments are also suggested to develop performance indicators to facilitate the review and develop after reviewing the projects, suitable benchmarks of project performance. The relevant indicators and benchmarks for the following aspects of performance or any other appropriate one should be developed:

- **(a) Cost performance - say by comparing the final out-turn prices as against the initial estimates and tender prices;**
- **(b) programme performance - say by comparing the actual project delivery as against the planned programme; and**
- **(c) staffing performance - say by comparing the adequacy of the level of staffing assigned to the project against any established departmental guidelines.**

Established benchmarks should also be subject to review from time to time.

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Although the post-completion review is essentially for exploring areas where improvement could be made, it is not expected that consensual views among the client and service providers on all issues examined could be made nor solutions to all problems revealed could be formulated. Nonetheless, the review itself is part of a process of enhancing awareness among the participants in the problematic areas thus would actuate improvement as a natural outcome in the long-term.

6. Views of the users may be included

If the timing of the post-completion review allows, the view of the users, and management/maintenance parties in the following areas or any others proposed by the users may be included in the review -

- **(a) an assessment of whether user requirements have been met, such that they would be better ascertained and conveyed to designers in future;**
- **(b) an assessment of the costs in use as against the planned operating cost, and how the planned efficiency and effectiveness of the equipment and facilities compare with those as built; and**
- **(c) any recommendations that the users may wish to make to improve value for money performance of future projects, e.g. facilities which are in fact unnecessary for most users can be omitted from future projects.**

The department may also consider, if resources is available, conducting a separate review with the users and management/maintenance parties at a later time, say one year, after they take over the project.

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APPENDIX 7.47 GUIDANCE ON GEOTECHNICAL SUPERVISION REQUIREMENTS

1 CATEGORIES OF GEOTECHNICAL SUPERVISION

1.1 Category I - periodic inspections by a geotechnical engineer from the project office/consultant which prepared the geotechnical design

This category of qualified supervision applies to sites where the buildability or the design (e.g. results of stability analyses or ground movement calculations, etc.) is sensitive to variations in the geotechnical design assumptions. Personnel acceptable for Category I supervision are Registered Professional Engineer (RPE) (Geotechnical) or equivalent.

1.2 Category II - periodic inspections by a senior geotechnical engineer from the project office/consultant which prepared the geotechnical design

This category of geotechnical supervision applies to sites of high sensitivity (e.g. steep slopes adjoining buildings, busy roads or tunnel works construction that could pose significant risk to life or property). Personnel acceptable for Category II supervision are senior engineers of RPE (Geotechnical) or equivalent.

1.3 Category III - full time supervision by a suitably experienced person

This category of qualified supervision applies to sites where day-to-day inspections and checks on compliance with drawings, specifications or working procedures are necessary. It is used for works which depend for their success and safety on a high standard of workmanship and materials. The personnel acceptable for Category III supervision depend on the sensitivity and complexity of the project.

2 SUPERVISION PACKAGE

A geotechnical supervision package consisting of a combination of Categories I, II and III may be adopted. Typical examples of the minimum recommended requirements are given in Table 7.2.1.

The recommended typical contents of the regular site inspection/design review report by the Category I/II supervisor are given in Table 7.2.2. The regular reports should be kept on site and made available for audit by GEO staff. The Category I/II supervisor should make a design amendment submission to the GEO prior to commencement of the works through the project office or its consultants, should there be any significant changes in the geotechnical design and/or working procedures.

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Table 7.2.1 - Recommended Minimum Geotechnical Supervision Requirements for Public Works Projects

CATEGORIES	GEOTECHNICAL WORKS	REMARKS
I + II + III I + III I + III	**Foundations :** deep foundations for buildings in Scheduled Area Nos. 2 & 4 and the Designated Area of Northshore Lantau, sensitive sites deep foundations for buildings in Scheduled Area Nos. 2 & 4 and the Designated Area of Northshore Lantau caisson foundations	See requirements of ETWB TCW No. 4/2004
I + II + III I + III	**Deep Excavation :** depth > 7.5m, sensitive sites depth > 4.5m	-
I + II + III I + III	**Blasting Works:** blasting for rock excavation, sensitive sites blasting for rock excavation	See requirements of PAH Chapter 7 paragraph 21.6
I + II + III I + III I + III I + III III I + III I + III III I + III	**Slope Works and Landslide Hazard Mitigation Works :** prestressed ground anchors, sensitive sites prestressed ground anchors soil nails cut slopes (in rock or soil) (height > 3m) cut slopes (in rock or soil) (height ≤ 3m) rock slope stabilisation works fill slope (height > 5m) fill slope (height ≤ 5m) landslide hazard mitigation works	-
I + III I + II + III I + III I +III III I + II + III I + III	**Retaining Structures :** caisson wall reinforced fill structure (height > 15m) or sensitive sites reinforced fill structure cantilever/gravity retaining wall (height > 5m) cantilever/gravity retaining wall (height ≤ 5m) soldier pile wall, bored-pile wall or diaphragm wall, sensitive sites soldier pile wall, bored-pile wall or diaphragm wall	-
I + II + III I + III	**Tunnel Works :** tunnel works, with significant risk to public life or property tunnel works	See PAH Chapter 7 paragraph 4.3 regarding the additional requirements on geologist.
I + III I + III	**Ground Treatment :** vertical drains, horizontal drains grouting and dewatering for deep excavations	-
I + III	**Ground Investigation :** Land and marine ground investigation	See requirements of ETWB TCW Nos. 29/2002A and 4/2004 regarding ground investigation works in Scheduled and Designated

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		Areas

Notes:

1. Sensitive sites include sites where works could affect old buildings with shallow foundations, old tunnel/caverns, major roads, railways, water mains, gas mains, slopes, retaining walls or sites with history of instability.
2. The project office may refine the above site supervision requirements to suit the objectives of the projects after consideration of individual needs. The required number of site supervision personnel would depend on the nature, size, complexity and spatial distribution of the works being carried out on site concurrently.
3. A full time Category I supervisor can take up the duty of a Category III supervisor.

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Table 7.2.2 Typical Contents of the Regular Site Inspection/Review Reports

Typical contents of the regular reports to be prepared by the Category I and/or Category II personnel on site supervision should include the following as appropriate. The Category I/II supervisor should make a design amendment submission to the GEO prior to commencement of the works through the project office or its consultants, should there be any significant changes in the design after the design review.

1. Progress of the Works

   (a) Records (e.g. drawings, photographs and geological plans and sections, monitoring data and field data from excavation faces) on progress of the works, including retaining structures, grouting, foundations, shoring, anchors, sol nails, excavation, basement structures and tunnel works. Among others, the depths and extent of excavation and temporary support measures, including the levels of struts installed and the location of rock bolts, dowels, ground anchors and areas of sprayed concrete, should be given.

2. Results of Monitoring During Construction

   (a) Description of the monitoring system, including frequency of monitoring and the "designed alert levels" and "ceased works levels" for settlements, lateral movements, heave, deflections, distortions, vibrations, crack widths, water inflow limits, groundwater levels/pressure changes, etc., and details of all surrounding sensitive geotechnical features, structures and utilities.

   (b) Plans and photographs showing the locations of all monitoring points (e.g. including settlement points, movement markers, seismographs, flow measurement devices, piezometers, inclinometers, load cells and strain gauges).

   (c) Results of all monitoring points with graphs and tables showing the alert levels, the cease works levels and the variation of the results with time.

   (d) Discussions and interpretations of the results of all monitoring work, including proposals for any changes of measuring devices and for investigation of observed anomalies.

3. Site Observations

   (a) Reports of initial defect survey (including photographs) of all surrounding structures and utilities (only required in the first report).

   (b) Reports of any significant movements or sign of distress observed including signs of movement of geotechnical features, differential settlements, cracks on pavements, cracks on adjacent buildings and structures, damages to watermains or other utilities.

   (c) Reports of any excessive displacements and collapses (including photographs), survey plans/sections of affected areas, time & date of the incident, probable reasons and any proposed remedial actions.

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(d) Reports of any significant deviations from approved plans, method statements and particular specifications, such as missing members or deficiencies in the shoring system, over-excavation prior to installation of the struts or laggings, and violation of contract acceptance criteria.

(e) Records of geological/hydrogeology mapping and reports of any significant deviations of geology and groundwater conditions, relative to the data and assumptions made in formulating the ground model, for the geotechnical design and geotechnical risk assessment, (e.g. unexpected ground conditions, geological features, seepage, water inflow, etc.).

(f) Reports of any critical activities in the vicinity of the site which may adversely affect its stability.

(g) Photographs, drawings and figures accompanying the reports as appropriate.

(h) Major construction problems encountered and any remedial action carried out.

4. Inspection Records

(a) Dates and times of site visits by Category I/II personnel.

(b) Remarks and comments made by Category I/II personnel during the inspections.

(c) Actions taken by Category III personnel in response to comments made by Category I/II personnel.

5. Review

(a) A critical review based on all information collected in the preceding items to check whether the design assumptions are still valid.

(b) Anticipated geotechnical problems and contingency measures, including actions to be taken by specific parties when the monitoring results approach the “designed alert levels”.

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APPENDIX 7.48 STANDARD FORM OF THE DEED OF ASSIGNMENT OF CONTRACTOR'S FINANCIAL BENEFITS (Subsumed from ETWB TCW No. 13/2000)

This Deed made this ..... day of ..... 20.....

Between **("the Assignor")**

And **("the Assignee")**

Facts

(A) **By Agreement dated ..... day of ..... 20..... and referred to as Contract No. ..... ("the Contract") the Assignor agreed with the Government of the Hong Kong Special Administrative Region ("the Employer") to execute and complete certain Works ("the Works").**

(B) **To finance inter alia the execution and completion of the Works the Assignee has agreed to make available to the Assignor a general banking facility in an aggregate amount not exceeding HK$ ..... or such greater amount as may be agreed from time to time ("the Facility").**

(C) **The Facility is to be secured inter alia by this Deed of Assignment.**

(D) **The Assignee has agreed with the Assignor subject to the Assignor complying with the terms of the Facility and the execution of this Deed, to keep the Facility open for the duration of the Contract.**

The Parties Agree as Follows :

1. **The Assignor ASSIGNS to the Assignee all monies payable or which may become payable by the Employer to the Assignor under the Contract.**

2. **The Assignor shall provide the Assignee all reasonable assistance to recover any monies due under the Contract.**

3. **The Assignor shall hold all monies paid to it under the Contract on trust for the Assignee and shall account to the Assignee for such monies as the Assignee may direct.**

4. **Upon repayment of all monies due to the Assignee under the Facility, the**

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Assignee shall REASSIGN to the Assignor all rights and interests granted under this Deed of Assignment.

5. THE ASSIGNOR COVENANTS WITH THE ASSIGNEE as follows -

5.1 The Contract is valid and subsisting and fully enforceable and in no way void or voidable and the whole benefit of the Contract is now vested in the Assignor free from all liens, charges, mortgages options, third party interests or other encumbrances.

5.2 All obligations to be performed and complied with by the Assignor pursuant to the Contract have been performed and complied with up to the date of execution of this Deed of Assignment.

5.3 The Assignor will in strict compliance with the Contract as to time, quality of the work and materials and otherwise in every respect execute and complete the Works and do all other things and observe all conditions necessary to be done or observed in order to entitle it to the Contract Sum referred to in the Contract and will not permit or suffer any act, omission or thing which may in any way preclude or hinder it from demanding the same free from all deductions, abatements or withholding whatsoever.

5.4 The Assignor will expend all sums to be advanced to it pursuant to the Facility in the execution and completion of the Works and other works referred to in the Facility and pay all outgoings in connection with the Works and any extra or additional works including penalties and other payments provided for by the Contract.

5.5 So long as any monies remain due to the Assignee under the Facility the Assignor will as and when it receives any monies payable to it under the Contract immediately payover the same to the Assignee.

5.6 (a) The Assignor will not :

(i) commit any act such that a petition for bankruptcy may be presented against it or present a petition for its own bankruptcy; or

(ii) commit any act or be in a state such that application for winding up may be presented against it or such that it may be wound up voluntarily; or

(iii) fail to satisfy any judgment against it before the expiry of seven (7) days following the date of such judgment.

(b) For the purposes of this Clause 5.6, "act" includes "omission".

5.7 The Assignor will not during the subsistence of this Deed of Assignment without the written consent of the Assignee and the Employer first obtained assign, mortgage, charge or otherwise dispose of the whole or any substantial part of the undertaking and assets of the Assignor's business.

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5.8 The Assignor will carry on and conduct its said business in a proper and efficient manner and will not make any substantial alteration to the nature of its business.

5.9 The Assignor will give the Assignee such information relating to its affairs, business and assets as the Assignee may from time to time require.

5.10 Further Assurance

The Assignor shall execute and do all such assurances, acts and things as the Assignee may reasonably require for perfecting or protecting the security created by this Deed of Assignment or for facilitating the recovery of any monies due under the Contract and the exercise of all powers, authorities and discretions vested in the Assignee and shall in particular execute all transfers, assignments and assurances of the security whether to the Assignee or to its nominees and give all notices, orders and directions which the Assignee may consider expedient.

5.11 Power of Attorney

(a) The Assignor hereby irrevocably appoints by way of security the Assignee or its nominees as the attorney of the Assignor and in the name and on behalf of the Assignor as its act and deed or otherwise to sign, seal, deliver and otherwise perfect any such legal or other assignments or any deed, assurance, instrument or act which may be required or may be deemed proper or expedient for the purpose of exercising fully and effectively all or any of the powers hereby conferred on the Assignee whether under Clause 5.10 or otherwise under this Deed of Assignment and also for the purpose of enforcement and realisation of the security hereby created; the appointment shall operate as a general power of attorney made under the Powers of Attorney Ordinance (Cap. 31).

(b) The Assignor hereby undertakes to ratify and confirm all deeds, instruments and documents lawfully executed by virtue of the authority and powers hereby conferred.

5.12 Additional/Continuing Security

(a) The security created by this Deed of Assignment is a continuing security and shall secure the balance of the liabilities outstanding from time to time notwithstanding the bankruptcy, insolvency, liquidation, winding-up or incapacity or any change in the constitution of the Assignor or any other person or any settlement of account or other matter whatsoever until the balance of the liabilities outstanding from time to time has been paid and discharged in full.

(b) The security created by this Deed of Assignment shall be in addition to and shall not in any way prejudice or be prejudiced by any other security, remedy and lien which the Assignee may now or at any time hereafter hold for all or any part of the moneys and liabilities covenanted to be paid or discharged under this Deed of Assignment.

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5.13 Indulgence

This Deed of Assignment and the rights of the Assignee under it shall not be discharged or in any way affected by -

(a) any time, indulgence, waiver or consent at any time given to the Assignor or any other person;

(b) any amendment to this Deed of Assignment or to any other security or any guarantee or indemnity;

(c) the making or the absence of any demand on the Assignor or any other person for payment;

(d) the enforcement or absence of enforcement of or release of this Deed of Assignment or of any other security, guarantee or indemnity;

(e) the dissolution, amalgamation, reconstruction or reorganisation of the Assignor or any other person; and

(f) the illegality, invalidity or unenforceability of or any defect in any provision of this Deed of Assignment or any of the obligations of the Assignor or any other person under any such provision.

5.14 Indemnity

Without prejudice to the right to indemnity by law given to agents and trustees (and subject to the provisions of any applicable ordinance), the Assignor shall indemnify the Assignee or its nominees or its attorney out of the secured payments and the income thereof in respect of all liabilities and expenses certified in reasonable detail as properly incurred by them or any of them in the execution of the terms and conditions of this Deed of Assignment and against all actions, proceedings, claims and demands in respect of any matter or thing done or omitted in any way relating to the security.

6. The Assignee Covenants with the Assignor that so long as the Assignor complies with the terms of the Facility, then the Assignee shall not withdraw the Facility or reduce the Facility except if expressly provided for in the terms agreed in the Facility set at the date of this Deed of Assignment.

7. It is Agreed by the Parties as follows -

7.1 All monies payable by the Employer to the Assignor pursuant to the Contract shall, during the subsistence of this Deed of Assignment be paid by the Employer direct to the Assignee.

7.2 The Assignee shall not be under any obligation to take any steps or institute any proceedings to recover any monies payable or to become payable by the Employer under the Contract nor shall the Assignee be answerable for any loss

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arising from its having neglected to take any such steps or institute any such proceedings.

7.3 The Assignee shall be entitled on behalf of the Assignor to settle all accounts in relation to the Contract and if the Assignor fails to perform any of its obligations under the Contract the Assignee may enter into any agreement with the Employer to deal with that failure to perform and any such settlement or arrangement shall be binding on the Assignor.

7.4 Nothing contained or implied herein shall in any way whatsoever affect, alter or amend terms of the Contract between the Employer and the Assignor, and in particular and without derogating from the generality of this clause, the right of the Employer to make payment other than to the Assignee and to exercise the right of set off pursuant to the terms of the Contract.

7.5 Neither the consent of the Employer to this Deed, the settling of an account by the Assignee with the Employer nor the entering into of any agreement by the Assignee with the Employer pursuant to Clause 7.3 or otherwise shall give rise to any contractual relationship between the Employer and the Assignee other than the obligation of the Employer to make payments to the Assignee pursuant to this Deed. The Assignor shall remain liable to perform all the obligations assumed by it under the Contract and neither the Assignee nor any agent or employee of the Assignee shall be under any obligation of any kind under the Contract or be under any liability whatsoever in the event of any failure by the Assignor to perform its obligations thereunder.

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This Deed is executed the Year and Day above mentioned.

Sealed with the Common Seal of)
[Assignor])
and Signed by)
)
)
in the presence of :)
Sealed with the Common Seal of)
[Assignee])
and Signed by)
)
)
in the presence of :)
)

The Government of the Hong Kong Special Administrative Region as the Employer acting by and through ..... on the ..... day of ..... 20..... consents to the assignment of the Contract on the above terms and conditions.

Signed for and on behalf of the)
Government of the)
Hong Kong Special Administrative Region by)
)
in the presence of :)
)

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APPENDIX 7.49 STANDARD CHECKLIST FOR MONITORING OF THE SUB-CONTRACTOR MANAGEMENT PLAN

(Ref.: SDEV's memo ref. DEVB(W) 109/11/01 Pt. 9 dated 19.12.2008, SDEV's memo ref. DEVB(PS) 109/11/01 Pt. 9 dated 15.5.2013, SDEV's memo ref. DEVB(W) 510/94/02 dated 5.3.2021 and SDEV's memo ref. (03E8T) in DEVB(W)516/80/03 dated 3.8.2022)

Standard Checklist for monitoring of the Sub-contractor Management Plan

DEPARTMENT/OFFICE :

A Contractor's Details

Contractor's Ref. :

Contractor's Name :

Contract No. : PWP No. :

Contract Title :

Type of Contract : Civil / Building / Term / Specialist / Maintenance *

Predominant Category of Work :

B Contract Duration and Submission Schedule

Contract Commencement Date :

Anticipated Contract Completion Date :

Anticipated Contract Period : months

	Submission/Checklist Schedule				Checked By		
Submission	Anticipated date	Actual date	Submission Ref:	Checklist Ref:	Name & Post	initial	Date

* Delete as appropriate
All dates to be shown as dd/mm/yyyy e.g. 01/03/2021

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Standard Checklist for monitoring of the Sub-contractor Management Plan

PART A - Submission

Checklist Ref:
Date:

ITEM		Yes	No	N/A	Remarks
Section 1	**Time Requirements**				
1.1	Complies with contract requirements on timely submission				
1.2	Complies with immediate notification requirement for major changes				

Guidance Notes for Part A Section 1:
(a) First submission within 30 days of Letter of Acceptance
(b) Quarterly update-within 1 month from the start day of the quarterly period
(c) Major changes update (including change of subcontracting structure such as addition/removal of subcontractors and/or alteration of subcontracting tiers) - interim notification
(d) Revision/updating within 14 days of the date of notification

ITEM		Yes	No	N/A	Remarks
Section 2	**Content Requirements**				
2.1	Compliance with contract requirements/SMP guidelines on limiting the tiers of Sub-contracting and prohibition on wholly sub-contracting of works (refer to guidance notes (a) to (c))				
2.2	Reasonable measures for monitoring and assessing sub-contractors' performance on: works programme, works quality, safety and environmental issues for individual subcontracts				
2.3	Compliance with contract requirements/SMP guidelines on Subcontract conditions (refer to guidance notes (d) and (e))				
2.4	Compliance with contract requirements/SMP guidelines on Organization chart/Contractor's Management Team (refer to guidance notes (f))				
2.5	Compliance with contract requirements/SMP guidelines on Payment of Wages of Site Personnel (refer to guidance notes (g) to (i))				
2.6	Reasonable measures for ensuring timely payment to the first-tier subcontractors and downstream sub-contractors including payments by sub-contractors to sub-contractors of lower tiers				
2.7	Compliance with the contract requirement for incorporating the vesting provisions on materials and/or constructional plant into the sub-contracts with its sub-contractors				
2.8	Compliance with contract requirement on proof of ownership of Constructional Plant or undertakings from the owner of the relevant item(s) of Constructional Plant for assignment of benefit to the Employer				
2.9	Reasonable measures for monitoring the performance of the subcontractors in complying with the requirements in the Contract in reporting site accidents				
2.10	Reasonable measures to ensure all subcontractors, irrespective of tiers, to incorporate the Mandatory Subcontract Conditions for Prohibition of Imposing Administrative Charges for Reporting of Site Accidents and Elimination of Under-reporting of Site Accidents				

Guidance Notes for Part A Section 2:
(a) Clear and sufficient information on scope of works to be sub-contracted
(b) Clear measures to ensure that sub-contractors shall not sub-contract the whole of the works sub-contracted to them
(c) Clear measures to ensure sub-contractors to report upwards their sub-contracting arrangements and any subsequent changes
(d) Clear requirement to demand sub-contractors to submit written declarations of no "hidden" sub-contracting works
(e) Clear arrangement to ensure sub-contractors to adopt written contracts in their further sub-contracting and all the sub-contracts complied with the requirements as stipulated in the Contract
(f) Organization chart with names and responsibilities to show that the Contractor employs his own staff to manage and supervise his sub-contractors, with declaration that members of staff on the Contractor's Management Team are prohibited to be given a subcontract to any part of the works or to have a vested interest in any of the subcontractors irrespective of tiers
(g) Reasonable approach for early monitoring of industrial dispute
(h) Reasonable approach for handling complaints from workers on site regarding wages arrears disputes
(i) Reasonable mechanism to keep the A/E/SO informed of the latest situation regarding wages arrears or industrial dispute

Guidance Notes on follow up action for Part A:
(a) Reminder/Warning to be issued for non-compliance on A1.1 to 1.2, A2.1 to 2.6, 2.9 and 2.10 above
(b) Warning/notifying mechanism to be triggered
(c) Reflect the non-compliance in the Report on Contractor's Performance
(d) Payment for SMP is made in accordance with requirements in the Contract

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Standard Checklist for monitoring of the Sub-contractor Management Plan

PART B - Site Compliance Check

Checklist Ref:
Date:

ITEM		Yes	No	N/A	Remarks
Section 1	**Documentary Proof**				
1.1	Evidence of compliance with contract requirements/SMP guidelines on limiting the tiers of Sub-contracting (refer to guidance notes (a) to (c))				
1.2	Evidence of measures being implemented for monitoring and assessing sub-contractors' performance on: works programme, works quality, safety and environmental issues for individual subcontracts				
1.3	Evidence of compliance with contract requirements/SMP guidelines on Subcontract conditions (refer to guidance notes (d) and (e))				
1.4	Evidence of compliance with contract requirements (if applicable) on Contractor's Management Team				
1.5	Evidence of compliance with contract requirements/SMP guidelines on Payment of Wages of Site Personnel (refer to guidance notes (f) and (g))				
1.6	Evidence of measures for ensuring timely payment to the first-tier subcontractors and downstream sub-contractors including payments by sub-contractors to sub-contractors of lower tiers				
1.7	Evidence of compliance with the contract requirement for incorporating the vesting provisions on materials and/or constructional plant into the sub-contracts with its sub-contractors				
1.8	Evidence of compliance with contract requirement on proof of ownership of Constructional Plant or undertakings from the owner of the relevant item(s) of Constructional Plant for assignment of benefit to the Employer				

Guidance Notes for Part B Section 1:

(a) Evidence of sub-contract arrangement tally with SMP
(b) Evidence of measures being implemented that sub-contractors shall not sub-contract the whole of the works sub-contracted to them
(c) Evidence of measures being implemented to ensure sub-contractors to report upwards their sub-contracting arrangements and any subsequent changes
(d) Evidence of requirement to demand sub-contractors to submit written declarations of no "hidden" sub-contracting works
(e) Evidence of sub-contractors to adopt written contracts in their further sub-contracting and all the sub-contracts complied with the requirements as stipulated in the Contract
(f) Evidence of early monitoring of industrial dispute (if applicable)
(g) Evidence of handling complaints from workers on site regarding wages arrears disputes (if applicable)
(h) Either record or keep a copy of the documents examined for future audit purposes

ITEM		Yes	No	N/A	Remarks
Section 2	**Site Observations**				
2.1	Frontline RSSs are facilitated to have easy access to the submitted SMPs				
2.2	Observations indicate that the site arrangement reasonably tally with the submitted Organization chart				
2.3	Observations indicate that the site arrangement reasonably tally with the submitted information on scope of works to be sub-contracted				
2.4	If applicable, observations indicate that complaints from workers on site regarding wages arrears disputes were being handled, industrial dispute were being monitored at an early stage and A/E/SO were informed of the latest situation				

Guidance Notes for Part B Section 2:

(a) Labour Relations Officer (LRO) has to undertake regular physical checks to verify the accuracy and reliability of the workers attendance records to identify irregularities, such as hidden sub-contractors. LRO has to check regularly on the information of workers' employers recorded in the attendance recording system against the latest SMP, and properly document such checks, and alert the project officer if the sub-contractor's name is not contained in the SMP. Observations should include random check on LRO's properly discharge of this duty.

Guidance Notes on follow up action for Part B:

(a) Reminder/Warning to be issued for non-compliance on B1.1 to 1.6, B2.1 to 2.4 above
(b) Reflect the non-compliance in the Report on Contractor's Performance

3 Version dated 5-3-2021

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APPENDIX 7.50 ASSESSMENT TABLE FOR AT-GRADE ROAD SECTION WHICH IS 6M OR MORE ABOVE GROUND (for example, those on embankment steeper than 1 (vert.) : 4 (hori.) or retaining structure) or adjacent to a water body

Maintenance office of HyD : _____

Road name : _____

Date of assessment : _____

Date of opening of the road : _____

Location of road section (please quote chainages, nearby road intersections or buildings, etc.) : _____

Traffic direction adjacent to barrier in question (e.g. NT bound, southbound, both bounds, etc) : _____

Length of barrier : _____

Type of barrier (Note 1) : _____

Speed Limit equals to 70kph or more (Yes/No) : _____

Height equals to or exceeding 20m (Note 2)(Yes/No) : _____

Sensitive features below road (Note 3)(Yes/No) (If "Yes", please also note down the features in "Remark" below) : _____

Undesirable road geometry (Note 4)(Yes/No) : _____

No. of barrier impact related traffic accidents in the past 5-year (Note 5) (No. of accident / NA) : _____

Remark : _____

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Notes

1. UB: Untensioned corrugated beam barrier TB: Thrie beam barrier
   PB: Concrete profile barrier MW: Masonry wall
   TBAR: Thrie beam barrier with additional rail (TPDM Vol. 2 Diagram 3.9.3.1)
   Others (to be specified)

2. Please enter "Yes" if the height of the road equals or exceeds 20m. For roads on embankment, if the embankment slope is steeper than 1 (vertical) : 4 (horizontal), the level difference between the road surface and bottom of slope should be measured. If the level difference is equal to 20m or more, please enter "Yes".

3. Please enter "Yes" if there is resident, school, hospital or other similar occupant, or a water body, or expressway / trunk road / railway in close proximity.

4. Please enter "Yes" for road section with horizontal radius < 250m for speed ≥ 70km/h (or horizontal radius < 88m for speed < 70km/h), or gradient > 8%, or road section at or within 20m from junction / interchanges.

5. Applicable to projects on existing roads only. Please enter "NA" for a completely new road. For roads to be handed over before 1 Jan 2011, the related works office shall obtain the accident data from the Road Safety and Standards Division of TD and compare it with the total number of accidents recorded in the "Parapet and Barrier Damage Reports System" to be obtained from the respective regional office of HyD. The number of accidents whichever higher should be recorded in this entry.

   For roads to be handed over on or after 1 Jan 2011, that data should be completed by the respective regional office of HyD based on the information in the "Parapet and Barrier Damage Reports System".

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APPENDIX 7.51 NOT USED

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APPENDIX 7.52 RETURN ON CONSTRUCTION SITE EMPLOYMENT (Ref.: ETWB TCW No. 4/2005)

Original - C&SD (within 2 weeks) | Duplicate - Project Office/Authorized Person | Triplicate - filed as Site Record | Quadruplicate - kept by Contractor

Reference no. in Buildings Department / Contract no.: _____

Contract title / Contract description: _____

Name of contractor: _____ (Tel. :)

☐ Nominated sub-contractor *(Tick if applicable)*

Site / Contract address: _____

Name of authorized person / Company of site representative: _____ (Tel. :)

Name of real estate developer / responsible government department: _____ (Tel. :)

Work code for government site only [j] *(If applicable)* : _____

Broad stage of work: _____ (% of completion :)

Current status of the site *(Please select one of the following and tick as appropriate box)* :

1 ☐ Active

2 ☐ Work suspended

3 ☐ Vacant

4 ☐ Under maintenance period (Expiry date (e.g. 31/01/2007): _____)

5 ☐ Work completed with maintenance period over / without maintenance period

Reporting month/year (e.g. 03/2006) : _____ Last day of the reporting month [k]: _____

Please insert either the data or '0'. Do not leave any cell blank.

I. Number of persons engaged and vacancies *on the last day of the reporting month.*

Number of persons engaged at site	Total	Of which: female
(i) Manual workers		
(ii) Professional / technologist		
(iii) Technician		
(iv) Other site personnel (e.g. amah and security guards)		
(A) Total number of persons engaged at site		
(B) Number of employers / self-employed persons in (A)		
(C) Number of vacancies for manual workers (i.e. excluding items (ii), (iii) and (iv) above) at site		

II. If there are vacancies in I (C) above, please provide the job title and the number of vacancies.
(Use a separate sheet if necessary)

Job title (e.g. leveller, truck driver, bricklayer and electrical fitter)	Number of vacancies
1.	
2.	
3.	
4.	
5.	

For official use only

Site No. (33-47)

IND (48-53)

Area (54-56) Status (57)

DCM (58) EN (59-62)

JV7 (63-64)

JV8 (65-66)

JV9 (67-68)

Completed by contractor/ contractor's agent [l]: _____ (Name) _____ (Signature) _____ (Telephone) _____ (Date)

Notes :
j Please refer to work code in the GF 527 for the same site / contract.
k Please exclude Saturdays, Sundays, public holidays and days of inclement weather, and advance the reporting day accordingly (i.e. in the order of 31st, 30th, 29th …).
l Delete as appropriate.

GF 527A (Version March 2006)

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APPENDIX 7.53 GUIDELINES FOR COMPLETION AND SUBMISSION OF GF 527A (Ref.: ETWB TCW No. 4/2005)

A. Instructions

Form Completion

(a) For government sites, one GF 527A shall be completed for each and every contract monthly. The contractor shall complete and submit both the GF 527A and GF 527 together for a contract.

(b) For non-government sites, the contractor shall complete the GF 527A on site/contract basis for the month of March, June, September and December.

(c) The data for the entries of the number of persons engaged in each category of site personnel, vacancies and employers/self-employed persons in the GF 527A will be made based on the last full working day of the reporting month, which will exclude Saturdays, Sundays, public holidays or days of inclement weather such as strong winds, heavy rains or typhoons when the construction activities may be affected. For example, if the last day of a month is 30th and is a Saturday, then the last full working day of the month will be 29th (Friday) as Saturday is considered not a full working day. In case the weather on 29th is adverse, then the last full working day of the month will be advanced to 28th (Thursday), and so on and so forth.

(d) Only persons who have worked or engaged at the site (including in the site office) for three hours or more on the reporting day will be included in the entries for the number of persons of the respective category in the GF 527A. The data will cover all the persons employed by the contractor and his sub-contractors, except for those employed by the nominated sub-contractors of government sites, who will complete a separate GF 527A and submit to the principal contractor for consolidation.

(e) If there are vacancies on the reporting day, the contractor shall enter the job title and the number of vacancies for each of the trades.

(f) For government sites, a work code will be entered in the form for each contract, which is assigned by the project office and will be adopted throughout the contract period. If a contract involves more than one major work type, then the work code for the dominant work type will be adopted. The work code for both the GF 527A and GF 527 should be the same for a contract.

(g) The contractor shall check and sign the GF 527A before submission.

Form Submission

(h) The GF 527A shall be completed in quadruplicate for submission to the relevant parties: the original sent to the Census and Statistics Department (C&SD), the duplicate kept by the project office or authorized person, the

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triplicate filed as site record and the quadruplicate kept by the contractor.

For Government Sites

(i) **The completed GF 527A shall be submitted to the client's most senior representative on site (the client's site representative) within the first four working days of the month following the reporting month.**

(j) **The client's site representative will check that the data provided in the forms jare in order, except for the numbers of vacancies and employers/self-employed persons, which are the contractor's responsibility to ensure their accuracy. If necessary, the client's site representative may request the contractor to substantiate the data provided in the forms. Any discrepancy found will be notified to the contractor immediately for rectification.**

(k) **The client's site representative will complete the checking of the forms for submission to the relevant parties specified in (h) above within the first two weeks of the month following the reporting month.**

For Non-Government Sites

(l) **The completed GF 527A will be submitted to the relevant parties specified in (h) above within the first two weeks of the month following the reporting month.**

B. Explanatory Notes

(1) **Manual workers include all persons engaged in manual work at the construction site, who are either directly employed by the main contractor or called upon by sub-contractors or gang leaders. They include skilled, semi-skilled and general workers.**

(2) **A professional/technologist is a person who applies his professional skills to a wide range of technical activities and is able to use his knowledge and experience to initiate practical developments. He is expected to accept a high degree of responsibility and, in many cases, to push forward the boundaries of knowledge in his particular field. A professional/technologist should normally have received education and training equivalent to that required for corporate membership of a professional institution, e.g. architects, engineers and surveyors.**

(3) **A technician is one who occupies a position between a professional/technologist and a skilled worker. His education, training and practical experience should enable him to apply proven techniques to solve technical problems. He is expected to carry a measure of technical responsibility, normally under the guidance of a professional/technologist, e.g. clerk of works, site agent and site foremen.**

(4) **Other site personnel are persons other than those in (1), (2) and (3) above stationed/worked at the site, e.g. general clerical staff, amah and security**

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guards.

(5) An employer/a self-employed person is a person who works for profit or fees in his own business. He is not employed by anyone. However, he may employ one or more persons to work for him.

(6) Vacancies refer to unfilled job openings which are immediately available, and for which active recruitment steps are being taken on the reporting date.

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APPENDIX 7.54 DEVB WB INTERNAL CIRCULAR NO. 9/2007

Works Branch
Development Bureau
Government Secretariat

22 August 2007

Development Bureau
Works Branch Internal Circular No. 9/2007

Compliance with the
Personal Data (Privacy) Ordinance

(This circular should be read by all staff of Works Branch, DEVB and re-circulated for staff's information at half-yearly intervals)

This circular serves to remind staff of the need to handle personal data in compliance with the Personal Data (Privacy) Ordinance and the relevant Data Protection Principles. It supercedes the Environment, Transport and Works Bureau, Works Branch Internal Circular No. 6/2005.

General

2. The Personal Data (Privacy) Ordinance (PDPO) protects the privacy interests of individuals in relation to personal data. It covers any data relating directly or indirectly to a living individual (data subject) and applies to any person, organization or government department that controls the collection, holding, processing or use of personal data (data user).

3. The PDPO requires data users to comply with the six Data Protection Principles, which allow data subjects to have certain rights, including the right to be informed of whether a data user holds their personal data, to be supplied with a copy of such data and to request correction of any data they consider to be inaccurate.

Privacy Policy

4. A statement of WB's policy and practices in relation to data privacy, showing the main types of personal data held and main purposes for which they are used, is at Annex. If there are any changes to the "Types of Personal Data Held" or "Main Purposes of Keeping Personal Data", please inform the Personal Data Controlling Officer (paragraph 9 refers) in writing.

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Practices on Handling Personal Data

5. When handling personal data, colleagues should bear in mind that the interests of the individuals who are the subject of the data should be a primary concern. We should take special care to safeguard against unauthorized use or disclosure (deliberate or accidental) of personal data. Colleagues should undertake to –

(a) collect, when necessary, adequate but not excessive personal data relating to the functions or activities of WB;

(b) provide a Personal Information Collection Statement on each means of collection, covering the following –

- **purposes for which the data are to be used;**
- **whether it is obligatory or voluntary for individuals to supply the data and, if obligatory, the consequences of not doing so;**
- **classes of person to whom the data may be transferred;**
- **rights of individuals to request access and correction of the personal data; and**
- **name and address of the colleague to whom personal data access and correction requests may be made;**

(c) restrict the use (including disclosure and transfer) of personal data to the purposes for which they were to be used at the time of collection. Personal data may be used for other purposes only if the individual concerned voluntarily gives express consent;

(d) take all reasonably practicable steps to ensure that the personal data collected/held are accurate having regard to the purpose for which they are to be used, and are updated on a regular basis where appropriate;

(e) regularly review the retention periods for different types of personal data. Personal data must not be kept longer than necessary for the fulfillment of the purposes. Where it is considered useful or necessary to retain records, for example, for statistical or precedent purposes, consideration should be given to erasing any information which directly or indirectly identifies an individual or from which the identity of an individual can be deduced; and

(f) take all reasonably practicable steps to restrict access to and processing of personal data on a "need-to-know" and "need-to-use" basis and to ensure that personal data are protected against unauthorized or accidental access, disclosure, processing, erasure or other use.

Access to or Correction of Personal Data

6. The PDPO provides for an individual making a data access request –

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(a) to be informed whether the data user holds personal data of which the individual is the data subject;

(b) if the data user holds such data, to be supplied by the data user with a copy of such data.

7. The PDPO also provides for an individual to request correction of any personal data of which the individual has been provided with a copy after making a data access request and if the individual considers that the data to be inaccurate.

8. A data access request or a data correction request must be complied with within 40 days of receiving the request.

Personal Data Controlling Officer/Personal Data Privacy Officer

9. The Chief Executive Officer (Works) Administration [CEO(W)A] is the Personal Data Controlling Officer as well as the Personal Data Privacy Officer, responsible for monitoring and ensuring compliance with the provisions of the PDPO in respect of all personal data held by WB. The Senior Executive Officer (Works) Personnel [SEO(W)P] is responsible for all employment-related data access and correction requests while the Senior Executive Officer (Works) General [SEO(W)G] is responsible for access/correction requests of other personal data held by the WB.

Employment-related Data

10. Besides access to or correction of routine human resource management function, all requests should be made in writing as required at paragraph 11(a). For example, officers can still make oral enquiries about their leave balances and particulars. We will not treat these routine requests as data access/correction requests under the Ordinance and will continue to deal with them as usual. However, such requests will be handled with all necessary care, including establishing the identity of the requestors, to avoid unauthorized disclosure or amendment of colleagues' personal data. Colleagues who wish to make a request for access to or correction of employment-related personal data are welcome to contact SEO(W)P at 2848 6134.

11. If a request is made by members of the public, colleagues should undertake to –

(a) advise a requestor to make the data access request on the Data Access Request Form (PCO Form No. OPS 003), which is obtainable from the General Unit or could be downloaded from the website of the Privacy Commissioner's Office (PCO) at http://www.pco.org.hk; and submit the request to the Personal Data Controlling Officer, DEVB, 10/F, Murray Building, Garden Road, Hong Kong;

(b) forward any data access/correction request, when received, immediately to the General Unit on 10/F for processing. The data access/correction requests from members of the public will be centrally handled by SEO(W)G, in consultation with the unit heads who hold the personal data of the concerned individual.

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Reference materials

12. The six Data Protection Principles, relevant advice given by the Secretary for Home Affairs and other reference materials issued by the PCO, are available from the DEVB Bulletin Board.

Charges

13. We will make a charge to cover the cost of photocopying personal data requested under the Ordinance at the standard rate prescribed by the Director of Accounting Services. The Finance Section is responsible for the issue of demand notes for the payment.

Enquiries

14. For enquiries on the Circular, please contact CEO(W)A, the Personal Data Controlling Officer, at 2848 2132.

Signed
(Patrick Lau)
Principal Executive Officer (Works)

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Annex to DEVB WB Internal Circular No. 9/2007

Statement of Privacy Policy, Types and Main Purposes of Keeping Personal Data Held in the Works Branch, DEVB

Privacy Policy

The protection of privacy in relation to personal data is the concern of every member of staff in the Works Branch, DEVB. We respect personal data and are committed to fully implementing and complying with the data protection principles and all relevant provisions of the Personal Data (Privacy) Ordinance.

Types and Purposes of keeping the Personal Data held

Works Branch, DEVB holds the following types of personal data –

(1) ***Employment related Personal Data*** **– personal data held on serving officers and former employees include personal and family particulars, education and qualifications, employment history, salary and allowances, terms and conditions of service, housing, medical records, leave and passages, training, investments, outside employment, appraisal reports, promotion board assessments, conduct and discipline, and retirement and pension. Recruitment and appointment data are also held on applicants for appointment and seeking temporary employment.**

[Purpose : for a range of employment-related purposes, including appointments, integrity checking, posting and transfers, grant of allowances and employment benefits, offer/renewal/extension of agreement, incremental credit, training and career development, revision of terms of conditions of service, promotion, discipline, continuation in or removal from office, pensions and provision of testimonials.]

(2) ***Members of Boards, Committees and Tribunals*** **– these personal data include the personal particulars of candidates nominated for appointment/re-appointment to the various committees, boards and tribunals provided by the nominating parties and candidates, and assessments on the suitability of the candidates for appointment/ re-appointment (including personal information, past performance as a board/committee/tribunal member, attendance rate, relevant experience and expertise).**

[Purpose : for activities relating to the appointment of members to various boards and committees, and to facilitate communication between members and the secretariat.]

(3) ***Appeal Boards or Tribunals*** **– personal data held include name, address and contact number of appellants, authorized representatives, witnesses of various appeal boards or tribunals.**

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[Purpose : to facilitate the appeal proceedings.]

(4) ***Contractors*** **– personal data held include personal particulars or curricula vitae (CV) of key personnel or technical staff employed by contractors.**

[Purpose : to facilitate the consideration of contractors for inclusion in the List of Approved Contractors for Public Works and the List of Approved Suppliers of Materials and Specialist Contracts for Public Works.]

(5) ***Consultants*** **– these personal data include personal particulars and CV of individual consultants providing services to WB.**

[Purpose : to facilitate the award of consultancies.]

(6) ***Registered Safety Officers employed under public works contracts*** **– data held in WB include name and letter of registration issued by the Labour Department.**

[Purpose : to prevent registered safety officers from being employed full-time in more than one contracts or part-time in more than 3 contracts, which would affect their level and qualify of services.]

(7) ***Construction Workers claiming token allowances for attending Safety Certificate for Specified Trade Workers Course*** **– data held in WB include name, trade and serial number of the Specified Trade Safety Certificate issued by CITA.**

[Purpose : to prevent over-payment to contractors under the contract for attending the safety course.]

(8) ***Other records*** **– including administration records and personal particulars of members of the public who make requests under the Code on Access to Information and the Personal Data (Privacy) Ordinance or make enquiries or complaints, or put forward their views and comments, to WB.**

[Purpose : for various purposes which vary according to the nature of the record, such as dealing with enquiries or complaints or collecting views and comments from members of the public.]

Works Branch
Development Bureau
August 2007

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APPENDIX 7.55 REVISED SPECIAL CONDITIONS OF CONTRACT FOR CAPITAL WORKS CONTRACTS ADOPTING VOLUNTARY ADJUDICATION (Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 4.12.2014)

[To be adopted for capital works contracts adopting voluntary adjudication to be tendered on or after 1 January 2015]

SCC[X] Definition of Disputes

General Condition of Contract Clause 1(1) is amended by adding the following definition:

"Dispute" means any dispute or difference of any kind whatsoever between the Employer and the Contractor arising out of or in connection with the Contract or the carrying out of the Works including without limitation any dispute as to any decision, instruction, order, direction, certificate or valuation by the Engineer whether during the progress of the Works or after their completion and whether before or after the termination, abandonment or breach of the Contract by either the Employer or the Contractor.

SCC[Y] Settlement of Disputes

General Conditions of Contract Clause 86 is hereby deleted and replaced by the following :

"86 (1) If any Dispute shall arise, it shall be referred to and settled by the Engineer who shall state his decision in writing and give notice of the same to the Employer and the Contractor. Unless the Contract shall have been already terminated or abandoned the Contractor shall in every case continue to proceed with the Works with all due diligence and he shall give effect forthwith to every such decision of the Engineer. Such decision of the Engineer shall be final and binding upon the Contractor and the Employer unless either of them shall require that the matter be referred to mediation, adjudication or arbitration as hereinafter provided and unless and until the decision shall be revised in the said mediation, adjudication or arbitration. If the Engineer shall fail to give such decision for a period of 28 days after being requested to do so or if either the Employer or the Contractor be dissatisfied with any such decision of the Engineer then either the Employer or the Contractor may within 28 days after receiving notice of such decision, or within 28 days after the expiry of the said decision period of 28 days, as the case may be, request that the Dispute be referred to mediation or adjudication in accordance with and subject to The Government of the Hong Kong Special Administrative Region Construction Mediation Rules (the Mediation Rules) or any modification thereof being in force at the date of such request or The Government of the Hong Kong Special Administrative Region Construction Adjudication Rules (the Adjudication Rules)

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appended herewith as appropriate unless the Employer and the Contractor agree otherwise.

(1A)A decision of an adjudicator shall be final and binding upon the parties and enforceable as such unless and until either the Dispute -

(i) has been settled; or

(i) has been referred to arbitration as provided in this Clause and an arbitral award has been made or a settlement reached.

(1B) Despite the initiation of the mediation process under the Mediation Rules, if a party refuses to participate in the mediation or if the parties agree to participate in the mediation but they cannot reach a settlement agreement acceptable to both in respect of the Dispute, either party may within 14 days after the refusal to mediate or the termination of the mediation process request that the Dispute be referred to adjudication in accordance with and subject to the Adjudication Rules. The provisions in this sub-clause (1B) shall not be applicable to mediation initiated under sub-clause (1C) below.

(1C) Despite the initiation of the adjudication process under the Adjudication Rules, if a party refuses to participate in the adjudication or at any time after the commencement of the adjudication but before the date of the adjudicator's decision on the Dispute, the parties may by agreement refer the Dispute to mediation in accordance with and subject to the Mediation Rules. Upon the agreement of the parties to refer the Dispute to mediation under this sub-clause, the adjudication process shall be deemed terminated for purpose of Rule 11 of the Adjudication Rules on the same day. The provisions in this sub-clause (1C) shall not be applicable to adjudication initiated under sub-clause (1B) above.

(2) If the Dispute cannot be resolved-

(i) by mediation and/or adjudication; or
(ii) as a result of a failure of a recipient of a request for mediation or adjudication to respond; or
(iii) because of a refusal to mediate or adjudicate by either the Employer or the Contractor

as provided in the foregoing sub-clauses of this Clause, or if neither party wishes the Dispute to be referred to mediation or adjudication, and either the Employer or the Contractor wishes to pursue the Dispute further, then the Dispute shall be referred to and finally settled by arbitration in accordance with and subject to the provisions of the Arbitration Ordinance and any such reference shall be deemed to be a submission to arbitration within the meaning

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of such Ordinance. Any reference to arbitration shall be made by the Employer or the Contractor within 90 days of :

(a) the receipt of a request for mediation or adjudication and subsequently the recipient of such request having failed to respond, or

(b) the refusal to mediate or adjudicate, or

(c) the failure of the mediation proceedings to produce a settlement acceptable to the Employer and the Contractor, or

(d) the abandonment of the mediation or adjudication, or

(e) where the Engineer has failed to give a decision within the 28 days allowed under sub-clause (1) of this Clause after being requested to do so, the expiry of the subsequent period of 28 days for the Employer or the Contractor to request that the Dispute be referred to mediation or adjudication, and neither the Employer nor the Contractor having requested mediation or adjudication within that subsequent period of 28 days, or

(f) where the Engineer has given a decision within the 28 days allowed under sub-clause (1) of this Clause, the expiry of the period of 28 days after receipt of the notice of the Engineer's decision for the Employer or the Contractor to request that the Dispute be referred to mediation or adjudication, and neither the Employer nor the Contractor having requested mediation or adjudication within that period of 28 days, or

(g) the date of the adjudication decision of the Dispute.

Provided that where the provisions under sub-clauses (1B) or (1C) above have been invoked by the parties, the 90-day period for making a reference to arbitration shall be counted from the relevant event(s) as specified in paragraphs (a) to (g) above, where applicable, in the subsequent adjudication process or, as the case may be, mediation process.

(3) The adjudicator or arbitrator appointed shall have full power to open up, review and revise any decision (other than a decision under Clause 46(3) not to vary the Works), instruction, order, direction, certificate or valuation by the Engineer and neither party shall be limited in the proceedings before such adjudicator or arbitrator as the case may be to the evidence or arguments put before the Engineer for the purpose of obtaining the Engineer's decision above referred to. No decision opinion instruction direction certificate or valuation given by the Engineer shall disqualify him from being called as a witness and giving evidence before an adjudicator or arbitrator on any

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matter whatsoever relevant to the Dispute so referred to the adjudicator or arbitrator as aforesaid.

(3A) Save as provided for in sub-clauses (4) and (4A) of this Clause no further steps shall be taken in the reference to arbitration until after the completion or alleged completion of the Works unless with the written consent of the Employer and the Contractor.

Provided that the giving of a certificate of completion in accordance with Clause 53 shall not be a condition precedent to the taking of any step in such reference.

(4) In the case of any Dispute as to the exercise of the Engineer's powers under Clause 81(1) the reference to arbitration may proceed notwithstanding that the Works shall not then be or be alleged to be complete.

(4A) In the case where the Contract has been terminated or abandoned, the reference to arbitration may proceed notwithstanding that the Works shall not then be or be alleged to be complete.

(5) (a) Subject to paragraphs (b) and (c) of this sub-clause, the Domestic Arbitration Rules (2014) of the Hong Kong International Arbitration Centre (the Arbitration Rules) shall apply to any arbitration instituted in accordance with this Clause.

(b) Notwithstanding any provision of the Arbitration Rules, the place of meetings and hearings in the arbitration shall be Hong Kong unless the parties otherwise agree.

(c) Article 20.1 of the Arbitration Rules shall be deleted and replaced by:

'20.1(a) The arbitration proceedings are private and confidential between the parties and the arbitrator. Subject to the provisions of Section 18 of the Ordinance and these Rules, no information relating to the arbitration shall be disclosed by any person without the written consent of each and every party to the arbitration. Disclosures are permissible where disclosures –

(a) are necessary for implementation or enforcement;

(b) are required by the parties' auditors or for some other legitimate business reason;

(c) are required by any order of the courts of Hong Kong or other judicial tribunal;

(d) which are necessary for the making of claims against any third party or to defend a claim brought by any third party.

20.1(b) Notwithstanding Article 20.1(a) and subject to the following provisions, the party comprising the Government of the Hong Kong Special Administrative Region (the Government party) may disclose the outline of any dispute with the other party and the outcome of the arbitration to the Public Accounts Committee of the Legislative Council upon its request.

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Before disclosures are made to the said Committee, the Government party shall inform the other party. Disclosures shall not be made to the said Committee before expiry of the first 6 months from the date of the outcome of the arbitration without the written consent of the other party but such consent shall not be unreasonably withheld. The other party shall be deemed to have given his consent to disclosures on the expiry of the first 6 months from the date of the outcome of the arbitration. The other party may, if he considers necessary to protect the sensitive nature of certain information relating to him, request the Government party to disclose such specified information to the said Committee strictly on a confidential basis. If the Government party considers that there are legitimate grounds to accede to the other party's request, the Government party shall convey the request to the said Committee for its consideration.'

(6) All the provisions in Schedule 2 to the Arbitration Ordinance shall apply to any arbitration instituted in accordance with this Clause.

(7) For the purposes of this Clause, "Arbitration Ordinance" means the Arbitration Ordinance (Cap. 609) or any statutory modification thereof for the time being in force."

Note : **Reference to 'Engineer' should be suitably amended to refer to Architect/Surveyor/Maintenance Surveyor where appropriate. References to "General Conditions of Contract Clause 86", references to "the Works" and certain internal cross-references may need to be modified in the case of term contracts.**

Project Offices should take account of any other amendment to Cl 86 being in force at the time of preparing the contract documents.

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APPENDIX 7.56 REVISED SPECIAL CONDITIONS OF CONTRACT FOR NON-D&B CAPITAL WORKS CONTRACTS (Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 4.12.2014)

[To be adopted for non-D&B capital works contracts to be tendered on or after 1 January 2015]

General Conditions of Contract Clause 86 is deleted and replaced by the following:

"86(1) If any dispute or difference of any kind whatsoever shall arise between the Employer and the Contractor in connection with or arising out of the Contract or the carrying out of the Works including any dispute as to any decision, instruction, order, direction, certificate or valuation by the *Architect / Engineer whether during the progress of the Works or after their completion and whether before or after the termination, abandonment or breach of the Contract, it shall be referred to and settled by the *Architect / Engineer who shall state his decision in writing and give notice of the same to the Employer and the Contractor. Unless the Contract shall have been already terminated or abandoned the Contractor shall in every case continue to proceed with the Works with all due diligence and he shall give effect forthwith to every such decision of the *Architect / Engineer unless and until the same shall be revised in mediation or arbitration as hereinafter provided. Such decision shall be final and binding upon the Contractor and the Employer unless either of them shall require that the matter be referred to mediation or arbitration as hereinafter provided. If the *Architect / Engineer shall fail to give such decision for a period of 28 days after being requested to do so or if either the Employer or the Contractor be dissatisfied with any such decision of the *Architect / Engineer then either the Employer or the Contractor may within 28 days after receiving notice of such decision, or within 28 days after the expiry of the said decision period of 28 days, as the case may be, request that the matter be referred to mediation in accordance with and subject to The Government of the Hong Kong Special Administrative Region Construction Mediation Rules or any modification thereof being in force at the date of such request.

(2) If the matter cannot be resolved by mediation, or if either the Employer or the Contractor do not wish the matter to be referred to mediation then either the Employer or the Contractor may within the time specified herein require that the matter shall be referred to arbitration in accordance with and subject to the provisions of the Arbitration Ordinance and any such reference shall be deemed to be a submission to arbitration within the meaning of such Ordinance.

(3) Any reference to arbitration shall be made within 90 days of:

- **(a) the receipt of a request for mediation and subsequently the recipient of such request having failed to respond, or**
- **(b) the refusal to mediate, or**

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(c) the failure of the mediation proceedings to produce a settlement acceptable to the Employer and the Contractor, or

(d) the abandonment of the mediation, or

(e) where the *Architect / Engineer has failed to give a decision within the 28 days allowed under sub-clause (1) of this Clause after being requested to do so, the expiry of the subsequent period of 28 days for the Employer or the Contractor to request that the matter be referred to mediation, and neither the Employer nor the Contractor having requested mediation within that subsequent period of 28 days, or

(f) where the *Architect / Engineer has given a decision within the 28 days allowed under sub-clause (1) of this Clause, the expiry of the period of 28 days after receipt of the notice of the *Architect's / Engineer's decision for the Employer or the Contractor to request that the matter be referred to mediation, and neither the Employer nor the Contractor having requested mediation within that period of 28 days.

(4) The arbitrator appointed shall have full power to open up, review and revise any decision (other than a decision under Clause 46(3) not to vary the Works), instruction, order, direction, certificate or valuation by the *Architect / Engineer and neither party shall be limited in the proceedings before such arbitrator to the evidence or arguments put before the *Architect / Engineer for the purpose of obtaining his decision above referred to. Save as provided for in sub-clauses (5) and (6) of this Clause no steps shall be taken in the reference to the arbitrator until after the completion or alleged completion of the Works unless with the written consent of the Employer and the Contractor.

Provided that:

(a) the giving of a certificate of completion in accordance with Clause 53 shall not be a condition precedent to the taking of any step in such reference;

(b) no decision given by the *Architect / Engineer in accordance with the foregoing provisions shall disqualify him from being called as a witness and giving evidence before the arbitrator on any matter whatsoever relevant to the dispute or difference so referred to the arbitrator as aforesaid.

(5) In the case of any disputes or difference as to the exercise of the *Architect's / Engineer's powers under Clause 81(1) the reference to the arbitrator may proceed notwithstanding that the Works shall not then be or be alleged to be complete.

(6) In the case where the Contract has been terminated or abandoned, the reference to the arbitrator may proceed notwithstanding that the Works shall not then be or be alleged to be complete.

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(7) (a) Subject to paragraphs (b) and (c) of this sub-clause, the Domestic Arbitration Rules (2014) of the Hong Kong International Arbitration Centre (the Arbitration Rules) shall apply to any arbitration instituted in accordance with this Clause.

(b) Notwithstanding any provision of the Arbitration Rules, the place of meetings and hearings in the arbitration shall be Hong Kong unless the parties otherwise agree.

(c) Article 20.1 of the Arbitration Rules shall be deleted and replaced by:

'20.1(a) The arbitration proceedings are private and confidential between the parties and the arbitrator. Subject to the provisions of Section 18 of the Ordinance and these Rules, no information relating to the arbitration shall be disclosed by any person without the written consent of each and every party to the arbitration. Disclosures are permissible where disclosures –

(a) are necessary for implementation or enforcement;

(b) are required by the parties' auditors or for some other legitimate business reason;

(c) are required by any order of the courts of Hong Kong or other judicial tribunal;

(d) are necessary for the making of claims against any third party or to defend a claim brought by any third party.

20.1(b) Notwithstanding Article 20.1(a) and subject to the following provisions, the party comprising the Government of the Hong Kong Special Administrative Region (the Government party) may disclose the outline of any dispute with the other party and the outcome of the arbitration to the Public Accounts Committee of the Legislative Council upon its request. Before disclosures are made to the said Committee, the Government party shall inform the other party. Disclosures shall not be made to the said Committee before expiry of the first 6 months from the date of the outcome of the arbitration without the written consent of the other party but such consent shall not be unreasonably withheld. The other party shall be deemed to have given his consent to disclosures on the expiry of the first 6 months from the date of the outcome of the arbitration. The other party may, if he considers necessary to protect the sensitive nature of certain information relating to him, request the Government party to disclose such specified information to the said Committee strictly on a confidential basis. If the Government party considers that there are legitimate grounds to accede to the other party's request, the Government party shall convey the request to the said Committee for its consideration.'

(8) All the provisions in Schedule 2 to the Arbitration Ordinance shall apply to any arbitration instituted in accordance with this Clause.

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(9) For the purposes of this Clause, "Arbitration Ordinance" means the Arbitration Ordinance (Cap. 609) or any statutory modification thereof for the time being in force."

Delete as appropriate

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APPENDIX 7.56A REVISED SPECIAL CONDITIONS OF CONTRACT FOR TERM CONTRACTS
(Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 4.12.2014)

[To be adopted for term contracts to be tendered on or after 1 January 2015]

General Conditions of Contract Clause *89/92 is deleted and replaced by the following:

"*89/92. (l) If any dispute or difference of any kind whatsoever shall arise between the Employer and the Contractor in connection with or arising out of the Contract or the carrying out of the Works including any dispute as to any decision, instruction, order, direction, certificate or valuation by the *Engineer/Maintenance Surveyor whether during the progress of the Whole of the Works or after their completion and whether before or after the termination, abandonment or breach of the Contract, it shall be referred to and settled by the *Engineer/Maintenance Surveyor who shall state his decision in writing and give notice of the same to the Employer and the Contractor. Unless the Contract shall have been already terminated or abandoned the Contractor shall in every case continue to proceed with the Whole of the Works with all due diligence and he shall give effect forthwith to every such decision of the *Engineer/Maintenance Surveyor unless and until the same shall be revised in mediation or arbitration as hereinafter provided. Such decision shall be final and binding upon the Contractor and the Employer unless either of them shall require that the matter be referred to mediation or arbitration as hereinafter provided. If the *Engineer/Maintenance Surveyor shall fail to give such decision for a period of 28 days after being requested to do so or if either the Employer or the Contractor be dissatisfied with any such decision of the *Engineer/Maintenance Surveyor then either the Employer or the Contractor may within 28 days after receiving notice of such decision, or within 28 days after the expiry of the said decision period of 28 days, as the case may be, request that the matter be referred to mediation in accordance with and subject to The Government of the Hong Kong Special Administrative Region Construction Mediation Rules or any modification thereof being in force at the date of such request.

(2) If the matter cannot be resolved by mediation, or if either the Employer or the Contractor do not wish the matter to be referred to mediation then either the Employer or the Contractor may within the time specified herein require that the matter shall be referred to arbitration in accordance with and subject to the provisions of the Arbitration Ordinance and any such reference shall be deemed to be a submission to arbitration within the meaning of such Ordinance.

(3) Any reference to arbitration shall be made within 90 days of:

- **(a) the receipt of a request for mediation and subsequently the recipient of such request having failed to respond, or**
- **(b) the refusal to mediate, or**

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(c) the failure of the mediation proceedings to produce a settlement acceptable to the Employer and the Contractor, or

(d) the abandonment of the mediation, or

(e) where the *Engineer/Maintenance Surveyor has failed to give a decision within the 28 days allowed under sub-clause (1) of this Clause after being requested to do so, the expiry of the subsequent period of 28 days for the Employer or the Contractor to request that the matter be referred to mediation, and neither the Employer nor the Contractor having requested mediation within that subsequent period of 28 days, or

(f) where the *Engineer/Maintenance Surveyor has given a decision within the 28 days allowed under sub-clause (1) of this Clause, the expiry of the period of 28 days after receipt of the notice of the *Engineer's/Maintenance Surveyor's decision for the Employer or the Contractor to request that the matter be referred to mediation, and neither the Employer nor the Contractor having requested mediation within that period of 28 days.

(4) The arbitrator appointed shall have full power to open up, review and revise any decision (other than a decision under Clause 48(3) not to vary any Works), instruction, order, direction, certificate or valuation by the *Engineer/Maintenance Surveyor and neither party shall be limited in the proceedings before such arbitrator to the evidence or arguments put before the *Engineer/Maintenance Surveyor for the purpose of obtaining his decision above referred to. Save as provided for in sub-clauses (5) and (6) of this Clause no steps shall be taken in the reference to the arbitrator until after the completion or alleged completion of the Whole of the Works unless with the written consent of the Employer and the Contractor.

Provided that:

(a) the giving of the last certificate of completion in accordance with Clause *53/55 shall not be a condition precedent to the taking of any step in such reference;

(b) no decision given by the *Engineer / Maintenance Surveyor in accordance with the foregoing provisions shall disqualify him from being called as a witness and giving evidence before the arbitrator on any matter whatsoever relevant to the dispute or difference so referred to the arbitrator as aforesaid.

(5) In the case of any disputes or difference as to the exercise of the *Engineer's/Maintenance Surveyor's powers under Clause *84(1)/87(1) the reference to the arbitrator may proceed notwithstanding that the Whole of the Works shall not then be or be alleged to be complete.

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(6) In the case where the Contract has been terminated or abandoned, the reference to the arbitrator may proceed notwithstanding that the Whole of the Works shall not then be or be alleged to be complete.

(7) (a) Subject to paragraphs (b) and (c) of this sub-clause, the Domestic Arbitration Rules (2014) of the Hong Kong International Arbitration Centre (the Arbitration Rules) shall apply to any arbitration instituted in accordance with this Clause.

(b) Notwithstanding any provision of the Arbitration Rules, the place of meetings and hearings in the arbitration shall be Hong Kong unless the parties otherwise agree.

(c) Article 20.1 of the Arbitration Rules shall be deleted and replaced by:

"20.1(a) The arbitration proceedings are private and confidential between the parties and the arbitrator. Subject to the provisions of Section 18 of the Ordinance and these Rules, no information relating to the arbitration shall be disclosed by any person without the written consent of each and every party to the arbitration. Disclosures are permissible where disclosures -

(a) are necessary for implementation or enforcement;

(b) are required by the parties' auditors or for some other legitimate business reason;

(c) are required by any order of the courts of Hong Kong or other judicial tribunal;

(d) are necessary for the making of claims against any third party or to defend a claim brought by any third party.

20.1(b) Notwithstanding Article 20.1(a) and subject to the following provisions, the party comprising the Government of the Hong Kong Special Administrative Region (the Government party) may disclose the outline of any dispute with the other party and the outcome of the arbitration to the Public Accounts Committee of the Legislative Council upon its request. Before disclosures are made to the said Committee, the Government party shall inform the other party. Disclosures shall not be made to the said Committee before expiry of the first 6 months from the date of the outcome of the arbitration without the written consent of the other party but such consent shall not be unreasonably withheld. The other party shall be deemed to have given his consent to disclosures on the expiry of the first 6 months from the date of the outcome of the arbitration. The other party may, if he considers necessary to protect the sensitive nature of certain information relating to him, request the Government party to disclose such specified information to the said Committee strictly on a confidential basis. If the Government party considers that

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there are legitimate grounds to accede to the other party's request, the Government party shall convey the request to the said Committee for its consideration."

(8) All the provisions in Schedule 2 to the Arbitration Ordinance shall apply to any arbitration instituted in accordance with this Clause.

(9) For the purposes of this Clause, "Arbitration Ordinance" means the Arbitration Ordinance (Cap. 609) or any statutory modification thereof for the time being in force."

**** Delete as appropriate***

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APPENDIX 7.57 REVISED SPECIAL CONDITIONS OF CONTRACT FOR D&B CONTRACTS (Ref.: SDEV's memo ref. DEVB(W) 510/10/01 dated 4.12.2014)

[To be adopted for D&B contracts to be tendered on or after 1 January 2015]

General Conditions of Contract Clause 86 is deleted and replaced by the following:

"86.(1) Any and all disputes shall be settled in accordance with the provisions of this Clause 86.

(2) For the purpose of this Clause, dispute means any dispute or difference of any kind whatsoever between the Employer and the Contractor arising under, out of or in connection with the Contract or the carrying out of the Works including any dispute as to any decision, instruction, opinion, order, direction, certificate or valuation by the Supervising Officer whether during the progress of the Works or after their completion and whether before or after the termination, abandonment or breach of the Contract.

(3) For the purpose of this Clause 86 and notwithstanding sub-clause (2) of this Clause, a dispute shall be deemed to arise when either the Contractor or the Employer serves on the Supervising Officer and the other party a notice in writing stating the nature of the dispute.

(4) The Supervising Officer shall within 28 days of receipt of the notice referred to in sub-clause (3) of this Clause decide the dispute and notify the Employer and the Contractor in writing of his decision. Such decision shall be final and binding upon the Employer and the Contractor unless and until the same shall be revised in mediation or arbitration as hereinafter provided.

(5) Unless the Contract shall have been already terminated or abandoned the Contractor shall in every case continue to proceed with the Works with all due diligence and he shall give effect forthwith to every such decision of the Supervising Officer unless and until the same shall be revised in mediation or arbitration as hereinafter provided.

(6) If the Supervising Officer shall fail to give such decision in accordance with sub-clause (4) of this Clause or if either the Employer or the Contractor is dissatisfied with such decision then either the Employer or the Contractor may within 28 days after receiving notice of such decision, or within 28 days after the expiration of the said decision period of 28 days, as the case may be, request that the dispute be referred to mediation in accordance with and subject to The Government of the Hong Kong Special Administrative Region Construction Mediation Rules or any modification thereof being in force at the date of such request.

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(7) If the dispute cannot be resolved by mediation, or if either the Employer or the Contractor do not wish the dispute to be referred to mediation then either the Employer or the Contractor may within the time specified herein require that the dispute shall be referred to arbitration in accordance with and subject to the provisions of the Arbitration Ordinance and any such reference shall be deemed to be a submission to arbitration within the meaning of such Ordinance. Any reference to arbitration shall be made within 90 days of:

- **(a) the receipt of a request for mediation and subsequently the recipient of such request having failed to respond, or**
- **(b) the refusal to mediate, or**
- **(c) the failure of the mediation proceedings to produce a settlement acceptable to the Employer and the Contractor, or**
- **(d) the abandonment of the mediation, or**
- **(e) where the Supervising Officer has failed to give a decision within the 28 days allowed under sub-clause (4) of this Clause after being requested to do so, the expiry of the subsequent period of 28 days for the Employer or the Contractor to request that the matter be referred to mediation, and neither the Employer nor the Contractor having requested mediation within that subsequent period of 28 days, or**
- **(f) where the Supervising Officer has given a decision within the 28 days allowed under sub-clause (4) of this Clause, the expiry of the period of 28 days after receipt of the notice of the Supervising Officer's decision for the Employer or the Contractor to request that the matter be referred to mediation, and neither the Employer nor the Contractor having requested mediation within that period of 28 days.**

(8) The arbitrator appointed shall have full power to open up, review and revise any decision (other than a decision under Clause 46(3) not to order a Variation), instruction, opinion, order, direction, certificate or valuation by the Supervising Officer and neither party shall be limited in the proceedings before such arbitrator to the evidence or arguments put before the Supervising Officer for the purpose of obtaining his decision referred to above. Save as provided for in sub-clauses (9) and (9A) of this Clause no steps shall be taken in the reference to the arbitrator until after the completion or alleged completion of the Works unless with the written consent of the Employer and the Contractor.

Provided that:

- **(a) the giving of a certificate of completion in accordance with Clause 53 shall not be a condition precedent to the taking of any step in such reference;**
- **(b) no decision given by the Supervising Officer in accordance with the foregoing provisions shall disqualify him from being called as a witness**

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and giving evidence before the arbitrator on any matter whatsoever relevant to the dispute so referred to the arbitrator as aforesaid.

(9) In the case of any dispute as to the exercise of the Supervising Officer's powers under Clause 81(1) the reference to the arbitrator may proceed notwithstanding that the Works shall not then be or be alleged to be complete.

(9A) In the case where the Contract has been terminated or abandoned, the reference to the arbitrator may proceed notwithstanding that the Works shall not then be or be alleged to be complete.

(10)(a) Subject to paragraphs (b) and (c) of this sub-clause, the Domestic Arbitration Rules (2014) of the Hong Kong International Arbitration Centre (the Arbitration Rules) shall apply to any arbitration instituted in accordance with this Clause.

(b) Notwithstanding Article 8.2 and Article 13 of the Arbitration Rules, the place of meetings and hearings in the arbitration shall be Hong Kong unless the parties otherwise agree.

(c) Article 20.1 of the Arbitration Rules shall be deleted and replaced by:

'20.1(a) The arbitration proceedings are private and confidential between the parties and the arbitrator. Subject to the provisions of Section 18 of the Ordinance and these Rules, no information relating to the arbitration shall be disclosed by any person without the written consent of each and every party to the arbitration. Disclosures are permissible where disclosures –

(a) are necessary for implementation or enforcement;

(b) are required by the parties' auditors or for some other legitimate business reason;

(c) are required by any order of the courts of Hong Kong or other judicial tribunal;

(d) are necessary for the making of claims against any third party or to defend a claim brought by any third party.

20.1(b) Notwithstanding Article 20.1(a) and subject to the following provisions, the party comprising the Government of the Hong Kong Special Administrative Region (the Government party) may disclose the outline of any dispute with the other party and the outcome of the arbitration to the Public Accounts Committee of the Legislative Council upon its request. Before disclosures are made to the said Committee, the Government party shall inform the other party. Disclosures shall not be made to the said Committee before expiry of the first 6 months from the date of the outcome of the arbitration without the written consent of the other party but such consent shall not be unreasonably withheld. The other party shall be deemed to have given his consent to disclosures on the expiry of the first 6 months from the date of the outcome of the arbitration. The other party may, if he considers necessary to protect the sensitive nature of certain

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information relating to him, request the Government party to disclose such specified information to the said Committee strictly on a confidential basis. If the Government party considers that there are legitimate grounds to accede to the other party's request, the Government party shall convey the request to the said Committee for its consideration.'

(11) All the provisions in Schedule 2 to the Arbitration Ordinance shall apply to any arbitration instituted in accordance with this Clause.

(12) For the purposes of this Clause, "Arbitration Ordinance" means the Arbitration Ordinance (Cap. 609) or any statutory modifications thereof for the time being in force."

**** Delete as appropriate.***

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APPENDIX 7.58 PRESCRIBED FORM FOR SUBMISSION OF INFORMATION OF REQUEST FOR ADJUDICATION IMMEDIATELY AFTER REJECTION OF AN ADJUDICATION REQUEST OR AFTER APPOINTMENT OF ADJUDICATOR

CONFIDENTIAL

To: LA(W) and PAS(W)3 of DEVB

Information of Request for Adjudication

CONTRACT DETAILS

Department:		
Contract no. and title:		**Contract Sum: $**
Contract commencement date:	**Original completion date:**	**Actual/Anticipated* completion date:**
Name of Contractor:		
Is the contract administered by Consultants? ☐ **No, contact administered by in-house staff** ☐ **Yes, name of Consultants: _____**		

DISPUTE DETAILS

Nature of dispute:	
Sum in dispute: $	**Extension of time in dispute: days**
The issues are ☐ legal ☐ technical ☐ both	
Adjudication requested by ☐ Contractor ☐ Employer Date _____	
Adjudication request accepted by the other party? ☐ **Yes** ☐ **No, comments/reasons for rejection: _____** _____ _____	
Has this dispute previously been referred to Mediation by either party? ☐ **No** ☐ **Yes, but refused by the other party/the parties failed to reach a settlement agreement***	
Name of adjudicator appointed by the parties:	

Signed : _____ **Date :** _____

for Director

*** Delete as appropriate**

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APPENDIX 7.59 PRESCRIBED FORM FOR SUBMISSION OF ADJUDICATION DETAILS IMMEDIATELY AFTER CONCLUSION OF ADJUDICATION

CONFIDENTIAL

To: LA(W) and PAS(W)3 of DEVB

Adjudication Details

Contract No._____

1. **Adjudication Rules used:**
   - ☐ **The Government of the HKSAR Construction Adjudication Rules (2004)**
   - ☐ **Others, please specify:**

_____

2. **Were the Adjudication Rules strictly followed?**
   - ☐ **Yes** ☐ **No, please specify:**_____
     _____

3. **Was the adjudication abandoned, suspended or concluded, by agreement or otherwise, before the adjudicator made his decision?**
   - ☐ **No**
   - ☐ **Yes, please specify:** _____
     (go to item 6) _____

4. **Was decision made within 56 days of the Adjudication Commencement Date?**
   - ☐ **Yes**
   - ☐ **No, please specify the actual duration and reasons for extension:** _____
     _____

5. **Brief outline of adjudicator's decision and Department's view on the decision:**
   _____
   _____
   _____

6. **Which of the following were notified/consulted during and/or after the adjudication?**

	Notified	Consulted
LAD(W), DevB	☐	☐
PAS(W)3, DevB	☐	☐
FSTB	☐	☐
The Engineer	☐	☐
Others, please specify	☐ _____	☐ _____

Signed : _____ **Date :** _____
for Director

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APPENDIX 7.60 SPECIAL CONDITIONS OF CONTRACT ON ALTERNATIVE DESIGNS AT CONTRACT STAGE

SCC (A)

General Conditions of Contract Clause 1(1) is amended

(a) by adding the following:

"Independent Checking Engineer" means the person, firm or company employed by the Contractor and responsible for the independent checking of the Contractor's Design whose qualifications, skill and experience are deemed satisfactory by the Employer and who shall be independent of the Designer and the Contractor.

"Designer" means the person, firm or company responsible for the design of the Contractor's Design whose qualifications, skill and experience are deemed satisfactory by the Employer.

"Contractor's Design" means that part or those parts of the design of the permanent works for which the Contractor has elected or is required in accordance with the tender documents to #prepare design calculations and drawings and which has been accepted by the Employer, including, where applicable, any further design which the Contractor has to carry out as a result of any amendment to the design required under sub-clause (6) and (7) of SCC (B) and/or any variation to the works for the Contractor's Design ordered by the Engineer/Architect/Maintenance Surveyor*.

"Check Certificate" means a certificate, in the form specified in Appendix (see Appendix C of DEVB TCW No. 3/2014) to these Special Conditions of Contract, issued by the Independent Checking Engineer certifying that the Contractor's Design has been independently checked and complies in all respects with the terms and conditions of the Contract.

"Certified Working Drawing" means a drawing prepared by the Designer and endorsed as being checked and approved by the Independent Checking Engineer.

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SCC (B)

(1) (a) Further to General Conditions of Contract Clause 23/25*, the Contractor shall have in respect of any defect or insufficiency in the Contractor's Design the like liability to the Employer, whether under statute or otherwise, as would an appropriate professional designer holding himself out as competent to take on the Contractor's Design, provided always that:

(i) where the Employer has relied upon the Contractor to select equipment, plant, materials and goods required by the Contractor's Design to be incorporated in the Works the Contractor shall ensure that all such equipment, plant, materials and goods are reasonably fit for the purpose for which they are intended and of good quality; and

(ii) subject to sub-clause (1)(a)(i) above and without prejudice to the generality of the warranty of the Contractor referred to in the second paragraph of this sub-clause (1)(a) in no circumstances shall the Contractor be obliged to ensure that the Contractor's Design is fit for the purpose for which it is intended. In addition, the Contractor shall warrant that the Contractor's Design and its resultant work conforms to any performance specification or requirement referred to in the Contract and, without prejudice to the generality of General Conditions of Contract Clause 30/32* in respect of the Works, the provisions of General Conditions of Contract Clause 30/32* are complied with in respect of the Contractor's Design and the resultant work.

(b) The liability and warranty of the Contractor referred to in sub-clause (1)(a) above shall apply independent of any question of fault on the part of the Contractor or any sub-contractor and shall not be invalidated in any respect by any error made by the Contractor or sub-contractor in the Contractor's Design or any submission to the Engineer/Architect/Maintenance Surveyor* for checking and/or approval.

(c) The Designer shall prepare all calculations and drawings relating to the Contractor's Design which shall be subject to a Check Certificate.

(d) If at any time the Engineer/Architect/Maintenance Surveyor* has substantial cause for dissatisfaction with the conduct or performance of the Independent Checking Engineer, he shall notify the Employer accordingly. The Contractor shall, upon receiving written notice from the Employer, cease to employ such person, firm or company and shall immediately replace him by another whose qualifications, skill and experience are satisfactory to the Employer.

(2) The Contractor's Design shall be compatible with the provisions of the Specification and the Drawings, provided that the Contractor may propose modifications to the Specification in respect of particular methods of construction or materials not included in the Specification or shown on the Drawings. In such cases, the Contractor shall immediately advise the Employer of such proposals through the Engineer/Architect/Maintenance Surveyor*. The Employer's decision shall be conveyed to the Contractor in writing by the Engineer/Architect/Maintenance Surveyor* within a reasonable period, and neither the acceptance nor rejection by the Employer of such proposals shall vitiate the Contract.

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Acceptance or rejection by the Employer of such proposals shall not entitle the Contractor to extra payment arising from any additional cost of the Works or extension of time arising therefrom.

(3) Within a reasonable period prior to the commencement of that part of the Works to be constructed in accordance with the Contractor's Design, and from time to time as required by the Engineer/Architect/Maintenance Surveyor*, the Contractor shall submit to the Engineer/Architect/Maintenance Surveyor*:

(a) two certified copies of the Contractor's Design,
(b) Check Certificates,
(c) Certified Working Drawings, and
(d) satisfactory evidence of professional indemnity insurance as referred to in Special Conditions of Contract Clause SCC[]# *(i.e. the standard SCC(A) in DEVB TCW No. 9/2007 – Appendix E).*

(4) The Engineer/Architect/Maintenance Surveyor* shall, within a reasonable period, notify the Contractor in writing whether or not the documents submitted meet the requirements of the Contract. The Contractor shall not commence the construction of such works until receipt of the confirmative notification in writing from the Engineer/Architect/Maintenance Surveyor*.

(5) Notwithstanding General Conditions of Contract Clause 7, and prior to the commencement of the part of the Works of the Contractor's Design, the Contractor shall supply to the Engineer/Architect/Maintenance Surveyor* ___ copies of the Certified Working Drawings together with one reproducible print of each drawing and, where specified in the Contract, the soft copy of the drawings prepared in accordance with the CAD standard so specified. All drawings shall be fully figured copies with black lines on a white background of a size specified in the Contract and shall be detailed in S.I. units.

(6) If at any time it becomes apparent to the Engineer/Architect/Maintenance Surveyor* that any drawing and/or document submitted by the Contractor does not comply with the Contract in any respect whatsoever, then all amendments deemed necessary by the Engineer/Architect/Maintenance Surveyor* shall be made therein by the Contractor, and such amended drawing and/or document shall be reviewed by the Designer and shall be subject to a further Check Certificate. The Contractor shall bear the full cost of complying with this sub-clause, and shall reimburse the Employer the cost of any work or design done by the Employer which has been rendered abortive by any such amendments.

(7) If at any time it becomes apparent to the Contractor that an amendment to the Contractor's Design is required for the proper completion of that part of the Works involved in such design, then he shall :

(a) immediately advise the Engineer/Architect/Maintenance Surveyor* of the proposed amendment,

(b) resubmit documents to the Engineer/Architect/Maintenance Surveyor* in accordance with sub-clause (3) of this Clause, provided that:

(i) the finished appearance of the Works shall remain substantially unaltered,
(ii) there shall be no additional payment made nor any extension of time

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granted to the Contractor, and

(iii) the Contractor shall bear the full cost of complying with this sub-clause, and shall reimburse the Employer the cost of any work or design done by the Employer which has been rendered abortive by any such amendments.

(8) On completion of the work constructed in accordance with the Contractor's Design, the Contractor shall prepare and submit to the Engineer/Architect/Maintenance Surveyor* the 'as constructed' drawings of such work and shall supply to the Engineer/Architect/Maintenance Surveyor* two copies and one reproducible print of each of such drawings and, where specified in the Contract, the soft copy of the drawings prepared in accordance with the CAD standard so specified.

(9) Notwithstanding General Conditions of Contract Clause 59/61/62*, the work to be constructed in accordance with the Contractor's Design shall be a lump sum item accompanied by a fully priced and detailed Schedule of Rates. The lump sum item shall include :

(a) the cost of producing the Contractor's Design,

(b) the cost and fees for obtaining the Check Certificates,

(c) the cost of providing the Engineer/Architect/Maintenance Surveyor* with all calculations, documents (including maintenance manuals), and drawings in connection with the Contractor's Design as required by the Contract,

(d) the full value of the work (including without limitation, spare parts) constructed in accordance with the Contractor's Design and all the associated risks, liabilities and obligations of the Contractor under the Contract, and

(e) the cost of all samples and testing thereof and testing of the work constructed in accordance with the Contractor's Design.

(10) For the avoidance of doubt, any change in the quantities in the Bills of Quantities (BQ) resulting from the acceptance by the Employer of the Cost Savings Design shall not entitle the Contractor to any adjustment of the rates in the said BQ notwithstanding any other provisions in the Contract.

(11) Variations to the works for the Contractor's Design ordered by the Engineer/Architect/Maintenance Surveyor* shall be measured and valued at the rates ascertained in accordance with the principles of General Conditions of Contract Clause 61/63/64*, at or based on the rates in the Schedule of Rates submitted with the Tender. For the avoidance of doubt, amendments under sub-clause (6) of this Clause shall not be considered as variations within the meaning of this sub-clause.

(12) (a) Except in respect of those intellectual property rights referred to in sub-clause (12)(c) of this Clause, the Contractor hereby undertakes and warrants to the Employer that the Contractor is the sole legal and beneficial owner of all intellectual property rights subsisting in the Contractor's Design.

(b) Upon the issue of the certificate of completion of the Works or after termination, abandonment or breach of Contract, the Contractor shall be deemed to have

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granted to the Employer and the subsequent owners or occupiers of the Works free of all fee a transferable, non-exclusive and irrevocable licence (carrying the right to grant sub-licences) to utilize the Contractor's Design in connection with the execution of the Works and/or the subsequent alteration, extension and maintenance thereof and for no other purpose whatsoever without the prior written agreement of the Contractor. In the event of different certificates of completion having been issued for different Sections or parts of the Works pursuant to General Conditions of Contract Clause 53/55/56*, the expression "certificate of completion" shall, for the purpose of this sub-clause, mean the last of such certificates.

(c) To the extent that beneficial ownership of any intellectual property rights in the Contractor's Design is vested in anyone other than the Contractor, the Contractor shall procure that the relevant beneficial owner shall grant a licence together with an indemnity to the Employer and the subsequent owners or occupiers of the Works upon the same terms mutatis mutandis as those set out in sub-clauses (12)(b) and (12)(f) of this Clause respectively.

(d) For the avoidance of doubt, any licence and indemnity granted pursuant to this Clause shall not be determined if the Contractor shall for any reason cease to be employed in connection with the Works.

(e) The Contractor shall at the request of the Employer, do such acts and execute all such deeds and documents (or procure that the same be done or executed) as the Employer or the subsequent owners or occupiers of the Works may require for vesting in the Employer and the subsequent owners or occupiers of the Works all or any of the rights referred to in this Clause. The Contractor shall bear its own costs and expenses in relation thereto.

(f) The Contractor hereby indemnifies the Employer against all claims, proceedings, actions, damages and losses incurred or sustained by the Employer in respect of infringement of intellectual property rights arising from the use of the Contractor's Design (irrespective of whether the intellectual property rights therein are owned by the Contractor or other parties) by the Employer for purposes referred to in sub-clause (12)(b) of this Clause. For avoidance of doubt, the indemnity herein applies where the proceedings concerned are subsequently withdrawn or settled or in the event that the allegations of infringement are subsequently found to be unsubstantiated. The Contractor shall at its own cost grant a like indemnity to the subsequent owners or occupiers of the Works upon request of the Employer.

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SCC (C)

(1) General Conditions of Contract Clause 1(1) is amended

(a) by adding the following :

"Independent Checking Engineer of Cost Savings Design" means the person, firm or company employed by the Contractor and responsible for the independent checking of the Cost Savings Design whose qualifications, skill and experience are deemed satisfactory by the Employer and who shall be independent of the Designer of Cost Savings Design and the Contractor.

"Designer of Cost Savings Design" means the person, firm or company responsible for the design of the Cost Savings Design whose qualifications, skill and experience are deemed satisfactory by the Employer.

"Cost Savings Design" means the design proposal to any part of the Works submitted by the Contractor under Special Condition of Contract Clause (D)(1)# and any amplification or amendment thereto and accepted by the Employer with or without amendments, including, where applicable, any further design which the Contractor has to carry out as a result of any amendment to the design required under sub-clause (6) or (7) of SCC (D) and/or any variation to the works for the Cost Savings Design ordered by the Engineer/ Architect/Maintenance Surveyor*.

"Check Certificate of Cost Savings Design" means a certificate, in the form specified in Appendix *(see Appendix C of DEVB TCW No. 3/2014)* to these Special Conditions of Contract, issued by the Independent Checking Engineer of Cost Savings Design certifying that the Cost Savings Design has been independently checked and complies in all respects with the terms and conditions of the Contract.

"Certified Working Drawing of Cost Savings Design" means a drawing prepared by the Designer of Cost Savings Design and endorsed as being checked and approved by the Independent Checking Engineer of Cost Savings Design.

(b) by adding the following at the end of the definition for "Works": "and the resultant work of the Contractor's Design and the Cost Savings Design".

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SCC (D)

Designs by the Contractor

(1) (a) The Contractor may at any time during the continuance of the Works submit to the Engineer/Architect/Maintenance Surveyor* in writing a Cost Savings Design proposal in respect of a part of the Works with sufficient details and justifications to show:

(i) the Contract Sum/Value of the Works* can be reduced by an amount of a lump sum, and/or
(ii) the time for completion of the Works or any Section thereof can be reduced, and/or
(iii) the future maintenance or operation cost of the Works can be reduced, and/or
(iv) the efficiency or value to the Employer of the completed Works can be improved, and/or
(v) the construction productivity can be enhanced and/or the requirement for manpower resources can be reduced, and/or
(vi) any other social benefits.

In any event, the Contractor's liability for the construction of the Works is not prejudiced and the proposal shall be of benefit to the Employer.

(b) Any proposal shall clearly state that it is submitted for consideration under this sub-clause and shall include (i) an estimate for consideration by the Employer of the amount to which the cost of carrying out the Works, as determined in accordance with Clause 61/63/64* of the General Conditions of Contract, that may be saved and (ii) a fully priced and detailed Schedule of Rates as referred to in sub-clause (11) of this Clause. In assessing the overall cost savings, the Employer will take into account the additional cost incurred for considering the Contractor's proposal including the Engineer/Architect/Maintenance Surveyor*'s cost. The Cost Savings Design shall be subject to the Engineer/Architect/Maintenance Surveyor*'s confirmation that it is compatible with the provisions of the Specification and the Drawings. The Contractor may propose modifications to the Specification in respect of particular methods of construction or materials not included in the Specification or shown on the Drawings.

(c) Subject to acceptance of the Cost Savings Design, (i) the overall cost savings as assessed by the Employer and (ii) any revision (on the basis of the change in value as assessed by the Employer and change in time for completion of the Works or, as the case may be, the relevant Section to which the Cost Savings Design belongs) to the daily rate of liquidated damages and/or minimum liquidated damages for the Works or, as the case may be, the relevant Section to which the Cost Savings Design belongs shall be agreed with the Contractor. Before acceptance of the Cost Savings Design, the Engineer/Architect/Maintenance Surveyor* shall obtain confirmation from the Employer that the proposal is acceptable to the Employer and confirmation from both the Contractor and the Employer that (i) the overall cost savings and (ii) any revision as aforesaid to the daily rate of liquidated damages and/or minimum liquidated damages arising from the proposal are agreed to by both parties.

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(d) The Employer's decision to accept or reject the Cost Savings Design shall be conveyed to the Contractor in writing by the Engineer/Architect/Maintenance Surveyor* within a reasonable period, and neither the acceptance nor rejection of such proposal shall vitiate the Contract.

(e) If the Cost Savings Design is accepted, the agreed overall cost savings in lump sum for the part of the Works shall be equally shared between the Employer and the Contractor. For the avoidance of doubt, the acceptance of the Cost Savings Design shall not entitle the Contractor to claim additional costs or extension of time. If the proposal is rejected, the Contractor shall not be entitled to any payment or extension of time arising from his submission to the Engineer/Architect/Maintenance Surveyor* of the proposal and the Employer shall bear his own cost for considering the proposal submitted by the Contractor under this sub-clause except that the Contractor shall reimburse the Employer for the Engineer/Architect/Maintenance Surveyor*'s cost in doing the same. The Employer shall be entitled to deduct such cost from any sums due to the Contractor under the Contract and/or to recover such cost as a debt from the Contractor.

(2) (a) Further to General Conditions of Contract Clause 23/25*, the Contractor shall have in respect of any defect or insufficiency in the Cost Savings Design the like liability to the Employer, whether under statute or otherwise, as would an appropriate professional designer holding himself out as competent to take on the Cost Savings Design, provided always that:

(i) where the Employer has relied upon the Contractor to select equipment, plant, materials and goods required by the Cost Savings Design to be incorporated in the Works the Contractor shall ensure that all such equipment, plant, materials and goods are reasonably fit for the purpose for which they are intended and of good quality; and

(ii) subject to sub-clause (2)(a)(i) above and without prejudice to the generality of the warranty of the Contractor referred to in the second paragraph of this sub-clause (2)(a) in no circumstances shall the Contractor be obliged to ensure that the Cost Savings Design is fit for the purpose for which it is intended.

In addition, the Contractor shall warrant that the Cost Savings Design and its resultant work conforms to any performance specification or requirement referred to in the Contract and, without prejudice to the generality of General Conditions of Contract Clause 30/32* in respect of the Works, the provisions of General Conditions of Contract Clause 30/32* are complied with in respect of the Cost Savings Design and the resultant work.

(b) The liability and warranty of the Contractor referred to in subclause (2)(a) above shall apply independent of any question of fault on the part of the Contractor or any sub-contractor and shall not be invalidated in any respect by any error made by the Contractor or sub-contractor in the Cost Savings Design or any submission to the Engineer/Architect/Maintenance Surveyor* for checking and/or approval.

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(c) The Designer of Cost Savings Design shall prepare all calculations and drawings relating to the Cost Savings Design which shall be subject to a Check Certificate of Cost Savings Design.

(d) If at any time the Engineer/Architect/Maintenance Surveyor* has substantial cause for dissatisfaction with the conduct or performance of the Independent Checking Engineer of Cost Savings Design, he shall notify the Employer accordingly. The Contractor shall, upon receiving written notice from the Employer, cease to employ such person, firm or company and shall immediately replace him by another whose qualifications, skill and experience are satisfactory to the Employer.

(3) Within a reasonable period prior to the commencement of that part of the Works to be constructed in accordance with the Cost Savings Design, and from time to time as required by the Engineer/Architect/Maintenance Surveyor*, the Contractor shall submit to the Engineer/Architect/Maintenance Surveyor* :

(a) two certified copies of the Cost Savings Design,
(b) Check Certificates of Cost Savings Design,
(c) Certified Working Drawings of Cost Savings Design, and
(d) satisfactory evidence of professional indemnity insurance as referred to in Special Conditions of Contract Clause SCC(F)(7)#.

(4) The Engineer/Architect/Maintenance Surveyor* shall, within a reasonable period, notify the Contractor in writing whether or not the documents submitted meet the requirements of the Contract. The Contractor shall not commence the construction of such works until receipt of confirmative notification in writing from the Engineer/Architect/ Maintenance Surveyor*.

(5) Notwithstanding General Conditions of Contract Clause 7, and prior to the commencement of the part of the Works of the Cost Savings Design, the Contractor shall supply to the Engineer/Architect/Maintenance Surveyor* __ copies of the Certified Working Drawings of Cost Savings Design together with one reproducible print of each drawing and where specified in the Contract, the soft copy of the drawings prepared in accordance with the CAD standard so specified. All drawings shall be fully figured copies with black lines on a white background of a size specified in the Contract and shall be detailed in S.I. units.

(6) If at any time it becomes apparent to the Engineer/Architect/Maintenance Surveyor* that any drawing and/or document submitted by the Contractor does not comply with the Contract in any respect whatsoever, then all amendments deemed necessary by the Engineer/Architect/Maintenance Surveyor* shall be made therein by the Contractor, and such amended drawing and/or document shall be reviewed by the Designer of Cost Savings Design and shall be subject to a further Check Certificate of Cost Savings Design. The Contractor shall bear the full cost of complying with this sub-clause, and shall reimburse the Employer the cost of any work or design done by the Employer which has been rendered abortive by any such amendments.

(7) If at any time it becomes apparent to the Contractor that an amendment to the Cost Savings Design is required for the proper completion of that part of the Works involved in such design, then he shall :

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(a) immediately advise the Engineer/Architect/Maintenance Surveyor* of the proposed amendment,
(b) resubmit documents to the Engineer/Architect/Maintenance Surveyor* in accordance with sub-clause (3) of this Clause, provided that :

(i) the finished appearance of the Works shall remain substantially unaltered,
(ii) there shall be no additional payment made nor any extension of time granted to the Contractor, and
(iii) the Contractor shall bear the full cost of complying with this sub-clause, and shall reimburse the Employer the cost of any work or design done by the Employer which has been rendered abortive by any such amendments.

(8) On completion of the work constructed in accordance with the Cost Savings Design, the Contractor shall prepare and submit to the Engineer/Architect/Maintenance Surveyor* the 'as constructed' drawings of such work and shall supply to the Engineer/Architect/Maintenance Surveyor* two copies and one reproducible print of each of such drawings and where specified in the Contract, the soft copy of the drawings prepared in accordance with the CAD standard so specified.

(9) Notwithstanding General Conditions of Contract Clause 59/61/62*, the work to be constructed in accordance with the Cost Savings Design shall be a lump sum item accompanied by a fully priced and detailed Schedule of Rates. The lump sum item shall include :

(a) the cost of producing the Cost Savings Design,
(b) the cost and fees for obtaining the Check Certificates of Cost Savings Design,
(c) the cost of providing the Engineer/Architect/Maintenance Surveyor* with all calculations, documents (including maintenance manuals), and drawings in connection with the Cost Savings Design,
(d) the full value of the work (including without limitation, spare parts) constructed in accordance with the Cost Savings Design and all the risks, liabilities and obligations of the Contractor under the Contract, and
(e) the cost of all samples and testing thereof and testing of the work constructed in accordance with the Cost Savings Design.

(10) For the avoidance of doubt, any change in the quantities in the BQ resulting from the acceptance by the Employer of the Cost Savings Design shall not entitle the Contractor to any adjustment of the rates in the said BQ notwithstanding any other provisions in the Contract.

(11) Variations to the works for the Cost Savings Design ordered by the Engineer/Architect/Maintenance Surveyor* shall be measured and valued at the rates ascertained in accordance with the principles of General Conditions of Contract Clause 61/63/64*, at or based on the rates in the Schedule of Rates submitted with the Contractor's Cost Savings Design proposal. For the avoidance of doubt, amendments under sub-clause (6) of this Clause shall not be considered as variations within the meaning of this sub-clause.

(12) (a) Except in respect of those intellectual property rights referred to in sub-clause (12)(c) of this Clause, the Contractor hereby undertakes and warrants to the Employer that the Contractor is the sole legal and beneficial owner of all intellectual property rights subsisting in the Cost Savings Design.

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(b) Upon the issue of the certificate of completion of the Works or after termination, abandonment or breach of Contract, the Contractor shall be deemed to have granted to the Employer and the subsequent owners or occupiers of the Works free of all fee a transferable, non-exclusive and irrevocable licence (carrying the right to grant sub-licences) to utilize the Cost Savings Design in connection with the execution of the Works and/or the subsequent alteration, extension and maintenance thereof and for no other purpose whatsoever without the prior written agreement of the Contractor. In the event of different certificates of completion having been issued for different Sections or parts of the Works pursuant to General Conditions of Contract Clause 53/55/56*, the expression "certificate of completion" shall, for the purpose of this sub-clause, mean the last of such certificates.

(c) To the extent that beneficial ownership of any intellectual property rights in the Cost Savings Design is vested in anyone other than the Contractor, the Contractor shall procure that the relevant beneficial owner shall grant a licence together with an indemnity to the Employer and the subsequent owners or occupiers of the Works upon the same terms mutatis mutandis as those set out in sub-clauses (12)(b) and (12)(f) of this Clause respectively.

(d) For the avoidance of doubt, any licence and indemnity granted pursuant to this Clause shall not be determined if the Contractor shall for any reason cease to be employed in connection with the Works.

(e) The Contractor shall at the request of the Employer, do such acts and execute all such deeds and documents (or procure that the same be done or executed) as the Employer or the subsequent owners or occupiers of the Works may require for vesting in the Employer and the subsequent owners or occupiers of the Works all or any of the rights referred to in this Clause. The Contractor shall bear his own costs and expenses in relation thereto.

(f) The Contractor hereby indemnifies the Employer against all claims, proceedings, actions, damages and losses incurred or sustained by the Employer in respect of infringement of intellectual property rights arising from the use of the Cost Savings Design (irrespective of whether the intellectual property rights therein are owned by the Contractor or other parties) by the Employer for purposes referred to in sub-clause (12)(b) of this Clause. For avoidance of doubt, the indemnity herein applies where the proceedings concerned are subsequently withdrawn or settled or in the event that the allegations of infringement are subsequently found to be unsubstantiated. The Contractor shall at its own cost grant a like indemnity to the subsequent owners or occupiers of the Works upon request of the Employer.

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SCC (E)

The following amendments to the General Conditions of Contract shall be made:-

(a) Clause 49(1) [For Capital works contracts]/Clause 51(1) [For E&M term contracts]*
Add "or such revised time for completion agreed under Special Conditions of Contract Clause SCC (D)#." to the end of the sub-clause.

Clause 51(1) [for Civil term contracts]*
Delete the "full stop" at the end of Sub-clause (a) and replace with ", or" and add sub-clause (d) "Such revised time for completion agreed under Special Conditions of Contract Clause SCC (D)#."

Clause 51(1) [for Building term contracts]*
Delete the "full stop" at the end of Sub-clause (b) and replace with ", or" and add sub-clause (c) "Such revised time for completion agreed under Special Conditions of Contract Clause SCC (D)#."

(b) Clause 51(1)/53(1)/54(1)*
Replace "too slow to ensure completion by the [prescribed]* time or extended time for completion," by "too slow to ensure completion by the time for completion prescribed by Clause 49/51* or extended or revised time for completion prescribed by Clause 50/52/53* and Special Conditions of Contract Clause SCC(D)# as the case may be,".

(c) Clause 52(1)/54(1)/55(1)*
Add "or such revised time as may be agreed in accordance with Special Conditions of Contract Clause SCC (D)#" immediately after "Clause 50/52/53*" at the second line/third line* of this sub-clause.

(d) Clause 89 [For civil and building capital works only]*
Replace "(or extended date)" in sub-clause (3)(c)(i) by "(or, as the case may be, extended or revised date)" and to replace "(or extended date)" where it twice appears in the last paragraph of sub-clause (3) of this clause by "(or, as the case may be, extended or revised date)".

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SCC (F)

(1) Without limiting his obligations under the Contract, the Contractor shall effect and maintain, with well established insurers of repute, professional indemnity insurance for a minimum amount as notified by the Employer to the Contractor in respect of his obligations in relation to the Cost Savings Design to be carried out by or on behalf of the Contractor pursuant to the Contract for any one occurrence or series of occurrences arising out of any one event, or each and every claim, for a period from the date of notification of acceptance of the Cost Savings Design until [ ] years after the date of the certificate of completion.

(2) The Contractor shall procure that each of the Designer of Cost Savings Design and Independent Checking Engineer of Cost Savings Design appointed or engaged by the Contractor in connection with the design or checking of the Cost Savings Design, shall effect and maintain, with well established insurers of repute, professional indemnity insurance for a minimum amount as notified by the Employer to the Contractor in respect of his obligations in relation to the design or, as the case may be, checking of the Cost Savings Design, for any one occurrence or series of occurrences arising out of any one event, or each and every claim for a period from the respective dates of commencement of appointment or engagement of the Designer of Cost Savings Design and Independent Checking Engineer of Cost Savings Design until [ ] years after the date of the certificate of completion.

(3) The professional indemnity insurance referred to in sub-clause (1) or (2) of this Clause shall respectively be effected with an insurer or insurers acceptable to the Employer. The Contractor shall immediately inform the Employer in writing if such insurance ceases to be available or otherwise is not maintained in accordance with this Clause or for any reason becomes void or unenforceable.

(4) If the insurance policy effected pursuant to sub-clause (1) or (2) of this Clause is project specific, the maximum deductible/excess allowed under the insurance policy shall be limited to a maximum of 20% of the minimum amount required under sub-clause (1) or (2) of this Clause, as the case may be.

(5) (a) If (i) the insurance policy effected pursuant to sub-clause (1) or (2) of this Clause contains a limit of indemnity in the aggregate for all claims for the period of insurance under the insurance policy, and (ii) the period of insurance under the insurance policy is twelve months or less, then either:

(A) the limit of indemnity in the aggregate for all claims for the period of insurance under the insurance policy shall be reinstated in full upon exhaustion of the limit of indemnity by reason of indemnity payments made on account of any claim, loss, damage, liability, cost or expense paid or payable under the insurance policy until the total amount of indemnity payable by the insurer under the insurance policy reaches 2 times the minimum amount required under sub-clause (1) or (2) of this Clause, as the case may be; or

(B) the limit of indemnity in the aggregate for all claims for the period of insurance under the insurance policy shall not be less than 2 times the minimum amount required under sub-clause (1) or (2) of this Clause, as the case may be; or

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(C) the limit of indemnity for any one occurrence or series of occurrences arising out of any one event, or each and every claim under the insurance policy shall not be less than 2 times the minimum amount required under sub-clause (1) or (2) of this Clause, as the case may be.

(b) If (i) the insurance policy effected pursuant to sub-clause (1) or (2) of this Clause contains a limit of indemnity in the aggregate for all claims for the period of insurance under the insurance policy, and (ii) the period of insurance under the insurance policy exceeds twelve months, then either:

(A) the limit of indemnity in the aggregate for all claims for the period of insurance under the insurance policy shall be reinstated in full upon exhaustion of the limit of indemnity by reason of indemnity payments made on account of any claim, loss, damage, liability, cost or expense paid or payable under the insurance policy until the total amount of indemnity payable by the insurer under the insurance policy reaches 3 times the minimum amount required under sub-clause (1) or (2) of this Clause, as the case may be; or

(B) the limit of indemnity in the aggregate for all claims for the period of insurance under the insurance policy shall not be less than 3 times the minimum amount required under sub-clause (1) or (2) of this Clause, as the case may be; or

(C) the limit of indemnity for any one occurrence or series of occurrences arising out of any one event, or each and every claim under the insurance policy shall not be less than 3 times the minimum amount required under sub-clause (1) or (2) of this Clause, as the case may be.

(6) (a) The Contractor shall provide to the Employer within 60 days from the date of notification of acceptance of the Cost Savings Design and thereafter, in the case where the insurance policy effected pursuant to sub-clause (1) of this Clause does not cover the entire period of insurance required under that sub-clause, within 7 days of professional indemnity insurance being effected upon the expiry of the earlier insurance policy:

(A) an undertaking that the current insurance policy effected pursuant to sub-clause (1) of this Clause complies with the terms in this Clause in the form in Appendix [ ] to these Special Conditions of Contract; and

(B) a certified copy of the full insurance policy effected pursuant to sub-clause (1) of this Clause for the approval of the Employer unless the Contractor can demonstrate to the satisfaction of the Employer that it is not reasonably practicable to provide a certified copy of the full insurance policy in which event the Contractor shall provide a certificate in the form in Appendix [ ] to these Special Conditions of Contract issued by the insurer or insurance broker of the insurance policy and any information relating to the insurance policy that the Employer may reasonably require.

(b) The Contractor shall provide to the Employer, within 60 days from the respective dates of appointment or engagement of his Designer of Cost Savings Design and

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Independent Checking Engineer of Cost Savings Design, and thereafter, in the case where the insurance policy effected pursuant to sub-clause (2) of this Clause does not cover the entire period of insurance required under that sub-clause, within 7 days of professional indemnity insurance being effected upon the expiry of the earlier insurance policy:

(A) an undertaking that the current insurance policy effected pursuant to sub-clause (2) of this Clause complies with the terms of this Clause in the form in Appendix [ ] to these Special Conditions of Contract;

(B) a certified copy of the full insurance policy effected pursuant to sub-clause (2) of this Clause for the approval of the Employer unless the Contractor can demonstrate to the satisfaction of the Employer that it is not reasonably practicable to provide a certified copy of the full insurance policy in which event the Contractor shall provide a certificate in the form in Appendix [ ] to these Special Conditions of Contract issued by the insurer or insurance broker of the insurance policy and any information relating to the insurance policy that the Employer may reasonably require.

(7) If the Contractor shall fail upon request to produce to the Employer satisfactory evidence that there is in force professional indemnity insurance required under this Clause, the Employer may effect and keep in force any such insurance and pay such premium as may be necessary for that purpose. The Employer shall be entitled to deduct such premium, together with expenses incurred, in accordance with the provisions of General Conditions of Contract Clause 83/86/89 [see Note 1] and/or to recover such amount as a debt from the Contractor.

(8) In the event of different certificates of completion having been issued for [different Sections or parts of the Works/the Works under different Works Orders] [see Note 1] pursuant to General Conditions of Contract Clause 53/55/56 [see Note 1], the expression "certificate of completion" shall, for the purpose of this Clause, mean the last of such certificates [see Note 2].

(9) In determining the period of insurance under an insurance policy for the purpose of this Clause, any extension or renewal of the insurance policy shall be treated as a separate insurance policy and shall not have the effect of extending the period of insurance.

(10) The provisions of this Special Conditions of Contract Clause SCC [ ] shall be further to the provisions of Special Conditions of Contract Clause SCC [ ]. *(i.e. the standard SCC(A) in DEVB TCW No. 9/2007 – Appendix E)*

Notes:

1. Delete as appropriate depending on the particular type of GCC to be used.

2. (a) For a works contract with a separate Section comprising only the Establishment Works, add at the end of sub-clause (8) "excluding the certificate of completion for the Establishment Works".

   (b) For a works contract with a separate Section comprising only the Landscape Softworks and Establishment Works, add at the end of sub-clause (8) "excluding

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the certificate of completion for the Landscape Softworks and Establishment Works".

(c) For term contracts with separate Works Orders for Landscape Softworks and/or Establishment Works, add at the end of sub-clause (8) "excluding the certificates of completion for Works Orders solely for Landscape Softworks and/or Establishment Works". This note 2(c) does not apply to term contracts which deal with Landscape Softworks and/or Establishment Works only.

Amend to the appropriate SCC reference.
Insert the Appendix reference as appropriate.
* Delete as appropriate depending on the particular type of GCC to be used.

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APPENDIX 7.61 DIRECT REPORT OF TREE FAILURE INCIDENTS TO THE TREE MANAGEMENT OFFICE OF THE DEVELOPMENT BUREAU

This note sets out the direct reporting mechanism of tree failure incidents to the Tree Management Office (TMO) of the Development Bureau (DEVB).

Arrangement

(A) Loss of human lives or major injuries

2. When a department receives the following cases arising from tree failure, they should notify the TMO of DEVB **immediately without any delay** –

(a) loss of human life; or

(b) major injury (where the injured is admitted or to be admitted to the hospital by ambulance).

3. The contact point of the TMO of DEVB is as follows –

Calling sequence	Officer	Number
1st	Assistant Secretary (Tree Management) on call	9082-9596
2nd	Head of Tree Management Office	9082-9597
3rd	Principal Assistant Secretary (Greening, Landscape and Tree Management)	9093-5859

4. Such phone call should be made on a 24 x 7 basis. If an officer in the 1st or 2nd calling sequence cannot be reached, an officer in the 2nd or 3rd calling sequence should be called immediately.

(B) Damage to property or blockage of access

5. When a department receives the following cases arising from tree failure, they should aim to notify the TMO of DEVB **as soon as possible** by calling the TMO hotline number at 2848 2334 or e-mail to TMO at our e-mail address at gltms@devb.gov.hk.

(a) Substantial damage to properties (e.g. substantial damage to building structure(s) or vehicle(s)); or

(b) Serious/complete blockage to main pedestrian/vehicular access.

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6. The hotline number 2848-2334 is only manned during the office hours. Colleagues may leave a voice message at the hotline number or send an e-mail after the office hours.

Effective Date

7. The above arrangement should be effective from 12:00 noon on Monday 28 June 2010.

Tree Management Office
Greening, Landscape and Tree Management Section
28 June 2010

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APPENDIX 7.62 SAMPLE SCC ON INTERIM PAYMENT FOR OFF-SITE PREFABRICATION ITEMS

S.C.C. xx

Bond for Off-Site Manufacture of Major Prefabrication Item(s)

(1) For purposes of the Contract, "[Major Prefabrication Items]" shall mean the following item(s) of works:

(a) [*description*] identified in [*set out the relevant Drawing number(s) and the relevant clause/section number(s) of the Contract documents, e.g. Specification*]; and

(b) ……
[*set out details of any further item(s) of works*],

which has/have been completed off-Site in accordance with the Contract but is/are yet to be delivered to the Site for inclusion in the Works.

(2) Should the Contractor elect to apply for interim payment for the manufacturing and fabrication of any Major Prefabrication Item carried out off-Site before delivery to Site, the Contractor shall, as a condition precedent to his right to apply for any interim payment or to continue to apply for any interim payment pursuant to General Conditions of Contract Clause 79 in relation to the elected Major Prefabrication Item, provide the Employer with and maintain in existence a separate bond in the form annexed at Appendix [ ] to the Special Conditions of Contract covering the elected Major Prefabrication Item, in the amount therein described and subject to the terms more particularly described in the Contract, with only such amendments thereto as may previously have been agreed in writing by the Engineer. The bond shall be released in the manner described in the bond. The Contractor shall submit a separate bond in relation to each elected Major Prefabrication Item.

(3) For the avoidance of doubt, if no bond as described in sub-clause (2) of this Clause covering the elected Major Prefabrication Item has been provided to the Employer and maintained in existence, no interim payment shall be made under the Contract for the Major Prefabrication Item and the payment for such Major Prefabrication Item shall continue to be processed and made in the normal manner upon delivery to Site under the provisions of the Contract.

(4) Upon the Contractor having provided to the Employer a duly executed bond under sub-clause (2) of this Clause in relation to any Major Prefabrication Item, the following amendments, effective from the date of the receipt of such bond by the Employer, shall be deemed to have been made to the Contract:

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Clause 21 of General Conditions of Contract shall be amended by:

(A) Adding to the end of the first sub-paragraph of sub-clause (1) after "Specialist Works" but before the full stop:

", and, in relation to the Major Prefabrication Item(s) for which the Contractor has provided to the Employer duly executed bond(s) under sub-clause (2) of Special Conditions of Contract Clause xx, for the care of the Major Prefabrication Item(s) whether stored off-Site or in the course of transportation."

(B) Adding after "on the Site," in line 4 of sub-clause (2):

"or, in relation to the Major Prefabrication Item(s) for which the Contractor has provided to the Employer duly executed bond(s) under sub-clause (2) of Special Conditions of Contract Clause xx, to the Major Prefabrication Item(s) whether stored off-Site or in the course of transportation,"

Clause 72 of General Conditions of Contract shall be deleted and replaced by:

(1) All materials owned by the Contractor for incorporation in the Works shall be and become the property of the Employer upon delivery to the Site, except to the extent that property in such materials shall have already been passed to the Employer in accordance with sub-clause (2) of this Clause.

(2) In relation to the Major Prefabrication Item(s) for which the Contractor has provided to the Employer duly executed bond(s) under sub-clause (2) of Special Conditions of Contract Clause xx, such Major Prefabrication Item(s) located in the manufacture / fabrication / assembly yard(s) off-Site or in the course of transportation shall be and become the property of the Employer upon property in such Major Prefabrication Item(s) vesting in the Contractor or otherwise passing unconditionally to the Contractor under relevant sub-contract.

(3) The materials under sub-clauses (1) and the Major Prefabrication Item(s) under sub-clause (2) of this Clause shall not be removed without an instruction or the prior written consent of the Engineer. Such materials and Major Prefabrication Item(s)

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shall, subject to Clause 81, only re-vest in the Contractor to the extent that they may be found to be surplus to requirements upon or prior to completion of the Works. The operation of this Clause shall not be deemed to imply any approval by the Engineer of such materials or Major Prefabrication Item(s) or prevent the rejection by the Engineer of any material or Major Prefabrication Item at any time.

Clause 78 of General Conditions of Contract shall be amended by:

(A) Adding after sub-clause (1)(b):

"(c) a list of the Major Prefabrication Item(s) for which the Contractor has provided the duly executed bond(s) under sub-clause (2) of Special Conditions of Contract Clause xx and the estimated contract value of such Major Prefabrication Item(s)"; and"

(B) Renumbering original sub-clause (1)(c) as sub-clause (1)(d).

Clause 79 of General Conditions of Contract shall be amended by:

(A) Adding after sub-clause (1)(c):

"(d) the estimated value of the Major Prefabrication Item(s) for which the Contractor has provided the duly executed bond(s) under sub-clause (2) of Special Conditions of Contract Clause xx; and"

(B) Renumbering original sub-clause "(1)(d)" and "(1)(e)" as (1)(e)" and "(1)(f)" respectively.

(C) Amending the further proviso at the end of sub-clause (1) to read:

"Provided further that, for the purpose of interim payments:

(i) the value of the materials as referred to in (c) above for use in connection with any item of permanent work priced in the Contract and the value of the Major Prefabrication Item(s) referred to in (d) above shall be determined on the basis of the rate set out in the Contract for such work; and

(ii) in relation to the Major Prefabrication Item(s) referred to in (d) above, it shall be a condition precedent to valuation and certification by the

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Engineer of such Major Prefabrication Item(s) under this sub-clause that the Contractor has complied with the provisions of sub-clause (5) of Special Conditions of Contract Clause xx."

For the avoidance of doubt, if the Contractor has not elected to apply for interim payment for any Major Prefabrication Item by not submitting the bond as required in sub-clause (2) of this Clause, this sub-clause (4) shall have no application to such Major Prefabrication Item.

(5) If the Contractor exercises his right under this Clause to apply for interim payment in relation to any Major Prefabrication Item(s), he shall be responsible for the arrangement and for all the costs and expenditure incurred by the Engineer's Representative in connection with his visit(s) to any off-Site manufacture / fabrication / assembly yard(s) to verify the Contractor's entitlement to any interim payment for such Major Prefabrication Item(s). The aforesaid costs and expenditure shall be deemed to be included in the rates of the Bills of Quantities.

Furthermore, the Contractor shall furnish to the Engineer the following:

(i) clear proof that the Major Prefabrication Item(s) has/have met all Contract requirements and especially geometric configurations, ready for shipment to the Site for erection;

(ii) in the case the Major Prefabrication Item(s) is / are stored whether at the manufacture / fabrication / assembly yard(s) where the Major Prefabrication Item(s) has / have been manufactured / fabricated / assembled or at other place(s) of storage off-Site, evidence that there is in relation to such Major Prefabrication Item(s) clear identification of:

(1) the Employer as the person to whose order it is / they are held, and

(2) its / their destination as the Works and such Major Prefabrication Item(s) either is / are set apart or has / have been clearly and visibly marked, individually or insets, by letters or figures or by reference to a pre-determined code;

(iii) in the case the Major Prefabrication Item(s) is / are under shipment by sea,

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the relevant shipping documents;

(iv) clear proof that the Major Prefabrication Item(s) is / are the property of the Contractor and that the conditions set out in paragraphs (i) to (iii) of this sub-clause, as applicable, have been complied with; and

[(v) clear proof that such Major Prefabrication Item(s) is/are fully insured against loss or damage for their full value under a policy of insurance protecting the interests of the Employer and the Contractor, during the period commencing with the transfer of property in the Major Prefabrication Item(s) to the Contractor until they are delivered to the Works.]#

NOTE : *In implementation of the risk-based assessment for insurance procurement according to ETWB TCW No. 6/2005 and 7/2005, the project officer's attention is drawn to the risk of damage to the third party during the period commencing with the transfer of property in the Major Prefabrication Item(s) to the Employer until they are delivered to the Works.*

Delete if OCIP arrangement has been adopted for the Contract.

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Appendix [ ] to S.C.C. xx
Form of Contractor's Bond in respect of Off-Site Payment for a Major Prefabrication Item

BY THIS BOND dated the day of [ ] 201X

[ ] whose registered office is at [ ]

("the Surety") is irrevocably and unconditionally bound to the Government of the Hong Kong Special Administrative Region (together with its successors and assigns, "the Employer") for payment of a sum ("the Bonded Sum") not exceeding [ ] ([ ])[1] for payment of which sum the Surety binds itself its successors and assigns in accordance with the provisions of this Bond.

WHEREAS

(A) By a contract dated [ ]("the Contract") made between the Employer and [ ] ("the Contractor"), the Contractor has agreed to execute and complete certain works ("the Works") upon the terms and conditions contained in the Contract.

(B) Pursuant to the terms of the Contract, the Contractor agrees that if he elects to apply for interim payment for any Major Prefabrication Items ("the Off-Site Payment") pursuant to Special Conditions of Contract Clause xx, the Contractor shall, as a condition precedent to its right to apply for any such interim payment, provide this on-demand bond ("Bond").

(C) The Contractor has elected to apply for interim payment for the Major Prefabrication Item comprising [ ] pursuant to Special Conditions of Contract Clause xx ("Relevant Major Prefabrication Item")

NOW THE TERMS AND CONDITIONS of this Bond are:-

1. The Surety hereby irrevocably and unconditionally undertakes to pay to the Employer an amount not exceeding [ ] ([ ])[1] upon receipt from the Employer of a written demand therefor accompanied by a certificate signed on behalf of the Employer stating:

   (a) that the Employer is entitled to terminate or has terminated the Contract or the employment of the Contractor under the Contract; and

   (b) the amount due and payable under this Bond in accordance with Clause 3 below.

2. The Surety shall pay to the Employer the amount thus demanded without requiring further evidence or proof of:-

   (a) the default of the Contractor or

[1] The value stated in the Appendix to Form of Tender which the Employer considers will be sufficient to cover him for maximum Off-Site Payment payable to the Contractor for the Relevant Major Prefabrication Item.

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(b) the Employer's entitlement to terminate the Contract or the employment of the Contractor under the Contract or

(c) any termination of the Contract or the employment of the Contractor under the Contract or

(d) of the amount due and payable under this Bond.

3. The amount payable under this Bond shall be the aggregate of the sum stated in the latest interim payment certificate representing the Off-Site Payment paid to the Contractor under the Contract prior to the date of the written demand referred to in Clause 1 above less the aggregate of any and all sums in respect of the Relevant Major Prefabrication Item delivered to the Site as certified by the Engineer (as defined in the Contract) in accordance with the terms of the Contract provided always that the liability of the Surety under this Bond shall not exceeded [ ] ([ ])[1].

4. The liability of the Surety under this Bond shall remain in full force and effect and shall not be affected or discharged in any way by and the Surety hereby waives notice of:-

(a) any suspension of the Works, variation to or amendment of the Contract (including without limitation extension of time for performance), or any concession or waiver by the Employer in respect of the Contractor's obligations under the Contract;

(b) the termination of the Contract or of the employment of the Contractor under the Contract solely as a result of default by the Contractor under the Contract;

(c) any forbearance or waiver of any right of action or remedy the Employer may have against the Contractor or negligence by the Employer in enforcing any such right of action or remedy;

(d) any other bond, security or guarantee held or obtained by the Employer for any of the obligations of the Contractor under the Contract or any release or waiver thereof;

(e) any act or omission of the Contractor pursuant to any other arrangement with the Surety.

5. The liability of the Surety under this Bond shall cease on whichever of the following events first occurs:-

(a) payment by the Surety of the Bonded Sum in full to the Employer; or

(b) receipt of written notification from the Employer that all the components comprising the Relevant Major Prefabrication Item have been delivered to the Site; or

6. The Employer shall be entitled to assign the benefit of this Bond at any time without the consent of the Surety or the Contractor being required.

7. All documents arising out of or in connection with this bond shall be served:-

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(a) Upon the Employer, at [ ], marked for the attention of [ ];

(b) Upon the Surety, at [ ] Hong Kong.

8. The Employer and the Surety may change their respective nominated addresses for service of documents to another address in Hong Kong but only by prior written notice to each other. All demands and notices must be in writing.

9. This Bond shall be governed by and construed according to the laws for the time being in force in Hong Kong and the Surety agrees to submit to the non-exclusive jurisdiction of the courts of Hong Kong.

10. In this Bond, ‘’Hong Kong” means the Hong Kong Special Administrative Region. Where applicable, words and expressions used in this Bond shall have the meanings assigned to them in the Contract.

IN WITNESS whereof this Bond has been executed as a deed on the date first above written.

(a) SIGNED, SEALED and DELIVERED)
by [name of sole proprietor])
trading as [name of the Surety])
in the presence of:)
) *[Signature of the sole proprietor]** L.S.
.....)
[Name])
[Occupation])
[Address])

Or

(b) SIGNED, SEALED and DELIVERED by)
[name of partner] and)
[name of partner]^) *[Signature of the individual partner]** L.S.
being the partners of [name of the Surety])
in the presence of:)
)
) *[Signature of the individual partner]** L.S.
.....)
[Name])
[Occupation])
[Address])

Or

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(c) Executed and delivered)
as a deed and the COMMON SEAL)
of [name of the Surety])
was affixed in the presence of) *[Signature of the*
[ ] its [director(s) or) *director(s) etc]**
director and secretary or person(s))
authorized to sign the bond by its)
board of directors]**)
in the presence of a witness:)
)
.....)
[Name])
[Occupation])
[Address])

Common Seal

Or

(d) Executed and delivered as a deed)
by [name of the Surety])
acting through)
[ ] (its sole director))
or) *[Signature of the*
[ ] and [ ] (its directors)) *director(s) etc]**
or))
[ ] (its director) and)
[ ] (its company secretary)**)
in the presence of a witness:)
)
)
.....)
[Name])
[Occupation])
[Address])

Or

(e) SIGNED, SEALED and DELIVERED by)
[name of the Surety] by [ ])
his/her/its** attorney under power of attorney)
dated [ ])
) *[Signature of the*
in the presence of:) *attorney]**
)
.....)
[Name])
[Occupation])
[Address])

L.S.

Note :

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(a) For use where the surety is a sole proprietor.
(b) For use where the surety is a partnership.
(c) For use where the surety is a company incorporated in Hong Kong and executes the deed with a Common Seal.
(d) For use where the surety is a company incorporated in Hong Kong and executes the deed without a Common Seal.
(e) For use where the surety executes the deed under a power of attorney.
* The italic parts are not part of the execution clause. They are for guidance or information only.
** Select the correct expression for use. If none is applicable, insert an appropriate expression.
^ The deed shall be executed by all the partners. Add more names if required.

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APPENDIX 7.63 NOT USED

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APPENDIX 7.64 NOT USED

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APPENDIX 7.65 SPECIAL CONDITIONS OF CONTRACT (SCC) ON RELEASE OF RETENTION MONEY FOR USE IN CONJUNCTION WITH GCCS FOR BUILDING WORKS, CIVIL ENGINEERING WORKS, DESIGN AND BUILD CONTRACTS AND ELECTRICAL AND MECHANICAL ENGINEERING WORKS, 1999 EDITIONS (FOR CAPITAL WORKS CONTRACTS)

General Conditions of Contract Clause 79(3) is deleted and replaced by the following :

"(3) (a) The Engineer[/Surveyor] [4] [/Supervising Officer] [5] shall, within 14 days of the date of issue of the certificate of completion in respect of the Works in accordance with Clause 53(1) , issue a certificate for the payment of not more than 50 % of the Retention Money giving due account to the cost of the outstanding work referred to in Clause 53 and all work of [maintenance,][6] repair, rectification and making good of any defects[/Defects][7] [imperfection, shrinkage, settlement and other fault][8] referred to in Clause 56 which have been notified in writing to the Contractor ("Outstanding Work") [, which certificate shall state any Retention Money due to any Nominated Sub-contractor][9] and, subject to Clause 83, the Employer shall pay such portion of Retention Money to the Contractor within 21 days of such certificate. In the event of different certificates of completion having been issued for different Sections or parts of the Works pursuant to Clause 53, the expression "certificate of completion" shall, for the purposes of this sub-clause, mean the last of such certificates.

(b) Further to paragraph (a) of this sub-clause and within 14 days after the date of the expiry of the Maintenance Period [/Defects Liability Period][10] for the Works or, where there is more than one such Period, the latest Period, the Engineer [/Surveyor] [11] [/Supervising Officer] [12] shall issue a certificate for the payment of a further portion of the Retention Money representing the remainder of the Retention Money less, where applicable, an amount ("Remaining Amount") which, in the opinion of the Engineer [/Surveyor][13][/Supervising Officer][14], represents the cost of any Outstanding Work then remaining to be carried out [, which certificate shall state any

4 Only applicable to Building Works contracts
5 Only applicable to Design and Build contracts
6 Not applicable to E&M contracts
7 Only applicable to E&M contracts
8 Not applicable to E&M contracts
9 Only applicable to contracts with provision for Nominated Sub-contractor
10 Only applicable to E&M contracts
11 Only applicable to Building Works contracts
12 Only applicable to Design and Build contracts
13 Only applicable to Building Works contracts
14 Only applicable to Design and Build contracts

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Retention Money due to any Nominated Subcontractor][15] and, subject to Clause 83, the Employer shall pay such further portion of the Retention Money to the Contractor within 21 days of the date of such certificate.

(c) Where a sum representing the Remaining Amount is withheld from certification under paragraph (b) of this sub-clause, the Engineer [/Surveyor][16] [/Supervising Officer][17] shall, within 14 days of the date of issue by the Engineer [/Architect] [18] [/Supervising Officer] [19] of the maintenance certificate [/defects liability certificate][20] in accordance with Clause 80, issue a certificate for the payment of the sum representing the Remaining Amount [, which certificate shall state any Retention Money due to any Nominated Subcontractor][21] and, subject to Clause 83, the Employer shall pay such sum to the Contractor within 21 days of the date of such certificate."

15 Only applicable to contracts with provision for Nominated Sub-contractor
16 Only applicable to Building Works contracts
17 Only applicable to Design and Build contracts
18 Only applicable to Building Works contracts
19 Only applicable to Design and Build contracts
20 Only applicable to E&M contracts
21 Only applicable to contracts with provision for Nominated Sub-contractor

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APPENDIX 7.66 SPECIAL CONDITIONS OF CONTRACT (SCC) ON RELEASE OF RETENTION MONEY FOR USE IN CONJUNCTION WITH GCCS FOR BUILDING WORKS, CIVIL ENGINEERING WORKS, DESIGN AND BUILD CONTRACTS AND ELECTRICAL AND MECHANICAL ENGINEERING WORKS, 1999 EDITIONS (FOR CAPITAL WORKS CONTRACTS – FOR LANDSCAPE WORKS)

General Conditions of Contract Clause 79(3) is deleted and replaced by the following :

"(3) (a) The Engineer[/Surveyor][1] [/Supervising Officer][2] shall within 14 days of the date of issue of the certificate of completion in respect of the Works except Landscape Works in accordance with Clause 53(1), issue a certificate for the payment of not more than 50% of the Retention Money giving due account to, in respect of the Works except Landscape Works, the cost of the outstanding work referred to in Clause 53 and all work of [maintenance,][3] repair, rectification and making good any defects[/Defects][4] , [imperfection, shrinkage, settlement and other fault][5] referred to in Clause 56 which have been notified in writing to the Contractor [and , which certificate shall state any Retention Money due to any Nominated Sub-contractor][6] and, subject to Clause 83, the Employer shall pay such portion of Retention Money to the Contractor within 21 days of such certificate. In the event of different certificates of completion having been issued for different Sections or parts of the Works except Landscape Works pursuant to Clause 53, the expression "certificate of completion" shall, for the purposes of this sub-clause, mean the last of such certificates.

(b) Further to paragraph (a) of this sub-clause and upon the expiry of the Maintenance Period[/Defects Liability Period][7] for the Works except Landscape Works, or where there is more than one such Period, the latest Period, the Engineer[/Architect][8] [/Supervising Officer][9] shall notify the Contractor in writing the date of expiry of such Maintenance Period [/Defects Liability Period][10], and within 14 days of the date of notification by the

1 Only applicable to Building Works contracts
2 Only applicable to Design and Build contracts
3 Not applicable to E&M contracts
4 Only applicable to E&M contracts
5 Not applicable to E&M contracts
6 Only applicable to contracts with provision for Nominated Sub-contractor
7 Only applicable to E&M contracts
8 Only applicable to Building Works contracts
9 Only applicable to Design and Build contracts
10 Only applicable to E&M contracts

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Engineer [/Architect][11] [/Supervising Officer][12], the Engineer [/Surveyor][13] [/Supervising Officer][14] shall issue a certificate for the payment of a further portion of the Retention Money and such further portion shall be equal to the Relevant Percentage of the Retention Money less an amount which, in the opinion of the Engineer [/Surveyor][15] [/Supervising Officer][16], represents the cost of the outstanding work referred to in Clause 53 and all work of [maintenance,][17] repair, rectification and making good any defects[/Defects][18] , [imperfection, shrinkage, settlement and other fault][19] referred to in Clause 56 then remaining to be carried out) [, which certificate shall state any Retention Money due to any Nominated Sub-contractor][20] and, subject to Clause 83, the Employer shall pay such further portion of Retention Money to the Contractor within 21 days of the date of such certificate. For the purposes of this sub-clause, "Relevant Percentage" means [98][21] % minus the percentage of the Retention Money certified under paragraph (a) of this sub-clause.

(c) The Engineer[/Surveyor][22] [/Supervising Officer][23] shall, within 14 days of the date of issue by the Engineer[/Architect][24] [/Supervising Officer][25] of the maintenance certificate[/defects liability certificate][26] in accordance with Clause 80, issue a certificate for the payment of the remaining portion of Retention Money [, which certificate shall state any Retention Money due to any Nominated Sub-contractor][27] and, subject to Clause 83, the Employer shall pay such remaining portion of Retention Money to the Contractor within 21 days of the date of such certificate."

11 Only applicable to Building Works contracts
12 Only applicable to Design and Build contracts
13 Only applicable to Building Works contracts
14 Only applicable to Design and Build contracts
15 Only applicable to Building Works contracts
16 Only applicable to Design and Build contracts
17 Not applicable to E&M contracts
18 Only applicable to E&M contracts
19 Not applicable to E&M contracts
20 Only applicable to contracts with provision for Nominated Sub-contractor
21 To insert a percentage appropriate to the Contract taking into account the proportion of Retention Money for Landscape Works
22 Only applicable to Building Works contracts
23 Only applicable to Design and Build contracts
24 Only applicable to Building Works contracts
25 Only applicable to Design and Build contracts
26 Only applicable to E&M contracts
27 Only applicable to contracts with provision for Nominated Sub-contractor

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APPENDIX 7.68 NOT USED

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APPENDIX 7.69 NOT USED

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APPENDIX 7.70 GUIDELINES ON ADOPTION OF SCC ON INTERIM PAYMENT FOR OFF-SITE PREFABRICATION ITEM

1. In order to enhance the cash flow of contractors, we promote wider adoption of the SCC in public works contracts. Project officers should pay attention to the requirements as stipulated in SCC. In gist, making interim payment(s) for major off-Site prefabrication item / equipment ("the item") are subject to the following preconditions, including

(i) maintenance of an effective bond by Contractor,

(ii) Contractor's undertaking of arrangement and all the costs and expenditure incurred by the Engineer's Representative in connection with his visit to off-Site manufacture / fabrication / assembly yards for verification on Contractor's entitlement on interim payment(s),

(iii) clear proof that the item has met Contract requirements,

(iv) clear identification of the item on whose order it is held and its destination,

(v) shipping documents (if by sea),

(vi) clear proof of Contractor's ownership of the item, and

(vii) if applicable, insurance against loss or damage for the full value of the item under a policy protecting the interests of Employer and Contractor during the period from transfer of property in the item to the Contractor until it is delivered to the Works.

2. Works Departments are required to incorporate the SCC into contracts satisfying the following criteria:-

(i) Project officer anticipates that an item[1] under the Contract is likely to be prefabricated off-Site (e.g. bridge deck, steel truss and E&M equipment[2]); and

(ii) The estimated total value of a single type of off-Site prefabrication item is not less than $1.4 million or 0.3% of pre-tender estimate (PTE) of the Contract, whichever is the greater.

3. The above requirements in paragraph 2 may be waived for a particular contract, where justified, with the approval of an officer at D2 or above rank.

4. Notwithstanding the requirement in paragraph 2(ii), when it is desirable, the project officer may still incorporate the SCC for smaller value of the off-Site prefabrication item having regard to the PTE.

Development Bureau

1 Item should be completed in off-Site manufacture / fabrication / assembly yards and no considerable assembly work is required on Site. Item may not be considered if its identification cannot be easily proved (e.g. typical precast concrete kerbs, precast pipes, electrical cables, bus-ducts and other more generic items and manufactured products).

2 E&M equipment referred to may mean

(i) Heat Pump; (ii) Chiller; (iii) Air-handling units; (iv) Pumpset (including fire pump) ;
(v) Motor Control Centre (vi) Generator; (vii)Transformer; (viii) Switchboard; (ix) Centrifuge;
(x) Filter Press; (xi) Air Blower; (xii) Traffic Control and Surveillance System; and (xiii) Boiler.

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APPENDIX 7.71 IMPLEMENTATION GUIDELINES FOR PROVISION OF UNIFORM

Implementation Guidelines

Introduction

1. These guidelines provide information and guidance on implementing the site uniform requirements in public works projects. They should be read in conjunction with the prevailing policy and the associated contract provisions on site uniform requirements.

Uniform Items to be provided

2. The following uniform items are generally required to be provided to workers of the contractor and his sub-contractors of all tiers-

Capital Works Contracts and Term Contracts with Capital Works	Term Maintenance Contract
• Polo shirt (short-sleeve and long-sleeve to suit the weather conditions) • Trousers	• Polo shirt (short-sleeve or long sleeve to suit the weather conditions) or vest/reflective jacket*

* Please delete or modify as appropriate to suit the needs of individual contract.

Design of Uniform

3. The Construction Industry Council (CIC) has adopted the anti-heat stress uniform (AHS uniform) designed by the Hong Kong Polytechnic University as a standard design of uniform for workers. The AHS uniform comprises polo shirt and trousers. For enquiries on details of the AHS uniform, please contact the Procurement Department of the CIC on 2100 9028, or the Assistant Secretary (Works Policies) 9 of the Development Bureau on 3509 8710.

4. The Contractor should have the flexibility in deciding the colour and style of his uniform for workers. Although the Contractor may show his company's logo and name on the uniform, it is not mandatory. It is also not mandatory to show the contract number or other contract specific information on the uniform to maximise possible re-use of the uniform in other Contracts of the Contractor.

5. While we should encourage the Contractor adopting AHS uniform, the Engineer / Architect / Supervising Officer / Surveyor should also take into consideration approval given to the uniform design of the Contractor under other public works contracts or similar design to the AHS uniform. Unless there is justification or circumstances that render the previously approved design not suitable for the Contract, the Engineer / Architect / Supervising Officer / Maintenance Surveyor should not unreasonably withheld approval of the uniform design that was approved under other public works contracts.

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Do's and Don'ts

Do's

- Do take into account the approval of uniform design given to the Contractor under other public works contracts or to the standard one developed/adopted by the construction industry if the Contractor submits the same uniform design for approval.

- Do be reasonable in enforcing the site uniform requirements taking into account the suitability and practicability of certain workers (e.g. divers, those wearing other personal protective equipment, etc.) to wear uniform.

- To maximize re-use of uniforms in other Contracts, do be flexible in enforcement to allow individual workers wearing uniform of different colour.

Don'ts

- Don't insist on showing the Contractor's logo or contract specific details on the uniform.

Note: These Implementation Guidelines are available in SDEV's memo ref. DEVB(Trg) 133/3(10) dated 23.1.2017, which can be downloaded from Works Group Intranet Portal.

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APPENDIX 7.72 IMPLEMENTATION OF CONTRACTOR COOPERATIVE TRAINING SCHEME (CCTS) IN PUBLIC WORKS CONTRACTS

Implementation Guidelines

Introduction

These implementation guidelines provide reference guidance to project officers and resident site staff in implementing the CCTS in public works contracts. They should be read in conjunction with the Special Conditions of Contract for the CCTS (the "SCC") given in the SDEV's memo ref. DEVB(Trg) 133/4 (5) dated 30.12.2011. The requirements in the SCC shall take precedence if there is conflict between the SCC and these guidelines. Notwithstanding the contractual requirements, the CCTS works on the basis of cooperation/partnering with contractors and sub-contractors to meet the overall manpower need of the construction industry and their specific needs.

2. In the following guidelines, references to sub-clauses refer to the sub-clauses of the SCC and the references to "sub-contractor" means "first-tier sub-contractor". For simplicity, the term "Engineer" is used to represent Engineer, Architect, Supervising Officer or Maintenance Surveyor.

Employment of Trainees

3. Sub-clause (1) requires the Contractor and/or the sub-contractors to employ a minimum total number of trainees to undergo CCTS training. However, the Contractor and/or the sub-contractors can employ and train a total of more than the minimum number of trainees specified in the Contract. In fact, it is reasonably required and advisable for the Contractor to employ more than the minimum to take into account the drop-out of trainees before the completion of training, the passing rate at the intermediate trade tests/course-end assessment, and other risk factors leading to non-completion of the training. Early communication between the Engineer and the Contractor can help recognize and plan for these risks adequately.

4. All the trainees under the Contract need not be trained under one trade only and they do not need to be all employed by the Contractor or the sub-contractors. For example, if a minimum of 12 trainees are specified in the Contract, the Contractor can employ and train 4 trainees as levellers, one sub-contractor can employ and train another 4 trainees as drainlayers and another sub-contractor can employ and train yet another 4 trainees as formwork carpenters, all to make up the total minimum number of trainees of 12.

Mobile Training Quota

5. To meet the minimum total number of trainees to be trained under the Contract, the Contractor and/or the sub-contractors as appropriate do not have to assign the trainees to work in the Contract to obtain their training. Under sub-clause (8), they are allowed to second the trainees to work in other contracts (both public works contracts or private contracts) if necessary to obtain the training and such trainees can be counted towards the total number of trainees trained under the Contract when their training is completed. The contracts to which the trainees can be seconded are governed by the conditions stated in sub-clause (8)(a).

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6. As other existing contracts of the Contractor may offer more ready opportunities than the Contract for earlier commencement of the CCTS training, secondment should be considered proactively and early upon the award of the Contract. Under such circumstance, the sub-contracting arrangement of the Contract may not be firmed up but this should not prevent the Contractor from procuring the sub-contractors of the Seconded Contracts to employ trainees to commence and undergo the CCTS training.

7. As part of his tender, the Contractor should have submitted a list of existing contracts for technical assessment and financial vetting. The Contractor Management Information System (CMIS) should also be able to identify a list of current public works contracts of the Contractor. These should be good references of potential Seconded Contracts.

Commencement of Training

8. Sub-clause (2) requires the Contractor and/or the sub-contractor to commence the training within 3 months from the commencement of the Contract and allows the Contractor to seek the approval of the Engineer to defer the commencement of training of any CCTS Trainee for a reason beyond the reasonable control of the Contractor. If the Contractor is unable to commence the training in the Contract within 3 months due to lack of suitable trade work in his construction programme, he should, in line with paragraph 6 above, proactively look for suitable training opportunities in all his other contracts for possible early commencement of training through secondment.

9. For example, if there is only very little drain laying work with short duration commencing in month 5 of the Contract which cannot provide sufficient or continuous training opportunities but there will be sufficient amount of formwork erection work in month 8 of the Contract to provide training for formwork carpenters, then the Contractor should start the training in month 8 of the Contract provided that there is no sufficient relevant work in any other contracts of the Contractor to enable the training to commence earlier.

10. However, if for example, the Contractor has another contract which has sufficient bar bending and fixing work commencing in month 4 of the Contract, then the Contractor should commence the training of bar bender and fixers in that other contract in month 4 of the Contract. But if the Contractor cannot reasonably recruit these workers in the market, he may elect to seek approval of the Engineer to defer the CCTS training to train the formwork carpenters instead.

11. If there is insufficient relevant work to accommodate the commencement of training of all the required trainees when the CCTS training first begins, the Contractor can then seek the approval of the Engineer to defer the commencement of the training for the remaining trainees.

12. Although the lack of suitable trade work in the works programme of the Contract or of all other contracts of the Contractor is considered a valid reason for deferring the commencement of training, the Engineer in assessing the Contractor's application for such deferral should consider the works programmes of all the Contractor's contracts and if approval is given, should also advise the Contractor when the commencement of the training should be deferred to in accordance with the works programmes considered.

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Employment of CCTS Graduates

13. Sub-clause (5) requires the Contractor and/or the sub-contractors as appropriate to continue to employ the trainees upon completion of their training as CCTS Graduates for at least another 12 months to enable them to further enhance their skills and to become part of the productive workforce. During this 12-month period, the level of wages to be paid to the CCTS Graduates by their employers need to comply with sub-clause (5)(b).

14. The Contractor and/or the sub-contractor as appropriate may decide not to continue to employ the CCTS Graduates or to shorten the 12-month employment if any of the conditions in sub-clauses (5)(c)(i) to (v) is met. There is no need for the Contractor to seek the approval of the Engineer for such decision but the Contractor needs to notify the Engineer in accordance with sub-clause (10).

15. Again the list of existing contracts the Contractor submitted as part of the tender for technical assessment and financial vetting and the CMIS should be good references of potential contracts for the employment.

Replacement of Terminated Trainees

16. As per sub-clause (5)(a), the training of a CCTS Trainee is completed only when he has passed the relevant end-of-training assessment. Only CCTS Trainee who has completed the training can be counted towards the total number of trainees employed and trained under the Contract to meet the minimum total number of trainees specified in the Contract. The CCTS Trainee can take the assessment again with further training provided by the Contractor and/or the first-tier subcontractors at their own costs if and after he/she fails it. There is no limit on the number of times the CCTS Trainee can take the assessment providing the contractual requirements are complied with.

17. If the employment of the CCTS Trainee is terminated before the completion of his training, the Contractor is required under sub-clause (7) to replace such trainee within one month after the said termination. If the Contractor cannot make such replacement within one month and if requested by the Engineer, the Contactor needs to demonstrate to the satisfaction of the Engineer that he has exercised reasonable endeavors in replacing the CCTS Trainee. Such demonstration may, for example, include evidence that

- relevant recruitment advertisements had been placed
- reasonable wages commensurate with current market rates had been offered
- recruitment interviews had been held
- effort had been made to seek the CIC's assistance in recruiting new trainees
- CIC's Construction Jobsnet had been utilized in recruiting new trainees [web link - http://jobsnet.hkcic.org/Eng/Default.aspx]

Changes in CCTS terms and conditions

18. Sub-clause (11) allows the Final Contract Sum or final value of the Works to be adjusted to take account of any increase or decrease in Cost to the Contractor due to any change to the CCTS terms and conditions made on or after the date 10 days prior to the tender closing date. The Engineer should keep a record of those CCTS terms and conditions applicable just before the date 10 days prior to the tender closing date as a basis to evaluate any subsequent material changes in the CCTS terms and conditions that may lead to changes

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in Cost to the Contractor.

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APPENDIX 7.73 FILLING PRACTICE FOR WORKS CONTRACTS (Subsumed from WBTC No. 19/93)

1. Definitions

1.1 **Site-documents** means all manner of works-contract documents, papers, correspondence, reports, forms, drawings, images, charts, records, in whatsoever format or medium, gathered from award of the contract to completion of all the contractual obligations.

1.2 **File Register** is the comprehensive list of files kept at that filing location i.e. file registry.

1.3 **File Reference Number,** is the unique alpha-numeric identification number assigned to each file. The file reference number, reflects the subject of the file with like-subjects given closely related numbers. A document number, unique for that file, identifies and locates each site-document kept in the file. The file reference number with the document number is thus the full location address for a filed site-document.

1.4 **File Index** is the comprehensive list of documents kept in the file. The file index is kept inside the cover of each file. It is used to locate a site-document in a file and for stating the cross references which apply to each document and the details of each document.

2. Responsibility for filing of works-contract site-documents

2.1 The Architect's or the Engineer's Representative, as the case may be, is responsible for ensuring that site-documents are filed according to the requirements stated herein.

3. Standard practice for filing of works-contract site-documents

3.1 Retention of Site-documents

3.1.1 All site-documents shall be kept in the filing system: retention of originals by individuals is not permitted. Copies of documents which have further information written on them become "originals" which shall be kept in the filing system.

3.1.2 Copies of originals may be kept on other files for cross-reference and other purposes but these should be kept to a minimum. Copies shall be labelled "COPY" and also carry the file reference, including document number, of the original.

3.1.3 Meetings, conferences and telephone calls on contract matters shall be documented in writing to record the subject, important points, and the decisions made.

3.1.4 Electronic messages on contract matters shall be treated as correspondence with a hard copy paper printout of the message kept in the filing system. Attached to the file copy shall be a paper copy of the transmission log which details the date and time the message was received and by whom.

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3.2 File Register

3.2.1 The file register is organised so that files are grouped according to their main use. The groups are divided into related topics and the topic divisions are sub-divided into related subjects. Further sub-division into subsidiary-subjects, and the addition of topics and subjects is possible to suit circumstances.

3.2.2 The file register is described in Annex 1.

3.3 File Reference Number

3.3.1 Each file shall have a unique alpha-numeric identification number which reflects the main use, topic and subject of the site-documents placed in it. As a result, related, similar or subsidiary subjects will have adjacent file reference numbers. This File Reference Number also reflects its position in the tiered logic of the File Register.

3.3.2 The file reference number shall consist of a series of identifiers, as shown below, separated by delimiters (/) :-

Project Identifier/(Contract)/File Division/File No/Document No

3.3.3 The identifiers are :-

Identifier	Definition
Project Identifier e.g. **NLE**	Unique alphanumeric code which signifies the PWP or group of projects or for department purposes (This is optional)
Contract **e.g.** NLE/**(HY/91/08)**	Contract No (Contained in Brackets)
File Division e.g. NLE/(HY/91/08)/**M30**	Files are grouped into File Divisions according to their main use, namely; • **M**anagement (of construction) • **R**ecords (of construction) • **C**onstruction (items, locations and activities) File Divisions are prefixed by the capital letter of its group and given a two digit identification number Each File Division shall contain the subject files necessary for dealing with that topic.
File No e.g. NLE/(HY/91/08)/M30/**200**	Files are assigned a unique three digit number for the file subject according to the order, or grouping, of the file subjects in the File Division. Successive volumes of the same file shall be numbered as such.
Document No e.g. **(9)**	Each document in the file shall be given a consecutive number, starting at 1. Enclosures have the same Document No but are also marked "enc".

3.4 Use of the File Register to suit circumstances

3.4.1 The hierarchial structure of the file register shall not be changed but it can be extended and unneeded parts can be ignored. The file divisions and file numbers stated in the file register shall not be assigned to another use.

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Extending the file register must be done as a continuation of its hierarchial logic with subjects broken down into subsidiary and allied subjects.

3.4.2 **File Divisions** shall not be changed; they can however be left unused or have new divisions added, to suit particular needs.

3.4.3 **Files** can be added, or the subject further sub-divided into subsidiaries or allied subjects to suit particular needs. Sub-division continues the tiered logic of the filing system and is the recommended means of adapting it to suit circumstances.

The file reference number of a subsidiary-subject is the parent's number extended by a delimiter and a two digit identifying number.
e.g. NLE/(HY/91/08)/M30/200/21

Added subjects are assigned the next available sequential number in the most appropriate group of subjects in the division, ie 101, 102 if the subject is associated with 100.
e.g. NLE/(HY/91/08)/M30/201

3.4.4 If the file is made up of separate repeat items, ie interim payments, these shall be filed as a series of that subject file reference number. Each in the series being identified by an extension to the file reference number: this shall be by a .(dot) delimiter and sequential numbering starting from .1 (dot *1)*, ie 100.1, 100.2 etc.
e.g. NLE/(HY/91/08)/M30/201.1

3.5 Cross-Indexing

3.5.1 Site-documents shall be filed according to their main purpose but shall be cross-indexed to other classifications for easier document retrieval. It is recommended that document details including cross-indexing are noted on the file index sheets kept inside each file.

3.5.2 A copy of all correspondence shall be filed in chronological order of date sent or received on the correspondence file and cross-indexed to the sender and addressee. *Correspondence Cross-Index* is stated in Annex 2, this shall be modified and used to suit circumstances.

3.5.3 Documents in the **M**anagement group or the **R**ecord group of file divisions shall be cross-indexed to a site location, or part of the construction, so that management or record group documents for each location or part of construction can be more easily retrieved. *Location Cross-Index* is stated in Annex 3, this shall be modified and used to suit circumstances.

3.5.4 Documents in the **C**onstruction group of file divisions shall be cross-indexed to the work-type so that documents on particular construction activities can be selectively retrieved from the construction files. *Work-Type Cross-Index* is stated in Annex 4, these shall be detailed and used to suit circumstances.

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Manual Cross-Indexing

3.5.5 It is recommended that the proforma file index sheet kept in the inside cover of each file includes spaces for cross-indexing documents. The codes are as listed in the annexes and further defined for each works contract. An example is illustrated below.

					File Ref:	**Page:**
Doc No.	**Date**	**Type**	**From**	**To**	**Caption/ description**	**X-index**

3.6 Computer-aided cross-referencing

3.6.1 Document management software have indexing functions in which unlimited numbers of index codes can be used if needed. These software are particularly useful for speedy retrieval of documents and usually do so by identifying the document address (file reference number and document number) as a result of selection criteria made up of index codes. It is recommended that cross-indexes in addition to those given in Annexes 2, 3 and 4 should be used to permit more selective document retrieval.

3.6.2 It is recommended that document management software for use on PC-computers be used and that the advice of department computer service units, or the Works Branch, be sought on suitable software for these purposes. Some software also stores documents as electronic image or text-files, but this requires use of scanning technology and capture of electronic textfiles and is not recommended unless proven as cost-effective for the proposed use.

I. REFERENCES

Hong Kong Government Manual of Office Practice - A Guide for Departments on Office Procedure, 1991

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Annex 1

File Register (File Ref = Project Identifier/Contract/File Division/File No/Folio

Management Group (Sheet 1 of 2)

Folio's in these File Divisions should be cross-referenced to a site position/item to enable retrieval (preferably computer *of all folios referenced to that location*

File Division	M05 - Administration	M10 - Correspondence	M15 - Financial & Contractual	M2	ramme & Progress	M25 - Submittal & RFI
Notes		*copy of all correspondence (w/o enc) in chronological order*	*** means filed in sequential series ie 101.1...101.xx*	*** ser*	*filed in sequential 01.1...101.xx*	
File No & Subject	100 Staff 200 Equipment Inventory 300 Procedures 400 Public Relations 500 Visits	100 Incoming mail log 200 Outgoing mail log 300 Chronological Copies of Correspondence	100 Interim Payment Procedures 105 ** Payment Submission 110 ** Milestone Certificates 115 ** Interim Payment Certificates 120 Liquidated Damages 125 Retention 130 Agreed Costs 135 Final Account 200 Request for Variation Orders (RFVO) Log 210 ** Valuation of Variation Orders 300 Cost Reporting 500 Claims Log 510 ** Claims 520 Extensions of Time 600 Subcontractor Agreements 700 Insurance 710 Bonds and Guarantees 800 Site Instructions 810 Dayworks	100 110 120 200 210 220 230 240 250 260	** Baseline Works Programme ** Three Month Rolling Programme Programme Revision ** Monthly Progress Report ** Contractor's Progress Report ** Site Progress Report ** Engineer's Rep Progress Report Contractor's Daily Report Inspector's Daily Report ARE's Weekly Reports	100 Submittal Log 110 Submittals 200 RFI Log 220 RFI's

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			900 Completion 910 Maintenance 920 Handover			

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File Register (File Ref = Project Identifier/Contract/File Division/File No/Folio

Management Group (Sheet 2 of 2)

Folio's in these File Divisions should be cross-referenced to a site position/item to enable retrieval (preferably computer of all folios referenced to that location

File Division	M30 - Meetings	M35 - Quality Assurance	M40 - Safety	M4	ronment	M50 - not used
Notes	*** means filed in sequential series ie 101.1...101.xx*	*** means filed in sequential series ie 101.1...101.xx*	*** means filed in sequential series ie 101.1...101.xx*			
File No & Subject	100 Engineer's Site Meeting 200 Contractor's Site Meeting 210 ** Progress Meeting with Contractor 300 PMO's Meetings 310 ** Progress Meeting with PMO 400 Govt Depts 500 Utilities 600 Interfacing Contracts	100 Site Quality Plan 110 Contractor's Quality Plan 120 Sub-Contractor Quality Plan 130 Suppliers QA 200 Procedures 300 ** Non-conformity Reports against Engineer's Rep 310 ** Non-conformity Reports against Contractor 320 ** Non-conformity Reports against Sub-contractor 330 ** Non-conformity Reports against Suppliers	100 Safety Plan 110 Safety Staff 120 ** Accident Reports 130 Site Safety Report 140 Contractor's Safety Report 150 Sub-Contractor Safety Report 160 Off-site safety	100 200 300 400 500	EPD Environmental mpact Assessments Air quality Water quality Noise quality	

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File Register (File Ref = Project Identifier/Contract/File Division/File No/Folio

Record Group (Sheet 1 of 1)

Folio's in these File Divisions should be cross-referenced to a site position/item to enable retrieval (preferably computer ... of all folios referenced to that location

File Division	R05 - Surveys & Measurement	R10 - Drawings	R15 - Site Status	R20	ity Control	R25 - not used
Notes						
File No & Subject	100 Ground Investigation 200 Land Survey 210 Setting Out 220 Measurement Survey 300 Hydrographic Survey 310 Marine Charting 400 Aerial Survey 500 Measurements	100 Drawing Log 110 Drawing Transmittals 101 Bending Schedules 102 As-constructed Drawings	100 Site Diary 200 Photographs 300 Weather 400 Labour & Plant 500 On-Site Materials 600 Transport	005 010 020 030 100 110 200 300 310 320 400 410 420 500 510 600 610 620 700 710 720 730 740 750 760	Requests for nspections Laboratories Off-site inspections Temporary Works Soil tests Formation & Fill Piling Concrete Pre-stressing Reinforcement Sub-base material Road base Asphaltic Materials Movement Joints Bearings Steel Fabrication Welding Cables Pipes & Drainage Rock products Concrete Products Barriers Paint & coatings Mechanical Devices Electrical Devices	

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File Register (File Ref = Project Identifier/Contract/File Division/File No/Folio

Construction Group (Sheet 1 of 2)

Folio's in these File Divisions should be cross-referenced to the Method of Measurement Section to enable retrieval (preferably c... er-aided) of all folios referenced to that activity

File Division	C05 - Land	C10 - Geotechnical	C15 - Earthworks	C20... ne & Reclamation	C25 - Structures
Notes	*# means filed in sequential series ie 101.1...101.xx for each named location/entity yy*	*# means filed in sequential series ie 101.1...101.xx for each named location/entity yy*	*# means filed in sequential series ie 101.1...101.xx for each named location/entity yy*	*# n... ser... eac... yy* ...led in sequential ...01.1...101.xx for ...ed location/entity	*# means filed in sequential series ie 101.1...101.xx for each named location/entity yy*
File No & Subject	100 # Possession yy 200 # Works Areas yy 300 # Access yy 400 # Shared Access yy 500 # Accommodation Works yy	100 # Design yy 200 # Approvals yy 300 # Construction yy	100 # Design yy 150 Blasting 200 # Land Borrow Area yy 300 # Dumping yy 400 # Construction yy 400 Blasting 410 Blasting Permit 420 Explosives	100... 200... ...# Design yy ...# Marine Borrow Area yy 210... ...# Marine Dumping ...yy 300... ...# Dredging yy 400... ...# Seawall yy 500... ...# Reclamation yy	100 # Design 110 # Design Certification 200 # Construction

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File Register (File Ref = Project Identifier/Contract/File Division/File No/Folio

Construction Group (Sheet 2 of 2)

Folio's in these File Divisions should be cross-referenced to the Method of Measurement Section to enable retrieval (preferably c…er-aided) of all folios referenced to that activity

File Division	C30 - Roadworks	C35 - Railway	C40 - Tunnelling	C45	…ies	C50 - E&M
Notes	*# means filed in sequential series ie 101.1…101.xx for each named location/entity yy*	*# means filed in sequential series ie 101.1…101.xx for each named location/entity yy*	*# means filed in sequential series ie 101.1…101.xx for each named location/entity yy*	*# n… ser… eac… yy*	*…led in sequential …01.1…101.xx for …ed location/entity*	*# means filed in sequential series ie 101.1…101.xx for each named location/entity yy*
File No & Subject	100 # Design yy 200 # Construction yy 300 # Traffic Control yy 400 # Diversions yy 500 # Lighting yy 600 # Street Furniture yy	100 # Layout yy 110 # Design yy 120 # Design Approval yy 200 # Construction yy 300 MTRC 400 Railway Inspectorate	100 # Layout yy 110 # Design yy 120 # Design Approval yy 200 # Construction yy	100 120 200 300 400 500 600	…# Road Opening …Permits yy …# Reinstatements …yy …# Electricity yy …# Gas yy …# Water yy …# Telephone yy …# Fire Services yy	100 EMSD

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Annex 2

Correspondence (MAIL) Cross-Index

NB: Abbreviated form for computer purposes given in brackets

Engineer's Representative (ER)
- CRE XX
- SRE XX
- RE XX
- .....

Architect's Representative (ER)
- CRA XX
- SRA XX
- RA XX
- .....

Contractor (Contr)
- Contr XX
- Contr YY
- Contr....

Sub-contractors (SContr)
- SContr XX
- SContr YY
- SContr .....

Employer's Project Management Office (PMO)
- PMO XX
- PMO YY
- PMO ....

Consultant (ConS)
- ConS XX
- ConS YY
- ConS ...

Statutory Authorities (Govt)
- XXX
- YYY
- .....

Official Organisations & Representatives (OFFS)
- XXX
- YYY
- .....

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Annex 3

Location (LOC) Cross-Index

NB: Abbreviated form for computer purposes given in brackets

SITE (SITE)
- Site X
- Site Y
- Site ...

ACCESS (ACC)
- Access X
- Access Y
- Access .....

AREA (AREA)
- Area X
- Area Y
- Area .....

BORROW PIT (BORRO)
- Borrow Pit X
- Borrow Pit Y
- Borrow Pit .....

DUMP SITE (DUMP)
- Dump Site X
- Dump Site Y
- Dump Site .....

INTERFACE (INFAC)
- Interface X
- Interface Y
- Interface .....

MARINE BORROW AREA (C_BORO)
- Marine Borrow Area X
- Marine Borrow Area Y
- Marine Borrow Area .....

MARINE DUMP (C_DUMP)
- Marine Dump Location X
- Marine Dump Location Y
- Marine Dump .....

OFF-SITE LOCATION (OFF-LOC)
- Off-site Location X
- Off-site Location Y
- Off-site Location .....

RECLAMATION (RECLAM)
- Reclamation X
- Reclamation Y
- Reclamation .....

ROADWAY (ROAD)
- Roadway X
- Roadway Y
- Roadway .....

SEAWALL (CWALL)
- Seawall X
- Seawall Y
- Seawall .....

STRUCTURE (STRUCT)
- Structure X
- Structure Y
- Structure .....

TUNNEL (TUN)
- Tunnel X
- Tunnel Y
- Tunnel .....

RAILWAY (RAIL)
- Track X
- Track Y
- Track .....

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Annex 4

Work-Type (TYPE) Cross-Index

NB: Abbreviated form for computer purposes given in brackets

PRELIMINARIES (PRELIM)
TESTING (TEST)
GROUND INVESTIGATION (GI)
SITE CLEARANCE (CLEAR)
FENCING (FENC)
DRAINAGE & DUCTS (DRAIN)
PIPEWORK (PIPE)
EARTHWORKS (EARTH)
ROADS & PAVINGS (RD_WK)
PILING WORKS (PILE)
FORMWORK (FORM)
STEEL REINFORCEMENT (REINF)
CONCRETE (CONC)
IN-SITU POST-TENSIONED PRESTRESSING (STRESS)
STEELWORK (STEEL)
WATERPROOFING (PROOF)
BEARINGS & MOVEMENT JOINTS (ARTIC)
MARINE WORKS (MARIN)
TUNNELLING (TUNEL)
GEOTECHNICAL WORKS (GEO)
RAILWAY WORKS (RLY-WK)
SOLID WASTE DISPOSAL (SOL_DIS)
BRICKWORK & MASONRY (BRICK)
FINISHINGS (FIN)
LANDSCAPE WORKS (LANSCAP)

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APPENDIX 7.74 NOT USED

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APPENDIX 7.75 NOT USED

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APPENDIX 7.76 NOT USED

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APPENDIX 7.76A NOT USED

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APPENDIX 7.76B NOT USED

Go to Table of Content >>> Go to Table of Content >>> Go to Table of Content

APPENDIX 7.76C NOT USED

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APPENDIX 7.76D NOT USED

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APPENDIX 7.77 NOT USED

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APPENDIX 7.77A NOT USED

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APPENDIX 7.77B NOT USED

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APPENDIX 7.77C NOT USED

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APPENDIX 7.77D NOT USED

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APPENDIX 7.78 NOT USED

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APPENDIX 7.79 NOT USED

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APPENDIX 7.80 SAMPLE LETTER ON IMPLEMENTATION OF REVISED VARIATION ORDER THRESHOLD Amd No. 1/2025 UNDER ONGOING GCC CONTRACTS
(Ref.: SDEV's memo ref. ( ) in DEVB(W) 546/83/01 dated 20.9.2024)

From: The Government of the Hong Kong Special Administrative Region ("**Employer**")

To: [insert] ("**Contractor**")

Date:

Dear Sirs,

[Contract Title and Contract No.]

The Employer and the Contractor have entered into the above Contract ("**Contract**") on [date].

2. With effect from the date of this letter, the Employer and the Contractor ("**the parties**") agree the following amendment to the Contract:

(a) The figure of "$1,000,000" given in paragraph [*insert reference*] of the Appendix to Form of Tender [as amended by Supplementary Agreement No. [*insert reference*]][1] is replaced by "**$1,400,000**".

3. Except as amended by this letter, all the terms and conditions of the Contract [as amended by Supplementary Agreement Nos….][2] shall continue to be binding on the parties and shall remain in full force and effect.

4. Save as expressly provided herein, nothing in this letter shall give rise to any right or entitlement of the Contractor to claim any payment, compensation, relief, Cost or extension of time on the basis of or arising out of or in connection with this letter. The Employer's rights under the Contract shall not be prejudiced in any way by this letter.

IN WITNESS WHEREOF this letter has been executed as a deed[3] by the parties on the date first above written

[Note: Project offices should double-check the clause references in their particular case.]

[1] Insert as appropriate.
[2] To be incorporated where there is/are previous supplementary agreement(s).
[3] Both parties will have to execute the letter as a deed and the guidance on execution of public works contracts as a deed in DEVB TCW 7/2014 is applicable.

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APPENDIX 7.81 SAMPLE LETTER ON IMPLEMENTATION OF REVISED VARIATION ORDER THRESHOLD Amd No. 1/2025 **UNDER ONGOING NEC CONTRACTS**

(Ref.: SDEV's memo ref. ( ) in DEVB(W) 546/83/01 dated 20.9.2024)

From: The Government of the Hong Kong Special Administrative Region ("***Client***")

To: [insert] ("***Contractor***")

Date:

Dear Sirs,

[Contract Title and Contract No.]

The *Client* and the *Contractor* have entered into the above contract ("**this contract**") on [date].

2. With effect from the date of this letter, the *Client* and the *Contractor* ("**the Parties**") agree the following amendment to the Contract:

(a) The figure of "$1,000,000" given in Clauses [B1(3)][1] and [B1(4)][2] of the *additional conditions of contract* [as amended by Supplementary Agreement No. [*insert reference*]][3] is replaced by "**$1,400,000**".

3. Except as amended by this letter, all the terms and conditions of this contract [as amended by Supplementary Agreement Nos….][4] shall continue to be binding on the Parties and shall remain in full force and effect.

4. Save as expressly provided herein, nothing in this letter shall give rise to any right or entitlement of the *Contractor* to claim any payment, compensation, relief or changes to the Completion Date, Key Dates or the Prices on the basis of or arising out of or in connection with this letter. The *Client*'s rights under this contract shall not be prejudiced in any way by this letter.

IN WITNESS WHEREOF this letter has been executed as a deed[5] by the Parties the day and year first above written

[Note: Project offices should double-check the clause references in their particular case.]

[1] Amend as appropriate.
[2] Amend as appropriate.
[3] Insert as appropriate.
[4] To be incorporated where there is/are previous supplementary agreement(s).
[5] Both Parties will have to execute the letter as a deed and the guidance on execution of public works contracts as a deed in DEVB TCW 7/2014 is applicable.

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APPENDIX 7.82A STANDARD REQUEST FOR INSPECTION AND/OR SURVEY CHECK FORM (FOR GCC CONTRACTS)

(Ref.: SDEV's memo ref. () in DEVB(W) 510/70/03 dated 13.11.2020)

{Internal Notes: 1. Not applicable to ArchSD's contracts which would adopt in-house Request for Inspection Forms.
2. [ ]^ Project offices to choose the appropriate term.}

Contract No. _____ Request No. _____ Rev. _____#

To the [Engineer / Maintenance Engineer]^,

(1) Works to be inspected and/or surveyed:	Date & time for inspection and/or survey check:
(2) Location of works:	
(3) Works proposed after acceptance of (1):	
(4) Drawings, sketches, specifications, record forms for specific works (e.g. pile driving) enclosed:	
(5) Remarks (if this is a re-submission, rectification works carried out since last inspection and/or survey check shall be stated):	

Submitted on behalf of the Contractor:

Full name: _____ Signed: _____

Designation: _____ Date and time: _____

Received and filled by the [Engineer / Maintenance Engineer]^'s Representative:

Full name: _____ Signed: _____

Designation: _____ Date and time: _____

Inspection and/or survey check assigned to inspection and/or surveying officer with details below:

Full name: _____ Designation: _____

Received and filled in by the inspection and/or surveying officer:

Works outlined in (1) above [have / have not]* been inspected and/or surveyed [on _____ at _____]@. Permission to carry out the works proposed in (3) above is [given / not given]* for the following reason(s):

_____

Non-conformities recorded: _____

Recurrence of non-conformities: [Yes / No / NA]*

Rectification works required: _____

This in no way limits or alters the Contractor's obligations under the Contract. Form is returned to the Contractor at time stated below.

Full name: _____ Signed: _____

Designation: _____ Date and time: _____

Countersigned by the supervisor of the inspection and/or surveying officer. For critical items, hold points, witness points, interfacing works or works to be covered-up, countersigned by the resident engineer or above rank:

Full name: _____ Signed: _____

Designation: _____ Date and time: _____

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Received on behalf of the Contractor by:

Full name: _____ Signed: _____

Designation: _____ Date and time: _____

Remarks: [ ]# Insert one character from A to Z, for re-submission.
[ ]* Delete where inappropriate.
[ ]@ Fill in the date and time or delete if not inspected and/or surveyed.

c.c. with enclosures: interfacing parties (if applicable)

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APPENDIX 7.82B STANDARD REQUEST FOR INSPECTION AND/OR SURVEY CHECK FORM (FOR NEC CONTRACTS)

(Ref.: SDEV's memo ref. () in DEVB(W) 510/70/03 dated 13.11.2020)

{Internal Notes: 1. Not applicable to ArchSD's contracts which would adopt in-house Request for Inspection Forms.
2. [ ]^ Project offices to choose the appropriate term.}

Contract No. _____ Request No. _____ Rev. _____#

To the [*Supervisor* / *Service Manager*]^,

(1) [*works* / *service*]^ to be inspected and/or surveyed:	Date & time for inspection and/or survey check:
(2) Location of [*works* / *service*]^:	
(3) [*works* / *service*]^ proposed after acceptance of (1):	
(4) Drawings, sketches, specifications, record forms for specific [*works* / *service*]^ (e.g. pile driving) enclosed:	
(5) Remarks (if this is a re-submission, rectification works carried out since last inspection and/or survey check shall be stated):	

Submitted on behalf of the *Contractor*:

Full name: _____ Signed: _____

Designation: _____ Date and time: _____

Received and filled by the [*Supervisor*'s Representative / *Service Manager*'s Delegate]^:

Full name: _____ Signed: _____

Designation: _____ Date and time: _____

Inspection and/or survey check assigned to inspection and/or surveying officer with details below:

Full name: _____ Designation: _____

Received and filled in by the inspection and/or surveying officer:

[*works* / *service*]^ outlined in (1) above [have / have not]* been inspected and/or surveyed [on _____ at _____]@. Permission to carry out the [*works* / *service*]^ proposed in (3) above is [given / not given]* for the following reason(s):

_____

Non-conformities recorded: _____

Recurrence of non-conformities: [Yes / No / NA]*

Rectification works required: _____

This in no way limits or alters the *Contractor*'s obligations under the contract. Form is returned to the *Contractor* at time stated below.

Full name: _____ Signed: _____

Designation: _____ Date and time: _____

Countersigned by the supervisor of the inspection and/or surveying officer. For critical items, hold points, witness points, interfacing works or [*works* / *service*]^ to be covered-up, countersigned by the resident engineer or above rank:

Full name: _____ Signed: _____

Designation: _____ Date and time: _____

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Received on behalf of the *Contractor* by:

Full name: _____ Signed: _____

Designation: _____ Date and time: _____

Remarks: [ ]# Insert one character from A to Z, for re-submission.
[ ]* Delete where inappropriate.
[ ]@ Fill in the date and time or delete if not inspected and/or surveyed.

c.c. with enclosures: interfacing parties (if applicable)

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APPENDIX 7.83 SAMPLE LETTER ON IMPLEMENTATION OF MORE FREQUENT MILESTONE PAYMENT FOR NEC ECC HK EDITION CONTRACTS
(Ref.: SDEV's memo ref. ( ) in DEVBWB WP4S-021-004-002 dated 10.10.2024)

From: The Government of the Hong Kong Special Administrative Region ("***Client***")

To: [insert] ("***Contractor***")

Date:

Dear Sirs,

[Contract Title and Contract No.]

Supplementary Agreement No. [ ]
More Frequent Milestone Payment

The *Client* and the *Contractor* have entered into the above contract ("**the contract**") on [date]. Words and expressions defined in the contract shall, save as otherwise defined herein, have the same meaning in this supplementary agreement.

2. With a view to enhancing the cash flow of the *Contractor* under the contract, the *Client* is desirous of revising the [Schedule of Milestones / *activity schedule*][1] by inserting additional [milestones / activities][1] therein such that payments to the *Contractor* for the relevant works / activities can better follow the cost incurred in completing the relevant works / activities.

3. As Subcontractors are also facing similar cash flow problem, the *Contractor* is required to make timely payments under the subcontracts to its relevant Subcontractors as appropriate upon receipt of [milestone payment / payment][1] from the *Client* to ease the cash flow of the Subcontractors. When necessary, the *Contractor* will be requested to provide records to demonstrate its compliance with such requirement. In case the *Contractor* fails to make timely payments to its relevant Subcontractors, the *Project Manager* will exercise its power under this supplementary agreement to cease certifying payment to the *Contractor* using the revised [Schedule of Milestones / Activity Schedule][1]. In such cases, the *Project Manager* certifies payment for the relevant remaining works / activities under the contract using the original [Schedule of Milestones / *activity schedule*][1]. Besides, the performance of the *Contractor* in this regard will be duly reflected in the Contractor's Performance Report(s).

4. With effect from the date of this letter, the *Client* and the *Contractor* ("**the Parties**") agree to incorporate the following amendments to the contract:

(a) The [Schedule of Milestones / *activity schedule*][1] of the contract is replaced by the [Schedule of Milestones / Activity Schedule][1] (Revision No. 1) as attached in [Appendix 1][2] hereto. The *Project Manager* certifies payment to

[1] To be deleted or amended by project offices as appropriate to suit the needs of their contracts.
[2] [Schedule of Milestones / Activity Schedule][1] (Revision No. 1), incorporating the additional [milestones / activities][1], shall be prepared by individual project office to suit its need.

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the *Contractor* for the works / activities under the contract in accordance with the [Schedule of Milestones / Activity Schedule][1] (Revision No. 1).

(b) If in the opinion of the *Project Manager* the *Contractor* fails to make timely payment under a subcontract to the relevant Subcontractor upon receipt of [milestone payment / payment][1] from the *Client*, the *Project Manager* has the full power to cease certifying payment to the *Contractor* for the relevant works / activities under the contract in accordance with the [Schedule of Milestones / Activity Schedule][1] (Revision No. 1). In such cases, the *Project Manager* certifies payment for the relevant remaining works / activities under the contract in accordance with the [Schedule of Milestones / *activity schedule*][1] as at the Contract Date.

5. Except as amended by this letter, all the terms and conditions of the contract [as amended by Supplementary Agreement Nos…. dated …][3] shall continue to be binding on the Parties and shall remain in full force and effect.

6. Save as expressly provided herein, nothing in this letter shall give rise to any right or entitlement of the *Contractor* to claim any payment, compensation, relief or changes to the Completion Date, Key Dates or the Prices on the basis of or arising out of or in connection with this letter. The *Client*'s rights under the contract shall not be prejudiced in any way by this letter.

IN WITNESS WHEREOF this letter has been executed as a deed[4] by the Parties the day and year first above written.

[Please adopt appropriate execution clauses.]

[3] To be incorporated where there is/are previous supplementary agreement(s).

[4] Both Parties will have to execute the letter as a deed and the guidance on execution of public works contracts as a deed in DEVB TC(W) No. 7/2014 is applicable.

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APPENDIX 7.84 SAMPLE LETTER ON IMPLEMENTATION OF MORE FREQUENT MILESTON PAYMENT FOR NEC4 ECC CONTRACTS
(Ref.: SDEV's memo ref. ( ) in DEVBWB WP4S-021-004-002 dated 10.10.2024)

From: The Government of the Hong Kong Special Administrative Region ("***Client***")

To: [insert] ("***Contractor***")

Date:

Dear Sirs,

[Contract Title and Contract No.]

Supplementary Agreement No. [ ]
More Frequent Milestone Payment

The *Client* and the *Contractor* have entered into the above contract ("**the contract**") on [date]. Words and expressions defined in the contract shall, save as otherwise defined herein, have the same meaning in this supplementary agreement.

2. With a view to enhancing the cash flow of the *Contractor* under the contract, the *Client* is desirous of revising the [Schedule of Milestones / *activity schedule*][1] by inserting additional [milestones / activities][1] therein such that payments to the *Contractor* for the relevant works / activities can better follow the cost incurred in completing the relevant works / activities.

3. As Subcontractors are also facing similar cash flow problem, the *Contractor* is required to make timely payments under the subcontracts to its relevant Subcontractors as appropriate upon receipt of [milestone payment / payment][1] from the *Client* to ease the cash flow of the Subcontractors. When necessary, the *Contractor* will be requested to provide records to demonstrate its compliance with such requirement. In case the *Contractor* fails to make timely payments to its relevant Subcontractors, the *Project Manager* will exercise its power under this supplementary agreement to cease certifying payment to the *Contractor* using the revised [Schedule of Milestones / Activity Schedule][1]. In such cases, the *Project Manager* certifies payment for the relevant remaining works / activities under the contract using the original [Schedule of Milestones / *activity schedule*][1]. Besides, the performance of the *Contractor* in this regard will be duly reflected in the Contractor's Performance Report(s).

4. With effect from the date of this letter, the *Client* and the *Contractor* ("**the Parties**") agree to incorporate the following amendments to the contract:

(a) The [Schedule of Milestones / *activity schedule*][1] of the contract is replaced by the [Schedule of Milestones / Activity Schedule][1] (Revision No. 1) as attached in [Appendix 1][2] hereto. The *Project Manager* certifies payment to the *Contractor* for the works / activities under the contract in accordance

[1] To be deleted or amended by project offices as appropriate to suit the needs of their contracts.
[2] [Schedule of Milestones / Activity Schedule][1] (Revision No. 1), incorporating the additional [milestones / activities][1], shall be prepared by individual project office to suit its need.

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with the [Schedule of Milestones / Activity Schedule][1] (Revision No. 1).

(b) If in the opinion of the *Project Manager* the *Contractor* fails to make timely payment under a subcontract to the relevant Subcontractor upon receipt of [milestone payment / payment][1] from the *Client*, the *Project Manager* has the full power to cease certifying payment to the *Contractor* for the relevant works / activities under the contract in accordance with the [Schedule of Milestones / Activity Schedule][1] (Revision No. 1). In such cases, the *Project Manager* certifies payment for the relevant remaining works / activities under the contract in accordance with the [Schedule of Milestones / *activity schedule*][1] as at the Contract Date.

5. Except as amended by this letter, all the terms and conditions of the contract [as amended by Supplementary Agreement Nos…. dated …][3] shall continue to be binding on the Parties and shall remain in full force and effect.

6. Save as expressly provided herein, nothing in this letter shall give rise to any right or entitlement of the *Contractor* to claim any payment, compensation, relief or changes to the Completion Date, Key Dates or the Prices on the basis of or arising out of or in connection with this letter. The *Client*'s rights under the contract shall not be prejudiced in any way by this letter.

IN WITNESS WHEREOF this letter has been executed as a deed[4] by the Parties the day and year first above written.

[Please adopt appropriate execution clauses.]

[3] To be incorporated where there is/are previous supplementary agreement(s).

[4] Both Parties will have to execute the letter as a deed and the guidance on execution of public works contracts as a deed in DEVB TC(W) No. 7/2014 is applicable.

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APPENDIX 7.85 SAMPLE LETTER ON IMPLEMENTATION OF MORE FREQUENT MILESTON PAYMENT FOR GCC CONTRACTS

(Ref.: SDEV's memo ref. ( ) in DEVBWB WP4S-021-004-002 dated 10.10.2024)

From: The Government of the Hong Kong Special Administrative Region ("**Employer**")

To: [insert] ("**Contractor**")

Date:

Dear Sirs,

[Contract Title and Contract No.]

Supplementary Agreement No. [ ]
More Frequent Milestone Payment

The Employer and the Contractor have entered into the above Contract ("**Contract**") on [date]. Words and expressions defined in the Contract shall, save as otherwise defined herein, have the same meaning in this supplementary agreement.

2. With a view to enhancing the cash flow of the Contractor under the Contract, the Employer is desirous of revising the [Schedule of Milestones] [1] by inserting additional [milestones][1] therein such that payments to the Contractor for the relevant works can better follow the cost incurred in completing the relevant works.

3. As Subcontractors are also facing similar cash flow problem, the Contractor is required to make timely payments under the subcontracts to his relevant Subcontractors as appropriate upon receipt of [milestone payment / payment][1] from the Employer to ease the cash flow of the Subcontractors. When necessary, the Contractor will be requested to provide records to demonstrate his compliance with such requirement. In case the Contractor fails to make timely payments to his relevant Subcontractors, the [Engineer/Surveyor][2] will exercise his power under this supplementary agreement to cease certifying payment to the Contractor using the revised [Schedule of Milestones][1]. In such cases, the [Engineer/Surveyor][2] certifies payment for the relevant remaining works under the contract using the original [Schedule of Milestones][1]. Besides, the performance of the Contractor in this regard will be duly reflected in the Contractor's Performance Report(s).

4. With effect from the date of this letter, the Employer and the Contractor ("**the Parties**") agree to incorporate the following amendments to the Contract:

(a) The [Schedule of Milestones][1] of the Contract is replaced by the [Schedule of Milestones][1] (Revision No. 1) as attached in [Appendix 1][3] hereto. The [Engineer/Surveyor][2] certifies payment to the Contractor for the works

[1] To be amended by project offices as appropriate to suit the needs of their contracts.
[2] To be deleted as appropriate.
[3] [Schedule of Milestones][1] (Revision No. 1), incorporating the additional [milestones][1], shall be prepared by individual project office to suit its need.

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under the Contract in accordance with the [Schedule of Milestones][1] (Revision No. 1).

(b) If in the opinion of the [Engineer/Surveyor][2] the Contractor fails to make timely payment under a subcontract to the relevant Subcontractor upon receipt of [milestone payment / payment][1] from the Employer, the [Engineer/Surveyor][2] has the full power to cease certifying payment to the Contractor for the relevant works under the Contract in accordance with the [Schedule of Milestones][1] (Revision No. 1). In such cases, the [Engineer/Surveyor][2] certifies payment for the relevant remaining works under the Contract in accordance with the [Schedule of Milestones][1] as at the commencement date of the Contract.

5. Except as amended by this letter, all the terms and conditions of the Contract [as amended by Supplementary Agreement Nos….][4] shall continue to be binding on the parties and shall remain in full force and effect.

6. Save as expressly provided herein, nothing in this letter shall give rise to any right or entitlement of the Contractor to claim any payment, compensation, relief, Cost or extension of time on the basis of or arising out of or in connection with this letter. The Employer's rights under the Contract shall not be prejudiced in any way by this letter.

IN WITNESS WHEREOF this letter has been executed as a deed[5] by the parties the day and year first above written

[Please adopt appropriate execution clauses.]

[4] To be incorporated where there is/are previous supplementary agreement(s).
[5] Both parties will have to execute the letter as a deed and the guidance on execution of public works contracts as a deed in DEVB TC(W) 7/2014 is applicable.

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CHAPTER 8

TERM CONTRACT WORKS

The parts of the PAH shown in blue and bold should only be updated by Works Branch of Development Bureau.

Rev	Issue Date	Amendment Incorporated
First Issue	December 2024	NA
1	17 March 2025	Amd No. 1/2025

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SYNOPSIS

This Chapter provides information on the recurrent votes and non-recurrent block votes to be used for works carried out under term contracts.

This Chapter also describes the administrative procedures and funding arrangements for works for and by others, damage to Government property by private parties, and works executed under term contracts.

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I. ABBREVIATION

I.01 The meaning of the abbreviations assigned in this Chapter of the Project Administration Handbook for Civil Engineering Works shall only apply to this Chapter.

I.02 The following list shows the meaning of the abbreviations for the common terms used in this Chapter of the Project Administration Handbook for Civil Engineering Works:

Abbreviation	Term
CEDD	Civil Engineering and Development Department
CSSM	Construction Site Safety Manual
CTO	Chief Technical Officer
CWRF	Capital Works Reserve Fund
DSD	Drainage Services Department
DEVB	Development Bureau
DEVB TCW No.	DEVB Technical Circular (Works) No.
ER	Engineer's Representative
ETWB	Environment, Transport and Works Bureau
ETWB TCW No.	ETWB Technical Circular (Works) No.
FC No.	Financial Circular No.
FS	Financial Secretary
FSTB	Financial Services and the Treasury Bureau
GCC	General Conditions of Contract for Term Contracts for Civil Engineering Works, 2002 Edition
HA	Housing Authority
HOS	Home Ownership Scheme
HyD	Highways Department
IOW	Inspector of Works
IP	Interim Payment
MTRCL	Mass Transit Railway Corporation Limited
PAH	Project Administration Handbook for Civil Engineering Works
PE	Project Engineer
PFSS	Pay for Safety Scheme
PFSES	Pay for Safety and Environment Scheme
PLA	People's Liberation Army
PWDTC No.	Public Works Departmental Technical Circular No.
PWP	Public Works Programme
S for Tsy	Secretary for the Treasury
SDEV	Secretary for Development
SETW	Secretary for the Environment, Transport and Works

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Abbreviation	Term
SFST	Secretary for Financial Services and the Treasury
SPRs	Stores and Procurement Regulations
WBTC No.	Works Branch Technical Circular No. or Works Bureau Technical Circular No.
W.E.A	Works Expenditure Authorization
WO	Works Order
WSD	Water Supplies Department

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II. GLOSSARY OF TERMS

II.01 Words and expressions to which meanings are assigned in this Chapter of the PAH shall only apply to this Chapter.

II.02 In this Chapter of the PAH the following words and expressions shall have the meaning hereby assigned to them except when the context otherwise requires:

"Government" means the Government of the Hong Kong Special Administrative Region.

"project office" means the office responsible for the planning, design and construction of the project.
(Where these functions are performed by different offices at different stages, the project office shall mean the office responsible at each particular stage.)

"Contract", "Contractor", "Drawings", "Employer", "Engineer", "Engineer's Representative", "Schedule of Rates", "Site", "Works" and "Works Order" are as defined in the General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition).

II.03 Words importing the singular only also include the plural and vice versa where the context requires.

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1. RECURRENT VOTES

1.1 SUBHEADS AND ITEMS

Funds for maintenance and minor improvement works are provided annually under the following Subheads and Items:

CEDD

(a) Subhead 121, Item 702 - Emergency repairs

(b) Subhead 121, Item 704 - Maintenance of seawalls, piers

(c) Subhead 121, Item 705 - Dredging at drainage outfalls

(d) Subhead 121, Item 706 - Maintenance of public filling facilities

(e) Subhead 121, Item 719 - Other contract maintenance

HyD

(a) Subhead 273, Item 932 - Highways Maintenance - roads

(b) Subhead 273, Item 933 - Highways Maintenance - public lighting

DSD

(a) Subhead 121, Item 692 - Plant, furniture and equipment

(b) Subhead 121, Item 693 - Sewers and drains

(c) Subhead 121, Item 719 - Other contract maintenance

WSD

(a) Subhead 119, Item 643 - Meters, hydrants and standpipes

(b) Subhead 120, Item 670 - Buildings

(c) Subhead 120, Item 672 - Plant, furniture and equipment

(d) Subhead 120, Item 676 - Reservoirs and water mains

(e) Subhead 120, Item 689 - Other maintenance materials

(f) Subhead 121, Item 690 - Buildings - Contract

(g) Subhead 121, Item 696 - Reservoir and water mains - Contract

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(h) Subhead 121, Item 702 - Emergency repairs - Contract

(i) Subhead 121, Item 719 - Other contract maintenance

Details of these Subheads and Items can be found in the annual Estimates, Volume IA (General Revenue Account). Besides those mentioned above, funds for maintenance works can also be indirectly provided in the form of works executed on private account.

It should be noted that minor improvement works may be carried out, and funded by recurrent votes, at the same time as maintenance works, provided that the minor improvement works must be incidental to the maintenance works or must not form a major portion of the works described by the WO (see S for Tsy's memo, ref. (12) in FIN 111/2/1 III dated 15.6.1994). The Head of department has the authority to stipulate administrative limits concerning the allowable proportion of minor improvement works in a maintenance WO.

If a project is for minor improvement works only, the expenditure should be charged to the CWRF.

1.2 EMERGENCY REPAIRS

For CEDD, the cost of repairing major typhoon and rainstorm damage should be charged to Subhead 121, Item 702 - Emergency repairs.

For WSD, the cost of repairing major typhoon and rainstorm damage should be charged to Subhead 121, Item 702 - Emergency Repairs - Contract and appropriate maintenance votes as set out in WSD Departmental Instructions.

For DSD, the cost of repairing major typhoon and rainstorm damage should be charged to Subhead 121, Item 693 - Sewers and drains.

For HyD, the cost of repairing major typhoon and rainstorm damage should be charged to the following votes as appropriate:

(a) Subhead 273 Item 932 Sub-item 702 - Road maintenance, Emergency works

(b) CWRF Subhead 6100TX - Highway works, studies and investigations for items selected in Category D of the PWP

(c) CWRF Subhead 5001BX - Landslip preventive measures

Emergency repairs should be authorized by the appropriate officer according to the financial limit set for the employment of maintenance contractor to carry out maintenance or new works (see Paragraph 5.2).

The cost of repairing road surfaces, minor storm damage and damage caused by seasonal weather should be charged to the appropriate maintenance vote, i.e. appropriate item under Subhead 121 or Subhead 273, and not to the items for emergency repairs mentioned in this Paragraph.

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1.3 WORKS EXECUTED ON PRIVATE ACCOUNT

Works may be executed on private account in situations such as the construction of run-ins, drainage connections and reinstatement of footpath for private developers, reinstatement of pavements for utility undertakings, the provision of water supply connection, or the diversion of water mains under Special Conditions of a land lease.

Departmental overhead charges should be added to the cost of works executed on private account. Different rates are charged for different circumstances (see Paragraph 3.3).

A demand note for the total estimated cost, including the departmental overhead charges, should first be sent to the private party involved. The works should commence after the demand note has been paid (see also Paragraph 3.2). The works are directly funded by the payment of the demand note through a series of accounting procedures dealt with by the departmental accounts division/section and the departmental overhead charges will go to the Government's general revenue. If the amount stated in the demand note is insufficient to cover the actual cost plus the departmental overhead charges, a supplementary demand note should be issued. On the other hand, if there is surplus, it should be refunded to the private party involved.

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2. NON-RECURRENT BLOCK VOTES

Works executed under term contracts as defined in paragraph 5.1 may be funded from the following block allocation Subheads under the appropriate Heads in the CWRF if the works fall within the ambit of the block allocations and the conditions set in Paragraph 5.3.2 are met.

CEDD

Subhead 5101CX - Civil engineering works, studies and investigations for items in Category D of the PWP

Subhead 5001BX - Landslip preventive measures

Subhead 7100CX - New town and urban area works, studies and investigations for items in Category D of the PWP

DSD

Subhead 4100DX - Drainage works, studies and investigations for items in Category D of the PWP

HyD

Subhead 6100TX - Highway works, studies and investigations for items in Category D of the PWP

WSD

Subhead 9100WX - Waterworks, studies and investigations for items in Category D of the PWP

The use of funds, the ambit, financial limits and authority for approval in respect of the above CWRF block allocation Subheads are not common to all departments. Officers must refer to FC No. 3/2011, their individual department's internal instruction/guide and the annual Estimates, Volume II (Fund Accounts) in managing the above CWRF block allocation Subheads.

The SFST's memo ref. (83) in LM to FP 25/2002 dated 9.6.2010 promulgates the guiding principles for accounting treatment for liquidated damages and payments relating to claims settlement received from contractors under contracts funded by the CWRF project votes for final settlement of contract accounts. Depending on whether there is additional cost due to the contractor's delay in completing the works and faults resulting in claims has been incurred and charged to project votes, such liquidated damages and settlement payments should be credited to the project vote or the "Other Receipts –Others" vote of the CWRF accordingly.

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3. WORKS FOR AND BY OTHERS

3.1 WORKS FOR OTHER DEPARTMENTS AND OFFICES

Requests are often made by other Departments and Offices for works to be carried out and charged to votes controlled by them. If sufficient resources are available to do the work, the works division will prepare a cost estimate and ask for the necessary funds from the Department or Office requesting the works. If the source of funds is from recurrent votes, an allocation warrant, or a W.E.A. in case of works for other divisions within the same department, should be issued to the works department/division. If the source of funds is from non-recurrent votes, a letter of intent and an allocation warrant, or a W.E.A. in case of works for other divisions within the same department, should be issued to the works department/division. The letter of intent will cover the total estimated cost of the works, whilst the allocation warrant only covers the money required in one particular financial year. A W.E.A. is in effect a means of virement of funds within the same department and it covers the total/remaining estimated cost of works.

If works are carried out for other departments/offices/divisions as extra or additional works under a current contract, the requirements of the following paragraphs should be followed whenever applicable.

3.2 PRIVATE WORKS

Certain works for private parties, such as the provision of utility ducts in structures, the construction of vehicular access, the execution of trench works for utility companies, etc, may be included in Government contracts and carried out on private account.

The approval of the SFST has to be obtained if the private works form a substantial part of the contract or if the physical element of the private works would have significant political/financial implication. If in doubt, advice from the SFST may be sought.

When private works form part of a contract, the cost of preliminary and general items, the adjustment sum and contract price fluctuation should be apportioned according to the relative estimated costs of the works involved and the appropriate amount charged to the private works.

Departmental overhead charges should be added to the cost of the private works.

An estimate of the cost of the private works plus departmental overhead charges should be submitted for agreement to the organization requiring them (Authorized Person requesting drainage connection is an exception), followed by a demand note for the estimated amount (see also Paragraph 1.3). Demand notes should carry the following endorsement

> "Government will use its best endeavour to carry out the work in accordance with the estimated cost, but reserves the right to charge additional amounts to cover any material supplied and work necessarily undertaken for which no allowance is made in the estimate".

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Except for working for the following private parties or emergency works carried out by Government with a view to subsequent recovery of the cost from a private party, private works must not be started until the demand note has been paid :

MTRCL,

Public utilities companies,

Foreign consulates,

Tenants of Government quarters, and

Local Government officers co-operative building societies.

Private works may occasionally be carried out by direct labour in some departments. Charges should then be made at the rates laid down in accounting circulars issued from time to time by the department headquarters on "Direct labour charges - Private Works Account". For works carried out by direct labour or the term contractors of WSD, the detailed procedure for working out the cost to be recovered is set out in WSD Departmental Instructions.

Private works should normally be included in WO or the contract documents for the project of which they form part. They may, however, be carried out as extra or additional works under a current contract by variation, provided that:

(a) The appropriate Chief Engineer approves the inclusion of private works estimated to cost less than 2½% of the tendered sum,

(b) The appropriate D2 rank Officer approves the inclusion of private works estimated to cost between 2½% and 5% of the tendered sum,

(c) The private works are within the Site of the Works as defined in the contract,

(d) The rates for the private works have been agreed by the contractor, and,

(e) The rates are reasonable compared with the maintenance contract rates.

3.3 DEPARTMENTAL OVERHEAD CHARGES FOR PRIVATE WORKS

Departmental overhead charges should normally be made on private works, including those for the Armed Services, at the standard rate of 20% for a job with an estimated value below $500,000 as stipulated in the Financial & Accounting Regulation 440. However, the rate may vary depending on the private parties involved. A list of standard rates for some common situations are given below:

(a)	Tramway shelters	nil
(b)	Bus shelters and queue rails	10%
(c)	Works under the Buildings Ordinance	statutory rate

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(d)	Works under the Waterworks Regulation (see Paragraph 1.3)	statutory rate
(e)	Works for HA	adopt the same arrangement as applicable to MTRCL
(f)	Works for MTRCL	16.5%

According to the Financial & Accounting Regulation 440, for a job with an estimated value of $500,000 or above, departments must conduct an individual costing to arrive at the appropriate overhead charge. The estimated value of a job should be either based on contractor's quotation if the works are contracted out or cost estimation if carried out in-house.

In certain circumstances where the works have not been requested but have been carried out by Government with a view to subsequent recovery of the cost from a private party, the imposition of a fixed percentage charge is inappropriate. FC No. 12/98 stipulates that in such cases it is necessary for supervision and administration costs to be compiled accurately so that Government's full claim for damages can be substantiated. Detailed accounting instructions which are set out in GF 348 should be followed. Advice can be sought from the departmental Senior Treasury Accountant regarding the updated details. It should be noted that in such cases the works will be funded by the appropriate maintenance vote and the money paid by the private party concerned will all go to the Government's general revenue.

For Government services provided to trading funds (TFs), see FC No. 3/2013 for details. As stipulated in paragraphs 6 and 7 of FC No. 3/2013, if the services provided to TFs are also available to the general public, such services should be charged at the public rates. All departments which provide services to TFs should send demand notes to the TFs concerned and credit the revenue to the relevant revenue Head.

3.4 WORKS IN NAVAL, MILITARY AND AIR FORCE ESTABLISHMENTS

Responsibility for works in defence establishments rests with the PLA Garrison in the Hong Kong Special Administrative Region.

The only exception is regarding works for WSD water mains within defence establishments, which is normally the responsibility of the WSD. WSD will liaise with the PLA Garrison for carrying out emergency/planned maintenance works to the WSD water mains if required, and will exercise financial control over all such works.

3.5 WORKS FOR GOVERNMENT BY PRIVATE PARTIES

Occasions arise when Government's obligations can most conveniently be met by including them in works being carried out by private parties. For instance, accommodation works in respect of road widening could conveniently be carried out in conjunction with private development. The approval by SFST is required and the following conditions are applicable:

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(a) Design

(i) Responsibility for designing and detailing the works should be defined and the fees agreed with the private party. If the fees exceed the standard architects or consulting engineers rates, the approval of both the relevant Head of Department and the SFST must be obtained.

(ii) Working drawings should be approved by the Region/Division responsible for the works before tenders are invited. Amendment after invitation of tender should also be agreed with the Region/Division concerned.

(b) Tender procedure

(i) The contract documents should be approved by the Region/Division responsible for the works before tenders are invited. The Conditions of Contract should be modelled on the latest Government edition and the specification should be written so that works of acceptable departmental standard can be obtained. The contract should include provision for properly indemnifying the private party against Third Party risks and Workmen's compensation claims, so that there is no likelihood of any claim being made against Government.

(ii) When a project is entrusted to a non-Government organization, formal approval of the tender action by FSTB is not necessary, see the then S for Tsy's memo, ref. (54) in FT 111/2 dated 12.5.1993. However, department concerned should seek approval for entrustment from FSTB in advance and advise the entrusted party regarding the tendering procedure in order to safeguard the Government's interest. Reference should be made to the guidelines laid down in the SPRs. It is the responsibility of the department concerned to approve the tendering method used for the captioned project and to ensure the value for money of the entrusted works.

(iii) Certified true copies of the contract have to be provided by the private party and lodged with the Director of Audit and the Head of Department concerned.

(iv) Compliance with all the foregoing conditions may not be possible where the Government works form only a small part of the overall scheme. In such cases, SFST's advice has to be sought on all agreements binding Government and the private party.

(c) Contract supervision

Arrangement for the proper supervision of the works must be made, and the expense of such supervision must be properly apportioned between Government and the private party. If the arrangements, particularly the salaries of site staff, differ from the normal Resident Staff Agreement or from Government salary scales, the approval of the relevant Head of Department

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and the SFST must be obtained.

(d) Control of funds

(i) An estimate of the cost of the Government works must be provided by the private party and approved by Government before tenders are invited. Before signing a contract committing Government to meeting the cost of any works, the private party would request confirmation from the relevant Department that funds are available and authority for the works has been given.

(ii) Approval must be obtained from Government beforehand for any variation which will cause the cost of the Government works to exceed the approved estimate.

(e) Form of agreement

An agreement with a private party on entrustment of works may be in the form of exchange of correspondence or a formal entrustment agreement. For costly or complex works, a formal entrustment agreement shall be used. Formal entrustment agreements shall be vetted by Legal Advisory Division of the DEVB before their execution.

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4. DAMAGE TO GOVERNMENT PROPERTY BY PRIVATE PARTIES

4.1 REPAIR COST FROM MAINTENANCE VOTE

The cost of repairing any damage to Government property should be chargeable to the appropriate recurrent maintenance vote.

4.2 RECOVERY OF REPAIR COSTS

If the person responsible for causing the damage is known, for instance in the case of a traffic accident, an attempt should be made to recover the cost of repairing the damage by issuing a demand note (see also Paragraphs 1.3 & 3.2).

Standardised procedures for recovery of repair costs and departmental charges, and writing-off of irrecoverable costs are established in each department. Reference should be made to each individual department's internal guidelines/instructions, or advice can be sought from the departmental Accounts Division/Section.

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5. TERM CONTRACTS

5.1 GENERAL

(Ref.: SDEV's memo ref. () in DEVB(W) 510/33/02 dated 8.8.2022, SDEV's memo ref. () in DEVB(W) 546/83/01 dated 11.11.2020, SDEV's memos ref. () in DEVB(W) 546/84/01 dated 25.2.2021, 9.7.2021, 18.8.2023 and 10.11.2023, SDEV's memos ref.: () in DEVB(W) 506/30/07 dated 8.7.2022 and 19.7.2022 and SDEV's memo ref.: () in DEVB(W) 510/30/01 dated 31.8.2022)

Maintenance works, minor works, supply of materials and new works as ordered by departments concerned from time to time to suit the site conditions and implementation programme, etc. are normally awarded in the form of term contract. During the contract period, the term contractor carries out works and provides services as instructed in WO.

According to Sub-section 7.3 of Contractor Management Handbook, the value of a term contract, for the purpose of deciding which group of contractors should be invited to tender, should mean the total estimated expenditure under the contract. For details on eligibility to tender, see Sub-sections 2.2, 2.5 and Section 7 of Contractor Management Handbook.

To support small and medium-sized contractors (SME contractors) in participating in public works projects, SDEV's memo ref. DEVB(W) 510/33/02 dated 8.8.2022 promulgates the following interim measures for broadening the span of groups of contractors to be invited to tender, which is applicable to the term contracts for which the tenders are to be invited on or after 2 October 2020:

(a) Inviting lower group contractors to submit tenders for a higher group of contracts with pre-tender estimate marginally exceeding the tender limit set for the lower group contractors, unless otherwise with the consent from DEVB;

(b) Splitting specialist works from the main works and inviting separate contract(s) for such specialist works where possible with due regard to project-specific technical requirements.

The interim measures will be implemented until further notice. In determining the packaging of contracts, departments should avoid unnecessary bundling of works so as not to deprive tender opportunities of SME contractors, leading to disturbance of market distribution and hindrance to their upward mobility. Departments should also avoid preparing pre-tender estimates (PTEs) in a conservative manner which may jack up the PTEs. Details of the measures, including the associated tender provisions, are given in the revised guide at Annex of the memo dated 8.8.2022. The revised guide shall apply to contracts with tenders to be invited on or after 29 August 2022.

According to SFST's memo ref. (54) in FT 113/149 dated 5.8.2009 and SDEV's memo ref. DEVB(W) 546/70/01 dated 7.8.2009, Controlling Officers have the authority to invite tenders for a new term of an existing term contract and new types of term contracts under SPRs. There is no need for the departments to seek the agreement of FSTB for such purposes, regardless of whether there will be significant financial implication in the change of arrangements for the new term.

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The standard set of Conditions of Tenders as promulgated by DEVB can be found at DEVB's website. There is no standard set of Form of Tender and Special Conditions of Contract which may be used for term contracts in all Works Groups of departments. Since failure to provide certain information in the Form of Tender does not necessarily render a tender invalid and it depends on the nature of information that is found missing, SDEV's memo ref. DEVB(W) 546/83/01 dated 11.11.2020 promulgates updates to Form of Tender and GCT 4(1)(a)(i) for term contracts. The Form of Tender included at Appendix 8.3A (for GCC form) and Appendix 8.3B (for NEC form) serves as an example for reference only. GCT 4(1)(a)(i) is amended as "(i) The Form of Tender in hard copy format duly signed". The updated Form of Tender as well as the revised GCT 4(1)(a)(i) shall be adopted for tenders to be invited on or after 1 December 2020.

To promote wider adoption of NEC form in works contracts of different scales, SDEV's memo ref. DEVB(W) 506/30/07 dated 19.7.2022 introduced the following requirements:

(i) For capital works contracts of values above the threshold for engaging Group C contractors under the List of Approved Contractors for Public Works[1], procuring departments shall adopt NEC form unless there are strong justifications with prior endorsement obtained from DEVB for not doing so; and

(ii) For works contracts other than those covered by (i) above, procuring departments shall adopt NEC form as far as practicable. The decision and justifications for not doing so shall be endorsed by an officer at D2 rank or above in the procuring department.

The above revised requirements shall be applicable to works contracts of values above the Quotation Limit for which tenders are to be invited on or after 15 August 2022 except for those where the adoption of NEC form or otherwise has been endorsed prior to the date of 19.7.2022.

To facilitate migration from NEC3 Term Service Contract (TSC) to NEC4 TSC, DEVB has uploaded the sample templates of tender and contract documents for NEC4 TSC in DEVB's website. SDEV's memo ref. DEVB(W) 506/30/07 dated 8.7.2022 has mandated the use of NEC4 TSC in public works term contracts as follows:

(i) For term contracts adopting NEC TSC form where tenders are to be invited on or after 1 October 2022, project offices shall adopt NEC4 version unless there are justifications for not doing so, which shall be endorsed by an officer at D2 rank or above with the justifications documented; and

(ii) For term contracts adopting NEC TSC form to be invited on or after 1 January 2023, the use of NEC4 version is mandatory.

[1] For the avoidance of doubt, this requirement is also applicable to capital works contracts engaging specialist contractors under the List of Approved Suppliers of Materials and Specialist Contractors for Public Works, and the threshold for applying this requirement to such works contracts is the Group Tender Limit for engaging Group C contractors under the List of Approved Contractors for Public Works.

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According to WBTC No. 15/99B – Improvement to Quality of Maintenance Works, to prevent throat-cutting bidding by poorly performing contractors, departments should consider the need to adopt Stage I Screening in conjunction with the Marking Scheme tender evaluation method promulgated under DEVB TCW No. 4/2014 to ensure that the contract is awarded to technically competent contractors with good performance track records. In particular, the Standard Marking Scheme under DEVB TCW No. 4/2014 is revised with a view to enhancing competition on the technical quality of tenders, particularly on safety, innovation and creativity, productivity and constructability. DEVB TCW No. 4/2014A further enhances competition on the technical quality of tenders by setting out "training rating" in the evaluation of tenders for Group C contractors. Pursuant to SDEV's memo ref. () in DEVB(W) 546/84/01 dated 25.02.2021, an additional option of 50/50 for the "price to technical weighting" to the Standard Marking Scheme is introduced for the evaluation of works tenders, which do not involve prequalification of tenderers. SDEV's memo ref. () in DEVB(W) 546/84/01 dated 9.7.2021 promulgated the amendments to the tender evaluation methods for works contracts in respect of the attributes for assessing tenderer's past performance. Pursuant to SDEV's memo ref. () in DEVB(W) 546/84/01 dated 18.8.2023, a new attribute "bonus for joint venture with listed contractor in lower group or with probationary status" applicable to tender invitation from Group C Contractors only is included in Section (3) of the Stage II Marking of the Standard Marking Scheme and more weighting is allocated to the safety and innovation related attributes in tender assessment. SDEV's memo ref. () in DEVB(W) 546/84/01 dated 10.11.2023 introduced a "merit / demerit point for safety" in the evaluation of works tenders to take account of the occurrence of serious safety incidents involving loss of life or serious bodily injury happened in both public and private construction sites.

The SPRs have been updated to include provisions to safeguard national security interests by clearly specifying that Controlling Officers should take into account their duty to safeguard national security. To cater for the updated SPRs, DEVB has prepared standard tender / contract provisions for incorporation into tender / invitation documents of works contracts and consultancies respectively in SDEV's memo ref. DEVB(W) 510/30/01 dated 31.8.2022.

5.2 WORKS ORDERS

(Ref.: SFST's memo ref. (39) in TsyB E 00/810-6/14/0 dated 15.7.2022)

A WO should carry a full description of the works required, supplemented as necessary by drawings and additional instructions. Works should not be split up for the purpose of reducing the value of any one WO in order to avoid the need to seek higher authority.

5.2.1 Financial Limits

A WO shall be signed by the Engineer or the ER of the Contract subject to the financial limits in sub-clauses (a) and (b) below (except for cases stated in Paragraph 1.2):

(a) Funding source for either works within the scope of term contract chargeable to the recurrent votes or works within the scope of term contract for private

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parties.

(i) Except for WSD, WO to be signed by

Authority	Financial Limit
Assistant Engineer/ Assistant Landscape Architect/ Engineer/ Chief Technical Officer/ Landscape Architect (as the ER acting on delegated authority from the Engineer for the Contract)	≤ $800,000
Senior Engineer/Senior Landscape Architect (as the ER acting on delegated authority from the Engineer for the Contract)	≤ $1,500,000
D1 rank officer (as the Engineer for the Contract)	≤ $3,000,000
D1 rank officer (as the Engineer for the Contract) with prior approval of D2 rank officer for the use of the term contractor	≤ $6,000,000
D1 rank officer (as the Engineer for the Contract) with prior approval of D3 rank officer for the use of the term contractor	≤ $9,000,000
D1 rank officer (as the Engineer for the Contract) with prior approval of Head of Department for the use of the term contractor	no limit

(ii) In WSD, the practice is different. WSD's engineers, as the ER acting on delegated authority from the Engineer for the Contract, may issue all WO provided that the authority has been obtained. The financial limits/authority applicable in WSD are as follows:

Authority	Financial Limit
Engineer	≤ $800,000
Chief Engineer	≤ $2,000,000
Assistant Director	≤ $5,000,000
Director	no limit

(b) Funding source for works within scope of term contract chargeable to non-recurrent votes

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According to SFST's memo ref. (39) in TsyB E 00/810-6/14/0 dated 15.7.2022, approval has been given for the financial limit of works orders to be issued under a term contract for new works and minor works to be revised from $30 million to $50 million with immediate effect. In inviting tenders for a new term contract, tenderers should be notified of this revision by including a statement in the tender document that the value of works for each works order would normally not exceed $50 million. Details of the delegation are as follows –

Rank	WO not exceeding the value of
D1 officer	$10,000,000
D2 officer	$20,000,000
D3 officer	$30,000,000
Head of Department	$50,000,000

The above authority cannot be exercised by officers of ranks other than the aforementioned.

To monitor the exercise of the above authority, the bureau/department concerned should report any issue of works orders of a value exceeding $30 million and up to $50 million to DEVB, providing necessary information including the project name, cost and date of issue of the works order, etc. DEVB would then provide a consolidated report to FSTB every half year.

For new works with an estimated value exceeding $50 million, the bureau/department concerned should conduct a new tendering exercise for the award of the works contract. Under exceptional circumstances where normal tendering procedures are considered not viable, the bureau/department concerned must seek prior approval from Tender Division of the Treasury Branch of FSTB in accordance with SPRs 331-332 with detailed justifications and policy support.

The financial limits mentioned in (a) and (b) above shall apply equally to works carried out for other departments/offices under the term contract. Officers should check with their department's internal instructions/guidelines regarding the authority of approval and financial limits in managing WO chargeable to recurrent and non-recurrent votes.

In approving or separately seeking approval to the use of the maintenance term contractor from the D2/D3 rank officer, Head of Department or SFST for works chargeable to

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non-recurrent votes, the D1 rank officer shall confirm that the conditions laid down in Paragraph 5.3.2 have been met.

More than one WO may be issued to the term contractor for any PWP Item provided that the total value of WO issued for works under a particular PWP item does not exceed $50,000,000 as appropriate and that approval for the use of the term contractor for each WO has been given by an officer of a rank appropriate to the value of that particular WO.

5.2.2 Variation

(Ref.: WBTC Nos. 15/99 and 15A/99, ETWB TCW No. 15/99B, SDEV's memo ref. () in DEVB(W) 510/92/01 dated 5.5.2020, Amd No. 1/2025 SDEV's memo ref. () in DEVB(W) 546/83/01 dated 22.9.2023 and 20.9.2024 Amd No. 1/2025)

GCC Clause 62(3) requires that variations made by the Engineer on works under any WO must be ordered in writing and any order given verbally in the first instance must be confirmed subsequently in writing. Whenever applicable, drawings illustrating the nature and extent of the variation should be issued to the Contractor.

Where a proposed variation requires works to be carried out at a significant distance beyond the limit of works shown on the drawing attached to the original WO, a separate WO shall be issued.

For situations mentioned in the above two paragraphs, if

(a) the total cost of the works, as amended by the variation order, is likely to exceed the limit of financial authority of either the officer who signed the original WO or the officer who gave approval to the use of the term contractor, or

(b) the total cost of the original and the separate WO is likely to exceed the limit of financial authority of either the officer who signed the original WO or the officer who gave approval to the use of the term contractor,

approval to the use of the term contractor shall first be obtained from an officer at the relevant higher level of authority. If the works are chargeable against a CWRF block allocation, and the variation or the separate WO requires a significant change in scope and/or results in the approved estimate for the item being exceeded, full details shall be submitted to the relevant authority or authorities for approval of the change in scope (i.e. Technical Approval) and/or the increase in approved estimate (i.e. Financial Approval) before the variation is made or the separate WO is issued.

According to WBTC No. 15/99, which should be read in conjunction with WBTC Nos. 15A/99 and 15/99B, it is necessary to avoid the use of non-schedule rates and variation orders, and stick to the use of tendered rates as far as possible as stipulated in the Conditions of Contract. For maintenance term contracts, if the variation involves the use of non-schedule rates, approval from officers at least at D2 level should be obtained. In deciding on change in materials for repair and reconstruction involving the use of schedule items with higher tendered percentages, justification must be submitted to obtain the prior approval from officers at least at D2 level. Additional constraints imposed on the Engineer in regard to the variation and claim as stipulated in paragraph 7 of the WBTC No. 16/2002 should also be

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noted. SDEV's memo ref. ( ) in DEVB(W) 546/83/01 dated 27.7.2020 increases the threshold of the constraints on the power of the Engineer to order variation and the related matters from $300,000 to $800,000. Amd No. 1/2025 SDEV's memo ref. ( ) in DEVB(W) 546/83/01 dated 22.9.2023 Amd No. 1/2025 increases the threshold of the constraints on the power of the Engineer to order variation and the related matters from $800,000 to $1,000,000. SDEV's memo ref. ( ) in DEVB(W) 546/83/01 dated 20.9.2024 further increases the threshold of the constraints on the power of the Engineer to order variation and the related matters from $1,000,000 to $1,400,000. Amd No. 1/2025

SDEV's memo ref. ( ) in DEVB(W) 510/92/01 dated 5.5.2020 promulgates a set of new measures for controlling the use of non-schedule rates. For term contracts (maintenance or otherwise), if the estimated aggregate value of works items adopting non-schedule rates exceeds $7 million in a works order or the variation of a works order, the Head of Department shall be the approving authority to issue the works order or the variation of the works order.

In seeking approval from the Head of Department, the following conditions should be considered:

(a) (i) the works required are urgent and there would be delay if the normal tender procedures are followed; or

(ii) there are other compelling reasons for not adopting the normal tender procedures, e.g. shortage of staff to prepare tender documents in time of emergency, intellectual property rights; or

(iii) it is reasonably certain that the use of the term contractor is the more economical option in terms of monetary value or time, e.g. savings in overheads due to earlier completion of works required or savings in time due to minimizing interface with other contractors; and

(b) "the estimated non-schedule rates" are reasonable in relation to the works in question and the anticipated time for completion.

In examining the reasonableness of a non-schedule rate, the following should be taken into consideration:

(a) similar rates available in the Schedule of Rates of the contract concerned;

(b) similar rates available in other similar contracts;

(c) cost build-up rates;

(d) if the estimated total values of the non-schedule rates(s) under a works item in a works order exceeds $7 million, at least three quotations shall be obtained to form the basis for evaluating the works items. In cases where it is not possible to obtain sufficient quotations, or it is justified to obtain less than three quotations, the relevant justifications should be properly documented.

There are cases whereby a non-schedule rate item of value less than $7 million is adopted in a term contract and the same non-schedule rate is subsequently reapplied in other

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works orders or variations under the same contract. Works department shall keep track of the cumulative value of the non-schedule rate item adopted in all works orders or variations ("Cumulative Value") under the same contract. When the value of the non-schedule rate item in a new order or variation renders the Cumulative Value exceeding $7 million, the Head of Department shall be the approving authority to issue the new works order or variation. Exemption for special circumstances could be found on para. 5 of the SDEV's memo.

5.2.3 Completion Date

The completion date stated on a WO should allow a realistic but not excessive time for completion. The Contractor may object to the date for completion in accordance with GCC Clause 51(2).

The actual completion date should be entered when WO are certified for completion. If the works have not been completed by the original completion date due to circumstances justifying extensions of time for completion, a letter should be issued to grant extension of time for completion. Should the Contractor fail to complete the Works by the original or extended completion date due to his own default, liquidated damages shall be imposed in accordance with GCC Clause 54.

5.3 LIMITATIONS ON USE OF THE MAINTENANCE TERM CONTRACTOR

(Ref.: SFST's memo ref. (38) in TsyB E 00/810-6/14/0 dated 15.7.2022)

5.3.1 Works Chargeable to Recurrent Votes (Including Works for Private Parties)

The maintenance term contractor is normally employed for all maintenance works, minor improvement works and works for private parties, unless separate tender procedure is expected to be significantly advantageous to Government.

5.3.2 Works Chargeable to Non-recurrent Votes

New works chargeable to non-recurrent votes are normally subject to separate tender procedure.

The maintenance term contractor may, however, be employed for new works if the following conditions are met :

(a) EITHER

the works required are urgent, and they would cause unacceptable delay if the normal tender procedure were followed;

OR

there are other compelling reasons for not adopting the normal tender procedure, e.g. shortage of staff to prepare tender documents in time of emergency;

OR

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it is reasonably certain that the use of the maintenance term contractor is the more economical option, taking into consideration the maintenance rates and savings of departmental expenditure, e.g. savings in overheads due to earlier completion of the new works required;

AND

(b) the scheduled rates are reasonable in relation to the works in question and scheduled completion time;

AND

(c) the new works and minor works are not subject to the Agreement on Government Procurement of the World Trade Organization.

The SFST's memo ref. (38) in TsyB E 00/810-6/14/0 dated 15.7.2022 promulgates the revised financial limits under which bureau/departments engaging maintenance term contractors are authorised to employ their maintenance term contractors to undertake new works which fall outside the scope of the maintenance term contracts subject to the conditions set out above being satisfied.

To monitor the exercise of the authority, the bureau/departments concerned should report any issue of works orders of a value exceeding $30 million and up to $50 million to DEVB, providing necessary information including the project name, cost and date of issue of the works order, etc. DEVB would then provide a consolidated report to FSTB every half year.

For new works with an estimated value exceeding $50 million, the bureau/departments concerned should conduct a new tendering exercise for the award of the works contract. Under exceptional circumstances where normal tendering procedures are considered not viable, the bureau/departments concerned must seek prior approval from Tender Division of the Treasury Branch of FSTB in accordance with SPRs 331-332 with detailed justifications and policy support.

The bureau/departments concerned should ensure that the maintenance term contractors are aware that they may be required to undertake new works based on the contract rates.

According to FC No. 3/2011, for minor items funded under various CWRF block allocations, FS has authorised a number of Permanent Secretaries to approve expenditure within the scope set by the Finance Committee. Other delegations on the administration of CWRF block allocations relating to Heads of Departments and directorate officers in policy bureaux remain valid. Details of the revised delegated authorities for administering the CWRF block allocations are shown in the Annex to FC No. 3/2011.

For projects entrusted to/from Housing Authority, the on-cost rates should refer to SFST's memo ref. () in L/M 9/2005 (I Div) dated 29.3.2006.

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5.4 EMERGENCY REPAIRS TO UTILITIES WORKS

In case of road subsidence or failures of similar nature caused by failure or faults of utilities works, it is the responsibility of the HyD to ensure that the temporary and urgent measures such as the provision of guarding, lighting and signing etc. are promptly and properly taken with a view to minimising the inconvenience caused to the public. Instead of leaving the matter to the utility undertaking, the engineer, the CTO or the IOW in control of the area should ascertain from the utility undertaking concerned when the affected area can be cordoned off and arrange to instruct the HyD maintenance term contractor or road gangs to take necessary action if:

(a) the utility undertaking cannot indicate the exact time when the area can be fenced off,

(b) the time required by the utility undertaking to arrive at the site is longer than that by HyD maintenance term contractor or road gangs (say 2 hours), or

(c) no responsible staff of the utility undertaking can be contacted.

Prior to any emergency and temporary action being taken by HyD or utility contractor, HyD staff should ensure that the affected area is properly attended to by seeking Police's assistance and remaining on site if necessary.

The maintenance term contractors should be reminded that they are required to provide warning, lighting and guarding equipment and maintain them in good working order. In addition, their attention should be drawn to the provision in the contract that they shall have available at all time workmen and plant for the execution of urgent works in order that such works shall be commenced immediately unless otherwise agreed by the Engineer, but in all circumstances, the works shall be commenced within 2 hours after receiving the instruction from the Engineer.

5.5 SITE SAFETY AND ENVIRONMENTAL MANAGEMENT

5.5.1 Pay for Safety Scheme

All term contracts where Safety Plans are required should be included in the PFSS. A Safety Plan is a mandatory requirement for term contracts, either undertaken by contractors on the List of Approved Contractors for Public Works or those on the List of Approved Suppliers of Materials and Specialist Contractors for Public Works, with total estimated expenditure of $50M and above. For term contracts with total estimated expenditure less than $50M, the criterion to decide whether Safety Plans are required or not is whether dangerous situations are anticipated by virtue of the site location or the operation involved in the construction works within the scope of the contract. Departmental Safety and Environmental Advisers should be consulted for advice on specific requirements.

For term contracts included in PFSS, the appendices to Chapter 3 of the CSSM stipulate the various contractual provisions to be incorporated in the contract documents for site safety. The latest version can be found at DEVB's website.

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For term contracts not included in PFSS, the Special Conditions of Tender and Special Conditions of Contract in the CSSM should not be included. The Particular Specifications and Method of Measurement should be amended or deleted according to Clause 3.1.10 of Chapter 3 of the CSSM.

However, there may be term contracts which, owing to their small size and/or nature will warrant changes to the contractual provisions. PE should seek advice from their Departmental Safety & Environmental Advisor and the agreement of the appropriate (D2 or above) officer for such changes.

Chapter 12 of the CSSM incorporates the background and guidance notes on the administration of PFSS. Basically, all appropriate tenders included in PFSS should include a separate "Site Safety" section in the Schedule of Rates. A sample Schedule of Rates for PFSS term contracts can be found in Appendix II(a) and Appendix III(b) to Chapter 12 of CSSM.

5.5.2 Pay for Environment Scheme

ETWB TCW No. 19/2005 which sets out the policy and procedures for environmental management and the PFSES was partially updated by the Interim Guidance Note on the Administration of Environmental Management and Pay for Safety and Environmental Scheme for Public Works Contracts issued under the then SETW's memo ref. (014G7-01-1) in ETWB(W) 517/91/01 dated 19.6.2006. In this connection, all references in ETWB TCW No. 19/2005 to term contracts become obsolete. The environmental management procedures and the PFSES are not to be implemented in term contracts and details should refer to the then SETW's memo ref. (014G7-01-1) in ETWB(W) 517/91/01 dated 19.6.2006.

Nevertheless, to provide a more effective means for dust control and to further enhance the safety of the working environment, the SDEV's memos ref. (01KKA-01-8) in DEVB(W) 810/83/09 dated 11.10.2007 and ref. (01N5V-01-2) in DEVB(W) 810/83/09 dated 24.12.2007 promulgated a set of sample contractual provisions on the installation of mechanical dump truck covers to be incorporated in the contract documents for term contracts included in PFSS, which is applicable for contracts tendered between 1 November 2007 and 31 October 2010 inclusive.

According to SDEV's memo ref. (01ZSP-01-2) in DEVB(W) L/M(2)810/83/09 dated 7.4.2009, grab-mounted dump trucks working for public works contracts with mechanical covers requirements should be equipped with suitable cover with effect from 1 September 2009. Details of suitable cover are given in SDEV's memo.

5.6 FINANCIAL RELIEF MEASURES TO ASSIST THE CONSTRUCTION INDUSTRY

To help alleviate the difficulties faced by public works contractors in the midst of the financial turmoil, SDEV announced the interim financial relief measures to be adopted in term contracts vide his memos ref. (01WLR-01-7) in DEVB(W) 510/83/08 dated 8.12.2008 and ref. (025QN-01-3) in DEVB(W) 510/83/08 dated 4.3.2010. These relief measures are related to interim payment (IP), payment of WO and contract finalization. The measures on

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IP and payment of WO should be adopted as standing policies vide his memo ref. (02APB-01-8) in DEVB(W) 510/83/08 dated 8.3.2011. As regards the measure on contract finalization, this should be a permanent measure and each works department is required to continue to monitor the status with standing targets for achieving early contract finalization.

To help the construction industry tide over the difficult economic situation, SDEV announced the interim financial relief measure for adoption in term contracts vide his series of memos ref. ( ) in DEVB(W) 510/33/02 dated 28.5.2020, 5.6.2020, 5.3.2021 and 10.3.2022. The relief measure allows the Contractor to request an "advance payment" from the Employer upon receipt of a Works Order which fulfils the criteria stipulated in the memos.

To help the construction industry better cope with the difficulties in relation to the uncertainties and delays in delivery of construction materials/products/plants/equipment/goods due to the 5th wave of the COVID-19 pandemic, SDEV's memo ref. DEVB(W) 510/33/02 dated 28.7.2022 introduced a special payment for materials and plant which are delivered to Hong Kong and properly stored off-site under term contracts. According to SDEV's memo ref. DEVB(W) 510/33/02 dated 22.11.2023, this interim relief measure will be implemented until further notice.

5.6.1 Interim Payment

IP should be instituted in all existing contracts which do not contain IP provision to improve the cash flow of contractors who are currently paid upon completion of the works. The same measures will be applicable to all new contracts.

5.6.2 Payment of Works Order

The payment level before completion of a WO in existing and new term contracts should be raised to 90% if it has been specified or is normally set below such a level.

5.6.3 Finalization of Accounts

Works departments should strive to finalise the accounts of works that have been completed and put in place a high-level monitoring mechanism (if not already done so) to oversee progress of account finalisation. Justification for individual contracts not being able to meet the target should be scrutinized by the respective works director or his deputy.

5.7 EMERGENCY COMMAND SYSTEM

To deal with exceptional emergency incidents, SDEV has introduced the Emergency Command System (ECS) in the memo ref. DEVB(CR) 1-150/93 dated 18.8.2008. Exceptional emergency incidents refer to emergency situations that cannot be adequately handled by normal emergency organizations or when the situations that warrant a more integrated/coherent emergency management approach.

To facilitate the implementation of the ECS, SDEV has announced the enhancement measures including unified schedule of rates, emergency vote, delineation of responsibilities for emergency works to natural terrain landslides and working on private land vide his memos ref. DEVB(G) 1-90/8 dated 19.3.2009 and ref. (01ZDK-01-1) in DEVB(G) 1-90/8 dated

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25.3.2009. The proposed Special Conditions of Contract and Particular Preambles for Method of Measurement for incorporation into maintenance/term contracts are given in Annex 1 of memo ref. DEVB(G) 1-90/8 dated 19.3.2009. Please note that the proposed Special Conditions of Contract and Particular Preambles for Method of Measurement have been subsequently revised by DEVB vide e-mail on 9.5.2009 and 20.5.2009 and the unified schedule of rates has been updated by CEDD vide memo ref. GCW 4/1C/30 dated 6.2.2013 as shown in Appendix 8.2 for incorporation into existing and new maintenance/term contracts.

For normal emergency incidents, the existing emergency organizations, procedures and guidelines set out in relevant circulars including DEVB TCW No. 7/2011, ETWB General Circular No. 2/2005 and ETWB TCW No. 20/2005 should apply.

5.8 ENHANCEMENT OF PRODUCTIVITY OF SKILLED WORKERS IN PUBLIC WORKS PROJECTS

In order to rationalize the demand for skilled workers in trades with projected shortage, guidelines to illustrate the 3S concept (Standardization Simplification and Single Integrated Element) adopted in design and other specific measures in construction process for individual trades are given in the DEVB's memo ref. (38) in DEVB(Trg) 133/8 dated 17.4.2013. The guidelines are available on DEVB's website via the following link: http://www.devb.gov.hk/filemanager/en/content_29/Guidelines_Enhancement_of_Productivity_(Mar_2013)_English.pdf.

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6. REFERENCES

WBTC No. 15/99	Improvement to Quality of Maintenance Works
WBTC No. 15A/99	Improvement to Quality of Maintenance Works
ETWB TCW No. 15/99B	Improvement to Quality of Maintenance Works
WBTC No. 16/2002	General Conditions of Contract for Term Contracts for Civil Engineering Works, 2002 Edition
ETWB TCW No. 19/2005	Environmental Management on Construction Sites
ETWB TCW No. 20/2005	Upward Reporting of Major Emergency Incidents from Works Departments
DEVB TCW No. 7/2011	Natural Disaster Emergency Organization Responsibilities of the Development Bureau and the Transport and Housing Bureau Groups of Departments
DEVB TCW No. 4/2014	Tender Evaluation Methods for Works Contracts
DEVB TCW No. 4/2014A	Tender Evaluation Methods for Works Contracts
FC No. 12/98	Calculation of Supervision and Administration Costs for the Purpose of Claims brought by Government
FC No. 3/2011	Capital Works Reserve Fund Delegated authorities in respect of block allocations
FC No. 3/2013	Charging Arrangements for Trading Funds
CEDD's memo ref. () in GCW 4/1C/30 dated 6.2.2013	Emergency Command System (Updating of Unified Schedule of Rates)
SETW's memo ref. (014G7-01-1) in ETWB(W) 517/91/01 dated 19.6.2006	Interim Guidance Note on the Administration of 'Environmental Management on Construction Sites' (ETWB TCW No. 19/2005)
SDEV's memo ref. (01KKA-01-8) in DEVB(W) 810/83/09 dated 11.10.2007	Pay for Safety and Environment Scheme - Installation of Mechanical Dump Truck Covers
SDEV's memo ref. (01N5V-01-2) in DEVB(W) 810/83/09 dated 24.12.2007	Pay for Safety and Environment Scheme/Pay for Safety Scheme - Installation of Mechanical Dump Truck Covers, Amended Particular Specification
SDEV's memo ref. () in DEVB(CR) 1-150/93 dated 18.8.2008	Emergency Command System

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SDEV's memo ref. (01WLR-01-7) in DEVB(W) 510/83/08 dated 8.12.2008	Immediate Measures to Assist the Construction Industry
SDEV's memo ref. () in DEVB(G) 1-90/8 dated 19.3.2009	Emergency Command System
SDEV's memo ref. (01ZDK-01-1) in DEVB(G) 1-90/8 dated 25.3.2009	Emergency Command System
SDEV's memo ref. (01ZSP-01-2) in DEVB(W) L/M(2)810/83/09 dated 7.4.2009	Covers for Grab-mounted Trucks
SDEV's memo ref. () in DEVB(W) 546/70/01 dated 7.8.2009	Agreement of Financial Services and the Treasury Bureau (FSTB) on Tender Invitation for New Types of Term Contracts
SDEV's memo ref. (025QN-01-3) in DEVB(W) 510/83/08 dated 4.3.2010	Financial Relief Measures to assist the Construction Industry
SDEV's memo ref. (02APB-01-8) in DEVB(W) 510/83/08 dated 8.3.2011	Financial Relief Measures to assist the Construction Industry
DEVB's memo ref. (38) in DEVB(Trg) 133/8 dated 17.4.2013	Guidelines for Enhancement of Productivity of Skilled Workers in Public Works Projects
SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 5.6.2020	Interim Relief Measure to Assist the Contraction Industry – Advance Payment under New Term Contracts
SDEV's memo ref. ( ) in DEVB(W) 510/92/01 dated 5.5.2020	Control on the Use of Non-schedule Rates in Term Contracts
SDEV's memo ref. DEVB(W) 546/83/01 dated 11.11.2020	Updating of Standard Form of Tender and GCT 4 (Sub-clause (1)(a)(i))
SDEV's memo ref. () in DEVB(PS) 108/34 dated 29.1.2021	List of Approved Contractors for Public Works (the List) and List of Approved Suppliers of Materials and Specialist Contractors for Public Works (the Specialist List) Revised Contractor Management Handbook
SDEV's memo ref. () in DEVB(W) 546/84/01 dated 25.02.2021	Amendment to DEVB TC(W) No. 4/2014A Introduction of an Option of Price to Technical Weighting of 50/50 in the Standard Marking Scheme for Works Tenders

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SDEV's memo ref. () in DEVB(W) 510/33/02 dated 5.3.2021	Extension of Interim Relief Measure to Assist the Construction Industry – Special Advance Payment under Ongoing Term Contracts
SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 5.3.2021	Extension of Interim Relief Measure to Assist the Construction Industry – Advance Payment under New Term Contracts
SDEV's memo ref. () in DEVB(W) 546/84/01 dated 9.7.2021	DEVB TC(W) No. 4/2014 & No. 4/2014A Amendments to Tender Evaluation Methods in respect of the Attributes for Assessing Tenderer's Past Performance
SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 10.3.2022	Extension of Interim Relief Measure to Assist the Construction Industry – Special Advance Payment under Ongoing Term Contracts
SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 10.3.2022	Extension of Interim Relief Measure to Assist the Construction Industry – Advance Payment under New Term Contracts
SDEV's memo ref. ( ) in DEVB(W) 506/30/07 dated 8.7.2022	Migration from NEC3 to NEC4 Term Service Contract (TSC)
SDEV's memo ref. ( ) in DEVB(W) 506/30/07 dated 19.7.2022	Wider Adoption of New Engineering Contract (NEC) Form in Public Works Contracts
SDEV's memo ref. ( ) in DEVB(W) 510/33/02 dated 28.7.2022	Interim Relief Measure to Combat the 5th Wave of the COVID-19 Pandemic - Special Payment for Imported Items for Term Contracts
SDEV's memo ref. () in DEVB(W) 510/33/02 dated 8.8.2022	Interim Measures to Support Small and Medium Sized Contractors in Participating in Public Works Projects – Extension of Measures on Broadening the Span of Groups of Contractors to be Invited to Tender
SDEV's memo ref. ( ) in DEVB(W) 510/30/01 dated 31.8.2022	Tender / Contract Provisions for Safeguarding National Security in Public Works Contracts and Consultancies
SDEV's memo ref. () in DEVB(W) 546/84/01 dated 18.8.2023	DEVB TC(W) No. 4/2014 & No. 4/2014A - Tender Evaluation Methods for Works Contracts New Measures on A. Offering Incentive to Group C Contractors to Engage Lower Group Contractors as Joint Venture Participants B. Enhancing Safety and Innovation Related Attributes in Tender Assessment
SDEV's memo ref. ( ) in DEVB(W) 546/83/01 dated 20.9.2024 Amd No. 1/2025	Threshold of the Constraints on the Power of the Contract Administrator to Order Variation and the Related Matters

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SDEV's memo ref. () in DEVB(W) 546/84/01 dated 10.11.2023	DEVB TC(W) No. 4/2014 & No. 4/2014A Tender Evaluation Methods for Works Contracts - Merit / Demerit Point for Safety
SDEV's memo ref. () in DEVB(W) 510/33/02 dated 22.11.2023	Extension of Interim Relief Measure to Combat the COVID-19 Pandemic - Special Payment for Imported Items
S for Tsy's memo ref. (54) in FT 111/2 dated 12.5.1993	10TH-Pok Fu Lam Rd Widening Stage V Part II, Grade Separated Access-Selective Tendering
S for Tsy's memo ref. (12) in FIN 111/2/1 III dated 15.6.1994	Charging of Minor Improvement Works to Recurrent Vote
FSTB (Treasury Branch)'s memo ref. () in L/M 9/2005 (I Div) dated 29.3.2006	On-cost Rates for Projects Entrusted to/from Housing Authority (HA)
SFST's memo ref. (54) in FT 113/149 dated 5.8.2009	Request for Policy Bureau's support of Architectural Services Department Proposed New Design & Construction Minor Works Term Contracts for Fire Services Installation (DCMWTC (FS))
SFST's memo ref. (83) in LM to FP 25/2002 dated 9.6.2010	Guiding principles for accounting treatment for liquidated damages and payments relating to claims settlement received from contractors under contracts funded by the CWRF project votes for final settlement of contract accounts
SFST's memo ref. (38) in TsyB E 00/810-6/14/0 dated 15.7.2022	Employment of Maintenance Term Contractors for New Works
SFST's memo ref. (39) in TsyB E 00/810-6/14/0 dated 15.7.2022	Employment of Term Contractors for New Works and Minor Works
DEVB Construction Site Safety Manual	http://www.devb.gov.hk/en/publications_and_press_releases/publications/construction_site_safety_manual/index.html
DEVB Contractor Management Handbook	http://www.devb.gov.hk/en/construction_sector_matters/contractors/contractor_management_handbook/index.html
DEVB Standard Contract Documents	http://www.devb.gov.hk/en/publications_and_press_releases/publications/standard_contract_documents/index.html
FSTB Financial and Accounting Regulation 440 - Overheads Charge on Stores or Services Supplied for Private Works	-

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FSTB Stores and Procurement Regulations Chapter III - Tender Procedures (300-390)	-
FSTB Stores and Procurement Regulations Chapter V - Contract Administration (500-541)	-
FSTB Stores and Procurement Regulations FC/FSTBCM to be read in conjunction with SPRs	-

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APPENDICES

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APPENDIX 8.1 NOT USED

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APPENDIX 8.2 SPECIAL CONDITIONS OF CONTRACT AND PARTICULAR PREAMBLES FOR MEHTOD OF MEASUREMENT RELATING TO EMERGENCY COMMAND SYSTEM

SCC for Landslide-related Emergency Works under Exceptional Circumstances

SCC [X]* (1) Where so ordered by the Engineer in accordance with General Conditions of Contract Clause 20(2), the Contractor shall carry out the works comprising the landslide-related emergency works under exceptional circumstances ("LEWUEC") which are described as such and more particularly detailed in the order. For the purposes of General Conditions of Contract Clause 49(1), the Contractor shall commence the works comprising the LEWUEC on Site within 2 hours after receipt of the order from the Engineer for such works. The works comprising the LEWUEC shall be completed within the time for completion stipulated in the Engineer's order and shall, if so instructed by the Engineer, be carried out continuously by the Contractor on shifts working 24 hours a day.

Landslide-related emergency works under exceptional circumstances

(2) Where LEWUEC are ordered by the Engineer under the provisions of this Clause, the Schedule of Rates for LEWUEC shall apply to valuation of the works comprising the LEWUEC. Should there be no items of works given in the Schedule of Rates for LEWUEC covering such works or any part or parts thereof or if such works or any part or parts thereof are required to be carried out at an inaccessible location, the Engineer shall ascertain the expenditure reasonably incurred by the Contractor in carrying out such works or, as the case may be, the relevant part or parts thereof (subject only to 30% upward adjustment for overhead and profit) and certify in accordance with General Conditions of Contract Clause 78 or, as the case may be, Clause 79.

(3) For the purposes of this Clause:

(a) a "day" means a calendar day or, where applicable, a part thereof, irrespective of whether it is a General Holiday or a day throughout or for part of which any tropical cyclone warning signal or any rainstorm warning is in force; and

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(b) "inaccessible" has the meaning ascribed to that term in paragraph 2 of the Particular Preambles for Landslide-related Emergency Works under Exceptional Circumstances.

(4) For the avoidance of doubt, sub-clauses (1), (2) and (3) of this Clause shall only apply to LEWUEC ordered by the Engineer in accordance with the provisions of this Clause and shall not apply to any other works.

(5) The provisions of this Clause are without prejudice to the power of the Engineer under General Conditions of Contract Clause 20(2) to order any other emergency works.

(6) For the further avoidance of doubt, no adjustment including without limitation adjustment by any Contract Percentage[1] shall be made to the valuation of the works comprising the LEWUEC except those specified in sub-clause (2) of this Clause and General Conditions of Contract Clause 92[2].

SCC [Y]* General Conditions of Contract Clause 1(1) is amended as follows by addition of the following definition :

(a) replacing the definition of "Schedule of Rates" with the following:

"Schedule of Rates" means the schedule of rates referred to in the Contract, including without limitation the Schedule of Rates for LEWUEC;

(b) addition of the following definition:

"landslide-related emergency works under exceptional circumstances" or "LEWUEC" has the meaning ascribed to that term in Special Conditions of Contract Clause SCC [X]*.

[1] Please check whether there is any definition of "Contract Percentage" in the particular contract, and if there is none, add an appropriate definition.

[2] This is a provision to exclude adjustments in general. In addition to such provision, it is advisable to include in the Preambles or other parts of the Contract provisions to exclude specific adjustments specified therein, if any.

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SCC [Z]* General Conditions of Contract Clause 92(3)(b) is deleted and replaced by the following:

"(b) Base Index Figure" shall mean:

(i) in respect of any final payment certificate for the works comprising the LEWUEC issued by the Engineer pursuant to Clause 78[3], the appropriate Index Figure applicable to 1 July 2012; and

(ii) in respect of any final payment certificate in respect of any other works issued by the Engineer pursuant to Clause 78, the appropriate Index Figure applicable to the date 42 days prior to the date for the return of tenders."

[3] The wording "any final payment certificate for the works comprising the LEWUEC issued by the Engineer pursuant to Clause 78" is adopted on the assumption that a Works Order for LEWUEC will not cover other works. If this is not the case, the wording will have to be further revised.

Form of Tender

Insert the following paragraph into the Appendix to Form of Tender

Clause No.	
GCC 2(1)(b)	**The Engineer is required under the terms of his appointment[+] by the Employer to obtain confirmation of no objection from the Employer and, in the event of an objection, to act in accordance with the Employer's direction before ordering the landslide-related emergency works under exceptional circumstances in accordance with SCC Clause [X] [*].**

*** The SCC Clause number should be amended to suit the requirements of particular contract.**

[+] Where the Engineer is a consultant, steps should be taken to ensure that the constraint is stipulated in the relevant consultancy agreement.

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PARTICULAR PREAMBLES FOR LANDSLIDE-RELATED EMERGENCY WORKS UNDER EXCEPTIONAL CIRCUMSTANCES [4]

Amendments to Method of Measurement

1. For landslide-related emergency works under exceptional circumstances (LEWUEC) ordered under SCC [X]*, the Method of Measurement is amended in accordance with these Particular Preambles for LEWUEC.

Valuation by actual resources under special circumstances

2. Notwithstanding the General Preambles and where there are no items of works given in the Schedule of Rates for LEWUEC covering the works comprising the LEWUEC or any part or parts thereof or where such works or any part or parts thereof ordered under SCC [X]* are required to be carried out at an inaccessible location, such works or, as the case may be, the relevant part or parts thereof shall be valued based on expenditure reasonably incurred by the Contractor in carrying out such works or, as the case may be, the relevant part or parts thereof (subject only to 30% upward adjustment for overhead and profit). For the purposes of this paragraph 2, "inaccessible" means the situation where

(a) the location of the works comprising the LEWUEC or, as the case may be, the relevant part or parts thereof is not accessible by lorry, pick-up van or similar vehicle of capacity equal to or greater than 1.5 tonnes; and

(b) (i) the inaccessible distance between the location of the works comprising the LEWUEC or, as the case may be, the relevant part or parts thereof and a point along the road or platform nearest to such location which is accessible by lorry, pick-up van or similar vehicle of capacity equal to or greater than 1.5 tonnes exceeds 30m; or

(ii) where the LEWUEC comprise works to be carried out at a slope, the vertical distance between the location of the works comprising the LEWUEC or, as the case may be, the relevant part or parts thereof and the toe of the slope or the crest of the slope where the LEWUEC or, as the case may be, the relevant part or parts thereof are to be carried out exceeds 30m. The vertical distance shall be measured (a) from the toe of the slope if the majority of the materials for the works comprising the LEWUEC or, as the case may be, the relevant part or parts thereof are delivered through the toe of the slope or the majority of the landslide debris is removed through the toe of the slope as the case may be, or (b) from the crest of the slope if the majority of the materials for the works comprising the LEWUEC or, as the case may be, the relevant part or parts

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thereof are delivered through the crest of the slope or the majority of the landslide debris is removed through the crest of slope as the case may be.

*** The SCC Clause number should be amended to suit the requirements of particular contract.**

[4] The Particular Preambles for LEWUEC and Section X – LEWUEC have been prepared on the assumption that the Standard Method of Measurement ("SMM") will be used. If the SMM is not used for any particular contract, amendments may have to be made to suit the particular contract.

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SECTION [X][5] –LANDSLIDE-RELATED EMERGENCY WORKS UNDER EXCEPTIONAL CIRCUMSTANCES

TEMPORARY SAFETY FENCES

Units **[X.01][6]** **The unit of measurement shall be :**

(i) temporary safety fences — linear metre.

Measurement **[X.02][6]** **The measurement of temporary safety fences shall be the length along their external face on plan, inclusive of gates and entrances.**

[X.03][6] **Temporary safety fences shall only be measured where shown on the Drawings or ordered by the Engineer.**

Itemisation **[X.04][6]** **Separate items shall be provided for temporary safety fences in accordance with General Principles paragraph 3 and the following:**

Group	Feature
I	1. Different types.

Temporary safety fences **[X.05][6]** **The items for temporary safety fences shall, in accordance with General Preambles paragraph 2, include for :**

Item coverage

(a) excavation in any material;

(b) backfilling and compaction;

(c) disposal of surplus excavated material;

(d) concrete, reinforcement, formwork and granular material to foundations and anchorages, forming holes, pockets, sockets, mortices and the like.

[5] **Insert an appropriate section number to suit the particular contract.**
[6] **Insert appropriate paragraph numbers to suit the particular contract.**

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REMOVAL OF LANDSLIDE DEBRIS

Units **[X.06][6]** **The unit of measurement shall be :**

(i) Removal of landslide debris — cubic metre.

Measurement **[X.07][6]** **The measurement of removal of landslide debris shall be the volume of landslide debris (including soil, rock, vegetation, artificial hard materials and the like) within or adjacent to the Site, which are required to be removed as ordered by the Engineer.**

Itemisation **[X.08][6]** **Separate items shall be provided for removal of landslide debris in accordance with General Principles paragraph 3 and the following :**

Group		Feature
I	1.	Removal of landslide debris.

Removal of landslide debris **[X.09][6]** **The items for removal of landslide debris shall, in accordance with General Preambles paragraph 2, include for :**

Item coverage

(a) excavation of landslide debris including soil, rock, vegetation, artificial hard materials and the like;
(b) forming and removal of temporary access;
(c) loading into transport;
(d) haulage, deposition and disposal to designated locations as instructed by the Engineer;
(e) loosening or breaking up materials before or in the process of excavation;
(f) multiple handling of excavated materials;
(g) forming and trimming side slopes, benching and berms or in the case of structural foundations, trimming the bottom and sides of excavation including additional excavation, filling and disposal;
(h) dealing with water in watercourses;
(i) carrying out excavation by hand adjacent to utilities that are known, proven or suspected to exist;
(j) carrying out excavation next to structure by hand;
(k) cutting through reinforcement;
(l) trimming and clearing away loose rock or boulders;
(m) provision, maintenance and removal of temporary drainage measure to keep excavation free from water.

IMPORTATION, DEPOSITION AND COMPACTION OF ROCKFILL MATERIAL

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Units **[X.10][6]** **The unit of measurement shall be :**

(i) Importation, deposition and compaction of rockfill material …….cubic metre.

Measurement **[X.11][6]** **The measurement of importation, deposition and compaction of rockfill material shall be the volume formed or void filled up from existing ground level to the formation level as ordered by the Engineer.**

Itemisation **[X.12][6]** **Separate items shall be provided for importation, deposition and compaction of rockfill material in accordance with General Principles paragraph 3 and the following :**

Group		Feature
I	1.	Importation, deposition and compaction of Grade 200 rockfill material.

Importation, deposition and compaction of rockfill Material **[X.13][6]** **The items for importation, deposition and compaction of rockfill material shall, in accordance with General Preambles paragraph 2, include for :**

Item coverage

(a) supply of material of stated types from any source and haulage;
(b) layering or deposition in specified locations;
(c) excavation, deposition and compaction in benches;
(d) multiple handling of excavated material;
(e) overfilling of fill areas and embankments and subsequent removal;
(f) spreading and levelling;
(g) forming and trimming of side slopes, benching and berms;
(h) compaction of overfilling to fill areas and embankments;
(i) protection of the formation;
(j) trimming, shaping and forming the surfaces to required levels and contours;
(k) completion of formations and earthworks final surfaces;
(l) provision, maintenance and removal of temporary drainage measures to keep filling works free from water and erosion;
(m) forming benching on existing surface;
(n) disposal of surplus materials to designated locations as instructed by the Engineer.

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IN-SITU CONCRETE

Units **[X.14][6]** **The unit of measurement shall be :**

(i) concrete ……. cubic metre.

Measurement **[X.15][6]** **No deduction shall be made for :**

(a) built-in items, holes, ducts, pockets, sockets, mortices and the like each not exceeding 0.15 cubic metres in volume;
(b) reinforcement;
(c) individual fillets, chamfers, splays, drips, rebates, recesses, grooves and the like not exceeding 100 millimetres in girth measured on the faces in contact with the formwork;

Itemisation **[X.16][6]** **Separate items shall be provided for in-situ concrete in accordance with General Principles paragraph 3 and the following :**

Group	Feature
I	1. Different grades of concrete.
II	1. No-fines concrete 2. Sprayed concrete in-fill

Concrete **[X.17][6]** **The items for concrete shall, in accordance with General Preambles paragraph 2, include for :**

Item coverage

(a) mixing, placing in or against any surface, including soil faces where required, compaction and finishes to unformed surfaces;
(b) curing and protection;
(c) falls, cambers and shaped profiles;
(d) weep pipes, pipe sleeves and the like;
(e) holes, pockets, mortices casting in items and the like, each not exceeding 0.15 cubic metres in volume, including formwork;
(f) ducts and sockets;
(g) concrete to fill over-break and working space;
(h) admixtures;
(i) dealing with water in watercourses;
(j) cleaning the existing surfaces against which the concrete is to be placed.

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MESH PROTECTION

Units **[X.18][6]** **The unit of measurement shall be :**

(i) mesh protection. ..... square metre.

Measurement **[X.19][6]** **The measurement of mesh protection shall be the surface area of the face to be protected. No allowance shall be made for surface irregularities or other local peculiarities. No deduction shall be made for openings each not exceeding one square metre.**

Itemisation **[X.20][6]** **Separate items shall be provided for mesh protection in accordance with General Principles paragraph 3 and the following:**

Group		Feature
I	1.	Mesh protection.

Mesh protection **[X.21][6]** **The items for mesh protection shall, in accordance with General Preambles paragraph 2, include for :**

Item coverage

(a) preparation of surfaces;
(b) bolts, anchorages, clips and tie wires;
(c) lapping, binding and jointing;
(d) cutting of holes or other openings around existing structures or protrusions.

SURFACE PROTECTION

Units **[X.22][6]** **The unit of measurement shall be :**

(i) sprayed concrete ..... square metre.

Measurement **[X.23][6]** **Surface protection shall only be measured if ordered by the Engineer or shown on the Drawings and shall be measured at the top surface. No deduction shall be made for openings each not exceeding 0.1 square metres. No allowance shall be made for surface irregularities or other local peculiarities.**

Itemisation **[X.24][6]** **Separate items shall be provided for surface protection in accordance with General Principles paragraph 3 and the following :**

Group		Feature
I	1.	Sprayed concrete.
II	1.	Different thicknesses of layers.

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III	**1.**	**With steel fabric reinforcement.**
	2.	**Without steel fabric reinforcement.**

Sprayed concrete **[X.25][6]** **The items for sprayed concrete shall, in accordance with Preambles paragraph 2, include for :**

Item coverage

(a) preparation of surfaces to be covered;
(b) reinforcement and anchor bars;
(c) admixtures;
(d) weepholes and filter materials;
(e) finishing and curing;
(f) recording and supplying records to the Engineer;
(g) filling core holes and compacting;
(h) protection of trees, structures, street furniture and the like;
(i) forming step and toe-in;
(j) disposal of surplus material and rebound materials to designated locations as instructed by the Engineer;
(k) provision, maintain and removal of working platform.

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Section 31 : Landslide-related Emergency Works under Exceptional Circumstances			
Item No.	**Description**	**Unit**	**Schedule Rate**
	SECTION 31 **LANDSLIDE-RELATED EMERGENCY WORKS UNDER EXCEPTIONAL CIRCUMSTANCES** **Temporary Safety Fences**		
31001	Temporary safety fence Type A as Standard Drawings C2501/1B and C2501/2B	m	5,170.00
31002	Temporary safety fence Type B as Standard Drawings C2502/1C and C2502/2C	m	4,450.00
31003	Temporary safety fence Type C as Sketch R1062A	m	5,170.00
	Removal of Landslide Debris		
31004	Removal of landslide debris	cu.m	460.00
	Importation, Deposition and Compaction of Rockfill Material		
31005	Importation, deposition and compaction of Grade 200 rockfill material	cu.m	600.00
	In-situ Concrete		
31006	No-fines concrete	cu.m	1,430.00
31007	Grade 20 sprayed concrete infill	cu.m	2,310.00
	Mesh Protection		
31008	Mesh protection as Standard Drawing C2205D	sq.m	320.00
	Surface Protection		
	Grade 20 sprayed concrete, with one layer of 50 mm x 50 mm x 2.7 mm (wire diameter) welded mesh, galvanised:-		
31009	50 mm thick	sq.m	340.00
31010	75 mm thick	sq.m	420.00
31011	100 mm thick	sq.m	500.00
	Grade 20 sprayed concrete, without mesh: -		
31012	50 mm thick	sq.m	280.00
31013	75 mm thick	sq.m	350.00
31014	100 mm thick	sq.m	430.00

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APPENDIX 8.3A AN EXAMPLE OF A FORM OF TENDER FOR A TERM CONTRACT USING GCC FORM

THE GOVERNMENT OF THE HONG KONG SPECIAL ADMINISTRATIVE REGION

(name of department)

CONTRACT NO. (contract number)

(contract title)

FORM OF TENDER

NOTES :

(1) The Appendix forms part of the Contract.

(2) If the tenderer is a limited company (including incorporated joint venture), insert the information in the spaces provided at Form of Tender – P.3.

(3) If the tenderer is an unincorporated joint venture, insert the information in the spaces provided at Form of Tender – P.4 to P.5.

(4) If the tenderer is a sole proprietorship or a partnership, insert the information in the spaces provided at Form of Tender – P.6.

(5) In all cases, insert the number(s) and the expiry date(s) of the business registration certificate(s) here[1]:

Name:	_____	Name:	_____
Business Registration Number:	_____	Business Registration Number:	_____
Expiry Date:	_____	Expiry Date:	_____
Name:	_____	Name:	_____
Business Registration Number:	_____	Business Registration Number:	_____
Expiry Date:	_____	Expiry Date:	_____

[2]To: The Chairman,
Central Tender Board,
Lobby of the Public Entrance on the Ground Floor,
East Wing, Central Government Offices,
2 Tim Mei Avenue, Tamar,
Hong Kong

[1] If the tenderer is a partnership or an unincorporated joint venture, provide the required information of all partners or all participants of the unincorporated joint venture.

[2] Please update for submission to a tender board other than the Central Tender Board

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FORM OF TENDER - P. 2

1. Having inspected the Contract Area, examined the General Conditions of Contract and Special Conditions of Contract (hereinafter referred to as "the said Conditions"), Drawings, Specification and Schedule of Rates for the execution of the above-named Works, I/we offer to provide such articles and to perform such services for the maintaining, repairing and constructing of such works as may from time to time be demanded and in conformity with the said Conditions, Drawings, and Specification at the rates given in the Schedule of Rates, subject to such adjustments as stated in the Contract, for a Contract Period of xxx days[3].

[4]2. If my/our Tender is accepted I/we will when required

#(a) deposit with the Director of Accounting Services, the Government of the Hong Kong Special Administrative Region, as security for the due performance of the Contract a sum of $_____, such deposited sum to be returned to me/us in accordance with the said Conditions.

#(b) with the approval of the Employer obtain the guarantee of a Bank or Insurance Company [to be approved by the Employer] to be jointly and severally bound with me/us in a sum of $_____ for the due performance of the Contract under the terms of a Bond in accordance with the said Conditions.

#: Tenderer to delete either clause 2(a) or 2(b)

3. I/We agree to abide by this Tender for the period of xxx[5] days from the date, or the extended date if this has been extended, of expiry fixed for receiving the same and it shall remain binding upon me/us and may be accepted at any time before the expiration of that period.

4. Unless and until the Articles of Agreement is prepared and executed, this Tender together with the written acceptance thereof by the Employer subject to the provisions of clause 3[6] hereof shall constitute a binding contract between us.

5. I/We understand that the Employer reserves the right to negotiate with any tenderer about the term of the offer and is not bound to accept any tender irrespective of whether the tender is the lowest offer or, where the assessment of the tenders is based on a marking scheme or formula approach, the tender is with the highest overall score.

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3 Contract Period may be measured in days or months, since different departments may have different practices.
4 Paragraph 2 may be deleted if a security is not required
5 Normally 90 days. Seek advice as appropriate.
6 Modify as appropriate.

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FORM OF TENDER - P. 3

(To be inserted in case the tenderer is a limited company)

Name _____

Signature _____

in the capacity of _____

duly authorised to sign tenders for and on behalf of (name of the limited company)

_____

Registered address of the limited company _____

_____

_____

_____

_____

Name of Witness _____

Signature of Witness _____

Occupation of Witness _____

Address of Witness _____

_____

_____

_____

Date _____

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FORM OF TENDER - P. 4

(To be inserted in case the tenderer is an unincorporated joint venture[7])

Name _____ Name _____

Signature _____ Signature _____

in the capacity of _____ in the capacity of _____

duly authorised to sign tenders for and on behalf of (name of the participant of the unincorporated joint venture)

_____

Registered address of the participant of the unincorporated joint venture

_____

_____

_____

duly authorised to sign tenders for and on behalf of (name of the participant of the unincorporated joint venture)

_____

Registered address of the participant of the unincorporated joint venture

_____

_____

_____

Name _____ Name _____

Signature _____ Signature _____

in the capacity of _____ in the capacity of _____

duly authorised to sign tenders for and on behalf of (name of the participant of the unincorporated joint venture)

_____

Registered address of the participant of the unincorporated joint venture

_____

_____

_____

duly authorised to sign tenders for and on behalf of (name of the participant of the unincorporated joint venture)

_____

Registered address of the participant of the unincorporated joint venture

_____

_____

_____

[7] Insert the information of all participants of the unincorporated joint venture in the spaces provided. In case of more than four participants, insert an additional page following the above format.

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FORM OF TENDER – P.5

Trading in Hong Kong with a business name of (the name of the unincorporated joint venture)

_____

Correspondence address of the unincorporated joint venture

_____

_____

Name(s)[8] of Witness(es)	_____	_____
Signature(s) of Witness(es)	_____	_____
Occupation(s) of Witness(es)	_____	_____
Address(es) of Witness(es)	_____	_____
	_____	_____
Date	_____	_____

[8] In case more space is required for the information of the witness(es), insert an additional page following the above format.

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FORM OF TENDER – P.6

(To be inserted if the tenderer is a sole proprietorship or a partnership[9])

Name _____ Name _____

Signature _____ Signature _____

Residential address[10] Residential address[10]

_____ _____

_____ _____

_____ _____

Name _____ Name _____

Signature _____ Signature _____

Residential address[10] Residential address[10]

_____ _____

_____ _____

_____ _____

Trading in Hong Kong with a business name of (the name of the sole proprietorship or the partnership)

_____

Correspondence address of the sole proprietorship or the partnership

_____

Name(s)[11] of Witness(es) _____ _____

Signature(s) of Witness(es) _____ _____

Occupation(s) of Witness(es) _____ _____

Address(es) of Witness(es) _____ _____

_____ _____

Date _____ _____

[9] Insert the information of the sole proprietor or all partners of the partnership in the spaces provided. In case of more than four partners, insert an additional page following the above format.

[10] In case a partner of the partnership is a body corporate, its registered address shall be provided instead.

[11] In case more space is required for the information of the witness(es), insert an additional page following the above format.

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FORM OF TENDER – P.7

(This page may be deleted if a security is not required.)

To be inserted by the Engineer before the signing of the Articles of Agreement:

Security Deposit (if any) Receipt No. _____

Amount _____

Date _____

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APPENDIX TO FORM OF TENDER – P. 1
SCHEDULE OF CONTRACT PERCENTAGES

This Schedule must be completed in accordance with the notes on the following page and submitted with the Tender.

Section No. of Schedule of Rates (1)	Item No. of Schedule of Rates (2)	Section Percentage (whole number) (%) (3)	Adjustment Percentage (whole number) (%) (4)	Contract Percentage (%) (5)	Weighting Factor (6)	Value for Tender Assessment (%) (7)
SECTION 01	01001 – 01048		*PLUS / MINUS % (Not applicable to Sections 28 and Item 27020)		0.250	
	01049 – 01051				0.015	
SECTION 02	02001 – 02026				0.010	
SECTION 03	03001 – 03013				0.005	
SECTION 04	04001 – 04006				0.010	
SECTION 05	05001 – 05119				0.050	
SECTION 07	07001 – 07030				0.030	
SECTION 08	08001 – 08020				0.005	
SECTION 09	09001 – 09041				0.020	
SECTION 10	10001 – 10021				0.010	
SECTION 11	11001 – 11047				0.010	
SECTION 12	12001 – 12008				0.020	
SECTION 14	14001 – 14005				0.005	
SECTION 16	16001 – 16009				0.005	
SECTION 19	19001 – 19055 19194 – 19213				0.100	
	19056 – 19078				0.100	
	19079 – 19193				0.255	
SECTION 22	22001 – 22009				0.010	
SECTION 24	24001 – 24067				0.020	
	24068 – 24091				0.010	
SECTION 26	26001 – 26030				0.030	
SECTION 27	27001 – 27019				0.008	
	27020	0	0	0	0.002	0
SECTION 28	28001 – 28010	0	0	0	0.020	0
				Total	1.000	

* Delete or modify as appropriate

(The item groupings, limits on Contract Percentages and Weighing Factors are given for illustration purposes. The project engineer should review and modify in accordance with the nature of the Works as deemed necessary.)

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APPENDIX TO FORM OF TENDER – P. 2
NOTES TO THE SCHEDULE OF CONTRACT PERCENTAGES

(a) The tenderer shall complete the Schedule of Contract Percentages strictly in accordance with the following notes.

(b) The tenderer shall complete Section Percentages in column (3) in whole numbers. Section Percentages should lie within the maximum and minimum limits specified. Each Section Percentage shall not be less than a minimum of –20 nor greater than a maximum of +70. If a tenderer has inserted Section Percentages outside the limits stipulated, inserted percentages lower than the minimum limit will be corrected to the minimum limit –20 while inserted percentages higher than the maximum limit will be corrected to the maximum limit +70. If a tenderer has failed to insert any Section Percentage, the Section Percentage will be corrected to zero. Each value (except the value zero) entered shall be preceded with "+" sign to represent positive value or "-" sign to represent negative value. If neither "+" nor "-" is added to a non-zero number, the value shall be corrected as a positive number.

(c) The tenderer shall insert an Adjustment Percentage in whole number in column (4) and delete the word "PLUS" or "MINUS" whichever is inapplicable. The tenderer shall not precede the entered number with "+" sign or "-" sign. If such "+"or "-" sign is added, it will be disregarded. If a tenderer has failed to insert the Adjustment Percentage or has failed to delete either of the words "PLUS" or "MINUS" marked against the Adjustment Percentage or has deleted both the words "PLUS" and "MINUS" marked against the Adjustment Percentage, the Adjustment Percentage will be ascertained by back calculation using the equation stipulated in Note (d). If the Adjustment Percentage cannot be so determined with certainty, it shall be corrected to zero.

(d) The tenderer shall calculate the Contract Percentages and insert the values in column (5) using the following formula and rounding to the nearest whole number, e.g. +10.49 shall be rounded down to +10; +10.50 shall be rounded up to +11.

$$\text{Contract Percentage} = \frac{(100 + \text{The corresponding Section Percentage}) \times (100 + \text{Adjustment Percentage})}{100} - 100$$

(e) The tenderer shall complete the values in column (7) which shall be equal to the values in column (5) multiplied by the corresponding values in column (6).

(f) The Total of Values for Tender Assessment is to be the summation of the values in column (7).

(g) If a tenderer has inserted any Section Percentage, Adjustment Percentage or Contract Percentage not in whole number, the relevant Section Percentage, Adjustment Percentage or Contract Percentage shall be corrected by rounding to the nearest whole number, e.g. +10.49 shall be rounded down to +10; +10.50 shall be rounded up to +11. If any mistakes are found in the Contract Percentages, Values for Tender Assessment or the Total of the Values for Tender Assessment, correction will be made to these Contract Percentages, Values for Tender Assessment or the Total of the Values for Tender Assessment as the case may be to bring them strictly in accordance with the above notes. If a tenderer has amended the Section Percentage, Adjustment Percentage or Contract Percentage which are fixed values, the amendment(s) will be disregarded.

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(h) The Section Percentage and Adjustment Percentage applicable to the Schedule of Rates of Section 28 on Site Safety and Item 27020 are fixed at 0% and hence the Contract Percentage for Section 28 is also fixed at 0%. Tenderers shall not amend the Section Percentage, Adjustment Percentage and Contract Percentage for Section 28 and Item 27020.

(i) The weighting factors given are to be used for tender assessment purpose only, and they do not indicate the extent of the work. The Employer does not give any representation, warranty or guarantee that the weighting factors or any part thereof bears any relation to the actual proportion of any item of work to the Whole of the Works.

(j)

Contract Rate of an item of work = Rate of the item of work in the Schedule of Rates X (100 + the relevant Contract Percentage)/100

(k) All values in columns (3), (4), (6) and (7) are for tender assessment purpose only.

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APPENDIX TO FORM OF TENDER – P. 3

General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition)

Clause No.

1(1)	Contract Period	xxx days
1(1)	Maintenance Period for:-	
	(i) Works other than Establishment Works for each Works Order	xx months
	(ii) Establishment Works for each Works Order	x day

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2(1)(b) Actions of the Engineer subject to the Employer's right of objection and direction

The Engineer is required under the terms of his appointment by the Employer to obtain confirmation of no objection from the Employer and, in the event of an objection, to act in accordance with the Employer's direction before ordering any variation to the Works or taking any other action (including without limitation making an order under Clause 56 of the General Conditions of Contract) which may commit the Employer to additional expenditure under the Contract, other than in respect of claims, of a value estimated to exceed HK$1,000,000. This requirement shall not be applicable where the variation order or other action is considered by the Engineer to be essential on grounds of safety or other emergency in circumstances when it is impracticable to refer the matter to the Employer beforehand.

The Engineer may, subject to any prior contrary instructions given by the Employer to the Engineer, order variation to the Works in accordance with the provisions of the Contract or take any other action (including without limitation making an order under General Conditions of Contract Clause 56) which may commit the Employer to additional expenditure under the Contract, other than in respect of claims, without the need to obtain confirmation of no objection from the Employer if the value of such order or commitment is estimated not to exceed HK$1,000,000.

[12][The Engineer is required under the terms of his appointment by the Employer to obtain confirmation of no objection from the Employer and, in the event of an objection, to act in accordance with the Employer's direction before permitting the Contractor to introduce an extra tier of sub-contracting in accordance with sub-clause (5) of SCC[X[13]].]

[14][The Engineer is required under the terms of his appointment by the Employer to obtain confirmation of no objection from the Employer and, in the event of an objection, to act in accordance with the Employer's direction before approving alternative disposal grounds proposed by the Contractor in accordance with sub-clause (3) of PS[X[15]].]

[16][The Engineer is required under the terms of his appointment by the Employer to obtain confirmation of no objection from the Employer and, in the event of an objection, to act in accordance with the Employer's direction before ordering landslide-related emergency works under exceptional circumstances in accordance with SCC[X[17]].]

[12] Please refer to SDEV's memos ref. (027RU-01-3) in DEVB(W) 510/17/01 dated 16.7.2010, ref. DEVB(W) 510/17/01 dated 6.9.2013 and ref. DEVB(W) 510/94/02 dated 28.3.2019 and 11.8.2020.
[13] To insert relevant clause number for the SCC clause on Limiting the Tiers of Sub-contracting.
[14] Please refer to the revised trip ticket system as promulgated in DEVB TCW No. 6/2010.
[15] To insert relevant clause number for the PS clause on Trip Ticket System.
[16] This paragraph is applicable if the SCC clause on "Landslide-related emergency works under exceptional circumstances" is used in this contract.
[17] To insert relevant clause number for the SCC clause on Landslide-related Emergency Works under Exceptional Circumstances.

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APPENDIX TO FORM OF TENDER – P. 4

***12** Amount of bond or cash security (if required)_____ $xxx

49(1) Mobilisation period, from date of commencement stated in the Works Order _____ x days unless otherwise stated in the Works Order

54(2) Liquidated damages for each Works Order shall be calculated in accordance with the following formula:

(formula to calculate the liquidated damages to be inserted by the project office) Note 1

In computing the above liquidated damages, the Employer has not taken into account the Employer's liability for fees including economic cost under the Land (Miscellaneous Provisions) Ordinance, Cap. 28 ("the Ordinance") for any extension in respect of a permit referred to in sections 10A(3) and 10D(4) of the Ordinance.

79(2)(a) Limit of interim payment for any one Works Order _____ xx%

79(2)(c) Minimum amount of interim payment for:

(i) Each Works Order (except Works Order for Establishment Works)_____ $xxx

(ii) Works Order for Establishment Works only _____ xxxx

Note 1 : The project office shall refer to the guidelines given in ETWB TCW No. 4/2003 for the formula used to calculate the Liquidated damages for each Works Order.

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APPENDIX TO FORM OF TENDER – P. 5

Special Conditions of Contract

S.C.C. xx Minimum amount of third party insurance _____ $xxxx

S.C.C. xx Period for Establishment Works _____ xxx months

*The following 2 entries shall be added where the existing trees that are to be preserved and protected include **Old and Valuable Trees** from the register at the website: https://www.greening.gov.hk/en/tree-care/old-and-valuable-trees-and-tree-register/index.html. Further details on the registration procedures and special protection measures required are given in DEVB TCW No. 5/2020*

SCC xx Sum[18] payable to the Employer in the event that Old and Valuable Tree No. __ dies or becomes moribund $ _____

SCC xx Period for Aftercare to Old and Valuable Trees (*Tree/Trees No. __) [19] ___ months

Maintenance Period for Aftercare to Old and Valuable Trees[19] ___ months

Note : The estimated total expenditure on this Contract is about _____ million dollars. The estimated total expenditure on the Contract is given for information only. The Employer does not give any representation, warranty or guarantee that the actual expenditure on the Contract will not differ, whether substantially or otherwise, from the estimated total expenditure on the Contract

[18] Separate sum shall be applied to each tree if more than one Old and Valuable Tree is involved. The sum for each Old and Valuable Tree shall be the genuine pre-tender estimate of the cost that the Employer has expended in nurturing, preservation, protection and maintenance of that particular tree.

[19] The Period for Aftercare to Old and Valuable Trees together with its subsequent Maintenance Period should preferably end on the same date as the Maintenance Period for the Works, or if there is more than one Maintenance Period, on the same date as the last Maintenance Period.

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APPENDIX 8.3B AN EXAMPLE OF A FORM OF TENDER FOR A TERM CONTRACT USING NEC FORM

THE GOVERNMENT OF THE HONG KONG SPECIAL ADMINISTRATIVE REGION

(name of department)

CONTRACT NO. (contract number)

(contract title)

FORM OF TENDER

NOTES :

(1) If the tenderer is a limited company (including incorporated joint venture), insert the information in the spaces provided at Form of Tender – P.3.

(2) If the tenderer is an unincorporated joint venture, insert the information in the spaces provided at Form of Tender – P.4 to P.5.

(3) If the tenderer is a sole proprietorship or a partnership, insert the information in the spaces provided at Form of Tender – P.6.

(4) In all cases, insert the number(s) and the expiry date(s) of the business registration certificate(s) here[1]:

Name:	_____	Name:	_____
Business Registration Number:	_____	Business Registration Number:	_____
Expiry Date:	_____	Expiry Date:	_____
Name:	_____	Name:	_____
Business Registration Number:	_____	Business Registration Number:	_____
Expiry Date:	_____	Expiry Date:	_____

[2]To : The Chairman,
Central Tender Board,
Lobby of the Public Entrance on the Ground Floor,
East Wing, Central Government Offices,
2 Tim Mei Avenue, Tamar,
Hong Kong

[1] If the tenderer is a partnership or an unincorporated joint venture, provide the required information of all partners or all participants of the unincorporated joint venture.

[2] Please update for submission to a tender board other than the Central Tender Board

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FORM OF TENDER – P.2

1. Having inspected the Site, the Articles of Agreement and all documents referred to in the Articles of Agreement, I/we offer to Provide the Works as may from time to time be instructed and in conformity with the *conditions of contract*, *additional conditions of contract*, Service Information and Price List [and the technical resources and technical proposals submitted in accordance with Clause GCT 4(1)(d) of the General Conditions of Tender][3] at the rates given in the Price List subject to other adjustments as stated in this contract for a *service period* of xxx[4].

2. I/We agree to abide by this Tender for the period of xxx days[5] from the date, or the extended date if this has been extended, of expiry fixed for receiving the same and it shall remain binding upon me/us and may be accepted at any time before the expiration of that period.

3. Unless and until the Articles of Agreement is prepared and executed, this Tender together with the written acceptance thereof by the *Client/Employer*[6] subject to the provisions of clause 2 hereof shall constitute a binding contract between us.

4. I/We understand that the *Client/Employer*[6] reserves the right to negotiate with any tenderer about the term of the offer and is not bound to accept any tender irrespective of whether the tender is the lowest offer or, where the assessment of the tenders is based on a marking scheme or formula approach, the tender is with the highest overall score.

[3] Delete the text in square brackets when Formula Approach is adopted for tender evaluation.

[4] Please insert an appropriate *service period*.

[5] Information to be inserted by the Project Office (normally 90 days).

[6] Use "*Employer*" for NEC3 form or use "*Client*" for NEC4 form.

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FORM OF TENDER – P.3

(To be inserted in case the tenderer is a limited company)

Name _____

Signature _____

in the capacity of _____

duly authorised to sign tenders for and on behalf of (name of the limited company)

_____

Registered address of the limited company

_____

_____

_____

Name of Witness _____

Signature of Witness _____

Occupation of Witness _____

Address of Witness _____

_____

_____

Date _____

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FORM OF TENDER – P.4

(NOTE: To be inserted in case the tenderer is an unincorporated joint venture[7])

Name _____ Name _____

Signature _____ Signature _____

in the capacity of _____ in the capacity of _____

duly authorised to sign tenders for and on behalf of (name of the participant of the unincorporated joint venture)

_____ _____

Registered address of the participant of the unincorporated joint venture

_____ _____

_____ _____

_____ _____

Name _____ Name _____

Signature _____ Signature _____

in the capacity of _____ in the capacity of _____

duly authorised to sign tenders for and on behalf of (name of the participant of the unincorporated joint venture)

_____ _____

Registered address of the participant of the unincorporated joint venture

_____ _____

_____ _____

_____ _____

[7] Insert the information of all participants of the unincorporated joint venture in the spaces provided. In case of more than four participants, insert an additional page following the above format.

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FORM OF TENDER – P.5

Trading in Hong Kong with a business name of (the name of the unincorporated joint venture)

_____

Correspondence address of the unincorporated joint venture

_____

_____

Name(s)[8] of Witness(es)	_____	_____
Signature(s) of Witness(es)	_____	_____
Occupation(s) of Witness(es)	_____	_____
Address(es) of Witness(es)	_____	_____
	_____	_____
Date	_____	_____

[8] In case more space is required for the information of the witness(es), insert an additional page following the above format.

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FORM OF TENDER – P.6

(NOTE: To be inserted if the tenderer is a sole proprietorship or a partnership[9])

Name _____ Name _____

Signature _____ Signature _____

Residential address[10] Residential address[10]

_____ _____

_____ _____

_____ _____

Name _____ Name _____

Signature _____ Signature _____

Residential address[10] Residential address[10]

_____ _____

_____ _____

_____ _____

Trading in Hong Kong with a business name of (the name of the sole proprietorship or the partnership)

_____

Correspondence address of the sole proprietorship or the partnership

_____

Name(s)[11] of Witness(es) _____ _____

Signature(s) of Witness(es) _____ _____

Occupation(s) of Witness(es) _____ _____

Address(es) of Witness(es) _____ _____

_____ _____

Date _____ _____

[9] Insert the information of the sole proprietor or all partners of the partnership in the spaces provided. In case of more than four partners, insert an additional page following the above format.

[10] In case a partner of the partnership is a body corporate, its registered address shall be provided instead.

[11] In case more space is required for the information of the witness(es), insert an additional page following the above format.

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CHAPTER 9

MEASUREMENT PROCEDURE

The parts of the PAH shown in blue and bold should only be updated by Works Branch of Development Bureau.

Rev	Issue Date	Amendment Incorporated
First Issue	December 2024	NA

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SYNOPSIS

This Chapter describes the criteria to be adopted, the procedures to be followed and the documentation that is required in the measurement of civil engineering works and to be read in conjunction with the relevant departmental guidelines where appropriate.

To cater for the wider adoption of New Engineering Contract (NEC) form in public works projects works projects, DEVB has promulgated the "Practice Notes for New Engineering Contract – Engineering and Construction Contract (NEC–ECC) for Public Works Projects in Hong Kong" and "Practice Notes for New Engineering Contract (NEC) - Term Service Contract (TSC) for Public Works Projects in Hong Kong" (referred to as "the Practice Notes") aiming to provide guidance, performance benchmarking and alignment of practices in the administration of public works projects using NEC form. The most updated version of the "Practice Notes" for Engineering and Construction Contract (NEC – ECC) and Term Service Contract (NEC – TSC) are available at the following DEVB's websites:

NEC – ECC
https://www.devb.gov.hk/en/publications_and_press_releases/publications/standard_contract_documents/practice_notes_nec_engineering_construction_contract/index.html

NEC – TSC
https://www.devb.gov.hk/en/publications_and_press_releases/publications/standard_contract_documents/practice_notes_nec_term_service_contract/index.html

Whilst the guidelines provided in this Chapter were originally written for measurement of civil engineering works under GCC, many of the guidelines in this Chapter can still be applied to certain types of contract under NEC. It should be noted that these are guidelines for good practice rather than mandatory procedures. The project office should ensure the suitability of the use of these guidelines by taking into account the scale and the complexity of the project and the availability of staff resources.

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I. ABBREVIATION

I.01 The meaning of the abbreviations assigned in this Chapter of the Project Administration Handbook for Civil Engineering Works shall only apply to this Chapter.

I.02 The following list shows the meaning of the abbreviations for the common terms used in this Chapter of the Project Administration Handbook for Civil Engineering Works:

Abbreviation	Term
BQ	Bills of Quantities
DEVB	Development Bureau
DEVB TCW No.	DEVB Technical Circular (Works) No.
ETWB	Environment, Transport and Works Bureau
ETWB TCW No.	ETWB Technical Circular (Works) No.
GCC	General Conditions of Contract for Civil Engineering Works (1999 Edition)
HyD	Highways Department
PAH	Project Administration Handbook for Civil Engineering Works
QS	Quantity Surveyor
SMM	Standard Method of Measurement for Civil Engineering Works (1992 Edition)
SO(Q)	Survey Officer (Quantity)
WB	Works Bureau
WBTC No.	Works Bureau Technical Circular No. or Works Branch Technical Circular No.
WSD	Water Supplies Department

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II. GLOSSARY OF TERMS

II.01 Words and expressions to which meanings are assigned in this Chapter of the Project Administration Handbook for Civil Engineering Works (PAH) shall only apply to this Chapter.

II.02 In this Chapter of the PAH the following words and expressions shall have the meaning hereby assigned to them except when the context otherwise requires:

"Government" means the Government of the Hong Kong Special Administrative Region.

"project office" means the office responsible for the planning, design and construction of the project.
(Where these functions are performed by different offices at different stages, the project office shall mean the office responsible at each particular stage.)

"Contract", "Specification", "Contractor", "Drawings", "Employer", "Engineer", "Engineer's Representative" and "Works" are as defined in the General Conditions of Contract for Civil Engineering Works (1999 Edition) or the General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition).

"Schedule of Rates" and "Works Order" are as defined in the General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition).

"Price List" and "Task Order" are as defined in the NEC4 Term Service Contract.

II.03 Words importing the singular only also include the plural and vice versa where the context requires.

II.04 The common terminologies used in GCC, NEC–ECC and NEC-TSC are compared in the table below.

GCC	**NEC – ECC**	**NEC – TSC**
Extension of time, variations, claims, disruptions, loss and expenses	Compensation events	
Bills of Quantities / Schedule of Rates	Bill of Quantities / Activity Schedule	Price List
Architect / Engineer / Surveyor / Supervising Officer	Project Manager / Supervisor	Service Manager
Site	Site / Working Areas	Contract Areas / Sites
Contract Sum	The Prices	
Date of completion	Completion Date	End of the Service Period / Task Completion Date

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Estimated value of works	Price for Work Done to Date	Price for Service(s) Provided to Date
Maintenance Periods	Defects date, defect correction period	Maintenance Periods
Special Conditions of Contract	Additional Conditions of Contract	
Liquidated damages	Delay damages	

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1. GENERAL

1.1 TYPE OF CONTRACTUAL ARRANGEMENT

It is desirable to begin by defining the type of contractual arrangement in relation to the 'measurement' of civil engineering works (see also Chapter 5 - Contract Documents).

1.1.1 Lump Sum Contracts with Drawings and Specification

The contract sum is based on the drawings and specifications, and measurement is only required to assist in valuation of the variations. This contractual arrangement is also applicable to the electrical and mechanical works (see WBTC No. 19/2000) and those works of which an alternative design proposed by the Contractor is accepted (see DEVB TCW No. 3/2014).

1.1.2 Lump Sum Contracts with Firm Bills of Quantities

The quantities for the works form the basis of the contract sum and are not subject to remeasurement. Accurate quantities have to be measured from the fully completed design in the pre-contract stage. During the contract period, measurement is required for provisional quantities and valuation of variations only (see Section 10 of PAH Chapter 5).

1.1.3 Remeasurement Contracts with Approximate Bills of Quantities

The quantities in the Bills of Quantities (BQ) are approximate only and are subject to remeasurement upon completion of works on site. This form of contractual arrangement is adopted in the General Conditions of Contract for Civil Engineering Works (1999 Edition) (GCC) and New Engineering Contract – Engineering and Construction Contract (NEC–ECC) Hong Kong Edition Option B or D are commonly used for capital works projects.

1.1.4 Schedule of Rates Contracts

This type of contract is suitable where it is not possible or practical at the tender stage to give realistic and accurate quantities of the works that are to be undertaken. For these contracts, a Schedule of Rates is drawn up as a list of all the items that are expected to be required for the Works. The tenderers need to insert prices against each item or state the percentages above or below the given rates for which they would be prepared to execute the works (see paragraph 4.2.2 for details). This contractual arrangement is usually applicable to term contracts for execution of maintenance or minor works and for provision of services (e.g. watchmen). This type of contractual arrangement is adopted in the General Conditions of Contract for Term Contracts for Civil Engineering Works (2002 Edition)
, the General Conditions of Contract for Term Contracts for Electrical and Mechanical Engineering Works (2007 Edition) and NEC4 Term Service Contract (TSC) with amendments.

1.1.5 Design and Build Contracts

This type of contract is suitable where the Contractor is required to design and construct the works in accordance with the Employer's Requirements. They are normally lump sum contracts and tenderers are required to respond to the Employer's Requirement by

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submitting a "breakdown of the Contractor's rates and prices" on which his tender prices are based. For further details, please refer to the "Administrative Procedures 2015 for Use with the Government of the Hong Kong Special Administrative Region General Conditions of Contract for Design and Build Contracts (1999 Edition)" introduced by the DEVB TCW No. 4/2015.

1.2 STANDARD METHOD OF MEASUREMENT

1.2.1 Purpose

It is important to establish a considerable degree of standardization in the method of preparing the BQ and the units used in them. To achieve this aim, a Standard Method of Measurement is used, the purpose of which can be summarized as follows:

(a) To facilitate pricing by standardizing the layout and content of the BQ,

(b) To provide a systematic structure of bill items, leading to uniform itemization and descriptions,

(c) To provide a rational system of billing suitable for both manual and computer operation,

(d) To simplify the measurement of works and the administration of contracts,

(e) To provide a uniform basis for measuring the works so as to avoid misunderstanding and ambiguities, and

(f) To assist in the financial control of the works.

1.2.2 Adopted Document

In general, capital works shall be measured in accordance with the "Standard Method of Measurement for Civil Engineering Works (1992 Edition)" (SMM) including Corrigenda thereof, and relevant SDEVB's memos and DEVB TCWs in relation to Monitoring of Wage Payment to Site Workers, Environmental Management, Preservation of Preserved trees, Site Cleanliness and Tidiness, Trip Ticket System Management, Smart Site Safety System, as well as Construction Site Safety Manual in relation to Safety Management.

Any amendment or amplification to the SMM required for a specific contract shall be included in the contract documents as a Particular Preamble to the BQ (see paragraph 7.3 of Chapter 5 (Contract Documents)).

For term contracts, the method of measurement shall be as set out in the contract documents of individual contracts.

1.2.3 Guidelines for Use

The SMM is divided into five parts:

(a) Part I, which gives general definitions of the terms used in the document.

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(b) Part II, which states the general principles of how to use the document and how item descriptions are built up.

(c) Part III, which contains the rules for the preparation of the BQ. It defines the sections into which the Bills are to be split, how items are to be grouped within these sections, and the units to be used. It also describes how amendments or amplifications to the SMM are to be dealt with.

(d) Part IV, which is the General Preambles to the BQ. This part provides information to the tenderer to price the items, and must be reproduced in the BQ.

(e) Part V is the units and method of measurement, and is divided into sections. Each section details:

(i) The items to be measured,

(ii) The units of the measurements,

(iii) The method of measurement of each item,

(iv) The wording for the build-up of descriptions, and

(v) An item coverage for the relevant item of work listing the matters which are deemed to be included in that item, enabling the contractor to price the item fully.

1.2.4 Standard Phraseology of Item Descriptions

WBTC Nos. 21/93, 21/93A and 21/93B introduce the document, "Standard Phraseology of Item Descriptions" (SPID). The BQ prepared in accordance with the SMM shall comply with the requirements of the SPID as closely as possible, with necessary modifications to align with the General Specification for Civil Engineering Works, 2020 Edition. The purpose of the document is to ensure uniformity in item descriptions used in the BQ and to form a database for preparing cost estimates.

1.3 ACCURACY OF MEASUREMENT

Dimensions should be as accurate as possible, but it should be noted that they should not be recorded to a degree of accuracy which is greater than that to which the works can be executed, or greater than that to which the actual measurement is made.

When measurements are taken from drawings, specified dimensions on the drawings should always be used whenever possible (see paragraph 3.4.2). When measurements of the works are made on site, they shall be recorded to the smallest division on the appropriate measuring instrument used to record to a degree of accuracy, which is not less than that to which the works are to be executed.

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1.4 MEASUREMENT RESPONSIBILITY

After a Contract is entered into, the Engineer for the Contract is responsible for discharging the measurement function and he may delegate his authority to the Engineer's Representative to carry out the measurement work with the assistance from the Survey Officer (Quantity) (SO(Q)) and the site staff. Emphasis should be made to ensure a consistent and systematic approach throughout the pre- and post- contract stages and the need to implement an independent checking system for all the measurement works. The Engineer's Representative should also be responsible for co-ordinating measurement input from other professional staff such as the land surveyors, electrical and mechanical engineers or landscape architects. For record purposes, the persons preparing and checking the measurement should initial for all his work.

The division of labour regarding the taking of measurements for a project varies under different circumstances and depends on:

(a) The nature and complexity of the works,

(b) The experience and availability of the staff members,

(c) The time within which the measurement is to be completed, and

(d) The standing instructions in the department.

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2. CAPITAL WORKS CONTRACTS PRE-CONTRACT MEASUREMENT

2.1 BILLS OF QUANTITIES

2.1.1 Definition

The term Bills of Quantities (BQ) is defined in the SMM as a list of items giving brief identifying descriptions and estimated quantities of the works to be performed. The BQ forms a part of the contract documents, and is the basis of payment to the Contractor.

2.1.2 Objectives

To ensure that the BQ are prepared correctly, it is important during preparation to always bear in mind the three main objectives of the document. These are:

(a) To enable tenders to be obtained from tenderers and to form the basis for tender comparison,

(b) To provide a means of valuing the works, and

(c) To form a basis for fixing any rates not included in the BQ, or valuing any variations.

2.1.3 Preparation

The BQ should be prepared by the project engineer (or the project QS) in accordance with the SMM (see also paragraphs 1.2.2, 2.6.1 & 2.6.2). Reference should also be made to paragraphs 7.1 to 7.12 of Chapter 5 (Contract Documents).

Measurement for works charged to different votes may be taken and billed separately so that it is possible to identify them separately.

In case there are "Sections Subject to Excision" in the Contract, reference should be made to paragraph 9.41 of Chapter 5 (Contract Documents).

2.2 TAKING OFF

2.2.1 General Rules

Taking off is the procedure by which dimensions of the works are calculated or scaled off from the drawings and entered onto dimension papers (G.F. 516) or other similar computerized formats.

The normal format of dimension paper is indicated below.

1	2	3	4	1	2	3	4

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Column 1 is the 'timesing' column in which multiplying figures are entered when there is more than one of the particular item being measured.

Column 2 is the 'dimension' column in which the actual dimensions taken from the drawings are entered.

Column 3 is the 'squaring' column in which the product of the figures in column 1 and column 2 is recorded ready for transfer to the abstract or bill.

Column 4 is the 'description' column in which the written description and SPID codes of each item are entered. The right-hand side of this column is known as the 'waste' area. It should be used for preliminary calculations, build up of lengths, explanatory notes and related matters. All steps that have been taken in arriving at dimensions, no matter how elementary or apparently trivial, should be entered here, as this will neatly aid remeasurement, valuing the works done for interim certificates, and answering any queries regarding the measurements which may arise.

2.2.2 Entering Dimensions

A constant order of entering dimensions must be maintained throughout, that is (1) length, (2) breadth or width, and (3) depth or height, so that there can be no doubt as to the shape of the item being measured. If this is not possible, dimensions should be annotated to indicate length, width or breadth, height or depth, diameter, etc.

Dimensions should usually be recorded in metres to three decimal places and a line drawn across the dimension column under each set of measurements.

Very often when measuring a number of dimensions for one item of construction it will be necessary to deduct some dimensions from the total. To ensure that this is done clearly, it is good practice to enter such dimensions in the timesing column under the heading DDT (meaning deduction).

Many of the words entered in the description column can be abbreviated to save both space and time.

Ample space should be left between all items on the dimension papers so that it is possible to follow the dimensions with ease and to enable any items, which may have been omitted when the dimensions were first taken off, to be inserted subsequently.

All entries in the dimension sheet should be made in ink or blue/black ball pen. Erasable ball pens should not be used. If it becomes necessary to amend any dimensions that have been entered on the dimension paper, this should never be done by the use of correction fluid or eraser, or by altering the actual figures. The correct procedure is to write NIL in the squaring column against the dimensions to be amended, and to write new dimensions in the normal manner under the last dimension listed for that item.

Each dimension sheet should be headed with the contract number, and the abbreviated contract title, section of the job and the drawing number(s) to which the taking-off sheet referred at the head of each sheet. Each sheet should be numbered consecutively at the bottom.

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At the top of the first dimension sheet for each main section of works the list of drawings from which the measurement is taken should be entered. Revisions to the drawing used should be precisely stated so that in the event of any change being made to work as originally planned it can be clearly seen what was measured in the BQ.

Dimension papers should be punched in the top left-hand corner on completion and fastened together with treasury tags.

In many occasions, a dimension sheet comprises several works items all related to a single structure (e.g. foundation structure). Under such situation, the quantities of each individual works item for this single structure should be properly highlighted to avoid transfer error. In some occasions, computer spreadsheet program is used to prepare the dimension sheet. Under such situation, it will be preferable for one dimension spreadsheet sheet to contain a single works item only.

The assumption/methodology adopted in the taking-off exercise should be shown on the dimension papers to facilitate subsequent cross-checking by more senior staff.

An example of a dimension sheet, incorporating the above procedures is shown at Appendix 9.1.

2.2.3 Drawings and Information

Taking off of dimensions should be based on the tender drawings, which should be registered in a drawing record (Appendix 9.2) showing the date of issue and of any revisions. Taking off drawings should be clearly marked, preferably by the use of a rubber stamp, stating "Drawing used in the preparation of Bills of Quantities", as this will avoid any confusion as to what is included in the BQ. Drawings should be marked to show that the works have been measured. Should revised tender drawings be issued for tender addendum purposes, all changes should be marked in red circles and the measured quantities should be adjusted for the changes, and incorporated in the revised BQ. Queries should be raised and to be confirmed by the project engineer before making the necessary amendments.

2.2.4 Use of Schedules

Schedules should be used to assist in measuring a number of items of similar characteristics but of varying components. When a large number of dimensions are taken off, it is more efficient and clearer to set out the dimensions in schedule form or an electronic spreadsheet rather than on dimension paper. A blank drainage schedule is shown at Appendix 9.3 as an example.

2.3 MEASURATION

2.3.1 Measurement of Areas

Measurement of regular areas may be carried out by using the standard formulae shown at Appendix 9.4.

Irregular areas may be measured by one of the following methods, and then checked independently using one of the two other methods:

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(a) By planimeter; or

(b) By dividing the area into a number of regular areas. The smaller the regular areas adjacent to the irregular outline, the greater the degree of accuracy; or

(c) By Simpson's Rule or Trapezoidal Rule. The smaller the interval between sections, the greater the degree of accuracy.

Where areas are measured by using a planimeter, the average of two readings should be taken, provided that the two readings do not differ by more than 12mm² when the average is less than 3,000mm², or 24mm² when the average is greater than 3,000mm², or in accordance with the instruction manual of the planimeter. If the two readings differ by more than these limits, one or more check readings should be taken until two readings are obtained which satisfy these limits, and the average of these two readings should then be accepted.

Measurement of areas may also be carried out by making reference to the Engineering Survey Practice Guides for Works Projects (2023 Edition). (https://www.cedd.gov.hk/eng/publications/standards-spec-handbooks-cost/index.html)

2.3.2 Measurement of Volumes

Measurement of regular volumes may be carried out by using the standard formulae shown at Appendix 9.4.

Irregular volumes may be measured by one of the following methods, and then checked independently by using one of the four other methods:

(a) By dividing the volume into a number of regular volumes,

(b) By method of end areas,

(c) By Simpson's Rule to obtain the areas of contours,

(d) By Simpson's Rule to obtain the areas of equally spaced cross-sections, and

(e) By planimeter, (c) or (d), for contours or cross-sections.

The formulae for measuring irregular volume by method of end areas and Simpson's Rule are shown at Appendix 9.4.

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When measurements of volumes require the use of contours or cross-sections, the spacings should be taken in accordance with the following table:

Type of Volume	Spacing
Bulk volume by contour	5m
Bulk volume by cross-section	10m
Volumes of roads, trenches and items with regular cross-sections over a given length	one at each change in direction or cross-section

It should be noted that if the position of cross-sections are altered, the volume will change. To avoid any problems of this nature that may occur when the works are remeasured on site, the measurement method adopted should be defined in a Particular Preamble to the BQ, and the position of the cross-sections to be used should be marked on the contract drawings.

Measurement of volumes may also be carried out by making reference to the Engineering Survey Practice Guides for Works Projects (2023 Edition). (https://www.cedd.gov.hk/eng/publications/standards-spec-handbooks-cost/index.html)

2.3.3 Measurement of Bar Reinforcement

Bar bending schedules should be prepared either manually in a schedule (see Appendix 7.13 of Chapter 7 (Contract Management)) or by computer. They should never be incorporated into contract drawings.

Specific requirements for scheduling, dimensioning of steel reinforcement are given in BS 8666 whilst the mass of the bars is calculated on the basis that steel has a density of 0.00785 kg/mm² per metre run as given in Clause 11.02 of SMM. In the case of manually computed bar schedules the total lengths and weights of the various sizes and types of bar should be summed on each sheet and transferred directly to abstract sheets. In the case of computerised bar schedules, the computed totals of weights of reinforcement bars should be transferred directly to the abstract sheets. In both cases, the schedule or computer print-out should, as for drawings, be clearly marked “Schedules used in the preparation of the BQ”.

2.4 PREPARATION OF BILLS OF QUANTITIES

This section deals with the final stages leading to the preparation of the BQ, after the dimensions have been taken off.

2.4.1 Squaring

The term ‘squaring the dimensions’ refers to the calculation of the numbers, lengths, areas or volumes and their entry in the third or squaring column on the dimension paper. Squaring should be carried out to three decimal places, with the final squared quantities on the abstract sheet rounded off in accordance with paragraph 3.4.7.

Squaring must be independently checked to eliminate errors. Any incorrect figures

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should be neatly crossed out in red ink or ball pen and the correct figures written above the incorrect ones. Correcting fluid shall not be used nor shall incorrect figures be erased. All squared dimensions and waste calculations should be ticked in red ink or ball pen on checking and any alterations should be made in a similar manner. Amended figures must be further checked.

Staff responsible for checking the dimension papers shall also conduct their checks with reference to the design drawings and vet the assumption/methodology stated on the dimension papers.

2.4.2 Abstracting

Abstracting is the process whereby the squared dimensions are transferred to an abstract sheet (G.F. 520) or other similar computerized formats, where they are written in a recognised order, ready for billing, under the appropriate section headings, and are subsequently reduced to the recognised units of measurement in readiness for transfer to the bills.

As each item is transferred to the abstract, the description of the appropriate dimension should be crossed through with a vertical line on the dimension sheet, with short horizontal lines at each end of the vertical line, so that there is no doubt as to what has been transferred.

Each abstract sheet should be headed with the contract number, abbreviated contract title, sheet number and section of the works to which the abstracted dimensions refer. The section headings normally should follow those given in the SMM, in the same order.

Entries in the abstract should be well spaced. The items should be entered in the same order as they will appear in the bill, since the primary function of the abstracting is to classify and group the various items preparatory to billing, and to reduce the dimensions to the recognised unit of measurement.

Descriptions should be spread over two columns, with a line drawn underneath, and the appropriate dimensions listed below in the first column, with any deductions in the second column. Against each dimension, the number of the dimension sheet from which that dimension has been transferred should be inserted in brackets, for easy cross-referencing. When the total quantity for each item is calculated, any deductions from the second column, which have been taken into account in arriving at the total quantity should then be lined through to ensure that they are not deducted twice.

It is a good practice to precede each description in the abstract with the prefix C, S, L or Nr denoting that the item is cubic, square, linear or enumerated to reduce the risk of errors arising with regard to units or quantities. The order of items in each section of the abstract should, as much as possible, be standardized. It is usual to adopt the order of cubic, square, linear and finally enumerated items, with smaller items preceding larger ones, and cheaper items preceding more expensive ones in each group, but attention should also be paid to the sequence of items in the SMM. Where it is necessary to abstract a number of similar items, but of different sizes, these should be grouped under a single heading with each size entered in a different column.

On completing the entry of all items on the abstract, all entries must be checked,

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columns of figures cast, deductions made, totals reduced, and all the latter work checked and ticked in red ink or ball pen in the same procedure as described for squaring.

An example of an abstract sheet completed in accordance with the above procedures is shown in Appendix 9.5.

2.4.3 Billing

Billing is the final stage in the bill preparation process in which the items and their associated quantities are transferred from the abstract onto the standard billing sheets (G.F. 519) or other similar computerized formats that are in a format that enables the tenderer to price each item and arrive at a total tender sum.

As each item is transferred to the bill, it should be lined through on the abstract to prevent any risk of errors occurring during the transfer stage. Generally, all quantities transferred are to be billed to the nearest whole unit (see SMM). Fractional quantities are not generally necessary but, where required, should not be given to more than one place of decimals. The order of billed items should be the same as in the abstract, and they should be grouped under suitable section headings as they appear in the SMM. Items should be indexed, either by a letter or a number, in the first column of the billing sheet.

The total sum on each page should be carried to a collection or summary for each section, and the totals from these carried to a Grand Summary, the total of which constitutes the tender sum.

Unless for those abbreviations as defined in Part III of the SMM, abbreviations must not be used in the descriptions and the wording and layout of each description must follow the rules laid down in the SMM and its amendments in the Particular Preambles.

On completion, the draft bill must be carefully checked against the abstract, and the abstract suitably marked in red ink or ball pen as each item is dealt with. Particular care should be taken to ensure that all the quantities, units and descriptions are correct, and that the sequence of items, the section headings and sub-headings, and the transfer of totals to collection and summary, are satisfactory and adequately covered.

To minimize the occurrence of missing items, a standard checklist showing typical types of BQ items included in different major categories of works (such as roadworks, drainage works, land formation, geotechnical works) can be developed so that the staff responsible for checking of the draft bill can carry out consistency check on the bills against such standard checklist.

Finally, a further check should be carried out once the bill is typed.

2.5 ALTERNATIVE METHODS OF BILL PREPARATION

The traditional bill preparation process can be a lengthy and time-consuming exercise, unnecessarily so for simpler projects. A number of ways of shortening this process can be adopted, as described below. The project engineer (or the project QS) should decide

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on, and follow the procedures for, the method most suited to the particular project in hand.

2.5.1 Billing Direct

In this method, the abstracting stage is omitted by transferring the items directly from the dimension sheet to the bill. Particular care must be taken, however, when adopting this method, and a methodical order of transfer must be adopted to ensure that the items are listed correctly and in the right sequence in the bill.

Items transferred should be clearly crossed out on the dimension sheet, and an independent check must be carried out on all calculations, which should be ticked in red ink or ball pen, and also on all transfers.

This method should be adopted where the number of similar items is not too extensive, and the job is not too complex in character.

2.5.2 Alternative Form of Billing Direct

This method has the taking-off and billing process done on the same 'special' ruled paper, a sample of which is shown at Appendix 9.6. Each sheet contains the measurement of one item only, and it consists of an upper and lower part. A full description of the item, unit and quantities are to be listed on the upper part of the paper whilst the dimensions are to be listed in rows on the lower part of the paper. The build-up and cross-reference of dimensions should be neatly done in the space beyond the timesing column. If measurement exceeds the number of rows, a separate sheet should be used and stapled to the first sheet. Upon completion of the taking-off and squaring, the quantity is entered in the space on the upper part of the sheet. The sheets are then sorted into sections and placed in bill order ready for typing onto billing paper.

The method is convenient to use and has the advantage of eliminating the process of abstracting and having the description of the item written once. However, extreme care must be exercised in keeping the sheets, as losing any sheet may result in the omission of an item in the Bills.

2.5.3 'Cut and Shuffle'

The 'cut and shuffle' system of bill preparation operates as follows:

(a) The taking-off is carried out to the same procedures as described in paragraph 2.2, but the dimensions are entered on special 'cut and shuffle' paper. Each sheet comprises a white original and a yellow carbon copy, and is ruled in such a manner that it forms three separate small dimension papers, which are commonly referred to as 'slips'.

Each 'slip' should be numbered, and have the job number stamped on the top. Taking-off then proceeds in the usual manner, except that a separate 'slip' must be used for each individual item. An example of a 'cut and shuffle' page fully completed is shown at Appendix 9.7.

(b) When the taking-off is completed, or in the case of a large job, substantial sections are completed, the dimensions on each 'slip' are squared and checked.

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(c) The person who carries out the taking off retains the yellow carbon copy as a record, but the white original sheets are cut into three separate 'slips', each containing one item or part of an item.

(d) The 'slips' are shuffled, or sorted, into sections, such as Earthworks, Drainage, Concrete, etc., similar items are collected and stapled together, and the whole of the slips placed, as near as possible, in bill order.

(e) The slips are then edited to form the preliminary draft bill, with further slips inserted as necessary to provide headings. The correct unit is entered in the box provided on each slip, or on the top slip where a number of similar items are stapled together.

(f) The total quantity for each item is calculated and inserted in the box provided on the slip. This process must be independently checked and ticked in red ink or ball pen.

(g) Once completed, these slips are attached together in bill order by a treasury tag from the draft bill, and can be passed directly for typing onto billing paper.

(h) The typed bill must be closely checked with the draft to ensure that all descriptions, quantities and units have been transferred correctly.

(i) As a final check, the cut slips should be counted and compared to the yellow carbon copy sheet to ensure that all slips are accounted for.

Although this system takes a longer time during the taking-off stage owing to the need to write descriptions out in full, the time saved in the bill preparation process means a considerable reduction in overall time spent on pre-contract measurement.

This method of bill preparation can be used for all projects, but is best suited to large complex jobs where there are a large number of similar items.

Used correctly, it can result in great savings in time in the bill preparation process, as it omits both the abstracting and billing stages.

All staff members involved in pre-contract measurement should familiarize themselves with this method and should adopt it wherever possible.

2.6 PREAMBLES

2.6.1 General Preambles

The General Preambles to the BQ is included in Part IV of the SMM. They provide the tenderers with the information needed for pricing the bill items and must be included in all contract documents. The exact wording shown in the SMM must be used, and reproduced in full.

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2.6.2 Particular Preambles

Particular Preambles shall be included in the BQ to give details of any amendments to the method of measurement given in the SMM to meet specific needs of the Contract (see paragraph 7.3 of Chapter 5 (Contract Documents)). They should be presented in the same format as that used in the SMM.

2.7 PRELIMINARY ITEMS

Preliminary items are defined in the SMM as items in respect of works and/or general obligations and risks antecedent to or involved in the execution of the Contract.

2.8 PRIME COST ITEMS (FOR GCC)

Prime Cost Items shall be inserted in the BQ to cover works carried out by Nominated Sub-contractors.

Where the works to be carried out by a Nominated Sub-contractor are the supply and fixing of materials, or the execution of works, then separate items should also be included for:

(a) Contractor's General Attendance, as specified in the General Preambles, which shall be a lump sum.

(b) Contractor's Special Attendance, if required, to allow for any particular attendance requirement not covered in (a). These requirements should be clearly specified in the BQ, and the unit shall be a lump sum.

(c) Contractor's profit and overheads expressed in the form of a percentage applicable to the Prime Cost Sum.

Where the works to be carried out by a Nominated Sub-contractor are for the supply only of goods or materials, then only one separate item is to be provided for Contractor's profit and overheads as in (c) above.

Prime Cost Items should be grouped under the bill for "Provisional and Prime Cost Sums" in the BQ.

2.9 PROVISIONAL SUMS

A Provisional Sum means a sum provided for works or expenditure which has not been quantified or detailed at the time tender documents are issued, which sum may include provision for works to be executed, or for materials or services to be supplied by a Nominated Sub-Contractor.

All Provisional Sums including the Provisional Sum for contract price fluctuations, but excluding the Provisional Sum for reimbursement of Mandatory Provident Funds (MPF) (which should be included separately in the Grand Summary), should be grouped together

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under the bill for "Prime Cost and Provisional Sums (excluding the sum allowed for MPF reimbursement)" in the BQ.

Due to the problems encountered in agreeing the rates when works under Provisional Sums is ordered, the number of such sums should be kept to a minimum and they should only be used where it is impossible to define or detail the requirements at the tender stage.

2.10 PROVISIONAL ITEMS

The definition of a Provisional Item is given in the SMM. However, the use of Provisional Items should be avoided as far as possible. If the requirement of the works is very remote, issuing variations during the Contract is generally more advisable than including Provisional Items to cover the works.

2.11 DAYWORK

The BQ should provide for the valuation of various works on daywork basis. Section 27 of the SMM defines how daywork should be measured.

2.12 ADJUSTMENT ITEM

An Adjustment Item should be included in the Grand Summary as a convenient means by which a tenderer can make an adjustment without having to alter all the rates in his tender.

The rules pertaining to the pricing and payment of this item are defined in the General Preambles to the BQ as shown in the SMM.

2.13 CONTINGENCY SUM

A Contingency Sum means the sum provided for works or expenditure, which cannot be foreseen at the time the tender documents are issued, and this sum may include provision for works to be executed or materials or services to be supplied by a Nominated Sub-contractor. Contingency Sum should be included in the Grand Summary.

2.14 BULK CHECK

Before the BQ are issued to tenderers, the BQ should undergo a bulk checking process. The purpose of a bulk check is to ensure the accuracy of the measured quantities and to eliminate any major errors. It should be carried out by experienced staff members who are familiar with the nature of the project and the SMM, and who should not be the same staff members responsible for preparing the respective part(s) of the BQ.

Bulk checking should be carried out on simple forms in order to expedite the process and records should be kept in the measurement file. The check should comprise the following:

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(a) Items involving large quantities or of major cost.

(b) The item coverage of cost significant items should be checked for consistency against the design requirements and those shown on the drawings.

(c) Ensuring that the squaring, abstracting and billing of all items have been independently checked.

(d) For excavation work, the total volume of excavation should be checked with the total volume of deposited fill material, disposed material, and imported fill.

(e) For piling work, the number of rig movements should be compared to the total number of piles indicated in the drawings.

(f) For drainage and waterworks, the total area of pavement reinstatement should be approximately equal to the total length of pipes in the trench along the carriageway and footpath, multiplied by the corresponding standard trench widths. Moreover, the total length of the pipework should not be shorter than the total lengths of the corresponding chainages.

(g) For building structures, the total area of internal formwork for wall and ceiling elements should be compared to the total area of the corresponding internal wall and ceiling internal finishes. Likewise, the area of floor finishes should be checked with the total area of the construction floor area. Moreover, the total area of the external wall formwork should be compared to the total area of external cladding, window walls, curtain walls, and other facade finishes, excluding areas with fair-faced treatment.

(h) The total reinforcement quantities should be verified against the total concrete volume using the steel-to-concrete ratio derived from a similar project, with the project engineer's confirmation.

(i) Alternatively, bulk checking can utilize the dimensioning tools or features in CAD or Building Information Modelling (BIM) software that enable automated extraction and generation of quantities. This process involves comparing the quantities in the draft BQ with those obtained from the model.

(j) Bulk checking should verify that all units used for cost significant BQ items are accurate and that the descriptions are appropriate.

The project engineer should consider the nature and size of the works, the value of the items, and the likelihood of future changes when performing checks. Adequate time should be allocated for this review process. Any errors or issues identified during the checks must be corrected before the tender documents are issued. Moreover, the documents for bulk checks should be properly organized and retained for record-keeping.

When finalizing the BQ for the tender invitation, the project engineer should pay special attention to items with exceptionally small quantities that are not expected to be widely used, such as formwork at various inclinations, granular fill material in trenches, and precast concrete covers. Contractors may quote excessively high prices for these items in

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anticipation of significant post-contract increment. Therefore, the project engineer should carefully assess the likelihood of potential quantities changes during the post-contract stage.

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3. CAPITAL WORKS CONTRACTS POST-CONTRACT MEASUREMENT

3.1 GENERAL

3.1.1 Considerations

Post-contract measurement is the measurement of the Works completed, either for interim or for final payment purposes.

Although the principles to be adopted are similar to those described in Section 2 of this Chapter, post-contract measurement differs because the Works have been constructed and full information is available for the Works to be measured in greater detail.

3.1.2 Keeping of Records

All information, sketches and drawings, and any subsequent revisions, which are pertinent to the measurement of the Works, should be carefully kept. They should be signed, dated and filed in such a manner that they can be easily retrieved.

Similarly all taking-off sheets, abstracts and bill sheets should be cross-referenced, signed, dated, indexed and kept in a measurement file. A Site Measurement Record Sheet (Appendix 9.8) should be filled in at the commencement of the works and when there is a change in the staff members responsible for measurement, and kept at the front of the measurement file, for easy reference.

3.1.3 Care of Documents

The BQ priced by the Contractor are an important document, and GCC Clause 8 or similar clauses adopted by NEC contracts such as Clause II:3 of ACC in NEC ECC HK Edition requires that no information from them should be divulged to anyone, except for use on the contract. For this reason, the priced BQ should never be left lying around the site office unattended. Whenever it is not in use, it should be kept in a locked drawer.

The Site Measurement Book and any other documents pertaining to measurement fall into a similar status and should be treated in the same way.

3.2 BASIC PROCEDURES

This Section should be read in conjunction with the following paragraphs of this Chapter:

1.2 Standard Method of Measurement

1.3 Accuracy of measurement

1.4 Measurement responsibility

2.2 Taking off

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2.3 Mensuration

2.4.1 Squaring

2.4.2 Abstracting

The principles and procedures described in these clauses should be adopted when the Works at post-contract stage are measured, both for interim and final payment purposes.

3.3 INTERIM MEASUREMENT

3.3.1 General

GCC Clause 79 requires the Engineer or similar clauses adopted in NEC contracts such as clauses 50 & 51 of NEC ECC HK Edition to value and certify the Contractor's monthly statements. Interim measurements are required in respect of the following:

(a) The estimated value of the permanent works executed,

(b) The estimated value of any Temporary Works or preliminary item for which a separate sum is provided in the BQ,

(c) The estimated value of materials for inclusion in the permanent works and not being prematurely delivered to and being properly stored on the Site,

(d) The estimated sums payable in respect of Nominated Sub-contractors,

(e) Any other estimated sums to which, in the opinion of the Engineer, the Contractor is entitled in accordance with the Contract, and

(f) The estimated sum deductible in respect of the value of materials supplied by the Government, value of works carried out by another Government department on behalf of the Contractor in connection with the Works and liquidated damages, etc.

Whilst this measurement shall be accurate enough to ensure that there is no large over-payment or under-payment made to the Contractor, no attempt should be made to carry out the measurement to the same degree of accuracy and detail as is used for final measurement. Quantities, for example should be taken to the nearest whole unit, and the paperwork concerned with the measurement shall be kept to a minimum. It is more important for the final measurement to be kept up-to-date than to spend time preparing the monthly interim measurement in too great a detail.

Interim payments for firm quantities of lump sum with firm BQ contracts are to be treated differently. For interim payments, the Engineer estimates the amount of works done (if possible in agreement with the Contractor) and values it. The Engineer also estimates the financial effect of all works done that have been varied under GCC Clause 60 or similar clauses adopted in NEC contracts such as clauses 50 of NEC ECC HK Edition. The Engineer should measure variations as soon as practicable in order to make a full and proper

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adjustment at the appropriate time, i.e. when the varied work is executed/omitted. However, an estimate is not an inspired guess, it is a professional assessment.

3.3.2 Measurement

At the start of the Works, an Interim Payments Record Book should be drawn up. In this book, the quantity of each completed item in the BQ is recorded at the same time as the Contractor makes his application for payment. This book can take any form, but the best system is the loose-leaf file. Basically, the record book consists of running abstract sheets (Appendix 9.10) for each completed item to date, of which quantities are transferred from the dimension papers, rough measurement book and Site Measurement Book. For major capital works, it is desirable to contain the build-up such as measurements, calculations, lorry load, material invoices, etc., for each interim payment in separate files.

The cumulative total is then used to check the figures in the monthly statement submitted by the Contractor.

The quantities that are entered monthly shall fall into two categories:

(a) Quantities within completed Sections of the Works, and

(b) Quantities from Sections of the Works that are still being constructed.

For the first category, the quantities can simply be extracted from the Site Measurement Book (assuming final measurement is completed) or dimension papers and transferred to the running abstract sheets, with suitable cross-reference.

For the second category, it is necessary to assess the quantity completed to date. The most common way of doing this is by measuring the Works completed on the Site, entering the dimensions in the rough measurement book and subsequently transferring them to the running abstract sheets.

Two points should be remembered when measuring the Works for interim payment purposes. First, when measuring quantities for a partially completed Section of the Works, the quantity for the month should be calculated by measuring the total quantity to date and deducting the total quantity up to the end of the previous month. Attempting to measure the amount completed in the current month only, and adding it to the previous month's total could lead to errors and should be avoided. Secondly, when the quantities for a partially completed Section of the Works are measured, much time can be saved in checking and correcting the Contractor's monthly statements by carrying out joint measurements, which are to be agreed and signed by both parties prior to the Contractor's submission of the monthly statements. In normal circumstances, the Engineer and the Contractor shall at the commencement of the Contract agree a date in each month when their representatives responsible for measurement will be available to prepare the monthly measurement of the Works.

3.3.3 Payment Procedure

Once the Contractor's monthly statement is received, it should be checked using the quantities recorded in the running abstract sheets and any errors should be corrected.

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To ensure that the certifying process is carried out speedily and efficiently, the procedure set out in Chapter 7 (Contract Management) particularly paragraphs 7.2.1 and 7.2.2 should be strictly adhered to.

3.3.4 Materials on Site

According to GCC Clause 79(1)(c), only materials for inclusion in the permanent work and not being prematurely delivered to and being properly stored on the Site should be measured and included in the interim payment. It should be ensured that the quantity of each material delivered to the Site does not exceed the quantities of that material required to complete the Contract having regard to wastage.

As far as practical and taking into consideration of GCC Clause 89(3)(d), materials on the Site are to be valued using prices applicable at the time of tender or by considering the delivery of the material to be part performance of a BQ item recognizing that invoices may (but not necessarily always) prove to be a reasonable basis for this valuation. Materials incorporated in the permanent works, including wastage, shall be deducted from the aggregated total of the materials delivered.

For contracts adopting NEC ECC, payment for materials on site may be allowed depending on main Options and clauses adopted for the contract. Reference should be made to para. A6.2 of the *Practice Notes*.

3.4 FINAL MEASUREMENT

3.4.1 General

Final measurement is the measurement of the Works, which have been completed in accordance with the Drawings, for the purpose of making final payment to the Contractor.

In lump sum with firm BQ contracts where the quantities contained in the BQ are firm, this only involves the measurement of variations, adjustment of Provisional Sums, items with provisional quantities and errors.

In remeasurement contracts however, it is necessary to measure all the Works as they are completed on the Site.

All items in the BQ shall be measured on one of the following bases in accordance with the Method of Measurement of the Contract, i.e.

(a) The Drawings,

(b) Input by the land surveyor, landscape architect, etc.,

(c) Site measurements,

(d) Bar bending schedules, and

(e) Daywork records.

It is advisable to have a joint measurement programme with the Contractor in order

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to ensure all measurements are completed in time.

Final measurement should be carried out as the Works progress, and this should be continued throughout the Contract to ensure that measurement is completed as soon as possible after completion of the Works.

3.4.2 Sources of Information for Final Measurement

(a) Drawings -

Measurement should be taken from the latest Drawings issued to the Contractor. Any amendments that are ordered after the issue of the Drawings should be marked up on a set of record Drawings, with a note beside the amendment cross-referencing it to the relevant instruction.

Many of the amendments to the Drawings issued to the Contractor, if of a minor nature, will require to be measured on the Site before they can be marked on the record Drawings. The preferable procedure is to take the measurements, enter them in the rough measurement book (see paragraph 3.4.3) and transfer these to the record Drawings.

The practice of entering such dimensions in the Site Measurement Book directly should be discontinued, as the opportunity to check them at a later date is then lost, especially if the works have been subsequently covered up. If they are marked on the record Drawings there is a clear record, and any dimensions taken-off can be easily checked. When all such amendments and notes have been marked on the record Drawings, it should be signed by the site staff and the Contractor's representative as being a true record. Reference should be made to GCC Clauses 59(5)(a), (b) & (c) in this regard.

The record Drawings should then be marked clearly that it has been used for final measurement purposes, and passed to the person responsible for measurement.

(b) Surveys - surveys will usually be carried out by a land surveyor or his supporting staff members

The land surveyor should refer to Engineering Survey Practice Guides for Works Projects (2023 Edition) in carrying out different types of survey work. (https://www.cedd.gov.hk/eng/publications/standards-spec-handbooks-cost/index.html)

All survey data should be plotted on dimensionally stable materials, such as polyester drawing film, i.e. original survey plans or drawings should be made of these materials. The squared drawing sheets printed by the Government Printer may be used for cross-sections. It should be noted that measurements should be taken from original plans and drawings so as to avoid errors due to distortion.

All surveys should be closed (preferably onto Lands Department Traverse Stations or Triangulation Stations) and adequate checks done to ensure that no

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errors have been made in the survey. All survey computations should be independently checked.

Where measurements are made from survey data, the final quantities calculated by the land surveyor should be recorded, with his signature, against the appropriate bill item description. These quantities should be fully cross-referenced, and the calculations taken to arrive at the final quantities should be kept in file for future reference.

The Contractor's representative shall either indicate his agreement to the measurement by signing the final figures, or shall state his reason for disagreement.

Where the calculation of the volume is done by computer, the Contractor's representative shall either indicate his agreement by signing on the set of plans used as input to the computer, or signing on the final quantities, or he shall state his reason for disagreement.

(c) Site measurements - Measurements taken on the Site and transferred directly to the Site Measurement Book, as opposed to marking them on the record Drawings, are usually restricted to the following:

(i) Works involving removal of soft spots, excavation in rock, or the like, which cannot be shown or measured on the Drawings, and

(ii) Items that are impossible to measure accurately from the Drawings, because the scale of the Drawing is too small to serve such purpose.

Measurements taken for these items should be recorded in the Site Measurement Book, which is described in paragraph 3.4.4.

(d) Bar bending schedules - Clause 15.16 of the General Specification for Civil Engineering Works, 2020 Edition requires the Contractor to submit bending schedules to the Engineer and these have to be checked and kept updated. The total lengths and weights of bars, under separate BQ items, should be transferred to the abstract sheets with a detailed cross-reference.

(e) Daywork - Daily record of labour, plant and material employed on any work executed on daywork basis should be made on the site diaries or on rough site measurement sheets as the Works progress. This record should be used to check against the Contractor's submission in accordance with GCC Clause 62. At the end of each monthly period (see GCC Clause 78(1)), a summary of all daywork ordered, as detailed in the statements agreed by the Engineer's Representative in accordance with GCC Clause 62(4), showing the total cost incurred for the monthly period, shall be prepared for interim and final payment purposes. The standard forms for recording daywork are included in Chapter 7 (Contract Management).

3.4.3 Rough Measurement Book

The rough measurement book is the book used to record dimensions, which are

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actually taken on the Site. Its use should be restricted to the following:

(a) Taking dimensions of variations and minor amendments which will then be marked up on the record Drawings for subsequent measurement purposes,

(b) Taking dimensions of work which cannot be accurately measured from the Drawings, which will be subsequently transferred to the Site Measurement Book, and

(c) Taking dimensions of partially completed works for interim payment purposes, which will be subsequently transferred to the running abstract.

It is recommended that these measurements should be entered into the rough measurement book immediately after being taken on the Site.

This book should be treated with the same care as all measurement documents. All dimensions taken, squaring, and transfer of items should be checked independently.

It is advisable to have the measurements entered into the rough measurement book agreed and signed by both parties, and the duplicate copies of the records should be passed to the Contractor for record purpose.

3.4.4 Site Measurement Book

The Site Measurement Book is used in the same way as dimension papers. Its design is more suitable for use on the Site, where individual loose sheets can easily be mislaid, and it also contains a copy of each sheet for the Contractor's record.

The Site Measurement Book to be used is G.F. 534.

The appropriate BQ item number plus description should be entered into the book with the measurement dimensions.

At the end of each section of measurement, the last page of both the original and duplicate sheets should be endorsed as follows:

> "Pages ..... to ..... I certify that the dimensions entered have been checked to be correct by me against supporting evidence (Government Site Staff) (Date)"
> "Site Measurement agreed on behalf of (Contractor) by (Contractor's Representative.) (Date)"

Reference should also be made to GCC Clause 59(5) regarding the contractual requirements of preparing site measurements and subsequent agreement by the Contractor.

After endorsement, the duplicate sheets should be detached from the Site Measurement Book and given to the Contractor's representative to enable him to prepare his statements for interim and final payments.

Each measurement book shall be provided with an index sheet, which is to be completed by the officer who measures the Works and returned to the issuing office for filing immediately after all duplicate sheets in the measurement book have been removed.

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All entries of site measurements should be made in blue/black ink or ball pen. Erasable ball pen should never be used in entering measurements. It should be noted that no erasures should be made to any records connected with measurements. Any entries which are in error should be boldly crossed out and the correct entry written clearly. All amendments should be initialled and dated.

3.4.5 Measurement

As soon as a Section of the Works is completed, the final measurement of that Section of the Works shall commence.

The actual arrangement regarding the taking of site measurement depends on individual department's practice. On small-sized to medium-sized contracts of a straightforward nature, the measurement shall be carried out by either a Work Supervisor or an Assistant Inspector of Works, whilst on larger or more complex contracts measurement is usually carried out by a SO(Q), or an inspectorate officer depending on departmental practice, with assistance from other site staff member concerning the measurement of items such as those to be covered up or removed.

When each Section of the Works is completed, and the end pages are endorsed as previously described, the original sheets should be stapled together with the Site Measurements Binding Cover and passed for checking.

The first check carried out on the Site will cover the following:

(a) The descriptions and bill item reference numbers,

(b) The dimensions taken from Drawings,

(c) The dimensions taken on the Site, and

(d) The transfer of dimensions from survey data, schedules, and the rough measurement book.

Once this is done, the officer who has carried out the above check will sign the Site Measurements Binding Cover (Appendix 9.9), and pass the measurements to the QS or Engineer's Representative.

3.4.6 Squaring

Squaring shall be carried out by a SO(Q), or an inspectorate officer in case there is no SO(Q) available, and shall follow the procedure laid down in paragraph 2.4.1. When the squaring has been completed, the SO(Q), or the relevant inspectorate officer in case there is no SO(Q) available, shall sign the Site Measurements Binding Cover to indicate that his task has been completed.

3.4.7 Abstracting

Abstracting shall be carried out by a SO(Q), or an inspectorate officer depending on departmental practice, following the procedures set out in paragraph 2.4.2. The final

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squared quantity on the abstract sheet that is used to check the Contractor's statement of final account shall be rounded off as follows unless otherwise specified in the SMM or the contract documents:

(a) Items measured in nr : whole number.

(b) Items measured in m, m^2, m^3, wk, & mth : to the nearest two decimal places.

(c) Items measured in ha & t : to the nearest three decimal places.

(d) Items measured in hr : to the nearest hr.

3.4.8 Statement of Final Account and Payment Procedure

(Ref. SETW's memo ref. () in ETWB(W) 925/50/01 Pt. 4 dated 7.7.2004 - ICAC's Assignment No. 92/2001 Site Supervision of Civil Engineering Contracts)

When the statement of final account produced by the Contractor is received (see GCC Clause 79(6) or similar clause adopted in NEC contracts such as Clause 53.1 of NEC ECC HK Edition), it shall first be passed to the SO(Q), or an inspectorate officer depending on departmental practice, for checking.

A complete technical and arithmetical check shall be carried out which shall include, but not limited to, the following:

(a) Appropriate items are used and correct rates applied,

(b) All items covered by variation orders are included,

(c) All items ordered under daywork are included and are offset against any Provisional Sums included to cover daywork,

(d) Adjustments of Provisional Sums and, where included, Prime Cost Sums are made,

(e) Correct quantities based on the remeasurement are included,

(f) Complete arithmetical check,

(g) Value of materials supplied by Government, value of works carried out by other department(s) in connection with the Works, liquidated damages, where applicable, and all other necessary deductions are made,

(h) Add/deduct the maximum amount of the Adjustment Item, and

(i) Prepare the calculation of the Contract Price Fluctuation (see DEVB TCW No. 4/2021).

Errors in Contractor's statement of final account shall be amended in red ink or ball pen and the corrected Contractor's statement of final account should then be passed to the Engineer's Representative who will carry out an overall check to satisfy himself of the correctness of it. As part of the overall check, the Engineer's Representative should also

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carry out a bulk checking on the major cost-bearing items using both the Contract Drawings and the as-built drawings in order to check if there is likeliness of the quantities of the major cost-bearing items being over-stated.

The bill shall then be passed to the Accounts Office for preparation of the payment vouchers. It should be noted that there is a time limit for the preparation of the final payment certificate stipulated in GCC Clause 79(6) and similar clauses adopted in NEC contracts such as clause 53.2 of NEC ECC HK Edition.

All documents relating to the final measurements should then be bound together and filed for future reference.

3.4.9 Measurement Records by Electronic Means

At their discretion, departments can prepare measurement records with electronic means as long as the principles in this Chapter are complied with. With the use of BIM techniques in public works contracts, the project engineer can use the as-built BIM model to verify quantities against those documented in the Site Measurement Books.

However, care should be taken to guard against unauthorised access and protect the data integrity. Departments should consult their departmental computer services units for advice on up keeping measurement records with electronic means.

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4. TERM CONTRACTS PRE-CONTRACT MEASUREMENT

NOTE: The computer systems, called Maintenance Accounting and Information System (MAINS) and Maintenance Works Management System (MWMS), have been developed by the Highways Department and the Water Supplies Department respectively for use on their term contracts. Detailed procedures are given in the HyD's MAINS Manual and WSD's MWMS Application User Manual. Sections 4 and 5 are applicable only to contracts that are not carried out under aforesaid system.

4.1 GENERAL

Owing to the nature of term contracts, it is not possible to define or detail the amount of works that will be required during the contract period and, therefore, the BQ cannot be produced practically. However, it is still necessary for competitive tenders to be sought and for the rates for different types of works to be agreed before the contract is signed. For this purpose, the Schedule of Rates is prepared and incorporated in the contract documents.

4.2 SCHEDULE OF RATES

4.2.1 Method of Measurement

Measurement of works under term contracts shall be made according to the procedures set forth in the method of measurement referred to in the Contract. At present, each works department has devised a method of measurement that best suits its own use.

4.2.2 Application

The Schedule of Rates is basically a schedule of rates where quantities are normally not included. It may take one of the following two forms.

One common form is that the Government supplies a schedule containing unit rates for each item of works, and asks the tenderers to tender a percentage above or below the given rates for which they are prepared to execute the works. The upper and lower limits on these percentages are usually specified to avoid unreasonably high or low tendered figures. For tender analysis purposes, weighting factors are provided to various sections of the Works and a combined schedule of contract percentage is used for comparing tenders.

Another form is that the tenderers are requested to insert a price against each item of works, and a comparison of the prices entered will enable the most favourable offer to be accepted. However, in this form it is extremely difficult to make a fair comparison among the figures submitted by the various tenderers, since the unit rates may fluctuate greatly among various tenderers. For this reason, the works department may include a very approximate quantity against each item in the Schedule of Rates, which will both assist the tenderers in their pricing, and the Engineer in the subsequent comparison of tenders.

In both cases, work departments must clearly indicate in the contract documents that the weighting factors or approximate quantities provided in the contract documents are to be

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used for tender evaluation purposes only, and do not indicate the extent of the works.

4.2.3 Preparation

A list of all the items that could reasonably be expected to be required in the contract shall be drawn up. This should be done with reference to previous term contracts of similar nature and additional allowance shall be made for any specific items as required in this contract. This list should then be arranged in the bill order and follow the section headings as listed in the method of measurement.

Item descriptions taken from the method of measurement should be used throughout, as described previously. Where an approximate quantity is to be included against each item, it should as far as possible form a realistic estimate, based on previous contracts of similar nature. Daywork sections should also be included, but owing to the very nature of the Schedule of Rates contracts, there would be no Provisional Sums or Provisional Items.

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5. TERM CONTRACTS POST-CONTRACT MEASUREMENT

NOTE: See the NOTE at the beginning of Section 4.

5.1 INTRODUCTION

This section concerns final measurement and payment of Works Orders under term contracts.

The procedure is designed to ensure that the interval between completion of the works completed and payment to the Contractor is as short as possible, whilst a satisfactory checking system is still maintained. It is the responsibility of the Engineer to ensure that the measurement and payment procedures be followed correctly, and without delay. He should also collaborate with the Contractor to expedite and monitor the processing of the Final Account.

5.2 MEASUREMENT

In accordance with Clause 61(3) of the General Conditions of Contract for Term Contracts for Civil Engineering Works, 2002 Edition, the Contractor shall measure all works in the presence of the Engineer and record the measurements in such form and/or drawings as may be specified by the Engineer for agreement. A Site Measurement Binding Cover as shown in Appendix 9.9 shall be attached to the Contractor's submission for each Works Order. SO(Q) should record the date of receipt of the Contractor's measurement in the Payment Record Register. One suggested format is as shown in Appendix 9.11. The Register can also be stored electronically, in particular where a term contract accounting and information system approved for use by the department concerned is available.

When the measurement has been completed, the last page should be endorsed by both parties, as previously described. The Contractor should be required to submit to the Engineer the original agreed measurement records and retain a duplicate.

The Engineer's Representative or appropriate officer should first check the measurements against the Works Orders and/or sketches available and then square the dimensions. When these processes are completed he should file the measurement sheets in readiness for checking against the final accounts submitted by the Contractor.

5.3 STATEMENT OF FINAL ACCOUNT

Pursuant to Clause 78(1) of the General Conditions of Contract for Term Contracts for Civil Engineering Works, 2002 Edition, within 60 days of the date of issue of the certificate of completion for any Works in accordance with Clause 55 of the General Conditions of Contract for Term Contracts for Civil Engineering Works, 2002 Edition, the Contractor shall submit to the Engineer and copy to the Engineer's Representative a statement of final account. A receipt should be issued to the Contractor and a Payment Voucher Routing Sheet (Appendix 9.12) should be attached to the Contractor's statement of final account.

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The statement of final account should be sent by Engineer's Representative with a covering letter that should list the number of Works Order, and comprise the following:

(a) Abstract (Appendix 9.13)

The abstract is divided into upper and lower portions. The upper portion is basically a bill paper whilst the lower portion is a combination of an abstract sheet and bill paper. Measurements from the Site Measurement Book are transferred to the lower portion of the Abstract and the appropriate rate selected from the Schedule of Rates. Each item should be separately extended and a total of the items carried forward to the Summary. The final quantities, the full description, rates and extended total are then entered on the upper portions.

(b) Summary (Appendix 9.14)

The Contractor shall submit three copies of the Summary. For computation of the total value of the Works Order, the contract percentage for the section of works shall be applied to the respective sections of works and the fluctuations shall be applied to works subject to such.

(c) Statement of Final Account (Appendix 9.15)

The Contractor shall submit three copies of the statement of final account of which the value of works should be the same as that in the Summary.

(d) Original copy of Works Order

Upon the receipt of the statement of final account, the SO(Q) shall record it in the Payment Record Register (Appendix 9.11), or electronically in the term contract accounting and information system approved for being used by the department concerned.

5.4 CHECKING OF THE STATEMENT OF FINAL ACCOUNT

The SO(Q) should carry out the initial check on the Contractor's submitted statement of final account and should check the following :

(a) Items and the respective quantities, by comparison with the agreed and squared original site measurements.

(b) Rates, by comparison with the Schedule of Rates.

(c) Correctness in trades and percentage adjustments.

(d) Quantities and extensions as entered on the top portion of the Abstract against those shown on the bottom portion.

(e) Transfers and arithmetic.

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Correct figures should be ticked in red ink or ball pen. Where the Contractor's figures do not tally with the measurement record as agreed, the site staff and Contractor should be called upon to sort out the discrepancy and, if necessary, the statement of final account should be returned to the Contractor for amendment and resubmission. The Contractor's figure should be amended in red ink or ball pen and initialled by the respective parties. It should be noted that any minor differences in figures, which occur because the Contractor adopt a different method of calculation, should be recognised and accepted if valid, with a note made to state the reason for the differences.

On completion of the checking procedure, the SO(Q) should sign at the bottom of each Abstract and Summary sheet, and pass it to the Engineer's Representative. The Engineer's Representative will check the abstract thoroughly for correctness and certify the abstract by entering his signature into the appropriate box of the Payment Voucher Routing Sheet.

If there are substantial alterations on the Abstract, Summary or statement of final account, it is advisable to request the Contractor to correct and re-submit all the documents to avoid ambiguity.

5.5 CERTIFICATION - WORKS COMPLETED

The documents should be passed to the inspectorate staff of the Engineer's Representative concerned, who will sign the original copy of the Works Order in the appropriate location, fill in the date of completion (to be signed/certified by the Engineer's Representative) and attach to it the duplicate copy of the Works Order.

At this stage, the inspectorate staff concerned should check on site to see if the works area has been cleared.

5.6 ACCOUNTANCY CHECK

The completed bill should be passed to the Account Section of the respective office/department that issues the Works Order for final checking to ensure that all items are correctly entered. The officer conducting the final checking should sign and date the statement of final account in the appropriate location.

5.7 CERTIFICATION BY THE ENGINEER

The Account Section should pass all the documents back to the Engineer's Representative, who should examine the documents and initial the certificate on the front of the Statement of Final Account (3 copies), which should then be passed to the Engineer or the officer delegated by the Engineer for signature.

Site measurement checks should be conducted by the Engineer's Representative periodically (actual frequency depending on work load of ER, quarterly checking may be adequate) and the SO(Q) should record this in the Payment Record Register, or electronically in the term contracts accounting and information system approved for use by the department concerned.

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5.8 PAYLISTING

The Account Section will produce a Payment Voucher List through Treasury's Web-enabled Payment of Creditors System (WPOCS) attached with copies of the Works Order and the final account (payment Voucher List should be cross-referenced to the Works Order No. and the Contractor's Account No.). The Account Section should enter the Departmental Voucher No. onto the Payment Voucher Routing Sheet which should then be passed to the SO(Q), recorded on the Payment Record Register, and retained, or recorded electronically in the term contracts accounting and information system approved for use by the department concerned.

5.9 FILING

The following documents should be bound together and filed in the contract payment file:

(a) Original pages from the Site Measurement Book, together with any drawing/plan, if appropriate,

(b) The bottom portion of the Abstract,

(c) A duplicate copy of the Summary and Statement of Final Account, and

(d) Copies of Works Orders.

5.10 INTERIM MEASUREMENT

The general principles outlined in paragraph 3.3.1 would generally be applicable to the interim measurement for the Works Order. If works are of simple nature and require only a short construction period, the Engineer's Representative may use an Interim Payment Record Book at his discretion. The Payments on Account for Works Order (Appendix 9.16) should be used for making payments to the Contractor.

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6. MEASUREMENT FOR COST ESTIMATION

6.1 GENERAL

The objectives of measurement for cost estimation are:

(a) To help to define the scope of work,

(b) To enable a quantitative comparison of alternative methods of construction, and

(c) To highlight the cost significant items and facilitates cost monitoring.

It should be noted that estimating should be a continuous process and carried out at each stage of the design process to enable a check on the cost effectiveness of the design. The accuracy of an estimate depends very much on the experience of the person preparing it, the availability of cost data, and the correctness of the measurement.

6.2 METHOD OF MEASUREMENT

The method of measurement adopted should be appropriate to the various forms of estimates and will depend on the completeness of the design.

6.3 FORM OF ESTIMATES

6.3.1 Order of Cost

Where unit costs for different design features have been compiled by the department, the units of measurement shall correspond to the way the unit costs are compiled.

6.3.2 Schedule of Major Items

A list of cost significant items, which are expected to be encountered in the project should be sorted out and a forecast on the quantities for the respective items should be made.

6.3.3 Project Estimate

Priced BQ should be prepared from the detailed design and drawings as far as possible. This will ensure that the tenders and the project estimate are priced on the same basis. Where a design has been substantially completed but detailed drawings are not yet available, approximate quantities for the major items should be measured from the available drawings. It is important that the estimates for all relevant Sections of the Works have been included in the project estimate. If any part of the project has not been included in the project estimate, this should also be stated. Financial risk coming from the uncertainty about the cost consequences of incomplete information or from planning decisions should be estimated according to paragraph 5.1 and Appendix 4.15 of Chapter 4 (Project Design and Estimates).

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6.3.4 Estimate for Works Order

The estimate for Works Orders shall be in accordance with the rates of the items of work in the Schedule of Rates adjusted by contract percentages (if any) set forth in the Contract.

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7. REFERENCES

WBTC No. 21/93	Standard Phraseology of [Bills of Quantity] Item Descriptions (SPID)
WBTC No. 21/93A	Standard Phraseology of [Bills of Quantities] Item Descriptions (SPID)
WBTC No. 21/93B	Standard Phraseology of [Bills of Quantities] Item Descriptions (SPID)
WBTC No. 19/2000	General Conditions of Contract for Building Works, 1999 Edition, General Conditions of Contract for Electrical and Mechanical Engineering Works, 1999 Edition
DEVB TCW No. 3/2014	Contractors' Designs and Alternative Designs
DEVB TCW No. 4/2015	Administrative Procedures 2015 for Use with the Government of the Hong Kong Special Administrative Region General Conditions of Contract for Design and Build Contracts 1999 Edition
DEVB TCW No. 4/2021	Contract Price Fluctuation System for Civil Engineering and Building Contracts
SETW's memo ref. () in ETWB(W) 925/50/01 Pt. 4 dated 7.7.2004	ICAC's Assignment No. 92/2001 Site Supervision of Civil Engineering Contracts
DEVB Standard Contract Documents	http://www.devb.gov.hk/en/publications_and_press_releases/publications/standard_contract_documents/index.html
Engineering Survey Practice Guides for Works Projects	https://www.cedd.gov.hk/filemanager/eng/content_22/ESPG_Rev%202_2023.09.28_clean.pdf

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APPENDICES

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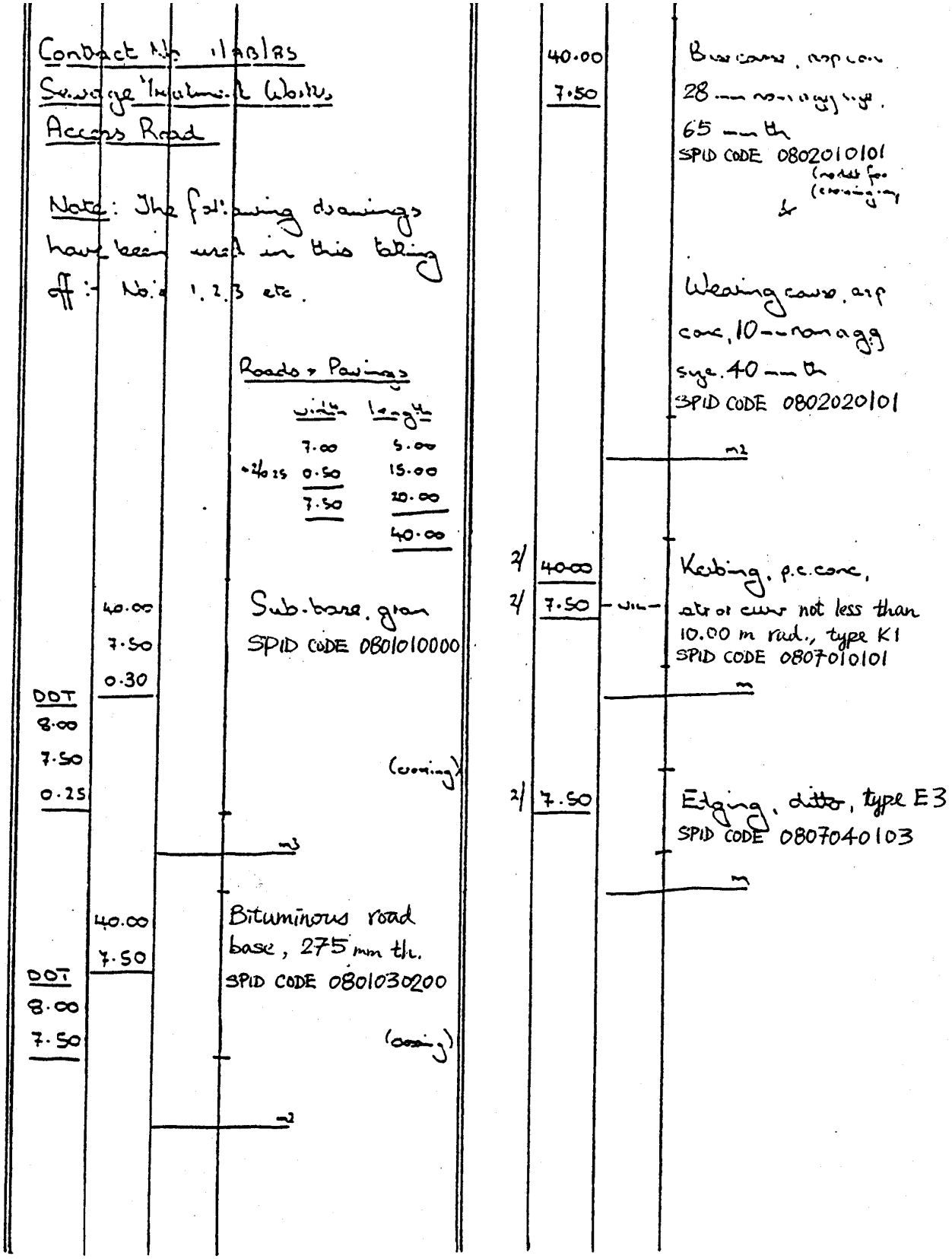
APPENDIX 9.1 AN EXAMPLE OF TAKING-OFF ON DIMENSION PAPER



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APPENDIX 9.2 DRAWING RECORD

CONTRACT NO.:
CONTRACT TITLE:

Drg No.	Description	Date of issue	Dates of Revisions									
			A	B	C	D	E	F	G	H	I	J

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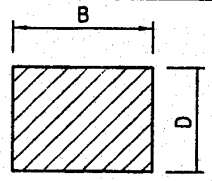
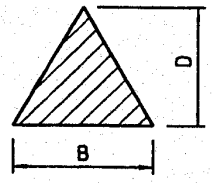
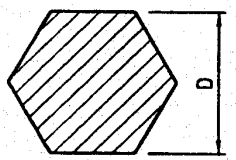
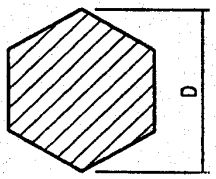
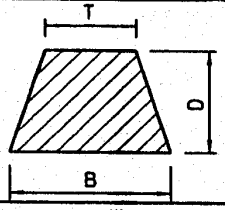
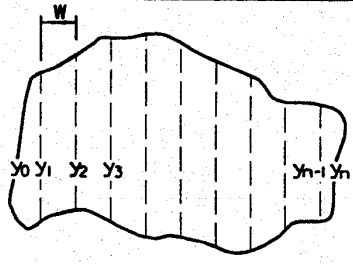
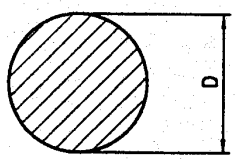
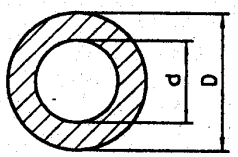
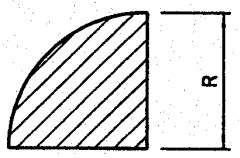
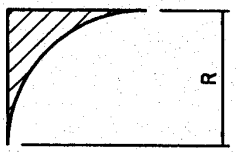
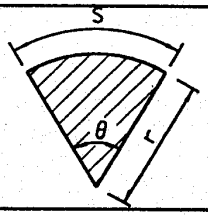
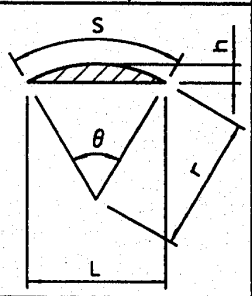
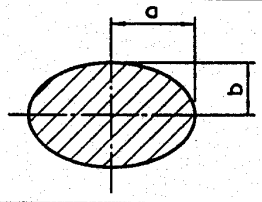
APPENDIX 9.3 DRAINAGE SCHEDULE

Manhole No.		Pipe					Manhole (from)				
From	To	Length	Size	Material	Depth	Bedding	Type	I.L.	C.L.	Depth	Cover

Go to Table of Content >>> Go to Table of Content >>> Go to Table of Content

APPENDIX 9.4 MEASUREMENT OF AREAS AND VOLUMES

SECTION	AREA
	$A = B \times D$
	$A = \frac{BD}{2}$
	$A = 0.866\ D^2$
	$A = 0.65\ D^2$
	$A = \frac{D\ (T + B)}{2}$
 TRAPEZOIDAL RULE:- $A = W\left[\frac{y_0+y_n}{2} + y_1+y_2+\ldots\ldots\ldots+y_{n-1}\right]$ SIMPSON'S RULE:- (n MUST BE EVEN) $A = \frac{W}{3}\left[(y_0+y_n)+4(y_1+y_3+\ldots\ldots\ldots+y_{n-1})+2(y_2+y_4+\ldots\ldots\ldots+y_{n-2})\right]$	

SECTION	AREA
	$A = 0.7854\ D^2$
	$A = 0.7854(D^2-d^2)$
	$A = 0.7854\ R^2$
	$A = 0.2146\ R^2$
	$A = \frac{\theta}{360} \times \pi r^2$ $A = \frac{\theta}{360} \times 3.14 r^2$ $= \frac{sr}{2}$
	A = AREA OF SEGMENT = AREA OF SECTOR- AREA OF TRIANGLE $= \frac{1}{2}[sr \pm L(r-h)]$ (- If $h \leq r$; + If $h \geq r$) or $A = \frac{2Lh}{3}$ (APPROX. FORMULA)
	$A = \pi ab$ $= 3.14ab$

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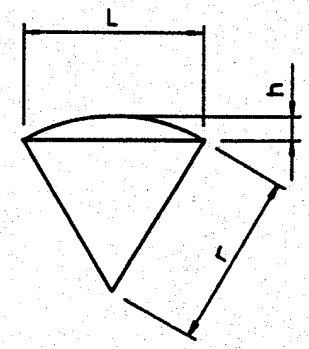
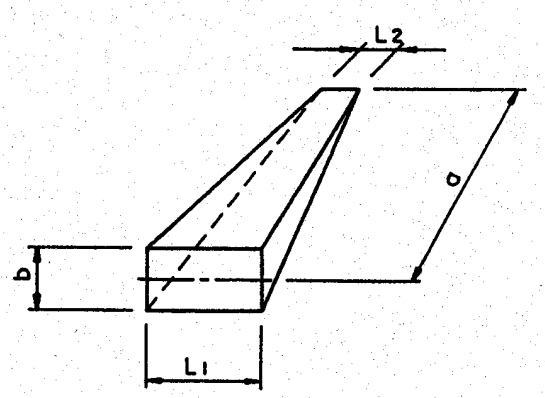
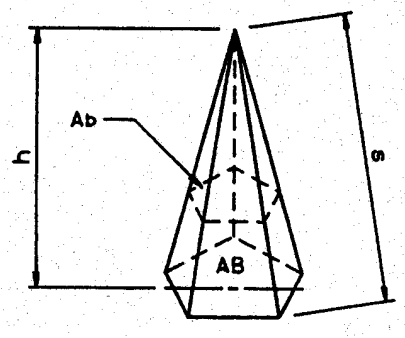
SHAPE	VOLUME
SPHERICAL SECTOR (AND HEMISPHERE)  	FOR SPHERICAL SECTOR: $A_t = \frac{\pi r}{3}(4h+L)$; $V = \frac{2\pi r^2 h}{3}$ FOR HEMISPHERE (LETTING $h=\frac{L}{2}=r$); $A_t = 3\pi r^2$; $V = \frac{2\pi r^3}{3}$
WEDGE (AND RIGHT TRIANGULAR PRISM)  	FOR WEDGE (NARROW SIDE RECTANGULAR): $V = \frac{ab}{6}(2L_1+L_2)$ FOR RIGHT TRIANGULAR PRISM (OR WEDGE HAVING PARALLEL TRIANGULAR BASES PERPENDICULAR TO SIDES) $L_2 = L_1 = L$: $V = \frac{abL}{2}$
RIGHT REGULAR PYRAMID (AND FRUSTUM OF RIGHT REGULAR PYRAMID)  	FOR RIGHT REGULAR PYRAMID: $AL = \frac{sPB}{2}$; $V = \frac{hAB}{3}$ FOR FRUSTUM OF REGULAR PYRAMID: $AL = \frac{s}{2}(PB+Pb)$ $V = \frac{h}{3}(AB+Ab+\sqrt{AB\ Ab})$

NOTATION : LINES, a, b,.....; ALTITUDE (PERPENDICULAR HEIGHT), h, h ,.....; SLANT HEIGHT, s; RADIUS, r; PERIMETER OF BASES, Pb OR PB ; CHORD OF SEGMENT, L; RISE, h; AREA OF BASE, Ab OR AB ; TOTAL AREA OF CONVEX SURFACE, AL ; TOTAL AREA OF ALL SURFACES, At ; VOLUME, V.

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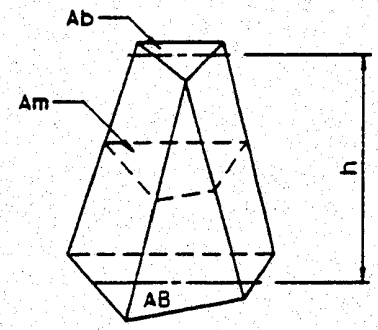
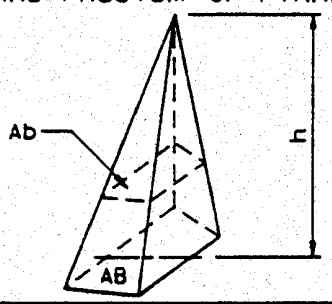
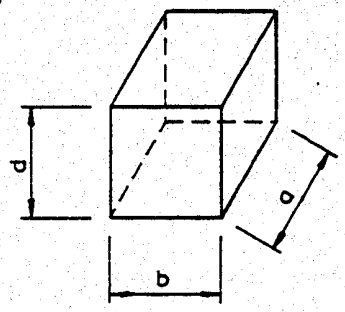
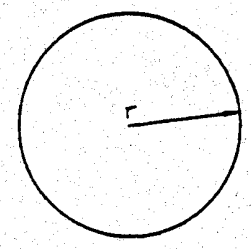
SHAPE	VOLUME
PRISMATOID 	LET AREA OF MID-SECTION = A $V = \frac{h}{6}(AB+Ab+4Am)$
GENERAL PYRAMID (AND FRUSTUM OF PYRAMID) 	FOR GENERAL PYRAMID: $V = \frac{hAB}{3}$ FOR FRUSTUM OF GENERAL PYRAMID: $V = \frac{h}{3}(AB+Ab+\sqrt{AB\ Ab})$
CUBIC 	V = a.b.d
SPHERE 	LET DIAMETER = d $At = 4\pi r^2 = \pi d^2$ $V = \frac{4\pi r^3}{3} = \frac{\pi d^3}{6}$

NOTATION : LINES, a, b.....; ALTITUDE (PERPENDICULAR HEIGHT), h, h .....; SLANT HEIGHT, s; RADIUS, r; PERIMETER OF BASES, Pb OR PB ; CHORD OF SEGMENT, L; RISE, h; AREA OF BASE, Ab OR AB ; TOTAL AREA OF CONVEX SURFACE, AL ; TOTAL AREA OF ALL SURFACES, At ; VOLUME, V.

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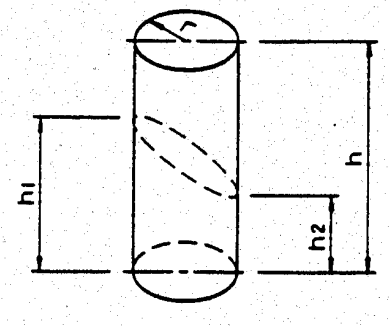
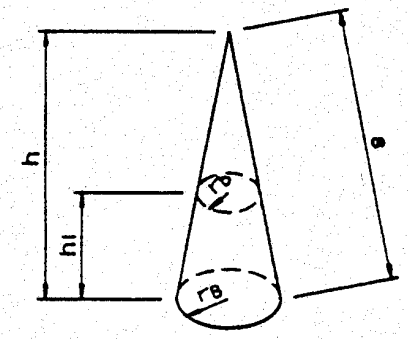
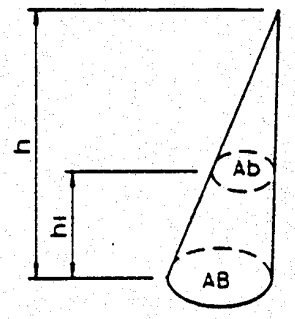
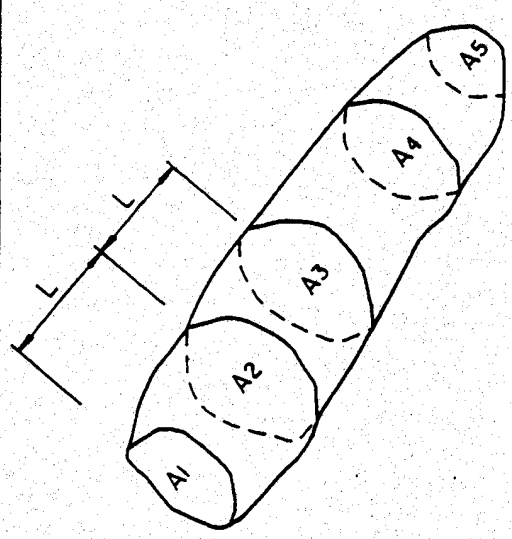
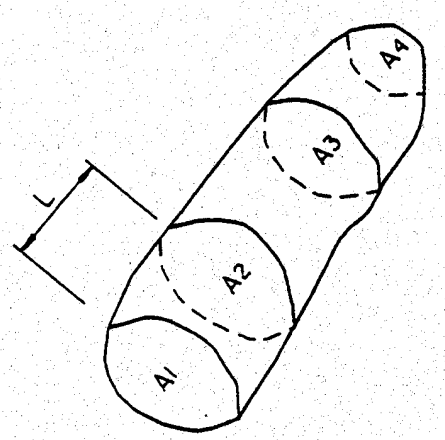
SHAPE	VOLUME
RIGHT CIRCULAR CYLINDER (AND TRUNCATED RIGHT CIRCULAR CYLINDER) 	FOR RIGHT CIRCULAR CYLINDER: $AL = 2\pi rh$; $At = 2\pi r(r+h)$; $V = \pi r^2 h$ FOR TRUNCATED RIGHT CIRCULAR CYLINDER: $AL = \pi r(h_1 + h_2)$; $At = \pi r[h_1 + h_2 + r + \sqrt{r^2 + (\frac{h_1 - h_2}{2})^2}]$; $V = \frac{\pi r^2}{2}(h_1 + h_2)$
RIGHT CIRCULAR CONE (AND FRUSTUM OF RIGHT CIRCULAR CONE) 	FOR RIGHT CIRCULAR CONE: $AL = \pi rBs = \pi rB\sqrt{rB^2 + h^2}$; $At = \pi rB(rB+s)$; $V = \frac{\pi rB^2 h}{3}$ FOR FRUSTUM OF RIGHT CIRCULAR CONE: $s = \sqrt{h_1^2 + (rB-rb)^2}$; $At = \pi s(rB+rb)$; $V = \frac{\pi h_1}{3}(rB^2 + rb^2 + rBrb)$
GENERAL CONE (AND FRUSTUM OF GENERAL CONE) 	FOR GENERAL CONE: $V = \frac{ABh}{3}$ FOR FRUSTUM OF GENERAL CONE: $V = \frac{h_1}{3}(AB + Ab + \sqrt{ABAb})$

NOTATION : LINES, a, b,.....; ALTITUDE (PERPENDICULAR HEIGHT), h, h ,.....; SLANT HEIGHT, s; RADIUS, r; PERIMETER OF BASES, Pb OR PB ; CHORD OF SEGMENT, L; RISE, h; AREA OF BASE, Ab OR AB ; TOTAL AREA OF CONVEX SURFACE, AL ; TOTAL AREA OF ALL SURFACES, At ; VOLUME, V.

Go to Table of Content >>> Go to Table of Content >>> Go to Table of Content

SHAPE	VOLUME
IRREGULAR SHAPE  	L = THE DISTANCE BETWEEN THE SECTIONS A1, A2, A3, A4 & A5 = THEIR AREAS $V = \frac{L}{3}(A1+4A2+2A3+4A4+A5)$ N. B. AN ODD NUMBER OF SECTIONS ARE REQUIRED FOR APPLICATION OF THIS RULE SIMPSON'S RULE
IRREGULAR SHAPE  	L = THE DISTANCE BETWEEN THE SECTIONS A1, A2, A3 & A4 = THEIR AREAS $V = L(\frac{A1+A4}{2}+A2+A3)$ METHOD OF END AREAS

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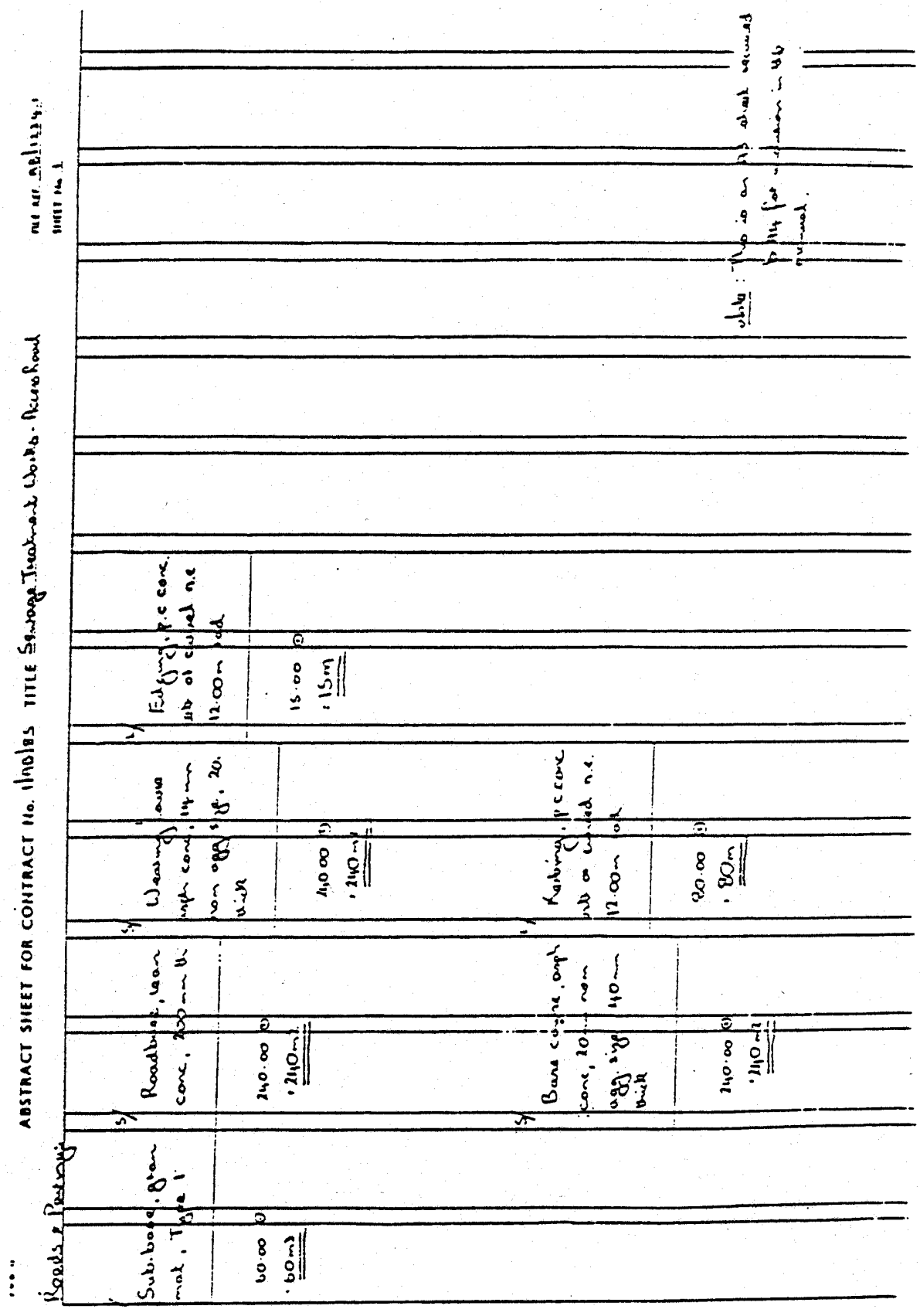
APPENDIX 9.5 AN EXAMPLE OF AN ABSTRACT SHEET



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APPENDIX 9.6 A SAMPLE OF COMBINED DIMENSION PAPER AND BILL PAPER

CONTRACT NO. :

Bill NO. :

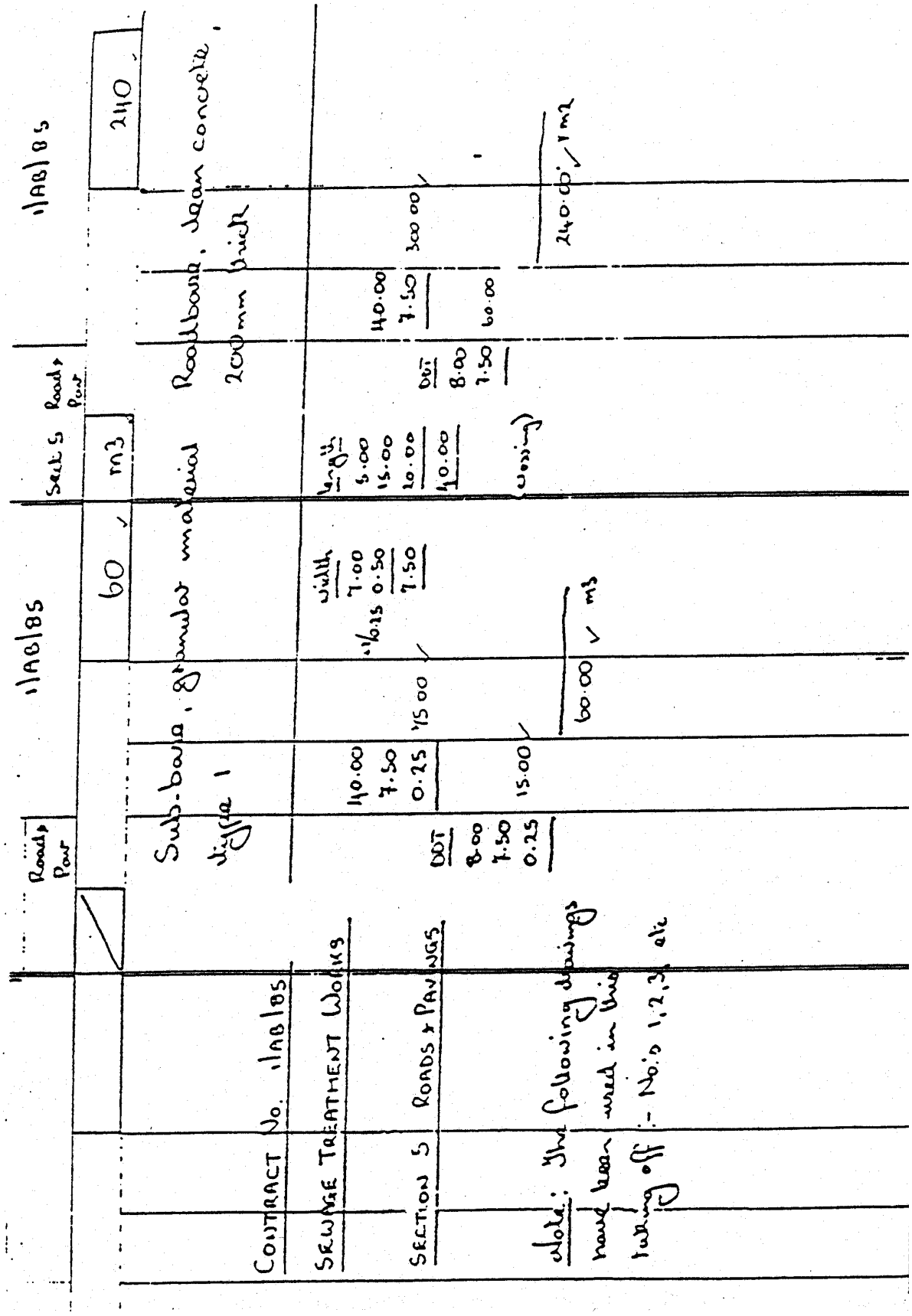
Item No. : **Description of Work** **Quantity** **Unit**

Drg No. Location	Timesing	Length	Width	Height	TOTAL

Go to Table of Content >>> Go to Table of Content >>> Go to Table of Content

APPENDIX 9.7 AN EXAMPLE OF TAKING-OFF ON CUT AND SHUFFLE PAPER

(Note : the yellow carbon copy is not reproduced for clarity)



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APPENDIX 9.8 SITE MEASUREMENT RECORD SHEET

_____ DEPARTMENT

CONTRACT NO. .....

(Title of Contract)

WORKS ORDER NO. .....(If Applicable)

SITE MEASUREMENT BOOK NO.	PAGES
.....	..... TO .....
.....	..... TO .....
.....	..... TO .....

Engineer's Representatives :

Engineer, Mr/Ms ..... _____
Specimen Signature & Initials

Asst. Engineer, Mr/Ms ..... _____
Specimen Signature & Initials

Inspector/Asst. Inspector
of Works, Mr/Ms ..... _____
Specimen Signature & Initials

Works Supervisor, Mr/Ms..... _____
Specimen Signature & Initials

SO(Q), Mr/Ms ..... _____
Specimen Signature & Initials

Contractor :

Messrs. .....
(name of company)

Site Representative authorised to
sign measurements on behalf of the Contractor

Mr/Ms..... _____
Specimen Signature & Initials

Mr/Ms ..... _____
Specimen Signature & Initials

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APPENDIX 9.9 SITE MEASUREMENTS BINDING COVER

Contract No. :

Works Order No. :

Book No. : Pages _____ to _____

Works completed :

Action	Staff	Signature	Date
Works completion checked	IOW/ AIOW		
Measurements approved	IOW/ AIOW		
Dimension checked on site	IOW/ AIOW		
Schedule item numbers checked	IOW/ AIOW		
Measurements received	SO(Q)		
Measurements squared and checked	SO(Q)		
Dimensions checked on site	SO(Q)		

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APPENDIX 9.10 RUNNING ABSTRACT

Contract No. _____ Item No. _____

Item Description _____ Quantity _____

_____ Unit _____

_____ Rate _____

_____ Sheet No. _____

Date	Abstracted from	Quantity	Running Total	Location/Remarks	Interim Payment No.

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APPENDIX 9.11 TERM CONTRACT – PAYMENT RECORD REGISTER

CONTRACT No. _____

PAYMENT RECORD REGISTER

Works Order No.	Completion Date	Site Measurement Book		Submission of the Statement of Final Account		Returned for Resubmission		Resubmission of the Statement of Final Account		Bill			Remarks (State here if spot check on site has been carried out by AE and/or ER)
		Page Nos.	Date Rec'd	Date Rec'd	Amount/$	Date	Contractor's signature	Date Rec'd	Amount/$	Date of Certification	Amount Certified	Payment Voucher No.	

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APPENDIX 9.12 PAYMENT VOUCHER ROUTING SHEET

(to be attached to every Contractor's incoming abstract/bill)

Contract No. _____ Works Order No. _____

Measurement book passed to SO(Q) on _____
(date) (IOW/AIOW)*

Document	Routing	Officer	Action Taken	Out	
				Date	Initial
Abstract & Bill Date : _____ Initial : _____ SO(Q)	1	ER(E/CTO/IOW)*	Works completed certification		
	2	SO(Q)	Recording, cross-checking and correction		
	3	SO(Q)	Casting check		
	4	E/AE	Technical check (Dimensions checked/not checked on site)		
	5	SO(Q)	Correction settled with Contractor		
Resubmission Abstract & Bill Date : _____ Initial : _____ SO(Q)	6	SO(Q)	Document returned to Contractor		
	7	CTO/IOW*	Disagreement settled. Amendment of original measurements made		
	8	SO(Q)	Cross-checking and correction		
	9	SO(Q)	Casting check		
	10	E/AE	Technical check		
Abstract & Bill Date : _____ Initial : _____ SO(Q)	11	Accounts	Accountancy check		
	12	ER	Certification (Dimensions checked/not checked on site)		
	13	Accounts	Vote record and paylisting		
	14	SO(Q)	Payment Voucher No.		

In case of unavoidable delay, the facts should be set out overleaf.

* IOW and AIOW in WSD are called WWI and AWWI respectively

Remarks : Departments may modify the Routing Sheet to suit their practice

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APPENDIX 9.13 ABSTRACT SHEET FOR A WORKS ORDER

CONTRACT NO. : ……..

W.O. No.: _____Folio No.: _____

DESCRIPTION OF WORK								Carried to Summary
ITEM NO.								
QUANTITY								
SCHEDULE RATE								
CONTRACT RATE								
ACTUAL RATE								
	c							
	$							

W.O. No.: _____Folio No.: _____

ITEM NO.	Page		Page		Page		Page		Page		Page		Carried to Summary
BOOK NO.													
TOTAL													
REDUCED TOTAL													
	c												
	$												

	Initial	Date	Initial	Date
Cross Check with Measurement				
Technical Check				

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APPENDIX 9.14 SUMMARY SHEET FOR A WORKS ORDER

FOLIO NO.	SUMMARY	CAST $	CAST c	Percentage Adjustment	TOTAL $	TOTAL c
	(1) Value of work subject to fluctuation					
				Gross value		
	(2) Value of work based on actual cost / current price					
				Gross value		
	(3) Gross total value of work (1) + (2)					
	(4) Effective value of work subject to fluctuation (1) $					
	(5) Price fluctuation factor for of 20 =					
	(6) Contract price fluctuation (4) x (5) Add/deduct *					
	TOTAL AMOUNT OF WORKS ORDER CARRIED FORWARD (3) + (6) $					

* Delete where inapplicable

	Initial	Date	Initial	Date
Casting Check				

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APPENDIX 9.15 STATEMENT OF FINAL ACCOUNT FOR A WORKS ORDER

_____ DEPARTMENT

WORKS ORDER NO. …… OF …….. CONTRACT NO. ……..
CONTRACT
NAME ……
CONTRACTOR ……..……..……
SITE OF WORKS ……
DETAILS OF WORK……..……..
……..……..
……..……..

Total value of works executed as Abstract of Quantities and Prices

$	c

DEDUCTIONS :
Previous Payments (Cert. No. 1 to ……)

$	c

Amount Now Due $

I/We hereby certify that I/we have no further claim under this Works Order.

……
for the Contractor

Date ……

Bill Checked		I certify that the payment is in accordance with the terms of the agreement and the work has been properly executed.
SO(Q)	Accounts	
Date ……	Date ……	……..…….. for /The Engineer Date ……..

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APPENDIX 9.16 PAYMENT ON ACCOUNT FOR A WORKS ORDER

_____ DEPARTMENT

Name of
Contractor …….
Address ……
Title of
Contract …….
Contract No. ……. USER CODE …….
* Works Order No.
Estimated value of works Order
Aggregate of Interim Payments

CERTIFICATE NO. ……

	Amount	
+ Total value of work completed to ……..…….. (date)		
Value of materials supplied by Contractor on site …….	$	c

DEDUCTIONS

	$	c
Value of materials supplied by Employer ……		
Total amount of previous payments (see overleaf) ……..		
Total Deductions ……..……..		

AMOUNT DUE ON CERTIFICATE NO. …….

I certify that the above measurements represent the work actually carried out and that the deductions are in order.

Engineer's Representative …….
Date …….

I certify that this payment is in accordance with the terms of Contract No. …….. and that work to the value of $……. as shown at + above has been performed.

Payment of $ …… is now due.

Date: ……
……

for The Engineer

* Delete as applicable

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Certificate No.	P.V. No.	Amount
Total of Previous Payments Present Payment on P.V. No. ……		
Total Payment to Date		

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